SUPPLEMENT NO. 30
September 2026

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26-196, adopted March 12, 2026.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7, SH:8
CD2:1—CD2:8.2	CD2:1—CD2:8.2
CD2:19—CD2:22.3	CD2:19—CD2:22.3
CD2:27—CD2:36.14.1	CD2:27—CD2:36.14.4
CD2:36.41, CD2:36.42	CD2:36.41, CD2:36.42
CD2:38.9—CD2:38.12	CD2:38.9—CD2:38.12
CD2:38.21—CD2:42	CD2:39—CD2:42.1
CD2:81, CD2:82	CD2:81—CD2:86
CD3:1, CD3:2	CD3:1, CD3:2
CD3:3—CD3:20	CD3:3—CD3:20.5
CD5:21, CD5:22	CD5:21, CD5:22
CD12:1—CD12:4	CD12:1—CD12:4
CD12:22.1—CD12:24	CD12:23—CD12:24.1
CD15:1—CD15:4	CD15:1—CD15:4
CD15:5—CD15:65	CD15:5—CD15:77
CD21:27—CD21:30.3	CD21:27—CD21:30.3
CD25:1—CD25:22.14	CD25:1—CD25:4
	CD25:5—CD25:22.24
CDA:1—CDA:12	CDA:1—CDA:12
CDA:13—CDA:40	CDA:13—CDA:40.2
CDA:44.19—CDA:44.23	CDA:44.19—CDA:44.23
CDA:158.5—CDA:158.15	CDA:158.5—CDA:158.16
CDA:200.1—CDA:221	CDA:201—CDA:229
CCT:37, CCT:38	CCT:37—CCT:40
SLT:1—SLT:5	SLT:1—SLT:6
CDi:1—CDi:67	CDi:1—CDi:67

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SUPPLEMENT NO. 29
August 2025

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24-959, adopted January 23, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD3:27—CD3:32	CD3:27—CD3:32
CD12:5—CD12:6.1	CD12:5—CD12:6.1
CD22:1—CD22:16.1	CD22:1—CD22:16.1
CD22:21—CD22:25	CD22:21—CD22:25
CCT:37, CCT:38	CCT:37, CCT:38
CDi:1—CDi:67	CDi:1—CDi:67

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SUPPLEMENT NO. 28
September 2024

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24-289, adopted May 23, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD2:27—CD2:30.3	CD2:27—CD2:30.3
CD2:36.3—CD2:36.14.1	CD2:36.3—CD2:36.14.1
CD2:36.41, CD2:36.42	CD2:36.41, CD2:36.42
CDA:9—CDA:12	CDA:9—CDA:12
CDA:17—CDA:22	CDA:17—CDA:22.1
CDA:131—CDA:132.2.1	CDA:131—CDA:132.2.1
CCT:37, CCT:38	CCT:37, CCT:38
CDi:1—CDi:67	CDi:1—CDi:67

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SUPPLEMENT NO. 27
June 2024

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24-29, adopted January 25, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD2:2.1—CD2:8	CD2:3—CD2:8.2
CD2:36.47—CD2:38.6	CD2:36.47—CD2:38.21
CD2:67, CD2:68	CD2:67—CD2:68.1
CD2:77—CD2:82	CD2:77—CD2:82
CD3:13—CD3:16	CD3:13—CD3:16
CD4:3—CD4:12	CD4:3—CD4:12
CD13:5—CD13:8	CD13:5—CD13:8.1
CD15:43—CD15:44.1	CD15:43—CD15:44.1
CD25:1, CD25:2	CD25:1, CD25:2
CD25:20.7—CD25:22.5	CD25:20.7—CD25:22.14
CD27:7—CD27:9	CD27:7—CD27:9
CCT:37	CCT:37, CCT:38
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1—CDi:85	CDi:1—CDi:67

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SUPPLEMENT NO. 26
July 2023

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23-74, adopted February 9, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD12:3, CD12:4	CD12:3, CD12:4
CD12:5, CD12:6	CD12:5—CD12:6.1
	CD12:33—CD12:43
CD13:11, CD13:12	CD13:11, CD13:12
CD22:15—CD22:16.1	CD22:15—CD22:16.1
CDA:11, CDA:12	CDA:11, CDA:12
CDA:44.7—CDA:44.12	CDA:44.7—CDA:44.12.1
CDA:147—CDA:158.2	CDA:147—CDA:158.15
CDA:197—CDA:200	CDA:197—CDA:200.3
CDB:1, CDB:2	CDB:1, CDB:2
CDB:3—CDB:4.8	CDB:3—CDB:4.1
CCT:37	CCT:37
SLT:1—SLT:5	SLT:1—SLT:5
CDi:13—CDi:16	CDi:13—CDi:16.1
CDi:26.1, CDi:26.2	CDi:26.1, CDi:26.2
CDi:41, CDi:42	CDi:41, CDi:42
CDi:79, CDi:80	CDi:79—CDi:80.1

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SUPPLEMENT NO. 25
November 2022

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22-733, adopted September 22, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5—SH:7
CD2:1, CD2:2	CD2:1, CD2:2
CD2:9, CD2:10	CD2:9, CD2:10
CD2:36.3, CD2:36.4	CD2:36.3, CD2:36.4
CD2:36.9, CD2:36.10	CD2:36.9, CD2:36.10
CD2:36.41, CD2:36.42	CD2:36.41, CD2:36.42
CD13:7—CD13:11	CD13:7—CD13:12
CDA:187—CDA:198	CDA:187—CDA:198
CDA:219—CDA:221	CDA:219—CDA:221
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SUPPLEMENT NO. 24
August 2022

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22-300, adopted May 12, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:6	SH:1—SH:6
CD2:7—CD2:18.1	CD2:7—CD2:18
CD2:26.11—CD2:30	CD2:27—CD2:30.3
CD2:36.7—CD2:36.14	CD2:36.7—CD2:36.14.1
CD2:36.25—CD2:36.42	CD2:36.25—CD2:36.42.1
CD2:43—CD2:50.1	CD2:43—CD2:50.1
CD2:77—CD2:79	CD2:77—CD2:82
CD3:1, CD3:2	CD3:1, CD3:2
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CD7:1, CD7:2	CD7:1—CD7:2.1
CD7:17—CD7:34.5	CD7:17—CD7:34.26
CD8:19—CD8:20.1	CD8:19—CD8:20.1
CD8:31, CD8:32	CD8:31, CD8:32
CD12:21, CD12:22	CD12:21—CD12:22.1
CD13:3—CD13:6	CD13:3—CD13:6
CD15:1—CD15:4	CD15:1—CD15:4
CD15:47, CD15:48	CD15:47—CD15:48.1
CD15:56.1—CD15:60	CD15:57—CD15:60.2
CD16:5—CD16:8	CD16:5—CD16:8.1
CD17:1—CD17:3	CD17:1—CD17:3
CD17:21—CD17:28	CD17:21—CD17:29
CDA:63, CDA:64	CDA:63, CDA:64
CCT:35, CCT:36	CCT:35—CCT:37
SLT:1—SLT:5	SLT:1—SLT:5

Remove Old Pages	*Insert New Pages*
CDi:1—CDi:26	CDi:1—CDi:26.2
CDi:30.1—CDi:38	CDi:31—CDi:38.1
CDi:43—CDi:44.1	CDi:43—CDi:44.1
CDi:49—CDi:53	CDi:49—CDi:53

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SUPPLEMENT NO. 23
September 2021

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21-449, adopted May 27, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
CD2:9—CD2:18	CD2:9—CD2:18.1
CD3:1, CD3:2	CD3:1, CD3:2
CD3:8.1—CD3:8.17	CD3:8.1—CD3:8.24
CD12:1—CD12:4	CD12:1—CD12:4
CD12:17—CD12:36	CD12:17—CD12:32
CD15:52.1—CD15:56.1	CD15:53—CD15:56.2
CD21:37, CD21:38	CD21:37, CD21:38
CD23:15—CD23:16.1	CD23:15—CD23:16.1
CD25:1, CD25:2	CD25:1—CD25:2.1
CD25:7—CD25:20.4.2	CD25:7—CD25:20.4.2
CDA:9—CDA:12	CDA:9—CDA:12
CDA:21—CDA:44.24	CDA:21—CDA:44.23
CDA:53—CDA:98.8	CDA:53—CDA:98.5
CDA:115—CDA:118	CDA:115—CDA:118
CDA:127, CDA:128	CDA:127—CDA:128.1
CDA:135—CDA:152.4	CDA:135—CDA:152.12
CDA:201—CDA:206	CDA:201—CDA:206
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CCT:33, CCT:34	CCT:33—CCT:36
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CDi:1—CDi:4	CDi:1—CDi:4
CDi:26.1—CDi:30	CDi:27—CDi:30.1
CDi:38.1—CDi:40	CDi:39, CDi:40

Remove Old Pages	*Insert New Pages*
CDi:83—CDi:85	CDi:83—CDi:85

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SUPPLEMENT NO. 22
November 2020

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20-486, enacted June 25, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD2:7, CD2:8	CD2:7, CD2:8
CD2:73—CD2:77	CD2:73—CD2:79
CD15:53, CD15:54	CD15:53, CD15:54
CD23:1, CD23:2	CD23:1—CD23:2.1
CD23:29	CD23:29—CD23:68
CCT:33, CCT:34	CCT:33, CCT:34
SLT:5	SLT:5
CDi:11—CDi:14.1	CDi:11—CDi:14.1
CDi:21, CDi:22	CDi:21, CDi:22
CDi:37, CDi:38	CDi:37—CDi:38.1
CDi:43, CDi:44	CDi:43—CDi:44.1
CDi:51—CDi:53	CDi:51—CDi:53

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SUPPLEMENT NO. 21
March 2020

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-1040, enacted December 19, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD2:11, CD2:12	CD2:11, CD2:12
CD2:43—CD2:46	CD2:43—CD2:46
CD2:59—CD2:62	CD2:59—CD2:62
CD2:75—CD2:77	CD2:75—CD2:77
CD3:1, CD3:2	CD3:1, CD3:2
CD3:8.1—CD3:8.17	CD3:8.1—CD3:8.17
CD5:25, CD5:26	CD5:25, CD5:26
CD8:17—CD8:20.1	CD8:17—CD8:20.1
CD15:55—CD15:56.1	CD15:55—CD15:56.1
CD21:3, CD21:4	CD21:3, CD21:4
CD21:30.1	CD21:30.1—CD21:30.3
CDA:37—CDA:44.10	CDA:37—CDA:44.12.1
CDA:55—CDA:62	CDA:55—CDA:57
CDA:86.1—CDA:90	CDA:87—CDA:90.1
CDA:154.1—CDA:156	CDA:155—CDA:156.2
CDA:211, CDA:212	CDA:211—CDA:212.1
CDA:221, CDA:222	CDA:221, CDA:222
CCT:22.1—CCT:33	CCT:23—CCT:34
CDi:3, CDi:4	CDi:3, CDi:4
CDi:13—CDi:14.1	CDi:13—CDi:14.1
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:35—CDi:36.1	CDi:35—CDi:36.1

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SUPPLEMENT NO. 20
July 2019

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-81, enacted February 28, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
CD3:16.1—CD3:17	CD3:17—CD3:18.1
CD5:1—CD5:24	CD5:1—CD5:30
CD14:1	CD14:1
CD14:7—CD14:10	CD14:7—CD14:10
CD16:9—CD16:12	CD16:9—CD16:12
CD22:13—CD22:16	CD22:13—CD22:16
CDA:37, CDA:38	CDA:37, CDA:38
CDA:63, CDA:64	CDA:63, CDA:64
CDA:69—CDA:70.1	CDA:69—CDA:70.1
CDA:96.3—CDA:98	CDA:97—CDA:98.8
CDA:156.1—CDA:158.1	CDA:157—CDA:158.2
CDA:187, CDA:188	CDA:187—CDA:188.1
CDA:219—CDA:222	CDA:219—CDA:222
CCT:31, CCT:32	CCT:31—CCT:33
SLT:1—SLT:5	SLT:1—SLT:5
CDi:3—CDi:4.1	CDi:3, CDi:4
CDi:17—CDi:22	CDi:17—CDi:22
CDi:45—CDi:46.1	CDi:45—CDi:46.1

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SUPPLEMENT NO. 19
December 2018

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18-622, enacted August 23, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:31—CD2:36	CD2:31—CD2:36.48
CD5:1, CD5:2	CD5:1, CD5:2
CD5:9, CD5:10	CD5:9—CD5:10.1
CD7:23—CD7:26	CD7:23—CD7:26.1
CD7:32.3—CD7:32.8	CD7:32.3—CD7:32.8.1
CD7:32.11—CD7:34	CD7:33—CD7:34.5
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CD8:9—CD8:10.6	CD8:9—CD8:10.4
CD8:19, CD8:20	CD8:19—CD8:20.1
CD8:25—CD8:28	CD8:25—CD8:28.4
CD13:3—CD13:8	CD13:3—CD13:11
CD15:35—CD15:44.1	CD15:35—CD15:44.1
CD17:5, CD17:6	CD17:5—CD17:6.1
CD27:5—CD27:6.2	CD27:5—CD27:6.2.1
CDA:5—CDA:8	CDA:5—CDA:8
CDA:31, CDA:32	CDA:31, CDA:32
CDA:44.5—CDA:44.10	CDA:44.5—CDA:44.10
CDA:64.1—CDA:66	CDA:65—CDA:66.1
CDA:79—CDA:86	CDA:79—CDA:86.1
CDA:95—CDA:96.5	CDA:95—CDA:96.8
CDA:129—CDA:132.2	CDA:129—CDA:132.2.1
CDA:181—CDA:182.2	CDA:181—CDA:182.2
CDA:187, CDA:188	CDA:187, CDA:188
CDA:201, CDA:202	CDA:201—CDA:202.1
CDA:209—CDA:222	CDA:209—CDA:222
CCT:29—CCT:31	CCT:29—CCT:32

Remove Old Pages	*Insert New Pages*
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:23, CDi:24	CDi:23, CDi:24
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:75—CDi:85	CDi:75—CDi:85

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SUPPLEMENT NO. 18
October 2022

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17-847, enacted November 2, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD3:1, CD3:2	CD3:1, CD3:2
CD3:8.5—CD3:8.12	CD3:8.5—CD3:8.17
CD3:16.1—CD3:18	CD3:16.1—CD3:17
CD4:1—CD4:4	CD4:1—CD4:4.1
CD4:9—CD4:12	CD4:9—CD4:12
CD8:1—CD8:4	CD8:1—CD8:4
CD8:9, CD8:10	CD8:9—CD8:10.6
CD15:52.1—CD15:54	CD15:52.1—CD15:54
CD17:1—CD17:3	CD17:1—CD17:3
CD17:15—CD17:16.1	CD17:15—CD17:16.1
CD21:29, CD21:30	CD21:29, CD21:30
CD22:1, CD22:2	CD22:1, CD22:2
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CDA:44.7, CDA:44.8	CDA:44.7—CDA:44.8.1
CDA:213, CDA:214	CDA:213—CDA:214.1
CDA:219—CDA:222	CDA:219—CDA:222
CCT:21, CCT:22	CCT:21—CCT:22.1
CCT:31	CCT:31
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1—CDi:14	CDi:1—CDi:14.1
CDi:25—CDi:26.1	CDi:25—CDi:26.1

Remove Old Pages	*Insert New Pages*
CDi:31—CDi:40	CDi:31—CDi:40
CDi:45, CDi:46	CDi:45—CDi:46.1

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SUPPLEMENT NO. 17
May 2017

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16-891, enacted December 1, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
CD2:11—CD2:14	CD2:11—CD2:14.1
CD3:8.1—CD3:8.11	CD3:8.1—CD3:8.12
CD5:14.1, CD5:14.2	CD5:14.1—CD5:14.3
CD8:3, CD8:4	CD8:3, CD8:4
CD8:49, CD8:50	CD8:49—CD8:57
CD9:1—CD9:9	CD9:1—CD9:12
CD15:5—CD15:8	CD15:5—CD15:8.1
CD18:11, CD18:12	CD18:11, CD18:12
CDA:3—CDA:6	CDA:3—CDA:6
CDA:19—CDA:26	CDA:19—CDA:26.1
CDA:39—CDA:41	CDA:39—CDA:41
CDA:44.17—CDA:44.20	CDA:44.17—CDA:44.24
CDA:53—CDA:60	CDA:53—CDA:55
CDA:69—CDA:70.1	CDA:69—CDA:70.1
CDA:81—CDA:86	CDA:81—CDA:86
CDA:128.1—CDA:132.2	CDA:129—CDA:132.2
CDA:139—CDA:144	CDA:139—CDA:144.5
CDA:147, CDA:148	CDA:147, CDA:148
CDA:153, CDA:154	CDA:153—CDA:154.2
CDA:191, CDA:192	CDA:191—CDA:192.1
CDA:215—CDA:221	CDA:215—CDA:222
CCT:27—CCT:30	CCT:27—CCT:31
SLT:1—SLT:5	SLT:1—SLT:5
CDi:3, CDi:4	CDi:3, CDi:4
CDi:9—CDi:26	CDi:9—CDi:26.1

Remove Old Pages	*Insert New Pages*
CDi:31—CDi:36	CDi:31—CDi:36
CDi:53	CDi:53
CDi:75—CDi:86	CDi:75—CDi:85

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SUPPLEMENT NO. 16
September 2016

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16-104, enacted February 11, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:1, CD2:2	CD2:1—CD2:2.1
CD2:31—CD2:34.1	CD2:31—CD2:34.44
CD3:7, CD3:8	CD3:7, CD3:8
CD3:15, CD3:16	CD3:15—CD3:16.1
CD8:1—CD8:3	CD8:1—CD8:4
CD8:9—CD8:41	CD8:9—CD8:50
CD12:3—CD12:6.1	CD12:3—CD12:6.1
CD12:27—CD12:32.1	CD12:27—CD12:32.2
CD15:41—CD15:44	CD15:41—CD15:44.1
CD21:29—CD21:30.1	CD21:29—CD21:30.1
CD22:23—CD22:25	CD22:23—CD22:25
CD23:15, CD23:16	CD23:15—CD23:16.1
CD26:5—CD26:10	CD26:5—CD26:10.1
CD26:17—CD26:51	CD26:17—CD26:48
CD27:6.5, CD27:6.6	CD27:6.5, CD27:6.6
CDA:22.1—CDA:38	CDA:23—CDA:38.2
CDA:101, CDA:102	CDA:101—CDA:102.1
CDA:135—CDA:140.4	CDA:135—CDA:140.2
CDA:147, CDA:148	CDA:147—CDA:148.1
CDA:187—CDA:205	CDA:187—CDA:221
CCT:29	CCT:29, CCT:30
SLT:1—SLT:5	SLT:1—SLT:5
CDi:9—CDi:16	CDi:9—CDi:16
CDi:21—CDi:26	CDi:21—CDi:26

Remove Old Pages	*Insert New Pages*
CDi:29, CDi:30	CDi:29, CDi:30
CDi:35—CDi:40	CDi:35—CDi:40
CDi:45—CDi:50	CDi:45—CDi:50.1

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SUPPLEMENT NO. 15
November 2015

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-585, enacted September 24, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:20.1—CD2:22	CD2:21—CD2:22.3
CD2:31—CD2:34	CD2:31—CD2:34.1
CD8:1—CD8:3	CD8:1—CD8:3
CD8:9—CD8:32	CD8:9—CD8:41
CD15:41—CD15:44	CD15:41—CD15:44
CD22:1—CD22:10	CD22:1—CD22:10.2
CDA:3, CDA:4	CDA:3, CDA:4
CDA:9—CDA:12	CDA:9—CDA:12
CDA:16.1—CDA:22.1	CDA:17—CDA:22.2
CDA:37—CDA:42.1	CDA:37—CDA:41
CDA:44.5—CDA:44.10	CDA:44.5—CDA:44.10
CDA:61, CDA:62	CDA:61, CDA:62
CDA:69, CDA:70	CDA:69—CDA:70.1
CDA:79—CDA:96.6	CDA:79—CDA:96.5
CDA:113—CDA:116	CDA:113—CDA:116.1
CDA:125—CDA:128	CDA:125—CDA:128
CDA:181—CDA:182.2	CDA:181—CDA:182.2
CDA:187—CDA:188.4.4	CDA:187—CDA:188.4.4
CDA:203—CDA:205	CDA:203—CDA:205
CCT:29	CCT:29
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1, CDi:2	CDi:1, CDi:2
CDi:9, CDi:10	CDi:9, CDi:10
CDi:14.1—CDi:16	CDi:15, CDi:16
CDi:23—CDi:40	CDi:23—CDi:40

Remove Old Pages	*Insert New Pages*
CDi:43, CDi:44	CDi:43, CDi:44
CDi:48.1—CDi:52	CDi:49—CDi:53
CDi:75—CDi:86	CDi:75—CDi:86

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SUPPLEMENT NO. 14
March 2015

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-29, enacted January 22, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
CD3:1, CD3:2	CD3:1, CD3:2
CD3:8.1—CD3:8.7	CD3:8.1—CD3:8.11
CD7:1—CD7:5	CD7:1—CD7:5
CD7:10.1—CD7:12	CD7:11—CD7:12.1
CD8:25—CD8:28	CD8:25—CD8:28.1
CD9:1—CD9:6	CD9:1—CD9:6
CD15:1, CD15:2	CD15:1, CD15:2
CD26:41, CD26:42	CD26:41—CD26:42.1
CDA:9, CDA:10	CDA:9, CDA:10
CDA:15, CDA:16	CDA:15—CDA:16.1
CDA:21, CDA:22	CDA:21, CDA:22
CDA:29, CDA:30	CDA:29, CDA:30
CDA:33—CDA:36	CDA:33—CDA:36
CDA:41, CDA:42	CDA:41, CDA:42
CDA:44.5, CDA:44.6	CDA:44.5, CDA:44.6
CDA:61—CDA:64	CDA:61—CDA:64.1
CDA:182.1	CDA:182.1, CDA:182.2
CCT:27, CCT:28	CCT:27—CCT:29
SLT:1—SLT:5	SLT:1—SLT:5
CDi:3—CDi:14	CDi:3—CDi:14.1
CDi:23, CDi:24	CDi:23, CDi:24
CDi:47, CDi:48	CDi:47—CDi:48.1
CDi:79, CDi:80	CDi:79—CDi:80.1

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SUPPLEMENT NO. 13
November 2014

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14-316, enacted June 26, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD2:1, CD2:2	CD2:1, CD2:2
CD2:25—CD2:26.2	CD2:25—CD2:26.2.1
CD3:7—CD3:8.6	CD3:7—CD3:8.7
CD5:3—CD5:14	CD5:3—CD5:14.2
CD15:49—CD15:52	CD15:49—CD15:52.1
CD16:1	CD16:1
CD16:9—CD16:11	CD16:9—CD16:12
CD25:21, CD25:22	CD25:21, CD25:22
CD25:23—CD25:26	CD25:23—CD25:26
CDA:17—CDA:22.1	CDA:17—CDA:22.1
CDA:29—CDA:30.1	CDA:29—CDA:30.1
CDA:41, CDA:42	CDA:41—CDA:42.1
CDA:44.5—CDA:44.10	CDA:44.5—CDA:44.10
CDA:61, CDA:62	CDA:61—CDA:62.1
CDA:69, CDA:70	CDA:69, CDA:70
CDA:181, CDA:182	CDA:181—CDA:182.1
CCT:27, CCT:28	CCT:27, CCT:28
SLT:1—SLT:5	SLT:1—SLT:5
CDi:17, CDi:18	CDi:17—CDi:18.1
CDi:29, CDi:30	CDi:29—CDi:30.1

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SUPPLEMENT NO. 12
November 2013

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-655, enacted September 26, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD2:7, CD2:8	CD2:7, CD2:8
CD2:57—CD2:60	CD2:57—CD2:60
CD2:75—CD2:79	CD2:75—CD2:77
CD3:1, CD3:2	CD3:1, CD3:2
CD3:7, CD3:8	CD3:7—CD3:8.6
CD15:53—CD15:56	CD15:53—CD15:56.1
CD18:1	CD18:1
CD18:4.7—CD18:7	CD18:5—CD18:12
CD23:1, CD23:2	CD23:1, CD23:2
CD23:11—CD23:22	CD23:11—CD23:29
CD25:25, CD25:26	CD25:25, CD25:26
CD26:3, CD26:4	CD26:3, CD26:4
CD26:39—CD26:48	CD26:39—CD26:48.2
CDA:11, CDA:12	CDA:11, CDA:12
CDA:183—CDA:188.4	CDA:183—CDA:188.4.6
CDA:203, CDA:204	CDA:203—CDA:205
CCT:27, CCT:28	CCT:27, CCT:28
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1—CDi:4	CDi:1—CDi:4.1
CDi:13—CDi:52	CDi:13—CDi:52
CDi:75, CDi:76	CDi:75—CDi:76.1

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SUPPLEMENT NO. 11
May 2013

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-365, enacted May 24, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	SH:1, SH:2 (following Checklist of up-to-date pages)
CD2:1—CD2:7	CD2:1—CD2:8
CD2:25, CD2:26	CD2:25—CD2:26.13
CD2:35—CD2:38.2	CD2:35—CD2:38.6
CD2:43—CD2:44.1	CD2:43—CD2:44.1
CD3:1—CD3:21	CD3:1—CD3:23
CD5:9—CD5:10.1	CD5:9—CD5:10.1
CD8:1—CD8:3	CD8:1—CD8:3
CD8:9—CD8:25	CD8:9—CD8:32
CD15:1—CD15:49	CD15:1—CD15:65
CD18:1	CD18:1
CD18:3, CD18:4	CD18:3—CD18:4.8
CD19:5, CD19:6	CD19:5, CD19:6
CD22:13—CD22:18.2	CD22:13—CD22:18.2
CD22:21—CD22:24	CD22:21—CD22:24
CD24:1—CD24:33	CD24:1
CD25:1—CD25:20	CD25:1—CD25:20.16
CD25:25, CD25:26	CD25:25—CD25:26.1
CD26:1—CD26:6	CD26:1—CD26:6.1
CDA:3—CDA:22	CDA:3—CDA:22.1
CDA:27—CDA:30	CDA:27—CDA:30.1
CDA:33—CDA:44.12	CDA:33—CDA:44.10
CDA:61—CDA:82	CDA:61—CDA:82
CDA:85—CDA:96.7	CDA:85—CDA:96.6
CDA:113—CDA:118	CDA:113—CDA:118

Remove Old Pages	*Insert New Pages*
CDA:127, CDA:128	CDA:127—CDA:128.1
CDA:132.5—CDA:136	CDA:133—CDA:136.1
CDA:153—CDA:156	CDA:153—CDA:156
CDA:183—CDA:188	CDA:183—CDA:188.10
CDA:193, CDA:194	CDA:193—CDA:194.1
CDA:201—CDA:204	CDA:201—CDA:204
CCT:12.1—CCT:14	CCT:13—CCT:14.1
CCT:19—CCT:25	CCT:19—CCT:28
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1—CDi:57	CDi:1—CDi:52
CDi:75—CDi:85	CDi:75—CDi:86

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SUPPLEMENT NO. 10
November 2010

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10-607, enacted August 26, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:7	CD2:7
CD2:43, CD2:44	CD2:43—CD2:44.1
CD2:75	CD2:75—CD2:79
CD8:1—CD8:3	CD8:1—CD8:3
CD8:5, CD8:6	CD8:5—CD8:6.1
CD9:5—CD9:9	CD9:5—CD9:9
CD18:3—CD18:6	CD18:3—CD18:7
CD22:17—CD22:18.2	CD22:17—CD22:18.2
CD24:25, CD24:26	CD24:25, CD24:26
CD25:1—CD25:4	CD25:1—CD25:4
CD25:18.9—CD25:22	CD25:19—CD25:22.5
CDA:1—CDA:10.1	CDA:1—CDA:10.1
CDA:21—CDA:44.10	CDA:21—CDA:44.20
CDA:61—CDA:96.1	CDA:61—CDA:96.7
CDA:115—CDA:116.1	CDA:115—CDA:116.1
CDA:127, CDA:128	CDA:127, CDA:128
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CDA:147, CDA:148	CDA:147, CDA:148
CDA:152.5—CDA:156	CDA:153—CDA:156.2
CDA:177—CDA:199	CDA:177—CDA:204

Remove Old Pages	*Insert New Pages*
CCT:23, CCT:24	CCT:23—CCT:25
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1—CDi:65	CDi:1—CDi:57
	CDi:75—CDi:85

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SUPPLEMENT NO. 9
September 2009

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-622, enacted July 23, 2009.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:7	CD2:7
CD2:31, CD2:32	CD2:31, CD2:32
CD2:59, CD2:60	CD2:59, CD2:60
CD2:73	CD2:73—CD2:75
CD3:3, CD3:4	CD3:3, CD3:4
CD5:1, CD5:2	CD5:1, CD5:2
CD5:3—CD5:10.1	CD5:3—CD5:10.1
CD5:19	CD5:19—CD5:24
CD6:1	CD6:1
CD6:3—CD6:6	CD6:3—CD6:8
CD7:1—CD7:5	CD7:1—CD7:5
CD7:7—CD7:10	CD7:7—CD7:10.1
CD7:39, CD7:40	CD7:39—CD7:40.1
CD7:59—CD7:61	CD7:59—CD7:61
CD12:3, CD12:4	CD12:3, CD12:4
CD12:16.1—CD12:22	CD12:17—CD12:22.1
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CD22:17—CD22:18.1	CD22:17—CD22:18.2
CD25:18.1—CD25:18.10	CD25:18.1—CD25:18.10
CDA:1—CDA:10	CDA:1—CDA:10.1
CDA:17—CDA:22	CDA:17—CDA:22
CDA:36.1—CDA:44.4	CDA:37—CDA:44.4.10
CDA:65—CDA:86	CDA:65—CDA:86
CDA:92.1—CDA:96.1	CDA:93—CDA:96.1
CDA:114.1—CDA:116	CDA:115—CDA:116.1
CDA:121—CDA:132	CDA:121—CDA:132.5
CDA:145—CDA:148	CDA:145—CDA:148
CDA:152.5	CDA:152.5, CDA:152.6
CDA:183—CDA:186.1	CDA:183—CDA:186.1
CCT:23	CCT:23, CCT:24
SLT:1—SLT:5	SLT:1—SLT:5

Remove old pages	*Insert new pages*
CDi:1—CDi:14	CDi:1—CDi:14.1
CDi:25, CDi:26	CDi:25, CDi:26
CDi:31, CDi:32	CDi:31—CDi:32.1
CDi:39—CDi:42	CDi:39—CDi:42.1
CDi:48.1—CDi:50	CDi:49—CDi:50.1
CDi:55—CDi:65	CDi:55—CDi:65

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SUPPLEMENT NO. 8
November 2008

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-429, enacted June 26, 2008.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:9, CD2:10	CD2:9, CD2:10
CD8:17—CD8:20	CD8:17—CD8:20
CD13:3, CD13:4	CD13:3, CD13:4
CD15:32.5	CD15:32.5
CD19:3—CD19:7	CD19:3—CD19:6
CD25:18.1—CD25:18.11	CD25:18.1—CD25:18.11
CDA:1—CDA:4	CDA:1—CDA:4.1
CDA:9, CDA:10	CDA:9, CDA:10
CDA:13—CDA:14.1	CDA:13—CDA:14.1
CDA:23—CDA:36	CDA:23—CDA:36.5
CDA:135—CDA:140.3	CDA:135—CDA:140.4
CDA:147—CDA:152.3	CDA:147—CDA:152.5
CDA:180.1	CDA:180.1
CDA:183—CDA:186	CDA:183—CDA:186.1
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SUPPLEMENT NO. 7
July 2008

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-1125, enacted November 20, 2007.

See the Code Comparative Table—Ordinances for further information.

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July 2008

CODE OF ORDINANCES

City of

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Ordinance No. 07-1125, enacted November 20, 2007.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 6
August 2007

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-69, adopted February 8, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 5
September 2006

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-495, adopted June 8, 2006.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 4
November 2005

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-774, adopted September 22, 2005.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 3
April 2005

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-1027, adopted December 16, 2004.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 2
June 2004

CODE OF ORDINANCES

City of

HUNTSVILLE, ALABAMA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-246, adopted March 25, 2004.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 1
September 2003

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-751, adopted August 28, 2003.

See the Code Comparative Table—Ordinances for further information.

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CODE OF ORDINANCES

OF THE CITY OF

HUNTSVILLE, ALABAMA

Adopted: April 24, 2003
Effective: April 24, 2003

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Sandra Moon, President (District 3)
Bill Kling, Jr. (District 4)
Glen Watson, (District 5)
City Council

Peter Joffrion
City Attorney

Chuck Hagood
City Clerk-Treasurer

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the City of Huntsville, Alabama.

Source materials used in the preparation of the Code were the 1982 Code, which embraced ordinances adopted through February 12, 1981 and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1982 Code, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included in the same manner. If the new material is to be included between chapters 12 and 13, it will be designated as chapter 12.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which

may or may not appear in this Code at this time, and their corresponding prefixes:

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Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

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ADOPTING ORDINANCE

ORDINANCE NO. 03-248

AN ORDINANCE PROVIDING FOR THE REPEAL OF THE 1982 CODE OF THE CITY OF HUNTSVILLE, COUNTY OF MADISON, STATE OF ALABAMA; PROVIDING FOR THE ADOPTION AND ENACTMENT OF A NEW CODE OF THE CITY OF HUNTSVILLE, COUNTY OF MADISON, STATE OF ALABAMA; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES NOT INCLUDED THEREIN, EXCEPT AS HEREIN EXPRESSLY PROVIDED; PROVIDING FOR THE EFFECTIVE DATE OF SUCH CODE AND PENALTY FOR THE VIOLATION THEREOF; AND PROVIDING FOR THE MANNER OF AMENDING SUCH CODE; AND PROVIDING WHEN THIS ORDINANCE SHALL BECOME EFFECTIVE.

WHEREAS, ON THE 27TH DAY OF MARCH, 2003, AT A REGULAR MEETING OF THE CITY COUNCIL OF THE CITY OF HUNTSVILLE, ALABAMA, THE FOLLOWING RESOLUTION WAS ADOPTED:

BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF HUNTSVILLE, ALABAMA, AS FOLLOWS:

"1. That the City Council of the City of Huntsville proposes to repeal the 'Code of Ordinances, City of Huntsville, Alabama' adopted and approved on the 13th day of May, 1982, and to consider the adoption of a new revision and codification of its ordinances and the adoption of such Code by ordinance, as provided by Code of Alabama, 1975, Sections 11-45-7 and 11-45-8 and to adopt by reference as a part of such Code the following technical codes: Standard Unsafe Building Abatement Code, 1985 Edition; Standard Building Code, 1997 Edition; National Electrical Code, 1996 Edition; Standard Gas Code, 1997 Edition; NFPA Pamphlet Nos. 54 and 58; Standard Mechanical Code, 1997 Edition; Standard Housing Code, 1988 Edition; Standard Plumbing Code, 1997 Edition; Life Safety Code 101, 1997 Edition; Standard Fire and Prevention Code, 1994 Edition; National Fire Codes, 1998 Edition; and Alabama misdemeanor laws and Alabama traffic laws as provided in the Code of Alabama, 1975. The Council will hold a public hearing thereon at the regular meeting of the City Council to be held at the Council Chamber in the City Administration Building of Huntsville, Alabama, on the 24th day of April, 2003 at 6:00 P.M. Said Code shall be known as the 'Code of Ordinances of the City of Huntsville, Alabama.'

"2. This resolution shall be published once a week for two (2) successive weeks in a newspaper of general circulation in the City of Huntsville, Alabama, as provided by the Code of Alabama, 1975, Sections 11-45-7 and 11-45-8, as amended, the first of which publications shall be made on or before the 9th day of April, 2003. A copy of this resolution and of said publications shall be carefully preserved by the City Clerk in his office as part of the public records of his office.

"3. Three (3) copies of said proposed Code of Ordinances of the City of Huntsville, Alabama, and of each said technical codes adopted in such Code shall be filed in the office of the City Clerk by the 28th day of March, 2003, for

use and examination by the public from that date through the 24th day of April, 2003, as provided by Code of Alabama, 1975, Sections 11-45-7 and 11-45-8, as amended."

ADOPTED this the 27th of March, 2003.

/s/ Sandra Moon
President of the City Council
of the City of
Huntsville, Alabama

APPROVED this the 27th day of March, 2003.

/s/ Loretta Spencer
Mayor of the City of
Huntsville, Alabama

AND WHEREAS, THE CITY COUNCIL OF THE CITY OF HUNTSVILLE, ALABAMA, NOW FINDS THAT SAID RESOLUTION HAS BEEN COMPLIED WITH.

ACCORDINGLY, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF HUNTSVILLE, ALABAMA, AS FOLLOWS:

Section 1. That the Code of Ordinances, consisting of Chapters 1 to 27, each inclusive, together with the codes mentioned in said resolution, is hereby adopted and enacted as the "Code of Ordinances of the City of Huntsville, Alabama." Such Code shall be treated and considered as a new and original comprehensive ordinance which shall supersede all other general and permanent ordinances passed by the City Council on or before the 14th day of November, 2002, to the extent provided in Section 2 hereof.

Section 2. That all provisions of such Code shall be in full force and effect from and after the 24th day of April, 2003, and all ordinances of a general and permanent nature enacted on or before the 14th day of November, 2002, and not included in such Code or recognized and continued in force by reference therein are hereby repealed from and after the 24th day of April, 2003, except as hereinafter provided. No resolution of the City, not specifically mentioned, is hereby repealed.

Section 3. That the repeal provided for in Section 2 hereof shall not affect any of the following:

(a) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of such Code;

(b) Any ordinance promising or guaranteeing the payment of money for the City or authorizing the issuance of any bonds of the City or any evidence of the City's indebtedness;

(c) Any contract or obligation assumed by the City;

(d) Any ordinance prescribing zoning or subdivision regulations, or zoning of particular property;

(e) Any right or franchise granted by the City;

(f) Any ordinance dedicating, naming, establishing, locating, opening, widening, paving, etc., any street or public way in the City;

(g) Any appropriation ordinance, or ordinance levying or imposing any tax;

(h) Any ordinance which, by its own terms, is effective only for a stated or limited time;

(i) Any ordinance providing for local improvements and assessing or appropriating taxes therefor;

(j) Any ordinance dedicating or accepting any subdivision plat;

(k) Any ordinance or resolution not in conflict with such Code regulating traffic on specific streets or portions thereof or in specific areas of the City;

(l) Any ordinance enacted after the 14th day of November, 2002.

Section 4. That whenever in this Ordinance or such Code an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in this Ordinance or such Code the doing of any act is required or the failure to do any act is declared to be unlawful, and no specific penalty is provided therefor, the violation of any such provision shall be punishable by a fine of not less than one dollar ($1) nor more than five hundred dollars ($500); and in addition may be punishable by imprisonment or hard labor for the City, or a combination thereof, for a period not exceeding six (6) months, as is provided by Section 1-7 of such Code.

Section 5. That any and all additions and amendments to such Code, when passed in such form as to indicate the intention of the City Council to make the same a part thereof, shall be deemed to be incorporated in such Code so that reference to the Code of Ordinances of the City of Huntsville, Alabama, shall be understood and intended to include such additions and amendments.

Section 6. That in case of the amendment of any section of such Code for which a penalty is not provided, the general penalty as provided in Section 4 of this Ordinance and Section 1-7 of such Code shall apply to the section as amended; or in case such amendment contains provisions for which a penalty, other than the aforementioned general penalty, is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Section 7. That a copy of such Code shall be kept on file in the office of the City Clerk preserved in loose-leaf form or in such other form as the City Council may consider most expedient. It shall be the express duty of the City Clerk or someone authorized by the Clerk to insert in their designated places all amendments or ordinances which indicate the intention of the City Council to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such Code all provisions which may be from time to time repealed by the City Council. A copy of such Code shall be available for all persons desiring to examine the same.

Section 8. That it shall be unlawful for any person to change or amend by additions or deletions, any part or portions of the Code, or to insert or delete pages or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of Huntsville to be misrepresented thereby. Any person violating this section shall be punished as provided in Section 4 of this Ordinance.

Section 9. That all ordinances or parts of ordinances in conflict herewith are, to the extent of such conflict, hereby repealed.

Section 10. This Ordinance shall become in full force and effect in accordance with the law of Alabama.

Section 11. This Ordinance shall take effect as provided by law after passage, approval and publication.

ADOPTED this the 24th day of April, 2003.

/s/ Sandra Moon
President of the City Council
of the City of
Huntsville, Alabama

APPROVED this the 24th day of April, 2003.

/s/ Loretta Spencer
Mayor of the City of
Huntsville, Alabama

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From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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CD23:55, CD23:56	22	CD25:35, CD25:36	OC
CD23:57, CD23:58	22	CD25:37, CD25:38	OC
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CD23:65, CD23:66	22	CD26:7, CD26:8	16
CD23:67, CD23:68	22	CD26:9, CD26:10	16
CD24:1	11	CD26:10.1	16
CD25:1, CD25:2	30	CD26:11, CD26:12	OC
CD25:3, CD25:4	30	CD26:13, CD26:14	OC
CD25:5, CD25:6	30	CD26:15, CD26:16	OC
CD25:7, CD25:8	30	CD26:17, CD26:18	16
CD25:9, CD25:10	30	CD26:19, CD26:20	16
CD25:11, CD25:12	30	CD26:21, CD26:22	16
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CD26:35, CD26:36	16	CDA:43, CDA:44	23
CD26:37, CD26:38	16	CDA:44.1, CDA:44.2	23
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CD26:43, CD26:44	16	CDA:44.7, CDA:44.8	26
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CD26:47, CD26:48	16	CDA:44.11, CDA:44.12	26
CD27:1	2	CDA:44.12.1	26
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CD27:6.1, CD27:6.2	19	CDA:44.17, CDA:44.18	23
CD27:6.2.1	19	CDA:44.19, CDA:44.20	30
CD27:6.3, CD27:6.4	4	CDA:44.21, CDA:44.22	30
CD27:6.5, CD27:6.6	16	CDA:44.23	30
CD27:7, CD27:8	27	CDA:45, CDA:46	OC
CD27:9	27	CDA:47, CDA:48	OC
CDA:1, CDA:2	30	CDA:49, CDA:50	OC
CDA:3, CDA:4	30	CDA:51, CDA:52	OC
CDA:5, CDA:6	30	CDA:53, CDA:54	23
CDA:7, CDA:8	30	CDA:55, CDA:56	23
CDA:9, CDA:10	30	CDA:57, CDA:58	23
CDA:11, CDA:12	30	CDA:59, CDA:60	23
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CDA:23, CDA:24	30	CDA:71, CDA:72	23
CDA:25, CDA:26	30	CDA:73, CDA:74	23
CDA:27, CDA:28	30	CDA:75, CDA:76	23
CDA:29, CDA:30	30	CDA:77, CDA:78	23
CDA:31, CDA:32	30	CDA:79, CDA:80	23
CDA:33, CDA:34	30	CDA:81, CDA:82	23
CDA:35, CDA:36	30	CDA:83, CDA:84	23
CDA:37, CDA:38	30	CDA:85, CDA:86	23

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CDA:93, CDA:94	23	CDA:153, CDA:154	26
CDA:95, CDA:96	23	CDA:155, CDA:156	26
CDA:97, CDA:98	23	CDA:157, CDA:158	26
CDA:98.1, CDA:98.2	23	CDA:158.1, CDA:158.2	26
CDA:98.3, CDA:98.4	23	CDA:158.3, CDA:158.4	26
CDA:98.5	23	CDA:158.5, CDA:158.6	30
CDA:99, CDA:100	1	CDA:158.7, CDA:158.8	30
CDA:101, CDA:102	16	CDA:158.9, CDA:158.10	30
CDA:102.1	16	CDA:158.11, CDA:158.12	30
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CDA:105, CDA:106	7	CDA:158.15, CDA:158.16	30
CDA:107, CDA:108	7	CDA:159, CDA:160	OC
CDA:109, CDA:110	7	CDA:161, CDA:162	1
CDA:111, CDA:112	7	CDA:163, CDA:164	OC
CDA:113, CDA:114	15	CDA:165, CDA:166	OC
CDA:115, CDA:116	23	CDA:167, CDA:168	OC
CDA:117, CDA:118	23	CDA:169, CDA:170	7
CDA:119, CDA:120	1	CDA:171, CDA:172	7
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CDA:123, CDA:124	9	CDA:175, CDA:176	7
CDA:125, CDA:126	15	CDA:177, CDA:178	10
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CDA:128.1	23	CDA:181, CDA:182	19
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CDA:132.1, CDA:132.2	28	CDA:185, CDA:186	12
CDA:132.2.1	28	CDA:187, CDA:188	25
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CDA:133, CDA:134	11	CDA:191, CDA:192	25
CDA:135, CDA:136	23	CDA:193, CDA:194	25
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CDA:145, CDA:146	23	CDA:203, CDA:204	30

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CDA:209, CDA:210	30	CDB:50.1	3
CDA:211, CDA:212	30	CDB:51, CDB:52	OC
CDA:213, CDA:214	30	CDB:53, CDB:54	OC
CDA:215, CDA:216	30	CDB:55, CDB:56	OC
CDA:217, CDA:218	30	CDB:57, CDB:58	OC
CDA:219, CDA:220	30	CDB:59, CDB:60	OC
CDA:221, CDA:222	30	CDB:61, CDB:62	OC
CDA:223, CDA:224	30	CCT:1, CCT:2	OC
CDA:225, CDA:226	30	CCT:3	OC
CDA:227, CDA:228	30	CCT:5, CCT:6	OC
CDA:229	30	CCT:7, CCT:8	OC
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CDB:3, CDB:4	26	CCT:11, CCT:12	4
CDB:4.1	26	CCT:13, CCT:14	11
CDB:5, CDB:6	OC	CCT:14.1	11
CDB:7, CDB:8	OC	CCT:15, CCT:16	2
CDB:9, CDB:10	3	CCT:17, CCT:18	4
CDB:10.1	3	CCT:19, CCT:20	11
CDB:11, CDB:12	OC	CCT:21, CCT:22	18
CDB:13, CDB:14	OC	CCT:23, CCT:24	21
CDB:15, CDB:16	OC	CCT:25, CCT:26	21
CDB:17, CDB:18	OC	CCT:27, CCT:28	21
CDB:19, CDB:20	OC	CCT:29, CCT:30	21
CDB:21, CDB:22	OC	CCT:31, CCT:32	21
CDB:23, CDB:24	OC	CCT:33, CCT:34	23
CDB:25, CDB:26	OC	CCT:35, CCT:36	24
CDB:27, CDB:28	OC	CCT:37, CCT:38	30
CDB:29, CDB:30	OC	CCT:39, CCT:40	30
CDB:31, CDB:32	OC	SLT:1, SLT:2	30
CDB:33, CDB:34	OC	SLT:3, SLT:4	30
CDB:35, CDB:36	OC	SLT:5, SLT:6	30
CDB:37, CDB:38	OC	CDi:1, CDi:2	30
CDB:39, CDB:40	OC	CDi:3, CDi:4	30
CDB:41, CDB:42	OC	CDi:5, CDi:6	30
CDB:43, CDB:44	OC	CDi:7, CDi:8	30
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CDi:37, CDi:38	30
CDi:39, CDi:40	30
CDi:41, CDi:42	30
CDi:43, CDi:44	30
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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
Supp. No. 11			
06-730	10-12-2006	Include	11
07-462	6-28-2007	Include	11
10-507	8-26-2010	Include	11
10-646	9- 9-2010	Include	11
10-675	9-23-2010	Include	11
10-676	9-23-2010	Omit	11
10-677	9-23-2010	Include	11
10-678	9- 9-2010	Include	11
10-681	9-23-2010	Omit	11
10-739	10-14-2010	Include	11
10-922	12- 2-2010	Omit	11
10-955	12-16-2010	Include	11
11-11	2-24-2011	Include	11
11-116	12-15-2011	Include	11
11-257	5-12-2011	Omit	11
11-258	5-12-2011	Include	11
11-259	5-12-2011	Include	11
11-375A	7-14-2011	Include	11
11-376A	7-14-2011	Include	11
11-385	6-23-2011	Omit	11
11-444	7-14-2011	Omit	11
11-514	8-11-2011	Include	11
11-654	9-22-2011	Include	11
11-713	9-27-2011	Include	11
11-714	9-27-2011	Include	11
11-715	9-27-2011	Include	11
11-895	1-26-2012	Include	11
11-897	1-26-2012	Include	11
11-899	1-26-2012	Include	11
12-60	3-22-2012	Include	11
12-293	4-26-2012	Include	11

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
12-333	5- 3-2012	Include	11
12-365	5-24-2012	Include	11
Supp. No. 12			
12-890	10-25-2012	Omit	12
12-1019	12-20-2012	Include	12
13-48	1-24-2013	Omit	12
13-187	3-28-2013	Include	12
13-189	5- 9-2013	Include	12
13-247	5-23-2013	Include	12
13-249	4-25-2013	Include	12
13-354	5-23-2013	Include	12
13-355	5-23-2013	Include	12
13-433	6-27-2013	Include	12
13-434	6-27-2013	Include	12
13-482	7-11-2013	Include	12
13-529	7-25-2013	Include	12
13-654	9-26-2013	Include	12
13-655	9-26-2013	Include	12
Supp. No. 13			
13-652	10-24-2013	Omit	13
13-844	11- 7-2013	Include	13
13-845	11- 7-2013	Include	13
13-846	3-29-2014	Include	13
13-882	12-19-2013	Include	13
13-959A	12-19-2013	Include	13
13-968A	12-19-2013	Include	13
13-969A	12-19-2013	Include	13
14-88	2-27-2014	Omit	13
14-89	2-27-2014	Include	13
14-179	3-13-2014	Omit	13
14-180	3-13-2014	Omit	13
14-181	3-13-2014	Omit	13
14-182	3-13-2014	Omit	13
14-183	3-13-2014	Omit	13
14-280	4-24-2014	Omit	13
14-316	6-26-2014	Include	13
14-329	5- 8-2014	Include	13
Supp. No. 14			
13-731	10-10-2013	Include	14
14-318	10-23-2014	Include	14
14-491	8-28-2014	Omit	14
14-576	9-25-2014	Include	14
14-726	10- 9-2014	Include	14
14-823	10-23-2014	Include	14
14-859	12-18-2014	Omit	14
14-970	1- 8-2015	Include	14

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
15-7	1-22-2015	Include	14
15-29	1-22-2015	Include	14
Supp. No. 15			
15-156	3-26-2015	Include	15
15-315	6-25-2015	Include	15
15-406	7-23-2015	Include	15
15-414	6-25-2015	Include	15
15-415	6-25-2015	Include	15
15-416	6-25-2015	Include	15
15-479	8-27-2015	Include	15
15-481	8-27-2015	Include	15
15-527	8-13-2015	Include	15
15-528	8-13-2015	Include	15
15-585	9-24-2015	Include	15
Supp. No. 16			
15-756	11-19-2015	Include	16
15-758	11-19-2015	Include	16
15-760	11-19-2015	Include	16
15-907	1-28-2016	Include	16
15-908	12-17-2015	Include	16
15-909	12-17-2015	Include	16
15-910	12-17-2015	Include	16
15-911	12-17-2015	Include	16
15-912	12-17-2015	Include	16
15-922	12-17-2015	Include	16
15-951	1-14-2016	Include	16
15-952	12-17-2015	Include	16
16-009	3-10-2016	Include	16
16-89	3-24-2016	Include	16
16-91	3-24-2016	Include	16
16-103	2-11-2016	Include	16
16-104	2-11-2016	Include	16
Supp. No. 17			
12-356	6-28-2012	Include	17
12-466	8-23-2012	Include	17
12-581	8-23-2012	Include	17
12-583	8-23-2012	Include	17
15-677	10-22-2015	Include	17
16-259	5-26-2016	Include	17
16-318	6-23-2016	Include	17
16-327	6- 9-2016	Include	17
16-412	6-23-2016	Include	17
16-491	8-25-2016	Include	17
16-493	8-25-2016	Include	17
16-580	8-25-2016	Include	17
16-621	9- 8-2016	Include	17

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
16-648	10-27-2016	Include	17
16-737	10-13-2016	Include	17
16-739	10-13-2016	Include	17
16-781	11-17-2016	Include	17
16-795	11-17-2016	Include	17
16-890	11-17-2016	Include	17
16-891	12- 1-2016	Include	17
Supp. No. 18			
06-926	10-12-2006	Include	18
16-964	1-12-2017	Include	18
16-965	1-12-2017	Include	18
16-966	1-12-2017	Include	18
17-045	2- 9-2017	Include	18
17-088	2-23-2017	Include	18
17-089	2-23-2017	Include	18
17-164	4-27-2017	Include	18
17-307	5-11-2017	Omit	18
17-337	5-25-2017	Include	18
17-456	6-13-2017	Include	18
17-585	9-28-2017	Include	18
17-601	8-24-2017	Include	18
17-705	9-28-2017	Omit	18
17-846	11- 2-2017	Include	18
17-847	11- 2-2017	Include	18
Supp. No. 19			
15-324	5-28-2015	Include	19
17-883	12-21-2017	Include	19
17-885	12-21-2017	Include	19
17-953	1-25-2018	Include	19
18-03	2-22-2018	Include	19
18-65	3-22-2018	Include	19
18-230	5-24-2018	Include	19
18-232	5-24-2018	Include	19
18-234	5-24-2018	Include	19
18-243	4-26-2018	Include	19
18-249	4-26-2018	Include	19
18-339	6-28-2018	Include	19
18-446	7-26-2018	Include	19
18-491	7-12-2018	Include	19
18-536	8-23-2018	Include	19
18-575	8- 9-2018	Include	19
18-576	8- 9-2018	Include	19
18-616	8-23-2018	Include	19
18-617	8-23-2018	Include	19
18-622	8-23-2018	Include	19

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
Supp. No. 20			
18-670	9-13-2018	Include	20
18-716	10-25-2018	Include	20
18-718	10-25-2018	Include	20
18-720	10-25-2018	Include	20
18-892	11-15-2018	Include	20
18-900	11-15-2018	Include	20
18-904	11-15-2018	Include	20
18-952A	11- 1-2018	Include	20
18-1001	12-20-2018	Include	20
18-1089	12-20-2018	Include	20
18-1136	1-10-2019	Include	20
19-20	1-24-2019	Include	20
19-81	2-28-2019	Include	20
Supp. No. 21			
09-876	10- 8-2009	Include	21
09-1208	12-17-2009	Include	21
12-681	8-23-2012	Include	21
14-971	1- 8-2015	Include	21
19-06	2-28-2019	Omit	21
19-08	2-28-2019	Omit	21
19-10	2-28-2019	Omit	21
19-62	3-28-2019	Omit	21
19-64	3-28-2019	Omit	21
19-66	3-28-2019	Omit	21
19-183	4-25-2019	Omit	21
19-185	4-25-2019	Omit	21
19-275	5-23-2019	Omit	21
19-277	5-23-2019	Omit	21
19-355	6-27-2019	Include	21
19-357	6-27-2019	Omit	21
19-359	6-27-2019	Omit	21
19-367	5-23-2019	Include	21
19-477	6-27-2019	Include	21
19-517	6-27-2019	Include	21
19-519	7-11-2019	Include	21
19-524	7-11-2019	Include	21
19-570	8-22-2019	Omit	21
19-572	8-22-2019	Omit	21
19-784	9-12-2019	Include	21
19-665	9-26-2019	Include	21
19-667	9-26-2019	Omit	21
19-669	9-26-2019	Omit	21
19-671	9-26-2019	Omit	21
19-673	9-26-2019	Omit	21
19-778	10-24-2019	Include	21

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
19-780	10-24-2019	Include	21
19-993	11- 7-2019	Include	21
19-936	11-21-2019	Include	21
19-1040	12-19-2019	Include	21
Supp. No. 22			
19-1051	11-21-2019	Include	22
20-270	4- 9-2020	Include	22
20-486	6-25-2020	Include	22
Supp. No. 23			
20-950	11- 5-2020	Include	23
20-953	10-22-2020	Include	23
20-1003	11- 5-2020	Include	23
20-1062	12-17-2020	Include	23
21-46	2-25-2021	Include	23
21-95	2-25-2021	Include	23
21-95A	2-25-2021	Include	23
21-173	3-25-2021	Include	23
21-391	5-27-2021	Include	23
21-449	5-27-2021	Include	23
Supp. No. 24			
21-558	7- 8-2021	Include	24
21-559	7- 8-2021	Include	24
21-564	7-22-2021	Include	24
21-693	9-23-2021	Include	24
21-703	8-26-2021	Include	24
21-708	8-26-2021	Include	24
21-751	10-14-2021	Include	24
21-804	9- 9-2021	Omit	24
21-984	10-14-2021	Include	24
21-1006	11-18-2021	Include	24
21-1095	11- 4-2021	Include	24
21-1135	11-18-2021	Include	24
21-1136	11-18-2021	Include	24
21-1181	12- 2-2021	Include	24
21-1182	12- 2-2021	Include	24
21-1183	12- 2-2021	Include	24
22-36	1-27-2022	Include	24
22-70	2-10-2022	Include	24
22-72	2-10-2022	Include	24
22-142	3-10-2022	Include	24
22-221	4-14-2022	Include	24
22-224	4-14-2022	Omit	24
22-270	4-28-2022	Include	24
22-300	5-12-2022	Include	24
Supp. No. 25			
22-237	5-26-2022	Include	25

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
22-467	7-14-2022	Include	25
22-470	6-23-2022	Include	25
22-733	9-22-2022	Include	25
Supp. No. 26			
22-226	3-24-2022	Include	26
22-484	8-25-2022	Include	26
22-685	10-27-2022	Include	26
22-809	11-17-2022	Include	26
22-886	12-15-2022	Include	26
22-898	12-15-2022	Include	26
22-900	12-15-2022	Include	26
22-988	12-15-2022	Include	26
23-74	2- 9-2023	Include	26
Supp. No. 27			
23-155	3- 9-2023	Include	27
23-202	3-23-2023	Include	27
23-258	4-13-2023	Include	27
23-321	4-27-2023	Include	27
23-322	4-27-2023	Include	27
23-388	5-11-2023	Include	27
23-454	6- 8-2023	Include	27
23-520	7-13-2023	Include	27
23-694	10-12-2023	Include	27
23-696	9-14-2023	Include	27
23-944	11-16-2023	Include	27
24-29	1-25-2024	Include	27
Supplement 28			
24-287	5-23-2024	Include	28
24-289	5-23-2024	Include	28
24-316	5- 9-2023	Include	28
Supp. No. 29			
24-784	10-24-2024	Include	29
24-868	11-21-2024	Include	29
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Supp. No. 30			
25-76	2-13-2025	Include	30
25-77	2-13-2025	Include	30
25-157	4-24-2025	Include	30
25-194	3-27-2025	Include	30
25-197	3-27-2025	Include	30
25-259	4-10-2025	Include	30
25-267	6-12-2025	Include	30
25-310	4-24-2025	Include	30
25-347	5- 8-2025	Include	30
25-388	5-22-2025	Include	30
25-426	6-26-2025	Include	30

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25-647	8-28-2025	Include	30
25-1032	1- 8-2026	Include	30
25-1033	1- 8-2026	Include	30
26-196	3-12-2026	Include	30

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Catchlines of sections; history notes; references.
Sec. 1-4. Effect of repeal of ordinances.
Sec. 1-5. Amendments to Code; effect of new ordinances; amendatory language.
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Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters shall constitute and be designated the "Code of Ordinances of the City of Huntsville, Alabama," and may be so cited.
(Code 1982, § 1-1)

State law reference—Codification of ordinances, Code of Ala. 1975, § 11-45-7.

Sec. 1-2. Definitions and rules of construction.

The following definitions and rules of construction shall apply to this Code and to all ordinances unless the context or the terms of the provision require otherwise:

Generally. When provisions conflict, the specific shall prevail over the general. All provisions shall be liberally construed so that the intent of the city council may be effectuated. Words and phrases shall be construed according to the common and approved usage of the language; but technical words, technical phrases and words and phrases that have acquired peculiar and appropriate meanings in law shall be construed according to such meanings. Provisions shall be interpreted and applied so as to be the minimum requirements adopted for the promotion of the public health, safety, comfort, convenience and general welfare. In the event of conflicts between provisions, the more stringent provision controls. It is intended that no provision of this Code conflict with any federal or state law intended to preempt municipal jurisdiction with respect to the subject matter contained in this Code; and the provisions of this Code shall be construed, whenever possible, to avoid such conflict.

Acts. References to acts are to acts of the Alabama Legislature, as published in the Acts of Alabama. Acts passed after 1978 are referenced to the act number, which number includes the last two digits of the year of enactment. All other acts are referenced to act number and year of enactment. All references to acts are followed by a parenthetical reference to the page number in the Acts of Alabama upon which the act begins. The page number reference is for information purposes only. All references to acts are to such acts as amended.

Bond. When a bond is required, an undertaking in writing shall be required.

City. The term "city" means the City of Huntsville, Alabama.

City council. The terms "city council" and "council" mean the City Council of the City of Huntsville, Alabama.

Clerk and *treasurer.* The terms "city clerk" and "city treasurer" refer to the clerk-treasurer of the city.

Code. The term "Code" means the Code of Ordinances of the City of Huntsville, Alabama, as designated in section 1-1.

Code of Ala. 1975. The abbreviation "Code of Ala. 1975" means the Code of Alabama, 1975, as now or hereafter amended. Any reference to an act found in the Code of Alabama, 1975, by short title is a reference to such act as amended.

Computation of time. In computing any period of time, the day of the act, event or default from which the designated period of time begins to run shall not be included. The last day of the period so designated shall be included, unless it is a Saturday, a Sunday or a legal holiday, in which event the period runs until the end of the next day that is not a Saturday, a Sunday or a legal holiday. When the period of time prescribed or allowed is less than seven days, intermediate Saturdays, Sundays and legal holidays shall be excluded in the computation.

Conjunctions. In a provision involving two or more items, conditions, provisions or events, which items, conditions, provisions or events are connected by the conjunction "and," "or" or "either . . . or," the conjunction shall be interpreted as follows:

(1) "And" indicates that all the connected terms, conditions, provisions or events apply.

(2) "Or" indicates that the connected terms, conditions, provisions or events apply singly or in any combination.

(3) "Either . . . or" indicates that the connected terms, conditions, provisions or events apply singly but not in combination.

Corporate limits. The term "corporate limits" means the corporate limits of the city.

County. The term "county" means Madison County, Alabama; Limestone County, Alabama; or any other county in which the city may be located, as appropriate.

Delegation of authority. A provision that authorizes or requires a city officer or city employee to perform an act or make a decision authorizes such officer or employee to act or make a decision through subordinates.

Gender. Words of one gender include all other genders and also include firms, partnerships, corporations and other legal entities, as appropriate.

Health department, board of health and *health officer.* References to the health department are to the county health department or any of its designees. References to the board of health are to the county board of health or any of its designees. References to the health officer are to the county health officer or any of his designees.

Includes. The term "includes" does not limit a term to a specified example.

Joint authority. Words giving a joint authority to three or more persons give such authority to a majority of such persons.

May. The term "may" is to be construed as being permissive and not mandatory.

Month. The term "month" means a calendar month.

Number. Words in the singular include the plural. Words in the plural include the singular.

Oath. A solemn affirmation is the equivalent to an oath, and a person shall be deemed to have sworn if such person makes such an affirmation.

Officers, departments, etc. References to officers, departments, boards, commissions or employees are to city officers, city departments, city boards, city commissions and city employees.

Owner. The term "owner," as applied to property, includes any part owner, joint owner, sole tenant, tenant in partnership, joint tenant or tenant by the entirety of the whole or part of such property.

Person. The term "person" means any human being, any governmental or political subdivision or public agency, any public or private corporation, any partnership, any firm, association or other organization, any receiver, trustee, assignee, agent, or other legal representative of any of the foregoing or any other legal entity.

Personal property. The term "personal property" means any property other than real property.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Premises. The term "premises," as applied to real property, includes land and structures.

Property. The term "property" includes real property, personal property and mixed property.

Real property. The term "real property" includes lands, tenements and hereditaments.

Shall. The term "shall" is to be construed as being mandatory.

Sidewalk. The term "sidewalk" means that portion of the street between the curbline or the lateral lines of the roadway and the adjacent property line intended for the use of pedestrians.

Signature and *subscription by mark.* The terms "signature" and "subscription" include a mark when the person cannot write if his name is written near the mark and witnessed by a person who writes his own name as a witness.

State. The term "state" means the State of Alabama.

Street. The term "street" includes any public way, road, highway, street, avenue, boulevard, bridge, viaduct, trestle and the approaches to any bridge, viaduct or trestle within the city.

Tenant and *occupant.* The terms "tenant" and "occupant," as applied to premises, include any

person holding a written or oral lease, or who actually occupies the whole or any part of such premises, alone or with others.

Tenses. The present tense includes the past and future tenses. The future tense includes the present tense.

Week. The term "week" means a period of seven consecutive days.

Writing. The term "writing" includes any form of recorded message capable of comprehension by ordinary visual means.

Year. The term "year" means a calendar year.
(Code 1982, §§ 1-2, 1-9)

State law reference—Similar rules of statutory construction, Code of Ala. 1975, § 1-1-1 et seq.

Sec. 1-3. Catchlines of sections; history notes; references.

(a) The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and are not titles of such sections, or of any part of the section, nor unless expressly so provided shall they be so deemed when any such section, including the catchline, is amended or reenacted.

(b) History notes, cross references and state law references that appear in this Code after sections or subsections or that otherwise appear in footnote form are provided for the convenience of the user of the Code and have no legal effect.

(c) Unless specified otherwise, all references to chapters or sections are to chapters or sections of this Code.
(Code 1982, § 1-3)

State law reference—Similar rules of statutory construction, Code of Ala. 1975, §§ 1-1-14, 1-1-15.

Sec. 1-4. Effect of repeal of ordinances.

(a) Unless specifically provided otherwise, the repeal of an ordinance does not revive any previously repealed ordinance.

(b) The repeal or amendment of an ordinance does not affect any punishment or penalty incurred before the repeal took effect, nor does such repeal or amendment affect any suit, prosecution or proceeding pending at the time of the amendment or repeal.
(Code 1982, § 1-4)

Sec. 1-5. Amendments to Code; effect of new ordinances; amendatory language.

(a) All ordinances adopted subsequent to this Code that amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of the Code and printed for inclusion in the Code. Portions of this Code repealed by subsequent ordinances may be excluded from this Code by omission from affected reprinted pages.

(b) Amendments to provisions of this Code may be made with the following language: "Section (chapter, article, division or subdivision, as appropriate) of the Code of Ordinances of the City of Huntsville, Alabama, is hereby amended to read as follows: . . . ." The section (chapter, article, division, or subdivision) should be set out in full.

(c) If a new section, subdivision, division, article or chapter is to be added to the Code, the following language may be used: "Section (chapter, article, division or subdivision, as appropriate) of the Code of Ordinances of the City of Huntsville, Alabama, is hereby created to read as follows: . . . ." The section (chapter, article, division, or subdivision) should be set out in full.

(d) All provisions desired to be repealed should be repealed specifically by section, subdivision, division, article or chapter number, as appropriate, or by setting out the repealed provisions in full in the repealing ordinance.
(Code 1982, § 1-6)

Sec. 1-6. Supplementation of Code.

(a) Supplements to this Code shall be prepared and printed whenever authorized or directed by the city. A supplement to this Code shall include all substantive permanent and general parts of ordinances adopted during the period covered by the supplement and all changes made thereby in the Code. The pages of the supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages that

have become obsolete or partially obsolete. The new pages shall be so prepared that when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code that have been repealed shall be excluded from the Code by their omission from reprinted pages.

(c) When preparing a supplement to this Code, the person authorized to prepare the supplement may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as necessary to do so in order to embody them into a unified code. For example, the person may:

(1) Arrange the material into appropriate organizational units.

(2) Supply appropriate catchlines, headings and titles for chapters, articles, divisions, subdivisions and sections to be included in the Code and make changes in any such catchlines, headings and titles or in any such catchlines, headings and titles already in the Code.

(3) Assign appropriate numbers to chapters, articles, divisions, subdivisions and sections to be added to this Code.

(4) Where necessary to accommodate new material, change existing numbers assigned to chapters, articles, divisions, subdivisions or sections.

(5) Change the words "this ordinance" or similar words to "this chapter," "this article," "this division," "this subdivision," "this section" or "sections _____ to _____" (inserting section numbers to indicate the sections of the Code that embody the substantive sections of the ordinance incorporated in this Code).

(6) Make other nonsubstantive changes necessary to preserve the original meaning of the ordinances inserted in this Code.

(Code 1982, § 1-7)

Sec. 1-7. General penalty; continuing violations.

(a) In this section the term "violation of this Code" means any of the following:

(1) Doing an act that is prohibited or made or declared unlawful, an offense, a violation or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

(2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance.

(3) Failure to perform an act if the failure is prohibited or is made or declared unlawful, an offense, a violation or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

(b) In this section, the term "violation of this Code" does not include the failure of a city officer or city employee to perform an official duty unless it is specifically provided that the failure to perform the duty is to be punished as provided in this section.

(c) A person convicted of a violation of this Code shall be punished by a fine not exceeding $500.00, or by imprisonment in the city jail or hard labor for a period not exceeding six months, or by any combination thereof, except:

(1) When in the enforcement of Code of Ala. 1975, § 32-5A-191 or 32-5A-191.3, such penalty shall not exceed the fines and sentences of imprisonment or hard labor as provided by state law;

(2) When a provision of this Code provides a particular penalty expressly applicable to certain violations, the express penalty shall be the penalty imposed upon conviction for those certain violations; or

(3) For violations of chapter 7, article V, pertaining to minimum housing standards; chapter 7, article VII, pertaining to the unsafe building abatement code; chapter 7, article VI, pertaining to nonresidential building maintenance standards; chapter 12, article IV, pertaining to junk, litter and inoperable vehicles; chapter 27, article III, pertaining to weeds and over-

grown grass; section 17-6, pertaining to graffiti; section 22-35, pertaining to refrigerators and similar containers; section 17-5, pertaining to unattended receptacles; and chapter 7, article II, pertaining to administration and enforcement of building regulations, and article III, pertaining to building contractors, the following penalty shall be imposed:

a. Over a 24-month period, upon first conviction, a fine of not less than $100.00 or more than $500.00, or imprisonment for not more than ten days.

b. Upon a second conviction, a fine of not less than $200.00 or more than $500.00, or imprisonment for not more than 30 days, or both such fine and imprisonment.

c. Upon a third or subsequent conviction, a fine of not less than $500.00 and imprisonment in jail for a period not to exceed six months. Such sentence shall include a mandatory sentence of not less than two days in jail, which shall not be subject to suspension or probation.

(d) Notwithstanding the provisions of subsection (c) of this section, the penalty imposed upon a corporation shall consist of the fine only, plus costs of court.

(e) Except as otherwise provided by law or ordinance, with respect to violations of this Code that are continuous with respect to time, each day that the violation continues is a separate offense. Except as otherwise provided by law or ordinance, with respect to violations that are not continuous with respect to time, each act constitutes a separate offense.

(f) The imposition of a penalty does not prevent suspension or revocation of a license, permit or franchise or other administrative sanctions.

(g) Violations of this Code that are continuous with respect to time are a public nuisance and may be abated by injunctive or other equitable relief. The imposition of a penalty does not prevent injunctive relief.
(Code 1982, §§ 1-6, 1-7)

State law reference—Limitations on penalties, Code of Ala. 1975, § 11-45-9.

Sec. 1-8. Severability.

The sections, subsections, paragraphs, sentences, clauses and phrases of this Code and all provisions adopted by reference in this Code are severable so that if any section, subsection, paragraph, sentence, clause or phrase of this Code or of any provision adopted by reference in this Code is declared unconstitutional or invalid by a valid judgment of a court of competent jurisdiction, such judgment shall not affect the validity of any other section, subsection, paragraph, sentence, clause or phrase of this Code or of any provision adopted by reference in this Code; for the council declares that it is its intent that it would have enacted this Code and all provisions adopted by reference in this Code without such invalid or unconstitutional provisions.
(Code 1982, § 1-10)

Sec. 1-9. Provisions deemed continuation of existing ordinances.

The provisions of this Code, insofar as they are substantially the same as legislation previously adopted by the city relating to the same subject matter, shall be construed as restatements and continuations and not as new enactments.
(Code 1982, § 1-8)

Sec. 1-10. Code does not affect prior offenses or rights.

(a) Nothing in this Code or the ordinance adopting this Code affects any offense or act committed or done, any penalty or forfeiture incurred, or any contract or right established before the effective date of this Code.

(b) The adoption of this Code does not authorize any use or the continuation of any use of a structure or premises in violation of any city ordinance on the effective date of this Code.
(Code 1982, § 1-4)

Sec. 1-11. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code affects the validity of the following ordinances or portion of ordinances. Such ordinances or portions of ordinances continue in full force and effect to the same extent as if published at length in this Code:

(1) That is an administrative or personnel ordinance, not mentioned in this Code or inconsistent with this Code.

(2) Annexing property into the city.

(3) Deannexing property or excluding property from the city.

(4) Describing the boundaries of the city.

(5) Promising or guaranteeing the payment of money or authorizing the issuance, sale or security of bonds or other instruments of indebtedness.

(6) Authorizing or approving any contract, deed or agreement.

(7) Making or approving any appropriation or budget.

(8) Granting any right or franchise.

(9) Providing for salaries, benefits, or terms or conditions of employment of city officers or employees codified in this Code, or creating or amending any department, division or other agency of city government, or any employment classification or position, whether elected or appointed, not codified in this Code.

(10) Creating or amending the powers of an authority, board or commission not codified in this Code.

(11) Making appointments to positions, offices or boards.

(12) Calling or ordering an election.

(13) Adopting or amending the comprehensive plan.

(14) Providing for local improvements or levying or imposing any special assessment.

(15) Dedicating, establishing, naming, locating, relocating, opening, paving, widening, repairing or vacating any street.

(16) Establishing the grade of any street or sidewalk.

(17) Dedicating, accepting or vacating any plat or subdivision, or prescribing or accepting subdivision regulations.

(18) Levying or imposing taxes not codified in this Code.

(19) Providing traffic or parking regulations for specific locations or routing buses in a manner not inconsistent with this Code.

(20) Pertaining to zoning, including but not limited to the basic zoning ordinance and its amendments and ordinances rezoning specific property.

(21) That is temporary, although general in effect.

(22) That is special, although permanent in effect.

(23) The purpose of which has been accomplished.

Sec. 1-12. Resolutions not affected by Code.

Nothing in this Code or the ordinance adopting this Code affects the validity of any resolution not mentioned in this Code and not inconsistent with this Code.

Sec. 1-13. Official holidays.

The official holidays of the city are declared as follows:

New Year's Day.

Martin Luther King's Birthday (as nationally observed).

Memorial Day.

Independence Day.

Labor Day.

Veterans' Day.

Thanksgiving Day.

Christmas Day.

Two floating holidays granted at the discretion of the mayor.

A third floating holiday taken at the discretion of the employee with the approval of the department head.

(Ord. No. 86-30, § 1, 2-20-1986)

Sec. 1-14. Fiscal year.

The fiscal year of the city shall begin on October 1 and end on September 30 of each year.

Chapter 2

ADMINISTRATION*

Article I. In General

Sec. 2-1. Issuance of summons and complaints to appear in municipal court in lieu of arrest.
Sec. 2-2. Powers of police officers.
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Article II. Mayor

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Article III. City Council

Division 1. Generally

Sec. 2-61. Reserved.
Sec. 2-62. Oath of office.
Sec. 2-63. Election of officers.
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Division 2. Council Rules

Sec. 2-91. Scope.
Sec. 2-92. Rule 1. Agenda.
Sec. 2-93. Rule 2. Call to order.
Sec. 2-94. Rule 3. Quorum.
Sec. 2-95. Rule 4. President pro tempore.
Sec. 2-96. Rule 5. Third presiding officer.
Sec. 2-97. Rule 6. Order of business.
Sec. 2-98. Rule 7. Procedural rules.
Sec. 2-99. Rule 8. Points of order.
Sec. 2-100. Rule 9. Questions of order.
Sec. 2-101. Rule 10. Calling members to order.

***Cross references—**Any ordinance authorizing or approving any contract, deed or agreement saved from repeal, § 1-11(6); any ordinance providing for salaries, benefits, or terms or conditions of employment of city officers or employees codified in this Code, or creating or amending any department, division or other agency of city government, or any employment classification or position, whether elected or appointed, not codified in this Code saved from repeal, § 1-11(9); any ordinance calling or ordering an election saved from repeal, § 1-11(12); administration and enforcement of buildings and building regulations, § 7-41 et seq.; administration and enforcement of minimum housing standards regulations, § 7-341 et seq.; administration and enforcement of nonresidential building maintenance standards regulations, § 7-491 et seq.; municipal court, ch. 16; taxation, ch. 24; administrative review and appeals procedures for taxation, § 24-31 et seq.; administration and enforcement for traffic and vehicles regulations, § 25-41 et seq.; utilities, ch. 26; administration and enforcement of amendments, permits and variances for zoning regulations, app. A, § 91.1 et seq.

State law reference—Municipalities generally, Code of Ala. 1975, § 11-40-1 et seq.

Sec. 2-102. Rule 11. Priority of speakers.
Sec. 2-103. Rule 12. Public comment on claims, lawsuits.
Sec. 2-104. Rule 13. Confidentiality.
Sec. 2-105. Rule 14. Motions.
Sec. 2-106. Rule 15. Amended motions.
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Sec. 2-110. Rule 19. Ordinances, resolutions in writing.
Sec. 2-111. Rule 20. Reconsideration of question.
Sec. 2-112. Rule 21. Adoption of ordinance or resolution.
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Sec. 2-114. Rule 23. Recording of ayes and nays.
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Sec. 2-116. Rule 25. Riders, qualifications must be pertinent.
Sec. 2-117. Rule 26. Committee recommendations.
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Sec. 2-156. Conference and travel policy.
Sec. 2-157. Pre-approval of legal and professional services.
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Sec. 2-183. Procurement officer.
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Sec. 2-188. Purchases with Federal Transit Administration funds.
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Article V. Personnel Policies

Sec. 2-221. Manual adopted.
Sec. 2-222. Cell phone policy.
Secs. 2-223—2-250. Reserved.

Article VI. Miscellaneous Policies

Sec. 2-251. City attorney authorized to institute lawsuits.
Sec. 2-252. Defense and indemnification—Agencies, boards and members.

Sec. 2-253. Same—City officers and employees.
Sec. 2-254. Same—Attorneys for city.
Secs. 2-255—2-290. Reserved.

Article VII. Departments, Department Heads and Other Appointed Officers

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Sec. 2-291. Departments of the city established.
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Sec. 2-322. Administration department established.
Sec. 2-323. Office of the mayor established.
Sec. 2-324. Position of city administrator established.
Sec. 2-325. Position of external relations officer established.
Secs. 2-326—2-329. Reserved.
Sec. 2-330. Office of economic and urban development established.
Sec. 2-331. Duties of the director of economic and urban development.
Sec. 2-332. Position of deputy director of economic and urban development established.
Secs. 2-333—2-335. Reserved.
Sec. 2-336. Communications office established.
Sec. 2-337. Duties of the director of communications.
Secs. 2-338—2-340. Reserved.
Sec. 2-341. Office of diversity, equity, and inclusion (ODEI) established.
Sec. 2-342. Duties of the director of diversity, equity, and inclusion.
Secs. 2-343—2-352. Reserved.

Division 3. Office of City Council

Sec. 2-353. Office of city council established.
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Sec. 2-384. Office of city clerk established; term of office; bond.
Sec. 2-385. Duties of the clerk.
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Division 5. Finance Department

Sec. 2-415. Finance department established; term of office; bond.
Sec. 2-416. Finance director duties.
Sec. 2-417. Absence of finance director; assumption of powers and duties.
Secs. 2-418—2-455. Reserved.

Division 6. General Services Department

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Division 7. Human Resources Department

Secs. 2-497—2-527. Reserved.

Division 8. Information Technology Services Department

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Division 9. Office of the City Attorney

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Division 10. Parks and Recreation Department

Secs. 2-590—2-620. Reserved.

Division 11. Huntsville Police Department

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Division 12. Huntsville Fire and Rescue Department

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Division 13. Municipal Court

Secs. 2-686—2-725. Reserved.

Division 14. Huntsville Animal Services Department

Secs. 2-726—2-756. Reserved.

Division 15. Cemetery Department

Secs. 2-757—2-787. Reserved.

Division 16. Landscape Management Department

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Division 17. Department of Parking and Public Transit

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Division 18. Public Works Department

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Division 19. Community Development Department

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Division 20. City Engineering Department

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Division 21. Inspections Department

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ARTICLE I. IN GENERAL

Sec. 2-1. Issuance of summons and complaints to appear in municipal court in lieu of arrest.

(a) Whenever an officer of the police department has made an arrest of a person without a warrant for violation of any class C misdemeanor or any violation of a city ordinance not involving violence, threat of violence, alcohol or drugs, except for traffic offenses which are otherwise provided by law, such officer may issue a summons and complaint (citation) to such person to appear in the municipal court of the city at a time and place certain to answer the charge. Each such summons and complaint shall contain a written promise to appear at the designated time and place as evidenced by the defendant's signature on the summons and complaint. If any person refuses to give a written recognizance to appear by placing his signature on the summons and complaint, the officer shall take such person into custody and bring him before any officer or official who is authorized to approve bond.

(b) Whenever a city magistrate or municipal judge is presented with probable cause sufficient to authorize the issuance of an arrest warrant for a violation occurring within the city of a class C misdemeanor or any violation of a city ordinance not involving violence, threat of violence, alcohol or drugs, the magistrate or judge may, in his discretion, elect to issue a summons and complaint ordering the accused to appear in the municipal court at a date and time certain to answer the charge against him.

(c) Any city employee who is designated a code enforcement officer by the department head of the city departments and divisions listed in this subsection, and any inspector or enforcement officer of the county health department, when acting as an enforcement officer of any health or sanitation ordinance of the city with respect to a violation occurring within the city, is authorized to issue a summons and complaint to persons found by him to be in violation of the particular ordinance, code, or codes enforced by the employee's department or division. This summons and complaint shall order such person to appear in municipal court at a date and time certain to answer the charge against him. The applicable departments or divisions are as follows:

(1) Animal control.

(2) Inspection.

(3) City clerk-treasurer.

(4) Community development.

(5) Engineering.

(6) Fire.

(7) Public works.

(8) Natural resources and environmental management.

(9) Madison County Health Department.

(d) Each summons shall:

(1) Be in writing.

(2) State the name of the court.

(3) State the name of the accused.

(4) State the address of the accused, if known.

(5) State a description of the offense charged, including the ordinance number.

(6) State the date, time and place of the offense.

(7) Set forth the date and time the accused is to appear in municipal court.

(8) Set forth the address of the municipal court.

(9) Be signed by the officer issuing or serving the citation.

(10) State an explanation to the person cited of the ways in which he may settle his case.

(11) Set forth a warning in bold type that willful failure to appear as directed is a misdemeanor and that a warrant for failure to appear will be issued in such an event.

(e) A summons delivered to or served upon a person accused of committing an offense in violation of a city ordinance shall place a duty upon such person to appear in municipal court at the

time and date indicated, and it shall be unlawful for any such person to fail to appear as directed in such citation or summons. Failure to appear at the time and date directed shall be prima facie evidence of a willful failure to appear, and the court may cause a warrant to be issued for the accused on a failure to appear charge.
(Ord. No. 93-275, §§ 1—5, 5-13-1993)

State law reference—Issuance of summons and citation in lieu of arrest, Code of Ala. 1975, § 11-45-9.1.

Sec. 2-2. Powers of police officers.

Police officers of the city shall, in addition to any other powers enumerated in this Code and in other applicable municipal or state laws, have the power to enforce, by arrest or citation, as appropriate, any violation of this Code, including but not limited to codes adopted by reference in accordance with section 11-45-8(c) of the Code of Ala. 1975.
(Ord. No. 05-530, § 1, 6-23-2005)

Secs. 2-3—2-30. Reserved.

ARTICLE II. MAYOR*

Secs. 2-31—2-60. Reserved.

ARTICLE III. CITY COUNCIL†

DIVISION 1. GENERALLY

Sec. 2-61. Reserved.

Editor's note—Ord. No 22-733, § 2, 3, adopted Sep., 22, 2022, renumbered the former § 2-61 as § 2-62 and reserved § 2-61 for future use. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 2-62. Oath of office.

On the first Monday in November after each municipal election, the mayor or mayor-elect, and members, and/or members-elect, of the city council shall meet in the city council chambers at the City Hall at 5:00 p.m., unless another place or time is designated, to take and subscribe the oath of office. On the same date, council shall assemble to conduct an organization meeting as provided in section 2-63.
(Ord. No. 94-788, § 2-12, 11-22-1994; Ord. No. 20-953, § 1, 10-22-2020; Ord. No. 21-558, § 1, 7-8-2021, eff. 10-14-2021; Ord. No. 22-733, § 2, 9-22-2022)

State law reference—Organizational meeting, Code of Ala. 1975, § 11-43-44.

Sec. 2-63. Election of officers.

(a) Following the oath of office, the members of the city council shall assemble in the city council chambers at City Hall at a time designated by city council to elect, by a majority vote of the council membership, a president, a president pro tempore, a third presiding officer from among their number. If no member receives a majority of votes for the office of president, a vote shall be taken for the office of president pro tempore. The member receiving a majority of votes for the office of president pro tempore shall preside and serve as president until such time as a president is elected. After a vote is taken for the office of president pro tempore, a vote shall be taken for the office of third presiding officer.

(b) At the first regular council meeting in October of each year (except for years in which there is a municipal election), the council shall elect new officers and reorganize the council for the coming year. The presiding officer shall declare all offices and committee assignments vacant and shall yield the chair to the city clerk-treasurer to preside until election of a president or president pro tempore. The rules of procedure for electing officers and organize the council after a municipal election. Officers may succeed themselves. All committee appointments and assignments shall continue and remain in effect until the next scheduled organization meeting as conducted in accordance with section

*__State law reference—__Mayors generally, Code of Ala. 1975, § 11-43-80 et seq.

†__State law reference—__Municipal councils generally, Code of Ala. 1975, § 11-43-40 et seq.

2-63 and section 2-67, and thereafter until their respective successors are appointed or assigned.

(c) At any regular meeting of the city council, upon motion duly made and seconded, the city council may elect to call for a special reorganization meeting, provided such motion to reorganize is approved by a vote of two-thirds of the council membership. If the city council approves the motion to reorganize, it shall conduct a special organization meeting at the end of the meeting where such a motion to reorganize is approved. At such meeting, a vote of the majority of the council shall prevail. The procedures for reorganization, shall be the same as those procedures for election of officers and reorganization provided in subsection (c) of this section.
(Ord. No. 94-788, § 2-14, 11-22-1994; Ord. No. 21-558, § 2, 7-8-2021, eff. 10-14-2021)

State law references—Election of council president, Code of Ala. 1975, § 11-43-40; election of president pro tem, Code of Ala. 1975, § 11-43-49.

Sec. 2-64. Number of meetings required; special meetings.

As soon as the president, president pro tempore, and third presiding officer have been elected, the city council shall then be considered as organized for the transaction of business of the city council. After the organization meeting, the city council shall meet at least twice each month for the transaction of the business of the city and shall meet more often if required by the president of the council. Special meetings shall be called as provided in Code of Ala. 1975, § 11-43-50 and according to the following provisions:

(1) The president of the city council may call for a special meeting.

(2) The mayor may request the president of the council to call a special meeting. Such request shall be in writing and shall state the purpose and time of the special meeting. Such request shall be signed by the mayor.

(3) Two members of the city council may request the president of the council to call a special meeting. Such request shall be in writing and shall state the purpose and time of the special meeting. Such request shall be signed by the councilmembers making the request.

(4) If the president of the council refuses to call a special meeting at the request of the mayor or two councilmembers, the president of the council shall notify the mayor or the two councilmembers of the denial of the request. After such notification, or if the president fails to notify the mayor or the two councilmembers within 24 hours of the request, the mayor or the two councilmembers making the request may then call for a special meeting.

(5) No special meeting or emergency meeting shall be called unless the appropriate notification can be provided to the public in accordance with the Code of Ala. 1975, § 36-25A-3.

(Ord. No. 94-788, § 2-15, 11-22-1994; Ord. No. 99-607, 7-22-1999; Ord. No. 21-558, § 3, 7-8-2021, eff. 10-14-2021)

State law reference—Alabama Open Meetings Act, notice requirements, Code of Ala. 1975, § 36-25A-3.

Sec. 2-65. Time of meetings.

(a) Until otherwise provided for, the city council shall meet for business on the second and fourth Thursdays in each month except in the months of November and December where the city council shall meet on the first and third Thursday, and continue from day to day until the business is finished. The meeting shall commence at 5:30 p.m. in the official chambers of the city council or at any other place or time designated by the council from time to time.

(b) The council shall meet for work sessions designated and agreed to from time to time by the council.

(c) In the event it becomes necessary to change the date of any regularly scheduled business meeting or work session, the council shall provide public notice in accordance with the Code of Ala. 1975, § 36-25A-3.
(Ord. No. 94-788, § 2-16, 11-22-1994; Ord. No. 96-869, 11-14-1996; Ord. No. 05-251, 4-28-2005; Ord. No. 19-784, 9-12-2019; Ord. No. 21-558, § 4, 7-8-2021, eff. 10-14-2021)

State law reference—Alabama Open Meetings Act, notice requirements, Code of Ala. 1975, § 36-25A-3

Sec. 2-66. Duties and responsibilities of council president.

(a) *Supervisory capacity*.

(1) The president of the council shall act as the department head to coordinate the council office staff and operations of the office; except that any personnel matter regarding the hiring of or disciplinary action involving a member of the council office staff shall be approved by a majority of the members of the city council. The administrative aide to the council shall perform the supervisory responsibilities authorized under sections 2.2(E) and 11 of the personnel policies and procedures manual which include but are not limited to assigning and directing the work of and evaluating the performance of the other city council office employees.

(2) At the appropriate time each year, the council president shall solicit from each councilmember an annual performance evaluation of the administrative aide to the council. The council president shall consider the administrative aide's performance evaluations submitted by each councilmember, including his/her own, in preparing the final performance evaluation of the administrative aide. A copy of each councilmember's evaluation shall be attached to the annual performance evaluation prepared by the council president.

(b) *Representation at functions*. The president of the council shall represent the council at official and civic functions as requested. If the president is not able to attend, the president pro tempore shall attend in the president's place as representative of the council. If both the president and president pro tempore are unable to attend, other councilmembers shall be contacted, in order of seniority if possible, until a replacement representative is available.

(c) *Approval of documents*. The president of the council shall sign and approve all documents and have all responsibility and authority as required of department heads of other city departments. In the case of purchase requisitions and expenditures by councilmembers, a simple majority vote of the council membership may override an approval or disapproval by the council president.

(d) *Preside at meetings*. The president of the council shall preside at regular council meetings, work sessions, special meetings, emergency meetings, and employee hearings held by the city council.

(Ord. No. 94-788, § 2-18, 11-22-1994; Ord. No. 96-693, 9-26-1996; Ord. No. 97-857, 11-20-1997; Ord. No. 21-558, § 5, 7-8-2021, eff. 10-14-2021)

Sec. 2-67. City council committee election; city council committee, board and commission appointments and assignments.

(a) At the first regular meeting after any city council reorganization meeting, the city council will elect members of the committees, commissions and boards as may be required by state law or properly adopted city ordinance or resolution. The standard nominating and voting procedure for election to council offices will be followed. A majority vote of the council membership shall be required for approval. Specifically, without excluding any other applicable committee, board or commission, the council shall elect the following:

(1) A member of the council shall be elected by the council to serve as its representative to the city planning commission. To facilitate coordination, the same member may serve as the council's representative to the metropolitan planning organization or in the alternative, another councilmember may be elected to serve as the council's representative to the metropolitan planning organization.

(2) A member of the council shall be elected by the council to serve as its representative to the research park board.

(3) A member of the council shall be elected by the council to serve as its representative to the historic preservation commission.

(4) The council, from time to time, shall elect other members as representatives as may be required.

(b) The council president shall make appointments and assignments of councilmembers and others to represent the president and council, on the following boards, committees and commissions. The president of the council shall not serve on any of the committees.

(1) Top of Alabama Council of Governments (TARCOG), two appointments—Councilmembers.

(2) Community Action Agency of Huntsville/Madison and Limestone Counties, Inc., one appointment—General appointment.

(3) Advisory Commission on Accessibility, one appointment—Ccouncilmember.

(4) City of Huntsville Insurance Committee, two appointments—Councilmembers.

(c) The council president, with majority concurrence of the council, may create committees of members of the council to study any issue before the council. Any such committee may make recommendations to the council, but no committee shall be empowered to make any final decision on any matter before it for consideration. In addition to two councilmembers, committees may include other city officials, staff or citizens at large. Whenever a committee is created, its duties, any limitation on the scope of its duties, and the times, places, and periods of time for which the committee may operate shall be determined by the council president with the concurrence of the council. The council president may serve as an ex officio member of all committees. Committee meetings shall be open to the public and shall comply with the requirements of this article and state law.
(Ord. No. 94-788, § 2-19, 11-22-1994; Ord. No. 97-718, 10-9-1997; Ord. No. 16-891, § 1, 12-1-2016; Ord. No. 21-558, § 6, 7-8-2021, eff. 10-14-2021; Ord. No. 21-1181, § 1, 12-2-2021)

State law reference—Council to prescribe powers and duties of officers it selects by ordinance, Code of Ala. 1975, § 11-43-47.

Sec. 2-68. Organization and appointment of finance committee.

At the first regular meeting of the council following the organization meeting, the president of the council shall appoint one member of the council as chairman of the finance committee and one other member of the council as vice-chairman of the finance committee. The president of the council shall not serve on the finance committee.
(Ord. No. 94-788, § 2-20, 11-22-1994)

Sec. 2-69. Composition and duties of the finance committee.

(a) The finance committee is composed of two city councilmembers, the director of finance, the mayor, and city administrator. A councilmember shall be named by the president of the council to be the chairman.

(b) The finance committee shall have the following duties:

(1) *Supervision of revenue and income.* The finance director shall maintain supervision of all revenue arising from all and every source whatsoever from which the city may derive any revenue whatsoever. The director shall also maintain supervision of all expenditures and financial obligations of the city including debt, capital plans, and any other items that have impact on the financial health of the city. The director shall prepare reports of financial standing for the chairman to report to the council at its meetings.

(2) *Examination of revenues and expenditures.* The finance committee shall review reports from the finance director and city administration to compare budget versus actual standing of the city's finances. The chairman shall report the standing and obligations at each council meeting. The committee will act as a liaison between city administration and council for in depth looks at financial matters affecting the City of Huntsville.

(Ord. No. 94-788, § 2-21, 11-22-1994; Ord. No. 21-558, § 7, 7-8-2021, eff. 10-14-2021; Ord. No. 21-1136, § 1, 11-18-2021)

Sec. 2-70. Amendment of bylaws.

This article may be amended by a two-thirds vote of the council membership.
(Ord. No. 94-788, § 2-22, 11-22-1994)

Sec. 2-71. Applicability of state law.

Anything not specifically provided in this article shall be governed by Code of Ala. 1975, tit. 11, ch. 43 (Code of Ala. 1975, § 11-43-1 et seq.) or other class 3 or pertinent general legislation.
(Ord. No. 94-788, § 2-23, 11-22-1994)

Secs. 2-72—2-90. Reserved.

DIVISION 2. COUNCIL RULES*

Sec. 2-91. Scope.

For the orderly transaction of the public business, the provisions of this division are adopted for the government of the city council.
(Ord. No. 94-788, § 2-17, 11-22-1994)

Sec. 2-92. Rule 1. Agenda.

(a) Prior to any meeting of the council, the president of the city council shall establish and make public ("publish") an agenda. No item for which paperwork has not been submitted to the city council by 3:00 p.m. on Tuesday prior to the scheduled meeting thereof shall be considered by the city council at such meeting unless two-thirds of the council membership have provided verbal or written consent to the council president for such consideration. Upon council approval, the item may be added to the published agenda up until noon prior to the scheduled meeting. The provisions of this subsection shall apply to work sessions as well as regular sessions of the city council. The agenda for any special meeting will be established at the time of notice of such special meeting.

(b) At the meeting of the council, items not on the published agenda established by the president may be added by motion for consideration or action by a councilmember during the "Adoption of the Agenda" as provided in section 2-97(3). Items can be offered for introduction at any time during a regular council business meeting. A change in the order of the agenda items may be made by the president or by request of a simple majority of the council membership.

(c) Each item submitted must be sponsored by a member of the council or the mayor. An item of administrative nature may be submitted by a department, board or agency of the city administration or by city utilities if that item relates directly to the business of the department. Department items must be submitted through the mayor. Each item submitted must be identified with the sponsor's name. The president of the city council may delete any item not properly submitted.

(d) Resolutions and ordinances sponsored by council members shall be reviewed by the legal department before introduction.

(e) Any item on the published agenda for which unanimous consent of all councilmembers present is required may be considered for action by the council only if the president or presiding officer states the title of the item or items during the time of the regular council business meeting for "Adoption of the Agenda" as provided in section 2-97(3).

(f) An item established on the published agenda may be removed or postponed by the sponsor without approval of the city council prior to the meeting or prior to the agenda being adopted by council at the meeting. If the sponsor will not be present at the meeting, he/she may submit a written request to remove or postpone the item to the appropriate presiding officer prior to the meeting. Otherwise, once an item is established on an adopted agenda, it may be postponed only upon an affirmative vote of a majority of the council membership. This rule shall not preclude more than one councilmember from sponsoring the same item.
(Ord. No. 94-788, § 2-17 (rule 1), 11-22-1994; Ord. No. 95-768, 10-30-1995; Ord. No. 99-324, 4-8-1999; Ord. No. 01-903, 11-8-2001; Ord. No.

*__State law reference—__Council to determine the rules of its own proceedings, Code of Ala. 1975, § 11-43-52.

07-604, § 1, 6-28-2007; Ord. No. 21-95A, § 2, 2-25-2021; Ord. No. 21-558, § 8, 7-8-2021, eff. 10-14-2021)

Sec. 2-93. Rule 2. Call to order.

At the appointed hour, the president of the city council shall take the chair, call the council to order and if a quorum is present, proceed to business. Those members present and absent will be noted in the minutes of the meeting.
(Ord. No. 94-788, § 2-17 (rule 2), 11-22-1994)

Sec. 2-94. Rule 3. Quorum.

A majority of the council membership shall constitute a quorum.
(Ord. No. 94-788, § 2-17 (rule 3), 11-22-1994)

State law reference—Similar provisions, Code of Ala. 1975, § 11-43-48.

Sec. 2-95. Rule 4. President pro tempore.

If the president shall be absent, the president pro tempore shall act as president.
(Ord. No. 94-788, § 2-17 (rule 4), 11-22-1994)

Sec. 2-96. Rule 5. Third presiding officer.

If the president and the president pro tempore shall be absent, the third presiding officer shall act as president pro tempore.
(Ord. No. 94-788, § 2-17 (rule 5), 11-22-1994)

Sec. 2-97. Rule 6. Order of business.

At all meetings, business shall be taken up and disposed of generally in the following order. The council president may adjust the format from time to time, as deemed necessary, to provide for the orderly conduct of council business.

(1) Invocation.

(2) Pledge of allegiance.

(3) Adoption of the agenda. Any addition or change to the agenda will be addressed, and any items on the published agenda for which unanimous consent is requested or required, shall be announced, as provided in subsection 2-92(b).

(4) Approval of the minutes of previous meeting(s). Any changes or additions shall be recorded and the minutes approved as corrected. The minutes shall be signed by the presiding officer.

(5) Special recognitions by the mayor.

(6) Special recognition and honorary resolutions by the council. Items submitted under this category must be presented for agenda assignment to the council president or council president pro tempore by close of business one calendar week prior to the scheduled meeting.

a. Special recognition resolutions for presentation at council meeting. (Presentations at council meetings shall be limited to direct city-related interests only.)

b. Special recognition resolutions for presentation at other than council meetings. (Presentations other than direct city-related interests—personal accomplishments, civic events, educational accomplishments, athletics, etc.)

c. Special recognitions other than by resolution.

(7) Announcements or presentations the president or presiding officer deems necessary or appropriate.

(8) Matters where an outside legal representative employed by the city or city agency is present.

(9) Public hearings to be held.

(10) Public hearings to be set.

(11) Public comments on agenda items.

a. Anyone wishing to address the council on any agenda item shall register to speak on the public communications roster prior to the meeting by contacting the council office during regular business hours on the day of the meeting.

b. Each speaker shall state their name, home address, and city of residence

for the record, or name and city of residence only if the home address was provided on the public comments roster. Each speaker may address the council for three minutes. The city clerk-treasurer or presiding officer shall be responsible for keeping time on each speaker. This time is provided for making comments to the city council or bringing items to the attention of the city council, relating to the specific content of items on the meeting agenda. Speakers shall use this time to offer opinions, concerns, or ideas about city matters. Council members shall listen without engaging in dialog. Appointments to engage in dialog will be honored. Speakers shall refrain from making comments regarding the good name and character of any individuals. Any extension of time beyond the three-minute limit shall require approval of a majority of the council.

(12) Mayor comments. This time will be provided to make comments to the city council or bring an item or issue to the attention of the city council relating to city business and not on the meeting agenda.

(13) Councilmember comments. This time will be provided for councilmembers to make comments to the city council or to bring an item or issue to the attention of the city council relating to city business and not on the meeting agenda.

(14) Finance committee report. The finance committee shall regularly provide a report to the council at regularly scheduled council meetings regarding the financial status of the city and any items of interest that may come before the council for consideration.

(15) Board appointments to be voted on. No board appointment may be made at the same meeting where the nomination is made unless there is unanimous consent of the membership of the council.

(16) Board appointment nominations. Nominations for city council board appointments must be made at one meeting and voted on at a subsequent meeting (except as provided in subsection (15) of this section), provided that no nominations shall be made sooner than at any regular meeting of the council in the month preceding the month during which the term of the board position for which the nomination is being made expires. Nominations shall not be made from the floor without prior verification that the nominee meets the seat requirements and written notice is provided to the council president or presiding officer with the name of the nominee, full name of the board, and appropriate term dates for the nomination.

(17) Huntsville utilities items.

(18) Routine items from the city attorney's office.

(19) Unfinished business items for action.

(20) New business items for consideration or action. These items may be consolidated and adopted/approved in one motion unless any councilmember requests an item to be removed for discussion. The reading of each item may be waived unless a councilmember requests otherwise.

(21) New business items for introduction.

(22) Non-agenda public comments.

a. Anyone who did not have the opportunity to address the council during the public comments portion of the meeting may sign a second public comments roster prior to the conclusion of subsection (20) in this section.

b. Each speaker shall state their name, home address, and city of residence for the record, or name and city of residence only if the home address was provided on the second public comments roster. Each speaker may address the council for three minutes.

The city clerk-treasurer or presiding officer shall be responsible for keeping time on each speaker. This time is provided for making comments to the city council or bringing items to the attention of the city council relating to city business, whether or not such items are on the meeting agenda. Speakers shall use this time to offer opinions, concerns, or ideas about city matters. Council members shall listen without engaging in dialog. Appointments to engage in dialog will be honored. Speakers shall refrain from making comments regarding the good name and character of any individuals. Items which cannot be resolved within the three-minute time limit may either be referred to the city administration or, at the request of councilmember, be scheduled for discussion in a separate meeting. Any extension of time beyond the three-minute limit shall require approval of a majority of the council.

(23) Other business to come before council.

(24) Adjournment.

(Ord. No. 94-788, § 2-17 (rule 6), 11-22-1994; Ord. No. 96-1023, §§ 1—5, 12-19-1996; Ord. No. 98-321, § 1, 4-23-1998; Ord. No. 00-404, 5-11-2000; Ord. No. 07-604, § 2, 6-28-2007; Ord. No. 21-95, § 1, 2-25-2021, eff. 5-1-2021; Ord. No. 21-95A, § 1, 2-25-2021; Ord. No. 21-558, § 9, 7-8-2021, eff. 10-14-2021)

Sec. 2-98. Rule 7. Procedural rules.

Except as provided in this division, the council shall adhere to the procedural rules contained in the latest edition of Robert's Rules of Order, Newly Revised.

(Ord. No. 94-788, § 2-17 (rule 7), 11-22-1994)

Sec. 2-99. Rule 8. Points of order.

The president of the council shall preserve order and decorum in the transaction of business during each sitting of the council, and on points of order may speak in preference to any councilmember.

(Ord. No. 94-788, § 2-17 (rule 8), 11-22-1994)

Sec. 2-100. Rule 9. Questions of order.

The president of the council shall decide all questions of order, but from his decision an appeal may be taken, which appeal shall be decided without debate. The question shall be, "Shall the decision of the president of the council stand?", and such question must be approved by a two-thirds vote of the council membership.

(Ord. No. 94-788, § 2-17 (rule 9), 11-22-1994)

Sec. 2-101. Rule 10. Calling members to order.

If in speaking, or if in any way, a councilmember should violate any rule, the president of the council or any councilmember may call him to order.

(Ord. No. 94-788, § 2-17 (rule 10), 11-22-1994)

Sec. 2-102. Rule 11. Priority of speakers.

When two or more councilmembers shall speak at the same time, the president of the council shall decide who is entitled to speak; however, a councilmember shall always have priority over any speaker not a member of the city council.

(Ord. No. 94-788, § 2-17 (rule 11), 11-22-1994)

Sec. 2-103. Rule 12. Public comment on claims, lawsuits.

The council shall not hear public comment on formally filed claims or lawsuits.

(Ord. No. 94-788, § 2-17 (rule 12), 11-22-1994)

Sec. 2-104. Rule 13. Confidentiality.

Whenever the city attorney advises the council that a matter presented to the council or to any councilmember, whether verbally or in writing, should, in the opinion of the city attorney, remain confidential, the council shall abide by the request of the city attorney and shall refrain from any public comment, discussion or dissemination of information with regard to the matter.

(Ord. No. 94-788, § 2-17 (rule 13), 11-22-1994)

Sec. 2-105. Rule 14. Motions.

When a motion is made, it shall be stated by the president of the council if verbal; if in writing, it shall be read by the clerk-treasurer; and on the request of the president or any councilmember, all motions shall be put in writing. When so stated or read, the president of the council shall put all motions to the vote of the councilmembers.
(Ord. No. 94-788, § 2-17 (rule 14), 11-22-1994)

Sec. 2-106. Rule 15. Amended motions.

In all cases where an amendment is offered and seconded, the question shall be taken on the motion, resolution or ordinance as amended.
(Ord. No. 94-788, § 2-17 (rule 15), 11-22-1994)

Sec. 2-107. Rule 16. Lost amendment.

If an amendment is lost, the original motion, resolution or ordinance shall be put upon its passage.
(Ord. No. 94-788, § 2-17 (rule 16), 11-22-1994)

Sec. 2-108. Rule 17. Motion to adjourn.

A motion to adjourn shall always be in order and shall be decided without second and any debate.
(Ord. No. 94-788, § 2-17 (rule 17), 11-22-1994)

Sec. 2-109. Rule 18. Priority of previous question.

The previous question shall have precedence over all other motions (except a motion to adjourn and a motion to lay on the table), and shall, if sustained by a two-thirds vote of the council membership present, preclude all debate and all amendments.
(Ord. No. 94-788, § 2-17 (rule 18), 11-22-1994)

Sec. 2-110. Rule 19. Ordinances, resolutions in writing.

Any ordinance or resolution presented to the council for consideration or action must be in writing.
(Ord. No. 94-788, § 2-17 (rule 19), 11-22-1994)

Sec. 2-111. Rule 20. Reconsideration of question.

Any councilmember having voted with the majority on any question may move for a reconsideration of the question at that meeting or at the next regular meeting of the council.
(Ord. No. 94-788, § 2-17 (rule 20), 11-22-1994)

Sec. 2-112. Rule 21. Adoption of ordinance or resolution.

No ordinance or resolution intended to be of permanent operation shall be adopted by the council at the same meeting at which it is introduced unless unanimous consent of those present is given for the immediate consideration of such ordinance or resolution, such consent to be shown by a vote taken by ayes and nays; and the names of the members voting shall be entered upon the minutes; and no ordinance or resolution intended to be of permanent operation shall become a law

unless on its final passage a majority of the members elected to the council shall vote in its favor.
(Ord. No. 94-788, § 2-17 (rule 21), 11-22-1994)

State law reference—Similar provisions, Code of Ala. 1975, § 11-45-2(b).

Sec. 2-113. Rule 22. Voting.

(a) A councilmember may or may not vote on any item at his option.

(b) Unless otherwise expressly provided by ordinance or state law, any matter presented to the council for action, regardless of whether the council is acting in its legislative capacity or otherwise, shall be approved only upon the affirmative vote of a majority of the council membership.
(Ord. No. 94-788, § 2-17 (rule 22), 11-22-1994)

Sec. 2-114. Rule 23. Recording of ayes and nays.

Whenever requested by one or more councilmembers, the ayes and nays shall be taken. The clerk shall record the ayes and nays whenever taken.
(Ord. No. 94-788, § 2-17 (rule 23), 11-22-1994)

Sec. 2-115. Rule 24. Entering of protest on minutes.

The president or any member of the council shall have the right to have his protest to the passage of any measure entered on the minutes if it is in respectful language, of which the president of council shall judge.
(Ord. No. 94-788, § 2-17 (rule 24), 11-22-1994)

Sec. 2-116. Rule 25. Riders, qualifications must be pertinent.

Nothing shall be introduced as a rider or as a condition or qualification to any ordinance unless the same shall be pertinent to the subject of the ordinance.
(Ord. No. 94-788, § 2-17 (rule 25), 11-22-1994)

Sec. 2-117. Rule 26. Committee recommendations.

A majority of any committee shall be sufficient to make a recommendation to the council.
(Ord. No. 94-788, § 2-17 (rule 26), 11-22-1994)

Sec. 2-118. Rule 27. Temporary abandonment of chair by president.

The president of the council may at any meeting call the president pro tempore to the chair temporarily for a stated purpose; and if the president pro tempore is not present or declines, the designated presiding third officer may be called.
(Ord. No. 94-788, § 2-17 (rule 27), 11-22-1994)

Sec. 2-119. Rule 28. Censure authorized.

If the president of the council or any councilmember shall willfully violate any of the rules promulgated in this division, he shall suffer such censure as the council may direct. Any censure must be approved by a two-thirds vote of the remaining councilmembers. Censure may include public criticism and admonition.
(Ord. No. 94-788, § 2-17 (rule 28), 11-22-1994)

Sec. 2-120. Rule 29. Filling of vacancies.

If any vacancy should occur in the office of mayor or any councilmember, such vacancy shall be filled in accordance with Code of Ala. 1975, § 11-43-87.
(Ord. No. 94-788, § 2-17 (rule 29), 11-22-1994)

Sec. 2-121. Rule 30. Suspension of rules.

Except as otherwise provided by state law, any one of the rules promulgated in this division may be suspended by the vote of two-thirds of the councilmembers present at any meeting of the council, but never by less than a majority of the council membership.
(Ord. No. 94-788, § 2-17 (rule 30), 11-22-1994)

Secs. 2-122—2-150. Reserved.

ARTICLE IV. FINANCIAL POLICIES*

DIVISION 1. GENERALLY

Sec. 2-151. Investment policy.

(a) *Generally.* It is the policy of the city to invest city funds in a manner which will ensure maximum security with sufficient liquidity to meet daily cash flow demands while providing the highest investment return on municipal funds. The investment of all city funds is the responsibility of the finance department. The director of finance and employees whom he may designate are authorized to invest city funds consistent with this policy.

(b) *Scope.*

(1) Pursuant to Code of Ala. 1975, §§ 11-81-19—11-81-21, this section applies to all municipal funds of the city.

(2) This section applies to all transactions involving the financial assets and related activities of all municipal funds of the city.

(c) *Objectives.*

(1) Safety of principal is the foremost objective of the investment policy of the city. Investment transactions shall seek to avoid capital losses, whether they be from security defaults or erosion of market value. Investments of the city shall be undertaken in a manner that seeks to ensure the preservation of capital in the overall portfolio. To attain this objective, the city shall diversify its portfolio to avoid incurring unreasonable risks inherent in overinvesting in specific instruments, individual financial institutions or investments with similar maturities.

(2) Another objective is that the city's investment portfolio will remain sufficiently liquid to enable the city to meet all operating requirements which might be reasonably anticipated. An additional objective is to attain a maximum investment yield on available funds taking into account the city's investment risk constraints and the cash flow characteristics of the portfolio.

(d) *Authority, prudence and ethics.*

(1) Management responsibility for the investment program is delegated to the director of finance, who shall establish written procedures for the operation of the investment program consistent with this investment policy. Such procedures shall include explicit delegation of authority to the persons responsible for transactions. No person shall engage in an investment transaction except as provided under the terms of this section and the procedures established under this section. The director of finance shall be responsible for all transactions undertaken and shall establish a system of controls to regulate investment activities of officials with responsibilities under this section.

(2) Investments shall be made with judgment and care, under circumstances then prevailing, which the persons of prudence, discretion and intelligence exercise in the management of their own affairs, not for speculation, but for investment, considering the probable safety of their capital as well as the probable income to be derived. The standard of prudence to be used by investment officials shall be the "prudent person" standard and shall be applied in the context of managing an overall portfolio. Investment officers acting in accordance with written procedures and exercising due diligence shall be relieved of personal responsibility for any change in an individual security's credit risk or market price, provided deviations from expectations are reported in a timely fashion and appropriate action is taken to control adverse developments.

(3) Officers and employees involved in the investment process shall refrain from

*__Cross references—__Any ordinance promising or guaranteeing the payment of money or authorizing the issuance, sale or security of bonds or other instruments of indebtedness saved from repeal, § 1-11(5); taxation, ch. 24.

personal business activity that could conflict with proper execution of the investment program, or which could impair their ability to make impartial investment decisions. Full disclosure shall be made by officers and employees who may have material financial interests in financial institutions that conduct business with the city, and they shall further disclose any large personal investments or financial activities that could be related to the performance of the city's portfolio.

(e) *Internal controls and reporting requirements.* The director of finance shall establish a system of internal control designated to prevent losses of public funds arising from fraud, employee error, misrepresentation by third parties, unanticipated changes in financial markets, or imprudent actions by employees and officers of the city. Annually, the director of finance shall report on the investment program and investment activity. The report shall include a comparison of investment returns and may recommend policies and improvements that might be made in the investment program.

(f) *Instruments, maturities and risks.*

(1) The city may invest municipal funds in accordance with Code of Ala. 1975, tit. 11.

(2) It is the policy of the city to diversify its investment portfolio to minimize the risk of loss resulting from over-investing funds in a specific maturity, a specific financial institution or a specific class of security instruments. With the exception of U.S. Treasury securities, no more than 50 percent of the city's investment portfolio will be invested in a single security type or with a single financial institution. Investments of the city shall be made in instruments whose maturities do not exceed five years. In order to ensure adequate liquidity without market risk, investments shall have maturity dates at or prior to the time cash is prudently projected to be required to meet disbursement needs.

(g) *Collateralization, safekeeping and custody.*

(1) It is the city's policy that any bank or financial institution in the State of Alabama that invest city municipal funds shall be a qualified public depository certified by the Alabama state treasurer according to the Security for Alabama Funds Enhancement act(SAFE Act), Code of Ala. 1975, § 41-14A-1, et seq., as amended from time to time.

(2) All amounts of deposit made, and certificate of deposits (CDs) issued in excess of amounts insured by the FDIC and FSLIC shall be collateralized with securities of the United States government, federal agencies which represent the full faith and credit of the United States, or otherwise authorized by state law. The collateral for each deposit or certificate of deposit shall have a market value equal to at least 100 percent of the excess amounts insured by the FDIC and FSLIC.

(3) It is the policy of the city to require from each authorized financial institution holding city funds a listing of securities pledged as collateral to protect the city's investment. This listing of collateral shall be provided to the city by each institution for deposits held on June 30 and December 31 of each year. All investment securities purchased by the city and all collateral on deposits of the city shall be held in a custodian account maintained by a trust department of a bank insured by the FDIC, in the Federal Reserve Bank or by the city. The trust department shall issue a safekeeping receipt to the city listing the specific instrument, rate of return, maturity date and other pertinent information.

(h) *Authorized financial institutions.*

(1) The city finance director shall maintain the list of approved banks or financial institutions for investment purposes that have offices located in the city.

(2) Before accepting funds or engaging in investment transactions with the city, the supervising officer at each institu-

tion shall submit a certification that the officer has reviewed this section and agrees to disclose potential conflicts or risks to public funds that might arise out of business transactions between the institution and the city. All financial institutions shall agree to undertake reasonable efforts to preclude imprudent transactions involving city funds.

(Ord. No. 07-226, 3-22-2007; Ord. No. 25-76, § 1, 2-13-2025)

State law reference—Sinking fund investments, Code of Ala. 1975, § 11-81-19 et seq.

Sec. 2-152. Budget management.

(a) *Purpose*. It is the purpose of this section to establish a comprehensive system for budgeting and financial management which furthers the capacity of the mayor and the city council to plan and finance the services which the city provides for its citizens.

(b) *Definitions*. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Department means the department of the city under the general supervision and control of the mayor.

(c) *Duties of the director of the finance department relative to the city budget.* The director of the finance department shall:

(1) Assist the mayor and the city council in the preparation and explanation of the proposed budget ordinance, including the coordination and analysis of department goals and objectives, and departmental budget requests;

(2) Assist departments in preparing their statement of goals and objectives, budget requests and reporting of program performance;

(3) Administer its responsibilities under this section so that the policy decisions and budget determination of the mayor and the city council are implemented to the fullest extent possible within the concepts of proper management; and

(4) Provide the mayor and the city council with budget information.

(d) *Budget data to be submitted to director of finance by departments and other parties.*

(1) Each department, on the date and in the form and content prescribed by the department of finance, shall prepare and forward to the director of finance the following program and financial information:

a. If requested, the goals and objectives of the department programs, together with proposed supplements, deletions and revisions to such programs.

b. If requested, its proposed plans to implement the goals and objectives, including estimates of future service needs, planned methods of administration, proposed modification of existing program services and establishment of new program services, and the estimated resources needed to carry out the proposed plan.

c. The budget requested to carry out its proposed plans in the succeeding fiscal year.

d. Where applicable, a report of the estimated revenues for the succeeding fiscal year.

(2) The department proposals prepared under subsection (d)(1) of this section shall describe the relationships of their programs services to those of other departments.

(3) If any department fails to transmit the program and financial information required under subsection (d)(1) on the specified date, the department of finance may prepare such information.

(4) All boards, commissions, agencies and organizations seeking appropriations from the city shall have a budget classification

of "city agency transfers" or "outside agency appropriations", and shall submit budget information to the department of finance on or before the date requested, budgetary plans and data, which may include a long-range plan covering a period of not less than five years, setting forth the organization's projected goals, objectives and financial needs year by year.

(e) *Formulation and presentation of mayor's proposed budget ordinance.*

(1) The mayor shall formulate a budget ordinance to be recommended to the city council after considering each department's proposed programs and financial plan. The budget ordinance thereby submitted shall include the following:

a. Recommended appropriations for the operations of the city departments;

b. Recommended appropriations for the city's capital improvements programs; and

c. Identified sources of revenues to be available to the city to finance the recommended appropriations for operations and capital improvements.

(2) The proposed budget ordinance shall be presented by the mayor to the city council according to the timetable established as provided in this section. The mayor's presentation shall include an explanatory report which summarizes recommended goals, plans and appropriations and shall contain the following information:

a. The program goals and objectives that the mayor recommends to guide the decisions on the proposed program plans and budget appropriations;

b. The program and budget recommendations of the mayor for the succeeding fiscal year;

c. A revised estimate of city revenues for the current fiscal year and an estimate for the succeeding fiscal year;

d. A summary of estimated expenditures for the current fiscal year and those recommended by the mayor for the succeeding fiscal year; and

e. Any additional information which will facilitate understanding of the mayor's proposed budget ordinance by the city council and the public.

(f) *Responsibilities of the city council as to consideration and adoption of the budget ordinance.* The city council shall:

(1) Consider the budget ordinance recommended by the mayor, including proposed goals and policies, tax rate and other revenue changes and long-range program plans;

(2) Adopt alternatives to the budget ordinance which it deems appropriate; however, in no event shall authorized expenditures exceed estimated revenues and resources.

(g) *Timetable for adoption of budget ordinance.*

(1) In order to provide for an orderly procedure for the adoption of the annual budget ordinance, the mayor, the president of the city council and the chairperson of the city council finance committee shall agree upon a timetable for the formulation of the mayor's proposed budget ordinance and for the city council's hearings, deliberations and adoption of the ordinance. The timetable for the budget shall be established prior to June 1 of each year.

(2) The budget timetable shall include adequate time for the mayor and the city council to consider the budget requests of the departments.

(3) The mayor shall transmit to the city council a proposed budget ordinance set-

ting forth the mayor's financial program for the ensuing fiscal year by September 1 of each year.

(4) The policy of the city shall be that, by September 30 of each year, the city council shall adopt a budget ordinance making appropriations for the ensuing fiscal year.

(h) *Six-month budget review.* By May 1 of each year, the mayor and director of finance shall make a report to the city council of the revenues and expenditures of the city and its departments for the first six months of the fiscal year. After the review, the city council shall make budget adjustments that the city council deems advisable.

(i) *Contingency reserves.*

(1) The policy of the city shall be to maintain a portion of the fund balance of the general fund as a reserve for contingencies and unexpected financial events, which shall be referred to as a "reserve for contingencies."

(2) The city's goal in the adopted budget is to establish a reserve for contingencies equal to at least 11.5 percent of the general fund's estimated revenues, without regard to revenue from grants. The mayor may recommend any amount in excess of this goal as the reserve in the budget proposal, or a reserve for any other fund of the city, which is subject to approval by the city council in the adopted budget.

(3) The reserve amount shall be included in the mayor's budget proposal to the city council, and the adopted budget.

(4) If the city must utilize the general fund reserve for contingencies to balance appropriations within estimated revenues of any fiscal year, subsequent adopted budgets must include a plan to restore the reserve amount to the stated goal until such is fully restored.

(j) *General administration of programs and appropriations.*

(1) The finance department shall maintain financial records and account for the financial activities in compliance with best established practices and generally accepted accounting principles. The finance department will maintain a fund accounting system that includes the number and types of funds necessary to satisfy the legal requirements and operational needs of the city.

(2) The finance department shall establish and maintain a chart of accounts in compliance with best established practices and accounting requirements. The chart of accounts shall include revenue, expenditure and other required accounts that shall provide city officials and the public meaningful financial information about city financial activities and demonstrate compliance with city budget ordinances and legal requirements.

(3) The revenue and appropriation budgets of the city's funds shall be categorized as follows: revenue, personnel, operating, departmental capital, city agency transfers, outside agency appropriations, debt service, debt-related items, transfers with city funds, and capital projects spending.

(4) The city council shall adopt the budgets in the budget ordinance as follows, which represents the level of city council budgetary control:

a. For the expenditure accounts of departments, by personnel, operating and departmental capital.

b. For the funds accounting for the budgets of the city's long-range capital improvement plans, by budget category, except that accounts categorized as "capital project spending" shall be adopted at the subcategory level as presented in the long-range capital improvement plans.

c. For appropriations categorized as "city agency transfers" or "outside agency appropriations," by individual account.

d. For all other revenue and appropriation accounts, by budget category.

(5) The director of finance is authorized to adjust the estimated revenues or appropriations among the accounts within a budget category or subcategory to the extent the increases and decreases offset. An increase or decrease in the total amount of any budget category or subcategory must be authorized by the city council in advance. An increase or decrease to an appropriation categorized as "city agency transfers" or "outside agency appropriations" must be authorized by the city council in advance. In the event of an emergency or unusual situation, the director of finance is authorized to adjust an appropriation that must ordinarily be authorized by the city council pursuant to this paragraph, upon notification and approval of the city council president and city council finance committee chairperson.

(6) The mayor, mayor's designee or the city council is authorized to approve travel expenses of any officer or employee of the city who travels outside the city limits, which are incurred for the purpose of improving or furthering the city's goals or its business. Such approval by the mayor or mayor's designee shall be in writing stating the purpose and the object of such travel. Such approval by the city council shall be by resolution setting forth the purpose and the object of such travel. All travel and related expenses shall be administered in compliance with city personnel policies and procedures.

(Ord. No. 90-462, §§ 1—9, 9-27-1990; Ord. No. 94-764, 11-22-1994; Ord. No. 95-659, 9-28-1995; Ord. No. 95-861, 12-28-1995; Ord. No. 15-527, 8-13-2015)

Sec. 2-153. Disposal of surplus real property.

(a) The purpose of this section is to provide a procedure for the disposition of certain real property owned by the city, which property has been declared surplus to the needs of the city under the provisions of Code of Ala. 1975, § 11-47-20.

(b) No real property owned by the city and administered by a general fund department of the city shall be advertised or offered for sale on behalf of the city, and no negotiations concerning the disposition of any such property shall occur by any officer or agent of the city until such property has been declared surplus by appropriate ordinance or resolution duly adopted by the city council.

(c) Upon any declaration by the city council that any real property owned by the city and described in subsection (b) of this section is surplus to the needs of the city, the council shall first proceed to make certain findings as follows:

(1) The council shall first determine that the property is not needed by some other department or division of the city. If the property is not needed by any general fund department of the city and not needed by any other board or division of the city, the council shall determine if an accurate survey and description is available with respect to the property. If an accurate survey and description of the property is not available, the director of finance shall be authorized to have a survey and description prepared by an engineer or land surveyor.

(2) If the property is suitable for subdivision or development, the director of finance shall be authorized to determine whether or not the property should be subdivided and public improvements installed prior to being offered for sale. If the council elects to subdivide and install improvements prior to sale, the mayor and director of finance shall be authorized to employ an engineer to develop a plan for the subdivision of the property and for the installation of improvements upon the property. No plan for subdivision of the property will be authorized by the council except upon approval of the plan by the planning commission of the city and subject to filing of the plat in the office of the judge of probate of the county. Division of any property owned by the city into two or more parts or parcels for the purpose of sale or development shall be considered a subdivision.

(3) If the property is not suitable for development, but would only be useful to an adjoining owner to use in conjunction with adjacent and adjoining property, all adjoining owners shall be requested in writing to acknowledge in writing whether or not they have an interest in purchasing the property for such use. If the owners of adjacent property are interested in purchase, the director of finance shall invite bids from all such interested persons to be opened by the director and presented to the council.

(4) If the property is suitable for development, the property shall be advertised as provided in this section.

(5) No property shall be sold by the council until an appraisal has been received by the council, either from an independent appraiser employed by the mayor or from a staff appraiser of the city, as the council may elect; however, no such appraisal shall be made public until after bids have been received by the director of finance.

(6) Property suitable for subdivision or development shall be sold only after a suitable notice with respect to the proposed sale has been placed by the director of finance in a newspaper having general circulation within the city, the advertisement to appear at least ten days prior to the time announced for the receipt of bids. The council may determine, prior to any advertisement, that the property will not be sold for less than an established price, in which case such minimum price shall be referred to in the advertisement. Prior to the publication of any notice to advertise any such property for sale, the director of finance shall consult with appropriate city departments to determine the need for the reservation of any rights-of-way or easements with respect to the property. Sale may be by public bid or by public auction. The council shall not be obligated

to accept any bid, either at an advertised sale or auction, unless such fact is referred to in the notice.

(d) The director of the public works services department shall, upon completion of any street improvement project, report any remnants or surplus property to the council for disposition.

(e) Upon approval by the council for sale of any property declared surplus as provided in this section, the mayor shall proceed to deliver a deed to the property in accordance with the authorization by the council; and the proceeds shall be delivered to the city clerk-treasurer.

(f) This section shall not apply to the disposition of industrial or research park property or to the disposition of any property for which a disposition procedure has been or is otherwise determined by the council.
(Ord. No. 85-269, §§ 1—6, 5-23-1985)

State law reference—Disposition of unneeded real estate, Code of Ala. 1975, § 11-47-20 et seq.

Sec. 2-154. Service charge for bad checks.

(a) The city clerk-treasurer is authorized to charge and collect bad check charges of not more than the greater of either $30.00 or an amount equal to the actual charge by the depositary institution for return of unpaid or dishonored instruments assessed for any check, draft, negotiable order of withdrawal or like instrument drawn on a bank or other depositary institution given by any person in full or partial payment of any tax, license fee or other fee due the city, or other assessments of the city, if such instrument is dishonored or not paid for any reason by such institution.

(b) The bad check charge shall be a legal charge against the person who tendered the dishonored or unpaid instrument and shall not be deemed a finance charge or interest.
(Ord. No. 91-326, §§ 2, 3, 5-23-1991; Ord. No. 05-892, § 1, 10-27-2005)

State law reference—Service charge for bad check, Code of Ala. 1975, § 13A-9-13.1.

Sec. 2-155. Admission fee discount to city residents.

(a) Any board or agency created solely by the city under its general police powers which charges a fee for admission to any facility under the operation and control of such board or agency shall offer a ten percent discount off the regular admission fee to any resident of the city.

(b) This section shall not apply to any other discount (including senior citizen discounts) or promotional offer by any such board or agency where the regular admission fee is discounted by ten percent or more or to the Trolley at the Huntsville Depot. In addition, this section shall not apply to any admission fee charged for a special event, or any event involving a nongovernmental individual, association or corporation, as a promoter or copromoter of the event.

(c) Presentation of a driver s license or other photographic identification card or badge which includes a city address as the presenter s residence address shall constitute sufficient proof of residency within the corporate limits of the city.
(Ord. No. 97-428, §§ 1—3, 6-26-1997)

Sec. 2-156. Conference and travel policy.

There is adopted a conference and travel policy for the city. A copy of the policy shall be kept on file in the office of the city clerk-treasurer.
(Ord. No. 93-576, 9-9-1993)

Sec. 2-157. Pre-approval of legal and professional services.

Any expenditure out of the legal and professional services line item in the city council s department budget must be preapproved in writing by no less than four out of five councilmembers. Any expenditure requested to be charged against the city council s legal and professional services budget line item by an individual councilmember, without prior written approval of at least four councilmembers, shall not be honored by the finance department, and shall become the personal debt of the councilmember who requested the expenditure.
(Ord. No. 01-761, 9-27-2001)

Sec. 2-158. Payment by credit card.

(a) Any office, department, agency, board or commission of the city is authorized to accept payment by credit card, charge card and debit card issued by any bank, foreign lender, domestic lender or credit card bank as defined in the Alabama Credit Card Act, sections 5-20-2 through 5-20-16, Code of Ala. 1975. The payment may be for, but is not limited to, taxes, license and registration fees, court fines, costs and penalties, building permits, filing fees, assessments against property, parks and recreation fees, parking fees, rental expenses, event admissions and garbage collection fees.

(b) A service fee will be added, at the discretion of the city, to the payment in an amount not to exceed the transaction fee charged by the credit card issuer or processor. Payment of the service fee is not refundable. The service fee may be added and collected directly by the city, or added and collected by the city's processer.

(c) With the approval of the city council, the mayor is authorized to enter into appropriate agreements with one or more credit card issuers or other appropriate parties as needed to facilitate the acceptance of credit card payment. Each agreement must provide that it may be cancelled without penalty at any time by the city upon reasonable notice. No agreement shall exceed three years in term.

(d) No person making payment by credit card shall be relieved of liability for the face amount of the payment except to the extent that the city realizes full and final payment of the underlying obligation in cash or its equivalent. If full and final payment is not made by the credit card issuer or other guarantor of payment in the credit card transaction, the underlying obligation shall survive and the city shall retain all remedies for enforcement which would have applied if the credit card transaction had not occurred.

(e) A city employee who accepts a credit card payment in accordance with this section and any applicable policy, rule or regulation of the city shall not thereby incur any personal liability for the final collection of such payments.

(f) The clerk-treasurer is authorized to establish policies, rules and regulations governing the acceptance of payment for municipal services by credit card and to disseminate them to all employees.

(Ord. No. 13-844, 11-7-2013)

Sec. 2-159. [Debt management policy.]

(a) *Purpose.*

(1) The city recognizes the foundation of any well-managed debt program is a comprehensive debt management policy. A debt management policy sets forth the parameters for issuing debt and managing the outstanding debt portfolio of the city, and provides guidance to decision makers regarding the purposes for which debt may be issued, types and amounts of permissible debt, timing and method of sale that may be used, and structural features that may be incorporated. Adherence to a debt management policy helps to ensure that government maintains a sound debt position and that credit quality is protected.

(2) This debt management policy will help:

a. Promote high quality debt management decisions;

b. Maintain order and discipline throughout the debt issuance process;

c. Promote consistency and continuity in the decision making process;

d. Demonstrate a commitment to long-term financial planning objectives; and

e. Ensure that debt management decisions are viewed positively by rating agencies and the investment community and by citizens of the city.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Build America Bonds or *BABs* means the same as the term "Build America Bonds" as

defined by the Internal Revenue Code, and shall include Recovery Zone Economic Development Bonds issued under Section 1400U-2 of the Internal Revenue Code.

City clerk-treasurer means the person holding the title of city clerk-treasurer of the city or, if the city shall determine to vest primary responsibility for the enforcement of the provisions of this policy charged to the city clerk-treasurer in another officer of the city, then from such date the terms shall be interpreted to mean such other officer of the city.

Finance director means the person holding the title of director of finance of the city or, if the city shall determine to vest primary responsibility for the enforcement of this policy in another officer of the city, then from such date the terms shall be interpreted to mean such other officer of the city.

Internal Revenue Code means of the Internal Revenue Code of 1986, as amended, and the regulations promulgated thereunder.

IRS means the United States Internal Revenue Service.

Policy means the debt management policy prescribed by this section.

Ten-year capital improvement plan means the long-range plan for expanding and maintaining the city's capital infrastructure as adopted by city council resolution from time to time.

(c) *Implementation.* The policy shall be implemented by the mayor and finance director as authorized by the city council. Comprehensive debt management guidelines shall provide for the following:

(1) Full and timely payment of principal and interest on all outstanding debt.

(2) Debt shall be incurred only for those purposes as provided by applicable state law.

(3) Capital improvements should be planned, approved and financed in accordance with city ordinances and (with the exception of unanticipated extraordinary capital improvements) the ten-year capital improvement plan development process and/or other long-term capital planning models of the city.

(4) The payment of debt shall be secured by the full faith and credit of the city, in the case of general obligation bonds or warrants, and by the pledge of specified, limited revenues in the case of revenue bonds and warrants. The city shall not pledge any city revenues to debt issued by conduit entities formed within the city. The city shall have no moral obligation to repay the holders of debt issued by conduit issuers or other public entities within the city.

(5) Principal and interest retirement schedules shall be structured to:

a. Achieve a low borrowing cost for the city;

b. Accommodate the debt service payments of existing debt; and

c. Respond to perceptions of market demand.

Shorter maturities shall always be encouraged to demonstrate to rating agencies that debt is being retired at a sufficient pace.

(6) Debt issued shall generally be limited to obligations with serial and term maturities but may be sold in the form of capital appreciation obligations or other structures if circumstances warrant.

(7) The average life of the debt incurred should be no greater than the projected average life of the assets being financed.

(8) The city shall select a method of debt sale that shall maximize the financial benefit to the city. Such sales can be competitive or negotiated, depending upon the project and market conditions. All methods of sale shall be subject to council approval.

(9) The city shall maintain good communications with credit rating agencies to ensure complete and clear understanding of the creditworthiness of the city.

(10) Every financial report, official statement/offering circular, and annual information statement shall follow a policy of accurate disclosure of financial conditions and operating results. All financial reports and annual information statements shall conform to guidelines issued by the Government Finance Officers Association, the Municipal Securities Rulemaking Board ("MSRB"), and the Securities and Exchange Commission to meet the disclosure needs of rating agencies, underwriters, investors and citizens.

(d) *Debt limitations.*

(1) *Legal limitations.* All debt issuances will be accomplished in compliance with applicable federal regulations, the Alabama Constitution, applicable state statutes, city ordinances, and all other applicable legal constraints.

(2) *Public policy limitations.*

a. The city shall assess all financial alternatives for funding capital improvements prior to issuing debt. Pay-as-you-go financing should be considered before issuing any debt. Pay-as-you-go financing may include: intergovernmental grants from federal, state, and other sources; current revenues and financial balances; public/private partnerships; and lease payments. Once the city has determined that "pay-as-you-go" is not a feasible financing option, the city may use short-term or long-term debt to finance capital projects.

b. All capital improvements and financings for capital improvements (with the exception of unanticipated extraordinary capital improvement requirements) will be made in accordance with an adopted ten-year capital improvement plan and/or other long-term capital planning models of the city.

c. General obligation warrants will be used to finance only those capital projects or improvements that have been determined to be essential to the maintenance or development of the city. Debt may be issued to finance long-term capital improvements, economic development initiatives, other property and equipment used in the furtherance of the mission of the city and for public improvements related to the quality of life of the citizens of the city. The city will not issue debt for the purpose of funding short-term assets with useful lives of less than three years.

d. Capital projects financed through the issuance of debt shall be financed over a period not to exceed the expected useful life of the project financed.

e. Long-term debt will only be used for capital projects that feasibly cannot be financed from current revenue sources, in conjunction with the ten-year capital improvement plan and/or other long-term capital planning models of the city.

f. Current operations will not be funded from the proceeds of borrowed funds.

g. In general, the city will limit the term of its tax-supported debt to 20 years, arranging for the repayment of long-term debt on a level-payment basis, unless special circumstances dictate otherwise, in which case the special circumstances will be disclosed in the associated financing plans, and as otherwise specified herein.

(3) *Financial limitations.*

a. The city will strive to maintain the highest debt service coverage ratios practicable consistent with its long-term financial objectives.

b. The city will closely monitor the absolute amounts and year-to-year trends of key financial ratios. The city recognizes that specific ratios, in and of themselves, may or may not depict an accurate assessment of the

financial health of the city and may be affected temporarily by national or local economic conditions. It also recognizes, however, that negative trends for an extended period over multiple years are signals that must not be overlooked and will become a part of the annual reporting process of the finance department to the mayor and city council. Ratios to be monitored consist of the following:

1. General obligation debt as a percent of actual market value of property;
2. Debt per capita;
3. Debt service as a percent of general governmental expenditures;
4. Percent of total debt to be retired after ten years; and
5. Unreserved and undesignated general fund balance as a percent of general fund revenue.

c. Revenue debt levels will be monitored periodically and evaluated in terms of other debt service coverage ratios, trends in those ratios, and against covenants contained within the applicable financing documents.

d. The city recognizes the potential contingent impact that poorly conceived or structured debt sold by conduit issuers incorporated within the city can have on the reputation of the city and the marketability of its debt. When entertaining a petition to authorize the formation of any conduit issuer the city shall undertake to impose certain minimum standards respecting debt issued by such entity including, without limitation, minimal credit ratings and/or levels of collateral securing the debt and limitations, the purposes for which such debt may be issued and requirements on the types of purchasers to which the debt may be marketed. With respect to hospital/medical authorities and boards, entities formed under Code of Ala. 1975, tit. 11, ch. 99A or ch. 99B, and certain other special purpose public entities, the name of the city shall not be used in the title of such issuer unless required by state law and no information respecting the city may be used in any debt offering materials circulated by such entity absent an express disclaimer in such materials that the information is being provided for information purposes only about the city and that the city has no obligation, legal, moral or otherwise, for the repayment of such debt.

e. The authorizing proceedings for any short-term obligations issued by the city shall describe the purpose of the proposed debt, the circumstances under which it is being issued, and the term and size limitations thereof.

(e) *Use of derivatives.*

(1) The city recognizes that, while generally not utilized by the city, in certain circumstances interest rate swaps and other derivatives can be appropriate interest rate management tools and when properly utilized can increase the city's financial flexibility and provide opportunities for interest rate savings or reduced risks. Derivatives should be addressed in the city's overall debt and investment management policies.

(2) Swaps and other derivatives will not be used for speculation. For purposes of this policy, speculation means taking additional risks, unrelated to the city's business, in an effort to increase returns. The city will follow rules and processes similar to those the city would follow when evaluating the suitability of any significant investment.

(3) Swaps and other derivatives may be used when they achieve a specific objective consistent with the city's overall debt and investment management policies. Swaps and other derivatives may be used, for

example, to lock-in a current market fixed rate or, alternatively, to create advantages through creating exposure to variable rates of interest. Swaps and other derivatives may be used to produce interest rate savings, alter the pattern of debt service payments, and cap, limit, or hedge variable rate payments. The city will only enter into swaps and other derivatives in accordance with the requirements of applicable state law.

(4) Reasons to use interest rate swaps, swaptions and other derivatives include, but are not limited to:

a. Reducing interest expense;

b. Hedging and actively managing interest rate, basis, and other risks;

c. Optimizing capital structure (e.g., to achieve targeted debt allocation); and

d. Achieving appropriate asset/liability match.

(5) The city will evaluate this use of derivatives subsection at least annually based on current market practices and credit concerns.

(f) *Debt structuring practices.*

(1) In general, the city will limit the term of its tax-supported debt to 20 years, arranging for the repayment of long-term debt on a level-payment basis, unless special circumstances dictate otherwise, in which case the special circumstances will be disclosed in the associated financing plans, and as otherwise specified herein.

(2) Revenue debt, or supporting debt, likewise will not exceed the useful life of the assets being financed but may be structured for a longer term than the city's tax-supported debt.

(3) The city will structure repayments of debt so as to recapture as rapidly as possible the credit capacity of the city for future needs.

(4) The city may choose to structure debt repayment so as to wrap-around existing obligations or to achieve other financial policy goals.

(5) Redemption features of city debt - mandatory, special and optional - shall be incorporated into debt issued by the city based on the specific needs of the city and then-current market conditions.

(6) In general, the city will issue fixed-rate debt and will not utilize variable rate debt or derivatives such as swaps or swaptions as financing vehicles. Provided, however, the city may use variable rate debt for short-term financings (i.e., financings for a period of less than three years) and specific projects that would benefit from a variable rate structure or that may require optional redemption provisions that are not available through a traditional fixed rate financing.

(7) Other structuring practices.

a. Capitalized interest will not be utilized for general obligation debt. Capitalized interest may be used on a limited basis with revenue/self-supported debt during the construction process and for that period of time when revenues for the financed project are developing consistent with federal tax laws.

b. Principal deferrals may be utilized on a limited basis during the construction of the project for a revenue/self-supported project or during an initial period of time during which revenues, such as from the establishment of a tax increment finance district, are realized. Otherwise, other than in connection with creating a "wrap-around" debt structure, principal deferrals will be discouraged.

c. The city shall use such other practices as it deems necessary and appropriate to obtain the lowest overall financing costs for the city over the term of the financing. For example, credit enhancement vehicles may be utilized, such as bond insurance or letters of credit from suitably rated banks, may be used provided that a present value benefit is produced when compared to issuing the debt without such credit enhancement. In the event credit enhancement is not cost effective, the city may still utilize credit enhancement subject to a finding by the finance director that determines that such enhancement meets the city's financing goals and objectives.

(g) *Debt issuance practices.*

(1) *Method of sale.* The city may elect to sell debt through a negotiated or competitive sale, or by a process that utilizes requests for proposals from financial institutions to purchase the debt. The method selected by the city for the sale of its obligations will depend on various factors including, but not limited to, the size and complexity of the transaction, current market conditions and other factors applicable to the city at the time of sale. The determination of which method of sale to follow will be made on either an issue by issue basis, for a series of issues or for a part of a specific financing program.

(2) *Refunding criteria.*

a. The city may advance refund outstanding obligations when advantageous, legally permissible, and when net present value savings equal or exceed the greater of $200,000.00 or four percent. Exceptions may be made only upon the recommendation of the finance director and the approval of the mayor and city council.

b. The city may currently refund outstanding obligations when advantageous, legally permissible, and when net present value savings equal or exceed the greater of $200,000.00 or three percent. Exceptions may be made only upon the recommenda-

tion of the finance director and the approval of the mayor and city council.

c. The provisions of the foregoing subparagraphs a. and b. notwithstanding, the city may choose to refund debt, on either an advance or current basis, without regard to the net present value test, when the existing financial structure or bond covenants impinge on prudent and sound financial management. In such a case, the restructuring is subject to a finding by the finance director that the restructuring is in the overall best interests of the city.

d. The principal maturity schedule of refinancing debt will be structured as to generally conform to the schedule of the refinanced debt, unless special circumstances dictate otherwise, in which case the special circumstances will be disclosed in the associated refinancing plan. Savings the city may realize in such refinancing may be realized in the form of an up-front payment or through a reduction in debt service payments, or a combination of both, based on the city's best interest and requirements.

(3) *Selection and use of financial providers.* The city's finance director shall be responsible for the selection process for securing professional services that are required to develop, monitor, and implement the city's debt management program. Consultants providing advice or counsel to the city shall be independent. The financial advisor, bond counsel, and underwriter for any issuance of debt shall be separate entities having no relationship with one another.

a. The finance director will request the recommendation of the city attorney in selecting bond counsel which will also be approved by the mayor and city council. Bond counsel will be from a nationally recognized firm with significant experience in tax matters and legal requirements associated with the sale of governmental debt.

b. The financial advisor will be selected based upon the recommendation of the finance director to the mayor and city council. The financial advisor will be from a regionally or nationally recognized firm with experience in the capital planning, structuring and sale of governmental debt. Any financial advisor utilized by the city also capable of providing underwriting services shall be prohibited from participating in the underwriting of any debt for the city for a period of one year from the date of termination of its contract for financial advisory services.

c. Underwriters will be selected based upon the recommendation of the finance director to the mayor and city council. The underwriters shall be regionally or nationally recognized with demonstrated experience in the underwriting of governmental debt.

d. Other services providers, such as paying agents, escrow agents, verification agents, and trustees will also be selected based upon the recommendation of the finance director to the mayor and city council.

(h) *Debt management practices.*

(1) *Arbitrage rebate monitoring and filing.* The city shall minimize the cost of arbitrage rebate and yield restriction while strictly complying with federal and state law.

a. The city shall maintain investment allocations by source of funds and record pro rata interest income of the commingled bond funds monthly.

b. Project cash flows shall be carefully planned to insure the applicability of rebate exceptions, if feasible.

c. Rebate computations should be performed annually, but no less often than every five years until the obligations mature.

d. It is the city's policy to segregate current arbitrage earnings for future payment or credit, and to enter the amount as a liability on the books.

e. The city shall report to the IRS as required and shall make rebate payments as required by federal law.

f. The city shall structure its financings in such a way as to reduce or eliminate future arbitrage rebate liability, wherever feasible.

(2) *Federal and state loan compliance practices—Continuing disclosure.* The finance director will be responsible for providing ongoing disclosure information through Electronic Municipal Markets Access System ("EMMA") (or any such other system subsequently authorized by the MSRB or the SEC) and for maintaining compliance with disclosure standards promulgated by state and national regulatory bodies. The finance director will consult with the city's financial advisors and bond counsel in meeting the city's continuing disclosure and other compliance obligations. The city will conduct an annual review of all of the continuing disclosure requirements outlined in each financing and provide certifications and additional information as appropriate.

(3) *Market and investor relations efforts.* The finance director, in conjunction with the city's financial advisor, will maintain ongoing contact with and supply information to the rating agencies and through its continuing disclosure obligations. The city will provide full and prompt disclosure of all material events through the national reporting system and will respond to inquiries and questions from the underwriting and investor communities as appropriate.

(4) *Investment of proceeds of city debt.*

a. The investment of all public funds is subject to certain state restrictions in addition to any restrictions contained within the warrant ordinance or other financing documents.

b. The city clerk-treasurer will be responsible for the investment of proceeds of all tax-exempt obligations and obligations issued as BABs.

c. The city clerk-treasurer will consult with the finance director, when appropriate, the city's financial advisor and other deputies of the city, to determine projected spend-down schedules in order to determine the optimum investment for the city of debt proceeds consistent with the Internal Revenue Code.

(i) *Compliance procedure and policy for tax-exempt governmental obligations and Build America Bonds.*

(1) *Purpose and need for policy.* To help ensure that the city takes all actions reasonably necessary to ensure the continuing tax-exempt status of its governmental obligations (and the continuing eligibility for the receipt of direct payments from the federal government respecting obligations issued as Build America Bonds), the city council has adopted this subsection to address conformance to applicable IRS post-issuance compliance requirements for tax-exempt governmental obligations, and obligations intended to be treated as Build America Bonds, issued by the city.

This policy documents existing practices and describes various procedures and systems designed to identify on a timely basis facts relevant to demonstrating compliance with the requirements that must be satisfied subsequent to the issuance of tax-exempt governmental obligations in order that the interest on such obligations be, or continue to be, excludable from gross income for federal income tax purposes, and obligations issued as BABs in order that such obligations be, and con-

tinue to be, treated as "Build America Bonds" for purposes of the Internal Revenue Code.

(2) *Policy.* As a present or intended issuer of tax-exempt governmental obligations and BABs, the city is required by the terms of Sections 103 and 141-150 of the Internal Revenue Code, and the Treasury Regulations promulgated thereunder (the "Treasury Regulations"), to take certain actions subsequent to the issuance of such obligations to ensure the continuing tax-exempt status of such obligations and to take actions to ensure continued eligibility for interest subsidy payments in connection with BABs. Additionally, Section 6001 of the Internal Revenue Code and Section 1.6001-1(a) of the Treasury Regulations impose record retention requirements on the city with respect to its tax-exempt governmental obligations and BABs. This subsection "Compliance Procedure and Policy for Tax-Exempt Governmental Obligations and Build America Bonds" is to help facilitate the efforts of the city in complying with the city's compliance obligations under applicable provisions of the Internal Revenue Code and the Treasury Regulations.

a. *Responsible parties.* The city clerk-treasurer shall be the party primarily responsible for implementing and monitoring the city's compliance requirements under applicable provisions of the Internal Revenue Code and Treasury Regulations as they pertain to the investment of proceeds of tax-exempt obligations and BABs issued by the city. The finance director shall be the party primarily responsible for monitoring the city's compliance requirements with respect to all other applicable provisions of the Internal Revenue Code and Treasury Regulations. Each of the city clerk-treasurer and finance directors will be assisted by the staff of said officer and by other city staff and officials when appropriate. Such officers will also be assisted in carrying out post-issuance compliance requirements by the following:

1. Bond counsel (the law firm primarily responsible for providing bond counsel services for the city);
2. Financial advisor (the entity primarily responsible for providing financial advisor services to the city);
3. Paying agent (the person(s), entity (entities), or city officer(s) primarily responsible for providing paying agent services for the city); and
4. Rebate analyst (the entity (entities) primarily responsible for providing rebate analyst services for the city).

With respect to the investment of proceeds of tax-exempt obligations and BABs, the city clerk-treasurer shall be responsible for assigning compliance responsibilities to members of such officer's staff, other staff of the city, the financial advisor, bond counsel, the paying agent, and the rebate analyst as the city clerk-treasurer deems appropriate. For all other purposes of this policy the finance director shall be responsible for assigning compliance responsibilities to members of such officer's staff, other staff of the city, the financial advisor, bond counsel, the paying agent, and the rebate analyst as the finance director deems appropriate. Each of the city clerk-treasurer and finance directors shall utilize such other professional service organizations as are necessary to ensure compliance by the city with this policy.

b. *Special pre-issuance and post-issuance policies respecting BABs.* In con-

nection with the issuance and sale of each series of BABs by the city, the finance director shall:

1. Consult with the Financial Advisor on methods to help ensure that no maturities of any direct pay BABs are issued with more than a de minimis amount of original issue premium including, without limitation, (i) negotiating terms in the purchase contract or such other commitment or agreements between the city and the underwriter(s) or purchaser(s) that expressly prohibit any maturities from having beyond a de minimis amount of original issue premium; (ii) negotiating with the underwriter(s) or purchaser(s) of such obligations to minimize to the extent feasible and practicable the number of days between the sale date and the date such obligations are issued and delivered; (iii) obtaining from the underwriter(s) or purchaser(s) of such obligations a certificate representing the issue price thereof; and (iv) negotiating such other provisions as the financial advisor may advise in order to minimize or prevent any such original issue premium. (This action will be the primary responsibility of the financial advisor);

2. Determine the extent to which records of any secondary market trading activity for direct pay BABs are available through the MSRB's Electronic Municipal Markets Access System ("EMMA"), and if such information is so available shall monitor EMMA on a regular basis between the date of sale and the closing date of any issue of direct pay BABs to identify whether and to what extent secondary market trading activity involved the sale of more than a de minimum amount of premium on any of the maturities of such BABs (This action will be the primary responsibility of the financial advisor);

3. Monitor the use of proceeds of BABs to ensure compliance with the requirements that (i) all proceeds (other than amounts placed in a reasonably required reserve fund and used to pay costs of issuance) are used to pay capital costs; and (ii) no more than two percent of the principal amount of the obligations are used to pay costs of issuance;

4. Maintain records respecting the expenditure of all proceeds of such obligations to help ensure the timely and proper expenditure of all such proceeds in accordance with the Internal Revenue Code and Treasury Regulations;

5. Consult with the financial advisor in computing, and have the financial advisor independently compute and certify, (i) the amount of "available project proceeds" (i.e., proceeds from the sale of such BABs less no more than two percent of such proceeds to pay costs of issuance plus investment earnings on such proceeds) of such issue, (ii) such amount as may be used to fund a reasonably required reserve fund, and (iii) the overall costs of issuance of such BABs and the amount of proceeds from the sale of such BABs used to pay such costs of issuance;

6. Maintain detailed records of all expenditures of available project proceeds to ensure the same (less such amount as shall be used in a reasonable required reserve fund) are expended only for capital expenditures;
7. Consult with the financial advisor in computing, and have the purchaser(s) or underwriter(s) independently compute and certify, the amount of interest payable on each interest payment date;
8. Consult with the financial advisor in computing, or have an independent consultant (which such consultant may be, but is not required to be, the purchaser(s), underwriter(s) or financial advisor) compute, the proper amount of refundable credit to be reported on IRS Form 8038-CP;
9. File, or enter into an agreement on behalf of the city with the paying agent or such other third party as the finance director shall deem appropriate to cause to be filed, the IRS Form 8038-CP in accordance with the time requirements of the Internal Revenue Code (which, for purposes of direct pay BABs bearing interest at a fixed rate, shall be the periods described in Section 4(c) of this policy);
10. Ensure, or cause a consultant (which may be the paying agent or such other consultant as the finance director may identify) to ensure, that all filings with the IRS identify the city as the recipient of interest subsidies receivable and contain the correct information needed to transmit payment thereof; and
11. Undertake appropriate actions to ensure compliance with the Federal Davis-Bacon Act and regulations issued with respect thereto with regard to labor matters in connection with capital projects financed with proceeds of Recovery Zone Economic Development Bonds.

c. *Post-issuance compliance actions.* With respect to each issue of tax-exempt governmental obligations and BABs issued by the city:
   1. The finance director shall obtain from bond counsel and store a transcript of principal documents pertaining to such transaction;
   2. The finance director shall cause bond counsel to confirm that bond counsel has timely filed with the IRS an Information Return for Tax-Exempt Governmental Obligations, Form 8038-G and a Form 8038-B in the case of BABs (the action of filing such returns shall be the primary responsibility of bond counsel);
   3. For each issue of BABs, the finance director shall file with the IRS, no earlier than 90 days nor later than 45 days before each interest payment date, Form 8038-CP to ensure payment of the BABs direct federal payment (the finance director may contract, on behalf of the city, with the paying agent or such other consultant as identified by the finance director to make such filings);
   4. The city clerk-treasurer shall (i) cause bond counsel to identify proceeds of tax-exempt governmental obligations and BABs that must be yield-restricted; and (ii) in consultation with bond counsel monitor the investments of any yield-restricted funds to ensure that the yield

on such investments does not exceed the yield to which such investments are restricted;

5. The finance director shall cause a rebate analyst or such other consultant engaged by the city to determine whether the rebate requirements of Section 148(f) of the Internal Revenue Code are applicable with respect to each issue of tax-exempt governmental obligations and BABs issued by the city, taking into account whether the city is eligible for any of the temporary periods for unrestricted investments and any of the spending exceptions to such rebate requirements. The finance director shall contact the rebate analyst (and, if appropriate, bond counsel) prior to the fifth anniversary of the date of issuance of each issue of tax-exempt governmental obligations and BABs of the city and each fifth anniversary thereafter to arrange for calculations of the rebate requirements with respect to such tax-exempt governmental obligations and BABs. If a rebate payment is required to be made by the city, the finance director shall prepare or cause to be prepared the Arbitrage Rebate, Yield Reduction and Penalty in Lieu of Arbitrage Rebate, Form 8038-T, and submit such Form 8038-T to the IRS with the required rebate payment. If the city is entitled to recover a rebate payment previously paid, the finance director shall prepare or cause to be prepared the Request for Recovery of Overpayments Under Arbitrage Rebate Provisions, Form 8038-R, with respect to such rebate recovery, and submit such Form 8038-R to the IRS.

d. *Procedures for monitoring, verification, and inspections.* The finance director shall (i) institute such procedures as the finance director shall deem necessary and appropriate to monitor the use of the proceeds of tax-exempt governmental obligations and BABs issued by the city, (ii) confirm that no impermissible private activity or business use is being conducted on the financed facilities; and (iii) confirm that proceeds are spent in accordance with the expectations described in the applicable tax certificate or tax compliance agreement. The clerk-treasurer shall verify that the interest rate on investments of proceeds of such obligations does not exceed the yield on such obligations (to the extent bond counsel has advised the city that such investments are required to be yield restricted).

e. *Record retention requirements.* The finance director shall collect and retain the following records with respect to each issue of tax-exempt governmental obligations and BABs of the city and with respect to the facilities financed with the proceeds of such obligations:

1. Audited financial statements of the city;
2. Appraisals, demand surveys, or feasibility studies with respect to the facilities to be financed with the proceeds of such obligations;
3. Publications, brochures, and newspaper articles related to the financing;
4. Trustee or paying agent statements;

5. Records of all investments and the gains (or losses) from such investments;
6. Paying agent or trustee statements regarding investments and investment earnings;
7. Reimbursement resolutions and expenditures reimbursed with the proceeds of such obligations;
8. Allocations of proceeds to expenditures (including costs of issuance);
9. Contracts entered into for the construction, renovation, or purchase of such facilities;
10. An asset list or schedule of all financed depreciable property and any depreciation schedules with respect to such assets or property;
11. Records of the purchases and sales of financed assets;
12. Private business uses of such facilities that arise subsequent to the date of issue through leases and subleases, licenses, management contracts, research contracts, naming rights agreements, or other arrangements that provide special legal entitlements to nongovernmental persons and copies of any such agreements or instruments;
13. Arbitrage rebate reports and records of rebate and yield reduction payments;
14. Resolutions or other actions taken by the governing body subsequent to the date of issue with respect to such obligations;
15. Formal elections authorized by the Internal Revenue Code or Treasury Regulations that are taken with respect to such obligations;
16. Documents related to guaranteed investment contracts or certificates of deposit, credit enhancement transactions, and financial derivatives entered into subsequent to the date of issue;
17. Copies of all Form 8038-Ts and Form 8038-Rs filed with the IRS; and
18. The transcript prepared with respect to such tax-exempt governmental obligations and BABs.

The records collected by the finance director shall be stored in any format deemed appropriate by the finance director and shall be retained for a period equal to the life of the tax-exempt governmental obligations and BABs with respect to which the records are collected (which shall include the life of any warrants issued to refund any portion of such tax-exempt governmental obligations or to refund any refunding warrants) plus three years.

f. *Reissuance.* The following policies relate to compliance with rules and regulations regarding the reissuance of obligations for federal law purposes. The finance director will:

1. Identify and consult with bond counsel regarding any post-issuance change to any terms of an issue of tax-exempt obligations or BABs which could potentially be treated as a reissuance for federal tax purposes; and
2. Confirm with bond counsel whether any "remedial action" in connection with a "change in use" (as such terms are defined in the Internal Revenue Code and Treasury Regulations) would be treated as a reissu-

ance for tax purposes and, if so, confirm the filing of any new IRS Form 8038-G.

g. *Other post-issuance actions.* If, in consultation with the mayor, the city council, the financial advisor, bond counsel, the paying agent, the rebate analyst, the city clerk, the city attorney, or any other city officials or relevant advisors the finance director determines that any additional action not identified in this policy must be taken to continue the tax-exempt status of any issue of governmental obligations of the city (or the status of obligations issued as BABs), the finance director shall take such action if the finance director has the authority to do so. If, after consultation with the mayor, the city council, the financial advisor, bond counsel, the paying agent, the rebate analyst, the city clerk, the city attorney, or any other city officials or relevant advisors the finance director determines that this policy must be amended or supplemented to continue the tax-exempt status of any issue of governmental obligations of the city (or the status of obligations issued as BABs), the finance director shall recommend to the city council that this policy be so amended or supplemented.

(3) *Responsibility.* Enforcement of this subsection with respect to the investment of proceeds of tax-exempt obligations and BABs shall be the primary responsibility of the city clerk-treasurer and, with respect to all other matters, shall be the primary responsibility of the finance director, although each of the city clerk-treasurer and finance director may delegate, as such officer deems reasonable or necessary, and or all such functions to staff within the office of the finance director, or to the financial advisor, bond counsel, the paying agent or rebate analyst.

(Ord. No. 10-646, 9-9-2010)

Secs. 2-160—2-180. Reserved.

DIVISION 2. PROCUREMENT*

Sec. 2-181. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Blind trust means an independently managed trust in which the employee-beneficiary has no management rights and in which the employee-beneficiary is not given notice of alterations in, or other dispositions of, the property subject to the trust.

Brand name or equal specification means a specification limited to one or more items by manufacturers' names or catalogue numbers to describe the standard of quality, performance and other salient characteristics needed to meet city requirements, and which provides for the submission of equivalent products.

Brand name specification means a specification limited to one or more items by manufacturers' names or catalogue numbers.

Business means any corporation, partnership, proprietorship, firm, enterprise, franchise, association, organization, self-employed individual, or any other legal entity.

Commodities means all property, including but not limited to equipment, materials, printing and lease of real property, including land or a permanent interest in land.

Confidential information means any information which is available to an employee only

*__State law references__—Execution of contracts, Code of Ala. 1975, § 11-47-5; awarding contracts to low bidder, Code of Ala. 1975, § 11-47-6; public contracts, Code of Ala. 1975, § 41-16-1 et seq.

because of the employee's status as an employee of the city and is not a matter of public knowledge or available to the public on request.

Contract means all types of city agreements, regardless of what they may be called, for the procurement of commodities or services.

Contractor means any person having a contract with the city or a using agency of the city.

Direct or indirect participation means involvement through decision, approval, disapproval, recommendation, preparation of any part of a purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing or in any other advisory capacity.

Employee means an individual drawing a salary or wages from the city whether elected or not; any noncompensated individual performing personal services for the city or any department, agency, commission, council, board, or any other entity established by the executive or legislative branch of the city.

Financial interest means:

(1) Ownership of any interest or involvement in any relationship from which or as a result of which a person within the past year has received or is presently or in the future entitled to receive more than the small purchase threshold, as defined in section 2-184(d)(2), per year, or its equivalent.

(2) Ownership of more than five percent of any property or business; or

(3) Holding a position in a business such as officer, director, trustee, partner, employee or the like, or holding any position of management.

Gratuity means a payment, loan, subscription, advance, deposit of money, service, gift, benefit, favor or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value is received.

Immediate family means a spouse, children, parents, brothers and sisters of the employee, or a dependent such as a person who receives 50 percent or more of his support from the employee or the employee's spouse. Also included as a dependent would be a person who resides with the employee for more than 180 days during the preceding year.

Invitation for bids means all documents, whether attached or incorporated by reference, utilized for soliciting sealed bids.

Procurement means the buying, purchasing, renting, leasing or otherwise acquiring of any commodities or services. It also includes all functions that pertain to the obtaining of any supply or service, including description of requirements, selection and solicitation of sources, preparation and award of contract, and all phases of contract administration.

Public agency means a public entity subject to or created by the city.

Qualified products list means an approved list of commodities or services, described by model or catalogue numbers, which, prior to competitive solicitation, the city has determined will meet the applicable specification requirements.

Request for proposals means all documents, whether attached or incorporated by reference, utilized for soliciting proposals.

Resident responsive responsible bidder means a person deemed to be a responsive, responsible bidder, as defined by Code of Ala. 1975, § 41-16-50.

Responsible bidder means a person who has the capability in all respects to perform fully the contract requirements, and the tenacity, perseverance, relevant experience, integrity, reliability, capacity, facilities, equipment and credit which will assure good-faith performance and other necessary essential qualities to assure financial stability and adequate personnel.

Responsive bidder means a person who has submitted a bid which conforms in all material respects to the requirements set forth in the invitation for bids.

Services means the furnishing of labor, time or effort by a vendor, not involving the delivery of a specific end product other than those which are

merely incidental to the required performance. This term shall not include employment agreements except agreements with private temporary services.

Specification means any description of the physical or functional characteristics or of the nature of a supply or service. It may include a description of any requirement for inspecting, testing or preparing a supply or service for delivery.

Using agency means any city department, commission, board, authority or public agency requiring commodities or services procured pursuant to this division.

Vendor means any corporation, partnership, individual, sole proprietorship, joint stock company, joint venture or any other private legal entity offering to provide commodities or services to the city.

(Ord. No. 96-864, art. 7, 11-14-1996; Ord. No. 22-221, § 1, 4-14-2022; Ord. No. 24-316, § 1, 5-9-2023; Ord. No. 26-196, § 1, 3-12-2026)

Cross reference—Definitions generally, § 1-2.

Sec. 2-182. Purpose and application.

(a) *Purpose.* The purpose of this division is to provide for the fair and equitable treatment of all persons involved in public procurement by the city, to maximize the purchasing value of public funds in procurement, and to provide safeguards for maintaining a procurement system of quality and integrity.

(b) *Application.* This division applies to contracts for the procurement of commodities and services entered into by the city after November 26, 1996. When the procurement involves the expenditure of federal assistance or federal contract funds, the procurement shall be conducted in accordance with any mandatory applicable federal law and regulations. Nothing in this division shall prevent any public agency from complying with the terms and conditions of any grant, gift or bequest that is otherwise consistent with law.

(Ord. No. 96-864, art. 1, 11-14-1996)

Sec. 2-183. Procurement officer.

(a) The director of finance or his written designee shall serve as the principal public purchasing official for the city and shall be responsible for the procurement of supplies and services in accordance with this division.

(b) In accordance with this division, the director of finance or his written designee shall oversee the functions of procurement services for the purposes of soliciting and encouraging competition while complying with all applicable state and local laws to obtain quality commodities and services at the lowest possible cost.

(c) Except in cases of emergency, as described in section 2-184(g), neither the director of finance nor any written designee nor any other officer or employee of the city shall make purchases in the name of the city on the credit of the city, or create any debt or liability against the city, unless the expenditure has been previously authorized by the city council, or unless the funds for such expenditure have been appropriated by the city council, either specifically or in the annual budget of the city. In all cases where the amount involved is more than required for competitive bidding, procurement services shall proceed to issue invitations for bids and to open the bids at the time and place stated in the invitation for bids, and shall report the results of such bids to the city council, who shall accept or reject such bids and shall in all respects act as the awarding authority for all such purchases.

(d) The director of finance may delegate authority in writing to purchase certain commodities or services to other city officials, if such delegation is deemed necessary for the effective procurement of those items. Any such procurements made pursuant to any such delegated authority remain subject to all requirements for authorization and approval as set forth in this division. The city engineer is authorized to procure construction services for public improvement projects as defined by Code of Ala. 1975, tit. 39 (Code of Ala. 1975, § 39-1-1 et seq.) and in accordance with the provisions of this division.

(Ord. No. 96-864, art. 2, 11-14-1996)

Sec. 2-184. Source selection and contract formation.

(a) *Generally.* All procurements for the city shall be awarded in accordance with the applicable provisions of the Code of Ala. 1975, tits. 39 and 41 (Code of Ala. 1975, §§ 39-1-1 et seq., 41-1-1 et seq.) and in accordance with the provisions of this division.

(b) *Invitations for bids.* For those types of contracts meeting threshold requirements for competitive bids, invitations for bids shall be issued and shall include specifications and all contractual terms and conditions applicable to the procurement.

(1) *Public notice.* Public notice of the invitation for bids shall be given a reasonable time prior to the date set forth for the opening of the bids. Such notice shall include posting all bids on a suitable bulletin board outside the procurement services office of the city. Such notice may also include publication in a newspaper of general circulation and shall state the place, date and time of the bid opening.

(2) *Bonds.* Bid bonds, performance bonds, and labor and material bonds or other security may be requested for supply contracts or service contracts as procurement services deems advisable to protect the city's interests, and in conformance with the Code of Ala. 1975, tits. 39 and 41 (Code of Ala. 1975, §§ 39-1-1 et seq., 41-1-1 et seq.). Bid or performance bonds shall not be used as a substitute for a determination of a bidder or offeror's responsibility.

(3) *Bid openings.* Bids shall be opened publicly in the presence of one or more witnesses at the time and place designated in the invitation for bids. For the purpose of designating the time of opening, the clock located in the city council chambers, first floor of the municipal building, 308 Fountain Circle, Huntsville, Alabama, shall serve as the official clock of record. The amount of each bid, and such other relevant information together with the name of each bidder shall be recorded; the record and each bid shall be open to public inspection. Late bids will not be accepted nor considered.

(4) *Bid acceptance and bid evaluation.* Bids shall be unconditionally accepted without alteration or correction, except as authorized in this division. Bids shall be evaluated based on the requirements set forth in the invitation for bids, which may include criteria to determine acceptability such as inspection, testing, quality, workmanship, delivery and suitability for a particular purpose. The invitation for bids shall set forth the evaluation criteria to be used. No criteria may be used in bid evaluation that are not set forth in the invitation for bids. Any bid determined to be nonresponsive to the requirements will be rejected.

(5) *Correction or withdrawal of bids; cancellation of awards.* Corrections or withdrawal of inadvertently erroneous bids before or after bid opening, or cancellation of awards or contracts based on such bid mistakes, may be permitted where appropriate. Mistakes discovered before bid opening may be modified or withdrawn by written notice received by procurement services prior to the time set for bid opening. After bid opening, no changes in bid prices or other provisions of bids prejudicial to the interest of the city or fair competition shall be permitted except as authorized by Code of Ala. 1975, tits. 39 and 41 (Code of Ala. 1975, §§ 39-1-1 et seq., 41-1-1 et seq.).

(6) *Resident responsible bidder.* If the contract is for the purchase of personal property and the city receives a bid from a person deemed to be a responsive, responsible, resident bidder which bid is no more than three percent greater than the bid of the lowest responsive, responsible, nonresident bidder, the city may award the contract to such responsive, responsible, resident bidder. For the

purposes of this section, the term "resident bidder" shall be defined in accordance with Code of Ala. 1975, § 41-16-50.

(7) *Determination of nonresponsibility.* If a bidder or offeror who otherwise would have been awarded a contract is found nonresponsible, a written determination of nonresponsibility, setting forth the basis of the finding, shall be prepared by procurement services. The failure of a bidder or offeror to supply prompt information in connection with an inquiry with respect to responsibility may be grounds for a determination of nonresponsibility with respect to such bidder or offeror. A copy of the determination shall be sent promptly to the nonresponsible bidder or offeror. The final determination shall be made part of the contract file and be made a public record.

(8) *Award.* Upon the approval of the city council, contracts shall be awarded with reasonable promptness by appropriate written notice to the lowest responsible and responsive bidder whose bid meets the requirements and criteria set forth in the invitation for bids.

(9) *Reporting of anticompetitive practices.* When for any reason collusion or other anticompetitive practices are suspected among any bidders or offerors, the director of finance or his written designee shall seek advice from the city attorney's office and, where appropriate, shall transmit a notice of the relevant facts to the district attorney and the state attorney general.

(c) *Specifications.* All specifications shall be drafted so as to promote overall economy for the purposes intended and encourage competition in satisfying the city's needs, and shall not be unduly restrictive. The policy as set forth in this section applies to all specifications and empowers procurement services to approve or disapprove all specifications, including but not limited to those prepared for the city by architects, engineers, designers and draftsmen.

(1) *Brand name or equal specification.* Brand name or equal specifications may be used when procurement services determines in writing that:

a. No other design or performance specification or qualified products list is available;

b. Time does not permit the preparation of another form of purchase description, not including a brand name specification;

c. The nature of the product or the nature of the city's requirements makes use of a brand name or equal specification suitable for the procurement; or

d. Use of a brand name or equal specification is in the city's best interests.

(2) *Required characteristics.* Unless procurement services determines in writing that the essential characteristics of the brand names included in the specifications are commonly known in the industry or trade, brand name or equal specifications shall include a description of the particular design, functional or performance characteristics which are required.

(3) *Nonrestrictive use of brand name or equal.* Where a brand name or equal specification is used in a solicitation, the solicitation shall contain explanatory language that the use of a brand name is for the purpose of describing the standard of quality, performance and characteristics desired and is not intended to limit or restrict competition.

(4) *Brand name specification.* Since use of a brand name specification is restrictive of product competition, it may be used only when the director of finance or his written designee is provided with a written determination from the requesting department head that only the identified brand

name item will satisfy the city's needs. The director of finance shall seek to identify sources from which the designated brand name item can be obtained and shall solicit such sources to achieve whatever degree of price competition is practicable. If only one source can supply the requirement, the procurement shall be made under the provisions of section 2-184(f).

(d) *Small purchases.*

(1) *Generally.* Any contract not exceeding the amount required for competitive bidding as outlined in state competitive bid laws may be made in accordance with the small purchase procedures authorized in this subsection. Contract requirements shall not be artificially divided so as to constitute a small purchase under this subsection. Procurement services shall adopt operational procedures to facilitate small purchases. Such operational procedures shall provide for obtaining adequate and reasonable competition for the supply or service being purchased. Further, such operational procedures shall require the proper accounting for the funds expended and facilitate an audit of the small purchase made.

(2) The small-dollar threshold shall be established at an amount equal to one-half of the competitive bid threshold as provided in Code of Ala. 1975, § 41-16-50(a), as amended. For purchases equal to this amount up to the amount requiring competitive bidding under state law, procurement shall, insofar as practicable, obtain written competitive price quotes from not fewer than three businesses. The award shall be made to the lowest responsive and responsible business submitting a written quotation. All written quotations obtained pursuant to this section shall be maintained as a public record in accordance with applicable law.

(3) For purchases under the small-dollar threshold, procurement services shall adopt operational procedures for making said purchases. Such operational procedures shall provide for obtaining adequate and reasonable competition for the supply or service being purchased. Further, such operational procedures shall require the proper accounting for the funds expended and facilitate an audit of the small purchase made.

(e) *Professional services.* For the purpose of procuring professional services as defined by the competitive bid laws of the state, any department requiring such services may procure them on its own behalf or with the assistance of procurement services. Any such contract, with a value greater than required for competitive bidding, will require the approval of the city council in the form of a professional services contract.

(f) *Sole-source procurement.* A contract may be awarded without competition when the director of finance or his designee receives in writing a valid justification from the requesting department head/division manager that there is only one source for the required supply or service item or, by the nature of an item, the bid cannot be awarded by competition. Such written justification shall include specific facts which support the conclusion that there is only one source. Procurement services shall conduct a good-faith review of available sources and conduct negotiations, as appropriate, as to price, qualifications, delivery and terms. Sole-source justifications must receive the approval of the director of finance and the mayor.

(g) *Emergency procurements.* Notwithstanding any other provisions of this division, the director of finance may make or authorize others to make emergency procurements of commodities or services, when there exists an emergency affecting public health, safety or convenience; provided that such emergency procurements shall be made with such competition as is practicable under the circumstances. A written determination of the basis for the emergency and for the selection of the particular contractor as approved by the director of finance shall be included in the contract file. As soon as practical, a record of each emergency procurement shall be made and shall set forth the contractor's name, the amount

of the contract, and a listing of the items procured under the contract. Such emergency actions and the reason shall be acknowledged by resolution and made public by the city council as soon as possible.
(Ord. No. 96-864, art. 3, 11-14-1996; Ord. No. 22-221, § 2, 4-14-2022; Ord. No. 24-316, § 2, 5-9-2023; Ord. No. 26-196, § 2, 3-12-2026)

State law reference—Competitive bidding on certain contracts, Code of Ala. 1975, § 41-16-50 et seq.

Sec. 2-185. Contract clauses.

All city contracts for commodities or services shall include provisions necessary to define the responsibilities and rights of the parties to the contract. The director of finance or his designee, after consultation with the city attorney, may issue clauses appropriate for supply or service contracts, addressing among others the following subjects:

(1) The unilateral right of the city to order in writing changes in the work within the scope of the contract;

(2) The unilateral right of the city to order in writing temporary stopping of the work or delaying performance that does not alter the scope of the contract;

(3) Variations occurring between estimated quantities of work in contract and actual quantities;

(4) Defective pricing;

(5) Liquidated damages;

(6) Specified excuses for delay, nonperformance, or nondelivery;

(7) Termination of the contract for default;

(8) Termination of the contract in whole or in part for the convenience of the city; or

(9) Indemnity of the city by the vendor.

(Ord. No. 96-864, art. 4, 11-14-1996)

Sec. 2-186. Joint purchasing.

As authorized by Code of Ala. 1975, § 41-16-50, the city and any governing bodies within the county, including but not limited to the county commission, the city school board, the county school board, the governing boards of instrumentalities of the county and the city, any state-funded university or college within the county and any governing body in adjoining counties, may jointly purchase commodities or services by entering into a joint agreement by similar ordinances, in the case of municipalities, or resolutions, in the case of other contracting agencies mentioned in this section.
(Ord. No. 96-864, art. 5, 11-14-1996)

Sec. 2-187. Ethics in public contracting.

(a) *Criminal penalties.* To the extent that violations of the ethical standards of conduct set forth in this section constitute violations of the Alabama Criminal Code (Code of Ala. 1975, § 13A-1-1 et seq.) or Code of Ala. 1975, tit. 36, ch. 25 (Code of Ala. 1975, § 36-25-1 et seq.), they shall be punishable as provided in such sections. Such penalties shall be in addition to the civil sanctions set forth in this section.

(b) *Employee conflict of interest.* A city employee or any member of a city employee's immediate family who holds a financial interest in a disclosed blind trust shall not be deemed to have a conflict of interest with regard to matters pertaining to that financial interest. It shall be unethical for any city employee to participate directly or indirectly in a procurement contract when the city employee knows that:

(1) The city employee or any member of the city employee's immediate family has a direct financial interest pertaining to the procurement contract; or

(2) Any other person, business or organization with whom the city employee or any member of a city employee's immediate family is negotiating or has an arrangement concerning prospective employment is involved in the procurement contract.

(c) *Gratuities and kickbacks.*

(1) *Gratuities.* It shall be unethical for any person to offer, give or agree to give any city employee or former city employee, or for any city employee or former city employee to solicit, demand, accept or agree to accept from another person a

gratuity or an offer of employment in connection with any decision, approval, disapproval, recommendation or preparation of any part of a program requirement or a purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing or in any other advisory capacity in any proceeding or application, request for ruling, determination, claim or controversy, or other particular matter, pertaining to any program requirement or a contract or subcontract, or to any solicitation or proposal for a contract or subcontract.

(2) *Kickbacks.* It shall be unethical for any payment, gratuity or offer of employment to be made by or on behalf of a vendor under a contract to any employee associated with the vendor, as an inducement for the award of a contract or order. It shall likewise be unethical for an employee to accept any payment, gratuity or offer of any employment made by a vendor to an employee as an inducement for award of any contract or purchase order.

(d) *Use of confidential information.* It shall be unethical for any employee or former employee knowingly to use information derived from their employment with the city for actual or anticipated personal gain, or for the actual or anticipated personal gain of any other person during that employment.

(e) *Sanctions.*

(1) *Employees.* The mayor may impose any one or more of the following sanctions on a city employee for violations of the ethical standards in this section:

a. Oral or written warnings or reprimands;

b. Suspensions with or without pay for specified periods of time;

c. Demotion; or

d. Termination of employment.

(2) *Nonemployees.* The mayor may impose any one or more of the following sanctions on a nonemployee for violations of the ethical standards:

a. Written warnings or reprimands; or

b. Termination of contracts.

(f) *Recovery of value transferred or received in breach of ethical standards.* The value of anything transferred or received in breach of the ethical standards of this section by a city employee or a nonemployee may be recovered from both the city employee and the nonemployee.

(g) *Relationship to state ethics law.*

(1) *Compliance required.* Employees are required to comply with Code of Ala. 1975, tit. 36, ch. 25 (Code of Ala. 1975, § 36-25-1 et seq.). Provisions of this section are considered to be additive to the code of ethics for public officials, employees, etc., and are not intended to conflict in any way with state law.

(2) *Recovery of kickbacks by the city.* Upon a showing that a vendor made a kickback to a city employee or public official in connection with the award of a contract or order, it shall be conclusively presumed that the amount was included in the price of the contract or order and ultimately borne by the city and will be recoverable from the recipient. In addition, that amount may also be recovered from the vendor making such kickbacks. Recovery from one offending party shall not preclude recovery from other offending parties.

(Ord. No. 96-864, art. 6, 11-14-1996)

State law reference—Bribery and corrupt influence, Code of Ala. 1975, § 13A-10-60 et seq.

Sec. 2-188. Purchases with Federal Transit Administration funds.*

(a) *FTA Circular 4220.1F.* Any procurement action made with the use of funds from the Federal Transit Administration must comply with the provisions of 49 CFR Part 18 and FTA

*__Note—__This section has no force or effect outside of FTA funded procurements.

Circular 4220.1F, as the same may be amended and supplemented from time to time. In addition to complying with all state and local laws and regulations, the City of Huntsville, Alabama will comply with the FTA C4220.1f requirements that are not identified in state and local laws and regulations.

(b) *Mandatory procurement standards.* The City of Huntsville, Alabama will adhere to the following procurement standards when using FTA funding:

(1) *Written standards of conduct.*

a. *Criminal penalties.* To the extent that violations of the ethical standards of conduct set forth in this section constitute violations of the Alabama Criminal Code (Code of Ala. 1975, § 13A-1-1 et seq.) or Code of Ala. 1975, tit. 36, ch. 25 (Code of Ala. 1975, § 36-25-1 et seq.), they shall be punishable as provided in such sections. Such penalties shall be in addition to the civil sanctions set forth in this section.

b. *Employee conflict of interest.* A city employee or any member of a city employee's immediate family who holds a financial interest in a disclosed blind trust shall not be deemed to have a conflict of interest with regard to matters pertaining to that financial interest. It shall be unethical for any city employee to participate directly or indirectly in a procurement contract when the city employee knows that:

i. The city employee or any member of the city employee's immediate family has a direct financial interest pertaining to the procurement contract; or

ii. Any other person, business or organization with whom the city employee or any member of a city employee's immediate family is negotiating or has an arrangement concerning prospective employment is involved in the procurement contract.

c. *Gratuities and kickbacks.*

i. *Gratuities*. It shall be unethical for any person to offer, give or agree to give any city employee or former city employee, or for any city employee or former city employee to solicit, demand, accept or agree to accept from another person a gratuity or an offer of employment in connection with any decision, approval, disapproval, recommendation or preparation of any part of a program requirement or a purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing or in any other advisory capacity in any proceeding or application, request for ruling, determination, claim or controversy, or other particular matter, pertaining to any program requirement or a contract or subcontract, or to any solicitation or proposal for a contract or subcontract.

ii. *Kickbacks*. It shall be unethical for any payment, gratuity or offer of employment to be made by or on behalf of a vendor under a contract to any employee associated with the vendor, as an inducement for the award of a contract or order. It shall likewise be unethical for an employee to accept any payment, gratuity or offer of any employment made by a vendor to an employee as an inducement for award of any contract or purchase order.

d. *Use of confidential information.* It shall be unethical for any employee or former employee knowingly to use information derived from their employment with the city for actual or anticipated personal gain, or for the actual or anticipated personal gain of any other person during that employment.

e. *Sanctions.*

i. *Employees.* The mayor may impose any one or more of the following sanctions on a city employee for violations of the ethical standards in this section:

- Oral or written warnings or reprimands;
- Suspensions with or without pay for specified periods of time;
- Demotion; or
- Termination of employment.

ii. *Nonemployees.* The mayor may impose any one or more of the following sanctions on a nonemployee for violations of the ethical standards:

- Written warnings or reprimands; or
- Termination of contracts.

f. *Recovery of value transferred or received in breach of ethical standards.* The value of anything transferred or received in breach of the ethical standards of this section by a city employee or a nonemployee may be recovered from both the city employee and the nonemployee.

g. *Relationship to state ethics law.*

i. *Compliance required.* Employees are required to comply with Code of Ala. 1975, tit. 36, ch. 25 (Code of Ala. 1975, § 36-25-1 et seq.). Provisions of this section are considered to be additive to the code of ethics for public officials, employees, etc., and are not intended to conflict in any way with state law.

ii. *Recovery of kickbacks by the city.* Upon a showing that a vendor made a kickback to a city employee or public official in connection with the award of a contract or order, it shall be conclusively presumed that the amount was included in the price of the contract or order and ultimately borne by the city and will be recoverable from the recipient. In addition, that amount may also be recovered from the vendor making such kickbacks. Recovery from one offending party shall not preclude recovery from other offending parties.

(2) *Contract administration system.* A system for contract administration is maintained to ensure contractor conformance with the terms, conditions and specifications of contracts or purchase orders and to ensure adequate and timely follow-up of all purchases. The administration of contracts is the function of the Procurement Division of the finance department, with continuous and ongoing support and interaction of public transit to ensure all FTA requirements are met.

Consideration will be given to the type of contract and the specific requirements of each. As a general guide, the following will be monitored and documented:

- Contractor conformance with the contract price.
- Contractor conformance with the delivery and/or completion dates.

- Compliance with the specifications of product or construction requirements.
- Payment of any required security or performance deposits by the contractor.
- Compliance with rules and regulations for contracts of the funding source.
- Document whether contractors have met the terms, conditions and specifications of the contract.

All goods and services to be procured must be eligible under the federal law that authorized the FTA assistance award and any applicable regulations.

(3) *Written protest procedures.*

a. *Right to protest.* Any actual or prospective bidder, offeror, or contractor who is aggrieved in connection with the solicitation or award of a contract may protest to the city attorney, or designated representative. The protest shall be submitted in writing within 14 days after such aggrieved person knows or should have known of the facts giving rise thereto.

b. *Authority to resolve protests.* The city attorney, or designated representative, shall have the authority, prior to the commencement of an action in court concerning the controversy, to settle and resolve a protest of an aggrieved bidder, offeror, or contractor, actual or prospective, concerning the solicitation or award of a contract.

c. *Decision*. All protest decisions will be in writing, including protests resolved by mutual agreement. If the protest is not resolved by mutual agreement, the city attorney, or designated representative, shall promptly issue a decision in writing. The decision shall:

i. State the reasons for the action taken; and

ii. Inform the protestant of its right to judicial or administrative review.

d. *Notice of decision.* A copy of the decision under subsection (c) of this section shall be mailed or otherwise furnished immediately to the protestant and any other party intervening.

e. *Finality of decision.* A decision under subsection (c) of this section shall be final and conclusive, unless fraudulent.

f. *Stay of procurement during protests.* In the event of a timely protest under subsection (a) of this section, the City of Huntsville shall not proceed further with the solicitation or with the award of the contract until the city attorney, or designated representative, after consultation with the Procurement Supervisor and the Director of Parking and Public Transit, Alabama, makes a written determination that the award of the contract without delay is necessary to protect substantial interests of the City of Huntsville.

g. *Entitlement of costs.* In addition to any other relief, when a protest is sustained and the protesting bidder or offeror should have been awarded the contract under the solicitation but is not, then the protesting bidder or offeror shall be entitled to the reasonable costs incurred in connection with the solicitation, including bid preparation costs other than attorney's fees.

h. *Disclosure of protests.* The City of Huntsville shall in all instances disclose information regarding protests to the FTA and shall keep the FTA informed about the status of the protest.

i. *Exhaust all administrative remedies.* A protester must exhaust all

administrative remedies with the City of Huntsville before pursuing a protest with FTA.

In the event that all local protest procedures have been exhausted the actual or prospective bidder, offeror, or contractor who is aggrieved in connection with the solicitation or award of a contract may protest to the Federal Transit Administration (FTA) through FTA Region IV, 230 Peachtree Street NW, Suite 800, Atlanta, GA 30303, or by calling (404) 865-5600.

The protester must deliver its appeal to the FTA Regional Administrator for the region administering its project or the FTA Associate Administrator for the program office administering its project within five working days of the date when the protester has received actual or constructive notice of the recipient's final decision. Likewise, the protester must provide its appeal to the FTA Regional Administrator for the region administering its project or the FTA Associate Administrator for the program office administering its project within five working days of the date when the protester has identified other grounds for appeal to FTA.

As provided in the Common Grant Rule for governmental recipients, FTA will limit its review of third party contract protests as follows:

a. *The recipient's procedural failures.* FTA will consider a protest if the recipient:

   i. Does not have protest procedures;

   ii. Has not complied with its protest procedures; or

   iii. Has not reviewed the protest when presented an opportunity to do so.

b. *Violations of federal law or regulations.* FTA will not consider every appeal filed by a protestor of an FTA recipient's protest decision merely because a federal law or regulation may be involved. Instead, FTA will exercise discretionary jurisdiction over those appeals involving issues important to FTA's overall public transportation program. FTA will refer violations of federal law for which it does not have primary jurisdiction to the federal authority having proper jurisdiction.

c. *Violations of state or local law or regulations.* FTA will refer violations of state or local law to the state or local authority having proper jurisdiction.

(4) *Prequalification system.* The City of Huntsville does not prequalify vendors. The city may, however at some point, prequalify bidders, offerors and products for procurement purposes. The decision of whether to require prequalification for eligibility to participate in procurement shall be made separately for every procurement and shall be approved by the procurement supervisor, in coordination with public transit.

The city may prequalify bidders, offerors and products for procurement purposes if:

a. The city ensures that all prequalification lists it uses are current;

b. The city ensures that all prequalification lists it uses include enough qualified sources to provide maximum full and open competition; and

c. The city permits potential bidders or offerors to qualify during the solicitation period (from the issuance of the solicitation to its closing date). The city is not required to hold a particular solicitation open to accommodate a potential supplier that submits products for approval before or during that solicitation nor must the city expedite or shorten prequalification evaluations of bidders, offerors, or products presented for review during the solicitation period.

(5) *System for ensuring most efficient and economic purchase*. The City of Huntsville, Alabama will ensure the most efficient and economic purchases are made by determining the following:

a. Consider whether to consolidate or break out the procurement to obtain the most economical purchase. Absent efforts to foster greater opportunities for Disadvantaged Business Enterprises (DBEs), the city shall not split a larger procurement merely to gain the advantage of micro-purchases or small purchase procedures.

b. *Options*. The city shall justify as needed all option quantities included in every solicitation and contract.

c. *Lease versus purchase*. It is usually less economical to lease equipment than to purchase it; however, there are some instances where this is not true. If a decision is made to lease equipment, a "Lease vs. Purchase" analysis should be undertaken.

d. In certain situations, the city equipment requirements may be more economically filled by rental than by purchase. The decision to rent rather than purchase must be made on an individual basis. Rental/lease should be used where it is in the best interest of the city and the purchasing policy will apply.

e. Available state and local intergovernmental agreements for procurement or use of common goods and services are utilized whenever possible, as applicable. When obtaining goods or services in this manner, all federal requirements, required clauses, and local procurement policies will be complied with.

(6) *Procurement policies and procedures.* The policies and procedures as outlined in this ordinance are carried out and overseen by the positions below to ensure effective and efficient contracts and compliance with all federal, state, and local, laws and regulations:

a. Accounting and Budget Supervisor—Department of Finance administers budget policies and records, performing fiscal analysis and providing advice pertaining thereto, planning and directing the work of accounting and other staff in the maintenance of accounting, auditing, and fiscal records, and interacting with city officials and managers concerning accounting or fiscal needs.

b. Procurement Supervisor—Department of Finance administers procurement services of the City of Huntsville's Finance Department to ensure providing efficient and reliable procurement services for a wide variety of commodities and services to city departments and outside agencies in compliance with municipal ordinances and state laws.

c. Accountant III—Department of Parking and Public Transit oversees and administers grant funds, maintaining financial and management control of federal funds, for compliance with federal, state, and local ordinances and laws, with an emphasis on FTA grant requirements.

d. Facilities Construction Projects Coordinator—Department of General Services Facilities Project Office performs project management, supervises and coordinates multiple construction projects from conceptual development through final completion.

e. Facilities Construction Projects Estimator—Department of General Services Facilities Project Office performs construction estimating, supervises and coordinates costing

for construction projects from conceptual development through final completion.

(7) *Independent cost estimate.* According to the Common Grant Rule, the City of Huntsville, Alabama will perform a cost or price analysis in connection with every procurement action above the simplified acquisition threshold to establish an independent cost estimate before receiving bids or proposals.

(8) *A&E geographic preference.* The City of Huntsville, Alabama does not have a policy allowing geographical preference for A&E providers. The City of Huntsville, Alabama may identify a geographical preference for A&E providers on occasion, depending on the type and complexity of the project involved.

(9) *Unreasonable qualification requirements.* The City of Huntsville, Alabama will not have solicitation requirements which unduly restrict competition.

(10) *Unnecessary experience and excessive bonding.* The City of Huntsville, Alabama will not require unnecessary experience or excessive bonding.

(11) *Organizational conflict of interest.* The City of Huntsville, Alabama will analyze each planned acquisition in order to identify and evaluate potential organizational conflicts of interest as early in the acquisition process as possible, and avoid, neutralize, or mitigate potential conflicts before contract award. An organizational conflict of interest means that because of other activities, relationships, or contracts, a contractor is unable or potentially unable, to render impartial assistance or advice to the grantee; a contractor's objectivity in performing the contract work is or might be otherwise impaired; or a contractor has an unfair competitive advantage.

An organizational conflict of interest occurs when any of the following circumstances arise:

a. *Lack of impartiality or impaired objectivity*. When the contractor is unable, or potentially unable, to provide impartial and objective assistance or advice to the recipient due to other activities, relationships, contracts, or circumstances.

b. *Unequal access to information*. The contractor has an unfair competitive advantage through obtaining access to nonpublic information during the performance of an earlier contract.

c. *Biased ground rules*. During the conduct of an earlier procurement, the contractor has established the ground rules for a future procurement by developing specifications, evaluation factors, or similar documents.

(12) *Arbitrary action.* Taking any arbitrary action in the procurement process, such as awarding to other than the most favorable contractor, will not be taken by the City of Huntsville, Alabama.

(13) *Brand name restrictions.* All specifications shall be drafted so as to promote overall economy for the purposes intended and encourage competition in satisfying the city's needs, and shall not be unduly restrictive. The policy as set forth in this section applies to all specifications and empowers procurement services to approve or disapprove all specifications, including, but not limited to, those prepared for the city by architects, engineers, designers and draftsmen.

a. *Brand name or equal specification.* Brand name or equal specifications may be used when procurement services determines in writing that:

i. No other design or performance specification or qualified products list is available;

ii. Time does not permit the preparation of another form of purchase description, not including a brand name specification;

iii. The nature of the product or the nature of the city's requirements makes use of a brand name or equal specification suitable for the procurement; or

iv. Use of a brand name or equal specification is in the city's best interests.

b. *Required characteristics.* Unless procurement services determines in writing that the essential characteristics of the brand names included in the specifications are commonly known in the industry or trade, brand name or equal specifications shall include a description of the particular design, functional or performance characteristics which are required.

c. *Nonrestrictive use of brand name or equal.* Where a brand name or equal specification is used in a solicitation, the solicitation shall contain explanatory language that the use of a brand name is for the purpose of describing the standard of quality, performance and characteristics desired and is not intended to limit or restrict competition.

d. *Brand name specification.* Since use of a brand name specification is restrictive of product competition, it may be used only when the director of finance or his written designee is provided with a written determination from the requesting department head that only the identified brand name item will satisfy the city's needs. The director of finance shall seek to identify sources from which the designated brand name item can be obtained and shall solicit such sources to achieve whatever degree of price competition is practicable. If only one source can supply the requirement, the procurement shall be made under the provisions of subsection (b)(38) herein.

(14) *Geographic preferences.* The City of Huntsville, Alabama will not utilize any geographic preferences with procurements using FTA funding, unless allowable A&E services.

(15) *Contract period of performance limitation*. The period of performance generally should not exceed the time necessary to accomplish the purpose of the contract. The City of Huntsville, Alabama will not enter into any contract for rolling stock or replacement parts with a period of performance exceeding five years inclusive of options. All other types of contracts (supply, service, leases of real property, revenue and construction, etc.) will be based on sound business judgment. Additional factors to be considered include competition, pricing, fairness and public perception. Once a contract has been awarded, an extension of the contract term length that amounts to an out of scope change will require a sole source justification.

(16) *Written procurement selection procedures.* The city selection procedures and the solicitation(s) identify all requirements that offerors must fulfill and identify all other factors to be used in evaluating bids or proposals. The process is outlined in forms (9) Procurement Summary Form; and, (10) Procurement Decision Matrix in subsection (c)(9) and (10) herein.

(17) *Solicitation prequalification criteria.* The City of Huntsville, Alabama does not use prequalification requirements in solicitations as it is defined by FTA. The City of Huntsville, Alabama does use technical prequalification's that are termed prequalification in the city's procurement policy language. These technical qualifications are essential in two-step procurements and qualifications-based procurements, such as construction contracts. If at some future point the city determines to prequalify for eligibility

that determination will be made separately for every procurement and follow the requirements below.

The city may prequalify bidders, offerors and products for procurement purposes if:

a. The city ensures that all prequalification lists it uses are current;

b. The city ensures that all prequalification lists it uses include enough qualified sources to provide maximum full and open competition; and

c. The city permits potential bidders or offerors to qualify during the solicitation period (from the issuance of the solicitation to its closing date). The city is not required to hold a particular solicitation open to accommodate a potential supplier that submits products for approval before or during that solicitation nor must the city expedite or shorten prequalification evaluations of bidders, offerors, or products presented for review during the solicitation period.

(18) *Award to responsible contractors.* Upon the approval of the city council, contracts shall be awarded with reasonable promptness by appropriate written notice to the lowest responsible and responsive bidder whose bid meets the requirements and criteria set forth in the invitation for bids.

(19) *Sound and complete agreement.* All city contracts for commodities or services shall include provisions necessary to define the responsibilities and rights of the parties to the contract. The director of finance or his designee, after consultation with the city attorney, may issue clauses appropriate for supply or service contracts, addressing among others the following subjects:

a. The unilateral right of the city to order in writing changes in the work within the scope of the contract;

b. The unilateral right of the city to order in writing temporary stopping of the work or delaying performance that does not alter the scope of the contract;

c. Variations occurring between estimated quantities of work in contract and actual quantities;

d. Defective pricing;

e. Liquidated damages;

f. Specified excuses for delay, nonperformance, or non-delivery;

g. Termination of the contract for default;

h. Termination of the contract in whole or in part for the convenience of the city; or

i. Indemnity of the city by the vendor.

(20) *No splitting (micro-purchase).* The City of Huntsville, Alabama shall define small purchases in three ways and states in (1) that contract requirements shall not be artificially divided so as to constitute a small purchase under this subsection:

a. *Generally*. Any contract not exceeding the amount required for competitive bidding as outlined in state competitive bid laws may be made in accordance with the small purchase procedures authorized in this subsection. Contract requirements shall not be artificially divided so as to constitute a small purchase under this subsection. Procurement services shall adopt operational procedures to facilitate small purchases. Such operational procedures shall provide for obtaining adequate and reasonable competition for the supply or service being purchased. Further, such operational procedures shall require the proper accounting for the funds expended and facilitate an audit of the small purchase made.

b. The small-dollar threshold shall be established at an amount equal to

one-half of the competitive bid threshold as provided in Code of Ala. 1975, § 41-16-50(a), as amended, but shall not exceed the prevailing micro purchase threshold set by the Federal Transit Administration. For purchases equal to this amount up to the amount requiring competitive bidding under state law, procurement shall, insofar as practicable, obtain written competitive price quotes from not fewer than three businesses. The award shall be made to the lowest responsive and responsible business submitting a written quotation. All written quotations obtained pursuant to this section shall be maintained as a public record in accordance with applicable law.

c. For purchases under the small-dollar threshold, procurement services shall adopt operational procedures for making said purchases. Such operational procedures shall provide for obtaining adequate and reasonable competition for the supply or service being purchased. Further, such operational procedures shall require the proper accounting for the funds expended and facilitate an audit of the small purchase made.

(21) *Fair and reasonable price determination [micro-purchase].* The city will obtain fair and reasonable pricing for all micro-purchases. Micro-procurement awards will be distributed equitably among qualified bidders. The determinations will be made and acknowledged with the following statement stamped on all appropriate invoices:

"The expenditures have been examined and determined that each reflects a reasonable price based on market prices offered by the vendors to the general public."

(22) *Micro-purchase Davis-Bacon.* The City of Huntsville, Alabama adheres to the Davis-Bacon Act for prevailing wage and hour restrictions that applies to construction contracts over $2,000.00.

(23) *Price quotations (small purchase).* Insofar as it is practical, as determined by the City of Huntsville, Alabama for small-dollar purchases as defined in section 2-188(20)(b) up to the amount required for competitive bids, written competitive prices will be solicited from at least three businesses. Award shall be made to the responsive and responsible business offering the lowest quoted price. Such written quotes shall be maintained.

(24) *Clear, accurate, and complete specification.* The city will have written selection procedures for procurement transactions. All solicitations shall:

a. Incorporate a clear and accurate description of the technical requirements for the material, product, or service to be procured. Such description shall not, in competitive procurements, contain features that unduly restrict competition. The descriptton may include a statement of the qualitative nature of the material, product, or service to be procured and when necessary, shall set forth those minimum essential characteristics and standards to which it must conform if it is to satisfy its intended use.

The use of brand name product specifications should be avoided if at all possible. "Brand name or equal" purchase descriptions may only be used when an adequate specification cannot otherwise be provided. When using a "brand name or equal" purchase description, the salient physical and functional characteristics of the brand name product must be clearly set forth in the specification.

b. Identify all requirements that offerors must fulfill and all other factors to be used in evaluating bids or proposals.

(25) *Adequate competition—Two or more competitors*. The City of Huntsville, Alabama will utilize the sealed bid method of procurement according to the threshold requirement, when there are two or more bidders that are willing and able to compete effectively for the business.

(26) *Firm fixed price (sealed bid).* Firm fixed price contracts arising out of sealed bids that have been publicly solicited may include an economic price adjustment provision, incentive, or both, but will remained fixed irrespective of the contractor's cost experience in performance of contract.

(27) *Selection on price (sealed bid).* The successful bidder will be selected on the basis of price and those price-related factors listed in the solicitation including, but not limited to, transportation costs, life cycle costs, and discounts expected to be taken. Contractor selection may not be determined on the basis of other factors whose costs cannot be measured at the time of award, unless as allowable by FTA under other circumstances.

(28) *Discussions unnecessary (sealed bid).* With sealed bids, discussions are not the normal practice.

(29) *Advertised/publicized (sealed bid) (RFP).* Public notice of the invitation for bids shall be given a reasonable time prior to the date set forth for the opening of the bids. Such notice shall include posting all bids on a suitable bulletin board outside the procurement services office of the city. Such notice may also include publication in a newspaper of general circulation and shall state the place, date and time of the bid opening.

(30) *Adequate number of sources solicited (sealed bid) (RFP).* In order to address that an adequate number of sources are solicited subsection (b)(29) above requires all invitation for bids be published. Public notice of the invitation for bids shall be given a reasonable time prior to the date set forth for the opening of the bids. Such notice shall include posting all bids on a suitable bulletin board outside the procurement services office of the city. Such notice may also include publication in a newspaper of general circulation and shall state the place, date and time of the bid opening. The City of Huntsville, Alabama will ensure that two or more responsible bidders are willing and able to compete effectively for the business.

(31) *Sufficient bid time (sealed bid).* The City of Huntsville's Request for Bid Procedure is a solicitation of a bid opening for 15 days to allow sufficient time to prepare bids before the date of bid opening. All departments can request a longer bid solicitation time to accommodate sufficient time to prepare bids on specifications of a more complex or extensive nature.

(32) *Bid opening (sealed bid).* Bids shall be opened publicly in the presence of one or more witnesses at the time and place designated in the invitation for bids. For the purpose of designating the time of opening, the clock located in the city council chambers, first floor of the municipal building, 308 Fountain Circle, Huntsville, Alabama, shall serve as the official clock of record. The amount of each bid, and such other relevant information together with the name of each bidder shall be recorded; the record and each bid shall be open to public inspection. Late bids will not be accepted nor considered.

(33) *Responsiveness (sealed bid).* Each proposal must be submitted in accordance with the City of Huntsville, Alabama's RFP requirements. A proposal that is not completed or submitted as required by the RFP will be rejected as "non-

responsive." Proposals may be disqualified and rejected for any of (but not limited to) the following causes:

a. Failure to use the proposal forms furnished by the city;

b. Lack of signature by an authorized representative on the proposal form;

c. Failure to properly complete the proposal form and proposer compliance;

d. Evidence of collusion among proposers;

e. Unauthorized alteration of the proposal form;

f. Failure to submit a bid bond, if required; or

g. For public improvement projects only, failure to note the general contractor license number or a note that the bid amount is less than $50,000.00.

(34) *Lowest price (sealed bid).* The City of Huntsville, Alabama will award sealed bids to the lowest responsive and responsible bidder, and will document sound business reasons if any or all bids are rejected.

(35) *Rejecting bids (sealed bid).* Bids shall be unconditionally accepted without alteration or correction, except as authorized in this division. Bids shall be evaluated based on the requirements set forth in the invitation for bids, which may include criteria to determine acceptability such as inspection, testing, quality, workmanship, delivery and suitability for a particular purpose. The invitation for bids shall set forth the evaluation criteria to be used. No criteria may be used in bid evaluation that are not set forth in the invitation for bids. Any bid determined to be nonresponsive to the requirements will be rejected.

(36) *Evaluation (RFP).* Public transit complies with the following for evaluation of RFP:

a. *Section 2-184(b)(4) of this ordinance.* Bid acceptance and bid evaluation. Bids shall be unconditionally accepted without alteration or correction, except as authorized in this division. Bids shall be evaluated based on the requirements set forth in the invitation for bids, which may include criteria to determine acceptability such as inspection, testing, quality, workmanship, delivery and suitability for a particular purpose. The invitation for bids shall set forth the evaluation criteria to be used. No criteria may be used in bid evaluation that are not set forth in the invitation for bids. Any bid determined to be nonresponsive to the requirements will be rejected.

b. *FTA C4220.1F mandates.*

i. All evaluation factors and their relative importance will be specified in the solicitation. Numerical or percentage ratings or weights need not be disclosed.

ii. A method is in place for technical proposal review and selecting awardees by utilizing an evaluation team.

(37) *Price and other factors (RFP).* The City of Huntsville, Alabama reserves the right to accept or reject any or all items covered in a bid request, or any portion(s) thereof, waive formalities, re-advertise and/or take such other steps decreed necessary and in the best interest of the City of Huntsville, Alabama. The City of Huntsville, Alabama reserves the right to make an award in whole or part to one or more proposers whenever deemed necessary and in the best interest of the City of Huntsville, Alabama.

The award will be made to the responsive and responsible proposer providing the best value to the City of Huntsville,

Alabama based on the City of Huntsville's sole discretion in making this determination. This determination may involve all or some of the following factors: price, conformity to specifications, financial ability to meet the contract, previous performance, facilities and equipment, availability of repair parts, experience, delivery promise, terms of payments, compatibility as required, other costs, and other objective and accountable factors which are reasonable.

In the event only one proposer responds to a request for the proposal, the City of Huntsville, Alabama may reject the proposal and negotiate the purchase or contract, providing the negotiated price is lower than the proposal prices.

(38) *Sole source if other award is infeasible*. A contract may be awarded without competition when the director of finance or his designee receives in writing a valid justification from the requesting department head/division manager that there is only one source for the required supply or service item or, by the nature of an item, the bid cannot be awarded by competition. Such written justification shall include specific facts which support the conclusion that there is only one source. Procurement services shall conduct a good-faith review of available sources and conduct negotiations, as appropriate, as to price, qualifications, delivery and terms. Sole-source justifications must receive the approval of the director of finance and the mayor.

(39) *Cost analysis required (sole source/single bid)*. The City of Huntsville, Alabama will perform cost analysis for all sole source and single bid actions.

(40) *Evaluation of options.*

a. *Evaluation exclusive of options.* The solicitation will state that the City of Huntsville, Alabama will evaluate offers for award purposes by including only the price for the basic requirement; i.e., options will not be included in the evaluation for award purposes.

b. *Evaluation of options.* The solicitation will state that except when it is determined not to be in the best interest of the City of Huntsville, Alabama we will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the city to exercise the option(s).

(41) *Cost or price analysis.* The City of Huntsville, Alabama will perform cost or price analysis for all procurement actions.

(42) *Written record of procurement history.* The City of Huntsville, Alabama shall maintain records, written or electronic, detailing procurement history. Records shall be retained for a minimum of three years. The records will include, but not be limited to, the following:

a. The rationale for the method of procurement;

b. Selection of contract type;

c. Reasons for contractor selection or rejection; and

d. The basis for the contract price.

(43) *Exercise of options.* The city may include options in contracts. An option is a unilateral right in a contract by which, for a specified time, the purchaser may elect to purchase additional equipment, supplies, or services called for by the contract, or may elect to extend the term of the contract. If the choice is made to include options, the following requirements apply:

a. *Evaluation of options.* Option quantities or periods contained in the contractor's bid or offer must be evaluated in order to determine contract award. When options have not been evaluated as part of the

award, the exercise of such options will be considered a sole source procurement.

b. *Exercise of options.* The authority must ensure that the exercise of an option is in accordance with the terms and conditions of the option stated in the initial contract awarded. An option may not be exercised unless it is determined that the option price is better than prices available in the market or that the option is the more advantageous offer at the time the option is exercised.

(44) *Out of scope changes*. The City of Huntsville, Alabama will consider all contract change that is not within the scope of the original contract a sole source procurement.

(45) *Advance payments.* The City of Huntsville, Alabama does not make advance payments utilizing FTA funds.

(46) *Progress payments.* The City of Huntsville, Alabama's constructions and technical services contracts provide for progress payments based on milestone completion.

(47) *Time and materials contracts.* The City of Huntsville, Alabama will comply with the Common Grant Rule for governmental recipients. Time and material contracts will only be utilized if:

a. After determining that no other contract type is suitable; and

b. The contract specifies a firm ceiling price that the contractor may not exceed except at its own risk.

(48) *Cost plus percentage of cost.* The City of Huntsville, Alabama will comply with the Common Grant Rule that expressly prohibits the use of the cost plus a percentage of cost method of contracting and the percentage of construction cost method of contracting.

(49) *Liquidated damages provisions.* The city may use liquidated damages if it reasonably expects to suffer damages through delayed contract completion, or if weight requirements are exceeded, and the extent or amount of such damages are uncertain and would be difficult or impossible to determine. Rate and measurement standards must be calculated to reasonably reflect city costs should the standards not be met, and must be specified in the solicitation and contract. The assessment for damages must be established at a specific rate per day for each day beyond the contract's delivery date or performance period. The contract file must include a record of the calculation and rational for the amount of damages established. Any liquidated damages recovered must be credited to the project account involved unless FTA permits otherwise.

(50) *Piggybacking*. The City of Huntsville, Alabama will not participate in the Assignment of Rights contracts, considered as "piggybacking," that assigns contractual rights to other recipients to purchase property or services from awarded contracts unless the following requirements are met:

a. Determine that the original contract price remains fair and reasonable,

and the original contract provisions are adequate for compliance with all federal requirements.

b. Perform a price analysis if one was not performed for the original contract.

c. Ensure the contractor's compliance with FTA's Buy America requirements and execution of all the required Buy America pre-award review and post-delivery review certifications are met.

d. Review the original contract to be sure that the quantities the assigning recipient acquired, coupled with the quantities the acquiring recipi-

ent seeks, do not exceed the amounts available under the assigning recipient's contract.

(51) *Qualifications exclude price (A&E and other services).* Price is excluded as an evaluation factor on qualifications-based procurement methods.

(52) *Serial price negotiations (A&E and other services).* The following requirements apply to this procurement method:

a. Negotiations are conducted with only the most qualified offeror; and

b. Failing agreement on price, negotiations with the next most qualified offeror and, if necessary, negotiations with successive offerors in descending order must be conducted until a contract award can be made to the offeror whose price the recipient believes is fair and reasonable.

(53) *Bid security (construction over $100,000.00).* Bid bonds, performance bonds, and labor and material bonds or other security may be requested for supply contracts or service contracts as procurement services deems advisable to protect the city's interests, and in conformance with the Code of Ala. 1975, tits. 39 and 41 (Code of Ala. 1975, §§ 39-1-1 et seq., 41-1-1 et seq.). Bid or performance bonds shall not be used as a substitute for a determination of a bidder or offeror's responsibility.

Both FTA and the Common Grant Rules generally require each bidder to provide a bid guarantee equivalent to five percent of its bid price. The "bid guarantee" must consist of a firm commitment such as a bid bond, certified check, or other negotiable instrument accompanying a bid to ensure that the bidder will honor its bid upon acceptance.

(54) *Performance security (construction over $100,000.00).* Bid bonds, performance bonds, and labor and material bonds or other security may be requested for supply contracts or service contracts as procurement services deems advisable to protect the city's interests, and in conformance with the Code of Ala. 1975, tits. 39 and 41 (Code of Ala. 1975, §§ 39-1-1 et seq., 41-1-1 et seq.). Bid or performance bonds shall not be used as a substitute for a determination of a bidder or offeror's responsibility.

Both FTA and the Common Grant Rules generally require the third party contractor to obtain a performance bond for 100 percent of the contract price. A "performance bond" is obtained to ensure completion of the obligations under the third party contract.

(55) *Payment security (construction over $100,000.00*). The City of Huntsville, Alabama will comply with the Common Grant Rules requiring the third party contractor to obtain a standard payment bond for 100 percent of the contract price. The "payment bond" will be obtained to ensure that the contractor will pay all people supplying labor and material for the third party contract as required by law. The following minimum bonding policy amounts will be utilized:

a. *Less than $1,000,000.00.* Fifty percent of the contract price if the contract price is not more than $1,000,000.00;

b. *More than $1,000,000.00 but less than $5,000,000.00.* Forty percent of the contract price if the contract price is more than $1,000,000.00 but not more than $5,000,000.00; or

c. *More than $5,000,000.00.* Two and one half million dollars if the contract price is more than $5,000,000.00.

(56) *Federal clauses.* The City of Huntsville, Alabama will ensure that all applicable FTA clauses and certifications are included in any procurement actions that may utilize FTA funds exceeding the micro-purchase limit and construction contracts over $2,000.00. To ensure that all FTA clauses and certifications are included in the FTA funded procure-

ment, the procurement division uses a solicitation preparation checklist similar to the form under subsection (c). If it is determined that FTA compliance is required, public transit will use FTA C4220.1F, as amended, "Provisions, Certifications, Reports, Forms, and Other Matrices of Third Party Provisions," subsection (c) of this section.

(57) *Single response to competitive solicitations.* The City of Huntsville, Alabama will determine and document why only one response was received by 1) Reviewing specifications for undue restrictiveness, and 2) surveying potential sources that chose not to submit a bid or proposal. A cost analysis will be completed and documented for all single response competitive solicitations.

(58) *Veteran's preference.* The City of Huntsville, Alabama will ensure that contractors working on a capital project funded using such assistance give a hiring preference, to the extent practicable, to veterans (as defined in 5 U.S.C. section 2108) who have the requisite skills and abilities to perform the construction work required under the contract. This shall not be understood, construed or enforced in any manner that would require an employer to give preference to any veteran over any equally qualified applicant who is a member of any racial or ethnic minority, female, an individual with a disability, or former employee.

(59) *SAM/EPLS (debarment/suspension).* The City of Huntsville, Alabama will comply with Debarment and Suspension Regulations and Guidance of Transportation (DOT) regulations, "Nonprocurement Suspension and Debarment," 2 CFR Part 1200 apply to each third party contract at any tier of $25,000.00 or more, to each third party contract at any tier for a federally required audit (irrespective of the contract amount), and to each third party contract at any tier that must be approved by an FTA official irrespective of the contract amount. See 2 CFR Part 1200. The City of Huntsville, Alabama will apply DOT's debarment and suspension requirements to itself and each third party contractor at every tier to the extent required by DOT's regulations that incorporate the requirements of Office of Management and Budget (OMB), "Guidelines to Agencies on Government-wide Debarment and Suspension (Nonprocurement)," 2 CFR Part 180.

Debarment and suspension certification will be collected from the prospective third party contractor, a clause in the third party contract requiring disclosure will be included and the Excluded Parties List System (EPLS) will be checked at www.sam.gov.

(60) *Disputes/breach.* The City of Huntsville, Alabama will comply with the Common Grant Rules for evaluating and resolving third party contract disputes.

a. The City of Huntsville, Alabama will evaluate and resolve third party contract claims and litigation resulting from a contractor's violation, default, or breach of its third party contracts. The City of Huntsville, Alabama will also resolve any claims and litigation the contractor may present against it. The following information in connection with third party contract disputes in which it is involved will be provided to FTA:

i. A list of disputes involving third party contracts and potential third party contracts that:

- Have a value exceeding $100,000.00,
- Involve a controversial matter, irrespective of amount, or
- Involve a highly publicized matter, irrespective of amount.

ii. The following information about each dispute:

- A brief description of the dispute,

- The basis of disagreement, and
- If open, how far the dispute has proceeded, or
- If resolved, the agreement or decision reached, and
- Whether an appeal has been taken or is likely to be taken.

iii. The City of Huntsville, Alabama will report as outlined below whenever disputes happen:

- In its next quarterly Milestone Progress Report, and
- At its next Project Management Oversight review, if any.

iv. The City of Huntsville, Alabama will keep its FTA project manager informed about disputes with which it is involved and any unusual activity.

b. The City of Huntsville, Alabama will maintain adequate documentation in its project files of the facts, events, negotiations, applicable laws, and a legal evaluation of the likelihood of success in any potential litigation involving the dispute as may be needed to justify FTA's concurrence in any compromise or settlement, should FTA concurrence become necessary.

c. An audit may be used to demonstrate that any settlement costs, if incurred, are necessary, reasonable, adequately documented, and appropriate for FTA support. The audit will be conducted in accordance with "Generally Accepted Auditing Standards" as defined by the American Institute of Certified Public Accountants.

d. If the City of Huntsville, Alabama intends to request FTA's permission to use federal assistance to support payments to a third party contractor to settle a dispute, or intends to request increased federal assistance for that purpose, the information outlined in 1.a—c will be followed and provided.

e. The City of Huntsville, Alabama will take reasonable measures to pursue its rights and remedies available under law, including settlement, particularly if failure to do so would jeopardize the federal interest in the project or cause the recipient to seek additional federal assistance.

(61) *Terminations*. Sections 2-185(7), (8), and (9) specifically identify termination clauses appropriate for supply or services contracts.

a. Section 2-185(7) termination of the contract for default;

b. Section 2-185(8) termination of the contract in whole or in part for the convenience of the city; or

c. Section 2-185(9) indemnity of the city by the vendor.

In accordance with FTA C4220.1F termination for cause and termination for convenience provision must be included in third party contracts exceeding $10,000.00.

(62) *DBE*. The City of Huntsville, Alabama will comply with the Common Grant Rules' affirmative action and FTA's Disadvantaged Business Enterprise requirements, the DBE PROGRAM—49 CFR PART 26, and the Public Transit Division of the City of Huntsville, Alabama will post on the City of Huntsville Alabama's website the Disadvantaged Business Enterprise Program as approved by the FTA.

(63) *Buy America Pre-Award Review (Steel or manufactured products)*. The City of Huntsville, Alabama will comply with Buy America requirements as set forth

in 49 U.S.C. 5323(j) and 49 C.F.R. 661.6, by including in all construction contracts and acquisition of goods and rolling stock valued at more than $150,000.00, the required Buy America Certification clauses to ensure contractor compliance. The certification clauses require the contractor to ensure that sub-contractors also comply with the Buy America requirements.

(64) *Buy America pre-award/post delivery audits—Rolling stock >$150,000.00.* The City of Huntsville, Alabama will comply with the Buy America Pre-Award/Post Delivery Audits for Rolling Stock as set forth un 49 U.S.C. 5323 and 49 C.F.R. Part 663 by including the required Buy America language that the Contractor agrees to comply with 49 U.S.C. § 5323(l) and FTA's implementing regulation at 49 C.F.R. Part 663 and must submit certifications as listed in the language and certify they comply. The city will conduct pre-award audit and certify that vehicle meets specifications and the FMVSS compliance requirements. Upon delivery, post delivery of the same MUST be completed and certify that vehicle meets requirements. Documentation must be kept on file. The city utilized a standard matrix to confirm audit and certification elements have been met.

(65) *Transit vehicle manufacturer (TVM) certification—Rolling stock*. The City of Huntsville, Alabama will comply with TVM Certification requirements as set forth in 49 CFR 26.49 for rolling stock procurements funded by FTA by obtaining TVM compliance certifications prior to any award. The city will require, as a condition of being authorized to bid on transit vehicle procurements funded by FTA, each TVM certify compliance of the DBE program for transit vehicle manufacturers as referenced in 49 CRF Part 26. The city will confirm and document confirmation, prior to award, that the manufacturer(s) are certified by utilizing the FTA TVM certified list at https://www.transit.dot.gov/regulations-and-guidance/civil-rights-ada/eligible-transit-vehiclemanufacturers. The city will submit transit vehicle award reporting form within 30 days of award at https://www.surveymonkey.com/r/vehicleawardreportsurvey.

(66) *Bus testing.* The City of Huntsville, Alabama will comply with 49 CFR Part 665 by certifying the bus models submitted to Altoona following the effective date, October 31, 2016, received a passing score before FTA funds can be spent on that vehicle. The city will be in possession a copy of the Altoona Bus Testing Report before final acceptance of the first vehicle. Bus testing is not required for unmodified mass-produced vans, including vans with raised roof or wheelchair lift or ramps, offered in the four-year/100,000-mile service life category.

(67) *Lobbying certification*. The City of Huntsville, Alabama will comply with Part 200 Appendix II (I) Byrd Anti-Lobbying Amendment (31 U.S.C. 1352) by including lobbying certification in agreements, contracts, and subcontracts exceeding $100,000.00. The city will obtain signed certifications from all potential contractors with the contractors' bids or responses. The city will require all prime contractors to obtain certifications from bidders prior to awards for subcontracts in excess of $100,000.00. This requirement will flow down to all subcontracts at every tier that exceeds $100,000.00.

(68) *Brooks Act/qualifications-based procurements.* The City of Huntsville, Alabama will follow qualifications exclude price (A&E and other services) as outlined under subsection (51) herein. Qualifications-based proposal procedures are required for projects related to or leading to a construction project. These procedures will be when contracting for architectural and engineering services, program management, construction management, feasibility studies, preliminary engineer-

ing, design, architectural, engineering, surveying, mapping, and related services. The Brooks Act Procedures will be used when contracting for A&E services as defined in 40 U.S.C. sections 1101—1104 and 49 U.S.C. section 5325(b)(1). The following requirements will apply:

a. An offeror's qualifications must be evaluated.

b. Price is excluded as an evaluation factor.

c. Design-build services will be procured through means of qualifications-based competitive proposal procedures based on the Brooks Act. The qualification-based competitive proposal procedures of the Brooks Act will be used when the preponderance of the work to be performed is considered to be for architectural and engineering, program management, construction management, feasibility studies, preliminary engineering, design, architectural, engineering, surveying, mapping, or related A&E services. It will not be used when the preponderance of the work to be performed are services other than those listed in the previous sentence, unless required by state law.

Qualifications-based procurement procedures will not be used to acquire other types of services if those services are not directly in support of, directly connected to, directly related to, or do not lead to construction, alteration, or repair of real property. Even if a contractor has performed services listed herein in support of a construction, alteration, or repair project involving real property, selection of that contractor to perform similar services not relating to construction may not be made through the use of qualifications-based procurement procedures.

(69) *Design-bid-build.* All design-bid-build procurement methods will have separate contracts for design services and for construction. All design services will use qualifications-based procurement procedures, in compliance with applicable federal, state and local law and regulations.

(70) *Design-build.* The City of Huntsville, Alabama will procure design-build services through means of qualifications-based competitive proposal procedures based on the Brooks Act. The Brooks Act qualification-based competitive proposal procedures for design-build will be used when the preponderance of the work to be performed is considered to be for architectural and engineering, program management, construction management, feasibility studies, preliminary engineering, design, architectural, engineering, surveying, mapping, or related A&E services. When the preponderance of the work to be performed are services other than those listed in the previous sentence, the qualifications-based competitive proposal procedures will not be used, unless required by state law.

(71) *Tag-ons.* The City of Huntsville, Alabama, or its contractors, will not expand the scope of original contracts (property or services) that constitutes a major deviation, or cardinal change, to the contract.

(72) *Federal cost principles.* Federal cost principals, according to FAR Part 31, will be utilized to determine allowable costs to be incurred on third party cost-reimbursement contracts financed with federal funds.

(73) *Revenue contracts.* The City of Huntsville, Alabama's goal is to maximize all non-farebox revenues through contractual or other appropriate arrangements for assets without interfering with transit use. The revenue files will document economic analysis demonstrating that revenue contracts allowing use of federally funded assets will not interfere with transit

operations and use. The type and extent of revenue contracts will be reviewed and determined on a case by case basis and in accordance with federal regulations. Determinations will be derived from the following:

a. *Limited contract opportunities.* If there are several potential competitors for a limited opportunity (such as advertising space on the side of a bus), the City of Huntsville, Alabama will use a competitive process to permit interested parties an equal chance to obtain that limited opportunity.

b. *Open contract opportunities.* If one party seeks access to a public transportation asset (such as a utility that might seek cable access in a subway system), and the City of Huntsville, Alabama is willing and able to provide contracts or licenses to other parties similarly situated (since there is room for a substantial number of such cables without interfering with transit operations), then competition would not be necessary because the opportunity to obtain contracts or licenses is open to all similar parties.

c. The City of Huntsville, Alabama will work with FTA to determine the appropriate procedures for joint development projects.

(74) *Signature authority.*

a. The director of finance or his written designee shall serve as the principal public purchasing official for the city and shall be responsible for the procurement of supplies and services in accordance with this division.

b. In accordance with this division, the director of finance or his written designee shall oversee the functions of procurement services for the purposes of soliciting and encouraging competition while complying with all applicable state and local laws to obtain quality commodities and services at the lowest possible cost.

c. Except in cases of emergency, as described in section 2-184(g), neither the director of finance nor any written designee nor any other officer or employee of the city shall make purchases in the name of the city on the credit of the city, or create any debt or liability against the city, unless the expenditure has been previously authorized by the city council, or unless the funds for such expenditure have been appropriated by the city council, either specifically or in the annual budget of the city. In all cases where the amount involved is more than required for competitive bidding, procurement services shall proceed to issue invitations for bids and to open the bids at the time and place stated in the invitation for bids, and shall report the results of such bids to the city council, who shall accept or reject such bids and shall in all respects act as the awarding authority for all such purchases.

d. The director of finance may delegate authority in writing to purchase certain commodities or services to other city officials, if such delegation is deemed necessary for the effective procurement of those items. Any such procurements made pursuant to any such delegated authority remain subject to all requirements for authorization and approval as set forth in this division. The city engineer is authorized to procure construction services for public improvement projects as defined by Code of Ala. 1975, tit. 39 (Code of Ala. 1975, § 39-1-1 et seq.) and in accordance with the provisions of this division.

(75) *Oversight of sub-recipients.* The City of Huntsville, Alabama follows and internal program management and oversight plan that addresses the following:

a. Review contracts and sub-recipient agreements in accordance with records sampling procedures to ensure they contain all FTA third-party procurement requirements.

b. The Accountant III, or its designee, performs periodic site visits, depending on the complexity of the contract, project, or agreement.

c. Randomly selects and reviews operational documents and procurement documents, i.e., contracts and agreements, performance reports, check lists, etc.

d. Documents general observations.

e. Notes any deficiencies.

(76) *State/local government purchasing schedules.* The city may acquire products and services from state contracts that have been established by the State of Alabama for the purpose of consolidating volume purchases for products and services. The city may acquire products and services directly from state contract vendors in lieu of competitively procuring such products and services itself through the methods of procurement small purchases and large purchases. When obtaining products and services from state contracts, public transit is responsible for ensuring compliance with all federal requirements and inclusion of all required clauses and certifications. It will be determined that state contracts were awarded with full and open competition and were not subject to geographical preferences. Where Buy America certifications are required, they will be obtained prior to entering into a purchase order.

(c) *Forms, templates, matrices and checklists.* The City of Huntsville, Alabama will use forms, templates, matrices and checklists similar to the following to assist with FTA assisted procurements:

1) **Procurement Decision Matrix**

Method of Procurement

Micro-Purchase	Small Purchase
_____Amount < $2,000 (City Threshold) _____Amount < $10,000 (FTA Threshold) _____Multiple Sources	_____Amount < $15,000 (City Threshold) _____Amount < $150,000 (FTA Threshold) _____Complete & Adequate Specifics or Description _____Two or More Quotes Available
	FTA Simplified Acquisition
	_____Amount < $250,000 (FTA Threshold) _____Complete & Adequate Specifics or Description _____Two or More Quotes Available
Sealed Bid (IFB's)	**Type of Contract**
_____Amount > $15,000 (City Threshold) _____Complete & Adequate Specifics or Description _____Two or More Responsible Bidders Willing to Compete _____Selection can be made on basis of price alone _____Firm Fixed Price Contract _____No discussion with bidders required after receipt of bids	_____Fixed Price _____Firm Fixed Price Unit Prices _____Cost plus Fixed Fee _____Time & Materials (Justified) _____Blanket Purchase Order _____Indefinite Delivery / Indefinite Quantity (IDIQ)
Competitive Proposals (RFP's)	**Sole Source / Exemption from Competition**
_____Complete Specifications Not Feasable _____Bidder Input Needed _____Two or More Responsible bidders willing to Compete _____Discussion needed with bidders after Proposals _____Fixed Price can be set after discussion OR	_____Approved by FTA _____OEM, Custom Item OR _____Only One Source OR Competition Inadequate after Solicitation OR _____Emergency / Public Exigency

2) **FTA Certification and Clause Determination on Universal City Contracts**

FTA CLAUSE INCLUSION DETERMINATION ON CITYWIDE PROCUREMENT CONTRACTS

Date: _____

Commodity or Service Requested: _____

Determination:
Will Public Transit utilize this commodity or service?

YES: ☐ **NO:** ☐

If "YES", have the FTA Required Certifications and Clauses been submitted to Procurement for inclusion in Request for Bid/Proposal?

Yes, FTA Certifications and Clauses have been submitted to the Procurement Division:

_____ _____
Submitted By, Signature Date

3) **Procurement File Checklist**

PROCUREMENT FILE CHECKLIST

CHECK or N/A	DESCRIPTION	DATE	INITIALS
	Requisitions		
	ICE (Independent Cost Estimate)		
	Federal Clauses		
	Advertised *(if applicable)*		
	Bid Abstract giving a summary of responsive bidders to the solicitation		
	Cost/Price Analysis		
Bonds:			
	Bid		
	Performance		
	Payment		
	Responsibility Determination		

	Fair & Reasonable Determination		
	SAM / Excluded Parties		
	Buy America _____ Pre-Award _____ Post Delivery	_____	_____

4) **Independent Cost Estimate**

INDEPENDENT COST ESTIMATE FORM

Contract Type:_____ Date of Estimate:_____

Description of Goods/Services:_____

Method of Obtaining the Estimate:

I have obtained the estimate from one of the following sources:

Check one or more:

- ❑ Published Price List / Past Pricing (Date:_____)
- ❑ Engineering or Technical Estimate
- ❑ Independent Third-Party Estimate
- ❑ Other (specify:_____)

Cost Estimate Details:

Through the method stated above it has been determined that the total cost of the goods/services is expected to be: $_____. Details are shown below:

A: Cost of Standard Items

Product	Cost ($/ea.)		Notes/Data Source
	Delivered	No Freight	

B: Cost of Services, Repairs, or Non-Standard Items

Item/Task:							
Materials	**Other Direct Costs**	**Labor (rate, hours)**	**Labor Class**	**Allocated Overhead**	**SG&A**	**Profit**	**Total**

(Preparer Name) (Date)

For complex items or tasks, attach detailed spreadsheet(s) explaining rationale.

5) Responsibility Determination Form

Bid/RFP No:	
Supplier:	
Date:	
For each of the areas described below, check that the appropriate research has been accomplished and provide a short description of the research and the results.	

	Acceptable	Comment/Documentation
1. Appropriate financial, equipment, facility, and personnel	☐ Yes ☐ No	
2. Ability to meet the delivery schedule	☐ Yes ☐ No	
3. Satisfactory period of performance	☐ Yes ☐ No	
4. Satisfactory record of integrity, not on declined or suspended listings	☐ Yes ☐ No	
5. Receipt of all necessary data from supplier	☐ Yes ☐ No	

6) Fair and Reasonable Price Determination Form

FAIR AND REASONABLE PRICE DETERMINATION FORM

I hereby determine the price to be fair and reasonable based on at least one of the following:
Check one or more:

☐ Found reasonable on recent purchasing.

☐ Obtained from current price list.

☐ Obtained from current catalog.

☐ Commercial market sales price from advertisements.

☐ Personal knowledge of item procured.

☐ Similar in related industry.

☐ Regulated rate (utility).

☐ Other (explain: _____)

Comments:

_____

_____

_____

☐ Copy of purchase order, quotes, catalog page, price list, etc. is attached.

_____ _____

(Purchasing Agent) (Date)

7) Statement of Work Template

Statement of Work Title:
1.0 Project Background:
• Describe the need for the goods or services, the current environment, and the Transit Agency's key objective(s) as it relates to this requirement. Provide a brief description/summary of the goods or services sought. • Short statement of the problem to be resolved • Expected project duration • Transit agency organizational units and / or key individuals involved in managing the project • Alternative solutions or implementation strategies evaluated
a.) Transit agency requires these products and / or services due to: b.) Transit agency is attempting to complete a project and requires supplier / contractor assistance in the : c.) The completion of this work will help the Transit agency:
2.1 Results
Indicate the key end results that the project will achieve when successfully executed. Measurable performance indicators for anticipated benefits may also be listed here.
2.2 Anticipated Benefits
Describe what the organization will gain through completion of this project.
2.3 Business Processes Impacted
Review major changes in the way work will be conducted once the project is complete (if any).

2.4 Customers / End Users Impacted

Identify the specific individuals or groups whose work will be most affected during and after the project's execution.

3.0 Applicable Documents

List legal, regulatory, policy, security, and similar relevant documents. Include publication number, title, version, date, and where the document can be obtained. If only certain portions of documents apply, state this. Indicate the definition of terms, if needed.

List any publications, manuals, and regulations that the supplier / contractor must abide by:

a)

b)

c)

Definitions and Acronyms:

4.0 Summary of Requirements

These are the key tasks expected of the supplier / contractor according to the Schedule and the Statement of Work.

List the key technical and functional requirements for the project. Highlight up to 20 requirements that you consider to be essential to the ultimate success of the project. Include the expected outputs / outcomes and performance standards.

Write tasks to be performed in a logical and sequential arrangement of work to the extent possible. Describe the tasks in terms of outcomes expected, such as response time, cleanliness level, equipment up-time and functionality. Use "work" words, such as:

1) Review…
2) Analyze…
3) Repair…
4) Install…
5) Construct…

All tasks should have quantifiable or observable results.

5.0 Schedule and Deliverables.

List all outputs / outcomes and submittals with specific dates or time frames. Include type, quantity and delivery point(s). Include the acceptance criteria for each.

Milestone or Major Project Deliverable	Planned Completion Date

6.0 Quality Assurance Plan

Explain what the Transit agency's quality expectations are, how (and how often) deliverables or services will be monitored and evaluated, and the process to follow when the outputs / outcomes are below performance standards.

The following levels of quality are to be judged acceptable under this contract:

a) All milestones or services will be achieved and all reports will be submitted on time in accordance with Section 5.0 of

	this SOW.
	1) All milestones, services, products or reports will meet the outcomes noted in Section 4.0 of this document.
b)	Supplier / Contractor work will be monitored by Transit agency project and Contract Management Staff.
c)	Specific quality requirements for this contract are as follows:
	1) On time delivery =
	2) Acceptable quality =
	3) Responsiveness =
	4) Service Level =

8) Sole Source Justification Form

CITY OF HUNTSVILLE
JUSTIFICATION FOR EXEMPTION FROM COMPETITIVE BIDDING
Rev 12/03/2015

DATE:
FROM:
TO: Procurement Services

Title 41 Section 16 of the Code of Alabama 1975 as amended requires a competitive bid for contracts whose value exceeds $15,000.00. Under exceptional circumstances, such contracts may be awarded without bidding. Because these circumstances are quite specific, we have a duty to justify, document, and memorialize such cases to firmly establish that a claim for exemption is in accordance with the law:

- **VENDOR:**
- **PRODUCT/SERVICE:**
- **ESTIMATED EXPENDITURE: $**

This procurement is exempt from competitive bid because it is a contract for:

1. **[ ] Sole Source:**
2. Services or a product having only one vendor or supplier - §41-16-51(a)(13) **[ ] WPC Provision:**

Purchase of equipment, supplies, or materials needed, used, and consumed in the normal and routine operation of any waterworks system or sanitary sewer system owned by a municipality and no part of the operating expenses have been paid from revenues derived from taxes or from appropriations of the state, county, or municipality - §41-16-51(b)(7)

3. **[ ] Professional Services:**

Professional services involving an attorney, physician, architect, teacher, superintendent of construction, artist, appraiser, engineer, consultant, certified public accountant, public accountant, or other individual possessing a high degree of professional skill where the personality of the individual plays a decisive part - §41-16-51(a)(3)

4. **[ ] Impossible to Compete:**

Purchase of personal property which by its very nature is impossible to award by competitive bidding - §41-16-51(a)(13)

5. **[ ] Security or Safety:**

Services or purchase of product related to, or having an impact upon, security plans, procedures, assessments, measures, or systems, or the security or safety of persons, structures, facilities, or infrastructures - §41-16-51(a)(15)

6. **[ ] Cooperative Purchasing Program (not valid for FTA Grantee):**

Services or purchase of a product offered through a national or regional governmental cooperative purchasing program approved by the Alabama Department of Examiners of Public Accounts §41-16-51(a) (16)

7. **[ ] Other:** exempt item not specifically listed above:

8. [ ] **FTA Sole Source:** See next page

Attach requesting department justification and supporting vendor statements to this page.

Requesting Department Head	Department
Procurement Supervisor	Finance Director
Legal Department	Mayor or Administrator

FTA Applicable Sole Source Justification
Procurement by noncompetitive proposals may be used only when the award of a contract is infeasible under small purchase procedures, sealed bids, or competitive proposals and at least one of the following circumstances applies:

Check one:

- ☐ The item is available only from a single source (sole source justification is attached).
- ☐ The public exigency or emergency for the requirement will not permit a delay resulting from competitive solicitation (documented emergency condition is attached).
- ☐ FTA authorizes noncompetitive negotiations (letter of authorization is attached).
- ☐ After solicitation of a number of sources, competition is determined inadequate (record of source contacts is attached).
- ☐ The item is an associated capital maintenance item as defined in 49 U.S.C. §5307(a)(1) that is procured directly from the original manufacturer or supplier of the time to be replaced (price certification attached).

Comments:

_____

_____

_____

☐ Independent Estimate and Cost Analysis are attached.

_____	_____
Purchasing Agent	Senior Manager
_____	_____
Date	Date

(9) Forms, templates, matrices and checklists is hereby inserted to read as follows:

a. **Cost Analysis Form**

COST ANALYSIS FORM

	PAGE OF PGS
COST ANALYSIS SUMMARY (For New Contracts Including Letter Contracts)	
SOLICITATION #	SUPPLIES AND/OR SERVICES TO BE FURNISHED
PREPARER'S NAME, DEPARTMENT, TITLE, PHONE	
DIVISION(S) AND LOCATION(S) WHERE WORK IS TO BE PERFORMED	APPROVAL SIGNATURE

DETAIL DESCRIPTION OF COST ELEMENTS				
1. DIRECT MATERIAL	**Vendor A Proposal**	**Vendor B Proposal**	**Independent Estimate**	**Analysis**
A. PURCHASED PARTS				
B. SUBCONTRACTED ITEMS				
C. OTHER - (1) RAW MATERIAL				
(2) STANDARD COMMERCIAL ITEMS				
TOTAL DIRECT MATERIAL				
2. MATERIAL OVERHEAD *(RATE % x $ BASE *)*				

3. DIRECT LABOR	**ESTIMATED HOURS**	**RATE/ HOUR**	**Vendor A ($)**	**Vendor B ($)**	**Independent Estimate**	**Variance**

TOTAL DIRECT LABOR						

4. LABOR OVERHEAD			**Vendor A ($)**	**Vendor B ($)**	**Independent Estimate**	**Variance**
OH Rate						
X BASE (labor total above)						
TOTAL LABOR OVERHEAD						

5. OTHER DIRECT COSTS	**Vendor A ($)**	**Vendor B ($)**	**Independent Estimate**	**Variance**
A. SPECIAL TOOLING/EQUIPMENT				
TOTAL SPECIAL TOOLING/EQUIPMENT				
B. TRAVEL				
(1) TRANSPORTATION				
(2) PER DIEM OR SUBSISTENCE				
TOTAL TRAVEL				

DETAIL DESCRIPTION OF COST ELEMENTS (continued)	**Vendor A ($)**	**Vendor B ($)**	**Independent Estimate**	**Variance**
C. INDIVIDUAL CONSULTANT SERVICES				
TOTAL INDIVIDUAL CONSULTANT SERVICES				
D. OTHER				
TOTAL OTHER				
E. SUBTOTAL DIRECT COST AND OVERHEAD				

6. GENERAL AND ADMINISTRATIVE (G&A) RATE %				
X $ BASE (Use 5.E above)				
7. ROYALTIES (if any)				
8. *SUBTOTAL ESTIMATED COST*				
9. CONTRACT FACILITIES CAPITAL AND COST OF MONEY				
10. *SUBTOTAL ESTIMATED COST*				
11. FEE OR PROFIT				
12.T*OTAL ESTIMATED COST AND FEE OR PROFIT*				
13. Discounts				
14. Option Costs (specify)				
15. ADJUSTED COST				

ANALYSIS GUIDELINES

1. ***DIRECT MATERIAL***
   - A. Analyze Purchased Parts: Provide a consolidated price analysis of material quantities included in the various tasks, orders, or contract line items being proposed and the basis for pricing (vendor quotes, invoice prices, etc.).
   - B. Subcontracted Items: Analyze the total cost of subcontract effort and supporting written quotations from the prospective subcontractors
   - C. Other:
     - (1) Raw Material: Review any materials in a form or state that requires further processing. Analyze priced quantities of items required for the proposal. Consider alternatives and total cost impact.
     - (2) Standard Commercial Items: Analyze proposed items that the offeror will provide, in whole or in part, and review the basis for pricing. Consider whether these could be provided at lower cost from another source.
2. ***MATERIAL OVERHEAD***
   Verify that this cost is not computed as part of labor overhead (item 4) or General and Administrative (G&A) (Item 6).

3. ***DIRECT LABOR***
   Analyze the hourly rate and the total hours for each individual (if known) and discipline of direct labor proposed. Determine whether actual rates or escalated rates are used. If escalation is included, analyze the degree (percent) and rationale used. Compare percentage of total that labor represents for each bid.

4. ***LABOR OVERHEAD***
   Analyze comparative rates and ensure these costs are not computed as part of G&A. Determine if Government Audited rates are available,

5. ***OTHER DIRECT COSTS***
   - A. Special Tooling/Equipment. Analyze price and necessity of specific equipment and unit prices.
   - B. Travel. Analyze each trip proposed and the persons (or disciplines) designated to make each trip. Compare and check costs.
   - C. Individual Consultant Services. Analyze the proposed contemplated consulting. Compare to independent estimate of the amount of services estimated to be required and match the consultants' quoted daily or hourly rate to known benchmarks.
   - D. Other Costs. Review all other direct charge costs not otherwise included in the categories described above (e.g., services of specialized trades, computer services, preservation, packaging and packing, leasing of equipment and provide bases for pricing. Scan for duplication or omissions.

6. *GENERAL AND ADMINISTRATIVE EXPENSE*
See notes on labor overhead above and check whether the base has been approved by a Government audit agency for use in proposals.

7. *ROYALTIES*
If more than $250, analyze the following information for each separate royalty or license fee; name and address of licenser; date of license agreement; patent numbers, patent application serial numbers, or other basis on which the royalty is payable; brief description (including any part of model numbers or each contract item or component on which the royalty is payable); percentage or dollar rate of royalty per unit; unit price of contract item; number of units; and total dollar amount of royalties,

8. *SUBTOTAL ESTIMATED COST*
Compare the total of all direct and indirect costs excluding Cost of Money and Fee or Profit. Note reasons for differences.

9. *CONTRACT FACILITIES CAPITAL AND COST OF MONEY*
Analyze the offeror's supporting calculations and compare to known standards.

10. *SUBTOTAL ESTIMATED COST*
This is the total of all proposed costs excluding Fee or Profit. Determine the competitive range. Question outliers.

11. *FEE OR PROFIT*
Review the total of all proposed Fees or Profit. Remember that the FTA prohibits cost plus percentage of cost contracting.

12. *TOTAL ESTIMATED COST AND FEE OR PROFIT*
Analyze the range of total estimated costs including Fee or Profit, and explain variance to independent estimate. Identify areas for negotiation or areas to be challenged. Explain your conclusions regarding fair and reasonable pricing.

13. *DISCOUNTS*
Review basis for Discounts and range between offers.

ATTACH NARRATIVE COST ANALYSIS MEMO ADDRESSING ITEMS AS INSTRUCTED ABOVE.

b. **Price Analysis Form**

PRICE ANALYSIS FORM

The evidence compiled by a price analysis includes:

- Developing and examining data from multiple sources whenever possible that prove or strongly suggest the proposed price is fair.
- Determining when multiple data consistently indicate that ta given price represents a good value for the money.
- Documenting data sufficiently to convince a third party that the analyst's conclusions are valid.

CHECK	DETERMINATION
	Comparison with competing suppliers' prices or catalog pricing (online or hard copy) for the same item. *(Complete comparison matrix and attach supporting quotes or catalog pages.)*
	Comparison of proposed pricing with in-house estimate for the same item. *(Attach signed in-house estimate and explain factors influencing any differences found. Complete summary matrix.)*
	Comparison of proposed pricing with historical pricing from previous purchases of the same item, coupled with market data such as Producer Price Index (PPI) or Inflation Rate over the corresponding time period. *(Attach data*

	and historical price record.)
	Analysis of price components against current published standards, such as labor rates, dollars per pound, etc. to justify the price reasonableness of the whole. *(Attach analysis to support conclusions drawn.)*

SUMMARY MATRIX:

Item	Proposed Pricing	Average Market Price	Competitor A	Competitor B	In-House Estimate	Other

Date: _____ Prepared By: _____

c. **Procurement Summary Form**

PROCUREMENT MEMORANDUM

Date: _____ Completed by: _____

PO / Contract No. _____

Source of Funding: _____

Method of Procurement
Micro Purchase:_____ Competitive RFP:_____ Competitive Bid:_____
Small Purchase:_____ A&E Services:_____ Sole Source:_____

Justification if Non-Competitive (Attached Exemption of Competitive Pricing Form):_____
Reason for the Procurement:_____
Contract Type:_____

Rationale for contract type:_____

Reason for Contractor selection or rejection: Lowest responsive, responsible bidder:_____
Evaluation results were:_____

Basis for Contract Price Available:
Accepted contractor's proposed pricing:_____
Negotiated Price (attached memorandum)_____
Other:_____

Cost / Price Analysis:
The price offered by the supplier was within ____% of the independent estimate, and variance between the offerors constituted a range of ____. The competitive range was determined to be from $_____
Pricing discrepancies between the offers was attributed to _____
Other sources/data used to affirm price reasonableness were_____

Summary of Responsibility and Responsiveness Checks_____
_____
Award Date of contract award:_____

Board Approval (Attach Meeting Minutes):_____

Change Orders
Identify each and summarize reason for change, dates, cost analysis, time impact, and modification number (Attached or Described Below).

d. **Change Order Review Checklist**

CHANGE ORDER CHECKLIST

Date	
Contract Number	
Contractor	
Contract Title	
Reviewer	
New Contract Total	
Change Order Number	
Dollar Value Increase	
Length of Time Extension Granted	
New Performance Period End Date	

- ☐ Independent Cost Estimate for Change Amount
- ☐ Project Manager Approval
- ☐ Scoping Meeting Held (Date:_____)
- ☐ Authorized Work is Within Scope
- ☐ Contract Proposal includes Impact Costs, Price
- ☐ Cost Analysis Conducted (attach)
- ☐ Rationale provided if price is greater than 10% of the Independent Cost Estimate (attach)
- ☐ Negotiation Memorandum
- ☐ Written Record of Change Documented
- ☐ Signed Modification in File
- ☐ Evidence of City Council Approval Prior to Initiation of Changed Work (if required)
- ☐ Notice to Proceed on File
- ☐ No Evidence of Arbitrary Action

Comments:

_____
_____
_____

_____ _____

(Purchasing Agent) (Date)

e. **Piggybacking Checklist**

Definition: Piggybacking is the post-award use of a contractual document/process that allows someone who was not contemplated in the original procurement to purchase the same supplies/equipment through that original document/process. ("FTA Dear Colleague" letter, October 1, 1998).

WORKSHEET	YES	NO
1. Have you obtained a copy of the contract and the solicitation document, including the specifications and any Buy America Pre-award or Post- Delivery audits?		
2. Does the solicitation and contract contain an express "assignability" clause that provides for the assignment of all or part of the specified deliverables?		
3. Did the Contractor submit the "certifications' required by Federal regulations? See BPPM Section 4.3.3.2.		
4. Does the contract contain the clauses required by Federal regulations? See BPPM Appendix A1.		
5. Were the piggybacking quantities included in the original solicitation; i.e., were they in the original bid and were they evaluated as part of the contract award decision?		
6. If this is an indefinite quantity contract, did the original solicitation and resultant contract contain both a minimum and maximum quantity, and did these represent the reasonably foreseeable needs of the parties to the contract?		
7. If this piggybacking action represents the exercise of an option in the contract, is the option provision still valid or has it expired?		
8. Does your State law allow for the procedures used by the original contracting agency: e.g., negotiations vs. sealed bids?		
9. Was a cost or price analysis performed by the original contracting agency documenting the reasonableness of the price? Obtain a copy for your files. Have you performed a market analysis of the prices to be paid and have you determined the price to be fair and reasonable and in the best interests of the Agency?		
10. If the contract is for rolling stock or replacement parts, does the contract term comply with the five-year term limit established by FTA? See FTA Circular 4220.1F, Chapter IV, 2 (14) (i).		
11. Was there a proper evaluation of the bids or proposals? Include a copy of the analysis in your files.		
12. If you will require changes to the vehicles (deliverables), are they "within the scope" of the contract or are they "cardinal changes"? See BPPM Section 9.2.1.		

Note: This worksheet is based upon the policies and guidance expressed in (a) the FTA Administrator's "Dear Colleague" letter of October 1, 1998, (b) the *Best Practices Procurement Manual*, Section 6.3.3—*Joint Procurements of Rolling Stock and "Piggybacking,"*

f. **FTA Contract Clause Matrix**

FTA CONTRACT CLAUSE MATRIX

(Excluding micro-purchases, except Davis-Bacon requirements apply to construction contracts exceeding $2,000)

***Note: On June 20, 2018, OMB issued Memorandum M-18-18 increasing the Micro-Purchase threshold to $10,000 and the Simplified Acquisition Threshold (SAT) from >$150,000 to >$250,000 effective immediately.*

****Note: Per Statute the Buy America waiver is set at the Small Purchase threshold of $150,000 and the Clean Air Act threshold of $150,000; Per Statute the Lobbying Certification threshold remains at $100,000.*

	TYPE OF PROCUREMENT				
PROVISION	**Professional Services/A&E**	**Operations/ Management**	**Rolling Stock Purchase**	**Construction**	**Materials & Supplies**
No Federal Government Obligations to Third Parties (by Use of a Disclaimer)	All	All	All	All	All
Program Fraud and False Statements or Claims Civil and Criminal Fraud	All	All	All	All	All
Access to Third Party Contract Records	All	All	All	All	All
Changes to Federal Requirements	All	All	All	All	All
Civil Rights (Title VI, ADA, EEO except Special DOL EEO clause for construction projects)	All	All	All > $10,000	All	All
Special DOL EEO clause for construction projects				>$10,000	
Disadvantaged Business Enterprises (DBEs)	All	All	All	All	All
Incorporation of FTA Terms	All	All	All	All	All
Energy Conservation	All	All	All	All	All
Termination	>$10,000 if 49 CFR Part 18 applies.	>$10,000 if 49 CFR Part 18 applies.	>$10,000 if 49 CFR Part 18 applies.	>$10,000 if 49 CFR Part 18 applies.	>$10,000 if 49 CFR Part 18 applies.
Debarment and Suspension	>$25,000	>$25,000	>$25,000	>$25,000	>$25,000
Buy America ****See Note above*			>$150,000	>$150,000	>$150,000 (steel, iron, manufactured products)
Resolution of Disputes, Breaches, or Other Litigation	> $250,000	> $250,000	> $250,000	> $250,000	> $250,000
Lobbying ****See Note above*	>$100,000	>$100,000	>$100,000	>$100,000	>$100,000
Clean Air and Federal Water Pollution Control Act	>$150,000	>$150,000	>$150,000	>$150,000	>$150,000
Cargo Preference			Transport by ocean vessel.	Transport by ocean vessel.	Transport by ocean vessel.
Fly America	Foreign air transp. /travel.	Foreign air transp. /travel.	Foreign air transp. /travel.	Foreign air transp. /travel.	Foreign air transp. /travel.

PROVISIONS, CERTIFICATIONS, REPORTS, FORMS, AND OTHER—MATRICES

B. APPLICABILITY OF THIRD PARTY CONTRACT PROVISIONS (Continued)

(Excluding micro-purchases, except Davis-Bacon requirements apply to construction contracts exceeding $2,000)

TYPE OF PROCUREMENT					
PROVISION	**Professional Services/A&E**	**Operations/ Management**	**Rolling Stock Purchase**	**Construction**	**Materials & Supplies**
Davis-Bacon Act				>$2,000 (also ferries)	
Copeland Anti-Kickback Act Section 1 Section 2				All > $2,000 (also ferries)	
Contract Work Hours and Safety Standards Act		>$100,000 (Transportation services excepted)	>$100,000	>$100,000 (also ferries)	
Bonding				>$250,000	
Seismic Safety	A&E for new buildings & additions.			New buildings & additions.	
Transit Employee Protective Arrangements		Transit operations			
Charter Service Operations		All			
School Bus Operations		All			
Drug Use and Testing		Transit operations (§5307, 5309 or 5311)			
Alcohol Misuse and Testing		Transit operations (§5307, 5309 or 5311)			
Patent Rights	R & D				
Rights in Data and Copyrights	R & D				
Special DOL EEO clause for construction projects				>$10,000	
Recycled Products		EPA-selected items $10,000 or more annually.		EPA-selected items $10,000 or more annually.	EPA-selected items $10,000 or more annually.
Conformance with ITS National Architecture	ITS projects.	ITS projects.	ITS projects.	ITS projects.	ITS projects.
ADA Access	A&E	All	All	All	All
Notification of Federal Participation for States	Limited to States	Limited to States	Limited to States	Limited to States	Limited to States

PROVISIONS, CERTIFICATIONS, REPORTS, FORMS, AND OTHER—MATRICES

C. CERTIFICATIONS, REPORTS, AND FORMS

CERTIFICATIONS, REPORTS, AND FORMS	COMMENTS	REGULATORY REFERENCE
Bus Testing Certification	All procurements of new model transit buses and vans and existing models being modified with a major changeover changes.	49 CFR Part 665
TVM Certifications	All rolling stock procurements.	49 CFR Part 26
Buy America Certification	Procurements of steel, iron or manufactured products exceeding >$150,000 ****See Note above*	49 CFR Part 661
Preaward Review	FTA Annual Certification for any rolling stock procurement.	49 CFR Part 663
Preaward Buy America Certification	Rolling stock procurements exceeding procurements exceeding $150,000 ****See Note above*	49 CFR Part 663
Preaward Purchaser's Requirement	All rolling stock procurements.	49 CFR Part 663
Post Delivery Review	FTA Annual Certification for any rolling stock procurement.	49 CFR Part 663
Post Delivery Buy America Certification	Rolling stock procurements exceeding procurements exceeding $150,000 ****See Note above*	49 CFR Part 663
Post Delivery Purchaser's Requirement	All rolling stock procurements to the extent required by Federal law and regulations.	49 CFR Part 663
On-Site Inspector's Report	Rolling Stock except for procurements of: -10 or fewer vehicles; - 20 or fewer vehicles serving rural (other than urbanized) areas or urbanized areas or 200,000 people or fewer; - any amount of primary manufactured standard production and unmodified vans that after visual inspection and road testing meet the contract specifications.	49 CFR Part 663
Federal Motor Vehicle Safety Standards Preaward Review and Post Delivery	Motor vehicle procurements (49 CFR 571).	49 CFR Part 663
Lobbying	Procurements exceeding $100,000 ****See Note above*	Procurements exceeding $100,000 ****See Note above*.
Standard Form LLL and Quarterly Updates (when required)	Procurements exceeding $100,000 where contractor engages in lobbying activities. ****See Note above*	

PROVISIONS, CERTIFICATIONS, REPORTS, FORMS, AND OTHER—MATRICES

D. OTHER MATTERS

OTHER MATTERS	COMMENTS	STATUTORY OR REGULATORY REFERENCES
Contract Administration System		49 CFR § 18.36(b)(2) 49 CFR § 19.47
Record of Procurement History		49 CFR § 18.36(b)(9) 49 CFR § 19.47
Protest Procedures		49 CFR § 18.36(b)(12)
Selection Procedures		49 CFR § 18.36(c)(3)
Cost/Price Analysis		49 CFR § 18.36(f) 49 CFR § 19.45
Justification for Noncompetitive Awards	If Applicable	49 CFR § 18.36(b)(9) by implication 49 CFR § 19.46(b)
No Excessive Bonding Requirements		49 CFR § 18.36(h) 49 CFR § 19.48(c)(5)
No Exclusionary Specifications		49 U.S.C. § 5325(h)
No Geographic Preferences	Except for A&E Services	49 CFR § 18.36(c)(2)

g. **Pre-Award Compliance Certifications Form**

PRE-AWARD COMPLIANCE CERTIFICATIONS
(In Compliance with the federal requirements of 40 U.S.C. Section 5323(m))

Contract/Invitation/Request Number:_____
No. of Vehicles: Description of Vehicles:_____
Manufacturer:_____ Dealer:_____

The pre-award audit must be completed by the purchaser prior to entering into a formal contract with the vendor for the procurement of revenue service rolling stock. The following certifications must be completed as part of this audit, and must be kept on file by the purchaser.

Pre-Award Buy America Compliance Certification
The City of Huntsville, Department of Parking & Public Transit hereby certifies that:

A. There is a letter from FTA which grants a waiver to the rolling stock to be purchased from the Buy America requirements under section 165 (b) (1), (b) (2), or (b) (4) of the Surface Transportation Assistance Act of 1982, as amended; or
B. The recipient is satisfied that the rolling stock to be purchased meets the requirements of section 165 (a) or (b) (3) of the Surface Transportation Assistance Act of 1982, as amended, after having reviewed itself or through an audit prepared by someone other than the manufacturer or its agent documentation provided by the manufacturer which lists:
    1. Component and sub-component parts of the rolling stock to be purchased identified by manufacturer of the parts, their country of origin and costs; and
    2. The location of the final assembly point for the rolling stock, including a description of the activities that will take place at the final assembly point and the cost of final assembly.

Pre-Award Purchaser's Requirements Certification
The City of Huntsville, Department of Parking & Public Transit hereby certifies that 49 CFR 663(b) requirements are met:

A. The rolling stock the recipient is contracting for is the same product described in the purchaser's solicitation specifications; and
B. The proposed manufacturer is a responsible manufacturer with the capability to produce a vehicle that meets the recipient's specifications set forth in the recipient's solicitation.

Certification of Compliance with Federal Motor Vehicle Safety Standards (FMVSS)
The City of Huntsville, Department of Parking & Public Transit hereby certifies that 49 CFR 663 (d) requirements are met:

A. The vehicles purchased are subject to the Federal Motor Vehicle Safety Standards issued by the National Highway Traffic Safety Administration, and a copy of the manufacturer's self-certification information that the vehicle complies with the relevant standards was received both at the pre-award and post-delivery stage, and is being kept on file by the purchaser; or
B. The vehicles purchased are not subject to the Federal Motor Vehicle Safety Standards issued by the National Highway Traffic Safety Administration, and the purchaser has received a statement to that effect from the manufacturer which is being kept on file by the purchaser.

The City of Huntsville, Public Transit _____
Name of Committee/Recipient Signature of Representative

_____ _____
Date of Signature Print Name & Title of Representative

h. **Post-Delivery Compliance Certifications Form**

POST DELIVERY COMPLIANCE CERTIFICATIONS
(In Compliance with the federal requirements of 40 U.S.C. Section 5323(m))

Contract/Invitation/Request Number: _____
No. of Vehicles: _____ Description of Vehicles: _____
Manufacturer: _____ Dealer: _____

The post-delivery audit must be completed prior to the transfer of vehicle titles to the recipient. The following certifications must be completed as part of this audit, and must be kept on file by the purchaser.

Buy America Certification

The City of Huntsville, Department of Parking & Public Transit hereby certifies that:

1. There is a letter from FTA which grants a waiver to the rolling stock to be purchased from the Buy America requirements under section 165 (b) (1), (b) (2), or (b) (4) of the Surface Transportation Assistance Act of 1982, as amended; or

B. The recipient is satisfied that the rolling stock to be purchased meets the requirements of section 165 (b)(3) of the Surface Transportation Assistance Act of 1982, as amended, after having reviewed itself or through an audit prepared by someone other than the manufacturer or its agent documentation provided by the manufacturer which lists:

   i. Component and sub-component parts of the rolling stock to be purchased identified by manufacturer of the parts, their country of origin and costs; and

   ii. The actual location of the final assembly point for rolling stock, including a description of the activities that will take place at the final assembly point and the cost of final assembly.

Post-Delivery Certification of Compliance with Federal Motor Vehicle Safety Standards (FMVSS) Certification

The City of Huntsville, Department of Parking & Public Transit hereby certifies that 49 CFR 663(d) requirements are met:

A. The vehicles purchased are subject to the Federal Motor Vehicle Safety Standards issued by the National Highway Traffic Safety Administration, and a copy of the manufacturer's self-certification information that the vehicle complies with the relevant standards was received both at the pre-award and post-delivery stage, and is being kept on file by the purchaser

The City of Huntsville, Public Transit
Name of Committee/Recipient

_____
Signature of Representative

_____
Date of Signature

_____
Print Name & Title of Representative

i. **Post-Delivery Purchaser's Requirement Form**

POST-DELIVERY PURCHASER'S REQUIREMENT
(ON-SITE INSPECTION REPORT) CERTIFICATION
(In Compliance with the federal requirements of 40 U.S.C. Section 5323(m))

Contract/Invitation/Request Number: _____
No. of Vehicles: _____ Description of Vehicles: _____
Manufacturer: _____ Dealer: _____
Resident Inspector (not an agent or employee of the manufacturer: _____

The purchaser must complete On-Site Inspection prior to the transfer of vehicle titles to the recipient in accordance with the following criteria. The following certifications must be completed as part of this audit, and must be kept on file by the purchaser.

On-Site Manufactuer Inspection Compliance Certification
(Rolling Stock Procurements for more than 10 vehicles for areas > 200,000 in population)

The City of Huntsville, Department of Parking & Public Transit hereby certifies that 49 CFR 663 (c) requirements are met:

A. That the inspection was completed the manufacturing site during the period of manufacture of the vehicles; and,
B. The inspector visually inspected the vehicles;
C. The inspector reviewed the inspection documentation; and,
D. Certifies the vehicles meet the contract specifications.

On-Site Manufacturer Inspection Compliance Certification
(Rolling Stock Procurements for more than 20 vehicles for areas < 200,000 in population)

The City of Huntsville, Department of Parking & Public Transit hereby certifies that 49 CFR 663(c) requirements are met:

A. That the inspection was completed the manufacturing site during the period of manufacture of the vehicles; and,
B. The inspector visually inspected the vehicles;
C. The inspector reviewed the inspection documentation; and,
D. Certifies the vehicles meet the contract specifications.

The City of Huntsville, Public Transit
Name of Committee/Recipient

_____
Signature of Representative

_____
Date of Signature

_____
Print Name & Title of Representative

j. **Subrecipient Monitoring Checklist**

GRANT MONITORING GUIDELINES	Date Report Completed:	FTA Grant No.:
Project Name:	Subrecipient Name:	
Project Description:	Capital/Operating/Mobility Management:	
Project Duration:	Date Subrecipient Agreement Executed:	

Topic Area	**Yes**	**No**	**N/A**	**Recommendations / Comments**
A. Program Operation				
1. Is the project progressing on schedule				
2. Is the project functioning as described in agreement?				
3. Has there been a change in Primary Contacts?				
4. Do Progress Reports describe project activities?				
5. Is data provided to support project goals/outcomes?				
6. Is compliance with required training documented				
7. Is subrecipient involved in lobbying activities?				
8. Have all *Special Conditions* of the agreement been met?				
9. Is there evidence of a change in project scope?				
B. Budget				
1. Will Project meet Budget Time Frame? If not, why?				
2. Have Budget Adjustments been needed?				
3. Do expenses have supporting documentation?				
C. Personnel				
1. Are there Job Descriptions for ALL Grant-Funde Positions?				
2. Are Time Sheets Maintained for ALL Grant employees?				
D. Travel				

1.	Is Travel Documented by Date, Distance, Locations, Purpose & Rates?				
2.	Is mileage reimbursement paid at the State rate or Less?				
E.	Supplies/Operating Expenses				
1.	Have these been purchased according to budget?				
F.	Equipment				
1.	Has approved equipment been purchased?				
2.	Was competitive bidding used to obtain equipment?				
3.	Is equipment being used appropriately?				
4.	Does grantee have current property control record on file?				
5.	Does agency have physical inventory control procedures?				
6.	Does agency have a maintenance program in place?				
G.	Reports				
1.	Are ALL required reports on file with Recipient?				
a.	Financial Report				
b.	Progress Report				
c.	Annual Progress Report				
H.	Professional and Contractual Services				
1.	Have all contracts been received PRIOR execution and Approval?				
2.	Does Contract outline work to be performed and does it comply with Program Objectives?				
3.	Was copy of RFP & List of Bidders provided?				
4.	Was competitive bidding used, is approval on file?				
5.	If Sole Source used, is approval on file?				
6.	Is "Contractor" making regular & Accurate Billing?				
I.	Federal Regulations				
1.	Does subrecipient have a Title VI Program in place?				
2.	Does Agency have a policy on how to handle discrimination complaints from employees and agency beneficiaries?				
3.	Have there been any discrimination complaints within the past 3 years?				

4. Is subrecipient suspended/debarred from participation?				
5. Does subrecipient maintain a drug-free workplace?				
6. Are DBE requirements included in documents?				
7. Are vehicles ADA compliant?				
J. Specific Issues				
1.				
2.				
K. Summary Information				

k. **Procurement Services Work Instructions 07.3 – Requirement for FTA Clauses on City-wide Contracts**
Rev N/R Date: 08/06/2018

PROCUREMENT SITUATION:
FTA funding of certain purchases of goods and services related to the operation of a Public Transit System is contingent on contracts for these qualified goods and services having specific terms and condition clauses included as well as our standard terms and conditions. Contracts for purchases specifically for the Public Transit Department will routinely include the appropriate clauses, but other city-wide contract in which Public Transit participates may have to include certain FTA clauses for their purchases to be compliant and insure continued funding critical to operation.

PROCESS:
Procurement Services has added a line on the Solicitation Preparation Checklist to notify Public Transit of an Invitations for Bids (IFB) or Request of Proposals (RFP) that has the potential of being utilized by Public Transit in an amount sufficient to warrant the inclusion of certain FTA clauses. (See Exhibit 1 below). Public transit will research for potential compliance issues and will supply a set of clauses appropriate to the contract contemplated (See Exhibit 2 below). The checklist and response will be a part of the bid package and kept on file subject to current document retention rules.

BENEFIT:
This process provides auditable evidence of our awareness of FTA requirements and an affirmative process for contract compliance.

Sample of Checklist used for all Sealed Bid or Proposal Solicitations:

SOLICITATION PREPARATION CHECKLIST

BID VENDORS	✓	COMMENTS
RFP number assigned		
Incumbent bid vendor notified		
Commodity code(s) selected		
Public Transit FTA compliance required		Public Transit will respond with a completed decision form and special terms (if needed)
Supervisor approval		
Buyer upload bid to Sharepoint		
Print out Ebids Vendor Notification Result AFTER you send bid		
Copy of bid coversheet placed on bulletin board		
Bid file placed in cabinet under Bid Opening date		

_____ _____

Procurement Analyst II (Buyer) Date

(Ord. No. 15-952, 12-17-2015; Ord. No. 18-617, 8-23-2018; Ord. No. 21-1095, §§ 1—10, 11-4-2021; Ord. No. 22-467, § 1—4, 7-14-2022; Ord. No. 24-316, §§ 3—6, 5-9-2023; Ord. No. 26-196, §§ 3—6, 3-12-2026)

Secs. 2-189—2-220. Reserved.

ARTICLE V. PERSONNEL POLICIES

Sec. 2-221. Manual adopted.

The Personnel and Policy Procedures Manual as adopted and amended by the city is adopted by reference. A copy of the manual as amended is on file in the office of the city clerk-treasurer. (Ord. No. 90-152, 5-10-1990; Ord. 08-776, 8-28-2008)

Sec. 2-222. Cell phone policy.

This section establishes the city's policy concerning the use of city cell phones that are provided to employees and officials for their official use, and establish the means by which the city will reimburse its employees and officials who use their personal cell phone for city business. In this section, the term "cell phone" means a mobile communication device having telephone capabilities, and the term "cell phone allowance" means the amount paid to employees to reimburse them for use of their personal cell phone for city business. The term "city phone" means a cell phone owned by the city and any related equipment used with it.

(1) *Eligibility*.

a. *Elected officials*. The city will not provide an elected official a city phone but will provide a cell phone allowance at the request of the official.

b. *Employees*. An employee may be furnished a city phone or receive a cell phone allowance only in the following situations:

1. Job responsibilities of the employee are such that it is in the city's best interest that the

employee be able to communicate by cell phone for work-related reasons on a regular basis, and the use of other communications equipment, including a pager, is impractical;

2. The employee can significantly enhance work-related personal safety with a cell phone; or

3. The mayor or his/her designee requires the employee to be available by cell phone whenever possible.

The city will furnish a city phone to an employee only when it is practical to share it with other employees, or as directed by the mayor or his/her designee. All other employees will receive a cell phone allowance when they qualify according to this policy.

(2) *City phones*.

a. *Approval*. The city will provide a city phone to an employee who qualifies under this policy at the discretion of the employee's department head.

b. *Authorized uses.* The use of a city phone shall be for official use, except in the case of emergencies. City phones cannot be used at any time in violation of local, state or federal laws, nor for the purpose of personal financial gain, nor in violation of any departmental work rules.

c. *Authorized city cell phone vendors*. Only vendors authorized by the city, in accordance with state law, will provide service related to city phones.

(3) *Cell phone allowance.*

a. *Approval*. Department head will submit a written or email request to the finance director for an employee to receive a cell phone allowance, to include employee's name, employee number, job title, basis for request, and monthly amount requested.

The finance department will ensure the request is complete as required by this policy, obtain employee acknowledgement of this policy's requirements, and obtain approval of the request from the mayor or his/her designee when required.

b. *Payment*. An employee or official authorized to receive a cell phone allowance will receive a monthly payment, which will be included in his city payroll check. The payment will begin the first full month after approval, or as is consistent with finance department payroll policy.

c. *Taxability*. The cell phone allowance paid to an employee or official may be subject to or exempt from federal and state income taxes based on the regulations in effect from time to time.

d. *Maximum amount*. The amount of reimbursement must be consistent with the cost the employee is reasonably expected to incur for using his/her personal cell phone for city business, and in the best interest of the city, all communication options considered. The maximum amount is $35.00 per month, except in special high-use cases approved by the mayor or his/her designee, for which the maximum amount is $70.00 per month. These maximum amounts may be modified in the annual budget ordinance, and the amounts paid to any employee may be increased or decreased at any time at the discretion of the city.

(4) *Responsibilities*.

a. Department heads will establish policies to help ensure compliance with the terms of this policy and the Personnel Policies and Procedures Manual by department employees.

b. Employees furnished a city phone will use the device in compliance with the Personnel Policies and Procedures Manual, including those that pertain to city-owned information technology equipment. The city reserves the right to review all electronic records on city issued phones and to obtain relevant information from the telephone company or carrier, if the city administration considers in its sole discretion that there is a legitimate business reason to do so. Thus, employees do not have a reasonable expectation of privacy with respect to the use of city issued cell phones and by use of such devices, do consent to all city sponsored monitoring. While employees receiving cell phone allowances applicable to the business use of their personal cell phone may generally have an expectation of privacy on their personal cell phones, there may be times when the city will have the right or duty to obtain access for business purposes to the electronic records relevant to the employee's business use of that personal cell phone. Such occasions may arise with respect to the city's duty to preserve or produce evidence relevant to anticipated or ongoing litigation or otherwise obtain access for law enforcement purposes.

c. Employees using a city phone, or personal cell phone for city business purposes, will not use it in a manner that would jeopardize the safety of themselves or others. Specifically, employees shall comply with Alabama state law as set forth in Code of Alabama, § 32-5A-350 which prohibits a person from operating a motor vehicle on a public road, street, or highway in Alabama while using a wireless telecommunication device (as defined within the statute) to write, send, or read a text-based communication (as defined therein) except in certain specific circumstances detailed within the state statute.

d. Employees who receive a cell phone allowance agree to provide their cell phone number to their supervisor, to accept and make city business calls on their phone when required by their supervisor, not represent the cell phone he/she uses as the property of the city.

e. An employee must sign an acknowledgement of the terms of the policy that pertain to the employee prior to being issued a city phone or receiving a cell phone allowance.

(5) *Administration*. The finance department will administer this policy as directed by the mayor or his/her designee, is authorized to periodically require an employee to submit evidence that the cost of using his personal cell phone for city business is commensurate with his cell phone allowance, and is authorized to evaluate compliance with this policy.

(Ord. No. 06-1141, 11-9-2006; Ord. No. 15-528, 8-13-2015)

Secs. 2-223—2-250. Reserved.

ARTICLE VI. MISCELLANEOUS POLICIES

Sec. 2-251. City attorney authorized to institute lawsuits.

The city attorney, or an assistant city attorney under the supervision of the city attorney, shall have the authority to institute, in a court of competent jurisdiction, all legal proceedings in the name of the city, except eminent domain petitions, real estate foreclosure proceedings, and actions for the breach of written contracts or other proceedings which by law specifically require city council action, upon the direction and/or approval of the mayor.

(Ord. No. 88-586, § 1, 11-10-1988)

Sec. 2-252. Defense and indemnification—Agencies, boards and members.

(a) Any officer or employee of the City of Huntsville, Alabama, employed in any department of the city which is under the general supervision and control of the mayor, who is sued in connection with his or her official duty, or any agency or board created or established by the City Council of the City of Huntsville, Alabama (excluding any private, not for profit corporation) which is sued in connection with an official act or decision of such agency or board, or any officer, employee or member of such agency or board who is sued in connection with his or her official duty, shall be represented in the defense of such suit by the city attorney, an assistant city attorney, or a private attorney designated by the city attorney except in the situation where the officer, employee, agency or board is represented by an attorney pursuant to a contract of insurance with regard to such suit.

(b) In the event the city attorney or an assistant city attorney does not provide representation to the officer, employee, agency or board, and the officer, employee, agency or board, or officer, employee or member of such agency or board, is not represented by an attorney pursuant to a contract of insurance with regard to such suit, the city attorney shall select a private attorney to represent the officer, employee, agency or board, or officer, employee or member of such agency or board. No private attorney selected by the city attorney to represent an officer or employee shall be paid an hourly rate exceeding $200.00 per hour, prior to October 1, 2015, and $225.00 per hour on or after October 2, 2015, through September 30, 2017, and $250.00 per hour on or after October 1, 2017. Such hourly rate shall be determined by the city attorney based upon the private attorney's level of experience and expertise. The private attorney shall confirm in writing the fee arrangement.

(c) Any officer or employee of the City of Huntsville, Alabama, or any officer, employee or member of any agency or board, which is sued in connection with his or her official duty, shall notify the city attorney of such suit as soon as possible. Failure of such officer, employee or member to notify the city attorney within ten days of service of such suit shall relieve the City of Huntsville, or the agency or board with whom such officer, employee or member is affiliated, from any duty to represent the officer, employee or member in the defense of the suit or to pay any judgment which may result there from except as otherwise may be required by law.

(d) If the City of Huntsville, Alabama, an officer or employee of the City of Huntsville, Alabama, or an agency or board (or an officer, employee or member thereof) is represented by a private attorney with regard to any suit filed against the City of Huntsville, any officer or employee of the City of Huntsville employed in any department of the city which is under the general supervision and control of the mayor, or any agency or board of the City of Huntsville, Alabama, the city attorney shall request a status report concerning the suit from such other attorney on a regular, monthly basis.

(e) Nothing in this section shall interfere in any way with the right of any officer, employee or member sued in connection with his or her official duty, to provide his or her own legal counsel at his or her own expense. In such event, the City of Huntsville shall be relieved of any responsibility to represent the officer, employee or member in the defense of such suit.

(f) All billings paid to private attorneys from the funds of the City of Huntsville, Alabama, for the defense of lawsuits as provided herein, including interim billings, shall be reviewed by the city attorney as to reasonableness, and the payment thereof is subject to a determination of reasonableness by the city attorney.

(g) This section does not address payment of any judgment rendered against any officer, employee or member (except to bar payment of any judgment as provided in paragraph (c), and nothing herein shall be construed to bind or obligate the city to pay any judgment rendered against any officer, employee or member except as otherwise may be required by law.

(h) Section 13 of the Personnel Policies and Procedures Manual of the City of Huntsville provides for the scheduling of a disciplinary

hearing in appropriate cases, before an impartial hearing officer selected from a pool of eligible persons designated by the city council. Each person named as a hearing officer under section 13 of the City of Huntsville Personnel Policies and Procedures Manual shall be paid at an hourly rate of $200.00 per hour, prior to October 1, 2015, and $225.00 per hour on or after October 2, 2015, through September 30, 2017, and $250.00 per hour on or after October 1, 2017.

(i) Ordinance No. 93-19A, as amended, provides for hearing officers to be appointed by the City Council of the City of Huntsville, to preside over tax disputes arising between the City of Huntsville and taxpayers. Each person named as a hearing officer under Ordinance No. 93-19A, as amended, shall be paid at an hourly rate of $200.00 per hour, prior to October 1, 2015, and $225.00 per hour on or after October 2, 2015, through September 30, 2017, and $250.00 per hour on or after October 1, 2017.
(Ord. No. 93-335, §§ 1—7, 6-24-1993; Ord. No. 96-350, § 1, 5-23-1996; Ord. No. 06-1220, §§ 1—7, 12-21-2006; Ord. No. 15-324, §§ 1—3, 5-28-2015)

Sec. 2-253. Same—City officers and employees.

(a) Any officer or employee of the city employed in any department of the city which is under the general supervision and control of the mayor who is sued in connection with his official duty shall be represented in the defense of such suit by the city attorney, or an assistant city attorney in the office of the city attorney designated by the city attorney except in the following situations:

(1) The city is a codefendant in the suit and, in the opinion of the city attorney, there is a conflict in the defenses of the city and the officer or employee.

(2) Two or more officers or employees are sued in connection with claims arising out of the same set of circumstances and, in the opinion of the city attorney, there is a conflict in their defenses.

(3) Representation by the city attorney's office is impracticable.

(4) The officer or employee is represented by an attorney pursuant to a contract of insurance with regard to such suit.

(b) If the city does not provide representation to the officer or employee for reasons set forth in subsection (a)(1)—(3) of this section, the city attorney shall select a private attorney to represent the officer or employee after consultation with such officer or employee. No private attorney selected by the city attorney to represent an officer or employee shall be paid an hourly rate exceeding $125.00 per hour. Such hourly rate shall be determined by the city attorney based upon the private attorney's level of experience and expertise. The private attorney shall confirm in writing the fee arrangement. Except in circumstances approved by the city attorney, only one attorney will be compensated by the city for the defense of an officer or employee.

(c) Any officer or employee who is sued in connection with his official duty shall notify the litigation manager of such suit as soon as possible. Failure of such officer or employee to notify the city attorney within ten days of service of such suit shall relieve the city from any duty to represent the officer or employee in the defense of the suit or to pay any judgment which may result from the suit except as otherwise may be required by law.

(d) If the city is represented by a private attorney with regard to any suit filed against the city or any officer or employee of the city employed in any department of the city which is under the general supervision and control of the mayor, the city attorney shall request a status report concerning the suit from such other attorney on a regular, monthly basis.

(e) Nothing in this section shall interfere in any way with the right of any officer or employee sued in connection with his official duty to provide his own legal counsel at his own expense. In such event, the city shall be relieved of any responsibility to represent the officer or employee in the defense of such suit.

(f) All billings paid to private attorneys from the funds of the city for the defense of lawsuits as provided in this section, including interim

billings, shall be reviewed by the city attorney as to reasonableness; and the payment is subject to a determination of reasonableness by the city attorney.

(g) This section does not address payment of any judgment rendered against any officer or employee (except to bar payment of any judgment as provided in subsection (c) of this section), and nothing in this section shall be construed to bind or obligate the city to pay any judgment rendered against any officer or employee except as otherwise may be required by law.
(Ord. No. 93-336, §§ 1—7, 6-24-1993; Ord. No. 96-349, § 1, 5-23-1996)

Sec. 2-254. Same—Attorneys for city.

Whenever any city employee employed by the city as a legal service provider, as defined in Code of Ala. 1975, § 6-5-572(2), shall be sued for damages arising out of the performance of his official duties in the course of his employment, the city shall provide defense counsel for such legal service provider in such legal service liability action and shall indemnify such legal service provider from any judgment rendered against him in such suit.
(Ord. No. 93-337, 6-10-1993)

Secs. 2-255—2-290. Reserved.

ARTICLE VII. DEPARTMENTS, DEPARTMENT HEADS AND OTHER APPOINTED OFFICERS

DIVISION 1. GENERALLY

Sec. 2-291. Departments of the city established.

(a) The municipal government of the city shall be divided into departments, which may be further sub-divided into divisions, in order to provide for the orderly and efficient administration of budgeting, equipping, and manning systems of the city. Each department shall be assigned missions and duties critical to the effective delivery of municipal public services.

(b) The departments of the city shall be as follows:

(1) Administration Department.

(2) Office of the City Council.

(3) Office of the City Clerk.

(4) Finance Department.

(5) General Services Department.

(6) Human Resources Department.

(7) Information Technology Services Department.

(8) Office of the City Attorney.

(9) Parks and Recreation Department.

(10) Huntsville Police Department.

(11) Huntsville Fire and Rescue Department.

(12) Municipal Court.

(13) Huntsville Animal Services Department.

(14) Cemetery Department.

(15) Landscape Management Department.

(16) Department of Parking and Public Transit.

(17) Public Works Department.

(18) Community Development Department.

(19) City Engineering Department.

(20) Inspections Department.

(21) Natural Resources Department.

(22) Planning Department.

(23) Traffic Engineering Department.

(24) Water Pollution Control Department.

(Ord. No. 23-155, § 3, 3-9-2023)

Editor's note—Ord. No. 23-155, § 3, adopted March 9, 2023, repealed the former § 2-291, and enacted a new § 2-291 as set out herein. The former § 2-291 pertained to position of manager of planning administration established and derived from Ord. No. 11-714, adopted Sep. 27, 2011.

Sec. 2-292. Reserved.

Editor's note—Ord. No. 23-155, § 4, adopted March 9, 2023, repealed § 2-292, which pertained to position of manager of urban and long range planning established and derived from Ord. No. 11-715, adopted Sep. 27, 2011.

Secs. 2-293—2-321. Reserved.

DIVISION 2. ADMINISTRATION DEPARTMENT*

Sec. 2-322. Administration department established.

(a) The administration department is hereby created. The administration department provides the administrative and logistics structure necessary for the orderly operations of certain offices supporting the duties of the mayor, city council, and the various departments of the city. Where necessary to advance administrative, personnel, and financial processes, the department shall be under the supervision of the city administrator, serving as department head.

(b) Offices assigned to the administration department shall be the office of the mayor; the communications office; the office of economic and urban development; and the office of diversity, equity, and inclusion.
(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-323. Office of the mayor established.

The office of the mayor is hereby created as a division of the administration department. This office shall provide the necessary organizational structure to which the mayor's immediate staff is assigned and shall perform the essential functions supporting the mayor in his role as chief executive of the city, including the mayor's supervision and oversight of the various departments of the city.
(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-324. Position of city administrator established.

(a) The position of city administrator is hereby created and assigned to the office of the mayor. The city administrator, whose qualifications are established by the mayor, shall be appointed by the mayor, subject to the approval of the city council as provided by law. The city administrator shall hold office for the term of the mayor making the appointment. The city administrator shall be under the general supervision and control of the mayor. Generally, the city administrator shall be available to councilmembers to respond to requests for information related to city programs or activities pertinent to the performance of a councilmember's duties.

(b) The duties of the city administrator, which shall be performed in accordance with applicable laws, include the following:

(1) Serves as department head for the administration department.

(2) In matters related to his office and, more broadly, the operations of the city through its various departments, the city administrator shall serve as an executive director of the city, directly assisting and advising the mayor in management of the city. He shall prepare special reports and attend special meetings as may be required by the mayor. The city administrator shall assist and collaborate with the mayor in the development, implementation, and furtherance of city goals, plans, and policies.

(3) Provides general supervision, oversight, and control of the following departments: general services, human resources, information technology services, parks and recreation, police, fire and rescue, animal services, cemetery, landscape management, parking and public transit, and public works.

(4) Makes decisions on situations or major matters that do not require the mayor's personal action; assists extensively in promoting public interest and understanding of city activities across the full breadth of all city departments.

(5) Executes general and special assignments including investigations or surveys, in any phase of municipal administration; formulates recommendations for action by the mayor to adopt or alter policies and procedures.

(6) Represents the mayor at meetings of public and private organizations, commit-

*__Editor's note—__Ord. No. 23-155, § 4, adopted March 9, 2023, repealed div. 2, §§ 2-301—2-304, which pertained to department of public safety and derived from Ord. No. 07-68, adopted Feb. 8, 2007.

tees, and associations; substitutes for the mayor at city council meetings, work sessions, or other agency meetings in the absence of the mayor.

(7) Confers with citizens and civic organizations and responds to their questions, concerns, and recommendations.

(8) Reviews budget requests from the various departments and recommends the necessary decisions to be presented to the mayor and city council; assists the finance director in development and presentation of the mayor's annual budget documents.

(9) Manages the development and execution of the 1990 capital improvement plan.

(10) Addresses civic organizations, professional organizations, community groups, and the media regarding the activities and programs of the city; advances the city's public relations goals.

(11) Directly monitors and advances interdepartmental communications, collaboration, and coordination.

(12) Communicates decisions of the mayor to department heads or other business units of the city and ensures compliance with the mayor's directed policy or procedures as may be required.

(13) Serves on various boards, commissions, and committees, as directed by the mayor or as may be provided for by applicable laws, including the ordinances of the city.

(14) Monitors critical, special, and unusual events affecting the city and provides briefings to the mayor and other public officials as needed.

(15) Performs related work as required and performs duties required by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-325. Position of external relations officer established.

(a) The position of external relations officer is established and assigned to the office of the mayor. The external relations officer, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law and shall be under the direct supervision and control of the mayor. The external relations officer shall hold office for the term of the mayor making the appointment. Generally, the external relations officer shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the external relations officer which are pertinent to the performance of a councilmember's duties.

(b) The duties of the external relations officer, which shall be performed in accordance with applicable laws, include the following:

(1) Serves as a liaison between the city and various external audiences such as other governing bodies and elected officials, trade groups, businesses, non-profit organizations, or other groups desiring to collaborate with the city.

(2) Works with government relations consultants to establish policy goals, monitors proposed legislation, and advocates for issues important to the city; performs contract management duties providing oversight to the various government relations contracts of the city.

(3) Drafts memos, letters, articles, talking points, speeches, and other forms of communication for the mayor in consultation with the director of communication.

(4) Performs research on diverse topics needed by the mayor to make informed decisions or to stay abreast of pertinent issues.

(5) Accompanies the mayor on his daily schedule and assists as needed with his day-to-day duties or activities; develops notes and forwards questions, information, and inquiries to members of the mayor's administration for their use and action as directed by the mayor; assists in coordinating special activities within the office of the mayor.

(6) Assists the communications office in management of the mayor's social media-based communications.

(7) Performs related work as required and performs any and all duties that may be required of him by ordinance or resolution or at the direction of the mayor or city administrator.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-326—2-329. Reserved.

Sec. 2-330. Office of economic and urban development established.

The office of economic and urban development is established. The office shall be under the general supervision and control of the director of economic and urban development. The director of economic and urban development, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law. The director of economic and urban development shall hold office for the term of the mayor making the appointment. The director of economic and urban development shall be under the direct supervision and control of the mayor. Generally, the director of economic and urban development shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the director of economic and urban development which are pertinent to the performance of a councilmember's duties.

(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-331. Duties of the director of economic and urban development.

The duties of the director of economic and urban development, which shall be performed in accordance with applicable laws, include the following:

(1) In matters related to his office and, more broadly, the operations of the city through its various departments, the director of economic and urban development shall serve as an executive director of the city, directly assisting and advising the mayor in management of the city. He shall prepare special reports and attend special meetings as may be required by the mayor. The director of economic and urban development shall assist and collaborate with the mayor in the development, implementation, and furtherance of city goals, plans, and policies.

(2) Provides general supervision, oversight, and control of the following departments: community development, city engineering, inspection, natural resources, planning, traffic engineering, and water pollution control.

(3) Manages the development and execution of the 2014 capital improvement plan.

(4) Coordinates all aspects of the city's economic development programs and initiatives; ensures continuous communications, coordination, and collaboration with the chamber of commerce and other organizations involved in development and economic growth throughout the city.

(5) Focuses on the development of research park and industrial park properties throughout the city; provides the city's primary oversight of development and maintenance of Cummings Research Park, collaborating with the research park manager.

(6) Provides broad oversight to all the city's planning and development functions, particularly ensuring coordination and collaboration between the various departments and divisions performing planning functions.

(7) Provides oversight and coordination of the city's development of transportation infrastructure, inclusive of all modes of transportation.

(8) Serves as the city's primary liaison with the state department of transportation, the federal highway administration, and other public agencies involved in the development of transportation infrastructure.

(9) Performs related work as required, and performs any and all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-332. Position of deputy director of economic and urban development established.

(a) The position of deputy director of economic and urban development is hereby established. The deputy director of economic and urban development, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law and shall hold office for the term of the mayor making the appointment. The deputy director of economic and urban development shall be under the direct supervision and control of the director of economic and urban development. Generally, the deputy director of economic and urban development shall be available to council members to respond to requests for information or questions related to matters under the general control of the deputy director of economic and urban development which are pertinent to the performance of a councilmember's duties.

(b) The duties of the deputy director of economic and urban development, which shall be performed in accordance with applicable laws, include the following:

(1) Assists the director of economic and urban development in planning, organizing, directing, coordinating, and evaluating the city's activities aimed at development of the economy and urbanized area.

(2) Assists the director of economic and urban development in planning, organizing, and directing the city's planning functions; reviews the compilation, analysis, and interpretation of data affecting urban planning and development; participates in preparation of comprehensive reports based upon careful research and study of planning problems.

(3) Coordinates with city officials and other departments and agencies on new or contemplated public and private projects and public/private partnership developments including industrial developments.

(4) Represents the director of economic and urban development, when needed, as technical advisor to the planning commission and the metropolitan planning organization on city planning and development matters; assists with evaluating and recommending projects and programs to be undertaken; coordinates with government agencies and officials in the metropolitan area.

(5) Assists the director of economic and urban development with negotiating contractual agreements related to development between the city, private investors, state department of transportation and other agencies.

(6) Assists the director of economic and urban development with representing the mayor at public meetings with key industrial prospects and with state and federal officials.

(7) Assists the director of economic and urban development with preparing and coordinating legislative actions with state legislative delegation.

(8) Assists the director of economic and urban development with developing and implementing the city's highway priorities with the state department of transportation.

(9) Assist with the preparation and delivering of speeches to public and private organizations.

(10) Performs related work as required and performs any and all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-333—2-335. Reserved.

Sec. 2-336. Communications office established.

The communications office is hereby established. The communications office shall be under the general supervision and control of the director of communications, who may also be referred to as the communications director. The communications director, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law. The communications director shall hold office for the term of the mayor making the appointment. The communications director shall be under the general supervision and control of the mayor. The communications director shall be available to councilmembers to respond to requests for information or questions related to matters under the general control or responsibility of the communications director and shall provide direct support to the office of the city council's communications requirements and those of the individual councilmembers in the performance of their official duties.
(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-337. Duties of the director of communications.

The duties of the director of communications, which shall be performed in accordance with applicable laws, include the following:

(1) Oversees the city's public communications, media, public relations, public affairs, brand identity, and marketing strategies; serves as a key advisor to the mayor, city council, and department heads in decisions that impact the reputation of the city and well-being of a wide variety of stakeholders.

(2) Coordinates the city's public communications activities amongst all departments of the city; manages all aspects of the communications and marketing requirements in support of key initiatives and programs for the mayor, city council, and city departments.

(3) Responsible for development and implementation of complex, comprehensive communications programs and activities for the city; creates and executes special initiatives for the city in support of departments.

(4) Develops and coordinates implementation of the city's communications policies and procedures.

(5) Creates, distributes, and promotes public information products for the city.

(6) Provides comprehensive oversight of the city's media relations which includes oversight for media requests, news conferences, news releases, speeches, talking points, and presentations.

(7) Prepares news releases from the mayor, city council, and departments of the city; prepares program announcements; arranges news conferences; responds to information requests from local, state, national, and trade media; ensures timely and accurate public information of city operations, projects and policies, city council actions, crisis/disaster communications, economic development initiatives, and awareness campaigns through traditional media, social media and the internet.

(8) Provides communication support to the city in intergovernmental initiatives at local, state, and federal level; assists with the support of industrial recruitment and economic development initiatives of the city.

(9) Prepares speeches, presentations, and talking points for the mayor, other city officials, and partner agencies on the full breadth of municipal government topics.

(10) Plans and executes special events; represents the city in presentations to local civic organizations and professional associations; represents the city at local, regional, and national industry conferences and trade shows; conducts research to support initiatives of the mayor, city council, and the various departments.

(11) Provides editorial guidance and oversight in the preparation and execution of departmental print and digital market-

ing and informational materials that promote and brand the city or inform its citizens.

(12) Works collaboratively with departments to integrate appropriate civic engagement platforms such as IdeaScale, See-Click-Fix, or other software programs that benefit citizens.

(13) Works closely with key community partners including the chamber of commerce, the convention and visitor's bureau, the sports commission, and the airport authority on economic marketing and promotion strategies for the city.

(14) Oversees the operation of and programming for the city's government television and video services which includes public interest talk shows, public service announcements, video of news conferences, live broadcasts of city meetings, and announcements from non-profit agency partners.

(15) Oversees the city's digital media in public communication including the website, social media, digital newsletters, on-line town halls, public surveys, and customer service tools; provides web oversight including content creation, training content editors, branding and design of supporting department web pages/sites; oversees for content/branding/design and training content editors for department social media channels and electronic newsletters; provides training and oversight for department web and newsletter editors and social media teams; oversees internet content standards and social media guidelines to inform community members about city services.

(16) Maintains the city's brand, image, graphics, and identity standards as it relates to the brand including logo, seal, and their use on city signage.

(17) Oversees customer service initiatives and processes that ensure citizens' needs, comments, concerns, and requests are addressed in a timely manner.

(18) Provides oversight and strategic planning for organizational information to city employees through employee newsletters and departmental staff meetings, as well as weekly information from specific departments, to include topics related to changes in employee benefits, city compensation systems, significant city projects, staff development and training, city policies and updates on mayoral and city council initiatives/activities.

(19) Supervises the communications staff including videographer, digital media specialist and other personnel as assigned; manages various contracts delivering support to communications and marketing efforts as required.

(20) Performs related work as required and performs all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-338—2-340. Reserved.

Sec. 2-341. Office of diversity, equity, and inclusion (ODEI) established.

The office of diversity, equity, and inclusion is hereby established. The office of diversity, equity, and inclusion shall be under the general supervision and control of the director of diversity, equity, and inclusion, who may also be referred to as the diversity, equity, and inclusion director or DEI director. The director of diversity, equity, and inclusion, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law. The director of diversity, equity, and inclusion shall hold office for the term of the mayor making the appointment. The director of diversity, equity, and inclusion shall be under the general supervision and control of the mayor. Generally, the director of diversity, equity, and inclusion shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the director of diversity, equity, and inclusion which are pertinent to the performance of a councilmember's duties.

(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-342. Duties of the director of diversity, equity, and inclusion.

The duties of the director of diversity, equity, and inclusion, which shall be performed in accordance with applicable laws, include the following:

(1) Develops and delivers in collaboration with the human resources department and the equal employment officer (EEO), training programs for the city workforce, including ensuring the practice of equitable hiring, cultural awareness/sensitivity, anti-bias behaviors, interpersonal skills, and effective communication.

(2) Reviews ordinances and policies governing the city workforce and identifies aspects that might cause barriers to the hiring or advancement of underrepresented or disadvantaged populations; provides advice to the mayor, city administrator, equal employment officer, and human resources director on strategies to eliminate barriers to equitable opportunities for city employees.

(3) Participates on citywide projects that strengthen organizational systems to support a diverse workforce; conducts projects to assess organizational readiness and progress on the city's diversity, equity and inclusion initiatives; researches, develops, and recommends citywide policies on diversity and multicultural awareness; acts as a resource for departmental policy development; assists with community multicultural events, activities and new programs; assists with integrating diversity, equity, inclusion and multicultural sensitivity into the city's public image and marketing strategies; establishes, promotes, and expands the city's outreach to more segments of the community.

(4) Provides technical support and advice to the city's human relations commission, including recommending nominations for mayoral and city council appointments; develops and provides resources for multicultural education and training in a variety of formats and other support programs; provides diversity, equity, and inclusion training to city departments, as needed. Develops DEI goals for appointed boards and commissions and provide an annual report of the state of DEI in the city for the mayor and city council.

(5) Develops and delivers for the police department, training focused on cultural competency, anti-bias behaviors, effective communication with diverse communities, and other aspects of DEI specific to law enforcement tasks and procedures; ensures these training packages are delivered for both entry-level and veteran officers during annual in-serve training programs; develops and assists the procurement division in implementing programs that seek to eliminate barriers to participation in city procurements and contracting encountered by businesses owned/operated by historically disadvantaged populations.

(6) Encourages understanding and goodwill, promotes justice, and promotes the elimination of discriminatory practices between and among Huntsville's citizens based on race, religion, national origin, age, sex, disability, or ethnicity; collaborates with these individuals and groups to develop initiatives that advance the goals and objectives of DEI; promotes communication and mutual understanding and respect among diverse constituencies and persons in the greater Huntsville area.

(7) Provides leadership and guidance to various ethnic celebration committees, assessing the needs of multicultural segments of the community; represents the city at multicultural-related community events; serves as liaison to various community organizations ensuring there is open, active, and continuous communication with these groups and the city's senior leadership team; identifies city policies, practices, and procedures that could cause barriers to city government engagement/

participation by underrepresented/ disadvantaged groups in the city and advises the mayor on strategies to eliminate/mitigate those barriers.

(8) Works with the local business community in promoting human rights, justice, and diversity in job recruitment and economic development; acts as a municipal and community agent, acting in concert with the city's economic development activities, in promoting multicultural and multinational business, commerce, and economic development opportunities within the city.

(9) Represents the mayor at neighborhood, civic association, committee, social, business, and other group meetings.

(10) Conducts public forums to promote mutual understanding and respect for the purpose of eliminating discriminatory practices in the community, working supportively in concert with the EEO and human relations commission in so doing (not supplanting or replacing these departmental roles).

(11) Enlists the support of civic, labor, religious, professional, business, industrial, and educational programs within the community regarding human rights and community relations practices, laws, regulations, policies, and programs affecting equality and opportunities for persons of all ethnicities, to champion diversity at every level of community life; actively participates with organizations conducing workforce development, job training, and access to hiring activities throughout the community; ensures the programs have significant components that ensure inclusion and access to underrepresented and historically disadvantaged groups; provides advice, program development, and coordination for these efforts.

(12) Serves as liaison between the Huntsville Council of Neighborhood Associations and other neighborhood organizations and the mayor, presenting to the mayor the input and recommendations of the community. Attends neighborhood, civic, and business meetings as required.

(13) Requires regular and prompt attendance plus the ability to work well with others and work well as a team.

(14) Provides supervision and direction to all personnel assigned to the ODEI.

(15) Effectively communicates the relationship between diversity, equity and inclusion and organization's goals, major systems, policies, and management; works with other professionals to coordinate programs and promote the multicultural message and events.

(16) Assumes other duties and responsibilities as may be directed from the mayor or city administrator.

(17) Performs related work as required and performs any and all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-343—2-352. Reserved.

DIVISION 3. OFFICE OF CITY COUNCIL*

Sec. 2-353. Office of city council established.

The office of the city council is hereby established as a department of the city. The department provides the administrative and logistics structure necessary for the orderly operations and duty performance of the city council. For policy and procedures governing the operations of the city council, refer to City Code, Chapter 2, Article III.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-354—2-383. Reserved.

*__Editor's note—__Ord. No. 23-155, § 4, adopted March 9, 2023, repealed div. 3, §§ 2-321—2-324, which pertained to department of urban development and derived from Ord. No. 11-713, adopted Sept. 27, 2011.

DIVISION 4. OFFICE OF THE CITY CLERK

Sec. 2-384. Office of city clerk established; term of office; bond.

(a) The office of the city clerk is hereby created. The office of city clerk shall be under the general supervision and control of the city clerk, who may also be referred to as the clerk. The city clerk shall be a department head of the city and shall be appointed by the mayor subject to the approval of the city council as provided by law.

(b) The city clerk shall hold office for the term of the mayor making the appointment and until a successor is appointed and qualified. The city clerk shall be under the general supervision and control of the mayor, who establishes the qualifications of the position, and shall administer the department in accordance with city policies and procedures and the laws of the State of Alabama.

(c) For the faithful discharge of the duties of his office, the city clerk shall make bond with surety approved by the mayor in such sum as the city council may prescribe, the premium of which shall be paid by the city. Where the duties of the clerk are being performed in the clerk's absence, the person performing those duties shall be bonded.
(Ord. No. 23-155, § 7, 3-9-2023)

Sec. 2-385. Duties of the clerk.

The city clerk shall, acting directly or through subordinates or designees, exercise the powers now or hereafter conferred and discharge the duties now or hereafter imposed upon the office by the laws of the state, except as hereinafter provided, and the ordinances and resolutions of the city. Such powers and duties of the clerk include, but are not necessarily limited to, each of the following:

(1) *Department head.* The city clerk shall be the department head of the office of the city clerk. As department head, the city clerk shall plan, assign and supervise the work of all personnel of his department through subordinate supervisors or directly. The clerk prepares the annual budget for his department. The clerk shall act as liaison between his office and private citizens, organizations, and businesses; city officials, officers, department heads, departments, boards, commissions and agencies; and other governmental entities and public agencies. Work is reviewed through audits, periodic reports, and program evaluations.

(2) *Assistance to mayor.* In matters related to his office and, more broadly, the operations of the city through its various departments, the clerk shall serve as an executive director of the city, directly assisting and advising the mayor in management of the city. He shall prepare special reports and attend special meetings as may be required by the mayor. The clerk shall assist and collaborate with the mayor in the development, implementation, and furtherance of city goals, plans, and policies.

(3) *City council duties.* The clerk shall provide support and assistance to the city council in the organization, submission, and preparation of its agendas. The clerk shall attend the meetings of the city council and keep a record of its proceedings and minutes and shall oversee the preparation of the minutes. He shall have the custody of the rules, ordinances, and resolutions of the city council and shall keep a record of them when adopted by the city council. The city clerk shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the city clerk which are pertinent to the performance of the councilmember's duties. In matters related to his office, the clerk shall prepare special reports and attend special meetings as may be required by the city council.

(4) *Elections.* The clerk shall coordinate, manage, and supervise the conduct of municipal elections; receive and file election statements as required by law; direct and supervise election personnel and ensure compliance with federal, state, and local laws and regulations. The clerk

shall serve as absentee election manager in the conduct of municipal elections in accordance with applicable state law.

(5) *Custodian of seal and records; maintenance of records.* The clerk shall have the custody of the city seal and impress the seal upon all papers and documents where the seal of the city must appear. Unless otherwise provided by applicable law, the clerk shall be the custodian of the city's records and documents and shall attest or certify to their authenticity as appropriate. The city clerk shall maintain an appropriate system to ensure the proper filing, indexing, maintenance, storage, and disposal of city records and documents in accordance with applicable law.

(6) *Publication; recordation.* The clerk shall oversee the publication and postings of all official notices, ordinances, advertisements, and related matters, and shall record in the probate records legal documents, as appropriate.

(7) *Attesting documents.* The clerk is responsible for attesting city documents, or the execution thereof, where such formality is required or authorized.

(8) *Print office; mail.* The clerk shall direct the receipt and distribution of external and internal mail and directs the city's printing and supply office.

(9) *Dissemination of information; communication.* The clerk shall prepare and disseminate information to the public relative to public notices and other city ordinances.

(10) *Budgeting and debt assistance.* The clerk, as appropriate or as requested by the finance director, shall assist with the preparation of the annual budget, sales of warrants, bonds and other evidences of indebtedness (hereinafter referred to in this division as "debt"), and preparation of debt packages, and similar matters.

(11) *Additional duties.* The clerk, in addition to the enumerated duties, shall perform related work as required, and shall perform any and all duties that may be required of him by ordinance or resolution. The position classification specification developed and implemented through the department of human resources may provide for such marginal duties as may be required for the position consistent with the duties set forth herein.

(Ord. No. 23-155, § 7, 3-9-2023)

Sec. 2-386. Absence of clerk; assumption of powers and duties.

Whenever the clerk shall be absent from his office or shall be unable to discharge the powers and duties of his office, the records maintenance supervisor shall immediately assume the powers and duties of the office as acting city clerk during such time, or, if at the direction of the mayor, the city administrator, or his designee, shall immediately assume the powers and duties of the office as acting clerk during such time.

(Ord. No. 23-155, § 7, 3-9-2023)

Secs. 2-387—2-414. Reserved.

DIVISION 5. FINANCE DEPARTMENT

Sec. 2-415. Finance department established; term of office; bond.

(a) The finance department is hereby created. The department of finance shall be under the general supervision and control of the director of finance. The positions of city treasurer and city auditor are established and consolidated, including all duties, responsibilities, and authorities as prescribed to those positions by state code. The city treasurer-auditor shall be designated as the director of finance. The director of finance, who may also be referred to as finance director, shall be a department head of the city and shall be appointed by the mayor subject to the approval of the city council as provided by law.

(b) The finance department shall be comprised of the divisions, employees, units, and functions that are under the general supervision, management, and control of the director of finance who

shall plan, organize, and direct the activities and develop and implement the policies and procedures of the finance department and its divisions.

(c) The finance director shall hold office for the term of the mayor making the appointment and until a successor is appointed and qualified. The finance director shall be under the general supervision and control of the mayor, who establishes the qualifications of the position, and shall administer the department in accordance with city policies and procedures, generally accepted accounting principles, and the laws of the State of Alabama.

(d) For the faithful discharge of the duties of his office and the safe custody of municipal funds, the finance director shall make bond with surety approved by the mayor in such sum as the city council may prescribe, the premium of which shall be paid by the city. Where the duties of the finance director are being performed in the finance director's absence, the person performing those duties shall be bonded.
(Ord. No. 23-155, § 8, 3-9-2023)

Sec. 2-416. Finance director duties.

The director of finance, acting directly or through subordinates or designees, shall exercise the powers now or hereafter conferred and discharge the duties now or hereafter imposed upon the office by the laws of the state and the ordinances and resolutions of the city. Except for those duties or powers conferred or delegated by state law or city ordinance or resolution upon some other official, officer or employee of the city, the director of finance shall have charge of the administration of the financial affairs of the city. The powers and duties of the finance director include, but are not necessarily limited to, each of the following:

(1) *Department head.* The director of finance shall be the department head of the finance department. As department head, the finance director shall plan, assign, and supervise the work of all personnel of his department through subordinate supervisors or directly. The finance director prepares the annual budget for his department. The finance director shall act as liaison between his office and private citizens, organizations, and businesses; city officials, officers, department heads, departments, boards, commissions and agencies; and other governmental entities and public agencies. Work is reviewed through audits, periodic reports, and program evaluations.

(2) *Assistance to mayor.* In matters related to his office and, more broadly, the operations of the city through its various departments, the finance director shall serve as an executive director of the city, directly assisting and advising the mayor in management of the city. He shall prepare special reports and attend special meetings as may be required by the mayor. The finance director shall assist and collaborate with the mayor in the development, implementation, and furtherance of city goals, plans, and policies.

(3) *City council duties.* The finance director shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the finance director which are pertinent to the performance of the councilmember's duties. In matters related to his department, the finance director shall prepare special reports and attend special meetings as may be required by the city council.

(4) *City auditor duties.*

a. Auditing; claims and demands; issuance of warrants. The finance director shall submit all claims, requisitions, and demands against the city to the city council at its next regular meeting for its approval, unless already provided for by ordinance or resolution, and upon its being approved by the city council and the passage of ordinances carrying it into effect when necessary, said finance director shall issue warrant on the city treasury for the amount of such claim, requisition,

or demand. Before issuing any warrant, the finance director shall audit the claim, certify to its correctness, and keep a record thereof, which record shall also show to what department or departments it is chargeable.

b. Books and accounts. The finance director shall keep a convenient set of books in which there shall be kept a separate account with each collecting officer of the city. He shall keep a separate account with each department for which a separate appropriation shall have been made, crediting the amount of the appropriation and charging warrants drawn against the same. He shall keep such other accounts as may be necessary to show the financial condition of the city and of each department thereof at all times. He shall not allow the amount appropriated for any item of expense to be drawn on for any other purpose. He shall not allow any warrant to be drawn unless sufficient funds actually be in the treasury to the credit of the fund upon which such warrant is drawn unless specifically authorized by an ordinance.

c. Internal audits. With approval of the mayor, the finance director shall inspect and audit any accounts or records of financial transactions which may be maintained in any office, department or agency of the city government apart from or subsidiary to the accounts kept in his office. In addition, the finance director is responsible for managing the annual audit contract and coordinating the timely completion of the city's annual independent audit and development of an effective plan for the resolution of any internal control weaknesses or deficiencies identified in the annual audit report.

(5) *Custodian of funds; warrants; records and reports, interest on warrants.*

a. The finance director shall be the custodian of the funds of the city, keeping an accurate record of the funds of the several departments, and shall keep books showing accurately the financial condition of the city.

b. [Disbursement.]

1. The finance director shall pay out money only upon warrants drawn by the officers authorized by applicable law to draw warrants upon the treasury, and when paid shall keep safely the warrants so drawn. Such warrants shall be drawn by the finance director on the city treasury the warrants showing to what department the same is to be charged, and the city council may authorize the finance director to draw such warrants on the city treasury, or one of the city depositories, without the approval of the mayor; except, that in all instances the approval of the mayor shall have first been inscribed upon the voucher for the payment of which such warrant is drawn. No warrant shall be drawn except by authority of law or ordinance.

2. Notwithstanding any provision of this Code to the contrary, whenever the payment of city funds is required or authorized by warrant drawn upon the city treasury approved, or the invoice thereof approved, by the mayor, such payment instead may, where authorized by law, be made by electronic funds transfer or by a check drawn upon the appropriate city depository, which check

shall be signed by the mayor and countersigned by the finance director.

3. All authorized payments made by electronic funds transfers shall be under the supervision and control of the finance director and such payments shall be coordinated and submitted through the finance department and in accordance with all applicable laws. The finance director is responsible to ensure that such payments are initiated, executed, and approved in a secure manner, and in accordance with all applicable laws, and may establish policies and procedures relative thereto.

c. No expenditure shall be allowed unless the same shall have been duly authorized in accordance with the financial policies of the city.

d. The finance director shall keep a record of all warrants presented for payment which are unpaid for want of funds and shall pay them when funds are available in the order of their presentation.

e. The finance director shall make report as required by state law and the city council of the financial condition of the account of each department authorized to draw on the city treasury and shall make a quarterly statement, under oath, of the financial condition of the city to the city council.

f. If no interest is stipulated to be paid on warrants drawn upon the city treasury and not paid for want of funds, then the legal rate shall be allowed from the time of presentation, which time shall be endorsed by the finance director on the warrant with his signature, but no interest shall be paid on such warrants after notice has been posted in the office of the finance director or in the office of the mayor that such warrants will be paid on demand.

(6) *Tax administration; licenses.* The finance director shall oversee the administration and enforcement, including auditing, assessment, and collection, of the city's tax laws in accordance with applicable state and city laws, including chapter 15 of this Code. The finance director shall issue city business licenses and shall have general supervision and control over the city's licensing division, which includes the administration and enforcement of business licenses and related regulatory matters associated therewith, including alcoholic beverage licensure, bingo operations, vehicles for hire, and residential solicitation.

(7) *Collection of monies.* The finance director shall collect all special assessments, license fees and other revenues of the city for whose collection the city is responsible and receive all money receivable by the city from the county, state, or federal government, or from any court, or from any office, department or agency of the city.

(8) *Financial policies and programs.* The finance director shall, in accordance with and pursuant to applicable law, including chapter 2, article IV of this Code, administer the financial policies and programs of the city including, but not necessarily limited to, the investment of city funds, budgeting and financial management, debt management, and procurement and contract administration.

(9) *Debt.* Unless otherwise provided for by applicable law, the finance director shall have supervision over the preparation of all materials involved with the issuance of warrants, bonds and other evidences of indebtedness (hereinafter referred to in this division as "debt"), including without limitation resolutions, ordinances, debt

instruments, requests for proposals by financial institutions for loans to be evidenced by debt instruments, advertisements for sale of debt, amortization schedules for debt, preparation of debt prospectuses, conduct of sale of debt, and delivery of debt instruments, compliance with federal tax regulations as respects debt the interest on which is exempt from federal income taxation, and all similar matters, all subject to provisions of law and municipal ordinances, applicable thereto.

(10) *Payroll.* The finance director shall prepare and execute the city's payroll and related processes.

(11) *Financial accounting, reporting and record-keeping.* Except for those duties conferred on or delegated or assigned to other city officers or employees by applicable law, the finance director shall perform, or oversee and supervise the performance of, the financial accounting, reporting, and record-keeping activities of the city, including, but not necessarily limited to, the day-to-day management of accounts payable and general ledger activities; and the timely and accurate preparation of all monthly, quarterly, and annual financial statements, schedules, and reports, including the annual comprehensive financial report.

(12) *Inventory and tracking of city property; listing evaluation of property.* The finance director shall prepare and keep on file an up-to-date inventory of, and shall track, all the capital assets of the city. In securing such inventory and tracking, the director of finance shall have the right to call upon any officer, agent, or employee of the city for any desired information at the discretion of the mayor. The inventory shall also show the approximate value of each asset.

(13) *Grant management.* Unless expressly delegated or assigned to other city officers or employees, the finance director is responsible for the oversight and administration of grant-related financial activity for the city, including proper budgeting and accounting for grants, tracking and reporting of grant activity, reviewing of financial reports generated by recipient departments, identifying and investigating issues that might arise with respect to the management of grants, assisting with grant submittals, establishing financial policies and procedure for grant management, and meeting the requirements under federal law of non-federal entities expending federal awards (single audit).

(14) *Moneys to be paid over.* The finance director shall receive from the officers, employees, and agents of the city all money belonging to the city received or collected by them. The finance director shall deposit all money so received in authorized depositories.

(15) *Public depository; liability for loss.* The city council hereby directs that those qualified public depositories, defined and designated as such pursuant to the Code of Ala. 1975, tit. 41, ch. 14A, are depositories where the finance director shall deposit public money, with interest being paid thereon and security given therefor by the depository. As to deposits made under the authority of an ordinance of the council, neither the finance director nor his bondsmen if the finance director has exercised due care shall be further liable for any loss occasioned thereby.

(16) *Additional duties.* The finance director, in addition to the enumerated duties, shall perform related work as required, and shall perform any and all duties that may be required of him by ordinance or resolution. The position classification specification developed and implemented through the department of human resources may provide for such marginal duties as may be required for the position consistent with the duties set forth herein.

(Ord. No. 23-155, § 8, 3-9-2023; Ord. No. 25-388, § 19, 5-22-2025)

Sec. 2-417. Absence of finance director; assumption of powers and duties.

Whenever the finance director shall be absent from his office or shall be unable to discharge the powers and duties of his office, the deputy finance director shall immediately assume the powers and duties of the office as acting finance director during such time, or, if at the direction of the mayor, the city administrator, or his designee, shall immediately assume the powers and duties of the office as acting finance director during such time.
(Ord. No. 23-155, § 8, 3-9-2023)

Secs. 2-418—2-455. Reserved.

DIVISION 6. GENERAL SERVICES DEPARTMENT

Secs. 2-456—2-496. Reserved.

DIVISION 7. HUMAN RESOURCES DEPARTMENT

Secs. 2-497—2-527. Reserved.

DIVISION 8. INFORMATION TECHNOLOGY SERVICES DEPARTMENT

Secs. 2-528—2-558. Reserved.

DIVISION 9. OFFICE OF THE CITY ATTORNEY

Secs. 2-559—2-589. Reserved.

DIVISION 10. PARKS AND RECREATION DEPARTMENT

Secs. 2-590—2-620. Reserved.

DIVISION 11. HUNTSVILLE POLICE DEPARTMENT

Secs. 2-621—2-651. Reserved.

DIVISION 12. HUNTSVILLE FIRE AND RESCUE DEPARTMENT

Secs. 2-652—2-685. Reserved.

DIVISION 13. MUNICIPAL COURT

Secs. 2-686—2-725. Reserved.

DIVISION 14. HUNTSVILLE ANIMAL SERVICES DEPARTMENT

Secs. 2-726—2-756. Reserved.

DIVISION 15. CEMETERY DEPARTMENT

Secs. 2-757—2-787. Reserved.

DIVISION 16. LANDSCAPE MANAGEMENT DEPARTMENT

Secs. 2-788—2-818. Reserved.

DIVISION 17. DEPARTMENT OF PARKING AND PUBLIC TRANSIT

Secs. 2-819—2-850. Reserved.

DIVISION 18. PUBLIC WORKS DEPARTMENT

Secs. 2-851—2-890. Reserved.

DIVISION 19. COMMUNITY DEVELOPMENT DEPARTMENT

Secs. 2-891—2-921. Reserved.

DIVISION 20. CITY ENGINEERING DEPARTMENT

Secs. 2-922—2-952. Reserved.

DIVISION 21. INSPECTIONS DEPARTMENT

Secs. 2-953—2-983. Reserved.

DIVISION 22. NATURAL RESOURCES DEPARTMENT

Secs. 2-984—2-1014. Reserved.

DIVISION 23. PLANNING DEPARTMENT

Sec. 2-1015. Planning department established.

(a) The planning department is hereby established. The planning department, in accordance with applicable laws, provides for the orderly growth, development and redevelopment of the city through the development and implementation of comprehensive and master plans, and planning initiatives and priorities; administers and enforces the planning laws of the city, including the zoning and subdivision regulations; and provides support for municipal planning bodies, including the planning commission and board of zoning adjustment, in the performance of their statutory duties established pursuant to state planning, zoning and subdivision enabling legislation.

(b) The planning department shall be under the general supervision and control of the director of planning, who may also be referred to as the planning director. The planning director, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law. The planning director shall hold office for the term of the mayor making the appointment. The planning director shall be under the direct supervision and control of the director of economic and urban development. The planning department provides staff support for the planning commission in performance of the duties outlined in Code of Ala. 1975, Tit. 11, Ch. 52, with respect to planning, zoning, and subdivision regulations. Generally, the planning director shall be available to the councilmembers to respond to requests for information or questions related to matters under the general control of the planning director pertinent to the performance of a councilmember's duties.
(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-1016. Duties of the director of planning.

The duties of the planning director, which shall be performed in accordance with applicable laws, include the following:

(1) Plans, organizes, and directs the activities of the planning department; supervises and participates in the preparation of comprehensive reports based upon careful research and study of planning problems.

(2) Plans, organizes, and directs the activities of professional, technical, and clerical personnel engaged in the compilation, analysis, and interpretation of data affecting planning.

(3) Supervises the managers of urban and long-range planning, planning and zoning services, and geographic information services; ensures constant communication, coordination, and collaboration between the divisions of the department.

(4) Directs maintenance and revision of the city's master plan, small area planning products, zoning ordinances, and other planning documents necessary for the management of the city's planning and development programs.

(5) Serves as a technical advisor to the planning commission on city planning and development matters; recommends projects and programs to be undertaken.

(6) Monitors all activities of the metropolitan planning organization, ensuring effective administration of the organization's duties.

(7) Advises and cooperates with city officials in connection with new or contemplated capital improvements; assists in prioritizing the development of infrastructure necessary to sustain the growth and orderly functioning of the urban area.

(8) Provides technical advice and investigation assistance for the board of zoning adjustment and other city boards/commissions as required.

(9) Maintains liaison with governmental agencies and officials throughout the metropolitan area.

(10) Prepares the annual budget for the department.

(11) Performs related work as required and performs any and all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-1017—2-1019. Reserved.

Sec. 2-1020. Planning and zoning services division established.

(a) The planning and zoning services division is hereby established as a division of the planning department. The responsibilities of planning and zoning services division include administering and enforcing the planning laws of the city, including the zoning and subdivision regulations; and providing support for municipal planning bodies, including the planning commission and board of zoning adjustment, in the performance of their statutory duties established pursuant to state planning, zoning and subdivision enabling legislation.

(b) The manager of planning and zoning services shall have the responsibility for the day-to-day supervision of the planning and zoning services division. The manager of planning and zoning services, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law. The manager of planning and zoning services shall hold office for the term of the mayor making the appointment. The manager of planning and zoning services shall be under the direct supervision and control of the director of planning. In the event of vacancy in the director of planning position, the manager of planning and zoning services shall perform the duties of department head for the division and shall be under the direct supervision and control of the director of economic and urban development. The planning and zoning services division provides staff support for the planning commission in performance of the duties outlined in Code of Ala. 1975, Tit. 11, Ch. 52, with respect to planning, zoning, and subdivision regulations. Generally, the manager of planning and zoning services shall be available to councilmembers to respond to requests for information or questions related to matters under his general control which are pertinent to the performance of a councilmember's duties.
(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-1021. Duties of the manager of planning and zoning services.

The duties of the manager of planning and zoning services, which shall be performed in accordance with applicable laws, include the following:

(1) Plans, organizes and directs the activities of the planning and zoning services division; supervises and participates in the preparation of comprehensive reports based upon careful research and study of planning problems.

(2) Plans, organizes and directs the activities of professional, technical and clerical personnel engaged in the compilation, analysis and interpretation of data affecting planning and zoning services.

(3) Directs the development and updating of land use zoning regulations for adoption by the city council; prepares and revises zoning ordinances, zoning maps, and subdivision regulations; directs implementation of land use zoning regulations which include the zoning ordinance, subdivision regulations, adopted land use plans, and other elements and policies of the city's comprehensive plan.

(4) Consults with public works engineering staff, architects, contractors, and individuals regarding land development and site development.

(5) Serves as project supervisor for various planning and zoning services activities, projects, and plans. Manages consultant contracts.

(6) Serves as technical advisor to the planning commission on city planning and development matters; recommends projects and programs to be undertaken.

(7) Assists in implementation of the city's master plan and the coordination of the public interests with the private sector in enforcement of land development policies; coordinates with other departments in implementing the master plan and coordinates with research park manager to advance development of the research park.

(8) Advises and coordinates with city officials in connection with new or contemplated capital improvements.

(9) Provides technical advice and investigative assistance for the board of zoning adjustment.

(10) Maintains liaison with governmental agencies and officials in the metropolitan area.

(11) Makes oral and written presentations of strategies and recommendations to city council, boards, commissions, and public and private organizations; prepares various correspondence and reports regarding planning and zoning issues and policies.

(12) Prepares the annual budget for the division.

(13) Performs related work as required and performs any and all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-1022—2-1025. Reserved.

Sec. 2-1026. Urban and long-range planning division established.

(a) The division of urban and long-range planning is hereby established as a division of the planning department. The responsibilities of the division of urban and long-range planning include the development and implementation of comprehensive and master plans, and planning initiatives and priorities.

(b) The urban and long-range planning division shall be under the general supervision and control of the manager of urban and long-range planning. The manager of urban and long-range planning, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law. The manager of urban and long-range planning shall hold office for the term of the mayor making the appointment. The manager of urban and long-range planning shall be under the supervision and control of the director of planning. In the event of vacancy in the director of planning position, the manager of urban and long-range planning shall perform the duties of department head for the division and shall be under the direct supervision and control of the director of economic and urban development. Generally, the manager of urban and long-range planning shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the manager of urban and long-range planning which are pertinent to the performance of a councilmember's duties.
(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-1027. Duties of the manager of urban and long-range planning.

The duties of the manager of urban and long planning, which shall be performed in accordance with applicable laws, include the following:

(1) Plans, organizes, and directs the activities of the urban and long-range planning division; supervises and participates in the preparation of comprehensive reports based upon careful research and study of planning problems.

(2) Plans, organizes and directs the activities of professional, technical, and clerical personnel engaged in the compilation, analysis and interpretation of data affecting urban planning and development.

(3) Serves as technical advisor to the planning commission on city planning and development matters, recommends projects and programs to be undertaken.

(4) Serves as the transportation planning coordinator for the metropolitan planning organization.

(5) Advises and cooperates with city officials in connection with new or contemplated capital improvements.

(6) Maintains liaison with governmental agencies and officials in the metropolitan area.

(7) Advises the public regarding long-range planning and/or land use regulations. Facilitates communication among interested individuals and groups with differing views on planning problems.

(8) Serves as project supervisor for various urban and long-range planning activities, projects, and plans. Manages consultant contracts.

(9) Coordinates transportation planning activities as related to federal highway administration urban area planning regulations, the 20-year highway plan, the 5-year transportation improvement plan, the planning commission major street plan, and the Huntsville urban area transportation computer model; manages and administers transportation grants; serve as staff liaison to regional metropolitan transportation planning organization.

(10) Directs and coordinates the implementation of the city's master plan, and the coordination of the public interests with the private sector in the development and enforcement of land development policies; coordinates with other departments in implementing the city's recreation plan and other plans, assists in the development of industrial parks and with companies seeking to relocate to the city; coordinates with research park manager to develop the research park.

(11) Directs the development and updating of land use zoning regulations for adoption by the city council, preparation and revision of zoning ordinances, zoning maps, and subdivision regulations; directs implementation of land use zoning regulations which include the zoning ordinance, subdivision regulations, adopted land use plans, and other elements and policies of the city's comprehensive plan.

(12) Consults with public works engineering staff, architects, contractors, and individuals regarding land development and site development.

(13) Plans, organizes, and schedules reviews, and evaluates the work of clerical, and professionals involved in preparation of studies, regulations, designs, plans and giant applications and other urban planning, long range planning and development related activities.

(14) Makes oral and written presentations of strategies and recommendations to city council, boards, commissions, public and private organizations, prepares various correspondence and reports regarding urban and long-range planning issues and policies.

(15) Prepares the annual budget for the division.

(16) Performs related work as required and performs any and all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-1028—2-1034. Reserved.

Sec. 2-1035. Geographic information services division established.

The division of geographic information services is hereby established as a division of the plan-

ning department. The geographic information services division shall be under the general supervision and control of the manager of geographic information services. The manager of geographic information services, whose qualifications are established by the mayor, shall be appointed by the mayor subject to the approval of the city council as provided by law. The manager of geographic information services shall hold office for the term of the mayor making the appointment. The manager of geographic information services shall be under the supervision and control of the director of planning. In the event of vacancy in the director of planning position, the manager of geographic information services shall perform the duties of department head for the division and shall be under the direct supervision and control of the director of economic and urban development. Generally, the manager of geographic information services shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the manager of geographic information services which are pertinent to the performance of a councilmember's duties.
(Ord. No. 23-322, § 1, 4-27-2023)

Sec. 2-1036. Duties of the manager of geographic information services.

The duties of the manager of geographic information services, which shall be performed in accordance with applicable laws, include the following:

(1) Plans, organizes, directs, coordinates, and evaluates the activities of a division of the planning department; makes personnel management determinations to ensure division goals and objectives are met; trains, assigns, reviews, evaluates and provides technical assistance to the professional and technical staff; prioritizes projects, establishes schedules, selects project leaders and assigns staff to various projects.

(2) Supervises installation and maintenance of operating systems, protocols, servers, workstations, plotters and related software; supervises and participates in development and/or purchase of new software/hardware systems, evaluation of software/hardware, and coordination of GIS internet web pages. Responsible for cloud services and storage.

(3) Develops a comprehensive GIS tailored to planning and urban development criteria including creating, managing and maintaining multiple databases such as flood zones, land use, zoning, city limits, soils, hydrology, geology, topography, political districts, sanitary sewers, storm sewers, and other infrastructure; supervising and managing the production of topographic, thematic and planimetric mapping; developing topology between map sets and geographic databases.

(4) Plans, organizes, and budgets for the systematic updates of the city's base maps; distributes base maps to all city departments in electronic format; addresses special needs and means of data distribution such as palm computers, laptops or other hardware/software configurations.

(5) Responsible for the creation and distribution of city addresses providing a unique and standardized address database to be used by all city departments.

(6) Develops and maintains geo-spatial data in electronic formats suitable for download via the internet for developers, engineers, and the general public.

(7) Develops and maintains a global position system (GPS) network to be used by surveyors for subdivision submittals, aerial mapping projects and engineering projects. Publishing GPS coordinates in print and internet webpages; providing GPS coordinates for federal and state permits.

(8) Coordinating with other city departments, private engineers, architects, land developers and others in implementing city policies, procedures and transfers of electronic data; advises the public as to

the information and databases via the GIS system; sets standards and policies concerning the release and/or sell of digital data.

(9) Makes oral and written presentations to boards, commissions, public and private organizations, city council and/or other city administrative panels and divisions; prepares reports and correspondence regarding GIS technology, capabilities, and policy issues.

(10) Supervises the production and distribution of technical graphics, cartographic work, and desktop publishing associated with the planning department including specifying particular hardware configurations and software packages.

(11) Plans and controls the annual division budget; confers with planning department divisions in planning budget items and expenditures; supervises and directs budget expenditures.

(12) Develops short- and long-range strategic plans for GIS development; recommends projects and programs to be undertaken; defines project requirements; supervises and writes proposals and specifications for plans; advises and coordinates with planning and urban development staff on matters related to GIS.

(13) Supervises, trains, reviews, and evaluates the work of professional, paraprofessional, and technical staff; prioritizes divisional work activities through subordinate supervisors; manages day to day operation of GIS staff.

(14) Serves as a contract manager for various professional service contracts performing services for GIS.

(15) Performs related work as required and performs all duties that may be required of him by ordinance or resolution.

(Ord. No. 23-322, § 1, 4-27-2023)

Secs. 2-1037—2-1055. Reserved.

DIVISION 24. TRAFFIC ENGINEERING DEPARTMENT

Secs. 2-1056—2-1090. Reserved.

DIVISION 25. WATER POLLUTION CONTROL DEPARTMENT

Secs. 2-1091—2-1290. Reserved.

ARTICLE VIII. BOARDS, COMMISSIONS, COMMITTEES AND AUTHORITIES*

DIVISION 1. GENERALLY

Sec. 2-1291. Number of members.

*__Editor's note—__The following boards, commissions or authorities exist even though not codified in this Code. Except as noted, they are established under state law with their own articles of incorporation.

Authorities:

DRA (90-356).
Historical Preservation Authority.
Marina and Port Authority.
H-MC Airport Authority.
SWDA (85-81, 89-295).
Educational Building Authorities: APT, Faulkner, Madison, Academy, Randolph, UAH.
Health Care Authority.
Housing Authority.
Railroad Authority (84-252).
PBA (95-811).

Other:

GUSC (98-313).
Mental Retardation Board (90-384).
HEMSI Board (93-845—amends A/I).
Mental Health Board (68-196, 80-342).
Industrial Development Board (70-259).
Medical Clinic Board (5th Avenue) (67-334).
Medical Clinic Board (1966)(66-73).
Medical Clinic Board (1973)(8/9/73).
MC DHR Board (county board created pursuant to state law).
MC Communications District Board (county board created pursuant to state law).
Cummings Research Park West Design Control Committee (created by protective covenants).
SWDA Advisory Committee (created by SWDA).
Emergency Response Evaluation Committee (99-758).
Insurance Committee.
Human Resources Board.

Cross references—Any ordinance creating or amending the powers of an authority, board or commission not codified in this Code saved from repeal, § 1-11(10); any ordinance

The number of members on each board, committee, commission, agency or like body of the city shall remain the same as was authorized for such board, committee, agency or like body prior to the enactment of Code of Ala. 1975, § 11-40-21.
(Ord. No. 93-452, 7-8-1993)

Sec. 2-1292. Removal of members for absences from meetings.

(a) Any member of a board, committee or agency created by the city council the authority of which is provided for by ordinance who accrues three unexcused absences within a six-month period from regularly scheduled meetings of any such board, committee or agency that holds regular meetings on a monthly or more frequent basis or two unexcused absences within a one-year period from regularly scheduled meetings of any such board, committee or agency that holds regular meetings on a less than monthly basis shall be deemed to have resigned from such board, committee or agency and shall not be eligible for appointment or reappointment to any board, committee or agency of the city for a period of one year from the date of such resignation.

(b) Upon termination of membership of any member of a board, committee or agency of the city pursuant to the provisions of subsection (a) of this section, the board, committee or agency shall notify the president of the city council (if the appointment was made by the city council) or the mayor (if the appointment was made by the mayor) that a vacancy exists on such board, committee or agency.

(c) For purposes of this section, an unexcused absence shall mean any absence other than one resulting from illness, a personal or family medical emergency, death of a family member, an act of God, or circumstances beyond the control of the member which prevents such member from being able to attend.

(d) If the provisions of this section are more restrictive than the bylaws of any board, committee or agency governed by this section, the provisions of this section shall control.

(e) The provisions of this section shall not apply to any member of an authority authorized to be incorporated by the city as provided under state law.
(Ord. No. 96-866, §§ 1—5, 11-14-1996)

Sec. 2-1293. Terms; reappointment.

(a) Members of each board or committee created by the city council shall serve in such capacity for no more than two full consecutive terms, excluding partial terms, as such terms are established in the resolution or ordinance creating the board or committee, or for a period of 12 years, whichever is less. Any member of a board or committee who is serving at the time of the adoption or approval of this section shall be permitted to serve out the remainder of such term, the provisions of this section notwithstanding.

(b) Subsection (a) of this section notwithstanding, any member of a board or committee created by the city council may be reappointed to such board or committee by a four-fifths vote of the council membership, regardless of the number of terms or years served on such board or committee.
(Ord. No. 96-887, 10-24-1996)

Secs. 2-1294—2-1300. Reserved.

DIVISION 2. ADVISORY COMMISSION ON ACCESSIBILITY

Sec. 2-1301. Created.

The Advisory Commission on Accessibility is created.

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making appointments to positions, offices or boards saved from repeal, § 1-11(11); license review committee, § 3-51; traffic regulation by airport authority, § 6-61 et seq.; board of examinations and appeals for construction industries, § 7-91 et seq.; housing board of adjustments and appeals, § 7-354; board of adjustments and appeals for nonresidential building maintenance standards, § 7-505; board of adjustments and appeals for junk, litter and inoperable vehicles for private property, § 12-172; stormwater management board, § 12-361 et seq.; alarm advisory board, § 17-305; zoning board of adjustment, app. A, ch. IX, art. 92.

Sec. 2-1302. Membership; functions.

(a) The mayor and city council shall appoint ten members to the Advisory Commission on Accessibility as set out in this section.

(b) The following members shall represent the city:

(1) President of the city council or his designee.

(2) Director of parking and public transit or his designee.

(3) Parking division manager or his designee.

(4) Manager of the inspection division or his designee.

(c) The remaining six members shall be appointed by the mayor and city council in the following manner:

(1) Three members shall be appointed by the mayor and three members by the city council. Of the members appointed, two shall be appointed for a term of one year, two for a term of two years, two for a term of three years, and all members after initial appointments shall be appointed for terms of three years. However, the president of the city council, representatives of the department of parking and public transit, and the inspection division shall serve only during their term of office or employment. Continued absence of any member from regular meetings of the commission shall render any such member liable to removal from office at the discretion of the appointing authorities of the city.

(2) At least four of the six members appointed by the mayor and city council (two members appointed by the mayor and two members appointed by the city council) shall have a disability.

(d) The commission shall serve in an advisory capacity to the director of parking and public transit.

(e) Each member shall serve in his term until reappointment.

Sec. 2-1303. Bylaws.

The Commission on Accessibility shall establish and adopt its own bylaws of procedures.

Secs. 2-1304—2-1330. Reserved.

DIVISION 3. AIR POLLUTION CONTROL BOARD

Sec. 2-1331. Created.

The Air Pollution Control Board is created.
(Ord. No. 96-25, § 1(3), 3-28-1996)

Sec. 2-1332. Membership.

(a) The Air Pollution Control Board shall consist of seven members to be appointed for the following staggered terms: Of the members first appointed, five shall be appointed by the mayor as follows: one member shall serve for two years; two members shall serve for three years; two members shall serve for four years; of the members first appointed, two shall be appointed by the city council and shall serve for five years. Continued absence of any member from regular meetings of the board shall, at the discretion of the appointing authority, be grounds for removal from office.

(b) Immediately after March 28, 1996, the mayor and city council shall appoint members of the board pursuant to the provisions of this section. Thereafter, the terms of all members shall be five years; except that upon the expiration of the term of any board member, such member shall continue to serve until his successor is appointed.
(Ord. No. 96-25, §§ 1(3), 2, 3-28-1996)

Sec. 2-1333. Quorum; officers; rules, regulations.

(a) Four members of the Air Pollution Control Board shall constitute a quorum for the transaction of business. No board member shall act in any case in which he has a personal interest. Any official action of this board must be by majority vote of those present and voting.

(b) The Air Pollution Control Board shall elect its own officers and shall keep, or cause to be kept, a full and complete record of all its proceedings, which record shall set forth the reasons for the board's decisions. The records of the board shall be open to public inspection during business hours.

(c) The Air Pollution Control Board shall establish rules and regulations for its own procedure consistent with the provisions of this division and applicable laws of the state. The board shall hold regular meetings at least once each calendar quarter at any time fixed by rule or resolution of the board. The chairman, or any three members of the board or the Air Pollution Control Officer, may call a special meeting for any stated purpose on at least 24 hours' notice to each member by mail or telephone.
(Ord. No. 96-25, § 1(3)(a)—(c), 3-28-1996)

Sec. 2-1334. Powers and duties.

The Air Pollution Control Board shall have the following powers and duties, where such powers and duties are not in conflict with or duplication of any powers and duties specifically conferred on the air pollution control officer by ordinance or resolution adopted by the city council and where such powers and duties of the board are consistent with the Alabama Air Pollution Control Act of 1971 (Code of Ala. 1975, § 22-28-1 et seq.) and rules and regulations adopted under the authority of that act:

(1) To hold such hearings as are authorized or required by the air pollution control rules and regulations of the city as adopted by the city council.

(2) To have the authority required to carry out all of the duties and functions of the board under the terms of the air pollution control rules and regulations of the city.

(3) To make recommendations to the mayor and the city council concerning the passage or amendment of any ordinance of the city concerning air pollution control and concerning the air pollution control rules and regulations of the city.

(4) To encourage voluntary cooperation by persons and affected groups to achieve the purposes of the air pollution control regulations of the city.

(5) To encourage and conduct studies, investigations and research relating to air contaminations and air pollution and their causes, effects, prevention, abatement and control.

(6) To determine by means of field studies and sampling the degree of air contamination and air pollution in the city and their several parts.

(7) To make a continuing study of the effects of the emission of air contaminants from motor vehicles on the quality of the outdoor atmosphere of the city and its several parts and make recommendations to appropriate public and private bodies with respect to the methods of abatement.

(8) To collect and disseminate information and conduct educational and training programs relating to air contamination and air pollution.

(9) To advise, consult and cooperate with agencies of the state, local governments, industries, other states, interstate or interlocal agencies and the federal government, and with interested persons or groups.

(10) To consult, upon request, with any person proposing to construct, install or otherwise acquire any air contaminant source or device or system for its control, concerning the efficiency of such device or system, or the air pollution problems which may be related to the source, device or system. Nothing in any such consultation shall be construed to relieve any person from compliance with the act, the regulations, or any other provision of law.

(11) To provide for the establishment of advisory committees, appointment of the membership of such committees, scope of investigation, and other duties, of such committees.

(12) To require from any responsible person reports containing information as may be required by the air pollution control officer concerning location, size and height of contaminant outlets, processes employed, fuels used, the nature and time periods or duration of emissions, and such other information as is relevant to air pollution.

(Ord. No. 96-25, § 1(3)(d), 3-28-1996)

Secs. 2-1335—2-1350. Reserved.

DIVISION 4. EARLYWORKS MUSEUMS BOARD*

Sec. 2-1351. Created.

The Board formerly designated as the Alabama Constitution Village Board is hereby renamed and shall henceforth be known as the Earlyworks Museums Board (the "board").

(Ord. No. 95-535, § 1, 8-10-1995; Ord. No. 25-197, §§ 1, 2, 3-27-2025)

Sec. 2-1352. Membership.

The Earlyworks Museums Board shall consist of nine members serving in numbered places to be appointed as follows:

(1) Of the members first appointed, three members shall serve one year, two of which shall be appointed by the mayor and one of which shall be appointed by the city council; three members shall be appointed by the council and shall serve initial terms of two years; three members shall be appointed by the council and shall serve initial terms of three years. Vacancies shall be filled for unexpired terms in the manner in which original appointments are made. The terms of all appointed members next appointed after the expiration of the original terms shall be three years.

(2) The members of the board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings; however, actual and necessary expenses, in amounts no greater than those appropriated by the city council, incurred in the performance of their duties, may be paid.

(Ord. No. 95-535, § 1(1), (5), 8-10-1995; Ord. No. 25-197, § 2, 3-27-2025)

Sec. 2-1353. Quorum action by board.

Five members of the Earlyworks Museums Board of the city shall constitute a quorum for the transaction of business. No member shall act in any case in which he has a personal interest. Actions by the board shall be by majority of those present.

(Ord. No. 95-535, § 1(2), 8-10-1995; Ord. No. 25-197, § 2, 3-27-2025)

Sec. 2-1354. Treasurer.

The Earlyworks Museums Board shall elect from its membership a treasurer and such assistant treasurers as it deems advisable. The treasurer elected by the board shall have custody of all funds of the board other than those funds appropriated by the city council, subject to the control of the board.

(Ord. No. 95-535, § 1(4), 8-10-1995; Ord. No. 25-197, §§ 2, 3, 3-27-2025)

Sec. 2-1355. Operation of facilities.

The Earlyworks Museums Board is granted custody and control of the Earlyworks Children's Museum and adjacent property and the Alabama Constitution Village and adjacent property. The board is also granted custody and control of the structures adjacent to the old Memphis and Charleston Depot (the "Depot") known as the "Roundhouse" and "Eunice's" until January 15, 2027, at which time custody and control of the Roundhouse and Eunice's shall return to the City of Huntsville. All property related to the Depot, other than the Roundhouse and Eunice's,

*__Editor's note—__Ord. No. 25-197, § 2, adopted March, 27, 2025, amended the title of Div. 4 to read as herein set out. The former Div. 4 title pertained to the Alabama Constitution Village Board.

shall be under the custody and control of the City of Huntsville effective upon the adoption, approval and publication of this division.
(Ord. No. 95-535, § 1(3), 8-10-1995; Ord. No. 25-197, §§ 2, 4, 3-27-2025)

Sec. 2-1356. Powers.

The Earlyworks Museums Board shall have the authority to:

(1) Do the acts and things necessary to carry out the objectives and purposes set forth in this division;

(2) Acquire by purchase, gift or loan any money, securities, objects of historical or artistic value, and other property, other than real property, for museum purposes and uses;

(3) Buy and sell, and otherwise deal, in the name of the city, in property necessary to carry out its objectives;

(4) Cooperate with any public or private corporation or organization;

(5) Do any lawful act necessary or expedient to improve such museum facilities for the people of the city;

(6) Provide for exhibitions, particularly to students of the public schools, and in general to the population of the city, depicting the role of the city and the county in the formation of the state, with particular emphasis on the portrayal of life during the era when the state was being formed and while the city served as the site of the first Constitutional Convention and as its first (temporary) capital;

(7) Encourage by appropriate means the cultivation of interest in the cultural and social value of Alabama Constitution Village, and recognition of the impact of the city upon the development and growth of the state;

(8) Provide for the exhibitions of the commercial, industrial and transportation aspects of the city's heritage;

(9) Encourage by appropriate means the cultivation of interest in the evolution of commerce, industry and transportation in North Alabama and recognition of the impact of these factors upon the development and growth of the city and its environs;

(10) Encourage by appropriate means the cultivation of children's interest in STEAM (Science, Technology, Engineering, Art and Math) through exhibits, programs, technology, etc. at the Earlyworks Children's Museum; and

(11) Provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it, and of any premises or property which may, from time to time, be in its custody provided such rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of this Code or other ordinance or resolution of the city.

In the exercise of its power, the board shall have no power or authority to obligate the city beyond the amount appropriated by the city council for its purposes.
(Ord. No. 95-535, § 1(6), 8-10-1995; Ord. No. 25-197, §§ 2, 5, 3-27-2025)

Sec. 2-1357. Management, custody, and control of objects of historical significance.

The management, custody and control of objects of historical significance or other objects belonging to the city which the city council may by resolution place under the control and management of the Earlyworks Museums Board shall be vested in the board; and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing, maintaining, and operating the facilities contemplated in this division.
(Ord. No. 95-535, § 1(7), 8-10-1995; Ord. No. 25-197, § 2, 3-27-2025)

Sec. 2-1358. Budgets, appropriations, financial procedures.

(a) The Earlyworks Museum Board shall submit to the mayor, on or before June 30 of each year, a detailed budget of estimated expenditures

for the fiscal year commencing October 1 of that year. The city council may set aside and appropriate for the use of the board, for the maintenance of the Alabama Constitution Village or the Earlyworks Children's Museum, and for the other authorized purposes of the board, either all or such part of such estimated budget as may be available or is deemed proper by the city council.

(b) Funds, other than those appropriated by the city council, shall be administered by the board and expended by it for authorized purposes only, for the operation of the Alabama Constitution Village and the Earlyworks Children's Museum, including the carrying out of any of the objectives or purposes set forth in this division, and all pertinent books and records shall at all times be subject to inspection and audit by the city clerk or finance director, or other person designated by the mayor or the city council.

(c) For the purpose of coordinating the accounting with that used in the department of finance of the city, the director of finance is authorized to determine the method of accounting for all receipts and expenditures of the board, including the form of vouchers and general accounting records. (Ord. No. 95-535, § 1(8), 8-10-1995; Ord. No. 25-197, §§ 2, 6, 3-27-2025)

Secs. 2-1359—2-1380. Reserved.

DIVISION 5. ANIMAL SERVICES ADVISORY COMMITTEE*

Sec. 2-1381. Created.

The Animal Services Advisory Committee is created.

Sec. 2-1382. Membership.

(a) The Animal Services Advisory Committee shall be composed of seven members appointed as provided in this division; and each member shall be a resident of the city who has a recognized interest in the preservation and quality of animal life, as follows:

(1) Place one shall be a practicing veterinarian licensed in the city and a member of the county veterinarian association, and shall be appointed to the committee by the city council.

(2) Places two, three, four, and five shall be members from the community at large and shall be nominated and appointed by the city council.

(3) Places six and seven shall be members from the community at large and shall be appointed by the mayor.

(b) The Director of the Animal Services Center and the Director of the Huntsville/Madison County Health Department, or his designee, shall serve as ex officio (nonvoting) members of the committee. The ex officio members shall serve throughout the length of the respective terms of the directors.

(c) Initially, places one and two shall be appointed for three-year terms; places three and four shall be appointed for two-year terms; and places five, six and seven shall be appointed for one-year terms. After the initial terms, each place shall be appointed for three-year terms.

(d) An appointee shall cease to be a member of the committee upon the appointee's death or resignation or upon the appointee's ceasing to reside in the city. Appointments to fill any vacancies on the committee shall be made only for the unexpired portion of the term so vacated.

(e) Committee members shall serve without compensation, except that committee members may be reimbursed for reasonable and necessary expenses which are incurred in the performance of their duties provided that sufficient funds have been appropriated for that purpose by the city council.

Sec. 2-1383. Organization and meetings.

(a) The Animal Services Advisory Committee shall meet and organize as soon as possible after appointments. The committee shall annually

*__Cross reference—__Animals, ch. 5.

elect from among its members a chairman, vice-chairman and a secretary. The committee, after election of its own officers, shall keep or cause to be kept a full and complete record of all of its proceedings. Such records shall set forth the reasons for the committee's decisions. The records of the committee shall be open for public inspection at the office of the director of the animal control center during normal business hours.

(b) The Animal Services Advisory Committee shall establish rules and regulations for its own procedures consistent with the provisions of this section. The committee shall hold regular meetings at least once every calendar month at any time fixed by rule or resolution of the committee. The chairman or any three members of the committee may call a special meeting for any stated purpose on at least 24 hours' notice to each member by mail or telephone. Four members of the Animal Services Advisory Committee shall constitute a quorum for the transaction of business. No committee member shall act in any case in which he has a personal interest. Any official action of this committee must be by majority vote of those present and voting.

Sec. 2-1384. Assistance.

The Director of the Animal Services Center shall furnish services from his staff to assist the Animal Services Advisory Committee on its functions.

Sec. 2-1385. Authority and duties generally.

The Animal Services Advisory Committee shall have the following duties and authority:

(1) As a principal function, to advise and give recommendations to the Director of the Animal Services Center on the management of the city's Animal Services Center and program.

(2) To hold public hearings and conduct public meetings at which citizens of the city are invited to comment on any aspect of the animal control program.

(3) To make recommendations to the Director of the Animal Services Center concerning

the organization, administration, financing and/or regulations of the Animal Services Department of the city.

(4) To assist the Director of the Animal Services Center in collecting and disseminating information and conducting educational programs relating to the activities and programs that are being carried out by the animal control program.

(5) To encourage voluntary cooperation of interested citizens and affected groups to achieve the goals and objectives of the animal control program.

(6) To form subcommittees to assist in carrying out its functions.

(7) To submit periodic reports to the mayor, city council and Director of the Animal Services Center concerning activities of the committee.

Secs. 2-1386—2-1400. Reserved.

DIVISION 6. BEAUTIFICATION BOARD

Sec. 2-1401. Created.

The Beautification Board is created.

Sec. 2-1402. Membership.

(a) The beautification board shall be composed of 21 members, 18 of which shall be appointed by the city council and three of which shall serve as provided in this section.

(b) Members of the board shall be appointed and serve as follows:

(1) The city council shall appoint 18 members, to numbered places one through 18, to serve for a term of three years, and until their successors shall be appointed and qualified. Six members shall be appointed each year with terms commencing on October 1st of the year of appointment and expiring on September 30th of the third year following appointment.

(2) The operation green team director, or such other person as the director designates.

(3) The executive director of the Huntsville Botanical Garden, during his or her term as such.

(4) A member of the county legislative delegation who represents any portion of the city selected by the entire county delegation, for a term designated by the delegation, but such term shall not exceed the term of the designee in such legislative office.

(c) No person shall be eligible to serve on the board who is not a bona fide resident citizen of the City of Huntsville. However, any current member of the board who is not a bona fide resident citizen of the City of Huntsville at the time this ordinance is enacted shall be allowed to complete his or her term.

(d) Vacancies on the board shall be filled by appointment in the same manner and on the same conditions provided for initial members. Appointments to fill vacancies shall be for the unexpired term. An appointee shall cease to be a member upon resignation to the city council, by no longer being a resident of the City of Huntsville, or upon two-thirds vote of the board for failure to attend meetings. However, any current board member who is not a citizen of the City of Huntsville at the time the ordinance is adopted shall be permitted to complete his or her term.

(e) The members of the board shall serve without compensation but may be reimbursed for the reasonable and necessary expenses actually incurred in the performance of their duties, provided, however, such expenses shall be limited to such amounts as may be appropriated by the city council.
(Ord. No. 10-65, 2-11-2010; Ord. No. 11-259, § 1, 5-12-2011; Ord. No. 14-971, § 1, 1-8-2015; Ord. No. 21-559, § 1, 7-8-2021)

Sec. 2-1403. Organization and meetings.

(a) The Beautification Board shall hold regular meetings at such time and place within the city as it may determine; provided, however, that the board shall hold at least one meeting every 90 days.

(b) At the first meeting of the board, the members shall elect one of its number as the chairman and one of its number as secretary. The board shall have the discretion to split the duties of secretary between a recording secretary and a corresponding secretary. Thereafter, the board shall annually elect from among its number a chairman and secretary or secretaries and such other officers as it may from time to time determine necessary and appropriate for the conduct of board proceedings. The ex officio members of the board shall not be eligible to be officers.

(c) Vacancies in the office of chairman and secretary and in other offices as herein provided shall be filled by the board from among the membership of the board for the unexpired term.

(d) The chairman of the board or any six members of the board may call a meeting at any time.

(e) The chairman and any nine members of the board shall constitute a quorum for the conduct of business at all regular or special meetings.

(f) A thorough record of all meetings of the board shall be kept by the secretary. On the call of any member, the vote upon any pending question shall be taken by ayes and nays and the same shall be entered on the record. A record of the proceedings of the board shall be open to the mayor and to any member of the city council and to the public at all reasonable times. All meetings of the board shall be open to the public.
(Ord. No. 11-259, § 2, 5-12-2011)

Sec. 2-1404. Appropriations.

The city council shall appropriate such funds from the general fund which it may deem necessary for the reasonable and necessary expenses of the Beautification Board.

Sec. 2-1405. Powers and duties.

The beautification board shall have the following powers and duties:

(a) Create committees and subcommittees composed entirely of members of the board, or composed of members of the board along with nonmember citizens of the City of Huntsville selected by the board.

(b) Plan and conduct a City of Huntsville Beautification Awards program for businesses located in the City of Huntsville. The board may also charge and collect an administrative fee to participate in the program.

(c) Plan and conduct programs to recognize those homeowners or businesses that have shown significant initiative in beautifying their properties and to report any eyesore property (business or home) to the City of Huntsville for action if deemed appropriate.

(d) At the request of the green team director, the beautification board may assist in the City of Huntsville Green Team's programs.

(Ord. No. 86-136, 3-27-1986; Ord. No. 14-971, § 2, 1-8-2015)

Secs. 2-1406—2-1420. Reserved.

DIVISION 7. BURRITT MEMORIAL COMMITTEE*

Sec. 2-1421. Created.

The Burritt Memorial Committee is created.

Sec. 2-1422. Membership.

(a) The Burritt Memorial Committee shall consist of ten members.

(b) A majority of the membership of the committee shall be composed of members of the female sex. No member of the committee may be an officer or employee of the city.

(c) The members of the committee shall be appointed by the city council to serve as follows: two members to serve until October 1, 1956, and until their successors are elected and qualified;

*__Editor's note—__The purposes, structure, and composition of the Burritt Memorial Committee are dictated by the last will and testament of the late Dr. William Henry Burritt.

__Cross reference—__Cemeteries, ch. 9.

two members to serve until October 1, 1957, and until their successors are elected and qualified; two members to serve until October 1, 1958, and until their successors are elected and qualified; two members to serve until October 1, 1959, and until their successors are elected and qualified; two members to serve until October 1, 1960, and until their successors are elected and qualified. At the first regular meeting of the city council in the month of September of each year, the council shall select successors of the members of the committee whose term expires on October 1 following, and the persons so selected shall become members of the committee on October 1 following and shall hold such position for a period of five years and until their successors are elected and qualified. Should the city council fail to elect such members at its first meeting in September of each year, it shall do so at any succeeding regular meeting. A member of the committee may succeed himself or herself if the city council desires to reelect him or her. Whenever a vacancy occurs in the membership of the committee by resignation, death or any cause, the city council shall immediately fill such vacancy by electing another person to membership on the committee, who shall serve for the remainder of the unexpired term of the member he or she succeeds and until his or her successor is elected and qualified.

(d) No member of the committee shall receive any compensation for his or her services.

(e) Notwithstanding the foregoing, effective October 1, 2010, the term of each member shall be three years, and the term of each member who has served for three or more years in his or her current term shall expire on October 1, 2010, but each such member shall continue to hold such position until his or her successor is elected and qualified.

(f) Notwithstanding the foregoing, the membership of the committee shall change as follows:

(1) Effective October 1, 2009, the committee shall consist of 13 members,

(2) Effective October 1, 2010, the committee shall consist of 17 members, and

(3) Effective April 1, 2022 the committee shall consist of 17 members in numbered places one through 17.

(Ord. No. 09-1208, 12-17-2009; Ord. No. 22-72, § 1, 2-10-2022)

Sec. 2-1423. Officers, rules of order.

Within ten days after the Burritt Memorial Committee has been appointed and qualified as provided in this division, the committee shall meet and elect its own officers and prescribe its own rules of order. Thereafter, the committee shall meet monthly. The committee shall keep accurate minutes of each meeting, and they shall be available for inspection by the mayor or any member of the city council.

Sec. 2-1424. Duties.

(a) The Burritt Memorial Committee shall be vested with the management, control and supervision of the Dr. William Henry Burritt Museum and Park.

(b) The overall duties of the committee shall be to supervise and govern the maintenance and operation of the park and museum. The committee shall have full authority to employ and discharge employees in carrying out their duties. The committee shall, within 30 days following its appointment, after being constituted as provided in this division, and yearly thereafter on or before September 1, adopt a detailed budget of estimated expenditures for the coming year, which shall be transmitted in a formal communication to the city council. Upon its receipt, the city council shall make suitable provisions for the appropriation from the Dr. William Henry Burritt Memorial Fund as provided for in this section for the use of the committee for the performance of its duties as set out in this division. The committee may, in its discretion, make a small charge for those viewing the museum, which amount shall be transmitted daily to the city clerk-treasurer for deposit by the city clerk-treasurer in the Burritt Memorial Fund.

Secs. 2-1425—2-1450. Reserved.

DIVISION 8. CITY TREE COMMISSION*

Sec. 2-1451. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adopted standards means those standards of tree maintenance, trimming clearances, and methods of protecting trees during construction, adapted from recognized national standards (such as the National Arborist Association, International Society of Arboriculture, etc.) recommended for local adoption by the tree commission and ratified by the city council.

Owner means the possessor of title to the land on which particular trees stand, or his agent; in the case of a tree on public rights-of-way, utility easements or land on which another public interest has been granted, ownership rights and responsibilities are as defined in section 27-52 in the absence of other specific provisions by deed or other binding agreement.

Public land means any land belonging to the city. For the purposes of this definition, federal, state and county land is excluded from this category unless the city has specifically assumed responsibility for its maintenance.

Shrub. See *Trees and shrubs.*

Trees and shrubs means all woody vegetation, whether naturally occurring or planted. Rights, responsibilities and standards applying to trees shall, from a legal standpoint, apply to shrubs as well.

Tree bank means a noncommercial nursery where trees and shrubs are maintained for transplanting to school grounds or to other public lands or public rights-of-way, utility easements, or land on which another public interest has been granted.

Tree commission means the city forestry horticulture supervisor, any member of the tree commission, or any individual assigned or contracted by the tree commission, acting in pursuit of the objectives of this division within its scope and within the bounds of law.

Tree removal, commercial, means commercial practices, including pruning of trees, and removal of trees in the following situations: trees on property approved for occupancy by the inspection department, trees being removed under contract in the course of utility or right-of-way maintenance, or trees being removed by any person who receives compensation commercially. This shall not be construed to include bona fide loggers, individuals personally removing or working on trees on their own land, or heavy equipment operators whose work may include whole tree removal as a normal element of site preparation.

Tree service, commercial, means commercial practices, including pruning, cavity filling, wound treatment, bracing, cabling, and other repairs; the feeding of trees; protection of trees from lightning, insects and disease. For the purposes of this definition, any licensed commercial tree service operator shall be authorized to provide tree removal services as defined in this section.

Utility, private, means a commercial service distributed by use of the public streets, alleys and easements of the city by use of the facilities and fixtures located in such places but not regulated by the state public service commission.

Utility, public, means a service distributed by wire, pipe or airwaves to customers and either regulated by the state public service commission (as in the case of telephone service) or not regulated by the state public service commission but established as a municipal utility (as in the case of water, electric, and gas service).

(Ord. No. 96-952, §§ 1—4, 11-25-1996)

Cross reference—Definitions generally, § 1-2.

Sec. 2-1452. Created.

The Tree Commission is created.

Sec. 2-1453. Membership.

(a) The Tree Commission shall consist of eight voting members and nonvoting ex officio members as follows:

(1) One employee of the city's utility company having knowledge of both engineering problems and tree maintenance problems;

*__Cross reference—__Vegetation, ch. 27.

(2) One professional forester, botanist or horticulturist employed by an agency of government or an educational institution having knowledge of urban forestry problems and licensed as required in the state for the conduct of his profession;

(3) Two professional members such as licensed tree service operators, licensed architects or landscape architects, licensed landscaping contractors or others as appropriate;

(4) Four other voting members selected at large from the residents of diverse parts of the city and chosen for their knowledge of, concern about and participation in issues affecting the city's tree population; and

(5) As nonvoting ex officio members, representatives of the departments of community development, recreation and landscape management, public works services, parking and public transit, the inspection division and the forestry horticulture supervisor.

(b) The utilities employees shall be appointed by the general manager of the utility company; the forester, botanist or horticulturist shall be appointed by the city council; one professional member and two at-large members shall be appointed by the mayor and like numbers by the city council.

(c) All terms of office of voting members shall be two years, except that the initial terms of the professional and at-large members shall be staggered according to the direction of the appointing authorities. Vacancies caused by death, resignation or otherwise shall be filled for the unexpired term in the same manner as the original appointments were made. Members will continue to serve after the expiration of their appointed terms until replacements are made and installed.

(d) Any member who fails to attend more than three regular meetings within a 12-month period, without justification satisfactory to the remaining members of the commission, will be considered to have resigned his appointment and will be replaced for the balance of his term by the appointing authority.

(e) All appointed members will serve without pay though the city may choose to reimburse members for out-of-town travel in the line of duty and other expenses incurred with prior consent of the mayor's office.

Sec. 2-1454. Meetings; officers.

The Tree Commission shall conduct regular meetings and other called meetings as needed. It shall make its own rules of order, keep records of its proceedings, and annually elect from its voting members a chairman, vice-chairman, and such other officers as it may deem necessary; the forestry horticulture supervisor shall act as its secretary-treasurer. A majority of its voting members shall constitute a quorum for the transaction of business.

Sec. 2-1455. Duties.

(a) The Tree Commission shall:

(1) Study problems involving the city's tree population, determine needs, compose and annually review a city tree plan, and seek ways to implement needed work;

(2) Develop standards of tree maintenance and other specifications such as to foster the city's tree population, protect persons and property against injury, provide for safe and efficient passage of persons, vehicles and utilities through recognized rights-of-way;

(3) Act as the board of appeals, to review contested decisions and actions of the forestry horticulture supervisor;

(4) Assist the community and its officials in disseminating information about protection, maintenance and improvement of the city's tree population;

(5) Propose such legislation as may be needed and practicable to pursue the end for which the Tree Commission was created;

(6) Plan and coordinate an annual Arbor Week observance each year in cooperation with schools, conservation organizations, and other interested parties; and

(7) Monitor the licensure of tree service companies practicing in the city and initiate action toward enforcement of this division and chapter 27, article II.

(b) The Tree Commission may undertake and participate in cooperative projects, including but not limited to the following:

(1) Recycling of leaves, chips, firewood, logs and other byproducts of tree maintenance;

(2) Development of tree planting systems in conjunction with other public and/or private agencies;

(3) Development and use of a tree bank in cooperation with other public and/or private agencies;

(4) Development of a botanical garden for the city;

(5) Education of the public concerning tree maintenance;

(6) Providing technical advice and assistance to developers, builders, contractors, etc., in the selection and protection of naturally occurring trees during the development of wooded areas; and

(7) Communication with such professional and technical services as it may see fit within the scope of this division.

(c) The Tree Commission shall compose annually and present to the mayor's office during the month of July a city tree plan; and upon its acceptance and approval, it shall constitute the official comprehensive plan for the management of the city's tree population.

Sec. 2-1456. Priorities.

(a) The Tree Commission, with the assistance of the forestry horticulture supervisor, shall develop an orderly process for identifying public tree needs, including, but not limited to, maintenance, removals, planting, replacement and public education, and shall be empowered to purchase or contract for needed products and services within the city's normal fiscal limitations.

(b) The Tree Commission shall establish priorities for reports made by the forestry horticulture supervisor.

Sec. 2-1457. Budget.

The budget for all technical and administrative activities planned for the Tree Commission shall be developed by the forestry horticultural supervisor. The city council will appropriate funds for the same as items in the natural resources and environmental management department budget.

Sec. 2-1458. Authorization to conduct financial transactions.

The Tree Commission is empowered to accept and use donations to obligate authorized public funds and to conduct other financial business in conformity with established procedures of the city in the proper conduct of its assigned work.

Secs. 2-1459—2-1480. Reserved.

DIVISION 9. COMMUNITY DEVELOPMENT CITIZENS ADVISORY COUNCIL*

Sec. 2-1481. Established.

There is hereby established within the city a committee to be known as the "Community Development Citizens Advisory Council of the City of Huntsville, Alabama," hereinafter referred to as the "advisory council."
(Ord. No. 03-642, 8-14-2003)

Sec. 2-1482. Membership, terms; vacancies.

The advisory council shall be composed of 13 members in numbered places one through 13 appointed by the city council. Places one through

*__Editor's note—__Ord. No. 03-642, adopted Aug. 14, 2003, amended provisions set out as div. 9 of this article in their entirety to read as herein set out. Prior to amendment, div. 9, §§ 2-1481—2-1484, pertained to similar subject matter and derived unamended from the original Code.

nine shall reside within the areas defined by the department of housing and urban development as consisting predominately of low and moderate income families. Places ten through 13 shall reside in the remaining areas of the city. Four members shall initially be appointed for a term of one year, four shall be appointed for two years, and five will be appointed for three years. Thereafter, all appointments shall be for a term of three years. Appointments to fill vacancies shall be for the unexpired term.
(Ord. No. 03-642, 8-14-2003; Ord. No. 21-1135, § 1, 11-18-2021)

Sec. 2-1483. Cessation of membership.

An appointee shall cease to be a member upon resignation, upon ceasing to be or becoming a resident of a low and moderate income area as defined by the department of housing and urban development during the period of appointment, or for failure to attend three consecutive meetings.
(Ord. No. 03-642, 8-14-2003)

Sec. 2-1484. Compensation.

The members of the advisory council shall serve without compensation.
(Ord. No. 03-642, 8-14-2003)

Sec. 2-1485. Organization, meetings; quorum.

(a) The advisory council shall hold regular meetings at such time and place within the city as it may from time to time determine, provided, however, that regular meetings shall be scheduled during the months of September, October, November, December, January, February and May of each year.

(b) Vacancies in the offices of chairman or vice-chairman, shall be filled by the advisory council if and when the same may occur.

(c) Special meetings may be called by the chairman, or by the vice chairman in absence of the chairman, at any time he/she considers that business at hand demands that a meeting be held. A majority of the current members of the advisory council shall constitute a quorum.
(Ord. No. 03-642, 8-14-2003)

Sec. 2-1486. Authority and duties generally.

The advisory council shall serve as an advisory group for the purpose of recommending how community development funds should be spent within the city. It shall represent, generally, all areas of the city, and shall serve as the focal point for all citizens' requests for disbursement of community development funds.
(Ord. No. 03-642, 8-14-2003)

Secs. 2-1487—2-1500. Reserved.

DIVISION 10. ELECTRIC UTILITY BOARD*

Sec. 2-1501. Creation and composition.

There is created and established an electric utility board, to be known as the Huntsville Electric Utility Board.
(Code 1982, § 16-16)

State law reference—Authority of city to establish board, Code of Ala. 1975, § 11-50-490.

Sec. 2-1502. Compensation.

Each member of the electric utility board shall receive for his services the sum of $600.00 per annum.
(Code 1982, § 16-22)

State law reference—Authority of council to determine compensation of board members, Code of Ala. 1975, § 11-50-495.

Secs. 2-1503—2-1520. Reserved.

*__Cross reference—__Utilities, ch. 26.

State law reference—Electric utility boards, Code of Ala. 1975, § 11-50-490 et seq.

DIVISION 11. GAS UTILITY BOARD*

Sec. 2-1521. Creation.

There is created and established a gas utility board to be known as the Huntsville Gas Utility Board.
(Code 1982, § 17-16)

State law reference—Authority to create gas utility board, Code of Ala. 1975, § 11-50-460.

Sec. 2-1522. Compensation.

Each member of the gas utility board shall receive for his services the sum of $600.00 per annum.
(Code 1982, § 17-22)

State law reference—Authority of council to determine compensation of members of gas utility board, Code of Ala. 1975, § 11-50-465.

Secs. 2-1523—2-1540. Reserved.

DIVISION 12. HISTORIC PRESERVATION COMMISSION†

Sec. 2-1541. Established.

There is established in the city an historic preservation commission which is designated and shall be known as "The Huntsville Historic Preservation Commission."
(Code 1982, § 10-41)

Sec. 2-1542. Members; terms; vacancies.

(a) The Historic Preservation Commission created in this division shall be composed of nine members, including one member of the city council designated by it, the manager of planning and the manager of inspection. The members of the commission first appointed, except the manager of planning, the manager of inspection and the member of the city council, who shall all serve by virtue of and whose terms shall correspond with the respective terms of their offices, shall serve for terms of one, two, three, four, five and six years respectively, as shall be specified by the mayor at the time of their appointment. Thereafter, the members of the commission, except the ex officio members, shall serve for terms of six years.

(b) At the expiration of the term or the death or resignation of any member, the resulting vacancy shall be filled for the unexpired term of such member in the same manner as provided in subsection (a) of this section.

(c) No distinction shall be made between the ex officio members and other members of the commission.

(d) At least three of the members appointed by the mayor shall reside in and own homes in an historic preservation district within the city at the time of their appointment. At any time that there are fewer than three members of the commission appointed by the mayor who are resident owners, the next subsequent appointments shall be limited to such persons until there are three such appointed members.
(Code 1982, § 10-42)

Sec. 2-1543. Duties, powers.

The Historic Preservation Commission is vested with all of the duties and powers authorized to be delegated to such a commission under the terms of Code of Ala. 1975, §§ 11-68-4—11-68-12, and under the terms of Act No. 1307 of 1971 and enumerated in such statutes and act. To the extent there are any conflicts between such statutes and such act, such statutes shall control; however, no action shall be taken by the commission concerning any property within any historic preservation district without prior notice to the owner of the property, according to the rules of the commission; and no owner may be required to open his property to any tour of any kind for public viewing.
(Code 1982, § 10-43; Ord. No. 91-597, § 1, 10-24-1991; Ord. No. 95-210, § 1, 4-1-1995)

Secs. 2-1544—2-1560. Reserved.

***Cross reference—**Utilities, ch. 26.

State law reference—Gas utility boards, Code of Ala. 1975, § 11-50-460 et seq.

†**Cross reference—**Cultural facilities and historical preservation, ch. 10.

State law references—Historic preservation commissions, Code of Ala. 1975, § 11-68-1 et seq.; application of statutes to existing commissions, Code of Ala. 1975, § 11-68-14.

DIVISION 13. HUNTSVILLE ICE SKATING COMPLEX BOARD OF CONTROL

Sec. 2-1561. Created.

The Huntsville Ice Skating Complex Board of Control is created.

Sec. 2-1562. Membership.

(a) The Huntsville Ice Skating Complex Board of Control shall consist of seven members.

(b) The terms of the members of the initial board shall be and are made by the city council as follows:

Position No.	*Term (years)*
1	5
2	3
3	1
4	5
5	5

Position No.	*Term (years)*
6	3
7	1

(c) Thereafter, at the end of the stated term of each member of the initial board, all appointments to positions 1, 3, 5 and 7 of the board shall be appointed by the city council; and all appointments to positions 2, 4 and 6 of the board shall be appointed by the mayor. Each appointment shall be for a term of three years. Vacancies in any position shall be filled for any unexpired term by the governing authority who originally made the appointment to that position.

(d) In addition, the mayor shall have the authority with the approval by a majority of the city council to appoint two ex officio directors who shall have the authority to attend all meetings of the board and be recognized and enter into all discussions on matters before the board. These ex officio members shall have the same rights as other directors to vote on matters coming before the board, but such ex officio members shall not serve as officers. The ex officio directors shall serve for such term as may be determined by the mayor, but not to exceed the mayor's term. Any regular or ex officio directors may be reappointed for one or more successive terms.

Sec. 2-1563. Officers.

The members of the Huntsville Ice Skating Complex Board of Control shall, in accordance with the bylaws of the board of control, elect one of their number as chairman, one of their number as vice-chairman, one of their number as secretary, and one of their number as treasurer. One person may serve as secretary and treasurer. Officers shall be entitled to succeed themselves. Vacancies shall be filled by the board for the unexpired terms.

Sec. 2-1564. Quorum; conflicts, action by board.

Four members of the Huntsville Ice Skating Complex Board of Control shall constitute a quorum for the transaction of business. No member shall act in any case in which he has a personal financial interest. Actions of the board of control shall be by majority of those present.

Sec. 2-1565. Policies.

The Huntsville Ice Skating Complex Board of Control shall have the authority to adopt written policies and guidelines for usage of the ice skating and related facilities, including rates, a copy of which shall be furnished to the mayor and the city council. These policies may provide for the manager or director to negotiate agreements for use of the facilities, but all such agreements shall be subject to the approval of the board of control. The policies and guidelines may be amended, from time to time, at the discretion of the board of control, provided that copies of all such amendments are furnished to the mayor and council.

Sec. 2-1566. Expenses of members; salaries of employees.

The members of the Huntsville Ice Skating Complex Board of Control shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings; however, actual and necessary expenses incurred in the performance of their duties may be paid. The board of control shall not be required to adhere to the general salary structure of the city general fund in connection with the hiring of employees; however at the annual budget review meeting with the council, the board of control and the council will review the employees' salary structure of the board of control.

Sec. 2-1567. Treasurer; bond; duties; assistants.

The Huntsville Ice Skating Complex Board of Control shall elect from its members a treasurer and such assistant treasurers as it deems advisable, each of whom shall give bond with corporate surety in the amount of $10,000.00, payable to the board of control and to the city, with condition to discharge faithfully all the duties of their respective offices. The expenses or premiums of such bond shall be paid by the board of control out of its revenues. The treasurer elected by the board of control shall have custody and, subject to the

direction of the board of control, control of all operating revenues and funds of the board of control. The treasurer shall have the right, subject to direction of the board of control, to invest and reinvest all operating revenues and funds of the board of control in such deposits and investments that are, at such time, approved deposits or investments for city funds.

Sec. 2-1568. Powers.

(a) The Huntsville Ice Skating Complex Board of Control is granted custody of and authorized to maintain, control, operate and manage for and on behalf of the city the present Huntsville ice skating complex or any new complex to be constructed and owned by the city (collectively, the "facility"). They shall adopt from time to time, amend and repeal bylaws, rules and regulations governing the facility provided such bylaws and rules and regulations are not in conflict with this division or any laws of the state. They shall have the power to arrange, sponsor, contract for and conduct programs, tournaments, shows, exhibitions, contests, skating leagues, performances, meetings, skating lessons and other recreational activities in the facility for the advancement of the cultural and civic interest and welfare of the citizens of the city.

(b) Subject to the requirements of this division or any laws of the state, the additional powers which the board of control may exercise in order to effectuate the purposes delineated in subsection (a) of this section shall include but are not necessarily limited to the following:

(1) Charge, establish and revise fees for admission, parking and other events conducted at the facility;

(2) Rent, lease or otherwise provide all or any part of the facility for tournaments, shows, leagues, programs, lessons, exhibitions, contests, performances, skating leagues and other recreational activities;

(3) Acquire, hold, sell and otherwise dispose of any personal property, subject, in the case of any acquisition of personal property, to a budget approved by the council or the available excess funds of the board not needed for any current year's expenditures;

(4) Subject to the provisions of section 2-1570, make, enter into and execute such contracts, agreements, and other instruments and take such other actions as may be necessary or convenient to accomplish any purpose of the board or to exercise any power that is either expressly granted to the board or must, by necessary implication, be exercisable by it in order to accomplish any purpose in this division;

(5) Receive and accept, in the name of the city, from any source, aid, contributions, bequests and devises, whether in the form of money, property, labor or other things of value, to be held, used and applied by the board to carry out the purposes expressed in this division, subject to any lawful condition upon which they may be given or made;

(6) Subject to the limitations set forth in section 2-1570, appoint, employ and contract with such employees and agents, including, without limitation, managers, teachers, professional skating instructors, attorneys, accountants, financial experts, fiscal agents and such other advisors, consultants and agents as may be in the judgment of the board necessary or desirable, and to fix their compensation;

(7) Enter into such management and other contracts as may in the judgment of the board be necessary or desirable in order to delegate and perform more effectively, efficiently or economically the day-to-day operations of the facility as well as various clerical, accounting and administrative functions for which the board may become responsible in the exercise of the powers conferred upon it in this division;

(8) If not otherwise provided by the city, and subject to the limitations set forth in section 2-1570, procure or agree to procure from any insurance company, insurance protecting any member of the board

of control, the board or the facility from liabilities under broad form coverages and errors and omission coverages;

(9) Accumulate all income, operating revenues and other funds of the board not required for immediate use and apply all such accumulated funds to the cost of extensions, renovations, repairs and improvements to the facility, as may be determined by the board; however, no such extensions, renovations, improvements or repairs shall obligate the city beyond the amounts, if any, appropriated by the city to the board for such purposes;

(10) Arrange, contract for, conduct, lease or sponsor a skate or pro shop for the repair, rental and sale of skates and related items and to arrange, contract for, conduct, lease and sponsor a snack bar and any other related activities necessary or useful for the enjoyment of the facility;

(11) In general, and subject to the limitations and conditions as provided, exercise such other powers necessary or incidental to the powers conferred in this division, or conducive to the attainment of the purposes of the board; and

(12) Establish and maintain deposit and investment accounts in the name of the board with banks, savings and loans and other institutions, including but not limited to money market funds, and make all deposits and withdrawals as the board of control may authorize.

Sec. 2-1569. Advertising authorized.

The Huntsville Ice Skating Complex Board of Control may advertise its facility, programs, tournaments, shows, exhibitions, performances, events and other recreational activities on behalf of the city and may expend such funds as may be appropriated to it for that purpose or such additional funds as may be in the possession of the board in excess of the amounts necessary to meet any expenditures required to be paid by the board of control. No material for the advertising and promotion carried on by the board shall directly promote any privately owned business or entity.

Sec. 2-1570. Purchases and contracts.

(a) The board shall have the power to make contracts in the name of the board for the purposes set forth in section 2-1568 and for acquisition of personal property or services to be used in furtherance of the purposes for which the board has been created, and to execute all contracts necessary or convenient for such purposes; however, the board shall have no power or authority to obligate the city beyond the amount appropriated by the council for its purposes.

(b) In making expenditures for personal property or services authorized in this division, the board of control shall, in all respects, comply with Code of Ala. 1975 tit. 41, ch. 16 (Code of Ala. 1975, § 41-16-1 et seq.); however, as to property that is stocked or purchased in quantity by the purchasing agent of the city, the board may requisition such property from the inventory of the city at cost; and where tangible personal property is to be acquired by the board which is the same or substantially similar to like property acquired by the purchasing agent of the city, the board of control may request that the needs of the city and the board be acquired by joint bid and purchase, in which case the property shall be acquired by the purchasing agent of the city and transferred to the board of control at the unit or pro rata price.

(c) The board of control shall designate a person employed by the board or the city to act as the board's purchasing agent and may provide, by resolution or bylaw entered upon the minutes of the board, that the purchasing agent so designated shall have the authority to act as awarding authority for and on behalf of the board in all or any specified class of purchases; however, if a bid is received for an item of personal property to be purchased or contracted for from a person who has continuously maintained a place of business within the city for which a business license has been paid to the city during the current and immediately preceding license year, deemed to be a responsible bidder, which such bid is no more than three percent greater than the bid of the lowest responsible bidder, and where such personal property is either manufactured within the city or regularly warehoused and stored for dis-

tribution at a place within the city, the awarding authority shall award the contract to such resident responsible bidder.
(Ord. No. 97-887, § 2, 11-20-1997; Ord. No. 98-29, § 1, 1-22-1998; Ord. No. 02-52, 2-14-2002)

Sec. 2-1571. Budget.

In accordance with the terms of section 2-152, the Huntsville Ice Skating Complex Board of Control shall submit a detailed budget of estimated expenditures for the fiscal year commencing October 1 of each year and a five-year capital plan. The council shall set aside and appropriate for the use of the board, for the maintenance and operation of the facility, and for the other authorized purposes of the board, either all or such part of such estimated budget as may be available or is by the council deemed proper. Notwithstanding an approved budget, the board of control shall not be prevented from expending its excess funds not needed to meet its anticipated yearly expenses for such purchases, improvements, renovations, repairs and extensions as the board may deem best advisable, so long as the city does not become obligated beyond the amount appropriated in such budget.

Sec. 2-1572. Officers and employees.

The Huntsville Ice Skating Complex Board of Control shall have the power to appoint a manager and such other officers and employees as it may deem necessary and desirable, and to fix its duties, authorities and compensation. The manager of the facility appointed by the board shall be responsible to the board of control for the day-to-day administration of the facility and for the supervision and control of the other officers and employees of the board.

Sec. 2-1573. Audit.

At least once each year, the Huntsville Ice Skating Complex Board of Control shall appoint an independent public accountant to conduct an examination or review in accordance with generally accepted auditing standards of all books and accounts of the board of control since the preceding examination, and to make a full report in writing, under oath, which shall be submitted by the board to the council, the city clerk-treasurer and the mayor at its first meeting after the completion of such report.

Secs. 2-1574—2-1590. Reserved.

DIVISION 14. HUNTSVILLE-MADISON COUNTY CONVENTION AND VISITORS BUREAU BOARD OF DIRECTORS

Sec. 2-1591. Created.

The Huntsville-Madison County Convention & Visitors Bureau Board of Control is created.

Sec. 2-1592. Membership.

(a) The Huntsville-Madison County Convention & Visitors Bureau Board of Directors shall consist of seven members whose appointments and terms shall be as follows:

(1) Of the members first appointed, three members from the current board of the Huntsville Convention & Visitors Bureau shall be appointed, one by the mayor for a term of three years and two by the city council for a term of one and two years respectively.

(2) Two members from the current advisory committee of the Madison County Tourism Board and one member at-large shall be appointed by the county commission for terms of one year, two years and three years respectively.

(3) One member from the Von Braun Center Board of Control shall be appointed by that board for a term of four years.

(4) Following the initial terms, the term of all appointed members shall be for four years. Vacancies shall be filled for the unexpired term by the appointing agencies in the same manner in which original appointments were made.

(5) The city council and the county commission may each, at their discretion, appoint one ex officio, nonvoting member to the Huntsville-Madison County Convention & Visitors Bureau Board of Directors.

(b) The members of the board of directors shall receive no compensation for their services, nor shall they receive compensation or per diem for attending meetings; however, actual and necessary expenses, in amounts no greater than those appropriated by the city council, incurred in the performance of their duties, may be paid.

Sec. 2-1593. Quorum.

Four members of the Huntsville-Madison County Convention & Visitors Bureau Board of Directors shall constitute a quorum for the transaction of business. No member shall act in any case in which he has a personal financial interest. Actions of the board shall be by a majority of those present. The time and place of meetings shall be posted, and legal notice shall be given as required by state law.

Sec. 2-1594. Officers.

The members of the Huntsville-Madison County Convention & Visitors Bureau Board of Directors shall, in accordance with the bylaws of the board, elect one of their members as chairman, one of their members as vice-chairman, one of their members as secretary, and one of their members as treasurer. Officers shall be entitled to succeed themselves. Vacancies shall be filled by the board by election for any unexpired terms.

Sec. 2-1595. Staff.

The Huntsville-Madison County Convention & Visitors Bureau Board of Directors shall have the power to appoint a director and such other officers and employees as it may deem necessary and desirable and to fix its duties, authorities and compensation. The director of the Huntsville-Madison County Convention & Visitors Bureau appointed by the board shall be responsible to the board for the day-to-day administration of the bureau and for the supervision and control of the other officers and employees of the board.

Sec. 2-1596. Powers.

(a) The Huntsville-Madison County Convention & Visitors Bureau Board of Directors is granted custody of and authorized to maintain, control, operate and manage for and on behalf of the city and the county the Huntsville-Madison County Convention & Visitors Bureau. This agency shall be a full-service public organization responsible for marketing the city-county as a convention site and tourist destination; to increase lodging tax and sales tax receipts, thus increasing the economic base for the city and the county. The board of directors shall adopt from time to time, amend and repeal bylaws, rules and regulations governing the operations of the Huntsville-Madison County Convention & Visitors Bureau provided such bylaws and rules and regulations are not in conflict with this division or any laws of the state.

(b) The board of directors shall have the power to:

(1) Appoint officers, hire employees and fix their compensation;

(2) Make contracts;

(3) Set policy and oversee programs necessary to bring convention delegates and visitors into the community in an effort to increase visitor spending and thereby boost the economic base in the city and the county; and

(4) Execute all instruments necessary or convenient to promote the city and the county as a convention site and visitor destination.

(c) The board of directors shall be a municipal board of the city, a municipal corporation of the state, subject to the terms of that certain "Agreement Between the City and the Madison County Commission for the Creation of the Huntsville-Madison County Convention and Visitors Bureau" as manifested by city Resolution No. 91-122, adopted and approved on March 26, 1991, and as the agreement shall be from time to time amended between the city and the county. Any provision of this section to the contrary notwithstanding, the lawful contracts of the board shall be the contracts of the city to the extent authorized in this division, all property of the board shall be the property of the city subject to management and control of the board, and all employees of the board shall be employees of the city but shall be entitled to the benefits and subject to the

terms of the bylaws and the personnel policies and procedures as may be approved by the board, and not the benefits or general personnel policies and procedures of the city pertaining to the city's general fund employees who serve under the general administration of the mayor.

Sec. 2-1597. Custody of funds.

The Huntsville-Madison County Convention & Visitors Bureau Board of Directors shall elect from its members a treasurer and such assistant treasurers as it deems advisable, each of whom shall give bond with corporate surety in the amount of $10,000.00, payable to the board and to the city and the county commission jointly, condition to discharge faithfully all the duties of their respective offices. The expenses or premiums of such bond shall be paid by the board. The treasurer elected by the board shall have custody of all funds of the board.

Sec. 2-1598. Budget.

The Huntsville-Madison County Convention & Visitors Bureau Board of Directors shall submit to the mayor and county commission chairman a detailed budget of estimated expenditures for the fiscal year commencing October 1 of that year. The city council shall set aside and appropriate for the use of the board not less than half of the lodging tax receipts generated by the five percent city lodging tax. An agreement with the county will be signed outlining the appropriation of funds from the county to the Huntsville-Madison County Convention & Visitors Bureau. The county funds will be comprised of the lodging tax receipts generated by the one-half percent regional lodging tax. It is the intent of both the city and the county commission that the respective appropriations shall be not less than $605,000.00, and $200,000.00 annually.

Sec. 2-1599. Audit.

At least once each year, the Huntsville-Madison County Convention & Visitors Bureau Board of Directors shall appoint an independent public accountant to conduct an examination in accordance with generally accepted auditing standards of all books and accounts of the board since the preceding examination, and to make a full report in writing, under oath, which shall be submitted by the board to the council and mayor and the county commission at its first meeting after the completion of such report.

Sec. 2-1600. Advertising.

The Huntsville-Madison County Convention & Visitors Bureau is authorized by the board of directors to advertise and promote city- and county-owned and operated facilities, including but not limited to the Von Braun Center, Huntsville Museum of Art, Huntsville Depot Museum, Constitution Hall Village, Burritt Museum and Park and other cultural and recreational facilities of the city and county. In addition, the bureau may include in its advertising and promotional efforts, material directly advertising and promoting the use of tourist or visitors attractions operated by the state, the county, the city or any public corporation operating within the county, including the U.S. Space & Rocket Center, the Huntsville-Madison County Marina & Port Authority, Monte Sano State Park, and the various parks and recreational facilities of the city and the county. In addition, the bureau may advertise, as part of its general advertising and promotional efforts, the existence of publicly owned and operated landmarks and structures and also the publicly designated historical preservation districts and historical structures of the city and county. No material for the advertising and promotion carried on by the bureau shall directly promote any privately owned business or facility; however, informational material and maps may designate the geographical location, within the city and the county of shopping centers, hotels, restaurants, golf courses, etc., and particular businesses by name where all such businesses in a particular class are identified on a nondiscriminatory basis. The bureau shall also make published promotional material available to the public on a nondiscriminatory basis.

Sec. 2-1601. Advisory committee.

(a) In order to assist the staff of the Huntsville-Madison County Convention & Visitors Bureau in formulating and carrying out its tourism and convention advertising and promotional pro-

grams, there is created a convention and tourism advisory committee composed of seven members to be appointed by the mayor (two appointments), city council (two appointments), and county commission (three appointments).

(b) The advisory committee shall be comprised of persons from the hospitality industry, including representatives from hotels and motels, restaurants, attractions and museums, transportation agencies (airlines, car rental agencies), although appointments would not be limited to persons in these categories.

(c) Each member of the advisory committee shall serve for a term of two years.

(d) Expenses of the advisory committee incurred in the performance of its duties shall be paid by the board; however, no member shall receive compensation for his services.

Secs. 2-1602—2-1620. Reserved.

DIVISION 15. HUNTSVILLE-MADISON COUNTY EMERGENCY MANAGEMENT BOARD*

Sec. 2-1621. Created.

The Huntsville-Madison County Emergency Management Board is created.

Sec. 2-1622. Created; membership.

(a) The Huntsville-Madison County Emergency Management Board shall consist of five members who shall be designated as serving in places 1, 2, 3, 4, and 5, all of whom must be resident citizens of Madison County, and who shall be appointed as follows:

(1) Two members to be appointed by the city council to serve in places 1 and 3.

(2) Two members to be appointed by the Madison County Commission to serve in places 2 and 4.

(3) One member to be appointed by the City Council of the City of Madison.

(b) Each person who is elected to serve as a member of the Huntsville-Madison County Emergency Management Board shall, before entering upon his duties, take an oath in writing, which oath shall be substantially as follows:

> I, _____, do solemnly swear (or affirm) that I will support and defend the Constitution of the United States and the Constitution of the State of Alabama, against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties upon which I am about to enter. And I do further swear (or affirm) that I do not advocate, nor am I a member of any political party or organization that advocates, the overthrow of the government of the United States or of this state by force or violence; and that during such time as I am a member of the Huntsville-Madison County Emergency Management Board, I will not advocate nor become a member of any political party or organization that advocates the overthrow of the government of the United States or of this state by force or violence.

(c) Members of the board shall be selected as follows:

(1) The member for place No. 1 selected by the city council.

(2) The member for place No. 2 selected by the Madison County Commission.

(3) The member for place No. 3 selected by the city council.

(4) The member for place No. 4 selected by the Madison County Commission.

(5) The member for place No. 5 selected by the City Council of the City of Madison.

(d) At the first regular meeting of the city council in the month of June of each year, at which an appointment of the Huntsville-Madison County Emergency Board shall be made by the city council, the council shall elect a successor of

*__State law references__—Emergency management, Code of Ala. 1975, § 31-9-1 et seq.; local emergency management, Code of Ala. 1975, § 31-9-10 et seq.

the member of the board whose term expires on July 1, following, and the person so elected shall become a member of the board on July 1 following and shall hold such position for a period of five years and until his or her successor is elected and qualified. Should the city council fail to elect a successor as set forth in this section at the meeting in June, it may do so at any succeeding regular meeting of such body. A member of the board may succeed himself if reelected.

(e) The members of the Huntsville-Madison County Emergency Management Board shall serve without compensation but may be reimbursed for their reasonable and necessary expenses incurred in the performance of their duties.

(f) Members of the board may be removed from office in the same manner and on the same grounds provided by the general law of this state for the impeachment and removal of other officers, as set out in Section 175 of the 1901 Constitution of Alabama. The director may be removed by impeachment in the same manner, or by a two-thirds vote of the board, subject to the approval of the city council, the Madison County Commission and the City Council of the City of Madison.

(g) Whenever a vacancy occurs in the membership of the board by resignation, inaction, death or other cause, if the member is an appointee of the city, the city council shall immediately fill the vacancy by electing another person to membership on the board, who shall serve for the remainder of the unexpired term of the member he succeeds and until his successor is elected and qualified. The appointment to the board of any member shall set forth the designated place to be occupied by the member.
(Ord. No. 13-655, § 1, 9-26-2013)

Sec. 2-1623. Organization.

At the first meeting of the Huntsville-Madison County Emergency Management Board, the members shall elect one of the members as chairman and one of the members as secretary; thereafter, the board shall annually elect from its members a chairman and a secretary. Vacancies in the office of the chairman and secretary shall be filled by the board if and when such vacancies shall occur.

Sec. 2-1624. Meetings.

The Huntsville-Madison County Emergency Management Board shall hold regular meetings at least once each month, at such time and place as may be determined by the board, and other meetings at such times and places as its members may elect. The chairman of the board, or any three members of the board, may call a meeting at any time he or they consider that the business demands that a meeting be held. The chairman and two members, or any three members of the board in the absence of the chairman, shall constitute a quorum. A true record of all the proceedings of all meetings of the board shall be kept by the secretary. At the call of any member, the vote of any pending question shall be taken by ayes and nays. The meeting shall be open to any member of the governing body and to the public at all times; and a copy of the record, certified by the secretary, shall be competent evidence in all courts.

Sec. 2-1625. Powers and duties.

The Huntsville-Madison County Emergency Management Board is vested, subject to the control of the city council, with all the powers of the City of Huntsville with respect to establishing, maintaining and operating an emergency management agency, and in addition, to such powers as shall be vested in said board by the Madison County Commission and the City Council of the City of Madison. The board shall not have the have the power to sue or to be sued, nor shall any title to any property be vested in said board; but any property or interest in property accruing to it shall be jointly vested in the City of Huntsville, Alabama, Madison County, Alabama, and the City of Madison, Alabama and shall be held by the Board for the City of Huntsville, Madison County and the City of Madison.
(Ord. No. 13-655, § 2, 9-26-2013)

Sec. 2-1626. Annual reports.

The Huntsville-Madison County Emergency Management Board shall make an annual report to the city council, the Madison County Commission and the City Council of the City of Madison, showing in detail the operations and accomplishments of the board for its preceding fiscal year,

the physical condition of the property under the care of the board and any other matters of public interest connected with the board.
(Ord. No. 13-655, § 3, 9-26-2013)

Sec. 2-1627. Appropriations to board.

The board will prepare and submit an annual budget to each participating member entity (City of Huntsville, Madison County and City of Madison). The city council shall appropriate such sum from the general fund as it may deem necessary for the operation of the Huntsville-Madison County Emergency Management Board based upon population of the participating member entities and other criteria.
(Ord. No. 13-655, § 4, 9-26-2013)

Secs. 2-1628—2-1650. Reserved.

DIVISION 16. LIBRARY BOARD*

Sec. 2-1651. Created.

The library board is created. In addition to five board members appointed pursuant to Section 11-90-2 of the Code of Alabama, by the City Council of the City of Huntsville, two additional board members, one appointed by the city council of the City of Madison and one appointed by the Madison County Commission are hereby authorized, each of which shall be appointed for four-year terms, with the initial term of each additional board member commencing on the date specified in the appointing resolution adopted by the respective governing body.
(Ord. No. 09-245, 3-26-2009)

Sec. 2-1652. Officers; bylaws.

The library board shall elect its officers and adopt its bylaws.

Sec. 2-1653. Minutes of meetings.

The library board shall keep accurate minutes of each meeting of the board. Such minutes shall be available at the library building for inspection by the mayor or any member of the city council at all times such building is open.

Sec. 2-1654. Governing and supervisory capacity.

The government and supervision of the Huntsville Public Library shall be vested in the library board.

Sec. 2-1655. Powers and duties.

The library board shall be vested with the following powers and perform the following duties:

(1) *Expenditures.* It shall have full power and authority to control the expenditures of all funds received or appropriated for the Huntsville Public Library.

(2) *Erection of buildings.* It shall have power to erect or rent buildings, with the approval of the city council, to cost not in excess of the funds available to it.

(3) *Purchase of books and equipment.* It shall be authorized to purchase books and equipment.

(4) *Providing for library service.* It shall have full power and authority to provide a system of library service to be made easily available to all citizens of the city through the central library, branches, stations, book truck service or other appropriate means.

(5) *Election of librarian and other employees.* It shall be authorized to elect a librarian and other employees. Such librarian shall be a professionally trained librarian.

(6) *Receipt of gifts and trusts.* It shall be authorized to receive gifts and administer trusts.

(7) *Borrowing and lending books to other libraries.* It shall be authorized to borrow books from and lend books to other libraries.

(8) *Authority to make contracts.* It shall be authorized to make contracts with other

*__State law reference—__Library boards, Code of Ala. 1975, § 11-90-2 et seq.

agencies for the providing of library service outside of the city subject to the approval of the city council.

Sec. 2-1656. Annual appropriation.

The city council shall make an annual appropriation of funds to be available for the operation of the library.

Sec. 2-1657. Annual report.

The library board shall prepare a written financial and administrative report at the end of each fiscal year of the city, and the report shall be presented to the city council immediately thereafter.

Sec. 2-1658. Gifts.

Any property donated to the library board shall immediately become property of the city and by the city council or the library board kept for the benefit of the library.

Sec. 2-1659. Location.

The Huntsville Public Library shall be located at such place as the city council shall designate.

Secs. 2-1660—2-1680. Reserved.

DIVISION 17. LOCAL LAW ENFORCEMENT BLOCK GRANTS PROGRAM ADVISORY BOARD

Sec. 2-1681. Establishment.

The local law enforcement block grants program advisory board is created.
(Ord. No. 96-919, § I, 11-14-1996)

Sec. 2-1682. Membership.

(a) The local law enforcement block grants program advisory board shall be composed of five members appointed by the city council, and the board members shall consist of one representative from:

(1) The local police department;

(2) The local prosecutor's office;

(3) The local court system;

(4) The local public school system; and

(5) A local nonprofit, educational, religious or community group active in crime prevention or drug use prevention or treatment.

(b) The board shall be an ad hoc advisory board and shall serve only for such period of time as is required to complete the administration and expenditure of the grant funds.
(Ord. No. 96-919, § II, 11-14-1996)

Sec. 2-1683. Authority and duties generally.

The local law enforcement block grants program advisory board shall review the application for funding under the local law enforcement block grants program and it shall be authorized to make nonbinding recommendations to the city council for the use of funds received under the program.
(Ord. No. 96-919, § IV, 11-14-1996)

Secs. 2-1684—2-1700. Reserved.

DIVISION 18. METRO-KIWANIS SPORTSPLEX ADVISORY COMMITTEE

Sec. 2-1701. Created.

The Metro-Kiwanis Sportsplex advisory committee is created.
(Ord. No. 95-538, § 1, 8-10-1995)

Sec. 2-1702. Membership.

(a) The Metro-Kiwanis Sportsplex advisory committee shall be composed of a total of five members appointed from residents of the city who have a recognized interest in the activities which take place at the Metro-Kiwanis Sportsplex. Initial members of the committee shall be appointed as follows: one for a term of one year, two for a term of two years, and two for a term of three years.

(b) Two of the members of the committee shall be members in good standing of the Kiwanis Club of Metropolitan Huntsville. One shall be an

initial two-year member, and the other shall be an initial three-year member. The Kiwanis Club of Metropolitan Huntsville, by duly adopted resolution, shall propose a list of nominees (not less than three in number) for each of these two member positions to the mayor. The mayor shall appoint from each of these two lists of nominees a member to serve on the committee. In the case of a vacancy resulting from the expiration of the stated term of membership on the committee, the Kiwanis Club shall, not more than 90 or less than ten days prior to the expiration of such term, by duly adopted resolution, propose a list of nominees (not less than three in number) for each member position which is to become vacant. In the case of a death or resignation, such list shall be proposed within 30 days following the occurrence of the vacancy.

(c) Of the other members of the committee, the member initially serving a term of one year shall be appointed by the mayor. The other two committee members, one serving an initial term of two years and the other serving an initial term of three years, shall be appointed by the city council. Each of these three members shall be a participant in the activities conducted at the facility.

(d) As the terms of all the members expire, their successors shall be appointed for terms of three years by the appointing authority. A vacancy occurring during the term of an appointment shall be filled by the appropriate appointing authority for the remainder of the unexpired term.

(e) An appointee shall cease to be a member upon resignation, upon ceasing to be a resident of the city, or as otherwise provided by ordinance or law.

(f) The committee members shall serve without compensation.
(Ord. No. 95-538, §§ 2, 5, 8-10-1995)

Sec. 2-1703. Organization and meetings.

(a) The Metro-Kiwanis Sportsplex advisory committee shall meet and organize as soon as possible after appointments. The committee shall elect annually from among its members a chairman and a secretary. The committee, after election of its own officers, shall keep or cause to be kept a full and complete record of all of its proceedings. Such records shall set forth the reasons for the committee's decisions. The records of the committee shall be open for public inspection at the office of the manager of recreation services during normal business hours.

(b) The sportsplex advisory committee shall establish rules and regulations for its own procedures consistent with the provisions of this division. The committee shall hold regular meetings at least once every other calendar month from March through September at any time fixed by rule or resolution of the committee. During the period from October through February, meetings shall be held as determined necessary by a majority of the committee. The chairman or any three members of the committee may call a special meeting for any stated purpose on at least 24 hours' notice to each member by mail or telephone. Three members of the sportsplex advisory committee shall constitute a quorum for the transaction of business. No committee member shall act in any case in which he has a personal interest. Any official action of this committee must be by majority vote of those present and voting.
(Ord. No. 95-538, § 3, 8-10-1995)

Sec. 2-1704. Authority and duties generally.

(a) The Metro-Kiwanis Sportsplex advisory committee shall have the following duties and authority:

(1) The principal function of the sportsplex advisory committee is to advise and give recommendations to the manager of recreation services on the long range planning, coordination of tournaments, and promotion of the sportsplex facility.

(2) To encourage, provide for and coordinate the cooperation and assistance of citizens with programs and tournament activities at the sportsplex facility.

(b) No action of the committee shall be binding upon the city or any of its officers or employees. The authority of the committee is advisory only. (Ord. No. 95-538, § 4, 8-10-1995)

Secs. 2-1705—2-1730. Reserved.

DIVISION 19. MUSEUM BOARD

Sec. 2-1731. Created.

The museum board is created.

Sec. 2-1732. Membership.

(a) The museum board shall consist of 13 members to be appointed by the city council for a term of six years. Vacancies shall be filled for unexpired terms in the manner in which original appointments are made. All members who are presently serving shall be permitted to serve out the term for which they have been appointed.

(b) The members of the museum board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings; however, actual and necessary expenses, in amounts no greater than those appropriated by the city council, incurred in the performance of their duties, may be paid.
(Ord. No. 09-876, § 1, 10-8-2009)

Sec. 2-1733. Quorum; conflicts; actions by board.

Seven members of the museum board shall constitute a quorum for the transaction of business. No member shall act in any case in which he has a personal interest. Actions of the board shall be by majority of those present.
(Ord. No. 09-876, § 2, 10-8-2009)

Sec. 2-1734. Officers; bonds required.

The museum board shall elect from its membership a treasurer and such assistant treasurers as it deems advisable, each of whom shall give bond with corporate surety in the amount of $10,000.00, payable to the city, and conditioned upon the faithful discharge of the duties of such person. The expense or premium of such bonds shall be paid by the museum board. The treasurer elected by the museum board shall have custody of all funds of the board, subject to the control of the museum board.

Sec. 2-1735. Powers.

(a) The museum board is authorized and directed to operate the Huntsville Museum. Such board shall adopt from time to time, amend and repeal bylaws, rules and regulations governing the facilities of the city entrusted to its operation and management provided such bylaws and rules and regulations are not in conflict with this section or any laws of the state related to museum establishment and maintenance.

(b) The museum board shall have the power to:

(1) Do the acts and things necessary to carry out the objectives and the purposes set forth in this division;

(2) Acquire by purchase, gift or loan any money, securities, objects of art, and other property, other than real property, for museum purposes and uses;

(3) Buy and sell, and otherwise deal, in the name of the city, in property necessary to carry out its objectives;

(4) Cooperate with any public or private corporation or organization;

(5) Do any lawful act necessary or expedient to improve museum facilities for the people of the city;

(6) Provide for the exhibition, particularly to students of the public schools and in general to the population of the city, of statuary and all forms of the graphic and decorative arts and other fine arts;

(7) Encourage by appropriate means the cultivation of artistic talents and recognition of artistic achievements;

(8) Provide rules and regulations for its governance and the governance of its officials, employees and personnel under contract to it, and of any premises or property which may, from time to time, be in its custody;

provided such rules and regulations are in accordance with and do not conflict with or otherwise violate any provision of this Code or other ordinance or resolution of the city. In the exercise of its power, the Museum Board shall have no power or authority to obligate the city beyond the amount appropriated by the city council for its purposes.

Sec. 2-1736. Management, custody and control of objects of art; no right to sue or be sued.

The management, custody and control of any sculptures, paintings and other objects of art belonging to the city which the city council may by resolution place under the control and management of the Museum Board shall be vested in the Museum Board, and the board shall exercise, subject to the control of the city council, all the powers of the city with respect to establishing, maintaining and operating a museum of fine arts, which shall bear the name of Huntsville Museum of Art; however, the board shall coordinate museum policy with the Burritt Museum of the city, to the end that the last will and testament of Dr. William Henry Burritt will at all times be observed, and to the end that the policies of the two boards shall not conflict. Any conflicting policy of the two Museum Boards, certified to the council by either body, shall be resolved by resolution of the city council.

Sec. 2-1737. Budget, appropriations; financial procedures.

(a) The Museum Board shall submit to the mayor, on or before June 30 of each year, a detailed budget of estimate expenditures for the fiscal year commencing October 1 of that year. The city council may set aside and appropriate for the use of the board, for the maintenance of the museum, and for the other authorized purposes of the board, either all or such part of such estimated budget as may be available, or as may be deemed proper.

(b) The amounts appropriated from time to time by the city council for the support and maintenance of the museum shall be held by the treasurer of the board, and shall be paid out only for approved expenditures, upon vouchers approved by the board, or upon vouchers approved by the chairman or vice-chairman of the board. In all cases of payments made upon the approval of vouchers by the chairman or vice-chairman, such approval and payment shall be submitted to and reviewed by the board at its next regular meeting. All such vouchers shall be retained in the office of the board as part of the permanent records of the board.

(c) Funds, other than those appropriated by the city council, shall be administered by the Museum Board and expended by it for authorized purposes only, for the operation of the Huntsville Museum of Art, including the carrying out of any of the objectives or purposes set forth in this section, and all pertinent books and records shall at all times be subject to inspection and audit by the city clerk-treasurer of the city, or other person designated by the mayor or the city council.

(d) For the purpose of coordinating the accounting with that used in the office of the city clerk-treasurer, the city clerk-treasurer is authorized to determine the method of accounting for all receipts and expenditures of the Museum Board, including the form of vouchers and general accounting records.

Sec. 2-1738. Yearly audit required.

At least once each year, the Museum Board shall appoint independent public accountants to

conduct an examination in accordance with generally accepted auditing standards of all books and accounts of the board not kept by the city clerk-treasurer since the preceding examination and to make a full report in writing, under oath, which shall be submitted by the board to the council and mayor at its first meeting after the completion of such report.

Sec. 2-1739. Purchases; contracts.

Subject to the limitations provided in this division, the Museum Board shall have the power to make contracts in the name of the board for the acquisition of property or services to be used in furtherance of the purposes for which the board has been created, and to execute all contracts necessary or convenient for such purposes; however, the board shall have no power or authority to obligate the city beyond the amount appropriated by the council for its purposes. In making expenditures for personal property or services authorized in this division, the board shall, in all respects, comply with the competitive bid law of the state, Code of Ala. 1975, § 41-16-1 et seq.; however, as to property that is stocked or purchased in quantity by the purchasing agent of the city, the board may requisition such property from the inventory of the city at cost; and where tangible personal property is to be acquired by the board which is the same or substantially similar to like property acquired by the purchasing agent of the city, the board may request that the needs of the city and the board be acquired by joint bid and purchase, in which case such property shall be acquired by the purchasing agent of the city and transferred to the board at the unit or pro rata price. The board shall designate a person employed by the board to act as the board's purchasing agent, and may provide, by resolution or bylaw entered upon the minutes of the board, that the purchasing agent so designated shall have the authority to act as awarding authority for and on behalf of the board in all or any specified class of purchases; however, if a bid is received for an item of personal property to be purchased or contracted for from a person who has continuously maintained a place of business within the city for which a business license has been paid to the city during the current and immediately preceding license year, deemed to be a responsible bidder, which such bid is no more than three percent greater than the bid of the lowest responsible bidder, and where such personal property is either manufactured within the city or regularly warehoused and stored for distribution at a place within the city, the awarding authority shall award the contract to such resident responsible bidder.

Secs. 2-1740—2-1760. Reserved.

DIVISION 20. PLANNING COMMISSION*

Sec. 2-1761. Created.

The Planning Commission is created.

State law reference—Authority to create planning commission, Code of Ala. 1975, § 11-52-2.

Sec. 2-1762. Membership.

The Planning Commission shall consist of 12 members as follows:

(1) The mayor, or, at the discretion of the mayor, an administrative assistant to the mayor or any administrative officer of the city under the supervision of the mayor;

(2) One administrative official of the city selected by the mayor;

(3) One member of the city council selected by it as member ex officio; and

(4) Nine members appointed by the mayor.

State law reference—Planning commission membership, Code of Ala. 1975, § 11-52-3.

Sec. 2-1763. Powers and authority.

The Planning Commission shall have all powers and authority provided under state law.

State law reference—Planning commission powers, Code of Ala. 1975, § 11-52-6 et seq.

Secs. 2-1764—2-1780. Reserved.

*__Cross reference—__Zoning, app. A.

State law reference—Planning, Code of Ala. 1975, § 11-52-1 et seq.

DIVISION 21. RESEARCH PARK BOARD

Sec. 2-1781. Created.

The Research Park Board is created.

Sec. 2-1782. Membership.

The Research Park Board shall be composed of seven members appointed by the mayor, after formal consultation with the council, and subject to council approval, for staggered seven-year terms. Of the members first appointed, one member shall be appointed for one year, one member for two years, one member for three years, one member for four years, one member for five years, one member for six years, and one member for seven years. Thereafter, appointments shall be for seven years. The mayor, one member of the council elected by the council, one member of the Planning Commission elected by the Planning Commission, a representative of Marshall Space Flight Center National Aeronautics and Space Administration appointed by the director, a representative of J.F. Drake State Technical College appointed by the president, a member of the house of representatives with a constituency within the county appointed by the chairman of the county legislative delegation, and a representative of the Army Missile Command appointed by the commanding general, and the chairman of the Research Park Advisory Committee shall be members ex officio; however, any member of the Board may designate, in writing, an alternate who may attend meetings and vote in the absence of the member; and further, that of the ex officio members, the mayor, the member of the council elected by the council, and one member of the Planning Commission elected by the Planning Commission shall be voting members.

Sec. 2-1783. Duties; responsibilities.

The duties and responsibilities of the Research Park Board shall be as follows:

(1) To assist the mayor and city council in formulating goals and objectives the accomplishment of which will enhance the Cummings Research Park with respect to research and development and new technology or high-technology industries.

(2) To recommend to the mayor, the city council, and the county commission an overall development plan, including streets, transportation, utilities and other amenities for the expanded areas of Cummings Research Park.

(3) To formulate and recommend to the commission, the mayor and the council such changes and amendments to the zoning ordinances of the city with respect to the research park district regulations as the board may find desirable.

(4) To recommend to the mayor and council such land acquisition as in their judgment are necessary and desirable to enhance the city's ability to attract and expand research and development and new technology industries.

(5) To assist public and private agencies in the city and county in establishing, developing and promoting sites and services necessary to improve the communities prospects for attracting and expanding new technology industries.

(6) To keep minutes of board meetings, which shall also be tape recorded, the tape recordings being preserved by the board until after the minutes have been approved by the board.

Secs. 2-1784—2-1800. Reserved.

DIVISION 22. TRUCK STUDY COMMITTEE

Sec. 2-1801. Created.

The Truck Study Committee is created.

Sec. 2-1802. Membership.

(a) The Truck Study Committee shall consist of the following officials of the city:

(1) Chief of police;

(2) Manager of inspection division;

(3) Manager of natural resources and environmental management division;

(4) Director of parking and public transit department; and

(5) Director of public works service department.

(b) In addition to the officials named in subsection (a) of this section, the committee shall appoint two members from the trucking community and may appoint to its membership any supporting personnel of the city who may be necessary to carry out the intent and purpose of the committee.

Sec. 2-1803. Appointment of chairperson.

The chairperson of the Truck Study Committee shall be appointed by the committee.

Sec. 2-1804. Duties and responsibilities.

(a) The Truck Study Committee shall act in an advisory capacity to the mayor and the city council on all truck-related issues, including without being limited to the following:

(1) Truck routes within the city;

(2) Truck inspections;

(3) Truck weights; and

(4) Enforcement of other truck-related ordinances and regulations and truck safety.

(b) The committee shall meet on a regular schedule to be established by the committee and report to the mayor and the city council on a quarterly basis as to its activities, findings and recommendations.

Sec. 2-1805. Duration of the committee.

The Truck Study Committee shall be and remain in existence for the purposes stated in this division and for all other legal and proper purposes as it may be directed from time to time by the mayor and the city council.

Secs. 2-1806—2-1830. Reserved.

DIVISION 23. VON BRAUN CENTER BOARD OF CONTROL

Sec. 2-1831. Created.

The Von Braun Center Board of Control is created.
(Ord. No. 97-55, § 1, 1-23-1997)

Sec. 2-1832. Membership.

The Von Braun Center Board of Control shall consist of seven members, whose appointments and terms shall be as follows: Of the members first appointed, one member shall be appointed by the mayor for a term of one year, two members shall be appointed by the city council for a term of two years, two members shall be appointed by the city council for a term of three years, and two members shall be appointed by the city council for a term of four years. Thereafter, the term of all appointed members shall be four years. Vacancies shall be filled for the unexpired term by the same agency and in the manner in which original appointments were made.
(Ord. No. 97-55, § 1, 1-23-1997)

Sec. 2-1833. Quorum; actions of the board.

Four members of the Von Braun Center Board of Control shall constitute a quorum for the transaction of business. No member shall act in any case in which he has a personal financial interest. Actions of the board shall be by majority of those present.
(Ord. No. 97-55, § 2, 1-23-1997)

Sec. 2-1834. Powers.

The Von Braun Center Board of Control is granted custody of and authorized to maintain, control, operate and manage for and on behalf of the city, the Von Braun Center heretofore established. The board shall adopt from time to time, amend and repeal bylaws, rules and regulations governing the facilities of the Von Braun Center provided such bylaws, rules and regulations are not in conflict with this section or any laws of the state. The board shall have the power to:

(1) Arrange, sponsor and conduct programs and exhibits in the center for the advancement of the cultural, civic and scientific

interest and welfare of the citizens of the city, and for the advancement of the humanities;

(2) Promote, sponsor and operate in the center exhibitions and recreational activities;

(3) Charge fees for admission;

(4) Rent or lease all or part of the center for exhibitions, shows, performances or meetings;

(5) Accept or receive in the name of the city gifts, bequests and devises; and

(6) Do all things necessary or convenient to carry out the powers explicitly given in this section.

(Ord. No. 97-55, § 3, 1-23-1997)

Sec. 2-1835. Advertising.

The Von Braun Center Board of Control may advertise its facilities, programs and events on behalf of the city and may expend such funds as may be appropriated to it for that purpose.
(Ord. No. 97-55, § 4, 1-23-1997)

Sec. 2-1836. Purchases; contracts.

Subject to the limitations provided in this division, the Von Braun Center Board of Control shall have the power to make contracts in the name of the board for the acquisition of personal property or services to be used in furtherance of the purposes for which the board has been created, and to execute all contracts necessary or convenient for such purposes; however, the board shall have no power or authority to obligate the city beyond the amount appropriated by the council for its purposes. In making expenditures for personal property or services authorized in this division, the board shall, in all respects, comply with Code of Ala. 1975, tit. 41, ch. 16 (Code of Ala. 1975, § 41-16-1 et seq.); however, as to property that is stocked or purchased in quantity by the city, the board may requisition the property from the inventory of the city at cost; and where tangible personal property is to be acquired by the board which is the same or substantially similar to like property acquired by the city, the board may request that the needs of the city and the board be acquired by joint bid and purchase, in which case the property shall be acquired by the city and transferred to the board at the unit or pro rata price. The board shall designate a person employed by the board to act as the board's purchasing agent, and may provide, by resolution or bylaw entered upon the minutes of the board, that the purchasing agent so designated shall have the authority to act as awarding authority for and on behalf of the board in all or any specified class of purchases; however, if a bid is received for an item of personal property to be purchased or contracted for from a person who has continuously maintained a place of business within the city for which a business license has been paid to the city during the current and immediately preceding license year, deemed to be a responsible bidder, which such bid is no more than three percent greater than the bid of the lowest responsible bidder, and where such personal property is either manufactured within the city or regularly warehoused and stored for distribution at a place within the city, the awarding authority shall award the contract to such resident responsible bidder.
(Ord. No. 97-55, § 5, 1-23-1997)

Sec. 2-1837. Officers.

The members of the Von Braun Center Board of Control shall, in accordance with the bylaws of the board, elect one of their number as chairman, one of their number as vice-chairman, and one of their number as secretary-treasurer. Officers shall be entitled to succeed themselves as provided for in the bylaws of the board. Vacancies in any office shall be filled by the board for any unexpired term.
(Ord. No. 97-55, § 6, 1-23-1997; Ord. No. 23-202, 3-23-2023)

Sec. 2-1838. Manager, officers, and employees.

The Von Braun Center Board of Control shall have the power to appoint a manager and such other officers and employees as it may deem necessary and desirable, and to fix their duties, authorities and compensation. The manager of the Von Braun Center appointed by the board

shall be responsible to the board for the day-to-day administration of the center and for the supervision and control of the other officers and employees of the board.
(Ord. No. 97-55, § 7, 1-23-1997)

Sec. 2-1839. Bonds or insurance required.

The Von Braun Center Board of Control shall assure that appropriate controls are in place to assure the proper and safe handling of all funds and the record keeping of all financial accounts and business transactions. The board shall assure that appropriate bonds or insurance policies are in place to protect the board and the City of Huntsville, Alabama against financial losses due to mishandling, theft, fraud, embezzlement of funds or other similar actions or inactions on the part of board members, officers, or employees. The board shall pay for the costs or premiums of such bonds or insurance.
(Ord. No. 97-55, § 8, 1-23-1997; Ord. No. 23-202, 3-23-2023)

Sec. 2-1840. Compensation.

The members of the Von Braun Center Board of Control shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings; however, actual and necessary expenses, in amounts no greater than those appropriated by the city council, incurred in the performance of their duties, may be paid. Employees' salaries shall adhere to the general salary structure of the city's general fund, as far as practical, and at the annual budget review meeting with the council, the Von Braun Center Board of Control and the city council will review the employees salary structure of the board.
(Ord. No. 97-55, § 9, 1-23-1997)

Sec. 2-1841. Budget required.

The Von Braun Center Board of Control shall submit to the mayor, on or before June 30 of each year, a detailed budget of estimated expenditures for the fiscal year commencing October 1 of that year. The city council shall set aside and appropriate for the use of the board, for the maintenance and operation of the Von Braun Center, and for the other authorized purposes of the board, either all or such part of such estimated budget as may be available or is, by the city council, deemed proper.
(Ord. No. 97-55, § 10, 1-23-1997)

Sec. 2-1842. Yearly audit required.

At least once each year, the art museum shall appoint independent public accountants to conduct an examination in accordance with generally accepted auditing standards of all books and accounts of the Von Braun Center Board of Control not kept by the city clerk-treasurer since the preceding examination and to make a full report in writing, under oath, which shall be submitted by the board to the council and mayor at its first meeting after the completion of such report.
(Ord. No. 97-55, § 12, 1-23-1997)

Sec. 2-1843. Policies of the board.

The Von Braun Center Board of Control shall, as soon as possible, generate a set of written policies and guidelines for usage of the facilities and rates to be charged for usage, whereupon the policy, and all revisions to the policy, will be delivered to the city council and mayor. The policy shall not be changed or amended unless the proposed change is first presented in writing to the mayor and city council at least ten days prior to its adoption.
(Ord. No. 97-55, § 13, 1-23-1997)

Secs. 2-1844—2-1860. Reserved.

DIVISION 24. WATERWORKS UTILITY BOARD*

Sec. 2-1861. Creation.

There is created and established for the city a waterworks utility board, to be known as the Huntsville Waterworks Utility Board.
(Code 1982, § 23-36)

State law reference—Authority to create waterworks utility board, Code of Ala. 1975, § 11-50-430.

*__Cross reference—__Utilities, ch. 26.

State law reference—Waterworks utility boards, Code of Ala. 1975, § 11-50-430.

Sec. 2-1862. Compensation.

The members of the Waterworks Utility Board shall serve without compensation. The members of the board shall be reimbursed for any actual

expense incurred by them in the transaction of any business of or for and on behalf of the board. (Code 1982, § 23-42)

State law reference—Compensation of board, Code of Ala. 1975, § 11-50-435.

Secs. 2-1863—2-1880. Reserved.

DIVISION 25. HUNTSVILLE TENNIS CENTER BOARD OF CONTROL*

Sec. 2-1881. Established; members, terms vacancies.

(a) There is hereby created and established in the city a board to be known as the Huntsville Tennis Center Board of Control, referred to in this article as the "board," which shall consist of seven members, whose appointments and terms shall be as follows:

(b) The names and terms of the members of the initial board shall be and hereby are made by the city council as follows:

Position No.	*Term*
1	3 years
2	2 years
3	1 year
4	3 years
5	2 years
6	1 year
7	3 years

(c) Thereafter, at the end of the stated term of each member of the initial board, all appointments to positions 1, 2, 3, 4, and 5 of the board shall be appointed by the city council and all appointments to positions 6 and 7 of the board shall be appointed by the mayor. Each appointment shall be for a term of three years. Vacancies in any position shall be filled for any unexpired term by the governing authority who originally made the appointment to that position.

(d) In addition, the mayor shall have the authority with the approval by a majority of the city council to appoint two ex officio directors who shall have the authority to attend all meetings of the board and be recognized and enter into all discussions on matters before the board, but who shall serve for such term as may be determined by the mayor but not to exceed the mayor's term. Any regular or ex officio directors may be reappointed for one or more successive term(s).
(Ord. No. 04-829, § 1, 10-28-2004)

Sec. 2-1882. Officers.

The members of the board shall, in accordance with the by-laws of the board, elect one of their number as chairman, one of their number as vice chairman, one of their number as secretary and one of their number as treasurer. One person may serve as secretary and treasurer. Officers shall be entitled to succeed themselves. Vacancies shall be filled by the board for the un-expired terms.
(Ord. No. 04-829, § 2, 10-28-2004)

Sec. 2-1883. Quorum; conflicts, action by board.

Four members of the board shall constitute a quorum for the transaction of business. No member shall act in any case in which he has a personal financial interest. Actions of the board shall be by majority of those present.
(Ord. No. 04-829, § 3, 10-28-2004)

Sec. 2-1884. Policies.

The board shall have the authority to adopt written policies and guidelines for usage of the tennis complex and related facilities at John Hunt Park, including rates, a copy of which shall be furnished to the mayor and the council of the city (the "council"). Said policies may provide for the manager or director to negotiate agreements for use of the facilities, but all such agreements shall be subject to the approval of the board. The policies and guidelines may be amended, from time to time, at the discretion of the board, provided that copies of all such amendments are furnished to the mayor and council.
(Ord. No. 04-829, § 4, 10-28-2004; Ord. No. 05-217, § 1, 3-22-2005)

*__Editor's note—__Ord. No. 04-829, §§ 1—12, adopted Oct. 28, 2004, did not expressly amend this Code; hence, inclusion of its provision as div. 25, §§ 2-1881—2-1892, of ch. 2, art. VIII was at the editor's discretion.

Sec. 2-1885. Expenses of members; salaries of employees.

The members of the board shall receive no compensation whatever for their services, nor shall they receive compensation or per diem for attending meetings; provided, however, that actual and necessary expenses, incurred in the performance of their duties, may be paid. The board shall not be required to adhere to the general salary structure of the city general fund in connection with the hiring of employees, provided, however, that at the annual budget review meeting with the council, the board and the council will review the employees' salary structure of the board.
(Ord. No. 04-829, § 5, 10-28-2004)

Sec. 2-1886. Treasurer; bond; duties; assistants.

The board shall elect from its members a treasurer and such assistant treasurers as it deems advisable, each of whom shall give bond with corporate surety in the amount of $10,000.00, payable to the board to the city, with condition to discharge faithfully all the duties of their respective offices. The expenses or premiums of such bond shall be paid by the board out of its revenues. The treasurer elected by the board shall have custody and, subject to the direction of the board, control of all operating revenues and funds of the board. The treasurer shall have the right, subject to direction of the board, to invest and reinvest all operating revenues and funds of the board in such deposits and investments that are, at such time, approved deposits or investments for city funds.
(Ord. No. 04-829, § 6, 10-28-2004)

Sec. 2-1887. Powers.

(a) The board is hereby granted custody of and authorized to maintain, control, operate and manage for and on behalf of the city, the new Huntsville Tennis Center at John Hunt Park, including any future additions thereto, (collectively the "facility"), which is owned by the city. The board shall adopt from time to time, amend and repeal bylaws, rules and regulations governing the facility; provided, however, that such bylaws and rules and regulations are not in conflict with this article or any laws of the state. They shall have the power to arrange, sponsor, contract for and conduct programs, tournaments, shows, exhibitions, contests, tennis leagues, meetings, tennis lessons and other recreational activities at the facility for the advancement of the recreational, athletic, cultural and civic interest and welfare of the citizens of the city.

(b) Subject to the requirements of this article or any laws of the state, the additional powers which the board may exercise in order to effectuate the foregoing purposes shall include, but not necessarily be limited to, the following:

(1) Charge, establish and revise fees for use, parking, and other events conducted at the facility;

(2) Rent, lease or otherwise provide all or any part of the facility for tournaments, shows, leagues, programs, lessons, exhibitions, contests, performances, tennis leagues and other recreational activities;

(3) Acquire, hold, sell and otherwise dispose of any personal property, subject, in the case of any acquisition of personal property, to the available excess funds of the board not needed for any current year's expenditures;

(4) Subject to the provisions of section 2-1889 hereof, make, enter into and execute such contracts, agreements, and other instruments and to take such other actions as may be necessary or convenient to accomplish any purpose of the board referenced herein or to exercise any power that is either expressly granted to the board hereunder or must, by necessary implication, be exercisable by it in order to accomplish any purpose herein;

(5) Receive and accept, in the name of the city, from any source, aid, contributions, bequests and devises, whether in the form of money, property, labor or other things of value, to be held used and applied by the board to carry out the purposes herein

expressed, subject to any lawful condition upon which the same may be given or made;

(6) Subject to the limitations set forth in section 2-1889, appoint, employ and contract with such employees and agents, including, without limitation, managers, teachers, professional tennis instructors, attorneys, accountants, financial experts, fiscal agents and such other advisors, consultants and agents as may be in the judgment of the board necessary or desirable, and to fix their compensation. The foregoing notwithstanding, all city employees assigned to the Tennis Center at Brahan Spring Park, as of the date of adoption of the ordinance enacting this division, shall become employees of the board and shall continue to receive the same salary, plus approved cost of living adjustments, step raises and health insurance benefits, as they would have received had they remained employees of the city (hereinafter the "retained employees"). The retained employees shall be guaranteed such salary for a period of no less than one year from the date of transfer of employment to the board, subject to satisfactory job performance. All accrued annual leave, sick leave, and compensatory time off, subject to the carry-over caps of the city, shall follow the retained employees, and shall not be diminished by the board. Upon termination of employment, any remaining leave of any such retained employee shall be paid out by the board as provided under the personnel policies and procedures of the city. For purposes of this division only, retained employees using accrued leave shall be deemed to be using leave which was accrued first in time. For purposes of this division, and for a period of one year from the date of transfer of employment, any retained employee shall be treated in the same manner as all other city employees in connection with city job openings;

(7) Enter into such management and other contracts as may in the judgment of the board be necessary or desirable in order to delegate and perform more effectively, efficiently or economically the day-to-day operations of the facility as well as various clerical, accounting and administrative functions for which the board may become responsible in the exercise of the powers herein conferred upon it;

(8) If not otherwise provided by the city, and subject to the limitations of section 2-1889, procure or agree to procure from any insurance company, insurance protecting any member of the board, the board or the facility from liabilities under broad form coverages and errors and omission coverages;

(9) Accumulate all income, operating revenues and other funds of the board not required for immediate use and apply all such accumulated funds to the cost of extensions, renovations, repairs and improvements to the facility, as may be determined by the board; provided, however, that no such extensions, renovations, improvements or repairs shall obligate the city beyond the amounts, if any, appropriated by the city to the board for such purposes;

(10) Arrange, contract for, conduct, lease or sponsor a pro shop for the sale, rental, or repair of tennis rackets, equipment, and related items and to arrange, contract for, conduct, lease and sponsor a snack bar and any other related activities necessary or useful for the enjoyment of the facility;

(11) In general, and subject to the limitations and conditions as are now or may hereafter be provided, to exercise such other powers necessary or incidental to the powers conferred herein, or conducive to the attainment of the purposes of the board; and

(12) Establish and maintain deposit and investment accounts in the name of the board with banks, savings and loans and other institutions (including, but not lim-

ited to, money market funds) and to make all deposits and withdrawals therefrom as the board may authorize.
(Ord. No. 04-829, § 7, 10-28-2004; Ord. No. 05-217, § 2, 3-22-2005)

Sec. 2-1888. Advertising authorized.

The board may advertise its facility, programs tournaments, shows, exhibitions, performances, events and other recreational activities on behalf of the city and may expend such funds as may be appropriated to it for that purpose or such additional funds as may be in the possession of the board in excess of the amounts necessary to meet any expenditures required to be paid by the board. No material for the advertising and promotion carried on by the board shall directly promote any privately owned business or entity.
(Ord. No. 04-829, § 8, 10-28-2004)

Sec. 2-1889. Purchases and contracts; limitations.

(a) The board shall have the power to make contracts in the name of the board for the purposes set forth in section 2-1887 hereof and for acquisition of personal property or services to be used in furtherance of the purposes for which the board has been created, and to execute all contracts necessary or convenient for said purposes; provided, however, the board shall have no power or authority to obligate the city beyond the amount appropriated by the council for its purposes.

(b) In making expenditures for personal property or services herein authorized, the board shall, in all respects, comply with the competitive bid law of the state, Code of Ala. 1975, § 41-16-50 et seq.; provided, however, that as to property that is stocked or purchased in quantity by the purchasing agent of the city, the board may requisition said property from the inventory of the city at cost; and further provided, that where tangible personal property is to be acquired by the board which is the same or substantially similar to like property acquired by the purchasing agent of the city, then the board may request that the needs of the city and the board be acquired by joint bid and purchase, in which case said property shall be acquired by the purchasing agent of the city and transferred to the board at the unit or pro-rata price.

(c) The board shall designate a person employed by the board of the city to act as the board's purchasing agent, and may provide, by resolution or bylaw entered upon the minutes of the board, that the purchasing agent so designated shall have the authority to act as awarding authority for and on behalf of the board in all or any specified class of purchases; provided, however, that in the event a bid is received for an item of personal property to be purchased or contracted for from a person who has continuously maintained a place of business within the city for which a business license has been paid to the city during the current and immediately preceding license year, deemed to be a responsible bidder which such bid is no more than three percent greater than the bid of the lowest responsible bidder, and where such personal property is either manufactured within the city or regularly warehoused and stored for distribution at a place within the city, the awarding authority shall award said contract to such resident responsible bidder.
(Ord. No. 04-829, § 9, 10-28-2004)

Sec. 2-1890. Budget.

In accordance with the terms of the city's budget management ordinance (Ord. No. 90-462) [section 2-152 of this Code], the board shall submit a detailed budget of estimated expenditures for the fiscal year commencing October 1 of each year and a five-year capital plan. The council shall set aside and appropriate for the use of the board, for the maintenance and operation of the facility, and for the other authorized purposes of the board, such part of such estimated budget as may be available or is, by the council, deemed proper. The foregoing notwithstanding, the city is not obligated to make any annual appropriation to the board. Notwithstanding an approved budget, the board shall not be prevented from expending its excess funds not needed to meet its anticipated yearly expenses for such purchases, improvements, renovations, repairs and exten-

sions as the board may deem best advisable, so long as the city does not become obligated beyond the amount appropriated in such budget.
(Ord. No. 04-829, § 10, 10-28-2004)

Sec. 2-1891. Officers and employees.

The board shall have the power to appoint a manager and such other officers and employees as they may deem necessary and desirable, and to fix their duties, authorities and compensation. The manager of the facility appointed by the board shall be responsible to the board for the day-to-day administration of the facility and for the supervision and control of the other officers and employees of the board.
(Ord. No. 04-829, § 11, 10-28-2004)

Sec. 2-1892. Audit.

At least once each year the board shall appoint an independent public accountant to conduct an examination or review in accordance with generally accepted auditing standards of all books and accounts of the board since the preceding examination, and to make a full report thereof in writing, under oath, which shall be submitted by the board of council, clerk-treasurer of the city, and mayor at its first meeting after the completion of such report. The foregoing notwithstanding, the city, through its finance department, is authorized to conduct an examination or review of all books and accounts of the board at any time, provided reasonable notice of such examination or review is provided to the board by the city.
(Ord. No. 04-829, § 12, 10-28-2004)

Secs. 2-1893—18-1899. Reserved.

DIVISION 26. HUNTSVILLE MUSIC BOARD

Sec. 2-1900. Membership.

(a) Of the regular members first appointed, four members shall serve initial terms of one year, and five members shall serve initial terms of two years. Vacancies shall be filled for unexpired terms in the manner in which original appointments are made. The terms of all appointed members next appointed after the expiration of the original terms shall be two years. Members may be appointed to one additional term upon the expiration of their initial term on the board.

(b) All members shall be appointed by the mayor.

(c) All members shall be residents of Madison or Limestone County, Alabama.

(d) An appointee shall cease to be a member of the board upon the appointee's death or resignation or upon the appointee's ceasing to reside in Madison or Limestone County, Alabama. Appointments to fill any vacancies on the committee shall be made only for the unexpired portion of the term so vacated.

(e) Members shall receive no compensation whatsoever for their services, nor shall they receive compensation or per diem for attending meetings; provided, however, that actual and necessary expenses, in amounts no greater than those appropriated by the city council, incurred in the performance of their duties, may be paid.
(Ord. No. 19-1051, § 1, 11-21-2019)

Sec. 2-1901. Ex officio members.

The city's manager of urban and long range planning or his/her designee and the director of urban development or his/her designee shall serve as non-voting, ex officio members of the board. An ex officio member shall not be eligible to serve as an officer of the board.
(Ord. No. 19-1051, § 2, 11-21-2019)

Sec. 2-1902. Quorum action by board.

Five regular members of the city music board shall constitute a quorum for the transaction of business. No member shall act in any case in which he or she has a personal interest. Actions by the board shall be by majority of those present.
(Ord. No. 19-1051, § 3, 11-21-2019)

Sec. 2-1903. Meetings.

The city music board shall hold regular meetings at such time and place within the city as it may determine; provided, however, that the board shall hold at least one meeting every 90 days.
(Ord. No. 19-1051, § 4, 11-21-2019)

Sec. 2-1904. Music board goals.

The goals of the city music board are as follows:

(1) Help establish, promote and maintain the city as a music friendly city;

(2) Increase the profile of the city's music scene;

(3) Provide support in implementing long-term music audit recommendations that will foster music sector growth for the benefit of the city and its citizens;

(4) Connect with other cities to share best practices, information and talent exchange;

(5) Support music education within the community;

(6) Lead the research and development of a Huntsville Music Month;

(7) Help establish, promote, and assist with music related commerce (festivals, conferences, etc.);

(8) Advocate for the sustainability of the music sector in the city, including the affordability of living and working spaces; and

(9) Support the development of a music economy in the city.

(Ord. No. 19-1051, § 5, 11-21-2019)

Sec. 2-1905. Duties.

The city music board shall have the following duties:

(1) Performing research and providing guidance to the city and outside industry with regard to policies and projects;

(2) Support local authorities, communities, and development within the city to protect existing music spaces and the creation of new music opportunities;

(3) Increase the resilience and sustainability of the music sector in the city;

(4) Assisting with and supporting music industry development;

(5) Conducting strategic planning exercises for various music initiatives;

(6) Reviewing of licensing and legislation, and recommending updates;

(7) Participating in marketing and promotion efforts for the regional music scene;

(8) Liaising with complementary arts organizations.

(Ord. No. 19-1051, § 6, 11-21-2019)

Sec. 2-1906. Chairman, secretary, officers and committees.

At the first meeting of the city music board, the members shall elect one of its number as the chairman and one of its number as secretary. Thereafter, the board shall annually elect from among its number a chairman and secretary and such other officers as it may from time to time determine necessary and appropriate for the conduct of board proceedings. The music board may also create from among its members committees as it deems appropriate to further the accomplishment of its goals and duties.

(Ord. No. 19-1051, § 7, 11-21-2019)

Secs. 2-1907—2-2100. Reserved.

ARTICLE IX. GRIEVANCE PROCEDURE UNDER THE AMERICANS WITH DISABILITIES ACT*

Sec. 2-2101. [Generally; notice.]

The ADA grievance procedure for complaints related to the city's services, programs and activities which is attached hereto is hereby adopted [see Exhibit A].

The "Notice under the Americans with Disabilities Act" substantially in form as Exhibit B below, shall be published by the City of Huntsville immediately upon adoption of this section by

*__Editor's note—__Ord. No. 08-779, adopted August 28, 2008, did not specifically amend the Code; hence, inclusion herein as Art. IX, § 2-2101, was at the discretion of the editor. Subsequently, Ord. No. 09-622, adopted July 23, 2009 amended Ord. No. 08-779. See also the Code Comparative Table.

inclusion of such notice on the city's website and by publication in a newspaper of general circulation of the City of Huntsville, Alabama.

Exhibit A

THE CITY OF HUNTSVILLE, ALABAMA GRIEVANCE PROCEDURE UNDER THE AMERICANS WITH DISABILITIES ACT

This Grievance Procedure is established to meet the requirements of the Americans with Disabilities Act of 1990 ("ADA"). It may be used to file a complaint alleging discrimination on the basis of disability in employment practices or in the provision of services, activities, programs or benefits by the City of Huntsville. For regular, full-time City employees, the City's Personnel Policies and Procedures govern employment-related complaints of disability discrimination.

The complaint should be in writing and contain information about the alleged discrimination such as name, address, telephone number of the complainant and location, date, and description of the problem. Alternative means of filing complaints, such as personal interviews or a tape recording of the complaint, will be made available for persons with disabilities upon request.

A Title I ADA related complaint should be submitted by the grievant and/or his/her designee as soon as possible but no later than thirty (30) calendar days after the alleged violation to:

Byron K. Thomas
Director of Human Resources and ADA Coordinator
City Administration Building
308 Fountain Circle
Huntsville, AL 35801
Telephone (256) 427-5240/Fax (256) 427-5245
ADA.CoordTitleI@hsvcity.com

A Title II ADA related complaint should be submitted by the grievant and/or his/her designee as soon as possible but no later than sixty (60) calendar days after the alleged violation to:

Melissa S. Stokes
Compliance Coordinator and ADA Coordinator
City Administration Building
308 Fountain Circle
Huntsville, AL 35801
Telephone (256) 427-7182/Fax (256) 427-7039
ADA.CoordTitleII@hsvcity.com

Within fifteen (15) calendar days after receipt of the complaint, the ADA Coordinator or his/her designee will meet with the complainant to discuss the complaint and the possible resolutions. Within fifteen (15) calendar days of the meeting, the ADA Coordinator or his/her designee will respond in writing, and where appropriate, in a format accessible to the complainant, such as large print, Braille, or audio tape. The response will explain the position of the City of Huntsville and offer options for substantive resolution of the complaint.

If the response by ADA Coordinator or his/her designee does not satisfactorily resolve the issue, the complainant and/or his/her designee may appeal the decision of ADA Coordinator to the Huntsville City Council in writing within fifteen (15) calendar days after receipt of the response by filing a request for a review and hearing with the President of the City Council with a copy of the appeal request being submitted also to the ADA Coordinator.

The President of the City Council shall schedule a hearing before the City Council within-in forty-five (45) calendar days of the date of receipt of the appeal to discuss the complaint and possible resolutions. Within thirty (30) calendar days after the hearing, the City Council shall render a decision in a format accessible to the complainant.

Exhibit B

NOTICE UNDER THE AMERICANS WITH DISABILITIES ACT

Title I: The City of Huntsville, Alabama, does not discriminate on the basis of disability in its hiring or employment practices and complies with all regulations promulgated by the U.S. Equal Employment Opportunity Commission under Title I of the Americans with Disabilities Act of 1990 ("ADA"). Anyone with a Title I ADA related issue should contact Byron K. Thomas, ADA Coordinator, at City Administration Build-

ing, 308 Fountain Circle, Huntsville, AL 35801, Telephone: (256) 427-5240, Fax: (256) 427-5245, Email: ADA.CoordTitleI@hsvcity.com.

Title II: In accordance with the requirements of Title II of the Americans with Disabilities Act of 1990 ("ADA"), the City of Huntsville, Alabama, will not discriminate against qualified individuals with disabilities on the basis of disability in its services, programs, or activities. Anyone with a Title II ADA related issue should contact Melissa S. Stokes, ADA Coordinator, at City Administration Building, 308 Fountain Circle, Huntsville, AL 35801, Telephone: (256) 427-7182, Fax: (256) 427-7039, Email: APA.CoordTitleII@hsvcity.com.

Effective Communication: The City of Huntsville will generally, upon request, provide appropriate aids and services leading to effective communication for qualified persons with disabilities so they can participate equally in the City of Huntsville's programs, services and activities, including qualified sign language interpreters, documents in Braille, and other ways of making information and communications accessible to people who have speech, hearing, or vision impairments.

Modifications to Policies and Procedures: The City of Huntsville will make all reasonable modifications to policies and programs to ensure that people with disabilities have an equal opportunity to enjoy all of its programs, services and activities. For example, individuals with service animals are welcomed in City of Huntsville offices, even where pets are generally prohibited.

Anyone who requires an auxiliary aid or service for effective communication, or a modification of policies or procedures to participate in a program, service or activity of the City of Huntsville related to Title I of the ADA, should contact Byron K. Thomas, ADA Coordinator, at City Administration Building, 308 Fountain Circle, Huntsville, AL 35801, Telephone: (256) 427-5240, Fax: (256) 427-5245, Email: ADA.CoordTitleI@hsvcity.com, as soon as possible but no later than 48 hours before the scheduled event.

Anyone who requires an auxiliary aid or service for effective communication, or a modification of policies or procedures to participate in a program, service or activity of the City of Huntsville related to Title II of the ADA, should contact Melissa S. Stokes, ADA Coordinator, at City Administration Building, 308 Fountain Circle, Huntsville, AL 35801, Telephone: (256) 427-7182, Fax: (256) 427-7039, Email: ADA.CoordTitleI@hsvcity.com, as soon as possible but no later than 48 hours before the scheduled event.

The ADA does not require the City of Huntsville to take any action that would fundamentally alter the nature of its programs or services, or impose an undue financial or administrative burden.

Complaints that a program, service or activity of the City of Huntsville related to Title I of the ADA is not accessible to persons with disabilities should be directed to Byron K. Thomas, ADA Coordinator, at City Administration Building, 308 Fountain Circle, Huntsville, AL 35801, Telephone: (256) 427-5240, Fax: (256) 427-5245, Email: ADA.CoordTitleI@hsvcity.com.

Complaints that a program, service or activity of the City of Huntsville related to Title II of the ADA is not accessible to persons with disabilities should be directed to Melissa S. Stokes, ADA Coordinator, at City Administration Building, 308 Fountain Circle, Huntsville, AL 35801, Telephone: (256) 427-7182, Fax: (256) 427-7039, Email: ADA.CoordTitleII@hsvcity.com.

The City of Huntsville will not place a surcharge on a particular individual with a disability or any group of individuals with disabilities to cover the cost of providing auxiliary aids/services or reasonable modifications of policy, such as retrieving items from locations that are open to the public but are not accessible to persons who use wheelchairs.
(Ord. No. 08-779, 8-28-2008; Ord. No. 09-622, 7-23-2009)

Secs. 2-2102—2-2110. Reserved.

ARTICLE X. RESERVED

Secs. 2-2111—2-2130. Reserved.

Editor's note—Ord. No. 13-529, adopted July 25, 2013, repealed Art. X, §§ 2-2111—2-2114, which pertained to employment eligibility verification system and derived from Ord. No. 09-735, §§ 1—4, 8-27-2009.

ARTICLE XI. POLICE CITIZENS ADVISORY COUNCIL*

Sec. 2-2131. Establishment.

There is hereby established within the City of Huntsville, Alabama, an advisory council to be known as the Huntsville Police Citizens Advisory Council (HPCAC) of Huntsville, Alabama.
(Ord. No. 10-361, § 1, 6-10-2010)

Sec. 2-2132. Purpose.

(a) To promote productive police and community interaction by assisting the police in achieving a greater understanding of the complex social fabric of the community.

(b) To provide an effective organization that will address the concerns of the community by promoting cooperative citizen-police programs that will improve the outcomes of police and citizen interactions and community policing. The HPCAC advocates the principle that the administration of equitable law enforcement includes community involvement and personal responsibility.

(c) To establish independent study of Huntsville Police Department (HPD) directives, to recommend procedures, programs, organizational structure or legislation to improve the efficiency and effectiveness of the police department.

(d) To keep the chief of police, city council, and the mayor apprised of actions taken by the department which create community concern or controversy.

(e) To foster trust between the police department and the community, thereby ensuring equal protection and service for all citizens.
(Ord. No. 10-361, § 2, 6-10-2010; Ord. No. 21-564, § 1, 7-22-2021)

Sec. 2-2133. Role.

The HPCAC will serve in an advisory capacity to the police department on behalf of citizens regarding issues relevant to police and community relations including, but not limited to:

(1) Reviewing a quarterly summary of all complaints on record with the internal affairs division and evaluate trends with the said review to take place in a closed executive session;

(2) Evaluating conditions of employment (both civilian and sworn personnel) including recruiting, hiring, training, disciplinary actions, firing, and promotional practices of both civilian and sworn personnel;

(3) Participating in the annual report and strategic plan outlining objectives, challenges, and successes;

(4) Participate in the incident review board by assignment from the chairman.
(Ord. No. 10-361, § 3, 6-10-2010; Ord. No. 21-564, § 2, 7-22-2021)

Sec. 2-2134. Responsibilities.

(a) To conduct themselves in a manner becoming of a member of the advisory council and its purpose.

(b) To meet on a monthly basis with command staff of the police department and when meetings are deemed necessary either by the HPCAC chairman or the chief of police.

(c) To review a summary of the disposition of all complaints or disciplinary actions from the internal affairs division and request additional information about a case, as needed, in order to make recommendations to the chief of police.

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*__Editor's note—__Ord. No. 10-361, §§ 1—12, adopted June 10, 2010, was included as Art. XI, §§ 2-2131—2-2142 at the discretion of the editor.

Note—Section II of Ordinance No. 21-564 provides for an effective date of August 1, 2021.

(d) To participate on a rotating basis after training on use of force in all officer involved shooting incidents, also known as an incident review board (IRB).

(e) To provide a quarterly summary of activities to the city council in a regularly scheduled public meeting.

(f) To proactively engage citizens across all socio-economic sectors to foster better police and community relations.

(g) To facilitate communication between the police department and the community regarding general issues and concerns expressed by citizens that have been presented to individual members of the HPCAC, a police officer, or brought before the HPCAC during a scheduled meeting. The HPCAC is not, in any circumstance, a replacement for the activity of the internal affairs division and will not submit a complaint on behalf of a citizen to the internal affairs division.

(h) To aide police in identifying trouble areas requiring special police or other governmental actions.

(i) To educate citizens with regard to police responsibilities and limitations.

(j) To provide opportunity for the development of mutual understanding and respect between citizens and the police.
(Ord. No. 10-361, § 4, 6-10-2010; Ord. No. 21-564, § 3, 7-22-2021)

Sec. 2-2135. Membership.

(a) The HPCAC shall be comprised of citizens who are both highly respectful of community needs and perceptions as well as holding professional police officers in high regard while expecting accountability.

(1) Citizens who are appointed shall demonstrate the ability to be objective through experience that requires strong interpersonal relationship skills and a highly developed sense of compassion and empathy. Ideally, appointees will have invested time in activities to foster good community relations with police such as community watch initiatives and safety festivals. After appointment, every member shall make a commitment to complete two of any of these opportunities within approximately 18 months of appointment to learn about police work:

Crisis intervention training short course.

Why police do what they do; and

Citizen police academy.

(2) Appointment to the HPCAC is contingent upon a commitment to attending the citizens police academy (unless previously accomplished) and completion of use of force training (prerequisite for incident review board participation) within their first year on the council. Additionally, every member shall commit to completing at least one police ride along per year. Failure to complete training and at least one police ride along per year shall be grounds for the chair recommending removal of the member to appointing official.

(b) HPCAC members shall be appointed by city council and the mayor with the intention to represent the community at large.

(c) HPCAC members must be citizens of Huntsville and pass a background check performed by the internal affairs division of the police department. No member shall have any pending criminal charges or convictions for crimes within the last ten years.

(d) The HPCAC shall be made up of 13 members. The members shall be nominated for appointment as follows: three by the mayor from the city at large and two by each member of the city council with places as follows:

Places 1, 2, and 3: Mayor at large

Places 4 and 5: Council member District 1

Places 6 and 7: Council member District 2

Places 8 and 9: Council member District 3

Places 10 and 11: Council member District 4

Places 12 and 13: Council member District 5

All current HPCAC members as of August 1, 2021 shall be placed in numbered places.

(e) At the enactment of this article, the initial terms for all odd-numbered places shall be two years, and initial terms for all even-numbered places shall be four years. As initial terms expire, all subsequent terms shall be for four years.

(f) The HPCAC shall elect a chairman, vice-chairman, and secretary in the first meeting after November 1 of each year to serve a one-year term.

(g) The HPCAC will be supported by staff of the city communication department and an administrative assistant employed by the city to publish meeting notices, minutes, and promote outreach activities planned by the members and approved by the officers.

(h) The city shall appropriate in the annual budget funding required for HPCAC events and operations in addition to staff.
(Ord. No. 10-361, § 5, 6-10-2010; Ord. No. 12-681, § 1, 8-23-2012; Ord. No. 21-564, § 4, 7-22-2021; Ord. No. 23-944, § 1, 11-16-2023)

Sec. 2-2136. Meetings.

(a) All meetings shall be held in a public forum at a timeframe or manner conducive to public participation and announced in advance. Closed meetings may be conducted as permitted in accordance with the Code of Ala. 1975, §36-25A-7.

(b) The HPCAC will host four public education meetings a year on topics of interest or concern to the community and hold quarterly executive session meetings to review the summary of complaints made to internal affairs. All other meetings will be at the discretion of the chair.

(c) All requests for information from the HPCAC regarding the police department will be forwarded to the chief of police.

(d) The HPCAC will address concerns which may require action outside the scope of the police department's authority by forwarding the concern and recommendations to the mayor and city council for action.

(e) Problems or concerns that can be addressed by the police department shall be forwarded to the chief of police.

State law reference—Alabama Open Meetings Act, Executive sessions, Code of Ala. 1975, §36-25A-7.
(Ord. No. 10-361, § 6, 6-10-2010; Ord. No. 21-564, § 5, 7-22-2021; Ord. No. 23-944, § 2, 11-16-2023)

Sec. 2-2137. Duties of HPCAC officers.

(a) *Chairman*.

(1) The chairman shall preside over all meetings of the HPCAC in a manner conducive to its purpose.

(2) The chairman will forward all written communications including minutes from the HPCAC to the chief of police, the mayor, and the city council.

(b) *Vice-chairman*. The vice-chairman shall preside in the absence or inability of the chairman, or when requested to do so by the chairman.

(c) *Secretary*.

(1) The secretary or their designee shall record the minutes of all HPCAC meetings.

(2) Minutes shall be made available to all members on or before the next scheduled meeting and available to the public upon acceptance by the council.

(3) Notices shall be sent to all members reminding them of HPCAC meetings (dates, times, and locations).
(Ord. No. 10-361, § 7, 6-10-2010; Ord. No. 21-564, § 6, 7-22-2021)

Sec. 2-2138. Attendance.

Members are expected to attend meetings. Any member missing more than three meetings in a 12-month period may be replaced by the appropriate appointing authority.
(Ord. No. 10-361, § 8, 6-10-2010; Ord. No. 21-564, § 7, 7-22-2021)

Sec. 2-2139. Resignation.

When a member can no longer fulfill their duties, the member should submit a letter of resignation to the appointing authority. It will be the responsibility of the original appointing authority to appoint a replacement to complete the unexpired term.
(Ord. No. 10-361, § 9, 6-10-2010; Ord. No. 21-564, § 8, 7-22-2021)

Sec. 2-2140. Voting.

All members of the Huntsville Police Citizens Advisory Council have the privilege of voting on issues presented and may have the courtesy of the floor for discussions as designated by the chairman.
(Ord. No. 10-361, § 10, 6-10-2010)

Sec. 2-2141. Quorum.

A majority of the members of the Huntsville Police Citizens Advisory Council shall constitute a quorum for the purpose of meeting or conducting business of the Huntsville Police Citizens Advisory Council.
(Ord. No. 10-361, § 11, 6-10-2010; Ord. No. 12-681, § 2, 8-23-2012)

Sec. 2-2142. No authority to obligate city.

The Huntsville Police Citizens Advisory Council shall have no authority to obligate the finances of the City of Huntsville, Alabama, or to otherwise impose any legal obligation upon the City of Huntsville, Alabama.
(Ord. No. 10-361, § 12, 6-10-2010)

Secs. 2-2143—2-2159. Reserved.

ARTICLE XII. ELECTRONIC RECORDS AND ELECTRONIC SIGNATURES

Sec. 2-2160. Purpose; scope; limitations.

(a) *Purpose*. The purpose of this article is to exercise the authority granted to the city council pursuant to section 8-1A-17 and section 8-1A-18 of the Alabama Uniform Electronic Transactions Act, Chapter 1A of Title 8 of the Code of Ala. 1975 (UETA), to determine whether, and the extent to which, city agencies will create and retain electronic records and convert written records to electronic records, send and accept electronic records and electronic signatures to and from other persons and otherwise create, generate, communicate, store, process, use, and rely upon electronic records and electronic signatures.

(b) *Scope*. To the fullest extent permitted by the UETA, consistent therewith, and subject to the limitations therein, this article is intended to authorize the use of electronic records and electronic signatures in the conduct of the official business of the city-by-city agencies and the conduct of official business with city agencies by any person. Such use shall be in accordance with and subject to the provisions of the UETA and this article. This article does not require a record or signature to be created, generated, sent, communicated, received, stored, or otherwise processed or used by electronic means or in electronic form.

(c) *Limitations*. Notwithstanding anything to the contrary contained in this article or the UETA:

(1) In no event shall any legal or binding recognition or effect be given to a record purported to be executed by a city signatory using an electronic signature, if the execution is not duly authorized in accordance with applicable law; and

(2) In the event that any electronic signature is found by a city agency to have been used or applied to a city record in violation of this article, the UETA, or any other law, the electronic signature shall be null and void and the city record signed electronically using the unlawful, fraudulent, unauthorized or otherwise improper electronic signature shall also be null and void, discontinued, and unenforceable against the city.

(Ord. No. 22-142, § 1, 3-10-2022)

Sec. 2-2161. Definitions.

The definitions set forth in section 8-1A-2 of the UETA are expressly incorporated into this

article by reference as if fully set forth herein. In addition, as used in this article, each of the following words have the following meanings:

City agency means an executive, legislative, or judicial agency, department, board, commission, authority, institution, or instrumentality of the city.

City signatory means a person who is an elected or appointed official, officer, employee, agent, or legal representative of a city agency who executes a document on behalf of the city or a city agency.

Electronic media protocol officer means the director of the city's information technology systems department or any one or more of his/her designees or subordinates; or such other or additional person as may be designated by the mayor.

UETA means the Alabama Uniform Electronic Transactions Act, Chapter 1A of Title 8 of the Code of Ala. 1975, as such act may be amended at any time and from time to time.

(Ord. No. 22-142, § 1, 3-10-2022)

Sec. 2-2162. Creation and retention of electronic records.

(a) To the fullest extent permitted by the UETA, in accordance therewith, subject to the limitations therein, and subject to the provisions of this article, city agencies are hereby authorized to create and retain electronic records and to convert written records to electronic records, pursuant to section 8-1A-17(b) of the UETA. Any such electronic records will be retained in compliance with applicable law including section 8-1A-12 of the UETA and the requirements of the Local Government Records Commission ("LGRC"). A city agency may create a retrievable electronic record or copy, by optical scan or otherwise, of paper original documents or make other images or paper copies which accurately reproduce the originals and may destroy original paper documents so copied as specified in the Records Disposition Authority ("RDA") issued by the LGRC under the authority granted by section 41-13-5 and sections 41-13-22 through 24 of the Code of Ala. 1975. The city clerk-treasurer may exercise oversight over the retention and conversion of electronic records.

(b) Notwithstanding anything to the contrary contained in this article or the UETA, an electronic document retains the characteristics of the original document, including whether or not the document is a public record or is confidential or otherwise protected from disclosure.

(Ord. No. 22-142, § 1, 3-10-2022)

Sec. 2-2163. Use of electronic signatures and electronic records.

(a) *Use authorized; limitations.*

(1) *Authorization*. To the fullest extent permitted by the UETA, in accordance therewith, subject to the limitations therein, and subject to the provisions of this article, city agencies, subject to subsection (2) below, are hereby authorized to send and accept electronic records and electronic signatures to and from other persons and otherwise create, generate, communicate, store, process, use, and rely upon electronic records and electronic signatures, pursuant to section 8-1A-18(a)(2) of the UETA.

(2) *Limitations*.

a. In the case of deeds and other instruments that are to be notarized, acknowledged, verified, or made under oath, the use of electronic records and electronic signatures shall be as determined by the city attorney, subject to applicable laws, including those governing real estate transactions and notaries;

b. The mayor may, but is not obligated to, elect for each city agency under his/her supervision and control whether electronic signatures or electronic records will be used for particular types of transaction or documents of that city agency, or (ii) delegate such authority, in whole or part, to the head of a city agency; and

c. The use of electronic records or electronic signatures may be limited or refused by a city agency upon the advice of the city attorney.

(b) In accordance with section 8-1A-18(b) of the UETA, use of electronic records and electronic signatures will comply, at a minimum, with the following requirements:

(1) Provide an identical copy of the original signed and executed document to the signer.

(2) Ensure non-repudiation; that the signer cannot deny the fact that he or she electronically signed the document.

(3) Capture information about the process used to capture signatures (i.e. create an audit trail), including but not limited to:

a. IP address.

b. Date and time stamp of all events.

c. All web pages, documents, disclosures, and other information presented.

d. What each party acknowledged, agreed to, and signed.

(4) Encrypt, end-to-end, all communication within the signature process. Encryption technologies shall comply with state encryption standards, including the requirements that cryptographic modules be validated to the current Federal Information Processing Standards (FIPS).

(c) The information contained in subsection (a) constitutes the minimum that is required for a valid electronic signature. Subject to subsection (d) below, any authorized person within a city agency may require additional reasonable information from a signer in order to establish the identity and signature authority of the signer. The electronic media protocol officer may provide additional requirements subject to this article and the UETA.

(d) Subject to the requirements set forth in subsection (a) above, the electronic media protocol officer of the city is hereby authorized to oversee the use of electronic records and electronic signatures by city agencies, and to otherwise facilitate the implementation of this article through the development of policies, protocols, or recommendations that specify each of the following:

(1) The manner and format in which the electronic records shall be created, generated, sent, communicated, received, and stored and the systems established for those purposes.

(2) If electronic records must be signed by electronic means, the type of electronic signature required, the manner and format in which the electronic signature shall be affixed to the electronic record, and the identity of, or criteria that shall be met by, any third party used by a person filing a document to facilitate the process.

(3) Control processes and procedures as appropriate to ensure adequate preservation, disposition, integrity, security, confidentiality, and auditability of electronic records.

(Ord. No. 22-142, § 1, 3-10-2022)

Secs. 2-2164—2-2174. Reserved.

ARTICLE XIII. CONTROL OF ACCESS TO CITY OWNED, CONTROLLED AND LEASED PREMISES*

Sec. 2-2175. Definitions; purpose.

(a) *Definitions.* The following words, terms, and phrases, when used in this article, shall have the following definitions, except where the context clearly indicates a different meaning:

Access areas means, collectively, controlled areas, open meeting areas, public meeting areas, private work areas, and restricted areas.

*__Editor's note—__Ord. No. 25-194, § 1, adopted March, 27, 2025, set out provisions intended for use as §§ 2-2160—2-2165. Inasmuch as there were already provisions so designated, said section has been codified herein as §§ 2-2175—2-2180 at the discretion of the editor.

City administrator. When the term "city administrator" is used in this article it means the city administrator of the city and his designees, which include those to whom he has delegated or assigned some or all of his authority under this article.

Controlled areas means areas of public facilities where access is open to members of the public for the conduct of municipal or other authorized business.

Member of the public means an individual who is a part of the general population, or the public at large. The term also includes members of the media. The term does not include city officials, officers, or employees; law enforcement personnel in the performance of their duties; or members of city boards, commissions, committees, or other city agencies while performing their duties.

Open meeting areas means areas of public facilities where meetings subject to the Alabama Open Meetings Act are being conducted.

Private work areas means individual offices, work stations, or work spaces of city officials, officers, or employees.

Protected information means private information, whether oral or written, of a private person or a city official, officer, or employee, which is protected from disclosure by applicable law, including, but not limited to, confidential tax information, protected employee records, protected health information, social security numbers, and proprietary information, and in which the person to whom it belongs has a reasonable expectation of privacy.

Public facilities means city owned, controlled, or leased premises, or portions thereof, dedicated, designed, or intended for specific uses related to the business, governmental functions, and operations of the city, and that do not include public places that are characterized as traditional public forums, nor are they considered to be designated public forums.

Public meeting areas means areas of public facilities where meetings that are not subject to the Alabama Open Meetings Act are being conducted by a city official, officer, or employee for a specific purpose for the benefit of the general public, or a portion thereof.

Record. The term "to record," or its derivations, mean the capturing of images, audio, or both, by means of a camera, cell phone, audio recorder, or other device.

Restricted areas means areas of public facilities where access is closed to members of the general public because of the nature of the facility, the nature of the area, or the work or activity being performed or conducted therein, or for the safety or privacy of persons or property.

(b) *Purpose.*

(1) The purpose of this article is to provide for the control of access to public facilities, and information and persons contained therein, by members of the public through view-point neutral reasonable time, place, and manner restrictions in order to: (i) protect the safety and security of persons and property, (ii) promote the orderly and efficient administration of city business, (iii) accommodate use by members of the public consistent with the purpose of the public facilities, (iv) prevent disruption of city operations, (v) prevent interference with city officials, officers, and employees in the performance of their duties, (vi) protect the privacy of persons, which includes crime victims, and (vii) prevent the unauthorized access to confidential or otherwise protected information, including from incidental disclosure.

(2) This article is not intended to control access to a public place, as that term is defined in section 23-201 of this Code, characterized as a traditional public forum or a designated public forum in accordance with chapter 23, article VI of this Code governing organized events.

(3) This article is not intended to control access to public facilities by city officials, officers, or employees; law enforcement personnel in the performance of their

duties; or members of city boards, commissions, committees, or other city agencies while performing their duties.

(4) Access to public facilities that are venues primarily used for the arts, entertainment, or sporting events, or that are recreation, community, learning, or senior centers, that are open to members of the public, or portions thereof, are not controlled by this article, but by specific policies governing those venues.

(5) Access to the courtrooms of municipal judges, and associated offices, or portions thereof, shall be as prescribed by the presiding municipal court judge.

(6) The inspection and copying of a public record of the city pursuant to applicable state law is not governed by this article.

(Ord. No. 25-194, § 1, 3-27-2025)

Sec. 2-2176. Administration of access to public facilities.

(a) Unless otherwise provided for by this article or by any other law, contract, or policy of the city, the city administrator is authorized to oversee, manage, and control public access to public facilities by members of the public consistent with this article. The city administrator is also authorized to delegate such authority on a facility by facility, or case by case, basis to his designees, including, but not necessarily limited to, his subordinates, other city officers or employees, or law enforcement or security personnel of the city. The city administrator's authority to oversee, manage, and control public access to public facilities by members of the public does not extend to those facilities which are under the control, whether by contract or by law, of other persons.

(b) The city administrator is hereby authorized, subject to the availability of appropriated funds, to employ whatever means he deems necessary or appropriate to distinguish between the types of access areas defined herein, including, but not limited to, the use of physical barriers and signage. The city administrator shall also have the authority to develop and implement procedures to regulate and control public access within public facilities to accomplish the purposes of this article.

(Ord. No. 25-194, § 1, 3-27-2025)

Sec. 2-2177. Public facilities are non-public forums or limited public forums.

(a) *Non-public forums.* For purpose of public access, both physically and to information contained therein, all public facilities regulated under this article are non-public forums for constitutional purposes, except as provided by subsection (b) below.

(b) *Limited public forums.* For the purpose of public access, both physically and to information contained therein, the following public facilities regulated under this article are limited public forums for constitutional purposes as follows:

(1) Open meeting areas during the conduct of a meeting which is subject to the Alabama Open Meetings Act are limited public forums for the purpose for which the meetings are convened.

(2) Public meeting areas during the conduct of the meeting are limited public forums for the purpose for which the meetings are convened.

(Ord. No. 25-194, § 1, 3-27-2025)

Sec. 2-2178. Access to enter.

(a) *Access to enter.* License or privilege to enter and remain in a public facility by a member of the public shall be by permission in accordance with subsection (b) of this section. Permission may be rescinded verbally or in writing by the city administrator.

(b) *Permission to access.* Permission to access a public facility shall be as follows:

(1) *Restricted areas.* Members of the public are not allowed to enter restricted areas without the express written permission of the city administrator if the city administrator determines that access is appropriate under the circumstances in order to conduct city business. It is a violation of this article for any member of

the public to knowingly enter or remain in a restricted area without the permission of the city administrator, or if the permission has been expressly rescinded.

(2) *Private work areas.* Members of the public are not allowed to enter private work areas without the express permission of the city official, officer, or employee of the particular private work area. It is a violation of this article for any member of the public to knowingly enter or remain in a private work area without the permission of the particular city official, officer, or employee of the particular private work area, or if the permission has been expressly rescinded.

(3) *Controlled areas.* Permission to access controlled areas by members of the public shall be in accordance with the access policy of the particular public facility in which the controlled area is located, which may include, but not necessarily be limited to, weapons detection, sign in upon entry, escorted access, or key-card access. It is a violation of this article for any member of the public to knowingly enter or remain in a controlled area without the proper permission, or if the permission has been expressly rescinded.

(4) *Open meeting areas; public meeting areas.* Permission to access open meeting areas or public meeting areas by members of the public shall be in accordance with the access policy of the particular public facility in which such areas are located. Where there is no prescribed access policy then permission to enter such areas shall be deemed to be automatically given, unless rescinded. It is a violation of this article for any member of the public to knowingly enter or remain in an open meeting area or a public meeting area without the proper permission, or if the permission has been expressly rescinded.

(Ord. No. 25-194, § 1, 3-27-2025)

Sec. 2-2179. Access to information; recording.

(a) It shall be a violation of this article for a member of the public to knowingly record, or attempt to record, within any public facility except as follows:

(1) In accordance with the Alabama Open Meetings Act, a meeting of a governmental body in an open meeting area, except while the meeting is in executive session, may be openly recorded by any person in attendance by means of a tape recorder or any other means of sonic, photographic, or video reproduction provided the recording does not disrupt the conduct of the meeting. The governmental body may adopt reasonable rules for the implementation of this subsection.

(2) Public meetings which are being conducted by a city official, officer, or employee, for a specific purpose for the benefit of members of the public, or a portion thereof, in a public meeting area may, with the permission of the city official, officer, or employee conducting the meeting, be openly recorded by any person in attendance by means of a tape recorder or any other means of sonic, photographic, or video reproduction provided the recording does not disrupt the conduct of the meeting.

(3) A member of the public may openly record within that portion of a public facility that is a lobby generally open to members of the public unless that person is advised not to: (i) by posted signage, (ii) by the city administrator if the act of recording unreasonably interferes with access to or use of the lobby by other members of the public, (iii) by the city administrator if the act of recording unreasonably interferes with the conduct of city business, or (iii) by a person being recorded if that person asks not to be recorded. The public lobby does not include any room, elevator, rest area, kitchen,

waiting room, or corridor accessible by members of the public that is beyond a lobby entrance of the public facility.

(4) A member of the public may openly record his or her private meeting with one or more city officials, officers, or employees, provided that all attendees of the meeting consent to being recorded.

(5) Except in the case of members of the city council, media requests for appointments to interview city officials, officers, or employees, shall be made through the city's communications department. Persons who have been requested to grant interviews to the media have the right to decline to be interviewed or recorded.

(b) Notwithstanding anything to the contrary contained in this section, it is a violation of this article for a member of the public to knowingly record protected information of another.
(Ord. No. 25-194, § 1, 3-27-2025)

Sec. 2-2180. Enforcement.

(a) *Penalties.* The general penalty provisions of section 1-7 of this Code shall apply to a violation of this article.

(b) *Trespass.* A member of the public who violates a provision of this article is interfering with governmental operations and no longer has the license or privilege to remain in the public facility. The city administrator is hereby authorized on behalf of the city to request that person to immediately cease the offending conduct and, if the person fails to comply with the request, to order that person not to enter or remain in the public facility. Entering or remaining in the public facility after being ordered not to do so may subject the person to prosecution for criminal trespass pursuant to the Code of Ala. 1975, § 13A-7-4.
(Ord. No. 25-194, § 1, 3-27-2025)

Chapter 3

ALCOHOLIC BEVERAGES*

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*__Editor's note—__Ord. No. 11-654, § 1, adopted Sept. 22, 2011, amended Ch. 3 in its entirety, in effect repealing §§ 3-1—3-10, 3-51—3-59, 3-91, 3-92, 3-131—3-142, 3-171—3-177, 3-200—3-205, and enacting similar new provisions in lieu thereof as §§ 3-1—3-5, 3-21—3-26, 3-51—3-55, 3-81—3-91, 3-131—3-136, 3-171—3-174. See the Code Comparative Table for a complete derivation.

__Cross references—__Businesses, ch. 8; liquor privilege license, § 15-141 et seq.

__State law references—__Alcoholic beverages generally, Code of Ala. 1975, § 28-1-1 et seq.; local license fees authorized, Code of Ala. 1975, § 28-3A-21.

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ARTICLE I. IN GENERAL

Sec. 3-1. Definitions.

(a) The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Except as may be otherwise provided in this section or where the context clearly indicates a different meaning, all words, terms, and phrases used in this chapter which are defined in Code of Ala. 1975, § 28-3-1 shall have the meanings ascribed to them in that section, and which are defined in the glossary of terms section of the rules and regulations promulgated by the ABC board shall have the meanings ascribed to them in that section.

Alcoholic beverage control board or *ABC board* or *board* shall mean the Alabama Alcoholic Beverage Control Board.

City license or *license* means licenses issued pursuant to this chapter which are business or privilege licenses which allow the holder thereof to conduct the kind of business identified in the license in accordance with this chapter.

City licensee or *licensee* means the holder of a license issued pursuant to this chapter.

City licensed premises means the licensed premises of a city licensee.

Licensee's parking area means any parking lot or garage or other area outside the building, room, or area encompassed within the city licensed premises, when any part of such parking lot or garage or other area is adjacent to the city licensed premises, and when such parking lot or garage or other area is owned, rented, leased, regulated, controlled, or provided, directly or indirectly, by such licensee.

Manager means each person responsible for the management of an establishment and shall include the designated person in charge.

Owner means each individual owner of a sole proprietorship, officer of a corporation, and partner or member of an association, except as to incorporated clubs the term shall mean such individuals who, under the bylaws of such clubs, have the jurisdiction over the possession and sale of alcoholic beverages therein.

State alcoholic beverage control laws mean the alcoholic beverage control laws of the state as set forth in Code of Ala. 1975, tit. 28 and the rules and regulations promulgated thereunder by the ABC board, as such laws may be amended or superseded from time to time.

(b) Where not otherwise defined in subsection (a) of this section, the words, terms and phrases, when used in this chapter, shall have the meanings and rules of construction ascribed to them in section 1- 2 of this Code, except where the context clearly indicates a different meaning.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-2. Interpretation and construction of chapter; territorial application.

(a) This chapter shall be deemed as an exercise of the police power of the city for the protection of the public welfare, health, peace, temperance, safety, and morals of the people of the city, and shall have force and effect throughout the corporate limits.

(b) The provisions of this chapter shall be construed according to and in conformity with the state alcoholic beverage control laws and nothing in this chapter shall be construed to excuse noncompliance with any federal or state law or other city law.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-3. Duties and powers of city clerk-treasurer generally.

The city clerk-treasurer shall administer and enforce the licenses imposed by this chapter. He shall have the power to enter upon the premises of any city licensed premises and to examine, or cause to be examined by any agent or representative designated by him for that purpose, any books, papers, records, memoranda, or other documents bearing upon the administration or enforcement of this chapter.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-4. Compliance with state alcoholic beverage control laws.

(a) It shall be unlawful and a violation of this chapter for any person to do anything or commit any act or omission constituting a misdemeanor under the state alcoholic beverage control laws, which includes rules or regulations promulgated by the ABC board the violation of which have been denominated by the Code of Ala. 1975, § 28-3-20 as constituting a misdemeanor; which laws are incorporated herein by reference as if fully set forth.

(b) Where the state alcoholic beverage control laws described in subsection (a) of this section refer to a state license, class of license, licensee, or licensed premises, the terms shall also mean and include a city license, class of license, licensee, or licensed premises.

(c) Subject to the provisions of this chapter governing hours of operation and motion pictures and shows, where the aforementioned state alcoholic beverage control laws, which includes the Code of Ala. 1975, § 28-3A-25, establish unlawful acts or offenses relative to state licensees, their servants, agents, or employees, or to state licensed premises, in such case city licensees, their servants, agents, or employees, and city licensed premises, shall be subject to the same requirements, and failure to comply with same shall be a violation of this chapter.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-5. Penalty, nuisance.

(a) The penalty provisions of section 1-7 of this Code shall apply to a violation of this chapter.

(b) This chapter is enacted for the protection of the health, morals, comfort, and welfare of the community and any violation of this chapter is declared to be a nuisance as being injurious thereto.
(Ord. No. 11-654, § 1, 9-22-2011)

Secs. 3-6—3-20. Reserved.

ARTICLE II. UNLAWFUL ACTS AND OFFENSES

Sec. 3-21. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized licensed premises means a place, whether publicly or privately owned or controlled, that is properly licensed, which includes the proper class of license, in accordance with this chapter.

Authorized special event means a special event in a public park in the central city area hosted by a bona fide non-profit entity holding a bottle permit issued in accordance with section 3-23.

Banquet establishment means a duly licensed establishment, operated for profit, whether or not a profit is made, that provides facilities for gatherings or events, which includes private events, and which establishment does not hold a city license for the on-premises sale of alcoholic beverages.

Banquet services means the services, staffing, or equipment provided by a banquet establishment. The term shall not include the providing of alcoholic beverages.

Brown bagging means the bringing, taking, or carrying of any alcoholic beverage into any business holding, or required to hold, a city business license (whether or not the business holds a city license for alcoholic beverages) by a customer, member, guest, invitee, or patron thereof.

Fundraiser means a social function held for the purpose of raising donations for a bona fide non-profit organization duly formed in accordance with federal and state tax laws and where no proceeds derived from the event are paid to any person hosting the fundraiser and where all of the net proceeds of the fundraiser are used for the bona fide nonprofit.

Guest means an invitee of the owner or person in control or possession of a premises, the host of

the event, or a member of a private club, provided the invitation is not to members of the general public or a substantial portion thereof.

Host means to organize, sponsor, conduct, host, or hold an event, and includes the person hosting the event.

Illegal sales means any sale, keeping for sale, or offering for sale of any alcoholic beverages without the benefit of the proper city license, which includes the proper class of license, issued pursuant to this chapter.

Illegal sales premises means a place, whether publicly or privately owned or controlled, where there are illegal sales of alcoholic beverages, which may include a private club and a private dwelling typically known as a "shot house", where alcoholic beverages are sold or offered or kept for sale by the drink or in any quantity less than 3.4 fluid ounces, or sold or offered or kept for sale for consumption on the premises where sold.

Open container means any bottle, can, cup, glass, or other receptacle containing any alcoholic beverage which is open, which has been opened, which has its seal broken, or which has had its contents partially removed.

Other city business licensee means the holder of a business or privilege license issued by the city that does not include an alcoholic beverage license issued pursuant to this chapter.

Private club means a club that is limited to members of the club and their guests and which does not hold a city license for the on-premises sale of alcoholic beverages.

Private dwelling means a private residential dwelling, which includes its curtilage and yard.

Private event means a private party, banquet, seminar, prom, reception, wedding, reunion, fundraiser, or other such occasion, which is by invitation only to guests of the host, and which is hosted by persons that do not receive, either directly or indirectly, any form of consideration therefor, which shall not be construed to include gifts suited for the occasion, such as wedding or birthday presents, or donations which are strictly voluntary in the case of a fundraiser.

Private premises means premises that are, at the time, closed or inaccessible to the general public, which may include private clubs and private dwellings.

Private use means the possession, display, or consumption of alcoholic beverages, which does not include the sale thereof, on private premises by the occupants, residents, or members thereof, and their guests.

Public place means a place, whether publicly or privately owned or controlled, to which the general public, or a substantial portion thereof, has access or that is open to the general public, or a substantial portion thereof. The term includes common areas of apartments, condominiums, and other multi-unit buildings to the extent access to such areas is not restricted to the occupants or residents of the building and their guests. The term does not include a place that is, at the time, closed or inaccessible to the general public.

Sale or *sell* is as defined by the state alcoholic beverage control laws. The term includes the indirect sale of alcoholic beverages through the use of tickets, cover charges, door charges, gate fees, membership fees, or other like charges or other forms of consideration that entitle a person to possess or consume alcoholic beverages.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-22. Prohibitions concerning open containers, drinking in public places, and upon illegal sales premises.

(a) *State open container law.* It is a violation of this chapter for any person to violate the Alabama Open Container Law, Code of Ala. 1975, § 32-5A-330.

(b) *Prohibition against drinking in a public place.* Except for a place that is an authorized licensed premises or except in the case of an authorized special event, it shall be unlawful for any person to have in an open container or to drink any alcoholic beverage at any public place, which includes vehicles located on a public place, that the person knows or should know is not an authorized licensed premises or an authorized

special event. It shall be unlawful for any person to knowingly allow a violation of this subsection (b) to occur at a public place under that persons care, custody, or control.

(c) *Prohibitions regarding illegal sales premises.* It shall be unlawful for any person to purchase any alcoholic beverage at or from an illegal sales premises, or to drink any alcoholic beverage or have an open container, upon an illegal sales premises, which the person knows or should know is an illegal sales premises. It shall be unlawful for any person to knowingly allow a violation of this subsection (c) to occur on premises under that persons care, custody, or control.

(d) *Private use.* Nothing in this section shall be construed to prevent private use on private premises, provided that in no event are illegal sales allowed.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-23. Bottle permit for authorized special event.

(a) Purpose; application required. It is the goal of the city to promote the use and enjoyment of public parks in the central city area, as that area is delineated in section 18-31 of this Code, by allowing attendees, excluding minors, of an authorized special event to bring, take, or carry, in original unopened containers, beer or table wine only into the event for their personal consumption during the event. Subject to the eligibility requirements of this section, any bona fide nonprofit organization duly formed in accordance with federal and state tax laws that is hosting a special event in a public park in the central city area, that does not include the sale of alcoholic beverages, is eligible to apply to the city clerk-treasurer for a bottle permit on forms provided by the city clerk-treasurer. The permit would allow attendees of the event, excluding minors, to bring, take, or carry, in original unopened containers, beer or table wine only into the event for their personal consumption during the event.

(b) Approval process. The city clerk-treasurer, as a part of the application process, may require information of the applicant, consistent with section 3-84 of this chapter, which he determines to be appropriate in order to determine eligibility and suitability. Upon submittal of a completed application an investigation may be conducted in accordance with section 3-86.

(c) Requirements for issuance. Bottle permits will be issued for qualified entities hosting special events in public parks in the central city area only where each of the following requirements is met:

(1) The special event must be free of charge and not involve any type of fee or other form of remuneration for those attending the event, which includes ticket sales, entrance fees, and cover charges. This prohibition does not preclude duly licensed vendor sales, excluding alcoholic beverage sales.

(2) For profit entities may provide voluntary contributions for the special event, but may not act as a host of the event.

(3) The event may not be licensed for the sale of alcoholic beverages.

(4) Attendees of the event, excluding minors, may bring, take, or carry, in original unopened containers, beer or table wine only into the event for their personal consumption during the event. Kegs shall not be allowed. The host of the event shall in no event furnish any alcoholic beverages to the attendees of the event.

(5) No open containers shall be removed from the event area and it shall be the responsibility of the host of the event to ensure compliance with this provision.

(6) A sign shall be posted at each entrance of the event notifying attendees that the event holds a bottle permit allowing attendees of the event, excluding minors, to bring, take, or carry, in original unopened containers, beer or table wine only into the event for their personal consumption during the event.

(7) The duration of the event shall be limited to the time specified in the approved bottle permit.

(8) The applicant shall, where required to do so by the city clerk-treasurer, obtain a lease from the city council for use of the public space, which may include indemnification and insurance requirements. All required permitting for the event shall be obtained, which may include a special event permit pursuant to chapter 23, article VI of this Code.

(d) Where all of the eligibility requirements are met for qualified applicants, the city clerk-treasurer shall report his findings to the liquor license review committee, which is authorized, on behalf of the city council, to issue a bottle permit for an authorized special event. Permits may be issued for a one-time event or a reoccurring event, at the discretion of the committee. In addition, the committee may attach reasonable conditions to the permit, not inconsistent with this chapter or state alcoholic beverage control laws, which it deems relevant for the public health, safety, and general welfare, which may include security requirements for the event.

(e) Failure to comply with the permitting requirements or conditions shall constitute a violation of this section.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-24. Removal of alcoholic beverage in open container; consumption restricted to premises.

(a) It shall be unlawful for any person to take from any authorized licensed premises any open container.

(b) It shall be unlawful for any licensee, its owner, manager, servant, agent, or employee, to knowingly allow any person to take from the authorized licensed premises any open container.

(c) It shall be unlawful for any city on-premises licensee, its owner, manager, servant, agent, or employee, to sell, provide, serve, or allow consumption of alcoholic beverages within any areas of an establishment that are not a part of the authorized licensed premises.

(d) It shall be unlawful for any city licensee, its owner, manager, servant, agent, or employee, to knowingly allow any person to have an open container upon or allow any person to consume any alcoholic beverage in or upon the licensee's parking area; provided however, that if such licensee shall post and maintain a legible, painted or printed sign in at least two separate prominent places on such licensee's parking area, with sufficient illumination directed thereon to be clearly visible during the hours of darkness while such place of business is open, in letters of not less than three inches in height, stating:

WARNING
DRINKING ALCOHOLIC BEVERAGES ON THIS LOT
PROHIBITED BY CITY ORDINANCE
UP TO $500 FINE AND/OR 6 MONTHS IN JAIL FOR VIOLATION

or in substantially similar appropriate language, such signs shall constitute prima facie evidence that such licensee, its owner, manager, servant, agent, or employee, is not operating in violation of this subsection (d).
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-25. Prohibitions against brown bagging, exceptions.

(a) *Brown-bagging prohibited.*

(1) Consistent with the rules and regulations promulgated by the ABC board, it shall be unlawful for a licensee holding a city license issued pursuant to this chapter to allow on the city licensed premises the consumption or possession of any type of alcoholic beverage which the licensee is not authorized to sell. Further, the practice of brown bagging or customers bringing on the licensed premises their own alcoholic beverages is prohibited on city licensed premises. This brown bagging provision shall not apply to alcoholic beverages, for which the appropriate Alabama tax has been paid, which are brought on the premises of a class I club (not operated for pecuniary gain) licensees. The same prohibitions concerning the practice of brown bagging shall also apply in regard to other city business licensees, their customers, and their premises.

(2) It shall be unlawful for a city licensee or other city business licensee, their respective owners, managers, servants, agents, or employees, to knowingly allow the practice of brown bagging to occur on the premises for which the license is held.

(3) It shall be unlawful for a customer, member, guest, invitee, or patron of a city licensee or other city business licensee to violate the prohibition of brown bagging.

(b) *Exception for private events at banquet establishments.*

(1) Notwithstanding the foregoing prohibitions in subsection (a) of this section, it shall not be unlawful for any person hosting a private event held at a banquet establishment to furnish alcoholic beverages, not for sale, to the guests or attendees of the private event.

(2) Notwithstanding the foregoing prohibitions in subsection (a) of this section, it shall not be unlawful for a duly licensed banquet establishment to provide facilities, which includes banquet services, for a private event provided:

a. The person hosting the event furnishes the alcoholic beverages, not for sale, for the event.

b. No person, which includes those hosting or attending the event, is charged, either directly or indirectly, by the banquet establishment for the furnishing of alcoholic beverages. Prima facie proof of a violation of this section shall occur when the banquet establishment charges an event that does not include alcoholic beverages less than a private event that includes alcoholic beverages for the same facilities, which includes banquet services. The banquet establishment shall post in a visible location on the premises all charges and fees for its facilities and banquet services, which shall be available for inspection upon request by the city clerk-treasurer or by the chief of police during normal business hours.

c. No person connected with the banquet establishment, which includes as owner, manager, servant, agent, or employee, or those that otherwise have a profit or pecuniary interest in the premises or the establishment, shall host a private event at the banquet establishment where alcoholic beverages are served or provided.

d. The area where the private event is held shall have adequate lighting, which means ambient lighting that is adequate for the purposes of observing the operation of or patrons within the premises.

e. The banquet establishment shall be responsible for providing adequate security for a private event based on the number or anticipated number of attendees, the nature of the event, and the prior history of the same or similar events.

(c) Nothing in this section shall be construed to allow a violation of state and local laws concerning persons under the legal drinking age to occur at a banquet establishment.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-26. Persons under the legal drinking age.

(a) It shall be unlawful and a violation of this chapter for any person to do anything or commit any act or omission that is in violation of the state alcoholic beverage control laws governing persons under the legal drinking age, which includes the Code of Ala. 1975, §§ 28-1-5 and 28-3A-25(a)(3), (19) and (22), and 20-X-6-.09 of the Rules of the ABC Board.

(b) Where the violations of this section are committed or allowed to occur on the city licensed premises by the licensee, its owner, manager, servant, agent, or employee, it shall be a violation of this chapter and, in such cases, the city

licensed premises has been conducted in a manner prejudicial to the welfare, health, peace, temperance, safety, or morals of the public and the city license shall be subject to action being taken against it.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-27. Arts and Entertainment District.

(a) *Definitions.* The following words, terms, phrases, when used in this section, shall have the meanings ascribed to them in this subsection (a), except where the context clearly indicates a different meaning:

Approved container means a purple-colored, non-glass container not exceeding a volume of 16 fluid ounces, which is provided to a customer by the seller who is an arts and entertainment district permittee, bearing the name or logo of the district or the name or logo of the arts and entertainment district permittee.

Arts and entertainment district or *district* means the district established hereinafter in subsection (b) of this section, as such district may be from time to time amended.

Arts and entertainment district area or *area* means public places within the art and entertainment district, except for an excluded public place.

Arts and entertainment district event means a chapter 23 special event that meets each of the following criteria:

(1) The event is open to the general public and may or may not include an admission fee for entrance into the event.

(2) The purpose of the event is to promote local arts, culture, or entertainment, through a venue that is consistent with the purpose of the arts and entertainment district.

Arts and entertainment district permittee or *permittee* means an on-premise retail city licensee permitted by the city in accordance with subsection (f) of this section.

Chapter 23 special event means a special event governed by chapter 23, article VI of this Code.

Excluded public place means a public place within the arts and entertainment district that is not included within the arts and entertainment district area as follows:

(1) A public building, facility, garage, or parking lot that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(2) Property privately owned or controlled that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(3) An area being used for a chapter 23 special event that is posted with signage at each entrance or in conspicuous places occupied by the event that no open containers of alcoholic beverages are allowed on the premises;

(4) An area being used for a chapter 23 special event that is licensed to sell alcoholic beverages or that holds a bottle permit issued under section 3-23; or

(5) The premises of a city licensee.

(b) *Purpose*.

(1) *Purpose of section*. The purpose of this section is:

a. To establish districts authorized by Code of Ala. 1975, § 28-3A-17.1, within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under section 3-22(b), regulations against removal of open containers under subsections 3-24(a) through (c), regulations against allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under subsection 3-24(d), and regula-

tions against brown bagging on the premises of another city business licensee under subsection 3-25(a); and

b. To establish regulations governing the district.

(2) *Purpose of arts and entertainment districts*. In addition to the foregoing, the purpose of establishing an arts and entertainment district is to enhance the public enjoyment of the district and to promote local arts, culture, and entertainment, while, at the same time, protecting existing uses and preserving the unique character of each district.

(c) *Quigley Arts and Entertainment District established.*

(1) Subject to subsections (2) and (3) of this subsection (c), there is hereby established the following named and generally described district, the Quigley Arts and Entertainment District, which is also shown on the appended map incorporated herein by reference, which district shall constitute an entertainment district pursuant to Code of Ala. 1975, § 28-3A-17.1:

A tract of land located in Sections 35 and 36, both of which are in Township 3 South, Range 1 West of the Huntsville Meridian, Madison County, Alabama, and also lying in Sections 01 and 02, both of which are in Township 4 South, Range 1 West of the Huntsville Meridian, Madison County, Alabama, more particularly described as beginning at a point located at the intersection of the East bank of Pinhook Creek and the North right of way (ROW) of Clinton Avenue; thence from the Point of Beginning, Northwest along the East bank of Pinhook Creek to a point located on the Southern edge of pavement of Holmes Avenue; thence East along the Southern edge of pavement of Holmes Avenue to a point located on the Southern edge of pavement of Holmes Avenue and the Western edge of pavement of Monroe Street; thence Southeast along the Western edge of pavement a distance of 493 feet to a point located on the North ROW of Clinton Avenue; thence Northeast along the North ROW of Clinton Avenue to a point on the West ROW of Spragins Street; thence Northwest along the West ROW of Spragins Street to a point on the North ROW of Holmes Avenue; thence continue Northwest along the West ROW of Spragins Street a distance of 440 feet; thence North 63 Degrees East a distance of 51 feet to a point on the East ROW of Spragins St.; thence North 58 Degrees East a distance of 270 feet to the Western edge of pavement of Jefferson Street; thence Southeast along the Western edge of pavement of Jefferson Street a distance of 445 feet to the intersection of the said Western edge of pavement of Jefferson Street and the North ROW of Holmes Avenue; thence Northeast along the North ROW of Holmes Avenue to a point located on the West ROW of Washington Street; thence Northwest along the Western ROW of Washington Street a distance of 327 feet; thence North 58 Degrees East a distance of 184 feet; thence South 31 Degrees East a distance of 49 feet; thence North 58 Degrees East a distance of 31 feet; thence South 32 Degrees East a distance of 76 feet; thence South 58 Degrees West 153 feet to a point located on the East ROW of Washington Street; thence Southeasterly along the Eastern ROW of Washington Street to a point located at the intersection of the East ROW of Washington Street and the North ROW of Holmes Avenue; thence Northeast along the North ROW of Holmes Avenue to a point located on the West ROW of Greene Street; thence North along the West ROW of Greene Street to a point located on the South ROW of Monroe Street; thence North 45 Degrees West a distance of 181 feet to a point located on the West ROW of Meridian Street; thence Northeasterly along the West ROW of Meridian Street to a point located on the South ROW of Cleveland Avenue; thence Northwest

along the South ROW of Cleveland Avenue to a point located on East ROW of the Norfolk Southern Railroad; thence Northeasterly along the East ROW of the Norfolk Southern Railroad to a point located on the Southern edge of pavement of Pratt Avenue; thence East along the Southern edge of pavement of Pratt Avenue a distance of 197 feet to a point at the beginning of a curve to the right; thence Southeasterly around said curve to the right a chord distance of 57 feet; said point being located on the Western edge of pavement of Meridian Street; thence Southwesterly along the Western edge of pavement of Meridian Street a distance of 614 feet; thence South 55 Degrees East a distance of 73 feet to a point located on the East ROW of Meridian Street; thence Southwesterly along the East ROW of Meridian Street to a point at the beginning of a curve to the left located on the South ROW of Walker Avenue; thence Southeasterly around said curve to the left a chord distance of 374 feet; thence South 21 Degrees East a distance of 97 feet to a point located on the East ROW of Greene Street; thence continue South along the East ROW of Greene Street a distance of 386 feet; thence North 57 Degrees East a distance of 129 feet to a point; thence South 31 Degrees East a distance of 49 feet to a point; thence South 58 Degrees West a distance of 5 feet to a point; thence South 31 Degrees East a distance of 12 feet to a point located on the Northern edge of pavement of Holmes Avenue; thence Northeast along the Northern edge of pavement of Holmes Avenue to a point located at the intersection of the Northern edge of pavement of Holmes Avenue with the Western edge of pavement of Monroe Street; thence South 49 Degrees East a distance of 92 feet to a point located on the Western edge of pavement of Lincoln Street; thence Southeasterly along the Western edge of pavement of Lincoln Street a distance of 136 feet to a point; thence South 13 Degrees West a distance of 12 feet to a point; thence South 33 Degrees West a distance of 8 feet to a point; thence South 59 Degrees West a distance of 10 feet to a point; thence North 38 Degrees West a distance of 77 feet to a point; thence North 77 Degrees West a distance of 21 feet to a point; thence South 58 Degrees West a distance of 149 feet to a point; thence South 31 Degrees East a distance of 63 feet to a point; thence South 58 Degrees West a distance of 109 feet to a point located on the East ROW of Greene Street; thence Southeast along the East ROW of Greene Street a distance of 81 feet to the Southwest corner of Parking Lot "D"; thence South 58 Degrees West a distance of 56 feet to a point on the West ROW of Greene Street; thence South 58 Degrees West a distance of 164 feet; thence South 32 Degrees East a distance of 565 feet to a point located on the South ROW of Randolph Avenue; thence Southwest along the South ROW of Randolph Avenue a distance of 30 feet to the western most property line of the Church of Christ; thence South 32 Degrees East a distance of 42 feet; thence South 58 Degrees West a distance of 89 feet; thence South 31 Degrees East a distance of 244 feet; thence North 59 Degrees East a distance of 94 feet; thence South 32 Degrees East a distance of 36 feet to a point located on the North ROW of Eustis Avenue; thence Northeast along the North ROW of Eustis Avenue a distance of 378 feet to a point; thence South 32 Degrees East a distance of 229 feet to a point; thence South 57 Degrees West a distance of 208 feet to a point on the West ROW of Greene Street; thence Northwesterly along the West ROW of Greene Street to a point located at the intersection of the West ROW of Greene Street and the South ROW of Eustis Avenue; thence Southwest along the South ROW of Eustis Avenue a distance of 190 feet; thence South 31 Degrees East a distance of 172 feet; thence South 57 Degrees West a distance of 96 feet to a point located on the East

ROW of Franklin Street; thence Southeast along the East ROW of Franklin Street to a point located on the South ROW of Gates Avenue; thence Southwest along the South ROW of Gates Avenue to a point located on the East ROW of Madison Street; thence Southeast along the East ROW of Madison Street to a point located on the South ROW of Williams Avenue; thence Southwest along the South ROW of Williams Avenue to a point located at the intersection of the South ROW of Williams Avenue and the East ROW of Gallatin Street; thence Southeasterly along the East ROW of Gallatin Street to a point located on the South ROW of Lowe Avenue; thence West crossing over Gallatin Street to a point on the Western edge of pavement of Gallatin Street and the South ROW of Lowe Avenue; thence Southeast along the Western edge of pavement of Gallatin Street to a point on the Western edge of pavement of Gallatin Street and the Northern edge of pavement of Saint Clair Avenue; thence West along the Northern edge of pavement of Saint Clair Avenue to a point located on the West ROW of Dr. Joseph L Lowery Boulevard; thence Northerly along the West ROW of Dr. Joseph L Lowery Boulevard to the beginning of a curve to the left located on the North ROW of Pelham Avenue; thence Northwest along said curve to the left a chord distance of 346 feet to a point located on the South ROW of Lowe Avenue; thence Northwesterly along the South ROW of Lowe Avenue a distance of 714 feet; thence South 29 Degrees West a distance of 178 feet; thence South 82 Degrees West a distance of 7 feet; thence South 27 Degrees West a distance of 286 feet to the point of beginning of a curve to the right located on the South ROW of Davis Circle; thence Northwesterly around said curve to the right a chord distance of 236 feet to a point of curvature to the Left; thence Southwesterly along said curve to the left a chord distance of 99 feet to a point located on the South ROW of a traffic circle; thence North 61 Degrees West a distance of 133 feet to a point on the South ROW of Heart of Huntsville Drive; thence Northwest along the South ROW of Heart of Huntsville Drive a distance of 708 feet to a point; thence South 15 Degrees West a distance of 96 feet to a point; thence South 9 Degrees West a distance of 44 feet to a point; thence South 23 Degrees West a distance of 90 feet to a point; thence South 30 Degrees West a distance of 76 feet to a point; thence South 5 Degrees West a distance of 10 feet to a point; thence South 65 Degrees West a distance of 16 feet to a point; thence South 26 Degrees West a distance of 49 feet to a point; thence South 4 Degrees East a distance of 46 feet to a point; thence South 20 Degrees West a distance of 280 feet to a point; thence South 69 Degrees West a distance of 53 feet to a point; thence North 73 Degrees West a distance of 29 feet to a point; thence North 21 Degrees West a distance of 71 feet to a point; thence North 32 Degrees West a distance of 467 feet to a point; thence North 2 Degrees West a distance of 14 feet to a point located on the Southern edge of pavement of Constellation Place Drive; thence Northeasterly along the Southern edge of pavement of Constellation Place Drive to a point on the South ROW of Heart of Huntsville Drive; thence N 44 Degrees East a distance of 65 feet to a point on the North ROW of Heart of Huntsville Drive; thence Southeast along the North ROW of Heart of Huntsville Drive a distance of 672 feet to a point on the Eastern margin of Pinhook Creek; thence Northwest along the Eastern margin of Pinhook Creek a distance of 1,500 feet to the Point of Beginning.

Also included is a portion of a bike lane and part of Monroe Street, more particularly described as beginning at a point located at the intersection of the Southern edge of pavement of Monroe Street and the Western edge of pavement of Spragins Street; thence from the Point

of Beginning, South along the Western edge of pavement of Spragins Street a distance of 247 feet; thence North 61 Degrees East 18 feet to a point located on the East margin of said bike lane; thence Northerly along the East margin of said bike lane a distance of 240 feet; thence North 25 Degrees West a distance of 69 feet to the Northern edge of pavement of Monroe Street; thence Southwest along the Northern edge of pavement of Monroe Street a distance of 19 feet; thence South 25 Degrees East 63 feet to the Southern edge of pavement of Monroe Street and the Point of Beginning.

Also included is the Depot Greenway and the portion of the Gateway Greenway that is West of Meridian Street.

Less and Except the following tracts of land:

A tract of land described as commencing at the Northwest Corner of Section 01, Township 04 South, Range 01 West of the Huntsville Meridian, Madison County, Alabama; thence from the Point of Commencement, South 89 Degrees East a distance of 396 feet to the Point of Beginning; thence from the Point of Beginning, South 58 Degrees West a distance of 59 feet to a point; thence South 32 Degrees East a distance of 92 feet to a point; thence North 58 Degrees East a distance of 13 feet to a point; thence South 32 Degrees East a distance of 69 feet to a point at the beginning of a curve to the right; thence along said curve to the right having a radius of 83 feet and a chord bearing and distance of South 31 Degrees East, 67 feet to a point; thence South 18 Degrees West a distance of 86 feet to a point; thence South 35 Degrees West a distance of 96 feet to a point at the beginning of a curve to the right; thence along said curve to the right having a radius of 139 feet and a chord bearing and arc length of North 19 Degrees West, 584 feet to a point; thence North 2 Degrees East a distance of 35 feet to a point; thence North 16 Degrees West a distance of 17 feet to a point; thence North 32 Degrees West a distance of 45 feet to a point; thence South 58 Degrees West a distance of 20 feet to a point; thence North 32 Degrees West a distance of 40 feet to a point; thence South 58 Degrees West a distance of 240 feet to a point; thence South 33 Degrees East a distance of 17 feet to a point; thence South 58 Degrees West a distance of 89 feet to a point; thence South 7 Degrees West a distance of 30 feet to a point; thence South 36 Degrees East a distance of 508 feet to a point; thence South 54 Degrees West a distance of 260 feet to a point; thence North 36 Degrees West a distance of 503 feet to a point; thence North 54 Degrees East a distance of 216 feet to a point; thence North 7 Degrees East a distance of 73 feet to a point; thence North 58 Degrees East a distance of 80 feet to a point; thence North 32 Degrees West a distance of 69 feet to a point; thence North 58 Degrees East a distance of 28 feet to a point; thence North 32 Degrees West a distance of 51 feet to a point; thence South 58 Degrees West a distance of 60 feet to a point; thence North 32 Degrees West a distance of 248 feet to a point; thence North 58 Degrees East a distance of 117 feet to a point; thence South 77 Degrees East a distance of 26 feet to a point; thence South 32 Degrees East a distance of 274 feet to a point; thence North 58 Degrees East a distance of 137 feet to a point; thence North 31 Degrees West a distance of 418 feet to a point; thence North 59 Degrees East a distance of 89 feet to a point; thence North 44 Degrees East a distance of 28 feet to a point at the beginning of a curve to the right; thence along said curve to the right having a radius of 172 feet and a chord bearing and distance of North 83 Degrees East, 150 feet to a point; thence South 32 Degrees East a distance of 141 feet to a point; thence South 58 Degrees West a distance of 89 feet to a point; thence South 32 Degrees East a distance of 228 feet to a point;

thence North 58 Degrees East a distance of 24 feet to a point; thence South 32 Degrees East a distance of 125 feet back to the point of beginning;

And also:

Water Canal that is connected to the Big Spring Lagoon that lies South of the Von Braun Center; North and West of Monroe Street and East of Pinhook Creek;

And also:

Big Spring Lagoon that lies between Monroe Street, Williams Avenue and Church Street;

And also:

A tract of land described as beginning at a point located on the East ROW of Monroe Street and is further described as being located South 48 Degrees East a distance of 240 feet from the intersection of the Monroe Street centerline and the Clinton Avenue centerline; thence North 58 Degrees East a distance of 320 feet; thence North 31 Degrees West a distance of 183 feet; thence North 57 Degrees East a distance of 217 feet; thence South 85 Degrees East a distance of 14 feet; thence South 32 Degrees East a distance of 384 feet; thence South 58 Degrees West a distance of 159 feet; thence South 31 Degrees East a distance of 134 feet; thence South 37 Degrees West a distance of 202 feet; thence North 56 Degrees West 77 feet; thence South 59 Degrees West a distance of 97 feet; thence North 32 Degrees West a distance of 167 feet; thence South 58 Degrees West a distance of 72 feet; thence North 33 Degrees West a distance of 171 feet to the point of beginning;

And also:

A tract of land described as beginning at a point located South 18 Degrees West a distance of 34 feet from the intersection of the Spragins Street centerline and the Clinton Avenue centerline; thence South 31 Degrees East a distance of 473 feet; thence South 56 Degrees West a distance of 283 feet; thence North 32 Degrees West a distance of 424 feet; thence North 2 Degrees West a distance of 21 feet; thence North 21 Degrees East a distance of 57 feet; thence North 57 Degrees East a distance of 231 feet to the point of beginning;

And also:

A tract of land described as commencing at a point located at the intersection of the North ROW of Holmes Avenue and the Western Edge of Pavement of Jefferson Street; thence from the Point of Commencement, South 89 Degrees West a distance of 80 feet to the Point of Beginning; thence from the Point of Beginning, South 58 Degrees West a distance of 202 feet to a point; thence North 31 Degrees West a distance of 301 feet to a point; thence North 58 Degrees East a distance of 199 feet to a point; thence South 33 Degrees East a distance 291 feet to a point; thence South 7 Degrees West a distance of 11 feet back to the point of beginning;

And also:

A tract of land described as beginning at a point located North 18 Degrees East a distance of 47 feet from the intersection of the Spragins Street centerline and the Clinton Avenue centerline; thence North 32 Degrees West a distance of 155 feet; thence North 57 Degrees East a distance of 148 feet; thence South 33 Degrees East a distance of 157 feet; thence South 58 Degrees West a distance of 151 feet to the point of beginning;

And also:

A tract of land described as beginning at a point located North 89 Degrees East a distance of 40 feet from the intersection of the Spragins Street centerline and the Clinton Avenue centerline; thence North 57 Degrees East a distance of 158 feet; thence South 31 Degrees East a distance of 321 feet; thence South 58 Degrees

West a distance of 154 feet; thence North 32 Degrees West a distance of 317 feet to the point of beginning;

And also:

A tract of land described as beginning at a point located South 79 Degrees East a distance of 36 feet from the intersection of the Jefferson Street centerline and the Clinton Avenue centerline; thence North 58 Degrees East a distance of 294 feet; thence South 33 Degrees East a distance of 164 feet; thence South 58 Degrees West a distance of 297 feet; thence North 32 Degrees West a distance of 165 feet to the point of beginning;

And also:

A tract of land described as beginning at a point located South 82 Degrees East a distance of 113 feet from the intersection of the North Side Square centerline and the West Side Square centerline; thence North 59 Degrees East a distance of 221 feet; thence South 32 Degrees East a distance of 233 feet; thence South 59 Degrees West a distance of 224 feet; thence North 31 Degrees West a distance of 232 feet to the point of beginning;

And also:

A tract of land described as beginning at a point located South 16 Degrees West a distance of 60 feet from the intersection of the Fountain Circle centerline and the Madison Street centerline; thence South 32 Degrees East a distance of 299 feet; thence South 57 Degrees West a distance of 256 feet; thence North 31 Degrees West a distance of 254 feet; thence North 1 Degrees East a distance of 45 feet; thence North 55 Degrees East a distance of 228 feet to the point of beginning;

And also:

A tract of land described as beginning at a point located at the intersection of the West ROW of Madison Street and the South ROW of Gates Avenue; thence Southeasterly along the West ROW of Madison Street 300 feet to a point on the North ROW of Williams Avenue; thence Southwesterly along the North ROW of Williams Avenue 251 feet to a point on the East ROW of Fountain Circle; thence Northwesterly along the East ROW of Fountain Circle 85 feet; thence Northeasterly and parallel to the North ROW of Williams Avenue 92 feet; thence Northwesterly and parallel to the East ROW of Fountain Circle 133 feet; thence Southwesterly and parallel to the North ROW of Williams Avenue 66 feet; thence Northwesterly and parallel to the East ROW of Fountain Circle 56 feet; thence Northeasterly and parallel to the North ROW of Williams Avenue 66 feet; thence Northwesterly and parallel to the East ROW of Fountain Circle 27 feet to a point located on the South ROW of Gates Avenue; thence Northeasterly along the South ROW of Gates Avenue 164 feet back to the point of beginning;

And also:

A tract of land described as beginning at a point located North 59 Degrees West a distance of 54 feet from the intersection of the Fountain Circle centerline and the Willaims Avenue centerline; thence South 58 Degrees West a distance of 98 feet; thence South 48 Degrees West a distance of 179 feet; thence South 57 Degrees West a distance of 24 feet; thence South 74 Degrees West a distance of 24 feet; thence North 89 Degrees West a distance of 24 feet; thence North 72 Degrees West a distance of 25 feet; thence North 38 Degrees West a distance of 116 feet; thence North 31 Degrees West a distance of 234 feet; thence North 59 Degrees East a distance of 362 feet; thence South 33 Degrees East a distance of 354 feet to the point of beginning;

And also:

A tract of land described as being bound by Williams Avenue to the North, Gallatin Street to the East, Lowe Avenue to the South and Dr. Joseph L Lowery Boulevard to the West;

And also:

A tract of land described as beginning at a point located South 63 Degrees West a distance of 173 feet from the intersection of the Pelham Avenue centerline and the Gallatin Street centerline; thence South 10 Degrees East a distance of 323 feet; thence North 71 Degrees East a distance of 8 feet; thence South 19 Degrees East a distance of 50 feet; thence South 71 Degrees West a distance of 27 feet; thence South 10 Degrees East a distance of 108 feet; thence South 81 Degrees West a distance of 87 feet; thence South 90 Degrees West a distance of 114 feet; thence North 10 Degrees West a distance of 223 feet; thence North 80 Degrees East a distance of 10 feet; thence North 10 Degrees West a distance of 40 feet; thence South 80 Degrees West a distance of 10 feet; thence North 10 Degrees West a distance of 121 feet; thence North 80 Degrees East a distance of 73 feet; thence North 10 Degrees West a distance of 62 feet; thence North 80 Degrees East a distance of 56 feet; thence North 69 Degrees East a distance of 82 feet to the point of beginning; and containing 149.93 acres, more or less.

(2) Notwithstanding anything in this section to the contrary, at any time and from time to time, the arts and entertainment districts established in this section may be enlarged, reduced, modified, or eliminated, in whole or part, and the regulations set forth in this section are subject to amendment at any time and from time to time. No vested rights shall be acquired by or be conferred upon any person as a result of the establishment of an arts and entertainment district or permitting under this section.

(3) In the event the arts and entertainment district established by this section falls below the number of alcoholic beverage licensees required for the establishment of the district according to Code of Ala. 1975, § 28-3A-17.1, then the city may amend this section to either eliminate the arts and entertainment district or modify the district so as to remain in compliance with Code of Ala. 1975, § 28-3A-17.1, unless applicable state alcoholic beverage control laws allow for continuance of a once-established district regardless of the number of alcoholic beverage licensees remaining.

(4) Where this section provides for the opening of a portion of the arts and entertainment district, that portion that is opened shall not have fewer than the required number of alcoholic beverage licensees.

(5) Reserved.

(d) *Opening of the district.*

(1) *Regular hours of district.* The regular hours of operation for the district shall be between the hours of 12:00 noon to 10:00 p.m. daily; provided, however, in the case of New Year's Eve/New Year's Day, the regular hours of operation shall be between the hours of 12:00 noon on December 31st to 1:00 a.m. on January 1st.

(2) *Arts and entertainment district event.*

a. An event organizer of a chapter 23 special event that is an arts and entertainment district event, including an organized event on private property that requires city event services in accordance with subsection 23-202(d) of this Code, may request, with the organizer's application for a chapter 23 special event permit and on forms provided by the city, that the arts and entertainment district, or a portion thereof specified in the request, be opened during the chapter 23 special event.

b. The request shall be processed with the application for a chapter 23 special event permit and the event organizer, as that term is defined in chapter 23, article VI of this Code, shall be responsible for all costs incurred by the city as a result of the opening of the district during

the chapter 23 special event, including safety, traffic and crowd control; clean-up costs; and the use of city equipment. City services necessitated by the conduct of the chapter 23 special event independent of the opening of the arts and entertainment district shall be governed by chapter 23, article VI of this Code.

c. The event organizer that requests that only a portion of the district be opened shall be responsible for the costs associated with delineating the partial opening of the district. A partial opening of the district and the manner of delineating the opening shall be subject to the approval of the event administrator.

d. The event administrator, as that term is defined in chapter 23, article VI of this Code, shall have the authority to determine whether the proposed event meets the definition of an arts and entertainments district event, based on recommendations that he may elect to obtain from the city's planning division, and to approve, approve with conditions, or disapprove the opening of all or a portion of the district during the special event based on the grounds for denying a special event permit or other public health, safety, or general welfare concerns. No appeal or other right of review shall be available to an event organizer who has had its request to open the district denied.

(3) *City-sponsored opening of the district*. At any time and from time to time, the city, through the mayor or his designee, may elect to sponsor the opening of all or a portion of the arts and entertainment district.

(e) *Conduct in the entertainment district.*

(1) The regulations of subsection 3-22(b) of this article, concerning the possession of an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the arts and entertainment district area during the hours of operation of the arts and entertainment district. Otherwise, the regulations of subsection 3-22(b) shall apply.

(2) The regulations of subsections 3-24(a) through (c) of this article, concerning removal of an open container from an authorized licensed premises, shall not apply in the case of the removal of an approved container of alcoholic beverages from the premises of the arts and entertainment district permittee providing the same, during the hours of operation of the arts and entertainment district. Otherwise the regulations of subsections 3-24(a) through (c) shall apply.

(3) The regulations of subsection 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the arts and entertainment district area during the hours of operation of the arts and entertainment district. Otherwise, the regulations of subsection 3-24(d) shall apply.

(4) The regulations of subsection 3-25(a) of this article, concerning brown bagging on the premises of another city business licensee, shall not apply in the arts and entertainment district area during the hours of operation of the district in the case of alcoholic beverages in an approved container. Otherwise the regulations of subsection 3-25(a) shall apply. Nothing in this subsection (4) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk cafe areas of the city licensee.

(5) It shall be unlawful for any person to re-use or to knowingly allow the re-use of

an approved container for an alcoholic beverage and nothing in this section shall be construed to authorize the same.

(6) Nothing in this section shall be construed to authorize any person to violate the state's open container law found at Code of Ala. 1975, § 32-5A-330.

(7) Nothing in this section shall be construed to authorize any person to violate the state and city's laws against under-age drinking.

(f) *Permitting*.

(1) *Qualifications*. In order to qualify for an arts and entertainment district permit, an applicant shall meet each of the following:

a. The applicant shall be a city licensee that is authorized by the city to sell alcoholic beverages at retail for on-premises consumption; and

b. No adverse criminal, quasi-criminal, or administrative action shall be pending or shall have been taken in the immediately preceding 12-month period against the city licensee or its owner related to the retail license or the operation of the city licensed premises.

(2) *Application process; permit duration*. A city licensee that meets the qualification of subsection (1) above may apply with the city clerk's office to become an arts and entertainment district permittee by filling out a form provided by the city. The city clerk-treasurer may deny a permit if the applicant does not meet the qualifications stated in subsection (1) above. The applicant may appeal the denial of the application for a permit to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the denial. A permit shall be valid for a license year, at the end of which a renewal application must be made.

(3) *Action against permit*. A permit may be revoked, suspended, or not renewed by the city clerk-treasurer if the permittee or applicant for renewal no longer meets the qualifications stated in subsection (1) above. The permittee or applicant for renewal may appeal the adverse decision of the city clerk-treasurer to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the adverse action.

(g) *Security*.

(1) *Temporary closure of district*. At any time and from time to time, the chief of police shall have the authority to temporarily close the arts and entertainment district, or portions of the district, which includes the authority to require persons to disperse from the area, should he, in his sole discretion, determine it is appropriate to do so in order to protect the public health, safety, or general welfare. The arts and entertainment district shall remain closed until the chief of police allows the district to be re-opened. The city shall not be responsible for any costs incurred by any person as a result of the closing and the city shall still be entitled to a reimbursement for city services provided in connection with the opening of the district for an arts and entertainment district event.

(2) *Number of permits*. The chief of police shall have the authority at any time and from time to time to limit the number of arts and entertainment district permits issued in a given license year should he, in his discretion, determine that it is in the interest of public, health, safety, or general welfare to do so. In such event, permits shall be issued on a first come, first serve basis based on the time a completed application is submitted to the office of the city clerk-treasurer. If there is a question as to first in time, the city clerk-treasurer is authorized to conduct a random drawing to decide the issue.

(Ord. No. 13-354, § 1, 5-23-2013; Ord. No. 13-846, § 1, 3-29-2014; Ord. No. 14-329, § 1, 5-8-2014; Ord. No. 14-970, § 1, 1-8-2015; Ord.

No. 16-327, § 1, 6-9-2016; Ord. No. 17-088, § 1, 2-23-2017; Ord. No. 17-846, § 1, 11-2-2017; Ord. No. 19-477, §§ 1—8, 6-27-2019; Ord. No. 21-391, § 1, 5-27-2021; Ord. No. 21-708, § 1, 8-26-2021; Ord. No. 21-1182, § 1, 12-2-2021; Ord. No. 23-258, § 1, 4-13-2023; Ord. No. 25-1032, § 1, 1-8-2026)

Sec. 3-28. Providence Entertainment District.

(a) *Definitions.* The following words, terms, phrases, when used in this section, shall have the meanings ascribed to them in this subsection (a), except where the context clearly indicates a different meaning.

Approved container means a purple-colored, non-glass container not exceeding a volume of 16 fluid ounces, which is provided to a customer by the seller who is an entertainment district permittee, bearing the name or logo of the district or the name or logo of the entertainment district permittee.

Chapter 23 special event means a special event governed by chapter 23, article VI of this Code.

Entertainment district or *district* means the district established hereinafter in subsection (b) of this section, as such district may be from time to time amended.

Entertainment district area or *area* means public places within the entertainment district, except for an excluded public place.

Entertainment district permittee or *permittee* means an on-premise retail city licensee permitted by the city in accordance with subsection (f) of this section.

Excluded public place means a public place within the entertainment district that is not included within the entertainment district area as follows:

(1) A public building, facility, garage, or parking lot that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(2) Property privately owned or controlled that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(3) An area being used for a chapter 23 special event that is posted with signage at each entrance or in conspicuous places occupied by the event that no open containers of alcoholic beverages are allowed on the premises;

(4) An area being used for a chapter 23 special event that is licensed to sell alcoholic beverages; or

(5) The premises of a city licensee.

(b) *Purpose*. The purpose of this section is:

(1) To establish districts authorized by Code of Ala. 1975, § 28-3A-17.1, within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under section 3-22(b), regulations against removal of open containers under sections 3-24(a) through (c), regulations against allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under section 3-24(d), and regulations against brown bagging on the premises of an other city business licensee under section 3-25(a); and

(2) To establish regulations governing the district.

(c) *Providence Entertainment District established.*

(1) Subject to subsections (2) and (3) of this subsection (c), there is hereby established the following named and generally described district, the Providence Entertainment District, which is also shown on the appended map incorporated herein by reference, which district shall

constitute an entertainment district pursuant to Code of Ala. 1975, § 28-3A-17.1:

All that part of Section 25, Township 03 South, Range 02 West of the Huntsville Meridian, in the City of Huntsville, Madison County, Alabama; more particularly described as commencing at the Southwest Corner of said Section 25; thence from the Point of Commencement, North 09 Degrees 58 Minutes 18 Seconds East 4507.14 feet to the Point of Beginning; said Point of Beginning is further described as being located on the South Margin of Stockton Street; thence from the Point of Beginning, North 85 Degrees 26 Minutes 24 Seconds East 52.45 feet to a point; thence South 07 Degrees 47 Minutes 36 Seconds East 92.74 feet to a point; thence North 87 Degrees 34 Minutes 38 Seconds East 40.76 feet to a point; thence South 08 Degrees 28 Minutes 17 Seconds East 108.07 feet to a point; thence South 22 Degrees 39 Minutes 23 Seconds East 24.54 feet to a point; thence South 11 Degrees 44 Minutes 20 Seconds West 4.24 feet to a point; thence South 48 Degrees 20 Minutes 33 Seconds East 14.54 feet to a point; thence South 40 Degrees 34 Minutes 41 Seconds West 22.27 feet to a point; thence South 46 Degrees 49 Minutes 23 Seconds East 17.65 feet to a point; thence South 09 Degrees 27 Minutes 19 Seconds East 7.35 feet to a point; thence South 89 Degrees 24 Minutes 00 Seconds East 36.32 feet to a point; thence North 00 Degrees 36 Minutes 06 Seconds East 2.09 feet to a point; thence South 89 Degrees 23 Minutes 58 Seconds East 24.32 feet to a point; thence South 00 Degrees 35 Minutes 56 Seconds West 2.76 feet to a point; thence South 89 Degrees 24 Minutes 02 Seconds East 11.95 feet to a point; thence North 00 Degrees 36 Minutes 03 Seconds East 13.61 feet to a point; thence South 89 Degrees 23 Minutes 53 Seconds East 7.28 feet to a point at the beginning of a curve to the right; thence along said curve to the right having a radius of 19.63 feet and a chord bearing and distance of South 89 Degrees 23 Minutes 53 Seconds East 31.15 feet to a point; thence North 79 Degrees 05 Minutes 49 Seconds East 24.94 feet to a point; thence South 89 Degrees 36 Minutes 03 Seconds East 27.41 feet to a point; thence North 00 Degrees 44 Minutes 25 Seconds East 15.03 feet to a point; thence South 88 Degrees 21 Minutes 13 Seconds East 53.63 feet to a point; thence South 89 Degrees 37 Minutes 34 Seconds East 6.89 feet to a point; thence North 03 Degrees 48 Minutes 42 Seconds West 5.99 feet to a point; thence North 90 Degrees 00 Minutes 00 Seconds East 9.56 feet to a point; thence North 06 Degrees 20 Minutes 28 Seconds West 18.03 feet to a point; thence North 90 Degrees 00 Minutes 00 Seconds East 12.34 feet to a point at the beginning of a curve to the left; thence along said curve to the left having a radius of 16.68 feet and a chord and bearing of North 74 Degrees 19 Minutes 41 Seconds East 10.33 feet to a point; thence South 49 Degrees 50 Minutes 32 Seconds East 7.30 feet to a point; thence South 39 Degrees 09 Minutes 24 Seconds West 3.17 feet to a point; thence South 50 Degrees 02 Minutes 19 Seconds East 38.67 feet to a point; thence North 40 Degrees 35 Minutes 41 Seconds East 12.24 feet to a point; thence North 49 Degrees 52 Minutes 16 Seconds West 9.68 feet to a point; thence North 40 Degrees 02 Minutes 59 Seconds East 16.57 feet to a point; thence South 49 Degrees 52 Minutes 27 Seconds East 9.68 feet to a point; thence North 40 Degrees 27 Minutes 06 Seconds East 153.32 feet to a point; thence North 48 Degrees 40 Minutes 30 Seconds East 9.76 feet to a point; thence South 48 Degrees 51 Minutes 18 Seconds East 32.01 feet to a point; thence North 39 Degrees 44 Minutes 51 Seconds East 46.68 feet to a point; thence North 40 Degrees 17 Minutes 54 Seconds East

28.34 feet to a point; thence South 49 Degrees 42 Minutes 10 Seconds East 10.94 feet to a point; thence North 40 Degrees 17 Minutes 47 Seconds East 43.04 feet to a point; thence North 49 Degrees 42 Minutes 16 Seconds West 10.74 feet to a point; thence North 40 Degrees 17 Minutes 47 Seconds East 21.03 feet to a point; thence South 49 Degrees 42 Minutes 25 Seconds East 11.7 feet to a point; thence North 40 Degrees 18 Minutes 00 Seconds East 17.48 feet to a point; thence South 49 Degrees 42 Minutes 14 Seconds East 52.34 feet to a point; thence South 67 Degrees 34 Minutes 36 Seconds East 19.43 feet to a point; thence North 35 Degrees 08 Minutes 30 Seconds East 46.19 feet to a point; thence North 05 Degrees 55 Minutes 03 Seconds East 18.05 feet to a point; thence North 35 Degrees 52 Minutes 42 Seconds East 71.47 feet to a point; thence South 89 Degrees 51 Minutes 19 Seconds East 23.65 feet to a point; thence North 58 Degrees 14 Minutes 06 Seconds East 17.56 feet to a point; thence North 41 Degrees 52 Minutes 00 Seconds East 167.34 feet to a point; thence North 45 Degrees 24 Minutes 34 Seconds East 40.49 feet to a point; thence North 47 Degrees 00 Minutes 49 Seconds East 31.31 feet to a point; thence South 43 Degrees 56 Minutes 52 Seconds East 136.98 feet to a point; thence South 41 Degrees 28 Minutes 05 Seconds West 25.89 feet to a point; thence South 40 Degrees 34 Minutes 05 Seconds West 11.38 feet to a point; thence South 49 Degrees 25 Minutes 50 Seconds East 2.37 feet to a point; thence South 40 Degrees 34 Minutes 11 Seconds West 11.63 feet to a point; thence South 49 Degrees 26 Minutes 23 Seconds East 2.34 feet to a point; thence South 40 Degrees 34 Minutes 22 Seconds West 19.96 feet to a point; thence North 49 Degrees 25 Minutes 31 Seconds West 11.12 feet to a point; thence South 42 Degrees 02 Minutes 24 Seconds West 11.38 feet to a point; thence South 48 Degrees 40 Minutes 03 Seconds East 6.29 feet to a point; thence South 40 Degrees 34 Minutes 35 Seconds West 11.38 feet to a point; thence South 49 Degrees 25 Minutes 54 Seconds East 5.12 feet to a point; thence South 38 Degrees 31 Minutes 02 Seconds West 11.63 feet to a point; thence South 49 Degrees 25 Minutes 13 Seconds East 5.73 feet to a point; thence South 40 Degrees 34 Minutes 27 Seconds West 8.08 feet to a point; thence North 49 Degrees 25 Minutes 11 Seconds West 6.15 feet to a point; thence South 40 Degrees 34 Minutes 11 Seconds West 11.63 feet to a point; thence North 49 Degrees 25 Minutes 14 Seconds West 5.13 feet to a point; thence South 40 Degrees 34 Minutes 19 Seconds West 22.83 feet to a point; thence South 49 Degrees 25 Minutes 24 Seconds East 5.13 feet to a point; thence South 40 Degrees 34 Minutes 22 Seconds West 11.62 feet to a point; thence South 49 Degrees 25 Minutes 42 Seconds East 8.33 feet to a point; thence South 40 Degrees 34 Minutes 08 Seconds West 8.08 feet to a point; thence North 49 Degrees 25 Minutes 51 Seconds West 15.54 feet to a point; thence South 40 Degrees 34 Minutes 22 Seconds West 11.62 feet to a point; thence North 49 Degrees 25 Minutes 08 Seconds West 3.92 feet to a point; thence South 40 Degrees 34 Minutes 16 Seconds West 25.58 feet to a point; thence North 49 Degrees 25 Minutes 43 Seconds West 15.83 feet to a point; thence South 40 Degrees 34 Minutes 21 Seconds West 16.62 feet to a point; thence South 49 Degrees 25 Minutes 38 Seconds East 25.71 feet to a point; thence North 40 Degrees 34 Minutes 16 Seconds East 19.08 feet to a point; thence South 49 Degrees 25 Minutes 30 Seconds East 11.38 feet to a point; thence North 40 Degrees 34 Minutes 38 Seconds East 3.92 feet to a point; thence South 49 Degrees 25 Minutes 38 Seconds East

11.62 feet to a point; thence North 40 Degrees 34 Minutes 15 Seconds East 6.75 feet to a point; thence South 49 Degrees 25 Minutes 41 Seconds East 8.08 feet to a point; thence North 40 Degrees 36 Minutes 52 Seconds East 0.46 feet to a point; thence South 49 Degrees 25 Minutes 38 Seconds East 11.62 feet to a point; thence South 40 Degrees 34 Minutes 16 Seconds West 11.12 feet to a point; thence South 49 Degrees 25 Minutes 43 Seconds East 22.83 feet to a point; thence North 40 Degrees 34 Minutes 03 Seconds East 11.12 feet to a point; thence South 49 Degrees 25 Minutes 49 Seconds East 11.63 feet to a point; thence North 40 Degrees 34 Minutes 21 Seconds East 5.69 feet to a point; thence South 49 Degrees 25 Minutes 27 Seconds East 8.08 feet to a point; thence South 40 Degrees 34 Minutes 41 Seconds West 5.27 feet to a point; thence South 47 Degrees 22 Minutes 22 Seconds East 11.63 feet to a point; thence South 40 Degrees 34 Minutes 25 Seconds West 11.12 feet to a point; thence South 49 Degrees 25 Minutes 39 Seconds East 22.83 feet to a point; thence North 40 Degrees 34 Minutes 30 Seconds East 11.13 feet to a point; thence South 49 Degrees 25 Minutes 38 Seconds East 11.62 feet to a point; thence South 39 Degrees 01 Minutes 00 Seconds West 9.21 feet to a point; thence South 49 Degrees 09 Minutes 18 Seconds East 3.97 feet to a point; thence North 40 Degrees 28 Minutes 10 Seconds East 7.04 feet to a point; thence North 41 Degrees 46 Minutes 20 Seconds East 7.81 feet to a point; thence North 45 Degrees 18 Minutes 38 Seconds East 2.23 feet to a point; thence South 60 Degrees 33 Minutes 39 Seconds East 4.13 feet to a point; thence South 42 Degrees 02 Minutes 53 Seconds West 10.98 feet to a point; thence South 49 Degrees 25 Minutes 49 Seconds East 11.63 feet to a point; thence South 40 Degrees 34 Minutes 01 Seconds West 2.37 feet to a point; thence South 49 Degrees 25 Minutes 43 Seconds East 11.37 feet to a point; thence South 40 Degrees 34 Minutes 10 Seconds West 7.62 feet to a point; thence South 49 Degrees 25 Minutes 30 Seconds East 7.00 feet to a point; thence South 57 Degrees 35 Minutes 00 Seconds East 18.07 feet to a point; thence South 39 Degrees 50 Minutes 04 Seconds West 310.07 feet to a point; thence South 33 Degrees 22 Minutes 35 Seconds West 39.42 feet to a point; thence South 10 Degrees 15 Minutes 29 Seconds West 7.81 feet to a point; thence South 50 Degrees 11 Minutes 40 Seconds East 240.30 feet to a point; thence South 45 Degrees 00 Minutes 00 Seconds East 5.12 feet to a point; thence South 40 Degrees 30 Minutes 00 Seconds West 242.96 feet to a point; thence South 34 Degrees 35 Minutes 45 Seconds West 75.59 feet to a point; thence South 58 Degrees 02 Minutes 12 Seconds West 31.26 feet to a point; thence South 88 Degrees 46 Minutes 02 Seconds West 47.98 feet to a point; thence North 17 Degrees 21 Minutes 09 Seconds West 9.64 feet to a point; thence North 39 Degrees 12 Minutes 15 Seconds East 11.53 feet to a point; thence North 49 Degrees 29 Minutes 38 Seconds West 135.70 feet to a point; thence North 54 Degrees 42 Minutes 52 Seconds West 7.08 feet to a point; thence North 53 Degrees 36 Minutes 09 Seconds West 164.31 feet to a point; thence North 51 Degrees 33 Minutes 32 Seconds West 35.77 feet to a point; thence South 13 Degrees 32 Minutes 38 Seconds West 153.16 feet to a point; thence South 15 Degrees 02 Minutes 38 Seconds West 35.00 feet to a point; thence North 74 Degrees 57 Minutes 21 Seconds West 52.00 feet to a point; thence South 21 Degrees 53 Minutes 12 Seconds West 25.18 feet to a point; thence North 74 Degrees 57 Minutes 22 Seconds West 54.00 feet to a point; thence North 88 Degrees 06 Minutes 01 Seconds West

12.78 feet to a point; thence South 08 Degrees 02 Minutes 18 Seconds West 27.94 feet to a point; thence South 05 Degrees 54 Minutes 50 Seconds West 27.09 feet to a point; thence South 03 Degrees 57 Minutes 54 Seconds West 27.09 feet to a point; thence South 02 Degrees 00 Minutes 54 Seconds West 27.09 feet to a point; thence South 01 Degree 02 Minutes 22 Seconds West 8.68 feet to a point; thence North 88 Degrees 13 Minutes 34 Seconds West 77.35 feet to a point; thence South 84 Degrees 21 Minutes 48 Seconds West 38.13 feet to a point; thence North 83 Degrees 51 Minutes 10 Seconds West 206.87 feet to a point; thence North 37 Degrees 21 Minutes 25 Seconds West 35.05 feet to a point; thence North 23 Degrees 47 Minutes 01 Second West 73.58 feet to a point; thence North 05 Degrees 29 Minutes 12 Seconds West 164.41 feet to a point; thence North 10 Degrees 28 Minutes 30 Seconds East 75.06 feet to a point; thence North 05 Degrees 15 Minutes 58 Seconds East 40.47 feet to a point; thence North 05 Degrees 30 Minutes 37 Seconds West 250.46 feet to a point; thence North 17 Degrees 05 Minutes 04 Seconds East 28.33 feet to a point; thence North 88 Degrees 22 Minutes 38 Seconds East 23.76 feet to a point; thence North 07 Degrees 26 Minutes 18 Seconds West 157.42 feet to a point; thence North 09 Degrees 13 Minutes 11 Seconds West 14.47 feet to a point; thence North 09 Degrees 22 Minutes 54 Seconds West 14.47 feet to a point; thence North 09 Degrees 32 Minutes 32 Seconds West 14.47 feet to a point at the beginning of a curve to the right; thence along said curve to the right having a radius of 16.89 feet and a chord bearing and distance of North 38 Degrees 16 Minutes 01 Second East 24.48 feet back to the Point of Beginning and containing 16.84 Acres, more or less.

(2) Notwithstanding anything in this section to the contrary, at any time and from time to time, the entertainment district established in this section may be enlarged, reduced, modified, or eliminated, in whole or part, and the regulations set forth in this section are subject to amendment at any time and from time to time. No vested rights shall be acquired by or be conferred upon any person as a result of the establishment of the entertainment district or permitting under this section.

(3) In the event the entertainment district established by this section falls below the number of retail liquor licensees required for the establishment of the district according to Code of Ala. 1975, § 28-3A-17.1(d), then the city may amend this section to either eliminate the entertainment district or modify the district so as to remain in compliance with section 28-3A-17.1, unless applicable state alcoholic beverage control laws allow for continuance of a once-established district regardless of the number of retail liquor licensees remaining.

(d) *Opening of the district*.

(1) *Regular hours of district.* The regular hours of operation for the entertainment district shall be between the hours of 12:00 noon and 11:00 p.m., daily; provided, however, in the case of New Year's Eve/ New Year's Day, the regular hours of operation shall be between the hours of 12:00 noon on December 31st and 1:00 a.m. on January 1st

(2) *Chapter 23 special event opening of district*.

a. An event organizer of a chapter 23 special event, including an organized event on private property that requires city event services in accordance with section 23-202(d) of this Code, may request, with the organizer's application for a chapter 23 special event permit and on forms provided by the city, that the entertainment district be opened during the chapter 23 special event.

b. The request shall be processed with the application for a chapter 23 special event permit and the event organizer, as that term is defined in chapter 23, article VI of this Code, shall be responsible for all costs incurred by the city as a result of the opening of the district during the chapter 23 special event, including safety, traffic and crowd control; clean-up costs; and the use of city equipment. City services necessitated by the conduct of the chapter 23 special event independent of the opening of the entertainment district shall be governed by chapter 23, article VI of this Code.

c. The event administrator, as that term is defined in chapter 23, article VI of this Code, shall have the authority to approve, approve with conditions, or disapprove the opening of the district during the special event based on the grounds for denying a special event permit or other public health, safety, or general welfare concerns. No appeal or other right of review shall be available to an event organizer who has had its request to open the district denied.

(3) *City-sponsored opening of the district*. At any time and from time to time the city, through the mayor or his designee, may elect to sponsor the opening of all or a portion of the entertainment district.

(e) *Conduct in the entertainment district.*

(1) The regulations of section 3-22(b) of this article, concerning the possession of an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the entertainment district area during the hours of operation of the entertainment district. Otherwise, the regulations of section 3-22(b) shall apply.

(2) The regulations of section 3-24(a) through (c) of this article, concerning removal of an open container from an authorized licensed premises, shall not apply in the case of the removal of an approved container of alcoholic beverages from the premises of the entertainment district permittee providing the same, during the hours of operation of the entertainment district. Otherwise the regulations of section 3-24(a) through (c) shall apply.

(3) The regulations of section 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the entertainment district area during the hours of operation of the entertainment district. Otherwise, the regulations of section 3-24(d) shall apply.

(4) The regulations of section 3-25(a) of this article, concerning brown bagging on the premises of an other city business licensee, shall not apply in the entertainment district area during the hours of operation of the district in the case of alcoholic beverages in an approved container. Otherwise the regulations of section 3-25(a) shall apply. Nothing in this subsection (4) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk cafe areas of the city licensee.

(5) It shall be unlawful for any person to re-use or to knowingly allow the re-use of an approved container for an alcoholic beverage and nothing in this section shall be construed to authorize the same.

(6) Nothing in this section shall be construed to authorize any person to violate the state's open container law found at Code of Ala. 1975, § 32-5A-330.

(7) Nothing in this section shall be construed to authorize any person to violate the state and city's laws against under-age drinking.

(f) *Permitting*.

(1) *Qualifications*. In order to qualify for an entertainment district permit an applicant shall meet each of the following:

a. The applicant shall be a city licensee that is authorized by the city to sell alcoholic beverages at retail for on-premises consumption; and

b. No adverse criminal, quasi-criminal, or administrative action shall be pending or shall have been taken in the immediately preceding 12-month period against the city licensee or its owner related to the retail license or the operation of the city licensed premises.

(2) *Application process; permit duration*. A city licensee that meets the qualification of subsection (1) above may apply with the city clerk's office to become an entertainment district permittee by filling out a form provided by the city. The city clerk treasurer may deny a permit if the applicant does not meet the qualifications stated in subsection (1) above. The applicant may appeal the denial of the application for a permit to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the denial. A permit shall be valid for a license year, at the end of which a renewal application must be made.

(3) *Action against permit*. A permit may be revoked, suspended, or not renewed by the city clerk-treasurer if the permittee or applicant for renewal no longer meets the qualifications stated in subsection (1) above. The permittee or applicant for renewal may appeal the adverse decision of the city clerk-treasurer to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the adverse action.

(g) *Security*.

(1) *Temporary closure of district*. At any time and from time to time, the chief of police shall have the authority to temporarily close the entertainment district, which includes the authority to require persons to disperse from the area, should he, in his sole discretion, determine it is appropriate to do so in order to protect the public health, safety, or general welfare. The entertainment district shall remain closed until the chief of police allows the district to be re-opened. The city shall not be responsible for any costs incurred by any person as a result of the closing and the city shall still be entitled to a reimbursement for city services provided in connection with the opening of the district for a chapter 23 special event.

(2) *Number of permits*. The chief of police shall have the authority at any time and from time to time to limit the number of entertainment district permits issued in a given license year should he, in his discretion, determine that it is in the interest of public, health, safety, or general welfare to do so. In such event, permits shall be issued on a first come, first serve basis based on the time a completed application is submitted to the office of the city clerk-treasurer. If there is a question as to first in time, the city clerk-treasurer is authorized to conduct a random drawing to decide the issue.

(Ord. No. 13-731, § 1, 10-10-2013; Ord. No. 17-088, § 2, 2-23-2017; Ord. No. 17-847, § 1, 11-2-2017; Ord. No. 19-517, § 1, 6-27-2019; Ord. No. 21-1182, § 2, 12-2-2021; Ord. No. 25-1033, § 1, 1-8-2026)

Sec. 3-29. Butler Green Arts and Entertainment District.

(a) *Definitions.* The following words, terms, phrases, when used in this section, shall have the meanings ascribed to them in this subsection (a), except where the context clearly indicates a different meaning.

Approved container means a purple colored, non-glass container not exceeding a volume of 16 fluid ounces, which is provided to a customer by the seller who is a district permittee, bearing the name or logo of the permittee.

Arts and entertainment district event means a chapter 23 special event that meets each of the following criteria:

(1) The event is open to the general public and may or may not include an admission fee for entrance into the event.

(2) The purpose of the event is to promote local arts, culture, or entertainment, through a venue that is consistent with the purpose of the arts and entertainment district.

Brewery means a brewery located within the district that holds a manufacturer's license from the ABC board and city, which is authorized by law to sell beer at retail for off- premises consumption.

Chapter 23 special event means a special event governed by chapter 23, article VI of this Code.

Customer means an individual who is not a minor, as that term is defined by the state alcoholic beverage control laws, that possesses an alcoholic beverage provided by a district permittee for consumption in the district area during the hours of the operation of the district.

District means the Butler Green Arts and Entertainment District established hereinafter in subsection (c) of this section, as such district may be from time to time amended.

District area or *area* means public places within the district, except for an excluded public place.

District permittee or *permittee* means the holder of a permit issued by the city pursuant to subsection (h) of this section.

Excluded public place means a public place within the district that is not included within the district area as follows:

(1) A public building, facility, garage, or parking lot that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(2) Property privately owned or controlled that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(3) An area being used for a chapter 23 special event that is posted with signage at each entrance or in conspicuous places occupied by the event that no open containers of alcoholic beverages are allowed on the premises;

(4) An area being used for a chapter 23 special event that is licensed to sell alcoholic beverages; or

(5) The premises of a city licensee.

On-premise retailer means an on-premise alcoholic beverage retailer located within the district that holds a license from the state and city authorizing the retail sale of alcoholic beverages for on-premise consumption.

(b) *Purpose*.

(1) *Purpose of section*. The purpose of this section is as follows:

a. With regard to on-premise retailers, to establish a district authorized by Code of Ala. 1975, § 28-3A-17.1, within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under subsection 3-22(b), regulations against removal of open containers under subsections 3-24(a) through (c), regulations against

allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under subsection 3-24(d), and regulations against brown bagging on the premises of an other city business licensee under subsection 3-25(a);

b. With regard to breweries, to establish a district within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under subsection 3-22(b), regulations against allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under subsection 3-24(d), and regulations against brown bagging on the premises of an other city business licensee under subsection 3-25(a); and

c. To establish regulations governing the district.

(2) *Purpose of arts and entertainment district*. In addition to the foregoing, the purpose of establishing an arts and entertainment district is to enhance the public enjoyment of the district and to promote local arts, culture, and entertainment, while, at the same time, protecting existing uses and preserving the unique character of each district.

(c) *Butler Green Arts and Entertainment District established*.

(1) Subject to subsections (2) and (3) of this subsection (c), there is hereby established the following named and generally described district, the Butler Green Arts and Entertainment District, which is also shown on the appended map incorporated herein by reference, which district shall constitute an entertainment district pursuant to Code of Ala. 1975, § 28-3A-17.1:

A tract of land located in the North half of Sections 02 and 03, both of which are in Township 4 South, Range 1 West of the Huntsville Meridian, Madison County, Alabama, more particularly described as commencing at a point in the center of Clinton Ave W; said point is further described as being located at the intersection of the road centerlines of Hicks Pl NW and Clinton Ave W; thence Southwesterly along the centerline of Clinton Ave W a distance of 587 feet; thence Northwesterly and parallel to Hicks Pl NW a distance of 20 feet to the Northern edge of pavement of Clinton Ave W and also the Point of Beginning.

Thence from the Point of Beginning, continue Northwesterly and parallel to Hicks Pl NW a distance of 221 feet to a point on the Southern edge of pavement of Hicks Ave NW; thence Southwesterly and parallel to Clinton Ave W a distance of 502 feet to a point on the Western edge of pavement of Lowry St NW; thence Northwesterly along the Western edge of pavement of Lowry St NW a distance of 205 feet to a point at the beginning of a curve to the left; thence Northwesterly around said curve to the left having a chord distance of 34 feet to a point on the Southern edge of pavement of Hall Ave NW; thence Southwesterly along the Southern edge of pavement of Hall Ave NW a distance of 1,270 feet to a point on the Eastern edge of pavement of Triana Blv NW; thence West a distance of 75 feet to a point located on the Western edge of pavement of Triana Blv NW and on the North right-of-way (ROW) of 4th Ave NW; thence continue West along the North ROW of 4th Ave NW a distance of 696 feet; thence North and parallel to Triana Blv NW a distance of 320 feet to a point located on the South ROW of 3rd Ave NW; thence West along the South ROW of 3rd Ave NW a distance of 641 feet; thence South and parallel to Triana Blv NW a distance of 354 feet; thence West and parallel to 3rd Ave NW a distance of 364 feet; thence South and parallel to Triana Blv NW a distance of 277 feet to a point at the beginning of a curve to the left;

thence Southeasterly around said curve to the left having a chord distance of 91 feet to a point located on the North ROW of Governors Dr SW; thence East along the North ROW of Governors Dr SW a distance of 300 feet; thence North and parallel to Triana Blv NW a distance of 17 feet; thence East and parallel to Governors Dr SW a distance of 430 feet to a point located on the West ROW of 9th St NW; thence North along the West ROW of 9th St NW a distance of 292 feet; thence East and parallel to Governors Dr SW a distance of 32 feet to a point on the Eastern edge of pavement of 9th St NW and also on the South ROW of 4th Ave NW; thence East along the South ROW of 4th Ave NW a distance of 941 feet to a point on the Eastern edge of pavement of Triana Blv NW; thence South along the Eastern edge of pavement of Triana Blv NW a distance of 281 feet to a point at the beginning of a curve to the left; thence Southeasterly around said curve to the left having a chord distance of 50 feet to a point located on the Northern edge of pavement of Governors Dr SW; thence East along the Northern edge of pavement of Governors Dr SW a distance of 322 feet to a point on the Northern edge of pavement of Clinton Ave W; thence Northeasterly along the Northern edge of pavement of Clinton Ave W a distance of 1,678 feet to the Point of Beginning. Said tract of land contains 29.70 Acres more or less.

(2) Notwithstanding anything in this section to the contrary, at any time and from time to time, the district established in this section may be enlarged, reduced, modified, or eliminated, in whole or part, and the regulations set forth in this section are subject to amendment at any time and from time to time. No vested rights shall be acquired by or be conferred upon any person as a result of the establishment of the district or permitting under this section.

(3) In the event the entertainment district established by this section falls below the number of alcoholic beverage licensees required for the establishment of the district according to Code of Ala. 1975, § 28-3A-17.1, then the city may amend this section to either eliminate the entertainment district or modify the district so as to remain in compliance with section 28-3A-17.1, unless applicable state alcoholic beverage control laws allow for continuance of a once-established district regardless of the number of alcoholic beverage licensees remaining.

(d) *Opening of the district*.

(1) *Regular hours of district.* The regular hours of operation for the arts and entertainment district shall be between the hours of 12:00 noon and 11:00 p.m., daily; provided, however, in the case of New Year's Eve/New Year's Day, the regular hours of operation shall be between the hours of 12:00 noon on December 31st and 1:00 a.m. on January 1st.

(2) *Chapter 23 special event opening of district*.

a. An event organizer of a chapter 23 special event that is an arts and entertainment district event, including an organized event on private property that requires city event services in accordance with section 23-202(d) of this Code, may request, with the organizer's application for a chapter 23 special event permit and on forms provided by the city, that the district be opened during the chapter 23 special event.

b. The request shall be processed with the application for a chapter 23 special event permit and the event organizer, as that term is defined in chapter 23, article VI of this Code, shall be responsible for all costs incurred by the city as a result of the opening of the district during the chapter 23 special event, includ-

ing safety, traffic and crowd control; clean-up costs; and the use of city equipment. City services necessitated by the conduct of the chapter 23 special event independent of the opening of the district shall be governed by chapter 23, article VI of this Code.

c. The event administrator, as that term is defined in chapter 23, article VI of this Code, shall have the authority to determine whether the proposed event meets the definition of an arts and entertainments district event, based on recommendations that he may elect to obtain from the city's planning division, and to approve, approve with conditions, or disapprove the opening of the district during the special event based on the grounds for denying a special event permit or other public health, safety, or general welfare concerns. No appeal or other right of review shall be available to an event organizer who has had its request to open the district denied.

(3) *City-sponsored opening of the district*. At any time and from time to time the city, through the mayor or his designee, may elect to sponsor the opening of the district.

(e) *Exemptions in the district for on-premise retailers and their customers.* In the case of on-premise retailers who are district permittees and their customers, each of the following shall apply:

(1) The regulations of subsection 3-22(b) of this article, concerning the possession of an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-22(b) shall apply.

(2) The regulations of subsections 3-24(a) through (c) of this article, concerning removal of an open container from an authorized licensed premise, shall not apply in the case of the removal of an approved container of alcoholic beverages from the premises of an on-premise retailer who is a district permittee during the hours of operation of the district. Otherwise the regulations of subsections 3-24(a) through (c) shall apply.

(3) The regulations of subsection 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the district area during the hours of operation of the district by a customer wearing an approved wristband. Otherwise, the regulations of subsection 3-24(d) shall apply.

(4) The regulations of subsection 3-25(a) of this article, concerning brown bagging on the premises of another city business licensee, shall not apply in the district area during the hours of operation of the district in the case of alcoholic beverages in an approved container. Otherwise the regulations of section 3-25(a) shall apply. Nothing in this subsection (4) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk café areas of the city licensee.

(f) *Exemptions in the district for breweries and their customers*. In the case of breweries who are district permittees and their customers, each of the following shall apply:

(1) The regulations of subsection 3-22(b) of this article, concerning the possession of an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of beer in an approved container within the confines of the district

area during the hours of operation of the district. Otherwise, the regulations of subsection 3-22(b) shall apply.

(2) The regulations of subsection 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of beer in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-24(d) shall apply.

(3) The regulations of subsection 3-25(a) of this article, concerning brown bagging on the premises of an other city business licensee, shall not apply in the district area during the hours of operation of the district in the case of beer in an approved container. Otherwise the regulations of section 3-25(a) shall apply. Nothing in this subsection (2) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk café areas of the city licensee.

(g) *Required conduct in the district*.

(1) Nothing in this section shall be construed to relieve a brewery, its servants, agents, or employees from complying with the hours of sale set forth in section 3-133(b) of this article or those set forth in the state alcoholic beverage control laws.

(2) For beer that will be removed from the licensed premises for off-premise consumption, a brewery, its servants, agents, and employees, shall furnish the beer to its customers in authorized unopened containers, which shall remain sealed while on the brewery's licensed premises.

(3) No person shall remove an open container of alcoholic beverages from the district.

(4) All alcoholic beverages possessed or consumed within the district shall be obtained from district permittees.

(5) It shall be unlawful for any person to re-use or to knowingly allow the re-use of an approved container for an alcoholic beverage and nothing in this section shall be construed to authorize the same.

(h) *Permitting*.

(1) *Qualifications*. In order to qualify for a permit under this subsection, an applicant shall meet each of the following conditions:

a. The applicant shall be a city licensee that is an on-premise retailer or a brewery; and

b. No adverse criminal, quasi-criminal, or administrative action shall be pending or shall have been taken in the immediately preceding 12-month period against the city licensee or its owner related to its license or the operation of the city licensed premises.

(2) *Application process; permit duration*. A city licensee that meets the qualification of subsection (1) above may apply with the city-clerk's office to become a district permittee by filling out a form provided by the city. The city clerk treasurer may deny a permit if the applicant does not meet the qualifications stated in subsection (1) above. The applicant may appeal the denial of the application for a permit to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the denial. A permit shall be valid for a license year, at the end of which a renewal application must be made.

(3) *Action against permit*. A permit may be revoked, suspended, or not renewed by the city clerk-treasurer if the permittee or applicant for renewal no longer meets the qualifications stated in subsection (1) above. The permittee or applicant for renewal may appeal the adverse decision of the city clerk-treasurer to the liquor license review committee by filing a written notice of

appeal with the city clerk-treasurer within 15 days after the adverse action.

(4) *Number of permits*. The chief of police shall have the authority at any time and from time to time to limit the number of district permits issued in a given license year should he, in his discretion, determine that it is in the interest of public, health, safety, or general welfare to do so. In such event, permits shall be issued on a first come, first serve basis based on the time a completed application is submitted to the office of the city clerk-treasurer. If there is a question as to first in time, the city clerk-treasurer is authorized to conduct a random drawing to decide the issue.

(i) *Security*.

(1) *Temporary closure of district*. At any time and from time to time, the chief of police shall have the authority to temporarily close the district, which includes the authority to require persons to disperse from the area, should he, in his sole discretion, determine it is appropriate to do so in order to protect the public health, safety, or general welfare. The district shall remain closed until the chief of police allows the district to be re-opened. The city shall not be responsible for any costs incurred by any person as a result of the closing and the city shall still be entitled to a reimbursement for city services provided in connection with the opening of the district for a Chapter 23 special event.

(j) Nothing in this section shall be construed to authorize any person to violate the state's open container law found at Code of Ala. 1975, § 32-5A-330.

(k) Nothing in this section shall be construed to authorize any person to violate the state and city's laws against under-age drinking.

(l) Nothing in the section shall be construed to authorize a brewery to operate contrary to the state alcoholic beverage control laws governing manufacturers, including Code of Ala. 1975, § 28-3A-6.

(Ord. No. 17-089, § 1, 2-23-2017; Ord. No. 19-477, § 9, 6-27-2019; Ord. No. 19-517, § 2, 6-27-2019; Ord. No. 21-1182, § 3, 12-2-2021)

Sec. 3-30. MidCity Arts and Entertainment District.

(a) *Definitions.* The following words, terms, phrases, when used in this section, shall have the meanings ascribed to them in this subsection (a), except where the context clearly indicates a different meaning.

Approved container means a purple colored, non-glass container not exceeding a volume of 16 fluid ounces, which is provided to a customer by the seller who is a district permittee, bearing the name or logo of the permittee.

Arts and entertainment district event means a chapter 23 special event that meets each of the following criteria:

(1) The event is open to the general public and may or may not include an admission fee for entrance into the event.

(2) The purpose of the event is to promote local arts, culture, or entertainment, through a venue that is consistent with the purpose of the arts and entertainment district.

Brewery means a brewery located within the district that holds a manufacturers license from the ABC board and city, which is authorized by law to sell beer at retail for off-premises consumption.

Chapter 23 special event means a special event governed by chapter 23, article VI of this Code.

Customer means an individual who is not a minor, as that term is defined by the state alcoholic beverage control laws, that possesses an alcoholic beverage provided by a district

permittee for consumption in the district area during the hours of the operation of the district.

District means the MidCity Arts and Entertainment District established hereinafter in subsection (c) of this section, as such district may be from time to time amended.

District area or *area* means public places within the district, except for an excluded public place.

District permittee or *permittee means* the holder of a permit issued by the city pursuant to subsection (h) of this section.

Excluded public place means a public place within the district that is not included within the district area as follows:

(1) A public building, facility, garage, or parking lot that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(2) Property privately owned or controlled that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(3) An area being used for a chapter 23 special event that is posted with signage at each entrance or in conspicuous places occupied by the event that no open containers of alcoholic beverages are allowed on the premises;

(4) An area being used for a chapter 23 special event that is licensed to sell alcoholic beverages; or

(5) The premises of a city licensee.

On-premise retailer means an on-premise alcoholic beverage retailer located within the district that holds a license from the state and city authorizing the retail sale of alcoholic beverages for on-premise consumption.

(b) *Purpose*.

(1) *Purpose of section*. The purpose of this section is as follows:

a. With regard to on-premise retailers, to establish a district authorized by Code of Ala. 1975 § 28-3A-17.1, within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under subsection 3-22(b), regulations against removal of open containers under subsections 3-24(a) through (c), regulations against allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under subsection 3-24(d), and regulations against brown bagging on the premises of another city business licensee under subsection 3-25(a);

b. With regard to breweries, to establish a district within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under subsection 3-22(b), regulations against allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under subsection 3-24(d), and regulations against brown bagging on the premises of another city business licensee under subsection 3-25(a); and

c. To establish regulations governing the district.

(2) *Purpose of arts and entertainment district*. In addition to the foregoing, the purpose of establishing an arts and entertainment district is to enhance the public enjoyment of the district and to promote local arts, culture, and entertainment,

while, at the same time, protecting existing uses and preserving the unique character of each district.

(c) *MidCity Arts and Entertainment District established.*

(1) Subject to subsections (2) and (3) of this subsection (c), there is hereby established the following named and generally described district, the MidCity Arts and Entertainment District, which is also shown on the appended map incorporated herein by reference, which district shall constitute an entertainment district pursuant to Code of Ala. 1975, § 28-3A-17.1:

A tract of land located in Section 31, Township 03 South, Range 01 West of the Huntsville Meridian, Madison County, Alabama, more particularly described as commencing at a point located at the Center of the East Boundary of said Section 31; thence from the Point of Commencement, North 89 Degrees 29 Minutes 27 Seconds West, a distance of 1649.34 feet to the Point of Beginning; thence from the Point of Beginning, South 01 Degree 09 Minutes 38 Seconds East, a distance of 478.49 feet to a point at the beginning of a curve to the left; thence around said curve to the left, with a radius of 302.91 feet, a chord distance and bearing of South 45 Degrees 08 Minutes 24 Seconds West, a distance of 261.20 feet to a point; thence South 89 Degrees 56 Minutes 57 Seconds West, a distance of 215.53 feet to a point; thence North 84 Degrees 03 Minutes 03 Seconds West, a distance of 140.69 feet to a point; thence North 87 Degrees 46 Minutes 31 Seconds West, a distance of 106.32 feet to a point; thence North 11 Degrees 20 Minutes 26 Seconds West, a distance of 124.69 feet to a point; thence North 19 Degrees 39 Minutes 33 Seconds West, a distance of 25.67 feet to a point; thence North 03 Degrees 59 Minutes 54 Seconds West, a distance of 508.61 feet to a point; thence North 89 Degrees 35 Minutes 04 Seconds West, a distance of 17.44 feet to a point; thence North 01 Degree 02 Minutes 15 Seconds East, a distance of 347.32 feet to a point; thence North 01 Degree 40 Minutes 42 Seconds East, a distance of 806.52 feet to a point; thence South 88 Degrees 20 Minutes 52 Seconds East, a distance of 378.25 feet to a point; thence North 05 Degrees 37 Minutes 10 Seconds West, a distance of 346.19 feet to a point; thence North 11 Degrees 29 Minutes 23 Seconds West, a distance of 322.44 feet to a point; thence South 82 Degrees 36 Minutes 19 Seconds West, a distance of 230.88 feet to a point; thence North 27 Degrees 24 Minutes 23 Seconds East, a distance of 85.09 feet to a point; thence North 47 Degrees 52 Minutes 51 Seconds East, a distance of 486.51 feet to a point; thence North 77 Degrees 04 Minutes 57 Seconds East, a distance of 157.38 feet to a point; thence South 71 Degrees 44 Minutes 55 Seconds East, a distance of 465.34 feet to a point; thence South 85 Degrees 03 Minutes 59 Seconds East, a distance of 42.15 feet to a point; thence South 71 Degrees 19 Minutes 01 Second East, a distance of 385.82 feet to a point; thence South 69 Degrees 06 Minutes 26 Seconds East, a distance of 715.75 feet to a point; thence South 09 Degrees 53 Minutes 18 Seconds East, a distance of 102.45 feet to a point; thence South 09 Degrees 20 Minutes 41 Seconds West, a distance of 274.61 feet to a point; thence South 04 Degrees 20 Minutes 05 Seconds West, a distance of 270.89 feet to a point; thence South 03 Degrees 46 Minutes 30 Seconds West, a distance of 344.34 feet to a point; thence South 05 Degrees 20 Minutes 02 Seconds West, a distance of 94.08 feet to a point; thence South 04 Degrees 35 Minutes 03 Seconds West, a distance of 544.97 feet to a point; thence South 03 Degrees 32 Minutes 36 Seconds West, a distance of 81.50 feet to a point; thence North 89 Degrees 28 Minutes 33 Seconds West, a distance of 1301.81 feet back to the Point of Beginning. Said tract containing 99.98 Acres, more or less.

(2) Notwithstanding anything in this section to the contrary, at any time and from time to time, the district established in this section may be enlarged, reduced, modified, or eliminated, in whole or part, and the regulations set forth in this section are subject to amendment at any time and from time to time. No vested rights shall be acquired by or be conferred upon any person as a result of the establishment of the district or permitting under this section.

(3) In the event the entertainment district established by this section falls below the number of alcoholic beverage licensees required for the establishment of the district according to section 28-3A-17.1, Code of Ala. 1975, then the city may amend this section to either eliminate the entertainment district or modify the district so as to remain in compliance with section 28-3A-17.1, unless applicable state alcoholic beverage control laws allow for continuance of a once-established district regardless of the number of alcoholic beverage licensees remaining.

(d) *Opening of the district*.

(1) *Regular hours of district.* The regular hours of operation for the arts and entertainment district shall be between the hours of 12:00 noon and 11:00 p.m., daily; provided, however, in the case of New Year's Eve/New Year's Day, the regular hours of operation shall be between the hours of 12:00 noon on December 31st and 1:00 a.m. on January 1st.

(2) *Chapter 23 special event opening of district*.

a. An event organizer of a chapter 23 special event that is an arts and entertainment district event, including an organized event on private property that requires city event services in accordance with section 23-202(d) of this Code, may request, with the organizer's application for a chapter 23 special event permit and on forms provided by the city, that the district be opened during the chapter 23 special event.

b. The request shall be processed with the application for a chapter 23 special event permit and the event organizer, as that term is defined in chapter 23, article VI of this Code, shall be responsible for all costs incurred by the city as a result of the opening of the district during the chapter 23 special event, including safety, traffic and crowd control; clean-up costs; and the use of city equipment. City services necessitated by the conduct of the chapter 23 special event independent of the opening of the district shall be governed by chapter 23, article VI of this Code.

c. The event administrator, as that term is defined in chapter 23, article VI of this Code, shall have the authority to determine whether the proposed event meets the definition of an arts and entertainments district event, based on recommendations that he may elect to obtain from the city's planning division, and to approve, approve with conditions, or disapprove the opening of the district during the special event based on the grounds for denying a special event permit or other public health, safety, or general welfare concerns. No appeal or other right of review shall be available to an event organizer who has had its request to open the district denied.

(3) *City-sponsored opening of the district*. At any time and from time to time the city, through the mayor or his designee, may elect to sponsor the opening of the district.

(e) *Exemptions in the district for on-premise retailers and their customers.* In the case of on-premise retailers who are district permittees and their customers, each of the following shall apply:

(1) The regulations of subsection 3-22(b) of this article, concerning the possession of

an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-22(b) shall apply.

(2) The regulations of subsections 3-24(a) through (c) of this article, concerning removal of an open container from an authorized licensed premise, shall not apply in the case of the removal of an approved container of alcoholic beverages from the premises of an on-premise retailer who is a district permittee during the hours of operation of the district. Otherwise, the regulations of subsections 3-24(a) through (c) shall apply.

(3) The regulations of subsection 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the district area during the hours of operation of the district by a customer wearing an approved wristband. Otherwise, the regulations of subsection 3-24(d) shall apply.

(4) The regulations of subsection 3-25(a) of this article, concerning brown bagging on the premises of another city business licensee, shall not apply in the district area during the hours of operation of the district in the case of alcoholic beverages in an approved container. Otherwise, the regulations of section 3-25(a) shall apply. Nothing in this subsection (4) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk café areas of the city licensee.

(f) *Exemptions in the district for breweries and their customers*. In the case of breweries who are district permittees and their customers, each of the following shall apply:

(1) The regulations of subsection 3-22(b) of this article, concerning the possession of an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of beer in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-22(b) shall apply.

(2) The regulations of subsection 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of beer in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-24(d) shall apply.

(3) The regulations of subsection 3-25(a) of this article, concerning brown bagging on the premises of another city business licensee, shall not apply in the district area during the hours of operation of the district in the case of beer in an approved container. Otherwise, the regulations of section 3-25(a) shall apply. Nothing in this subsection (2) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk café areas of the city licensee.

(g) *Required conduct in the district*.

(1) Nothing in this section shall be construed to relieve a brewery, its servants, agents, or employees from complying with the hours of sale set forth in section 3-133(b) of this article or those set forth in the state alcoholic beverage control laws.

(2) For beer that will be removed from the licensed premises for off-premise consumption, a brewery, its servants, agents, and employees, shall furnish the beer to its customers in authorized unopened containers, which shall remain sealed while on the brewery's licensed premises.

(3) No person shall remove an open container of alcoholic beverages from the district.

(4) All alcoholic beverages possessed or consumed within the district shall be obtained from district permittees.

(5) It shall be unlawful for any person to re-use or to knowingly allow the re-use of an approved container for an alcoholic beverage and nothing in this section shall be construed to authorize the same.

(h) *Permitting*.

(1) *Qualifications*. In order to qualify for a permit under this subsection, an applicant shall meet each of the following conditions:

a. The applicant shall be a city licensee that is an on-premise retailer or a brewery; and

b. No adverse criminal, quasi-criminal, or administrative action shall be pending or shall have been taken in the immediately preceding 12-month period against the city licensee or its owner related to its license or the operation of the city licensed premises.

(2) *Application process; permit duration*. A city licensee that meets the qualification of subsection (1) above may apply with the city-clerk's office to become a district permittee by filling out a form provided by the city. The city clerk-treasurer may deny a permit if the applicant does not meet the qualifications stated in subsection (1) above. The applicant may appeal the denial of the application for a permit to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the denial. A permit shall be valid for a license year, at the end of which a renewal application must be made.

(3) *Action against permit*. A permit may be revoked, suspended, or not renewed by the city clerk-treasurer if the permittee or applicant for renewal no longer meets the qualifications stated in subsection (1) above. The permittee or applicant for renewal may appeal the adverse decision of the city clerk-treasurer to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the adverse action.

(4) *Number of permits*. The chief of police shall have the authority at any time and from time to time to limit the number of district permits issued in a given license year should he, in his discretion, determine that it is in the interest of public, health, safety, or general welfare to do so. In such event, permits shall be issued on a first come, first serve basis based on the time a completed application is submitted to the office of the city clerk-treasurer. If there is a question as to first in time, the city clerk-treasurer is authorized to conduct a random drawing to decide the issue.

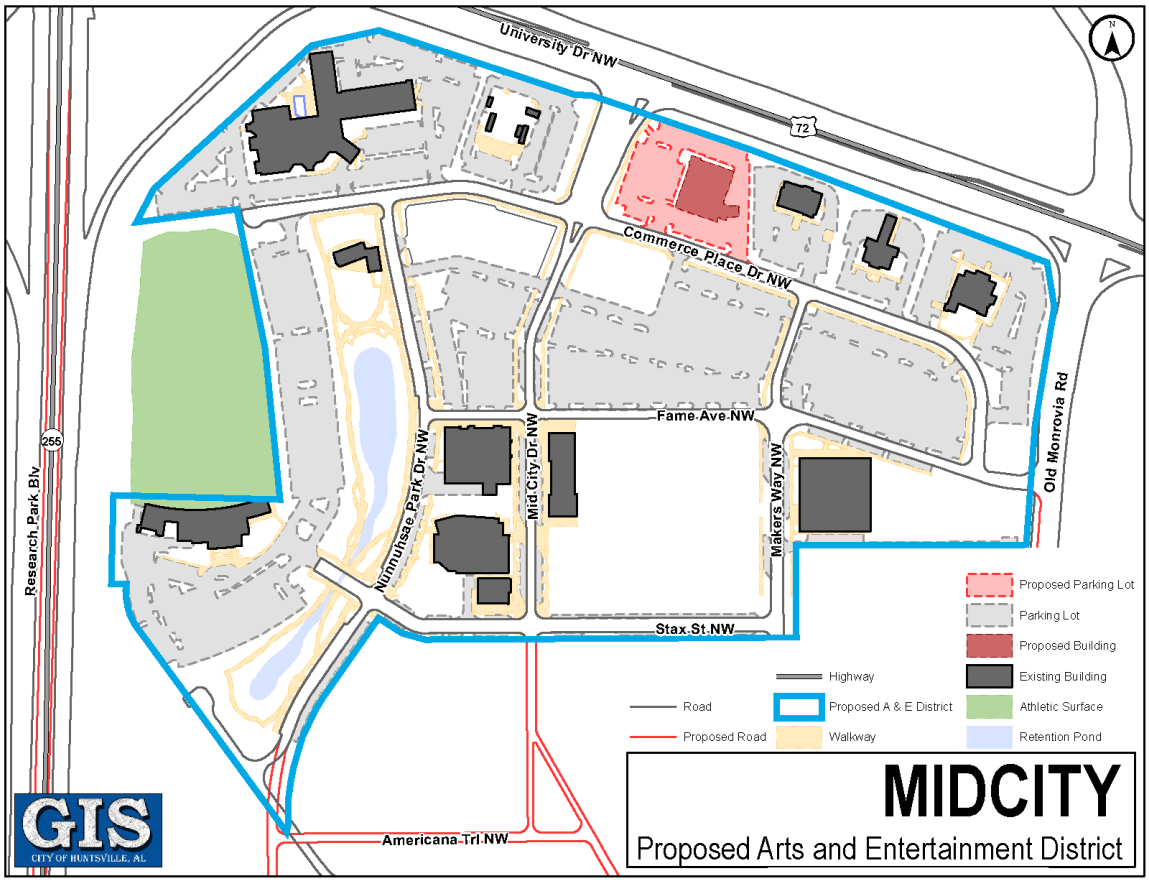
(i) *Security*.

(1) *Temporary closure of district*. At any time and from time to time, the chief of police shall have the authority to temporarily close the district, which includes the authority to require persons to disperse from the area, should he, in his sole discretion, determine it is appropriate to do so in order to protect the public health, safety, or general welfare. The district shall remain closed until the chief of police allows the district to be re-opened. The city shall not be responsible for any costs incurred by any person as a result of the closing and the city shall still be entitled to a reimbursement for city services provided in connection with the opening of the district for a chapter 23 special event.

(j) Nothing in this section shall be construed to authorize any person to violate the state's open container law found at Code of Ala. 1975 § 32-5A-330.

(k) Nothing in this section shall be construed to authorize any person to violate the state and city's laws against under-age drinking.

(l) Nothing in the section shall be construed to authorize a brewery to operate contrary to the state alcoholic beverage control laws governing manufacturers, including Code of Ala. 1975 § 28-3A-6.



(Ord. No. 21-173, § 1, 3-25-2021; Ord. No. 21-1182, § 4, 12-2-2021; Ord. No. 22-270, § 1, 4-28-2022; Ord. No. 24-868, § 1, 11-21-2024)

Sec. 3-31. Bridge Street Arts and Entertainment District.

(a) *Definitions.* The following words, terms, phrases, when used in this section, shall have the meanings ascribed to them in this subsection (a), except where the context clearly indicates a different meaning.

Approved container means a purple colored, non-glass container not exceeding a volume of 16 fluid ounces, which is provided to a customer by the seller who is a district permittee, bearing the name or logo of the permittee.

Arts and entertainment district event means a Chapter 23 special event that meets each of the following criteria:

(1) The event is open to the general public and may or may not include an admission fee for entrance into the event.

(2) The purpose of the event is to promote local arts, culture, or entertainment, through a venue that is consistent with the purpose of the arts and entertainment district.

Brewery means a brewery located within the district that holds a manufacturers license from the ABC board and city, which is authorized by law to sell beer at retail for off-premises consumption.

Chapter 23 special event means a special event governed by Chapter 23, Article VI of this Code.

Customer means an individual who is not a minor, as that term is defined by the state alcoholic beverage control laws, that possesses an alcoholic beverage provided by a district permittee for consumption in the district area during the hours of the operation of the district.

District means the Bridge Street Arts and Entertainment District established hereinafter in subsection (c) of this section, as such district may be from time to time amended.

District area or *area* means public places within the district, except for an excluded public place.

District permittee or *permittee* means the holder of a permit issued by the city pursuant to subsection (h) of this section.

Excluded public place means a public place within the district that is not included within the district area as follows:

(1) A public building, facility, garage, or parking lot that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(2) Property privately owned or controlled that is posted with signage at each entrance or in conspicuous places that no open containers of alcoholic beverages are allowed on the premises;

(3) An area being used for a Chapter 23 special event that is posted with signage at each entrance or in conspicuous places occupied by the event that no open containers of alcoholic beverages are allowed on the premises;

(4) An area being used for a Chapter 23 special event that is licensed to sell alcoholic beverages; or

(5) The premises of a city licensee.

On-premise retailer means an on-premise alcoholic beverage retailer located within the district that holds a license from the state and city authorizing the retail sale of alcoholic beverages for on-premise consumption.

(b) *Purpose.*

(1) *Purpose of section.* The purpose of this section is as follows:

a. With regard to on-premise retailers, to establish a district authorized by section 28-3A-17.1, Code of Ala. 1975, within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under subsection 3-22(b),

regulations against removal of open containers under subsections 3-24(a) through (c), regulations against allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under subsection 3-24(d), and regulations against brown bagging on the premises of another city business licensee under subsection 3-25(a);

b. With regard to breweries, to establish a district within which certain conduct that is otherwise prohibited by this article is permitted, specifically, regulations against possessing an open container and drinking in a public place under subsection 3-22(b), regulations against allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee under subsection 3-24(d), and regulations against brown bagging on the premises of another city business licensee under subsection 3-25(a); and

c. To establish regulations governing the district.

(2) *Purpose of arts and entertainment district.* In addition to the foregoing, the purpose of establishing an arts and entertainment district is to enhance the public enjoyment of the district and to promote local arts, culture, and entertainment, while, at the same time, protecting existing uses and preserving the unique character of each district.

(c) *Bridge Street Arts and Entertainment District established.*

(1) Subject to subsections (2) and (3) of this subsection (c), there is hereby established the following named and generally described district, the Bridge Street Arts and Entertainment District, which is also shown on the appended map incorporated herein by reference, which district shall constitute an entertainment district pursuant to section 28-3A-17.1, Code of Ala. 1975:

All that part of the Southwest Quarter of Section 06, Township 04 South, Range 01 West of the Huntsville Meridian, Madison County, Alabama; particularly described as commencing at the Southwest Corner of said Section 06; thence from the Point of Commencement, North 73 Degrees 09 Minutes 47 Seconds East, a distance of 2179.97 feet to the Point of Beginning of the following described tract of land; Thence from the Point of Beginning, South 01 Degree 31 Minutes 03 Seconds West, a distance of 19.08 feet; thence North 88 Degrees 28 Minutes 57 Seconds West, a distance of 39.34 feet; thence North 64 Degrees 39 Minutes 13 Seconds West, a distance of 27.38 feet; thence North 88 Degrees 07 Minutes 22 Seconds West, a distance of 15.89 feet; thence South 68 Degrees 11 Minutes 56 Seconds West, a distance of 26.65 feet; thence North 88 Degrees 20 Minutes 41 Seconds West, a distance of 45.07 feet; thence North 00 Degrees 46 Minutes 28 Seconds West, a distance of 19.27 feet; thence North 87 Degrees 58 Minutes 23 Seconds West, a distance of 348.81 feet; thence North 88 Degrees 37 Minutes 30 Seconds West, a distance of 265.36 feet; thence North 02 Degrees 29 Minutes 41 Seconds East, a distance of 136.28 feet; thence South 88 Degrees 13 Minutes 51 Seconds East, a distance of 217.16 feet; thence North 00 Degrees 00 Minutes 00 Seconds East, a distance of 93.56 feet; thence North 29 Degrees 10 Minutes 39 Seconds East, a distance of 31.02 feet; thence North 71 Degrees 53 Minutes 24 Seconds East, a distance of 43.56 feet; thence North 90 Degrees 00 Minutes 00 Seconds East, a distance of 10.68 feet; thence North 07 Degrees 51 Minutes 12 Seconds West, a distance of 71.15 feet; thence South 90 Degrees 00 Minutes 00 Seconds East, a distance of 53.86 feet; thence North 00 Degrees 00 Minutes 00 Seconds East, a distance of 16.67 feet; thence North 90

Degrees 00 Minutes 00 Seconds East, a distance of 14.75 feet; thence North 00 Degrees 00 Minutes 00 Seconds East, a distance of 69.78 feet; thence North 78 Degrees 57 Minutes 36 Seconds West, a distance of 16.96 feet; thence North 05 Degrees 49 Minutes 38 Seconds East, a distance of 23.41 feet to a point at the beginning of a curve to the left; thence along said curve with a radius of 56.22 feet; a chord bearing and chord distance of North 42 Degrees 43 Minutes 55 Seconds West, 67.94 feet; thence North 86 Degrees 57 Minutes 52 Seconds West, a distance of 39.61 feet; thence North 02 Degrees 27 Minutes 14 Seconds East, a distance of 33.63 feet; thence North 87 Degrees 32 Minutes 46 Seconds West, a distance of 288.08 feet; thence North 02 Degrees 27 Minutes 14 Seconds East, a distance of 243.52 feet; thence North 87 Degrees 32 Minutes 46 Seconds West, a distance of 50.54 feet; thence North 02 Degrees 27 Minutes 14 Seconds East, a distance of 57.23 feet; thence South 66 Degrees 27 Minutes 41 Seconds East, a distance of 56.54 feet; thence South 87 Degrees 38 Minutes 29 Seconds East, a distance of 303.73 feet; thence North 02 Degrees 21 Minutes 31 Seconds East, a distance of 37.16 feet; thence South 87 Degrees 38 Minutes 29 Seconds East, a distance of 165.96 feet; thence North 07 Degrees 47 Minutes 44 Seconds West, a distance of 92.08 feet; thence South 80 Degrees 16 Minutes 21 Seconds West, a distance of 24.66 feet; thence North 09 Degrees 27 Minutes 44 Seconds West, a distance of 81.27 feet; thence South 79 Degrees 17 Minutes 54 Seconds West, a distance of 25.73 feet; thence North 17 Degrees 44 Minutes 03 Seconds West, a distance of 17.95 feet; thence North 32 Degrees 40 Minutes 50 Seconds West, a distance of 43.73 feet; thence North 05 Degrees 42 Minutes 38 Seconds West, a distance of 13.96 feet; thence North 01 Degree 43 Minutes 48 Seconds East, a distance of 241.99 feet; thence North 03 Degrees 29 Minutes 42 Seconds East, a distance of 79.66 feet; thence North 01 Degree 37 Minutes 32 Seconds East, a distance of 232.73 feet to a point at the beginning of a curve to the right; thence along said curve with a radius of 33.07 feet; a chord bearing and chord distance of North 49 Degrees 23 Minutes 55 Seconds East, 44.82 feet; thence South 88 Degrees 07 Minutes 18 Seconds East, a distance of 339.07 feet to a point at the beginning of a curve to the right; thence along said curve with a radius of 46.74 feet; a chord bearing and chord distance of South 44 Degrees 33 Minutes 21 Seconds East, 63.35 feet; thence South 02 Degrees 07 Minutes 26 Seconds West, a distance of 265.19 feet to a point at the beginning of a curve to the left; thence along said curve with a radius of 44.39 feet; a chord bearing and chord distance of South 50 Degrees 13 Minutes 08 Seconds East, 55.71 feet; thence South 87 Degrees 39 Minutes 47 Seconds East, a distance of 319.27 feet; thence South 02 Degrees 20 Minutes 14 Seconds West, a distance of 63.46 feet; thence South 87 Degrees 39 Minutes 46 Seconds East, a distance of 104.61 feet; thence South 02 Degrees 20 Minutes 14 Seconds West, a distance of 112.40 feet; thence North 87 Degrees 39 Minutes 46 Seconds West, a distance of 91.84 feet; thence South 02 Degrees 20 Minutes 14 Seconds West, a distance of 46.91 feet to a point at the beginning of a curve to the right; thence along said curve with a radius of 103.40 feet; a chord bearing and chord distance of South 87 Degrees 07 Minutes 54 Seconds East, 104.67 feet; thence South 04 Degrees 43 Minutes 44 Seconds West, a distance of 615.77 feet; thence North 88 Degrees 26 Minutes 43 Seconds West, a distance of 239.83 feet; thence South 01 Degree 33 Minutes 17 Seconds West, a distance of 144.59 feet; thence South 88 Degrees 26 Minutes 43 Seconds East, a distance of 58.27 feet; thence South 01 Degree 33 Minutes 17 Seconds West, a distance of 334.71 feet; thence North 88 Degrees 26 Minutes 45 Seconds West, a

distance of 228.70 feet back to the Point of Beginning and containing 30.86 acres, more or less.

Less and Except the following from the above described tract:

All that part of the Southwest Quarter of Section 06, Township 04 South, Range 01 West of the Huntsville Meridian, Madison County, Alabama; particularly described as commencing at the Southwest Corner of said Section 06; thence from the Point of Commencement, North 67 Degrees 29 Minutes 18 Seconds East, a distance of 1718.68 feet to the Point of Beginning of the following described tract of land; thence from the Point of Beginning, North 88 Degrees 34 Minutes 19 Seconds West, a distance of 32.96 feet to a point at the beginning of a curve to the left; thence along said curve with a radius of 67.58 feet; a chord bearing and chord distance of North 22 Degrees 39 Minutes 51 Seconds East, 16.83 feet; thence North 01 Degree 24 Minutes 26 Seconds East, a distance of 109.53 feet; thence North 88 Degrees 13 Minutes 51 Seconds West, a distance of 10.05 feet; thence North 00 Degrees 00 Minutes 00 Seconds East, a distance of 89.96 feet; thence North 28 Degrees 54 Minutes 00 Seconds East, a distance of 22.27 feet; thence North 71 Degrees 53 Minutes 24 Seconds East, a distance of 20.41 feet; thence South 87 Degrees 39 Minutes 40 Seconds East, a distance of 155.43 feet; thence North 59 Degrees 28 Minutes 53 Seconds East, a distance of 70.69 feet; thence South 86 Degrees 39 Minutes 22 Seconds East, a distance of 75.12 feet; thence South 03 Degrees 20 Minutes 38 Seconds West, a distance of 22.12 feet; thence South 86 Degrees 39 Minutes 22 Seconds East, a distance of 17.37 feet; thence South 03 Degrees 20 Minutes 38 Seconds West, a distance of 82.15 feet; thence North 86 Degrees 39 Minutes 22 Seconds West, a distance of 106.36 feet; thence South 03 Degrees 20 Minutes 38 Seconds West, a distance of 35.40 feet; thence North 86 Degrees 39 Minutes 22 Seconds West, a distance of 71.87 feet; thence North 03 Degrees 20 Minutes 38 Seconds East, a distance of 25.90 feet; thence North 86 Degrees 39 Minutes 22 Seconds West, a distance of 77.47 feet; thence North 03 Degrees 20 Minutes 38 Seconds East, a distance of 21.20 feet; thence North 86 Degrees 39 Minutes 22 Seconds West, a distance of 38.16 feet; thence South 01 Degree 50 Minutes 04 Seconds West, a distance of 190.95 feet back to the Point of Beginning and containing 0.78 acres, more or less.

(2) Notwithstanding anything in this section to the contrary, at any time and from time to time, the district established in this section may be enlarged, reduced, modified, or eliminated, in whole or part, and the regulations set forth in this section are subject to amendment at any time and from time to time. No vested rights shall be acquired by or be conferred upon any person as a result of the establishment of the district or permitting under this section.

(3) In the event the entertainment district established by this section falls below the number of alcoholic beverage licensees required for the establishment of the district according to section 28-3A-17.1, Code of Ala. 1975, then the city may amend this section to either eliminate the entertainment district or modify the district so as to remain in compliance with section 28-3A-17.1, unless applicable state alcoholic beverage control laws allow for continuance of a once-established district regardless of the number of alcoholic beverage licensees remaining.

(d) *Opening of the district.*

(1) Regular hours of district. The regular hours of operation for the entertainment district shall be between the hours of 4:00 pm to 10:00 pm on Thursday and between the hours of 12:00 noon to 10:00 p.m. on Friday, Saturday, and Sunday.

(2) Chapter 23 special event opening of district.

a. An event organizer of a Chapter 23 special event that is an arts and entertainment district event, including an organized event on private property that requires city event services in accordance with section 23-202(d) of this Code, may request, with the organizer's application for a Chapter 23 special event permit and on forms provided by the city, that the district be opened during the chapter 23 special event.

b. The request shall be processed with the application for a Chapter 23 special event permit and the event organizer, as that term is defined in Chapter 23, Article VI of this Code, shall be responsible for all costs incurred by the city as a result of the opening of the district during the Chapter 23 special event, including safety, traffic and crowd control; clean-up costs; and the use of city equipment. City services necessitated by the conduct of the Chapter 23 special event independent of the opening of the district shall be governed by Chapter 23, Article VI of this Code.

c. The event administrator, as that term is defined in Chapter 23, Article VI of this Code, shall have the authority to determine whether the proposed event meets the definition of an arts and entertainments district event, based on recommendations that he may elect to obtain from the city's planning division, and to approve, approve with conditions, or disapprove the opening of the district during the special event based on the grounds for denying a special event permit or other public health, safety, or general welfare concerns. No appeal or other right of review shall be available to an event organizer who has had its request to open the district denied.

(3) City-sponsored opening of the district. At any time and from time to time the city, through the mayor or his designee, may elect to sponsor the opening of the district.

(e) *Exemptions in the district for on-premise retailers and their customers.* In the case of on-premise retailers who are district permittees and their customers, each of the following shall apply:

(1) The regulations of subsection 3-22(b) of this article, concerning the possession of an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-22(b) shall apply.

(2) The regulations of subsections 3-24(a) through (c) of this article, concerning removal of an open container from an authorized licensed premise, shall not apply in the case of the removal of an approved container of alcoholic beverages from the premises of an on-premise retailer who is a district permittee during the hours of operation of the district. Otherwise, the regulations of subsections 3-24(a) through (c) shall apply.

(3) The regulations of subsection 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of alcoholic beverages in an approved container within the confines of the district area during the hours of operation of the district by a customer wearing an approved wristband. Otherwise, the regulations of subsection 3-24(d) shall apply.

(4) The regulations of subsection 3-25(a) of this article, concerning brown bagging on the premises of another city business licensee, shall not apply in the district

area during the hours of operation of the district in the case of alcoholic beverages in an approved container. Otherwise, the regulations of section 3-25(a) shall apply. Nothing in this subsection (4) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk café areas of the city licensee.

(f) *Exemptions in the district for breweries and their customers.* In the case of breweries who are district permittees and their customers, each of the following shall apply:

(1) The regulations of subsection 3-22(b) of this article, concerning the possession of an open container or drinking an alcoholic beverage in a public place, shall not apply in the case of the possession or consumption of beer in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-22(b) shall apply.

(2) The regulations of subsection 3-24(d) of this article, concerning allowing an open container or consumption of alcoholic beverages on the parking area of a city licensee, shall not apply in the case of the possession or consumption of beer in an approved container within the confines of the district area during the hours of operation of the district. Otherwise, the regulations of subsection 3-24(d) shall apply.

(3) The regulations of subsection 3-25(a) of this article, concerning brown bagging on the premises of another city business licensee, shall not apply in the district area during the hours of operation of the district in the case of beer in an approved container. Otherwise, the regulations of section 3-25(a) shall apply. Nothing in this subsection (2) shall be construed to allow brown bagging on city licensed premises, which includes patios or sidewalk café areas of the city licensee.

(g) *Required conduct in the district.*

(1) Nothing in this section shall be construed to relieve a brewery, its servants, agents, or employees from complying with the hours of sale set forth in section 3-133(b) of this article or those set forth in the state alcoholic beverage control laws.

(2) For beer that will be removed from the licensed premises for off-premise consumption, a brewery, its servants, agents, and employees, shall furnish the beer to its customers in authorized unopened containers, which shall remain sealed while on the brewery's licensed premises.

(3) No person shall remove an open container of alcoholic beverages from the district.

(4) All alcoholic beverages possessed or consumed within the district shall be obtained from district permittees.

(5) It shall be unlawful for any person to re-use or to knowingly allow the re-use of an approved container for an alcoholic beverage and nothing in this section shall be construed to authorize the same.

(h) *Permitting.*

(1) *Qualifications.* In order to qualify for a permit under this subsection, an applicant shall meet each of the following conditions:

a. The applicant shall be a city licensee that is an on-premise retailer or a brewery; and

b. No adverse criminal, quasi-criminal, or administrative action shall be pending or shall have been taken in the immediately preceding 12-month period against the city licensee or its owner related to its license or the operation of the city licensed premises.

(2) *Application process; permit duration.* A city licensee that meets the qualification of subsection (1) above may apply with the city-clerk's office to become a district permittee by filling out a form provided by the city. The city clerk treasurer may deny a permit if the applicant does not meet the qualifications stated in subsection (1) above. The applicant may appeal

the denial of the application for a permit to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the denial. A permit shall be valid for a license year, at the end of which a renewal application must be made.

(3) *Action against permit.* A permit may be revoked, suspended, or not renewed by the city clerk-treasurer if the permittee or applicant for renewal no longer meets the qualifications stated in subsection (1) above. The permittee or applicant for renewal may appeal the adverse decision of the city clerk-treasurer to the liquor license review committee by filing a written notice of appeal with the city clerk-treasurer within 15 days after the adverse action.

(4) *Number of permits.* The chief of police shall have the authority at any time and from time to time to limit the number of district permits issued in a given license year should he, in his discretion, determine that it is in the interest of public, health, safety, or general welfare to do so. In such event, permits shall be issued on a first come, first serve basis based on the time a completed application is submitted to the office of the city clerk-treasurer. If there is a question as to first in time, the city clerk-treasurer is authorized to conduct a random drawing to decide the issue.

(i) *Security.*

(1) *Temporary closure of district.* At any time and from time to time, the chief of police shall have the authority to temporarily close the district, which includes the authority to require persons to disperse from the area, should he, in his sole discretion, determine it is appropriate to do so in order to protect the public health, safety, or general welfare. The district shall remain closed until the chief of police allows the district to be re-opened. The city shall not be responsible for any costs incurred by any person as a result of the closing and the city shall still be entitled to a reimbursement for city services provided in connection with the opening of the district for a Chapter 23 special event.

(j) Nothing in this section shall be construed to authorize any person to violate the state's open container law found at § 32-5A-330, Code of Ala. 1975.

(k) Nothing in this section shall be construed to authorize any person to violate the state and city's laws against under-age drinking.

(l) Nothing in the section shall be construed to authorize a brewery to operate contrary to the state alcoholic beverage control laws governing manufacturers, including § 28-3A-6 Code of Ala. 1975.
(Ord. No. 22-300, § 1, 5-12-2022)

Secs. 3-32—3-50. Reserved.

ARTICLE III. LICENSES

DIVISION 1. GENERALLY

Sec. 3-51. City license required; application of business license chapter.

(a) It shall be unlawful for any person who has not been licensed to do so under the appropriate provisions of this chapter to sell, offer for sale, or have in his possession for the purpose of sale any alcoholic beverages.

(b) All applicable provisions of chapter 15 of this Code, not inconsistent with the provisions of this chapter, are hereby referred to and made a part of this chapter to the same extent as if herein set out in full.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-52. Transfer of state license; new city license required.

(a) No city license issued under the provisions of this chapter shall be transferred or assigned from one location to another or from one licensee to another person.

(b) Where a city licensee makes application with the ABC board for a transfer of its state license from one location to another or from one licensee to another person, then the transferee must obtain approval from the city for the state transfer and, in addition, must apply for a new city license for the new location or new person and meet all the requirements of this chapter for the new license. The transferee shall have 60 days from the date the transfer application is made with the state to complete the transfer process and obtain a new city license, subject to extensions granted by the city clerk-treasurer upon written request for good cause shown. In the case of a location transfer, no business regulated by this chapter shall be conducted at the proposed location until the process is complete and a new license has been issued for the new location.

(c) In the case of failure to complete the transfer process and obtain a new city license in a timely manner, where the ABC board in accordance with state alcoholic beverage control laws allows the original licensee to resume control and operation of the licensed premises, then the original city licensee shall also be allowed to resume its operations at the original location.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-53. Change of ownership, management, or name of licensee; expansion of city licensed premises.

(a) *Change of ownership, etc.* Subject to section 3-52 concerning state transfers and new city licenses, city licenses shall be deemed to expire, terminate, or otherwise be void when there is a substantial change of ownership in the licensee; when a licensed establishment is leased, rented, or abandoned; or when possession is otherwise surrendered to another person. A city license issued to a corporation does not terminate by transfer of ownership of its stock, and a new license is not required even with a complete change in ownership of the capital stock of a corporate licensee, although the provisions of subsection (d), below, shall apply.

(b) *Temporary closure or interruption.* Upon the death of an individual city licensee, sale of the licensed business, temporary closing of the licensed business, or other interruption in the operation of a licensed business, the city license shall immediately be delivered to the city clerk-treasurer, to be held pending the reopening of said business according to this chapter. However, where there is a surviving partner in a partnership entity possessing a city license, or a surviving spouse of a deceased licensee, such survivor may complete the current license year operating as a city licensee, having the same rights and responsibilities as the named licensee, without obtaining a new city license, provided: (1) the survivor notifies the city clerk-treasurer in writing within 20 days after the death of the licensee, and (2) the survivor is otherwise qualified to hold a city license. A surviving spouse or partner must complete a new application in his/her own name and receive approval prior to operation the next license year.

(c) *New officers or directors of licensed corporations.* When a licensed corporation elects new officers or directors, said corporation shall notify the city clerk-treasurer in writing within 20 days thereafter. Such notification shall contain the names, positions, social security numbers, places of birth, dates of birth, home addresses, and how long the newly-elected officials have lived at said addresses. No person shall serve as a director or officer of a licensed corporation who is otherwise unqualified to obtain an original city license in their own name, and the city license shall be subject to action being taken against the license, where the person continues to hold the position of director or officer with the licensed corporation. This section shall not apply to corporations whose shares are customarily and regularly traded or sold on recognized stock exchanges.

(d) *New shareholders of licensed corporations.* When ownership of 20 percent or more of a corporation's shares is transferred or there accrues a 20 percent transfer of shares since the licensing year began, a corporation shall notify the city-treasurer in writing within 20 days thereafter. The letter shall contain the name of the persons to whom the stock was transferred, social security number, place of birth, date of birth, home

address, how long the stock transferee has lived at that address, and what quantity of shares was transferred. No person shall own shares through transfer or accrual in a licensed corporation who is otherwise unqualified to obtain an original city license in their own name. The license review committee shall have discretion in determining the qualifications of any transferee of stock shares, and may, in its discretion, suspend the corporation's license during the period of time that the unqualified shareholder retains ownership of said shares, subject to the right of appeal to the city council in accordance with section 3-91. This section shall not apply to corporations whose shares are customarily and regularly traded or sold on recognized stock exchanges.

(e) *Noncorporate licensees.* When a noncorporate licensee has a change of ownership effecting 20 percent or more thereof, the licensee shall notify the city clerk-treasurer in writing within 20 days thereafter, and a new application shall be submitted by the new entity created by such change of ownership. No person shall become the owner or otherwise be interested in the operation of a noncorporate city licensed premises who is otherwise unqualified to obtain an original license in their own name.

(f) *Additional information.* Additional information concerning licensed businesses and persons associated therewith shall be submitted when requested by the city clerk-treasurer.

(g) *Change of trade name.* In the event a city licensee changes its trade name during a license year, the licensee must notify the city clerk-treasurer within 20 days of such change.

(h) *Expansion of licensed premises.* All expansions of city licensed premises shall be subject to the city's approval. Whenever a licensee proposes to expand its city licensed premises it shall make application therefor with the city clerk-treasurer and shall submit such relevant information as the city clerk-treasurer may require. The application for expansion shall be considered by the license review committee, on behalf of the city council, in accordance with this article and the committee's decision is subject to the same right of appeal as for original license applications.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-54. Duration.

Licenses issued under the provisions of this chapter shall be valid for the license year which shall begin on January 1 of each year and expire on December 31 of each year.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-55. Licenses conditional.

(a) All licenses issued pursuant to this chapter shall be conditioned upon the holder thereof continuing to meet the requirements and qualifications of licensing and, failing therein, it shall be a violation of this chapter.

(b) All licenses issued under this chapter shall be conditioned upon the holder thereof being duly licensed by the ABC board and any failure to be so licensed or any suspension or revocation of such licensing shall cause an automatic denial, suspension, or revocation of a city license without the need for notice or an opportunity to be heard. Where a suspended state ABC board license is reinstated, then the city's license shall be automatically reinstated unless the city takes action against the city license.
(Ord. No. 11-654, § 1, 9-22-2011)

Secs. 3-56—3-80. Reserved.

DIVISION 2. APPLICATION, LICENSING REQUIREMENTS, ETC.

Sec. 3-81. Classification and qualifications of licensing.

(a) *Classifications.* Subject to subsection (b) of this section, upon approval of an application, the city clerk-treasurer is authorized to issue alcoholic beverage licensing in accordance with the classifications and qualifications established by the state alcoholic beverage control laws and this chapter.

(b) *Zoning requirements.* Where the city's zoning laws, which includes variances or special exceptions granted pursuant thereto, establish certain requirements, qualifications, or conditions for city licensees or city licensed premises, which includes the requirement that an on-premises retailer maintain a minimum in sales of meals or other items, it shall be a requirement, qualification, or condition for licensing under this chapter, and failure to comply therewith shall constitute a violation of this chapter.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-82. Application filing fee for license.

There is required, as a filing fee to cover the costs of processing and investigating each application filed with the city for an alcoholic beverage license of any kind or class, the sum of $100.00; and the city clerk-treasurer shall not accept any application for any such license not accompanied by payment to the city. The filing fee shall be retained by the city to cover the expenses of processing and investigating the application, whether or not the application results in approval or denial; however, the filing fee for special events license applications shall be $25.00.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-83. When application for license refused.

(a) The city clerk-treasurer shall not accept an application for an alcoholic beverage license from any applicant which has had a license application for the same classification of license at the same location denied within 180 days immediately preceding the date of application; however, the liquor license review committee may vote to consider any such application upon written request where the committee finds a substantial change in the ownership or circumstances with respect to the application. The committee's decision regarding whether to so consider such application is final.

(b) The city clerk-treasurer shall not accept an application for an alcoholic beverage license from an applicant whose state license has been denied, or is under suspension or revocation.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-84. Application.

(a) *Generally.* Each applicant for a license shall make application to the city as required in this section. The application shall be upon an appropriate form supplied by the city clerk-treasurer for such purpose and shall be signed and verified by oath or affirmation by the owner if a natural person or, in the case of an association, partnership, or limited liability company, by a member or partner, or in the case of a corporation by an executive officer, or any person specifically authorized by the corporation to sign the application to which shall be attached written evidence of his authority.

(b) *Contents generally.*

(1) For purposes of this subsection (b), the term information shall mean information of any kind or in any form specified by the application, which may include but is not necessarily limited to documentation, statements, certifications, evidence, site plans, reports, and instruments.

(2) Every applicant for a license, in addition to information required under the state alcoholic beverage control laws, which includes the rules and regulations promulgated by the ABC board governing applications, shall also provide, as part of such application, information which the city clerk-treasurer determines is relevant for a determination of qualification of licensing and compliance with this chapter and the laws of the state and city, which includes detailed information about:

a. The applicant, which includes formation documents for a business or non-profit entity;

b. Persons having ownership, control, or management of or an interest in the establishment to be licensed, which includes identifying information, residency history, contact information, background information, and criminal history;

c. The funding of the business;

d. Past licensing;

e. The proposed city licensed premises, which includes its location and a site plan that includes patios and parking areas;

f. On-premises meal preparation and service, which, in the case of mandatory on-premises meal preparation and service, shall include the description of a fully functional kitchen;

g. Premises operation, which includes security personnel and their background, which includes criminal history; and

h. The ownership or lease of the proposed city licensed premises, which includes, in the case of a tenancy, the landlord and his interest in or control of the proposed licensee, if any.

(c) *Security plan.*

(1) For purposes of this subsection (c) the term *approved security plan* means the security plan approved by the chief of police in accordance with this subsection, as such plan may be amended from time to time as hereinafter provided. The approved security plan shall constitute the minimum security measures which must be taken by the licensee and nothing in this subsection (c) shall be construed to prevent the licensee, at any time and from time to time, from implementing additional or more stringent security measures above the minimum approved security plan without the need to obtain the approval of the chief of police.

(2) An applicant for an on-premises license with a maximum occupancy exceeding 250 persons shall submit a proposed security plan with its application. The plan shall explain in detail the security measures which the applicant proposes to use for the proposed city licensed premises and proposed licensee's parking area, which includes security personnel, methods of crowd control, prevention of underage drinking, access control of minors under the age of 19 in the case of class I lounge liquor retailers, security lighting, and such other security measures the chief of police may require based on the proposed location, the class of license, the proposed occupancy number, prior history, and whether the establishment will have entertainment.

(3) The plan shall be subject to the approval of the chief of police and, once approved, shall be a qualification for and condition of licensing. It shall be a violation of this chapter for the licensee to fail to follow the approved security plan.

(4) At any time or from time to time the licensee may request in writing that the chief of police reduce the approved security measures contained in the approved security plan where the applicant is able to demonstrate to the satisfaction of the police chief that the remaining security measures are adequate under the circumstances to protect the public health, safety, and general welfare. At any time and from time to time the police chief may require an enhancement in the security measures contained in the approved security plan where he determines such enhancement is required in order to protect the public health, safety, or general welfare due to occurrences on the licensed premises or licensee's parking area.

(d) *Fingerprints.* As a part of the application process the city clerk-treasurer may require that persons having ownership, control, or management of or an interest in the establishment to be licensed, as well as its security personnel, submit fingerprints to the chief of police who shall forward the fingerprints to the appropriate agencies for identification and investigation.

(e) *Duty to update.* Subject to section 3-53, a licensee shall have an ongoing duty to notify the city clerk-treasurer in writing of any applicable changes in: (1) the persons having ownership, control, or management of or an interest in the licensee, (2) the licensee's security personnel,

and (3) the landlord and his interest in or control of the licensee. The licensee may be required to make application for such changes, which shall be processed as for an original application, subject to the same rights of appeal.

(f) *False information.* It shall be unlawful for an applicant to knowingly submit false or incorrect information with an application. In the event any false, incorrect, or incomplete information is found on an application for a license, the license is subject to denial, action being taken against it, or other appropriate action, and no waiver, estoppel, or laches will run against the city, in connection with any false, incorrect, or incomplete information made by an applicant on an application.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-85. Notice.

(a) All applicants for a license shall provide written notification in accordance with this section to all current owners of real property, as shown in the records on file in the tax assessor's office, and occupants of residential dwellings, which are located within 500 feet of the property to be licensed, which includes the proposed licensee's parking area, as measured from the external boundary of the property to be licensed, which includes the proposed licensee's parking area.

(b) The notice shall include the date and time the application is scheduled to be voted on by the license review committee, the location of the meeting, and such other information the city clerk-treasurer may require, which includes the right of interested persons to appear before the committee, and also of their right to appeal any ruling of the committee to the city council. Notice shall be sent via U.S. Mail, proper postage prepaid to said owners and occupants and notice shall be completed at least one week before the meeting at which the application is scheduled to be acted upon by the committee.

(c) The applicant shall file with the city clerk-treasurer a list of the names and street addresses to which notice was sent and shall certify that the required notice was given. In lieu of notice being sent by first class mail, the city clerk-treasurer is authorized to require that notice be sent by certified mail, return receipt requested, as proof of delivery, which proof shall be submitted to the city clerk-treasurer upon request.

(d) Nothing herein shall be construed to prevent, as a part of the investigation required in section 3-86, the city clerk-treasurer or chief of police from contacting or notifying owners or occupants of real property adjacent to or in the vicinity of the proposed city licensed premises about the pending application and to advise them of their right to be heard on the application.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-86. Investigations.

Upon receipt of a completed application the city clerk-treasurer and chief of police shall each conduct or cause to be conducted an investigation and inquire into all matters and things contained in the application as well as other matters relevant to the pending application and to submit their findings to the license review committee for its consideration, on behalf of the city council, after the investigation is complete, together with recommendations for action.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-87. License review committee.

(a) There is created, for the purpose of assisting the city council in reviewing and approving applications for licenses and performing other matters specifically assigned to the committee by this chapter, a committee to be known as the license review committee. The committee shall assist the city council in the consideration and special investigation of all applications for licensing under this chapter. The committee shall be composed of the city clerk-treasurer or an administrative officer of the clerk-treasurer's office designated by the city clerk-treasurer; the chief of police or an officer of the police department designated by the chief of police; and the director of planning or an employee of the planning department designated by the director of planning.

(b) The committee shall meet on the first and third Thursday of each month to review applications which are in order for consideration. Prior to acting upon any application, the committee shall hold a hearing at which the applicant or his representative, any person required to receive notice of the meeting, and any member of the public who wishes may be heard on the application.

(c) The committee, based upon the factors set forth in section 3-89, may, on behalf of the city council, approve or deny an application. However, no license application may be acted upon at the same meeting where it is introduced. In approving a license the committee may attach reasonable conditions, not inconsistent with this chapter or the state alcoholic beverage control laws, which it deems necessary for the public health, safety, and general welfare.

(d) If an application for a license is denied by the committee, the applicant may appeal to the city council by filing a notice of appeal with the city clerk-treasurer prior to the next regular meeting of the council. In the event an application for a license is approved, any member of the public, which includes owners or occupants of nearby property, may appeal to the city council by filing a notice of appeal with the city clerk-treasurer prior to the next regular meeting of the council. The city council shall set a hearing on any such appeal within a reasonable time. The decision of the council shall be final.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-88. Appeal to city council.

(a) Upon receipt of an appeal from the license review committee, the city clerk-treasurer will notify the city council of the appeal and the city council shall set a hearing on any such appeal within a reasonable time thereafter. Notice of the date and time of the appeal shall be given to the appellant, the applicant if different than the appellant, and any person, willing to provide his address, that provided testimony for or against an application to the liquor license review committee. At the hearing on the appeal, all interested persons, which include but are not necessarily limited to those persons notified of the hearing, shall have the right to present evidence, the right to introduce witnesses, and the right to be represented by an attorney.

(b) The city council shall render a decision within 30 days after the conclusion of the hearing. In approving a license the city council may attach reasonable conditions, not inconsistent with this chapter or the state alcoholic beverage control laws, which it deems necessary for the public health, safety, and general welfare. The city council's decision shall be final.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-89. Qualification for licensing.

(a) In considering the application for a city license, whether by the liquor license review committee or the city council on appeal, all relevant factors may be considered, which includes, among others and without limitation, the following:

(1) Compliance with this chapter and the state alcoholic beverage control laws, which includes classification specific requirements or qualifications for licensing;

(2) Compliance with other city ordinances, rules, and regulations, which includes the city's zoning laws and any variances or special exceptions granted pursuant thereto;

(3) Suitability of the applicant and persons having ownership, control, or management of or an interest in the establishment to be licensed;

(4) Any required security plan and suitability of security personnel;

(5) Location of the premises, which includes adjacent or nearby uses;

(6) Information contained in the application, which includes criminal history;

(7) Results of the investigation conducted in accordance with section 3-86;

(8) Testimony presented at any hearings conducted on the application, which

includes testimony of the owners or occupants of nearby property as well as the general public; and

(9) Impact upon the welfare, health, peace, temperance, morals, and safety of the public.

(b) In an appeal to the city council, the city council may consider the decision of the license review committee and any reasons given therefor.

(c) No applicant shall be deemed eligible for a license under this chapter nor shall an application be approved without having first obtained all required permits from the health department, and without fully meeting applicable requirements of the technical codes of the city, the fire prevention codes of the state and of the city, the zoning laws of the city, and other applicable city laws which regulate the business or the premises.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-90. Issuance of license; security.

(a) Upon the approval of a license, the city clerk-treasurer shall issue the license to the applicant upon the payment of the required fee. Before any city license may be issued to a retailer that sells liquor for on-premises consumption, except for a special events retailer, such licensee shall deliver to and maintain with the city clerk-treasurer a bond, payable to the city in the penal sum of $8,000.00, which bond shall be executed by some surety company authorized to do business in the state and in the city, and conditioned to promptly pay to the city all such amounts as may become due to the city under the terms of chapter 15, article IV, chapter 24, article IV and any other amount which may become due to the city for privilege license, sales, use, or gross receipts taxes after the date of such bond. If by reason of any liabilities existing against the bond or against any additional bond provided for, it should appear to the city clerk-treasurer that such bond does not provide full security of $8,000.00 after deducting existing liability, the city clerk-treasurer, as often as such condition may exist, shall demand additional bond of $8,000.00 or more; and it shall be the duty of such licensee to furnish bond within ten days after such demand.

(b) In lieu of any bond, which it may be or become the duty of the licensee to furnish under subsection (a) of this section, such licensee may, at the discretion of the city clerk-treasurer, deposit with the city clerk-treasurer cash or readily marketable securities, satisfactory in form and content to the city clerk-treasurer of a value equivalent to the amount of security contemplated in this section to be provided by the suretyship of surety upon bond. Any such collateral securities, or letter of credit, which may be impaired in value by existing liabilities there against, or otherwise, shall be restored or repaired by furnishing additional securities or bond, so that at all times revenues to become due shall be secured to the extent of $8,000.00 or more.

(c) It shall be unlawful for any licensee to do any business in the city while in default in the provision of security as contemplated in this section, regardless of any amount of licenses or taxes which he may have heretofore paid.

(d) Such bond shall include the endorsement to the effect that such bond shall not be canceled without notice of cancellation being served on the city clerk-treasurer, in writing, by certified mail, at least 30 days prior to the date of cancellation.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-91. Suspension by liquor license review committee.

(a) *Suspension authorized.*

(1) Subject to the license holders right to appeal the decision of the committee as hereinafter provided, the liquor license review committee may, upon the petition of the city clerk-treasurer, suspend a city license for up to a period of one year for cause where the licensee, or any partners, members, officers, or directors of the licensee, has or have violated this chapter or any state alcoholic beverage control laws, or where the city licensed premises has been conducted in a manner

prejudicial to the welfare, health, peace, temperance, safety, or morals of the public.

(2) Action against a license shall be commensurate with the grounds for the action and, where appropriate, shall be progressive in nature, unless the grounds for the action warrant that harsher action be taken.

(3) Nothing in this section shall be construed to prevent the city council from taking action against a city license in accordance with applicable law, which includes section 15-56 of this Code.

(b) *Process.*

(1) The license review committee, upon petition by the city clerk-treasurer, shall set a hearing on the matter as soon as practicable. Notice of the hearing, the basis for the proposed action, and the opportunity to be heard shall be provided by the committee in the same manner as set forth subsection 15-56(c) of this Code. If a party fails to appear at the hearing of the matter the license review committee may proceed with the hearing and render a decision in the absence of the party.

(3) Following the hearing the committee may take the actions as specified in subsection (c) of this section.

(4) Notification of the liquor license review committee's decision shall be mailed to the licensee in the same manner as the notice of the hearing as provided hereinabove.

(5) In the event the committee takes action against a city license, the license holder may appeal the decision to the city council by filing a written notice of appeal stating the basis of the appeal with the city clerk-treasurer within 15 days after the committee's decision. The city council shall set a hearing on the appeal as soon as practicable, and proceed in accordance with section 15-56(c) of this Code; provided, however, the council need not provide the appellant with the grounds for action. Following the hearing, the city council may take the actions specified in subsection (c) of this section.

(c) *Actions.*

(1) A city license may be suspended for up to one year and any licensee, which includes its owners, whose license is suspended shall be, at the discretion of the liquor license review committee or city council in the case of an appeal, ineligible to have any license under this chapter until the expiration or removal of the suspension period. A suspension may provide for automatic removal of the suspension upon the completion of remedial action.

(2) During a period of suspension no new or different alcoholic beverage license will be issued to any other applicant for the same location or in the same business name, as that of the suspended licensee; provided, however, this section is not intended to prohibit innocent landlords or lessors from exercising contractual rights under a rental agreement or a written lease in the event of default by a tenant or lessee.

(3) Immediately following a final decision to take action against a city license, a notice thereof shall be mailed to the ABC board.

(4) During a period of suspension, no alcoholic beverages may be possessed on the city licensed premises, nor may a licensee, its owners, managers, servants, agents, or employees, permit others to bring, possess, or consume alcoholic beverages on the city licensed premises during such period.

(5) During the period of suspension of a city license, the licensee shall post a sign, supplied by the city clerk-treasurer, on the city licensed premises stating that their license has been suspended and state the applicable period of suspension. The sign shall be displayed in a conspicuous location in or on a front window or door and shall be readily visible from outside the premises.

(d) *Emergency closure.*

(1) For purposes of this subsection (d) the term emergency means an occurrence upon a city licensed premises or the licensee's parking area that poses an immediate threat to the health or safety of the public, which includes the patrons or employees of the establishment and public officials, and that demands immediate closure of the licensed establishment in order to properly respond to the emergency.

(2) The chief of police may order an immediate closure of a city on-premises licensee without the need for prior notice or an opportunity to be heard in the case of an emergency. The licensee may reopen as soon as the emergency is over.

(Ord. No. 11-654, § 1, 9-22-2011)

Secs. 3-92—3-130. Reserved.

DIVISION 3. OPERATION

Sec. 3-131. Operation of city licensed premises, etc.

(a) Subject to section 3-173 concerning motion pictures and shows, where state alcoholic beverage controls laws, which includes chapter 20-X-6 of the rules and regulations promulgated by the ABC board, regulate the operation of licensed premises, which includes provisions applicable to state licensees, their servants, agents, or employees, the operation of city licensed premises, which includes city licensees, their servants, agents, and employees, shall be subject to the same operational requirements under city licensing, and failure to comply with same shall constitute a violation of this chapter.

(b) Where state alcoholic beverage control laws have specific requirements or conditions for a state licensee, which includes those that are classification specific, the requirements or conditions shall also apply in the case of city licensees, which includes membership requirements in the case of club licensees.

(c) Where state alcoholic beverage control laws have record keeping requirements of its licensees and the right of inspection of state licensed premises such requirements and right of inspection shall also apply in the case of city licensees and city licensed premises.

(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-132. Hours and days of operation of state liquor stores.

No state liquor store shall remain open for business during the hours from 9:00 p.m. to 9:00 a.m. There shall be no state liquor store operated on any Sunday.

(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-133. Hours of sale and operation.

(a) *Retail licensees.* It shall be unlawful for any retail licensee, its owner, manager, servant, agent, or employee, to sell, offer for sale or to serve, or to dispense for reward, or offer to serve, or dispense for reward, or to allow the consumption of alcoholic beverages upon the city licensed premises, on the days and during the hours hereinafter enumerated as follows:

(1) Prohibited hours for on-premises lounge liquor retailers and special events retailers shall be from 2:00 a.m. to 10:00 a.m. weekdays, which includes Saturdays, and from 2:00 a.m. to 1:00 p.m. Sundays; for all other on-premises licensed retailers prohibited hours shall be every day from 2:00 a.m. to 10:00 a.m.

(2) Prohibited hours for off-premises class II lounge liquor retailers shall be every day from 1:00 a.m. to 8:00 a.m.; for all other off-premises retailers prohibited hours shall be every day from 1:00 a.m. to 7:00 a.m.

(b) *Other licensees.* It shall be unlawful for any manufacturer, importer, or wholesaler, or the owners, managers, servants, agents, or employees of the same, to sell, trade, or barter in alcoholic beverages between the hours of 9:00 p.m. of any Saturday and 2:00 a.m. of the following Monday.

(c) *Business hours for class I lounge liquor retailers.* It shall be unlawful for any class I lounge liquor retail licensee to remain open, or for any owner, manager, servant, agent, or employee to allow or cause said licensee to remain open, to the general public between the hours of 2:15 a.m. and 10:00 a.m. on any weekday, which includes Saturdays, and between 2:15 a.m. and 1:00 p.m. on any Sunday.

(d) *Hours proscribed by zoning ordinance.* Notwithstanding anything to the contrary in this section, where the city's zoning laws, which includes variances and special exceptions granted under the authority of the zoning ordinance, provide for more restrictive hours than those set forth in subsections (a), (b), or (c) of this section, such hours shall apply in lieu of the foregoing and it shall be a violation of this chapter for any licensee, its owner, manager, servant, agent, or employee to sell, offer for sale or to serve, or to dispense for reward, or offer to serve, or dispense for reward, or to allow the consumption of alcoholic beverages upon the city licensed premises, or, in the case of a class I lounge liquor retailer, to be opened for business or to allow or cause the same to be opened for business, during the prohibited hours established by the zoning laws.

(e) *Entertainment district hours.* Notwithstanding anything to the contrary contained in this section, unless prohibited by state alcoholic beverage control laws, on a day when an entertainment district established under article II of this chapter is open, then the hours of sale and operation provided for in subsection (a)(1) of this section and the business hours for class I lounge liquor retailers provided for in subsection (c) of this section will be extended to include the open hours of the particular entertainment district for those on-premises alcoholic beverage retailers that are holders of a permit issued by the city under the entertainment district regulations in article II of this chapter; otherwise the provisions of subsections (a)(1) and (c) of this section shall apply. Where an entertainment district is open outside of the regular hours for the particular district, then the chief of police shall provide at least 24 hours advance written notice of the opening to each such permit holder within the affected entertainment district, or portion thereof.
(Ord. No. 11-654, § 1, 9-22-2011; Ord. No. 17-088, § 3, 2-23-2017; Ord. No. 19-81, § 1, 2-28-2019)

Sec. 3-134. Employees of licensees.

(a) It shall be unlawful for any waiter, waitress, dancer, or model employed by an on-premises licensee to sit at tables with the customers or members and guests while so employed and during the time that the establishment is open for business. It shall be unlawful for any person to knowingly allow a violation of this subsection (a) to occur on city licensed premises under that persons care, custody, or control.

(b) It shall be unlawful for any person at the time employed or engaged on the city licensed premises as an entertainer, model, or dancer to also serve as a waiter or waitress while so employed. It shall be unlawful for any person to knowingly allow a violation of this subsection (b) to occur on city licensed premises under that persons care, custody, or control.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-135. Service of alcoholic beverages on patios or around swimming pool areas.

Any city on-premises licensee may serve alcoholic beverages as authorized by their license on patios or around swimming pool areas adjacent to or connected with the main city licensed premises. Said serving area shall be located so as not to be a nuisance nor readily visible from a church or school premises, shall be fenced or otherwise contained, shall have direct access from the interior of the licensed premises, shall not be located in any required parking area, and shall not be installed on a temporary or occasional basis.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-136. Criminal conduct; breaches of the peace.

(a) *Criminal conduct.*

(1) City licensees shall be accountable to the city for the criminal conduct which occurs

or is suffered to occur on any part of the city licensed premises. Where such criminal conduct is allowed, caused, permitted, or suffered to occur by the licensee, its owner, manager, servant, agent, or employee, such licensee's license shall be subject to action being taken against it.

(2) Any city licensee, or owner thereof, violating any criminal law or statute of the state, whether or not occurring on the city licensed premises, may be cause for action being taken against the license.

(b) *Breaches of the peace.*

(1) It shall be the duty of each owner and designated person in charge of any retail city licensed premises, while open to the public, to maintain order upon the premises and to exclude from the premises any person who is drunk and disorderly or who commits any breach of the peace, or who uses offensive, disorderly, threatening, abusive, or insulting language, conduct, or behavior, with the intent to provoke a breach of the peace, or whereby a breach of the peace might be occasioned. The same duty shall also apply to such activity that occurs upon the licensee's parking area during the licensee's hours of operation and within one hour after closing.

(2) It shall be the duty of each owner or designated person in charge of any city licensed retailer to immediately make an appropriate report by telephone to the police division of each assault, assault and battery, or affray occurring on the city licensed premises while such premises are open for business, and occurring on the licensee's parking area during licensee's hours of operation and within one hour of closing. It shall further be the duty of the person to make a written report of such incidents to the police division and to the county sheriff within 36 hours. Failure to make either report shall be grounds for action being taken against the license.

(3) Repeated breaches of the peace, affrays, assaults, assaults and batteries, or the repeated presence of disorderly persons upon the premises of a licensee during hours of operation or licensee's parking area during licensee's hours of operation and within one hour after closing shall be grounds for action being taken against the license. In addition, repeated incidents of vandalism, breaches of the peace, disorderly conduct, or other violations of state and local laws, which unreasonably interfere with the peace, quiet, comfort, and repose of persons of ordinary sensibilities in the neighborhood where such incidents may be attributable to the presence in the neighborhood of the licensed establishment shall also be grounds for action being taken against the license.

(Ord. No. 11-654, § 1, 9-22-2011)

Secs. 3-137—3-170. Reserved.

DIVISION 4. ENTERTAINMENT ESTABLISHMENTS

Sec. 3-171. Entertainment permit.

(a) An on-premises city licensee that has any form of entertainment, whether live or taped, shall apply for an entertainment permit with the city clerk-treasurer, on forms provided by the city clerk-treasurer, which shall entitle the holder thereof to conduct the form of entertainment noted on the application. There shall be no charge for the permit or the application therefor. The permit shall be a one-time permit issued subject to and conditioned upon the permit holder's compliance and continued compliance with applicable provisions of this chapter that regulate entertainment or entertainment establishments, and with applicable provisions of the zoning laws, which includes variances and special exceptions granted under the authority of the zoning ordinance, that regulate on-premises licensees with entertainment. Permits shall be posted in a conspicuous place next to the city license.

(b) In the event of a permit holder's failure to so comply, the city clerk-treasurer may revoke the permit upon the occurrence of a third viola-

tion in any given 12-month period, subject to the right of the permit holder to appeal the revocation to the license review committee. The decision of the license review committee is final. Upon revocation of a permit entertainment shall no longer be conducted on the city licensed premises for the time period specified in the revocation, provided such period shall not exceed six months. The permit may be reinstated upon re-application in accordance with subsection (a) above.

(c) The permit issued pursuant to this section shall be in addition to any privilege or business license that might be required in accordance with chapter 15 of this Code, and revocation of the permit shall not revoke the privilege license. (Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-172. Dancers in lounges.

(a) It shall be unlawful for any city on-premises lounge liquor retail licensee, or for the owner or manager of any such licensee, to employ any person under the age of 19 years to perform as a dancer, to allow or sponsor any contest or program where persons under the age of 19 are allowed to perform as dancers, or for any person under the age of 19 years to perform as a dancer, on any such premises, and as a form of entertainment for the patrons of the establishment.

(b) It shall be the duty of every city on-premises lounge liquor retail licensee, and of the owner or designated person in charge, to at all times see that all persons employed or allowed to perform as dancers on the premises are not under the age of 19 years; and the licensee, its owner, or designated person in charge, shall have the burden of establishing the age of any such person employed or allowed to perform upon the inquiry of the chief of police or any officer of the police division. Upon the trial of any cause under this section, proof of the failure of the licensee, owner or designated person in charge to furnish adequate proof upon the request of the chief of police or any officer of the police division shall create a presumption that the person is under the age of 19 years, and the burden to prove otherwise shall rest upon the licensee, owner, or designated person in charge. (Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-173. Motion pictures and shows.

(a) *Definitions.* The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this subsection (a), except where the context clearly indicates a different meaning:

Knowingly means having actual or constructive knowledge of the character and content of the subject matter. A person has constructive knowledge if a reasonable inspection under the circumstances would disclose the nature of the subject matter and the failure to inspect for the purpose of avoiding such disclosure.

Mainstream establishment means:

(1) Any theater, movie house, performing arts center, civic center, concert hall, museum, gallery, or educational institution with: (i) live performances of plays, operas, concerts, dances, ballets, or dramatic performances of serious artistic merit; (ii) representational or visual works of serious artistic merit, such as paintings, sculptures, and photographs; or (iii) motion pictures, films, or video taped works of serious artistic merit, provided that no such establishment shall offer movies with a Motion Picture Association of America rating of NC-17 or greater, which includes any such succeeding MPAA ratings; and

(2) Where such performances, exhibitions, or showings of serious artistic merit comprise at least 80 percent of all performances, exhibitions, or showings of the establishment; and

(3) Where less than 30 percent of gross revenues of the establishment (which includes, for purposes of determining the percentage of gross revenues, the entire gross revenues of an establishment where only a portion of the establishment is a premises licensed to sell alcoholic beverages, provided such establishment is under common possession, ownership, and control) are attributable, directly (by way of directly invoiced charges for alcoholic beverages) or indirectly (by way of cover

charges, tickets, or other charges for the price of admission, which offset the cost of the alcoholic beverage), to the sale of alcoholic beverages.

Nudity means the showing of the human male or female genitals, pubic area, or buttocks with less than a fully opaque covering, or the showing of the female breast with less than a fully opaque covering of any portion below the top of the darkened area surrounding the nipple, or the depiction of covered male genitals in a discernibly turgid state.

Sexual conduct means the performance of acts or simulated acts of masturbation, homosexuality, sodomy, sexual intercourse, or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks or a female breast.

(b) *Nudity or sexual conduct.* It shall be unlawful for any owner, manager, servant, agent, or employee of any on-premises city licensee, knowingly to exhibit, allow, engage in, participate in, or be connected with any motion picture, show, performance, or other presentation upon the city licensed premises which, in whole or in part, depicts nudity or sexual conduct.

(c) *Exceptions.* This section shall not apply to performances, exhibitions, or showings in a mainstream establishment which are not distinguished or characterized by an emphasis on matter or activities depicting, displaying, describing, or featuring nudity or sexual conduct, in that the depiction, display, description, or featuring is incidental to the primary purpose of the performance, exhibition, or showing; and which are not intended to provide sexual stimulation or sexual gratification to the patrons.

(d) Nothing in this section shall be construed to allow any activity which is in violation of state or federal laws.
(Ord. No. 11-654, § 1, 9-22-2011)

Sec. 3-174. Protection of minors in entertainment establishments.

(a) *Purpose.* The purpose of this section is to protect minors and to protect against underage drinking in entertainment establishments licensed for on-premises consumption.

(b) *Definitions.* The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adequate security measures means security measures that are adequate for the policing and enforcement of this chapter, which measures shall include:

(1) Adequately lighted performance areas where alcoholic beverages are sold, served, or consumed or, in the case of civic center arenas or stadiums, performance areas that have segregated sections set apart for the selling, serving, or consuming of alcoholic beverages, which sections are limited to persons 21 years of age and above;

(2) Tamperproof measures that identify persons of legal drinking age; and

(3) Provision of a sufficient number of security personnel based on the size or anticipated size of the audience or based on a prior history for the same or a similar event.

Adequately lighted means ambient lighting that is adequate for the purposes of observing the operation of or patrons within the premises, but which does not include as a light source lighting that emanates from a screen or theatrical lighting directed toward the staging area.

Entertainment means sporting events and live or taped shows or performances, such as plays, motion pictures, concerts, music venues, circuses, and dance routines, performed or conducted by actors, dancers, musicians, disc jockeys, or other performers.

Licensed dinner entertainment establishment means a restaurant that is a licensed entertainment establishment.

Licensed entertainment establishment means an establishment that sponsors, provides, or has entertainment, which activity may or may not require privilege licensing, and that is licensed to sell alcoholic beverages for on-premises consumption.

Nonlicensed area means an area, which includes a performance area, that is within the same building as and that is under common ownership, possession, and control with a licensed entertainment establishment, but which area is not licensed to sell alcoholic beverages for on-premises consumption.

Open-air performance area means a performance area that is in an outdoor amphitheater, park, or other open space, and which may be covered by a temporary tent or enclosure for protection from the elements.

Performance area means that portion of the establishment where entertainment is provided and shall include the staging or screening area and the seating section or other area where patrons view the entertainment. The term shall not include areas or rooms separated from the performance area by a wall or partition which cannot be reached or accessed except through a door or doors.

Restaurant means that portion of an establishment:

(1) That is licensed pursuant to this chapter as a restaurant liquor retailer; or

(2) That is licensed pursuant to this chapter to sell beer or table wine for on-premises consumption and which meets the definition of a restaurant under the state alcoholic beverage control laws and this chapter.

Sporting event means live or taped sporting events which include athletic competitions, team sports, sporting exhibitions, equestrian events, and figure skating.

Staging area means that part of a performance area that is used to present or contain the entertainment such as stages, rings, rinks, and band stands.

(c) *Minors prohibited in licensed entertainment establishments.* It shall be unlawful for any licensee, directly or indirectly by the owner, manager, servant, agent, or employee of the same, or for any owner, manager, servant, agent, or employee of the same to admit within a non-licensed area, or a concession or performance area of a licensed entertainment establishment as a patron a person under the legal drinking age.

(d) *Exemptions.* Subject to state and local laws concerning alcoholic beverages and minors, the prohibition in subsection (c) of this section shall not apply:

(1) To the performance area of a licensed dinner entertainment establishment provided:

a. The performance area is adequately lighted at all times that alcoholic beverages are being served or consumed;

b. A full menu of food items shall be available for service and consumption at all times that alcoholic beverages are being served or consumed within the performance area and if food service or consumption is suspended within the performance area by the establishment during a show or performance, then the establishment shall also suspend the service and consumption of alcoholic beverages within the same performance area; and

c. Within the performance area, alcoholic beverages shall be served and consumed only at tables used for dining.

(2) To nonlicensed areas if such areas are separated from licensed performance areas by a partition or wall sufficient to control access and the access points are controlled by management.

(3) To concession areas that are outside of or separated from the performance area if:

a. There is a partition or wall separating the concession area from the performance area that is sufficient to control access and access points are controlled by management;

b. The concession area is adequately lighted at all times that alcoholic beverages are being sold, served or consumed thereon; and

c. Alcoholic beverages are not removed or allowed to be removed from the concession area.

(4) To performance areas of licensed entertainment establishments that have adequate security measures in place, and that do not have stadium or row seating in the performance area, except for open-air performance areas.

(5) To performance areas of civic center arenas or stadiums, which includes sports stadiums, that have adequate security measures in place.

(e) *Pre-approval of premises.*

(1) The chief of police, or his designee, may require any entertainment establishment to submit for approval plans evidencing compliance with the provisions of this section which includes plans for security, lighting, access, and identification of persons of legal drinking age. In such event, failure to follow or operate in accordance with the approved plans shall constitute a violation of this section.

(2) An entertainment establishment may request of the chief of police, or his designee, a pre-approval of plans evidencing compliance with the provisions of this section which includes plans for security, lighting, access, and identification of persons of legal drinking age. In such event, failure to follow or operate in accordance with the approved plans shall constitute a violation of this section.

(f) *Preservation of alcoholic beverage laws.* Nothing in this section shall be construed to allow activity which is contrary to state or local alcoholic beverage control laws which includes without limitation laws regulating minors and laws regulating admittance by persons under 19 years of age to alcoholic beverage lounge licensees. (Ord. No. 11-654, § 1, 9-22-2011)

Chapter 4

AMUSEMENTS AND ENTERTAINMENTS*

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Article II. Bingo

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ARTICLE I. IN GENERAL

Secs. 4-1—4-30. Reserved.

ARTICLE II. BINGO

DIVISION 1. GENERALLY

Sec. 4-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized organization means and includes any bona fide nonprofit religious or charitable organization or bona fide educational, fraternal, civic or service organization or a bona fide organization of veterans which by its charter, certificate of incorporation or constitution operates without profit to its members, provided that the principal location of each such organization (defined as being where a majority of the organization's assets are located) shall have existed within the corporate limits of the city and have been duly qualified as an organization under section 501(c) of the United States Internal Revenue Code for a period of 23 months immediately prior to applying for a license under this article.

Bingo means and includes a specific game of chance, commonly known as bingo, in which prizes are awarded on the basis of designated numbers or symbols on a card conforming to numbers or symbols selected at random by the operator of the game and which are placed by the persons playing or participating in the game on cards or sheets of paper which contain or set out numbered spaces, upon which such designated numbers or symbols may be placed by the persons playing or participating in the game.

Bingo session means a series of consecutive games which are continuous except for a break of no more than 15 minutes during the course of the session.

License means a license issued pursuant to the provisions of this article.

(Ord. No. 96-192, § 1, 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Cross reference—Definitions generally, § 1-2.

Sec. 4-32. Authority.

It shall be lawful for any authorized organization, upon obtaining a license to conduct the game of bingo within the corporate limits of the city subject to the provisions of this article and subject to Amendment No. 387 to the state constitution of 1901. It shall be unlawful for any person, including any nonprofit organization, its officers, employees or agents, whether for charitable or educational purposes or otherwise, to operate any bingo game for prizes or money within the corporate limits of the city without first having obtained a license as provided in this article.

(Ord. No. 96-192, § 2, 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-33. Expenses.

No item of expense shall be incurred or paid in connection with the holding, operating or conducting of any game of bingo under any license except those reasonable expenses that are necessarily expended for bingo supplies and equipment, prizes, bookkeeping or accounting services, janitorial services, security services, trash pickup (dumpster) services and utilities, if any, and license fees. The fees for accounting services, janitorial services, security services, trash pickup and utilities shall be paid out of bingo proceeds only at a pro rata share of the total monthly bill or charges for such expenses, reflecting the percentage resulting from dividing the number of days the facility was open (for any reason) into the number of days bingo games were conducted at the facility. Rent, mortgage loans or other amounts paid or incurred for the use or ownership of the premises upon which bingo games are conducted shall not be paid out of or deducted from the proceeds of any bingo game. All allowable expenses shall be paid for by check from the organization's bingo checking account.

(Ord. No. 96-192, § 9, 7-11-1996; Ord. No. 99-223, § 3, 4-8-1999; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-34. Advertising games.

No game of chance to be conducted under any license issued under this article shall be advertised as to its location, the time when it is to be or has been played, or the prizes awarded or to be awarded, by means of newspapers, radio, television or sound trucks or by means of billboards, posters or handbills or any other means addressed to the general public; except that one sign not exceeding 60 square feet in area may be displayed on or adjacent to the premises owned or occupied by a licensed authorized organization, provided that any such sign must be permitted by the city inspection division and must comply with the city's zoning ordinance (app. A of this Code). This section does not prohibit the licensed authorized organization from posting information about its sanctioned bingo games and sessions on the authorized organization's social media platforms.
(Ord. No. 96-192, § 10, 7-11-1996; Ord. No. 23-520, § 3, 7-13-2023)

Sec. 4-35. Statement of receipts, expenses.

Within 45 days after the conclusion of any annual period (December 1 through November 30), and within 15 days after the expiration of any weekly license, the authorized organization which conducted a bingo game, and its members who were in charge, shall each furnish to the city finance director a statement, in a format approved and provided by the city finance director, subscribed by the member in charge and affirmed by him as true, under the penalties of perjury, showing the amount of the gross receipts derived from the game and each item of expense incurred or paid and each item of expenditure made or to be made with a description of the merchandise purchased or the services rendered; a list of prizes offered and given, with their respective values; the net proceeds derived from such game and the use to which such proceeds have been or are to be applied; and it shall be the duty of each licensee to maintain and keep such books and records as may be necessary to substantiate the particulars of each such statement. A copy of all bingo checking account monthly bank statements shall be attached to the financial statement required by this article.
(Ord. No. 96-192, § 11, 7-11-1996; Ord. No. 99-223, § 4, 4-8-1999; Ord. No. 16-966, § 1, 1-12-2017; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-36. Examination of books and records; examination of managers; disclosure of information.

The city finance director or any officer designated by him shall have power to examine or cause to be examined the books and records of any licensed organization so far as they may relate to bingo, including the maintenance, control and disposition of net proceeds derived from bingo or from the use of its premises for bingo, and to examine any manager, officer, director, agent, member or employee under oath in relation to the conduct of any such game under any such license or the use of its premises for bingo, as the case may be. Failure to cooperate with the city finance director in the exercise of his authority under this section shall constitute a violation of this article.
(Ord. No. 96-192, § 12, 7-11-1996; Ord. No. 99-223, § 5, 4-8-1999; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-37. Offense; forfeiture of license; ineligibility to apply for license.

Any person who shall do any of the following shall be guilty of a misdemeanor and shall forfeit any license issued under this article and be ineligible to apply for a city bingo license for a period of two years thereafter:

(1) Fail to submit to the city finance director a prior year's financial statement, and annual financial statements thereafter as required by this article for the renewal of a bingo license;

(2) Make any false statement in any application for any license authorized to be issued under this article;

(3) Fail to keep a separate bingo checking account and such books and records as

shall fully and truly record all transactions connected with the conducting of bingo;

(4) Falsify or make any false entry in any books or records so far as they relate in any manner to the conduct of bingo or to the disposition of the proceeds;

(5) Fail to list a member working a bingo session pursuant to section 4-79;

(6) Divert or pay any portion of the net proceeds of any game of bingo to any person except in furtherance of one or more of the lawful purposes defined in this article;

(7) Allow anyone under the age of 19 years to play a game of bingo or allow anyone under the age of 19 years to conduct or assist in the conduct of any game of bingo; or

(8) Violate any of the provisions of this article or of the state constitution relating to the conduct of bingo in the city or of any term of any license issued under this article.

(Ord. No. 96-192, § 13, 7-11-1996; Ord. No. 99-223, § 6, 4-8-1999; Ord. No. 23-520, § 1, 7-13-2023)

Secs. 4-38—4-60. Reserved.

DIVISION 2. GENERAL RESTRICTIONS

Sec. 4-61. Governance.

Any game of bingo licensed under this article shall be subject to the restrictions in this division in addition to such other restrictions as may be provided in this article or contained in the state constitution.

(Ord. No. 96-192, § 3 (intro. ¶), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-62. Time and place.

No person, firm, association, corporation or organization shall conduct any game of bingo except at the time and place approved by the city bingo review committee.

(Ord. No. 96-192, § 3(B), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-63. Conduct only by licensed members.

No person shall hold, operate or conduct any game of bingo under any license except an active member of the authorized organization to which the license is issued; and no person shall assist in the holding, operating or conducting of any game of bingo under such license except such an active member or a member of an organization or association which is an auxiliary to the licensee or a member of an organization or association of which such licensee is an auxiliary.

(Ord. No. 96-192, § 3(C), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-64. Age restrictions for participants.

No person under the age of 19 years shall be permitted to play any game of bingo, nor shall any person under the age of 19 years be permitted to conduct or assist in the conduct of any game of bingo.

(Ord. No. 96-192, § 3(D), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-65. Presence of underaged persons prohibited.

No person under the age of 19 years shall be allowed in the room where a bingo game is being played during any bingo session.

(Ord. No. 96-192, § 3(E), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-66. Limitations on granting of license.

No bingo license shall be issued to any nonprofit organization unless such organization shall have been in existence within the corporate limits of the city and have been duly qualified as an organization under section 501(c) of the United States Internal Revenue Code for at least 23 months immediately prior to the issuance of the license.

(Ord. No. 96-192, § 3(F), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-67. Premises.

Bingo games shall be operated only on the premises owned or leased by the nonprofit organization operating the bingo game. If the premises are leased, the rate of rental shall not be based, in whole or in part, on a percentage of receipts or profits resulting from the operation of bingo games. Rental shall not be paid from the proceeds of bingo games.
(Ord. No. 96-192, § 3(G), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-68. Consulting, operating limited.

No person shall enter into any contract with any person to have that person operate bingo games or concessions on behalf of the nonprofit organization; nor shall any person pay consulting fees to any person for any services performed in relation to the operation or conduct of a bingo game.
(Ord. No. 96-192, § 3(H), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-69. Lending of name or identity by nonprofit organization prohibited.

A nonprofit organization shall not lend its name or allow its identity to be used by any other person or entity in the operation or advertising of a bingo game in which the nonprofit organization is not directly and solely operating the bingo game.
(Ord. No. 96-192, § 3(I), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-70. Limitation on value of prizes.

The total value of prizes given by any nonprofit organization for the playing of bingo games shall not exceed $1,000.00 in cash or gifts of equivalent value during any bingo session and $2,000.00 in cash or gifts of equivalent value during any calendar week.
(Ord. No. 96-192, § 3(J), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-71. Intermission.

Bingo sessions which are held on the same day shall not have an intermission of more than 30 minutes between sessions; and at the beginning of the first session, bingo cards good for all the games listed on the program of play for both sessions may be purchased by the players. Additional cards for games listed on the program of play can be sold at a reduced price during the intermission.
(Ord. No. 96-192, § 3(K), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-72. Weekly limitation on sessions.

No more than two bingo sessions shall be held by a licensed nonprofit organization in any one calendar week.
(Ord. No. 96-192, § 3(L), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-73. Remuneration limited.

No person, by whatever name or composition, shall take any salary, expense money, or fees (unless authorized by this article) as remuneration for services rendered in the operation of any bingo game.
(Ord. No. 96-192, § 3(M), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-74. Use of proceeds.

The entire net proceeds of any game of bingo, as determined under section 4-33, shall be devoted exclusively to charitable and educational purposes. None of the proceeds shall be expended for fraternal or social purposes.
(Ord. No. 96-192, § 3(N), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-75. Limitation on use of premises.

No more than one organization licensed under this article shall conduct bingo games at the same premises on the same day. No more than three organizations shall be licensed to conduct bingo games at the same premises.
(Ord. No. 96-192, § 3(O), 7-11-1996; Ord. No. 98-739, 9-24-1998; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-76. Membership of sponsoring organization.

Each nonprofit organization, as a condition precedent to receiving a bingo license under this article, shall have at least 50 active members who reside within the corporate limits of the city, shall have at least four general membership meetings annually where minutes of the meeting are kept, shall elect officers at least annually, and all classes of members shall be eligible for election to all offices by popular ballot of the entire membership. In addition, each applicant for a license shall provide substantial evidence that it has habitually and continually sponsored charitable or educational projects within the corporate limits of the city where funds were raised for such projects by participation of the membership for a period of 23 months immediately preceding the application.
(Ord. No. 96-192, § 3(P), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-77. Violation; penalty.

The unauthorized conduct of a bingo game or any willful violation of any provision of this article shall constitute and be punishable as a misdemeanor.
(Ord. No. 96-192, § 3(Q), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-78. Accounting record required.

An accurate accounting record shall be maintained for each bingo session showing the gross amount of money taken in from a fee, sale of game packs, sale of game sheets and other bingo paraphernalia during each bingo session; the total number of winners for each bingo game and the amount received by each winner of a game; the total amount that was given away during each bingo session; and the net amount of each bingo session to be deposited in the organization's bingo checking account. The net amount shall be deposited in the bingo checking account within four days after the bingo session. If bingo sessions are held on the same day as provided in this article, the accounting records can be for both sessions. These accounting records and a copy of each deposit slip shall be attached to the bingo financial statements that are required to be submitted to the city finance director.
(Ord. No. 96-192, § 3(R), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-79. List of session workers.

Prior to each bingo session, there shall be maintained by the bingo chairman, and posted in view of the general public at each entrance, a list of all members working at that bingo session, showing at least their name and position of responsibility; and the bingo chairman or the person in charge shall wear a name tag showing his name.
(Ord. No. 96-192, § 3(S), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-80. Program of play required.

At the beginning of each bingo session, a program of play shall be provided to each player and anyone else who requests a copy, showing the number, order and type of bingo games to be played, along with the amount of the winning prize or "pot" for each bingo game. All the rules for the game of bingo, including how and when the winning prize will be divided or split, shall be listed on the program of play also. No game shall be played by whatever title or name that is not listed on the program of play. If bingo sessions are played on the same day as provided in this article, the program of play for both sessions may be provided at the beginning of the first session for both sessions.
(Ord. No. 96-192, § 3(T), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-81. Announcement of prize and winners of each game.

At the beginning of each bingo game, the person calling the game shall announce the amount of the prize for that bingo game. At the end of each bingo game, the person calling the game shall announce the number of winners for that bingo game and how much each winner received.
(Ord. No. 96-192, § 3(U), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-82. Restriction on callers.

No bingo caller shall be allowed to call bingo games for more than one organization unless such caller is a member of each organization for which he is calling games.
(Ord. No. 96-192, § 3(V), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-83. Restriction on chairman.

No person who is a member of more than one organization shall be allowed to be a bingo chairman for more than one organization at the same time.
(Ord. No. 96-192, § 3(W), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-84. Notification of change of chairman required.

The city finance director shall be notified in writing within 30 calendar days by any organization licensed under this article after any change in the organization's bingo chairman.
(Ord. No. 96-192, § 3(X), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-85. Separate bingo checking accounts required.

All organizations licensed under this article to play bingo shall be required to maintain a separate checking account for bingo operations, into which all bingo funds are deposited and from which all bingo disbursement checks are written. The bingo checking account is in addition to any other checking or savings accounts maintained by the organization.
(Ord. No. 96-192, § 3(Y), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-86. Reserved.

Editor's note—Ord. No. 06-592, adopted July 13, 2006, repealed § 4-86, which pertained to instant bingo. See also the Code Comparative Table.

Sec. 4-87. Responsibility for violations.

In addition to any person directly responsible for a violation of this article, the elected or appointed officials, officers or directors of social, fraternal, civic, religious, or other nonprofit charitable organizations conducting bingo operations shall also be responsible for violations of this article.
(Ord. No. 96-192, § 3(AA), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-88. Limitation on persons allowed to play.

No member of any organization granted a bingo license under this article who manages, calls or helps conduct any bingo game during a session shall be allowed to play bingo at any bingo game during such session.
(Ord. No. 96-192, § 3(BB), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-89. Gambling prohibited.

No person who has been convicted of any gambling offense, or of any crime involving moral turpitude, under the laws of the state, the laws of the United States, the laws of any other state, or the ordinances of any municipality, shall be involved in the operation of any licensed bingo game within the corporate limits of the city. No organization licensed to conduct bingo games under the provisions of this article shall conduct any bingo game at a building, hall or facility which is owned or under the control of any person who has been convicted of any gambling offense or any crime involving moral turpitude under the laws of the state, the laws of the United States, the law of any other state, or the ordinances of any municipality.
(Ord. No. 96-192, § 3(CC), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-90. Sale of concessions prohibited.

No person licensed to operate bingo games shall permit any other person to sell concessions or to undertake any other type of fundraising activity of any kind whatsoever on the day of any bingo session at the location of the bingo game.
(Ord. No. 96-192, § 3(DD), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-91. Financial statement.

All payments of any kind made by any person from the proceeds of any bingo game, except for cash prizes awarded during any bingo game, must be made by check from the organization's bingo checking account. Copies of all canceled checks (both sides of each check), all deposit slips and monthly bank statements must be attached to and submitted with any financial statement required by this section.
(Ord. No. 96-192, § 3(EE), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-92. Exceptions in the event of casualty loss.

Notwithstanding the provisions of this ordinance to the contrary, in the event an organization licensed under the provisions of this chapter is unable to occupy the premises licensed for its bingo games as a result of fire, flood, weather related damage, intentional destruction, damage beyond the control of the organization, or other Act of God which renders the premises unsafe for occupancy (as determined by appropriate Code Enforcement Personnel of the City of Huntsville), then, in such event, the licensed organization shall be permitted to apply for a temporary license to conduct bingo games at a premises currently used by up to three other organizations licensed to conduct bingo games, provided that no more than one organization shall conduct bingo games at the same premises on the same day. A temporary license issued pursuant to this section shall be valid for no more than 12 months from the date of approval thereof, or until the premises vacated due to damage is determined to be available for occupancy by the Inspection Department of the City of Huntsville, whichever first occurs.
(Ord. No. 06-1085, 11-9-2006; Ord. No. 23-520, § 1, 7-13-2023)

Secs. 4-93—4-120. Reserved.

DIVISION 3. LICENSE

Sec. 4-121. Required.

No person shall conduct any game of bingo except under a license issued pursuant to this division.
(Ord. No. 96-192, § 3(A), 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-122. Application and renewal.

(a) Each applicant for a bingo license shall file with the city finance director a written application in a form prescribed by the clerk-treasurer duly executed and verified. The application form may be modified as required by the bingo review committee.

(b) Each new applicant shall pay a $100.00 nonrefundable bingo application filing fee with the city finance director together with a completed bingo license application.

(c) In each application, there shall be designated an active member of the applicant organization under whom the game of bingo is to be conducted, and there shall be appended to the application a statement executed by the member so designated that he will be responsible for the conduct of such bingo game in accordance with the terms of the license and the provisions of this article and the state constitution. There shall be appended to the application a copy of a deed, lease and/or sublease, if applicable, executed in the name of the licensee, for the premises upon which the bingo game is to be conducted. Each bingo license application shall include the following information, items or attachments:

(1) Date of application.

(2) Legal name of the firm, association, corporation or organization.

(3) Actual or trade name of the firm, association, corporation or organization.

(4) Current mailing address and telephone number of the firm, association, corporation or organization and the address for the last two years, if different from the current address.

(5) Location address where bingo games are to be conducted.

(6) Days of the week bingo games are to be played.

(7) Time of day at which bingo games are to be played.

(8) Date the firm, association, corporation or organization was established in the city.

(9) Name, date of birth, current address and telephone number of each current officer or director of the firm, association, corporation or organization.

(10) Name, date of birth, current address and telephone number of the organization's bingo committee members.

(11) Date the firm, association, corporation or organization was incorporated.

(12) Copy of the certificate of incorporation.

(13) Copy of the organization's or association's charter. If the organization is affiliated with any state, national or international organization, the organization must submit a copy of the authorization or evidence of affiliation issued by the state, national or international organization.

(14) Copy of the organization's bylaws.

(15) Date the organization was approved as an organization under section 501(c) of the United States Internal Revenue Code.

(16) Copy of the organization's 501(c) exemption.

(17) Copy of the current active membership roster, including but not limited to the name, address and telephone number of all members, which must number at least 50, a majority of which shall reside within the corporate limits of the city.

(18) Name, address and telephone number of the owner of the real estate where bingo games will be conducted.

(19) A copy of the deed to the property upon which bingo games will be conducted.

(20) A copy of any lease or sublease pertaining to the property upon which bingo games will be conducted.

(21) A copy of the organization's financial statements for the previous two years.

(22) A copy of the sign permit issued by the city inspection division if the organization is going to display a sign.

(23) A list of all charitable or educational donations, including the dollar amount or value, made during the past 23 months.

(24) A completed city annual privilege license tax application.

(25) A statement attached to the bingo application as to the specific purpose to which the entire net proceeds of such bingo games are to be devoted.

(26) A statement that all persons signing the application have received and read a copy of this article.

(27) A $100.00 bingo application fee.

(d) No person who holds a bingo license from the county to operate a game of bingo outside the corporate limits of the city shall be allowed to operate a game of bingo within the corporate limits of the city. Any person who has had a license revoked or denied by the county commission shall not be allowed to apply to operate a game of bingo within the corporate limits of the city for a period of two years from the date of such revocation or denial, whichever is applicable.

(e) As a prerequisite for the renewal of any license issued under this division, the licensee must submit to the city finance director a statement containing the information required in subsections (c)(9) and (10) of this section. In addition, the licensee must submit a prior year's annual (December 1 through November 30) bingo financial statement, in a format approved by the city finance director, to be used by the bingo review committee, to determine the renewal eligibility of each licensee. The financial statement is due on or before January 15. If any of the information required in this section for the original application for any bingo license has changed as

of the date of any application for a license renewal, then such information shall be submitted in connection with a renewal application.
(Ord. No. 96-192, § 4, 7-11-1996; Ord. No. 99-223, § 1, 4-8-1999; Ord. No. 99-516, § 1, 6-24-1999; Ord. No. 16-966, § 2, 1-12-2017; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-123. Issuance and duration of license.

(a) The city finance director shall cause to be investigated the qualifications of each applicant and the merits of each application with due expedition after the filing of the application. The clerk-treasurer shall deliver to the review committee the application, together with the supporting documents and a detailed report of the results of his investigation to determine that the applicant is duly qualified to be licensed to conduct bingo under this article; that the members of the applicant designated in the application to conduct bingo are bona fide active members of the applicant and are persons of good moral character and have not violated any provision of this article or been convicted of a felony or, if convicted, have received a full pardon; that such games are to be conducted in accordance with the provisions of this article, and that the proceeds are to be disposed of as provided by this article; and if the committee is satisfied that no commission, salary, compensation, reward or fee whatsoever will be paid or given to any person holding, operating or conducting or assisting in the holding, operation and conduct of any such games, the committee shall authorize the issuance of a license to the applicant for the conduct of bingo upon payment of a license fee of $500.00 for each license year. Where the application indicates that bingo will be conducted for a period of time limited to one calendar week, the license fee shall be $25.00; and the license shall be limited to the period of time designated in the application. As provided by Code of Ala. 1975, § 40-9-13, Shrine Charitable Amusement & Fund Raising Events, Cahaba Shrine Temple, and the Huntsville Shrine Club are exempt from the payment of a privilege license fee but are subject to all other provisions of this article.

(b) Any person granted a new bingo license shall be allowed to start playing bingo upon issuance of the license by the city finance director.

(c) If during any licensing year any of the information contained in the application changes, the bingo licensee must, within 30 calendar days after the change occurs, submit to the city finance director a statement in writing containing the changes. The statement shall be signed, sworn to and notarized in the same manner as the original application as provided for in this article. The failure of an organization to submit the statement in writing containing the changes within the 30 calendar days after the change occurs shall be cause for revocation by the bingo committee of the bingo license of the firm, association, corporation or organization.

(d) There is created for the purpose of assisting the city finance director a committee known and designated as the bingo review committee, which shall be composed of seven members to be appointed as follows: five members shall be appointed by the city council for a term of two years and may be affiliated with a licensed organization; one member shall be the administrative assistant to the mayor; and one member shall be an employee of the police department designated by the chief of police. Vacancies will be filled in the same manner as the original appointments. The city finance director or his designated representative shall serve as an advisor to the committee. The committee shall assist the city finance director in the consideration and special investigation of the applications required to be reviewed. The committee may require any applicant to submit additional evidence that the applicant has habitually and continually sponsored charitable or educational projects within the community as required, and may require, as a condition precedent to consideration of the application, that verified information concerning the projects be furnished by the applicant. The committee shall review and investigate applicants assigned to it by the city finance director. The committee shall elect a chairman, vice-chairman and secretary and adopt its own procedural rules. The chairman, vice-chairman and secretary shall be subject to re-election annually. The

committee, in reviewing an application assigned to it by the city finance director, shall consider all relevant findings compiled by the city finance director. The committee may conduct a full financial analysis and investigation of the application. The committee shall make a determination of whether or not the organization for which a bingo license is sought is a bona fide nonprofit organization and whether or not the proceeds are to be applied in accordance with this article. In addition, the committee shall review all statements of receipts and expenses filed and report any violations to the city finance director. The committee shall hold such regular meetings as may be determined by the committee. The chairman or any two members of the committee may call a special meeting at any time; however, notice of the time and place of any special meeting must be given to all members. The city finance director shall issue a license approved by the committee within ten days from the date of such approval.
(Ord. No. 96-192, § 5, 7-11-1996; Ord. No. 99-223, § 2, 4-8-1999; Ord. No. 23-520, § 2, 7-13-2023)

Sec. 4-124. Hearing.

No application for a license under this article shall be denied by the committee until after a hearing, held on due notice of the applicant, at which the applicant shall be entitled to be heard upon the qualifications of the applicant and the merits of the application. If the application for a license is denied by the committee, the applicant may appeal to the city council by filing a notice of appeal to the city finance director within ten days from the date of denial. The city council shall set a hearing on the appeal within a reasonable time. The decision of the city council shall be final.
(Ord. No. 96-192, § 6, 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-125. Form of license.

Each license shall be in such form as shall be prescribed by the city finance director and shall contain a statement of the name and addresses of the member or members of the licensee under whom the games will be conducted, the place where and the dates and times when such games are to be conducted and the specific purposes to which the entire net proceeds of such games are to be devoted.
(Ord. No. 96-192, § 7, 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Sec. 4-126. Control; suspension/revocation of license.

The city finance director shall exercise rigid control and close supervision over all games of bingo conducted under a license, and shall have the power and authority to suspend any such license, and after notice and hearing, to revoke the license for violation of any provision of such license, or of this article.
(Ord. No. 96-192, § 8, 7-11-1996; Ord. No. 23-520, § 1, 7-13-2023)

Chapter 5

ANIMALS*

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***Cross references—**Animal control advisory committee, § 2-1381 et seq.; environmental management, ch. 12; health and sanitation, ch. 14; animal fighting, § 17-183; persons riding animals or driving animal-drawn vehicles, § 25-3.

State law references—Animals generally, Code of Ala. 1975, § 3-1-1 et seq.; general authority relative to animals, Code of Ala. 1975, § 11-47-110.

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ARTICLE I. IN GENERAL

Sec. 5-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Altered or *sterilized (spay, neuter, sterilize, "fix")* means surgical removal or modification of reproductive organs by a licensed veterinarian such that the animal can no longer produce offspring.

Animal means any organism of the kingdom Animalia other than a human being, especially a mammal, fish, bird or reptile.

Animal rescue organization or agency means a not-for-profit organization or agency with tax-exempt status under Section 501(c)(3) of the United States Internal Revenue Code, with the mission and practice, in whole or in significant part, of rescuing and placing animals in permanent homes, and which does not obtain animals from a breeder or broker for profit or compensation.

Animal shelter means the HAS facility or other director-approved facility which houses and cares for stray, homeless, impounded, surrendered or abandoned animals.

At large means any animal off the property of its owner or person in charge and not carried by such person, or kept in effective closure, or under control by means of a leash, or any animal on the real property of its owner or person in charge not under restraint.

Attack means any aggressive physical contact initiated by an animal, or any aggressive contact or behavior initiated by the animal which necessitates defensive action by any person to prevent bodily harm.

Bird means any warm-blooded vertebrate of the class Aves that has a body covered with feathers and forelimbs modified into wings.

Bitten means seized with the teeth or claws, so that the skin of the person or animal seized has been nipped or gripped, or has been wounded or pierced, and includes suspected or confirmed contact of saliva with a break or abrasion of the skin or with any mucous membrane, as determined by a licensed physician.

Cage means an enclosed structure that confines animals and restricts access of other animals.

Caged means confined in a cage, which may include a vehicle, in such a way that the free movement of any animal is restricted so that the caged animal is prevented from biting or attacking a person or animal.

Cat means any member of the domestic feline family four months of age or older.

Commercial transaction means an interaction between two or more parties in which a live animal is exchanged for cash, goods, services or something of value.

Community cat means any free roaming cat that may be cared for by one or more residents of the immediate area who is/are known or unknown; a community cat may or may not be feral. Community cats are ear tipped, sterilized and have received at least one vaccination against rabies. Community cats are exempt from any licensing, stray, abandonment and at-large provisions directed towards owned animals. A community cat may also be defined as a cat 'found' outside that is brought to an animal shelter and not yet sterilized/ear tipped.

Community cat caregiver means a person who provides care, including food, shelter or medical care to a community cat, while not being considered the owner, custodian, harborer, controller or keeper of a community cat or to have care or charge of a community cat, as identified and recognized by the director. Caregivers must make every effort to minimize the impact on local wildlife, feed the proper quantity of food for the number of cats in appropriate food containers, discard food containers daily and feed only on their property or with the permission of another landowner (city, state or federal public property). Community cat caregivers may redeem community cats from the shelter without proof of ownership and are exempt from any charges and/or fees.

Community cat diversion means sterilizing, ear tipping and vaccinating a cat large enough for spay/neuter that is found outside and returning him to his original location as opposed to admitting to a shelter.

Corral means any uncovered, enclosed parcel of land in which animals, typically horses or cattle, are kept.

Dangerous animal means an animal, except a dog used by law enforcement officials for legitimate law enforcement purposes, regardless of its species or breed, that has bitten, attacked, or caused physical injury to a human being or a domesticated animal without provocation; has repeatedly bitten or caused physical injury to humans or domesticated animals; has attacked in a manner which requires a defensive action by any person to prevent bodily injury; or consistently chases, snaps, hisses, snarls, growls, barks or displays other aggressive behavior at human beings or domestic animals without reason or provocation.

Dangerous dogs class means a court-ordered seminar taught by HAS to address proper care and ownership of dogs determined to be dangerous.

Director means the director of the department of animal services or Huntsville Animal Services (HAS).

Dog means any member of the domestic canine family four months of age or older.

Domesticated animal means any tame domesticated dog, cat, guinea pig, hamster, ferret, rabbit, or other domesticated animal regularly kept as a pet; tame horses, and typically non-aggressive livestock such as cattle, sheep or goats. Domesticated animal shall not include any feral animal running at large or owned, but not yet tamed.

Ear tipping means the removal of the quarter-inch tip of a community cat's left ear, performed while the cat is under anesthesia, in compliance with any applicable federal or state law, and under the supervision of a licensed veterinarian, designed to be the universal identification that the community cat is sterilized and lawfully vaccinated against rabies at least once. Caregivers must make every effort to booster the rabies vaccination as per the manufacturer's instructions.

Exotic animal (includes wild animal) means an animal which would ordinarily be confined to a zoo, or one which would ordinarily be found in a wilderness of this or any other country; or a species of animal not indigenous to the United States or to North America or which causes zoonotic diseases or one which otherwise causes a reasonable person to be fearful of significant destruction of property or of bodily harm, the latter including but not limited to raccoons, bobcats, coyotes, wolves, hybrid wolves, Vietnamese potbellied pigs, monkeys and other such animals. Wild or exotic animals specifically include all species of reptiles but do not include animals of a species customarily used in the state as ordinary household pets; animals of a species customarily used in the state as domestic farm animals, fish confined in an aquarium, birds or insects.

Foster means a director-approved person, animal shelter or animal rescue agency that can temporarily shelter, nurture and care for an adoptable HAS animal until a permanent home or placement is available.

Fowl means a domestic bird used in the market or household for food consumption, such as a chicken, duck, goose, guinea, peafowl, turkey, pheasant, pigeon or other avian species.

HAS means the City of Huntsville Animal Services Department, including the city animal shelter, places designated or used as such by the city as a place of temporary confinement of HAS animals held under the authority of this chapter, and HAS personnel.

HAS officers means the director and all enforcement officers assigned to HAS.

Health department means the county department of public health.

Health officers means officials with the county department of public health.

Hog means any member of the porcine family.

Horse means any member of the equine family.

Humane means characterized by tenderness, compassion and sympathy for animals.

Humane trap means an enclosure in which an animal can be caught without causing injury, pain or undue suffering to the animal after being caught.

Immunization against rabies means the injection, in a manner approved by the state health officer and the state veterinarian, of anti-rabies vaccine approved by the state health officer and the state veterinarian. The administration of anti-rabies vaccine to species other than those for which reliable immunization data is available shall be a violation of Code of Ala. 1975, tit. 3, ch. 7A (Code of Ala. 1975, § 3-7A-1 et seq.).

Impounded means the animal is taken into the custody of law enforcement or HAS officers and confined in the animal service center or other such similar facility as may be approved by the director.

Keep means confine, harbor and allow to remain.

Kennel means an establishment or structure used for harboring, raising, training or boarding animals.

Kitten means any member of the domestic feline family less than four months of age.

Microchip means a permanent method of electronic identification. Each chip has a unique number that is detected using a microchip scanner, and includes an owner's identifying information.

Microchipping means injecting a microchip under the skin and between the shoulder blades of a domesticated dog or cat.

Nuisance animal means an animal that threatens the safety of or damages a member of the general public or interferes with the ordinary use and enjoyment of another's property.

Offer for sale means to sell, offer for sale or adoption, advertise for the sale of, barter, auction, give away, or exchange through a commercial transaction any dog, cat, kitten, or puppy.

Owner means any person having a right of property in an animal, or who keeps or harbors an animal, or who has it in his care, or acts as its custodian, or who permits an animal to remain on or about any premises occupied by him.

PAWS class means court-ordered seminar taught by HAS to address proper care and ownership of domesticated animals.

Pen means an enclosure for housing and feeding small animals.

Person in charge means any person in whose charge the animal is being kept, and all the responsible adult members of the household in which an animal is kept or allowed or suffered to remain.

Pet shop means a retail establishment, business or store where live animals are sold, exchanged, bartered or offered for sale as pets to the general public. Such definition shall not include an animal shelter or animal rescue organization as defined in this section.

Pet supply store means a retail establishment, business or store which sells pet food, animal supplies and pet accessories to the general public, and which may also sell, exchange, barter or offer for sale live animals as pets to the general public.

Physical injury means impairment of physical condition or substantial pain.

Proof of sterilization means a letter certificate signed by a state licensed veterinarian that describes the pet by name, description, breed, color, age, gender, and owner's name and indicates that the animal's reproductive organs have been surgically removed in order to render the animal unable to reproduce or may be established by physical examination by the director.

Public nuisance means any animal, or any condition resulting from an animal, that unreasonably annoys human beings, endangers the life or health of other animals or persons, or substantially interferes with the rights of citizens, other than its owners, to enjoyment of life or property.

Puppy means any member of the domestic canine family less than four months of age.

Quarantine means confinement under the direct care, custody, control and supervision of a licensed veterinarian for a period of ten days subsequent to the date of the exposure to rabies, or as otherwise directed by the health officer.

Reptile means any cold-blooded vertebrate of the class reptilian that has a body covered with scales. This includes, but is not limited to, the families of snakes, lizards, chelonians, crocodilians and Tuataria.

Run means an enclosed structure that confines animals and restricts access to or from other animals.

Serious physical injury means physical injury which creates a substantial risk of death, or which causes serious and protracted disfigurement, protracted impairment of health, or protracted loss or impairment of the function of any bodily organ.

Shelter/neuter/return (SNR) means the process by which a community cat is brought to HAS, neutered, and returned to its community.

Stable means a building for the lodging and feeding of horses, cattle, etc.

Stray animal means any animal running at large, the owner or person in charge of which is unknown.

Trap/neuter/return (TNR) means the process of humanely trapping, sterilizing, vaccinating against rabies and ear tipping community cats and returning them to their original location.

Unattended means the animal is not in visual range of an owner, responsible party, or person in charge.

Unsafe structure, building or property means a building, structure and surrounding premises found to be dangerous to the life, health, property or safety of the public or the occupants of the structure. *Vicious animal* means any animal that is known to have bitten or attacked a person or other animal without provocation or cause; or, additionally, in the case of a dog, one that is known by the owner or person in charge to chase moving vehicles, or to charge persons on public streets, in public parks or public park areas, whether or not such dog has actually bitten or attacked a person or other domestic animal; or any dog that has been trained as a guard dog and has bitten or attacked a person or other animal. (Ord. No. 95-693, § 5-1, 10-12-1995; Ord. No. 99-1036, § 1, 12-9-1999; Ord. No. 14-89, § 1, 2-27-2014; Ord. No. 18-952A, §§ 1, 2(A.—E.), 11-1-2018; Ord. No. 18-1089, § 1, 12-20-2018)

Cross reference—Definitions generally, § 1-2.

Sec. 5-2. Department of animal services.

(a) HAS shall be under the general supervision and control of the director of the city's animal services department. The director shall be a department head of the city and shall be appointed by the mayor subject to the approval of the city council as provided by law. The director shall hold office for the term of the mayor making the appointment. The director shall administer the department in accordance with city policies and procedures and the laws of the state. Generally, the director shall be available to councilmembers to respond to requests for information or questions related to matters under the general control of the director which are pertinent to the performance of a councilmember's duties.

(b) All enforcement officers assigned to HAS shall be known as HAS officers and shall provide animal control and services. Any provisions of this chapter referring to the director shall also mean and include any authorized employee acting in his stead and under his supervision.

(c) The policies, programs, procedures, and activities of HAS, as established by the director, shall be in furtherance of advancing the following goals:

(1) Maximize the live release of all healthy and treatable domestic animals received into HAS care;

(2) Development of routine and positive relationships with private animal rescue organizations to pursue joint programs that facilitate the release of HAS animals into the care of the partner agencies as a component of the department's active foster and adoption programs;

(3) Intake procedures of domestic animals that meet modern standards for shelter medicine and seek to identify the owner of owned domestic animals. All methods of identification should be attempted at intake, including use of microchips and similar emerging technologies;

(4) Foster care programs to provide for the temporary care of HAS animals during mandatory hold periods and while awaiting adoption;

(5) Pre-selection of HAS animals for permanent care solutions during mandatory hold periods;

(6) A single web-based source for listing and advertising all domestic animals at HAS to include initial listing as a component of intake processing of all animals and ensure daily updates to the site;

(7) Defined standards of care of all domestic animals housed at HAS that meet the standards for modern shelter medicine;

(8) Accurate recordkeeping of all animals housed at HAS. Publish interim monthly reports providing outcomes for animals received at HAS; and following audit, publish an annual report (calendar year based) providing aggregated annual statistics for all animals received and their outcomes. Reports shall be published on the City of Huntsville website for free, public access; and

(9) Required director approval before any euthanasia procedure. Authority to perform euthanasia shall be retained by the director. The euthanasia policy shall include all conditions that must be met prior to conducting any euthanasia procedure.

(Ord. No. 95-693, § 5-2(b), 10-12-1995; Ord. No. 96-845, 10-28-1996; Ord. No. 07-69, 2-8-2007; Ord. No. 18-952A, § 4, 11-1-2018)

Cross reference—Department of public safety, § 2-301 et seq.

Sec. 5-3. Disposition of fees.

All moneys collected, as provided for in this chapter, shall be turned over and delivered forthwith to the city clerk-treasurer.

(Ord. No. 95-693, § 5-3, 10-12-1995)

Sec. 5-4. Citations and warrants.

When any animal is found by the director or by a HAS officer to be in violation of any provision of this chapter, except those provisions of section 5-6 involving violence to animals or as otherwise provided in this chapter and the person responsible becomes known to the director or to a HAS officer, he may issue a citation to the owner or person in charge for such violation, directing him to appear in the municipal court at a time and a date stated in the citation to answer to charges of violations of this chapter; and such charges shall be stated in the citation. For violations of section 5-6 involving violence or a threat of violence against an animal, no prosecution shall be commenced and no arrest made pursuant to this section except upon affidavit made before and warrant issued by a judge or magistrate of municipal court.

(Ord. No. 95-693, § 5-4, 10-12-1995; Ord. No. 18-952A, § 1, 11-1-2018)

State law reference—Citations, Code of Ala. 1975, § 11-45-9.1.

Sec. 5-5. Minimum penalties.

Any person violating any provision of this chapter shall be punished as provided by section 1-7; however, when any person is found guilty of violating any provision of this chapter for which a fine is provided and imposed, in addition to such other punishment as may be provided by the court, the minimum fines shall apply as follows:

Violation Code	Offense	First Offense	Second Offense	Third Offense or Subsequent Offense
200	Failure to restrain or confine dog or cat	$25.00	$50.00	$100.00
201	Failure to register or obtain license/permit for animal	$15.00	$25.00	$50.00
202	Failure to confine a female dog or cat in estrus (season/heat)	$25.00	$50.00	$200.00
203	Failure to attach current license tag to animal	$15.00	$25.00	$50.00
204	Failure to attach current rabies tag to animal	$15.00	$25.00	$50.00
205	Confining animal or animals in pen less than minimum area or improper distance from occupied dwelling	$15.00	$25.00	$50.00
207	Cruelty to animals	$200.00	$500.00	Court only
208	Maintaining a nuisance animal	$25.00	$50.00	$100.00
210	Allowing another animal other than a dog or cat to run at large	$25.00	$50.00	$100.00
211	Failure to obtain rabies vaccination	$20.00	$25.00	$50.00
213	Misuse of animal trap	$25.00	$50.00	$100.00

At the judge's discretion, the fine for an offense may be waived/refunded upon proof that the owner or person in charge has successfully completed the PAWS class.

The fines listed in this section are in addition to all applicable court costs.
(Ord. No. 95-693, § 5-5, 10-12-1995; Ord. No. 09-389, § 2, 5-14-2009; Ord. No. 18-952A, § 5, 11-1-2018)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 5-6. Cruelty to animals prohibited.

(a) It shall be unlawful if a person in charge:

(1) Fails to provide clean, fresh potable water and food which is adequate for the animal's size, age, and physical condition. The water shall be either free flowing or provided in a removable receptacle that is properly secured to prevent tipping and rendering it useless, and shall also be of an adequate amount given the size of the animal and the environment in which the animal is kept to prevent the animal from overheating or dehydrating. The food provided to the animal shall be suitable for the animal's physical condition and age and in sufficient quality and quantities to maintain an adequate level of nutrition for the animal.

(2) Overrides, overworks, overloads or overdrives any animal, causing physical pain or suffering;

(3) Beats, tortures, injures, torments, poisons, deprives of necessary sustenance or mutilates any animal, causing physical pain, suffering or death;

(4) Fails to provide adequate medical treatment for any sick, diseased or injured animal or any animal suffering from any type of parasitic infestation;

(5) Keeps any animal under insanitary or inhumane conditions which are detrimental to the animal's health and general welfare, fails to properly groom the animal, including cutting or maintaining the animal's hair to an optimum length and condition appropriate for the animal's breed, or fails to maintain the animal in a condition of good order or cleanliness which increases the probability of transmission of disease, animal discomfort or suffering;

(6) Teases, molests, baits or harasses any animal;

(7) Sets any rabbit, raccoon, fox or other such animal loose for the purpose of chasing or hunting the animal or conducting a race using such animal;

(8) Promotes, permits, stages, holds, manages, conducts, carries on, or attends any game, exhibition, contest, fight or combat involving one or more animals or involving animals and humans;

(9) Fails to provide adequate shelter and space for an animal:

a. Any animal that is habitually kept outside or repeatedly left outside unattended shall be provided with a structurally sound, moisture-proof and wind-proof shelter large enough to keep the animal reasonably clean and dry. A shelter which does not adequately protect the animal from temperature extremes or precipitation, or which does not provide adequate ventilation or drainage, shall not comply with this section. Adequately protecting the animal from temperature extremes shall be determined by the HAS officer based on the breed, body condition, medical condition, hair coat, and age of the animal. Generally, the inside of the shelter should be maintained above 40°f and below 90°f.

b. An animal's shelter and bedding and other accessible space shall be maintained in a manner which minimizes the risk of the animal contracting disease, being injured or becoming infested with parasites.

c. Shelter for an animal is defined and interpreted as a structure having four sides in addition to a roof and floor with one side having an entrance or an igloo type structure specifically designed for outdoor housing of an animal. The animal shall be able to enter, stand, sit, lie down and turn around in the shelter in a normal manner. A barrel, keg, or drum shall not be considered shelter. Transport carriers designed to move an animal from one location to another and which do not have solid walls shall not be considered shelter.

d. The shelter and surrounding area shall be kept clean of accumulated feces, water, mud, garbage and any other debris, and shall provide at least one dry location for the animal to rest or stand.

e. The shelter shall be placed in an area that provides protection from the elements, including wind and rain, and direct rays of the sun, when sunlight is likely to cause overheating or discomfort.

(10) Transports or carries any animal in a motor vehicle unless the animal is safely enclosed within the vehicle or protected by a cab or container, cage, cross-tether, or other device to prevent the animal from falling out of or being thrown from the vehicle;

(11) Places or confines an animal or allows an animal to be placed or confined in a motor vehicle under such conditions or for such a period of time as to endanger the health or welfare of the animal because of temperature, lack of food or water, or such other conditions as may reasonably be expected to cause suffering, disability or death;

(12) Restrains an unattended animal with a leash or tether, or fixed point chaining or tethering the animal, to a stationary object, including but not limited to a house, tree, fence, post, garage, or shed.

(13) Maintains any reptile in a manner that is deleterious to its health and well-being. Poor husbandry, poor nutrition and/or lack of proper preventative care are all considered cruel and deleterious to the welfare of the reptile and are unlawful; or

(14) Sets loose any reptile that is not native to the climate of North Alabama.

(b) Any person who unlawfully or maliciously kills, disables, disfigures or injures any animal shall be guilty of a misdemeanor; but this subsection shall not be construed as prohibiting the dehorning of cattle.

(c) The violation of any provision of this section shall constitute a misdemeanor and shall result in the removal of the animal when the director or an enforcement officer determines that such removal is necessary for the safety of the animal.

(Ord. No. 95-693, § 5-11, 10-12-1995; Ord. No. 99-1036, § 2, 12-9-1999; Ord. No. 09-1017, § 1, 11-6-2008; Ord. No. 18-952A, § 6, 11-1-2018)

State law reference—Cruelty to animals, Code of Ala. 1975, § 13A-11-14.

Sec. 5-7. Abandoning animals prohibited.

It shall be unlawful for any person to transport any domestic animal or any exotic animal, including reptiles, into the city and subsequently abandon or set loose the animal with the intent of avoiding the responsibility for its custody and care. Further, it shall be unlawful for any person to transport any domestic animal or any exotic animal, including reptiles not native to the climate of North Alabama, out of the city limits and subsequently abandon or set loose the animal with the intent of avoiding the responsibility for its custody and care.

(Ord. No. 95-693, § 5-12, 10-12-1995; Ord. No. 99-1036, § 3, 12-9-1999)

State law reference—Destruction of abandoned animals by SPCA, Code of Ala. 1975, § 3-1-8.

Sec. 5-8. Public nuisance.

It shall be unlawful for any person to own, keep, possess or maintain an animal in such a manner as to constitute a public nuisance. By way of example and not of limitation, the following acts or actions by an owner or person in charge of an animal are declared to be public nuisances and are therefore unlawful:

(1) Allowing or permitting an animal to damage the property of anyone other than its owner, including but not limited to getting into or turning over garbage containers, or damaging gardens, flowers and vegetables, or defecating upon the property of another.

(2) Maintaining an animal in an insanitary environment which results in offensive odors or danger to the animal or to the public health, safety or welfare; or failing to maintain the animal in a condition of good order and cleanliness which increases the probability of disease transmission.

(3) Maintaining the owner's property in a manner that is offensive, annoying or dangerous to the public health, safety or welfare of the community because of the number, type, variety, density or location of animals on the property.

(4) Allowing or permitting an animal to bark, whine, howl, crow or cackle in an excessive or untimely fashion so as to interfere with the reasonable use and enjoyment of neighboring premises.

(5) Maintaining an animal that is diseased or dangerous to the public health without adequate medical treatment.

(6) Maintaining an animal that habitually or repeatedly chases, snaps at, attacks or barks at pedestrians, joggers, bicycles or other vehicles, or animals being walked on a leash.

(Ord. No. 95-693, § 5-13, 10-12-1995)

Sec. 5-9. Noisy animals.

(a) It shall be unlawful and a nuisance for any person to keep on a residential lot or premises within the city any animal or group of animals,

known to such person habitually, continuously or intermittently to make or emit sounds or noises of such volume and nature as unreasonably to interfere with or disturb the peace, quiet, comfort and repose of a person of ordinary sensibilities within the neighborhood in the reasonable use and enjoyment of adjacent property.

(b) It shall be unlawful and a nuisance for any person to keep on any tract, lot or premises within the city any animal or group of animals, whether housed in a corral, kennel, building or other structure, under such circumstances that the sounds or noises emitted by such animals are of such volume and nature as unreasonably to interfere with or disturb the peace, quiet, comfort and repose of persons of ordinary sensibilities in the reasonable use and enjoyment of any adjacent property used for residential purposes.

(c) Any owner or person in charge violating this section shall be guilty of maintaining a nuisance; however, no prosecution shall be commenced and no arrest made pursuant to this section except upon affidavit made before and warrant issued by a municipal judge or magistrate of the city.

(Ord. No. 95-693, § 5-14, 10-12-1995)

Cross reference—Noise, § 12-231 et seq.

Sec. 5-10. Odor from animals.

(a) It shall be unlawful and a nuisance for any person to keep on a residential lot or premises within the city any animal or group of animals, known to such person habitually, continuously or intermittently to create offensive odors so as to interfere with the reasonable use and enjoyment of adjacent property or neighboring premises.

(b) It shall be unlawful and a nuisance for any person to keep on any tract, lot or premises within the city any animal or group of animals, whether housed in a corral, stable, pen, kennel, building or other structure, under such circumstances that the odor interferes with the reasonable use and enjoyment of adjacent property or neighboring premises.

(c) Any owner or person in charge violating this section shall be guilty of maintaining a nuisance; however, no prosecution shall be commenced and no arrest made pursuant to this section except upon affidavit made before and warrant issued by a municipal judge or magistrate of the city.

(Ord. No. 95-693, § 5-15, 10-12-1995)

Sec. 5-11. Sanitation of premises in which animals are kept.

(a) It shall be unlawful for any owner or person in charge to keep or maintain a yard, run, corral, pen, stable or any enclosure in which animals are kept in such an insanitary condition that the lives, or health of the public generally, of the owner, person in charge, his family or the animals contained shall be endangered. This condition will be deemed to exist when the yard, pen or enclosure shows evidence of not being cleaned daily (each day). The presence in or about such yard, pen, stable or enclosure of flies, the live larvae of flies, roaches, rats or other vermin or conditions that permit or favor the growth, existence or development of such vermin or conditions shall be prima facie evidence of failure to comply with this section. All debris and residue shall be removed daily and disposed of in a proper and sanitary manner. All yards, runs, corrals, pens, stables or enclosures in which animals are kept shall comply with all pertinent regulations of the health department.

(b) Any owner or person in charge of a corral, pen, stable or enclosure wherein animals are kept shall be required to contain and treat all stormwater runoff from such corral, pen, stable or enclosure so as to meet the pollutant limitations included in the city National Pollutant Discharge Elimination System (NPDES) stormwater permit issued by the state department of environmental management. A retention pond shall be required at such places if containment and treatment of stormwater runoff without a retention pond will result in stormwater discharge that is not within effluent discharge limitations as provided in the city's NPDES permit.

(Ord. No. 95-693, § 5-16, 10-12-1995)

Sec. 5-12. Humane traps.

(a) The director or any HAS officer is authorized, in order to apprehend animals in violation of this chapter, which are otherwise

difficult to apprehend, to use traps humanely designed to capture such animals by placing the traps upon any public property of the city, upon the right-of-way of any public street or highway, or upon the private property of any person granting permission.

(b) It shall be the duty of the director or a HAS officer to check such traps daily and remove captured animals to HAS where they shall be disposed of as otherwise provided in this chapter.

(c) It shall be unlawful for any person to molest or tamper with any such trap, or to remove any animal captured in any such trap, or to interfere with the director or HAS officer in setting or servicing any such trap.

(d) Any owner or person in charge of any premises within the city may set his own humane trap on such premises for the purpose of trapping and removing any domesticated animals, except songbirds, which have entered the premises. The owner or person in charge shall notify the director or an HAS officer prior to setting his own humane trap. Use of one's own humane trap pursuant to this section shall be coordinated with the director or HAS officer to make sure such trapping is conducted at times consistent with the operating hours of HAS, it being the intent of this section that no captured animal remain trapped for more than 12 hours. It shall be the duty of the owner or person in charge to check such traps daily and bring any captured domesticated animals to HAS where they shall be disposed of as otherwise provided in this chapter. It shall be a violation of this chapter for any owner or person in charge of any premises to do any of the following:

(1) Use any trap to capture or remove songbirds;

(2) Use any trap on any premises not his own or not under his charge;

(3) Fail to inspect any trap at least every 12 hours;

(4) Fail to deliver any domesticated animal captured to HAS or to the animal's owner, if known, within 12 hours of its entrapment; and if the animal's owner is unknown, fail to notify HAS within 12 hours of its entrapment;

(5) Fail to exercise reasonable care and diligence to avoid injury to the trapped animal; or

(6) Use or permit to be used any leg hold trap, snare or other inhumane trapping method or device unless authorized by the health officer, appropriate state or federal official, or director.

(e) The director may authorize citizens to use city-owned traps for trapping domesticated animals, including SNR and TNR traps. Before any person shall be permitted to obtain a humane trap from HAS for use on his own premises or premises over which he is in charge, such person shall sign an agreement that he has been advised that the acts or failures to act enumerated in this section constitute a violation of this chapter.

(f) Any owner or person in charge of any dog or cat captured in a humane trap that is off the premises of the owner or person in charge shall be prima facie presumed to have allowed, suffered or permitted such animal to be or run at large. If at any time a dog or cat is captured by use of such trap and the owner or person in charge is known or becomes known to the director or a HAS officer, such owner or person in charge shall be given a citation to appear in the municipal court as provided in section 5-4.
(Ord. No. 95-693, § 5-17, 10-12-1995; Ord. No. 18-952A, §§ 1, 7, 11-1-2018)

Sec. 5-13. Animals on unsafe property.

(a) *Unsafe structure or building*. It shall be unlawful for any person to keep or maintain any animal inside or upon the property or premises, including any outside fenced area or yard, of any structure, dwelling or building, that has been designated unsafe and occupancy prohibited by a city housing or building official as stated in section 7-354 of this Code.

(b) *Right of entry.* Any HAS officer or police officer is hereby authorized to enter the property or premises, including any outside fenced area or yard, of any building, structure, dwelling, apart-

ment, or apartment house, that has been designated unsafe and occupancy prohibited by a city housing or building official as stated in section 7-354 of this Code, to investigate, retrieve, capture and/or remove animals.

(c) *Confinement and disposition of animals seized.* Any animal removed pursuant to this section shall be deemed to be an animal running at large, and shall be subjected to the confinement, care and disposition procedures set forth in sections 5-72 through 5-75 of this Code.
(Ord. No. 18-616, § 1, 8-23-2018; Ord. No. 18-952A, § 1, 11-1-2018)

Sec. 5-14. Stray animals.

Any person within the city finding any animal running at large about his residence or the residence of which he is in charge may take custody of the animal and deliver the animal to the director, or any HAS officer, as an at-large or stray animal whether or not the owner or person in charge of the animal is actually known, and whether or not there is any license tag or identification affixed to the animal. This section is not applicable to community cats, as determined by the director.
(Ord. No. 95-693, § 5-54, 10-12-1995; Ord. No. 99-1036, § 7, 12-9-1999; Ord. No. 18-952A, §§ 1, 8, 11-1-2018)

Editor's note—Ord. No. 18-952A, § 8, adopted Nov. 1, 2018, renumbered the former § 5-111 as § 5-14.

Sec. 5-15. Transporting animals into city for purpose of impounding.

It shall be unlawful for any person to drive or bring or attempt to drive or bring any animal into the city for the purpose of having the animal impounded; however, dogs and cats brought in from outside the city may be accepted by the director or a HAS officer, at the director's discretion, from the owner or other person in charge for immediate disposal or adoption only.
(Ord. No. 95-693, § 5-40, 10-12-1995; Ord. No. 18-952A, § 9, 11-1-2018)

Editor's note—Ord. No. 18-952A, § 9, adopted Nov. 1, 2018, renumbered the former § 5-50 as § 5-15.

Sec. 5-16. Violations of this chapter.

Except as otherwise provided in this chapter, any person violating or aiding or abetting the violation of any provision of this chapter, or counterfeiting or forging any certificate or tag, or making any misrepresentation in regard to any matter prescribed by this chapter or rule promulgated under this chapter or except as otherwise provided, or resisting, obstructing or impeding any authorized officer in enforcing the provisions of this chapter, or refusing to produce for immunization any animal in his possession for which anti-rabies vaccine is recognized and recommended, or for failing to report an animal bite, shall be guilty of a misdemeanor, and for the purpose of enforcing this chapter, shall be fined not less than $25.00 or more than $500.00.
(Ord. No. 95-693, § 5-99, 10-12-1995; Ord. No. 18-952A, § 10, 11-1-2018)

Editor's note—Ord. No. 18-952A, § 10, adopted Nov. 1, 2018, renumbered the former § 5-102 as § 5-16.

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 5-17. Authority of health officer.

The health officer or his authorized agent shall have the authority to quarantine or require confinement of any or all animals in any part or all of the city for such period of time and in such manner as he may determine whenever he considers such quarantine or confinement necessary for the control of rabies. The health officer or his authorized agent shall have the right at any time to move or cause to be moved to HAS or place designated by him for observation or examination any animal which is reasonably suspected to be afflicted with rabies, or which has bitten or otherwise injured a human being in such manner as would permit or favor the transmission of the virus of rabies, if such animal should be afflicted with rabies, or which has been or is reasonably suspected to have bitten or injured, or to have been in contact with another animal afflicted or reasonably suspected of being afflicted with rabies; and it shall be unlawful for any person to hinder, obstruct or interfere with the health officer or his authorized agent or deputy in the exercise of the authority conferred upon him. It shall be the

duty of the health officer to destroy, or cause to be destroyed, any animal found to be afflicted with rabies.
(Ord. No. 95-693, § 5-96, 10-12-1995; Ord. No. 18-952A, §§ 1, 11, 11-1-2018)

Editor's note—Ord. No. 18-952A, § 11, adopted Nov. 1, 2018, renumbered the former § 5-102 as § 5-17.

Sec. 5-18. Disposal of animals impounded under Title 3, Animals, Chapter 7A, Rabies of the Code of Alabama.

Except as otherwise provided in subsection 5-75(c), any cats, dogs and ferrets impounded in accordance with the provisions of Title 3, Animals, Chapter 7A, Rabies, of the Code of Alabama, may be humanely destroyed and disposed of when not redeemed by the owner within seven days.
(Ord. No. 18-952A, § 12, 11-1-2018)

Sec. 5-19. Experimental animals.

It shall be unlawful for any person, pet store, animal shelter or animal rescue agency to sell, give, trade, barter or transfer any animals to any person, hospital, educational institution, laboratory, or animal dealer for the purpose of medical/biological teaching, research, study or experimentation of any kind.
(Ord. No. 18-952A, § 13, 11-1-2018)

Sec. 5-20. Unlawful to sell, barter or give away animal.

Without the prior written approval of the director, it shall be unlawful for any person to do any of the following:

(1) Sell, give, trade, barter or give away a live animal as part of a commercial transaction on any street, highway, public right-of-way, parking lot, carnival, or sidewalk; or

(2) Display or offer for sale, trade or barter, or display or offer to give away a live animal as part of a commercial transaction, if the act of selling or giving away the live animal is to occur on any street, highway, public right-of-way, parking lot, carnival, or sidewalk.

Animal adoption events held by an animal shelter or animal rescue agency, as defined by the standards set forth in subsection 5-72(c), that are otherwise compliant with all other provisions of this chapter, are not prohibited by this section.
(Ord. No. 18-952A, § 14, 11-1-2018)

Secs. 5-21—5-40. Reserved.

ARTICLE II. DOGS AND CATS

DIVISION 1. GENERALLY

Sec. 5-41. License—Required; fee.

(a) The owner or person in charge of any dog and/or cat which is more than four months of age and resides in the city shall annually register the dog and/or cat as to sex, breed, description, name and address of the owner or person in charge, and name of the dog and/or cat if any. At the time of such registration, such owner or person in charge shall, upon providing proof of a valid rabies vaccination, obtain a license for such dog and/or cat and shall pay a license tax or fee as follows:

(1) Spayed or neutered: $10.00; or

(2) Unspayed or unneutered: $50.00.

However, when a license is issued for a dog or cat too young to be subjected to alteration because it is less than four months old at the time the license is issued, and the dog or cat is altered subsequent to the beginning of the next license year, upon proof of sterilization, the director may issue a license at no charge for the following license year.

(b) An owner or person in charge of a dog and/or cat, upon providing proof that the animal meets the criteria provided in subsection (a) and also that the animal has been sterilized, may choose to purchase a lifetime license rather than the annual license required under subsection (a). The lifetime license tax or fee shall be as follows:

(1) Spayed or neutered: $35.00.

(2) Unspayed or unneutered: Not available; exception that an unspayed or unneu-

tered annual license may be converted to a lifetime license within one year of license purchase upon proof of alteration.

(c) An owner or person in charge of a dog and/or cat, upon providing proof that the animal meets the criteria provided in subsection (a) and also that the animal has been sterilized may be eligible for a lifetime license provided the owner or person in charge shows proof of an annual income of $25,000.00 or less or participation in such programs as Medicaid, Social Security Disability, or Supplemental Nutrition Assistance Program.

(d) Upon the written recommendation of a licensed veterinarian, a waiver may be granted to the spay or neuter requirement when it is determined that age or health reasons may be reason for exemption. In those cases, the fee appearing in subsection (a)(1) above will be charged.

(e) Proof of alteration (spaying or neutering) may be accomplished by providing a proof of sterilization letter or certificate signed by a state licensed veterinarian which describes the pet by name, description, breed, color, age, gender and owner name. Otherwise, alteration may be determined by the director upon physical examination of the animal.

(f) This section does not apply to community cats.

(Ord. No. 95-693, § 5-26, 10-12-1995; Ord. No. 03-1065, § 1, 12-18-2003; Ord. No. 10-677, § 1, 9-23-2010; Ord. No. 14-89, § 2, 2-27-2014; Ord. No. 18-952A, §§ 15, 16, 11-1-2018)

State law reference—Rabies control, Code of Ala. 1975, § 3-7A-1 et seq.

Sec. 5-42. Same—Issuance.

(a) At the time of registration under this article, such owner or person in charge shall obtain a license for such dog or cat issued by the director or his agent and shall be issued a metal tag or decal suitable for affixing to the license tag as evidence of such license, effective for one year from the date of issue. The license must be renewed each year on or before the anniversary date of issue. Each person renewing a license more than 30 days after the anniversary date shall be charged a $10.00 late fee. No valid license tag or valid decal shall be issued for any dog or cat until such dog or cat has been inoculated against rabies in accordance with state law. The provisions of this section shall not apply to dogs or cats whose owners are nonresidents, temporarily within the city for a period not exceeding 30 days.

(b) The owner or person in charge shall, at all times, keep the tag affixed to the dog or cat. It shall be unlawful for any owner or person in charge to fail to comply fully with all requirements of this section by failing to obtain a license or otherwise. It shall also be unlawful for any person, except the owner or person in charge, or his agent, except for purposes of grooming or bathing, to remove a tag from a dog or cat tagged under the provisions of this section. It shall be unlawful for any person to place an unissued tag upon any dog or cat, to procure a tag from the city or its agent by fraud or misrepresentation, or to disfigure or alter the words or figures upon a tag.

(c) The mayor, upon recommendation of the director and the city clerk-treasurer, shall authorize any licensed veterinarian, or any other appropriate agent, to accept applications for issuance of, on behalf of the city, the license required in this article. Such agent shall be required to post bond as directed by the city clerk-treasurer, and at the expense of the city, to ensure the collection and payment of all amounts that may at any time be due the city under the agreement. As payment for such issuance, the agreement may allow up to ten percent of the cost of such license, or $1.00, whichever is greater, to be retained by the agent as compensation for services to the city.

(Ord. No. 95-693, § 5-27, 10-12-1995; Ord. No. 18-952A, § 17, 11-1-2018)

Sec. 5-43. Harboring dogs or cats.

It shall be unlawful for any person to own, harbor, control, or keep more than three dogs or cats, four months old or older, which are frequently outside the residence and on the premises. This

section is not applicable to community cats, or a community cat caregiver, as designated by the director.
(Ord. No. 95-693, § 5-28, 10-12-1995; Ord. No. 18-952A, § 18, 11-1-2018)

Sec. 5-44. Duty to restrain.

(a) *Dogs*. It shall be the duty of every owner or person in charge of a dog to keep the animal under effective restraint, while the dog is within the city, whether or not the dog is upon or away from his premises. It shall be unlawful for the owner or person in charge of any dog to fail to keep the animal under effective restraint. Proof that a dog is not properly restrained, whether on or off the premises of the owner or person in charge, shall be prima facie evidence of a violation. Negligent failure to provide or maintain effective restraint shall not be a defense. Competent evidence that the failure was occasioned by an unforeseeable and independent act of a third person shall shift the burden on the city to prove otherwise.

(1) It shall be the duty of every person owning or having the custody or control of a dog to physically restrain the dog when such dog is left unattended outside. The dog must be restrained so as to prevent the dog from leaving the premises of its owner or from coming in contact with public right-of-way or the property of another.

(2) Dogs may be restrained by means of a trolley system, or a runner attached to a pulley on a cable run, if the following conditions are met:

a. Such restraint shall be fixed in such a manner to allow the dog free use of the restraint without it becoming tangled, wrapped around an object or shortened to prevent injury or strangulation.

b. The restraint shall also be an appropriate weight for the dog and shall be affixed to a proper fitting harness or collar with a swivel attachment. The collar shall be properly fitted to the dog, made of a suitable material other than metal that does not cause damage to the dog's skin, and affixes the dog to a pulley or runner.

c. Only one dog shall be tethered to each cable run.

d. The tether shall be attached to a properly fitting harness or collar worn by the dog. Choke collars, pinch collars and prong collars are prohibited for purposes of tethering a dog to a cable run.

e. There shall be a swivel on both ends of the tether to minimize tangling of the tether.

f. The tether and cable run shall be of adequate size and strength to effectively restrain the dog. The size and weight of the tether shall not be excessive, as determined by the HAS officer, considering the age, size and health of the dog.

g. The length of the tether from the cable run to the dog's harness should allow access to a reasonable available exercise area and should allow continuous access to water and shelter. The pulley system shall be of appropriate configuration to confine the dog to the owner's property, to prevent the tether from extending over an object or an edge that could result in injury to the dog, and to prevent the tether from becoming tangled with or impeded by other objects or dogs.

h. The dog is at least six months of age or older.

(3) Dogs may be restrained by confining within a fenced yard or enclosure so long as there is an adequate space for exercise based on a dimension of at least 200 square feet for the first dog, and an additional 100 square feet for each additional dog, up to three dogs, including a dry area for each animal to rest or stand. Provided further that said enclosure shall be made of chain link, or

similar type materials, and shall be of sufficient height to prevent the dog from escaping.

(4) The use of underground electric fencing systems shall satisfy physical restraint so long as the owner assures:

a. The underground electric fence system is in working order;

b. The animal is trained in accordance with the fencing system;

c. The animal is wearing a functional fence collar;

d. The property is clearly and prominently marked indicating the existence of the underground electronic fencing system with a minimum of one sign on the property;

e. The underground electronic fencing system shall not allow the animal to progress closer than ten feet in proximity to any public sidewalk, public street or other public right-of-way;

(5) Underground electronic fencing is prohibited for dogs deemed to be dangerous as defined in section 5-1.

(6) A dog that can snap or bite a person through a fence shall not be considered enclosed by the fence or properly restrained.

(7) Multiple dogs that fight each other shall not be kept within the same enclosure.

(b) *Cats.* It shall be unlawful for the owner or any person having custody or control of any cat within the city to allow such cat to be a nuisance, cause destruction or damage to the property of another, or to run at large; however, no prosecution shall be commenced and no arrest made pursuant to this section except upon affidavit made before and warrant issued by a judge or magistrate of municipal court. This section is not applicable to community cats, or a community cat caregiver, as determined by the director.
(Ord. No. 95-693, § 5-29, 10-12-1995; Ord. No. 18-952A, § 19, 11-1-2018)

Sec. 5-45. Confinement of dogs or cats during estrus (heat).

(a) Every female dog or cat in estrus (heat) will be confined by the owner or person in charge in a solid-floored building or structure designed so that the dog or cat cannot come into contact with the ground underneath the floor or with the ground surrounding the structure, so that the scent from the cat or dog will not be transmitted to the neighborhood, or to places where other cats or dogs on the owner's premises are kept. If at any time the scent from a female cat or dog in heat is found to be causing a disturbance to cats or dogs in the neighborhood, it shall be the duty of the owner or person in charge of the dog or cat to confine, immediately, the dog or cat in such a manner as to avoid a disturbance.

(b) Every female dog or cat in estrus (heat) shall be confined in a building or structure by the owner or person in charge in such a manner that the female dog or cat cannot come into contact with another dog or cat except for planned breeding.

(c) It shall be unlawful for the owner or person in charge of any such cat or dog to fail to comply fully with this section. Any person in violation shall be punished as provided by section 5-5.
(Ord. No. 95-693, § 5-30, 10-12-1995)

Sec. 5-46. Chaining of dogs or cats.

Animals shall not be tied or chained in a manner that presents a hazard to themselves or to the general public.
(Ord. No. 95-693, § 5-36, 10-12-1995)

Sec. 5-47. Duty of owner to remove overturned or scattered garbage.

It shall be the duty of the owner or person in charge of any dog or cat which has been allowed or suffered by such person to run at large, to pick up and remove to the landfill, or to a secure authorized container, any garbage or refuse which the animal has caused to be overturned, spilled or scattered upon any residential lot occupied for human habitation, or upon any adjacent right-

of-way, upon demand from the owner or occupant, or upon demand of the director or any HAS officer under the supervision of the director. It shall be unlawful for any such person to fail or refuse to do so; however, no prosecution shall be commenced and no arrest made pursuant to this section except upon affidavit made before and warrant issued by a duly appointed municipal judge or magistrate of the city.
(Ord. No. 95-693, § 5-37, 10-12-1995; Ord. No. 18-952A, § 1, 11-1-2018)

Sec. 5-48. Duty of owner for removal of feces.

(a) It shall be the duty of the owner or person in charge of any dog or cat to remove and dispose of any feces deposited by the animal upon the grounds of any public park or public place, upon any residential lot of another occupied for human habitation, or upon any adjacent right-of-way, and will be done on demand by the owner or occupant or the director or any HAS officer.

(b) It shall be unlawful for any person to fail or refuse to remove such feces; however, no prosecution shall be commenced and no arrest made pursuant to this section except upon affidavit made before and warrant issued by a municipal judge or magistrate.
(Ord. No. 95-693, § 5-38, 10-12-1995; Ord. No. 18-952A, § 1, 11-1-2018)

Sec. 5-49. Companion dog accompanying disabled person (blind, deaf, etc.).

No owner, lessee, proprietor, manager, superintendent, agent or employee of any place of public accommodation, amusement or recreation, including but not limited to any inn, hotel, restaurant, eating establishment, barbershop, billiard parlor, store, public conveyance, theater, motion picture house, public educational institution or elevator, shall refuse to permit a companion dog to accompany a disabled person entering such place or making use of the accommodations available when such person is being accompanied by a companion dog provided such companion dog is wearing a harness, such disabled person shall present for inspection credentials issued by an accredited school for training companion animals.
(Ord. No. 95-693, § 5-39, 10-12-1995)

Sec. 5-50. Restrictions on the sale of dogs and cats.

(a) A pet shop or pet supply store may offer for sale only those dogs, cats, puppies, and kittens obtained from and in cooperation with HAS, an animal shelter, or an animal rescue organization or agency as defined in section 5-1.

(b) Every pet shop or pet supply store offering for sale any dog, cat, puppy or kitten shall display a label stating the name and address of the organization supplying said animal on the animal's cage.

(c) A pet shop or pet supply store shall not offer for sale a puppy or kitten that is younger than eight weeks old.

(d) Every pet shop or pet supply store offering for sale any dog, cat, puppy or kitten shall maintain records for each animal offered for sale. The records shall be maintained for a minimum of 12 months after the date of the transaction, and shall be available for inspection by any HAS officer or law enforcement officer. The records shall include the following information for each transaction:

(1) A description and photograph of the animal;

(2) The monetary value of any cash, services, or goods exchanged for the animal;

(3) The name, address and phone number of the organization (HAS, animal shelter or animal rescue organization or agency) from which said pet store or pet supply store acquired said animal; and

(4) The name, address and phone number of the new owner of the animal.

(Ord. No. 18-1089, § 2, 12-20-2018)

Editor's note—Ord. No. 18-952A, § 9, adopted Nov. 1, 2018, renumbered the former § 5-50 as § 5-15. Subsequently, Ord. No. 18-1089, § 2, adopted Dec. 20, 2018 adopted a new § 5-50 as laid out herein.

Secs. 5-51—5-70. Reserved.

DIVISION 2. IMPOUNDMENT

Sec. 5-71. Reserved.

Editor's note—Ord. No. 18-952A, § 3, adopted Nov. 1, 2018, repealed § 5-71, which pertained to stray dogs or cats and derived from Ord. No. 95-693, § 5-31, 10-12-1995.

Sec. 5-72. Confinement of dogs or cats running at large; confinement of dogs or cats turned in by owner or person in charge; disposition of dogs or cats confined.

(a) Any dog or cat found running at large within the city is declared to be a nuisance and shall be seized by the director or a HAS officer, confined at HAS or temporarily placed with a director-approved foster resource or animal rescue agency, photographed for identification purposes, and cared for in a humane manner, subject to the owner's rights of redemption stated below. In addition to, or in lieu of confining a dog or cat found unlawfully at large, when the owner or person in charge of the dog or cat is known to the director or HAS officer, the director or HAS officer shall return the dog or cat to the owner or person in charge. The owner or person in charge may be cited in accordance with the provisions in this article. This section may not be applicable to community cats, as determined by the director.

(b) Upon confinement of a dog or cat, HAS shall scan the animal for a microchip, and check for tags, tattoos or other identifying information to make reasonable efforts to ascertain the identity of and notify the owner or person in charge of such dog or cat of its confinement and of the conditions under which possession of such animal may be regained. Unless determined otherwise by the director, sterilization and microchipping of all animals impounded by HAS shall be mandatory and the owner or person in charge shall bear the cost associated therewith. The owner or person in charge shall have 30 days to update the microchip with correct identification information.

(c) If not claimed by the owner or person in charge within three days, the city may transfer ownership of any dogs or cats held by HAS to an approved adoption applicant, or any animal rescue agency that can provide proof of Internal Revenue Service 501(c)(3) nonprofit status and is otherwise approved and authorized by the director provided the approved agency, upon obtaining possession of each such dog or cat, shall agree not to release the animal to any person other than the owner or person in charge until the following requirements have been met:

(1) Dogs and cats three months of age or older have received a rabies inoculation;

(2) Dog and cats have been microchipped. The new owner or person in charge shall have 30 days to update the microchip with correct identification information; and

(3) Dogs over eight weeks old and cats weighing at least one and one-half pounds have been sterilized in conformity with current Guidelines for Standards of Care in Animal Shelters established by The Association of Shelter Veterinarians, unless the director or other licensed veterinarian determines that the animal has a medical condition preventing successful sterilization.

(d) The city shall not knowingly transfer ownership under subsection (c) of this section of any dog or cat known to have bitten a person or animal without justifiable provocation before written notification and disclosure to the new owner.

(e) The city shall not transfer ownership under subsection (c) of this section of any dog or cat that is maimed or diseased and, in the opinion of the director, not suitable for adoption. This subsection, however, shall not be construed to preclude temporary transfer or placement of a HAS dog or cat that is injured, maimed, diseased or has a significant health condition, immediately after intake, to a director-approved foster resource, or animal rescue agency as defined by the standards set forth in subsection 5-72(c), subject to the owner's rights of redemption. Irremediably suffering animals may be euthanized without delay, upon a written determination made by a licensed veterinarian or the director.

(f) If the owner of an injured animal is unknown and the animal has been hospitalized by a licensed veterinarian for a period of three days, the animal may be released to the veterinarian upon his request.

(g) Any dog or cat turned in by the owner or person in charge shall be available for immediate adoption in accordance with section 5-73, or for transfer in accordance with this section but shall otherwise be confined for a period of not less than three days provided space is available at the discretion of the director.

(h) Any litters of two or more kittens or puppies found running at large within the city shall be seized by the director or HAS officer and made available for immediate adoption or placement as determined by the director.

(i) Community cat diversion programs shall operate at the discretion and under the supervision of the director.
(Ord. No. 95-693, § 5-32, 10-12-1995; Ord. No. 18-952A, §§ 1, 20, 11-1-2018)

Sec. 5-73. Redemption and adoption.

(a) The owner or person in charge entitled to possession of any dog or cat confined under the provisions of this article, may recover possession of such dog or cat upon payment of the charges set forth in section 5-74 to the director provided such owner or person in charge entitled to recover possession of any dog or cat three months of age or older shall produce a certificate of sterilization, and a certificate or evidence satisfactory to the director that such dog or cat has, within 12 months prior to confinement, been inoculated for rabies, and that all required license fees have been paid for the current year. If the owner or person in charge entitled to possession of any dog or cat so confined is unable to produce a certificate of sterilization, and a certificate or satisfactory evidence of inoculation for rabies and of proper licensing of the dog or cat within the 12-month period prior to the confinement of the dog or cat, before the director shall release the dog or cat, fees shall be paid for the sterilization, inoculation and city license; and

The owner or person in charge entitled to possession of any dog or cat may avoid payment of the redemption fee if the animal has not been sterilized (spayed or neutered) and the owner or person in charge agrees to pay for the sterilization of the animal at the time of redemption as well as securing a license for the animal. In such cases, the animal may be delivered by HAS personnel to a state licensed veterinary office for sterilization and the owner or person in charge shall recover the animal from that office after the sterilization is complete and payment has been tendered to the director in accordance with fees established in section 5-74. At the discretion of and under the supervision of the director, sterilization of animals may be performed at HAS by a properly licensed veterinarian. Unless determined otherwise by the director, sterilization and microchipping of all animals impounded by HAS shall be mandatory and the owner or person in charge shall bear the cost of the sterilization, redemption and a license.

(b) It shall be unlawful for any person to secure any dog or cat from HAS without authority to do so.

(c) It shall be unlawful for any employee of HAS to redeem any dog or cat or become directly or indirectly interested in the redemption of any dog or cat not owned by such employees of HAS prior to its impoundment.

(d) Based on the information provided during the adoption process, the director or his representative has the right to deny the request to adopt an animal if he feels that the person is unable to provide a suitable home to care for the animal properly and prevent it from being a nuisance. A home visit by HAS may be required within the first year of adoption.

(e) Upon approval to adopt an animal from HAS, the adoption agreement shall be signed. Failure to agree to the terms of the adoption agreement shall be grounds for disqualification.

(f) Animals shall be sterilized in accordance with the terms of the adoption agreement.

(g) It shall be unlawful for the owner or person in charge of any such cat or dog to fail to comply fully with this section. Any person in violation shall be punished as provided in section 5-5.

(Ord. No. 95-693, § 5-33, 10-12-1995; Ord. No. 99-1036, § 5, 12-9-1999; Ord. No. 14-89, § 3, 2-27-2014; Ord. No. 18-952A, §§ 1, 21, 11-1-2018)

Sec. 5-74 Charges for confinement and caring shall be amended to read as follows:

(a) The city shall charge and collect fees from owners who redeem their animals or persons seeking to adopt abandoned animals as set forth below.

(b) The fee schedule will not include applicable charges for any license or rabies vaccination that is required by this article or other applicable law.

(c) Animals may not be adopted by original owners or their immediate family members so as to avoid paying a violation fine or redemption fee.

(d) At the discretion of the director, fees may be waived or reduced.

(e) All intergovernmental agreements must align with the City of Huntsville's established fee schedule, with the partnering entity solely responsible for collecting any costs from its residents or service users, as the city will directly invoice the partnering organization for all services rendered.

Fee Schedule for Huntsville Animal Control	
Impoundment	$50.00—First offense per animal
	$75.00—Second offense per animal
	$100.00—Third or subsequent offense per animal
Boarding	$10.00 per day per animal
Sterilization	
Dog	$60.00 per animal
Cat	$50.00 per animal
Adoption Fees	
Dogs and Cats**	$0.00—$250.00 per animal
All other shelter animals, livestock, pocket pets, birds, exotic animals**	$0.00—$1,000.00 per animal
Microchip placement and registration	$20.00 per animal
Euthanasia	$35.00 per animal
Heartworm checks	$10.00 per animal
Feline Leukemia Virus (FeLV)/Feline Immunodeficiency Virus (FIV) test	$35.00 per animal
Owner surrender fee	$35.00 per animal
Investigative Holds fees	
Impound/Initial Holding Fee	$100.00 per animal
Daily Holding/Boarding Fee	$45.00 per day per animal
HAS classes	
Dangerous dog class	$35.00 per class
PAWS class	$35.00 per class

** Animal types, and/or specific fees shall be determined by the director.

(Ord. No. 95-693, § 5-34, 10-12-1995; Ord. No. 14-89, § 4, 2-27-2014; Ord. No. 16-621, § 1, 9-8-2016; Ord. No. 18-952A, §§ 1, 22, 11-1-2018; Ord. No. 25-647, § 1, 8-28-2025)

Sec. 5-75. When disposal may take place.

(a) Except as set forth in section 5-18 and subsection 5-75(c), after a dog or cat has been confined for at least five days, and no owner or person in charge has been identified, or if the owner or person in charge entitled to possession fails to make application for the release of such dog or cat, as provided in this article, or fails to pay the charges as provided in this article, or fails to pay for the proper inoculation for rabies, or if such satisfactory evidence as required by section 5-73 was not provided, or if ownership is not transferred by the city in accordance with section 5-72, then such dog or cat is declared a nuisance and a danger to the health, safety and welfare of the city and the director or authorized HAS officer may cause such dog or cat humanely to be destroyed as provided in this article; however, any puppy or kitten under two weeks old or whose eyes have not opened may be humanely disposed of immediately upon being impounded when found to be in violation of this chapter.

(b) The director, or any HAS officer authorized by the director to carry a firearm, assisting in impounding any dog or cat shall have the authority to shoot and kill such dog or cat if in attempting to capture the dog or cat or in otherwise keeping the dog or cat, it shall become an immediate hazard to the safety of the person or to the safety of persons or animals in the immediate vicinity.

(c) Any confined dog or cat that is injured or diseased may, as an act of mercy, be humanely destroyed immediately after inspection by a veterinarian, or by the director or his representative, if it is agreed that such destruction is necessary to prevent unnecessary suffering, to prevent the spread of disease, or because the animal is incurable.
(Ord. No. 95-693, § 5-35, 10-12-1995; Ord. No. 18-952A, §§ 1, 23, 11-1-2018)

Secs. 5-76—5-100. Reserved.

ARTICLE III. ANIMALS OTHER THAN DOGS AND CATS SPECIFICALLY

DIVISION 1. GENERALLY

Sec. 5-101. Reserved.

Editor's note—Ord. No. 18-952A, § 10, adopted Nov. 1, 2018, renumbered the former § 5-102 as § 5-16.

Sec. 5-102. Reserved.

Editor's note—Ord. No. 18-952A, § 11, adopted Nov. 1, 2018, renumbered the former § 5-102 as § 5-17.

Sec. 5-103. Keeping of hogs.

(a) It shall be unlawful for any person to keep hogs within the city, except on established farms where hogs have been kept continuously since prior to the passage or amendment to this section; and under circumstances where no noise, odor or pollution violation or nuisance is occasioned; and at a place more than 300 yards from any residence, business house, church or schoolyard other than the residence of the owner or person in charge of the hogs.

(b) All hogs in transit or housed or penned for sale at a duly authorized marketing place within the city shall be removed by sale, slaughtering or otherwise within eight days. All pens or enclosures wherein the hogs are kept shall have concrete floors with ample drains and water connections, as approved by the health department. These pens and enclosures shall be cleaned daily with suitable insecticides or deodorants, or both, as approved by the health department, so that fly control is satisfactorily maintained.
(Ord. No. 95-693, § 5-46, 10-12-1995)

Sec. 5-104. Keeping exotic, wild animals; keeping vicious and/or poisonous animals; keeping venomous reptiles.

(a) It shall be unlawful for any owner or person in charge to keep any wild or exotic animal on his premises unless such animal is registered with the HAS. Registration shall be required within 30 days of residency within the city.

(b) It shall be unlawful for a private individual to keep, maintain or house a venomous reptile.

(c) It shall be unlawful for any owner or person in charge to suffer, allow or permit any animal that is vicious or presumed to be vicious to be off the premises of the owner or person in charge unless the animal is caged or leashed and muzzled and under effective restraint so as to prevent it from attacking or injuring a person or another animal.

(d) It shall be unlawful for the owner or person in charge to keep or permit to be kept on any residential premises any vicious or poisonous animal for display or for exhibition purposes either gratuitously or for a fee.

(e) It shall be unlawful to display an exotic animal or reptile unless a permit for such display has been obtained from the city animal control.

(f) Privately owned poisonous or vicious animals shall not be allowed on any public street, sidewalk or other public way except in a fully enclosed cage or with adequate structural restraint. Any vicious or poisonous animal shall be securely and humanely confined or bound in such a manner as to prevent such animal from biting or attacking or frightening a person or another animal. The use of a leash, with or without a muzzle, shall not be considered adequate restraint.

(g) The provisions of this section shall not apply to lawfully operated and located pet shops, zoological gardens, scientific research laboratories, circuses, veterinarians harboring such animals for purposes of providing professional medical treatment, or wildlife rehabilitators with proper permits. The confinement of wild or exotic animals must meet the regulations promulgated by the state wildlife commission, the minimum standards under the animal welfare act and all applicable rules promulgated by the United States Department of Agriculture. In addition to meeting these minimum standards, all such venomous reptiles and all such wild or exotic animals shall be confined, restrained and controlled in fully enclosed quarters and in such manner that the physical safety or property of any person lawfully entering the premises shall not be endangered, and so as to prevent escape of any such animal.

(Ord. No. 95-693, § 5-47, 10-12-1995; Ord. No. 99-1036, § 4, 12-9-1999; Ord. No. 18-952A, § 1, 11-1-2018)

Sec. 5-105. Distance of corrals, pens or stables from dwellings.

It shall be unlawful for any owner or person in charge to keep any animal or fowl in the city in any corral, stable or pen any part of which is within 150 feet of a dwelling occupied by a person other than the owner or person in charge of the animal or fowl or if such dwelling is not occupied, owned by a person other than the owner or person in charge of the animal or fowl; however, this section shall not apply to enclosures in which animals or fowl have been continuously kept before May 10, 1979; and provided this section not apply to horses kept in publicly owned facilities, not otherwise creating any nuisance and kept under the sanitary conditions of this chapter.

(Ord. No. 95-693, § 5-48, 10-12-1995)

Sec. 5-106. Minimum area of corrals.

It shall be unlawful for any person to keep any animal in any corral in the city unless such corral has a minimum area of 12,000 square feet for one animal and an additional 10,000 square feet for each additional animal kept, to every portion of which each and every animal shall have free and unrestricted access.

(Ord. No. 95-693, § 5-49, 10-12-1995)

Sec. 5-107. Minimum area of pens.

It shall be unlawful for any person to keep any animals, including fowl, in any pen in the city unless such pen has a minimum area of 15 square feet of space for each animal or fowl to which space each animal or fowl shall have access.

(Ord. No. 95-693, § 5-50, 10-12-1995)

Sec. 5-108. Capturing or killing birds; abatement of birds; city declared bird sanctuary.

(a) It shall be unlawful for any person to pursue, injure, capture, kill or destroy any songbird of any kind, at any time, within the city.

This section shall not be construed so as to apply to the director, the HAS officers or to any law enforcement officer when a nuisance exists or when there is a hazard to health or safety which in the judgment of such officer cannot be otherwise remedied.

(b) The entire area of the city is designated as a bird sanctuary.
(Ord. No. 95-693, § 5-51, 10-12-1995; Ord. No. 18-952A, § 1, 11-1-2018)

Sec. 5-109. Horses not to stand in streets unless hitched or attended.

It shall be unlawful for any owner or person in charge to allow a horse to stand in any street within the city unless the owner or person in charge is in attendance or the horse is securely hitched. Any horse not so attended or securely hitched shall be considered to be at large.
(Ord. No. 95-693, § 5-52, 10-12-1995)

Cross reference—Streets, sidewalks and other public places, ch. 23.

Sec. 5-110. Farm animals, exotic animals or reptiles running at large.

(a) It shall be unlawful for the owner or person in charge of any farm animal, exotic animal or reptile to cause, permit or allow any such farm animal, exotic animal or reptile to run or to be at large. It shall be the special duty of the owner or person in charge of all premises where any farm animal, exotic animal or reptile is kept to see that no farm animal, exotic animal or reptile kept upon the premises is permitted or allowed to be in violation of this article. The fact that a particular farm animal, exotic animal or reptile has been kept on a particular premises, together with its subsequent appearance at large, shall raise a prima facie presumption that the owner or person in charge of the premises committed or authorized the violation, and the burden of proof shall be upon the owner or person in charge to prove otherwise. Any owner or person in charge in violation of this subsection shall be fined a minimum of $25.00 for the first offense and for the second offense within 12 months shall be fined a minimum of $50.00. Any owner or person in charge violating this section more than twice within 12 months shall be considered a habitual offender and shall be cited as set forth in subsection (b) of this section.

(b) Any owner or person in charge who repeatedly and habitually allows, suffers or permits any farm animal, exotic animal or reptile unlawfully to run or be at large shall be fined not less than $100.00. Proof of three violations by the same owner or person in charge with respect to any farm animal, exotic animal or reptile kept on the premises within a 12-month period shall be prima facie proof that the owner or person in charge is a habitual offender; and the burden of proof shall be upon the owner or person in charge to prove otherwise.
(Ord. No. 95-693, § 5-53, 10-12-1995; Ord. No. 99-1036, § 6, 12-9-1999)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 5-111. Giving away animals as prizes.

It shall be unlawful for any person to give away rabbits, chicks, reptiles, or wild or exotic animals as prizes.
(Ord. No. 95-693, § 5-56(b), 10-12-1995; Ord. No. 99-1036, § 9, 12-9-1999; Ord. No. 18-952A, § 29, 11-1-2018)

Editor's note—Ord. No. 18-952A, § 8, adopted Nov. 1, 2018, renumbered the former § 5-111 as § 5-14. Subsequently, § 29 of said ordinance renumbered former § 5-113 as § 5-111.

State law reference—Sales of rabbits, chicks, ducklings or other fowl, Code of Ala. 1975, § 3-1-15.

Sec. 5-112. Reserved.

Editor's note—Ord. No. 18-952A, § 3, adopted Nov. 1, 2018, repealed § 5-112, which pertained to driving animals into city for purpose of impounding and derived from Ord. No. 95-693, § 5-55, 10-12-1995; Ord. No. 99-1036, § 8, 12-9-1999.

Sec. 5-113. Reserved.

Editor's note—Ord. No. 18-952A, § 29, adopted Nov. 1, 2018, renumbered the former § 5-113 as § 5-111.

Secs. 5-114—5-130. Reserved.

DIVISION 2. IMPOUNDMENT

Sec. 5-131. Impoundment authorized; disposal of farm animals, exotic animals, or reptiles.

(a) Any farm animal, exotic animal or reptile found to be running at large within the city is declared to be a nuisance and shall be seized and confined by the director or a HAS officer, and shall be cared for in a humane manner for a period of not less than five days.

(b) When such farm animal has been seized and confined, the director or authorized enforcement officer shall proceed to sell the animal at public auction to the highest bidder for cash within the legal hours of sale in front of HAS, or another location as designated by the director, after first giving five days' notice of time and place of sale, together with a description of the animal to be sold, by posting a notice at a conspicuous place at HAS, and by publication one time in a newspaper published in the city. The proceeds from the sale shall be paid to the city clerk-treasurer. Any farm animal that is not claimed by its owner and is not purchased when placed at public auction shall become the property of the city and may be disposed of in a humane manner at the discretion of the director.

(c) After an exotic animal or reptile has been confined for the period of time as required by subsection (a) of this section, and if the owner or person in charge fails to make application for the release of such exotic animal or reptile, or fails to pay the charges as provided in this article, such exotic animal or reptile shall become the property of the city and shall be disposed of in a humane manner.

(Ord. No. 95-693, § 5-57, 10-12-1995; Ord. No. 99-1036, § 10, 12-9-1999; Ord. No. 18-952A, §§ 1, 24, 11-1-2018)

Sec. 5-132. Charges for advertising and care of impounded animals.

The city shall be entitled to and shall receive the sum of $100.00 for impounding and keeping each and every farm animal, exotic animal or reptile, plus the cost of advertising farm animals as set forth in section 5-131, plus the additional sum of $10.00 for each day or fraction of a day that each of such animals (farm animal, exotic animal or reptile) is kept and cared for by the city pending the redemption or sale, plus the cost of any veterinary services deemed necessary to the well-being and life of the animal (farm animal, exotic animal or reptile).

(Ord. No. 95-693, § 5-58, 10-12-1995; Ord. No. 99-1036, § 11, 12-9-1999; Ord. No. 03-1065, § 2, 12-18-2003; Ord. No. 18-952A, § 25, 11-1-2018)

Sec. 5-133. Owner entitled to proceeds of sale.

The owner of any farm animal seized, impounded and sold under the provisions of this article shall have the right within 60 days after the sale to receive from the city clerk-treasurer the proceeds of such sale as set forth in section 5-131 less any applicable fine, and less the charges set forth in section 5-132, upon making proper and satisfactory proof of ownership of the farm animal so sold as demanded by the city clerk-treasurer.

(Ord. No. 95-693, § 5-59, 10-12-1995; Ord. No. 99-1036, § 12, 12-9-1999)

Secs. 5-134—5-150. Reserved.

ARTICLE IV. DEAD ANIMALS*

Sec. 5-151. Penalties.

Any person who violates or fails or refuses to obey or comply with this article shall, upon conviction, be punished, in addition to such other punishment, including a term of community service, as may be provided by the court, by minimum fines and penalties, for a first conviction of $100.00 or by imprisonment for not more than ten days; for conviction of a second offense committed within one year after the date of the first offense, such person shall be punished by a fine of $200.00 or by imprisonment for not more than 30 days or by both such fine and imprisonment; for conviction of a third or subsequent

*__Cross reference—__Solid waste, ch. 22.

__State law reference—__Depositing dead animals in water supplies or running streams, Code of Ala. 1975, §§ 22-20-8, 22-20-9.

offense committed within one year after the date of the first offense, such person shall be punished by a fine of $500.00 or by imprisonment for not more than three months or by both such fine and imprisonment.
(Ord. No. 97-812, § 1, 11-20-1997)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 5-152. Disposal limited.

It shall be unlawful for any person to dispose of any dead animal except as provided in this article.
(Ord. No. 95-693, § 5-116, 10-12-1995)

Sec. 5-153. Disposal generally.

The owner or person in charge of animals that die or are killed in his possession or custody, other than such as are slaughtered for food, within 24 hours shall notify the appropriate city official, as set forth in section 5-154, of such dead animal and request its removal as provided in section 5-155, or shall cause the remains of such animals to be buried at least two feet below the surface of the ground in accordance with this article. Animals dying from any communicable disease whatsoever shall be reported to the city in accordance with section 5-154. No such animal shall be buried sufficiently near a residence or in such a manner as to create a nuisance. In no case shall a dead horse, bull, mule, cow or other large animal be buried within 300 feet of a residence.
(Ord. No. 95-693, § 5-117(a), 10-12-1995)

Sec. 5-154. Appropriate city official notification.

(a) A small dead animal such as a dog or cat shall be reported to the director or a HAS officer.

(b) A large dead animal such as a horse, mule, cow or hog shall be reported to the director of public works services.

(c) Animals dying from any communicable disease shall be reported to the health department in addition to being reported to the appropriate official for removal.
(Ord. No. 95-693, § 5-118, 10-12-1995; Ord. No. 18-952A, §§ 1, 26, 11-1-2018; Ord. No. 19-367, § 1, 5-23-2019)

Sec. 5-155. Removal by the city.

When a citizen request is made to HAS for removal of a small dead animal from a city right-of-way or the citizen's property, which is unrelated to an animal business or service, or when a request is made to the director of public works services for removal of a large dead animal from a city right-of-way or the citizen's property, which is unrelated to an animal business or service, it shall thereupon be the duty of the official receiving the request to demand of such person his name and address, including street and house number, and a description of the dead animal. Immediately upon receipt of the information demanded, the official receiving the request shall cause the remains of such dead animal to be removed and buried at least two feet below the surface of the ground or to be burned. If the death is due to a communicable disease, the remains shall be burned. However, the director or a HAS officer may require that the requesting party place the small dead animal in a securely fastened plastic bag or similar container and make the container accessible at the curb or at such other place upon the property as he may direct.
(Ord. No. 95-693, § 5-119, 10-12-1995; Ord. No. 18-952A, §§ 1, 27, 11-1-2018)

Sec. 5-156. Fees for removal by city.

For removal of any large dead animal such as a horse, mule, cow or hog, the owner or person in charge of such animal requesting its removal by the city shall be charged the fee as established by the department of public works services; and such fee shall bear a direct relationship to the cost of disposal. It shall be unlawful for any person liable for the expenses of such removal to fail to pay such fees.
(Ord. No. 95-693, § 5-120, 10-12-1995)

Secs. 5-157—5-169. Reserved.

ARTICLE V. VICIOUS OR DANGEROUS ANIMALS

Sec. 5-170. Reserved.

Editor's note—Ord. No. 18-952A, § 3, adopted Nov. 1, 2018, repealed § 5-170, which pertained to definitions and derived from Ord. No. 09-389, § 1, 5-14-2009.

Sec. 5-171. Declaration of a dangerous animal.

(a) A HAS officer or law enforcement officer shall investigate any incidents involving any animal reported to be dangerous.

(b) If an animal, which is unowned and has been reported to be dangerous, bites a person, the animal shall be quarantined and destroyed pursuant to Code of Ala. 1975, § 3-7A-9(b). For purposes of this subsection, "bites" means the same as "has been exposed" as defined in Code of Ala. 1975, § 3-7A-1(4).

(c) Upon the determination of a magistrate that there is probable cause to believe that an owned animal is dangerous and has caused serious physical injury or physical injury to a human being or has documentation history of causing physical injury to a human being or has a documented history of causing physical injury to a human being, a law enforcement officer or HAS officer shall impound the animal pending a final disposition of a petition to declare the animal to be dangerous. The owner of the animal shall be liable for the costs and expenses incurred in impounding, feeding and providing veterinary care or treatment for the animal.

(d) If a magistrate determines that there is probable cause to believe that an owned animal is dangerous and has caused, without provocation, serious physical injury or death to a domesticated animal, a law enforcement officer or HAS officer may impound the animal, subject to the discretion of the director, pending disposition of a petition to declare the animal to be dangerous. If impounded, the owner of the animal shall be liable for the costs and expenses incurred in the impounding, feeding and providing veterinary care or treatment for the animal. If the animal is not impounded, all other provisions of this section shall still apply.

(e) The city shall file a petition in municipal court to declare the animal dangerous. The owner of the animal shall be served with a copy of the petition.

(f) An animal that is the subject of a dangerous animal investigation may not be relocated and ownership shall not be transferred pending the outcome of the investigation and hearing to determine whether to declare the animal to be dangerous.

(g) The court hearing shall be held within 30 days. At the hearing, the city shall present evidence that the animal is dangerous, including whether the animal caused physical injury or serious physical injury to a human being, whether the animal caused physical injury or serious physical injury to a domesticated animal, whether the animal was provoked or abused in any way, whether the animal has a history of aggressive behavior, and all other such conditions relating to the time, location, nature of the attack, nature of the animal, and any such additional evidence as the court may find relevant.

(1) If the court determines that the animal is dangerous and has caused serious physical injury or death to a human being, the court shall order the animal humanely euthanized by a certified euthanasia technician;

(2) If the court determines that the animal is dangerous, but has not caused serious physical injury or death to a human being, the court shall issue orders authorized in this division.

(h) Any judicial determination in municipal court that an animal is dangerous may be appealed to circuit court within 14 days. The animal shall remain impounded pending the outcome of the appeal and a final disposition of the case.
(Ord. No. 09-389, § 1, 5-14-2009; Ord. No. 09-501, § 1, 5-28-2009; Ord. No. 18-952A, § 1, 11-1-2018)

Sec. 5-172. Exceptions.

An animal may not be declared dangerous in any of the following circumstances, if sufficient evidence is presented and proven during the court hearing:

(1) When an injury or damage was sustained by a person who at the time of the injury or damage was committing a willful trespass or other tort upon the premises occupied by the owner of the animal with the intent to commit a crime or was

committing a crime, or was teasing, tormenting, abusing, or assaulting the animal, or who can be shown to have repeatedly, in the past, provoked, tormented, abused, or assaulted the animal;

(2) When the animal was protecting or defending a person within the immediate vicinity of the animal from an attack or assault;

(3) When the animal was responding to pain or injury or protecting itself, its kennel, or its offspring while it and the offspring were confined to the property of the owner;

(4) When a person or domestic animal was disturbing the natural functions of the animal such as sleeping or eating.

Growling, hissing, or barking alone shall not constitute grounds upon which to find an animal to be dangerous.
(Ord. No. 09-389, § 1, 5-14-2009)

Sec. 5-173. Animal declared dangerous, but not ordered destroyed.

(a) If a court determines that an animal is dangerous, but does not order that the animal be destroyed because evidence was insufficient to determine that the animal caused serious physical injury to a human, the owner of the animal shall comply with the following requirements in addition to any other requirement imposed by order of the court:

(1) Within 30 days of the issuance of the order declaring the animal to be dangerous, the owner of the animal shall be required to register the animal with the HAS. All certificates of registration required to be obtained under this section shall only be issued to persons 19 years of age or older which represent evidence of the following:

a. Copy of a current certificate of rabies vaccination;

b. Copy of a current color photograph of the animal depicting the size, color and any other distinguishing markings;

c. Certification that the animal will be confined to a proper enclosure when the animal is outdoors and unattended;

d. Certification that the animal has been neutered, spayed, or otherwise sterilized unless medically not needed, as determined by a licensed veterinarian;

e. Certification that the animal has been permanently identified by tattooing or injecting of an identification microchip using standard veterinary procedures and practices; and the certification shall include the name, address, and phone number of the veterinarian performing the identification procedure;

f. Copy of a policy of insurance, such as homeowners, or a surety bond in the amount of not less than $100,000.00 covering the medical or veterinary costs, or both, resulting from any future dangerous action of the animal;

g. A notarized affidavit from the owner of the dangerous animal stating that the animal will be under the control of a person 19 years or older when the animal is not in a proper enclosure or inside a building and that the animal will not be allowed outside the property of its owner except in emergencies, for normal or necessary medical or health related treatment, or for exercise as allowed under section 5-174; and

h. Certification that the owner of the dangerous animal has completed a two-hour training class on the subject of caring for and controlling aggressive and dangerous animals as presented by the animal control.

(2) All registrations, certifications and requirements of this subsection shall be re-submitted to HAS annually for the life of the animal, or until the dangerous animal determination is removed by a court of competent jurisdiction.

(b) If the owner fails to provide a proper enclosure for the dangerous animal within 14 days or fails to provide any of the requirements listed under subsection (a) for dangerous animal registration to the court within 45 days of the issuance of the court's declaration that the animal is dangerous, the animal shall be humanely euthanized.

(c) The owner of the dangerous animal shall pay an annual fee to register the animal pursuant to the provisions of this act. The amount of the dangerous animal registration fee shall be $100.00.

(d) A HAS officer or law enforcement officer may make whatever inquiry, investigation, or on-site inspection deemed necessary to ensure compliance with this division and any court order issued pursuant to this article.

(e) Prior to a dangerous animal being sold or given away, the owner shall advise the new prospective owner in writing that the animal has been declared to be dangerous by a court and shall provide HAS the name, address, and telephone number of the new owner. The new owner, if a resident of the city, shall comply with all the requirements of the act, including submitting of all filings required under subsection (a), and any applicable court orders relating to the animal purchased.

(Ord. No. 09-389, § 1, 5-14-2009; Ord. No. 18-952A, § 1, 11-1-2018)

Sec. 5-174. Walking or exercising an animal declared dangerous.

No owner of an animal which has been declared to be dangerous shall allow the animal out of its proper enclosure without proper supervision and adequate restraint.

(1) Proper enclosure for a dangerous animal shall be suitable to prevent the entry of the general public and that:

a. Is capable of being locked with a key, key pad, or combination lock when the animal is within the structure or when the structure is unattended;

b. Has secure sides, a secure top and a secure concrete, or other comparable material, bottom and is attached securely at all sides. All four sides of the fence or pen must be sunk at least one foot into the ground to prevent the animal from digging out;

c. Provides adequate ventilation and protection from the elements;

d. Exhibits a sign conspicuously posted upon the property and the pen or structure containing the following: "Dangerous Animal - No Trespassing;" and

e. Is constructed to allow the animal to stand normally and without restriction and shall not be less than 200 square feet.

(2) When exercising the animal outside of its proper enclosure, the exercise area shall be enclosed by a fence sufficient to prevent the animal from escaping the enclosure by jumping over, going through, or going under the fence.

(3) When walking the animal in any public or open area, the animal shall be securely leashed in a manner to afford the owner optimum control over the animal with a leash no longer than four feet in length and muzzled with a device sufficient to prevent the biting of persons or other animals.

(4) No person under the age of 19 shall exercise or walk an animal declared dangerous.

(Ord. No. 09-389, § 1, 5-14-2009; Ord. No. 18-952A, § 28, 11-1-2018)

Sec. 5-175. Animal declared dangerous.

The owner of an animal which has been declared to be dangerous by a court may petition the municipal court to remove the dangerous animal designation 18 months after the judicial

declaration was issued. A copy of the petition shall be filed with the municipal court and the city attorney. The court may remove the dangerous animal designation and eliminate any requirements of this act if the owner of the animal has not violated this act or any orders of the court, and if the court is satisfied from the evidence that the animal no longer presents a danger.
(Ord. No. 09-389, § 1, 5-14-2009)

Sec. 5-176. An attack by an animal declared dangerous.

(a) If an animal that has previously been declared by a court to be dangerous, when unprovoked, shall cause serious physical injury or kill a human being, the owner of the animal shall be guilty of a misdemeanor and subject to no less than a $500.00 fine and imprisonment up to six months, as determined by the court.

(b) If an animal that has not been declared by a court to be dangerous attacks and causes serious physical injury or death to any human being, and the owner of the animal had prior knowledge of the dangerous propensities of the animal, yet demonstrated a reckless disregard of the propensities under the circumstances, the owner of the animal shall be guilty of a misdemeanor and subject to no less than a $250.00 fine and imprisonment up to six months, as determined by the court.

(c) In addition to any fines imposed by the court, a person guilty of violating subsections (a) and (b) of this section shall pay all expenses, including, but not limited to, shelter, food, veterinary expenses for boarding and veterinary expenses necessitated by impoundment of the animal, medical expenses, as approved by the court, incurred by a victim from an attack by a dangerous animal and other expenses required for the destruction of the animal.

(d) An owner of an animal declared to be dangerous by a court who does not contain the animal in a proper enclosure shall be guilty of a misdemeanor and subject to no less than a $250.00 fine and imprisonment up to six months, as determined by the court.

(e) An owner of an animal declared to be dangerous by a court who has been adjudicated guilty of subsection (d) of this section and subsequently fails to contain a dangerous animal in a proper enclosure shall be guilty of a misdemeanor and shall forfeit ownership of the animal. If the animal, at the determination of the director, is not suitable for rehabilitation and adoption, the animal shall be humanely euthanized.

(f) Any person who knowingly makes a false report to a law enforcement officer or HAS officer that an animal is dangerous is guilty of a misdemeanor and subject to a fine not to exceed $500.00 and imprisonment up to six months, as determined by the court.
(Ord. No. 09-389, § 1, 5-14-2009; Ord. No. 18-952A, § 1, 11-1-2018)

Chapter 6

AVIATION*

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***Cross references—**Streets, sidewalks and other public places, ch. 23; airport industrial park district regulations, app. A, § 43.1 et seq.; airport obstruction and noise exposure district regulations, app. A, art. 63; airport commercial district regulations, app. A, art. 64.

State law references—Aviation, Code of Ala. 1975, § 4-1-1 et seq.; municipal airports, Code of Ala. 1975, § 4-4-1 et seq.

ARTICLE I. IN GENERAL

Sec. 6-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Aircraft means any contrivance now known or hereafter invented, used or designed for navigation of or flight in the air, except a parachute or other device used primarily as safety equipment.

Airport means the Huntsville International Airport, Carl T. Jones Field.

Chief of police means the chief of police or his designee.

Executive director means the chief operating officer at the airport, or such person who may from time to time be authorized to act for the airport authority.

Emergency medical services (EMS) landing site means a site used for the landing and taking off of EMS helicopters that is located at or as near as practical to a medical emergency or at or near a medical facility and: (1) has been designated as EMS landing site by the chief of police or his agent using criteria that the chief of police has determined is reasonable and prudent for the safe operation of EMS helicopters, and (2) is adequate and available for medical response to a mass casualty event, and (3) may or may not be marked as a permitted helipad in accordance with the zoning regulations of the city, and (4) is used only for emergency medical purposes.

Emergency use facility means an area for accommodating helicopters in support of emergency public safety agency operations, but it is not used as a heliport for any other purpose.

Helicopter means any contrivance now known or hereafter invented, used for or designed for navigation of flight in the air which is defined or regulated by the Federal Aviation Administration (FAA) as a rotorcraft.

Helipad means any area meeting all pertinent federal, state and local safety standards which has been designated by the chief of police as a landing area for helicopters.

Temporary helicopter landing site means a site, other than an emergency medical service landing site at or near a medical facility, which is used for landing and taking off of helicopters and: (1) is used or intended to be used for less than one year, except for recurrent annual events, and (2) is not marked or lighted to be distinguishable as a heliport and (3) is not used exclusively for helicopter operations.

(Code 1982, § 6-1; Ord. No. 09-520, § 1, 6-25-2009)

Cross reference—Definitions generally, § 1-2.

Sec. 6-2. Aircraft owned by the government or licensed by foreign governments.

The provisions of this chapter shall not apply to public aircraft of the federal government, or of a state, or territory, or of a political subdivision of a state or territory, or to aircraft licensed by a foreign country with which the United States has a reciprocal agreement covering operation of such aircraft.

(Code 1982, § 6-8; Ord. No. 09-520, § 2, 6-25-2009)

Sec. 6-3. Permits for certain flights.

No person shall make exhibition flights by carrying banners on or operating a loudspeaking device from any aircraft flying within or over the corporate limits of the city without first obtaining a permit to do so from the chief of police and payment of a permit fee of $25.00 for each flight. The chief of police shall issue such permit if the person who will operate the aircraft, in carrying out any of the objects named in this section, is duly licensed by the Federal Aviation Administration, the aircraft to be used is licensed by the agency and the safety or lives of the inhabitants of the city will not be endangered by the proposed flight. The permits provided for in this section may be issued by the chief of police for periods of not longer than six months rather than for individual flights if the safety or lives of the inhabitants of the city will not be endangered by such permit and a permit fee of $100.00 is paid. Such

six months' permit shall be revoked by the chief of police upon violation of any provision of federal, state or local law.
(Code 1982, § 6-3; Ord. No. 09-520, § 3, 6-25-2009)

Sec. 6-4. Dropping objects from aircraft prohibited.

No person in any aircraft shall cause or permit to be thrown out, discharged or dropped, within the corporate limits of the city, any object or thing, except loose water or lose sand ballast when absolutely essential to the safety of the occupants of the aircraft.
(Code 1982, § 6-4; Ord. No. 09-520, § 4, 6-25-2009)

Sec. 6-5. Landing at other than established airport.

Except in case of emergency, no person shall land any aircraft within the corporate limits of the city, except upon a regularly established airport field or landing site designated by the chief of police.
(Code 1982, § 6-6; Ord. No. 09-520, § 5, 6-25-2009)

Sec. 6-6. Place of landing or taking off.

Except in emergencies, no person who is in control of an aircraft shall cause or permit it to land or take off except at a place approved by the Federal Aviation Administration and established in accordance with the zoning regulations of the city or a landing site designated by the chief of police.
(Code 1982, § 6-33; Ord. No. 09-520, § 6, 6-25-2009)

Sec. 6-7. Helicopter landings.

(a) It shall be unlawful for any person to land any helicopter on any runway or other property which has not been previously designated as a helipad by the chief of police in accordance with the zoning regulations of the city. However, this section shall not apply to helicopter landings conducted by state or federal military personnel on property owned or under their control, or helicopter landings conducted by other persons by special permit from the chief of police at approved EMS landing sites, emergency landing sites, or temporary landing sites.

(b) The chief of police shall keep a list of designated locations suitable for EMS landings sites, emergency landing sites, and temporary landing sites. Such sites shall be designated for use only if the safety or lives of the inhabitants of the city will not be endangered by this use.

(c) Indemnity as required by the city must be provided to protect the city from any action, claim, damage, suit or cost with respect to the landing of helicopters on the property by the permittee.
(Ord. No. 84-730, 10-25-1984; Ord. No. 09-520, § 7, 6-25-2009)

Sec. 6-8. Special event landings and take off.

(a) The chief of police may issue a one time use permit for aircraft to land and take off at a specified pre-designated temporary landing site for the purpose of medical service providers, emergency responder agencies, or military contractors to conduct: training exercises, aircraft demonstrations, or aircraft displays. The chief of police shall issue such permit if the person who will operate the aircraft, in carrying out any of the activities named in this section, is duly licensed by the Federal Aviation Administration (FAA), the aircraft to be used is licensed by the FAA and the safety or lives of the inhabitants of the city will not be endangered by the proposed activities. Aircraft landings conducted by state or federal military personnel are exempt from this section.

(b) A person seeking issuance of a special event landing permit shall file an application during regular business hours with the police department on forms provided by the city.

(1) Time for filing an application is as follows:

a. An application to land an aircraft may be filed any time beginning 12 months prior to the date of event but no later than ten business days preceding the date of the proposed event.

b. If the event will require the closing of any public street, highway, road or other such public way dedicated primarily for use by vehicular traffic, the application to land an aircraft

may be filed any time beginning 12 months prior to the date of event but no later than 30 business days preceding the date of the proposed event.

(2) All applications will be stamped by the city with the date and time of receipt in order to ensure that the use of the public area requested is on a first-come, first-served basis.

(3) The following information shall be required on an application to land an aircraft:

a. The name and type of the event along with the dates and times for arrival and departure of the aircraft;

b. The name, date of birth, address and contact information of the person completing the application;

c. The name, address and contact information of at least two persons who will be responsible for checking and maintaining the suitability and safety of the landing site;

d. The name, address and contact information of the organization, group, company, etc., that is sponsoring the event, including authorizing agent;

e. The name, address and contact information of the organization, group, company, individual, etc., that owns the aircraft;

f. A description of the aircraft to include number of crew members and passengers and pilot information;

g. The purpose of the event;

h. A description of the landing site, to include: Provisions for additional lighting for night landings and take-offs; provisions for securing the landing zone against pedestrians, animals and vehicles entering the area; provisions for security, traffic control, crowd control, fire protections and emergency medical coverage; any hazardous material aboard the aircraft, to include hazard class, quantity, special handling or packaging, etc.; provisions for aircraft to be fueled on site; radio or other contact between the aircraft and personnel on the ground;

i. The owner of the landing zone to include address and contact information;

j. A statement of any special circumstances which are material to the permit requested; and

k. Such other relevant information as the director of public safety may reasonably require in regard to the application.

(4) The applicant must include a notarized statement that indicates permission has been obtained for the event's use of private property or property under the control or jurisdiction of any board, agency or other governmental entity.

(c) If the special event for which a permit is sought by any private entity is a training exercise conducted by, or in conjunction with, the federal government, a state government, or a government of a political subdivision thereof, the permit fee shall be waived for all participants in the training exercise.
(Ord. No. 09-520, § 8, 6-25-2009)

Secs. 6-9—6-40. Reserved.

ARTICLE II. HUNTSVILLE INTERNATIONAL AIRPORT*

DIVISION 1. GENERALLY

Sec. 6-41. Enforcement personnel.

All police officers and public safety officers appointed by the airport authority shall be sworn in by any judge of the municipal court. Notwithstanding, all such persons shall be vested with full authority to act as police officers upon appointment by the airport authority.

*__State law reference—__Authority to establish, maintain and operate airports, Code of Ala. 1975, § 4-4-3.

Sec. 6-42. Sales, solicitations of products and services at airport.

It shall be unlawful for any person to solicit, sell or provide any product, commodity or service, including any limousine, taxi or U-drive-it service, on the property of the Huntsville International Airport without first obtaining consent from the airport authority, which consent may be conditioned upon such person's entering into a contract or obtaining a permit from the airport authority. Any such activity shall be conducted in accordance with the provisions of such contract or permit.
(Code 1982, § 6-41)

Secs. 6-43—6-60. Reserved.

DIVISION 2. TRAFFIC REGULATION BY AIRPORT AUTHORITY*

Sec. 6-61. Generally.

(a) The executive director is empowered to determine, in accordance with previously conducted surveys, the directional movement of traffic (so that vehicular traffic shall be required to proceed one way) and maximum rates of speed over and along various sections of the roadways open to public use upon the airport authority property.

(b) The executive director is empowered to place or cause to be placed portable or permanent signs or markings, similar to signs and markings erected upon public roadways, to warn the traveling public of regulations or restrictions upon the directional movement and maximum rates of speed permitted over and along the various sections of airport roadways.

(c) During the time the signs or markings are in place, it shall be unlawful to drive an automobile or other motor vehicle over and along portions of the ways so designated except in conformity with regulations and restrictions as posted.

(d) All regulations and restrictions imposed under this section, and all surveys upon which such regulations and restrictions are based, shall be kept on file in the office of the executive director for inspection by the public.

(e) The executive director is authorized to make additional surveys, as warranted by the traffic conditions at the airport, in order to determine if changes in the directional movement of traffic or maximum rates of speed are needed.
(Code 1982, §§ 6-9, 6-10; Ord. No. 88-17, §§ 2, 3, 1-14-1988)

Sec. 6-62. Vehicles not to be driven over airport area.

It shall be unlawful for any person to operate or drive any land motor vehicle or ride such vehicle over or across any part of the area embraced in what is known as the Huntsville International Airport, except in areas properly designated by the airport authority.
(Code 1982, § 6-12)

Secs. 6-63—6-80. Reserved.

DIVISION 3. MOTOR VEHICLE PARKING†

Sec. 6-81. Parking areas; rules and regulations; signs; unlawful parking.

(a) The airport authority is authorized and empowered to determine which areas on the airport property shall be used for parking of automobiles and other motor vehicles and to designate by appropriate signs and markings to warn the public of such regulations; and the airport authority shall adopt rules and regulations pertaining to the areas established for parking, limited parking, prohibited parking, parking meter zones and time for such parking period, for bus stops, taxicab stands and loading of trucks and prepare a plat designating such areas; and such plat shall be placed on file in the office of the airport manager for inspection by the public.

*__Cross references—__Boards, commissions, committee and authorities, § 2-1291 et seq.; traffic and vehicles, ch. 25.

†__Cross reference—__Traffic and vehicles, ch. 25.

(b) In exercising this authority, the airport authority may designate certain areas on airport property where only agents, visitors and employees may park their vehicles.

(c) From and after such time as signs are in place, which signs shall be so designated and worded as to warn the public of the regulations, it shall be unlawful for any person to park or leave standing an automobile or motor vehicle on airport property within the city except in conformity with these regulations.
(Code 1982, § 6-56)

Sec. 6-82. Parking meter areas.

The airport authority is authorized to establish parking meter areas on the loop road leading into the airport from its intersection with Martin Road extended to the point where that road intersects Martin Road extended at the exit from the airport.
(Code 1982, § 6-57)

Sec. 6-83. Installation, construction, maintenance, operation of parking meters.

In parking meter areas, there shall be installed parking meters upon the curb or sidewalk immediately adjacent to the parking spaces provided for by rules and regulations adopted by the airport authority; and the airport manager shall be responsible for the regulation, operation and use of such parking meters. The airport authority shall be responsible for the maintenance of such parking meters. Each parking meter shall be so set and arranged as to display a signal showing legal parking upon the deposit of the appropriate coin of lawful money of the United States of America, for the period of time prescribed by such meters. Each device or parking meter shall be arranged so that the expiration of the time limit is well indicated by a proper visible signal that the lawful parking period is expired and in such cases the right of such vehicle to occupy the space; and the operator, owner, possessor or manager shall be subject to the penalties provided in section 1-7.
(Code 1982, § 6-58)

Sec. 6-84. Collection and disposition of parking meter deposits.

It shall be the duty of the airport manager in behalf of the airport authority to collect or cause to be made regular collections of the money deposited in parking meters, and it shall be his duty to remove from the parking meters or cause to be removed from the parking meters the coins so deposited in such meters and for the airport authority to retain the money so deposited for the regulation and control of traffic upon the airport and also to defray the expense of paying for and installing the parking meters, and to provide for the cost of regulating, supervising, maintaining, inspecting, operating and controlling of traffic upon the airport, the use of the parking meters installed under this article.
(Code 1982, § 6-59)

Sec. 6-85. Checking of parking spaces and parking meters; report of violation; notice to owner or operator; fee.

It shall be the duty of the chief of police, the officers of the police department, and of any peace officer or special police officer employed by the airport authority to check the parking spaces and meters located upon the airport as designated by the airport manager, and to report the violation of this article in the following manner:

(1) The chief of police or other officer shall keep an account of and report the number of each parking meter which indicates that the vehicle occupying the parking space adjacent to such parking meter is or has been parked in violation of any of the provisions of this article, the date and hour of such violation, the make and the state license number of such vehicle, and any other facts a knowledge of which is necessary to a thorough understanding of the circumstances attending such violation.

(2) He shall attach to such vehicle a notice stating that it has been parked in violation of this article and instructing the owner or operator to report to a certain designated place and at a certain desig-

nated time to the municipal court in regard to such violation. Each such owner or operator may, within five days after such notice was attached to such vehicle, pay the sum of $10.00 to the municipal court as a penalty for and in full satisfaction of a parking meter violation.

(3) If the violator does not appear in response to the notice affixed to such motor vehicle within a period of five days, the municipal court shall send to the owner of the motor vehicle to which the notice was affixed a letter informing him of the violation and warning him that if such letter is disregarded for a period of seven days, a summons will be issued requiring his appearance in municipal court and an additional late fee will be assessed.

(4) If the violator does not appear in response to the notice affixed to such motor vehicle or to the letter sent to the owner of the motor vehicle by the municipal court within seven days after such written notice is sent to the owner of the motor vehicle, such owner or person shall be guilty of a misdemeanor regardless of the disposition of the case for parking meter violations.

(Code 1982, § 6-60; Ord. No. 88-18, § 1, 1-14-1988)

Sec. 6-86. Overtime parking; deposit of coin to extend time.

It shall be unlawful for any person to cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked overtime or beyond the period of legal parking time established and described on the parking meter; or to deposit in any parking meter any coin for the purpose of parking beyond the maximum legal parking time for the particular parking meter zone.

(Code 1982, § 6-61(a))

Chapter 7

BUILDINGS AND BUILDING REGULATIONS*

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ARTICLE I. IN GENERAL

Sec. 7-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building official, when it appears in the International Codes, means the director of the inspection department.

Contractor, appearing without reference to a specific type of contractor defined in this section, means all contractors defined in this section, unless the context clearly indicates otherwise.

Department of building safety, when it appears in the International Codes, means the inspection department.

Electrical contractor means any person who is engaged in the business of installing electrical power or control systems; or maintaining, altering or repairing any electrical wiring devices, equipment or any other electrical apparatus, and who has a state masters certification from the State of Alabama Electrical Board or who has successfully passed a comparable exam as administered by a local authority, subject to the provisions of sections 7-134 and 7-135.

Gas contractor means any person engaged in or proposing to engage in the business of contracting to do, or of superintending, the installation, maintenance or repair of gas systems and/or gas work, and who is certified as a master gasfitter by the Alabama State Plumbers and Gasfitters Examining Board.

General contractor means any person who, for a fixed price, commission, fee or wage, undertakes to construct or superintend or engage in the construction, alteration, maintenance, repair, rehabilitation, remediation, reclamation or demolition of any commercial building, project or improvement, and who is licensed by the State Licensing Board for General Contractors.

Heating and air conditioning contractor means any person who for hire is engaged in the installation or service and repair of heating and air conditioning systems and who is certified by the State of Alabama Board of Heating and Air Conditioning Contractors.

Plumbing contractor means any person engaged in or proposing to engage in the business of contracting to do, and/or of superintending, the installation, maintenance or repair of plumbing, and who is certified as a master plumber by the Alabama State Plumbers and Gasfitters Examining Board.

Residential contractor means any person who constructs a residential building or structure for sale or who, for a fixed price, commission, fee or wage, undertakes or offers to undertake the construction or superintending of the construction of any building or structure which is not over three floors in height and which does not have more than four units in an apartment complex, or the repair, improvement or re-improvement, to be used by another as a residence, and who is licensed by the State Homebuilders Licensure Board. A residential contractor may contract for commercial work where the cost of the undertaking is less than $50,000.00.

Subcontractor/specialty contractor means a contractor other than a plumbing, general, residential, heating/air conditioning, gas or electrical contractor who, for a fixed price, commission, fee or wage, is engaged in the business of making minor repairs (no structural work except as provided within this definition) to buildings or structures or erecting or altering specific items (no structural work except as provided within this definition) to buildings or structures or the installation of specialty products, such as but not limited to storm doors and windows, tile, carpets, aluminum awnings or siding, swimming pools, kitchen cabinets, alarm systems, elevators, sound systems and sign installation. Approved subcontractors/specialty contractors are allowed to do structural work when working as a subcontractor under the direct supervision of a licensed general contractor or a property owner authorized to act as his own general contractor. Subcontractors/specialty contractors must have any certification required by state law.

(Ord. No. 98-629, § A(7-1), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Cross reference—Definitions generally, § 1-2.

Sec. 7-2. Application of chapter.

All the provisions of this chapter shall apply with equal force to both public and private buildings within the jurisdiction.
(Ord. No. 98-629, § A(7-2), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-3. Violations.

Any person who shall violate a provision of or fail to comply with this chapter, or with any of its requirements or who shall erect, construct, alter, demolish or move any structure, or has erected, constructed, altered, repaired, moved or demolished a building or structure in violation of a detailed statement or drawing submitted and approved under this chapter, or shall fail to comply with an order made under the provisions of this chapter, shall be guilty of a violation of this chapter. Each such person shall be deemed guilty of a separate offense for each and every day or portion of a day during which any violation of any of the provisions of this chapter is committed or continued.
(Ord. No. 98-629, § A(7-3), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-4. Certification as to improvements prerequisite to certificate of occupancy in residential subdivision.

The director of the inspection department shall not issue a certificate of occupancy in any residential subdivision until he shall have received from the city engineer certification that the improvements in the subdivision pertaining to that particular lot have been constructed according to plans and specifications as approved by the city, and will be accepted for maintenance by the city at such time as the remaining public improvements within the subdivision have been completed and accepted by the city.
(Ord. No. 98-629, § A(7-4), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-5. Easements.

(a) It shall be unlawful for any person to build, construct or erect, or cause to be built, constructed or erected, any building or structure over, along or upon any utility, drainage or sanitary sewer easement in the city limits.

(b) Any building or structure built or erected in violation of subsection (a) of this section shall be subject to abatement and removal as a nuisance in addition to being subject to other sanctions of law or in equity.
(Code 1982, § 7-144; Ord. No. 05-80, § A, 3-10-2005)

State law reference—Nuisances, Code of Ala. 1975, § 6-5-120 et seq.

Sec. 7-6. Application of building code.

(a) The provisions of section 508 of the Standard Building Code (Accessibility for the Physically Handicapped), as published by the Southern Building Code Congress International, Inc., Birmingham, Alabama, 1988 edition, as adopted by Ordinance No. 89-481 on October 26, 1989, shall apply to existing structures and installations subject to exemptions and exceptions as follows: The provisions of this section apply to existing structures and installations in occupancy groups A, B, I (group 1 only), M, R (hotels and motels only), and S (automotive parking structures only) only.

(b) All parking spaces designated for parking by persons with disabilities for parking by persons with disabilities as required by table 1 shall be designated with standard painted lines, signs and symbols as established by Resolution No. 93-756. Access ramps shall be constructed in accordance with the design standards outlined in Resolution No. 93-756.

TABLE 1

PARKING SPACES AND PASSENGER LOADING ZONES FOR PERSONS WITH DISABILITIES

Total Spaces or Zones	*Required Number*
1—25	1
26—50	2
51—75	3
76—100	4
101—150	5
151—200	6

201—300	7
301—400	8
401—500	9
501—1,000 percentage of total	2
Over 1,000	20
Plus for each 100 over 1,000	1

(1) One in every eight of accessible spaces, but not less than one must be designated as "van accessible." However, this designation is not required if all accessible spaces are 132 inches wide with a 60-inch access isle.

(2) Compliance with this section shall be accomplished at the expense of the owner, lessee, designated agent or person in control of the property for existing buildings and parking lots within 30 days from the receipt of notice from the parking division manager that the property in question is to be modified in compliance with this section. Compliance with this section for proposed structures shall be by the building inspection division.

(3) Compliance shall be accomplished after consultation with the director of public works services or his duly authorized and designated assistants and in accordance with a plan recommended or approved by him. In approving such plan, the director shall require, where practicable, that parking spaces and access ramps be located so as to be reasonably convenient to entrances accessible to the general public for persons with disabilities.

(4) Any person who has received a notice to comply with the ordinances from the director of public works services, within 30 days from the receipt of the notice, may appeal the notice to the board of examinations and appeals for construction industries pursuant the Southern Building Code.

(5) Any order of compliance issued by the parking division manager as the board shall specify a specific but reasonable time for compliance. It shall be unlawful and an offense for any person to fail, after notice from the director of public works services, to comply with the provisions of this section. Failure to comply will result in the issuance of a citation to the proper authority and an appearance before a municipal judge. Maintenance of the parking and ramp provisions of this section will be at the expense of the owner, lessee, designated agent or person in control of the property. Failure to maintain these provisions will be punishable after proper notice and by the issuance of a citation and an appearance before a municipal judge.

(c) The provisions of this section as to retrofit design and location of marked spaces and access ramps to existing buildings and structures shall be enforced by the director of public works services or his duly authorized and designated assistant. Any structural modifications, items of work and requirements covered by the adopted Standard Building Code shall be referred to and shall be the responsibility of the manager of inspection.

(d) Enforcement of compliance for providing handicapped parking spaces and associated access to the doors and structures shall be provided by the manager of inspection. Design approval for handicapped parking spaces and associated access to the building doors for new facilities shall be obtained from the director of public works services or his duly authorized and designated assistants.

(e) It shall be unlawful for any person to park, stop or store any vehicle or to store or display any materials or products, whether for sale or not, in such a way that will block access into or out of a handicapped parking space or block access to designated handicapped ramps, access aisles and/or walkways. Handicapped parking spaces and ramps shall be located and protected to prevent their obstruction by any means.

(f) Nothing in this section shall relieve any person from the responsibility of securing an appropriate permit from the building official when otherwise requested by the law or ordinance.

(Ord. No. 93-755, §§ 1—6, 11-9-1993; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-7. Portable storage structure permit fee regulations.

(a) *Definitions.* For the purposes of this section, the following term shall have the respective meaning ascribed by this section:

Portable storage structure means a transportable storage structure that is designed and used primarily for the storage of household goods, personal items and other materials for use on a limited basis on residential property. Such structures are uniquely designed for their ease of loading to and from a transport vehicle. The trailer portion of a tractor trailer, boxcars and shipping containers shall also be considered portable storage structures when expressly used for the purposes of on-site storage in residential districts.

(b) *Levy of permit fee.* There is hereby levied and imposed a portable storage structure permit fee in the amount of $10.00 upon every person engaging in the placement of a portable storage structure on a residential lot without an active building permit. Each portable storage structure permit is a conditional permit and is issued by the Zoning Administrator of the City of Huntsville, Alabama, under the terms and conditions as governed by Ordinance No. 08-529 as adopted by the City Council for the City of Huntsville, Alabama, on July 31, 2008.

(Ord. No. 08-778, §§ 1, 2, 8-28-2008)

Editor's note—Ord. No. 08-778, §§ 1, 2, adopted August 28, 2008, did not specifically amend the Code; hence, inclusion herein as § 7-7, was at the discretion of the editor. See also the Code Comparative Table.

Secs. 7-8—7-40. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

DIVISION 1. GENERALLY

Secs. 7-41—7-60. Reserved.

*__Cross reference—__Administration, ch. 2.

DIVISION 2. PERMITS, CERTIFICATES OF OCCUPANCY AND INSPECTIONS

Sec. 7-61. Issuance of permits and certificates of occupancy.

(a) Any owner, authorized agent or contractor who desires to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system, the installation of which is regulated by the technical codes, or to cause any such work to be done, shall first make application to the building official and obtain the required permit for the work, except permits shall not be required for the following work:

(1) Any portable heating appliance;

(2) Any portable ventilation equipment;

(3) Any portable cooling unit;

(4) Any steam, hot or chilled water piping within any heating or cooling equipment regulated by this chapter;

(5) Replacement of any part which does not alter its approval or make it unsafe;

(6) Any portable evaporative cooler; or

(7) Any self-contained refrigeration system containing ten pounds (4.54 kg) or less of refrigerant and actuated by motors of one horsepower (746 W) or less;

(8) Floor covering;

(9) Painting and wallpapering;

(10) Fencing;

(11) Retaining walls retaining less than four feet of earth;

(12) Swimming pools with less than 18 inches of water.

No person, firm or corporation shall erect, construct, enlarge, alter, repair, move, remove, convert or demolish any building or structure, or cause such work to be done when the reasonable cost of the material and labor for such work is in excess of $250.00 or if structural work is involved

in any amount, without first obtaining a permit for such building or structure from the building official.

(b) No building permit shall be issued where sanitary sewer service is not available to the building being constructed, erected, remodeled or repaired without the written approval of the county health officer.

(c) No certificate of occupancy shall be issued until all required inspections (and septic tank if required), are approved and recorded.

(d) No building permit shall be issued to any person for the construction, erection, remodeling or repair of any building within the city except the bona fide owner of the land on which the building is to be constructed, erected, remodeled or repaired, or to a duly licensed contractor. The director of the inspection department may require such proof as may be necessary to ensure that such building, upon completion, shall be used for the use of the owner.

(e) Any permit issued shall become invalid unless the work authorized by it shall have been commenced within six months after its issuance, or if the work authorized by such permit is suspended or abandoned for a period of six months after the time the work is commenced; provided, that for cause, one or more extensions of time, for periods not exceeding 90 days each, may be allowed, in writing, by the director of the inspection department. When mandated by an official housing notice from the Huntsville Community Development Department, work must be started and completed by the time the department's "official notice" sets forth.

(f) If any person commences work in or on a building or structure before obtaining the necessary permits from the inspection department, the permit fee may be doubled.
(Ord. No. 98-629, § A(7-9), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-62. Inspection and approval of equipment.

The inspection department shall not inspect or approve any plumbing, electrical wiring, gas piping or gas burning equipment in any building within the city unless such work is done by a person duly licensed by the city or a person doing work on their own property may do the following work on their own residence in which they live: building, electrical, plumbing, and mechanical with proper permits as provided for in this chapter.
(Ord. No. 98-629, § A(7-10), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-63. Equipment hidden from view.

When any building, plumbing, gas, mechanical or electrical equipment is to be hidden from view by the permanent placement of parts of the building, the person installing the equipment shall notify the inspection department and such equipment shall not be concealed until it has been inspected and approved by the inspection department or until 24 hours, exclusive of Saturdays, Sundays and holidays, shall have elapsed from the time of such notification; provided that on large installations, where concealment of equipment proceeds continuously, the person installing the equipment shall give the inspection division due notice, the inspections shall be made periodically during the progress of the work.
(Ord. No. 98-629, § A(7-11), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-64. Connection to installations.

(a) It shall be unlawful for any person to make any connection from a supply of gas or electricity or to supply gas or electricity to any gas or electrical equipment for the installation of which a permit is required, or which has been disconnected or ordered to be disconnected by the inspection department, until a certificate has been issued by the inspection department, authorizing the connection and use of such equipment. Before a certificate of occupancy can be issued, all required inspections, subcontractor's list, and any other legally mandated releases must be completed.

(b) Temporary power may be allowed on an individual case with temporary approval of gas, mechanical, building, electrical, and plumbing

and completion of all required applications. The following are requirements for residential temporary power:

(1) The house must be lockable.

(2) The service must be complete (three-inch PVC conduit installed; grounding service; meter base; disconnect).

(3) All rough-in and framing inspections must be approved.

(4) All plumbing, electrical, gas, mechanical, and general contractors must call in their 60-day temporary power inspections.

(5) The sheetrock must be hung (mudding and taping not mandatory). (The HVAC unit must be shut down and supply and return vents covered before any sanding of wood, sheetrock, etc. are to be done.)

(6) Any lines not made hot must be properly secured to the side of the panel box.

(7) Exterior outlets requiring ground fault breakers must be complete and energized.

(8) Lines to be made hot must be code compliant.

(9) Electrical contractor must activate all circuits to be used.

(10) Activation of HVAC unit must be code compliant.

(11) The request must be made in the name of the permitted contractor.

(12) Forms and conditions to be completed include:

a. Request for temporary power.

b. If occupied before agreement, power can be removed. (meter)

(c) Huntsville utility requirements to be completed before temporary power can be obtained:

(1) The house cannot be lived in (occupied).

(2) Need a pre-release number.

(3) Need a posted building permit on the property.

(4) Must have permanent house numbers affixed to the house.

(5) Temporary pole must be removed before temporary power can be made available. (Cannot have both temporary pole and temporary/permanent power).

(6) Overhead/underground service will require siding installation (bricklayers, aluminum siding, etc.).

(7) Application and utility deposit for temporary service must be completed.

(Ord. No. 98-629, § A(7-12), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-65. Right of entry; repair of dangerous equipment.

The director of the inspection department or his assistant shall have the right during reasonable hours to enter any building or premises in the discharge of his official duties, or for the purpose of making any inspection, re-inspection, or test of the building or equipment contained in the building, or its installation. When any building or equipment is found by the director of the inspection department or his assistant to be dangerous to persons or property because it is defective or defectively installed, the person responsible for the building or equipment shall be notified in writing and shall make any changes or repairs required in the judgment of the director of the inspection department or his assistant to place such equipment in safe condition; and if such work is not completed within 15 days, the director of the inspection department or his assistant shall have the authority to disconnect or order the discontinuance of electric, gas or plumbing equipment. In cases of emergency, where necessary for safety to persons or property, or where electrical, gas or plumbing equipment may interfere with the work of the fire division, the director of the inspection department or his assistant shall have the authority to immediately disconnect or cause the disconnection of any electrical, gas or plumbing equipment.

(Ord. No. 98-629, § A(7-13), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-66. Permits for public buildings.

The director of the inspection department shall not issue any building permit for the construction

of any public building or structure within the city, except upon receipt of satisfactory evidence that the board, commission or body having jurisdiction over the authorization and financing of the construction has submitted the location, character and extent of the construction to the planning commission pursuant to Code of Ala. 1975, § 11-52-11, and evidence that the construction has been approved, or that the board, commission or body has by two-thirds of its membership overruled the disapproval. A statement from the director of urban development or their authorized representative that all requirements under Code of Ala. 1975, § 11-52-11, shall be accepted by the director of the inspection department as full compliance with this section.
(Ord. No. 98-629, § A(7-14), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-67. Waiver of permit fees.

(a) Notwithstanding anything to the contrary in this article, any permit fee of any kind required under, or pursuant to, this article in connection with the construction of any project formally acknowledged by the City Council of the City of Huntsville as including a capital investment of a minimum of $100,000,000.00, and employing a minimum of 1,000 people in jobs not previously made available within the corporate limits of the City of Huntsville by the entity responsible for constructing the project (or the entity's subsidiaries or affiliates), is hereby waived.

(b) The provisions of this section shall not be construed as eliminating the requirement to apply for, and receive, applicable permits before engaging in the classification of work authorized by such permits, nor shall they be construed as modifying or eliminating any other City of Huntsville regulatory provisions regarding the construction of buildings or other structures or facilities within the City of Huntsville. This section only addresses eligibility for waiver of permit fees.
(Ord. No. 15-29, 1-22-2015)

Secs. 7-68—7-90. Reserved.

DIVISION 3. BOARD OF EXAMINATIONS AND APPEALS FOR CONSTRUCTION INDUSTRIES*

Sec. 7-91. Established; members.

There is established in the city a board to be called the board of examinations and appeals for construction industries, which shall consist of 16 members. Such board shall be composed of the following:

(1) One person engaged in the electrical contracting business to be selected by the city council;

*__Cross reference—__Boards, commissions, committee and authorities, § 2-1291 et seq.

(2) One person engaged in the plumbing contracting business to be selected by the city council;

(3) One person engaged in the residence construction business to be selected by the city council;

(4) One general contractor engaged primarily in the streets, highways and utilities construction business to be selected by the city council;

(5) One registered architect to be selected by the city council;

(6) One registered engineer to be selected by the city council;

(7) One person engaged in the heating and / or air conditioning business to be selected by the city council;

(8) One general contractor engaged primarily in the commercial and industrial building business to be selected by the city council;

(9) A representative of the Huntsville Housing Authority to be selected by the city council;

(10) A representative of the city electric system to be selected by the city council;

(11) A representative of the city gas and water systems to be selected by the city council;

(12) A representative from the minimum housing board to be selected by the city council;

(13) The city clerk-treasurer or his designee;

(14) One person selected by the mayor;

(15) Director of planning or the assistant planning director if designated by the director of planning;

(16) One contractor engaged primarily in the business of fire safety to be selected by the city council.

(Ord. No. 98-629, § A(7-15), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-92. Term of office.

(a) The city clerk-treasurer or his designee shall serve on the board of examinations and appeals for construction industries only during the term of employment of the city clerk-treasurer, or the city clerk-treasurer's designee shall serve only during his term of employment with the city, but not to exceed the term of the city clerk-treasurer who designates him.

(b) The director of planning or the assistant director of planning shall serve only during the term of employment of the director of planning, or the assistant director of planning shall serve only during his term or employment with the city in the capacity, but not to exceed the term of the director of planning who designates him.

(c) All other members shall be appointed for a term of three years.

(d) A vacancy shall exist upon the expiration of an appointed term, and no member whose term has expired shall hold over until his successor is appointed.

(e) All members who were serving on September 30, 2004 shall be permitted to serve out the term for which they shall have been appointed, the provisions of this section notwithstanding.
(Ord. No. 98-629, § A(7-16), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-93. Quorum.

Eight members of the board of examinations and appeals for construction industries shall constitute a quorum. No board member shall act in any case in which he has a personal interest. Any official action of this board must be by a majority vote of those present and voting.
(Ord. No. 98-629, § A(7-17), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-94. Election of officers and records of proceedings.

The board of examinations and appeals for construction industries will elect its own officers

and shall keep or cause to be kept a full and complete record of all its proceedings which shall set forth the reasons for its decisions.
(Ord. No. 98-629, § A(7-18), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-95. Procedure.

The board of examination and appeals for construction industries shall establish rules and regulations for its own procedure not inconsistent with the provisions of this chapter. The board shall hold regular meetings at least once each calendar month at any time fixed by rule or resolution of the board. The chairman or any three members of the board may call special meetings for any stated purpose on at least 24 hours notice to each member in person, by mail or by telephone.
(Ord. No. 98-629, § A(7-19), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-96. Duties and powers.

The board of examinations and appeals for construction industries shall have the following powers and duties in the licensing and regulation of all persons engaged in the construction industries:

(1) To administer a recognized standard examination designed to test the qualifications for electrical contractors, and other contracting categories, and may include painters, steel erectors, flooring, landscaping, blasting, excavating, glass and glazing, masonry, paving, concrete and specialty contractors, but not limited to such contractors. Such examinations by the board shall be written. An oral examination may be given on special request designed for the purpose of determining whether or not a license may be issued to a contractor.

(2) To formulate applications for licenses for all of the categories of contractors set out in subsection (1) of this section. The board shall require that each application be accompanied with an application fee as established by the board, not to exceed $75.00. The board may hold examinations once every quarter. Applications must be filed at least three weeks prior to the date of examination. Applications will be for a specific examination on a specific date, and the examination must be taken on that date or application shall become null and void. An applicant not taking the examination on the date applied for, or not passing the examination, shall file a new application with the same requirements as listed in this subsection. The board may require identification prior to the applicant's being admitted for examination.

(3) To make recommendations to the city council regarding types of licenses to be used in the construction industries, and the scope of the operations under the different types of licenses, and the fees for all licenses and applications connected with the construction industries.

(4) To make continuing study of all building codes of the city and to make recommendations from time to time to the city council as to changes or additions to the technical building codes to the end that the general public will be protected in its business relations with contractors and tradesmen, and that better construction will prevail in the city.

(5) To receive complaints or charges against all persons for violating the provisions of this chapter relating to any person licensed by the city.

(6) To suspend or revoke or cause to be suspended or revoked any license issued by the city to a contractor or tradesman in the construction industries by the city, but only after the person charged with the violation has been given a ten-day written notice and full opportunity to be heard in his own person or by counsel of his choice and through such witnesses as he may desire.

(Ord. No. 98-629, § A(7-20), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-97. Variances.

The board of examinations and appeals for construction industries shall have the power, upon proper request, to grant a variance in all construction technical building codes which may, at the time, have been adopted by the city when the literal enforcement of these codes will create an unnecessary hardship on the property owner, provided that in the opinion of the board no hazard of life or property is created and the intent of the code is substantially adhered to. Any variance granted shall become invalid six months after issuance unless a permit to perform the work authorized by the variance has been issued. In granting any variance, the board may prescribe appropriate conditions and safeguards in conformity with this chapter. Violations of such conditions and safeguards, when made a part of the terms under which the variance is granted, shall be deemed a violation of this chapter and punishable as provided in section 7-3 and section 1-7.
(Ord. No. 98-629, § A(7-21), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-98. Decisions.

(a) Every decision of the board of examinations and appeals for construction industries shall be final, subject, however, to such remedy as any aggrieved party might have at law or in equity. The decision of the board shall be made known to the applicant in writing. Every decision shall be promptly filed in the office of the inspection department.

(b) The board of examinations and appeals for construction industries shall, in every case, reach a decision without unreasonable or unnecessary delay.

(c) If a decision of the board of examinations and appeals for construction industries reverses or modifies a refusal, order or disallowance of the inspection department or varies the application of any provision of any technical building codes duly adopted by the city, the inspection department shall immediately take action in accordance with such action.
(Ord. No. 98-629, § A(7-27), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-99. Legal advisor.

The city attorney, or an assistant city attorney designated by the city attorney, shall serve as legal advisor to the board of examinations and appeals for construction industries.
(Ord. No. 98-629, § A(7-28), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Secs. 7-100—7-130. Reserved.

ARTICLE III. CONTRACTORS*

Sec. 7-131. Construction on one's own land.

Notwithstanding any of the provisions of this article, any property owner may build his own building on his own land for commercial, rental or personal use without obtaining a general or residential contractor license, provided:

(1) The building is not to exceed 2½ stories in height or 5,000 square feet in area or is classified for other than group A, E, I, and H occupancies;

(2) The building is not offered for sale, sold or otherwise transferred for a period of one year after completion of construction;

(3) The proper permits are obtained.

(4) He complies with all building standards set forth in the building codes.

However, the property owner shall not make any plumbing, electrical, mechanical or gas installation unless he holds a valid license for these installations.
(Ord. No. 98-629, § A(7-25), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-132. Building, plumbing, electrical or mechanical work on one's own personal residence.

Nothing in this chapter shall prevent any homeowner from installing or maintaining build-

*__State law references__—General contractors, Code of Ala. 1975, § 34-8-1 et seq.; homebuilders, Code of Ala. 1975, § 34-14A-1 et seq.; electrical contractors, Code of Ala. 1975, § 34-36-1 et seq.; heating and air conditioning contractors, Code of Ala. 1975, § 34-31-18 et seq.; plumbers and gasfitters, Code of Ala. 1975, § 34-37-1 et seq.

ing, mechanical, plumbing and electrical, within their own property boundaries, providing such work is done by themselves and is used exclusively by them or his family. Such privilege does not convey the right to conflict with any provisions of the laws of the state that govern these types of installations, or to violate any of the provisions of the plumbing, electrical, mechanical or building codes, nor is it to be construed as exempting any such property owner from obtaining permits and paying the required fees and passing required inspections.
(Ord. No. 98-629, § A(7-26), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-133. License.

It shall be the duty of every contractor to pay a license tax as provided in chapter 15, article II of the Code of Ordinances and to register his name in a book provided for that purpose with the inspection department, giving full name, residence and place of business, and in case of removal from one place to another in the city, to have made corresponding changes in the register accordingly.
(Ord. No. 98-629, § A(7-5), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-134. Re-examination for failure to obtain license or an inactive license.

(a) All electrical contractors who took the Master Block examination administered by this city who fail to renew their license shall be required to apply for and take the State of Alabama Electrical Board's Master Electrical Examination. The State of Alabama Electrical Certification must be current when applying for a City of Huntsville Electrical License.

(b) A person holding a valid City of Huntsville electrical license in the electrical industry may place the license in an inactive status for two years upon the payment of a fee each year, equal to the minimum annual license fee required for such license. An electrical license placed in an inactive status may be renewed in such inactive status annually for an additional three years upon the payment each year of the proper fee and proof that such licensee has been engaged full time in the electrical trade for at least six of the last preceding 12 months. A valid inactive electrical license may be converted to an active license in the electrical trade upon meeting all requirements except the examination otherwise required.
(Ord. No. 98-629, § A(7-22), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-135. Exemption from examination.

Any electrical contractor who holds a current license from another local authority will not be subject to the examination provided in this article in order to obtain a license to engage in an activity for which he had achieved a passing grade on an examination administered by such local authority when such examination has been approved by the board of examinations and appeals for construction industries as being comparable to the examination required by this city, provided such other local authority extends to the contractors of this city the same privilege of being licensed upon showing of proof that a comparable examination has been passed by them. All other fees and requirements required for the issuance of a license must be met.
(Ord. No. 98-629, § A(7-23), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-136. Holders of state license.

No contractor licensed or certified by a board properly authorized by the state will be subject to any of the examinations provided in this article but shall be licensed upon payment of the proper fee, the proof of a state license as a contractor and compliance with other licensing requirements.
(Ord. No. 98-629, § A(7-24), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-137. Contractor insurance.

(a) Any person engaged as a contractor shall be covered by a public liability insurance policy to include coverage known as manufacturers and contractors liability and products and completed operations, issued by a solvent insurance com-

pany, licensed to do business in the state and city, which policy shall be subject to the minimum limitations specified in this section.

(b) For every contractor, the policy shall provide a minimum coverage for all damages arising out of the bodily injury to any one person of $100,000.00 and bodily injury in any one accident with an aggregate amount of $100,000.00. This policy shall provide minimum coverage for all damages to the property of others of $100,000.00 arising out of any one accident with an aggregate amount of $100,000.00. The minimum coverage for one occurrence must be $200,000.00. These limits apply to both public liability and completed operations.

(c) Such policy shall include an endorsement acceptable to the city clerk-treasurer providing for ten days prior written notification to the city clerk-treasurer of a material change or cancellation of such policy. A certificate of insurance signed by the authorized agent of the company shall be filed with the inspection department and shall remain on file there.

(d) Upon failure or refusal to comply with the provisions of this section, the license of such person to engage in business in the city shall ipso facto be revoked.
(Ord. No. 98-629, § A(7-6), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-138. Identification of contractors' vehicles.

There shall be displayed on all motor vehicles regularly used by all contractors in carrying on business, signs on each side, giving the name, address and telephone number of the contractor in letters not less than two inches in height.
(Ord. No. 98-629, § A(7-7), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Sec. 7-139. Use of name by other contractor.

No person shall allow his name to be used, directly or indirectly, by any other person engaged as a contractor for the purpose of obtaining a permit or for construction of any work unless such person whose name is to be used shall actually supervise and receive payment for such work.
(Ord. No. 98-629, § A(7-8), 9-10-1998; Ord. No. 05-80, § A, 3-10-2005)

Secs. 7-140—7-170. Reserved.

ARTICLE IV. TECHNICAL CODES*

DIVISION 1. GENERALLY

Sec. 7-171. Technical codes.

The following generally described technical codes, as hereinafter more specifically set forth, and as hereinafter deleted, modified or amended, in this article, are adopted by the city council by reference pursuant to Code of Ala. Code 1975 § 11-45-8:

2018 International Residential Code: Covers one- and two-family dwellings, and townhomes not over three stories and live and work units complying with section R101.2 of the 2018 International Building Code.

2018 International Building Code: Covers all buildings and structures not covered in the 2015 International Residential Code.

2018 International Existing Building Code: Covers all work performed on existing buildings and structures.

2017 National Electrical Code: Covers all work electrical work performed as listed.

2018 International Fuel Gas Code and NFPA pamphlet numbers NFPA 54, 2015 edition and NFPA 58, 2017 edition: Covers all gas work performed as listed.

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*__Editor's note—__Ord. No. 21-1006, §§ 1, 2, adopted November 18, 2021, effective January 1, 2022, amended article IV in its entirety to read as herein set out. Former article IV, division 2, § 7-190, division 3, §§ 7-191—7-192, division 4, §§ 7-193, 7-194, division 5, §§ 7-195, 7-196, division 6, §§ 7-197, 7-198, division 7, §§ 7-199, 7-200, division 8, §§ 7-201, 7-202, division 9, §§ 7-203, 7-204, pertained to similar subject matter. See Code Comparative Table for complete derivation.

2018 International Mechanical Code: Covers all mechanical work performed as listed.

2018 International Plumbing Code: Covers all plumbing work performed as listed.

2018 International Swimming Pool and Spa Code: Covers all swimming pool and spa work performed as listed.

Alabama Energy Codes (2015 International Energy Conservation Code and ANSI/ASHRAE/IES Standard 90.1—2013, as amended at any time and from time to time by the rules promulgated by the Alabama Energy and Residential Codes Board): covers the energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in residential and commercial structures.

A copy of said technical codes shall be kept on file in the office of the city clerk-treasurer.
(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Secs. 7-172—7-189. Reserved.

DIVISION 2. GENERAL DEFINITIONS

Sec. 7-190. Definitions.

The following shall apply to the technical codes adopted by this article:

(1) Any reference to the "municipality", "jurisdiction" or "convening body" shall mean the City of Huntsville, Alabama.

(2) Any reference to the "legal counsel of the municipality" shall mean the city attorney.

(3) Whenever the words "chief administrator" appears in the technical codes, they shall mean the Mayor of the City of Huntsville.

(4) Whenever the words "means of appeal" appear in the technical codes, they shall mean Board of Examination and Appeals for Construction Industries.

(5) Whenever the words "the Department of Building Safety" appear in the technical codes, they shall mean the City of Huntsville Inspection Department.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 3. INTERNATIONAL RESIDENTIAL CODE

Sec. 7-191. Adoption; edition; copies.

(a) Subject to subsection (b), there is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the International Residential Code, 2018 edition, Chapters 1—10; 44 and appendixes "E", "H," and "J," published by the International Code Council, Inc., save and except such portions as are deleted, modified or amended in this division; and the provisions of such code shall be controlling as provided in this section.

(b) Any plumbing work must meet the 2018 International Plumbing Code, as deleted, modified or amended in division 6; any mechanical work must meet the 2018 International Mechanical Code, as deleted, modified or amended in division 7; any gas work must meet the 2018 International Fuel Gas Code, as deleted, modified or amended in division 8; any electrical work must meet the 2017 National Electrical Code, as deleted, modified or amended in division 9; any swimming pool and spa work must meet the 2018 International Swimming Pool and Spa Code, as deleted, modified or amended in division 10; and any energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in structures shall meet the Alabama Energy Codes, as deleted, modified or amended in division 11.
(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-192. Deletions, modifications and amendments.

The International Residential Code, 2018 edition, Chapters 1—10; 44 and appendixes "E",

"H," and "J," as adopted in this division, are deleted, modified and amended with state law references, if any, as follows:

(1) Subsection [EB] R102.7 entitled "Existing Structures" shall be amended to read as follows:

"The legal occupancy of any structure existing on the date of adoption of this Code shall be permitted to continue without change, except as is specifically covered in this Code or as is deemed necessary by the Building Official for the general safety and welfare of the occupants and the public."

(2) Delete Subsection R104.10.1 "Flood hazard areas" in its entirety.

(3) Reserved.

(4) Delete Subsection R105.2 "Work exempt from Permit" in its entirety.

(5) Delete Subsection R105.2.2 "Repairs" in its entirety.

(6) Delete Subsection R105.2.3 "Public service agencies" in its entirety.

(7) Delete Subsection R105.3.1.1 "Determination of substantially improved or substantially damaged existing buildings in flood hazard areas." in its entirety.

(8) Delete Subsection R106.1.4 "Information for construction in flood hazard areas" in its entirety.

(9) Amend Subsection R108.3 "Building permit valuations" to read as follows:

Building permit valuation shall include total value of the work for which a permit is being issued, such as electrical, gas, mechanical, plumbing equipment and other permanent systems, including materials and labor.

Building permits for the construction of, alterations to, repairs to, and/or additions to, buildings or other residential structures governed by this code shall be assessed in the following manner:

(a) For alterations to, repairs to, and/or additions to, buildings or to other residential structures governed by this code, the permit fee shall be the greater of $25.00 or the amount of the total contract price multiplied by .0055 of the full estimated cost of work for each building or structure; however, this section shall not apply to the repair of any building whenever the reasonable cost of the material and labor for such repair is not in excess of $250.00 and no structural work is involved.

(b) Valuation for new construction of residential one- and two- family dwellings the building permit fees shall be based on multiplying the heated area square footage by $15.00, the unheated areas and unheated basement area square footage by $7.50 and adding the results. The permit fee will be calculated on the value of the sum of the total valuation from above multiplied by .0055.

(c) Valuation for new townhomes/single family attached dwellings governed by this code, the permit fee shall be the greater of $25.00 or the amount of the total contract price multiplied by .0055 of the full estimated cost of work for each townhome/single family attached dwelling.

(d) For the moving of any building or structure, the fee shall be $25.00.

(e) For the demolition of Residential 1 and 2 family dwellings, the fee shall be $25.00.

(f) For the setup or installation of a manufactured home/mobile home the permit fee shall be $15.00.

(g) For retaining walls constructed of any material and retaining more than four feet of earth above the footing, the permit fee shall be greater of $25.00 or the amount of the contract amount of the wall construction multiplied by .0055.

If for any reason an installation does not pass inspection, an additional inspection

shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(10) Subsection R109.1.2 "Plumbing, mechanical, gas, and electrical systems inspection" shall be amended to read:

"Rough inspection of plumbing, mechanical, gas and electrical systems, including low voltage wiring, shall be made prior to covering or concealment, before fixtures or appliances are set or installed, and prior to framing inspection."

(11) Subsection R109.1.3 "Floodplain inspections" shall be deleted in its entirety.

(12) Add Subsection R109.1.5.2 "Temporary power inspection"-Construction of new one-and-two family residential structures will require 30-day temporary power prior to the final inspection, in order to verify equipment safety and operation for all electrical, mechanical, gas and plumbing systems. The permit holder of record will schedule the inspection. Deficiencies noted in all equipment and systems shall be corrected and scheduled by the permit holder for re-inspection prior to final inspection. Upon re-inspection, if noted deficiencies have not been corrected, the Building Official shall be authorized to assess additional fees as necessary to be paid by the permit holder of record.

(13) Section R110 "Certificate of Occupancy" shall be amended to read as follows:

a. Amend subsection R110.1 "Use and occupancy" to read:

"No building or structure shall be used or occupied, and no change in the existing occupancy classification of a building or structure or portion thereof shall be made until the building official has issued a certificate of occupancy or letter of completion therefore as provided herein. Issuance of a certificate of occupancy or letter of completion shall not be construed as an approval of a violation of the provisions of this code or of other ordinances of the jurisdiction. Certificates presuming to give authority to violate or cancel the provisions of this code or other ordinances of the jurisdiction shall not be valid.

Exception: Certificates of occupancy are not required for work exempt from permits."

b. Amend subsection [EB] R110.2 "Change in use" to read:

"Changes in the character or use of an existing structure shall not be made except as specified in the 2018 International Existing Building Code."

c. Amend subsection R110.3 "Certificate of Letter of Completion issued" to read:

"After the building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the Inspection Department, the building official shall issue a certificate of occupancy or letter of completion which shall contain the following:

1. The building permit number.
2. The address of the structure.
3. The name and address of the owner.
4. A description of that portion of the structure for which the certificate is issued.
5. A statement that the described portion of the structure has been inspected for compliance with the requirements of this code.
6. The name of the building official.

7. Any special stipulations and conditions of the building permit."

d. Subsection R110.4 "Temporary Occupancy" shall be deleted in its entirety.

e. Amend subsection R110.5 "Revocation" to read:

"The building official shall, in writing, suspend or revoke a certificate of occupancy issued under the provisions of this code wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this code."

(14) Section R112 "Board of Appeals" shall be deleted in its entirety.

(15) Amend subsection 201.3 "Terms defined in other codes" to read:

"Where terms are not defined in this code such terms shall have the meanings ascribed in other codes publications of the International Code Council and as defined per NFPA 70".

(16) Amend Section R202 "Definitions" The following definitions to read as:

"(RB) ACCESSORY STRUCTURE. As defined in the definition of the City of Huntsville Appendix A- Zoning Ordinance, Article 3.—Definitions, 3.1.—Interpretation. Accessory structure. A supplementary structure detached from a principal building on the same lot and customarily incidental and subordinate to the principal building or use, containing no plumbing facilities other than one laundry sink and/or one toilet, and meeting the requirements of section 73.8 with the exception that plumbing facilities may be allowed in an accessory structure that is used as a bathhouse in conjunction with a swimming pool, provided such bathhouse does not exceed 180 square feet in area."

(RE) READY ACCESS (TO). Signifies access without the necessity for removing a panel or similar obstruction. "Attic or roof furnaces shall not be installed in any location inaccessible for inspection or repair. The space in which any attic furnace is installed shall be accessible by an opening and passageway as large as the largest part of the furnace, but not less than 22 inches by 36 inches and shall be continuous from opening to the furnace location. Every passageway in the attic shall have a solid continuous flooring 24 inches wide from the entrance opening to the furnace. A permanent light shall be provided in the passageway and appliance area. A ladder, pull down, disappearing type, or permanent stairway fastened to the building shall be provided leading to the attic opening or roof. All exterior ladders shall be metal. The requirements for a ladder, pull down disappearing type, or permanent stairway fastened to the building may be waived for the replacement of units installed before January 1986, in one - and two-family dwellings, provided a means of providing access to the units for inspection are met."

"(RB) Townhouse/Townhome and single family attached dwelling. A single-family dwelling unit constructed in a group of three or more attached units in which each unit extends from foundation to roof and with a yard or public way on not less than two sides. Per the City of Huntsville Zoning Ordinance Appendix A- Article 13, each single family attached dwelling shall be constructed on its own lot. Structures which are constructed by design as a single-family dwelling unit as noted in this definition, in which each individually single-family dwelling unit doesn't reside on its own fee simple lot shall be consider an apartment type R-2 occupancy and must follow the International Building Code.

(17) Amend Table R301.2(1) "CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA" to read as:

TABLE R301.2(1)
CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA (excerpt)

Roof Snow Load footnote o	*Wind Design Speed footnote d*	*Seismic Design Category footnote f*	*Subject to Damage From*			*Winter Design Temp footnote e*	*Ice Barrier Underlayment Required footnote h*	*Flood Hazards footnote g*	*Air Freezing Index footnote i*	*Mean Annual Temp footnote j*
			Weathering footnote a	*Frost Line Depth footnote b*	*Termite footnote c*					
10	90 mph	B	Moderate	12 inches	Very	16	NO	COH Local Adoption	Under 200	59.4

For SI: 1 pound per square foot = 0.0479 kPa, 1 mile per hour = 0.447 m/s.

a. Where weathering requires a higher strength concrete or grade of masonry than necessary to satisfy the structural requirements of this code, the frost line depth strength required for weathering shall govern.

The weathering column shall be filled in with the weathering index, "negligible," "moderate" or "severe" for concrete as determined from Figure R301.2(4). The grade of masonry units shall be determined from ASTM C34, C55, C62, C73, C90, C129, C145, C216 or C652.

b. Where the frost line depth requires deeper footings than indicated in Figure R403.1(1), the frost line depth strength required for weathering shall govern. The jurisdiction shall fill in the frost line depth column with the minimum depth of footing below finish grade.

c. The jurisdiction shall fill in this part of the table to indicate the need for protection depending on whether there has been a history of local subterranean termite damage.

d. The jurisdiction shall fill in this part of the table with the wind speed from the basic wind speed map [Figure R301.2(5)A]. Wind exposure category shall be determined on a site-specific basis in accordance with Section R301.2.1.4.

e. The outdoor design dry-bulb temperature shall be selected from the columns of 971/2-percent values for winter from Appendix D of the International Plumbing Code. Deviations from the Appendix D temperatures shall be permitted to reflect local climates or local weather experience as determined by the building official. [Also see Figure R301.2(1).]

f. The jurisdiction shall fill in this part of the table with the seismic design category determined from Section R301.2.2.1.

g. The jurisdiction shall fill in this part of the table with (a) the date of the jurisdiction's entry into the National Flood Insurance Program (date of adoption of the first code or ordinance for management of flood hazard areas), (b) the date(s) of the Flood Insurance Study and (c) the panel numbers and dates of the currently effective FIRMs and FBFMs or other flood hazard map adopted by the authority having jurisdiction, as amended.

h. In accordance with Sections R905.1.2, R905.4.3.1, R905.5.3.1, R905.6.3.1, R905.7.3.1 and R905.8.3.1, where there has been a history of local damage from the effects of ice damming, the jurisdiction shall fill in this part of the table with "YES." Otherwise, the jurisdiction shall fill in this part of the table with "NO."

i. The jurisdiction shall fill in this part of the table with the 100-year return period air freezing index (BF-days) from Figure R403.3(2) or from the 100-year (99 percent) value on the National Climatic Data Center data table "Air Freezing Index-USA Method (Base 32°F)."

j. The jurisdiction shall fill in this part of the table with the mean annual temperature from the National Climatic Data Center data table "Air Freezing Index-USA Method (Base 32°F)."

k. In accordance with Section R301.2.1.5, where there is local historical data documenting structural damage to buildings due to topographic wind speed-up effects, the jurisdiction shall fill in this part of the table with "YES." Otherwise, the jurisdiction shall indicate "NO" in this part of the table.

l. In accordance with Figure R301.2(5)A, where there is local historical data documenting unusual wind conditions, the jurisdiction shall fill in this part of the table with "YES" and identify any specific requirements. Otherwise, the jurisdiction shall indicate "NO" in this part of the table.

m. In accordance with Section R301.2.1.2 the jurisdiction shall indicate the wind-borne debris wind zone(s). Otherwise, the jurisdiction shall indicate "NO" in this part of the table.

n. The jurisdiction shall fill in these sections of the table to establish the design criteria using Table 1a or 1b from ACCA Manual J or established criteria determined by the jurisdiction.

o. The jurisdiction shall fill in this section of the table using the Ground Snow Loads in Figure R301.2(6).

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(18) Delete Section R301.2.4 "Floodplain Construction" in its entirety.

(19) Amend Subsection R302.1 "Exterior Walls" to read:

Construction, projections, openings and penetrations of exterior walls of dwellings and accessory buildings shall comply with Table R302.1 (1); or dwellings equipped throughout with an automatic sprinkler system shall compline with Table R302.1 (2).

Exceptions.

1. Walls, projections, openings or penetrations in walls perpendicular to the line used to determine the fire separation distance.
2. Walls of individual dwellings and their accessory structures located on the same lot.
3. Foundation vents installed in compliance with this code are permitted.

(20) Amend subsection R302.2.2 "Common Wall" to read.

Common walls separating townhouses shall be separated by a 2-hour fire-resistance-rated wall assemblies tested in accordance with ASTM E119, UL 263 or Section 703.3 of the International Building Code. The common wall shared by two townhouses shall be constructed without plumbing or mechanical equipment, ducts or vents in the cavity of the common wall. The wall shall be rated for fire exposure from both sides and shall extend to and be tight against exterior walls and the underside of the roof sheathing. Electrical installations shall be in accordance with NFPA 70. Penetrations of the membrane of common walls for electrical outlet boxes shall be in accordance with Section R302.4.

Exception:

Where a fire sprinkler system in accordance per NFPA 13D is provided, the common wall shall not be less than a 1-hour fire-resistance-rated wall assembly tested in accordance with ASTM E 119, UL263 or Section 703.3 of the International Building Code.

(21) R302.3 Two-family dwellings. Amend to read "Dwelling units in two-family dwellings shall be separated from each other by a wall and floor/ceiling assemblies having not less than a 1-hour fire-resistance rating where tested in accordance with ASTM E 119 or UL 263

or Section 703.3 of the 2018 International Building Code." Fire resistance-rated floor/ceiling and wall assemblies shall extend to and be tight against the exterior wall, and wall assemblies shall extend from the foundation to the underside of the roof sheathing.

Exception: Where a fire sprinkler system in accordance per NFPA 13D is provided, the wall shall not be less than a 1/2-hour fire-resistance-rated wall assembly tested in accordance with ASTM E 119, UL263 or Section 703.3 of the International Building Code.

(22) R302.13 Fire protection of floors.

Floor assemblies that are not required elsewhere in this code to be fire-resistance rated, shall be provided with a 1/2-inch (12.7 mm) gypsum wallboard membrane, 5/8-inch (16 mm) wood structural panel membrane, or equivalent on the underside of the floor framing member. Penetrations or openings for ducts, vents, electrical outlets, lighting, devices, luminaires, wires, speakers, drainage, piping and similar openings or penetrations shall be permitted.

Exceptions:

1. Floor assemblies located directly over a space protected by an automatic sprinkler system in accordance with NFPA 13D, or other approved equivalent sprinkler system.
2. Floor assemblies located directly over a crawl space not intended for storage or for the installation of fuel-fired or electric-powered heating appliances.
3. Portions of floor assemblies shall be permitted to be unprotected where complying with the following:
   3.1. The aggregate area of the unprotected portions does not exceed 80 square feet (7.4 m2) per story.
   3.2. Fireblocking in accordance with Section R302.11.1 is installed along the perimeter of the unprotected portion to separate the unprotected portion from the remainder of the floor assembly.
4. Wood floor assemblies using dimension lumber or structural composite lumber equal to or greater than 2-inch by 10-inch (50.8 mm by 254 mm) nominal dimension, or other approved floor assemblies demonstrating equivalent fire performance.

(23) R302.14 Combustible insulation clearance. Amend to read

Combustible insulation shall be separated not less than 3 inches (76 mm) from recessed luminaires, fan motors and other heat-producing devices.

Exception: Where heat-producing devices are listed for lesser clearances, combustible insulation complying with the listing requirements shall be separated in accordance with the conditions stipulated in the listing.

"Recessed luminaries installed in the building thermal envelope shall meet the requirements of current State of Alabama Adopted Residential Energy Code."

(24) R303.1 Habitable rooms. Amend Exception #1 to read "The glazed areas need not be openable where the opening is not required by Section R310 and a whole-house mechanical ventilation system is installed in accordance with the 2018 International Mechanical Code."

(25) R303.3 Bathrooms. Amend Exception to read: "The glazed areas shall not be required where artificial light and a local exhaust system are provided. The minimum local exhaust rates shall be determined in accordance with the 2018 International Mechanical Code. Exhaust air from the space shall be exhausted directly to the outdoors."

(26) R303.4. Mechanical Ventilation. Amend to read, "Where the air infiltration rate of a dwelling unit is 5 air changes per hour or less where tested with a blower door at a pressure of 0.2 inch w.c (50 Pa) in accordance with the current State of Alabama Adopted Residential Energy Code, the dwelling unit shall be provided with whole-house mechanical ventilation in accordance with the 2018 International Mechanical Code".

(27) R303.5.1 Intake openings. Exception #2 & #3 Amended to read,

2. "Vents and chimneys serving fuel-burning appliances shall be terminated in accordance with the applicable provisions 2018 International Mechanical Code."
3. "Clothes dryer exhaust ducts shall be terminated in accordance with 2018 International Mechanical Code."

(28) R307.1 Space required. Amend to read: "Fixtures shall be spaced in accordance with Figure R307.1, and in accordance with the requirements of the 2018 International Plumbing Code

(29) Delete Subsection R309.3 "Flood Hazard Areas" in its entirety.

(30) R309.5 Fire Sprinklers. Amend to read, "Private garages shall be protected by fire sprinklers where the garage wall has been designed based on Table R302.1(2), Footnote a. Sprinklers in garages shall be connected to an automatic sprinkler system that complies with the 2018 International Plumbing Code. Garage sprinklers shall be residential sprinklers or quick-response sprinklers, designed to provide a density of 0.05 gpm/ft2. Garage doors shall not be considered obstructions with respect to sprinkler placement."

(31) Amend Section R313 "Automatic Fire Sprinkler Systems" to read:

a. R313.1 Townhomes automatic fire sprinkler systems. Amend to read:

If an automatic residential fire sprinkler system is installed in townhouses, the design must be in accordance with NFPA 13D.

b. R313.2 One- and two-family dwellings automatic fire sprinkler systems. Amend to read:

If an automatic residential fire sprinkler system is installed in One- and two-family dwellings, the design must be in accordance with NFPA 13D.

(32) Section R322 Flood-Resistant Construction. Delete in entirety.

(33) Delete Table 403.1(1), Table 403.1(2), & Table 403.1(3) "Minimum Width and Thickness for Concrete Footings for Light-Frame Construction" in its entirety.

(34) Amend Subsection R403.1.1 "Minimum Size" to read:

The minimum size for concrete footings shall be in accordance with this section:

(a) Perimeter footings: Minimum depth of concrete shall be 12 inches by 16 inches wide unless brick veneer or masonry units are to be used for the structure, then the minimum width shall be 20 inches wide. Two (2) No. 5 reinforcing bars or Three (3) No. 4 bars, continuous at three inches above footing bottom and three inches from each side shall be used in the footings. Bottom of footing shall be a minimum of two feet below finished grade.

(b) Interior footings: Minimum size of concrete footing shall be 12 inches deep by 16 inches wide for required length unless masonry units are to be used, then the minimum width shall be 20 inches wide. Two (2) No. 5 reinforcing bars or Three (3) No. 4 bars, continuous at three inches above footing bottom and three inches from each side shall be used in the footing.

(c) Where slab and turned down footing construction is used, these minimum requirements shall not be applicable.

(d) Minimum pier footing size shall be 20 inches square by 12 inches of depth. No minimum depth of bottom of footing below finished grade is specified."

Exception: Footing designs accompanied by a geotechnical study conducted from an Alabama Licensed Engineer.

(35) Amend Subsection R403.1.7 "Footings on or adjacent to slopes" to read:

"On all building sites in the slope development district and other sites with identifiable or suspected potentially unstable subsurface soil conditions, the building applications for permitting shall be accompanied by a geotechnical study conducted by and bearing the expertise in the science of soil mechanics.

The test and analysis requirements shall be as set forth in the slope development study, section VIII, subsection C, paragraph 4 as follows:

A. Geotechnical studies: field and laboratory.

1) Field studies:

a) Residential lots: borings as required per design geotechnical study.

b) Acceptable subsurface exploration methods: test pit excavations; soil test borings; mechanical or electrical cone borings.

c) Rock coring, if required: Minimum of five feet of rock coring per boring.

d) Soil and rock classification according to (ASTM) procedures.

2) Minimum soil properties tests (natural or fill soils):

a) Shear strength (as required for analysis).

b) Standard classification tests (ASTM).

c) Consolidation tests (as required).

d) Shrink/swell potential (if applicable).

3) Groundwater data: Each boring shall be measured for groundwater.

4) Analyze slope stability and structure performance:

a) Stability analyses should be performed on the best, worst, and average soil and embankment conditions:

1) Sliding wedge and slip circle analyses should be performed on the uphill side of any cut embankment.

2) Slip circle analyses should be performed on all fill embankments.

b) Based on the analyses, the lowest safety factors should be reported for each method along with all of the design conditions.

c) Structure performance should be analyzed with respect to bearing capacity and settlement.

The application shall contain a design footing and foundation meeting the requirements set forth in the adopted slope development study, section VIII, subsection C, paragraph 5 as follows:

5) Recommended design standards:

a) Safety factors for stability: Minimum safety factor of 1.5 with adequate data, including triaxial shear tests, multiple analyses (sliding wedge infinite slope and slip circle analyses)

and confident groundwater (piezometer) measurements and control.

b) Where soil and rock data indicated a large variation in strength, analyses should be reported for the worst conditions encountered. Safety factor for bearing capacity: Minimum safety factor of 3.0.

c) Allowable settlement: Maximum settlement between column footings shall not exceed the angular distortion ration D/L (D-deflection inches, L - length between columns inches) as follows: Limiting Settlement

High continuous brick walls	.0005—0.001
One-story brick buildings	.001
Reinforced concrete frame	.0025
Reinforced concrete curtain wall	.003
Steel Frame, continuous	.002
Steel Frame, simple	.005

d) Expansive soils: 2018 International Residential Code Subsection R403.1.8 sets requirements and Section 1808.6 of the 2018 International Building Code.

This design must be performed by, and bear the seal of, an engineer or architect registered in the state.

The engineer or architect shall inspect and certify that, to the best of his knowledge, the construction of the footing and foundation has been accomplished according to the required design. The certification must be on record before a certification of occupancy can be issued."

(36) Delete subsections R403.1.7.1—R403.1.7.4 in its entirety.

(37) Amend Subsection R404.1.1 "Design required" to read: (adding #3 condition)

Concrete or masonry foundation walls shall be designed in accordance with accepted engineering practice where either of the following conditions exists:

1. Walls are subject to hydrostatic pressure from ground water.
2. Walls supporting more than 48 inches (1219 mm) of unbalanced backfill that do not have permanent lateral support at the top or bottom.
3. All freestanding or cantilevered retaining walls constructed of any material and retaining more than four feet of earth above the footing shall be designed and the drawings sealed by an engineer or architect registered in the state.

(38) Amend Section R405.1. "Concrete or masonry foundations" to read:

Drains shall be provided around concrete or masonry foundations that retain habitable space below grade. Drainage tiles, gravel or crushed stone drains, perforated pipe or other approved systems or materials shall be installed at or below the top of the footing or below the bottom of the slab and shall discharge by gravity or mechanical means into an approved drainage system. Gravel or crushed stone drains shall extend not less than 1 foot (305 mm) beyond the outside edge of the footing and 6 inches (152 mm) above the top of the footing and be covered with an approved filter membrane material. The top of open joints of drain tiles shall be protected with strips of building paper. Except where otherwise recommended by the drain manufacturer, perforated drains shall be surrounded with an approved filter membrane or the filter membrane shall cover the washed gravel or crushed rock covering the drain. Drainage tiles or perforated pipe shall be

placed on not less than 2 inches (51 mm) of washed gravel or crushed rock not less than one sieve size larger than the tile joint opening or perforation and covered with not less than 6 inches (152 mm) of the same material.

For crawl spaces that retain earth the grading shall be done around every foundation in such manner that storm water shall drain away from the building. The crawl space underneath the ground floor must be so graded as to drain to a point at the exterior foundation wall where a drainpipe must be provided through the foundation wall leading from the building to a point of discharge, so that the crawl space under the building will be adequately drained at all times. The grade of the crawl space and the grade of the drainpipe must be established at an elevation that is sufficient enough to prevent storm water from backing up under the building from the point of discharge. The drainpipe shall be a minimum of four inches in diameter and graded with a slope not less than one-eighth inch per foot towards the point of discharge.

(39) Delete subsection R408.7 "Flood resistance" in its entirety.

(40) Amend Subsection R506.2.3 "Vapor Retarder" to read:

"A 6-mil polyethylene or approved vapor retarder with joints lapped not less than 6 inches shall be placed between the concrete slab and the base course or the prepared sub-grade where no base courses exist.

Exception: The vapor retarder may be omitted:

1. From detached garages, detached accessory/utility structures without heat.

2. From driveways, walks, patios, and other flatwork not likely to be enclosed and heated at a later date."

(41) Delete Subsection R602.5 "Interior nonbearing walls in its entirety.

(42) Amend Subsection R1003.11.3 "Gas Appliances" to read:

"Flue lining systems for gas appliances shall be in accordance with the 2018 International Mechanical Code."

(43) Amend Subsection R1003.14 "Flue Area (Appliance)" to read:

"Chimney flues shall not be smaller in area than that of the area of the connector from the appliance [See Table R1003.14(1) and R1001.11(2)]. The sizing of a chimney flue to which multiple-appliance venting systems are connected shall be in accordance with the 2018 International Mechanical Code."

(44) Amend Appendix H Subsection AH105.2 Footings to read: Footings shall be designed as required per the amended subsection R403.1.1 "Minimum Size".

(45) Delete Appendix J Subsection AJ102.4.1 "Energy efficiency" to read "Replacement windows shall comply with current state Energy Code adopted by the Alabama Energy and Residential Code Board"

(46) Delete Appendix J Subsection AJ102.4.4 "Window control devices" in its entirety.

(47) Delete Appendix J Subsection AJ102.5 "Flood Hazard Areas" in its entirety.

(48) Amend Appendix J Subsection AJ301.2 "Water Closets" to read:

"When any water closet is replaced with a newly manufactured water closet, the replacement water closet shall comply with the requirements of the 2018 International Plumbing Code."

(49) Delete Appendix J Subsection AJ301.3 "Electrical" in its entirety.

(50) Amend Appendix J Subsection AJ501.1 "Newly Constructed Elements" to read:

"All newly constructed elements, components, and systems shall comply with the requirements of this code.

Exceptions: Operable windows may be added without requiring compliance with the light and ventilation requirements of Section R303."

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 4. INTERNATIONAL BUILDING CODE

Sec. 7-193. Adoption; edition; copies.

(a) Subject to subsection (b), there is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the International Building Code, 2018 edition, Chapters 1—12 and 14—31; 33; 34; and 35 and appendix "C", published by the International Code Council, Inc., save and except such portions as are deleted, modified or amended in this division; and the provisions of such code shall be controlling as provided in this section.

(b) Any energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in structures shall meet the Alabama Energy Codes, as deleted, modified or amended in division 11.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-194. Deletions, modifications and amendments.

The International Building Code 2018 edition, Chapters 1—12 and 14—31; 33; 34; and 35 and appendix "C", as adopted in this division, are deleted, modified and amended as follows:

(1) Delete subsection 101.4.4 "Property Maintenance", in its entirety.

(2) Delete subsection 101.4.5 "Fire Prevention", in its entirety.

(3) Amend subsection 101.4.6 "Energy", to read.

The current State of Alabama Commercial Energy Code as adopted by the Alabama Energy and Residential Codes Board shall apply to all matters governing the design and construction of buildings for energy efficiency. The compliance to the current State of Alabama Commercial Energy Code must be verified by a State of Alabama Licensed Third-Party Energy Consultant or a State of Alabama Registered Design Professional

(4) Amend subsection (A)102.6. "Existing Structures", to read:

"The legal occupancy of any structure existing on the date of adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, or as deemed necessary by the building official for the general safety and welfare of the occupants and the public."

(5) Amend subsection (A) 103.3 "Deputies" to read:

"In accordance with the prescribed procedures of this jurisdiction and with the concurrence of the appointing authority, the building official shall have the authority to appoint a deputy building official, the related technical officers, inspectors, plan examiners, and other employees. Such employees shall have powers as delegated by the building official.

(6) Delete subsection [A] 104.10.1 "Flood hazard areas." in its entirety.

(7) Delete subsection [A] 105.1.1 "Annual Permit", in its entirety.

(8) Delete subsection [A] 105.1.2 "Annual Permit Records", in its entirety.

(9) Delete subsection [A)]105.2 "Work Exempt Form Permit", in its entirety.

(10) Delete subsection [A] 105.2.3 "Public Service Agencies", in its entirety.

(11) Amend section [A] 105.3 to include item #8, "Include a contract indicating the cost of the proposed work to be signed by

the property owner, building owner and by the builder or contractor proposing to complete work indicated in contract."

(12) Delete section [A] 108 "Temporary Structures and Uses", in its entirety.

(13) Amend subsection 109.3 "Building Permit Valuations" to read:

Building permit valuation shall include total value of the work for which a permit is being issued, such as electrical, gas, mechanical, plumbing equipment and other permanent systems, including materials and labor.

Building permits for the construction of, alterations to, repairs to, and/or additions to, buildings or other structures governed by this code shall be assessed in the following manner:

(a) For new construction of, alterations to, repairs to, and/or additions to, buildings or to other structures governed by this code, the permit fee shall be the greater of $50.00 or the amount of the total contract price multiplied by .0055 of the full estimated cost of work for each building or structure; however, this section shall not apply to the repair of any building whenever the reasonable cost of the material and labor for such repair is not in excess of $250.00 and no structural work is involved.

(b) For the moving of any building or structure, the fee shall be $25.00

(c) For the demolition of interior or partial demolition of commercial buildings and structures, the fee shall be $50.00.

(d) For the full demolition of commercial buildings or structures, the fee shall be $100.00.

(e) For retaining walls constructed of any material and retaining more than four feet of earth above the footing, the permit fee shall be the greater of $50.00 or the contract amount of the wall construction multiplied by .0055.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(14) Delete subsections (A) 110.3.1 through (A) 110.3.6.

Amend subsection (A) 110.3. "Required inspections" to read

BUILDING

(1) *Footing Inspections:* Inspections are required for setbacks, footing depth and widths, and steel rebar.

(2) *Monolithic Slabs:* This inspection is to take place after plumbing and electrical inspections if applicable.

(3) *Foundation Inspection:* Made after grading of crawlspace area, placement of piers, anchor bolts, 4" drain and installation of floor system prior to installing subflooring.

(4) *Pre-insulation Inspection:* This inspection is to be made when shingles, sheathing, windows and doors are installed. Mechanical, electrical, plumbing, and gas inspections need to be made "if applicable", prior to this inspection. Brick ties should be installed over a moisture impermeable house wrap. When this inspection has passed, brick and insulation may be installed.

(5) *Framing Inspection:* This inspection is to be made after any framing corrections have taken place and after the building has been insulated. If framing corrections have been

made, the framing inspection will be passed, and drywall may be installed.

(6) *Temp 30:* To obtain power to the structure, an affidavit must be signed by the contractor, permanent building number posted, and building can be locked. Building cannot be occupied until receipt of the Certificate of Occupancy.

(7) *Above Ceiling Inspection:* This inspection, (typically applicable on commercial projects), is to be done after all trade inspections and is to view ceiling supports, fire caulking of rated walls and penetrations. If acoustical ceiling is not to be used this inspection is still mandatory for fire caulk inspection prior to painting walls.

(8) *Final Inspection:* When the building has been completed and mechanical, electrical, plumbing, and gas inspections "if applicable" have been completed, you may request the building final inspection.

ELECTRICAL

(1) *Slab Inspection:* If any electrical lines are installed in the slab or concealed in concrete walls.

(2) *Underground:* All conduits and direct burial cable placed in the ground must be inspected prior to covering.

(3) *Rough-in Inspection:* When wires are pulled and stapled prior to installation of sheetrock, "No insulation is to be installed prior to rough-in inspection." All areas of renovations where sheetrock has been removed will also require a rough-in inspection.

(4) *Temp 30:* The following are required: permanent house numbers, the building is lockable, the meter base and main panel are installed, and a receptacle with GFCI protection.

(5) *Final Inspection:* When all fixtures, plugs and appliances are installed. All electrical work should be completed at this time.

(6) *Electrical Final for HVAC (If separate):* Air conditioning final to be made when all electrical lines and disconnects are completed to heat and air units.

MECHANICAL & GAS

(1) *Slab*: To be made if gas lines or mechanical work is run under or through the slab. Inspection is to be made before the work is covered.

(2) *Rough-In Inspection / Wall Rough:* When all gas lines and refrigeration lines that are to be concealed are run inside structure prior to insulation and drywall. All ductwork in concealed locations must be inspected prior to installation of drywall.

(3) *Above Ceiling Inspection:* This inspection, (typically applicable on commercial projects), is to be done after grid is installed and before ceiling tiles are placed. Inspection will verify equipment installation, service clearances, fire dampers, duct work and registers.

(4) *Final Inspection:* When all gas appliances are installed and completed, and all mechanical work finished. Service clearance area around all indoor and outdoor units must be provided based on code and manufacturer requirements.

PLUMBING

(1) *Slab*: To be made before gravel and poly are installed over pipes and water lines.

(2) *Sewer / Water Lines:* To be made before sewer lines and water lines are covered.

(3) *Rough-in:* To be made when all plumbing pipes are stubbed-out and

pressure tested prior to sheetrock being hung. (No insulation is to be installed prior to this inspection.)

(4) *30 Day Temporary:* To be made when the sewer and rough ins have been passed. (This inspection must be requested by the plumber.)

(5) *Final:* To be made when fixtures are set, and plumbing is completed and in working order.

(15) Amend subsection 110.3.8 "Energy Efficiency Inspections" to read "The compliance to the Current State of Alabama Energy Code must be verified by a State of Alabama Licensed Third-Party Energy Consultant or a State of Alabama Licensed Design Professional."

(16) Delete subsection [A] 111.3 "Temporary Occupancy" in its entirety.

(17) Delete section [A] 113 "Board of Appeals" in its entirety.

(18) Amend subsection 201.3 "Terms defined in other codes" to read:

"Where terms are not defined in this code such terms shall have the meanings ascribed in other codes publications of the International Code Council and as defined per NFPA 70".

(19) Amend Section 202 "Definitions" The following definition to read as:

"[A] Townhouse/Townhome. A single-family dwelling unit constructed in a group of three or more attached units in which each unit extends from foundation to roof and with a yard or public way on not less than two sides. Structures which are constructed as a Single-family dwelling unit as noted in this definition, in which each individually single-family dwelling unit doesn't reside on its own fee simple lot shall be consider an apartment type R-2 occupancy and must follow the International Building Code.

(20) Amend subsection 603.1.3 "Electrical" to read:

"The use of electrical wiring methods with combustible insulation, tubing, raceways and related components shall be permitted when installed in accordance with the limitations of NFPA 70.

(21) Amend subsection [F] 903.2.9 "Group S-1" to read:

An automatic sprinkler system shall be provided throughout all buildings containing a Group S-1 occupancy where one of the following conditions exists:

1. A Group S-1 fire area exceeds 12,000 square feet (1115 m2).
2. A Group S-1 fire area is located more than three stories above grade plane.
3. The combined area of all Group S-1 fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (2230 m2).
4. A Group S-1 fire area used for the storage of commercial motor vehicles where the fire area exceeds 5,000 square feet (464 m2).
5. A Group S-1 occupancy used for the storage of upholstered furniture or mattresses exceeds 2,500 square feet (232 m2).

Exception: Self-service storage facilities not greater than one story above grade where all storage spaces can be accessed directly from the exterior.

(22) Amend subsection 1404.11.4 "Grounding" to read:

"Grounding of metal veneers on buildings shall comply with the requirements of the NFPA 70."

(23) Delete subsection 1603.1.6 "Flood design data" in its entirety.

(24) Delete subsection 1612 "Flood Loads" in its entirety.

(25) Delete subsection 1804.5 "Grading and Filling in Floodways" in its entirety.

(26) Amend subsection 1808.7 "Footings on or Adjacent to Slopes" to read:

"On all building sites in the slope development district and other sites with identifiable or suspected potentially unstable subsurface soil conditions, the building applications for permitting shall be accompanied by a geotechnical study conducted by and bearing the expertise in the science of soil mechanics.

The test and analysis requirements shall be as set forth in the slope development study, section VIII, subsection C, paragraph 4 as follows:

(A) Geotechnical studies: field and laboratory.

(1) Field studies:

(a) Residential lots: borings as required per design geotechnical study.

(b) Acceptable subsurface exploration methods: test pit excavations; soil test borings; mechanical or electrical cone borings.

(c) Rock coring, if required: Minimum of five feet of rock coring per boring.

(d) Soil and rock classification according to (ASTM) procedures.

(2) Minimum soil properties tests (natural or fill soils):

(a) Shear strength (as required for analysis).

(b) Standard classification tests (ASTM).

(c) Consolidation tests (as required).

(d) Shrink/swell potential (if applicable).

(3) Groundwater data: Each boring shall be measured for groundwater.

(4) Analyze slope stability and structure performance:

(a) Stability analyses should be performed on the best, worst, and average soil and embankment conditions:

1) Sliding wedge and slip circle analyses should be performed on the uphill side of any cut embankment.

2) Slip circle analyses should be performed on all fill embankments.

(b) Based on the analyses, the lowest safety factors should be reported for each method along with all of the design conditions.

(c) Structure performance should be analyzed with respect to bearing capacity and settlement.

The application shall contain a design footing and foundation meeting the requirements set forth in the adopted slope development study, section VIII, subsection C, paragraph 5 as follows:

(5) Recommended design standards:

(a) *Safety factors for stability*: Minimum safety factor of 1.5 with adequate data, including triaxial shear tests, multiple analyses (sliding wedge infinite slope and slip circle analyses) and confident groundwater (piezometer) measurements and control.

(b) Where soil and rock data indicated a large variation in strength, analyses should be reported for the worst conditions encountered. Safety factor for bearing capacity: Minimum safety factor of 3.0.

High continuous brick walls	.0005—0.001
One-story brick buildings	.001
Reinforced concrete frame	.0025
Reinforced concrete curtain wall	.003
Steel Frame, continuous	.002
Steel Frame, simple	.005

(c) *Allowable settlement*: maximum settlement between column footings shall not exceed the angular distortion ration D/L (D-deflection inches, L—length between columns inches) as follows: Limiting Settlement

(d) *Expansive soils:* 2018 International Residential Code Subsection R403.1.8 sets requirements and Section 1805.8 of the 2018 International Building Code.

This design must be performed by, and bear the seal of, an engineer or architect registered in the state.

The engineer or architect shall inspect and certify that, to the best of his knowledge, the construction of the footing and foundation has been accomplished according to the required design. The certification must be on record before a certification of occupancy can be issued."

(27) Delete subsection 1808.7.1 "Building Clearance from Ascending Slopes" in its entirety.

(28) Delete subsection 1808.7.2 "Footing Setback from Descending Slope Surface" in its entirety.

(29) Delete 1808.7.3 "Pools" in its entirety.

(30) Amend subsection 1907.1 "General" to read:

The thickness of concrete floor slabs supported directly on the ground shall be not less than 31/2 inches (89 mm). A 6-mil (0.006 inch; 0.15 mm) polyethylene vapor retarder with joints lapped not less than 6 inches (152 mm) shall be placed between the base course or subgrade and the concrete floor slab, or other approved equivalent methods or materials shall be used to retard vapor transmission through the floor slab.

Exception: A vapor retarder is not required:

1. For detached structures accessory to occupancies in Group R-3, such as garages, utility buildings or other unheated facilities.
2. For buildings of other occupancies where migration of moisture through the slab from below will not be detrimental to the intended occupancy of the building.
3. For driveways, walks, patios and other flatwork that will not be enclosed at a later date.
4. Where approved based on local site conditions.

(31) Amend subsection 2701.1 "Scope" to read:

"The provisions of this chapter and NFPA 70 shall govern the design, construction, erection and installation of the electrical components, appliances, equipment and systems used in buildings and structures covered by this code. The International Fire Code, and the NFPA 70 shall govern the use and maintenance of electrical components, appliances, equipment and

systems. The International Existing Building Code and NFPA 70 shall govern the alteration, repair, relocation, replacement and addition of electrical components, appliances, or equipment and systems."

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 5. INTERNATIONAL EXISTING BUILDING CODE

Sec. 7-195. Adoption; edition; copies.

There is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the International Existing Building Code, 2018 edition, Chapters 1—16, published by the International Code Council, Inc., save and except such portions as are deleted, modified or amended in this division; and the provisions of such code shall be controlling as provided in this section.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-196. Deletions, modifications and amendments.

The International Existing Building Code, 2017 edition, Chapter 1—16; as adopted in this division, are deleted, modified and amended as follows:

(1) Amend subsection (A) 101.4.2 to read "The legal occupancy of any building existing on the date of the adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the International Fire Code, the International Building Code, or the International Residential Code, or as is deemed necessary by the code official for the general safety and welfare of the occupants and the public."

(2) Add subsection 101.4.3 "Maintenance" to read:

"Building and parts thereof shall be maintained in a safe and sanitary condition. All existing devices or safeguards shall be maintained in all buildings. The owner or the owner's designated agent shall be responsible for the maintenance of the building. To determine compliance with this subsection, the code official shall have the authority to require a building to be re-inspected. Except where specifically permitted by this code, the code shall not provide the basis for removal or abrogation of fire protection and safety systems and devices in existing buildings."

(3) Amend subsection (A) 103.1 Creation of enforcement agency. to read "The Department of Building Safety is hereby created and is to be known as The City of Huntsville Inspection Department, and the official in charge shall be known as the Director of Inspection Services. All future references to "the Department of Building Safety' shall mean "the City of Huntsville Department of Inspections". All future references to the "code official" shall mean "the Director of Inspection Services".

Delete subsection (A) 104.2.1 "Determination of substantially improved or substantially damaged existing buildings and structures in flood hazard areas" in its entirety.

Delete subsection (A) 104.10.1 "Flood hazard areas". in its entirety.

(4) Delete subsection 105.1.1 "Annual Permit" in its entirety.

(5) Delete subsection 105.1.2 "Annual Permit Records" in its entirety.

(6) Delete subsection 105.2 "Work Exempt from Permit" in its entirety.

(7) Delete subsection 105.2.2 "Repairs" in its entirety.

(8) Delete subsection 105.2.3 "Public Service Agencies" in its entirety.

(9) Amend subsection (A) 108.3 "Building permit valuations" to read "The applicant for a permit shall provide an estimated permit value, verified by a signed contract submitted at the time of application. Permit valuations shall include total value of work including materials and labor for which the permit is being issued, such as electrical, gas, mechanical, plumbing equipment, and permanent systems. If, in the opinion of the code official, the valuation is underestimated on the application, the permit shall be denied unless the applicant can show detailed estimates to meet the approval of the code official. Final building permit valuation shall be set by the code official."

(10) Delete subsections (A) 109.3.1 through (A) 109.3.6.

Amend subsection (A) 109.3. "Required inspections" to read

BUILDING

(1) *Footing Inspections:* Inspections are required for setbacks, footing depth and widths, and steel rebar.

(2) *Monolithic Slabs*: This inspection is to take place after plumbing and electrical inspections if applicable.

(3) *Foundation Inspection*: Made after grading of crawlspace area, placement of piers, anchor bolts, 4" drain and installation of floor system prior to installing subflooring.

(4) *Pre-insulation Inspection*: This inspection is to be made when shingles, sheathing, windows and doors are installed. Mechanical, electrical, plumbing, and gas inspections need to be made "if applicable", prior to this inspection. Brick ties should be installed over a moisture impermeable house wrap. When this inspection has passed, brick and insulation may be installed.

(5) *Framing Inspection:* This inspection is to be made after any framing corrections have taken place and after the building has been insulated. If framing corrections have been made, the framing inspection will be passed, and drywall may be installed.

(6) *Temp 30:* To obtain power to the structure, an affidavit must be signed by the contractor, permanent building number posted, and building can be locked. Building cannot be occupied until receipt of the Certificate of Occupancy.

(7) *Above Ceiling Inspection*: This inspection, (typically applicable on commercial projects), is to be done after all trade inspections and is to view ceiling supports, fire caulking of rated walls and penetrations. If acoustical ceiling is not to be used this inspection is still mandatory for fire caulk inspection prior to painting walls.

(8) *Final Inspection*: When the building has been completed and mechanical, electrical, plumbing, and gas inspections "if applicable" have been completed, you may request the building final inspection.

ELECTRICAL

(1) *Slab Inspection*: If any electrical lines are installed in the slab or concealed in concrete walls.

(2) *Underground:* All conduits and direct burial cable placed in the ground must be inspected prior to covering.

(3) *Rough-in Inspection*: When wires are pulled and stapled prior to installation of sheetrock, "No insulation is to be installed prior to rough-in inspection." All areas of renovations where sheetrock has been removed will also require a rough-in inspection.

(4) *Temp 30:* The following are required: permanent house numbers, the building is lockable, the meter base and main panel are installed, and a receptacle with GFCI protection.

(5) *Final Inspection:* When all fixtures, plugs and appliances are installed. All electrical work should be completed at this time.

(6) *Electrical Final for HVAC (If separate):* Air conditioning final to be made when all electrical lines and disconnects are completed to heat and air units.

MECHANICAL & GAS

(1) *Slab*: To be made if gas lines or mechanical work is run under or through the slab. Inspection is to be made before the work is covered.

(2) *Rough-In Inspection / Wall Rough:* When all gas lines and refrigeration lines that are to be concealed are run inside structure prior to insulation and drywall. All ductwork in concealed locations must be inspected prior to installation of drywall.

(3) *Above Ceiling Inspection:* This inspection, (typically applicable on commercial projects), is to be done after grid is installed and before ceiling tiles are placed. Inspection will verify equipment installation, service clearances, fire dampers, duct work and registers.

(4) *Final Inspection*: When all gas appliances are installed and completed, and all mechanical work finished. Service clearance area around all indoor and outdoor units must be provided based on code and manufacturer requirements.

PLUMBING

(1) *Slab*: To be made before gravel and poly are installed over pipes and water lines.

(2) *Sewer / Water Lines*: To be made before sewer lines and water lines are covered.

(3) *Rough-in:* To be made when all plumbing pipes are stubbed-out and pressure tested prior to sheetrock being hung. (No insulation is to be installed prior to this inspection.)

(4) *30 Day Temporary:* To be made when the sewer and rough ins have been passed. (This inspection must be requested by the plumber.)

(5) *Final*: To be made when fixtures are set, and plumbing is completed and in working order.

(11) Amend subsection (A) 109.3.8 to be number (A) 109.3.2

(12) Amend subsection (A) 110.1 "Altered area use and occupancy classification change" to read "Altered areas of a building shall not be used or occupied until the code official has issued a notice of completion or certificate of occupancy, as required by the City of Huntsville Inspection Department. Relocated buildings shall not be used or occupied and change in the existing use or occupancy classification of a building or portion thereof shall not be made until the code official has issued a certificate of occupancy therefor as provided herein. Issuance of a notice of completion or certificate of occupancy shall not be construed as an approval of a violation of the provisions of this code or of other ordinances of the jurisdiction."

(13) Delete subsection (A) 110.3 "Temporary occupancy" in its entirety.

(14) Delete section 112 "Board of Appeals" in its entirety.

(15) Amend subsection 116.6 "Hearing" to read:

"Any person ordered to take emergency measures shall comply with such order forthwith. Any affected person shall thereafter, upon petition to the Board of

Examination and Appeals for Construction Industries, be afforded a hearing as described in this code."

(16) Delete subsection 502.3 "Flood hazard areas" in its entirety."

(17) Amend subsection "707.1 Minimum requirements." To read.

Level 1 alterations to existing buildings or structures do not require the entire building or structure to comply with the energy requirements of the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board. The alterations shall conform to the energy requirements of the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board as they relate to new construction only.

(18) Amend subsection "810.1 Minimum requirements." To read.

Level 2 alterations to existing buildings or structures do not require the entire building or structure are permitted without requiring the entire building or structure to comply with the energy requirements of the current State of Alabama Energy Code or Residential Energy Code as adopted by the Alabama Energy and Residential Codes Board. The alterations shall conform to the energy requirements of the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board as they relate to new construction only.

(19) Amend subsection "907.1 minimum requirements" to read.

Level 3 alterations to existing buildings or structures do not require the entire building or structure are permitted without requiring the entire building or structure to comply with the energy requirements of the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board. The alterations shall conform to the energy requirements of the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board as they relate to new construction only.

(20) Delete subsection (BS) 1103.3 "Flood Hazard Areas" in its entirety.

(21) Amend subsection 1107.1 "Minimum requirements" to read.

Additions to existing buildings shall conform to the energy requirements of the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board as they relate to new construction.

(22) Delete subsection 1201.4 "Flood Hazard Areas" in its entirety.

(23) Delete subsection (BS) 1301.3.3 "Compliance with flood hazard provisions" in its entirety.

(24) Amend subsection 1401.2 "Conformance" to read:

"The building shall be safe for human occupancy as determined by the International Fire Code. Any repair, alteration, or change of occupancy undertaken within the moved structure shall comply with the requirements of this code applicable to the work being performed. Any field-fabricated elements shall comply with the requirements of the International Building Code or the International Residential Code as applicable."

(25) Amend subsection 1301.3.2 "Compliance with Other Codes" to read:

Buildings that are evaluated in accordance with this section shall comply with the International Fire Code."

(26) Delete subsection (BS) 1301.3.3 "Compliance with flood hazard provisions." in its entirety.

(27) Amend subsection 1401.2 "Conformance" to read:

"The building shall be safe for human occupancy as determined by the International Fire Code. Any repair, alteration or change of occupancy undertaken within the moved structure shall comply with the requirements of this code applicable to the work being performed. Any field-fabricated elements shall comply with the requirements of the International Building Code or the International Residential Code as applicable."

(28) Delete subsection (BS) 1402.6 "Flood Hazard Areas" in its entirety.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 6. INTERNATIONAL PLUMBING CODE

Sec. 7-197. Adoption; edition; copies.

(a) Subject to subsection (b), there is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the International Plumbing Code, 2018 edition, Chapters 1—11; 15 and appendices "B", "C", "D" and "E", published by the International Code Council, Inc., save and except such portions as are deleted, modified or amended in this division; and the provisions of such code shall be controlling as provided in this section.

(b) Any energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in structures shall meet the Alabama Energy Codes, as deleted, modified or amended in division 11.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-198. Deletions, modifications and amendments.

The International Plumbing Code, 2018 edition, Chapters 1—11; 15 and appendices "B", "C", "D", and "E" as adopted in this division, are deleted, modified and amended as follows:

(1) Amend subsection 101.2 "Scope" to read:

"The provisions of this code shall apply to the erection, installation, alterations, repair use or maintenance of plumbing systems within this jurisdiction. The installation of fuel gas distribution piping and equipment, fuel gas-fired water heaters and water heater venting systems shall be regulated by the International Fuel Gas Code. Provisions in the appendices shall not apply unless specifically adopted.

Exception: Plumbing systems in existing buildings undergoing repair, alteration, or additions, and change of occupancy shall be permitted to comply with the International Existing Building Code."

(2) Delete Section 106.1.1 "Annual permit" in its entirety.

(3) Delete Section 106.1.2 "Annual permit records" in its entirety.

(4) Delete subsection 106.2 "Work Exempt from Permit" in its entirety.

(5) Amend subsection 106.3.1 "Construction documents" to read:

Construction documents, engineering calculations, diagrams and other shall be submitted with each application for a permit. The code official shall require construction documents, computations and specifications to be prepared designed by a registered design professional required by state law. Construction documents shall be scale and shall be of sufficient clarity to indicate the nature and extent of the work proposed and show detail that the work conforms to the provisions of this code. Construction documents for buildings more than two stories in height shall indicate where penetrations will be

made pipes, fittings and components and shall indicate the materials and methods for maintaining required structural safety, resistance rating and fireblocking.

Exception: The code official shall have the authority waive the submission of construction documents, calculations or other data if the nature of the work applied such that reviewing of construction documents is not necessary to determine compliance with this code.

(6) Delete Section 106.5.1 "Approved construction documents" in its entirety.

(7) Amend subsection 106.5.3 "Expiration" to read:

Every permit issued by the code official under the provisions of this code shall expire by limitation and become null and void if the work authorized by such permit is not commenced within 180 days from the date of such permit, or if the work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 days. Before such work can be recommenced, a new permit shall be first obtained.

(8) Amend subsection 106.5.4 "Extensions" to read:

Any permittee holding an unexpired permit shall have the right to apply for an extension of the time within which the permittee will commence work under that permit when work is unable to be commenced within the time required by this section for good and satisfactory reasons. The code official shall extend the time for action by the permittee for a period not exceeding 180 days if there is reasonable cause.

(9) Delete subsection 106.5.6 "Retention of construction documents" in its entirety.

(10) Amend subsection 106.6.2 "Fee Schedule" to read:

The fees for all plumbing work shall be as indicated in the following schedule:

(a) For residential one- and two-family dwellings with plumbing work governed by this code, the permit shall be the amount assessed in the following manner:

An issuing fee of.....	$ 25.00
In addition:	
For each plumbing fixture or trap or set of fixture on one trap (including water and drainage piping).....	2.50
For each house sewer .	5.00
For each house sewer having to be replaced or repaired.....	5.00
Hot water heater, electric-water piping only.....	2.50
Dishwasher	2.50
Garbage grinder.....	2.50
For installation, alteration, or repair of water piping and/or treating equipment	5.00
For repair or alteration of drainage or venting piping.....	5.00
For vacuum breakers or backflow protective devices, installed subsequent to the installation of the piping or equipment served one (1) to five (5).....	2.50
Rain leader and roof drain piping (interior).	2.50

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(b) For the plumbing work for a manufactured home/mobile home the permit fee shall be $15.00.

(c) For commercial buildings or commercial structures with plumbing work governed by this code, the permit shall be the amount assessed in the following manner:

An issuing fee of.	$ 50.00
In addition:	
For each plumbing fixture or trap or set of fixture on one trap (including water and drainage piping)	2.50
For each house sewer .	5.00
For each house sewer having to be replaced or repaired	5.00
Hot water heater, electric-water piping only.	2.50
Dishwasher	2.50
Garbage grinder	2.50
For installation, alteration, or repair of water piping and/or treating equipment	5.00
For repair or alteration of drainage or venting piping.	5.00
For vacuum breakers or backflow protective devices, installed subsequent to the installation of the piping or equipment served one (1) to five (5)	2.50
Rain leader and roof drain piping (interior).	2.50

For new commercial construction, renovations, alternations of a sewer lateral or a building sewer for commercial projects a minimum permit fee of $50.00 plus the cost of $5.00 per each sewer lateral or building sewer.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(11) Delete subsection 106.6.3 "Fee Refund" in its entirety.

(12) Amend subsection 107.2 "Required inspections and testing" to read

PLUMBING

(1) *Slab*: To be made before gravel and poly are installed over pipes and water lines.

(2) *Sewer/Water Lines*: To be made before sewer lines and water lines are covered.

(3) *Rough-in*: To be made when all plumbing pipes are stubbed-out and pressure tested prior to sheetrock being hung. (No insulation is to be installed prior to this inspection.)

(4) *30 Day Temporary*: To be made when the sewer and rough ins have been passed. (This inspection must be requested by the plumber.)

(5) *Final*: To be made when fixtures are set, and plumbing is completed and in working order.

(13) Delete Section 109 "Means of Appeal" in its entirety.

(14) Amend subsection 201.3 "Terms defined in other codes" to read:

"Where terms are not defined in this code such terms shall have the meanings ascribed in other codes publications of the International Code Council and as defined per NFPA 70".

(15) Amend Section 301.3 "Connections to drainage system" delete the Exception in its entirety.

(16) Delete subsection 312.10 "Inspection and testing of backflow prevention assemblies" in its entirety.

(17) Delete subsection 312.10.1 "Inspections" in its entirety.

(18) Delete subsection 312.10.2 "Testing" in its entirety.

(19) Amend Section 410.4 "Substitutions" to read:

"Where restaurants provide drinking water in a container free of charge, drinking fountains shall not be required in those restaurants. In other occupancies where drinking fountains are required, removable type water dispensers shall be permitted to be substituted for not more than 50 percent of the required number of drinking fountains. Approved permanently installed type bottle filler may be used as a substitution for the required drinking fountain(s)."

(20) Amend subsection 413.3 "Size of floor drains" to read;

"Floor drains shall have a drain outlet not less than 3 inches in diameter."

(21) Amend Section 414.1 "Approval" to read:

" Sanitary floor sink drains shall be a minimum of 3 inches and shall conform to the requirements of ASME A112.6.7."

(22) Amend Section 424.1 Approval to read:

"Urinals shall conform to ASME A112.19.2/ CSA B45.1, ASME A112.19.19 or CSA B45.5/IAPMO Z124. Urinals shall conform to the water consumption requirements of Section 604.4. Water-supplied urinals shall conform to the hydraulic performance requirements of

ASME A112.19.2/CSA B45.1 or CSA B45.5/IAPMO Z124. The use of non-water or water-less urinals is prohibited.

(23) Delete subsection 602.3.4 "Disinfection of system" in its entirety.

(24) Amend subsection 606.1 "Location of full-open valves" to read:

Full-open valves shall be installed in the following locations:

1. On the water distribution supply pipe at the entrance into the structure.
2. On the discharge side of every water meter.
3. On the base of every water riser pipe in occupancies other than multiple-family residential occupancies that are two stories or less in height and in one- and two family residential occupancies.
4. On the top of every water down-feed pipe in occupancies other than one- and two-family residential occupancies.
5. On the entrance to every water supply pipe to a dwelling unit, except where supplying a single fixture equipped with individual stops.
6. On the water supply pipe to a gravity or pressurized water tank.
7. On the water supply pipe to every water heater.
8. All pot fillers to be equipped with approved shut-off valves.

(25) Amend subsection 604.8 "Water pressure-reducing valve or regulator" to read:

Where water pressure within a building exceeds 80 psi (552 kPa) static, an approved water pressure-reducing valve conforming to ASSE 1003 or CSA B356 with strainer shall be installed to reduce the pressure in the building water distribution piping to not greater than 80 psi (552 kPa) static. The water pressure-reducing valve must be either be installed inside the building or inside an approved enclosure that is design per ASSE 1060. Backflow preventer must be installed per section 608 and 608.15.

Exception: Service lines to sill cocks and outside hydrants, and main supply risers

where pressure from the mains is reduced to 80 psi (552 kPa) or less at individual fixtures.

(26) Section 606.2, Location of shutoff valves. Delete item #2 in its entirety.

(27) Amend subsection 607.2.1 " Circulation systems and heat trace systems for maintaining heated water temperature in distribution systems." to read:

For Group R2, R3 and R4 occupancies that are three stories or less in height above grade plane, the installation of heated water circulation and temperature maintenance systems shall be in accordance with Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board. For other than Group R2, R3 and R4 occupancies the installation of heated water circulation and heat trace systems shall be in accordance with the Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board.

(28) Amend subsection 701.2 "Connection to sewer required" to read:

"Every building in which plumbing fixtures are installed and all premises having drainage piping shall be connected to a public sewer, where available, or an approved private sewer disposal system in accordance with the Inspection Department and the Madison County Health Department."

(29) Amend subsection 701.3 "Separate sewer connection" to read:

"Every independent building having plumbing fixtures installed and intended for human habitation, occupancy or use on premises abutting on a street, alley or easement in which there is a public sewer shall have a separate connection with the sewer. All sewer installations must follow the City of Huntsville Water Pollution Control Manual.

(30) Add new subsection 703.7 "Building sewer minimum size" to read:

All building sewers shall be a minimum of 4" inch in size and shall be tested out to the easement or other approved location."

(31) Add new subsection 704.1.1 "Minimum size drainage piping" to read:

All 1 ½" inch drainage piping is prohibited in horizontal underground applications."

(32) Amend subsection 705.3.3 "Mechanical joint coupling. Mechanical joint couplings for hubless pipe and fittings shall consist of an elastomeric sealing sleeve and a metallic shield that comply with CISPI 310, ASTM C1277 or ASTM C1540. The elastomeric sealing sleeve shall conform to ASTM C564 or CSA B602 and shall be provided with a center stop. Mechanical joint couplings shall be installed in accordance with the manufacturer's instructions. The use of rubber couplings without shear bands in horizontal underground applications shall be prohibited.

(33) Amend subsection 904.1 "Required vent extensions" to read:

"The vent system serving each building drain shall have not less than one vent pipe that extends to the outdoors. All open vent pipes that extend through a roof shall be terminated at least 8 inches above the roof, except that where a roof is occupied as a habitable space for any purpose, the vent shall be extend to 7 feet above the roof if the vent termination is within 6 feet of the occupied space."

(34) Add subsection 912.1.2 "Prohibited horizontal wet vent design" to read:

"On a horizontal wet vent, water closets cannot wash past another fixture trap without a vent or being revented."

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 7. INTERNATIONAL MECHANICAL CODE

Sec. 7-199. Adoption; edition; copies.

(a) Subject to subsection (b), there is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the International Mechanical Code, 2018 edition, Chapters 1—11,14, 15 and appendix "A", published by the International Code Council, Inc., save and except such portions as are deleted, modified or amended in this division; and the provisions of such code shall be controlling as provided in this section.

(b) Any energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in structures shall meet the Alabama Energy Codes, as deleted, modified or amended in division 11.
(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-200. Deletions, modifications and amendments.

The International Mechanical Code, 2018 edition, Chapters 1—11,14,15 and appendix "A" as adopted in this division, are deleted, modified and amended as follows:

(1) Amend subsection 101.2 "Scope", to read:

"This code shall regulate the design, installation, maintenance, alteration and inspection of mechanical systems that are permanently installed and utilized to provide control of environmental conditions and related processes within buildings. This code shall also regulate those mechanical systems, system components, equipment and appliances specifically addressed herein. The installation of fuel gas distribution piping and equipment, fuel gas-fired appliance venting systems shall be regulated by the International Fuel Gas Code.

Exception: Mechanical systems in existing buildings undergoing repair, alterations, or additions, and change occupancy shall be permitted to comply with the International Existing Building Code."

(2) Delete subsection (A) 106.1.1 "Annual permit" & subsection (A) 106.1.2 "Annual permit records" in its entirety.

(3) Amend subsection 106.5.2 "Fee Schedule" to read:

Permit valuation shall include total value of the work for which a permit is being issued, such valuation shall include all materials and labor.

(a) For residential one- and two-family dwellings with mechanical work governed by this code, the permit shall be the amount assessed in the following manner:

An issuing fee of. . . . . $ 25.00

In addition:

Fee for heating, ventilation, duct, air conditioning, and refrigeration systems shall be ten ($10.00) for the first one thousand dollars ($1000.00) of valuation of the installation plus two ($2.00) dollars for each additional one thousand ($1000.00) dollars or fraction thereof.

Repairs, alterations, and additions to an existing system where cost is over five hundred ($500.00) dollars shall be two ($2.00) dollars per each one thousand ($1000.00) dollars or fraction thereof in valuation. Where alterations, repairs, and additions to an existing system where the cost is under five hundred ($500.00) dollars where an inspection is required, the fee shall be five ($5.00) dollars.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged

at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(b) For commercial buildings or commercial structures with mechanical work governed by this code, the permit shall be the amount assessed in the following manner:

An issuing fee of. . . . . $ 50.00

In addition:

Fee for heating, ventilation, duct, air conditioning, and refrigeration systems shall be ten ($10.00) for the first one thousand dollars ($1000.00) of valuation of the installation plus two ($2.00) dollars for each additional one thousand ($1000.00) dollars or fraction thereof.

Repairs, alterations, and additions to an existing system where cost is over five hundred ($500.00) dollars shall be two ($2.00) dollars per each one thousand ($1000.00) dollars or fraction thereof in valuation. Where alterations, repairs, and additions to an existing system where the cost is under five hundred ($500.00) dollars where an inspection is required, the fee shall be five ($5.00) dollars.

In all buildings, except one (1) and two (2) family dwellings using self-contained air conditioning units less than two tons, the fee charged shall be for the total cost of all units combined (see above for the rate). Minimum fee shall be $50.00.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(4) Amend subsection 107.2 "Required inspections and testing" to read

MECHANICAL & GAS

(1) *Slab*: To be made if gas lines or mechanical work is run under or through the slab. Inspection is to be made before the work is covered.

(2) *Rough-In Inspection / Wall Rough*: When all gas lines and refrigeration lines that are to be concealed are run inside structure prior to insulation and drywall. All ductwork in concealed locations must be inspected prior to installation of drywall.

(3) *Above Ceiling Inspection*: This inspection, (typically applicable on commercial projects), is to be done after grid is installed and before ceiling tiles are placed. Inspection will verify equipment installation, service clearances, fire dampers, duct work and registers.

(4) *Final Inspection*: When all gas appliances are installed and completed, and all mechanical work finished. Service clearance area around all indoor and outdoor units must be provided based on code and manufacturer requirements.

(5) Delete Section 109 "Means of Appeal" in its entirety.

(6) Amend subsection 201.3 "Terms defined in other codes" to read:

"Where terms are not defined in this code such terms shall have the meanings ascribed in other codes publications of the International Code Council and as defined per NFPA 70".

(7) Amend Section 202 "General Definitions" the following definitions to read as:

"Ready Access (To)" to read:

"That which enables a device, appliance or equipment to be directly reached, without requiring the removal or movement of any panel or similar obstruction

[see "Access (to)] Appliances located on the roof or other elevated locations shall be capable of being reached without requiring potable ladders, chairs, etc. A ladder pull down disappearing type or permanent stairway fastened to the building shall be provided leading to the attic opening or roof, unless approved by the Building Official. This requirement may be waived for the replacement of units installed before January 1986, in one- and two-family dwellings, provided a means of providing access to the units for inspection purposes exists."

(8) Amend subsection 301.2 "Energy utilization" to read:

"Heating, ventilating and air-conditioning systems of all structures shall be designed and installed for efficient utilization of energy in accordance with the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board; compliance to the current State of Alabama Energy Code must be verified by a State of Alabama Licensed Third-Party Energy Consultant or a State of Alabama Registered Design Professional."

(9) Amend subsection 301.16 Flood Hazard" to read:

"For structures located in the flood hazard areas, mechanical systems, equipment and appliances shall be located in accordance with Article 62 of the City of Huntsville Zoning Ordinance."

(10) Amend subsection 303.3 "Prohibited locations" to read:

"Fuel-fired appliances shall not be located in, or obtain combustion air from, any of the following rooms or spaces:

(A) Sleeping rooms

(B) Bathrooms

(C) Toilet rooms

(D) Storage closets

(E) Surgical rooms

Exception: This section shall not apply to the following appliances:

(1) Direct-vent appliances that obtain all combustion air directly from the outdoors.

(2) Solid fuel-fired appliances provided that the room is not a confined space and the building is not of unusually tight construction.

(3) Appliances installed in a dedicated enclosure in which all combustion air is taken directly from the outdoors, in accordance with Chapter 7. Access to such enclosure shall be through a solid door, weather-stripped in an approved manner and equipped with an approved self-closing device.

(11) Add subsection 306.3 Appliances in attics to be accessible" to read:

"All appliances in attics must be accessible and meet the requirements as found in the definition of Ready Access (To). Attics containing appliances shall be provided with an opening and unobstructed passageway large enough to allow removal of the largest appliance. The passageway shall be not less than 30 inches (762 mm) high and 22 inches (559 mm) wide and not more than 20 feet (6096 mm) in length measured along the centerline of the passageway from the opening to the appliance. The passageway shall have continuous solid flooring not less than 24 inches (610 mm) wide. A level service space not less than 30 inches (762 mm) deep and 30 inches (762 mm) wide shall be present at the front or service side of the appliance. The clear access opening dimensions shall be not less than 20 inches by 30 inches (508 mm by 762 mm), and large enough to allow removal of the largest appliance.

(12) Add subsection 306.3.1.1 "Disconnect Location" to read:

"Disconnecting means shall be within 6 feet and readily accessible from the appliance. The disconnecting means may be installed on or within the appliance. The disconnecting means shall not be located on panels that are designed to allow access to the appliance and shall not cover the manufacture's labeling. "

(13) Amend subsection 306.4.1 "Electrical requirements" to read:

"A lighting fixture controlled by a switch located at the required passageway opening and a receptacle outlet shall be provided at or near the appliance location in accordance with the NFPA 70.

(14) Amend subsection: 306.5. "Equipment and appliances on roofs or elevated structures" shall read:

"All equipment and appliances on roofs or elevated structures shall meet definition on regulations for Ready Access (To)." Where equipment requiring access or appliances are located on an elevated structure or the roof of a building such that personnel will have to climb above grade to access such equipment or appliances, an interior or exterior means of access shall be provided. Such access shall not require climbing over obstructions greater than 30 inches (762 mm) in height or walking on roofs having a slope greater than 4 units vertical in 12 units horizontal (33-percent slope). Such access shall not require the use of portable ladders. Where access involves climbing over parapet walls, the height shall be measured to the top of the parapet wall. Permanent ladders installed to provide the required access shall comply with the following minimum design criteria:

1. The side railing shall extend above the parapet or roof edge not less than 30 inches (762 mm).
2. Ladders shall have rung spacing not to exceed 14 inches (356 mm) on center. The uppermost rung shall be not greater than 24 inches (610 mm) below the upper edge of the roof hatch, roof or parapet, as applicable.
3. Ladders shall have a toe spacing not less than 6 inches (152 mm) deep.
4. There shall be not less than 18 inches (457 mm) between rails.
5. Rungs shall have a diameter not less than 0.75-inch (19 mm) and be capable of withstanding a 300-pound (136.1 kg) load.
6. Ladders over 30 feet (9144 mm) in height shall be provided with offset sections and landings capable of withstanding 100 pounds per square foot (488.2 kg/m2). Landing dimensions shall be not less than 18 inches (457 mm) and not less than the width of the ladder served. A guard rail shall be provided on all open sides of the landing.
7. Climbing clearance. The distance from the centerline of the rungs to the nearest permanent object on the climbing side of the ladder shall be not less than 30 inches (762 mm) measured perpendicular to the rungs. This distance shall be maintained from the point of ladder access to the bottom of the roof hatch. A minimum clear width of 15 inches (381 mm) shall be provided on both sides of the ladder measured from the midpoint of and parallel with the rungs except where cages or wells are installed.
8. Landing required. The ladder shall be provided with a clear and unobstructed bottom landing area having a minimum dimension of 30 inches (762 mm) by 30 inches (762 mm) centered in front of the ladder.
9. Ladders shall be protected against corrosion by approved means.

10. Catwalks installed to provide the required access shall be not less than 24 inches (610 mm) wide and shall have railings as required for service platforms.

    Exception: This section shall not apply to Group R-3 occupancies.

(15) Amend subsection [F] 311.1 "Required" to read:

"Approved smoke and heat vents shall be installed in the roofs of one story buildings where required by the International Fire Code. Smoke and heat vents shall be designed and installed in accordance with the International Fire Code.

Exception: This section does not apply to one- and two-family dwellings built on a fee simple lot."

(16) Amend subsection 312.1 "Load calculations" to read:

"Heating and cooling systems design loads for the purpose of sizing systems, appliances and equipment shall be determined in accordance with the procedures described in the ASHRAE/ACCA Standard 183. Alternatively, design loads shall be determined by an approved equivalent computation procedure, using the design parameters specified in the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board;"

(17) Amend 514.1 "General" to read:

"Energy recovery ventilation systems shall be installed in accordance with this section. Where required for purposes of energy conservation, energy recovery ventilation systems shall comply with the manufactures requirements and with the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board. Compliance with the current State of Alabama Energy Code must be verified by a State of Alabama Licensed Third-Party Energy Consultant or a State of Alabama Licensed Design Professional."

(18) Add subsection 602.2.1 "HVAC and furnace closet" to read:

Any installation or design combination in which a HVAC unit, appliance and/or furnace installations is installed in a confined closet with an open plenum area were a wall louver or louvered door is utilized to convey return air flow, shall be prohibited from having any open indirect waste receptor, hub drain, floor drain or other open drainage device in which condensation drains, water heater drains & relief lines discharges into the sanitary sewer.

(19) Amend subsection 602.2.1.1 "Wiring" to read:

"Combustible electrical or electronic wiring methods and materials, optical fiber cable, and optical fiber raceway exposed within a plenum shall have a peak optical density not greater than 0.50, an average optical density not greater than 0.15, and a flame spread not greater than 5 feet when tested in accordance with NFPA 262 or shall be installed in metal raceways or metal sheathed cable. Combustible optical fiber and communication raceways exposed within a plenum shall be listed and labeled as having a peak optical density not greater than 0.5, an average optical density not greater than 0.15, and a flame spread distance not greater than 5 feet (1524 mm) when tested in accordance with UL2024. Wiring, cable, and raceways addressed in this section shall be listed and labeled as plenum rated and shall be installed in accordance with the NFPA 70. "

(20) Amend subsection 603.6.1 "Flexible air ducts" to read:

"Flexible air ducts, both metallic and non-metallic, shall be tested in accordance with U.L. 181. Such ducts shall be listed and labeled as Class 0 or Class 1 flexible air connectors and shall be installed in accordance with Section 304.1 Bends in flexible duct shall be made such that the

centerline radius of the bend is at least one duct diameter. Ducts should extend a few inches beyond the end of the point of attachment before bending. Ducts shall not be kinked or compressed. In one- and two-family dwellings where a flex duct attaches to a straight boot, a 90-degree elbow shall be used."

(21) Amend subsection 603.9 "Joints, seams, and connections, to read:

"All longitudinal and transverse joints, seams, and connections in metallic and non-metallic ducts shall be constructed, installed and sealed as specified in SMACNA HVAC Duct Construction Standards-Metal and Flexible and SMACNA/NAIMA Fibrous Glass Duct Construction Standards. Joints, longitudinal and transverse seams and connections in ductwork shall be securely fastened and sealed with welds, gaskets, mastics (adhesives), mastic-plus-embedded-fabric systems, liquid sealants or tapes. Tapes and mastics used to seal fibrous glass ductwork shall be listed and labeled in accordance with UL 181A and shall be marked "181 A-P" for pressure-sensitive tape, "181 A-M" for mastic or "181 A-H" for heat-sensitive tape. Tapes and mastics used to seal metallic and flexible air ducts and flexible air connectors shall comply with UL 181B and shall be marked "181 B-FX" for pressure-sensitive tape or "181 B-M" for mastic. Duct connections to flanges of air distribution system equipment shall be sealed and mechanically fastened. Mechanical fasteners for use with flexible nonmetallic air ducts shall comply with UL 181B and shall be marked "181 B-C." Closure systems used to seal all ductwork shall be installed in accordance with the manufacturer's instructions.

Exception: For ducts having a static pressure classification of less than 2 inches of water column (500 Pa), additional closure systems shall not be required for continuously welded joints and seams and locking-type joints and seams. This exception shall not apply to snaplock and button-lock type joints and seams located outside of conditioned spaces. "

(22) Amend subsection 604.1 "General" shall read:

"Duct insulation shall conform to the requirements of Sections 604.2 through 604.13 and with the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board. Compliance with the current State of Alabama Energy Code must be verified by a State of Alabama Licensed Third-Party Energy Consultant or a State of Alabama Licensed Design Professional. All ducts located in unconditioned spaces including but not limited to attics, crawl spaces, basements, and garages as well as those located outside of the building must be insulated.

(23) Amend subsection 606.1 "Controls required" to read:

"Air distribution systems shall be equipped with smoke detectors listed and labeled for installation in air distribution systems, as required by this section. Duct smoke detectors shall comply with UL 268A. Other smoke detectors shall comply with UL 268.

Exception: This section does not apply to one- and two-family dwellings built on a fee simple lot."

(24) Amend subsection 606.2.1 "Return air systems" to read:

"Except in one- and two-family dwellings built on a fee simple lot, smoke detectors shall be installed in return air systems with a design capacity greater than 2000 cfm ($0.9m^3/s$), in the return air duct or plenum up steam of any filters, exhaust air connections, outdoor air connections, or decontamination equipment and appliances.

Exception: Smoke detectors are not required in the return air system where all portions of the building served by the air distribution system are protected by

area smoke detectors connected to a fire alarm system in accordance with the International Fire Code. The area smoke detection system shall comply with Section 606.4."

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 8. INTERNATIONAL FUEL GAS CODE/NFPA 54 AND 58

Sec. 7-201. Adoption; edition; copies.

(a) Subject to subsection (b), there is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the International Fuel Gas Code, 2018 edition, Chapters 1—8 and appendices "A", "B", "C", and "D" as published by the International Code Council, Inc., and NFPA pamphlet numbers NFPA 54, 2015 edition and NFPA 58, 2017 edition, published by the National Fire Protection Association, save and except such portions as are deleted, modified or amended in this division; and the provisions of such codes shall be controlling as provided in this section. The 2018 International Fuel Gas Code shall apply to the piping and the installation of both natural and liquefied petroleum gases within the City of Huntsville, Alabama. NFPA pamphlet numbers NFPA 54, 2015 edition and NFPA 58, 2017 edition shall apply to handling and storage of liquefied petroleum gases within the City of Huntsville, Alabama.

(b) Any energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in structures shall meet the Alabama Energy Codes, as deleted, modified or amended in division 11.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-202. Deletions, modifications and amendments.

The International Fuel Gas Code, 2018 edition, Chapters 1—8 and appendices "A", "B", "C", and "D" and NFPA pamphlet numbers NFPA 54, 2015 edition and NFPA 58, 2017 edition, as published by the National Fire Protection Association, as adopted in this division, are deleted, modified and amended as follows:

(1) Amend subsection 101.2 "Scope", to read:

"This code shall apply to the installation of fuel-gas piping systems, fuel-gas utilization equipment and related accessories in accordance with Sections 101.2.1 through 101.2.5.

Exception: As an alternative to the provisions of this code, fuel-gas piping systems, fuel-gas utilization equipment and related accessories in existing buildings that are undergoing repairs, alterations, changes in occupancy or construction of additions shall be permitted to comply with the provisions of the International Existing Building Code."

(2) Delete subsection [A] 106.1.1 "Annual permit" & subsection [A] 106.1.2 "Annual permit records" in its entirety.

(3) Amend subsection 106.5.2 "Fee Schedule", to read:

The fees for all fuel gas work shall be as indicated in the following schedule:

(a) For residential one- and two-family dwellings with fuel gas work governed by this code, the permit shall be the amount assessed in the following manner:

An issuing fee of..... $ 25.00

In addition:

For each permit shall be paid as required at the time of filing application. Other permit fees shall be based on the total British Thermal Unit, hereafter referred to as BTU, input load for the installation shall be as follows:

a. 150,000 BTU or less ..... $ 25.00

b. 150,001 BTU to 250,000 BTU 30.00

c. 250,001 BTU to

	500,000 BTU	35.00
d.	500,001 BTU to 1,000,000 BTU...	40.00
e.	1,000,001 BTU to 1,500,000 BTU...	65.00
f.	1,500,001 BTU to 3,000,000 BTU...	100.00
g.	Over 3,000,000 BTUs	150.00

Permit fees for an unsafe service ("Lock Off") shall be $25.00.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(b) For commercial buildings or commercial structures with fuel gas work governed by this code, the permit shall be the amount assessed in the following manner:

An issuing fee of..... $ 50.00

In addition:

Fees shall be based on the total British Thermal Unit, hereafter referred to as BTU, input load for the installation shall be as follows:

a.	150,000 BTU or less	$ 25.00
b.	150,001 BTU to 250,000 BTU	30.00
c.	250,001 BTU to 500,000 BTU	35.00
d.	500,001 BTU to 1,000,000 BTU...	40.00
e.	1,000,001 BTU to 1,500,000 BTU...	65.00
f.	1,500,001 BTU to 3,000,000 BTU...	100.00
g.	Over 3,000,000 BTUs	150.00

Permit fees for an unsafe service ("Lock Off") shall be $50.00.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(4) Amend subsection 107.2 "Required inspections and testing" to read

MECHANICAL & GAS

(1) *Slab*: To be made if gas lines or mechanical work is run under or through the slab. Inspection is to be made before the work is covered.

(2) *Rough-In Inspection / Wall Rough*: When all gas lines and refrigeration lines that are to be concealed are run inside structure prior to insulation and drywall. All ductwork in concealed locations must be inspected prior to installation of drywall.

(3) *Above Ceiling Inspection*: This inspection, (typically applicable on commercial projects), is to be done after grid is installed and before ceiling tiles are placed. Inspection will verify equipment installation, service clearances, fire dampers, duct work and registers.

(4) *Final Inspection*: When all gas appliances are installed and completed, and all mechanical work finished. Service clearance area around all indoor and outdoor units must be provided based on code and manufacturer requirements.

(5) Delete Section 109 "Means of Appeal" in its entirety.

(6) Amend subsection 201.3 "Terms defined in other codes" to read:

"Where terms are not defined in this code such terms shall have the meanings ascribed in other codes publications of the International Code Council and as defined per NFPA 70".

(7) Amend Section 202 "General Definitions" The following definitions to read as:

"[M] Ready Access (To)" to read:

"That which enables a device, appliance or equipment to be directly reached, without requiring the removal or movement of any panel or similar obstruction [see "Access (to)] Appliances located on the roof or other elevated locations shall be capable of being reached without requiring potable ladders, chairs, etc. A ladder pull down disappearing type or permanent stairway fastened to the building shall be provided leading to the attic opening or roof, unless approved by the Building Official. This requirement may be waived for the replacement of units installed before January 1986, in one- and two-family dwellings, provided a means of providing access to the units for inspection purposes exists."

(8) Amend subsection 301.2 "Energy utilization" to read:

"Heating, ventilating and air-conditioning systems of all structures shall be designed and installed for efficient utilization of energy in accordance with the current State of Alabama Energy Code as adopted by the Alabama Energy and Residential Codes Board; compliance to the current State of Alabama Energy Code must be verified by a State of Alabama Licensed Third-Party Energy Consultant or a State of Alabama Registered Design Professional."

(9) Delete subsection 303.7 "Pit locations" in its entirety.

(10) Amend subsection [M] 306.1 "Access for maintenance and replacement" to read:

" Clearances around appliances, control devices, heat exchangers and HVAC components that utilize energy shall be accessible for inspection, service, repair and replacement without disabling the function of a fire-resistance-rated assembly or removing any permanent construction, other appliances, or any other piping or ducts not connected to the appliance being inspected, serviced, repaired or replaced. A level working space not less than 30 inches (762 mm) deep and 30 inches (762 mm) wide shall be provided in front of the control side to service an appliance. (See definition "Ready Access To)"

(11) Amend subsection 401.5 "Identification" to read:

For other than steel pipe, exposed piping shall be identified by a yellow label marked "Gas" in black letters. All two (2) pound systems must be marked and identified for the entire developed length of the pipping. The marking shall be spaced at intervals not exceeding 5 feet (1524 mm). The marking shall not be required on pipe located in the same room as the appliance served.

(12) Amend Subsection 402.3 "Sizing" to read:

"All gas piping shall be sized to natural gas standards to the point of exterior connection. Piping shall be sized to natural gas standards using one of the following:

1. Pipe sizing tables or sizing equations in accordance with section 402.4 or 402.5 as applicable.
2. The sizing tables included in a listed piping system's manufacturer's installation instruction.
3. Other approved engineering methods."

(13) Amend subsection 403.5.3 "Copper and copper alloy tubing" to read:

"Copper tubing shall comply with standard "K" or "L" of ASTM B88 or ASTM B280. Copper and coper alloy tubing shall not be used if the gas contains more than an average of 0.3 grains of hydrogen sulfide per 100 standard cubic feet of gas (0.7 milligrams per 100 liters). Underground copper tubing must be protected and must comply with ASTM B88 or ASTM B280. Underground copper may only be used between the tank and house piping or as approved by the code official. Interior copper and copper alloy tubing is only allowed to be used between rigid piping and appliances."

(14) Delete subsection 403.5.4 "Aluminum tubing" in its entirety.

(15) Amend subsection 403.5.5 "Corrugated stainless-steel tubing" to read:

"Corrugated stainless steel tubing shall be tested and listed in compliance with the construction, installation and performance requirements of ANSI LC 1/CSA 6.26. Tubing must be continuous from the supply to the demand. No splicing or joining of tubing will be allowed.

All fittings must be continuously accessible.

All fittings and manifolds must be readily accessible. (See definitions)

Installations shall be made in accordance with the manufacture's installation procedures or instructions except where the manufacture's procedures or instructions conflict with this or other sections of this code, as adopted by the City of Huntsville. A copy of the manufacturer's instructions and procedures must be available at the jobsite for review by the code official."

(16) Amend subsection 404.12 "Minimum burial depth" to read:

"Underground piping systems shall be installed a minimum depth of 12 inches below grade, except as provided for in Section 404.12.1. No gas piping shall be placed underground closer than 8 inches from a water pipe or sewer line.

(17) Amend subsection 404.12.1 "Individual outdoor appliances" to read:

Individual gas piping to outdoor lights, grills, other appliance and equipment shall be installed at a minimum depth of 12 inches below finish grade. If a minimum of 12 inches of cover cannot be maintained, the pipe shall be installed in conduit or bridged (shielded). Buried gas metal piping shall be welded connection and properly electrically isolated and protected."

(18) Amend subsection 406.4.1 "Test pressure" to read:

The test pressure to be used shall be not less than 11/2 times the proposed maximum working pressure, with a minimum test pressures as followed:

Low pressure (not in excess of one (1) psig) gas piping shall withstand a pressure of at least ten (10) psig for a period of not less than ten (10) minutes without showing any drop in pressure or as stated in 406.4.2 "test duration".

A two (2) psig gas piping system shall withstand a test of thirty-five (35) psig for a period of not less than thirty (30) minutes.

For a two (2) psig system you must have a connected load of at least 450 MBH and/or approval from the Huntsville Utility Gas Department prior to installation.

Higher pressure (above 2 psig) piping shall withstand a test of at least fifty (50) psig, but never less than twice the maximum operating pressure of the system. The duration of the test shall not be less than twenty-four (24) hours. No drop in pressure will be permitted. A chart of recorded tests shall be provided to the gas inspector.

(19) Amend subsection 409.5.1 "Located within same room" to read:

"Equipment shutoff valves shall be located in the same room as the appliance. The shutoff valve shall be within 6 feet (1829 mm) of the appliance, and shall be upstream of the union, connector or quick disconnect device it serves. Shutoffs must be accessible without removing panels and must be located at the front or side of the appliance and out of the heat source. Appliance shutoff valves located in the firebox of a fireplace shall be installed in accordance with the appliance manufacturer's instructions."

(20) Amend subsection 503.7 "Single-wall metal pipe" to read:

"Single-wall gas vents shall not be used within any building or within five (5) feet of any building within the city limits of the City of Huntsville, unless specified by the equipment manufacturer. Single-wall gas vents where allowed shall comply with Sections 503.7.1 through 503.7.13."

(21) Amend subsection 503.10.1 "Where required" to read:

"A vent connector shall be used to connect an appliance to a gas vent, chimney, or single-wall metal pipe, except where the gas vent, chimney, or single-wall metal pipe directly connected to the equipment. All single-wall metal pipe shall be as short as practical to achieve connection."

(22) Amend subsection 503.10.2.2 "Vent connectors located in unconditioned areas" to read:

"Where the vent connector used for an appliance having a draft hood or a category I appliance is located in or passes through attics, crawl spaces or other unconditioned spaces, that portion of the vent connector shall be listed Type B or Type L or listed vent material or listed material having equivalent insulation properties."

(23) Amend subsection 602.1 "General" to read:

"Decorative appliances for installation in approved solid fuel-burning fireplaces shall be tested in accordance with ANSI Z21.60/CSA 6.26 and shall be installed in accordance with the manufacture's installation instructions."

(24) Amend subsection 602.2 "Flame safeguard device" to read:

"Decorative appliances for installation in approved solid fuel-burning fireplaces shall utilize a direct ignition device, an igniter or a pilot flame to ignite the fuel at the main burner and shall be equipped with a flame safeguard device. The flame safeguard device shall automatically shut off the fuel supply to a main burner or group of burners when the means of ignition of such burners becomes inoperative."

(25) Amend subsection 603.1 "General" to read:

"Log lighters are prohibited."

(26) Amend subsection 609.2 "Placement" to read:

"The following provisions apply to floor furnaces.

(1) *Floors*. Floor furnaces shall not be installed in the floor of any doorway, stairway landing, aisle or passageway of any enclosure, public or private, or in an exit way from any such room or space.

(2) *Walls and corners*. The register of a floor furnace with a horizontal warm-air outlet shall not be placed closer than 6 inches to the nearest wall. A distance of at least 18 inches from adjoining sides of the floor furnace register to walls shall be provided to eliminate the necessity of occupants walking over the warm-air discharge. The remaining sides shall be permitted to be placed not closer than 6

inches to a wall. Wall-register models shall not be placed closer than 6 inches to a corner.

(3) *Draperies*. The furnace shall be placed so that a door, drapery or similar object cannot be nearer than 12 inches to any portion of the register of the furnace.

(4) *Floor construction*. Floor furnaces shall not be installed in concrete floor construction built on grade.

(5) *Thermostat*. The controlling thermostat for a floor furnace shall be located within the same room or space as the floor furnace or shall be located in an adjacent room or space that is permanently open to the room or space containing the floor furnace.

(6) No equipment shall be installed below ground level at installation location. Seepage pans and basins are prohibited."

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 9. NATIONAL ELECTRICAL CODE

Sec. 7-203. Adoption; edition; copies.

(a) Subject to subsection (b), there is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the National Electrical Code, 2017 edition, Article 90 and Chapters 1—9, published by the National Fire Prevention Association, Inc., save and except such portions as are deleted, modified or amended in this; and the provisions of such code shall be controlling as provided in this section.

(b) Any energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in structures shall meet the Alabama Energy Codes, as deleted, modified or amended in division 11.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-204. Deletions, modifications and amendments.

The National Electrical Code, 2017 edition of NFPA 70, Article 90 and Chapters 1—9 as adopted in this division, are deleted, modified and amended as follows:

(1) Add subsection 90.4 (A) "Fees" to read:

Permit valuation shall include total value of the work for which a permit is being issued, such valuation shall include all materials and labor. Before any permit is granted for the installation or alteration of electrical equipment, the person making application for permit shall pay such fee(s) to the City of Huntsville Inspection Department.

The fees for all electrical work shall be as indicated in the following schedule:

(A) For residential one- and two-family dwellings electrical work governed by this code shall be the amount assessed in the following manner:

(a) For New Construction:

(1) For service entrance not exceeding two hundred twenty-five (225) amperes, a permit fee of ($25.00) dollars plus twenty ($.20) cents for each burning opening, toggle switch, or receptacle plus thirty ($.30) cents for each power opening or receptacle.

(2) For service entrance not exceeding four hundred (400) amperes, a permit fee of thirty ($30.00) dollars plus twenty ($.20) cents for each burning opening, toggle switch, or

receptacle plus thirty ($.30) cents for each power opening or receptacle.

(3) For service entrance over four hundred (400) amperes through eight hundred amperes, a permit fee of forty ($40.00) dollars plus twenty ($.20) cents for each burning opening, toggle switch, or receptacle plus thirty ($.30) cents for each power opening or receptacle.

(4) For service entrance exceeding eight hundred (800) amperes, a permit fee of fifty ($50.00) dollars plus one (1) percent of the total contract price.

(b) For additions, alterations, repairs, and service changeovers less than ($1000) dollars total labor and materials and service changeovers less than (800) eight hundred amperes:

One permit fee of ($25.00) dollars plus one (1) percent of the cost of the total contract price.

(c) For additions, alterations, repairs, and service changeovers more than ($1000) dollars total labor and materials and service changeovers more than (800) eight hundred amperes:

One permit fee of forty ($40) dollars plus one (1) percent of the cost of the total contract price.

(d) For a temporary pole permit a fee of $25.00.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(B) For commercial buildings or commercial structures with electrical work governed by this code, shall be the greater of $50.00 or the amount assessed in the following manner:

(a) For new construction of, alterations to, repairs to, and/or additions to, buildings or to other structures multiply total cost of the contract value by .01 (1%).

(b) For low voltage wiring for new construction, renovations, alternations and or repairs of commercial projects total cost of the contract value multiplied by .01 (1%).

(c) For a temporary electrical pole permit for commercial construction the fee shall be $50.00.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(2) Add new subsection 230.85 'Emergency Disconnects" to read:

For one- and two-family dwelling units, all service conductors shall terminate in disconnecting means having a short-circuit current rating equal to or greater than the available fault current, installed in a readily accessible outdoor location.

If more than one disconnect is provided, they shall be grouped. Each disconnect shall be one of the following:

(1) Service disconnect marked as follows:

EMERGENCY DISCONNECT,
SERVICE DISCONNECT

(2) Meter disconnects per 230.82(3) and marked as follows:

EMERGENCY DISCONNECT,
METER DISCONNECT,
NOT SERVICE EQUIPMENT

(3) Other listed disconnect switches or circuit breakers on the supply side of each service disconnect that are suitable for use as service equipment and marked as follows:

EMERGENCY DISCONNECT,
NOT A SERVICE EQUIPMENT

Markings shall comply with 110.21(B)

(3) Amend subsection 440.14 "Location" to read:

"Disconnecting means shall be within 6 feet and readily accessible from the HVAC or refrigerating equipment. The disconnecting means may be installed on or within the HVAC or refrigerating equipment. (See 210.63) The disconnecting means shall not be located on panels that are designed to allow access to the HVAC or refrigeration equipment and shall not cover manufacturers labeling."

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 10. INTERNATIONAL SWIMMING POOL AND SPA CODE

Sec. 7-205. Adoption; edition; copies.

(a) Subject to subsection (b), there is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of establishing rules and regulations within the city for the construction, alteration, equipment, use and occupancy, location, removal and demolition of buildings or structures, including permits and penalties, a certain code known as the International Swimming Pool and Spa Code, 2018 edition, published by the International Code Council, Inc., save and except such portions as are deleted, modified or amended in this division; and the provisions of such code shall be controlling as provided in this section.

(b) Any energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in structures shall meet the Alabama Energy Codes, as deleted, modified or amended in division 11.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-206. Deletions, modifications and amendments.

The International Swimming pool and Spa code, 2018 edition, Chapters 1—11 as adopted in this division, are deleted, modified and amended as follows:

(1) Amend subsection 105.6.2 "Fee Schedule", to read:

Swimming pool permit valuation shall include total value of the work for which a permit is being issued, such as electrical, gas, mechanical, plumbing equipment and other permanent systems, including materials and labor.

The fees for all swimming pool and spa work shall be as indicated in the following schedule:

(A) Building permits for the construction of, alterations to, repairs to, and/or additions to, buildings or other residential structures governed by this code shall be assessed in the following manner:

(a) For new, alterations to, repairs to, and/or additions to, swimming pools and spas for residential structures governed by this code, the permit fee shall be the greater of $25.00 or the amount of the total contract price multiplied by .0055 of the full estimated cost of work for each building or

structure; however, this section shall not apply to the repair of any building whenever the reasonable cost of the material and labor for such repair is not in excess of $250.00 and no structural work is involved.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections.

(B) For commercial swimming pool and spa work governed by this code, shall be the greater of $50.00 or the amount assessed in the following manner:

(a) For new, alterations to, repairs to, and/or additions to, swimming pools and spas for commercial structures governed by this code, the permit fee shall be the greater of $50.00 or the amount of the total contract price multiplied by .0055 of the full estimated cost of work for each building or structure; however, this section shall not apply to the repair of any building whenever the reasonable cost of the material and labor for such repair is not in excess of $250.00 and no structural work is involved.

If for any reason an installation does not pass inspection, an additional inspection shall be made after the installation has been changed so as to conform to the requirements set forth in the article. A re-inspection fee may be charged at the rate as follows: 1st re-inspection $25.00, 2nd re-inspection $50.00, 3rd re-inspection $75.00, 4 or more re-inspections $100.00.

(2) Section [A] "Means of Appeals" shall be deleted in its entirety.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

DIVISION 11. ALABAMA ENERGY CODES

Sec. 7-207. Adoption; edition; copies.

There is hereby adopted, and incorporated herein by reference as if set out at length in this section, for the purpose of regulating the energy-efficient building envelopes and installation of energy-efficient mechanical, lighting and power systems in residential and commercial structures, the International Energy Conservation Code, 2015 Edition, published by the International Code Council, Inc., and the ANSI/ASHRAE/IES Standard 90.1—2013, as such code or standard is or may be amended at any time and from time to time by the rules promulgated by the Alabama Energy and Residential Codes Board, including, but not necessarily limited to, Ala. Admin. Code §§ 305-2-4-.08 and 305-2-4-.10, which such amendments of said board are incorporated herein by reference as if set out at length in this section (which said code and standard as amended by said board are referred to in this article as the "Alabama Energy Codes"); save and except such portions of such Alabama Energy Codes as are deleted, modified or amended in this division; and the provisions of such codes shall be controlling as provided in this section.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Sec. 7-208. Deletions, modifications and amendments.

The Alabama Energy Codes, as adopted in this division, are deleted, modified and amended as follows:

(1) Compliance with the Alabama Energy Codes must be verified by a State of

Alabama Licensed Third-Party Energy Consultant or by a State of Alabama Registered Design Professional.

(2) Alabama Energy Codes compliance steps throughout the construction process.

a. *Step one:* Prior to beginning construction and/or at plan review submission for all project other than residential one- and two-family dwellings, the building permit applicant/designer is required to submit a simple document confirming that the proposed project design is in compliant with the Alabama Energy Codes.

b. *Step two*: Submit a simple document from your chosen energy verifier to confirm that compliance is achieved in concealed spaces prior to requesting a framing inspection and applying drywall. (Inspection requests for a framing inspection will not be accepted without this documentation.)

c. *Step three*: Before the certificate of occupancy can be issued, a final energy certificate confirming the project is in full compliance with the Alabama Energy Codes must be submitted from energy verifier.

(Ord. No. 21-1006, § 2, 11-18-2021, eff. 1-1-2022)

Secs. 7-209—7-310. Reserved.

ARTICLE V. MINIMUM HOUSING STANDARDS*

DIVISION 1. GENERALLY

Sec. 7-311. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Words not defined in this section shall have the meanings stated in the applicable building codes as may be adopted and amended by the City of Huntsville. Words not defined in the standard codes or in this section shall have the meanings in Webster's Ninth New Collegiate Dictionary, as revised. Whenever, the terms "dwelling," "dwelling units," "rooming units," and "premises" are used in this article, they shall be construed as though they were followed by the words, "or any part thereof."

Abandoned motor vehicle means one that is in a state of disrepair or is incapable of being moved under its own power.

Accessory structure means any secondary structure, the use of which is incidental to that of the main dwelling or dwelling unit, used, designed or intended to be used for the storage of items or materials associated with human habitation or used, designed or intended to be used in support of human habitation, including but not limited to garages, sheds, barns and storage buildings.

Addition means any extension or increase in floor area or height of a building structure.

Alter and *alteration* mean any change or modification in construction or occupancy.

Apartment means any dwelling unit.

Apartment house means any building used as a multiple dwelling for the purpose of providing three or more separate dwelling units which may share means of egress and other essential facilities.

Applicable governing body means the city.

Approved means approved by the housing official, or other authority having jurisdiction, of the city.

Basement means that portion of a building between floor and ceiling, which is partly below and partly above grade, but so located that the vertical distance from the grade to the floor below is less than the vertical distance from grade to ceiling; however, the distance from grade to ceiling shall be at least four feet, six inches.

*__State law reference—__Building maintenance standards authorized, Code of Ala. 1975, § 11-53-2.

Board means the housing board of adjustments and appeals.

Building(s) means any structure built for the support, shelter or enclosure of persons, animals, chattels or property of any kind which has enclosing walls for 50 percent or more of its perimeter. For the purpose of this article, each portion of a building separated from other portions by a fire wall shall be considered as a separate building.

Building official means the manager of inspection of the city or the duly authorized representative of that official.

Cellar means that portion of a building the ceiling of which is entirely below grade or is less than four feet six inches above grade.

Chief administrator means the mayor.

Department means the code enforcement division of the department of community development of the city.

Department of law means the city attorney.

Dormitory means a space in a unit where group sleeping accommodations are provided with or without meals for persons not members of the same family group, in one room, or in a series of closely associated rooms under joint occupancy and single management, as in college dormitories, fraternity houses, military barracks and ski lodges.

Dwelling means, when used in this article without other qualifications, a building occupied exclusively for residential purposes by not more than two families.

Dwelling unit means a single unit providing complete, independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation.

Egress means an exit or means of getting out from a building, structure, dwelling, dwelling unit or room.

Extermination means the control and extermination of insects rodents or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; or by poisoning, spraying fumigating, trapping or by any other recognized and legal pest elimination method.

Family means one or more persons living together, whether related by birth, marriage or adoption, and having common housekeeping facilities.

Fire official means the chief of the fire department of the city or the duly authorized representative of that official.

Floor area means the total area of habitable space in a building or structure.

Garbage means the animal and/or vegetable waste resulting from the handling, storage, preparation, cooking, serving or consumption of food.

Habitable room means a space in a building for living, sleeping, eating or cooking. Bathrooms, toilet compartments, closets, halls, storage or utility space and similar areas are not considered habitable rooms.

Hotel means any building containing six or more guestrooms intended or designed to be used, or which are used, rented or let out to be occupied, or which are occupied for sleeping purposes by guests.

Housing official means the manager of the department of community development of the city or the duly authorized representative of that official.

Infestation means the presence of any insects, rodents or other pests within or around a dwelling or dwelling unit.

Inspection division and *department* mean the inspection division of the city.

Manufactured home means any mobile home, house trailer or any other structure, excluding modular homes or structures, transportable in one or more sections, which in the traveling mode, is eight or more feet in width and 40 or more feet in length, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating and electrical systems.

Multiple dwelling means any building which is occupied as the home or residence of more than two families living independently of each other and doing their own cooking in the building, and shall include flats and apartments.

Nuisance means and includes the following:

(1) Any public nuisance known at common law or in equity jurisprudence.

(2) Any attractive nuisance which may be detrimental to children, whether in a building or structure, on the premises of a building or structure, or upon an unoccupied lot. This includes but is not limited to abandoned wells, shafts, basements, or excavations; abandoned refrigerators or iceboxes; abandoned motor vehicles; any structurally unsound fences or structures; or any lumber, trash, fence, debris, litter or vegetation which may prove hazardous for inquisitive minors.

(3) Whatever is dangerous to human life or is detrimental to health or safety, as determined by the housing, building, or health official.

(4) Overcrowding a room with occupants.

(5) Insufficient ventilation or illumination.

(6) Inadequate or unsanitary sewer or plumbing facilities.

(7) Inadequate or obstructed means of egress.

(8) Whatever renders air, food or drink unwholesome or detrimental to the health of human beings, as determined by the housing, building, or health official.

Occupancy means the purpose for which a building or portion thereof is utilized or occupied.

Occupant means any individual living or sleeping in a building or using or having possession of a space within a building.

Openable area means that part of a window or door that is available for unobstructed ventilation and which opens directly to the outdoors.

Operator means any person who has charge, care or control of a building in which dwelling units or rooming units are let.

Owner means the holder of the title in fee simple and any person, group of persons, firm, company, association or corporation in whose name tax bills on a property is submitted. It shall also mean any person who, alone or jointly or severally with others, has:

(1) Legal title to any dwelling or dwelling unit, with or without accompanying actual possession; or

(2) Charge, care or control of any dwelling or dwelling unit as owner, executor, administrator, trustee, guardian of the estate of the owner, mortgagee or vendee in possession, or assignee of rents, lessee or other person in control of a building; or their duly authorized agents.

Any such person representing the actual owner shall be bound to comply with the provisions of this article, and of rules and regulations adopted pursuant to this article, to the same extent as if he were the owner. It is his responsibility to notify the actual property owner of the reported infractions or violations of the regulations pertaining to the subject property.

Person means an individual, corporation, partnership or any other group acting as a unit.

Plumbing means the practice, materials and fixtures used in the installation, maintenance, extension or alteration of all piping, fixtures, appliances and appurtenances in connection with any of the following: sanitary drainage or storm drainage facilities, the venting system and the public or private water supply systems, within or adjacent to any building, structure or conveyance; also, the practice and materials used in the in-

stallation, maintenance, extension or alteration of storm water, liquid waste or sewage, and water supply systems of any premises to their connection with any point of public disposal or other acceptable terminal.

Premises means a lot, plot or parcel of land, including its building or structures.

Public area means an unoccupied open space adjoining a building and on the same property, that is permanently maintained accessible to the fire department and free of all encumbrances that might interfere with its use the by fire department.

Repair means the replacement of existing work with the same kind or type of material used in the existing work, not including additional work that would change the structural safety of the building or structure, or that would affect or change required exit facilities, a vital element of an elevator, plumbing, gas piping, wiring of heating installations, or that would be in violation of a provision of law or ordinance. The term "repair" or "repairs" shall not apply to any changes of construction.

Required means required by some provision of this article or another applicable code of the city.

Residential building means a building in which families or households live or in which sleeping accommodations are provided, and all dormitories. Such building shall include but are not limited to dwellings, multiple dwellings and rooming houses.

Rooming unit means any room or group of rooms forming a single habitable unit used or intended to be used for living and sleeping, but not for cooking or eating purposes.

Rooming house means any dwelling, or that part of any dwelling, containing two or more rooming units in which space is let by the owner or operator to three or more persons who are not husband and wife, son or daughter, mother or father, or sister or brother of the owner or operator.

Rubbish means combustible and noncombustible waste materials, except garbage, including the residue from the burning of wood, coal, coke or other combustible material, paper, rages, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin can, metals, mineral matter, glass, crockery, litter, scrap and junk.

Stairway means one or more flights of stairs and the necessary landings and platforms connecting them to form a continuous and uninterrupted passage from one story to another of a building or structure.

Story means that section or level of a building or structure included between the upper surface of a floor and the upper surface of the floor or roof next above.

Structure means that which is built or constructed, an edifice or building of any kind, or any piece of work that is built, erected or composed of parts joined or fastened together in some manner.

Supplied means paid for, furnished or provided by or under the control of an owner or operator.

Temporary housing means any tent, trailer or other structure used for human shelter which is designed to be transportable and which is not attached to the ground, to another structure, or to any utilities system on the same premises for more than 30 days.

Tenant means a person, corporation, partnership or group, whether or not the legal owner of record, occupying or using a building or portion thereof.

Unsafe equipment means equipment, which shall include but not be limited to any water heater, boiler, heating device, electrical wiring, electrical device or any other equipment on a premises or within a structure which is in disrepair, damaged, improperly installed, or in a condition that such equipment is a potential hazard to life, health, property or safety of the public or occupants of the premises or structure.

Unsafe building or *structure* means a building or structure that is found to be dangerous to the life, health, property or safety of the public or the occupants of the structure by containing unsafe equipment, or lacks required safety or sanitary equipment or facilities, or other required essential facilities or equipment, or the building or structure or any part thereof has been damaged by fire, flood, earthquake, wind or other cause so

that the structural integrity of the building or structure is less than it was prior to the damage and is less than the minimum requirement of the applicable building codes of the city, or is occupied without operable utility services, if required, or lacks permanent, properly installed, approved, heating facilities, or lacks egress of adequate size, or the egress is not arranged to provide a safe path of travel in case of fire or panic, or the means of egress or any part thereof, such as fire doors or closing devices, is in disrepair or nonworking condition and could be rendered unsafe in case of fire or panic, or the building or structure is so damaged, decayed, dilapidated, structurally unsafe, or is of faulty construction so that partial or complete collapse is possible, or the building or structure is being maintained in violation of a health and safety code of the city, or the building or structure is unfit for human occupancy or use due to disrepair or lack of maintenance, or is unsanitary, or is vermin or rat infested, or contains filth and contamination, or the building or structure is vacant or abandoned and is standing open and accessible by the public, or the building or structure is in such condition as to constitute a public or attractive nuisance, or the building or structure constitutes a hazard to safety or health by reason of inadequate maintenance, disrepair, dilapidation, obsolescence, or abandonment.

Value and *valuation*, as applied to a building or structure, mean the estimated cost to replace the building or structure in kind.

Ventilation means the process of supplying and removing air by natural or mechanical means to and from any space.

Yard means an unoccupied open space other than a court.
(Ord. No. 90-174, §§ 201, 202, 4-26-1990; Ord. No. 07-171, § 1, 3-8-2007)

Cross reference—Definitions generally, § 1-2.

Sec. 7-312. Remedial.

This article is declared to be remedial and shall be construed to secure its beneficial interests and purposes, which are public safety, health and general welfare through structural strength, stability, sanitation, adequate light and ventilation, and safety to life and property from fire and other hazards incident to the construction, alteration, repair, removal, demolition, use or occupancy of residential buildings and accessory structures.
(Ord. No. 90-174, § 101.2, 4-26-1990)

Sec. 7-313. Scope.

(a) The provisions of this article shall apply to all buildings, all accessory structures located on residential property, used or unused, designed or intended to be used for human habitation or the storage of materials associated with human habitation.

(b) This article establishes minimum standards for occupancy and does not replace or modify standards otherwise established for construction, replacement or repair of buildings except such as are contrary to the provisions of this article.

(c) Buildings or structures moved into or within the jurisdiction shall comply with the requirements of the applicable building code as adopted by the City of Huntsville for new buildings to the extent determined by the building official.
(Ord. No. 90-174, § 101.3, 4-26-1990; Ord. No. 07-171, § 2, 3-8-2007)

Sec. 7-314. Existing buildings.

(a) Alterations, repairs or rehabilitation work may be made to any existing building without requiring the building to comply with all the requirements of this article provided the alteration, repair or rehabilitation work conforms to the requirements of this article for new construction. The housing official shall determine, subject to appeal to the board of adjustments and appeals, the extent, if any, to which the existing building shall be made to conform to the requirements of this article for new construction.

(b) Alterations, repairs or rehabilitation work shall not cause an existing building to become unsafe as defined in section 7-352.

(c) If the occupancy classification of an existing building or structure is changed, the building or structure shall be made to conform with the requirements for the new occupancy classification as determined by the building official.

(d) Repairs and alterations, not covered by the preceding subsections of this section, restoring a building to its condition previous to damage or deterioration, or altering it in conformity with the provisions of this article or in such manner as will not extend or increase an existing nonconformity or hazard, may be made with the same kind of materials as those of which the building is constructed, but not more than 25 percent of the roof covering of a building shall be replaced in any period of 12 months unless the entire roof covering is made to conform with the requirements of this article for new buildings.
(Ord. No. 90-174, § 101.4, 4-26-1990)

Sec. 7-315. Special historic buildings and districts.

The provisions of this article relating to the construction, alteration, repair, enlargement, restoration, relocation or moving of buildings or structures shall not be mandatory for existing buildings or structures identified and classified by the state or local jurisdiction as historic buildings when such buildings or structures are judged by the housing official to be safe and in the public interest of health, safety and welfare regarding any proposed construction, alteration, repair, enlargement, restoration, relocation or moving of buildings within fire districts. The applicant must submit complete architectural and engineering plans and specifications bearing the seal of a registered professional engineer or architect.
(Ord. No. 90-174, § 101.5, 4-26-1990)

Sec. 7-316. Maintenance.

(a) All buildings or structures, both existing and new, shall be maintained in a sanitary and safe condition. All devices or safeguards which are required by this article in a building when erected, altered or repaired shall be maintained in good working order. All fixtures, devices or attachments to a building or structure shall be properly installed, maintained and kept in good working order and free from defects. The owner or his agent shall be responsible for the maintenance of buildings, structures and premises.

(b) All mobile homes, house trailers and manufactured homes, whether used or unused, designed or intended to be used for human habitation shall be maintained in a safe and sanitary condition. All devices, systems, facilities, safeguards, structural members or other parts shall be properly installed, maintained and kept in good working order. Unless otherwise required, repairs necessary to restore the structure to its original condition prior to any decay, deterioration or damage may be made with the same kind, type and size of materials with which the structure was constructed, provided such repairs and materials meet the minimum standards set forth by the HUD Manufactured Home Standards Program.
(Ord. No. 90-174, § 101.6, 4-26-1990)

Sec. 7-317. Application of zoning ordinance.

Nothing in this article shall be construed to cancel, modify or set aside any provision of the zoning ordinance (app. A of this Code) of the authority having jurisdiction.
(Ord. No. 90-174, § 101.7, 4-26-1990)

Sec. 7-318. Violations and penalties.

Any person who shall violate a provision of this article, or fail to comply with this article, or with any of its requirements, or who shall erect, construct, repair, alter, demolish, or move any building or structure, or has erected, constructed, repaired, altered, demolished or moved any building or structure in violation of this article shall be guilty of a misdemeanor. Each such person shall be deemed guilty of a separate offense for each and every day, or portion of a day, during which a violation of any provision of this article is committed or continued, and, upon conviction of such violation, shall be punished as provided in section 1-7.
(Ord. No. 90-174, § 108, 4-26-1990)

Secs. 7-319—7-340. Reserved.

DIVISION 2. ADMINISTRATION AND ENFORCEMENT*

Sec. 7-341. Enforcement officer.

There is established by the applicable governing body provisions for the enforcement of this article by the housing official.
(Ord. No. 90-174, § 102.1, 4-26-1990)

Sec. 7-342. Restrictions on employees.

An officer or employee of the code enforcement division shall not be financially interested in the furnishing of labor, materials or appliances for the construction, alteration, repair, or maintenance of a building, or in the making of plans or specifications for a building unless he is the owner of the building. Such officer or employee shall not engage in any work or activity which is inconsistent with his duties or with the interests of the department.
(Ord. No. 90-174, § 102.2, 4-26-1990)

Sec. 7-343. Records.

The housing official shall keep or cause to be kept a record of the business of the department.
(Ord. No. 90-174, § 102.3, 4-26-1990)

Sec. 7-344. Right of entry.

(a) The housing official shall enforce the provision of this article; and he, or his duly authorized representative, upon presentation of proper identification to the owner, agent or tenant in charge of such property, may enter any building, structure, dwelling, apartment, apartment house or premises, during all reasonable hours, except in cases of emergency where extreme hazards are known to exist which may involve the potential loss of life or severe property damage, in which case these limitations do not apply.

(b) No person, owner, or occupant of any building, structure, or premise shall refuse to permit entry into any building, structure, or premises or onto any property by the housing official or his authorized representative after proper credentials are displayed at a reasonable hour for the purpose of inspections pursuant to this article. Any person violating this section shall be guilty of a misdemeanor and subject to the fines and penalties as stated in section 1-7 of this Code.
(Ord. No. 90-174, § 103.1, 4-26-1990; Ord. No. 07-171, § 3, 3-8-2007)

*__Cross reference—__Administration, ch. 2.

Sec. 7-345. Requirements not covered by article.

Any requirement, not specifically covered by this article found necessary for the safety, health and general welfare of the occupants of any dwelling shall be determined by the housing official subject to appeal to the housing board of adjustments and appeals.
(Ord. No. 90-174, § 103.3, 4-26-1990)

Sec. 7-346. Liability.

Any officer or employee, or member of the housing board of adjustments and appeals, charged with the enforcement of this article, in the discharge of his duties shall not thereby render himself liable personally, and he is relieved from all personal liability for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his duties. Any suit brought against any officer or employee because of this article shall be defended by the department of law until the final termination of the proceedings.
(Ord. No. 90-174, § 103.4, 4-26-1990)

Sec. 7-347. Reports.

The housing official shall annually submit a report to the chief administrator covering the work of the department during the preceding year. He shall incorporate in that report a summary of the decisions of the housing board of adjustments and appeals during the year.
(Ord. No. 90-174, § 103.5, 4-26-1990)

Sec. 7-348. Letter of compliance.

A letter indicating compliance with the provisions of this article may, upon request, be issued by the housing official.
(Ord. No. 90-174, § 103.6, 4-26-1990)

Sec. 7-349. Permits.

Any owner, authorized agent or contractor who desires to construct, enlarge, alter, repair, move, demolish or change a building or structure, or to cause any such work to be done, shall first make application to the inspection division of the city and obtain the required permit.
(Ord. No. 90-174, § 110, 4-26-1990)

Sec. 7-350. Inspections.

The housing official, fire official, building official, or other authorized representatives shall make or cause to be made inspections to determine the condition of residential buildings and premises in the interest of safeguarding the health and safety of the occupants of such buildings and of the general public. For the purpose of making such inspections, the housing official, or his agent, is authorized to enter, examine and survey at all reasonable times all residential buildings and premises. The owner or occupant of every residential building or the person in charge shall give the housing official free access to such residential building and its premises at all reasonable times for the purpose of such inspection, examination and survey.
(Ord. No. 90-174, § 104, 4-26-1990; Ord. No. 07-171, § 4, 3-8-07)

Sec. 7-351. Hardships.

Where the literal application of the requirements of this article would appear to cause undue hardship on an owner or tenant or when it is claimed that the true intent and meaning of this article or any of the regulations in this article have been misconstrued or wrongly interpreted, the owner of such building or structure, or his duly authorized agent, may appeal the decision of the housing official to the housing board of adjustments and appeals, as set forth in section 7-354.
(Ord. No. 90-174, § 105, 4-26-1990)

Sec. 7-352. Substandard residential buildings.

(a) Substandard shall mean a structure that does not meet the requirements of Division 3, Minimum Standards for Basic Equipment and Facilities, of this article. For a structure in violation of the minimum standards as set out in Division 3 of this article to be classified as substandard, the deficiencies which are present must not be so severe as to create an unsafe condition.

(b) Whenever the housing official determines that there are reasonable grounds to believe there has been a violation of this article or any rule or regulation adopted pursuant to this article, which causes a property to be in a substandard condition, he shall give notice of such alleged violation to the responsible person. Such notice shall:

(1) Be in writing.

(2) Include a listing of the violations.

(3) Allow 120 days time from the date the notice is issued to make the required repairs.

(4) State that, if violations are not corrected within the stated time, the housing official may institute legal proceedings charging the person with a violation of this article.

(c) *Service of notice* shall be as follows:

(1) By delivery to the owner personally, or by leaving the notice at the usual place of abode of the owner with a person of suitable age and discretion; or

(2) By depositing the notice in the United States Postal Service addressed to the owner at his last known address with postage prepaid; or

(3) By posting and keeping posted for 24 hours a copy of the notice in a conspicuous place on the premises to be repaired.

(d) When a residential building is to be demolished, it shall be done in accordance with the provisions of Alabama Code Section 11-40-30 *et seq.*, as may be amended.
(Ord. No. 90-174, § 103.2, 4-26-1990; Ord. No. 07-171, § 5, 3-8-2007)

Cross reference—Weed lien and unsafe building demolition assessment, § 14-4.

Sec. 7-353. Designation of unfit dwellings and legal procedure for condemnation.

Any dwelling, dwelling unit or accessory structure which is so damaged, decayed, dilapidated, unsanitary, vermin-infested or unsafe that it creates a hazard to the health or safety of the occupants or the public, or one which lacks illumination, ventilation, or sanitary facilities adequate to protect the health or safety of the occupants or the public, or otherwise meets the definition of unsafe building as defined in this article shall be condemned as unfit for human habitation and shall be declared an unsafe building. Procedures for such condemnation and abatement shall be carried out in the following manner:

(1) *Notice.* The housing official shall prepare and issue a notice of unsafe building directed to the owner or mortgagee of record of the building or structure. The notice shall contain, but not be limited to, the following information:

a. The street address and legal description of the building, structure or premise.

b. A statement indicating that the building or structure has been declared unsafe by the housing official, and a detailed report documenting the conditions determined to have rendered the building or structure unsafe.

c. A statement advising that the owner has the option to repair or demolish the structure, and

1. If the building or structure is to be repaired, all necessary permits shall be acquired and work commenced within 30 days from the issue date of the notice and work completed within 60 days from the issue date of the notice.

2. If the building or structure is to be demolished, all required permits for demolition shall be acquired and work commenced within 30 days from the issue date of the notice and the demolition completed within 60 days from the issue date of the notice.

d. A statement advising that any person having legal interest in the property may appeal the notice by the housing official to the housing board of adjustments and appeals.

(2) *Service of notice.* Service of notice shall be as follows:

a. By delivery to the owner or mortgagee personally, or by leaving the notice at the usual place of abode of the owner with a person of suitable age and discretion; or

b. By certified mail, postage prepaid, return receipt requested, to each person at the address as it appears on file with the tax collector's office. If the addresses are not available on any person required to be served notice, the notice addressed to such person shall be mailed to the address of the building or structure which is the subject of the notice; or

c. By posting, within three days of the date of the mailing, a copy of the notice within three feet of an entrance to the building or structure. If there is no entrance, the notice may be posted in any conspicuous place on the premises which are the subject of the notice.

(Ord. No. 90-174, § 309, 4-26-1990; Ord. No. 07-171, § 6, 3-8-2007)

Sec. 7-354. Occupancy prohibited.

(a) Once the housing official designates a building or structure as unsafe he shall immediately post a placard of such finding at the location of the building or structure. Any person who shall remove or who shall allow the removal of the placard designating the premises as unsafe shall be guilty of a misdemeanor and subject to the fines and penalties as stated in section 1-7 of this Code.

(b) Any person who shall occupy a designated unsafe structure or any owner or other person responsible for the premises who allows any person or animal, as defined in section 5-1 of this Code, to occupy or enter a designated unsafe structure shall be guilty of a misdemeanor and subject to the fines and penalties as stated in section 1-7 of this Code.

(Ord. No. 90-174, § 106, 4-26-1990; Ord. No. 07-171, § 7, 3-8-2007; Ord. No. 18-622, § 1, 8-23-2018)

Cross reference—Boards, commissions, committee and authorities, § 2-1291 et seq.

Sec. 7-355. Housing board of adjustments and appeals.

(a) There is created a board to be known as the housing board of adjustments and appeals, consisting of seven members appointed by the city council. The members shall be residents of the governed area. Members shall be appointed for a term of five years. Vacancies and unexpired terms shall be filled in the same manner as original appointments are made. Any one or more members of the board shall be subject to removal or replacement by the appointing authority. The members of the board shall serve without compensation.

(b) The members of the housing board shall elect a chairman and a vice-chairman. The housing official or his designated representative shall act as secretary to the board, but shall not be a member of the board.

(c) The board shall establish a date for meetings each month on which date all appeals or requests for extension of time on file shall be considered and acted upon by the board. Regular or special meetings may be called by the chairman at any time. Reasonable notice of the place, time and date of such meetings shall be given to all the board members and all interested parties in each case to be heard by the board.

(d) All minutes of the board meeting shall be public records, and the secretary to the board shall keep all records and perform such additional duties as the board may deem proper.

(e) The duties of the housing board of adjustments and appeals shall be to:

(1) Consider and determine appeals whenever it is claimed that the true intent and meaning of this article or any of its regulations have been misconstrued or wrongly interpreted.

(2) Permit, in appropriate cases where the application of the requirement of this article in the allowance of the stated time for the performance of any action required under this article would appear to cause undue hardship on an owner, one or more extensions of time, not to exceed 120 days each, from the date of such decision of the board. Applications for additional extensions of time shall be heard by the board. Such requests for extensions of time shall be filed with the housing official not less than 30 days prior to the current final date for compliance.

(f) An appeal shall not be considered where an appeal case has been previously decided involving the same violation.

(g) The housing board of adjustments and appeals shall establish its own rules of procedure for accomplishment of its duties and functions, but such rules shall not be in conflict with the provisions of this article and the laws of the state.

(h) All decisions of the housing board of adjustments and appeals to vary the application of any provision of this article or to modify an order of the housing official shall specify in what manner such variance or modification is made, the condition upon which it is made, and the reasons. Every decision shall be in writing. A copy of all decisions shall be promptly filed in the office of the housing official and shall be open to public inspections. The secretary shall notify the appellant in writing of the final action of the board.

(i) Any decision rendered by the housing board of adjustments shall constitute a final and binding decision for purposes of appeal.

(j) Any person who fails to appear at a hearing set in accordance with the provisions stated in this article shall constitute a waiver of his

right to an administrative hearing on all violations contained within the disputed official notice. (Ord. No. 90-174, § 107, 4-26-1990; Ord. No. 07-171, § 8, 3-8-2007)

Sec. 7-356. Appeals.

Any person receiving written notice from the housing official of deficiencies in his property

under this article may, within 21 days following the date of such notice, enter an appeal in writing to the housing board of adjustments and appeals. Such appeal shall be signed by all appellants and shall:

(1) Identify the subject building or structure by street address or legal description;

(2) Identify the appellant's legal interest in the subject building or structure;

(3) Identify the specific housing official order or the specific section of these articles being appealed and the number of the official notice issued by the housing official;

(4) Identify the official mailing address of all appellants.

If a variance or modification is requested, the appellant must state the variance or modification requested, the reasons, and the hardship or conditions upon which the appeal is made.
(Ord. No. 07-171, § 9, 3-8-2007)

Sec. 7-357. Violations, interference, and failure to comply with final order.

(a) Any owner, person, agent, manager, operator, firm or corporation who shall violate a provision of this article, or fail to comply therewith, or with any of the requirements thereof, or who shall erect, construct, alter, demolish or move any building or structure, or has erected, constructed, altered, repaired, moved or demolished a building or structure in violation of this article shall be guilty of a separate offense for each and every violation of the provisions of this article and for each and every day that the violation continues, and shall be guilty of a misdemeanor and subject to the fines and penalties as stated in section 1-7 of this Code.

(b) Any person who obstructs or interferes with the implementation of any action required by the final order of the housing official or the board of adjustment shall be guilty of a misdemeanor and subject to the fines and penalties as stated in section 1-7 of this Code.

(c) Any owner who after an order of the housing official or the decision of the board of adjustment becomes final fails or refuses to comply with such order shall be guilty of a misdemeanor and shall be subject to the fines and penalties as set forth in section 1-7 of this Code.
(Ord. No. 07-171, § 10, 3-8-2007)

Secs. 7-358—7-380. Reserved.

DIVISION 3. MINIMUM STANDARDS FOR BASIC EQUIPMENT AND FACILITIES

Subdivision I. In General

Sec. 7-381. Compliance required.

No person shall occupy as owner-occupant or let or sublet to another for occupancy any dwelling or dwelling unit designed or intended to be used for the purpose of living, sleeping, cooking, or eating; nor shall any vacant dwelling building be permitted to exist which does not comply with the requirements of this division.
(Ord. No. 90-174, § 301, 4-26-1990)

Sec. 7-382. Roominghouses.

(a) *Compliance exceptions.* No person shall operate a roominghouse, or shall occupy or let to another for occupancy any rooming unit in any roominghouse, except in compliance with the provisions of every section of this article except for the provisions of sections 7-381, 7-383 and 7-388.

(b) *License required.* No person shall operate a roominghouse unless he holds a valid roominghouse license.

(c) *Water closet, lavatory and bath facilities.* At least one flush water closet, lavatory basin and bathtub or shower, properly connected to water and sewer system and in good working condition, shall be supplied for each four rooms within a roominghouse wherever such facilities are shared. All such facilities shall be located on the floor they serve within the dwelling so as to be reasonably accessible from a common hall or passageway to all persons sharing such facilities.

(d) *Water heater required.* Every lavatory basin and bathtub or shower shall be supplied with hot water at all times.

(e) *Minimum floor area for sleeping purposes.* Every room occupied for sleeping purposes by one person shall contain at least 70 square feet of floor space. Every room occupied for sleeping purposes by more than one person shall contain at least 50 square feet of floor space for each occupant.

(f) *Exit requirements.* Every rooming unit shall have safe, unobstructed means of egress leading to safe and open space at ground level, as required by the building code of the applicable governing body.

(g) *Sanitary conditions.* The operator of every roominghouse shall be responsible for the sanitary maintenance of all walls, floors and ceilings, and for maintenance of a sanitary condition in every other part of the roominghouse, and shall be further responsible for the sanitary maintenance of the entire premises where the entire structure or building is leased or occupied by the operator.
(Ord. No. 90-174, § 308, 4-26-1990)

Sec. 7-383. Facilities required.

(a) *Sanitary facilities.* Every dwelling unit shall contain not less than a kitchen sink, lavatory, tub or shower, and a water closet, all in good working condition and properly connected to an approved water and sewer system. Every plumbing fixture and water and waste pipe shall be properly installed and maintained in good sanitary working condition free from defects, leaks and obstructions.

(b) *Location of sanitary facilities.* All required plumbing fixtures shall be located within the dwelling unit and be accessible to the occupants. The water closet, tub or shower, and lavatory shall be located in a room affording privacy to the user by means of a properly installed and fitted door, complete with proper hardware in good working order. Bathrooms shall be accessible from habitable rooms, hallways, corridors, or other protected or enclosed areas. Bathrooms shall not open directly into or from a kitchen or other food preparation area.

(c) *Hot and cold water supply.* Every dwelling unit shall have connected to the kitchen sink, lavatory, and tub or shower an adequate supply of both cold and hot water. All water shall be supplied through an approved distribution system connected to a potable water supply.

(d)*Water heating facilities.* Every dwelling unit shall have water heating facilities which are properly installed and maintained in a safe and good working condition and capable of heating water to such a temperature as to permit an adequate amount of water to be drawn at every required kitchen sink, lavatory basin, bathtub or shower at a temperature not less than 120 degrees Fahrenheit. Minimum storage capacity of such water heating facilities shall be equivalent to 30 gallons (104l). Such water heating facilities shall be capable of meeting the requirements of this subsection when the dwelling or dwelling unit heating facilities are not in operation. Apartment houses may use a centralized water heating facility capable of heating an adequate amount of water as required by the applicable plumbing code as adopted by the city (division 6, article IV of this chapter) to not less than 120 degrees Fahrenheit.

(e) *Heating facilities.*

(1) Every dwelling unit shall have permanent heating facilities which are capable of safely and adequately heating all habitable rooms and bathrooms to a temperature of 68 degrees Fahrenheit at a distance three feet above floor level, under minimum winter conditions.

(2) All heating appliances, equipment and systems and their parts shall be properly installed and maintained in accordance with the provisions of the applicable code of the inspection division of the city, whether gas, electric, mechanical, or any other.

(3) Unvented fuel burning heaters shall be prohibited except for gas heaters listed for unvented use and the total input rating of

the unvented heaters is less than 30 Btu per hour per cubic foot of room content. Unvented fuel burning heaters shall be prohibited in bedrooms or in any area used for sleeping.

(f) *Kitchen facilities.* Every dwelling unit shall have a kitchen area equipped with the following minimum facilities:

(1) Food preparation surfaces that are impervious to water and free from defects which might trap food or liquids.

(2) Cabinets, shelving or drawers for the storage of food, cooking utensils and eating utensils.

(3) Properly installed facilities for the installation of a permanent or freestanding cookstove, either electric or gas. Portable electric cooking equipment shall not fulfill this requirement.

(4) All cooking equipment shall be maintained in a safe and good working condition. Portable cooking equipment employing flame shall be prohibited.

(g) *Garbage disposal facilities.* Every dwelling unit shall have adequate garbage disposal facilities or garbage storage containers, of a type and location approved by the city.

(h) *Fire protection.* A person shall not occupy as owner-occupant or let to another for occupancy any building or structure which does not comply with the applicable provisions of the fire prevention code of the city (article II of chapter 13).

(i) *Smoke detector systems.* Every dwelling unit shall be provided with an approved smoke detector, continuously powered by the electrical service of the dwelling unit, and installed in accordance with the electrical and fire prevention codes of the city (division 3, article IV of this chapter and article II of chapter 13). When activated, the detector shall initiate an alarm which is audible in all rooms used for sleeping. Single-family dwellings constructed prior to August 1, 1985, that are occupied by the owner may use smoke detectors powered by batteries.
(Ord. No. 90-174, § 302, 4-26-1990; Ord. No. 07-171, § 11, 3-8-2007)

Sec. 7-384. Light and ventilation.

(a) *Windows.* Every habitable room shall have at least one window or skylight facing directly to the outdoors. The minimum total window area, measured between stops, for every habitable room shall be eight percent of the floor area of such room. Whenever walls or other portions of structures face a window of any such room and such light-obstructing structures are located less than three feet from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area. Whenever the only window in a room is a skylight-type window in the top of such room, the total window area of such skylight shall be equal to at least 15 percent of the total floor area of the room.

(b) *Ventilation.*

(1) Every habitable room shall have at least one window or skylight which can easily be opened, or such device as will adequately ventilate the room. The total openable window area in every habitable room shall equal at least 45 percent of the minimum window area size or minimum skylight-type window size, as required, or shall have other approved, equivalent ventilation.

(2) Year-round mechanically ventilating conditioned air systems may be substituted for windows, as required in this section, in rooms other than rooms used for sleeping purposes. Window-type air conditioning units are not included in this exception.

(c) *Bathroom.* Every bathroom shall comply with the light and ventilation requirements for habitable rooms, except that no window or skylight shall be required in adequately ventilated bathrooms equipped with an approved ventilating system.

(d) *Electric lights and outlets.* Where there is electric service available to the building structure, every habitable room or space shall contain at least two separate and remote electrical receptacle outlets. Bedrooms shall have, in addition, at

least one wall switch controlled lighting fixture or outlet. In kitchens, two separate and remote electrical receptacle outlets and a wall or ceiling type lighting fixture controlled by a wall switch shall be required. An electrical receptacle outlet rendered inaccessible by appliances shall not be considered as one of the required outlets in a kitchen area. Every hall, water closet compartment, bathroom, laundry room or furnace room shall contain at least one wall or ceiling type light fixture. In bathrooms and water closet compartments, the light fixture shall be controlled by a wall switch. In addition to the light fixture in every bathroom and laundry room, there shall be provided at least one electrical receptacle outlet. Any bathroom, kitchen or outside electrical receptacle outlet shall have ground-fault circuit interrupter (GFI) protection.

(e) *Light in public halls and stairways.* Every common hall and inside stairway in every building, other than one-family dwellings, shall be adequately lighted at all times with an illumination of at least one footcandle intensity at the floor in the darkest portion of the normally traveled stairs or passageway.
(Ord. No. 90-174, § 303, 4-26-1990; Ord. No. 07-171, § 12, 3-8-2007)

Sec. 7-385. Electrical systems.

Every electrical outlet and fixture, all electrical wiring and equipment, and their components shall be installed, maintained and connected to a source of electric power in accordance with the electrical code as adopted by the city, as administered by the inspection division.
(Ord. No. 90-174, § 304, 4-26-1990)

Sec. 7-386. Dwelling space requirements.

(a) *Required space in dwelling unit.* Every dwelling unit shall contain at least 150 square feet of floor space for the first occupant and at least 100 additional square feet of floor area per additional occupant. The floor area shall be calculated on the basis of the total area of all habitable rooms.

(b) *Required space in sleeping rooms.* In every dwelling unit, any room occupied for sleeping purposes by one occupant shall contain at least 70 square feet of floor space. Any room occupied for sleeping purposes by more than one occupant shall contain at least 50 square feet of floor space for each occupant.

(c) *Minimum ceiling height.*

(1) Habitable (space) rooms other than kitchens, storage rooms and laundry rooms shall have a ceiling height of not less than seven feet. Hallways, corridors, bathrooms, water closet rooms and kitchens shall have a ceiling height of not less than seven feet measured to the lowest projection from the ceiling.

(2) If any room in a building has a sloping ceiling, the prescribed ceiling height for the room is required in only half the room area. No portion of the room measuring less than five feet from the finished floor to the finished ceiling shall be included in any computation of the minimum room area.

(Ord. No. 90-174, § 306.3, 4-26-1990)

Sec. 7-387. Occupancy of dwelling unit below grade.

No basement or cellar space shall be used as a habitable room or dwelling unit unless:

(1) The floor and walls are impervious to leakage of underground and surface runoff water and are insulated against dampness;

(2) The total window area in each room is equal to at least the minimum window area size as required in section 7-384(a);

(3) Such required minimum window area is located entirely above the grade of the ground adjoining such window area; and

(4) The total of openable window area in each room is equal to at least the minimum as required under section 7-384(b)(1).

(Ord. No. 90-174, § 306.4, 4-26-1990)

Sec. 7-388. Sanitation requirements.

(a) Every owner of a multiple dwelling shall be responsible for maintaining in a clean and sanitary condition the shared or common areas of the dwelling and premises.

(b) Every tenant of a dwelling unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit and premises which he occupies or which is provided for his particular use.

(c) Every tenant of a dwelling or dwelling unit shall dispose of all his garbage and any other organic waste which might provide food for rodents and all rubbish in a clean and sanitary manner by placing it in the garbage disposal facilities or garbage or rubbish storage containers.

(d) It shall be unlawful for the owner or occupant of a residential building, structure or property to utilize the premises of such residential property for the open storage of any abandoned motor vehicle, icebox, refrigerator, stove, glass, building material, building rubbish or similar items. It shall be the duty and responsibility of every such owner or occupant to keep the premises of such residential property clean and to remove from the premises all such abandoned items as listed in this subsection, including but not limited to weeds, dead trees, trash, garbage, etc., upon notice from the housing official.

(e) Every occupant of a single-dwelling building and every owner of a building containing two or more dwelling units shall be responsible for the extermination of any insects, rodents or other pests within the building or premises; however, the extermination of wood-destroying organisms, insects or pests shall, in all cases, be the responsibility of the building owner.

(f) Every tenant of a dwelling unit shall keep all plumbing fixtures in the unit in a clean and sanitary condition and shall be responsible for the exercise of reasonable care in their proper use and operation.
(Ord. No. 90-174, § 307, 4-26-1990)

Secs. 7-389—7-410. Reserved.

Subdivision II. Exterior and Interior of Structures

Sec. 7-411. Foundation.

(a) The building foundation system shall be maintained in a safe manner and capable of supporting the load which normal use may cause to be placed on the system.

(b) Every manufactured home shall be secured to the ground by means of an anchoring system, or other foundation system, that is designed to resist overturning, uplift and lateral movement of the manufactured home from wind or other forces.
(Ord. No. 90-174, § 305.1, 4-26-1990)

Sec. 7-412. Exterior walls.

Every exterior wall shall be free of holes, cracks, breaks, loose or rotting boards or timbers, and any other conditions which might admit rain or dampness to the interior portions of the building. All siding material shall be kept in good repair and sound condition.
(Ord. No. 90-174, § 305.2, 4-26-1990)

Sec. 7-413. Roofs.

(a) Roofs shall be structurally sound and maintained in a safe manner and have no defects which might admit rain or cause dampness in the walls, ceilings or interior portion of the building.

(b) All portions, additions or sections of a roof, including but not limited to fascia, eaves, soffit, sheathing, rafter tails, barge rafters, vent screening, gutters, downspouts, roof jacks, and lead or metal flashing, shall be complete with all trim strips, moldings, brackets, braces and supports in accordance with common building practices. No item shall display signs of deterioration, abuse or improper installation that could be construed to affect the purpose of that item or cause damage to the immediate area or roof structure, that could allow dampness or admit rain to the interior of the building.
(Ord. No. 90-174, § 305.3, 4-26-1990)

Sec. 7-414. Means of egress.

Every dwelling unit shall have safe, unobstructed means of egress with minimum ceiling height of seven feet leading to safe and open space at ground level. Stairs shall have a minimum headroom of six feet eight inches. In a multifamily building or structure a safe, continuous and unobstructed path of travel to a safe and open space or public way shall be provided. All means of egress doors shall be readily openable from the

side from which egress is made without the use of keys or tools, and shall be equipped with the proper hardware.
(Ord. No. 90-174, § 305.4, 4-26-1990; Ord. No. 04-947, 12-9-2004)

Sec. 7-415. Stairs, porches and appurtenances.

Every inside and outside stair, porch and any appurtenance shall be safe to use and capable of supporting the load that normal use may cause to be placed thereon and shall be kept in sound condition and good repair.
(Ord. No. 90-174, § 305.5, 4-26-1990)

Sec. 7-416. Protective railings.

Protective railings shall be required on any unenclosed area over 30 inches from the ground level or on any steps containing four risers or more.
(Ord. No. 90-174, § 305.6, 4-26-1990)

Sec. 7-417. Windows.

(a) Every window shall be substantially weathertight, watertight and rodentproof, and shall be kept in sound working condition and good repair.

(b) Every window sash shall be fully supplied with glass window panes or an approved substitute which are open without open cracks or holes.

(c) Window sashes shall be properly fitted and weathertight within the window frame.

(d) Every window required for light and ventilation for habitable rooms shall be capable of being easily opened and secured in position by proper window hardware.
(Ord. No. 90-174, §§ 305.7—305.10, 4-26-1990)

Sec. 7-418. Exterior doors.

(a) Every exterior door, basement or cellar door and hatchway shall be substantially weathertight, watertight and rodentproof, and shall be kept in sound working condition and good repair.

(b) Every exterior door shall be provided with properly installed hardware that is maintained to ensure reasonable ease of operation to open, close and secure in an open or closed position, as intended by the manufacturer of the door and the attached hardware.

(c) Exterior door frames shall be properly maintained and shall be affixed with weatherstripping and thresholds as required to be substantially weathertight, watertight and rodent and insect restrictive when the door is in a closed position.

(d) Exterior door jambs, stops, headers and moldings shall be securely attached to the structure, maintained in good condition without splitting or deterioration that would minimize the strength and security of the door in a closed position. Hasp lock assemblies shall be prohibited for use on any exterior door of a dwelling unit.
(Ord. No. 90-174, §§ 305.11, 305.12, 4-26-1990)

Sec. 7-419. Screens.

Dwelling units which do not have an adequate mechanical air conditioning system shall have screens on all exterior windows and doors used or required for ventilation. Screens on windows and doors shall be properly fitted to the opening, properly stretched, and properly maintained, without rips, tears or other defects. All screen doors and storm doors shall be equipped with a self-closing device.
(Ord. No. 90-174, § 305.13, 4-26-1990)

Sec. 7-420. Protective treatment.

(a) All exterior wood surfaces, including but not limited to doors, door and window frames, cornices, porches, trim, balconies, decks and other structures shall be maintained in good condition. Exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective treatment or covering.

(b) All metal surfaces subject to rust and/or corrosion, including ornamental or wrought iron, shall be painted or otherwise coated to inhibit such rust and/or corrosion, and all surfaces with rust and/or corrosion present shall be stabilized and painted, coated or otherwise treated to in-

hibit and prevent future rust and/or corrosion. Oxidation stains shall be removed from exterior surfaces. All finish siding must be of a material intended, designed and suitable for exterior use and shall be weather resistant and watertight.

(c) Any peeling, flaking, and/or chipped paint shall be eliminated and the surface shall be repainted or otherwise protected.

(d) All masonry joints must be sufficiently tuck pointed with mortar and shall be maintained to insure watertightness and airtightness.
(Ord. No. 90-174, § 305.14, 4-26-1990; Ord. No. 04-947, 12-9-2004)

Sec. 7-421. Accessory structures.

All accessory structures, including but not limited to detached garages, storage buildings, play houses, walls, and other structures shall be maintained and kept in good repair and in sound structural condition. All sections of this Code are applicable as determined by the housing official subject to standard appeal as outlined in section 7-355.
(Ord. No. 90-174, § 305.15, 4-26-1990; Ord. No. 04-947, 12-9-2004; Ord. No. 07-171, § 13, 3-8-2007)

Sec. 7-422. Interior floors, walls and ceilings.

(a) Every floor, interior wall and ceiling shall be substantially rodentproof, shall be kept in sound condition and good repair, and shall be safe to use and capable of supporting the load which normal use may cause to be placed thereon.

(b) Every toilet, bathroom and kitchen floor surface shall be constructed and maintained so as to be substantially impervious to water and so as to permit such floor to be easily kept in a clean and sanitary condition.
(Ord. No. 90-174, § 305.16, 4-26-1990)

Sec. 7-423. Structural supports.

Every structural element of the dwelling shall be maintained structurally sound and show no evidence of deterioration which would render it incapable of bearing normal loads.
(Ord. No. 90-174, § 305.17, 4-26-1990)

Sec. 7-424. Protective railings for interior stairs.

Interior stairs and stairwells more than four risers high shall have handrails located in accordance with the requirements of the applicable building code as adopted by the city. Handrails or protective railings shall be capable of bearing normally imposed loads and maintained in good condition.
(Ord. No. 90-174, § 305.18, 4-26-1990; Ord. No. 07-171, § 14, 3-8-2007)

Sec. 7-425. Firestopping and draftstopping.

(a) Firestopping shall be maintained to cut off all concealed draft openings both horizontal and vertical and to form a fire barrier between floors and between the upper floor and the roof space.

(b) Draftstopping shall be maintained to cut off all concealed draft openings in floor/ceiling assemblies and in attics.
(Ord. No. 90-174, § 305.19, 4-26-1990)

Sec. 7-426. Interior doors.

(a) Every existing interior door shall fit reasonably well within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers or tracks as intended by the manufacturer of the attachment hardware.

(b) Every interior door shall be provided with proper hardware, securely attached and maintained in good working condition. Hasp lock assemblies shall be prohibited for use on any interior door within a dwelling unit.

(c) Privacy of bathrooms shall be afforded by a door complete with privacy hardware intended by the manufacturer for that purpose.
(Ord. No. 90-174, §§ 305.20—305.22, 4-26-1990)

Sec. 7-427. Skirting.

(a) Existing skirting shall be maintained free from broken or missing sections, pieces or cross members. Skirting shall be securely attached and sized from the ground to the lower outside perimeter of the structure.

(b) Replacement or new skirting shall be constructed of materials intended for exterior use and properly sized and mounted to prevent free access to the crawl space of the structure. Crawl space access grille or door shall be sized according to local code requirements.
(Ord. No. 90-174, § 305.23, 4-26-1990)

Secs. 7-428—7-460. Reserved.

ARTICLE VI. NONRESIDENTIAL BUILDING MAINTENANCE STANDARDS

DIVISION 1. GENERALLY

Sec. 7-461. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Words not defined in this section shall have the meanings stated in the applicable building, mechanical, plumbing, gas, fire prevention, housing, and electrical codes as adopted by the city. Words not defined in these codes or in this section have the meanings in Webster's Ninth New collegiate Dictionary, as revised. Whenever the terms "building," "structure" and "premises" are used in this article, they shall be construed as though followed by the term "or any part thereof."

Accessory structure means any secondary structure the use of which is incidental to that of the main building or structure used, designed or intended to be used for the storage of items or materials, including but not limited to garages, sheds, barns and storage buildings.

Addition means any extension or increase in floor area or height of a building or structure.

Alter and *alteration* mean any change or modification in construction or occupancy.

Applicable governing body means the city council.

Approved means approved by the housing official, or other authority having jurisdiction, of the city.

Basement means that portion of a building between floor and ceiling, which is partly below and partly above grade, but so located that the vertical distance from the grade to the floor below is less than the vertical distance from grade to ceiling; however, the distance from grade to ceiling shall be at least four feet six inches.

Board means the board of adjustments and appeals.

Building means any structure built for the support, shelter or enclosure of persons, animals, chattels or property of any kind which has enclosing walls for 50 percent or more of its perimeter. For the purpose of this article, each portion of a building separated from other portions by a fire wall shall be considered as a separate building.

Building official means the manager of inspection or his duly authorized representative.

Cellar means that portion of a building the ceiling of which is entirely below grade or is less than four feet six inches above grade.

Chief administrator means the mayor.

Division means the code enforcement division of the department of community development of the city.

Dwelling means, when used in this article without other qualifications, a building occupied exclusively for residential purposes by not more than two families.

Egress means an exit or means of getting out from a building, structure, dwelling, dwelling unit or room.

Housing official means the manager of community development, or his duly authorized representative, or such other person charged by the mayor with the administration and enforcement of this article.

Infestation means the presence of any insects, rodents or other pests within or around a dwelling or dwelling unit.

Inspection division and *department* means the inspection division of the city.

Manufactured building means any mobile home, house trailer or other structure, transportable in

one or more sections, which is built on a permanent chassis and designed to be used with or without a permanent foundation when connected to the required utilities.

Nonresidential building means any building or structure used exclusively for purposes other than residential human habitation or its support.

Nuisance means and includes the following:

(1) Any public nuisance known at common law or in equity jurisprudence.

(2) Any attractive nuisance which may prove detrimental to children, whether in a building or structure, on the premises of a building, or upon an unoccupied lot. This includes but is not limited to abandoned wells, shafts, basements or excavations; abandoned refrigerators or iceboxes; abandoned motor vehicles; any structurally unsound fences or structures; or any lumber, trash, fences, debris, litter or vegetation which may prove hazardous for inquisitive minors.

(3) Whatever is dangerous to human life or is detrimental to health or safety, as determined by the housing, building, fire or health official.

(4) Inadequate sewer or plumbing facilities.

(5) Inadequate or obstructed means of egress.

(6) Whatever renders air, food or drink unwholesome or detrimental to the health of human beings, as determined by the housing, building, fire or health official.

Openable area means that part of a window or door that is available for unobstructed ventilation and which opens directly to the outdoors.

Operator means any person who has charge, care or control of a building.

Owner means the holder of the title in fee simple and any person, group of persons, firm, company, association or corporation in whose name tax bills on a property is submitted. It shall also mean any person who, alone or jointly or severally with others, has:

(1) Legal title to any building or structure, with or without accompanying actual possession; or

(2) Charge, care, or control of any building or structure as owner, executor, administrator, trustee, guardian of the estate of the owner, mortgagee or vendee in possession, assignee of rents, lessee, or other person in control of a building; or their duly authorized agents.

Any such person representing the actual owner shall be bound to comply with the provisions of this article, and of rules and regulations adopted pursuant to this article, to the same extent as if he were the owner. It is his responsibility to notify the actual property owner of the reported infractions or violations of this article pertaining to the subject property.

Plumbing means the practice, materials and fixtures used in the installation, maintenance, extension or alteration of all piping, fixtures, appliances and appurtenances in connection with any of the following: sanitary drainage or storm drainage facilities, the venting system and the public or private water supply systems, within or adjacent to any building, structure or conveyance; also, the practice and materials used in the installation, maintenance, extension or alteration of stormwater, liquid waste or sewage, and water supply systems of any premises to their connection with any point of public disposal or other acceptable terminal.

Premises means a lot, plot or parcel of land, including the buildings or structures.

Public area means an unoccupied open space adjoining a building and on the same property that is permanently maintained accessible to the fire department and free of all encumbrances that might interfere with its use by the fire department.

Repair means the replacement of existing work with the same kind or type of material used in the existing work, not including additional work that would change the structural safety of the building

or structure, or that would affect or change required exit facilities, a vital element of an elevator, plumbing, gas piping, wiring of heating installations, or that would be in violation of a provision of law or ordinance. The term "repair" or "repairs" shall not apply to any change of construction.

Required means required by some provision of this article or another applicable code of the city.

Residential building means a building in which families or households live or in which sleeping accommodations are provided, and all dormitories. Such buildings shall include but are not limited to dwellings, multiple dwellings and roominghouses.

Structure means that which is built or constructed, an edifice or building of any kind, or any piece of work that is built, erected or composed of parts joined or fastened together in some manner. The term "structure" shall be construed as if followed by the words "or part thereof."

Supplied means paid for, furnished, or provided by or under the control of an owner or operator.

Value and *valuation,* as applied to a building or structure, mean the estimated cost to replace the building or structure in kind.

Ventilation means the process of supplying and removing air by natural or mechanical means to and from any space.

Yard means an unoccupied open space other than a court.
(Ord. No. 95-634, § 202, 9-28-1995; Ord. No. 07-171, § 15, 3-8-2007)

Cross reference—Definitions generally, § 1-2.

Sec. 7-462. Remedial.

This article is declared to be remedial and shall be construed to secure its beneficial interests and purposes, which are public safety, health and general welfare through structural strength, stability, sanitation, adequate light and ventilation, and safety to life and property from fire and other hazards incident to the maintenance, alteration, repair, removal, demolition, use and occupancy of nonresidential buildings and structures.
(Ord. No. 95-634, § 101.2, 9-28-1995)

Sec. 7-463. Scope.

The provisions of this article shall apply to all buildings that are used, designed or intended to be used for purposes other than residential human habitation, regardless of when such building may have been constructed. This article establishes minimum standards for maintenance and use and does not replace or modify standards otherwise established for occupancy, construction, replacement, alteration or repair of buildings except such as are contrary to the provisions of this article. Buildings or structures moved into or within the jurisdiction shall comply with the requirements of the building code, as adopted by the city, for new buildings.
(Ord. No. 95-634, § 101.3, 9-28-1995; Ord. No. 07-171, § 16, 3-8-2007)

Sec. 7-464. Existing buildings.

(a) The provisions of this article shall apply to all buildings that are used or designed for purposes other than residential human habitation. In the event of legal mixed use occupancy, portions of a building used for residential purposes shall conform to the requirements of the housing code and any other applicable codes as adopted by the city. All other portions of the building shall conform to the requirements of this article.

(b) Alterations, repairs or rehabilitation work may be made to any existing building without requiring the building to comply with all the requirements of this article provided the alteration, repair or rehabilitation work conforms to the requirements of this article for new construction. The housing official shall determine, subject to appeal to the board of adjustments and appeals, the extent, if any, to which the existing building shall be made to conform to the requirements of this article for new construction.

(c) If the occupancy classification of an existing building or structure is changed, the building or structure shall be made to conform with the requirements for the new occupancy classification as determined by the building official.

(d) Repairs and alterations not covered by the preceding subsections of this section, restoring a building to its condition prior to damage or dete-

rioration, or altering it in conformity with the provisions of the building code or in such a manner as will not extend or increase a nonconformity or create a hazard, may be made with the same kind of materials as those of which the building was constructed.

(e) Alterations, repairs or rehabilitation work shall not cause an existing building to become unsafe as defined in section 7-502.
(Ord. No. 95-634, § 101.4, 9-28-1995; Ord. No. 07-171, § 17, 3-8-2007)

Sec. 7-465. Special historic buildings and structures.

The provisions of this article relating to the construction, maintenance, use, alteration, repair, enlargement, restoration, relocation, or moving of buildings or structures shall not be mandatory for existing buildings or structures identified and classified by the state or local jurisdiction as historic buildings when such buildings or structures are judged by the housing official to be safe and when enforcement of the provisions of this article would be inconsistent with laws or regulations applicable to such buildings.
(Ord. No. 95-634, § 101.5, 9-28-1995)

Sec. 7-466. Maintenance.

All nonresidential buildings or structures, both existing and new, shall be maintained in a safe and sanitary condition and in a good state of repair. All devices or safeguards required in a building when erected, altered or repaired shall be maintained in good working order. All fixtures, devices or attachments to a building or structure shall be properly installed, maintained and kept in good working order and free from defects. The owner or his designated agent shall be responsible for the maintenance of such buildings, structures and premises.
(Ord. No. 95-634, § 101.6, 9-28-1995)

Sec. 7-467. Application of zoning ordinance.

Nothing in this Code shall be construed to cancel, modify or set aside any provision of the zoning ordinance of the city (app. A of this Code).
(Ord. No. 95-634, § 101.7, 9-28-1995)

Sec. 7-468. Violations and penalties.

Any person who shall violate a provision of this article, or shall fail to comply with this article, or with any of its requirements, or who shall erect, construct, repair, alter, demolish or move any building or structure, or who has erected, constructed, repaired, altered, demolished, or moved any building or structure in violation of this article shall be guilty of a misdemeanor. Each such person shall be deemed guilty of a separate offense for each and every day during which a violation of any provision of this article is committed or continued, and, upon conviction, shall be punished as provided by section 1-7.
(Ord. No. 95-634, § 108, 9-28-1995)

Secs. 7-469—7-490. Reserved.

DIVISION 2. ADMINISTRATION AND ENFORCEMENT*

Sec. 7-491. Enforcement officer.

There are established by the city provisions for the enforcement of this article by the manager of the community development division or his duly authorized representative.
(Ord. No. 95-634, § 102.1, 9-28-1995)

Sec. 7-492. Restrictions on employees.

No code enforcement officer or employee of the division of community development shall be financially interested in the furnishing of labor, materials or appliances for the construction, alteration, repair, maintenance of a building, or in the making of plans or specifications for a building, unless he is the owner of the building. Such officer or employee shall not engage in any work or activity which is inconsistent with his duties or with the interests of the division of community development.
(Ord. No. 95-634, § 102.2, 9-28-1995)

Sec. 7-493. Records.

The housing official shall keep or cause to be kept a record of the business of the division.
(Ord. No. 95-634, § 102.3, 9-28-1995)

*__Cross reference—__Administration, ch. 2.

Sec. 7-494. Right of entry.

The housing official shall enforce the provisions of this article and, upon presentation of the proper identification to the owner, agent, tenant or other person in charge of such property, he or his duly authorized representative may enter any building, structure or premises, during all reasonable hours, except in cases of emergency where extreme hazards are known to exist which may involve the potential loss of life or severe property damage, in which case the limitations of this section shall not apply.
(Ord. No. 95-634, § 103.1, 9-28-1995)

Sec. 7-495. Nonconforming nonresidential buildings; unsafe nonresidential buildings.

All nonresidential buildings or structures which are unsafe, unfit for use, or not provided with adequate egress, which constitute a fire hazard, or which are otherwise dangerous to human life, or which constitute a hazard to safety or health due to inadequate maintenance, dilapidation, obsolescence or abandonment, or which otherwise meets the definition of unsafe building as defined in this article are considered unsafe buildings. All such buildings or structures are considered illegal and shall be abated by repair and rehabilitation or by demolition in accordance with the provisions of article V of this chapter as adopted by the city.
(Ord. No. 95-634, § 103.2.1, 9-28-1995; Ord. No. 07-171, § 18, 3-8-2007)

Sec. 7-496. Requirements not covered by article.

Any requirement, not specifically covered by this article, found necessary for the safety, health and general welfare of the general public or the occupants of a nonresidential building shall be determined by the housing official, subject to appeal to the board of adjustments and appeals.
(Ord. No. 95-634, § 103.3, 9-28-1995)

Sec. 7-497. Reports.

The housing official shall keep a record of inspections, notices and other information relating to the enforcement of this article.
(Ord. No. 95-634, § 103.4, 9-28-1995)

Sec. 7-498. Letter of compliance.

A letter indicating compliance with the provisions of this article may be issued by the housing official.
(Ord. No. 95-634, § 103.5, 9-28-1995)

Sec. 7-499. Permits.

Any owner, authorized agent or contractor who desires to construct, enlarge, alter, repair, move, demolish or change a building or structure, or to cause any such work to be done, shall first make application to the inspection division of the city and obtain the required permit.
(Ord. No. 95-634, § 110, 9-28-1995)

Sec. 7-500. Inspections.

The housing official shall make or cause to be made inspections to determine the condition of nonresidential buildings and premises in the interest of safeguarding the health, safety and welfare of the occupants, tenants and the general public. For the purpose of making such inspections, the housing official or his agent is authorized to enter, examine and survey at all reasonable times all nonresidential buildings and premises. The owner, tenant or the person in charge shall give the housing official free access to such buildings and its premises at all reasonable times for the purpose of such inspections.
(Ord. No. 95-634, § 104, 9-28-1995)

Sec. 7-501. Hardships.

Where the literal application of the requirements of this article would appear to cause undue hardship on an owner or tenant, or when it is claimed that the true intent and meaning of this article or any of its regulations have been misconstrued or wrongly interpreted, the owner of such building or structure, or his duly authorized agent, may appeal the decision of the housing official to the board of adjustments and appeals, as set forth in section 7-505.
(Ord. No. 95-634, § 105, 9-28-1995)

Sec. 7-502. Substandard nonresidential buildings.

(a) Whenever the housing official determines that there are reasonable grounds to believe there has been a violation of the nonresidential building

minimum maintenance code, or any rule or regulation adopted pursuant to such code, he shall give notice of such alleged violation to the responsible person. Such notice shall:

(1) Be put in writing;

(2) Include a listing of the violations;

(3) Allow 120 days from the date the notice is issued to make the required repairs; and

(4) State that if the violations are not corrected within the stated time, the issuing official may institute legal proceedings charging the person with a violation of this article.

(b) Service of notice shall be as follows:

(1) By delivery to the owner personally, or by leaving the notice at the usual place of abode of the owner with a person of suitable age and discretion;

(2) By depositing the notice in the United States Postal Service addressed to the owner of record at his last known address with postage prepaid; or

(3) By posting and keeping posted for 24 hours a copy of the notice in a conspicuous place on the premises to be repaired.

(Ord. No. 95-634, §§ 103.2.2, 103.2.3, 9-28-1995)

Sec. 7-503. Demolitions.

When a nonresidential building is to be demolished, it shall be done in accordance with all applicable federal, state and local laws, including any applicable ordinances of the city.

(Ord. No. 95-634, § 103.2.4, 9-28-1995)

Sec. 7-504. Board of adjustments and appeals.

(a) The housing board of adjustments and appeals created pursuant to section 7-355 is designated as the board of adjustments and appeals for purposes of this article. All powers, duties and functions of the board of adjustments and appeals for this article are delegated to the housing board of adjustments and appeals.

(b) The duties of the board of adjustments and appeals shall be to:

(1) Consider and determine appeals whenever it is claimed that the true intent and meaning of this article or any of its regulations have been misconstrued or wrongly interpreted.

(2) Permit, in appropriate cases where the application of the requirement of this article in the allowance of the stated time for the performance of any action required under this article would appear to cause undue hardship on an owner, one or more extensions of time not to exceed 120 days each, from the date of such decision of the board. Applications for additional extensions of time shall be heard by the board. Such requests for extensions of time shall be filed with the housing official not less than 30 days prior to the current final date for compliance.

(c) An appeal shall not be considered where an appeal case has been previously decided involving the same violation.

(d) All decisions of the housing board of adjustments and appeals to vary the application of any provision of this article or to modify an order of the housing official shall specify in what manner such variance or modification is made, the condition upon which it is made, and the reasons. Every decision shall be in writing. A copy of all decisions shall be promptly filed in the office of the housing official and shall be open to public inspection. The secretary shall notify the appellant in writing of the final action of the board.

(Ord. No. 95-634, § 106, 9-28-1995; Ord. No. 07-171, § 19, 3-8-2007)

Sec. 7-505. Appeals.

Any person receiving written notice from the housing official of deficiencies in his property under this article may, within 30 days following the date of such notice, enter an appeal, in writing, to the board of adjustments and appeals. Such appeal shall state the location of the property, the date of the notice of violations, and the number of such notice. The appellant must state

the variance or modification requested, the reasons for such request, and the hardship or conditions upon which appeal is made.
(Ord. No. 95-634, § 107, 9-28-1995)

Cross reference—Boards, commissions, committee and authorities, § 2-1291 et seq.

Sec. 7-506. Dangerous structures.

Any nonresidential building or accessory structure which is so damaged, decayed, dilapidated, unsanitary, vermin-infested or unsafe that it creates a hazard to the health or safety of the occupants or the public, or one which lacks illumination, ventilation or sanitary facilities adequate to protect the health or safety of the occupants or the public, or otherwise meets the definition of unsafe building as defined in this article shall be condemned as unfit for human habitation and shall be declared an unsafe building. Procedures for such condemnation, and its abatement, shall be carried out in accordance with the provisions as set out in section 7-353 of this Code.
(Ord. No. 95-634, § 305, 9-28-1995; Ord. No. 07-171, § 20, 3-8-2007)

Cross reference—Environmental management, ch. 12.

Secs. 7-507—7-530. Reserved.

DIVISION 3. MINIMUM STANDARDS FOR BASIC EQUIPMENT AND FACILITIES

Subdivision I. In General

Sec. 7-531. Compliance with division.

No person shall occupy as owner-occupant or let or sublet to another for occupancy any nonresidential structure or building, nor shall any vacant nonresidential building or structure be permitted to exist which does not comply with the requirements of this division.
(Ord. No. 95-634, § 301, 9-28-1995)

Sec. 7-532. Facilities required.

(a) *Sanitary facilities.* Sanitary facilities shall be installed and in compliance with all applicable codes and ordinances of the city. Every plumbing fixture and water and waste pipe shall be properly installed and maintained in good working condition free from defects, leaks and obstructions.

(b) *Location of sanitary facilities.* Water closets and urinals shall be located in a room affording privacy to the user by means of a properly installed and fitted door, complete with proper hardware in good working order.

(c) *Heating facilities.* All heating appliances, equipment and systems, and their parts shall be properly installed and maintained in good working order in accordance with the provisions of the applicable codes of the inspection division of the city.

(d) *Employees' facilities.* A minimum of one water closet and drinking facilities shall be available to employees. Drinking facilities shall be a drinking fountain, water cooler, bottled water cooler, or disposable cups and a sink or water dispenser. Drinking facilities shall not be located in toilet rooms or bathrooms.
(Ord. No. 95-634, § 302, 9-28-1995; Ord. No. 04-946, 12-9-2004)

Sec. 7-533. Electrical systems.

Every electrical outlet and fixture, all electrical wiring and equipment, and their components shall be installed, maintained and connected to a source of electric power in accordance with the electrical code as adopted by the city, as administered by the inspection division.
(Ord. No. 95-634, § 303, 9-28-1995)

Sec. 7-534. Occupiable work spaces.

Indoor occupiable work spaces shall be supplied with heat during winter months capable of maintaining a minimum temperature not less that 65 degrees Fahrenheit at three feet above floor level during the period the spaces are occupied. *Exception:* Processing, storage or operation areas that require cooling or special temperature conditions.
(Ord. No. 04-946, 12-9-2004)

Secs. 7-535—7-550. Reserved.

Subdivision II. Exterior and Interior of Structures

Sec. 7-551. Foundation.

(a) The building foundation system shall be maintained in a safe manner and capable of supporting the load which normal use may cause to be placed on it.

(b) Every manufactured building shall be secured to the ground by means of an anchoring system, or other foundation system, that is designed to resist overturning, uplift, and lateral movement of the manufactured building from wind or other forces.
(Ord. No. 95-634, § 304.1, 9-28-1995)

Sec. 7-552. Exterior walls.

Every exterior wall shall be free of holes, cracks, breaks, loose or rotting boards or timbers, missing siding material or any other conditions which might admit rain or dampness to the interior portions of the building. All siding material shall be kept in good repair and sound condition.
(Ord. No. 95-634, § 304.2, 9-28-1995)

Sec. 7-553. Roofs.

(a) Roofs shall be structurally sound and maintained in a safe manner, complete with an approved finish material, and have no defects which might admit rain or cause dampness in the walls, ceilings, or interior portion of the building.

(b) All portions, additions or sections of a roof, including but not limited to fascia, eaves, soffit, sheathing, rafter tails, barge rafters, vent screening, gutters, downspouts, roof jacks, and lead or metal flashing, shall be complete with all trim strips, moldings, brackets, braces and supports in accordance with common building practices. No item shall display signs of deterioration, abuse or improper installation that could be construed to affect the purpose of that item or cause damage the immediate area or roof structure, that could allow dampness or admit rain to the interior of the building.
(Ord. No. 95-634, § 304.3, 9-28-1995)

Sec. 7-554. Means of egress.

Every unit shall have safe, unobstructed means of egress.
(Ord. No. 95-634, § 304.4, 9-28-1995)

Sec. 7-555. Stairs, porches and appurtenances.

Every inside and outside stair, porch and any appurtenance shall be safe to use and capable of supporting the load that normal use may cause to be placed on such places and shall be kept in sound condition and good repair.
(Ord. No. 95-634, § 304.5, 9-28-1995)

Sec. 7-556. Protective railings.

Protective railings shall be erected in accordance with the applicable building code as adopted by the city and shall be kept in sound condition and good repair.
(Ord. No. 95-634, § 304.6, 9-28-1995; Ord. No. 07-171, § 21, 3-8-2007)

Sec. 7-557. Windows.

(a) Every window shall be properly fitted and kept in sound working condition and good repair.

(b) Every window sash shall be fully supplied with glass window panes or an approved substitute which are free of cracks or holes. Window sashes shall be properly fitted and within the window frame.
(Ord. No. 95-634, § 304.7, 9-28-1995)

Sec. 7-558. Exterior doors.

(a) Every exterior door, basement or cellar door and hatchway shall be properly fitted and kept in sound working condition and in good repair.

(b) Every exterior door shall be provided with properly installed hardware that is maintained to ensure reasonable ease of operation to open, close and secure in an open or closed position, as intended by the manufacturer of the door and the attached hardware.

(c) Exterior door frames shall be properly maintained and in good repair. Exterior door jambs, stops, headers and moldings shall be securely

attached to the structure, maintained in good condition without splitting, damage or deterioration that would minimize the strength and security of the door in a closed position.
(Ord. No. 95-634, § 304.8, 9-28-1995)

Sec. 7-559. Protective treatment.

(a) All exterior wood surfaces, including but not limited to doors, door and window frames, cornices, porches, trim, balconies, decks and other structures shall be maintained in good condition. Exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective treatment or covering.

(b) All metal surfaces subject to rust or corrosion, including ornamental or wrought iron, shall be painted or otherwise coated to inhibit such rust or corrosion, and all surfaces with rust or corrosion present shall be stabilized and painted, coated or otherwise treated to inhibit and prevent future rust or corrosion. Oxidation stains shall be removed from exterior surfaces. All finish siding must be of a material intended, designed and suitable for exterior use and shall be weather resistant and watertight.

(c) Any peeling, flaking, or chipping paint shall be eliminated and the surface shall be repainted or otherwise protected.

(d) All masonry joints must be sufficiently tuck pointed with mortar and shall be maintained to insure watertightness and airtightness.
(Ord. No. 95-634, § 304.9, 9-28-1995; Ord. No. 05-156, § 1, 3-10-2005)

Sec. 7-560. Accessory structures.

Garages, storage buildings and all other secondary or accessory structures shall be maintained and kept in good repair and in sound structural condition. All sections of this article are applicable as determined by the housing official subject to standard appeal as outlined in section 7-505.
(Ord. No. 95-634, § 304.10, 9-28-1995)

Sec. 7-561. Interior floors, walls and ceilings.

Every floor, interior wall and ceiling shall be kept in sound condition and good repair and shall be safe to use and capable of supporting the load which normal use may cause to be placed on such places.
(Ord. No. 95-634, § 304.11, 9-28-1995)

Sec. 7-562. Structural supports.

Every structural element of a building under this division shall be maintained structurally sound and show no evidence of deterioration or damage which would render it incapable of bearing normal loads.
(Ord. No. 95-634, § 304.12, 9-28-1995)

Sec. 7-563. Protective railings for interior stairs.

Interior stairs and stairwells more than four risers high shall have handrails located in accordance with the requirements of the applicable building code as adopted by the city. Handrails or protective railings shall be capable of bearing normally imposed loads and maintained in good condition.
(Ord. No. 95-634, § 304.13, 9-28-1995; Ord. No. 07-171, § 22, 3-8-2007)

Secs. 7-564—7-590. Reserved.

ARTICLE VII. RESERVED*

Secs. 7-591—7-610. Reserved.

ARTICLE VIII. SWIMMING POOLS

Sec. 7-611. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Family pool means a swimming pool used or intended to be used solely by the owner, operator

*__Editor's note__—Ord. No. 07-171, § 23, adopted March 8, 2007, repealed Art. VII, §§ 7-591 and 7-592, which pertained to unsafe building abatement. At the editor's discretion, this article and its sections have been reserved.

or lessee and his family and by friends invited to use it without payment of any fee, and is considered a body of water in an artificial or semiartificial receptacle or other container, whether located indoors or outdoors, but is not to include swimming pools operated and maintained in conjunction with or by clubs, motels, hotels, community associations or private clubs.
(Code 1982, § 7-109)

Cross reference—Definitions generally, § 1-2.

Sec. 7-612. Violations.

Any person violating any provisions of this article or violating any rule or requirement enacted by the health department under this article shall be guilty of a misdemeanor.
(Code 1982, § 7-111)

Sec. 7-613. Enclosure required; specifications; modifications.

(a) Every outdoor family swimming pool shall be completely surrounded by a fence or wall not less than four feet in height, which shall be so constructed as not to have openings, holes or gaps larger than four inches in any dimension except for doors and gates; and if a picket fence is erected or maintained, the horizontal dimension shall not exceed four inches. A dwelling house or accessory building may be used as part of such enclosure.

(b) All gates or doors opening through such enclosures shall be equipped with a self-closing and self-latching device for keeping the gate or door securely closed at all times when not in actual use, except that the door of any dwelling which forms a part of the enclosure need not be so equipped.

(c) This requirement shall be applicable to all new family pools constructed after June 11, 1959, other than indoor pools, and shall apply to all existing pools which have a minimum depth of 18 inches of water. No person in possession of land within the city, either as owner, purchaser, lessee, tenant or a licensee, upon which is situated a family swimming pool having a minimum depth of 18 inches shall fail to provide and maintain such fence or wall as provided in this section.

(d) The health department may make modifications in individual cases, upon a showing of good cause with respect to the height, nature or location of the fence, wall, gates or latches, or their necessity, provided the protection as sought under this section is not reduced. The health department may permit other protective devices or structures to be used so long as the degree of protection afforded by the substitute devices or structures is not less than the protection afforded by the wall, fence, gate and latch described in this section.
(Code 1982, § 7-110)

Secs. 7-614—7-699. Reserved.

ARTICLE IX. FENCES

Sec. 7-700. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Fence or *fencing* means any structure, including without limitation fences, barriers, or walls, constructed or erected of man-made or natural materials, or a combination thereof, to provide a barrier, either physical or visual, for the purpose of protecting property, enclosing property, providing for security or privacy, or for properly containing activities on the property.

Fenced lot means a lot or parcel of real property within the corporate limits of the city containing a fence regulated by this article, which lot may or may not contain improvements.

Improvement means any building, or unit or portion thereof, including without limitation buildings used for residential or non-residential purposes.

Owner/person in control means all or any person(s):

(1) Whose name appears as owner of record in the tax assessor's office of the fenced lot;

(2) Who has title to all or any portion of the fenced lot, with or without accompanying actual possession; or

(3) Any person in charge, care or control of any fenced lot including without limitation any owner, executor, administrator, trustee, guardian of the estate of the owner, mortgagee or vendee in possession, or assignee of rents, lessee or any other person in control of an improvement; or their duly authorized agents. The term shall not include federal, state or municipal owners.

(Ord. No. 07-409, § 1, 5-10-07)

Sec. 7-701. Exceptions.

The provisions of this section shall not apply to:

(1) Temporary construction fences installed to protect the public from injury during construction or to maintain security for development and where there is a current building permit issued for such activity (the fencing must be removed at completion of construction);

(2) Fencing for agricultural purposes or enclosure of livestock; or

(3) Fences utilized to surround or enclose public utility installations, public schools or other public buildings.

(4) Hedges, shrubs, bushes, trees, or other plantings.

(5) Retaining walls.

(Ord. No. 07-409, § 1, 5-10-07)

Sec. 7-702. Materials.

(a) It shall be unlawful to erect or maintain any barbed wire, concertina or razor wire, or electric fencing on a residentially zoned lot or parcel of property.

(b) Fences containing man-made materials shall be composed of materials manufactured, designed, and intended for such purposes and shall not include scrap materials, doors, or other such salvaged materials. Fences shall be of materials of a uniform and consistent style.

(c) The wooden portion of fences shall be of a decay resistant wood, or shall be covered with paint, stain or other such substance which preserves the wood from deterioration, dilapidation or decay.

(d) Fences containing natural materials, such as rock or stone, shall be of a uniform and consistent style, free of loose or missing material, and properly maintained so as not to create a potential hazard, and shall not include scrap materials, doors, or other such salvaged materials.

(Ord. No. 07-409, § 1, 5-10-07; Ord. No. 08-1206, 1-8-2009)

Sec. 7-703. Maintenance.

(a) It shall be the responsibility of the owner/person in control of the fenced lot to maintain the fence in good and proper condition and repair, free of loose or missing material, and free of any defects, damage or decay so as to not present a potential safety hazard and so that at all times it presents a neat and orderly appearance to surrounding property owners and to the general public.

(b) Fences shall be properly installed, constructed, and maintained to be vertical, self supporting, and secured in a fashion to resist leaning, falling, collapse or partial collapse, and so as not to create a potential safety hazard.

(Ord. No. 07-409, § 1, 5-10-07)

Sec. 7-704. Enforcement.

(a) *Notice of violation.* If the owner/person in control of the fenced lot shall fail or refuse to comply with the provisions of this article, the director of the community development division or other officer of the community development division may cause to be served upon such owner notice requiring such owner to comply with this article. Such notice shall, unless provided for otherwise: (i) be served in person, by first class mail, or by posting on the premises in a conspicuous place; (ii) describe the nature of the violation; (iii) require compliance within a time stated in the notice; and (iv) where an extension of time is provided for under the terms of this article, provide that in lieu of compliance, an extension of

time may be requested by making a written request to the board of adjustments and appeals within a specified time stated in the notice.

(b) *Officials charged with enforcement.* The director of the community development division or any code officer of such division is responsible for the administration and enforcement of this article.

(c) *Issuance of summons and complaint [citation].* In the enforcement of this article, the director of the community development division, any code officer of such division, or any law enforcement officer legally authorized to enforce municipal ordinances may proceed in accordance with section 2-1 of this Code. Nothing herein shall be construed to prevent the obtaining of a warrant with respect to any alleged offense in lieu of issuing a summons and complaint [citation].

(d) Notwithstanding anything contained to the contrary in this article, an owner/person in control may be required to immediately remedy a violation of this article where there is an immediate threat to the public health or safety if the violation is allowed to continue. In such case, there shall be no extensions of time allowed for compliance.
(Ord. No. 07-409, § 1, 5-10-07)

Sec. 7-705. Board of adjustments and appeals.

The housing board of adjustments and appeals created by section 7-354 of this Code is designated as the board of adjustments and appeals for this article; and all powers, duties and functions of the board of adjustments and appeals under this article are delegated to and shall be performed by the housing board of adjustments and appeals.
(Ord. No. 07-409, § 1, 5-10-07)

Sec. 7-706. Requests for extension of time.

Any person receiving official written notice of a violation of this article, or his duly authorized agent, may, within the time specified in said notice for requesting an extension, enter a request for an extension of the date or time for compliance to the housing board of adjustments and appeals. Such request must be in writing and must state the location of the property, the date of the notice of violation of this article, and the official notice number. The request must also state the hardship or reason for the request for additional time, and the amount of time that is requested. No request for an extension filed later than the time specified in said notice shall be acted upon by the housing board of adjustments and appeals unless the housing official shall consent thereto.
(Ord. No. 07-409, § 1, 5-10-07)

Chapter 8

BUSINESSES*

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ARTICLE I. IN GENERAL

Sec. 8-1. Farm products not to be sold except at curb market.

It shall be unlawful for any person to use any other place within the city except the location designated for a curb market for the sale of farm products.
(Code 1982, § 18-326)

Sec. 8-2. Perishable foods not to be peddled on streets.

(a) For the purpose of this section, the definitions of the terms "nonperishable" and "perishable" food are adopted as follows:

Nonperishable food means any foodstuff or beverage that is preserved and packaged in such a manner that it may be stored for a long period of time (60 days or longer) without refrigeration and remain in a palatable and healthful state.

Perishable food means any foodstuff or beverage which does not meet the definition of "nonperishable food," and any nonperishable foodstuff which is removed from its container or wrapper, or which is in a damaged container or wrapper which does not secure it from contamination.

(b) It shall be unlawful for any person to peddle through the streets of the city any perishable foods. It shall not be unlawful to peddle through the streets frozen prepackaged ice cream and other frozen perishable food so long as the item is delivered to the customer, frozen in sealed packages prepared by the manufacturer, and properly labeled with all required permitting information. This section does not permit peddling upon the dedicated right-of-way of any public street or sidewalk in the central city area as defined in section 18-31.

(c) Off-street sale of prepared food from any vehicle or other temporary location or facility is prohibited except under a permit from the county health department; however, any such temporary location or facility shall meet the following minimum requirements:

(1) The building, vehicle or other facility must be equipped with such utilities and sanitary facilities as the county health department requires.

(2) No such vehicle or facility is permitted to remain at any one location for longer than ten days or for any shorter period of time specified in their permit.

(3) At the end of the permit period, any vehicle or temporary structure must be removed from applicable regulations.

(d) It shall not be unlawful to sell or offer for sale produce, vegetables and fruits from vehicles temporarily parked in light industrial, heavy industrial, highway commercial, or neighborhood business areas from the hours of 9:00 a.m. through one hour after sunset, provided the following conditions are met:

(1) Vehicles are not parked on the road right-of-way;

(2) The area is kept free of litter and in a sanitary condition;

(3) Adequate access and off-street parking for customers is provided;

(4) There is no preparation of the produce prior to sale except for paring or peeling that may be necessary for display or division;

(5) All cut surfaces of fruit and vegetables intended for sale must be covered in such a manner as to exclude flies and other vermin; and

(6) No prepared foods be offered for sale without a permit except for honey and sorghum molasses if meeting department of agriculture or health department regulations.

(Code 1982, § 18-327; Ord. No. 82-125, § I, 5-7-1982; Ord. No. 88-334, § 19-49, 7-14-1988)

Sec. 8-3. Display of vehicles for sale.

(a) It shall be unlawful for any person to display or offer for sale more than one vehicle on a lot or parcel of real property, or permit such action to be done.

(b) It shall be unlawful for any owner, tenant or person in charge of a lot or parcel of real property to display or offer for sale more than one vehicle on the lot or parcel of real property, or permit such action to be done.

(c) It shall be unlawful for any person to display or offer for sale, or any owner, tenant or person in charge of a lot or parcel of real property to display or offer for sale, or permit such action to be done, any vehicle upon the public right-of-way or other public property; however, this section shall not prohibit a person from operating a vehicle, bearing a "for sale" sign, upon a public right-of-way or from parking such vehicle in a permissible parking space located upon and within such public right-of-way for a period of time reasonably necessary for such person to accomplish a purpose unrelated to the display or offering for sale of the vehicle. In addition to applicable penalties, any vehicle found to be in violation of this section may be towed away, impounded and stored until redeemed at the owner's expense.

(d) Subsections (a) and (b) of this section shall not apply to any person properly licensed by the city to engage in the business of selling vehicles at the location designated upon such license.

(e) Any person properly licensed by the city to engage in business at a particular location on December 16, 1999, who may otherwise be affected by this section shall be allowed to continue its business pursuant to the terms of such license until such time as the business ceases to operate for a period of six months or the person fails to renew its business license for that location.
(Ord. No. 99-1075, §§ 1—5, 12-16-1999)

Sec. 8-4. Private correctional facilities.

(a) *Definition*. Private correctional facilities are privately owned or operated uses which include monitoring and control of the offender population, including juveniles, persons on pretrial status, on prerelease status, probationers, parolees or persons incarcerated to serve a sentence.

(b) *Management plan*.

(1) Owners or operators of private correctional facilities shall submit to the police chief a management plan describing the management and operation of the facility including: names and addresses of the entities that own the facility and manage the program; name and address of a local responsible person; name and phone number of the responsible governmental contracting agency; names and locations of existing facilities owned or operated by the ownership or management entities; length of the contract period; types of offenders housed; number and qualifications of the staff of the facility; and an emergency plan which details how the facility will deal with emergencies and how and under what circumstances contact is made with local emergency and safety officials. Additionally, a plan for perimeter security shall be filed with and included as a part of the management plan. Any changes or amendments to the management plan and any change in the owner, operator or local responsible person shall be submitted to the police department.

(2) Management plans, including changes or amendments thereto, shall require the approval of the police chief. The police chief may require additional information and may require revisions to the plan including additional security measures, such as additional fencing or other barriers, cameras, lighting, guards, sign-in and sign-out sheets, curfew for residents, guard dogs, sirens and direct alarms with the police department. The police chief may require revisions to the plan at any time based on then-current factors or conditions.

(3) It shall be unlawful for any person to operate or for any owner, operator or local responsible person to allow the operation of a private correctional facility not in conformance with the approved management plan.

(c) *Inspection*. The police chief may conduct periodic inspections of private correctional facilities to determine compliance with then-current approved management plan. Such inspections may be announced prior to the conduct of the inspection or may be unannounced.

(d) *Continuing violation*. Each day that a violation of this section continues shall be a separate offense.

(e) *Promulgation of rules and regulations*. The police chief is authorized to promulgate any rules or regulations necessary for the implementation of this section.
(Ord. No. 09-1179, § 1, 12-17-2009)

Secs. 8-5—8-40. Reserved.

ARTICLE II. MASSAGE PARLORS*

DIVISION 1. GENERALLY

Sec. 8-41. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Establishment means a place of business or operation of any kind.

Massage parlor means:

(1) Any establishment, building, room or place other than a regularly licensed hospital, medical clinic, nursing home or dispensary; or

(2) The offices of a physician, a surgeon, an osteopath or a massage therapist where nonmedical, nonsurgical, nonosteopathic and nonchiropractic manipulative exercises, massages or procedures are practiced upon the human body for other than cosmetic or beautifying purposes, with or without the use of mechanical or other devices, by anyone not a physician, surgeon, chiropractor, osteopath, massage therapist or of a similarly registered status;

and shall include any place where baths, exercises or similar services are offered.

Massage therapist means a person who has graduated from a recognized massage therapy school or has successfully completed testing into the American Massage Therapy Association or other professional massage organization of equivalent professional membership standards. A recognized massage therapy school means any school or institution of learning which has for its purpose the teaching of the theory, method, profession or work of massage therapy. Such school shall show current membership in good standing in the American Massage Therapy Association or other professional massage organization of equivalent professional membership standards.

Massage therapy means the manipulation of soft tissue for therapeutic purposes and may include, but is not limited to, effleurage, petrissage, tapotement, compression, vibration, friction, nerve strokes and other Swedish movements which may include the use of oils, salt glows and hot and cold packs. Massage therapy shall not include diagnosis or any service or procedure for which a license to practice medicine, chiropractic or podiatry is required by law; nor shall it apply to athletic trainers, technicians or physical therapists who act under the prescription or supervision of a person holding an unlimited license to practice medicine or surgery.

*__State law references__—Alabama Massage Therapy Licensure Act, Code of Ala. 1975, § 34-43-1 et seq.; local regulation of massage therapy, Code of Ala. 1975, § 34-43-19.

Masseur (male) and *masseuse* (female) mean a person who practices any one or more of the arts of body massage, either by hand or mechanical apparatus, oil rubs, corrective gymnastics, mechanotherapy, including color therapy, dietetics, hot packs, cabinet, tub, shower, sitz, vapor, steam or any other special type of bath.
(Code 1982, § 18-396; Ord. No. 90-169, § 2, 4-10-1990)

Cross reference—Definitions generally, § 1-2.

Sec. 8-42. Declaration of findings.

Businesses operating massage parlors are businesses affecting the public health, safety and general welfare. Such businesses have been used in the city and elsewhere as fronts for the conduct of prostitution, assignation and lewdness; and in order to protect the public interest, health, safety and general welfare, it is necessary that such businesses be regulated in order to prevent their use for unlawful and illegal activities, and in order to protect the public health and safety.
(Code 1982, § 18-397)

Sec. 8-43. Health and sanitary requirements.

Any massage parlor licensed by the city shall at all times comply with all health regulations, rules and requirements promulgated by the county department of health. Any premises used for the purposes of a massage parlor shall during all hours of operation be made open and available to inspection by the county department of health for the purpose of assuring compliance with health rules, regulations and requirements. Each massage parlor shall be equipped with toilet and lavatory facilities for patrons and separate readily available toilet and lavatory facilities for employees, and each operating area shall be equipped with a hand lavatory.
(Code 1982, § 18-401)

Sec. 8-44. Cleanliness of equipment.

(a) No towels, washcloths or other linen items shall come in contact with the body of any customer or patron at a massage parlor that has not been boiled and laundered since last used.

(b) Every person applying or administering massages shall cleanse his hands thoroughly by washing them with soap and hot water before attending or massaging any person.

(c) Any person while applying or administering massages shall be clothed from the shoulders to the knees by a robe, smock or other opaque apparel so that the patron or customer shall be protected from bodily contact with the person applying or administering the massage except for the hands and arms of the person applying or administering the massage.

(d) Any massage parlor licensed pursuant to this article shall be equipped with running hot and cold water and with all appliances, furnishings and materials as may be necessary to enable persons employed in and about the massage parlor to comply with the provisions of this article.
(Code 1982, § 18-402)

Sec. 8-45. Access to establishment.

It shall be unlawful for any person to render any service to the public upon the premises of a massage parlor except during the time that the establishment is open with free access by the public, during which time all portions of such establishment shall be open to the inspection of any inspector of the county health department and to the chief of police and any officer of the police department.
(Code 1982, § 18-403)

Sec. 8-46. Treatment.

No masseur, masseuse or other employee or attendant in any massage parlor shall apply or administer any massage or other treatment to any person behind locked doors.
(Code 1982, § 18-404)

Sec. 8-47. Use as dormitory.

No massage parlor shall be used as and for a dormitory or place of sleep, nor shall any license under this article permit any massage parlor to be so used.
(Code 1982, § 18-405)

Sec. 8-48. Indecent activities generally.

(a) No owner or manager of a massage parlor shall authorize or tolerate in his establishment any activity or behavior prohibited by the laws of the state or the ordinances of the city, including such laws proscribing acts of prostitution, sodomy, adultery, fornication, or any lewd or obscene act or performance.

(b) Any conviction of the manager or any employee of a massage parlor of a violation of the laws and ordinances mentioned in subsection (a) of this section shall be grounds for revocation of the license of the establishment as provided in this article.
(Code 1982, § 18-406)

Sec. 8-49. Prohibited conduct by employees.

It shall be unlawful for any masseur, masseuse, attendant or person employed in a massage parlor to massage or in any way touch the genital organs of another in connection with any massage or other service rendered by the establishment, or to advertise or offer any massage or physical touching of the genital organs of another in connection with such service. Any person violating the provisions of this section shall upon conviction be punished as provided in section 1-7; and in addition to such penalty, it shall be grounds for revocation of the license of the owner or manager of the establishment.
(Code 1982, § 18-407)

Annotation—It is a valid exercise of the municipal police power to prohibit the touching of the genital organs of another. *Thompson v. Huntsville,* 57 Ala. App. 607 (1976).

Secs. 8-50—8-70. Reserved.

DIVISION 2. LICENSE

Sec. 8-71. Required.

It shall be unlawful for any person to operate a massage parlor without first having acquired from the city clerk-treasurer a business license for the operation of that business as required by chapter 15, article II.
(Code 1982, § 18-398)

Sec. 8-72. Massages at licensed location only.

No massages shall be administered or applied by any licensee under this article or any employee, operator or attendant while working for such licensee, except in or upon the premises or regular place of business of the licensee where the license is regularly displayed and at the place and location designated for the operation of the massage parlor in the license.
(Code 1982, § 18-400)

Sec. 8-73. Health examination.

No applicant for a license to conduct or operate a massage parlor shall be granted a license for such purpose unless he shall first present to the city a written verification by a licensed physician, bearing a date not more than 20 days prior to the date of application, evidencing that the applicant and those persons to be employed by the applicant in and about the operation of the massage parlor are free of any contagious, infectious or communicable disease. No masseur, masseuse or other employee or attendant applying or administering massages shall be employed in any massage parlor subsequent to April 20, 1974, without having first obtained a written verification from a licensed physician bearing a date not more than 20 days prior to such date, that the person or employee is free of any contagious, infectious or communicable disease; and such masseur, masseuse or other employee or attendant of any massage parlor shall at all times while on duty or working in any massage parlor have upon his person such written medical verification.
(Code 1982, § 18-399)

Sec. 8-74. Revocation.

Any license issued under this division by the city may be revoked by the city upon the violation of any section, requirement or provision of this article by the licensee or any agent, attendant or other employee of the licensee, provided the licensee shall first be notified of the violation and be afforded a hearing before the city council. Written notice of any violation under this article and any hearing on such violation before the city council may be given to the licensee by delivering the notice by hand to the licensee, or in his absence to

any adult person employed by the licensee at the licensed premises, or the deposit of the notice postage prepaid with the United States Postal Service and addressed to the licensee at the licensed premises, not less than ten days prior to such hearing before the city council. The licensee may present such evidence as he shall wish to the city council. In the event of any revocation of a license for the operation of a massage parlor in accordance with this section, the licensee shall not be entitled to the issuance of a subsequent license for the operation of a massage parlor in the city within 12 months following the date of revocation.
(Code 1982, § 18-408)

Secs. 8-75—8-110. Reserved.

ARTICLE III. PRECIOUS METALS AND STONES AND SECONDHAND GOODS*

DIVISION 1. GENERALLY†

Sec. 8-111. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Household furnishings are defined as couches, tables, chairs, lamps, etc., that are not antiques. Questions regarding the definition of items should be directed to the police property crimes unit supervisor or his designee.

Precious metals and stones means and includes all gold, silver, pearls, diamond, rubies and other precious stones, and any ornament or item made from or containing gold or silver, or on which is set or displayed pearls, diamonds, rubies or other precious stones, including coins.

Precious metals and stones dealer means and includes any person who is engaged in the business of purchasing precious metals and stones, and is subject to the licensing requirements under article II, Businesses Licenses of chapter 15, Licenses and Taxes, of this Code.

Secondhand dealer means and includes any person who buys, sells, or barters in secondhand goods, and is subject to the licensing requirements under article II, Businesses Licenses of chapter 15, Licenses and Taxes, of this Code, as a pawnbroker or other business, except for automotive dealers as defined therein; and/or any person not subject to such license classifications under article II, Businesses Licenses of chapter 15, Licenses and Taxes, of this Code, who is engaged in the business of buying, selling, trading, or bartering secondhand goods; and/or any person who is a pawnbroker under the Alabama Pawnshop Act, Code of Ala. 1975, § 5-19A-1, et. seq.

Secondhand goods means any property of any kind or description which has been previously sold to or owned by a consumer or other person who is not a merchant as defined by Code of Ala. 1975, § 7-2-104; or that constitutes "pledged goods" under the Alabama Pawnshop Act, Code of Ala. 1975, § 5-19A-1 et seq.; or that is sold or received as scrap or salvage property; provided, that scrap vehicles that are bought from a business duly licensed by the city, scrap vehicles that are bought from the original title holder, household furnishings, clothing, waste, animal waste and/or aluminum drink cans shall not be considered secondhand goods within this article.

Working days means and includes Monday through Friday of any week, excluding however, any official holiday as designated by the state.

Unless otherwise herein defined, the terms in this article have the same meaning as provided in the Alabama Pawnshop Act, Code of Ala. 1975, § 5-19A-1, et. seq.
(Code 1982, § 18-364; Ord. No. 16-965, § 3, 1-12-2017; Ord. No. 18-576, § 1(A), (B), 8-9-2018)
Cross reference—Definitions generally, § 1-2.

Sec. 8-112. Compliance generally.

It shall be unlawful for any person within the city to engage in the business of purchasing precious metals and stones, and/or the business

*__Editor's note—__Ord. No. 16-965, § 1, adopted January 12, 2017, changed the title of art. III.

†__Editor's note—__Ord. No. 16-965, § 2, adopted January 12, 2017, added this division.

of buying, selling or bartering in secondhand goods without complying with the terms of this article.
(Code 1982, § 18-365; Ord. No. 16-965, § 3, 1-12-2017)

DIVISION 2. PRECIOUS METAL AND STONES*

Sec. 8-113. Notice to chief of police.

Any person within the corporate limits of the city who engages in the business of purchasing precious metals or precious stones, or any person who purchases precious metals or precious stones, pursuant to an advertisement wherein the proposed purchaser holds himself out as such purchaser or offers to buy precious metals or precious stones shall, before engaging in such business or enterprise, notify the chief of police by letter that such business or enterprise will be conducted; and the notice shall contain the name of the person who is conducting the business and the address at which such business will be conducted.
(Code 1982, § 18-366)

Sec. 8-114. Records.

(a) Every person engaging in the business or enterprise of purchasing precious metals or precious stones shall provide and keep a book and enter in the book, as each purchase or acquisition is made, the following information:

(1) The name, date of birth and driver's license number of the seller. If the seller does not have a driver's license, other adequate and positive identification which shall be required before a purchase is made shall be shown.

(2) The time and date of the purchase.

(3) An accurate and detailed description of the item purchased, which shall include any marking or inscription, the make and pattern, if available, the marker or style, if appropriate. Each description shall be detailed and accurate and shall include a reference to the size, weight and height. Where appropriate, an indication shall be made whether the item was made for use by a male or a female. If precious stones are purchased, the kind, size and setting of the stones, together with such other information which may be necessary or useful in making a positive identification of the item purchased, shall be indicated. Where several individual items are part of a matched set or class of items, each separate item need not be described separately so long as the description used accurately describes the class or set of items, including their number.

(b) Such book shall be kept for six months next subsequent to any purchase and shall be open to inspection, during business hours, to any authorized law enforcement officer who may make a request to examine the book.
(Code 1982, § 18-367)

Sec. 8-115. Packaging; time of resale.

Every item purchased from one seller shall be separately packaged, or kept separately, and not intermingled or confused with items purchased from another seller, for a period of ten calendar days following the mailing of the report of purchase as required in this article; however, this provision shall not apply to coins which may be intermingled or disposed of immediately. No person engaging in the business or enterprise of purchasing precious metals or precious stones shall sell or otherwise dispose of; or permit to be sold or otherwise disposed of; or remove or permit to be removed from his place of business; or intermingle with other jewelry or stones; or alter, change or deface; or permit to be altered, changed or defaced any such precious metals or precious stones purchased until after the expiration of ten calendar days from the notification to the chief of police of the purchase, as required in this article; however, such items may be removed from the place of business for storage or safekeeping to another place within the jurisdiction of the city approved by the chief of police prior to such removal. It is the intent of this article that the purchase of coins for their metal value is covered

*__Editor's note—__Ord. No. 16-965, § 2, adopted January 12, 2017, added this division.

by this article insofar as such purchases must be recorded under section 8-114; however, no reports of such purchases are required to be made to the chief of police.
(Code 1982, § 18-368)

Sec. 8-116. Reports to chief of police required.

Each precious metals and stones dealer shall report to the chief of police, using the designated reporting system, a description of every precious metal and precious stone received by him/her in a manner and time as set out herein.

(1) *Reporting timeline.* All precious metals and stones received by a dealer shall be reported within 72 hours of the transaction.

(2) *Report contents.* Reports shall include all information described and set forth in section 8-114.

(3) *Computerized reporting.*

a. Every precious metals and stones dealer shall transmit all required reports to the chief of police by means of electronic transmission, using the designated reporting system. Said electronic transmission shall be through a modem or similar device, and in such a format that the data is capable of direct electronic entry into the Huntsville Police Department's designated system used for identifying and tracing lost, stolen, and sought-after property.

b. The chief of police shall establish the format and requirements for the transmission of data and may restrict the scope of the items that are to be electronically reported. A transaction reported by electronic transmission shall not be reported on paper forms unless the chief of police so requests. Each precious metals and stones dealer shall pay to the city a fee of $0.50 per transaction required to be electronically reported if the electronic report transmitted to the chief of police is erroneous, duplicative, or in an incorrect or incompatible format, or if no electronic report of the transaction is transmitted.

(4) *Amendments to reports and formats.* If, after establishing the format and requirements for the transmission of computerized reports of transactions, the chief of police alters the required format, precious metals and stones dealers shall be given at least 30 days to comply with the new format requirements.

(5) *Unlawful to violate this section.* It shall be unlawful for any person to violate any provision of this section.

(Code 1982, § 18-369; Ord. No. 16-965, § 3, 1-12-2017; Ord. No. 18-576, § 2, 8-9-2018)

Sec. 8-117. Purchase or acquisition from minors.

It shall be unlawful for any person engaged in the business of purchasing precious metals or precious stones to purchase or receive from any person less than 19 years of age any precious metals or precious stones.
(Code 1982, § 18-370; Ord. 16-965, § 3, 1-12-2017)

Sec. 8-118. Premises to be open for inspection.

The area and the premises where any person regulated by this article stores or keeps precious metals and stones purchased or acquired in the business shall be open to inspection to any police officer or official of the city at all times during business hours. It shall be unlawful to deny such an inspection or otherwise violate this section.
(Ord. No. 16-965, § 3, 1-12-2017)

Sec. 8-119. Concealment of items.

It shall be unlawful for any precious metals and stones dealer to conceal any precious metals and stones or other items regulated by this article from any official who may inspect the premises under section 8-118.
(Ord. No. 16-965, § 3, 1-12-2017)

Sec. 8-120. Cancellation and revocation of license.

The conviction of any person licensed to engage in the business regulated by this article for violating any of the provisions of this article, or the conviction of any agent, servant or employees of any licensed person for a violation of any of the provisions of this article, while such servant, agent or employee was acting in the line and scope of employment in the business, shall be cause for the revocation of the business license. (Ord. No. 16-965, § 3, 1-12-2017)

DIVISION 3. SECONDHAND GOODS*

Sec. 8-121. Record of purchases.

(a) At the time of any transaction other than renewals, extensions or redemptions, every secondhand dealer shall immediately record in English the following information by using ink or other indelible medium or in a computerized record approved by the police department:

(1) A complete, detailed and accurate description of each item including, but not limited to, any trademark, identification number, serial number, model number, brand name, or other identifying mark on such an item.

(2) The purchase price, amount of money loaned or cash advanced.

(3) Date and time the item of property was received by the secondhand dealer, and the unique alpha and/or numeric transaction identifier that distinguishes it from all other transactions in the secondhand dealer's records.

(4) Full name, traceable serial number from the form of valid identification presented, current residence address, current telephone number, date of birth, race, height, sex and signature of the person from whom the item of property was acquired or purchased.

(5) The maturity date of the pawn transaction; the amount due on maturity date; the monthly rate; and any pawn charges.

(b) The secondhand dealer shall require the presentation of one of the following forms of identification, from the person from whom the property is acquired or purchased:

(1) Valid state-issued driver's license.

(2) Any valid state-issued or armed services-issued identification that includes a photograph of the person listed on the identification, to include a traceable serial number. Photocopies will not be made of any federal or military identification.

(c) The secondhand dealer must take color digital photographs to be submitted to the Huntsville Police Department as digital images. The format specified by the police department shall cross reference the transaction that the photographs are associated with and shall depict the following:

(1) *All distinctive or unique jewelry, artwork and/or any item that has distinguishing marks, writings, numbers or engravings*. A photograph shall be taken of the item and the distinguishing mark, writing, number or engraving. Questions regarding the photographs of items should be directed to the police property crimes unit supervisor or his designee.

(2) *Each individual involved in the transaction*. A photograph of the person from whom the property is acquired that is taken at the time of the transaction by the secondhand dealer is preferred for identification purposes; however, a photograph of a valid state-issued driver's license or identification card of the seller is acceptable. The photograph taken by the secondhand dealer shall be for identification purposes, and shall include an identifiable front facial close-up view of the person who pawned or sold the item. Hats, sunglasses, scarves, or other clothing that may hide facial features may not be worn in the photograph. The secondhand dealer shall inform the person

*__Editor's note—__Ord. No. 16-965, § 2, adopted January 12, 2017, added this division.

that he or she is being photographed by displaying a sign of sufficient size in a conspicuous place in the premises.

(d) Items that are re-pawned by the same individual shall not need to be recorded as a new item in the designated system, but shall be linked to the previous pawn entry.
(Ord. No. 16-965, § 3, 1-12-2017; Ord. No. 18-576, § 3, 8-9-2018)

Sec 8-122. Reports to chief of police required.

Every secondhand dealer shall report to the chief of police, using the designated reporting system, a description of every secondhand good received by him/her in a manner and time as set out herein.

(1) *Reporting timeline*. All secondhand goods received by a dealer shall be reported within 72 hours of the transaction.

(2) *Report contents*. Reports shall include all information described and set forth in section 8-121.

(3) *Computerized reporting.*

a. Every secondhand dealer shall transmit to the chief of police, by means of electronic transmission through a modem or similar device, in such a format that the data are capable of direct electronic entry into the Huntsville Police Department's computerized system for identifying and tracing lost, stolen, and sought-after property, the information required by section 8-121.

b. The chief of police shall establish the format and requirements for the transmission of data and may restrict the scope of the items that are to be electronically reported. A transaction reported by electronic transmission shall not be reported on paper forms unless the chief of police so requests. Each secondhand dealer shall pay to the city a fee of $0.50 per transaction required to be electronically reported if the electronic report transmitted to the chief of police is erroneous, duplicative, or in an incorrect or incompatible format, or if no electronic report of the transaction is transmitted.

(4) *Amendments to reports and formats*. If, after establishing the format and requirements for the transmission of computerized reports of transactions, the chief of police alters the required format, secondhand dealers shall be given at least 30 days to comply with the new format requirements.

(5) *Unlawful to violate this section*. It shall be unlawful for any person to violate any provision of this section.
(Ord. No. 16-965, § 3, 1-12-2017; Ord. No. 18-576, § 4, 8-9-2018)

Sec. 8-123. Purchases to be retained for fifteen days in original state; exception.

(a) It shall be unlawful for any secondhand dealer to sell or otherwise dispose of any secondhand goods, or permit any secondhand goods to be sold or otherwise disposed of, or remove or permit to be removed any secondhand goods from such person's place of business, or intermingle any secondhand goods with other secondhand goods, or to alter, change or deface, or permit to be altered, changed or defaced, any secondhand goods, until after the expiration of 15 business days from the date of the purchase or acquisition thereof, except as noted herein.

(b) Salvage yards that purchase salvage metals such as iron, aluminum, aluminum cans, copper, brass, bronze, and other scrap metals and alloys are permitted to intermingle property from multiple transactions and may remove the items from their premises for resale, provided all the requirements set forth in section 8-121 of the City Code have been met.

(c) Secondhand dealers that purchase automobiles or other vehicles shall maintain the automobiles or other vehicles on the business premises in the same condition which they were purchased or otherwise received for seven calendar

days before crushing, dismantling or otherwise disposing of said automobiles or other vehicles. Prior to any alteration or disposal of said vehicle, the secondhand dealer shall verify vehicles through the website provided by the state (https://scrap.mvtrip.alabama.gov/) to check for any theft or other criminal activity associated with the vehicle, as provided by state law. The provisions of this subsection shall not apply to a "pledged goods" transactions governed by the Alabama Pawn Shop Act, Code of Ala. 1975, § 5-19A-1 et seq. This ordinance does not apply to vehicles purchased from a business duly licensed by the city, or vehicles that are purchased from the original title holder. However, if the title has been signed on the back, the vehicle shall be held for seven days.
(Ord. No. 16-965, § 3, 1-12-2017; Ord. No. 18-576, § 5, 8-9-2018)

Sec. 8-124. Purchase or acquisition from minors.

It shall be unlawful for any secondhand dealer to purchase or acquire in any manner any secondhand goods from any person less than 19 years of age.
(Ord. No. 16-965, § 3, 1-12-2017)

Sec. 8-125. Premises to be open for inspection.

The area and the premises where any person regulated by this article stores or keeps secondhand goods purchased or acquired in the business shall be open to inspection to any police officer or official of the city at all times during business hours. It shall be unlawful to deny such an inspection or otherwise violate this section.
(Ord. No. 16-965, § 3, 1-12-2017)

Sec. 8-126. Concealment of items.

It shall be unlawful for any secondhand dealer to conceal any secondhand goods or other items regulated by this article from any official who may inspect the premises under section 8-125.
(Ord. No. 16-965, § 3, 1-12-2017)

Sec. 8-127. Cancellation and revocation of license.

The conviction of any person licensed to engage in the business regulated by this article for violating any of the provisions of this article, or the conviction of any agent, servant or employees of any licensed person for a violation of any of the provisions of this article, while such servant, agent or employee was acting in the line and scope of employment in the business, shall be cause for the revocation of the business license.
(Ord. No. 16-965, § 3, 1-12-2017)

Secs. 8-128—8-140. Reserved.

ARTICLE IV. VEHICLES FOR HIRE*

DIVISION 1. GENERALLY

Sec. 8-141. Application of article; definitions.

(a) *Application of division 2 and division 3*. Division 2 of this article governs and regulates eligible livery vehicles and division 3 of this article governs and regulates transportation network vehicles, both categories of vehicles are denominated as "eligible vehicles for hire," which are authorized to operate in the corporate limits of the city in accordance with the provisions of this article.

(b) *Definitions*. The following words, terms and phrases, when used in this article shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Compensation means any money, thing of value, payment, consideration, reward, tip, donation, gratuity, or profit paid, accepted, or received in exchange for transportation of a passenger,

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*__Editor's note—__**Editor's note—**Ord. No. 16-103, § 1, adopted Feb. 11, 2016, amended Art. IV in its entirety to read as herein set out. Former Art. IV, §§ 8-151—8-316, pertained to similar subject matter. For prior history, see Code Comparative Table.

State law reference—Authority to license and regulate vehicles for hire, Code of Ala. 1975, § 11-51-101.

whether paid upon solicitation, demand or contract, or voluntarily, or intended as a gratuity or donation.

Courtesy vehicle means an unmetered motor vehicle operated exclusively by, or under contract with, any motel, hotel, convention or civic center, hospital, business or other entity for the convenience of its customers, guests, patients, or clients, provided there is no direct or separate remuneration required of the passengers. Such term shall include specially equipped courtesy vehicles used for the transportation of the physically disabled, chronically ill, and their attendants, including a motor vehicle that is wheelchair accessible.

Eligible livery vehicle is as defined in section 8-151 of this article.

Transportation network vehicle or *TNV* is as defined in section 8-341 of this article.

Vehicle for hire means any motor vehicle or other vehicle of whatever name called, which is used or operated for the purpose of transporting persons upon the public streets with the intent to receive compensation for providing such transportation.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-142. Exclusions from the operation of this article.

(a) This article shall not apply to the following:

(1) Vehicles operated by a governmental agency;

(2) Vehicles tendering transportation services not for compensation;

(3) Vehicles operated solely as courtesy vehicles;

(4) Discharge of a passenger inside the city limits, where such passenger was picked up outside the city limits by a licensed vehicle for hire operating under another local jurisdiction having regulatory authority over the operations of the vehicle for hire that would otherwise be subject to the provisions of this article;

(5) Vehicles operated as ambulances or other pre-hospital service providers;

(6) Vehicles operated for the transportation of passengers between the vicinity of their residence and the vicinity of their places of work, charging, if any charge, only a fee calculated to reasonably cover expenses, in an arrangement commonly known as a "car pool" or "van pool";

(7) Vehicles operated by funeral homes in conjunction with the providing of funeral services;

(8) Vehicles used for the transportation of pupils to and from school or to and from school activities, and which are owned, operated, rented or leased by the Huntsville Board of Education or by any private school located within the city;

(9) Vehicles used for the transportation of persons to and from church or to and from church activities, and which are owned, operated, rented or leased by any church located within the city; and

(10) Vehicles which the city does not have the federal or state authority to regulate.

(b) Exclusion from the provisions of this article in accordance with subsection (a) shall not be construed as relieving any person from otherwise complying with applicable federal, state or local laws, ordinances or regulations, including chapter 15 of this Code governing business licenses.

(c) Vehicles, and the operation thereof, otherwise excluded in subsection (a) of this section shall not be relieved from compliance with the provisions of this article in the event such vehicles are used or operated in such a manner as would cause them to come within the regulatory purview of this article.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-143. Violation; penalty.

(a) Unless excluded from this article under section 8-142, it shall be unlawful for any person to operate or allow or cause to be operated a

vehicle for hire in the city that is not an eligible vehicle for hire duly authorized in accordance with this article.

(b) An offense against a provision of this article shall be a violation which shall be governed by the provisions of section 1-7 of this Code.
(Ord. No. 16-103, § 1, 2-11-2016)

Secs. 8-144—8-150. Reserved.

DIVISION 2. LIVERY VEHICLES

Subdivision I. Generally

Sec. 8-151. Definitions; methods for notice.

(a) *Definitions*. The following words, terms and phrases, when used in this division shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Affiliated driver means a driver that operates a vehicle for hire for a vehicle for hire company, including as an owner, servant, agent, employee, or independent contractor of the company.

Airport shuttle means an unmetered motor vehicle with an original seating capacity of not less than five and not more than 15, which is not operated on a fixed route and which is used to transport passengers or baggage for compensation upon the public streets to or from the Huntsville International Airport on a pre-arranged basis.

Base of operation means a certified company's fixed base of operation from which the company conducts its business and which is suitably staffed by qualified and knowledgeable representatives of the company who are available during regular business hours to accept or respond to notices and inquiries of the city in its administration and enforcement of this division and where records required to be maintained under this division are kept.

Carriage means a non-motorized vehicle drawn by horse that is used to transport passengers for compensation upon the public streets.

Certificate holder means a person that has obtained and maintains a certificate of public convenience and necessity pursuant to this division.

Certificate of public convenience and necessity or *certificate* means the certificate issued pursuant to a resolution of the city council, adopted in accordance with applicable provisions of this division, that authorizes the holder thereof to obtain a business license to operate or allow or cause to be operated, in conformance with the certificate and the applicable provisions of this division, an eligible livery vehicle upon the public streets for the convenience and necessity of the public.

Certified vehicle for hire company or *certified company* means a vehicle for hire company that has obtained and maintains a certificate of public convenience and necessity and a business license pursuant to this division.

Certified vehicle for hire or *certified vehicle* means those vehicles which are operating under a certificate of public convenience and necessity and have been authorized to operate in accordance with applicable provisions of this division.

Chief of police means the chief of police of the city or his/her designees or subordinates. The chief of police may designate persons assigned to the police department or other city departments as deputies or inspectors to carry out the provisions of this division to the extent allowed by law.

City business license or *business license* means the business license issued by the city clerk-treasurer in accordance with chapter 15 of this Code.

City chauffeur's license or *chauffeur's license* means a license issued by the chief of police, pursuant to subdivision III of this division, that authorizes the holder thereof to operate a certified vehicle for hire other than a transportation network vehicle.

City clerk-treasurer means the city clerk-treasurer of the city or his/her designees or subordinates.

City enforcement official or *enforcement official* means the persons authorized to administer and enforce the provisions of this division on behalf of the city as specified in this division.

Compensation means any money, thing of value, payment, consideration, reward, tip, donation, gratuity, or profit paid, accepted, or received in exchange for transportation of a passenger, whether paid upon solicitation, demand or contract, or voluntarily, or intended as a gratuity or donation.

Dedicated wheelchair accessible vehicle means an unmetered motor vehicle that is wheelchair accessible, with an original seating capacity of not more than 15, which is used exclusively to transport mobility-impaired passengers and their attendants, if any, for compensation upon the public streets on a pre-arranged basis.

Director of parking and public transit or *director* means the director of the department of parking and public transit of the city or his/her designees or subordinates. The director of parking and public transit may designate persons assigned to the department of parking and public transit as deputies or inspectors to carry out the provisions of this division to the extent allowed by the law.

Driver means an individual operating a vehicle for hire upon the public streets of the city.

Eligible livery vehicle means the following vehicles for hire that are entitled under this division to obtain and maintain a certificate of public convenience and necessity as a certified vehicle for hire:

(1) Airport shuttle;

(2) Carriage;

(3) Dedicated wheelchair accessible vehicle;

(4) Limousine;

(5) Luxury vehicle;

(6) Pedicab;

(7) Special shuttle; and

(8) Taxicab.

Inspection sticker means the numbered and dated sticker affixed to the front windshield of a vehicle for hire denoting that vehicles successful inspection and authority to operate for the time period denoted on the sticker.

Limousine means an unmetered, unmarked, stretch, luxury motor vehicle whose chassis and wheelbase have been altered by a Qualified Vehicle Modifier (QVM) program participant (or its equivalent) beyond the length of the manufacturer's original specifications, whether at the time of manufacture or after, commonly referred to as a stretch limousine, which is not operated on a fixed route and which is used in the business of transporting passengers for compensation upon the public streets on a pre-arranged basis. The term also includes vintage and classic vehicles as approved by the director of parking and public transit.

Luxury vehicle means an unmetered, unmarked motor vehicle, excluding trucks and buses, that is recognized by the industry and approved by the director of parking and public transit as a full-sized luxury passenger vehicle, including sport utility vehicles (SUVs), with a maximum original seating capacity of not less than five and not more than fifteen, which is not operated on a fixed route and which is used to transport passengers for compensation upon the public streets on a pre-arranged basis.

Operate means the transporting of a passenger for compensation upon the public streets.

Original seating capacity means a vehicle's originally designed seating capacity, inclusive of the driver and the passengers, prior to any type of customization, modification, or conversion.

Passenger means an individual other than the driver who is an occupant of a vehicle for hire; which person shall be presumed to be a passenger for compensation.

Pedicab means a non-motorized vehicle propelled by human power, having two or more wheels, with power transmitted from the pedals to the wheels by means of a belt, chain, gears, or any combination thereof, designed and constructed to carry one or more passengers that is used to transport passengers for compensation upon the public streets.

Pre-arranged basis means a written or electronically transmitted reservation made in advance of passenger boarding from a specific location for the exclusive use of an unmetered vehicle for hire by a passenger or passengers who determine the trip's points of destination and timing.

Public street means any public street, road, alley, or any other such right-of-way within the corporate limits.

Special shuttle means an unmetered motor vehicle that is a van or small minibus with an original seating capacity of not less than ten and not more than 21, which is not operated on a fixed route and which is used to transport passengers for compensation upon the public streets to or from passenger prescribed destinations, excluding the airport, on a pre-arranged basis.

Taxicab or *taxi* means a motor vehicle, equipped with a taximeter, that is a sedan, non-luxury sports utility vehicle (SUV), or mini-van with a distinctive color scheme, not operated on a fixed route, with a maximum original seating capacity of eight persons that is used to transport passengers for compensation upon the public streets.

Unmetered means that the vehicle is not equipped with a taximeter or is not then-currently certified and authorized as a taxi under this division.

Vehicle authorization means that a particular vehicle is authorized by the city to operate as a certified vehicle for hire.

Vehicle for hire means any motor vehicle or other vehicle of whatever name called, which is used or operated for the purpose of transporting persons upon the public streets with the intent to receive compensation for providing such transportation.

Vehicle for hire company or *company* means a person engaged in a business that owns, leases, or controls one or more vehicles for hire and drives or allows or causes any such vehicle to be driven upon the public streets in order to transport passengers for compensation.

Vehicle permit number or *permit number* means the number assigned by the city and displayed on or maintained in each vehicle, as required under this division.

Wheelchair accessible means a motor vehicle that a passenger in a wheelchair may enter and exit independently or with assistance while seated in a wheelchair that is equipped with operative features for wheelchair users that meet or exceed the requirements of section 8-243 of this division.

(b) *Notice methods.*

(1) *Notice by city.* Unless expressly provided otherwise, all written notice required to be provided by a city enforcement official under this division shall be, at the enforcement official's option, delivered personally, or sent by certified mail, return receipt requested, or by first class U.S. mail, to the last-known address the enforcement official has on file of the person to whom notice is required to be sent under the provisions of this division. Unless otherwise expressly provided for in this division, written notices shall be deemed served or received as follows: if by personal delivery, upon delivery; if by first class U.S. mail, three days after mailing; or if by certified mail, upon receipt.

(2) *Notice to city enforcement official.* Unless otherwise expressly provided for in this division, all written notice required to be provided to an enforcement official under this division shall be provided using any one of the methods, at the option of the person sending the notice, prescribed in subsection (b)(1) above. Unless otherwise expressly provided for in this division, written notices shall be deemed served or received as set forth in subsection (b)(1) above.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-152. Use of online enabled application or digital dispatch services; information to passengers; obstruction of enforcement.

(a) For purposes of this section, the term "enforcement official" means the chief of police, other law enforcement officers of the city, the director of parking and public transit, and their respective subordinates or designees.

(b) Nothing provided in this division shall be construed to prohibit or limit the utilization of an online-enabled application (app) or digital platform for the provision of prearranged ride services by a certified company that is not a transportation network company, as that term is defined in section 8-341 of this article.

(c) It shall be unlawful for a certified company using an on-line enabled application (app) or digital platform for the provision of prearranged ride services, including the company's agents, servants, or employees, to disable, eliminate or otherwise prevent access to the company's mobile application by an enforcement official, for purpose of interfering with or obstructing the enforcement of this division, or to otherwise take an action intended to obstruct or interfere with the enforcement of this division by an enforcement official.

(d) All certified companies that use an online enabled application (app) or digital platform for the provision of prearranged ride services shall, at a minimum, display on its online-enabled application or digital platform to actual or potential passengers, prior to pick up, a recent photograph of the driver, the type of vehicle, and the driver's first name.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-153. Violation.

It shall be a violation of this division for a driver or a vehicle for hire company, its servants, agents, or employees, to fail to comply with the applicable provisions of this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-154. Penalty.

An offense against a provision of this division shall be a violation which shall be governed by the provisions of section 1-7 of this Code.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-155. Right to amend division.

By its issuance of certificates, licenses, authorizations, or other approvals provided for in this division, the city does not waive and expressly reserves the right to, at any time and from time to time, amend or repeal any of the provisions of this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Secs. 8-156—8-180. Reserved.

Subdivision II. Certificate and Business License Requirements

Sec. 8-181. Required.

Unless excluded from this article under section 8-142, it shall be unlawful for a driver or a vehicle for hire company to operate or allow or cause to be operated a vehicle for hire upon the public streets without having then in force a certificate of public convenience and necessity and city business license required under this division. A certified company shall notify its affiliated drivers if its certificate or license is no longer in effect.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-182. Uncategorized vehicles for hire.

(a) Notwithstanding anything to the contrary contained in this division, a vehicle for hire that does not fall into one of the categories of eligible livery vehicles may, nevertheless, apply for, on forms provided by the city, a temporary certificate of public convenience and necessity from the director of parking and public transit in order to operate on a temporary basis, not to exceed nine months, should the director, in his sole discretion, determine that the proposed category of vehicle for hire is one that should be available to serve the public convenience and necessity and issuance of the temporary certificate would not

be contrary to the public health, safety, and general welfare. Notwithstanding the foregoing, a temporary certificate shall not be issued for the same or a substantially similar category of vehicle for hire that the city council has considered for addition to this division within the preceding two-year period.

(b) If the director has issued a temporary certificate under subsection (a) of this section, then he shall, within six months after issuance of the temporary certificate submit to the city council for its consideration an amendment to this division to add the particular category of vehicle being operated under the temporary certificate. If this division is amended to add the new category of vehicle for hire as an eligible livery vehicle then the holder of the temporary certificate shall, in order to continue to operate, obtain a certificate of public convenience and necessity within thirty days of the amendment to this division. If this division is not amended to add the new category of vehicle for hire by the end of the nine-month permit period, then the temporary certificate and the business license shall immediately be deemed to expire without the necessity of further action by the city and the holder thereof shall immediately cease to operate.

(c) The issuance of a temporary certificate shall be conditioned upon complying with the insurance and inspection requirements of this division, obtaining a business license, and such other conditions that the director deems appropriate under the circumstances in order to protect the public health, safety, and general welfare. A vehicle for hire being operated under a temporary certificate shall be operated on the public streets by the holder of a chauffeur's license.

(d) The issuance of a temporary certificate under this section shall not be construed to grant the holder thereof any vested right or property interest in the temporary certificate, the use of the public streets to operate a vehicle for hire, an amendment to this division to accommodate the particular category of vehicle for hire, or the issuance of a certificate of public convenience and necessity.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-183. Filing fee; application for certificate.

Every company that desires a certificate of public convenience and necessity to operate an eligible livery upon the public streets shall pay a filing fee of $50.00 and make a written application for a certificate to the city council upon forms to be furnished by the city clerk-treasurer, verified under oath stating:

(1) The name, address, and telephone number of the applicant, specifying, in the case of an unincorporated association, partnership, or firm, the names and addresses of each member or general partner thereof, and the quantum of interest of each member or general partner; and specifying in the case of a corporation, the names and addresses of each stockholder of a corporation whose shares are not publicly traded, officer, and director, with the number of shares of stock owned or held by each officer and director.

(2) The amount(s) of all unpaid judgments against the applicant, each member, general partner, officer, or director; the nature of the transaction or acts giving rise to said judgments; and, the name and location of the court in which and the date on which each was entered.

(3) All misdemeanors or felonies of which the applicant and any member or general partner thereof, if an unincorporated association, partnership, or firm, and any officer or director, if a corporation, has been convicted, stating the names and locations of the courts in which and the date on which such convictions were had and the penalties imposed therefor.

(4) The applicant's proposed base of operation.

(5) The number of vehicles which the applicant proposes to operate.

(6) A description of the proposed insignia, trade name, and proposed color scheme for each vehicle. In the case of taxicab companies, the trade name must contain the word "taxicab," "taxi," or "cab."

(7) A description of any and all services the applicant proposes to provide.

(8) Any other relevant information which the city clerk-treasurer, police department, or department of parking and public transit may require.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-184. Finding of council.

No certificate of public convenience and necessity shall be granted to operate a vehicle for hire until the city council shall have determined, by resolution, that the company is qualified, the vehicle is an eligible livery vehicle and that the public convenience and necessity requires the proposed eligible livery vehicle service.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-185. Notice of hearing.

Before making any finding as to whether public convenience and necessity justify the issuance of a certificate of public convenience and necessity for the proposed eligible livery vehicle, the city council shall cause to be published, in a newspaper of general circulation in the city, a notice stating that such application has been made; the number of vehicles for which such application has been made; and that a public hearing shall be held to determine whether public convenience and necessity require such services on the date fixed therein, which date must be not less than seven days after the date of such publication.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-186. Basis for issuance generally; issuance.

In making the findings of public convenience and necessity required by section 8-184, the city council shall take into consideration the number of certified vehicles for hire already in operation in the city; whether existing transportation is adequate to meet the public need; the probable effect of additional certified vehicles for hire on local traffic conditions; the character, experience, and responsibility of the applicant; and that the service which the applicant proposes to give is adequate and is in compliance with the requirements of this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-187. Number of taxicabs.

In order to better control and regulate the taxicab operations within the city, the city council shall not make a finding that the public convenience and necessity justify the issuance of a taxicab certificate of public convenience and necessity unless the application therefor shall provide for the operating of at least three taxicabs. The intent being that no certificate for taxicab service shall be granted to any person, unless such applicant operates three or more taxicabs.
(Ord. No. 16-103, § 1, 2-11-2016; Ord. No. 19-993, § 1, 11-7-2019)

Sec. 8-188. Issuance of certificate.

(a) If the city council shall find that further eligible livery vehicles are required by public convenience and necessity, and if the city council shall find from the statements contained in the application for a certificate of public convenience and necessity that the applicant is qualified and able to perform such public transportation, and that the applicant is able to conform with the provisions of this division, then the city council shall adopt a resolution certifying that the public convenience and necessity require the proposed eligible livery vehicle service. Such resolution may contain any qualifications or limitations the city council deems appropriate to impose in order to protect the public and to promote the safe, efficient, and effective use of the public streets. It shall be unlawful and a cause for suspension or revocation of a certificate and business license for any person, including drivers and companies, to operate or allow or cause to be operated any certified vehicle for hire contrary to any qualifications or limitations imposed by the city council in the resolution adopted in accordance with this section.

(b) Where a resolution provides for a specified number of vehicles for hire to operate under a certificate, then the certificate holder may add up to four vehicles per calendar year during the

term of the certificate, provided that the director of parking a public transit determines that the certificate holder, at the time of the request for additional vehicles, is operating in accordance with the provisions of this division. Where a resolution provides for a specified number of vehicles for hire to operate under a certificate and the certificate holder desires to add more than four vehicles to the specified number in any given year during the term of the certificate, then the holder must apply for an amendment to the certificate, which shall be acted upon by the city council in the same manner as the original application. All such additional vehicles shall be subject to the same qualifications and limitations, if any, imposed on the initially certified vehicles by the city council. Notwithstanding anything to the contrary in this subsection (b), in no event shall a certificate holder be allowed to add additional vehicles if the holder is operating less than the approved number of vehicles, including the specified number and additionally approved vehicles, if any, at the time of the request for additional vehicles.

(c) The resolution adopted by the city council pursuant to the provisions hereof shall be known as the certificate of public convenience and necessity and shall entitle the holder thereof the non-exclusive right to apply for a city business license subject to complying with all applicable conditions to issuance of the business license and requirements of this division. The certificate of public convenience and necessity shall be conditioned upon compliance with section 8-189, concerning issuance of a business license and vehicle authorization, within the time provided by that section.

(d) Each certificate shall be valid for up to a ten year period from the date of issuance, unless terminated, revoked, or abandoned sooner, or unless the category of the certified vehicle is eliminated from the definition of an eligible livery vehicle category. In addition, a vehicle for hire company that is operating a vehicle licensed on or before January 1, 2015, pursuant to an already-issued certificate is hereby granted, subject to compliance with applicable provisions of this division, an extension of the term of its certificate for up to a ten-year period starting the later of January 1, 2015, or the expiration stated in the certificate, unless terminated, revoked, or abandoned sooner, or unless the category of the certified vehicle is eliminated from the definition of an eligible livery vehicle category.

(e) The issuance of a certificate of public convenience and necessity and city business license shall not be construed to create a vested property interest or right of any type in favor of the holder thereof.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-189. Issuance of a business license.

(a) *Business license.*

(1) A certificate holder authorized to operate taxis shall have 60 days after the adoption of the resolution certifying the public convenience and necessity to exercise the certificate by obtaining a business license from the city clerk-treasurer and by having at least three vehicles authorized and in operation in accordance with the requirements of this division; otherwise the certificate for public convenience and necessity and the authorization for licensure shall be deemed automatically rescinded. The director of parking and public transit may grant a 60-day extension for good cause shown. All other certified companies shall have six months from the date of issuance of the certificate to exercise the certificate by obtaining a business license from the city clerk-treasurer and by having at least one vehicle authorized and operating in accordance with the requirements of this division; otherwise the certificate for public convenience and necessity and the authorization for licensure shall be deemed automatically rescinded.

(2) Upon the certificate holder's compliance with the applicable provisions of this division and the city's business license code, and the certificate holder's establishment of a base of operation, then the city clerk-treasurer shall issue to the

certificate holder a business license after payment of the appropriate business license tax.

(3) The business license shall be deemed to include such qualifications and limitations which the city council has imposed in its certificate of public convenience and necessity and non-compliance with such qualifications and limitations shall be a violation of this division.

(Ord. No. 16-103, § 1, 2-11-2016; Ord. No. 19-993, § 2, 11-7-2019)

Sec. 8-190. Insurance.

(a) Before a business license can be issued under this division the certificate holder shall file with the city clerk-treasurer a certificate of insurance that the certificate holder and each vehicle for hire to be operated is insured against public liability in the minimum limits required by the Alabama Public Service Commission but in any event not less than, in the case of special shuttles and pedicabs that are defined as pedal carriages in section 8-244 of this division, $100,000.00 for personal injury to any one person in any one accident, and $500,000.00 for personal injury to two or more people in any one accident, and $50,000.00 for property damage in any one accident, and, in the case of all other vehicles for hire, $100,000.00 for personal injury to any one person in any one accident, and $300,000.00 for personal injury to two or more people in any one accident, and $50,000.00 for property damage in any one accident, which insurance policy and certificate shall provide that the City of Huntsville shall be given at least 30 days' prior notice of cancellation. Such policy shall not be canceled or suspended, either by the insured or the insurer, unless at least 30 days' notice in writing of the intention to cancel or suspend policy has been filed with the city clerk-treasurer, and upon such suspension or cancellation of insurance, the vehicle authorization of the certified vehicles for hire of said insured shall stand automatically suspended until such time as an acceptable policy and certificate of insurance shall be on file with the city clerk-treasurer. The company shall notify its affiliated drivers that its insurance is not in effect and that the vehicle authorizations have been automatically suspended, without action being required by the city. Any vehicle licensed under this division with an original seating capacity of more than eight passengers shall be insured in the minimum limits of as required by the Alabama Public Service Commission, but in no case for less than the limits required in this provision.

(b) Proof of insurance must be physically present in each certified vehicle while it is being operated and present it to an enforcement official upon request.

(Ord. No. 16-103, § 1, 2-11-2016; Ord. No. 18-575, § 1, 8-9-2018)

Sec. 8-191. Renewal.

Upon the certification by the holder that there have been no changes in the information submitted as a prerequisite to the issuance of a certificate and a business license, including the required insurance coverage, and upon the approval of the city clerk-treasurer, a business license issued to a certificate holder may be renewed annually for additional periods of one year each from the date of expiration for so long as the certificate of public convenience and necessity authorizing such licensure has not been revoked, suspended, abandoned, has expired according to its terms, or is otherwise no longer in effect; provided, however, that any business license not renewed after March 1 each year shall be deemed abandoned. A 60-day extension may be granted by the city clerk-treasurer for good cause shown.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-192. Operating fewer taxicabs than authorized.

It shall be unlawful and cause for suspension or revocation of a certificate of public convenience and necessity and business license for a certificate holder that has been issued a certificate of public convenience and necessity to operate taxicabs upon the public streets, to fail to have in operation at least three taxicabs for a period of time exceeding 60 days out of any period of 90 days,

unless the director of parking and public transit has granted a 60-day extension for good cause shown.
(Ord. No. 16-103, § 1, 2-11-2016; Ord. No. 19-993, § 3, 11-7-2019)

Sec. 8-193. Changes reported.

Any change in the information furnished in the application for a certificate of public convenience and necessity or business license issued pursuant to this division must be reported to the city clerk-treasurer and director of parking and public transit in writing within twenty days and failure to so report may be cause for suspension or revocation of the certificate of public convenience and necessity, and any license issued pursuant thereto.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-194. Transfer.

A certificate of public convenience and necessity issued under this division is not transferable.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-195. Action against business license and certificate.

(a) Upon the recommendation of the director of parking and public transit or the chief of police, the city clerk-treasurer may petition the city council to take action against a business license issued under this division in accordance with section 15-56 of this Code, which includes the notice and hearing requirements set forth therein. In addition to the reasons stated in section 15-56(a) of this Code, each of the following shall also constitute grounds for action being taken against the license:

(1) If the licensee or those acting on its behalf make any false statement or misrepresentation on any applications made under this division, including applications for a certificate of public convenience and necessity or a business license issued under this division.

(2) Failure of the licensee to maintain any of the general qualifications required in this division in order to obtain a certificate or business license.

(3) If the licensee or those acting on its behalf violates a provision of this division, which includes the operation of a certified vehicle for hire by a person who does not hold a then-current chauffer's license, if a chauffeur's license is required to operate the vehicle under subdivision II of this division.

(b) The action taken against a business license shall automatically constitute the same action being taken against the certificate of public convenience and necessity of the affected licensee; provided, however, in order to permanently revoke a certificate of convenience and necessity the director of parking and public transit or chief of police must recommend and the city clerk-treasurer must petition the city council that, at the same time and in the same proceeding, the certificate of public convenience and necessity be permanently revoked based on the same grounds that warrant action being taken against the business license, and the certificate holder must be notified that permanent revocation is being considered. The permanent revocation of the certificate shall constitute a permanent revocation of the business license and shall disqualify the certificate holder from holding a certificate, and, should the city council expressly make the determination, the immediate family members, officers, directors, general partners, members, or mangers, as the case may be, shall also be disqualified from holding a certificate.

(c) It shall be unlawful for any person, including the company or a driver, to operate or allow or cause to be operated a vehicle for hire under a license or certificate during the effective period of an adverse action taken against the license or certificate.
(Ord. No. 16-103, § 1, 2-11-2016; Ord. No. 22-70, § 1, 2-10-2022)

Secs. 8-196—8-211. Reserved.

Subdivision III. Chauffeur's License

Sec. 8-212. Exclusions; required.

(a) This subdivision, consisting of sections 8-212 through 8-216, shall not apply to drivers of carriages or pedicabs and the reference to "certified vehicles for hire" in this subdivision shall not mean carriages or pedicabs.

(b) It shall be unlawful for any person to operate a certified vehicle for hire who does not possess a valid city chauffeur's license.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-213. Chauffer's license.

(a) *Application; fee.* Every person desiring to drive a certified vehicle for hire shall pay a fee of $25.00 and shall make a written application to

the chief of police, on forms furnished by the chief of police. The application shall be verified under oath stating:

(1) The name, address, and age of the applicant. The minimum age is 21.

(2) The applicant's place of residence for two years immediately preceding his/her current address.

(3) A full description of the applicant, including his/her race, height, weight, color of eyes and hair, scars or marks.

(4) The names and addresses of the applicant's employers during the last five years prior to his/her application.

(5) All misdemeanors and felonies for which the applicant has been convicted. The applicant shall state the name and location of the court and the date on which each such conviction was rendered and the penalty imposed.

(6) Whether applicant has previously held a license anywhere as a driver or chauffeur and whether such license has been revoked, or suspended, and, if so, for what cause.

(7) The number of the applicant's valid driver's license unless exempt under state law.

(8) Any other relevant information, which the police department may require.

(b) *Attachments to application.* Every applicant for a city chauffeur's license, at the time of submitting his/her application, shall:

(1) Be photographed by the police department.

(2) Exhibit his/her valid driver's license for inspection, unless exempt under state law.

(3) Submit to the State of Alabama a request for a driving record check on the Alabama Department of Public Safety record request form; and criminal record check on the appropriate Alabama Bureau of Investigation criminal history release form.

(c) *Issuance of chauffeur's license.*

(1) No vested property right or property interest of any type is acquired by a chauffeur's license issued to any person under this subdivision.

(2) All chauffeurs' licenses are revocable and subject to suspension in accordance with the provisions of this subdivision and are to be exercised only in conformance with the provisions of this division.

(3) Upon the receipt of the information provided for in subsections (a) and (b) of this section, the chief of police or such other member of the police department as he/she may designate shall issue a temporary city chauffeur's license to the applicant, which shall be valid for a period not to exceed 45 days, if he/she shall find that the applicant holds a valid state driver's license, unless exempt under state law, and the applicant is a fit and proper person to drive a certified vehicle for hire, considering the information submitted in his/her application or otherwise found to exist; otherwise such temporary license shall be denied. The temporary chauffeur's license may be revoked at any time by the chief of police for cause and such revocation shall be final and not subject to appeal.

(4) Upon receipt of the information on official forms received from the department of public safety and Alabama Bureau of Investigation as provided for in subsection (b), the chief of police or other member of the police department as he/she may designate shall issue a city chauffeur's license to the applicant, if he/she shall find that the applicant is a fit and proper person to drive a certified vehicle for hire considering the information submitted from the state's record check from the department of public safety and criminal history record from the Alabama Bureau of Investigation. The city chauffeur's license may be denied based on any disqualifying information the chief of police shall have found to exist, and

written notice of the denial shall be provided to the applicant and shall contain the grounds for denial.

(d) *Duration, renewal, display.*

(1) A city chauffeur's license shall in no event be valid for more than four years from the date of issuance and may be renewed each third year by re-application with the police department. Such application shall include all information required by the chief of police including updated criminal history and driving records check required in section 8-213, and shall be subject to the same approval criteria and process, including the right of appeal in case of denial, as the initial application process.

(2) City chauffeur's license shall be displayed on the dash of all taxicabs in a manner so that they may be seen clearly from all seating positions in the vehicle. In the case of other vehicles for hire a driver shall keep his or her chauffeur's license in his/her possession or in a readily accessible place in the vehicle while it is being operated and present it upon request to a passenger or potential passenger, the chief of police or other a law enforcement officer of the city, or the director of the department of parking and public transit or city personnel operating under the director's supervision.

(e) *Change of address; loss of chauffeur's license.* Every city chauffeur licensed as such pursuant to this division shall within five working days notify the chief of police of any change of his/her address or loss of his/her city chauffeur's license, or temporary chauffeur's license. A lost, destroyed or mutilated chauffeur's license shall be replaced upon payment of a fee of $10.00.

(f) *Transfer*. The city chauffeur's license issued under this division shall enable the holder thereof to operate a certified vehicle for hire for a certified company. The city chauffeur's license shall be nontransferable or assignable from one person to another person.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-214. Suspension; revocation.

(a) *For a violation of division.*

(1) After the issuance of a chauffeur's license, the chief of police may, upon conviction by a court of competent jurisdiction, for an offense against any provision of this division, suspend the chauffeur's license issued hereunder of such person convicted for a period of time not to exceed 90 days.

(2) Upon a second conviction, the chauffeur's license for such person convicted may be permanently revoked by the chief of police.

(b) *Other grounds.* The chief of police may revoke or suspend a chauffeur's license as follows:

(1) Upon conviction by a court of competent jurisdiction of a crime that would otherwise disqualify that person from being issued a chauffeur's license;

(2) If the issuance of the chauffeur's license is based on a false statement or misrepresentation to the city; or

(3) For failure to maintain any of the general qualifications or eligibility requirements required in this subdivision for a chauffeur's license.

(c) *Notice of action*. Except where this division provides for an automatic action against a chauffeur's license, before a chauffeur's license is revoked or suspended the chief of police shall provide written notice to the license holder of the proposed action, stating the grounds therefor, and providing the holder with an opportunity, upon request, to present to the chief of police evidence as to why the chauffeur's license should not be revoked or suspended; provided, however, if, in the opinion of the chief of police, the health or safety of the public is immediately threatened the chief may immediately suspend, orally or in writing, the chauffeur's license, and upon such immediate suspension the holder of the chauffeur's license may proceed to request a hearing as hereafter provided.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-215. Appeal of denial, suspension; revocation.

(a) Except where this division provides for an automatic action against a chauffeur's license, in which case no appeal is provided for, in order to appeal the denial, suspension, or revocation of a chauffeur's license, the license holder must, within fifteen days after receiving the police chief's notice, provide to the police chief a written notice requesting a hearing. The notice requesting a hearing shall set forth the reason(s) why the holder disagrees with the action of the chief, the names of any witnesses, a list of any documents that will be submitted at the hearing, and whether the holder will be represented at the hearing and the name of the counsel or representative of choice of the possessor. Failure to file a timely appeal shall cause the chief's decision to be final, unless the chief waives the failure for good cause shown.

(b) The chief of police shall set a hearing within 30 days of the date a request for a hearing has been received; provided, however, in the event of immediate suspension, the hearing shall be set within ten days from the date the written notice requesting a hearing has been received. Notice of the hearing shall be sent to the holder and shall state the hearing date, time, and location.

(c) Within 20 days of the conclusion of the hearing, the chief of police shall render a decision, which may include, but not be limited to, the following:

(1) Upholding or reversing his denial.

(2) Suspension, for a designated period of time or until a violation has been remedied, of the chauffeur's license.

(3) Revocation of the chauffeur's license for a minimum of one year.

(d) The chief of police shall provide a written notice of the decision to the holder.

(e) *Appeal of adverse decision.*

(1) A holder that receives an adverse decision may appeal the decision of the chief of police to the license review committee, consisting of the director of parking and public transit, the city clerk-treasurer, and the city administrator, or their respective designees, by filing a written notice of appeal with the chief of police. The notice of appeal shall be filed within ten days of receiving the notice of the decision of the chief of police and shall state the grounds for appeal, the names of any witnesses and their anticipated testimony, a list of any documents that will be submitted, and whether the applicant will be represented at the hearing and the name of the counsel or representative of choice of the applicant. Failure to file a timely appeal shall cause the chief's decision to be final. The filing of the notice of the appeal will not delay the effectiveness of any suspension or revocation.

(2) Upon receipt, the chief of police shall schedule the hearing before the license review committee, and shall send notice of the date, time, and place of the hearing to the holder.

(3) The chief of police, or his designee, shall be present at the hearing before the license review committee and shall be allowed to present evidence in support of his decision. The license review committee may affirm, reverse or modify the decision appealed from. The decision of the license review committee shall be final.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-216. Business license.

Nothing in this subdivision III shall be construed to exempt an affiliated driver that operates a vehicle for hire for a vehicle for hire company as an independent contractor of the company from obtaining a business license as may be required pursuant to chapter 15 of this Code.

(Ord. No. 16-103, § 1, 2-11-2016)

Secs. 8-217—8-239. Reserved.

Subdivision IV. Vehicle Authorization; Conditions and Inspection of Vehicles

Sec. 8-240. Vehicle authorization.

(a) In order for a vehicle to be authorized to be operated on the public streets each of the following conditions must be met:

(1) The certificate holder shall file with the city a description of the vehicle, which includes the make, model, passenger seating capacity, year of manufacture, state license number, the V.I.N. number thereof, and the name and address of the owner.

(2) The vehicle must be of the type authorized under the certificate of public convenience and necessity and not exceed the number of vehicles that may be allowed under the certificate.

(3) The vehicle must meet the requirements of this division for that type of eligible livery vehicle.

(4) The vehicle must meet applicable standards, pass all required inspections, and be duly insured in accordance with this division.

(5) The vehicle shall not be authorized to operate under another certificate of public convenience and necessity.

(6) The applicable business license tax shall be paid.

(b) Upon compliance with the foregoing conditions, the city will issue vehicle authorization upon the city assigning a vehicle permit number for that vehicle that vehicle shall be authorized to operate in conformance with this division. Taxis and airport shuttles shall display the permit number on the exterior of the vehicle as required in section 8-241(c)(2). All other vehicles for hire shall maintain a copy of their permit number on their person or at a readily accessible place inside the vehicle.

(c) No person, which includes a certificate holder or driver, shall operate or allow or cause to be operated a vehicle for hire unless and until that vehicle has a vehicle authorization. There is no vested right in a vehicle authorization and such authorization may be acted against in accordance with this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-241. Vehicle standards.

(a) *In general.* Every certified vehicle for hire operated upon the public streets of the city shall be kept clean, sanitary, fit and of good appearance, and in a safe condition for the transportation of passengers.

(b) *Taxis*. In addition to all other applicable requirements of this division, all taxicabs shall conform to the following standards:

(1) The color scheme for taxicabs shall be the same as that proposed in the application for a certificate and all taxicabs within a company must be the same. A diagram of the vehicle with colors, color number, name, and any logo must be attached. Any changes must be approved by the director of parking and public transit.

(2) Each taxicab operated under this division shall have a securely affixed roof light with the words "taxicab," "taxi," or "cab," or the company name printed thereon; and, in addition, the telephone number or company name may be printed thereon in such manner as to be visible at all times. The roof light shall also be equipped with a top light actuated when the meter is in the hired mode and such light must be visible at all times and in all directions 360 degrees. Taxicabs may be equipped with an advertising sign known in the trade as a "taxi topper" that is a triangular shaped sign with a static, non-movable, non-digital display, and that is no larger than 42 inches by 15 inches with advertising allowed only on the left and right side of the sign. There is no vested right to maintain a taxi topper on a taxi.

(3) Each taxicab shall be equipped with a taximeter conforming to the provision of section 8-271.

(c) *Airport shuttles, special shuttles, and taxis*. In addition to all other applicable requirements of this division, all airport shuttles, special shuttles, and taxicabs shall conform to the following:

(1) The trade name of the company must be placed on the outside of each front door (sliding door in the case of vans or rear corner panel) of each airport shuttle, special shuttle, or taxicab in letters not less than three inches in height, in a permanent manner, and in contrasting color to background.

(2) The permit number assigned to each taxicab, special shuttle, or airport shuttle, by the city shall be placed on both sides of the body and on the front end and rear end of each taxicab, special shuttles, or airport shuttle in numerals three inches in height. Said number must be visible from all sides of the vehicle.

(d) *Age of eligible livery vehicles or certified vehicles for hire.* Except in the case of classic or vintage limousines, at the time of the initial and each annual inspection thereafter an eligible livery vehicle or certified vehicle for hire shall be no older than ten model years of age from the current model year (as measured from June 30 of the calendar year following the model year), unless the certified company requests in writing that the director of parking and public transit grant a waiver to this requirement. The waiver may be issued only if the vehicle meets or exceeds applicable standards and requirements of this division. An age waiver may be renewed annually upon application, inspection, and approval of the director of parking and public transit.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-242. Standards for carriages.

In addition to all other applicable standards and requirements of this division, all horse drawn carriages shall conform to the following standards:

(1) Carriage services shall not operate on any of the public streets of the city except on those public streets as approved by the City of Huntsville's Traffic Engineering or Police Department.

(2) Carriages shall not exceed 12 feet in length or six feet in width and must be authentically styled passenger carriages.

(3) All animals used to pull such carriages on the public streets must be equipped with a diapering apparatus that prevents the droppings of such animal from being deposited on the city streets and must be properly shod for street surfaces.

(4) All carriages must have proper lighting for nighttime operation including headlights, taillights, turn signals, and reflectors, continuously maintained in operating condition, and must display a slow moving vehicle emblem.

(5) All carriages and horses must be transported by truck or trailer to permitted locations.

(6) Only horses and mules in good health with adequate muscle tone and proper body conditions and have been certified as fit to work by a licensed equine veterinarian will be used to pull carriages.

(7) No equine will be used to pull a carriage if it has injuries or wounds, is lame, or unsound in one or more limbs or which has any other ailment without a specific written approval by a licensed equine veterinarian.

(8) The hooves of working horses or mules will be properly shod with appropriate shoes. Shoes which are designed to prevent slipping and absorb shocks will be utilized when working on paved surface.

(9) Each carriage animal will be properly sized relative to weight, size, and load capacity of carriage it will pull and the terrain over which it will operate.

(10) Working carriage animals shall be examined by a licensed equine veterinarian at least once per year and shall receive all necessary immunizations and

be dewormed at appropriate intervals to control internal parasites. Carriage animals must be examined by a licensed equine veterinarian upon request of the City of Huntsville Animal Control Director, or their designee, to insure compliance with these requirements.

(11) Horses must be removed from the streets during extremely hot or cold weather, as determined by the animal control director, or their designee.

(12) Carriage horse and mules shall not be worked more than three consecutive hours without a rest period with a maximum of nine hours worked per day. A ten-minute rest period shall be provided every hour during the work period.

(13) Carriage horse and mules shall not be worked more than six consecutive days without being provided a rest period of at least one day before the resumption of work.

(14) Fresh water shall be made available and each animal given the opportunity to drink during each rest period and during the hourly ten-minute break.

(15) Owners/drivers shall be knowledgeable in equine husbandry, training, and emergency first-aid. They must be knowledgeable in the proper use and maintenance of harnesses, tacks, and carriages or have in their employ a manager with such expertise.

(16) Carriage operators who have been convicted of animal cruelty shall have the carriage license revoked.

(17) This carriage license shall not be transferable.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-243. Standards for wheelchair accessible vehicles.

Subject to any applicable federal and state requirements for vehicles that are wheelchair accessible, in addition to all the other applicable requirements of this division, a vehicle that is wheelchair accessible must comply with the following special requirements:

(1) Vehicles that are wheelchair accessible must be designated by the manufacturer as a van or be built exclusively for wheelchair access and must have the following equipment:

a. Electrically or hydraulically operated lift mechanisms or ramps with a nonskid surface to accommodate the loading and unloading of a passenger confined to a wheelchair;

b. A positive means of securing a wheelchair to the inside of the vehicle to prevent any lateral, forward, backward or vertical motion of the wheelchair within the vehicle;

c. A rear-view mirror which enables the chauffeur to view the passengers;

d. Outside rear-view mirrors on both sides of the vehicle; and

e. Emergency exit door or doors at the rear of the vehicle.

(2) A vehicle that is wheelchair accessible may accept as passengers wheelchair-confined persons when such persons remain in a sitting position within the chair during transport or transfer to a seat after loading.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-244. Standards for pedicabs.

(a) *Definitions, etc.*

(1) *Definitions*. For purposes of this section, the following terms shall have the following meanings:

Cycle rickshaw means a pedicab with three wheels operated by one person for the purpose of, or capable of, transporting up to two passengers in seats or on a platform made a part of or otherwise attached to the cycle rickshaw. The term does not include a bicycle built for two where the operators are seated one behind

the other, nor shall it include the operation of a bicycle with trainer or beginner wheels affixed thereto, nor does it include a wheelchair or other vehicle with the purpose of operation by or for the transportation of a disabled person.

Destination point means a predetermined location that is a part of the scheduled itinerary of a pedicab established by the certificate holder.

Driver shall have the meaning ascribed to the term in section 8-151. The term does not include an individual who merely pedals the pedicab, but who does not otherwise control the operation of the pedicab, including its steering or braking.

Entertainment district means an arts and entertainment district or entertainment district established in chapter 3, article II of this Code.

Passenger shall have the meaning ascribed to the term in section 8-151, and includes an individual who pedals the pedicab, but who does not otherwise control the operation of the pedicab.

Pedal carriage means a pedicab with four or more wheels operated by one or more persons for the purpose of, or capable of, transporting up to sixteen passengers in seats or on a platform made a part of or otherwise attached to the pedal carriage. The term does not include a bicycle with trainer or beginner wheels affixed thereto, nor shall it include a wheelchair or other vehicle with the purpose of operation by or for the transportation of a disabled person, nor does it include a tricycle built for a child or an adult with a seat for only one operator and no passenger.

Pedicab shall have the meaning ascribed to the term in section 8-151, and shall include either a pedal carriage or a cycle rickshaw, or both; provided, however, a pedal carriage may have an electric motor assist that supplements, but that does not replace, the use of human power to pedal the carriage.

(2) *Requirements of section*. In addition to all other applicable requirements of this division, a pedicab and its operation shall comply with the requirements of this section, which includes conditions, if any, imposed hereunder. It shall be unlawful for a driver to operate, or for a certificate holder to allow or cause to be operated, a pedicab in violation of the requirements of this section.

(3) *Types of pedicabs allowed to operate as a vehicle for hire*. Only cycle rickshaws and pedal carriages shall be allowed to operate as pedicabs.

(4) In accordance with section 8-188 of this article, the city council may eliminate either a cycle rickshaw or pedal carriage, or both, from the definition of an eligible livery vehicle category.

(b) *Pedicab operating area; additional pedicab operating areas; prohibited routes; conditions*.

(1) *Boundaries defined*. Subject to subsections (3) and (4) below, the pedicab operating area is bounded by the northern margin of Governors Drive on the south, the eastern margin of Memorial Parkway on the west, the southern margin of Pratt Avenue and University Drive on the north, and the western margin of California Street and Andrew Jackson Way on the east. While the afore-stated roadways are used to define the boundaries of the operating area, such roadways are not included within the operating area.

(2) *Additional operating areas*. Subject to subsections (3) and (4) below, upon written request of a certificate holder for a particular date, time, and duration the director of parking and public transit may, at his discretion, approve additional pedicab operating areas for that certificate holder.

(3) *Prohibited routes*. Notwithstanding anything to the contrary in this section, at any time and from time to time, the director of parking and public transit or the chief of police may declare that a pedicab is prohibited from operating on all or any portion of a public right-of-way within the pedicab operating area or additional operating area. Notice of the prohibition shall be provided to the certificate holder as soon as practicable, except in the case of emergencies when no prior notice is required.

(4) *Conditions*. At any time and from time to time, the director of parking and public transit may attach such conditions to the operation of a pedicab as he deems appropriate in order to protect the public health, safety, and general welfare, which includes requiring the use of an escort vehicle or additional equipment on specific routes. Such conditions shall be provided by the director in writing to the certificate holder.

(c) *Receiving and discharging passengers*.

(1) The director of parking and public transit may, at any time and from time to time, establish passenger pick-up and discharge points for pedicabs. In the event such pick-up and discharge points are designated by the director, those points shall be instead of the destination points established by the certificate holder. It shall be unlawful for the driver to pick-up or discharge passengers at other than said director-designated points, if such points are established.

(2) A driver shall not receive or discharge passengers upon the roadway, but shall pull to the extreme righthand side of the road or to the sidewalk and there receive or discharge passengers, except upon one-way streets where passengers may be discharged at either side of the roadway in the absence of a sidewalk. As an exception, when access to curb space is blocked by parked vehicles, drives may pull to the extreme righthand lane, and stop to expeditiously receive or discharge passengers from the right side of the vehicle. Nothing in this section shall be construed to permit the parking of a vehicle at any place where parking is otherwise restricted or prohibited.

(3) Drivers shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalks or in any manner or other location that would be considered unsafe. No pedicab shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

(4) While the pedicab is in route between destination points or director-designated points, pedicab drivers shall not allow passengers to discharge from or for additional passengers to board the pedicab.

(5) In no event shall a pedicab driver accept street hails.

(d) *Driver requirements*. In addition to other requirements of this division, pedicab drivers shall:

(1) Have in their possession proof of insurance and a valid state driver's license, which the driver shall present upon the request of the chief of police or director of parking and public transit.

(2) Not allow any other individual to operate or control the pedicab.

(3) Not transport more than the manufactured recommended maximum number of passengers or exceeding the manufacturer's recommended weight limit.

(4) Not permit more passengers to be carried in a pedicab than for which there is proper seating, and at no time shall a driver allow any passenger to ride in any area of the pedicab not specifically designed or designated as a seat.

(5) Not permit any passenger 12 years of age or younger to ride in a pedicab unaccompanied by an adult.

(6) Operate the pedicab only within the pedicab operating area or additional pedicab operating area, as the case may be.

(7) Not operate the pedicab in excess of 15 miles per hour.

(8) Not permit a passenger to stand up in the pedicab while it is in motion.

(9) Not drive the pedicab on the sidewalks or within a designated bike lane.

(10) Subject to subsection (h) operate the pedicab in conformance with applicable state laws, including, but not limited to, the rules of the road.

(e) *Hours of operation*. It shall be unlawful for a driver to operate a pedicab on the public streets on weekdays between the hours of 7:00 a.m. to 9:00 a.m. and between the hours 4:00 p.m. to 6:00 p.m.; provided, however, the director of parking and public transit may waive the prohibition for hours of operation when a special event is scheduled to occur in the operating area and the operation of the pedicab would not be likely to unreasonably impede vehicular traffic in the area or otherwise pose an unreasonable safety risk. The director may attach conditions to the waiver, including the area within which the pedicab may operate.

(f) *Pedicab specifications and equipment*. In addition to other requirements of this division, no person shall operate a pedicab unless the vehicle meets the following minimum specifications:

(1) Unibody frame construction.

(2) Four wheels in the case of a pedal carriage and three wheels in the case of a cycle rickshaw.

(3) Rubber on all wheels and the wheels shall be of a size appropriate for the pedicab with no mismatched wheels per the design of the vehicle.

(4) In the case of a pedal carriage, the width at its widest point shall not exceed seven feet, the length shall not exceed 20 feet, and the height shall not exceed 12 feet.

(5) A fully operational horn or bell.

(6) Headlights that have a projecting beam of at least 200 feet in the case of a cycle rickshaw and 300 feet in the case of a pedal carriage, which shall be clearly visible during darkness and must be illuminated when state law requires a motor vehicle's lights to be illuminated.

(7) Flashing taillights that are visible from at least 500 feet.

(8) Mirror(s) affixed to the pedicab to reflect to the driver a view of at least 200 feet from the rear of the pedicab.

(9) Brake lights and turn signals for left and right turn, which turn signals are affixed to the front and rear of the vehicle.

(10) In the case of a pedal carriage, working running lights along the outermost parts of the front, sides, and rear of the vehicle so as to make the vehicle clearly visible to motorists at night.

(11) In the case of a cycle rickshaw, reflectors on the spokes of all wheels, front pedicab frame, and a red reflector mounted on each side of the rear of the pedicab, at least one inch from the outer edge and centered.

(12) Hydraulic, mechanical disk, or drum brakes that are unaffected by wet conditions and that control the front and rear of the pedicab.

(13) A mounted a triangular "slow-moving vehicle" reflector on the rear of the vehicle. The reflector shall have an orange florescent center and red reflective borders. The reflector shall be at least 16 inches wide at the bottom and at least 14 inches in height.

(14) Body paint with bright, reflective tape.

(15) Trailers shall not be affixed to a pedicab.

(16) Except for an electric motor assist, pedicabs shall not be motorized. If an electric motor assistance is installed, it must meet all manufacturer standards and be inspected by a certified mechanic on an annual basis.

(17) Pedicabs without an electric motor assist shall have clearly visible on the vehicle its serial number. Pedicabs with an electric motor assist shall have clearly visible on the vehicle its manufacturer's vehicle identification number.

(g) *Identification*. Before the certificate holder shall place any pedicab into service, the holder shall identify such vehicle with the initials of the certificate holder's name followed by a dash and a permit number assigned by the director of parking and public transit, which number shall be of a size and color designated by the director and shall not be used on any other vehicle.

(h) *Conduct*.

(1) No music or amplified sound shall be played, nor yelling or conversation be conducted, nor generator be used on or in connection with a pedicab in such a manner that it would violate the city's noise ordinance.

(2) Glassware of any type, including bottle, cups or plates, is prohibited in a pedicab while it is in operation upon the public streets.

(i) *Alcohol in a pedicab*.

(1) A certificate holder or driver commits an offense if he or she provides an alcoholic beverage to a passenger for a fee or otherwise.

(2) A certificate holder or pedicab driver commits an offense if he or she provides or stocks any alcoholic beverage in the pedicab.

(3) Notwithstanding anything to the contrary in this division, open containers of alcoholic beverages may be possessed and alcoholic beverages may be consumed by passengers in a pedicab while it is being operated on the public streets or is otherwise in a public place only if: (i) the passengers have obtained alcoholic beverages from an entertainment district permittee during the hours of operation of the district in accordance with and subject to the regulations governing the entertainment district, and (ii) the pick-up and discharge of passengers is only done within an entertainment district. Otherwise, the regulations against possessing an open container and drinking in a public place under section 3-22(b) of this Code shall apply.

(4) It shall be unlawful for the driver of the pedicab to allow his or her passenger to consume, or to possess an open container of, alcoholic beverages in the pedicab contrary to the provisions of the foregoing subsection (g)(3).

(5) The pedicab driver shall not allow consumption of alcoholic beverages by persons under the age of 21. If alcoholic beverages are present on a pedicab, the pedicab driver shall not transport persons under the age of 21 on the pedicab.

(6) Nothing in this subsection (g) shall be construed to allow conduct that is otherwise against the alcoholic beverage control laws of the state, including the Alabama Open Container Law, Code of Ala. 1975, § 32-5A-330.

(j) *Federal and state law*. Nothing in this section shall be construed to allow a pedicab to be operated contrary to applicable federal and state laws, including low speed vehicle laws, the rules of the road, and laws that govern vehicle equipment requirements, and where there is a conflict between this section and applicable federal or state laws, the more restrictive law shall apply.

(Ord. No. 16-103, § 1, 2-11-2016; Ord. No. 18-575, § 2, 8-9-2018)

Sec. 8-245. Vehicle inspections.

(a) *Inspections*.

(1) *Required*. No person shall operate or allow or cause to be operated a vehicle for

hire until the vehicle has been inspected as prescribed in this section under the direction of the chief of police and director of parking and public transit and found to be in safe operating condition, clean, sanitary, fit and of good appearance, and meeting the applicable standards and requirements of this division.

(2) *Inspection criteria.* To pass inspection a vehicle for hire shall, at a minimum, meet applicable state laws governing vehicle equipment, including requirements for child passenger restraints and safety belts for front seat occupants, and shall pass an inspection of vehicle components, as applicable for the particular type of eligible livery vehicle, outlined by the director of parking and public transit and identified on an approved city vehicle inspection sheet.

(b) *Authority to inspect, inspectors.*

(1) *Department inspections.* The inspecting of eligible livery vehicles or certified vehicles for hire shall be under the control and direction of the chief of police and the director of parking and public transit. The chief of police and the director and parking and public transit are hereby authorized to use such members of or persons assigned to their respective departments as they may designate as deputies and inspectors, to carry out the provisions of this division, including performing vehicle inspections.

(2) *Private inspections.* In lieu of using department designated personnel to conduct inspections, the chief of police and the director of parking and public transit are hereby authorized to accept or require inspections, in whole or part, be performed by a private technician or mechanic that is ASE (Automotive Service Excellence) certified (series A) or meeting the Federal Motor Carrier Safety Administration (FMCSA) inspector qualifications of 40 C.F.R. § 396.19, or any succeeding federal regulation, and that is not an employee of a vehicle for hire company. In the case of private inspections, the qualified inspector shall be required to certify to the city that the vehicle meets the inspection criteria established in subsection (a) of this section. The director of parking and public transit shall provide to a certificate holder an approved private inspection form to be completed and certified to by the private inspector.

(3) *Wheelchair equipment inspections.* In the case of vehicles that are wheelchair accessible, inspections of wheelchair accessibility equipment and related features shall be performed by dealers having National Mobility Equipment Dealers Association (NMEDA) Quality Assurance Program (QAP) accreditation or other similar nationally recognized accreditation programs for dealers. The inspectors shall be required to certify to the city that the wheelchair accessibility equipment and related features comply with the standards set forth in section 8-243.

(c) *Frequency of inspections; notification of inspections; fee.*

(1) *Random inspections.* The chief of police and director of the department of parking and public transit are hereby authorized to maintain constant vigilance over all certified vehicles for hire to see that they are kept in a condition of continued fitness for public use in compliance with this division and to that end are hereby authorized to make such incidental on-the-road or random inspections as they deem advisable.

(2) *Non-routine scheduled inspections.* The chief of police and the director of parking and public transit are hereby authorized to inspect or require or cause to be inspected all certified vehicles for hire from time to time or on complaint of any citizen as often as may be necessary. Such non-routine inspections shall be scheduled in advance in accordance with the scheduling provisions of this subsection (c).

(3) *Routine scheduled inspections.* The chief of police and the director of parking and public transit, shall inspect or require or cause to be inspected all certified vehicles for hire on a routine basis as follows:

a. Except for carriages and pedicabs, all vehicles that undergo department inspections shall be inspected at least every six months;

b. Carriages, pedicabs, and vehicles that undergo private inspections shall be inspected at least every 12 months; and

c. Wheelchair accessibility equipment and features of a vehicle shall be inspected at least every 12 months.

(4) *Scheduling of routine and non-routine inspections.*

a. In the case of routine and non-routine department inspections, the chief of police or the director of parking and public transit shall send written notice to a certificate holder of the date, time, and place of a scheduled routine or non-routine inspection.

b. In the case of routine private inspections, the inspection must be conducted annually no more than 30 days prior to the date of business license expiration, but in no case any longer than one year from the date of the last inspection.

c. In the case of non-routine private inspections, the chief of police or the director of parking and public transit shall send written notice to a certificate holder that the certificate holder must have performed a non-routine inspection by a stated date.

(5) *Requested inspections.* In the case of vehicles which undergo department inspections, a certificate holder may request in writing to the director of the department of parking and public transit inspection of a vehicle certified in accordance with the provisions of this division. Such request shall be at the director's option and shall be conducted within three working days of a proper written request to the director of the department of parking and public transit. Where the director of requires or allows a department inspection to be performed, the vehicle is to be delivered to such place at such time specified or the inspection shall be deemed waived until the next scheduled or requested inspection.

(6) *Fee; cost of inspection.* In the case of department inspections, a fee in the amount of $25.00 for each vehicle is hereby established for each routine, non-routine, or requested scheduled inspection. In the case of private inspections,

the certificate holder shall be responsible for paying the costs of private inspections.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-246. Vehicles failing inspection; out of service.

(a) If, after a department inspection, including a scheduled, requested, or incidental on the road or random inspection, a certified vehicle for hire is found, in the enforcement official's opinion, not to be in a safe condition for the transportation of passengers, or is being operated without the required insurance coverage, the vehicle shall be placed out of service.

(b) If a certified vehicle fails to comply with provisions of this division, which includes applicable inspection criteria, that do not implicate passenger safety, then the vehicle may be placed out of service by the city enforcement official, or may be allowed by the official to continue in operation provided the noted deficiencies are corrected within the time stated in the notice of the deficiencies. If the deficiencies are not corrected within the stated time, then the vehicle shall be placed out of service. The notice of deficiencies shall be provided to the certificate holder either at the time of the inspection by giving it to the person presenting the vehicle for inspection or by the other methods prescribed in subsection 8-151(b)of this division.

(c) Any vehicle not returned to service within 60 days from the date the vehicle is taken out of service shall be deemed permanently out of service, and the vehicle authorization for that vehicle shall automatically be forfeited without further action being required by the city. A 60-day extension may be granted by the director of the department of parking and public transit for good cause shown.

(d) If a vehicle does not pass a private inspection, it shall be unlawful for the certified holder or the driver to operate or allow or cause the vehicle to be operated until the vehicle is re-inspected and passes inspection. The vehicle authorization for that vehicle shall be deemed automatically rescinded until the vehicle passes inspection.

(e) Where a vehicle is taken out of service by the city, the inspector or other city official shall remove the applicable documentation evidencing the vehicle authorization, which may include the inspection sticker and the private inspection certification sheet.

(f) Where vehicle authorization has been forfeited under this section, any business license tax paid on a per vehicle basis shall be deemed to be forfeited for that vehicle.

(g) It shall be unlawful for any person, which includes a driver or company, to operate, or to allow or cause to be operated, any certified vehicle for hire that has been deemed out of service; that, where applicable, does not have a current, valid inspection sticker affixed to the vehicle; or that, where applicable, does not have a copy of the then-current private inspection certification and driver's card inside the vehicle.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-247. Inspection sticker; inspection certification.

(a) *Vehicle inspection stickers.* A certified vehicle for hire that has undergone a vehicle inspection must have affixed a current inspection sticker issued by the department of parking and public transit.

(1) Inspection stickers shall be issued to a vehicle for hire at the time of a routine scheduled inspection.

(2) No inspection sticker shall be issued until the vehicle has successfully completed all required inspection criteria, proof of current insurance has been presented, and current city and county licenses have been presented for inspection.

(3) The inspection sticker shall remain valid for the period indicated on the sticker as long as all requirements of the inspection by the department of parking and public transit are complied with.

(4) A temporary sticker may be authorized for a specific time period to allow a vehicle for hire to comply with non-safety requirements of the inspection. If the

requirements are not met in the time period allowed, the temporary sticker shall become void and must be removed from the vehicle.

(5) It shall be unlawful to operate or allow or cause to be operated a vehicle for hire that does not have a current valid inspection sticker. The company under which it operates is subject to loss of its certificate of public convenience and necessity.

(b) *Vehicle and equipment certifications.* A wheelchair accessibility equipment that has undergone a private inspection as allowed or required under this division must have somewhere readily accessible inside the vehicle a copy of the then-current private inspection certification sheet issued by a qualified mechanic or technician that the vehicle has passed inspection and shall produce it upon the demand of the chief of police or another a law enforcement officer of the city, or the director of the department of parking and public transit or city personnel operating under the director's supervision. It shall be unlawful to operate or allow or cause to be operated a privately inspected vehicle for hire that does not have a copy of the then-current private inspection certification current in a readily accessible place inside the vehicle. The company under which it operates is subject to loss of its certificate of public convenience and necessity.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-248. Review of action against vehicle authorization.

Except where this division provides for an automatic action against a vehicle authorization, in which case no right of review is provided for, a certificate holder shall have the right to request that the director of parking and public transit review the decision of an inspector or other enforcement official to take a vehicle permanently out of service by providing to the director a written notice specifying the basis for the request within 15 days from the date the action is taken. The director, in response, may: (1) order a department or private re-inspection of the vehicle, at the company's cost, (2) schedule a hearing on the matter by providing the certificate holder with notice of the time, date, and location of the hearing, (3) may uphold the action, reverse the action, or allow additional time to come into compliance with the applicable provisions of this division. The director's decision is final. The filing of the request with the director will not delay taking the vehicle out of service.
(Ord. No. 16-103, § 1, 2-11-2016)

Secs. 8-249—8-270. Reserved.

Subdivision V. Taximeters and Vehicle for Hire Rates

Sec. 8-271. Taximeters.

(a) *Taximeters required for all taxis*. It shall be unlawful to own and operate or cause to be operated any taxicab upon the streets or thoroughfares of the city, unless such taxicab is equipped with a practical standard taximeter in good and workable condition designed to accurately measure distance traveled, and to record the time the vehicle is in waiting. Upon the taximeter there shall be indicated by means of figures the fare charged.

(b) *Readability*. Indications of the amount of fare shall never be obscured from the view of any passenger. All openings through which any indications or markings are viewed at any time by the passenger shall be of such location, size, and design that the indications or markings may be read with accuracy. This shall be construed to mean, among other things, that between sunset and sunrise the face of any taximeter shall be illuminated by a suitable light so arranged as to throw a continuous steady light thereon and render the meter clearly readable to a passenger in the rear seat.

(c) *Seal*. Adequate provision shall be made for sealing all taximeters in such manner that no adjustments, alterations, or replacements can be made that may affect in any way the indications, the time or mileage rates or, in general, the accuracy of the taximeter. Every taximeter shall be sealed by the chief of police or an inspector or deputy duly authorized by the chief of police or the director of the department of parking and public transit. It shall be unlawful for any person to operate or allow or cause to be oper-

ated a taxicab equipped with a taximeter that is not sealed or has a mutilated or destroyed seal; provided, however, that upon request, the director of the department of parking and public transit, is authorized to issue a temporary permit to operate a taxicab without a sealed taximeter until the next scheduled or requested inspection, if the director of the department of parking and public transit finds that such taximeter required some adjustment, alteration or replacement which has been made.

(d) *Use of flag*. It shall be unlawful for the driver of a taxicab to have the taximeter in a mode as to denote that such vehicle is not employed while carrying passengers or have the taximeter in a recording position when such vehicle is not actually employed, or to fail to put such taximeter in a non-recording mode at the termination of each and every service. Meters may not be operated in the time mode while the cab is in motion (no hot meters). No switches bypassing the top light are allowed.

(e) *Changing size of tires, gears cables, etc.* It shall be unlawful for any person to operate or allow or cause to be operated a taxicab with tires of a smaller size than those which were on the taxicab at the time the taximeter was last inspected and sealed, without first having the taxicab re-inspected. It shall also be unlawful to operate or allow or cause to be operated a taxicab utilizing any gears, cables, computer chips or other parts that could affect meter rates other than those on the taxicab when the taximeter was last inspected and sealed without first having the taxicab re-inspected.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-272. Vehicle for hire rates.

(a) *Taxicabs*.

(1) All taxicabs must base their charges on taximeters. The maximum rate is the rate authorized and recorded on a properly working and properly sealed taximeter. The passenger may be charged less than the maximum rate reflected on the taximeter.

(2) The maximum rate to be charged for a trip to one destination by any taxicab shall be $5.00 for the first one-half-mile and $0.125 for each additional one-twentieth-mile. ($5.00 for the first one-half-mile and $2.50 for each mile thereafter.)

(3) A driver may, in addition to the metered rate, require a waiting charge to be paid which shall not exceed the rate of $25.00 per hour, regardless of the number of passengers. Such waiting time shall include the time when the taxicab is not in motion, beginning with the time of arrival at the place to which it has been called or time consumed while it is standing at the direction of the passenger; but no charge shall be made for the first five minutes after arrival or for time lost on account of inefficiency of the taxicab or its operator or the time consumed by the premature response to a call or traffic conditions. A fare shall not be considered to be terminated until the taxicab is available for service to another customer.

(4) All taxicabs operated within or under the certificate of public convenience and necessity of the same entity must charge the same rate.

(5) Maximum rates charged must be displayed on each taxicab on the rear quarter panel in a size no smaller than one-inch letters with drop charges, rate per mile, and waiting time.

(6) Maximum rates must be posted at the Huntsville International Airport and in all bus stations in a manner prescribed by the director of the department of parking and public transit.

(7) Response cards must be placed in each taxicab in a manner clearly visible to passengers; referring persons with questions or comments to the City of Huntsville Public Transit Division and listing the phone number and vehicle permit number.

(8) It shall be unlawful for the company or the driver of a taxicab to charge any passenger a fare for the use of such taxicab which is in excess of the rate

established by this division and displayed on a properly working and inspected taximeter. Passengers shall have the right to pro-rate charges among themselves as they see fit. In the event the passengers cannot reach agreement as to their respective share of the total fare, the driver then shall be allowed to collect the fare to the point of final destination from the first passenger engaging the taxicab.

(9) No driver shall allow or permit any other person to occupy or ride in such taxicab unless the person or persons first employing the taxicab shall consent to the acceptance of additional passengers.

(10) If the metered fare for any trip to or from the Huntsville International Airport is less than $15.00, a minimum fare of $15.00 may be charged. On trips originating or terminating at the Huntsville International Airport, an additional $2.00 may be charged for each additional passenger, excluding children under the age of six years.

(11) Every taxicab driver shall, upon the request of a passenger, give a receipt upon payment of the fare. The receipt shall indicate the beginning and ending points of the trip, the fare charged, the date, the company's name, and the vehicle number, and shall be signed by the driver.

(b) *Vehicles for hire other than taxis.* Vehicles for hire other than taxis may charge on a per trip (flat fee) or per hour (time elapsed) basis, or a combination thereof, and vehicles for hire that are non-motorized may charge on a per trip or per hour basis, or combination thereof, conditioned as follows:

(1) Airport shuttles may also charge based on a per person fee.

(2) Limousines, luxury vehicles, and special shuttles shall, as a minimum base rate, charge $35.00 an hour, excluding other fees and gratuities, without prorating the first hour.

(3) Vehicles for hire that charge in whole or part on an hourly basis shall not prorate the first hour.

(4) The rates shall be uniformly applied to all passengers and shall be posted in each vehicle in a place visible to the passenger, except that companies that use an online enabled application (app) or digital platform to arrange for passenger service may post the rates in the online application (app) and on the company's website.

(c) All rates for any vehicle for hire shall be placed on file by letter to the director of parking and public transit.

(d) The driver is permitted to collect the amount owed from any passenger but it shall be left to the passengers to prorate the amount charged among themselves.

(e) At any time and from time to time the city council may amend this section to provide for a change in the amount of rates or the method for setting rates applicable to some or all vehicles for hire. In such event the amendatory action shall apply to then-current and future certified companies and their vehicles.
(Ord. No. 16-103, § 1, 2-11-2016; Ord. No. 22-70, § 2, 2-10-2022)

Sec. 8-273. Unauthorized fares.

(a) No company or driver shall demand or suggest that any passenger or prospective passenger pay a fare larger than that authorized in this division.

(b) No company or driver shall demand or suggest that any passenger pay an amount that exceeds the posted rate.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-274. Credit cards.

(a) By January 1, 2016, all certified vehicle for hire companies, except for carriages and pedicabs, shall require their drivers to accept all major credit, debit, and charge cards (collectively "credit cards" for the purposes of this section) as payment for services rendered and shall accept any and all risk of nonpayment.

(b) In the case of certified companies that accept credit cards, no additional charge shall be levied against a passenger for use of credit cards, nor shall any passenger be refused service for their use of credit cards. Drivers shall not set a minimum or maximum charge for any credit card transactions. Drivers shall provide all credit card paying customers with a truncated copy of their sales draft or charge receipt clearly showing the amount and date of the transaction, company's name and telephone number, the driver's certified vehicle permit number, and the transaction's authorization approval code. The truncated sales draft or receipt shall not include the credit card's expiration date or any more than the last four digits of the credit card's number.

(c) In the case of certified companies that accept credit card payments, the vehicle shall be equipped with a fully-functioning wireless device that provides a secure credit card processing method, satisfies all Payment Card Industry Data Security Standard ("PCI DSS") requirements, and (i) encrypts any information transmitted to authenticate a credit card payment transaction for approval, (ii) generates a truncated printed sales draft or charge receipt, and (iii) accepts cards affiliated with all major credit card associations including, but not limited to, MasterCard, Visa, American Express, and Discover Network. Manual imprinting machines are prohibited.
(Ord. No. 16-103, § 1, 2-11-2016)

Secs. 8-275—8-300. Reserved.

Subdivision VI. Operations

Sec. 8-301. Street hails; soliciting passengers.

(a) Except in the case of taxis, no driver shall accept or respond to passengers' or potential passengers' requests for service via traditional street hail, including hand gestures and verbal statements.

(b) No driver shall respond to calls for another company intercepted from a scanner or other radio monitoring device, or, except in the case of taxis, cruise in search of passengers.

(c) *Soliciting passengers.*

(1) For the purpose of this section, the term "solicit" means an appeal by a driver upon a public street using words or gestures to elicit immediate patronage of a vehicle for hire by attempting to direct people to a vehicle for hire that is parked, stopped, standing, or moving upon a public street.

(2) No certified vehicle for hire driver shall solicit passengers, except in the case of taxis drivers and then only in accordance with the following subsection (c)(3).

(3) No taxicab driver shall solicit passengers except when sitting in the driver's seat or standing immediately adjacent thereto, or in any manner to annoy, obstruct the movement of, or follow any person for the purpose of soliciting patronage. In addition, no taxi driver shall stop or stand, even momentarily, in the driving lanes of a public street in order to solicit passengers.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-302. Pre-arranged services; additional passengers.

(a) *Pre-arranged services.*

(1) For those vehicles for hire that are defined to include transportation on a pre-arranged basis, it shall be unlawful for the company or driver to fail to demonstrate prearrangement by presenting upon request of the director of parking and public transit or chief of police, or their respective designees, proof of pre-arrangement, including a copy of the reservation or an electronic record made in advance of passenger pick-up.

(2) For those vehicles for hire that are defined to include transportation on a pre-arranged basis, it shall be unlawful for a company or driver to transport additional

passengers under a separate arrangement at the same time that the vehicle is engaged under a prior arrangement.

(3) Nothing herein shall be construed to prevent those vehicles for hire whose definition does not include transportation on a pre-arranged basis to arrange in advance to transport passengers for compensation.

(b) *Additional passengers.* It shall be unlawful of a driver of a certified vehicle for hire to pick-up additional passengers while proceeding to the destination of any passengers then occupying the vehicle except in the case of a taxi and then only with the consent of all the passengers.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-303. Number of passengers and luggage.

(a) No certified company or driver shall allow more passengers to be transported than the number of available seats that are required by applicable state law to be equipped with operative safety belts.

(b) No certified company or driver shall allow more children to be transported than the number for which operative child passenger restraint devices are available for children within the legal age limit requiring such devices.

(c) No driver shall carry any luggage exceeding the vehicle's storage volume or load-carrying capacity regardless of the number of passengers occupying the vehicle.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-304. Prohibition against discrimination.

(a) With respect to passengers and potential passengers, a certified company shall adopt a policy of non-discrimination on the basis of destination, race, color, national origin, religion, sex (including pregnancy), disability, age, sexual orientation or gender identity, and shall notify its affiliated drivers of such policy.

(b) Drivers shall comply with all applicable laws regarding non-discrimination against passengers or potential passengers and shall comply with the non-discrimination policy set forth in subsection (a) above.

(c) Drivers shall comply with all applicable laws relating to accommodation of service animals and shall not refuse to load mobility aids, such as wheel chairs and walkers, which can fit into a standard truck or rear storage compartment of a vehicle.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-305. Two or more destinations; single destination.

(a) If a certified vehicle for hire is carrying two or more passengers to different destinations, the driver shall be the sole judge of the order in which such passengers shall be delivered to their destination and the shortest possible route shall be followed.

(b) Any certified vehicle for hire driver charging on a per mile basis shall take the most direct route possible that will carry the passenger to his/her destination safely and expeditiously, unless the passenger requests otherwise.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-306. Requiring passenger to wait.

No passenger in a certified vehicle for hire shall be kept waiting longer than five minutes before proceeding to his/her announced destination, unless the passenger otherwise agrees to wait.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-307. Record and reports of operations.

(a) Every certified company shall keep accurate books and records of account of its operations in the city at the company's base of operations for a minimum of one year.

(b) Every certified company shall keep a record on any of its affiliated drivers who were alleged to have committed a violation of this division or their terms of service or who have been suspended

or banned from driving for the company, including any zero-tolerance complaints and the outcome of the investigation into those complaints.

(c) Except in the case of carriages and pedicabs, every certified company shall, with regard to its operations in the city, create and retain a written or electronic record of all pick-up and drop-off information, including the name of the driver, the time of pickup and delivery and the number of passengers.

(d) At any time and from time to time the director of parking and public transit may request and the company shall provide, at no cost to the city and in the manner and form prescribed by the director of parking and public transit, records or reports concerning the company's operations in the city.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-308. Base of operations; registered agent; customer service number.

(a) All certified companies must maintain a base of operations. The base of operations shall be suitably staffed by qualified and knowledgeable representatives of the company who are available during regular business hours to accept or respond to notices and inquiries of the city in its administration and enforcement of this division and where records required to be maintained under this division are kept. Failure to maintain a base of operation shall be a violation of this division and cause for action being taken against the company's business license and the certificate of need and necessity.

(b) The location of the base shall not be changed without first notifying the director of parking and public transit.

(c) Companies must be authorized to conduct business in this state and maintain an agent for service of process in the state.

(d) At a minimum a certified company shall maintain a customer service telephone number that shall be staffed with suitable personnel who are able to assist consumers with complaints or inquiries during normal business hours. The telephone number shall be posted with the director of parking and public transit.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-309. Sale of vehicle.

(a) All companies, upon the sale or other disposition or removal of a vehicle from its service shall, within ten working days, notify in writing the city clerk-treasurer and the director of the department of parking and public transit of such sale or other disposition.

(b) All identification markings and the inspection sticker shall be removed prior to delivery of the vehicle upon sale or other disposition thereof.

(c) The permit number issued for vehicles within a company may be transferred to a new or replacement vehicle within the same company, so long as all requirements of this division are met, but not from person to person. The transfer of a permit number to a new or replacement vehicle shall not increase the amount of business license tax owed.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-310. Trailers.

No trailer or semi-trailer shall be attached or secured to a certified vehicle for hire while it is being used to transport passengers.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-311. Driver requirements; conduct.

(a) No driver shall sleep or doze in any certified vehicle for hire in any place generally open to the public in the city.

(b) A driver must be clean and neat in appearance.

(c) A driver of a certified vehicle for hire shall be at least 21 years of age.

(d) A driver shall have obtained and have in their possession a valid driver's license unless exempted by state law.

(e) A driver must be physically capable of operating a vehicle in a safe manner. A driver shall not be impaired by fatigue, illness or other

medical conditions to an extent that would render him/her incapable of safely operating a vehicle or would pose a liability to himself/herself, his/her passengers or the general public.

(f) Each driver of a certified vehicle for hire while operating such vehicle upon the public streets of the city shall comply with all of the traffic regulations of the State of Alabama and the city and shall not commit any act that would threaten the health or safety of his/her passengers or the general public, which includes an act which would constitute a violation of driving while under the influence laws of the state.

(g) No driver of any certified vehicle for hire shall use or authorize the use of the vehicle for an illegal purpose.

(h) No driver shall operate a vehicle or be in actual physical control of a vehicle while under the influence of alcohol and/or any substance, which impairs the mental or physical faculties of such person to a degree, which renders him/her incapable of safely operating the vehicle.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-312. Lost property.

It shall be the duty of the driver of a certified vehicle for hire to carefully search such vehicle immediately after the termination of business for any property lost or left therein and any such property, unless sooner claimed or delivered to the owner, shall be taken to and deposited with the police department within 24 hours after the finding thereof. The police department, unless the same is sooner claimed by the owner, shall dispose thereof in the manner prescribed by law for lost and stolen property.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-313. Cleaning of vehicle.

It shall be the duty of the company or driver operating any certified vehicle for hire to keep and maintain any such vehicle at all times in a safe, comfortable, clean, and sanitary condition. The seats, floors, steps, running boards, upholstery, and baggage compartments of any such vehicle shall be thoroughly cleaned in such a manner as to be free of visible dirt, dust, soil, trash, and rubbish of every description; the interior shall be thoroughly sprayed or wiped at least once during each 24-hour period with a liquid disinfectant of adequate strength and efficiency so that every portion of the surface of the interior of the vehicle shall be covered or come in contact with such disinfecting fluid.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-314. Out-of-town vehicle for hire.

(a) Any vehicle for hire company that is not a certified vehicle for hire company in the city, but is authorized to operate a vehicle for hire by another jurisdiction, may bring passengers using the vehicle certified by another jurisdiction into the city from their jurisdiction of origin, but may not, except as allowed in subsection (b) of this section, pick up or allow or cause to be picked up any passenger for any destination or accept any business within the city.

(b) Vehicles for hire that are limousines or vehicles with an original seating capacity of more than ten that are authorized to operate as a vehicle for hire by another jurisdiction may, on a temporary and limited basis and with the express written approval of the director of parking and public transit, pick up a passenger for a destination or accept any business within the city.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-315. Refusal to pay fare.

It shall be unlawful for a passenger to refuse to pay the agreed or established fare. A driver may request proof of ability to pay fare prior to transporting.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-316. Alcoholic beverages.

Any alcoholic beverage transported in a certified vehicle for hire shall be in its closed original container.
(Ord. No. 16-103, § 1, 2-11-2016)

Secs. 8-317—8-340. Reserved.

DIVISION 3. TRANSPORTATION NETWORK COMPANY VEHICLES

Sec. 8-341. Definitions; methods for notice.

(a) *Definitions*. The following words, terms and phrases, when used in this division shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Affiliated driver means a driver that operates a transportation network vehicle for a sponsoring company, including as an owner, servant, agent, employee, or independent contractor of the sponsoring company.

Base of operation means a transportation network company's fixed base of operation from which the company conducts its business and which is suitably staffed by qualified and knowledgeable representatives of the company who are available during regular business hours to accept or respond to notices and inquiries of the city in its administration and enforcement of this division and where records required to be maintained under this division are kept.

Certificate holder means a transportation network company that has obtained and maintains a certificate of public convenience and necessity pursuant to this division.

Certificate of public convenience and necessity or *certificate* shall mean the certificate issued to a transportation network company pursuant to a resolution of the city council, adopted in accordance with the terms of this division, that authorizes the holder thereof to obtain a business license and to cause to be operated through its affiliated drivers, in conformance with the certificate and the terms of this division, a transportation network vehicle for the convenience and necessity of the public.

Chief of police means the chief of police of the city or his/her designees or subordinates. The chief of police may designate persons assigned to the police department or other city departments as deputies or inspectors to carry out the provisions of this division to the extent allowed by law.

City business license or *business license* means the business license issued by the city clerk-treasurer in accordance with chapter 15 of this Code.

City clerk-treasurer means the city clerk-treasurer of the city or his/her designees or subordinates.

City enforcement official or *enforcement official* means the persons authorized to administer and enforce the provisions of this division on behalf of the city as specified in this division.

Compensation means any money, thing of value, payment, consideration, reward, tip, donation, gratuity, or profit paid, accepted, or received in exchange for transportation of a passenger, whether paid upon solicitation, demand or contract, or voluntarily, or intended as a gratuity or donation.

Director of parking and public transit or *director* means the director of the department of parking and public transit of the city or his/her designees or subordinates. The director of parking and public transit may designate persons assigned to the department of parking and public transit as deputies or inspectors to carry out the provisions of this division to the extent allowed by the law.

Driver authorization means the right of a transportation network vehicle driver to operate his or her transportation network vehicle upon the public streets in accordance with this division.

Operate means the business of transporting a passenger for compensation upon the public streets and which includes any time when: (1) an affiliated driver is logged onto the transportation network company's online-enabled application or digital platform, (2) an affiliated driver has accepted a ride request, (3) an affiliated driver is on route to pick up a passenger, or (4) a passenger is in the vehicle.

Original seating capacity means a vehicle's originally designed seating capacity, inclusive of the driver and the passengers, prior to any type of customization, modification, or conversion.

Pre-arranged basis means a written or electronically transmitted reservation made in advance of passenger boarding from a specific location for the exclusive use of transportation network vehicle by a passenger or passengers who determine the trip's points of destination and timing.

Public street means any public street, road, alley, or any other such right-of-way within the corporate limits.

Sponsoring company means a transportation network company that is certified and licensed under this division that provides a sponsorship certification to the city for its affiliated drivers in accordance with this division.

Trade dress means a unique visual element associated with a transportation network company that is attached to the vehicle while the vehicle is being operated so that the public and passengers can readily identify the vehicle as being associated with that particular company.

Transportation network company or *company* means a person, not otherwise certified and licensed as another type of vehicle for hire company, that is engaged in a business that uses an online-enabled application (app) or digital platform to connect actual or potential passengers to an affiliated driver of a transportation network vehicle. Hereafter referred to as "TNC."

Transportation network vehicle means an unmetered motor vehicle, not operated on a fixed route, with a maximum original seating capacity of eight, which does not meet the definition of a limousine or luxury vehicle, as those terms are defined in section 8-151 of this article, and that is used to transport passengers for compensation upon the public streets on a pre-arranged basis by means of an online-enabled application (app) or digital platform to connect actual or potential passengers with drivers using their personal vehicles that they own, lease, or are otherwise authorized to drive. Hereafter referred to as "TNV." Nothing in this definition shall be construed to exclude from the definition of a TNV an SUV that is not a luxury vehicle.

Transportation network vehicle driver or *driver* means an individual operating a TNV.

Unmetered means that the vehicle is not equipped with a taximeter or is not then-currently certified and authorized as a taxi under division 2 of this article.

(b) *Notice methods.*

(1) *Notice by city.* Unless expressly provided otherwise, all written notice required to be provided by a city enforcement official under this division shall be, at the enforcement official's option, delivered personally, or sent by certified mail, return receipt requested, or by first class U.S. mail, or sent by electronic mail with record of delivery confirmation through electronic mail return-receipt, or by confirmation that the electronic mail was accessed, downloaded or printed, to the base of operation. Unless otherwise expressly provided for in this division, written notices shall be deemed served or received as follows: if by personal delivery, upon delivery; if by first class U.S. mail, three days after mailing; if by certified mail, upon receipt; or if by electronic mail, at the beginning of the next working day.

(2) *Notice to city enforcement official*. Unless otherwise expressly provided for in this division, all written notice required to be provided to an enforcement official under this division shall be provided using any one of the methods, at the option of the person sending the notice, prescribed in subsection (b)(1) above. Unless otherwise expressly provided for in this division, written notices shall be deemed served or received as set forth in subsection (b)(1) above.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-342. Use of online enabled application or digital dispatch services; information to passengers; obstruction of enforcement.

(a) For purposes of this section, the term "enforcement official" means the chief of police, other law enforcement officers of the city, the director of parking and public transit, and their respective subordinates or designees.

(b) It shall be unlawful for a TNC, its agents, servants, or employees, to disable, eliminate or otherwise prevent access to the company's mobile application by an enforcement official, for the purpose of interfering with or obstructing enforcement of this division, or to otherwise take an action intended to obstruct or interfere with the enforcement of this division by an enforcement official.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-343. Violation.

It shall be a violation of this division for a driver or a company, its servants, agents, or employees, to fail to comply with the applicable provisions of this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-344. Penalty.

An offense against a provision of this division shall be a violation which shall be governed by the provisions of section 1-7 of this Code.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-345. Right to amend division.

By its issuance of certificates, licenses, authorizations, or other approvals provided for in this division, the city does not waive and expressly reserves the right to, at any time and from time to time, amend or repeal any of the provisions of this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-346. Certificate and license required.

It shall be unlawful for a company to operate or allow or cause to be operated a TNV without having then in force a certificate of public convenience and necessity and city business license required under this division. A TNC shall notify its affiliated drivers if its certificate or license is no longer in effect. It shall be unlawful for an affiliated driver to operate a TNV for a company that the driver knows does not hold a current certificate and business license issued under this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-347. Filing fee; application for certificate.

Every TNC that desires a certificate of public convenience and necessity to operate or allow or cause to be operated a TNV upon the public streets shall pay a filing fee of $50.00 and make a written application for a certificate to the city council upon forms to be furnished by the city clerk-treasurer.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-348. Finding of council.

No certificate of public convenience and necessity shall be granted to a TNC until the city council shall have determined, by resolution, that the company is qualified and that the public convenience and necessity requires the proposed TNV service.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-349. Basis for issuance generally; issuance.

In making the findings of public convenience and necessity required by section 8-348, whether existing transportation is adequate to meet the public need; the probable effect of additional certified vehicles for hire on local traffic conditions; the character, experience, and responsibility of the applicant; and that the service which the applicant proposes to give is adequate and is in compliance with the requirements of this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-350. Issuance of certificate.

(a) If the city council shall find that further eligible vehicles for hire, as that term is defined in section 8-141(a) of this article, are required by public convenience and necessity, and if the city council shall find from the statements contained in the application for a certificate of public convenience and necessity that the applicant is qualified and able to perform such public transportation, and that the applicant is able to conform with the provisions of this division, then the city council shall adopt a resolution certifying that the public convenience and necessity require the proposed TNV service.

(b) The resolution adopted by the city council pursuant to the provisions hereof shall be known as the certificate of public convenience and necessity and shall entitle the holder thereof the non-exclusive right to obtain a business license and to cause to be operated through its affiliated drivers, in conformance with the certificate and the terms of this division, a TNV for the convenience and necessity of the public. The certificate of public convenience and necessity shall be conditioned upon compliance with section 8-351, concerning issuance and exercise of a business license.

(c) Unless terminated, revoked, or abandoned sooner, each certificate shall be valid for up to a one-year period from the date of issuance and shall be automatically renewed each year thereafter for up to a period of ten years.

(d) The issuance of a certificate of public convenience and necessity and city business license shall not be construed to create a vested property interest or right of any type in favor of the holder thereof.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-351. Issuance of a business license.

(a) A TNC shall have six months from the date of issuance of the certificate to exercise the certificate by obtaining a business license from the city clerk-treasurer and by having at least one vehicle authorized and operating in accordance with the requirements of this division; otherwise the certificate for public convenience and necessity and the authorization for the business license shall be deemed automatically rescinded.

(b) As a prerequisite to the issuance of a business license the certificate holder shall have established its base of operation, obtained the insurance required of the company under section 8-352, and paid the appropriate business license tax in the amount of $2,000.00. Upon appropriate verification of compliance with the foregoing requirements, the city clerk-treasurer shall issue to the certificate holder a business license.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-352. TNC and affiliated driver's insurance.

(a) *Insurance required.* Before a TNC or an affiliated driver of a transportation network company can operate or allow or cause to be operated a TNV, an affiliated driver of a TNC or the company on the behalf of its affiliated driver shall obtain and maintain in full force and effect automobile insurance that covers the driver under each of the following circumstances:

(1) The moment an affiliated driver logs on to the TNC's online-enabled application or platform until the driver accepts a request to transport a passenger, and from the moment the driver completes the transaction on the online-enabled application or platform or the ride is complete, whichever is later, until the driver either accepts another ride request on the online-enabled application or platform or logs off the online-enabled application or platform, which shall be known for purposes of this section as "period one."

(2) The moment an affiliated driver accepts a ride request on the TNC's on-line enable application or platform until the driver completes the transaction on the online-enabled application or platform or until the ride is complete, whichever is later, which shall be known for purposes of this section as "period two."

(b) *Coverage required during period one.*

(1) During period one, automobile insurance requirements are: Automobile liability insurance in the amount of at least $50,000.00 for death and bodily injury per person, $100,000.00 for death and bodily injury per incident, and $25,000.00 for property damage.

(2) Automobile liability insurance in the amounts required in paragraph (1) of this subsection (b) shall be maintained by a TNC and provide coverage in the event an affiliated driver's own automobile liability policy excludes coverage accord-

ing to its policy terms or does not provide coverage of at least the limits required in paragraph (1) of this subsection (b).

(c) *Coverage requirements during period two.*

(1) During period two, automobile insurance requirements are: Primary automobile liability insurance that provides at least $1,000,000.00 for death, bodily injury, and property damage.

(2) The coverage requirements of this subsection (c) may be satisfied by any of the following:

a. Automobile insurance maintained by the affiliated driver of the TNC.

b. Automobile insurance maintained by the TNC.

c. Any combination of a. and b.

(d) If insurance maintained by an affiliated driver under subsections (b) or (c) has lapsed or does not provide the required coverage, insurance maintained by a TNC shall provide the coverage required by this section beginning with the first dollar of a claim and shall have the duty to defend the claim.

(e) Coverage under an automobile insurance policy maintained by a TNC may not be made dependent on a personal automobile insurer first denying a claim and a personal automobile insurance policy may not be required to first deny a claim.

(f) Insurance required by this section may be placed with an insurer authorized to do business in the state, or with an eligible surplus lines insurer in accordance with Code of Ala. 1975, § 27-10-20.

(g) The driver of a TNV shall carry proof of coverage satisfying this section on their person or at a readily accessible place inside the vehicle at all times while the vehicle is being operated and present it to an enforcement official upon request. If the insurance is maintained by the TNC such proof of the insurance shall, at a minimum, identify the TNC's insurance company, policy number, and effective dates of the policy. Proof of insurance may be displayed electronically through the TNC's digital platform in accordance with Code of Ala. 1975, § 32-7A-6. In the event of an accident, the driver shall provide this insurance coverage information to the directly interested parties, automobile insurers, and investigating police officers, upon request pursuant to state law. Upon request, a driver shall also disclose to directly interested parties, automobile insurers, and investigating police officers, whether he or she was operating the vehicle during period one or period two at the time of an accident.

(h) In a claims coverage investigation, a TNC shall provide, upon request, information concerning the on-line or operational status of an affiliated driver to the relevant parties.

(i) Before a business license can be issued under this division the certificate holder that is a TNC shall file with the city clerk-treasurer a certificate of insurance evidencing the company-required insurance under this section, which insurance policy and certificate shall provide that the City of Huntsville shall be given at least 30 days' prior notice of cancellation. Such policy shall not be canceled or suspended, either by the insured or the insurer, unless at least 30 days' notice in writing of the intention to cancel or suspend policy has been filed with the city clerk-treasurer, and upon such suspension or cancellation of insurance, the right to operate or cause to be operated a TNV for said insured shall stand automatically suspended, without action being required by the city, until such time as an acceptable policy and certificate of insurance shall be on file with the city clerk-treasurer. The company shall notify its affiliated drivers that its insurance is not in effect and that the right to operate or cause to be operated a TNV has been automatically suspended.

(j) Nothing in this section shall be construed to excuse compliance with state mandated coverage requirements for motor vehicles, including the requirements under the Motor Vehicle Safety-Responsibility Act, Chapter 7, Title 32, Code of Ala. 1975, as such may be amended from time to time.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-353. Renewal.

Upon the certification by the certificate holder that there have been no changes in the information submitted as a prerequisite to the issuance of a certificate and a business license, including the required insurance coverage, and upon the approval of the city clerk-treasurer, a business license issued to a certificate holder may be renewed annually for additional periods of one year each from the date of expiration for so long as the certificate of public convenience and necessity authorizing such license has not been revoked, suspended, abandoned, expired according to its terms, or is otherwise no longer in effect; provided, however, that any business license not renewed after March 1 each year shall be deemed abandoned. A 60-day extension may be granted by the city clerk-treasurer for good cause shown.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-354. Transfer.

A certificate of public convenience and necessity issued under this division is not transferable.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-355. Action against business license and certificate.

(a) *Action against business license and certificate.*

(1) Upon the recommendation of the director of parking and public transit or the chief of police, the city clerk-treasurer may petition the city council to take action against a business license issued under this division in accordance with section 15-56 of this Code, which includes the notice and hearing requirements set forth therein. In addition to the reasons stated in section 15-56(a) of this Code, each of the following shall also constitute grounds for action being taken against the license:

a. If the licensee or those acting on its behalf make any false statement or misrepresentation on any applications made under this division, including applications for a certificate of public convenience and necessity or a business license issued under this division.

b. Failure of the licensee to maintain any of the general qualifications required in this division in order to obtain a certificate or business license.

c. If the licensee or those acting on its behalf violates a provision of this division.

(2) The action taken against a business license shall automatically constitute the same action being taken against the certificate of public convenience and necessity of the affected licensee; provided, however, in order to permanently revoke a certificate of convenience and necessity the director of parking and public transit or chief of police must recommend and the city clerk-treasurer must petition the city council that, at the same time and in the same proceeding, the certificate of public convenience and necessity be permanently revoked based on the same grounds that warrant action being taken against the business license, and the certificate holder must be notified that permanent revocation is being considered. The permanent revocation of the certificate shall constitute a permanent revocation of the business license and shall disqualify the certificate holder from holding a certificate, and, should the city council expressly make the determination, the officers, directors, general partners, members, or managers, as the case may be, shall also be disqualified from holding a certificate.

(3) It shall be unlawful for any person, including the company or a driver, to operate or allow or cause to be operated a TNV under a license or certificate during the effective period of an adverse action taken against the license or certificate.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-356. Driver's authorization required.

It shall be unlawful for any person to operate or allow or cause to be operated a TNV without the driver's authorization required by this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-357. Sponsorship and driver authorization.

(a) *Disqualifying factors.* For purposes of this section, the term "disqualifying factor" means any of the following:

(1) The person has had more than three moving violations in the immediately preceding three-year period, or one major violation in the immediately preceding three-year period, including any of the following:
   a. Attempting to evade the police.
   b. Reckless driving.
   c. Driving on a suspended or revoked license.

(2) The person has been convicted within the past seven years of any of the following:
   a. Driving under the influence of drugs or alcohol.
   b. Fraud.
   c. A sexual offense.
   d. The use of a motor vehicle to commit a felony.
   e. Any crime involving property damage.
   f. Theft.
   g. An act of violence.
   h. An act of terror.
   i. A felony.

(3) The person is a match in the National Sex Offender Registry Database.

(4) The person does not possess a valid driver's license.

(5) The person is not at least 19 years of age.

(b) *Sponsorship.* In order for an affiliated driver of a TNC to operate its TNV the driver must be sponsored by the TNC with which he or she is affiliated. Nothing in this division shall be construed to prevent a driver from being sponsored by more than one company at the same time or to prevent the holder of a chauffeur's license from operating as an affiliated driver of a TNC. In order to sponsor an affiliated driver a TNC shall:

(1) Conduct, or have a nationally accredited third-party conduct for each driver, annually, each of the following:
   a. A local and national criminal background check, using the person's social security number, which shall include:
      (i) Multi-State/Juris Criminal Records Locator or other similar commercial nationwide database with validation (primary source search); and
      (ii) National Sex Offender Registry database.
   b. A driving record check in the driver's state of licensure.

(2) Obtain from each driver each of the following:
   a. The legal name, address, and age of the individual.
   b. A legible copy of the driver's license and motor vehicle registration.
   c. A description of the driver's vehicle, which includes the make, model, year of manufacture, state license number, the V.I.N., and the owner of the vehicle if different than the driver.

(3) Have on file with the director of parking and public transit a current sponsorship certification from an authorized representative of the company, which the company shall submit annually by January 31 with its renewal for a business license, stating under oath that:
   a. All affiliated drivers' vehicles are in compliance with the standards and

requirements of this division and have passed their required inspections.

b. The insurance required in section 8-352 is in full force and effect.

c. The company has conducted, or has had a third-party conduct, the required criminal background and driving record checks for each driver outlined above in subsection (b)(1) of this section, and any annual renewals required, and has obtained the required information outlined above in subsection (b)(2) of this section; and

d. Each affiliated driver does not have a disqualifying factor, as that term is defined in subsection (a) of this section.

(c) *Driver authorization.* The receipt by the director of the department of parking and public transit of the sponsorship certification required from the sponsoring company shall constitute a driver authorization for all affiliated drivers sponsored by the company to operate their TNV for the sponsoring company. The sponsoring company shall maintain the list of its affiliated drivers that the company is currently sponsoring to operate in the city.

(d) *Random audit.* In order to verify compliance with the sponsorship requirements of this section, once during any calendar year the director of parking and public transit may conduct a random audit of the sponsorship information and records on file with the sponsoring company. The random audit may be conducted on up to 25 of the sponsoring company's affiliated drivers that are selected by the director from among 100 driver names or unique identifying numbers supplied to the city by the company. It shall be a violation of this subsection (d) for a company to fail to comply with an audit request. Where the results of the audit demonstrate non-compliance with the sponsorship requirements of this section, the sponsoring company shall be in violation of this section and shall be subject to action being taken against its certificate or business license.

(e) Driver authorization shall automatically expire or terminate, without action being required by the city, as follows:

(1) On February 1 of each year for every affiliated driver of a sponsoring company unless the sponsoring company has provided a new sponsorship certification to the director;

(2) For a driver that is no longer affiliated with a sponsoring company; or

(3) For every affiliated driver of a sponsoring company upon the sponsoring company no longer operating or being allowed to operate in the city for whatever reason.

It shall be unlawful for a company or driver to operate or allow or cause to be operated a transportation network vehicle when the driver authorization has terminated or expired under this subsection.

(f) It shall be unlawful for a driver to operate, or for a sponsoring company to knowingly allow or cause an affiliated driver to operate, a TNV if that driver does not meet the qualifications necessary for company sponsorship.

(g) Upon the request of a passenger or potential passenger, the chief of police or another a law enforcement officer of the city, or the director of the department of parking and public transit or city personnel operating under the director's supervision, a driver of a TNV, while the vehicle is in operation as a TNV, shall present proof that it is an affiliated driver of a TNC and that it is authorized to operate a TNV for the company with which it is affiliated.

(h) No vested property right or property interest of any type is acquired by the driver authorization.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-358. Business license.

Notwithstanding anything to the contrary contained in this Code, an affiliated driver of a TNC that is working for the company as an independent contractor shall not be required to obtain a business license from the city so long as

the company has obtained and maintains an annual business license to conduct business as a transportation network company.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-359. Vehicle authorization.

In order for a TNV to be authorized to be operated on the public streets the vehicle must meet applicable standards and requirements of this division for a TNV, pass all required inspections, and be duly insured in accordance with this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-360. Vehicle standards.

(a) A TNV operated upon the public streets of the city shall be kept clean, sanitary, fit and of good appearance, and in a safe condition for the transportation of passengers.

(b) In addition to all other applicable requirements of this division, a TNV shall have the company's trade dress, as approved by the director of parking and public transit. The trade dress shall be attached in a readily visible location on the exterior of the TNV while it is being operated and shall be of sufficient size to be seen from a distance of 25 feet.

(c) A TNV shall be no older than ten model years of age from the current model year (as measured from June 30 of the calendar year following the model year).
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-361. Vehicle inspections.

(a) *Inspections*.

(1) *Required*. No person shall operate or allow or cause to be operated a TNV until the vehicle has been inspected as prescribed in this section and found to be in safe operating condition, clean, sanitary, fit, of good appearance, and meeting the applicable standards and requirements of this division. The vehicle inspection requirements established by this division shall be met no later than 30 days after the vehicle is first placed into service as a TNV.

(2) *Inspection criteria*. To pass inspection a TNV shall, at a minimum, meet applicable state laws governing vehicle equipment and, in addition, shall pass an inspection of the following vehicle components:

a. Foot brakes;
b. Emergency brakes;
c. Steering mechanism;
d. Windshield;
e. Rear window and other glass;
f. Windshield wipers;
g. Headlights;
h. Tail lights;
i. Turn indicator lights;
j. Stop lights;
k. Front seat adjustment mechanism;
l. Doors;
m. Horn;
n. Speedometer;
o. Bumpers;
p. Muffler and exhaust system;
q. Condition of tires, including tread depth;
r. Interior and exterior rearview mirrors;
s. Safety belts and air bags for driver and passenger(s); and
t. Heater, defroster and air conditioning.

(b) *Inspections*. Inspections shall be performed by a private technician or mechanic that is ASE (Automotive Service Excellence) certified (series A) or meeting the Federal Motor Carrier Safety Administration (FMCSA) inspector qualifications of 40 C.F.R. § 396.19, or any succeeding federal regulation, and that is not an employee of the TNC. The qualified mechanic or technician inspecting the vehicle shall issue to the driver a vehicle inspection sheet certifying that the vehicle has passed inspection. It shall be the responsibility of the sponsoring company to confirm that a TNV has passed the required inspections.

(c) *Frequency of inspections.*

(1) No later than the thirty-first day after a TNV is initially placed into service and annually thereafter within 20 days of the anniversary date the TNV was initially placed into service, the vehicle must pass prescribed inspection.

(2) The chief of police and director of the department of parking and public transit are hereby authorized to maintain constant vigilance over all TNV to confirm they are kept in a condition of continued fitness for public use in compliance with this division and to that end are hereby authorized to make such incidental or random on-the-road inspections as they deem advisable, provided that, such inspections shall be conducted only when the vehicle is being operated under this division.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-362. Vehicles failing inspection; out of service.

(a) If, after an incidental or on the road or random inspection, a TNV is found, in the enforcement official's opinion, not to be in a safe condition for the transportation of passengers, or is being operated without the required insurance coverage, the vehicle shall be placed out of service. The enforcement official shall note the deficiencies in writing and provide a copy to the driver and the driver's sponsoring company. The enforcement official will place the vehicle back in service as soon as the sponsoring company notifies the enforcement official that the noted deficiencies have been remedied.

(b) It shall be unlawful for a driver to operate, or for the sponsoring company to knowingly allow or cause to be operated, a TNV that is out of service under this section.

(c) The chief of police shall notify a sponsoring company if the TNV of an affiliated driver has been taken out of service under the provisions of this section. Upon receiving such notification, the TNC shall remove the affiliated driver from the platform.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-363. Inspection certification.

(a) Subject to section 8-361(c)(1), while the vehicle is being operated, a TNV must have somewhere readily accessible inside the vehicle, either in hard copy form or through the way bill on the driver's app, a copy of the then-current certified vehicle inspection sheet issued by a qualified mechanic or technician that the vehicle has passed inspection and shall produce it upon the demand of the chief of police or another law enforcement officer of the city, or the director of the department of parking and public transit or city personnel operating under the director's supervision. If the driver fails to produce the certified inspection sheet upon request, the driver shall have 24 hours from the time of the request to produce, at the city office or police precinct designated by the enforcement official, a copy of the certified inspection sheet, or evidence, such as a sworn statement from the driver, that the TNV was placed into service within the 31 days prior to the law enforcement officer's request as permitted under section 8-361(c)(1). If the driver fails to produce the certified inspection sheet or other acceptable evidence within the time provided, the TNV shall be deemed out of service until the certified inspection sheet or other acceptable evidence is produced in accordance with this subsection (a). The enforcement official shall notify the sponsoring company that a TNV has been deemed out of service under this subsection (a). Upon receiving such notification, the TNC shall remove the affiliated driver from the platform.

(b) It shall be unlawful for a driver to operate, or for the for the driver's sponsoring company to knowingly allow or cause to be operated, a TNV that is deemed out of service under this section.

(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-364. Rates; disclosures.

(a) TNV may charge on a per mile (distance traveled), per trip (flat fee) or per hour (time elapsed) basis, or a combination thereof, conditioned as follows:

(1) The rates shall be uniformly applied to all passengers, and the rates, including

the method of calculating the fare, shall be posted in the online application (app) and on the company's website.

(2) If the rates, including the method of calculating the fare, vary from the normally posted rate on the company website and the application (app), then the company must require that the passenger positively acknowledge on the application device used to summons the driver that they agree to the rate structure being charged for the trip requested. The company shall provide potential passengers with the option of obtaining an estimated fare before the passenger engages the service.

(3) The company shall disclose to the passenger prior to the passenger entering the TNV if it is operating during a period of dynamic pricing. The company shall also provide the passenger an option to be notified when the time of dynamic pricing is no longer in effect. In addition to this notice, the company shall notify the passenger as soon as practicable of this same information, if the passenger requests this option.

(4) The company may charge incidental and additional charges provided that it shall notify a passenger of all such charges that may be added to the charge before the passenger accepts the transportation. Notwithstanding the foregoing, in no event shall the company or driver charge an incidental or additional charge on the basis of a person's disability.

(5) Upon completion of a ride, the TNC shall transmit to the passenger an electronic receipt, either by electronic mail or via text message. The message shall document the point of origin and destination of the ride, the total distance and duration of the ride, the total fare paid including the base fare and any additional charges, and the driver's first name and the contact information for the company's customer service department, including the department's email address or a hyperlink to a contact form.

(b) The company's software application or website shall display to a potential passenger or a passenger before the passenger enters the vehicle a picture of the driver assigned to transport the passenger and the make and model of the vehicle the driver is approved to use, including the license plate number of the vehicle. The company shall make available on the mobile application and the receipt provided to the passenger, the contact information for their customer service department, including the department's email address or a hyperlink to a contact form.

(c) Nothing in this division shall be construed to prevent a TNC from providing free service or discounted rates so long as the company does not discriminate in doing so.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-365. Unauthorized fares.

(a) No company or driver shall demand or suggest that any passenger or prospective passenger pay a fare larger than that authorized in this division.

(b) No company or driver shall demand or suggest that any passenger pay an amount that exceeds the passenger-accepted rate.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-366. Street hails; airport service; soliciting passengers.

(a) No TNV driver shall accept or respond to passengers' or potential passengers' requests for service via traditional street hail, including hand gestures and verbal statements.

(b) No TNV driver shall pick up a passenger on any portion of the Huntsville International Airport without proper authorization from the Huntsville-Madison County Airport Authority. Additionally, no driver shall pick up or discharge any passenger in any designated taxicab stands, whether at the airport, or otherwise.

(c) *Soliciting passengers.*

(1) For the purpose of this section, the term "solicit" means an appeal by a driver upon a public street using words or gestures to elicit immediate patronage of a vehicle for hire by attempting to direct people to a TNV that is parked, stopped, standing, or moving upon a public street.

(2) No TNV driver shall solicit passengers.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-367. Pre-arrangement.

Pre-arranged services. It shall be unlawful for a TNC or a TNV driver to fail to demonstrate prearrangement by presenting upon request of the director of parking and public transit or chief of police, or their respective designees, proof of pre-arrangement, including a copy of the reservation or an electronic record made in advance of passenger pick-up.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-368. Number of passengers and luggage.

(a) No TNC or TNV driver shall allow more passengers to be transported than the number of available seats that are equipped with operative safety belts.

(b) No TNC or TNV driver shall allow more children to be transported than the number for which operative child passenger restraint devices are available for children within the legal age limit requiring such devices.

(c) No driver shall carry any luggage exceeding the vehicle's storage volume or load-carrying capacity regardless of the number of passengers occupying the vehicle.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-369. Prohibition against discrimination.

(a) With respect to passengers and potential passengers, a TNC shall adopt a policy of non-discrimination on the basis of destination, race, color, national origin, religion, sex (including pregnancy), disability, age, sexual orientation or gender identity, and shall notify its affiliated drivers of such policy.

(b) TNV drivers shall comply with all applicable laws regarding non-discrimination against passengers or potential passengers and shall comply with the non-discrimination policy set forth in subsection (a) above.

(c) TNV drivers shall comply with all applicable laws relating to accommodation of service animals and shall not refuse to load mobility aids, such as wheelchairs and walkers, which can fit into a standard truck or rear storage compartment of a vehicle.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-370. Two or more destinations; single destination.

(a) If a TNV is carrying two or more passengers to different destinations, the driver shall be the sole judge of the order in which such passengers shall be delivered to their destination and the shortest possible route shall be followed.

(b) Any TNV driver charging on a per mile basis shall take the most direct route possible that will carry the passenger to his/her destination safely and expeditiously, unless the passenger requests otherwise.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-371. Record and reports of operations; cooperation with law enforcement.

(a) Every TNC shall keep accurate books and records of account of its operations in the city at the company's base of operations for a minimum of one year.

(b) Every TNC shall keep a record on any of its affiliated drivers who were alleged to have committed a violation of this division or their terms of service or who have been suspended or banned from driving for the company, including any zero-tolerance complaints and the outcome of the investigation into those complaints. In addition, every TNC shall maintain records of its

affiliated drivers for at least two years after the date on which the driver's activation on the company's digital network has ended.

(c) With regard to its operations in the city, a TNC shall create and retain, for at least a two-year period, individual trip records, in written or electronic format, which includes pick-up and drop-off information, the name of the driver, the time of pickup and delivery of passengers.

(d) In order to provide reasonable response in traffic incident investigations, a TNC must provide upon the request of the police chief or his designees, factual information regarding the company's affiliated drivers and vehicles so as to determine whether or not a particular driver was active on the company's dispatch system application, in route to a passenger location, or engaged with a passenger at a specific time and date. Where a warrant or other legal process is necessary in order to obtain the requested information, a TNC shall cooperate with law enforcement officials in obtaining and promptly responding to such legal process.

(e) A TNC shall cooperate to the fullest extent reasonably possible with law enforcement to provide information about specific law enforcement incidents potentially involving an affiliated driver or an affiliated driver's TNV. If local, state, or federal law enforcement asserts that access to such information must be immediate to prevent a reasonable threat of death, or serious physical injury, to a person, then the company, or any driver, shall provide that information immediately. A TNC shall provide an emergency contact number to the chief of police for such instances. In all other law enforcement situations, such information shall be provided promptly in response to the issuance of a subpoena to review such records. Any failure to comply with this subsection shall result in the immediate suspension of the company's certificate and business license. Where a warrant or other legal process is necessary in order to obtain the requested information, a TNC shall cooperate with law enforcement officials in obtaining and promptly responding to such legal process.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-372. Base of operations; registered agent; customer service number.

(a) A TNC must maintain a base of operations. The base of operations shall be suitably staffed by qualified and knowledgeable representatives of the company who are available during regular business hours to accept or respond to notices and inquiries of the city in its administration and enforcement of this division and where records required to be maintained under this division are kept. Failure to maintain a base of operation shall be a violation of this division and cause for action being taken against the company's business license and the certificate of need and necessity.

(b) The location of the base shall not be changed without first notifying the director of parking and public transit.

(c) Companies must be qualified to do business in the state and must maintain an agent for service of process in the state.

(d) At a minimum a TNC shall maintain accessibility to a customer service representative via telephone or electronic mail that shall be staffed with suitable personnel who are able to assist consumers with complaints or inquiries during normal business hours.

(e) A TNC shall provide a 24/7 emergency contact number to the city in the case of emergencies.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-373. Trailers.

No trailer or semi-trailer shall be attached or secured to a TNV while it is being used to transport passengers.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-374. Driver requirements; conduct.

(a) A driver must be clean and neat in appearance.

(b) A driver must be physically capable of operating a vehicle in a safe manner. A driver shall not be impaired by fatigue, illness or other medical conditions to an extent that would render

him/her incapable of safely operating a vehicle or would pose a liability to himself/herself, his/her passengers or the general public.

(c) Each driver of a TNV, while operating such vehicle upon the public streets of the city, shall comply with all of the traffic regulations of the State of Alabama and the city and shall not commit any act that would threaten the health or safety of his/her passengers or the general public, which includes an act which would constitute a violation of driving while under the influence laws of this state.

(d) No driver of any TNV shall use or authorize the use of the vehicle for an illegal purpose.

(e) No driver shall operate a vehicle or be in actual physical control of a vehicle while under the influence of alcohol and/or any substance, which impairs the mental or physical faculties of such person to a degree, which renders him/her incapable of safely operating the vehicle.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-375. Lost property.

It shall be the duty of the driver of a TNV to carefully search such vehicle immediately after the termination of business for any property lost or left therein and any such property, unless sooner claimed or delivered to the owner, shall be taken to and deposited with the police department within 24 hours after the finding thereof. The police department, unless the same is sooner claimed by the owner, shall dispose thereof in the manner prescribed by law for lost and stolen property.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-376. Cleaning of vehicle.

It shall be the duty of the driver of a TNV to keep and maintain any such vehicle at all times in a safe, comfortable, clean, and sanitary condition. The seats, floors, steps, running boards, upholstery, and baggage compartments of any such vehicle shall be thoroughly cleaned in such a manner as to be free of visible dirt, dust, soil, trash, and rubbish of every description.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-377. Out-of-town vehicles.

A TNC certified by a jurisdiction other than the city may cause or allow an affiliated driver to bring passengers using the vehicle certified by another jurisdiction into the city from their jurisdiction of origin, but may not allow or cause the driver to pick up any passenger from any destination or accept any business within the city, unless the TNC is also certified in accordance with this division.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-378. Refusal to pay fare.

It shall be unlawful for a passenger to refuse to pay the agreed or established fare. A driver may request proof of ability to pay fare prior to transporting.
(Ord. No. 16-103, § 1, 2-11-2016)

Sec. 8-379. Alcoholic beverages.

Any alcoholic beverage transported in a TNV shall be in its closed original container.
(Ord. No. 16-103, § 1, 2-11-2016)

ARTICLE V. GOING OUT OF BUSINESS OR DISTRESS MERCHANDISE SALES

Sec. 8-400. Definitions.

Unless otherwise provided, the following words and phrases, when used in this article, shall have the meanings respectively ascribed to them in this section:

(1) *Applicant* means any person applying for a license under this article, including the principal, if such person is the agent of another who is the true owner, notwithstanding whether that other is an individual, partnership, association, firm, or corporation and notwithstanding whether the name of the true owner appears on the application or not.

(2) *Distress merchandise sale* means any offer to sell to the public or a sale to the public of goods, wares, or merchandise on the implied or direct representation that such sale is being held other than in the

ordinary course of business and not otherwise defined herein. Without limiting the generality of the above, "distress merchandise sales" shall include, but not be limited to, any sale advertised either specifically or in substance to be any one of the following:

a. Fire sale;
b. Smoke and/or water damage sale;
c. Adjustment sale;
d. Insurance salvage sale;
e. Mortgage sale;
f. Adjuster's sale;
g. Reorganization sale; or
h. Other terminology of similar intent to any of the above.

(3) *Going out of business sale* means any offer to sell to the public or a sale to the public of goods, wares, or merchandise on the implied or direct representation that such sale is in anticipation of the termination of a business at its present location or that the sale is being held other than in the ordinary course of business. Without limiting the generality of the above, "going out of business sales" shall include, but not be limited to, any sale advertised either specifically or in substance to be any one of the following:

a. A sale because the applicant is going out of business;
b. A sale because the applicant is liquidating;
c. A sale because the applicant is selling 50 percent or more of his stock, his entire stock or selling out to the bare walls;
d. A sale because the applicant has lost his lease;
e. A sale because the applicant is selling out his interest in the business establishment;
f. A sale because everything in the store or establishment must be sold;
g. Trustee's sale;
h. Bankrupt sale;
i. Save us from bankruptcy sale;
j. Insolvent sale;
k. Assignee's sale;
l. Must vacate sale;
m. Quitting business sale;
n. Receiver's sale;
o. Loss of lease sale;
p. Forced out of business sale;
q. Removal sale;
r. Liquidation sale;
s. Executor's sale;
t. Administrator's sale;
u. Warehouse removal sale;
v. Branch store discontinuance sale;
w. Creditor's committee sale;
x. Adjustment sale;
y. Defunct business sale;
z. Selling out interest sale; or
aa. Other terminology of similar intent to any of the above.

(4) *Goods, wares and merchandise* means any goods, wares, merchandise, or other property capable of being the object of a sale regulated under this article.

(5) *Inventory* means a list of and the wholesale cost of goods, wares, and merchandise.

(6) *Person* means any individual, partnership, association, firm, or corporation.

(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-401. License required.

(a) It shall be unlawful for any person to sell, offer for sale, or advertise for sale at a going out of business sale or a distress merchandise sale any goods, wares, or merchandise, whether it be his property or that of another, unless a license for such sale has been issued pursuant to this article and is in effect.

(b) Such license must be displayed in a prominent place on the premises wherein any such sale is being conducted, and the number and date of issue of the license must be displayed in any advertising of the sale.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-402. Application.

An applicant for a license to conduct a going out of business sale or a distress merchandise sale shall file an application with the city's clerk-treasurer at least 30 days prior to such sale; provided, however, that the said 30-day period may be waived in writing by the clerk-treasurer to whom the application is made for good cause shown. The application shall be made upon forms prescribed by the Commissioner of Revenue of the State of Alabama pursuant to Code of Ala. 1975, § 8-13-1 et seq., signed and verified by the applicant and shall include the following information:

(1) Name and address of the applicant and also the name of the true owner if the applicant is not such true owner;

(2) Name, location, and time of the proposed going out of business sale or distress merchandise sale;

(3) Inventory of the goods, wares, or merchandise, on hand and on order, which the applicant intends to offer for sale at a going out of business sale or distress merchandise sale. The inventory shall show the quantity, kind, or grade of each item, the wholesale cost thereof, and the name of the supplier from whom each item was acquired;

(4) A statement of the average, highest, and lowest inventory at the wholesale cost thereof at the applicant's place of business during the year next preceding the filing of the application. When the applicant operates more than one retail outlet and said outlets are supplied from a warehouse or warehouses operated by applicant, then the amount of inventory in said warehouse or warehouses attributable to the retail outlet wherein the sale hereunder is to be conducted shall be calculated as follows:

a. The total volume of merchandise handled in said warehouse or warehouses during the year next preceding the filing of the application under this article shall be determined;

b. The percentage of such year's total volume sold through the retail outlet wherein the sale hereunder is being conducted shall next be determined;

c. The percentage so determined of the merchandise on hand at said warehouse or warehouses at the time of the filing of the application hereunder shall be attributable to the concerned outlet and shall be included as part of the inventory set forth in the application;

(5) A list of goods, wares, or merchandise received by the applicant during the three months next preceding the filing of the application;

(6) A statement that the applicant will discontinue the business for which the license is requested, provided such sale is a going out of business sale, the date when such termination will be effected and that the applicant will not use or authorize the use of his trade, business, or firm name for a period of one year immediately following the expiration of a license issued to him under this article; provided, however, that if such name is being used in connection with another establishment operated by applicant presently located within the State of Alabama at a different location, then the trade, business, or firm name may be used at such other location, but not at the location where the sale is conducted and not at another location established by applicant after the application is made; and

(7) Such other information as the commissioner of revenue may prescribe.

(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-403. Bond.

(a) Every applicant for a going out of business sale or distress merchandise sale license shall execute and file with the clerk-treasurer a good and sufficient bond in the sum of $2,500.00 or nine percent of the wholesale value of the inventory as set forth in the application, whichever is greater, with two or more sureties thereon, approved by said clerk-treasurer or with the surety thereon a surety company authorized to do business in the State of Alabama, which bond in any event shall be approved by the clerk treasurer, payable to the city for benefit of the city and the State of Alabama, and shall be conditioned upon faithful observance of all the conditions of this article and shall also indemnify any purchaser at such sale who suffers any loss by reason of misrepresentation in said sale.

(b) Such bond shall continue in effect for one year after the termination of the sale for which it is made.

(c) The licensee shall notify the clerk-treasurer of any action filed as a result of the operation hereby licensed. Any purchaser claiming to have been damaged by misrepresentation in such going out of business sale or distress merchandise sale may maintain an action against the licensee making such misrepresentations and may join as party defendant the surety or sureties on the bond.

(d) If an action is filed by any purchaser or purchasers at a licensed sale within one year after the termination of the sale, the bond shall remain in force and effect until all actions are concluded and the judgment or judgments, if any, paid in full.

(e) In the event the applicant fails to observe all of the provisions of this article in conducting such sale for which the bond is given, the bond will be deemed to be forfeited, and the city attorney may recover in an action in the circuit court of the county in which the bond was given the amount of the bond from applicant and his sureties for the use and benefit of the city and/or the State of Alabama.

(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-404. Public hearing on application.

The clerk-treasurer, or his designee, shall conduct a public hearing not later than two weeks after an application has been filed. At least one week prior to such hearing the clerk-treasurer shall publish, at the expense of the applicant, a notice of the hearing in a local newspaper of general circulation. The clerk-treasurer may require that a record be made of the public hearing and that the testimony at such hearing be under oath.

(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-405. Investigation.

(a) When an application for a license to conduct a going out of business sale or distress merchandise sale is filed, the clerk-treasurer shall make such investigation as he deems necessary prior to the public hearing hereinafter provided.

(b) The applicant shall pay to the clerk-treasurer at the time the application is filed a fee of $10.00 for making such an investigation, and if the clerk-treasurer deems it necessary to have an independent inventory or audit of the applicant's books made, he shall advise the applicant of the cost of such independent inventory or audit and applicant shall pay such amount to the city to be used to pay the cost of such inventory and/or audit.

(c) The applicant's refusal to pay the fee and costs hereinabove provided and his refusal to permit examination of his books and records or his goods, wares and merchandise is ground for refusal by the clerk-treasurer to issue a license.

(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-406. Bona fide merchant.

No license for a going out of business sale or a distress merchandise sale shall be issued except to a bona fide licensed merchant of the City of Huntsville, and no such license shall be granted

to an applicant who sets up an establishment or who acquires an interest in an establishment solely or principally for the purpose of conducting a going out of business sale or distress merchandise sale. A bona fide licensed merchant of the City of Huntsville may utilize a professional third party liquidator to conduct such sales on behalf of said merchant.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-407. Fee.

(a) For a license for a going out of business sale or distress merchandise sale issued for 30 days or less, the applicant shall pay to clerk-treasurer, for the use and benefit of the City of Huntsville, a license fee in accordance with the following schedule:

(1) $50.00 if inventory is $10,000.00 or less.

(2) $100.00 if inventory is over $10,000.00 but less than $25,000.00.

(3) $200.00 if inventory is over $25,000.00 but less than $50,000.00.

(4) $300.00 if inventory is over $50,000.00 but not over $100,000.00.

(5) $400.00 if inventory is over $100,000.00 but not over $200,000.00.

(6) $500.00 if inventory is over $200,000.00.

(b) For a license renewal of 30 days or less, the applicant shall pay an additional license fee of $100.00.

(c) The applicant shall also pay to the clerk-treasurer an issuing fee of $25.00 for each license issued hereunder, and for each renewal of such license.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-408. Issuance of license.

A license shall be issued to an applicant when the clerk-treasurer is satisfied after investigation that:

(1) The applicant intends to discontinue his business at the location designated in the application on the date specified therein if such sale is a going out of business sale;

(2) The applicant's inventory, on hand and on order, is not out of proportion to the stock normally carried by such applicant;

(3) The applicant has not purchased or otherwise acquired goods, wares, or merchandise for the purpose of conducting a going out of business sale or distress merchandise sale;

(4) The goods, wares, or merchandise to be offered for sale are those of a bona fide merchant of the State of Alabama;

(5) No misrepresentation of the goods to be sold has been made or will be practiced; and

(6) The applicant has complied with the provisions of this article in all other respects not specifically set forth in this section.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-409. Restrictions on issuance.

No license shall, under any circumstances, be granted to any persons, applicant, or owner within a period of two years after the termination of any going out of business sale by such person, applicant, or owner, held or conducted under this article. No person, applicant, or owner who has been convicted of violating any of the provisions of this article relating to the conduct of going out of business sales or distress merchandise sales shall be granted a license for such sale or sales or be employed, in any manner at or in connection with any going out of business sale or distress merchandise sale licensed hereunder for a period of ten years after such conviction.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-410. Surrender of business license.

At the time a license is issued hereunder for a going out of business sale, the applicant shall surrender to the clerk-treasurer all licenses held by him at that time for the regular operation of his business at the location where such sale is to be held, and the same shall no longer be of force and effect.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-411. Certain time limitations; duration of license.

A license for a going out of business sale or distress merchandise sale shall be limited to a period of 30 consecutive business days, exclusive of Sundays and legal holidays. No license shall be issued for a period that will include any of the days between November 15 through December 31, inclusive, and no going out of business sale or distress merchandise sale may be conducted during that period. If a licensee does not sell the quantity of goods, wares, or merchandise permitted under this article, he may apply for, and the clerk-treasurer may grant an extension of 30 days upon good cause shown.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-412. Revocation of license.

The clerk-treasurer issuing a license for a going out of business sale or distress merchandise sale may revoke or suspend the same if any licensee sells, offers for sale, or advertises for sale any goods, wares, or merchandise in addition to those specified under section 8-416, violates any of the provisions of this article or any other law relating to the business so licensed, or otherwise fails to comply with the terms of this article.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-413. Use of trade name.

It shall be unlawful for any person to use the trade, business, or firm name of a licensee for a period of one year after the expiration of a license issued under this article, if such license is issued for a going out of business sale; provided, however, that an applicant may continue the use of such name at a different location if it has been, and is at the time the application is filed, being used at a different location within the City of Huntsville by applicant.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-414. Sale hours.

No going out of business sale or distress merchandise sale shall be held at times other than regular store hours of the applicant, except that the clerk-treasurer may make reasonable provision for extra evening hours upon good cause shown by the applicant.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-415. Advertising.

A licensee shall not advertise a going out of business sale or distress merchandise sale earlier than seven days prior to the date on which the sale is licensed to begin. Advertising of such sales shall state the number of the license issued pursuant to this article and the date when the sale is to begin and, during the last 15 days of such sale, shall clearly and prominently state the date upon which the sale shall end.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-416. Sales limited to existing inventory.

(a) During any going out of business sale or distress merchandise sale, it shall be unlawful for a licensee to sell, offer for sale, or advertise for sale any goods, wares, or merchandise which were not included in the inventory filed with his application or added to his stock as permitted in this section.

(b) During any licensed going out of business sale or distress merchandise sale, no additions shall be made to the stock of merchandise set forth in the inventory attached to the application for the license; provided, however, that the applicant may add new stock not to exceed ten percent of the dollar value of the inventory of goods, wares, or merchandise on hand as shown in the inventory attached to the application filed pursuant to this article; and provided further, that the addition of ten percent shall include the goods, wares, or merchandise on order as shown in the application. The purpose of said additions to inventory shall be only to maintain reasonably balanced selections.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-417. Daily report of merchandise.

A licensee in a going out of business sale or distress merchandise sale shall file with the probate judge issuing the license a daily report under oath of merchandise received. The report

shall show the quantity, kind, and grade of each item received, the supplier of each item, and the wholesale value thereof. Failure to report any receipt of goods while a license is in force is ground for revocation of the license, in the discretion of the probate judge issuing the same.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-418. False bidders.

No person who is not a bona fide potential purchaser shall act at any going out of business sale or distress merchandise sale as bidder, or what is commonly known as a "capper," "booster," or "shiller," or offer or make any false bid to buy any article sold or offered for sale at any going out of business sale or distress merchandise sale.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-419. Licensee responsible.

The person to whom a license has been granted under this article, or his authorized representative, shall remain in continuous attendance at all times while a going out of business sale or distress merchandise sale is being conducted, and he shall be responsible for any violation of the provisions of this article.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-420. Penalties for violation.

(a) A person convicted of a willful violation of any of the provisions of this article shall be fined not more than $100.00 and may be imprisoned for not more than one week, or both.

(b) Each separate sale, offering for sale, or advertising for sale at a going out of business sale or distress merchandise sale of any goods, wares, or merchandise in violation of the provisions of this article constitutes a separate offense.

(c) No person shall be deemed guilty of a willful violation of this article if they complied with the provisions of Code of Ala. 1975, § 8-13-1 et seq.
(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-421. Exclusions for certain sales.

In the following cases, the provisions of this article shall not apply:

(1) Sales for the estate of a decedent by the personal representative, or his agent, according to law or by the provisions of the will.

(2) Sales of property conveyed by deed of trust, mortgage, or judgment or ordered to be sold according to the mortgage, judgment, or order.

(3) Sales of all agricultural produce and livestock arising from the labor of the seller or other labor under his control on or belonging to his real or personal estate and not purchased or sold for speculation.

(4) All sales under legal process.

(5) Sales by a licensed pawnbroker or loan company which is selling or offering for sale unredeemed pledges of chattels as provided by law.

(6) Sales made on properties acquired by, or under contract to be acquired by the United States of America, the State of Alabama, Madison County, the City of Huntsville, and/or any of their respective agencies, subsidiaries or authorities, pursuant to the power of eminent domain, or under threat of acquisition by eminent domain.

(7) Sales of automobiles by an auctioneer licensed under the laws of the State of Alabama.

(8) Sales of fire, smoke, or water damaged merchandise by a licensed business establishment continuing in business. Such sales shall be limited to 12 regular business days.

(9) Sales of perishable merchandise by a licensed business establishment continuing in business. Such sales shall be limited to seven regular business days.

(Ord. No. 16-890, § 1, 11-17-2016)

Sec. 8-422. Sunset date.

Unless extended by act of the city council, this article shall expire on December 31, 2017.
(Ord. No. 16-890, § 1, 11-17-2016)

Secs. 8-423—8-450. Reserved.

Chapter 9

CEMETERIES*

Article I. In General

Sec. 9-1. Compliance with zoning ordinance.
Secs. 9-2—9-30. Reserved.

Article II. City Cemeteries

Sec. 9-31. Director of cemeteries.
Sec. 9-32. Designation of city cemeteries.
Sec. 9-33. Lots to be under control and regulation of city.
Sec. 9-34. Reserved.
Sec. 9-35. Lots set aside for memorial; provision of funds.
Sec. 9-36. Lots set aside for veterans.
Sec. 9-37. Authorization for final disposition.
Sec. 9-38. Authorization for final disposition and application for interment.
Sec. 9-39. Time for burials.
Sec. 9-40. Depth of graves.
Sec. 9-41. Monument guidelines.
Sec. 9-42. Construction of monument foundation by city.
Sec. 9-43. Curbing.
Sec. 9-44. Cemetery service fees.
Sec. 9-45. Payment of charges for opening graves; erection of monuments.
Sec. 9-46. Entrance and exit at gates only.
Sec. 9-47. Selling of merchandise and commodities.
Sec. 9-48. Loitering at night.
Sec. 9-49. Animals.
Sec. 9-50. Price of spaces in Maple Hill Cemetery.
Sec. 9-51. Purchase of spaces—Form of agreement.
Sec. 9-52. Limitation of number of spaces that may be purchased.
Sec. 9-53. Conveyance to purchasers.
Sec. 9-54. Right of survivorship among multiple purchasers.

***Cross references—**Burritt Memorial committee, § 2-1421 et seq.; streets, sidewalks and other public places, ch. 23.

State law references—General authority relative to cemeteries, Code of Ala. 1975, § 11-47-40; cemeteries generally, Code of Ala. 1975, § 11-47-60 et seq.

ARTICLE I. IN GENERAL*

Sec. 9-1. Compliance with zoning ordinance.

Both the location of a cemetery and the extension of the boundaries of an existing cemetery, whether public or private, are subject to the terms and requirements of the zoning ordinance of the city and must comply with that ordinance before such location or extension of the cemetery shall be approved by the mayor and council.
(Ord. No. 16-412, § 1, 6-23-2016)

Secs. 9-2—9-30. Reserved.

ARTICLE II. CITY CEMETERIES

Sec. 9-31. Director of cemeteries.

(a) There shall be a director of cemeteries who shall be appointed by the mayor subject to the approval of the city council as provided by law. He shall hold office for such period of time as the mayor and city council shall deem necessary and desirable, or until the expiration of the term of the mayor making the appointment.

(b) The director of cemeteries shall:

(1) Exercise general supervision over the cemetery department and its employees under the direction and control of the mayor.

(2) Have all the grounds, walks, drives, fences and gates of the city cemeteries kept in good order and repair.

(3) Maintain and care for all shrubbery, flowers and ornamentals.

(4) Protect all the graves, tombs, tombstones, monuments, fixtures.

(5) Attend to the opening of all graves, depositing the dead and closing the graves.

(6) Attend to the opening of all tombs and vaults, depositing the dead and closing tombs and vaults.

(7) Keep a register of all burials, giving the name, place of death, place of burial or disposal and the name and address of the funeral director of each, and shall require in each case a burial permit or receipt for burial before interment and shall furnish the city clerk-treasurer, once a month, a copy of such register.

(8) Establish rules and regulations regarding anything that affects the orderly operation and maintenance of city cemeteries including, but not limited to, the size, type and method of placement of tombstones, markers and monuments, placement of flowers and personal items on gravesites.

(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-32. Designation of city cemeteries.

The grounds, lots, parcels of land, fences, walls and gates surrounding the properties known and designated as Maple Hill Cemetery, Northside Cemetery, Brandontown Cemetery, Nickels-Martin Cemetery (Brandontown #2), Sivley Cemetery, Merrimack Cemetery, Dallas Mill Cemetery, Glenwood Cemetery, and #4 Hall Cemetery are designated and officially named city cemeteries.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-33. Lots to be under control and regulation of city.

The city shall, at all times, regulate and control the lots, as well as other properties in the city cemeteries, in order that all properties in such cemeteries shall be properly maintained as such.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-34. Reserved.

Sec. 9-35. Lots set aside for memorial; provision of funds.

Lots 7, 8, 9, 23 and 24 of block 36 of Maple Hill Cemetery according to the map on file in the

*__Editor's note—__Ord. No. 16-412, § 1, adopted June 23, 2016, amended Ch. 9 in its entirety to read as herein set out. Former Ch. 9, §§ 9-1—9-52, pertained to similar subject matter. For prior history, see Code Comparative Table.

office of the city clerk-treasurer are set aside and reserved for the erection of a suitable memorial to the memory of county veterans who have made or will make the supreme sacrifice overseas, the funds for such memorial to be provided for by the organization of American Legion and Veterans of Foreign Wars, together with public subscriptions to be raised and distributed by such organizations.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-36. Lots set aside for veterans.

(a) Lots 1—6, 10—21, 25—28, 35—52, 69—76, 78, 79, 80—82, 99, 100—112, 129—142, and 159—165 in block 36 of Maple Hill Cemetery and lots 4—14 in block 9 in Northside Cemetery are set aside and reserved for the interment of the remains of Huntsville veterans who gave their lives on foreign soil while serving in the United States Armed Forces and who will be returned to the city for interment, with two spaces being set aside and reserved for the remains of each such veteran.

(b) After the interment of the remains of any veteran in any of the spaces described in this section, the immediate family of such veteran shall have and is given the right to use the remaining space for the interment of members of the veteran's family.

(c) It shall be unlawful for any person to sell or use any of the lots in block 36 of Maple Hill Cemetery or block 9 in Northside Cemetery except in accordance with the provisions of this section.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-37. Authorization for final disposition.

It shall be unlawful for any person to bury or permit to be buried within the city any body without first presenting to the director of cemeteries an authorization for final disposition.
(Ord. No. 16-412, § 1, 6-23-2016)

State law reference—Authorization for disposition of dead body, Code of Ala. 1975, § 22-9A-16.

Sec. 9-38. Authorization for final disposition and application for interment.

It shall be unlawful for any person acting in the capacity of undertaker to conduct a funeral or attempt to bury a body within the city without first obtaining an authorization for final disposition and filing with the cemetery department an application for interment (burial). It shall be the duty of any relative or friend of the deceased person who is in possession of any facts or information required by the state to furnish the authorization upon request, to the undertaker. It shall be the duty of every physician or professional adviser, who has been present at the death of any person, or has attended any person at last illness, to, upon request of the undertaker, write in the death certificate such statements regarding the deceased as are required or prescribed by state law. If no physician was in attendance, the appropriate officer under state law shall make out a certificate of death based on the data obtainable unless he has reason to suspect foul play.
(Ord. No. 16-412, § 1, 6-23-2016)

State law reference—Authorization for disposition of dead body, Code of Ala. 1975, § 22-9A-16.

Sec. 9-39. Time for burials.

No interment of human bodies shall be made in the cemeteries of the city after sundown or before sunrise without the written application for permission duly submitted to and approved by the mayor.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-40. Depth of graves.

No grave for the interment of human bodies in the cemeteries of the city shall be less than four feet deep.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-41. Monument guidelines.

(a) No monument shall be erected in any city cemetery without the prior approval of the director of cemeteries. The following guidelines shall apply to all monuments:

- Ledgers and coping will not be allowed.

- Wording/icons on monuments shall be at the discretion of the director.

(b) Monuments in blocks 41 through 46 of Maple Hill Cemetery shall be subject to the following restrictions in addition to those set forth in section 9-50 of this chapter:

Flat monument guidelines/restrictions:

- Foot markers—shall be flat and shall not exceed 24" length, 12" width, 4" height.
- Single flat monuments—shall not exceed 36" length, 16" wide, 4" height.
- Double flat monuments—shall not exceed 48" length, 16" wide, 4" height.

  NOTE: All flat monuments will run with the slope of the ground and no foundation will be required. Flat monuments will be placed on a dry mixture of sand and rock mixture. Flat bronze monuments will be required to be placed on a piece of granite.

Upright monument guidelines/restrictions:

- Foot markers—shall be flat and shall not exceed 24" length, 12" width, 4" height.
- Single upright markers—shall not exceed 36" length, 16" wide, 36" height, including base.
- Double upright markers—shall not exceed 72" length x 16" width x 36" height, including base.
- Family monuments shall not exceed 72" length x 16" width x 36" height, including base and shall be placed at the head of the grave/graves.
- No benches are allowed.

Corner markers:

Corner markers are not allowed.

(c) Columbariums are allowed; however, they are restricted to two cremains per columbarium. The size of the columbarium is subject to the approval of the director of cemeteries.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-42. Construction of monument foundation by city.

The service charge for the construction of a monument foundation by the cemetery department is fixed and established at $0.50 per square inch computed on the size of the monument base, and such service charge shall be payable at the office of the director of cemeteries. The director shall, upon such payment, receipt the payment and perform the services.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-43. Curbing.

No curbing shall be permitted to be placed in any city cemetery.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-44. Cemetery service fees.

The fees for cemetery services shall be as follows:

(1)	Interment of a casket (weekdays prior to 3:00 p.m.)	$750.00
(2)	Interment of a casket (arriving at cemetery after 3:00 p.m. weekdays)	850.00
(3)	Interment of a casket (Saturdays)	850.00
(4)	Interment of a casket (Sundays)	1,000.00
(5)	Interment of cremains (weekdays arriving at the cemetery prior to 3:00 p.m.)	450.00
(6)	Interment of cremains (Saturdays and weekdays arriving at the cemetery after 3:00 p.m.)	550.00
(7)	Interment of cremains (Sundays)	650.00
(8)	Disinterment of a casket (non-lawn crypt) (allowable on weekdays only)	1,800.00*
(9)	Disinterment of a bottom lawn crypt	3,600.00

(10) Disinterment of a top lawn crypt 1,800.00

(11) Disinterment of cremains .. 500.00

(12) Installation of a corner marker (per marker)..... 5.00

(13) Marker foundation fee (per square inch) (minimum charge $100.00) 0.50

(14) Sounding fee $10.00 for first space, $5.00 for each additional space (no charge if in connection with burial)

(15) Property transfer fee 50.00 for the first space and $25.00 per each additional space

(16) Excavation to determine vacancy of a burial space .. $200.00

(17) Mail fees $20.00 overnight and $6.00 for certified

*All disinterments are subject to the approval of the cemetery director.

(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-45. Payment of charges for opening graves; erection of monuments.

The charges for lots or services in city cemeteries shall be payable at the office of the director of cemeteries in advance; and he shall, upon such payment, receipt for payment and shall open the grave. No grave shall be opened without such payment. No monument shall be erected on a lot until full payment has been made.

(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-46. Entrance and exit at gates only.

It shall be unlawful for any person to climb over or go through or under any wall, fence, hedge or similar barrier enclosing any city cemetery, or to enter or leave the cemetery at any place, except at a regularly established gateway or entrance.

(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-47. Selling of merchandise and commodities.

It shall be unlawful for any person to borrow, sell, offer to sell, trade or offer trade or solicit orders for any merchandise or commodity on the grounds or within the enclosure of the grounds of any city cemetery during any period of the day or night.

(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-48. Loitering at night.

It shall be unlawful for any person to be on the grounds or within the enclosure of the grounds of the premises of any city cemetery during the period from one-half hour after sunset to one-half hour before sunrise without first having obtained the express permission of the director of cemeteries.

(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-49. Animals.

It shall be unlawful for any person to permit or allow any animal, other than service animals, to be on the grounds of any city cemetery.

(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-50. Price of spaces in Maple Hill Cemetery.

(a) The price of a single burial space (approximate size 40" × 10') available for sale by the city in Maple Hill Cemetery shall be $3,000.00 except for the following spaces, the price of which shall be $2,500.00:

Block	*Lot*	*Spaces*
41	1 thru 51	All spaces in block 41 to be flat markers only
42	1	9, 10
42	5	1, 2, 7
42	6	12
42	7	5, 6, 9, 10

Block	*Lot*	*Spaces*
42	11	1, 11, 12
42	13	7
42	14	1, 2, 12
42	20	1, 2, 7
42	21	12
42	22	5, 6, 9, 10
42	29	6, 12
42	30	1, 2, 7
42	31	3, 4, 8, 9
42	38	1, 2, 7
42	39	6c, 12
42	40	5, 6, 11, 12
42	41	1, 7
42	47	11
42	48	1
42	49	2, 3, 7
42	55	1, 7
42	56	5, 6, 11, 12
42	57	6
42	58	1
42	63	5, 6, 10
42	64	1, 2
42	65	12
42	70	4
43	1	8
43	3	7
43	5	1
43	6	11, 12
43	7	4, 8c, 9
43	10	5, 11
43	12	2
43	13	11
43	15	2, 7, 8
43	16	12
43	17	1, 7
43	18	11, 12
43	19	7
43	20	3, 4, 8 ,9
43	21	1, 7
43	22	6, 12
44	1	10, 11, 12
44	2	4, 10
44	5	1, 2, 7, 8
44	6	11, 12
44	7	6
44	8	1, 2, 7, 8
44	11	4, 9
44	12	1, 2, 7

Block	*Lot*	*Spaces*
44	15	1, 2, 7, 8
44	16	1, 2, 7, 8
44	18	12
44	19	1
44	20	4, 5, 10
44	22	1, 2, 7, 8
44	23	1, 2, 7, 8
44	25	3, 9
44	26	1, 2, 7
44	28	1, 2, 7, 8
45	1	9
45	2	9
45	3	1, 2
45	4	12
45	5	5, 6, 9
45	6	10, 11
45	7	1
45	8	5, 10
45	9	2, 3, 7, 8
45	11	1
45	12	10, 11
45	13	11, 12
45	14	4
45	17	1, 7
45	18	5, 6, 11, 12
45	21	2, 3, 7, 8, 9
45	22	2, 3, 9
45	25	5, 6, 11, 12
46	1	10, 11
46	2	5, 6, 11, 12
46	3	9
46	4	6, 9
46	6	5, 6, 11, 12
46	7	5, 6, 11, 12
46	9	1, 2, 7, 8
46	10	1, 2, 7, 8
46	12	5, 6, 11, 12
46	13	5, 6, 11, 12
46	15	1, 2
46	16	11, 12
46	17	12
46	18	3, 4, 5, 6, 7, 8, 9, 10, 11, 12
46	21	5, 6, 11c, 11c1, 12c
46	23	7, 8, 9
46	24	2, 3, 4, 5, 6, 8, 9, 10, 11, 12
46	25	2, 3, 4, 5, 6

Monuments in the spaces for which the price is $2,500.00 are limited to flat markers only.

(b) The price of a single space for an infant burial or interment of cremains (approximate size 40" × 4') available for sale by the city in Maple Hill Cemetery shall be $1,250.00. The maximum size of a casket/vault for an infant burial is 18" × 36".

(c) All burial spaces and cremation spaces available for sale in Maple Hill Cemetery shall be sold on a first come basis. Payment must be made in full at the time of purchase.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-51. Purchase of spaces—Form of agreement.

(a) Any person desiring to purchase a burial space in Maple Hill Cemetery shall execute an agreement with the city in the following form:

"AGREEMENT" between City of Huntsville, herein referred to as "the city," and _____/_____/_____, herein referred to as "the Purchaser."

WITNESSETH:

The City does hereby agree to sell to the Purchaser, and the Purchaser does hereby agree to purchase from the City Block _____, Lot _____, Space _____ according to the plan and survey of Maple Hill Cemetery in the City of Huntsville, Alabama, a map of the said cemetery being on file in the Office of the City Clerk-Treasurer upon the conditions herein set out for the purchase price of $_____ Dollars ($_____), to be paid contemporaneously with the execution hereof.

The said space is sold subject to the following conditions which are agreed to by the parties hereto:

(1) The said space shall be used for burial of a human body and such use shall at all times be subject to the rules, regulations, and laws of the city now or hereafter in force.

(2) In the event Purchaser pays the purchase price by check or bank draft and said draft is not paid due to insufficient funds then City may, at its option, declare this contract terminated in which all of the rights of the Purchaser shall cease and the city may, and is hereby authorized to, disinter and remove from the said space any human body or remains thereof then buried in said space and bury the same at such other place or places as it may select.

(3) In the event the Purchaser pays the purchase price contemporaneously with the execution of this Agreement, and complies with all rules, regulations, and laws of the city relating to the aforementioned burial space, the city will thereupon convey the same to Purchaser, such conveyance to contain a provision that the said space shall be used only for burial of a human body, and use thereof shall at all times be subject to the rules, regulations, and laws of the city then or thereafter in force.

(4) No person, organization, corporation, or other entity who purchases a space in Maple Hill Cemetery following the date of adoption of this ordinance, shall sell, transfer, or convey such space to another person, organization, corporation, or other entity, for a sum greater than the original purchase price, as established under this Article, without first having offered such space to the City of Huntsville for repurchase at the original purchase price. If the City of Huntsville fails to exercise its "right of first refusal" within sixty days (60) of receipt of a space owner's written "Intent to sell, transfer or convey for a price greater than the original purchase price," then the "right of first refusal" shall be deemed "waived" by the city and the space owner shall be allowed to sell, transfer, or convey, the space without any price limitation.

(5) Restrictions:

( ) Lot Size

( ) Flat Markers

( ) Other: _____

This Agreement shall be binding upon and shall ensure to the benefit of the respective succes-

sors, personal representatives, heirs and assigns of the parties hereto. Reference to the Purchaser shall be construed to include those whose names are above given as Purchasers, whether one or more individuals or a corporation.

WITNESS the signatures and seals of the parties, in duplicate, this the _____ day of _____/_____/_____, 20_____.

PURCHASER	CITY OF HUNTSVILLE
_____	By: _____
	Its: Director of Cemeteries

(b) Any person desiring to purchase a cremation space in Maple Hill Cemetery shall execute an agreement with the city in the following form:

"AGREEMENT" between City of Huntsville, herein referred to as "the city," and _____/_____/_____, herein referred to as "the Purchaser."

WITNESSETH:

The City does hereby agree to sell to the Purchaser, and the Purchaser does hereby agree to purchase from the City Block _____, Lot _____, Space _____ according to the plan and survey of Maple Hill Cemetery in the City of Huntsville, Alabama, a map of the said cemetery being on file in the Office of the City Clerk-Treasurer upon the conditions herein set out for the purchase price of $_____ Dollars ($_____), to be paid contemporaneously with the execution hereof.

The said space is sold subject to the following conditions which are agreed to by the parties hereto:

(1) The said space shall be used for burial of human cremains and such use shall at all times be subject to the rules, regulations, and laws of the city now or hereafter in force.

(2) In the event Purchaser pays the purchase price by check or bank draft and said draft is not paid due to insufficient funds then City may, at its option, declare this contract terminated in which all of the rights of the Purchaser shall cease and the city may, and is hereby authorized to, disinter and remove from the said space any human cremains then buried in said space and bury the same at such other place or places as it may select.

(3) In the event the Purchaser pays the purchase price contemporaneously with the execution of this Agreement, and complies with all rules, regulations, and laws of the city relating to the aforementioned burial space, the city will thereupon convey the same to Purchaser, such conveyance to contain a provision that the said space shall be used only for burial of human cremains, and use thereof shall at all times be subject to the rules, regulations, and laws of the city then or thereafter in force.

(4) No person, organization, corporation, or other entity who purchases a space in Maple Hill Cemetery following the date of adoption of this ordinance, shall sell, transfer, or convey such space to another person, organization, corporation, or other entity, for a sum greater than the original purchase price, as established under this Article, without first having offered such space to the City of Huntsville for repurchase at the original purchase price. If the City of Huntsville fails to exercise its "right of first refusal" within sixty days (60) of receipt of a space owner's written "Intent to sell, transfer or convey for a price greater than the original purchase price," then the "right of first refusal" shall be deemed "waived" by the city and the space owner shall be allowed to sell, transfer, or convey, the space without any price limitation.

(5) Restrictions:

( ) Lot Size

( ) Flat Markers

( ) Other: _____

This Agreement shall be binding upon and shall ensure to the benefit of the respective successors, personal representatives, heirs and assigns

of the parties hereto. Reference to the Purchaser shall be construed to include those whose names are above given as Purchasers, whether one or more individuals or a corporation.

WITNESS the signatures and seals of the parties, in duplicate, this the _____ day of _____, 201___.

PURCHASER

_____

CITY OF HUNTSVILLE
By: _____
Its: Director of Cemeteries

(c) The city director of cemeteries is authorized to execute, for and on behalf of the city of purchasers, such agreements.
(Ord. No. 16-412, § 1, 6-23-2016; Ord. No. 16-737, § 2, 10-13-2016)

Sec. 9-52. Limitation of number of spaces that may be purchased.

A maximum of 12 spaces may be purchased by a single person or entity, and spaces may not be reserved for future purchase.
(Ord. No. 16-412, § 1, 6-23-2016)

Sec. 9-53. Conveyance to purchasers.

(a) After receipt of payment in full for burial space, said burial space being available for sale and listed in section 9-50(a), the mayor and city clerk treasurer, for and on behalf of the city, shall make a conveyance to the purchaser, the same to be in substantially in the following form:

State of Alabama County of Madison

IN CONSIDERATION of the sum of ($) Dollars, the City of Huntsville, a Municipal corporation, does hereby grant to:

_____

The following described burial space(s) in Maple Hill Cemetery, to Wit:

BLOCK	LOT	SPACE
BLOCK	LOT	SPACE
BLOCK	LOT	SPACE
BLOCK	LOT	SPACE
BLOCK	LOT	SPACE

BLOCK	LOT	SPACE

No person, organization, corporation, or other entity who purchases a space in Maple Hill Cemetery following the date of adoption of this ordinance #16-412, shall sell, transfer, or convey such space to another person, organization, corporation, or other entity, for a sum greater than the original purchase price, as established under this Article, without first having offered such space to the City of Huntsville for repurchase at the original purchase price. If the City of Huntsville fails to exercise its "rights of first refusal" within Sixty days (60) of receipt of a space owner's written "intent to sell, transfer or convey, then the "right of first refusal" shall be deemed "waived" by the City and the space owner shall be allowed to sell, transfer, or convey, the space without any price limitation.

TO HAVE AND TO HOLD unto the said _____ and unto _____

Heirs assigns with the perpetual right and authority to use the same for burial of a human body or cremains. The City of Huntsville, however, reserves the right from time to time to regulate and control the hereinabove granted premises, as well as other properties in Maple Hill Cemetery, in order that all properties in said cemetery shall be properly maintained as a City cemetery. The said burial space shall at all time be subjected to the rules, regulations, and laws of the City of Huntsville now or hereafter in force. In addition, said burial space is subject to the following restriction(s)

_____

_____

IN WITNESS WHEREOF, this instrument has been signed by the Mayor of the City of Huntsville, Alabama, and attested By its Clerk-Treasurer as and for the act of said Corporation on this _____ day of _____, _____.

City of Huntsville, Alabama
A Municipal Corporation

By:

_____
Tommy Battle
Its Mayor

ATTEST:
By:
Kenneth Benion
Its Clerk-Treasurer

STATE OF ALABAMA COUNTY OF MADISON

Before me, the undersigned, a Notary Public in and for said County and State, Personally appeared Tommy Battle, whose name as Mayor of the City of Huntsville, Alabama, and Kenneth Benion, whose name as Clerk Treasurer of the Cityof Huntsville, Alabama are signed to the foregoing conveyance, and who are known to me, acknowledged before me on this day that, being informed of the contents of said conveyance, they, as such officers and with full authority executed the same voluntarily for as the act of said City of Huntsville, Alabama.

Given under my hand and seal of this _____ day of _____, 201_____

Notary Public _____

My commission expires: _____
(Ord. No. 16-412, § 1, 6-23-2016; Ord. No. 16-737, § 2, 10-13-2016)

Sec. 9-54. Right of survivorship among multiple purchasers.

If conveyance of cemetery spaces is made to multiple purchasers, the conveyance may, at the discretion of the purchasers, include a right of survivorship among the purchasers.
(Ord. No. 16-412, § 1, 6-23-2016)

Chapter 10

CULTURAL FACILITIES AND HISTORICAL PRESERVATION*

Article I. In General

Secs. 10-1—10-30. Reserved.

Article II. Burritt Memorial Museum and Park

Sec. 10-31. Construction of article.
Sec. 10-32. Dr. William Henry Burritt Museum and Park and Dr. William Henry Burritt Museum and Park fund created.
Sec. 10-33. Burritt Memorial fund.
Secs. 10-34—10-60. Reserved.

Article III. Historic Preservation District

Sec. 10-61. Requested.
Sec. 10-62. Designation of district.
Sec. 10-63. Subdivisions of district; construction.

***Cross references—**Historic preservation commission, § 2-1541 et seq.; buildings and building regulations, ch. 7; environmental management, ch. 12; utilities, ch. 26; zoning, app. A.

State law references—Historic preservation, Code of Ala. 1975, § 11-68-1 et seq.; public cultural facilities authorized, Code of Ala. 1975, § 11-47-16.

ARTICLE I. IN GENERAL

Secs. 10-1—10-30. Reserved.

ARTICLE II. BURRITT MEMORIAL MUSEUM AND PARK

Sec. 10-31. Construction of article.

This article shall be liberally construed.
(Code 1982, § 10-16)

Sec. 10-32. Dr. William Henry Burritt Museum and Park and Dr. William Henry Burritt Museum and Park fund created.

(a) There is created and established the Dr. William Henry Burritt Museum and Park and Dr. William Henry Burritt Museum and Park fund.

(b) The Dr. William Henry Burritt Museum and Park consists of the home of the late Dr. William Henry Burritt, located on Roundtop Mountain in the county and approximately 160 acres of land surrounding the home, together with all furnishings, including books, pictures, furniture and furnishings used in and about the home of the late Dr. William Henry Burritt.

Sec. 10-33. Burritt Memorial fund.

(a) The city clerk-treasurer is designated as the depository with whom the trustee under the last will and testament of Dr. William Henry Burritt, deceased, shall deposit the $10,000.00 per year as provided in the will for the purposes designated in this article; and the First National Bank of Huntsville, Alabama, is designated as the depository in which the city clerk-treasurer shall deposit the funds to the account of the Burritt Memorial fund. All expenditures from the fund shall be made upon warrants signed by the city clerk-treasurer, upon substantiation by appropriate vouchers as submitted by the committee created in chapter 2, article VIII, division 7 of this Code, and upon approval of the expenditures by the city council; however, $3,000.00 per year shall be used from the Burritt Memorial fund for the maintenance of the Dr. William Henry Burritt house, including the present yard and sufficient area that may be added to the present yard to further develop the yard from time to time as may be appropriate; and the remaining $7,000.00 from the $10,000.00 annuity shall be used each year to maintain and develop the park on the remainder of the land.

(b) The city clerk-treasurer is made responsible for the maintenance of complete financial records showing income and disbursement from the fund and the making of an annual audit of the fund and the submission of the records to the city council, and the trustee as appointed under the last will and testament of Dr. William Henry Burritt, deceased.
(Code 1982, § 10-19)

Secs. 10-34—10-60. Reserved.

ARTICLE III. HISTORIC PRESERVATION DISTRICT*

Sec. 10-61. Requested.

The city council finds and determines that more than 60 percent of the property owners within the historic preservation district designated in this article have requested in writing to the council the establishment of such district.
(Code 1982, § 10-51)

Sec. 10-62. Designation of district.

There is designated within the city an historic preservation district to be known and identified as "The Huntsville Historic Preservation District." The city council finds and determines that:

(1) The district as described in this article possesses such historic significance by reason of antiquity, architecture, historic importance of persons or events identified with the district, including numerous historic structures and sites, as to give such district as a whole a character of historic significance worthy of preservation for the protection of the historic character of

*__State law references__—Historic preservation, Code of Ala. 1975, § 11-68-1 et seq.; 1971 Ala. Acts 1307.

the city, and in the interest of the general welfare of the inhabitants of the city, county and state;

(2) The promotion and preservation of its educational, cultural and economic interest, opportunities and advantages through the preservation and protection of historic buildings, structures, places and areas of historic interest located in the district are desirable;

(3) The preservation, protection and maintenance of the buildings, structures, places and landmarks in the history of the territory and the state and of the city is necessary and desirable as being commemorative of the events, circumstances, persons and architecture associated with the district;

(4) Such buildings, structures and places are tangible reminders of such events, circumstances, persons and architecture; and

(5) The preservation and protection of appropriate settings and environment for such buildings, structures, places and areas are necessary for the promotion, development and preservation of the economy, commerce and industry of the state and the city by the preservation and protection of such buildings, structures, places and areas and of appropriate settings and environments, and the preservation of the economic value of property within the district is necessary and desirable and in the public interest.

(Code 1982, § 10-52)

Sec. 10-63. Subdivisions of district; construction.

The area described in this section shall comprise "The Huntsville Historic Preservation District"; however, the district is further subdivided into four parts, which are designated as "The Twickenham Historic Preservation District," "The Old Town Historic Preservation District," "The Alabama A & M University Historic Preservation District," and "The Five Points Historic Preservation District," respectively. No building or structure shall be erected, constructed or reconstructed, altered, restored or renovated within the district unless a certificate of appropriateness shall have been issued by the historic preservation commission, in accordance with the procedures, powers and duties of the commission and in accordance with the rules, regulations and requirements of the commission adopted pursuant to law, the district being more specifically described as follows:

(1) The Twickenham Historic Preservation District: Beginning at a point located on the intersection of the centerlines of Franklin Street and Lowe Avenue; thence proceeding westerly along the centerline of Lowe Avenue for a distance of approximately 210 feet to a point; said point is further described as being an extension of the west boundary of lot 4b, block 211; thence proceeding northwesterly along the western boundary of lot 4b, block 211 and its northern extension through the center of block 211 along the rear lines of the lots facing Franklin and Madison Streets for a distance of approximately 800 feet to the southwest corner of lot 8d, block 210; thence, proceeding northwesterly along the western boundaries of lots 8d, 7d, 6d, and 6c, block 210, for a distance of approximately 488 feet to a point on the southern boundary of lot 5, block 210; thence, proceeding westerly along the southern boundary of lot 5, block 210 for a distance of approximately 20 feet to the southwest corner of lot 5, block 210; thence, proceeding northwesterly along the western boundaries of lots 5 and 3, block 210, and their extension, for a distance of approximately 229 feet to a point on the centerline of Williams Avenue; thence, proceeding northeasterly along the centerline of Williams Avenue for a distance of approximately 200 feet to a point on the centerline of Franklin Street; thence, proceeding northwesterly along the centerline of Franklin Street for a distance of approximately 715 feet to a point lying on the centerline of Eustis Avenue; thence, proceeding northeasterly along the centerline of Eustis Avenue for a distance of approximately 360 feet to a point on the centerline of

Green Street; thence, proceeding northwesterly along the centerline of Greene Street for a distance of approximately 365 feet to a point on the centerline of Randolph Avenue; thence, proceeding southwesterly along the centerline of Randolph Avenue for a distance of approximately 140 feet to the western boundary of lot 2, block 30, if extended; thence, proceeding northwesterly along the western boundary of lot 2, block 30, for a distance of approximately 177 feet to the northwest corner or lot 2, block 30; thence, proceeding northeasterly along the northern boundaries of lots 2 and 3, block 30 for a distance of approximately 140 feet to a point on the centerline of Greene Street; thence, proceeding northwesterly along the centerline of Greene Street for a distance of approximately 5 feet to a point on the northern boundary of lot 4, block 31, if extended; thence, proceeding northeasterly along the northern boundaries of lots 4, 5, and 3, block 31, and lots 1 and 2, block 32, and the extension of the northern boundary of lot 2, block 32, to a point on the centerline of Lincoln Street; thence, proceeding northeasterly along the extension of the northern boundary of lot 3, block 333, and the northern boundaries of lots 3, 6a, 7a, 9, 10e, 10f, 10g, 10h, and 13, block 333 for a distance of approximately 796 feet to a point on the centerline of Figures Alley according to G.W. Jones & Sons map of the City of Huntsville, 1929; thence, proceeding Northeasterly along the northern boundaries of lots 3a, 3b, 5, 7, 9, 12a, 12b, and 13c, block 332, and the extension of the northern boundary of lot 13c, block 332, for a distance of approximately 390 feet to the centerline of Calhoun Street; thence, proceeding northeasterly along the extension of the northern boundary of lot 12, block 331, and the northern boundary of lot 12, block 331, and the southern boundaries of lots 3, 4, 5, and 6, block 331, and the extension of the southern boundary of lot 6, block 331, for a distance of approximately 498 feet to a point on the centerline of White Street; thence, proceeding southeasterly along the centerline of White Street for a distance of approximately 324 feet to a point on the centerline of Wells Avenue; said point is further described as lying on the north boundary of the southeast quarter of section 36, township 3 south, range 1 west; thence, proceeding east along the centerline of Wells Avenue and the north boundary of the southeast quarter of section 36, township 3 south, range 1 west for a distance of approximately 190 feet to a point; thence, proceeding south along the eastern boundary of lot 3 of Esslinger subdivision to the centerline of Eustis Avenue; thence, proceeding east along the centerline of Eustis Avenue to the centerline of California Street; thence, proceeding southerly along the centerline of California Street to a point on the south boundary, if extended, of lot 2 of the resubdivision of lots 4 and 5 Charles Addition as recorded in Madison County Plat Book 29, p. 88; thence westwardly along the south boundary of lot 2 and its extension to the southwest corner of lot 2; thence northwardly to the northwest corner of lot 2; thence westwardly along the north boundary of lot 1 of said resubdivision of Charles Addition to the northwest corner of lot 1; thence southeastwardly along the west boundary of lot 1 and its extension for approximately 231 feet to the centerline of Lowe Avenue; thence westwardly along the centerline of Lowe Avenue for approximately 450 feet to the east boundary, if extended, of Huber s Corner subdivision as recorded in Madison County Plat Book 31, p. 90; thence Northwestwardly along the east boundary of Huber s Corner for 165 feet to the south right-of-way line of Newman Avenue; thence westwardly along the south right-of-way line of Newman Avenue to the centerline of Adams Street; thence southeastwardly along the centerline of Adams Street to its intersection with the centerline of Lowe Avenue; thence in a westwardly direction along the centerline of Lowe Avenue to its intersection with the centerline of Franklin Street and the point of beginning.

(2) The Old Town Historic Preservation District: Beginning at the center of the intersection of California Street and Wells Avenue; thence westerly along the centerline of Wells Avenue to the centerline of White Street; thence northwesterly along the centerline of White Street to the middle of the block between Randolph and Clinton; thence southwesterly, including the N½ of blocks 331, 332 and 333 to the centerline of Lincoln Street; thence northwesterly along the centerline of Lincoln Street to the intersection of Holmes Avenue including Andrew Jackson campsite island; thence northwesterly along the west boundary of lot 13, block 323, to the southeast corner of lot 3, block 323; thence northeasterly 154 feet along the extension of the south boundary line of lot 32, block 323 to a point on the southeasterly extension of the west boundary line of lot 31, block 323, 5 feet southeast of the corner of lot 31; thence in a northwesterly direction along the west boundary of lot 31, block 323, 80 feet; thence northeasterly parallel to the south boundaries of lots 30 and 31, block 323, including the south 75 feet of lots 30 and 31, 102 feet to a point on the west boundary of lot 29, block 323; thence southeasterly along the west boundary of lot 29, 75 feet to the southwest corner of lot 29; thence northeasterly along the south boundary of lot 29 to the southwest corner of lot 28, block 323; thence in a northwesterly direction along the west boundary of lot 28 to the northwest corner of lot 28 on Walker Avenue; thence in a northwesterly direction across Walker Avenue to the southwest corner of lot 7, block 322; thence in a northwesterly direction along the west boundary of lot 7, block 322 to the northwest corner of lot 7; thence northeasterly including the S½ of block 322 and block 320 to the centerline of Pratt Avenue; thence east along the centerline of Pratt Avenue to the intersection of Holmes Avenue; thence southwesterly along the centerline of Holmes Avenue to the intersection of Dement Street; thence southeasterly along the centerline of Dement Street to the intersection of California Street; thence south along the centerline of California Street to the intersection of Wells Avenue, being the point of beginning.

(3) The Alabama A & M University Historic Preservation District: All that part of sections 7 and 18, T3S, R1E of the Huntsville Meridian in the city, particularly described as beginning at a point lying on the north boundary of section 18 at its intersection with the east right-of-way line of Meridian Street; thence south along the east right-of-way line for approximately 450 feet to the centerline of Campus Road; thence south 84 degrees east for approximately 3,400 feet to the west right-of-way line of Chase Road; thence northwardly and eastwardly along the right-of-way line for approximately 2,180 feet to the west right-of-way line of Higdon Road; thence north along the right-of-way line for approximately 1,520 feet to the northeast corner of the Alabama A & M University property; thence west along the university property line for approximately 1,450 feet; thence south along the university property line for approximately 710 feet; thence west along the university property line for approximately 3,800 feet to the east right-of-way line of Meridian Street; thence south along the east right-of-way line for approximately 850 feet to the point of beginning and containing 182 acres more or less.

(4) The Five Points Historic Preservation District: All that part of section 25 and section 36, township 3 south, range 1 west and section 30 and section 31, township 3 south, range 1 east of the Huntsville Meridian, City of Huntsville, Madison County, Alabama, particularly described as beginning at a point lying on the intersection of the centerlines of Minor Street and Wells Avenue; thence west along the centerline of Wells Avenue for approximately 1230 feet to the centerline, if extended, of Maple Hill Drive; thence south along the centerline of Maple Hill Drive for approx-

imately 420 feet to a point; thence west along the south boundaries of lots 1-3 of Poplar Hill Subdivision as recorded in Madison County Plat Book 1, Page 2, for approximately 220 feet to the centerline of California Street; thence northwardly along the centerline of California Street to the centerline of Randolph Avenue and then continue north along the centerline of Russell Street for a combined distance of approximately 2145 feet to a point on the centerline of the alley running east-west through block 81 and block 82 of East Huntsville Addition as recorded in Madison County Plat Book 1, Page 35; thence west along the centerline of said alley through block 81 for 250 feet to the center of the south boundary of lot 3, block 81 of said East Huntsville Addition; thence north along the west boundary of the east half of said lot 3 for 189.50 feet to the centerline of Ward Avenue; thence west along the centerline of Ward Avenue for 150 feet to the centerline of Andrew Jackson Way; thence north along the centerline of Andrew Jackson Way for 390 feet to the centerline of Beirne Avenue; thence east along the centerline of Beirne Avenue for 120 feet; thence north and along the west boundary of lot 14, block 53 of said East Huntsville Addition for 189.50 feet to the centerline of the alley running east-west through block 53; thence east along said alley centerline for 40 feet; thence north along the west boundary of lot 4, block 53 of said East Huntsville Addition for 189.50 feet to the centerline of McCullough Avenue; thence west along the centerline of McCullough Avenue for 60 feet; thence north and along the west boundary of the east half of lot 15, block 44 of said East Huntsville Addition for 189.50 feet to the centerline of the alley running east-west through block 44 of said East Huntsville Addition; thence east along said alley centerline for 60 feet; thence north and along the west boundary of lot 4, block 44 of said East Huntsville Addition for 189.50 feet to the centerline of O Shaughnessy Avenue; thence west along the centerline of O Shaughnessy Avenue for 160 feet to the centerline of Andrew Jackson Way; thence north along the centerline of Andrew Jackson Way for 189.50 feet to the centerline of the alley running east-west through block 39 and block 40 of said East Huntsville Addition; thence east along said alley centerline for approximately 765 feet to the centerline of Coleman Street; thence south along the centerline of Coleman Street for 379 feet to the centerline of the alley running east-west through block 42 of said East Huntsville Addition; thence east along said alley centerline for 379 feet to the centerline of England Street; thence south along the centerline of England Street for 379 feet to the centerline of the alley running east-west through block 56, block 57 and block 58 of said East Huntsville Addition; thence east along said alley centerline for 568.50 feet to the centerline of Grayson Street; thence south along the centerline of Grayson Street for 2479 feet to the centerline of Wells Avenue; thence west along the centerline of Wells Avenue for approximately 380 feet to the point of beginning and containing 146.78 acres, more or less.

(Code 1982, §§ 10-53—10-55; Ord. No. 99-866, § 1, 10-28-1999; Ord. No. 00-126, § 1, 2-24-2000; Ord. No. 00-762, § 1, 9-28-2000; Ord. No. 06-495, § 1, 6-8-06)

Cross reference—Subdivision regulations, app. B.

Chapter 11

EMERGENCY SERVICES*

Article I. In General

Secs. 11-1—11-30. Reserved.

Article II. Ambulances

Division 1. Generally

Sec. 11-31. Definitions.
Sec. 11-32. Prerequisites for operation of ambulance.
Secs. 11-33—11-50. Reserved.

Division 2. Certificate of Convenience and Necessity

Sec. 11-51. Number of applications by each person.
Sec. 11-52. Application for certificate.
Sec. 11-53. Investigation.
Sec. 11-54. Resolution by council; public hearing.
Sec. 11-55. Grounds for denial of certificate.
Sec. 11-56. Certificate not transferable.
Sec. 11-57. Annual report.
Sec. 11-58. Destruction of ambulance.
Sec. 11-59. Sale or transfer of title to ambulance.
Sec. 11-60. Grounds for suspension and revocation.
Sec. 11-61. Surrender of certificate.

*__Cross references—__Businesses, ch. 8; fire prevention and protection, ch. 13.

ARTICLE I. IN GENERAL

Secs. 11-1—11-30. Reserved.

ARTICLE II. AMBULANCES*

DIVISION 1. GENERALLY

Sec. 11-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Ambulance means any privately owned motor vehicle used for the transporting of persons who are wounded, ill, injured or sick, and includes but is not restricted to emergency vehicles used for such purpose. The term "ambulance" is expressly distinguished from governmentally operated vehicles serving the same purpose as described in this definition. The term "ambulance" shall not be construed to include vehicles operated by organizations approved by or affiliated with the Huntsville-Madison County emergency management board while such vehicles are being used by members of approved organizations to respond to an emergency officially declared according to the rule of the board.

Owner means every person having use or control of any passenger-carrying or motor-propelled ambulance, whether as owner, operator, lessee or otherwise.

(Code 1982, § 4-1)

Cross reference—Definitions generally, § 1-2.

Sec. 11-32. Prerequisites for operation of ambulance.

No person shall engage in the business of operating an ambulance on the public streets of the city unless he shall have acquired in the following order an appropriate license from the health care authority and a certificate of convenience and necessity as required in this article, and unless he shall have paid all privilege licenses and privilege taxes as required by the ordinances of the city and shall have filed with the city clerk-treasurer a policy of insurance executed and delivered by a company licensed by the state department of insurance under the terms of which the insurance company provides coverage for injuries to persons or property for which the insured may become legally liable to pay as a result of the operation of the ambulances in the following amounts and under the following conditions:

(1) For each ambulance, such insurance policy shall provide insurance coverage in the amount of $1,000,000.00 for personal injury or death arising from any one accident and $50,000.00 for property damage liability and uninsured motorist's liability coverage in the sum of $20,000.00 per person for bodily injury liability and $40,000.00 per accident for bodily injury liability or $500,000.00 combined single limit liability with $1,000,000.00 excess liability coverage whether the operation of any such vehicle is by such person, his agent, servant or employee, or by any person in possession of such vehicle.

(2) The insurance coverages required by this section shall at all times be maintained for the full amount. The policy of insurance required by this section to be filed with the city clerk-treasurer shall contain a clause obligating the company issuing the policy to give not less than 30 days' written notice to the city clerk-treasurer before its cancellation. Notice of cancellation shall not relieve the company issuing such policy of liability for any injury or claim arising before the cancellation becomes effective. The cancellation of any such policy shall have the effect of suspending the permit of such person to operate the ambulances covered by the permit until a new policy complying with the provision of this section is filed with the city clerk-treasurer.

(3) Every insurance policy required under this section shall contain a provision for a continuing liability under the policy to the full amount, notwithstanding any recov-

*__State law references—__Ambulances, Code of Ala. 1975, § 22-18-1 et seq.; local ambulance regulation, Code of Ala. 1975, § 22-18-7.

ery, that the liability of the insurer shall not be affected by the insolvency or the bankruptcy of the insured, and that until the policy is canceled the insurance company will not be relieved from liability on account of nonpayment of premium, or any act or omission by the named assured. Such policy of insurance shall be further conditioned for the payment of any and all judgments, up to the limits of such policy, recovered against any person other than the owner, his agent or employee, who may operate the policy with the consent or acquiescence of the owner.

(4) In order to meet the policy filing requirements in this section, as an alternative, the insured may file a binder of liability and property damage insurance as required in this section and a letter from the insuring agent which shall state that the coverage is bound, the name of the company, the effective date of coverage, the limits of liability and a list of all vehicles covered and proof that the agent has the ability to bind the issuing company. The policy of insurance so bound shall be filed with the city clerk-treasurer within 60 days of the effective date of coverage.

(Code 1982, § 4-2)

Secs. 11-33—11-50. Reserved.

DIVISION 2. CERTIFICATE OF CONVENIENCE AND NECESSITY

Sec. 11-51. Number of applications by each person.

No person shall apply for a certificate of convenience and necessity in any case where an application has been disapproved on behalf of such person within six months next preceding the date of its filing.

(Code 1982, § 4-3)

Sec. 11-52. Application for certificate.

All persons applying to the city council for a certificate of convenience and necessity for the operation of one or more ambulances shall first obtain and have an appropriate license from the health care authority and then file with the city clerk-treasurer a sworn application containing the following information or documentation:

(1) The name of the applicant and trade name, if any, under which he intends to conduct his business; and if the applicant is a partnership, the name of each member, whether a limited or general partner and the name under which the partnership business is to be conducted; and if the applicant is a corporation, the name of the corporation and the name of each one of its officers.

(2) The business address and resident address of the applicant; and if the applicant is a partnership, the business address of the partnership and the resident address of each partner, whether he is a limited or general partner; and if the applicant is a corporation, the address of the corporation and the resident address of each one of its officers.

(3) The number of ambulances actually owned and/or leased and the number of ambulances actually operated by such applicants on the day of application, if any.

(4) A description of each such ambulance, including the make, model, year of manufacture and state license number.

(5) The location or station address of each such ambulance.

(6) A description of the proposed color scheme, insignia, trade style and/or any other distinguishing characteristics of the proposed ambulance design.

(7) A copy of the applicant's license from the health care authority.

(8) Any other documentation requested by the city clerk-treasurer for purposes of investigation.

(Code 1982, § 4-4)

Sec. 11-53. Investigation.

Before any application is acted upon, the city clerk-treasurer shall cause an investigation to be made and shall report his findings in writing to the council on the following:

(1) The demand of the public for additional ambulance service.

(2) The adequacy of the existing ambulance service.

(3) The financial responsibility and experience of the applicant.

(4) The applicant's ability to provide ambulance service at a level equal to the current community standard for prehospital care.

(5) Such other relevant facts as the council may deem necessary or advisable.

(Code 1982, § 4-5)

Sec. 11-54. Resolution by council; public hearing.

(a) No certificate shall be granted until the city council shall determine by resolution that the public convenience and necessity require the proposed ambulance service.

(b) In determining whether the public convenience and necessity require the operation of an ambulance or ambulances for which an application is made, the council shall hold such public hearing as it may deem necessary and advisable to determine that fact.

(Code 1982, § 4-6)

Sec. 11-55. Grounds for denial of certificate.

The following shall be prima facie grounds for denial of a certificate:

(1) The applicant or one of the partners, if the applicant is a partnership, or one or more of the officers of the corporation, if the applicant is a corporation, if the policy of such corporation will be directed, controlled or managed by such partner or officer, has been convicted of a felony or crime involving moral turpitude unless five years shall have elapsed since his discharge from a penal institution, or having been discharged from probation, during which period of time there is no evidence of the probable commission of other felonies or crimes involving moral turpitude.

(2) The applicant or one or more of the partners, if the applicant is a partnership, or one or more of the officers of the corporation, if the applicant is a corporation, if the policy of the corporation will be directed, controlled and managed by such persons who have ever been convicted of doing business in violation of this article.

(Code 1982, § 4-7)

Sec. 11-56. Certificate not transferable.

Each certificate issued pursuant to the provisions of this article shall be separate and distinct and shall not be transferable from the person to whom issued to another person.

(Code 1982, § 4-8)

Sec. 11-57. Annual report.

Every certificate holder shall file annually with the city clerk-treasurer a report of equipment and capabilities, which shall include, among other things, any change in equipment, and any change in the information required by section 11-52, and a certified audit of financial operations.

(Code 1982, § 4-9)

Sec. 11-58. Destruction of ambulance.

Any certificate holder whose ambulance has been destroyed involuntarily, or who voluntarily destroys any ambulance, shall, as a matter of right, upon written application to the city clerk-treasurer within 30 days after such destruction, and upon satisfactory evidence presented to the city clerk-treasurer of such destruction, be issued a new certificate for the operation of no greater number of ambulances than those so destroyed, provided the certificate holder has complied with all the provisions of this article.

(Code 1982, § 4-10)

Sec. 11-59. Sale or transfer of title to ambulance.

Whenever a certificate holder sells or transfers title to, assigns a lease to or subleases an ambulance, and within 30 days after such sale, transfer, assignment or sublease, purchases or leases another ambulance or a like number of other ambulances, the certificate holder shall, as a matter of right, upon written application to the city clerk-treasurer within 30 days of such purchase or lease, be issued a new certificate for the operation of no greater number of ambulances than those operated prior to the sale, transfer, assignment or sublease, and provided the certificate holder has complied with all the provisions of this article.
(Code 1982, § 4-11)

Sec. 11-60. Grounds for suspension and revocation.

The city council may suspend and revoke any certificate issued under the provisions of this article in the following cases:

(1) If council finds the certificate holder is not providing adequate service.

(2) The certificate holder fails to operate the ambulance in accordance with the provisions of this article.

(3) The certificate holder shall cease to operate any ambulance for a period of 60 consecutive days without having obtained permission for cessation of such operation from the council.

(4) The certificate holder fails to file any report required by section 11-57.

(Code 1982, § 4-12)

Sec. 11-61. Surrender of certificate.

Certificates issued under this article which have been suspended or revoked by the council shall, forthwith, be surrendered to the city clerk-treasurer; and the operation of any ambulance or ambulances covered by such certificates shall cease.
(Code 1982, § 4-13)

Chapter 12

ENVIRONMENTAL MANAGEMENT*

Article I. In General

Sec. 12-1. Stormwater management manual adopted.
Sec. 12-2. Defiling or polluting water supply.
Secs. 12-3—12-30. Reserved.

Article II. Air Pollution

Sec. 12-31. Rules for control and abatement adopted.
Sec. 12-32. Amendments to rules for control and abatement.
Secs. 12-33—12-60. Reserved.

Article III. Blasting

Division 1. Generally

Sec. 12-61. Definitions.
Sec. 12-62. Penalties.
Sec. 12-63. Purpose.
Sec. 12-64. Scope; jurisdiction.
Sec. 12-65. Exemptions.
Sec. 12-66. Citations.
Sec. 12-67. Exceptions based on undue hardship.
Sec. 12-68. Inspection and monitoring.
Sec. 12-69. Notifications.
Sec. 12-70. General restrictions.
Sec. 12-71. Vibration and airblast overpressure levels.
Sec. 12-72. Instrumentation.
Sec. 12-73. Records.
Sec. 12-74. Blasters certification.
Secs. 12-75—12-100. Reserved.

Division 2. Permit

Sec. 12-101. Required.
Sec. 12-102. Applications.
Sec. 12-103. Fees.
Sec. 12-104. Certificate required.
Sec. 12-105. Action on application.
Sec. 12-106. Denial of application.
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***Cross references—**Animals, ch. 5; buildings and building regulations, ch. 7; dangerous structures, § 7-506; cultural facilities and historical preservation, ch. 10; health and sanitation, ch. 14; recreation services, ch. 19; solid waste, ch. 22; streets, sidewalks and other public places, ch. 23; utilities, ch. 26; vegetation, ch. 27; zoning, app. A.

State law references—Health and environmental control generally, Code of Ala. 1975, § 22-1-1 et seq.; health and sanitation powers of municipality, Code of Ala. 1975, §§ 11-47-130, 11-47-131.

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ARTICLE I. IN GENERAL

Sec. 12-1. Stormwater management manual adopted.

The stormwater management manual of the city department of public works services, 1991 edition, as amended through the adoption date of this Code, is adopted.
(Ord. No. 91-375, § 1, 6-13-1991; Ord. No. 91-432, 8-22-1991; Ord. No. 93-273, 5-13-1993; Ord. No. 94-186, 3-24-1994; Ord. No. 94-265, 4-14-1994; Ord. No. 98-3, § 22, 2-12-1998)

Sec. 12-2. Defiling or polluting water supply.

It shall be unlawful for any person to throw, sweep, dump, pour or otherwise deposit in or around the water of Big Spring, Brahan Spring, the filter plant, the wells, the reservoirs or any pipe connected with the waterworks of the city any article or substance which would tend to defile or pollute the water.
(Code 1982, § 23-6)

Secs. 12-3—12-30. Reserved.

ARTICLE II. AIR POLLUTION*

Sec. 12-31. Rules for control and abatement adopted.

The air pollution rules and regulations as heretofore adopted by the city council, pursuant to Ordinance No. 72-156 on July 27, 1972, and as amended by Ordinance Nos. 73-18, 75-180, 76-334, 78-150, 80-152, 82-297, 86-18, 86-523, 92-107, 93-709, 94-74, 95-839, 97-41, 98-153, 99-494, 00-811, 01-730, 03-143, 04-485, 07-568, 16-009, 17-486, and 22-886 as recommended by the air pollution control board of the city, are adopted by reference, with copies being kept on file permanently in the office of the city clerk.
(Code 1982, § 12-36; Ord. No. 00-811, § 1, 11-9-2000, Ord. No. 01-730, § 1, 9-13-2001, Ord. No. 03-143, § 1, 4-10-2003, 04-485, § 1, 8-12-2004; Ord. No. 07-568, § 1, 7-26-2007; Ord. No. 16-009, § 1, 3-10-2016; Ord. No. 22-886, § 1, 12-15-2022; Ord. No. 24-959, § 1, 1-23-2025)

Sec. 12-32. Amendments to rules for control and abatement.

There are hereby adopted as amendments to the rules and regulations to govern the control and abatement of air pollution within the city by reference, as the same were adopted pursuant to Ordinance No. 72-156 on the 27th day of July, 1972, and amended by Ordinance No. 73-18, Ordinance No. 75-180, Ordinance No. 76-334, Ordinance No. 78-150, Ordinance No. 80-152, Ordinance No. 82-297, Ordinance No. 86-18, Ordinance No. 86-523, Ordinance No. 92-107, Ordinance No. 93-709, Ordinance No. 94-74, Ordinance No. 95-839, Ordinance No. 97-41, Ordinance No. 98-153, Ordinance No. 99-494, Ordinance No. 00-811, Ordinance No. 01-730, Ordinance No. 03-143, Ordinance No. 04-485, Ordinance No. 07-568, Ordinance No. 11-507, Ordinance No. 16-009, Ordinance No. 17-486, and Ordinance No. 22-886 the proposed amendments to the rules and regulations as recommended by the air pollution control board of the city, entitled "Proposed Amendments to the Rules and Regulations for the Control of Air Pollution within the City of Huntsville, Alabama," and further identified by the signature of the city clerk and the date of 23rd day of January, 2025, appearing on the first page, with a copy being kept on file permanently in the office of the city clerk.
(Ord. No. 03-143, § 1, 4-10-2003; Ord. No. 07-568, § 1, 7-26-2007; Ord. No. 16-009, § 1, 3-10-2016; Ord. No. 22-886, § 1, 12-15-2022; Ord. No. 24-959, § 1, 1-23-2025)

Secs. 12-33—12-60. Reserved.

*State law references—Alabama Air Pollution Control Act of 1971, Code of Ala. 1975, § 22-28-1 et seq.; local air pollution control programs, Code of Ala. 1975, § 22-28-23.

ARTICLE III. BLASTING*

DIVISION 1. GENERALLY

Sec. 12-61. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Director and *manager* mean the manager of the natural resources and environmental management division or in his absence, his authorized representative.

Division means the natural resources and environmental management division.

Explosives means any substance, chemical compound or mechanical mixture that is commonly used for the purpose of producing an explosion to demolish a structure and to fragment rock for mining, quarrying, excavation and construction. Initiating devices (detonators, detonating cords, etc.) are also included under this definition.
(Ord. No. 89-482, § III, 8-30-1989)

Cross reference—Definitions generally, § 1-2.

Sec. 12-62. Penalties.

Any person who violates or fails or refuses to obey or comply with any provision of this article or submits any false information required by this article shall be guilty of a misdemeanor.
(Ord. No. 89-482, § XV, 8-30-1989)

Sec. 12-63. Purpose.

This article establishes standards intended to eliminate and reduce unnecessary and excessive airblast overpressures, ground vibrations, and dust which are physically harmful and otherwise detrimental to individuals and the community in the enjoyment of life, property and conduct of business. The standards established in this article apply to the detonation of explosives used to demolish a structure and to fragment rock for mining, quarrying, excavation, and construction within the city limits.
(Ord. No. 89-482, § I, 8-30-1989)

Sec. 12-64. Scope; jurisdiction.

This article in no way replaces or negates the requirements pertaining to explosives as contained in the Standard Fire Prevention Code, 1994 edition, as amended, or any rule or regulations of any governmental agency. The Standard Fire Prevention Code is administered by the chief of the fire department.
(Ord. No. 89-482, § II, 8-30-1989)

Sec. 12-65. Exemptions.

Nothing contained in this article shall be construed as applying to the regular military or naval forces of the United States, the duly authorized militia of the state, or to the police and fire departments in the proper performance of their duty.
(Ord. No. 89-482, § XVIII, 8-30-1989)

Sec. 12-66. Citations.

The director and any person acting under his supervision is authorized to issue citations to appear in municipal court to answer charges of violations of any of the provisions of this article.
(Ord. No. 89-482, § XVI, 8-30-1989)

State law reference—Citations, Code of Ala. 1975, § 11-45-9.1.

Sec. 12-67. Exceptions based on undue hardship.

(a) Applications for a permit for exception from the standards or requirements designated in this article may, on the basis of undue hardship, be made to the director. Any permit granted under this article shall contain all conditions upon which the permit has been granted and shall specify a reasonable time that the permit shall be effective. The director may grant the exception as applied for only if:

(1) The activity or operation will be of a temporary duration, i.e., a limited number

*__State law references—__Alabama Explosives Safety Act of 1963, Code of Ala. 1975, § 8-17-240 et seq.; local regulation of explosives, Code of Ala. 1975, §§ 11-43-60, 8-17-251.

of blasts at a specific site, and cannot be done in a manner that would comply with this article;

(2) No other reasonable alternative is available to the applicants; and

(3) Applicants represent, and the director finds, that blasting as permitted will not violate recognized safety standards.

(b) Upon the issuance of any exception permit, the director may prescribe any reasonable conditions or requirements he deems necessary to minimize adverse effects upon the community.
(Ord. No. 89-482, § XVII, 8-30-1989)

Sec. 12-68. Inspection and monitoring.

The director or his authorized representative may conduct tests and observe any authorized blasting operations, and may also order that persons holding blasting permits measure the ground vibration and airblast overpressure during blasting operations using approved instrumentation.
(Ord. No. 89-482, § XI, 8-30-1989)

Sec. 12-69. Notifications.

(a) Any person detonating explosives shall first notify the director that a blast is planned. Such notification shall be received at least four hours prior to the planned detonation and shall give the time (within 30 minutes), location where the blasting is to be done, the amount of explosives to be used, and the name and business address of the person responsible for the blasting operation.

(b) A 24-hour notification is required for blasting operations to be conducted on Saturdays and Sundays and for those blasting operations performed after 5:00 p.m. local time on weekdays. This additional notification period is needed to allow sufficient time to coordinate monitoring of the blast at times which are not considered by personnel of the division to be normal work hours. The notification may be given orally over the telephone; however, the burden of proof as to whether the notification was in fact received rests with the person responsible for the blasting operation.
(Ord. No. 89-482, § IX, 8-30-1989)

Sec. 12-70. General restrictions.

(a) When blasting operations, other than blasting operations at limestone quarries, are performed within 2,000 feet of any structure, railway or highway, the blast shall be covered before detonation with a minimum of three feet of clean fill dirt and/or a mat constructed so that it is capable of preventing fragments from being thrown.

(b) Blasting detonations are allowed only during daylight hours, but not earlier than 7:00 a.m. local time.

(c) A certified blaster and at least one other person shall be present during the firing of all blasts.
(Ord. No. 89-482, § VIII, 8-30-1989)

Sec. 12-71. Vibration and airblast overpressure levels.

(a) Except as otherwise authorized in this article, the allowable ground vibration and airblast overpressure levels resulting from the detonation of explosives are as follows:

(1) For ground vibration, levels not to be exceeded at any time are 0.50 inch per second peak particle velocity for frequencies below 40 Hz and 2.00 inches per second for frequencies equal to and greater than 40 Hz; except that if the measured ground vibration level continuously exceeds 0.50 inch per second particle velocity after a period of one second following the maximum particle velocity, the charge weight per delay shall be reduced so that the particle velocity does not exceed 0.50 inch per second.

(2) For airblast overpressure, levels not to be exceeded at any time are 129 peak dB_L (linear) – 0.1 Hz high-pass system; 128 peak dB_L (linear) – two Hz high-pass system; and 124 peak dB_L (linear) – five or six Hz high-pass system.

(b) The requirements established within this section apply to any property of concern but no closer than at or beyond the property line of property under the control—through ownership or lease or other contractual arrangement—of persons having the blasting operation performed. Where a conflict exists regarding the location or determination of which property line applies, the nearest building structure shall be considered as being at or beyond the property line of persons having the blasting operation performed.
(Ord. No. 89-482, § VII, 8-30-1989)

Sec. 12-72. Instrumentation.

(a) A three-component direct reading velocity instrument with a frequency response of five Hz or below to 200 Hz and adhering to the design criteria for portable seismographs as outlined in U.S. Department of Interior, Bureau of Mines report RI 8506, "Measurement of Blast-Induced Ground Vibrations and Seismograph Calibration," shall be used for determining compliance with the ground vibration limits specified in section 12-71. The minimum frequency ranges for ground vibration instrumentation are two to 150 Hz for quarry blasting and five to 200 Hz for construction and excavation blasting. The maximum allowable peak particle velocity shall apply to each of the three components.

(b) An airblast channel having a frequency range of 0.1 to 200 Hz, two to 200 Hz, or five or six Hz to 200 Hz on a blasting seismograph shall be used for determining compliance with the airblast overpressure levels specified in section 12-71. The instrumentation shall adhere to the design criteria and operational guidelines as outlined in U.S. Department of Interior, Bureau of Mines report RI 8508, "Airblast Instrumentation and Measurement Techniques for Surface Mine Blasting."

(c) Instruments shall be operated in accordance with the instrument manufacturer's instructions. Instrument measurements shall be considered valid only when ambient levels are less than 0.1 inch per second and ten dB_L lower than the levels of the explosive blast being measured. Therefore, all instruments shall be set to trigger no higher than 0.3 inch per second and 118 dB_L on two Hz high-pass systems for monitoring purposes.
(Ord. No. 89-482, § X, 8-30-1989)

Sec. 12-73. Records.

Persons responsible for blasting operations shall maintain a record of each blast. All records shall

be retained at least three years and shall be available for inspection by the director and shall contain the following minimum data:

(1) Name of person responsible for the blasting operation.

(2) Location, date and time of blast.

(3) Name of blaster in charge.

(4) Type of material blasted.

(5) Number of holes, burden and spacing.

(6) Diameter and depth of holes.

(7) Types of explosives used.

(8) Amount of explosives used.

(9) Maximum amount of explosives per delay period of eight milliseconds or greater.

(10) Maximum number of holes per delay period of eight milliseconds or greater.

(11) Method of firing and type of circuit.

(12) Weather conditions (including such factors as wind directions, etc.).

(13) Height or length of stemming.

(14) If mats or other protections were used.

(15) Type of detonators used and delay periods used.

(16) Seismograph and airblast readings when measured.

(Ord. No. 89-482, § XIII, 8-30-1989)

State law reference—Records, Code of Ala. 1975, § 8-17-246.

Sec. 12-74. Blasters certification.

(a) *Generally.* Blasters certificates, whether issued in the name of an individual or of a corporation or other entity, shall bear the name, address and photograph of the person whose qualifications have been tested with respect to such certificate. Any such certificate issued to a corporation or other entity shall be valid only during the time that the qualifying individual is supervising the blasting operations being conducted. Blasters certificates are valid for three years from the date of issuance. In addition to the qualifications specified in subsection (b) of this section, such person must satisfy each of the following qualifications:

(1) Present evidence of training, knowledge and experience in the handling and use of explosives;

(2) Be knowledgeable of federal, state and local laws and regulations pertaining to explosives;

(3) Pass a qualifying written or oral examination demonstrating such training, experience and knowledge; and

(4) Demonstrate a minimum of one year's hands-on experience in the handling and use of explosives.

(b) *Qualifications.* A blasters certificate shall not be issued unless the applicant:

(1) Is at least 21 years of age;

(2) Has not within three years from the date of the application been convicted of a willful violation of any provision of this article; and

(3) Has not knowingly withheld information and has not made any false or fictitious statement intended or likely to deceive in connection with the application.

(c) *Application for certificate.* Applications for a blasters certificate shall be filed in a manner and form prescribed by the director and shall give all the information necessary to enable the director to make the required determinations.

(d) *Certificate fee.* A fee of $200.00 shall be paid at the time the application for a blasters certificate is submitted. Fees shall be made payable to the city. Any applicant failing to obtain a certificate because of not passing the qualifying examination before reexamination must submit a new application and fee. The fees collected will be used to provide continuing education courses to certified blasters.

(e) *Revocation of blasters certificate.* Any blasters certificate issued by the director may be revoked by the director, after notice and hearing, for any of the following causes:

(1) A willful violation of any provision of this article;

(2) Unintentional but repeated violations of any of the provisions of this article;

(3) Conviction of a felony by a court of law; and

(4) Willful and intentional falsification of information submitted on an application for a blasting permit or an application for a blasters certificate.

(f) *Continuing education.* In order to retain a valid blasters certification, each blaster must attend and complete one eight-hour continuing education course for each three years. One continuing education course will be administered by the division each three years. The cost for the course shall be funded by certification fees. Any other continuing education courses taken to satisfy this minimum requirement shall be approved in advance by the director.
(Ord. No. 89-482, § V, 8-30-1989)

Secs. 12-75—12-100. Reserved.

DIVISION 2. PERMIT*

Sec. 12-101. Required.

Any person detonating explosives within the city limits shall first obtain authorization for such activity from the director in the form of a blasting permit.
(Ord. No. 89-482, § IV(A), 8-30-1989)

Sec. 12-102. Applications.

Applications for blasting permits required by this division shall be in the form prescribed by the director and shall give all the information necessary to enable the director to make the determinations required in this division.
(Ord. No. 89-482, § IV(E), 8-30-1989)

*__State law reference—__Municipal explosives use permit, Code of Ala. 1975, § 8-17-248.

Sec. 12-103. Fees.

(a) Fees for a permit required by this division shall be paid at the time of application in the following amounts:

Projected Cubic Yards	*Base Price +*	*Cost per Cubic Yard*
0—300	$250.00	$0.15
301—1,000	250.00	0.25
1,001—2,500	250.00	0.30
2,501—10,000	250.00	0.33
Over 10,000	250.00	0.35

In no event shall the permit fees exceed $9,000.00 in a calendar year for the same blasting location. Fees shall be made payable to the city and shall be nonrefundable.

(b) Projections for cubic yardage shall be provided to the director at the time of application.

(c) Projections shall be supported by surveys, bid proposals and/or contractor expertise. The director shall have final judgment on projected cubic yardage. If the director disputes the projected cubic yardage, he shall notify the applicant in writing, within 30 days, of the reason. The applicant may at any time provide an engineering survey, certified by a professional engineer, to substantiate any cubic yardage projections. This survey shall be recognized as true and accurate by the director.
(Ord. No. 89-482, § IV(K), (L), 8-30-1989)

State law reference—Municipal explosives use permit fee, Code of Ala. 1975, § 8-17-248(d).

Sec. 12-104. Certificate required.

Blasting permits shall be issued only to persons possessing a valid blasters certificate issued by the director. Any blaster receiving certification from any department or agency of the state, issued after appropriate testing of the qualifications to handle and use explosives, is exempt from having to obtain a blasters certificate from the director.
(Ord. No. 89-482, § IV(B), 8-30-1989)

Sec. 12-105. Action on application.

The director shall act, within a reasonable time, on an application for a blasting permit and shall notify the applicant in writing of its approval, conditional approval or denial.
(Ord. No. 89-482, § IV(F), 8-30-1989)

Sec. 12-106. Denial of application.

In the event of a denial of a blasting permit, the director shall notify the applicant in writing of the reason for denial. Service of this notification may be made in person or by mail, and such service may be proved by the written acknowledgement of the persons served or affidavit of the person making the service.
(Ord. No. 89-482, § IV(G), 8-30-1989)

Sec. 12-107. Bond required.

Before a blasting permit is issued, the applicant shall file with the director a corporate bond in the principal sum of $500,000.00, or a public liability insurance policy, including explosion, collapse and underground coverage with identical limits, for the purpose of the payment of all damages to persons or property which may arise from or be caused by the conduct of any act authorized by the blasting permit upon which any legal judgment results. The principal sum of the bond shall be increased to $1,000,000.00 if a person applies for more than one blasting permit at a time. The director may specify a greater or lesser amount when, in his opinion, conditions at the location of the proposed blasting operation indicate that a greater or lesser amount would be sufficient for the purposes of payment of all damages to persons or property which may arise from or be caused by the conduct of such blasting. Public agencies are exempt from the bond requirements of this section.
(Ord. No. 89-482, § VI, 8-30-1989)

State law reference—Required insurance, Code of Ala. 1975, § 8-17-248(e).

Sec. 12-108. Compliance with conditions.

Blasting permits may be issued subject to specific conditions, consistent with standards provided in this division, in which case the conditions shall be specified in writing. The holder of a blasting permit shall comply with conditions contained in such permit as well as all applicable provisions of this article. Commencing blasting operations under such a blasting permit shall be deemed acceptance of all the conditions specified.
(Ord. No. 89-482, § IV(C), 8-30-1989)

Sec. 12-109. Expiration.

Blasting permits shall expire on the date specified on the face of the permit. In no event, however, may a blasting permit be issued which has an expiration date of longer than one year from the date of issuance in the case of blasting operations at limestone quarries or other mining operations, or one calendar month from the date of issuance for blasting operations at all other locations.
(Ord. No. 89-482, § IV(J), 8-30-1989)

Sec. 12-110. Transfer.

A blasting permit shall not be transferable whether by operation of law or otherwise, either from one location to another, or from one person to another.
(Ord. No. 89-482, § IV(I), 8-30-1989)

Sec. 12-111. Display.

A person who has been granted a blasting permit shall keep such permit under file at the site or on display at all times where the blasting operation is located and shall make such permit readily available for inspection by the director or his representative.
(Ord. No. 89-482, § IV(D), 8-30-1989)

Sec. 12-112. Reports.

Persons possessing valid blasting permits shall submit a report each month to the director. The report shall be submitted no later than the seventh of each month and shall contain for each blasting permit the following:

(1) The amount of each type of explosive used;

(2) The number of blasts (firings);

(3) The location of the blasts; and

(4) The maximum ground vibration and airblast overpressure levels measured for each blast and the approximate distance of the seismograph from the blast.

(Ord. No. 89-482, § XIV, 8-30-1989)

Sec. 12-113. Revocation.

Any blasting permit granted by the director may be revoked, after notice and hearing, for any of the following causes:

(1) Failure to comply with the provisions of this article;

(2) Failure to comply with any conditions of the blasting permit; or

(3) For any other cause if, in the judgment of the director, continuance of the permit is not consistent with the purposes of this article.

(Ord. No. 89-482, § IV(H), 8-30-1989)

Secs. 12-114—12-150. Reserved.

ARTICLE IV. JUNK, LITTER AND INOPERABLE VEHICLES*

DIVISION 1. GENERALLY

Sec. 12-151. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commercial premises means any premises used in connection with the operations of a duly licensed business, including without limitation wholesale, retail, manufacturing, industrial, processing, compounding, storage, salvaging, building, consulting, sales, professional service, food service and repair businesses. Businesses which otherwise meet the definition of a "commercial premises" but which do not have a current privilege license to operate as such business or which are located on the same lot or parcel or housed in the same structure as a residence shall be classified and regulated as a "non-commercial premises".

Enclosed structure means any building, garage, accessory structure, or other structure excluding motorized and nonmotorized vehicles, having four enclosing walls and a roof, built according to and in compliance with all applicable building, zoning, fire or other codes of the city and which screens the contents of the enclosed structure so as not to be visible from adjacent public or private property, including without limitation public rights-of-way.

Code officer means an officer or employee of the code enforcement section of the community development division of the city.

Garbage means the animal and/or vegetable waste resulting from the handling, preparation, cooking or consumption of food or food products.

Inoperable vehicle means: (1) any vehicle that is in a state of disrepair, disassembly or damage, including without limitation a flat tire, that renders the vehicle inoperable or incapable of being used for its designed or intended purpose, incapable of being moved under its own power, or legally inoperable; (2) any vehicle that is being retained as a source of parts for another vehicle; (3) any parts of a vehicle located separately from the vehicle; or (4) any vehicle being stored or retained by a vehicle repair or storage business in the ordinary course of business.

Junk means and includes all metals, whether ferrous or nonferrous, including but not limited to any used or secondhand parts of machinery; plumbing fixtures, or their parts; parts of an automobile, truck, bus, motorcycle or other motor vehicle; gas or electrical appliances or fixtures, or their parts; household hardware; wire; cable; bearings; valves; pipes and pipe fittings; building materials; wood; or any other used or secondhand metal articles, including motor vehicles.

*__Editor's note—__Ord. No. 05-157, § 1, adopted March 10, 2005, amended art. IV of this chapter in its entirety. Prior to amendment, art. IV, §§ 12-151, 12-152, 12-171—12-175, 12-191, 12-192, 12-201—12-203, pertained to similar subject matter and derived from Ord. No. 90-202, §§ 2, 3.1, 3.2, 4.1—4.3, adopted May 10, 1990; and Ord. No. 97-811, § 1, adopted Nov. 20, 1997.

Cross references—Solid waste, ch. 22; traffic and vehicles, ch. 25.

Litter means all waste material which can be or is subject to being blown from place to place or scattered by the elements, including but not limited to paper, cardboard, cartons, boxes, plastics, rags, cloth, fibers and fabrics, leather, polyethylene, and polystyrenes.

Motorized vehicle means any vehicle which is self-propelled, and shall include but is not limited to automobiles, trucks, buses, vans, motorcycles, motor homes, riding lawn mowers, golf carts, dune-buggies, tractors, and motorized recreational or agricultural vehicles.

Non-commercial premises means any premises upon which any structure is being used or is intended for use as a residence or place of abode including without limitation single family dwellings, duplexes, apartments, hotels, motels, trailer parks, or camp yards. Businesses which otherwise meet the definition of a "commercial premises" but which do not have a current privilege license to operate as such business or which are located on the same lot or parcel or housed in the same structure as a residence shall be classified and regulated as a " non-commercial premises".

Nonmotorized vehicle means any vehicle that is not self-propelled, and shall include but is not limited to boats, airplanes, camping trailers, utility trailers, boat trailers and horse trailers.

Premises means any lot, yard, plot, tract, parcel or other piece of land or property located within the city.

Public property means any real property, including appurtenances on such property, which is owned, maintained or controlled by the city or any other county, state, or federal governmental entity, and shall include any street, avenue, road, drive, lane, boulevard, alley, highway, park or other property owned, operated or controlled by the city, or any other public governmental entity for the use, benefit or enjoyment of the general public.

Retail establishment means any commercial establishment that maintains as a part of its business any merchandise, goods or wares, including but not limited to gas or electric appliances or parts; plumbing fixtures, or parts; lawn mowers or lawn mower parts; machinery, equipment, implements, utensils; building materials or supplies; vehicles; or other items displayed for sale to the general public, including without limitation building supply companies, lumberyards, nurseries, secondhand stores, thrift stores, or similar commercial establishments.

Scrap means other materials or waste, including but not limited to old cordage; ropes; rubber; bottles and other glass; tin or aluminum cans; buckets; tree branches, tree limbs and tree stumps; or other waste or refuse not otherwise classified as junk, litter or garbage.

Screened area means: (1) an enclosed structure; (2) a solid or otherwise non-transparent vertical wall or fence of a minimum height of eight feet measured from the ground level at any point which is maintained in good condition and repair and which screens the contents of the screened area so as not to be visible from the ground level of adjacent public or private property, including without limitation public rights-of-way; (3) natural objects, plantings, structures or other appropriate means which are a minimum height of eight feet from the ground level at any point which are neat and well maintained and which screen the contents of the screened area so as not to be visible from the ground level of adjacent public or private property, including without limitation public rights-of-way; or (4) any combination of the foregoing.

Vehicle means any device in, upon or by which any person or property is or may be transported, carried or drawn from one place to another, and shall include but is not limited to motorized and non-motorized vehicles, boat trailers, utility trailers, horse trailers, bicycles, carts, tractors or other devices.

Vehicle repair or storage business means any establishment or place of business which stores or repairs vehicles including without limitation garages, repair shops, body shops and towing services.

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-152. Penalties.

In addition to such other punishment, including a term of community service, as may be

provided for by the court, any person who violates or fails or refuses to obey or comply with any provision of this article shall, upon conviction, be punished in accordance with the following:

(1) Over a 24-month period, upon first conviction, a fine of not less than $100.00 or more than $500.00, or imprisonment for not more than ten days.

(2) Upon a second conviction, a fine of not less than $200.00 or more than $500.00, or imprisonment for not more than 30 days, or both such fine and imprisonment.

(3) Upon a third or subsequent conviction, a fine of not less than $500.00 and imprisonment in jail for a period not to exceed six months. Such sentence shall include a mandatory sentence of not less than two days in jail, which shall not be subject to suspension or probation.

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-153. Enforcement.

(a) *Notice of violation.* Where official written notice is required under the terms of this article before a person may be cited or arrested for a violation of this article, such notice shall, unless provided for otherwise: (i) be served in person, by first class mail, or by posting on the premises in a conspicuous place; (ii) describe the nature of the violation; (iii) require compliance within a time stated in the notice; and (iv) where an extension of time is provided for under the terms of this article, provide that in lieu of compliance, an extension of time may be requested by making a written request to the board of adjustments and appeals within a specified time stated in the notice in accordance with section 12-155.

(b) *Officials charged with enforcement.* The director of the community development division or any code officer of such division is responsible for the administration and enforcement of this article.

(c) *Issuance of summons and complaint [citation].* In the enforcement of this article, the director of the community development division, any code officer of such division, or any law enforcement officer legally authorized to enforce municipal ordinances may proceed in accordance with section 2-1 of this Code. Nothing herein shall be construed to prevent the obtaining of a warrant with respect to any alleged offense in lieu of issuing a summons and complaint [citation].

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-154. Board of adjustments and appeals.

The housing board of adjustments and appeals created by section 7-354 is designated as the board of adjustments and appeals for this article; and all powers, duties and functions of the board of adjustments and appeals are delegated to and shall be performed by the housing board of adjustments and appeals.

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-155. Requests for extension of time.

Unless an appeal for an extension of time is expressly prohibited under the terms of this article, any person receiving official written notice of a violation of this article, or his duly authorized agent, may, within the time specified in said notice for requesting an extension, enter a request for an extension of the date or time for compliance to the board of adjustments and appeals. Such request must be in writing and must state the location of the property, the date of the notice of violation of this article, and the official notice number. The request must also state the hardship or reason for the request for additional time, and the amount of time that is requested. No request for an extension filed later than the time specified in said notice shall be acted upon by the housing board of adjustments and appeals unless the housing official shall consent to such extension for good cause shown.

(Ord. No. 05-157, § 1, 3-10-2005)

Secs. 12-156—12-170. Reserved.

DIVISION 2. PRIVATE PROPERTY

Subdivision I. In General

Sec. 12-171. Duties of owners.

It shall be the duty of the owner, tenant or any person in control of or charge of any premises to maintain the premises in compliance with the provisions of this division.
(Ord. No. 05-157, § 1, 3-10-2005)

Subdivision II. Litter and Garbage

Sec. 12-172. Violation.

It shall be unlawful and a violation of this article for any person or entity, including without limitation the owner, tenant or person in control of or charge of any premises to fail to maintain the premises free from litter and garbage unless the litter and garbage is containerized and stored in such a manner as to prevent it from being blown, deposited or otherwise scattered by the elements, animals, birds or any other means. Containers and storage practices shall conform to the requirements set forth in chapter 22, article III.
(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-173. Notice and extensions.

Before a person may be cited or arrested for a violation of this subdivision, he shall be served with at least 24 hours notice in accordance with section 12-153 of this article. No appeals for an extension of time for compliance shall be allowed for a violation of this subdivision.
(Ord. No. 05-157, § 1, 3-10-2005)

Secs. 12-174—12-190. Reserved.

Subdivision III. Inoperable Vehicle, Scrap and Junk

Sec. 12-191. Non-commercial premises.

It shall be unlawful and a violation of this article for any person or entity, including without limitation the owner, tenant, or person in control of or charge of any non-commercial premises to store or keep upon said premises any inoperable vehicle, scrap or junk unless housed in an enclosed structure and in such a manner as to prevent a health, fire or safety hazard as defined by the laws of the state and the ordinances of the city.
(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-192. Commercial premises.

It shall be unlawful and a violation of this article for any person or entity, including without limitation the owner, tenant, or person in charge of any commercial premises to store or keep upon said premises any inoperable vehicle, scrap or junk unless housed in a screened area and in such a manner as to prevent a health, fire or safety hazard as defined by the laws of the state and the ordinances of the city, provided:

(1) Materials, goods and/or supplies which are normally stored, displayed or kept outside on the premises of duly licensed building supply companies, lumberyards, plumbing supply companies, nurseries, and similar commercial establishments need not be contained in a screened area so long as they are stored in such a manner so as to prevent overgrowth with grass and/or weeds and the harboring of rats, mice, insects, reptiles, and other vermin; or so as to prevent any health, fire or safety hazard.

(2) Merchandise, goods or supplies that are displayed on the premises of duly licensed retail establishments for the purpose of temporary special promotional sales need not be in a screened area so long as they are displayed in a manner so as to prevent any health, fire or safety hazard while so displayed.

(3) Vehicles, boats, agricultural or industrial equipment, and lawn and garden equipment that are displayed for sale on the premises of establishments that are duly licensed for the sales of such items need not be in a screened area, provided they are not inoperable vehicles.

(4) Building materials located on premises where a valid permit is in existence for construction or repairs need not be in a screened area.

(5) Repaired or stored vehicles on the premises of or being retained as a part of a duly licensed vehicle repair or storage business which are invoiced and awaiting repair or customer pick-up may be temporarily stored in parking spaces outside the screened area for a period not to exceed 30 total days; provided, such temporary storage shall not exceed the available on-premises parking for the business.

(6) Where necessary for the conducting of business, a screened area may include entrances and exits provided such entrances and exits shall not be wider or more numerous than reasonably necessary for the conducting of business and further provided that such entrances and exits shall remain closed when not in use and shall screen the contents of the screened area from view when closed.

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-193. Enforcement.

Before a person may be cited or arrested for a violation of this subdivision, he shall be served with at least 30 days notice in accordance with section 12-153 of this article; except in the case of repaired or stored vehicles on the premises of or being retained as a part of a vehicle repair or storage business which are awaiting repair or customer pick-up, in which case notice of at least 24 hours shall be served in accordance with section 12-153 of this article. No appeals for an extension of time for compliance shall be allowed in the case of repaired or stored vehicles on the premises of or being retained as a part of a vehicle repair or storage business which are awaiting repair or customer pick-up.

(Ord. No. 05-157, § 1, 3-10-2005)

Secs. 12-194—12-200. Reserved.

DIVISION 3. PUBLIC PROPERTY

Subdivision I. Inoperable Vehicles on Public Property

Sec. 12-201. Inoperable motorized vehicles on public property.

It shall be unlawful and a violation of this article for any person to abandon, place, leave, store or park any inoperable motorized vehicle owned by or in possession or control of him upon any public property in the city. For the purposes of this section, any motorized vehicle located on public property without a current and proper license plate affixed thereto shall be deemed to be an inoperable motorized vehicle abandoned and improperly stored.

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-202. Nonmotorized vehicles on public property.

It shall be unlawful and a violation of this article for any person to abandon, place, leave, store or park any nonmotorized vehicle owned by or in possession or control of him upon any public property in the city.

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-203. Notice and extensions.

Before a person may be cited or arrested for a violation of this subdivision, he shall be served with at least 24 hours notice by affixing said notice to the vehicle or by serving notice upon the owner, if known, by the methods set forth in section 12-153. No appeals for an extension of time for compliance shall be allowed for a violation of this subdivision.

(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-204. Impoundment and due process hearing.

(a) In addition to the enforcement and penalty provisions provided for in division 1 of this article, if the vehicle is not removed from the public right-of-way within the required time, the director of the community development division or any code officer of such division or a law enforcement

officer may cause the vehicle to be removed and impounded in accordance with chapter 25, article II, division 2 of this code.

(b) The owner or person entitled to possession of any vehicle which is removed or towed from public property under the provisions of this subdivision shall be entitled to an immediate due process hearing before the chief of police as provided in chapter 25, article II, division 2.
(Ord. No. 05-157, § 1, 3-10-2005)

Subdivision II. Vehicles Being Towed or Repaired

Sec. 12-205. Violation.

(a) Notwithstanding anything to the contrary in this division, it shall be unlawful and a violation of this article for any person who is the owner, manager or person in charge of any vehicle repair shop or body repair shop to abandon, leave, store or park any vehicle being repaired, awaiting repair, or awaiting pick-up after repair upon any public property, including without limitation the public right-of-way.

(b) Notwithstanding anything to the contrary in this division, it shall be unlawful and a violation of this article for any person who is the owner, manager or person in charge of any vehicle towing service to abandon, leave, store or park any towed vehicle upon any public property, including without limitation the public right-of-way.
(Ord. No. 05-157, § 1, 3-10-2005)

Sec. 12-206. Enforcement.

For purposes of this subdivision, no notice shall be required and no appeals for an extension of time for compliance shall be allowed for a violation of this subdivision.
(Ord. No. 05-157, § 1, 3-10-2005)

Secs. 12-207—12-230. Reserved.

ARTICLE V. NOISE*

DIVISION 1. GENERALLY

Sec. 12-231. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

A-weighted sound level means the sound pressure level as measured with the sound level meter using the A weighing network. The standard unit notation is dB(A).

Ambient noise means background noise.

Audible sound means any sound for which the information content of that sound is transferred to the listener, such as but not limited to understanding of spoken speech, comprehension of whether a voice is raised or normal, or comprehension of musical rhythms.

Commercial premises means any premises where offices, clinics, kennels, shopping and service establishments exist.

Construction means any and all activity incidental to the erection, demolition, assembling, altering, installing or equipping of buildings, structures, roads or appurtenances, including land clearing, grading, excavating and filling.

Construction equipment means any equipment or devices, such as but not limited to pile drivers, power shovels, derricks, hoist tractors, loaders, rollers, concrete hauling motor vehicles, pavement breakers, bulldozers, crawler-tractors, rotary drills and augers, cranes, ditchers, trenchers, scrapers, wagons, pumps, compressors and pneumatic power equipment, or other mechanical apparatus operated by fuel or electric power in the construction, repair or demolition of any building, structure, land, street, alley, waterways or appurtenances.

dB(A) means the composite abbreviation for A-weighted sound level in decibels.

***Cross reference—**Noisy animals, § 5-9.

State law reference—Disorderly conduct, Code of Ala. 1975, § 13A-11-7.

Decibel means a logarithmic unit of measure of 10 used in measuring magnitudes of sound. The symbol is dB.

Domestic power equipment means any equipment or device rated at 15 horsepower or less and used for home or building repairs and grounds maintenance.

Emergency work means any activities performed for the purpose of preventing or alleviating physical trauma or property damage threatened or caused by an existing or imminent peril.

Hard test site means any test site having the ground surface covered with concrete, asphalt, packed dirt, gravel or similar reflective material for more than half the distance between the microphone target point and the microphone location point.

Highways means the streets, alleys and highways within the city limits.

Industrial premises means any premises where manufacturing, processing or fabrication of goods or products takes place. For purposes of this article, all railroad rights-of-way are considered to be industrial premises.

Land use category means the actual existing utilization of the land regardless of its designation by the city zoning board.

Microphone line means the unmarked reference line running parallel to the vehicle path and passing through the microphone.

Microphone target point means the unmarked location on the center of the lane of travel that is closest to the microphone.

Motor vehicle means any self-propelled vehicle.

Motorcycle means any motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels, but excluding a tractor.

Motor-driven cycle means every motorcycle and every motor scooter with a motor which does not exceed five brake horsepower, including every bicycle with a motor attached.

Muffler means an apparatus consisting of a series of chambers or baffle plates designed for the purpose of transmitting gases while reducing sound emanating from such apparatus.

Noise means any sound which annoys or disturbs humans or which causes or tends to cause an adverse psychological or physiological effect on humans.

Noise control officer means the director of the air pollution control office of the city.

Premises of public access means the outdoor portion of a privately owned parcel of real property which is readily accessible to the general public and onto which the general public is or has been invited to enter on a continuous or recurrent basis. Examples include, but are not limited to, parking areas, gasoline dispensing facilities, and outdoor shopping and dining establishments. For purposes of this definition, roofed structures with open walls, such as parking garages, pavilions and gazebos shall be considered outdoor portions of a parcel of real property.

Property line means that real or imaginary line and its vertical extension which separates real property owned or controlled by any person from contiguous real property owned or controlled by another person, or separates real property from the public premises.

Public premises means all real property, including appurtenances on the property, which is owned or controlled by any public governmental entity and shall include streets, alleys, parks and waterways.

Recreational and educational activity means any game, sport or other activity, whether on public or private property, which a person is pursuing for educational purposes or for the purpose of amusement and enjoyment, but shall not include recreational motorized vehicles or the use of equipment which amplifies sound.

Recreational motorized vehicle means all recreational vehicles, whether or not duly licensed and registered, including but not limited to commercial or noncommercial racing vehicles,

motorcycles, go-carts, snowmobiles, amphibious craft, campers and dune buggies, but not including motorboats.

Residential premises means any premises where single or multiple dwelling units exist and shall include schools, churches, hospitals, nursing homes and similar institutional facilities.

Soft test site means any test site having the ground surface covered with grass, other ground cover, or similar absorptive material for half or more of the distance between the microphone target point and the microphone location point.

Sound means energy that is transmitted by longitudinal pressure waves in air or other material and is the objective cause of the sensation of hearing.

Sound amplification system means any radio, tape player, compact disc player, loudspeaker or other electronic device used for the amplification of sound.

Sound level means a measure of the level of a sound with a weighing network in the measurement chain.

Sound level meter means an apparatus or instrument including a microphone, amplifier, attenuator, output meter and frequency weighing networks for the measurement of sound levels.

Vehicle means any device in, upon, or by which any person or property is or may be transported or drawn upon a highway, except devices moved by human power or used exclusively upon stationary rails or tracks.
(Ord. No. 86-297, § 2, 5-8-1986; Ord. No. 88-663, § 1(2), 1-12-1988; Ord. No. 93-312, § 1, 5-27-1993; Ord. No. 09-242, § 1, 3-26-2009)

Cross reference—Definitions generally, § 1-2.

Sec. 12-232. Purpose.

(a) This article is enacted to protect, preserve and promote the health, safety, welfare, peace and quiet for the citizens of the city through the reduction, control and prevention of excessive or unreasonably loud or raucous sound or noise. It is the intent of this article to establish standards that will eliminate and reduce unnecessary and excessive vehicle and community noises which are physically harmful and otherwise detrimental to individuals and the community in the enjoyment of life, property, and conduct of their affairs.

(b) Nothing in this article is intended to deter individuals from lawfully exercising the individual right of freedom of speech or any other freedom guaranteed under the Constitutions of the United States of America or of the State of Alabama, and this article is intended to facilitate activities that are vital to the conduct of the normal pursuits of life within and consistent with the context and settings of the community.
(Ord. No. 86-297, § 1, 5-8-1986; Ord. No. 21-449, § 2, 5-27-2021)

Sec. 12-233. Application exceptions.

This article shall apply to the operation of all motor vehicles, both upon public premises and on other public or private premises; and it shall be unlawful for any person to operate a motor vehicle either upon or off the public streets without complying with this article; except however, the following vehicles are exempt from the operation of this article:

(1) Any motor vehicle engaged in a professional or amateur sanctioned competitive sports event on public or private property where such events are otherwise a lawful and permitted use of the property.

(2) Agricultural equipment either on job site or traveling on highways when used and maintained in accordance with manufacturer's specifications.

(3) Any vehicle operated by any federal or state military organization and designed for use in field operations, but not including vehicles such as staff cars and personnel carriers designed primarily for normal highway use.

(Ord. No. 86-297, § 7, 5-8-1986; Ord. No. 94-100, § 7, 2-10-1994)

Sec. 12-234. Undue hardship.

(a) Except in the case of "vehicles" being operated on the "public right-of-way", as those terms are defined in division 3 of this article, a

person may make application to the noise control officer, on forms provided by said officer, for a waiver from the applicable provisions of this article based on a showing of undue hardship.

(b) The noise control officer, after consulting appropriate resources as may be necessary, must grant the waiver to the extent that the applicant has established as follows:

(1) That:

a. Additional time is reasonably necessary for the applicant to alter or modify his activity or operation to comply with this article; or

b. The activity, operation, or noise/sound source will be of a temporary duration, and cannot reasonably be done in a manner that would comply with this article; and

(2) That no other reasonable alternative which would comply with the provisions of this article is available to the applicant; and

(3) That the proposed activity, operation, or noise/sound would not violate recognized safety standards; and

(4) That the proposed activity, operation, or noise/sound would not endanger the public health, safety or general welfare.

(c) The noise control officer shall be entitled to prescribe any reasonable conditions he deems necessary in consideration of all relevant factors in order to mitigate adverse effects upon the community or the surrounding neighborhood. Such conditions shall be contained in the waiver and the waiver shall specify a reasonable time that the waiver shall be effective.

(d) The noise control officer shall act upon an application for a waiver within 14 days from the date said officer receives a completed application. An individual aggrieved by the denial of a waiver or the conditions of a waiver may appeal said denial or said conditions to the Circuit Court of Madison County within 14 days after the date of the noise control officer's decision.

(e) Failure of a person to comply with the terms of the waiver, shall be a violation of this article.

(Ord. No. 86-297, § 8, 5-8-1986; Ord. No. 94-100, § 8, 2-10-1994; Ord. No. 21-449; § 3, 5-27-2012)

Sec. 12-235. Instrumentation.

Equipment used in making sound level measurements shall meet the following requirements:

(1) *Sound level meter.* Sound level meters shall be of type 1, 2 or S2A, meeting the requirements of the American National Standards Institute, Inc., or its successor bodies.

(2) *Sound level calibrator.* An acoustic calibrator of the coupler type, accurate to within ±0.5 dB, shall be utilized for the calibration of sound level meters.

(3) *Windscreen.* A properly installed windscreen recommended by the manufacturer of the sound level meter shall be used.

(4) *Calibration.* Each sound measuring instrument shall be returned to the manufacturer or its authorized service center or other qualified laboratory for calibration once every three years. Calibrations shall be to standards traceable to the National Bureau of Standards.

(Ord. No. 86-297, § 5, 5-8-1986; Ord. No. 94-100, § 5, 2-10-1994)

Sec. 12-236. Instrument operator training.

Persons conducting sound level measurements under the provisions of this article shall be trained by a recognized school or a person whose qualifications have been approved by the noise control officer. This training shall include but is not limited to techniques of sound measurements and operation of sound measuring instruments.

(Ord. No. 86-297, § 6, 5-8-1986; Ord. No. 94-100, § 6, 2-10-1994)

Sec. 12-237. General prohibition.

(a) It shall be unlawful for any person to intentionally or recklessly make, assist in making, continue, cause to be made or continued, or, with regard to premises upon which they have control or charge of, permit to be made or continued, any unreasonably loud or raucous sound or noise within the jurisdictional limits of the city. Unreasonably loud or raucous sound or noise includes sound or noise that:

(1) Would unreasonably disturb, injure, or endanger the comfort, repose, health, peace, or safety of a reasonable person of ordinary sensitivity within the area of audibility; or

(2) Is so harsh, prolonged, unnatural, or unusual in time or place as to: (i) cause unreasonable discomfort to a reasonable person of ordinary sensitivity within the area of audibility, or (ii) unreasonably interfere with the peace, comfort, or enjoyment of life or property of a reasonable person of ordinary sensitivity within the area of audibility given the overall context, which includes the nature of the area and its zoning.

(b) The prohibition in subsection (a) above shall not apply in the case of the exemptions set forth in section 12-262 of this article.
(Ord. No. 21-449, § 4, 5-27-2021)

Secs. 12-238—12-260. Reserved.

DIVISION 2. COMMUNITY NOISE LEVEL STANDARDS*

Sec. 12-261. Exceptions.

The provisions of this division do not apply to vehicles located on public rights-of-way, which are regulated under division 3 of this article.
(Ord. No. 94-100, § 3, 2-10-1994; Ord. No. 21-449, § 6, 5-27-2021)

*__Editor's note—__Ordinance No. 21-449, § 5, adopted May 27, 2021, amended the title of division 2 as herein set out. Previous division 2 pertained to community noise level standards (vehicles on public premises excepted).

Sec. 12-262. Exemptions.

The sound levels in section 12-265 shall not apply to sounds emitted from the following:

(1) Any bell or chime from any clock, school or church.

(2) Any siren, whistle, horn or bell used by emergency vehicles or any other alarm systems used in case of fire, collision, civil defense, burglary, police activity or imminent danger; however, no burglar alarm shall remain activated for more than 15 minutes after being activated and further provided that no burglar alarm shall be allowed to produce alarm sounds in excess of those specified in section 12-265 for more than 15 minutes in any two-hour period.

(3) Any activity of a temporary duration which is permitted by law and for which a license or permit has been granted by the city, including but not limited to parades, sporting events, concerts and firework displays.

(4) Any construction equipment operated upon residential, commercial, industrial or public premises during the time period between 7:00 a.m. and 10:00 p.m.; however, operation of construction equipment between the hours of 10:00 p.m. and 7:00 a.m. shall not exceed the maximum sound levels specified in section 12-265, and further provided that such equipment shall be equipped with a properly installed muffler in good working order.

(5) Any domestic power equipment operated upon any residential, commercial, industrial or public premises during the time period between 7:00 a.m. and 10:00 p.m. provided that such equipment does not exceed a sound level of 80 dB(A) when measured at a minimum of 25 feet from the noise source, and further provided that between the hours of 10:00 p.m. and 7:00 a.m. such equipment does not exceed the maximum sound levels specified in section 12-265.

(6) Any emergency work.

(7) Any detonation of explosives used to fragment rock for mining, quarrying, excavation and construction.

(8) Any recreational and educational activity, including but not limited to school bands and neighborhood ball games, provided that between the hours of 10:00 p.m. and 7:00 a.m. such activity does not exceed the maximum sound levels specified in section 12-265.

(9) Licensed refuse collection vehicles operated during the time period between 7:00 a.m. and 10:00 p.m.; however, sounds emitted from licensed refuse collection vehicles operated upon or within 150 feet of any residential premises between the hours of 10:00 p.m. and 7:00 a.m. shall not exceed the maximum sound levels specified in section 12-265.

(10) Aircraft.

(11) Animals.

(12) Reserved.

(13) Noise sources within multifamily dwellings, office and apartment complexes, condominiums and similar structures occupied by more than one tenant which impact only those persons within the same dwelling, complex or building.

(Ord. No. 86-297, § 3.2, 5-8-1986; Ord. No. 88-663, § 1(3.2), 1-12-1988; Ord. No. 94-100, § 3.2, 2-10-1994; Ord. No. 21-449, § 7, 5-27-2021)

Sec. 12-263. Method of enforcement.

(a) The noise control officer, or any sworn peace officer, shall be responsible for enforcing all of the provisions of this division. Where a violation of any provision of this article is found, the noise control officer and any person acting under his supervision are authorized to:

(1) Appear before a municipal court magistrate to make an affidavit under oath and request that a summons be issued for a person where there is probable cause for believing that the person is in violation of this article, requiring the person to appear in municipal court to answer charges of the violation.

(2) Serve as a witness, and to provide evidence of the violation, at the request of a person who has registered a noise complaint and wish to appear before a municipal court magistrate for the purpose of making an affidavit under oath and requesting that a summons be issued for the person where there is probable cause to believe that the person is in violation of this article, requesting the person to appear in the municipal court to answer charges of the violation.

(b) Where the provisions of this division are enforced by a sworn peace officer, the peace officer shall proceed with enforcement under any method available to him pursuant to the laws of the state.

(Ord. No. 86-297, § 3.4, 5-8-1986; Ord. No. 88-663, § 1(3.4), 1-12-1988; Ord. No. 99-766, 9-23-1999)

Sec. 12-264. Measurement procedure.

The sound level meter shall be operated in accordance with the instrument manufacturer's instructions and as follows:

(1) *Microphone orientation.* The microphone shall be pointed towards the allegedly offensive noise source unless the instrument manufacturer's instructions specifically indicate otherwise.

(2) *Meter setting.* The meter shall be set for the A-weighted network and slow response mode.

(3) *Calibration.* An external calibration check and battery check shall be made before and after each use.

(4) *Meter readings.* The recorded reading shall be the highest sound level obtained with the allegedly offensive noise source in operation, disregarding unrelated peaks due to extraneous ambient noises.

(5) *Ambient conditions.* Measurements shall be made only when the A-weighted ambi-

ent sound level, including wind effects and all sources other than the noise source being measured, is at least ten dB(A) lower than the sound level of the noise source being measured; however, no source shall emit noise in excess of 86 dB(A) when measured 25 feet or more from the source.

(6) *Sound level measurement.* Sound levels shall be measured at the approximate location of the property line or the boundary of the public premises, at a height of at least four feet above the immediate surrounding surface.

(7) *System distance.* In no case shall the operator or observer be closer than two feet from the system's microphone, nor shall he locate himself between the microphone and the noise source being measured.

(Ord. No. 86-297, § 3.3, 5-8-1986; Ord. No. 88-663, § 1(3.3), 1-12-1988; Ord. No. 94-100, § 3.3, 2-10-1994)

Sec. 12-265. Sound levels by receiving land use.

(a) No person shall operate, cause to be operated or generate any source of sound in such a manner as to create a sound level which exceeds the following limits when measured at or within the property line of the receiving land use:

Sound Levels by Receiving Land Use

Receiving Land Use Category	*Time*	*Sound Level Limit dB(A)*
Residential, public space open space, agricultural, institutional property	7:00 a.m.—10:00 p.m.	55
	10:00 p.m.—7:00 a.m.	50
Commercial or business	At all times	62
Industrial	At all times	70

When a noise source can be identified and its sound measured in more than one land use category, the sound level limits of the most restrictive land use category shall apply.

(b) (1) No person shall operate, cause to be operated, or generate any source of sound which is electronically amplified, or permit to be operated any sound amplification system such that the audible sound is discernible by the human ear at or within the property boundary of any adjoining or nearby residential premises between the hours of 10:00 p.m. and 7:00 a.m. The immediately foregoing provision of this subsection (1) shall not apply to amplified sound generated from within an arts or entertainment district established in chapter 3, article II of this Code, during the weekend (Friday and Saturday) regular hours of operation of such district and the New Year's Eve/New Year's Day regular hours of operation of such district.

(2) The operation or generation of any electronically amplified sound originating from any commercial or industrial establishment used to page or notify individuals or to announce information shall not be permitted at any time if the audible sound is discernible by the human ear at or within the property boundary of any residential premises.

(Ord. No. 86-297, § 3.1, 5-8-1986; Ord. No. 88-663, § 1(3.1), 1-12-1988; Ord. No. 93-312, § 2, 5-27-1993; Ord. No. 94-100, § 3.1, 2-10-1994; Ord. No. 21-1183, § 1, 12-2-2021)

Secs. 12-266—12-290. Reserved.

DIVISION 3. NOISE AND SOUND ASSOCIATED WITH VEHICLES*

Sec. 12-291. Purpose; method of enforcement.

(a) This division is intended to address unreasonably loud or raucous sound or noise associated with vehicles, which includes vehicles

*__Editor's note—__Ord. No. 21-449, § 8, adopted May 27, 2021, amended division 3 in its entirety to read as herein set out. Former division 3, §§ 12-291—12-297, pertained to motor vehicles and sound amplification systems on public premises and sound amplification systems on premises of public access, and derived from Ord. No. 86-297, §§ 4.1.1, 4.1.2, 4.1.4, 4.1.5, 4.2, 4.3, 5-8-1986; Ord. No. 93-312, §§ 3, 4, 5-27-1993; Ord. No. 94-100, §§ 4.1.1, 4.1.2, 4.1.4, 4.1.5, 4.3, 2-10-1994; Ord. No. 09-242, § 3, 3-26-2009.

Cross reference—Traffic and vehicles, ch. 25.

State law reference—Mufflers, Code of Ala. 1975, § 32-5-216.

being operated on the public right-of-way which is preserved for the traveling public to be used in a safe and orderly manner free from unnecessary and dangerous distractions. In addition, this section addresses the enforcement challenges presented when attempting to measure decibel levels produced by movable vehicles using stationary sound equipment.

(b) The chief of police, and officers under his supervision, are hereby authorized to enforce the provisions of this division. Violations shall subject persons to citation to appear in municipal court, or other lawful enforcement action.
(Ord. No. 21-449, § 8, 5-27-2021)

Sec. 12-292. Definitions; exemptions.

(a) When used in this section, the following words, terms or phrases shall have the following meanings:

Public right-of-way means any public street, road, alley, highway, or other way in the corporate limits of the city dedicated or used for vehicular travel, which includes public parking spaces upon or adjacent thereto.

Vehicle means a device in, upon, or by which a person or property is or may be transported or drawn upon a public right-of-way, which includes self-propelled and human-powered vehicles.

(b) Sounds emitted from the operation of an emergency vehicle or in connection with an emergency are exempt from the application of this division.
(Ord. No. 21-449, § 8, 5-27-2021)

Sec. 12-293. Motor vehicles.

(a) It shall be unlawful for any person to operate a motor vehicle within the city limits that is so out of repair, altered, maintained, loaded, or operated in such manner as to create unreasonably loud, grating, grinding, rattling or disturbing noise, which includes engaging in jackrabbit starts, spinning tires, racing engines, or other such operation.

(b) It shall be unlawful for any person to operate a motor vehicle within the city limits that is not equipped with a muffler in good working order and in constant operation, and that has been modified to decrease the sound-dampening effectiveness of the muffler, such as use of a muffler cut-out, bypass, a muffler without baffles, or similar device.
(Ord. No. 21-449, § 8, 5-27-2021)

Sec. 12-294. Penalty.

Any person who violates section 12-293 shall upon conviction be punished, in addition to such other punishment as may be provided by the court, by fines and penalties as follows:

(1) For a first citation within a 12-month period of time, by a fine of $50.00, except as provided in subsection 12-294(d) below.

(2) For a second citation, within a 12-month period of time, by a fine of $250.00.

(3) For a third or subsequent citation, within a 12-month period of time, by a fine of $500.00 or by imprisonment for not more than ten days or by both such fine and imprisonment.

(4) For a first citation, as determined by the court, an offender may be eligible to produce proof of repair to avoid the additional fine.

(Ord. No. 25-77, § 5, 2-13-2025)

Editor's note—Ord. No. 25-77, §§ 1—5, adopted Feb. 13, 2025, renumbered the former §§ 12-294—12-297 as §§ 12-295—12-298 and enacted a new § 12-294 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 12-295. Standing motor vehicles.

No person shall operate or permit the operation of any motor vehicle with a gross vehicle weight rating (GVWR) in excess of 10,000 pounds, or any auxiliary equipment attached to such a vehicle, for a period longer than ten minutes in any hour while the vehicle is stationary, for reasons other than traffic congestion, within 150 feet of residential premises, between the hours of 10:00 p.m. and 7:00 a.m. the following day.
(Ord. No. 21-449, § 8, 5-27-2021; Ord. No. 25-77, § 1, 2-13-2025)

Editor's note—See note at § 12-294.

Sec. 12-296. Licensed refuse collection vehicles.

No person shall operate or permit the operation of refuse collection vehicles within 150 feet of residential premises between the hours of 10:00 p.m. and 7:00 a.m., except when emergency work is being performed.
(Ord. No. 21-449, § 8, 5-27-2021; Ord. No. 25-77, § 2, 2-13-2025)
Editor's note—See note at § 12-294.

Sec. 12-297. Horns and signaling devices.

No person shall sound any horn or signaling device from a vehicle on any public right-of-way, except as a danger warning, and then only for a reasonable period of time.
(Ord. No. 21-449, § 8, 5-27-2021; Ord. No. 25-77, § 3, 2-13-2025)
Editor's note—See note at § 12-294.

Sec. 12-298. Vehicle sound amplification systems.

(a) No person shall operate or cause to be operated any sound amplification system, which includes any mechanical or electronic sound-making device or equipment that produces, reproduces, enhances, or amplifies sound, from, within, or upon a vehicle on the public right-of-way in such a manner as to be plainly audible to any person at least 25 feet from the vehicle from which the sound is emitted. Measurement of the audible sound shall be by the auditory senses, without enhancement by a mechanical device such as a microphone or hearing aid.

(b) This section shall make no distinction between stopped, standing, parked or moving vehicles as long as the vehicle is upon the public right-of-way.

(c) Possession by a person of the sound amplification system in subsection (a) of this section shall be prima facie evidence that the person operated the system.

(d) This section shall not apply to the event conduct of an organized event that is a sound event for which a special event permit has been issued in accordance with chapter 23, article VI of this Code, provided that the event conduct is in compliance with any sound-event conditions set forth in the special event permit. Otherwise, this section shall apply.
(Ord. No. 21-449, § 8, 5-27-2021; Ord. No. 25-77, § 4, 2-13-2025)
Editor's note—See note at § 12-294.

Secs. 12-299—12-330. Reserved.

ARTICLE VI. STORMWATER MANAGEMENT*

DIVISION 1. GENERALLY†

Sec. 12-331. Stormwater management manual.

(a) *Incorporation by reference*. The City of Huntsville Stormwater Management Manual, 2020 Edition, a technical code of the city referenced and adopted in section 12-1 of this chapter, and adopted by Ordinance No. 20-1022, (hereinafter referred to as "stormwater management manual" or "manual"), is hereby incorporated into this article by reference as if fully set forth herein, and when reference is made to this article it shall mean and include the stormwater management manual, its regulations, standards, and technical guidelines, as such may be amended from time to time.

(b) *City engineer to administer and enforce manual.* The director of city engineering is hereby authorized to administer and enforce this article, including the provisions of the stormwater management manual, and to act through duly authorized representatives. Where the term "city engineer" is used in this article it shall mean and include the city engineer and his/her authorized representatives.
(Ord. No. 20-1062, § 1, 12-17-2020)
Editor's note—Ord. No. 20-1062, § 1, adopted December 17, 2020, repealed the former § 12-331, and enacted a

*__Cross references—__Stormwater management manual adopted, § 12-1; sewers, sewage disposal and other wastewater disposal, ch. 21; utilities, ch. 26.

†__Editor's note—__Ord. No. 15-951, § 1, adopted Jan. 14, 2016, amended Div. 1 in its entirety to read as herein set out. Former Div. 1, §§ 12-331—12-335, pertained to similar subject matter. For prior history, see Code Comparative Table.

§ 12-331 as set out herein. The former § 12-331 pertained to Definitions and derived from Ord. No. 15-951, § 1, 1-14-2016.

Sec. 12-332. Violations; remedies; enforcement.

(a) *Violations*. Subject to subsection (b), it shall be unlawful and a misdemeanor for any person to:

(1) Violate any provision of this article or fail to comply therewith;

(2) Violate the provision of any permit issued pursuant to this article, including the stormwater management manual incorporated herein by reference;

(3) Fail or refuse to comply with any lawful order or notice to abate or remediate a violation of this article issued by the city engineer;

(4) Violate the provisions of conditions and safeguards established in connection with the enforcement and administration of this article, including conditions or safeguards imposed by the director of city engineering in connection with permits or approvals issued pursuant to this article; or

(5) Fail to maintain any low impact development/green infrastructure element or detention pond required pursuant to the stormwater management manual.

The violation of or the noncompliance with each individual requirement, rule, order or regulation, and each day's continuation thereof, shall constitute a separate and distinct offense.

(b) Where the city engineer has issued a verbal warning or notice of violation (NOV) pursuant to the stormwater management manual,

the city engineer may allow the alleged violator a period of remediation before a citation is issued for a violation hereunder.

(c) *Penalty*. The penalty provisions of section 1-7 of this Code shall apply to a violation of this article.

(d) *Injunctive relief*. In addition to the imposition of the penalties herein described and other remedies provided by law, the city shall have the right to injunctive relief for a violation of this article.

(e) *Remedies not exclusive.*

(1) This article shall be cumulative to and in furtherance of any statutory, common law, or other legal right, duty, power, or authority possessed by the city. Compliance with this article shall not excuse any person from compliance with any other federal, state or local law, ordinance, regulation, rule or order.

(2) Nothing in this article shall limit the authority of the city engineer to take such other or additional enforcement action as may be allowed under the stormwater management manual.

(g) *Existing authorities*. Nothing in this article shall be construed to limit the existing authority of the city to enforce rules and regulations regarding: (a) charges, limits and restrictions on the discharge of waste into the sanitary sewerage system of the city; (b) health or sanitation ordinances of the city enforced by the county health department; or (c) ordinances governing the sanitation of premises where animals are kept.

(f) *Providing false information and tampering prohibited*. It shall be unlawful for any person to provide false information to the city engineer or anyone working under the city engineer's supervision when such person knows or has reason to know that the information provided is false, whether such information is required by this article or any approval granted under this article.
(Ord. No. 20-1062, § 1, 12-17-2020)

Editor's note—Ord. No. 20-1062, § 1, adopted December 17, 2020, repealed the former § 12-332, and enacted a § 12-332 as set out herein. The former § 12-332 pertained to Purpose; stormwater management manual; conditions and derived from Ord. No. 15-951, § 1, 1-14-2016.

Sec. 12-333. Penalties and injunctions.

(a) A violation of this article shall be punishable as provided in section 1-7.

(b) In addition to all other remedies provided by law, the city shall have the right to injunctive relief for any violation of this article.
(Ord. No. 15-951, § 1, 1-14-2016)

Sec. 12-334. Authority of city engineer.

(a) The city engineer shall have the authority to administer and enforce this article on behalf of the city.

(b) The city engineer shall have the authority to issue grading permits as required under this article. Any grading permit exemption authorized by the city engineer under this article shall not be construed as relieving the party responsible for the identified activity from making on-site drainage improvements that may be required or from compliance with the zoning ordinance of the city or any other applicable laws or regulations.

(c) The city engineer shall have the authority to review all building permit applications prior to their issuance by the inspection division to ensure compliance with the provisions of this article. Building permit applications are exempted from review by the city engineer if the structure which is the subject of such application is to be remodeled within its existing walls and no grading is to occur on the site or is a residential dwelling on a single lot within an approved subdivision with an approved grading plan that establishes the stormwater drainage pattern for the site. No building permit, unless exempted as indicated in this article, shall be issued by the inspection division until an application for such building permit has been approved by the city engineer. The exemptions listed in this article shall not be construed as relieving the party responsible for the identified activity from on-site drainage improvements that may be required in accordance with adopted building and construc-

tion codes or from compliance with the zoning ordinance of the city or any other applicable laws or regulations.

(d) The city engineer is authorized to enter upon the premises of any land within the city for which a grading or building permit application has been filed to inspect the site before, during and upon conclusion of any land disturbance activity to determine compliance with this article.

(e) In cases where the city engineer is authorized to review building permits prior to issuance or has issued a grading permit, a certificate of occupancy shall not be issued until the city engineer has determined compliance with this article.

(f) The city engineer, or an employee of his department designated by him, is authorized to issue a citation to any person found by him to be in violation of this article, including the stormwater management manual. The citation shall order the person to appear in the municipal court at a date and time certain to answer the charges against him.

(g) The city engineer is authorized to issue a stop work order with regard to any grading or other land disturbance activity that is being done contrary to the provisions of this article or in a dangerous or unsafe manner. Such notice shall be in writing, shall be delivered to the owner of the property, his agent, or the person doing the work, and shall state the conditions under which work may be resumed.
(Ord. No. 15-951, § 1, 1-14-2016)

Sec. 12-335. Stormwater management manual standards.

In the enforcement and administration of this article, the city engineer shall apply the standards set forth in section 2.1.1 of the stormwater management manual.
(Ord. No. 15-951, § 1, 1-14-2016)

Sec. 12-336. Grading without a grading plan.

(a) Development of a site shall conform to the stormwater discharge pattern established in an existing grading plan that includes the site, unless a deviation from such plan is required or allowed by the city engineer in accordance with this article, including the stormwater management manual. Deviations from the established drainage pattern shall require the approval of the city engineer before the issuance of a building permit in accordance with this article, including the stormwater management manual. It shall be a violation of this article for the holder of a building permit or grading permit to fail to follow the established drainage pattern for the site or the approved deviations. The city engineer may withhold approval of the issuance of a certificate of occupancy until either the established drainage pattern or the approved deviations are met.

(b) For construction that includes grading and where there is no grading plan in place that establishes the stormwater discharge pattern for the site, the city engineer may condition the building permit to include requirements designed to carry stormwater discharge to public drainage easements or facilities, or to private drainage easements or facilities that are designed and authorized to accommodate said drainage. The building permit holder shall grade the site to conform to such required conditions. The city engineer may withhold approval of the issuance of a certificate of occupancy until such required conditions have been met.
(Ord. No. 15-951, § 1, 1-14-2016)

Sec. 12-337. Surface stabilization measures on sites not regulated under a grading permit.

(a) When used in this section, the following words, terms, and phrases shall have the following meanings:

Graded site means: (1) a site with grading that is under an active building permit, (2) a site being graded in preparation for construction prior to the issuance of a building permit, or (3) a site with grading where the building permit has expired prior to completion of construction. The term includes public and private easements and rights-of-way located on or immediately adjacent to the site.

Inclement weather period means a prolonged period of heavy rain, high winds, frost or similar weather conditions that render installing permanent stabilization measures unattainable due to such conditions.

Permanent stabilization measures mean maintaining a graded site with a full stand of grass, allowed impervious surface, or other approved permanent stabilization measures.

Person in control means, where there is no active building permit, the owner or person in possession or control of the graded site, and, where there is an active building permit, the holder of a building permit issued for construction on the graded site.

Surface stabilization measures mean maintaining a graded site with either permanent stabilization measures in place or temporary stabilization measures in place, or both.

Temporary stabilization measures mean maintaining a graded site with straw, seed, silt fencing, or other approved temporary stabilization measures.

(b) *Coverage of section*. This section is intended to govern graded sites that are not being regulated under an active grading permit. Nothing in this article shall be construed to relieve any person from complying with other applicable federal, state, and local laws, including, but not limited to, landscaping requirements under the city's zoning ordinance, foundation drainage requirements under the city's building code, and federal and state environmental regulations, including NPDES permitting requirements.

(c) *Surface stabilization for graded sites*. It shall be a violation of this article for the person in control of a graded site to fail to maintain, in good condition, order, and repair, surface stabilization measures in place on the site that prevent mud, dirt, water, debris and other construction materials from being washed, blown or otherwise deposited on adjacent public or private property, including, without limitation, public rights-of-way.

(d) *Surface stabilization required prior to issuance of certificate of occupancy*.

(1) Subject to subsection (2) below, as a condition to the issuance of a certificate of occupancy after completion of construction on a graded site, the building permit holder shall have permanent stabilization measures in place on the graded site as may be approved by the city engineer.

(2) During an inclement weather period the building permit holder may apply with the city engineer for a waiver from the foregoing permanent stabilization requirement. The city engineer, in her sole discretion, may approve the waiver, subject to each of the following conditions:

a. Permanent stabilization measures shall be in place on that portion of the graded site that has public easements and rights-of-way.

b. Temporary stabilization measures shall be in place on the remainder of the graded site.

c. Within three months from the date of the issuance of the certificate of occupancy the applicant for the waiver shall be responsible for having full stabilization measures in place on the site and, failing therein, said applicant shall be in violation of this article.

(Ord. No. 15-951, § 1, 1-14-2016)

Secs. 12-338—12-360. Reserved.

DIVISION 2. STORMWATER MANAGEMENT BOARD*

Sec. 12-361. Created.

The city stormwater management board is created.

(Ord. No. 91-87, § 6(a), 6-13-1991)

*__Cross reference—__Boards, commissions, committee and authorities, § 2-1291 et seq.

Sec. 12-362. Members.

(a) The stormwater management board shall consist of five members appointed by the mayor and approved by a majority vote of the city council.

(b) Each member shall be appointed for a term of three years, except that in the first instance one member shall be appointed for a term of three years, two for a term of two years and two for a term of one year; and thereafter each member appointed shall serve for a term of three years or until a successor is duly appointed. In addition to the five regular members provided for in this subsection, two alternate members shall be appointed, in like fashion, as the regular members, to serve on such board at the call of the chairman only in the absence of regular members and while so serving shall have and exercise the power and authority of regular members. Alternate members shall be appointed to serve for three-year terms. All members shall be eligible for reappointment. Two of the regular members and one alternate shall be registered civil engineers. One of the regular members shall be a hydrologist. The remaining two regular members and one alternate shall be appointed from the community at large.

(c) All members shall be residents of the city. No member shall hold an elective office, nor shall any member be an employee of the county or the city. All members shall serve as such without compensation. No member shall exercise the powers and duties delegated to such member by this article in connection with any matter pending before the board in which such member has a pecuniary or direct interest or would be financially affected by the final result.

(d) Members may be removed by the mayor for continued absence from meetings of the board or for other just cause.
(Ord. No. 91-87, § 6(a), 6-13-1991)

Sec. 12-363. Organization.

Within ten days after its appointment, the stormwater management board shall elect one of its members as chairman and another as vice-chairman. The city engineer shall appoint the secretary to the board who shall be the custodian of the minutes and records of the proceedings of the board.
(Ord. No. 91-87, § 6(b), 6-13-1991)

Sec. 12-364. Duties and procedure.

The stormwater management board shall adopt such rules and regulations as it may deem necessary to conduct its business. The board shall hear all appeals as provided in this division. The board shall meet at regular monthly intervals with the day and time to be determined by the chairman or as otherwise prescribed in chapter 21, article III. If no appeals have been filed and there is no business pending, the chairman may cancel the meeting at any time after the seventh day before its scheduled date.
(Ord. No. 91-87, § 6(c), 6-13-1991; Ord. No. 98-5, § 3, 2-12-1998)

Sec. 12-365. Quorum, voting and conflict of interest.

Four members of the stormwater management board shall constitute a quorum. The concurring vote of four members of the board shall be required to reverse any order, requirement, decision or determination of the city engineer or to decide in favor of the applicant on any matter upon which it is required to pass under or to effect any variation in this article or the regulations and technical guidelines adopted pursuant to this article. No member of the board shall vote on any matter in which he has a direct or indirect pecuniary or personal interest. The alternate member, if available, shall replace any member who has a conflict of interest.
(Ord. No. 91-87, § 6(d), 6-13-1991)

Sec. 12-366. Appeals from decisions of the city engineer.

(a) Appeals to the stormwater management board may be taken by any person aggrieved by a decision of the city engineer arising out of the regulations and technical guidelines promulgated pursuant to this article. A notice of appeal must be filed with the city engineer and the stormwater management board within 15 days after such decision of the city engineer specifying the grounds

of appeal. The city engineer shall transmit to the board all papers constituting the record upon which the decision appealed from was taken. The board shall give public notice of the hearing of the appeal, as well as due notice to the parties in interest, and shall decide the matter within a reasonable time.

(b) A decision of the stormwater management board reversing or varying any order, requirement, decision or determination of the city engineer or in favor of the applicant on any matter upon which it is required to pass shall be in writing and shall specify in what manner such variations shall be made, the conditions upon which they are to be made and the reasons for such decision.

(c) Every decision of the stormwater management board shall be final, subject, however, to such remedy as any aggrieved party may have at law or in equity. Every decision shall indicate the vote of each member of the board upon the decision and shall be entered into the board's minutes and filed in the office of the city engineer. A copy of each decision shall be delivered by mail or otherwise to the appellant.
(Ord. No. 91-87, § 6(e), 6-13-1991; Ord. No. 98-5, § 4, 2-12-1998)

Sec. 12-367. Appeals from decisions of the director of natural resources.

Appeals to the stormwater management board may be taken by any person denied a BMP plan approval or a holder whose BMP plan approval is revoked or suspended under chapter 21, article III, division 2. This appeal shall be commenced and conducted in the manner prescribed in section 21-358.
(Ord. No. 91-87, § 6(f), 6-13-1991; Ord. No. 98-5, § 5, 2-12-1998)

Sec. 12-368. Powers.

(a) The stormwater management board shall have the following powers:

(1) Hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by the city engineer in the enforcement of this article or any regulation or technical guideline promulgated pursuant to this article or the manager of the natural resources and environmental management division as provided in section 21-358.

(2) Authorize upon appeal from a decision of the city engineer in specific cases such variance from the terms of this article, or any regulation or technical guideline promulgated pursuant to this article, as will not be contrary to the public interest, where owing to special conditions, a literal enforcement of the provisions of this article, or of any regulation or technical guideline promulgated pursuant to this article, will result in unnecessary hardship.

(b) In deciding appeals under subsection (a)(2) of this section, the stormwater management board shall consider all relevant factors, including but not limited to all technical evaluations, all standards specified in the regulations and technical guidelines promulgated pursuant to this article, and the following:

(1) The danger that materials may be swept onto other lands to the injury of others.

(2) The danger to life and property due to flooding or erosion damage.

(3) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner.

(4) The importance of the services provided by the proposed facility to the community.

(5) The necessity of the facility to a waterfront location, in the case of a functionally dependent facility.

(6) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use.

(7) The compatibility of the proposed use with existing and anticipated development.

(8) The safety of access to the property in times of flood for ordinary and emergency vehicles.

(9) The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site.

(10) The cost of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, and streets and bridges.

(c) Upon consideration of the factors listed in this section, and the objectives of this article, the stormwater management board may attach such conditions to the granting of a variance as it deems necessary to further such objectives.
(Ord. No. 98-5, § 6, 2-12-1998)

Secs. 12-369—12-400. Reserved.

ARTICLE VII. WATER WELLS*

DIVISION 1. GENERALLY

Sec. 12-401. Removal from city distribution system.

In the event of any private well system's failing to comply with any of the provisions of sections 12-402—12-404, the manager of the city water system is empowered and directed to disconnect and remove in an appropriate manner the property served by the well system from the city distribution system.
(Code 1982, § 23-163)

Sec. 12-402. Connection to city water system.

It shall be unlawful for any person, owner, tenant or one having in charge property upon which a well is located to make or cause to be made, or permit to continue to exist, any physical connection between a well and its pumping system, and the water distribution system of the city. Valving, check, manual or automatic, placed between the private supply and the distribution system of the city shall not constitute satisfactory compliance with the provisions of this section.
(Code 1982, § 23-160)

Sec. 12-403. Use as discharging point.

It is declared to be unlawful and dangerous to the public health for any well within the city to be employed as a discharge point for any waters or waste of any kind, liquid, inorganic or organic.
(Code 1982, § 23-161)

Sec. 12-404. Industrial plants.

Industrial plants, using wells for industrial water and water from the city distribution system for human use and consumption, shall, in addition to maintaining complete physical separation of the two supplies, paint all pipes carrying the industrial supply red.
(Code 1982, § 23-162)

Sec. 12-405. Covering and screening of wells and cisterns.

The owner or proprietor of any lot or parcel of ground within the city upon which is located a well or cistern shall be required to keep such well or cistern securely covered for the protection of anyone coming upon the property and protected from surface water and contamination, such covering to be of concrete or other sanitary material, subject to the approval of the health department; however, the covering and protection required in this section shall not be construed to prevent the owner or proprietor from maintaining a sufficient opening through which to draw, pump or otherwise remove water from such well or cistern provided such opening is to be screened or covered so as to prevent the entrance of mosquitoes.
(Code 1982, § 23-164)

State law reference—Authority of city to compel the screening of wells and cisterns, Code of Ala. 1975, § 11-47-140.

*__Cross reference—__Utilities, ch. 26.

State law reference—Water wells, Code of Ala. 1975, § 22-24-1 et seq.

Sec. 12-406. Dangerous wells filled in.

When in the opinion of the health officer a private well system fails to meet any of the conditions set out in sections 12-402—12-404, or if so poorly maintained and protected as to allow a danger to animals and children, and is further considered to be a menace to public health, the well shall be ordered to be filled in a manner approved by the health officer and the city engineer.
(Code 1982, § 23-165)

Sec. 12-407. Abandoned wells.

It shall be unlawful for any person owning or having control over any parcel of real property within the corporate limits of the city upon which the parcel of real property is located any abandoned well, to allow or permit the well to remain open. It shall be the duty of any such person who owns or has control over such property to completely and adequately seal such abandoned well in such a manner that there will be no danger from the abandoned well to any person who may come upon the property, whether such person's entry upon the property is lawful or otherwise.
(Code 1982, § 23-166)

Sec. 12-408. Bond required of persons engaged in business of well digging, repairing, etc.

(a) It shall be the duty of every person licensed to engage in the business of digging, drilling, boring, constructing, enlarging or repairing any well used or to be used for the withdrawal or securing of water in the city before engaging in such business, to give a bond, payable to the city, in the sum of $1,000.00. Such bond shall be executed by some suitable surety company, duly authorized to do business in the city, as surety. Such bond shall be approved by the city clerk-treasurer and filed with him, and conditioned that any person engaged in the business of digging, drilling, boring, constructing, enlarging or repairing of wells will faithfully observe all the laws of the state and the ordinances of the city pertaining to such business. The city shall be indemnified and saved harmless from all claims arising from accidents and damages of any character whatsoever caused by the negligence of such person doing such work, or by unfavorable or inadequate work done by such person.

(b) The bond to be given in accordance with the provisions of this section shall be in the following form:

BOND

KNOW ALL MEN BY THESE PRESENTS:

That we, _____, hereinafter called principal and _____, as surety, are held and firmly bound unto the City of Huntsville, a municipal corporation, in the sum of $1,000.00, for the payment of which well and truly to be made, we hereby bind ourselves, our heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents:

The condition of the foregoing obligation is such, however, that,

WHEREAS, the principal is engaged in the business of digging, drilling, boring, constructing, enlarging and repairing of wells in the city. If the principal shall faithfully observe all ordinances and laws of the city pertaining to the business, whether now or hereafter enacted, together with all rules and regulations established under the authority of such laws or ordinances, and shall perform in a workmanlike manner all work undertaken by the principal in the prosecution of the business and shall indemnify and save harmless the city from all liability occasioned or arising from acts done or omitted by the principal, his servants and agents, in doing the work, or from any unfaithful or inadequate work; and shall defend all suits brought against the city, based in whole or in part, upon any act or default for which the principal is responsible, and shall pay the costs and expenses and shall pay any damage that any person may sustain by reason of violation of the laws, ordinances or regulations of the city by the principal or its servants or agents in the prosecution of the business, this bond shall be void, otherwise to remain in full force and effect.

Any person injured in person or property by reason of any violation of the laws, ordinances or regulations of the city by the principal, or by any act, default or omission constituting a breach of any of the conditions of this bond, may maintain a suit or action on this bond for such injury.

If the surety shall so elect, this bond may be canceled by giving 30 days' notice in writing to the city clerk-treasurer; and this bond shall be deemed canceled at the expiration of 30 days, the surety remaining liable, however, subject to all the terms, conditions and provisions of this bond, for any act covered by this bond which may have been committed by the principal up to the date of such cancellation.

IN WITNESS WHEREOF, the principal and surety have executed this bond and affixed their seals at Huntsville, Alabama, on this the _____ day of _____, 20____.

_____ (SEAL)

_____ (SEAL)

_____ (SEAL)

(c) The bond shall be for the benefit of all persons injured or aggrieved by any violation of or neglect to observe the provisions of any rule, regulation, law or ordinance of the city.

(d) Any person who engages in the digging, drilling, boring, constructing, enlarging or repairing of any well in the city without first filing with the clerk-treasurer the bond required in this section and securing the approval of such bond by the city clerk-treasurer shall be guilty of a misdemeanor.
(Code 1982, §§ 23-167—23-170)

Secs. 12-409—12-430. Reserved.

DIVISION 2. PERMIT

Sec. 12-431. Required to dig, enlarge, or repair.

It shall be unlawful for any person to dig, drill, bore, construct, enlarge or repair any well for the withdrawal of water in the city until a permit has been obtained from the city council.
(Code 1982, § 23-156)

Sec. 12-432. Application; information to be shown.

Any person desiring to dig, drill, bore, construct, enlarge or repair any well for the withdrawal of water in the city shall, before commencing such work, make application for the permit required by this division to the city council. The application shall be made in writing, subscribed and sworn to by the person owning the premises on which the well is located or proposed to be located, or by an officer of the corporation owning the premises on which the well is located or proposed to be located, and also by the person having charge of the actual work of digging, drilling, boring, constructing, enlarging or repairing such well. It shall be made on such form as may be prescribed and furnished by the city clerk-treasurer and shall contain complete and accurate information with respect to the size, depth, location, approximate capacity, ownership and use of such well and any other pertinent information, including a statement of the purpose for which the supply from such well is to be used and where the surplus or overthrow water is to be discharged. The person making the application shall attach to the application a copy of the permit to perform such work obtained from the health department. It shall be unlawful for any person to make any false or misleading statement in any such application.
(Code 1982, § 23-157)

Sec. 12-433. Permit to specify work authorized; failure to comply.

Each permit issued as required in this division shall specify clearly the work which is authorized to be done, and it shall be unlawful for any person to dig, drill, bore, construct, enlarge or repair any well in the city for the withdrawal of water contrary to or not authorized by the terms of the permit issued for the work. No permit shall be issued by the city in the absence of a properly issued health department permit.
(Code 1982, § 23-158)

ARTICLE VIII. MAINTENANCE AREAS

DIVISION 1. PLATTED LANDS

Sec. 12-500. Coverage; findings; purpose.

(a) *Coverage.*

(1) This division is intended to govern lands that require final plat or boundary plat approval pursuant to the subdivision regulations of the planning commission of the City of Huntsville, Alabama.

(2) Except in the case of lands which are subject to post-construction stormwater management controls, platted lands which were already subject to a recorded common area maintenance agreement entered into with the city prior to the adoption of this article, which includes for private subdivisions, shall be grandfathered under and subject to the already existing common area maintenance agreement, which includes any further subdivision or resubdivision of said lands. Subsequent platting of said grandfathered lands shall contain plat notes suitable in form and content to the city attorney which are similar to or consistent with those required under section 12-502(a)(2) and (3) below, and the mayor of the city, on behalf of the city, is hereby authorized, directed and empowered to enter into and execute, as may be appropriate, such documents or plat notes as may be necessary or appropriate in connection with said agreement and corresponding plat note.

(b) *Findings and purpose.*

(1) In connection with lands that are to be platted in accordance with the subdivision regulations of the planning commission of the city, there are areas within a subdivision/development that will contain certain private improvements, infrastructure, systems, facilities, features, amenities or areas, which are dependent upon private maintenance, which if not properly performed would negatively impact upon the public health, safety, morals and general welfare, including those of the general public as well as the residents and occupants of the subdivision/development. The city is desirous of establishing a maintenance agreement as a means to facilitate the performance of the private maintenance obligations for a subdivision/development and a means whereby the city may, but is not obligated to, perform what would otherwise be private responsibilities, and to receive reimbursements therefor so as to prevent the expenditure of municipal funds so as to prevent burdening the general taxpayers with the cost of said maintenance.

(2) Section 10.4 of the zoning ordinance of the city, concerning private streets and private subdivisions, as one of the conditions for approval, requires in section 10.4.3. the following: "Adequate provision must be made, as shown on the approved plan, for maintenance of private streets, private accessways and common areas to the standard practiced in the city for maintenance of public streets and areas by use of a homeowners association or other agreement approved by the city attorney." The city is desirous of establishing a maintenance agreement that fulfills said condition for approval.

(3) As a condition of final plat or boundary plat approval, section 2.11 of the city stormwater management manual requires private owners to enter into an agreement with the city in order to perform, or provide for, certain long-term maintenance obligations in connection with the post-construction stormwater management program plan. The city is desirous of establishing a maintenance agreement that will satisfy said requirement.

(Ord. No. 22-226, § 1, 3-24-2022)

Sec. 12-501. Definitions.

The following words, terms, and phrases, when used in this division shall have the following meanings ascribed to them in this section, unless the context clearly indicates a different meaning.

Maintenance area means and refers to each of the following:

(1) In the case of a multiple lot (i.e. two lots or more) subdivision/development, which includes private subdivisions: Common areas for the common benefit, enjoyment or use of owners, occupants or guests of lands contained within the subdivision/development, which common areas include those designated on the plat as "Common Area", "Common Property", or other similar words to that effect;

(2) In the case of a single lot subdivision/development that is developed, whether at the time of final/boundary platting or sometime thereafter, as a residential condominium development: Exterior common elements, including access ways, for the benefit of the condominium unit owners, whether or not such common elements are designated on the plat as "Common Elements";

(3) In the case of a multiple lot or single lot (residential or non-residential leaseholds or condominiums) subdivision/development: Areas that are or will be designated on the final/boundary plat as "Private Detention Area", "Private Stormwater Management Area", or similar words to that effect, or areas that otherwise contain private drainage improvements or features that are subject to post-construction stormwater management controls, that will not be or are not within a public easement in favor of the city or will not be or are not dedicated to and accepted by the city as public; and

(4) In the case of private subdivisions: Private rights-of-way, access-ways, streets, and alleys, inclusive of islands thereupon or within; and

(5) Additional areas dedicated, denominated or used as a maintenance area for the subdivision/development or any other real property, after the lands have been final/boundary platted.

Post-construction stormwater management controls means and refer to post-construction stormwater management structural and non-structural controls, and a schedule for periodic inspections, required in accordance with the city's stormwater management manual, as such may be superseded or amended from time to time.

Private subdivision means and refers to a subdivision/development that is subject to the provisions of section 10.4 of the zoning ordinance of the city ("Zoning Ordinance") as such section may be amended at any time and from time to time.

Subdivision/development means and refers to the platted lands or lands to be platted, as such lands are now or hereafter constituted, enlarged, developed, subdivided or resubdivided.
(Ord. No. 22-226, § 1, 3-24-2022)

Sec. 12-502. Maintenance agreement required for plat approval.

(a) *Requirement.* As an express condition precedent to approval by the planning commission of the city of any final/boundary plat of any real property located within city's planning jurisdiction, which contains a maintenance area, is or is proposed to be a private subdivision, or is subject to post-construction stormwater management controls:

(1) Each owner, who is the grantee in each deed or other conveyance recorded in the real estate records in the office of the judge of probate of the county in which the lands of the subdivision/development are located, of the fee simple title to all or any portion of the lands embraced by the subdivision/development (excluding, however, (i) any governmental entity owning any interest in any lands within said subdivision/development dedicated to and accepted by the public such as public streets and rights-of-way and (ii) any person holding any interest in such lands solely as security for the performance or satisfaction of any obligation), shall enter into a maintenance

agreement and access easement with the city that is substantially in the form and substance as hereinafter set forth; and

(2) The holder of any lien or encumbrance which grants title (including as a contract purchaser but only if said interest is of record) to all or any portion of the lands embraced by the final/boundary plat shall execute an acknowledged ratification on the face of such plat so as to give full force and effect to said maintenance agreement and access easement; and

(3) The final plat/boundary plat shall contain a plat note suitable in form and content to the city attorney or his/her designee which incorporates by reference said maintenance agreement and access easement.

(b) *Mayor authorized.* The mayor is hereby authorized, directed and empowered to enter into and execute said maintenance agreement and access easement, and corresponding plat note, on behalf of the city for each such final/boundary plat.

(c) *Maintenance agreement and access easement.* The following maintenance agreement and access easement, which shall constitute a covenant running with the land as to the real property made the subject of such plat, shall be incorporated by reference into each such plat:

STATE OF ALABAMA)
:
COUNTY OF)
MADISON

MAINTENANCE AGREEMENT AND ACCESS EASEMENT

This MAINTENANCE AGREEMENT AND ACCESS EASEMENT ("Agreement"), is made and entered into as of the ____ day of _____, ____, by and between/among _____ (hereinafter referred to as "Developer(s)") and the City of Huntsville, a municipal corporation in the State of Alabama (hereinafter referred to as "City")(referred to collectively hereinafter as "Parties"):

WITNESSETH:

WHEREAS, Developer(s) is the owner of the real property described in Exhibit "A" attached hereto (the "Developer Property"), which is embraced by the Final Plat/Boundary Plat of the _____ Subdivision/Development (the "Plat"), a copy of which is attached hereto as Exhibit "B"; and

WHEREAS, Developer(s) intends to subdivide or develop the Developer Property into lots or units for development, sale or lease and may subdivide, resubdivide or develop the Developer Property into phases and may add additional property to the Subdivision/Development (the "Subdivision/Development"); and

WHEREAS, Developer(s) has submitted said Plat to the Planning Commission of the City of Huntsville, Alabama (the "Planning Commission") for its approval; and

WHEREAS, the Subdivision/Development will include certain private improvements, infrastructure, systems, facilities, features, amenities or areas, which are dependent upon private upkeep, including their maintenance, operation, repair, replacement, inspection, or restoration, which private upkeep will not be at public expense; and

WHEREAS, based on the findings and purpose set forth in Section 12-500(b) of the Code of Ordinances of the City of Huntsville, Alabama (hereinafter referred to as "City Code"), which section is incorporated herein by reference as if fully set forth herein, and as consideration for and in connection with the approval of the Subdivision/Development in accordance with Chapter 12, Article III, Division 1 of the City Code, the Parties are desirous of entering into this Agreement.

NOW, THEREFORE, for and in consideration of (a) the premises which are deemed a material part of this Agreement and, by this reference, are incorporated herein, (b) the mutual agreements, covenants, provisions and terms of this Agreement set forth herein, (c) the execution, acknowledgment and delivery of this Agreement by the Parties hereto, and (d) other good and valuable consideration, the receipt and suf-

ficiency of all of which is hereby expressly acknowledged by City and Developer(s), and intending to be legally bound hereby, City and Developer(s) agree and covenant with and unto each other, as follows:

Section 1. Definitions.

(a) **In general.** The following capitalized and non-capitalized words, terms and phrases when used in this Agreement, including the foregoing premises, shall have the meanings/rules of construction ascribed to them in this section, except where the context clearly indicates a different meaning or unless otherwise more specifically defined in this Agreement. Words in the single number include the plural number, and words in the plural number include the singular. The words "shall" and "will" are mandatory, and "may" is permissive. Words not defined shall be given their common and ordinary meaning:

(1) General terms/rules of construction.

City means and refers to the City of Huntsville, Alabama, and where necessary to perform the acts contemplated hereinafter, shall include its officials, officers, employees, contractors, and agents.

City Engineer means and refers to the Director of Engineering of the City and his/her designees or subordinates.

Conjunctions. In a provision involving two or more items, conditions, provisions or events, which items, conditions, provisions or events are connected by the conjunction "and," "or" or "either . . . or," the conjunction shall be interpreted as follows:

a. "And" indicates that all the connected terms, conditions, provisions or events apply.

b. "Or" indicates that the connected terms, conditions, provisions or events apply singly or in any combination.

c. "Either . . . or" indicates that the connected terms, conditions, provisions or events apply singly but not in combination.

Include. The term include, including its derivations, does not limit a term to a specified example.

Maintenance Area means and refers to each of the following:

a. In the case of a multiple lot (i.e. two lots or more) Subdivision/Development, which includes Private Subdivisions: Common areas for the common benefit, enjoyment or use of owners, occupants or guests of lands contained within the Subdivision/Development, which common areas include those designated on the Plat as "Common Area", "Common Property", or other similar words to that effect;

b. In the case of a single lot Subdivision/Development that is developed, whether at the time of final/boundary platting or sometime thereafter, as a residential condominium development: Exterior common elements, including access ways, for the benefit of the condominium unit owners, whether or not such common elements are designated on the Plat as "Common Elements";

c. In the case of a multiple lot or single lot (residential or non-residential leaseholds or condominiums) Subdivision/Development: Areas that are or will be designated on the Plat as "Private Detention Area", "Private Stormwater Management Area", or similar words to that effect, or areas that otherwise contain private drainage improvements or features that are identified on the Post-Construction Stormwater Management Program Plan, that are not or will not be within a public easement in favor of the city or will not be or are not dedicated to and accepted by the City as public;

d. In the case of Private Subdivisions: Private rights-of-way, access-ways, streets, and alleys, inclusive of islands thereupon or within; and

e. Additional areas as hereinafter provided for in Section 9.

Post-Construction Stormwater Management Program Plan means and refers to the plan set forth in Exhibit "C" attached hereto, as such plan may be amended at any time and from time to time, which plan includes post-construction activities related to stormwater drainage features identified therein that will require performance of post- construction stormwater management, including structural and non-structural controls, and a schedule for periodic inspections, in accordance with the City's Stormwater Management Manual, as such may be superseded or amended from time to time.

Private Owner means and refers to any person or entity who is the grantee in each deed or other conveyance recorded in the real estate records in the Office of the Judge of Probate of the County in which the Subdivision/Development is located of the fee simple title to all or any portion of the real property embraced by the Subdivision/Development, except for and excluding (i) a Public Owner and (ii) a Security Owner. This term "Private Owner" by definition shall include any owner of the Maintenance Area including an Association contemplated by Section 8. below.

Private Owners' Lot/Unit means and refers to any lands within the Subdivision/Development owned by Developer(s) or a Private Owner other than the Public Areas.

Private Subdivision means and refers to a subdivision or development that is subject to the provisions of section 10.4 of the Zoning Ordinance of the City of Huntsville, Alabama, ("Zoning Ordinance") as such section may be amended at any time and from time to time.

Public Areas mean and refer to any lands, including improvements situated thereon, within the Subdivision/Development dedicated/conveyed to and accepted by/on behalf of the public such as public streets and rights-of-way, public greenways, and public easements.

Public Owner means and refers to any governmental entity owning any interest in any Public Areas.

Security Owner means and refers to any person or entity holding any interest in the Subdivision/Development solely as security for the performance or satisfaction of any obligation; provided, however, in the event a Security Owner succeeds to the right, title and interest of a Private Owner in and to any portion of the Subdivision/Development for any reason (whether by nonjudicial foreclosure, judicial foreclosure, conveyance in lieu of foreclosure or otherwise) then, in that event, and from and after the date of acquisition of title, said Security Owner shall become a Private Owner as to such portion of the Subdivision/Development and thus subject to the duties, liabilities, obligations and responsibilities of a Private Owner under this Agreement.

Subdivision/Development shall have the same meaning ascribed to it in the premises and shall mean and refer to the Developer Property as now or hereafter constituted, enlarged, developed, subdivided or resubdivided.

(2) Definitions concerning Maintenance Obligations. The following capitalized terms are Maintenance Obligations included under this Agreement:

General Maintenance means and refers to general maintenance, repair and upkeep, including control of grass and weeds, removal of junk and litter, and pest and rodent control, but shall not include maintenance which is performed

by the City in accordance with applicable ordinances governing maintenance of Public Areas.

Private Amenities Maintenance means and refers to the maintenance of all present or future private improvements, amenities, and features, including bath houses, fountains, lakes, walkways, trails, lighting, signage, ways, parking lots, playgrounds, ponds, pools, recreational areas and equipment, tennis courts, swimming pools, and other water features; which maintenance shall include General Maintenance, Water Quality Control, and any such other maintenance required to prevent the property from becoming a nuisance.

Private Drainage Feature Maintenance means and refers to the maintenance of all present or future private detention or retention ponds, culverts, drains, pipes, swales, berms, ditches, and other private drainage systems or improvements, which are: (1) denominated on the Plat as being private, (2) which are not within a public drainage easement, or (3) which have not been dedicated to and accepted by the City as public; which maintenance shall include: General Maintenance, Water Quality Control, SWMPP Maintenance, and maintenance of the side slopes, erosion and siltation/sedimentation control, security, water levels, and any such other maintenance necessary for aesthetics, functionality and safety.

Private Subdivision Improvements Maintenance means and refers to maintenance, operation, replacement, repair and restoration of all present or future private infrastructure within a Private Subdivision, whether within or without a Maintenance Area, that is to be privately owned, operated, and maintained for the use and benefit of the Subdivision/Development rather than being dedicated/conveyed to and accepted by the City as public, including: (1) private drainage systems and features, including detention or retention ponds, culverts, drains, pipes, swales, berms, and ditches, (2) private rights-of-way, streets, access ways and alleys inclusive of all improvements thereon and appurtenant thereto such as sidewalks, signage and lighting, (3) private sanitary sewer facilities inclusive of all infrastructure and equipment appurtenant thereto, and (4) any other private infrastructure now existing or hereafter established; which maintenance, operation, replacement, repair and restoration shall include General Maintenance, Water Quality Control, Private Drainage Feature Maintenance, and any and all maintenance, operation, restoration, replacement and repair necessary for aesthetics, functionality and safety.

Public Improvements Maintenance means and refers to the maintenance of all public drainage improvements or features including public detention or retention ponds, culverts, drains and ditches and other public improvements, which maintenance shall include General Maintenance and Water Quality Control, but shall not include maintenance which is performed by the City in accordance with applicable ordinances governing maintenance of public easements.

Repair/Restoration Maintenance means and refers to the repair/restoration of the Maintenance Area, including the private streets and private ways and improvements thereon, which repairs or restorations are necessitated due to the City's construction, maintenance or repair of any public infrastructure such as sanitary sewer and storm drainage infrastructure within said Maintenance Area. Such repair/restoration shall include restoration of landscaping, curb and gutter repairs, maintenance of any temporary pavement, final asphalt patching or replacement of improvements. The City shall only be obligated to bring any required fill materials to grade.

SWMPP Maintenance means and refers to the obligations set forth in Subsection 2(d) below.

Water Quality Control means and refers to the control of water quality for algae, pond scum and any other such similar conditions.

Section 2. Maintenance Obligations.

(a) Developer(s) and each Private Owner shall be jointly and severally responsible for the continuous and proper maintenance, operation, replacement, repair or restoration of any and all Maintenance Areas, including Public Areas situated thereon, and the Private Subdivision Improvements, within the Subdivision/Development, without expenditure of municipal funds (the "Maintenance Obligations").

(b) Such Maintenance Obligations shall be in conformance with all applicable laws, regulations, standards and specifications, now existing or hereafter established, including section 10.4 of the Zoning Ordinance, the subdivision regulations, state nuisance laws, City ordinances and codes governing nuisances, and the Stormwater Management Manual, as such may be superseded or amended from time to time; and conformance with same shall be as determined by the City.

(c) Such Maintenance Obligations include: (i) within the Maintenance Area, General Maintenance, Water Quality Control, Public Improvements Maintenance, Private Drainage Feature Maintenance, Private Subdivision Improvements Maintenance, Private Amenities Maintenance, and Restoration/Repair Maintenance, and (ii) without the Maintenance Area, Private Subdivision Improvements Maintenance.

(d) SWMPP Maintenance includes each of the following "Post-Construction Stormwater Management Program Plan Obligations" as additional Maintenance Obligations:

(1) Inspections that are required pursuant to the Post-Construction Stormwater Management Program Plan, which inspections shall be performed annually, or at such other frequency as the City Engineer may require or allow, by a properly qualified credentialed inspector (QCI) or a qualified credentialed professional (QCP), as defined by the Alabama Department of Environmental Management (ADEM), to insure compliance with the Post-Construction Stormwater Management Program Plan, including its design standards and maintenance requirements;

(2) Remediation, in a manner as may be approved or prescribed by the City Engineer, of deficiencies identified by an inspection, including inspections performed by or on behalf of the City, which remediation may include replacement, repair, restoration, or mitigation work, and which remediation shall be completed upon verification by an engineer's report within forty five (45) days after the date of the inspection, or such additional time as the City Engineer may allow; provided, however, if the inspection identifies a public safety or public health hazard, then the remediation shall be performed immediately; and

(3) Retention of inspection reports and remediation efforts reports for a period of five years, which shall be provided to the City Engineer upon request.

Section 3. Default in Maintenance Obligations. Upon the failure of Developer(s) or a Private Owner to perform said Maintenance Obligations, and after any notice and opportunity to cure required by Section 7. hereof, the City shall have the right but not the obligation to perform, or have performed on its behalf, the Maintenance Obligations, in whole or part, and shall have the right to receive joint and several full reimbursement from Developer(s) and each Private Owner the costs of such Maintenance Obligations and the costs of collection of the same as set forth in Section 5. below.

Section 4. Grant of Access and Maintenance Easement. Developer(s), for itself and for each Private Owner, Public Owner and Security Owner, hereby grants City, and City's authorized agents, contractors, and employees, a continuous, permanent and irrevocable right of entry, access,

ingress and egress easement across, along, over, under and through the Maintenance Area, drives, ways, private utility or drainage easements, and other portions of the Subdivision/Development unimproved with a building/structure in order to perform as contemplated in this Agreement, and in accordance with applicable federal, state, and local laws governing post-construction stormwater management, as such laws may be amended or superseded from time to time, including: (a) inspection of the Maintenance Area or Private Subdivision Improvements; and (b) upon default by Developer(s) or a Private Owner of the Maintenance Obligations, to perform the Maintenance Obligations whenever City deems necessary. The easement contained herein shall run with the land as a burden to the Subdivision/Development and shall pass with the conveyance of all or any portion thereof, whether specifically referred to or not in any said conveyance.

Section 5. Recovery of Maintenance Obligations Costs and Collection Costs. In the event that City performs any Maintenance Obligations, City shall have the unconditional right to recover jointly and severally from Developer(s) or any one or more or all of the Private Owners (a) the costs and expenses of all labor, equipment, fuel, materials, services, supplies and similar items used in such performance ("Maintenance Obligations Costs"), and (b) the sum of all costs, disbursements and expenses (including reasonable attorneys and engineering fees) incurred in collecting the same, together with all statutory pre- and post-judgment interest ("Collection Costs").

Each Private Owner, by the acceptance of a conveyance for such Private Owners' Lot/Unit, whether or not expressed in such conveyance, is hereby deemed to agree and covenant to pay to City the Maintenance Obligations Costs and Collection Costs. All such Maintenance Obligations Costs and Collection Costs shall be both (a) the personal obligation of the Private Owner at the time when the Maintenance Obligations Costs and Collection Costs are incurred by City and (b) a charge and lien on such Private Owners' Lot/Unit.

The City shall be reimbursed for all Maintenance Obligations Costs and Collection Costs within twenty (20) days after City's written demand for the same.

As security for the prompt and faithful payment of the Maintenance Obligations Costs and the Collection Costs, City shall have, and is hereby granted, a lien (the "City Lien") against both the Maintenance Area and each Private Owners' Lot/Unit, which City Lien is and shall be paramount and prior to all liens on the Maintenance Area and each Private Owners' Lot/Unit except for and subject to (a) the lien for current and future ad valorem taxes and (b) the lien of a construction or first mortgage held by an institutional or private lender.

In the event Developer(s) or any Private Owner shall fail to pay City the Maintenance Obligations Costs and the Collection Costs after said written demand for the same, City may pursue any one or more remedies for collection of the same (legal, equitable or otherwise) concurrently or consecutively (despite any defense of election of remedies or similar doctrines) including a suit for money damages against Developer(s) or one or more or all of Private Owners or enforcement of the City Lien against the Maintenance Area or any one or more of the Private Owners' Lots/Units, whether by nonjudicial foreclosure, judicial foreclosure or otherwise.

Section 6. Reimbursement of Maintenance Obligations Costs and Collection Costs.

(a) Subject to Subsection (b), any Private Owner (including Developer(s)) who has paid to City any Maintenance Obligations Costs and Collection Costs shall have the unconditional right to recover jointly and severally from any other Private Owner (including Developer(s)) the amount by which such paying Private Owner's payment to City exceeds his/her/its "Prorata Share". As used herein, the term "Prorata Share" means a fraction, (a) the numerator of which is one and (b) the denominator of which is the total number of Private Owners' Lots/Units within the Subdivision/Development, including lots within phases that have received final/boundary plat approval, and lots within phases which have not been finaled in which case the calculation is

based on the lots as shown on the Plat or, in the case of a condominium development, on the recorded condominium plat; excluding however the Maintenance Area.

For example, and for illustration purposes only, assuming (i) the total Maintenance Obligations Costs and Collection Costs incurred by City in one instance is $20,000.00, (ii) the total number of Private Owners' Lots within the Subdivision/Development are 50, and (iii) "Private Owner Smith" has paid City $1,000.00 for Maintenance Obligations Costs and Collection Costs, then "Private Owner Smith" may recover from one or more of the remaining Private Owners (including Developer(s)) up to each other Private Owner's Prorata Share the aggregate sum of $600.00 calculated as follows:

$$\$1{,}000.00 - (\$20{,}000.00 \times {}^{1}/50) = \$600.00$$

A Private Owner's right of reimbursement from any one or more other Private Owners (including Developer(s)) shall in no way defeat, impair, prevent or prohibit City's recovery of Maintenance Obligations Costs and/or Collection Costs from Developer(s) or any Private Owner.

(b) The right of prorata reimbursement does not apply in the case of a single lot Subdivision/Development that is an apartment complex with leasehold units.

Section 7. Notice and Cure. Except in the event of an immediate threat to the public health, safety, morals, general welfare or to public property in which event the City shall not be required to give Developer(s) or any then-current Private Owner within the Subdivision/Development any notice or opportunity to cure, the City shall not perform the Maintenance Obligations until it has first given Developer(s), the then-current Private Owner of the Maintenance Area, or any then-current Private Owner within the Subdivision/Development notice of (a) the need to perform Maintenance Obligations identified in the notice and (b) thirty (30) days after the date of such notice within which to cure and perform the same, subject to the right of the City Engineer, at his/her discretion, to grant an extension of the cure period for good cause shown upon written request. Such notice may be given in City's absolute and sole discretion and option in any one of the following ways:

(a) By posting written notice upon the Maintenance Area; or

(b) By written notice given by (i) personal delivery, or (ii) overnight commercial courier, or (iii) facsimile transmission or (iv) United States First Class Certified Mail, postage prepaid, Return Receipt Requested, and addressed to the Developer(s), the then-current Private Owner of the Maintenance Area, or any then-current Private Owner within the Subdivision/Development, as appears from the then-current records in the Office of the Tax Assessor of the County in which the Subdivision/Development is located; or

(c) By written notice left at the residence of the principal of the Developer(s) or the residence of the authorized agent of the Association or the residence of any then-current Private Owner within the Subdivision/Development; or

(d) Publication of ten (10) days written notice in a newspaper of general circulation published in the City or in the County in which the Subdivision/Development is located.

Section 8. Association/Restrictions/Other Maintenance.

(a) Nothing contained in this Agreement shall be construed or deemed as prohibiting the Developer(s) or the Private Owners from: (1) forming an owners, homeowners, condominium owners, business owners, or residence association (the "Association"), or (2) creating and establishing covenants, restrictions or restrictive covenants (the "Restrictions"), for the benefit, construction, governance, insurance, maintenance, operation, repair or regulation, of the Subdivision/Development, the Maintenance Area or Private Subdivision Improvements. Such Association or Restrictions may, inter alia, establish and impose construction, governance, insurance, maintenance, operating, repair or regulatory obligations and responsibilities equal to or greater than those set forth in this Agreement, but shall not abrogate, impair, hinder, lessen or extinguish those imposed by this Agreement, nor shall they affect or supersede the City's rights and remedies under this Agreement.

(b) Nothing contained in this Agreement shall be construed to affect private maintenance responsibilities which are outside the scope of this Agreement.

Section 9. Additional Areas. In the event that any portion of the Subdivision/Development that is not designated as Maintenance Area on the Plat is/are hereafter dedicated, denominated or used as a Maintenance Area for the Subdivision/Development or any other real property, then such other portions shall be ipso facto included within the term "Maintenance Area" and subjected to this Agreement.

Section 10. Termination of Developer(s)'s Liability. Notwithstanding anything contained in this Agreement to the contrary, each Developer(s)'s liability under this Agreement will terminate when that Developer(s) is no longer a Private Owner.

Section 11. Remedies Cumulative/No Third-Party Beneficiaries.

(a) The City's rights and remedies under this Agreement shall be in addition to any other rights and remedies it might now or hereafter have under any federal, state or local law.

(b) This Agreement shall not be construed or applied to confer any rights or benefits to third-parties.

Section 12. Authority and Power. Each party covenants, represents and warrants to each other party that it has complete and unrestricted authority, power and right to enter into, execute and deliver this Agreement.

Section 13. Recordation. This Agreement shall be recorded by City at Developer(s)'s prepaid expense in the real estate records in the Office of the Judge of Probate of each County in which the Developer(s) Property is located.

Section 14. Covenants Running with the Land. This Agreement and each of its agreements, covenants, provisions and terms are covenants running with the land as to the Developer(s) Property and the Subdivision/Development and shall be binding on City, Developer(s) and Private Owners (and, if applicable, Association) and all persons and entities claiming through or under them for a period of twenty-five (25) years from the date this Agreement is filed for record in the Office of the Judge of Probate of the County in which the Subdivision/Development is located, after which time this Agreement shall be automatically extended for successive periods of ten (10) years each unless an instrument signed by the City, Developer(s) and a majority of the then Private Owners has been filed for record in such Probate Judge's Office, agreeing to abolish or amend this Agreement in whole or in part.

Section 15. No Liability. Anything in this Agreement to the contrary notwithstanding, it is expressly agreed, intended and understood that (a) neither City nor any Public Owner nor any Security Owner has any duty, liability, obligation or responsibility to maintain or repair the Maintenance Area or Private Subdivision Improvements within the Subdivision/Development, (b) in no event shall this Agreement be construed to impose any such duty, liability, obligation or responsibility on the City or on any Public Owner or on any Security Owner, (c) the operation, maintenance and repair of the Maintenance Area or Private Subdivision Improvements within the Subdivision/Development is at all times the direct and sole duty, liability, obligation and responsibility of Developer(s) and each Private Owner, and (d) neither the City nor the Public Owners nor their respective agents, employees or assigns, shall be liable to Developer(s) or any Private Owner or any other person or entity for (i) the manner in which any of them exercise, or for the failure or refusal of any of them to exercise any authority or right granted to them herein, whether discretionary or not; (ii) the failure or refusal of Developer(s) or any Private Owner to comply with any of the agreements, covenants, provisions and terms hereof; or (iii) the failure or refusal of City to enforce any one or more of the agreements, covenants, provisions and terms hereof against Developer(s) or any Private Owner, and their respective heirs, personal representatives, successors or assigns.

Section 16. Miscellaneous.

(a) Entire Agreement/Merger. This Agreement, along with all exhibits and attachments or other documents affixed hereto or referred to herein (including the Plat), embodies the entire agreement, intent and understanding of City and Developer(s) as to the transactions contemplated and evidenced hereby and merges herein all prior and contemporaneous agreements, covenants, discussions, representations, statements and understandings heretofore made between City and Developer(s) as to such transactions, whether written, oral or both. Any agreements, covenants, representations, statements or understandings by and between City and Developer(s) as to such transactions not contained herein are and shall be null and void, unenforceable and of no force and effect.

(b) Applicable Law/Jurisdiction/Venue. This Agreement is made in, and thus shall be construed, controlled, enforced, governed and interpreted in accordance with its plain meaning in accordance with the internal laws of, the State of Alabama, without regard to principles of conflicts of laws. For any action concerning this Agreement (a) jurisdiction shall be in the appropriate state or federal courts sitting in Alabama and (b) venue (i) in Alabama state courts shall be in Madison County, Alabama and (ii) in Alabama federal courts shall be in the United States District Court for the Northern District of Alabama, Northeastern Division.

(c) Severability. If, for any reason or no reason, any agreement(s), covenant(s), provision(s), or term(s) of this Agreement (whether material to the bargain of City and Developer(s) or not) should be declared illegal, null and void, unconstitutional or unenforceable, in whole or in part, by any court of competent jurisdiction, the offending portion of this Agreement shall be deemed severed herefrom as though the same was never a part hereof; provided, however, the remainder of this Agreement shall not be impaired and shall remain in full force and effect according to its remaining agreements, covenants, provisions and terms.

(d) Binding Effect. City's and Developer(s)'s respective heirs, personal representatives, successors and assigns (including, but not limited to, the Private Owners and the Association) shall be fully bound by this Agreement and each and every agreement, covenant, provision and term hereof just as they are bound. Each and every agreement, covenant, provision and term of this Agreement inures, and shall inure, to the benefit of City, it successors and assigns, and shall be binding upon or inure to the benefit of the Developer(s) and its heirs, personal representatives, successors and assigns (including the Private Owners and the Association).

(e) Amendment, etc. Neither this Agreement nor any agreement, covenant, provision or term hereof, shall be amended, changed or modified in any respect, nor may any estoppel, novation or waiver regarding the same be effectuated, without City, Developer(s), and a majority of the then Private Owners (and, if applicable, the Association), first executing a writing, in equal dignity to this Agreement, embodying their complete and full agreement and understanding as to such amendment, change, modification, novation or waiver.

(f) Captions. The captions of this Agreement are for convenience and reference only and in no way define, describe, extend or limit the intent or scope of this Agreement.

(g) Incorporation of Exhibits. This Agreement hereby incorporates by reference and makes a part hereof all exhibits referred to herein and appended hereto.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed under their respective seals and delivered as of the date first above written.

[Insert signature and acknowledgements of the parties]

(Ord. No. 22-226, § 1, 3-24-2022)

Chapter 13

FIRE PREVENTION AND PROTECTION*

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*__Cross references—__Buildings and building regulations, ch. 7; emergency services, ch. 11; fire protection and fire service lines and systems, § 26-607.

__State law references—__Municipal fire prevention powers, Code of Ala. 1975, § 11-43-59; state fire marshal, Code of Ala. 1975, § 36-19-1 et seq.

ARTICLE I. IN GENERAL

Sec. 13-1. Duties of officers and employees of fire and rescue department.

The officers and employees of the fire and rescue department shall perform all lawful services and duties required of them by the chief of the fire and rescue department, together with such other duties as may be prescribed by this Code of Ordinances.

(Code 1982, § 11-1; Ord. No. 92-451, § 1, 7-23-1992; Ord. No. 96-482, § 1, 7-25-1996; Ord. No. 05-363, § 1, 6-9-2005)

Cross reference—Department of public safety, § 2-301 et seq.

Sec. 13-2. Establishment and duties of bureau of fire prevention.

(a) The bureau of fire prevention, a division of the fire and rescue department, is established in order to enforce and administer the fire codes hereafter adopted in section 13-31. The bureau of fire prevention shall be operated under the supervision of the chief of the fire and rescue department (hereafter referred to as "fire chief").

(b) Notwithstanding anything to the contrary in the fire codes hereafter adopted in section 13-31, the employees and officers of the bureau of fire prevention, including without limitation the fire marshal, shall be merit employees selected by the fire chief in accordance with applicable personnel policies and procedures and shall be subject to the provisions of the city's personnel policies and procedures.

(Code 1982, § 11-2; Ord. No. 99-472, 6-10-1999; Ord. No. 05-363, § 1, 6-9-2005)

Secs. 13-3—13-30. Reserved.

ARTICLE II. FIRE CODES*

Sec. 13-31. Adoption of fire code(s).

(a) *Adoption*. In accordance with section 11-45-8(c), Code of Ala., 1975, as amended, the city council hereby adopts by reference the International Fire Code, 2021 edition (hereafter referred to as "IFC 2021"), as published by the International Code Council, including Appendix Chapters "C", "D" (Excluding section D107), and "E", as such code including said appendix chapters may be amended from time to time, with the following additions, insertions, deletions and changes:

(1) Section 101.1 is revised to read as follows:

"These regulations are to be known as the Fire Code of the City of Huntsville, Alabama and shall be hereinafter referred to as "this code"."

(2) Section 104.6 is revised to read as follows:

"The fire code official should keep official records as required by Section 104.6.1 through 104.6.4. Such official records should be retained for not less than 5 years or for as long as the structure or activity to which such records relate remains in existence, unless otherwise provided by other regulations.

(3) Section 104.6.1 is revised to read as follows:

"A record of approvals should be maintained by the fire code official and should be available for public inspection during business hours in accordance with applicable laws."

(4) Section 104.6.2 is revised to read as follows:

"The fire code official should keep a record of each inspection made, including notices and orders issued, showing the findings and disposition of each."

(5) Section 104.6.3 is revised to read as follows:

"The fire department should keep a record of fires occurring within its jurisdiction and of facts concerning the same, including statistics as to the extent of fires and the damage caused thereby, together with other information as required by the code official."

*__Editor's note—__Ord. No. 05-363, § 1, adopted June 9, 2005, amended former art. II of this chapter in its entirety. Prior to amendment, art. II, §§ 13-31, 13-32, pertained to the fire prevention code and derived from the 1982 Code, §§ 11-16, 11-17; and Ord. No. 98-1018, § 1, adopted Jan. 28, 1998.

(6) Section 104.6.4 is revised to read as follows:

"Application for modification, alternative methods or materials and the final decision of the fire code official should be in writing and should be officially recorded in the permanent records of the fire code official."

(7) Section 104.9 is revised to read as follows:

"Where there are practical difficulties involved in carrying out the provisions of this code, the fire code official shall have the authority to grant modifications for individual cases, provided that the fire code official shall first find that special individual reason makes the strict letter of the code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, life, and fire safety requirements. The details of action granting modifications should be recorded and entered in the files of the fire department of fire prevention."

(8) Section 105.2.4 is revised to read as follows:

"The fire code official should examine or cause to be examined applications for permits and amendments thereto within a reasonable time after filing. If the application or the construction documents do not conform to the requirements or pertinent laws, the fire code official should reject such application in writing, stating the reasons thereof. If the fire code official is satisfied that the proposed work or operation conforms to the requirements of this code and laws and ordinances applicable thereto, the fire code official should issue a permit therefor as soon as practicable."

(9) Section 105.3.4 is revised to read as follows:

"Where permits are required and on the request of a permit application, the fire code official is authorized to issue a conditional permit to occupy the premises or portion thereof before the entire work or operations on the premises is completed, provided that such portion or portions will be occupied safely prior to full completion or installation of equipment and operations without endangering life or public welfare. The fire code official should notify the permit applicant in writing of any limitations or restrictions necessary to keep the permit area safe. The holder of a conditional permit shall proceed only to the point for which approval has been given, at the permit holder's own risk and without assurance that approval for the occupancy or the utilization of the entire premises, equipment or operations will be granted."

(10) Section 105.3.7 is revised to read as follows:

"The fire code official should issue all permits required by this code on an approved form furnished for that purpose. The permit should contain a general description of the operation or occupancy and its location and any other information required by the fire code official. Issued permits should bear the signature of the fire code official or other approved legal authorization."

(11) Section 106.2 is revised to read as follows:

"The fire code official should examine or cause to be examined the accompanying construction documents and should ascertain by such examinations whether the work indicated and described is in accordance with the requirements of this code."

(12) Section 106.4 is revised to read as follows:

"One set of construction documents should be retained by the fire code official for a period of not less than 180 days from the date completion of the permitted work, or as required by state or local laws. One set of approval construction documents shall be returned to the applicant, and

said set shall be kept on the site of the building or work at all times during which the work authorized thereby is in progress."

(13) Section 112.4 is revised to read as follows:

"Violation penalties. Penalty provisions for a violation of this code are as set forth in Section 13-31(c) of the Code of Ordinances of the City of Huntsville, Alabama, as the same may be amended from time to time, and are specifically incorporated herein by reference."

(14) Section 114.1.2 is revised to read as follows:

"Where an apparent structural hazard is caused by the faulty installation, operation or malfunction of any of the items or devices governed by this code, the fire code official should within a reasonable amount of time notify the building code official in accordance with Section 114.1."

(15) Section 1103.5.3 is revised to read as follows:

"Group I-2, Condition 2. In addition to the requirements of Section 1103.5.2, existing buildings of Group I-2, Condition 2 occupancy shall be equipped throughout with an approved automatic sprinkler system in accordance with section 903.3.1.1. The automatic sprinkler system shall be installed as established by a compliance schedule accepted by the Authority Having Jurisdiction."

(16) Section 5704.2.9.6.1 is revised to read as follows:

"Locations where above-ground tanks are prohibited. Storage of Class I and II liquids in above-ground tanks outside of buildings is prohibited within the limits established by any applicable law, rule, regulation, code or ordinance of the City of Huntsville, Alabama."

(17) Section 5706.2.4.4 is revised to read as follows:

"Locations where above-ground tanks are prohibited. The storage of Class I and II liquids in above-ground tanks is prohibited within the limits established by any applicable law, rule, regulation, code or ordinance of the City of Huntsville, Alabama."

(18) Section 5806.2 is revised to read as follows:

"Limitations. Storage of flammable cryogenic fluids in stationary containers outside of buildings is prohibited within the limits established by any applicable law, rule, regulation, code or ordinance of the City of Huntsville, Alabama."

(19) Section 6104.2 is revised to read as follows:

"Maximum capacity within established limits. Within the limits established by any applicable law, rule, regulation, code or ordinance of the City of Huntsville, Alabama, restricting the storage of liquefied petroleum gas for the protection of heavily populated or congested areas, the aggregate capacity of any one installation shall not exceed a water capacity of 2,000 gallons (7570L).

Exception: In particular installations, this capacity limit shall be determined by the fire code official, after consideration of special features such as topographical conditions, nature of occupancy, and proximity to buildings, capacity of proposed LP-gas containers, degree of fire protection to be provided and capabilities of the local fire department."

save and except such portions as are deleted, modified or omitted in this section 13-31, of which code not less than three copies have been and are now filed in the office of the city clerk-treasurer, and the code is adopted and incorporated as fully as if set at length in this section

13-31; and the provisions of such code shall be controlling within the corporate limits of the city.

(b) The foregoing code adopted in subsection (a) of this section 13-31 shall be known and referred to as the Fire Code of the City of Huntsville, Alabama ("Huntsville Fire Code").

(c) Persons who shall violate a provision of the Huntsville Fire Code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directives of the fire marshal, or of a permit or certificate used under the provisions of the Huntsville Fire Code, shall be guilty of a violation of this section 13-31 and shall be subject to the general penalty provisions as set forth in section 1-7 of this Code of Ordinances, including without limitation subsection (e) of said section 1-7 concerning continuing violations, which provisions of section 1-7 are specifically incorporated herein by reference as if fully set forth.
(Ord. No. 05-363, § 1, 6-9-2005; Ord. No. 18-491, § 1, 7-12-2018; Ord. No. 21-751, § 1, 10-14-2021, eff. 1-1-2022)

Sec. 13-32. Board of appeals.

(a) Subject to subsection (b) of this section 13-32, the board of examinations and appeals for construction industries (hereafter referred to as "board of appeals"), as established in chapter 7, article II, division III of this Code of Ordinances, shall hear and decide appeals of orders, decisions or determinations made relative to the application and interpretation of the Huntsville Fire Codes.

(b) Upon proper application, the board of appeals shall have the following authority and powers:

(1) To hear and decide appeals based on a claim that the intent of the Huntsville

Fire Codes or the rules legally adopted thereunder have been incorrectly interpreted;

(2) To hear and decide appeals based on a claim that the provisions of the Huntsville Fire Codes do not fully apply;

(3) To hear and decide appeals based on a claim that an equivalent method of protection or safety is available and is more appropriate given the particular circumstances; and

(4) Upon proper request, to grant a variance from the provisions of the Huntsville Fire Codes which may, at the time, have been adopted by the city when the literal enforcement of these codes will create an unnecessary hardship on the property owner, provided that in the opinion of the board no hazard of life or property is created and the intent of the code is substantially adhered to. Any variance granted shall become invalid six months after issuance unless a permit to perform the work authorized by the variance has been issued. In granting any variance, the board may prescribe appropriate conditions and safeguards in conformity with this chapter. Violations of such conditions and safeguards, when made a part of the terms under which the variance is granted, shall be deemed a violation of this chapter and punishable as provided in section 1-7 of this Code of Ordinances.

(Ord. No. 05-363, § 1, 6-9-2005)

Sec. 13-33. Fireworks.

(a) *Definitions.* When used in this section, the following terms shall have the meanings ascribed to them in this subsection, unless the context clearly indicated a different meaning:

APA Standard 87-1A or *APA Standard* means the 2018 American Pyrotechnic Association standard for the construction, classification, approval, and transportation of consumer fireworks.

Fireworks means any composition or device prepared for the purpose of producing a visible or an audible effect for entertainment purposes by combustion, deflagration, explosion, or detonation, which includes, but is not limited to, "Fireworks, 1.3G" and "Fireworks, 1.4G", as

those terms are defined in the Huntsville Fire Code. The term does not include toy paper pistol caps which contain less than twenty-five hundredths' grains of explosive compounds, model rockets, emergency signal flares, matches, trick matches, and cigarette loads.

Consumer fireworks means "Fireworks, 1.4G" as that term is defined by the Huntsville Fire Code.

Novelties or *novelty device* means a device that meets, where applicable, the general requirements of APA Standard Section 2.4 and the specific requirements of APA Standard Section 3.2.1.

Sell means to exchange for money, including barter, exchange, gift, or offer thereof, and each transaction made by any person, whether as principal proprietor, salesperson, agent, association, copartnership, or one or more individuals.

Sparkling devices means consumer fireworks that are ground-based or hand-held devices that produce a shower of white, gold, or colored sparks as their primary pyrotechnic effect. Additional effects may include a colored flame, an audible crackling effect, an audible whistle effect, and smoke. These devices do not rise into the air, do not fire inserts or projectiles into the air, and do not explode or produce a report (a mild audible crackling-type effect is not considered to be a report.) Ground-based or hand-held devices that produce a cloud of smoke as their sole pyrotechnic effect are also included in this category.

(b) The possession, manufacture, storage, sale, handling, and use of fireworks are hereby prohibited, with the following exceptions:

(1) The storage and handling of fireworks as allowed in Section 5604 of the Huntsville Fire Code.

(2) The manufacture, assembly and testing of fireworks as allowed in Section 5605 of the Huntsville Fire Code.

(3) The use of fireworks for fireworks displays as allowed in Section 5608 of the Huntsville Fire Code.

(4) The possession, storage, sale, handling, and use of the specific types of fireworks that are expressly allowed by subsections (c) and (d) of this section, provided that such fireworks and facilities comply with the 2006 edition of NFPA 1124, CPSC 16 CFR Parts 1500 and 9 CFR Parts 100-185, as may be applicable for novelties and consumer fireworks.

(c) Novelties. Subject to subsection (e), the possession, storage, sale, handling, and use of novelties is expressly allowed inside the city limits.

(d) Sparkling devices. Subject to subsection (e), the possession, storage, sale, handling, and use of the following types of sparkling devices, and no other, are expressly allowed inside the city limits:

(1) Fountain, cone that meets, where applicable, the general requirements of APA Standard Section 2.4, the specific requirements of APA Standard Section 3.2.2.8, and the specific requirements of APA Standard Section 3.2.4;

(2) Fountain, cylindrical that meets, where applicable, the general requirements of APA Standard Section 2.4, the specific requirements of APA Standard Section 3.2.2.9, and the specific requirements of APA Standard Section 3.2.4;

(3) Ground spinner that meets, where applicable, the general requirements of APA Standard Section 2.4, the specific requirements of APA Standard Section 3.2.2.11, provided, however, no reports are allowed, and the specific requirements of APA Standard Section 3.2.4;

(4) Illuminating torch that meets, where applicable, the general requirements of APA Standard Section 2.4, the specific requirements of APA Standard Section 3.2.2.12, and the specific requirements of APA Standard Section 3.2.4; and

(5) Wheel that meets, where applicable, the general requirements of APA Standard Section 2.4, the specific requirements of

APA Standard Section 3.2.2.16, and the specific requirements of APA Standard Section 3.2.4.

(e) The fire chief may, at any time and from time to time, suspend the outdoor use of novelties and sparkling devices inside the city limits where he/she determines, in his/her sole discretion, that drought conditions, or other weather-related conditions, warrant suspension due to an increase in the likelihood of fires. It shall be unlawful to use novelties and sparkling devices during any such suspension period after a verbal warning to cease from fire or law enforcement officers, and shall subject the novelties and sparkling devices to seizure and destruction in accordance with subsection (g) below.

(f) Prohibition. No person under 18 years of age shall discharge, ignite, or explode novelties or sparkling devices unless in the company of a person of at least 18 years of age.

(g) Fireworks possessed, manufactured, stored, sold, handled, or used in violation of this section shall be subject to seizure and destruction by the fire chief or his/her designees or subordinates.

(h) Notwithstanding any provision of this section or the Huntsville Fire Code to the contrary, in no event shall any person be allowed to possess, manufacture, store, sell, handle, or use fireworks in violation of applicable state law.

(i) The penalty provisions of section 1-7 of this Code shall apply to a violation of this section.
(Ord. No. 05-504, § 1, 6-23-2005; Ord. No. 22-470, § 1, 6-23-2022; Ord. No. 23-454, § 1, 6-8-2023)

Secs. 13-34—13-60. Reserved.

ARTICLE III. OPEN BURNING*

DIVISION 1. GENERALLY

Sec. 13-61. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Contractor means the primary contractor/builder or subcontractor for a particular construction site for which a building permit has been issued.

Director or *manager* means the manager of the natural resources and environmental management division or in his absence, his designated representative.

Fire extinguishing equipment means an approved ten-pound ABC fire extinguisher or any other equipment approved in writing in advance by the fire marshal.

Fire marshal means the officer or other designated authority or their duly authorized representative charged with the administration and enforcement of the fire prevention code. He or his duly authorized representative is charged with the responsibility for investigation of all fires that occur within the city.

Open burning means the burning of any matter in such a manner that the products of combustion resulting from the burning are emitted directly into the ambient air without passing through an adequate stack, duct or chimney.
(Ord. No. 92-672, § 2, 11-12-1992)

Cross reference—Definitions generally, § 1-2.

Sec. 13-62. Purpose.

This article is enacted to protect, preserve and promote the safety and welfare of the citizens of the city through the reduction, control and prevention of open burning.
(Ord. No. 92-672, § 1, 11-12-1992)

Sec. 13-63. Method of enforcement.

The director and any person acting under his supervision, the fire marshal and any person acting under his supervision, and any law enforcement officer is authorized to issue citations to appear in municipal court to answer charges of violations of any of the provisions of this article.
(Ord. No. 92-672, § 8, 11-12-1992)

*__State law reference—__Open burning, Code of Ala. 1975, § 9-13-11.

Sec. 13-64. Penalties.

Any person who violates or fails or refuses to obey or comply with any provision of this article shall upon conviction be punished, in addition to such other punishment, including a term of community service, as may be provided by the court, by minimum fines and penalties, for a first conviction of $100.00 or by imprisonment for not more than ten days. For conviction of a second offense committed within one year after the date of the first offense, such person shall be punished by a fine of $200.00 or by imprisonment for not more than 30 days or by both such fine and imprisonment. For conviction of a third or subsequent offense committed within one year after the date of the first offense, such person shall be punished by a fine of $500.00 or by imprisonment for not more than three months or by both such fine and imprisonment.

(Ord. No. 92-672, § 7, 11-12-1992; Ord. No. 97-813, § 1, 11-20-1997)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 13-65. Exemptions.

Nothing contained in this article shall be construed as applying to the regular military or naval forces of the United States, the duly authorized militia of the state, or the police and fire departments in the proper performance of their duty.
(Ord. No. 92-672, § 9, 11-12-1992)

Sec. 13-66. Exceptions based on undue hardship.

Applications for a permit for exception from the standards or requirements designated in this article may, on the basis of undue hardship, be made to the director. Any permit granted under this article shall contain all conditions upon which the permit has been granted and shall specify a reasonable time the permit shall be effective. The director may grant the exception as applied for only if the applicant represents and the director finds that open burning as permitted will not violate recognized safety standards, that no other reasonable alternative is available to the applicant, and that the burning can be conducted in such a manner as to be consistent with the purposes of this article. Upon the issuance of any exception permit, the director may prescribe any reasonable conditions or requirements he deems necessary to minimize adverse effects upon the community.
(Ord. No. 92-672, § 6, 11-12-1992)

Sec. 13-67. Compliance.

No person shall cause, suffer, allow or permit open burning except as specifically permitted by this article.
(Ord. No. 92-672, § 3, 11-12-1992)

Sec. 13-68. Exceptions to prohibition.

(a) Open burning may be conducted, subject to the limitations as spelled out in the open burning permit which is issued upon approval by the director. This grant of exception shall in no way relieve the person responsible for such open burning from the consequences of or the damages or injuries resulting from such burning. The director shall issue no open burning permits without the prior approval of the fire marshal or his designated representative. The fire marshal's approval shall be based upon his judgment as to the fire safety potential of the proposed open burning activity.

(1) Open burning of leaves and small tree limbs, less than three inches in diameter, at a residence where collection for such material is not available. The determination of availability will be made by the director. Burning of trees or limbs cut as a commercial service by tree surgeons, landscapers or other persons is prohibited.

(2) Open burning for the disposing of materials grown on that tract of land may be conducted provided the following conditions are met:

a. Burning is done using an air curtain destructor or other approved device, at suitable sites as approved by the director, when such device is operated in a manner satisfactory to the director, and with a valid open burning permit obtained from the director.

b. The burning will take place on days and hours designated by the director. Designated days of burning will always be tentative and will be regulated according to weather conditions.

(b) Open burning as specified below may be conducted, subject to the limitations as spelled out in the safety permit which is issued upon approval by the fire marshal. This grant of exception shall in no way relieve the person responsible for such open burning from the consequences of or the damages or injuries resulting from such burning.

(1) Ceremonial fires (such as school bonfires) when the fires are approved, ignited and extinguished by fire department personnel. Each school will be permitted one permit per year.

(2) Fires set between October 1 and April 30 for the purpose of providing warmth to

workers at construction sites for which a building permit has been issued, providing the following conditions are met:

a. The fire is contained in a noncombustible container not to exceed 55 U.S. gallons, with the opening covered by an ash screen.

b. Fire containers shall be located a minimum of 25 feet from any structure, tree or bush.

c. Fire containers shall be located a minimum of 25 feet from electrical lines and/or electrical service.

d. Only clean fuel not containing garbage, rubber, plastics, metals, shingles, treated lumber, or other hazardous materials is permitted.

e. Fire extinguishing equipment shall be located within five feet of the fire container.

f. Fires shall be extinguished when no worker is in attendance.

g. The contractor shall apply in advance for a safety permit issued in his name from the fire marshal and shall be held liable for all permit violations on the burn site.

(c) Open burning activities as specified below may be conducted without either an open burning permit or a safety permit. Notification of intent to conduct such activity as specified below shall be made to the director 24 hours prior to the time the open burning activity is to begin. The person conducting any of the following open burning activities shall be responsible for the consequences of such activities and all damages or injuries resulting from such open burning:

(1) Fires set for the training and instruction of public or private firefighting personnel, provided that all requirements of the asbestos demolition and renovation NESHAP (National Emission Standard for Hazardous Air Pollutants), codified at 40 CFR Part 60 Subpart M, are met.

(2) Fires set by or at the direction of responsible fire control agencies for the prevention, elimination or reduction of a fire hazard.

(3) Smokeless flares or safety flares for the combustion of waste gases.

(4) Fires used for agricultural, horticultural and silvicultural purposes, when specifically recommended by the state extension service or the state forestry commission, provided such fires are conducted only in situations where the actual burning is at least 1,000 feet from the closest occupied building.

(5) Fires used to destroy pests, germs, dead animals, etc., when the open burning is being conducted in accordance with or under the direct supervision of personnel of the local or state health department.

(d) No open burning permit, safety permit or notification is required for fires used for cooking of food, including barbecues and outdoor fireplaces. Only clean fuel not containing garbage, rubber, plastics or other refuse is permitted. In multifamily occupancies, grills, barbecues, heating appliances, and portable outdoor fire pits shall not be stored, used, or kindled on any balcony or under any overhanging portion or within ten feet of any structure.

(e) Portable outdoor fire pits used at one- and two-family dwellings are allowed as long as they are used in accordance with the manufacturer's instructions.

(1) Portable outdoor fire pits shall be used only on brick, concrete, stone, or other masonry surfaces.

(2) Portable outdoor fire pits shall be a minimum ten feet away from building, structures, any flammable items, vehicles, and property lines. Portable outdoor fireplaces shall not be used under any trees, electric lines, or trellises.

(3) Portable outdoor fire pits shall be equipped from the manufacturer with an ash screen. Only clean fuel may be used not contain-

ing any garbage, rubber, plastics, treated lumber, or any other hazardous materials.

(4) Portable outdoor fire pits shall not be overload beyond their capacity.

(5) Portable outdoor fire pits shall not be used during windy conditions or periods where there is a "no burn order" in effect.

(6) Portable outdoor fire pits shall be constantly attended while in use and there shall be an available means available to extinguish the fire either by a portable fire extinguisher or water.

(Ord. No. 92-672, § 4, 11-12-1992; Ord. No. 07-569, § 1, 7-26-2007; Ord. No. 18-491, § 2, 7-12-2018)

Secs. 13-69—13-80. Reserved.

DIVISION 2. OPEN BURNING PERMITS AND SAFETY PERMITS

Sec. 13-81. Permits.

Open burning permits and safety permits may be issued subject to specific conditions, consistent with standards provided in this division, in which case the conditions shall be specified in writing. The holder of a permit shall comply with conditions contained in such permit as well as all applicable provisions of this article.
(Ord. No. 92-672, § 5(A), 11-12-1992)

Sec. 13-82. Permit applications.

(a) Applications for open burning permits shall be in the form prescribed by the director and shall give all the information necessary to enable the director to make the determinations required in this division. Applications should be submitted a minimum of three days prior to the requested burn date.

(b) Application for safety permits shall be in the form prescribed by the fire marshal and shall give all the information necessary to enable the fire marshal to make the determination required in this division. Applications shall be submitted a reasonable time in advance of the time requested for burning.
(Ord. No. 92-672, § 5(B), 11-12-1992)

Sec. 13-83. Action on application.

(a) The director shall act, within a reasonable time, on an application for an open burning permit and shall notify the applicant in writing of its approval, conditional approval or denial. The director shall not issue an open burning permit for any open burning activity subject to an open burning prohibition imposed by the Alabama Forestry Commission or the Alabama Department of Environmental Management during such time that the open burning prohibition is in effect.

(b) The fire marshal shall act, within a reasonable time, on an application for a safety permit and shall notify the applicant in writing of its approval, conditional approval or denial. The fire marshal shall not issue a safety permit for any open burning activity subject to an open burning prohibition imposed by the Alabama Forestry Commission or the Alabama Department of Environmental Management during such time that the open burning prohibition is in effect.
(Ord. No. 92-672, § 5(C), 11-12-1992; Ord. No. 07-569, § 1, 7-26-2007)

Sec. 13-84. Permit fees.

(a) Open burning permit fees in the amount of $250.00 per permit shall be paid at the time of application. Fees shall be made payable to the city and shall be nonrefundable.

(b) Safety permits shall be issued at no charge to the applicant.
(Ord. No. 92-672, § 5(D), 11-12-1992; Ord. No. 07-569, § 1, 7-26-2007; Ord. No. 22-988, § 1, 12-15-2022)

Sec. 13-85. Transfer.

Open burning permits and safety permits shall not be transferable whether by operation of law or otherwise, either from one location to another, or from one person to another.
(Ord. No. 92-672, § 5(F), 11-12-1992)

Sec. 13-86. Expiration of permit.

Open burning permits and safety permits shall expire on the date specified on the face of the permit. In no event, however, may an open burning permit be issued which has an expiration date of longer than ten days from the burn start date. Notwithstanding the expiration date specified on the face of the permit, an open burning permit or safety permit shall expire immediately upon imposition of an open burning prohibition by the Alabama Forestry Commission or the Alabama Department of Environmental Management that applies to the open burning activity authorized by the open burning permit or safety permit.
(Ord. No. 92-672, § 5(G), 11-12-1992; Ord. No. 07-569, § 1, 7-26-2007)

Sec. 13-87. Display of permits.

Permits shall be displayed and available for inspection at the open burning site by any and all persons who may request to see the permits.
(Ord. No. 92-672, § 5(H), 11-12-1992)

Sec. 13-88. Revocation of permit.

(a) *Open burning permits.* Any open burning permit granted by the director may be revoked, after notice and hearing, for any of the following causes:

(1) Failure to comply with the provisions of this article.

(2) Failure to comply with any conditions of the open burning permit.

(3) For any other cause if, in the judgment of the director, continuance of the permit is not consistent with the purposes of this article.

(b) *Safety permits.* Any safety permit granted by the fire marshal may be revoked for any of the following causes:

(1) Failure to comply with the provisions of this article.

(2) Failure to comply with any conditions of the safety permit.

(3) For any other cause if, in the judgment of the fire marshal, continuance of the permit is not consistent with the purposes of this article.

(Ord. No. 92-672, § 5(E), 11-12-1992)

Chapter 14

HEALTH AND SANITATION*

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*__Cross references—__Animals, ch. 5; buildings and building regulations, ch. 7; environmental management, ch. 12; solid waste, ch. 22; utilities, ch. 26.

__State law references—__Health powers of city, Code of Ala. 1975, § 11-47-130 et seq.; health and environment, Code of Ala. 1975, § 22-1-1 et seq.

ARTICLE I. IN GENERAL

Sec. 14-1. Premises to be kept clean.

It shall be unlawful for any person in the city to allow the house or building in which people live or are employed or the premises around the house or the alley or street abutting the premises to become or remain in an unsanitary or unsightly condition.
(Code 1982, § 12-1)

Sec. 14-2. Right of entry of health officer.

The health officer or his duly appointed assistant shall have the right to enter any house or any premises to ascertain whether or not conditions are sanitary, and any interference with the performance of this duty either by act or words of intimidation on the part of the owner or occupant shall be unlawful and punished as a misdemeanor.
(Code 1982, § 12-2)

Sec. 14-3. Spitting.

It shall be unlawful for any person to spit upon the sidewalks or on floors of churches, public buildings or other public places in the city.
(Code 1982, § 12-7)

Sec. 14-4. Weed lien and unsafe building demolition assessment.

Whenever the city avails itself of the collection procedures provided in sections 11-40-30 et seq., and 11-67-60 et seq., of the Code of Alabama, to recover the costs of (1) abating a weed nuisance, or (2) demolishing an unsafe structure, the following costs shall be imposed for the benefit of the Madison County Tax Collector as a cost of collection, and shall be collected and withheld by the Madison County Tax Collector at such time as the applicable weed lien or unsafe building demolition assessment is collected by the Madison County Tax Collector.

Type of lien or assessment	*Tax Collector Cost*
Weed lien	$ 50.00
Unsafe building demolition assessment	100.00

(Ord. No. 05-657, 8-23-2005)

Editor's note—Ord. No. 05-657, adopted Aug. 23, 2005, did not expressly amend this Code; hence inclusion of its provisions as § 14-4 herein was at the editor's discretion.

Cross references—Unsafe residential buildings, § 7-352; unsafe building abatement code, § 7-591 et seq.; enforcement of weed and overgrown grass provisions, § 27-96.

Secs. 14-5—14-30. Reserved.

ARTICLE II. MOSQUITO CONTROL

Sec. 14-31. Powers of health officer in enforcement of article; failure to comply with article.

For the purpose of enforcing the provisions of this article, the health officer or his accredited agent under his authority may at all reasonable times enter in and upon any premises within his jurisdiction. It shall be unlawful for any person charged with any of the duties imposed by this article to fail within the time designated by this article, or within the time stated in the notice of the health officer, as the case may be, to perform such duties or to carry out the measures necessary to the satisfaction of this article.
(Code 1982, § 12-111)

Sec. 14-32. Standing water and high grass, shrubbery, weeds prohibited.

It shall be unlawful for any person to have, keep, maintain, cause or permit within the corporate limits of the city any collection of standing water or flowing water in which mosquitoes breed or are likely to breed unless such collection of water is treated so as to effectually prevent such breeding, or any high grass, shrubbery or weeds in which mosquitoes might harbor or shelter.
(Code 1982, § 12-112)

Sec. 14-33. Collections of water prohibited by article.

Collections of water prohibited by this article shall include those contained in ditches, pools, ponds, cisterns, tanks, shallow wells, barrels, troughs, except horse or watering troughs in

frequent use, urns, cans, boxes, bottles, tubs, buckets, defective house-roof gutters, tanks of flush toilets or other similar water containers.
(Code 1982, § 12-113)

Sec. 14-34. Methods of treating to prevent mosquito breeding.

The methods of treatment of any collection of water prohibited by this article shall be approved by the health officer and may be one or more of the following:

(1) Screenings with wire netting of at least 16 meshes to the inch each way or with any other material that will prevent the ingress or egress of mosquitoes.

(2) Complete emptying every seven days of unscreened containers, together with their thorough drying and cleaning.

(3) Using a larvicide approved and applied under the direction of the health officer.

(4) Covering completely the surface of the water with kerosene, petroleum or paraffine oil once in seven days.

(5) Cleaning and keeping sufficiently free of vegetation and other obstruction and stocking with mosquito-destroying fish.

(6) Filling and draining to the satisfaction of the health officer or his accredited representative.

(7) Proper disposal by removal and destruction of tin cans, boxes, broken or empty bottles and similar articles likely to hold water.

(Code 1982, § 12-114)

Sec. 14-35. Prevention of breeding after notice.

The natural presence of mosquito larvae in standing or running water shall be evidence that mosquitoes are breeding there; and failure to prevent such breeding within 24 hours after notice by the health officer, his authorized agent or representative, shall be deemed a violation of this article.
(Code 1982, § 12-115)

Sec. 14-36. Cutting grass, shrubbery, weeds.

Grass, shrubbery and weeds must be kept cut close to prevent harboring or sheltering mosquitoes as well as to disclose any tin cans, bottles or any other water receptacles that might be lying hidden there.
(Code 1982, § 12-116)

Cross reference—Vegetation, ch. 27.

Secs. 14-37—14-60. Reserved.

ARTICLE III. RATPROOFING*

Sec. 14-61. Failure to abate or remove foulness.

It shall be unlawful for any person, whether owner or tenant, to fail promptly to remove or abate any source of foulness, or cause of sickness hazardous to public health, upon order of the health officer or his duly authorized representative.
(Code 1982, § 12-131)

Sec. 14-62. Garbage to be stored in ratproof containers.

All garbage, decaying vegetables or similar substances shall be stored in containers with tightfitting lids or in containers that are ratproof.
(Code 1982, § 12-132)

Sec. 14-63. Business houses to be ratproofed, freed of rats.

All business houses where food is stored, restaurants, hotels and other places where food is served, all slaughterhouses, all public structures in which foodstuffs may be stored, and all other business houses where rats may be harbored shall be kept and maintained in a ratfree condition. Such structures shall be ratproofed in order to prevent the entry of rats into and upon the premises. The keeping or maintaining of such houses or structures in other than ratproof condition is declared to be a nuisance.
(Code 1982, § 12-133)

*__State law reference—__Structural pest control permits, Code of Ala. 1975, § 2-28-1 et seq.

Sec. 14-64. Inspection of buildings and premises.

The health officer or his duly authorized representative is empowered to make such interior or exterior inspection of premises or buildings as, in his opinion, may be necessary to determine that full compliance with this article has been made.
(Code 1982, § 12-134)

Secs. 14-65—14-90. Reserved.

ARTICLE IV. SMOKING IN PUBLIC PLACES

Sec. 14-91. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Employee means any person who is employed by an employer for compensation or profit.

Employer means any person, partnership, corporation, association, or other entity, that employs one or more persons.

Place of employment means any area under the control of an employer to which employees have access during the course of employment, including, but not limited to work areas, employee lounges, employee restrooms, conference rooms and employee cafeterias. A private residence is not a place of employment.

Public or *public place* means any area that is used by the general public, or that is a place of business or employment, or that is a public meeting area, and includes, but is not limited to: stores, offices and other commercial establishments, restaurants, public and private educational institutions, health care facilities, nursery and convalescent homes, government buildings, public transportation vehicles, parks, arenas, stadiums, and other areas as described in section 14-95.

Smoking or *smoke* includes the carrying, holding, or possession of lighted smoking materials in any form, including but not limited to, the possession of lighted cigarettes, cigars, pipes, or any other tobacco products.
(Ord. No. 89-89, § 18-500, 3-21-1989; Ord. No. 93-112, 3-11-1993; Ord. No. 05-713, § 1, 8-23-2005)

Cross reference—Definitions generally, § 1-2.

Sec. 14-92. Penalty.

(a) Any person who willfully smokes in an area where smoking is prohibited under this article; or any business proprietor or person in charge of a public place who fails or refuses to designate smoking and nonsmoking areas or facilities as required in this article; or, who being asked to do so fails or refuses to enforce the designations; or any employer who fails or refuses to adopt and implement a written smoking policy for the workplace which shall reasonably accommodate, insofar as possible as provided in this article, the preferences of smoking and nonsmoking employees shall be guilty of an offense and shall be subject to punishment by a fine of not less that $1.00 nor more than $500.00 for each such offense. Each day any violation of this article shall continue shall constitute a separate offense.

(b) In addition to the fines established by this section, the city council shall be authorized to suspend or revoke any business license or permit issued by the city for repeated violations of this article involving the licensed premises.
(Ord. No. 89-89, § 18-507, 3-21-1989; Ord. No. 05-713, § 2, 8-23-2005)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 14-93. Noncompliance with law.

Nothing in this article excuses noncompliance with any federal or state law, other city ordinance, or any rule or regulation which prohibits smoking.
(Ord. No. 89-89, § 18-508(a), 3-21-1989)

Sec. 14-94. Enforcement.

The provisions of this article are enforceable by any duly sworn police officer employed by the city,

the county health officer or his duly authorized representative, or as otherwise allowed by law for prosecution of offenses.

Notice of the provisions of this article shall be given to all applicants for a business license in the city.
(Ord. No. 89-89, § 18-506, 3-21-1989; Ord. No. 05-713, § 3, 8-23-2005)

Sec. 14-95. Offenses.

Except as provided in section 14-96, smoking or the use of any lighted tobacco product is prohibited in all public places, including, but not limited to, the following:

(1) Any commercial establishment, including, but not limited to, retail stores, restaurants, banks, office buildings and offices;

(2) Any vehicle of public transportation, including but not limited to, local trains, buses, taxicabs and limousines;

(3) Libraries, schools or other educational facilities, museums, auditoriums and art galleries;

(4) Any public health care facilities, health clinics or ambulatory care facilities, including, but not limited to, laboratories associated with the rendition of health care treatment, hospitals, rest homes, doctors' offices and dentists' offices;

(5) Any building, facility, or automotive vehicle owned, operated or controlled by the city;

(6) Any place of entertainment or recreation, including but not limited to, ball fields or any other area established or constructed for the primary purpose of organized recreational or sporting events, stadiums, gymnasiums, theaters, concert halls, bingo halls, arenas and swimming pools;

(7) Any other enclosed area used by the public or serving as a place of work.

(Ord. No. 05-713, § 4, 8-23-2005)

Editor's note—Ord. No. 05-713, § 4, adopted Aug. 23, 2005, amended former § 14-95 of the Code in its entirety. Prior to amendment, § 14-95 pertained to exceptions and derived from Ord. No. 89-89, § 18-502, adopted March 21, 1989; and Ord. No. 93-112, § 1, adopted March 11, 1993.

Sec. 14-96. Exceptions.

Section 14-95 and the restrictions imposed therein shall not apply to:

(1) An entire room or hall which is used for private social functions, provided that the event is under the control of the sponsor of the function and not of the proprietor or person in charge of the establishment or hall;

(2) Private clubs or organizations to which special membership is required;

(3) A restaurant or class 3 or 4 lounge (as those terms are defined in section 3-131 of this Code) clearly designated by the owner or proprietor as smoking, as provided in section 14-98. Any restaurant or class 3 or 4 lounge not clearly designated by the owner or proprietor as smoking, as provided in section 14-98, shall be subject to the prohibition against smoking or the use of lighted tobacco products provided in section 14-95;

(4) A private, enclosed office if all persons present consent and if the employer's policy permits smoking in such an area; this exception shall not be construed to permit smoking in the reception areas, lobbies, hallways, and other common areas in offices or commercial facilities;

(5) Limousines where the driver and all passengers affirmatively consent to smoking in such vehicle;

(6) Performers upon the stage, provided that the smoking is part of a theatrical production;

(7) A tobacco specialty retail shop;

(8) Hotel and motel rooms rented to guests, except for those rooms designated by the hotels and motels as "no-smoking" rooms.

(Ord. No. 05-713, § 5, 8-23-2005)

Editor's note—Ord. No. 05-713, § 5, adopted Aug. 23, 2005, amended former § 14-96 of the Code in its entirety. Prior to amendment, § 14-96 pertained to offenses and derived from Ord. No. 89-89, § 18-501, adopted March 21, 1989.

Sec. 14-97. Restaurants and class 3 or 4 lounges.

(a) It shall be the responsibility of the owner of a restaurant or Class 3 or 4 lounge to designate his/her establishment as either smoking or non-smoking in accordance with section 14-98.

(b) For establishments designated as non-smoking, no smoking by any persons (employees or patrons) at anytime will be allowed in any part of the enclosed or unenclosed areas of the establishment. In addition to the foregoing, no smoking will be allowed within 20 feet of any entrance to a non-smoking establishment. Following the effective date of the ordinance adopting this section, an establishment designated as non-smoking shall not be allowed to convert to a smoking establishment within the same license (calendar) year.

(c) For establishments designated as smoking, smoking by patrons shall be allowed throughout all areas generally occupied by patrons. No person under 19 years of age shall be admitted on the premises of an establishment designated as smoking as a patron or employee; and it shall be unlawful for the owner, business agent, manager or other person having control of any such establishment to admit any minor under 19 years of age to the premises as a patron or employee.

(d) A smoking establishment may be converted to a non-smoking establishment at any time subject to the provisions of this article governing non-smoking establishments.

(e) Smoking may be permitted in hotel, motel, inn, bed and breakfast, and lodging rooms that are rented to guests designated as "smoking rooms." A facility which offers such rooms for rent to guests may add additional language to the required signage (see section 14-98, subsection (1)) after "NO SMOKING" stating "lodging rooms are available for guests who smoke" in matching letters and signage.

(f) No public place within section 14-95, other than those places enumerated as exceptions under section 14-96, shall be designated as a smoking area in its entirety.

(Ord. No. 05-713, § 6, 8-23-2005)

Editor's note—Ord. No. 05-713, § 6, adopted Aug. 23, 2005, amended former § 14-97 of the Code in its entirety. Prior to amendment, § 14-97 pertained to designation of smoking areas and derived from Ord. No. 89-89, § 18-503, adopted March 21, 1989.

Sec. 14-98. Responsibility of proprietors.

The proprietor or other person having control of any area within sections 14-95 or 14-96 shall:

(1) Prominently post a sign clearly indicating the words "SMOKING" or "NO SMOKING", whichever may be appropriate, or the international "NO SMOKING" symbol consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a bar across it. The proprietor or other person having control of such building or public place shall clearly and conspicuously post such sign in every room, building or other areas where smoking is regulated by this article;

(2) No smoking signs shall be posted conspicuously in the entrance and lobby of every restaurant, theatre, auditorium, stadium, ball field, arena, concert hall, bingo hall, gymnasium, etc., stating that smoking is prohibited therein; and in the case of motion picture theatres such information shall be shown upon the screen prior to the showing of each feature motion picture.

(3) Request persons smoking or using tobacco products in violation of this article to stop or to leave.

(Ord. No. 89-89, § 18-504, 3-21-1989; Ord. No. 05-713, § 7, 8-23-2005)

Sec. 14-99. Regulation of smoking in the workplace.

(a) Each employer in the city shall implement and maintain a written smoking policy for its employees.

(b) The employer may implement a smoking policy which prohibits smoking in any place of employment of the employer.

(c) The employer may implement a smoking policy which allows for smoking in its place of employment; however, in situations where smok-

ers and nonsmokers must work in close proximity and nonsmokers will be exposed to smoke, the preferences of the nonsmoker shall prevail.

(d) An employer is not required by this provision to incur any expense for making structural or other physical modifications to accommodate the preferences of nonsmoking or smoking employees.

(e) The smoking policy shall be announced within three weeks of adoption to all employees working in the place of employment and posted conspicuously in all workplaces under the employer's control.

(f) No employer shall discharge or otherwise discriminate against any employee by reason of his insistence of his rights as provided in this section.
(Ord. No. 89-89, § 18-505, 3-21-1989; Ord. No. 91-92, 3-19-1991; Ord. No. 93-112, § 2, 3-11-1993)

Sec. 14-100. Regulation of smoking in municipal buildings and vehicles.

All smoking is prohibited in the following public places:

(1) Smoking is prohibited in all buildings and facilities owned, operated or controlled by the city or an agency of the city; and

(2) Smoking is prohibited in all automotive vehicles owned or operated by the city.

(Ord. No. 89-89, § 18-509, 3-21-1989; Ord. No. 93-112, § 3, 3-11-1993)

Cross reference—Traffic and vehicles, ch. 25.

Sec. 14-101. Regulation of smoking on property adjoining Huntsville Hospital.

(a) Smoking is prohibited on the following streets and sidewalks:

(1) Saint Clair Avenue (north and south sides) from Turner Street to Madison Street;

(2) Gallatin Street (east and west sides) from Saint Clair Avenue to Longwood Drive;

(3) Sivley Road (north and south sides) from Turner Street to Gallatin Street;

(4) Governors Drive (north side) from Montgomery Street to California Street;

(5) Turner Street (east side) from Sivley Road to Saint Clair Avenue;

(6) Montgomery Street (east and west sides) from Governors Drive to Sivley Road;

(7) Governors Drive (south side) from Harvard Road to Madison Street/Whitesburg Drive;

(8) California Street (east and west sides) from Governors Drive to Lowell Drive;

(9) Lowell Drive (north and south sides) from California Street to Franklin Street; and

(10) Franklin Street (east and west sides) from Governors Drive to Lowell Drive.

(b) This section shall not apply within moving motor vehicles.

(c) This section shall be in effect only upon Huntsville Hospital providing designated smoking areas at both Huntsville Hospital Main and Huntsville Hospital for Women and Children, and shall remain in effect only upon Huntsville Hospital maintaining designated smoking areas at the two inpatient facilities.
(Ord. No. 18-1136, § 1, 1-10-2019)

Secs. 14-102—14-129. Reserved.

ARTICLE V. SWIMMING POOLS

Sec. 14-130. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

City shall mean the City of Huntsville, Alabama.

City council shall mean the city council of the City of Huntsville, Alabama.

Clerk-treasurer shall mean the clerk-treasurer for the City of Huntsville, Alabama.

Code enforcement officer shall mean an officer or employee of the code enforcement section of community development.

Community development shall mean the community development division of the City of Huntsville.

Director shall mean the director of community development, or his agent.

Owner of property shall mean the legal titleholder, or lessee, or occupant of property, or the agent of the legal titleholder or lessee in charge, possession or control of the property.

Swimming pool shall mean a pool, tank, or container designed and intended for swimming whether constructed of plastic, fiberglass, gunite, concrete, plastic, or any other material.
(Ord. No. 04-619, § 1, 8-26-2004)

Sec. 14-131. Swimming pools to be kept free of public nuisances and hazards.

It shall be unlawful for any owner of property in the city to allow a swimming pool to become or remain in an unsightly, offensive, unwholesome, or hazardous condition which results in a nuisance to the general public welfare. Conditions which shall be considered a violation of this section shall include, but shall not be limited to:

(1) Signs that the pool has become a breeding ground for mosquitoes, snakes, and other vermin, insects and pests;

(2) Signs of algae and mold;

(3) Signs of stagnant, non-circulating, non-treated water;

(4) Signs that the pool presents a danger of accidental drowning over and above the danger inherently associated with the presence of a pool; and

(5) Signs that the pool has become unsightly and/or unsanitary due to abandonment or neglect.

(Ord. No. 04-619, § 1, 8-26-2004)

Sec. 14-132. Enforcement.

(a) The provisions of this article shall be enforced by the department of community development. When the director or his agent shall find that any provision of this article is being violated, he shall issue written notification to be served in person or by first class mail to the owner of the property upon which the violation exists, of such violation, indicating the nature of the violation, the necessary action required to correct the violation, and that such corrective action shall be taken within 14 days from the date of the notice.

(b) If the violation is not removed or abated within 14 days from the date of the written notification, the director may thereafter institute the following enforcement procedures:

(1) The director may cause the abatement of any violation under this article in the manner deemed most appropriate by the director. The director shall keep an account of the costs of abating the violation and shall render an itemized report in writing to the city council. The owner of the property upon which the violation exists shall be notified by first class mail at least five days in advance of the time fixed by the director for the city council to receive the report; and the owner of property may appear at that time and present objections, if any there be, to the report.

At the time fixed for receiving and considering the report, the city council shall hear the report, together with any objections which may be raised by any of the owners whose property is liable to be assessed for the work and thereupon make such modifications in the report as they deem necessary, after which by motion or resolution the report shall be confirmed. The amounts of the cost for abating a violation of this article mentioned in the report shall constitute special assessments against the land, and as thus made and confirmed shall constitute a lien on the property for the amount of such assessments. After

confirmation of the report, a copy shall be turned over to the clerk-treasurer, who is charged with the collection of assessments, whereupon it shall be the duty of the clerk-treasurer to charge the assessments against the respective lots and parcels of land for municipal purposes; and thereafter such amounts shall be collected at the same time and in the same manner as ordinary municipal assessments are collected and shall be subject to the same penalties and the same procedure under foreclosure and sale in case of delinquency as provided for ordinary municipal assessments.

(2) The director or any code enforcement officer working under his supervision may issue a citation to the owner of the property upon which the violation exists requiring the person to appear in municipal court to answer charges for the violation of this article. Such citation shall name the party charged, the address of the property where the alleged violation is located, and the nature of the offense or violation. It shall also apprise the person of the date, time and place at which to appear in court, the owner is subject to the same penalty as provided for violation of city ordinances in section 1-7 of the Code of Ordinances of the City of Huntsville, Alabama. Such citation, returnable to the municipal court shall be served on the owner of property by any code enforcement officer for the community development division, who shall forthwith appear and make oath as to the alleged offense before a magistrate of the municipal court. This provision for the issuance of a citation to municipal court shall not prevent any such officer from appearing before a municipal court magistrate and making oath as to the facts and applying for a summons or warrant with respect to any alleged offense, in lieu of issuing a citation.

(3) The director may institute both enforcement procedures set forth in subsections (1) and (2) of this section. The institution of one procedure does not preclude the subsequent or simultaneous institution of the other procedure, provided the criminal procedure is not used to collect any outstanding civil assessments against the subject property.

(Ord. No. 04-619, § 1, 8-26-2004)

Sec. 14-133. Satisfaction of liens.

Upon payment of the itemized accounts arising under this article, any liens or assessments filed under this article may be marked "Satisfied" and "Paid in Full" by the clerk-treasurer.

(Ord. No. 04-619, § 1, 8-26-2004)

Chapter 15

LICENSES AND TAXES*

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ARTICLE I. GENERAL PROVISIONS

Sec. 15-1. Definitions applicable to entire chapter.

(a) *Definitions.* The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administrative hearing officer means any individual acting in that capacity in accordance with the provisions of this chapter.

Alabama Department of Revenue or *ADOR* means the Alabama Rvenue, as created under the Code of Ala. 1975, § 40-2-1 et seq.

City means the city council or any one or more of its delegates and, where appropriate, the term "city" shall be substituted for terms in the corresponding state tax laws that are expressly incorporated into this chapter by reference and that refer to the taxing authority.

City attorney means the city attorney of the city or any one or more of his delegates or a private attorney designated by the city attorney, and, where appropriate, shall be substituted for the term "legal division" as such term appears in the corresponding state tax laws in reference to the legal division of the ADOR.

City clerk means the city clerk of the city or any one or more of his delegates, and, where appropriate, shall be substituted for the term "municipal clerk" as such term appears in Code of Ala. of 1975, § 11-51-191(e).

City finance department or *finance department* means the finance department of the city, and, where appropriate, shall be substituted for the term "department of revenue" or "department" or "license officer" as such term appears in the corresponding state tax laws. The term includes the city finance director.

City finance director or *finance director* means the finance director of the city or any one or more of his delegates, and, where appropriate, shall be substituted for the term "commissioner" as such term appears in the corresponding state tax laws.

Corresponding state tax laws means state tax laws that the city parallels, incorporates by reference into this chapter, or otherwise conforms to in the levy, assessment, collection, administration, or enforcement of the taxes levied or assessed under this chapter. The term does not include the rules of the Alabama Tax Tribunal nor the declaratory judgment, declaratory ruling or contested case provisions of the Alabama Administrative Procedure Act (Code of Ala. 1975, § 41-22-1 et seq.).

Delegate means any officer, agent, or employee of the city duly authorized, directly or indirectly, by one or more re-delegations of authority, to perform the function described in the context.

Include. The term include, or its derivations, does not limit a term to the specified example.

State tax laws means state tax statutes, and the regulations promulgated thereunder pursuant to the Alabama Administrative Procedures Act, as such laws now exist or are hereafter adopted, superseded, or amended from time to time. The term does not include the rules of the Alabama.

U.S.C. means the applicable title and section of the United States Code, as amended from time to time.

(b) *Meanings and rules of construction.* Where not otherwise defined in this chapter, including subsection (a) of this section, the words, terms, and phrases, when used in this chapter, shall have the meanings and rules of construction ascribed to them in section 1-2 of this Code, except where the context clearly indicates a different meaning.

(c) *Rule of plain meaning; aid to construction of words and provisions; city finance director's general power of interpretation and administration.* Unless this chapter or any federal, state, or local law, rule, or regulation requires a particular meaning for any word, term, or provision not expressly defined, all other words, terms, and provisions shall be interpreted and construed in accordance with the rule of plain meaning. Solely as a nonbinding aid to assist in interpreting and construing any word, term, or provision of this chapter, the city finance director may utilize any

reasonable source, including this Code, other ordinances and resolutions of the city council; prior interpretations, constructions, rules, regulations, policies, and rulings of the city finance director; the Code of Alabama; rules, regulations, interpretations, and rulings of the Alabama department of revenue; judicial decisions, rulings, and opinions; dictionaries and encyclopedias; rules, regulations, rulings, and promulgations of any department, agency, commission, authority, or bureau of the city, the state, or the United States. To the extent allowed by law and subject only to the executive, administrative, statutory, judicial, or legislative powers of other bodies or officials or as otherwise provided by law, the interpretation, construction, and administration by the city finance director of this chapter shall be final and binding.

(d) *Construction to allow maximum taxation.* The provisions of this chapter shall be construed to allow taxes, licenses, and other revenues to be assessed in the maximum amount allowed by the constitution and laws of the United States and the state, including those provisions relating to interstate commerce. All provisions of this chapter are intended to be consistent with the constitution and laws of the United States and the state. This rule of construction shall be applied as follows:

(1) The amount of tax, license, or other revenue due to the city shall be calculated in accordance with municipal law;

(2) If the constitution or laws of the United States or the state impose no limitation thereon, then the amount due shall be assessed solely in accordance with municipal law;

(3) If the constitution or laws of the United States or the state do impose a limitation on the amount due under municipal law, then the amount due shall be reduced only to the extent required by such federal or state limitation.

(e) *Automatic conformity to federal and state law.* To the extent this chapter may conflict with any valid superseding federal or state law, it shall automatically conform to such federal or state law. The city finance director is authorized to administer this chapter in accordance with such automatic conformity.

(Ord. No. 12-365, § 1, 5-24-2012; Ord. No. 25-388, § 1, 5-22-2025)

Sec. 15-2. Administration of chapter generally.

(a) *City finance director.* Except as may otherwise be provided, the city finance director shall, on behalf of the city, administer and enforce this chapter and any other ordinance or resolution relating to revenues, business licenses, and taxes. In addition to all other powers granted or implied by this chapter, law, ordinance, resolution, or job description, the city finance director shall, subject to applicable laws including this chapter, have the following powers and duties:

(1) To administer and enforce this chapter and any other ordinance or resolution relating to revenues, business licenses, and taxes.

(2) To seek the promulgation of, rules, regulations, policies, and rulings, as allowed by and in accordance with applicable law, in furtherance of the administration of this chapter and any other ordinance or resolution relating to revenues, business licenses, and taxes.

(3) To issue or enter all levies, notices, licenses, assessments, and other matters as may be provided by this chapter, and any other ordinance or resolution relating to revenues, business licenses, and taxes.

(4) To make determinations of the amounts owed or due under this chapter and any other ordinance or resolution relating to revenues, business licenses, and taxes.

(5) To authorize and approve promissory notes and other instruments of indebtedness for levies, assessments, and other business license or tax amounts due to the city.

(6) To suspend renewal of business licenses and issuances of new business licenses to

persons or taxpayers who owe business license or tax liabilities to the city or for which other reasonable cause exists.

(7) To audit and examine or cause to be audited or examined the records and books of taxpayers.

(8) To take all civil, administrative, and criminal actions in the enforcement of this chapter or any other ordinance or resolution relating to revenues, business licenses, and taxes, and the city finance director may require the assistance of and act through the city attorney. All remedies for enforcement and collection of licenses and taxes shall be cumulative, unless prohibited by applicable state law.

(9) To enter into and execute, on behalf of the city, exchange of information or other agreements with other taxing authorities, as may be allowed by state or federal law.

(10) To enter into and execute, on behalf of the city, installment agreements, and to alter, modify or terminate same; and to generally administer and enforce said installment agreements on behalf of the city according to the terms of the agreement.

(11) To the maximum extent allowed by state law, rule, or regulation, in addition to powers granted elsewhere in this chapter or otherwise, as related to licenses and taxes, the city finance director shall have all powers of administration, enforcement, assessment, collection, levy, seizure, and distraint, as provided by, authorized by, or parallel to all provisions of Code of Ala. 1975, tits. 11 and 40, as amended.

(b) *Delegation*. In the exercise of his powers or duties the city finance director may (1) delegate all or any of said duties or powers to other officers, agents, or employees of the city, which includes his subordinates, (2) request the advice, counsel, representation, or assistance of the city attorney, or his designees, or (3) be assisted by city law enforcement officers in the enforcement of this chapter. When reference is made in this chapter to the city finance director, it shall include his delegates.

(c) *City finance department*. The city finance department shall be responsible for processing appeals to the administrative hearing officer and otherwise performing in accordance with applicable law and shall be under the supervision of the city finance director, as appropriate, relative to any day to day operations of the office.

(d) *Administrative hearing officer.* The administrative hearing officer shall be responsible for scheduling and conducting hearings and deciding all appeals properly filed with the city finance director and to otherwise perform in accordance with applicable law.
(Ord. No. 12-365, § 1, 5-24-2012; Ord. No. 16-580, § 1, 8-25-2016; Ord. No. 25-388, § 2, 5-22-2025)

Sec. 15-3. Disclosure of information; exchange of information.

(a) The confidentiality of license and tax information, as such information is identified by applicable state tax laws, shall be maintained in accordance therewith and may be disclosed as allowed thereby, including disclosure, in accordance with applicable state tax laws, of information regarding taxes paid or taxes due and unpaid by the seller so as to comply with Code of Ala. 1975, §§ 40-23-25, 40-23-82, or 40-12-224.

(b) The city finance director is hereby authorized to exchange license and tax information with other municipal, state, and county tax agencies and officers in accordance with applicable state tax laws, including Code of Ala. 1975, § 40-2A-10(e), and Alabama department of revenue regulations promulgated pursuant thereto, subject to the confidentiality restrictions of this chapter and state law.

(c) Notwithstanding this section or section 15-76 or any other provision of law pertaining to taxpayer confidentiality, any violation of this section or section 15-76 or other provisions regarding taxpayer confidentiality shall not create any

cause of action, and the city does not waive any immunity or other defense provided by law pertaining to taxpayer confidentiality.
(Ord. No. 12-365, § 1, 5-24-2012; Ord. No. 25-388, § 2, 5-22-2025)

Sec. 15-4. Interest.

(a) Interest shall be added to any license or other tax levied under this chapter which is not paid by the due date, subject to Code of Ala. 1975, § 40-23-2.1. The interest shall be computed based on the underpayment rate established in Code of Ala. 1975, § 40-1-44(a).

(b) Interest shall be paid on any refund of license or other tax erroneously paid under this chapter. A license or other tax will be considered erroneously paid if it was paid as a result of any error, omission, or inaccurate advice by or on behalf of the city. The interest shall be computed at the same rate as provided in subsection (a) of this section for interest on underpayments.
(Ord. No. 12-365, § 1, 5-24-2012)

Sec. 15-5. Right of appeal to administrative hearing officer or circuit court.

(a) *Sales, use, rental and lodging tax appeals from final assessment or denied refund.*

(1) The city has elected to divest the Alabama Tax Tribunal of jurisdiction over appeals of final assessments or denied refunds in whole or part, of the sales, use, rental, and lodgings taxes levied or collected under article III of this chapter. Accordingly, the city has established an appeal process to an administrative hearing officer that functions in a manner similar to the procedures prescribed for appeals to the Alabama Tax Tribunal or to circuit court, as provided by the state statute.

(2) A taxpayer may appeal a final assessment, a denied refund, or a preliminary assessment that has been entered but not withdrawn or finalized within the prescribed five-year period, involving sales, use, rental, or lodgings taxes levied or assessed under article III of this chapter to either (i) the administrative hearing officer (see section 15-6(b) regarding commencing a proceeding with the administrative hearing officer) or (ii) to the circuit court of Madison County, Alabama, or to the circuit court of the county in which the taxpayer resides or has a principal place of business in Alabama, in accordance with the procedures and requirements applicable to such appeals provided in the Code of Ala. 1975, § 40-2A-7. For purposes of any appeal filed by a taxpayer pursuant to article III of this chapter, the term "department" means the finance department and the term "secretary of the department" means the city finance director, as used in the Code of Ala. 1975, § 40-2A-7.

(b) *License tax appeals from final assessment.* A taxpayer may appeal a final assessment involving a business license tax levied or assessed under article II, a liquor privilege license tax levied or assessed under article IV, a sale of liquid fuel privilege license tax levied or assessed under article V, and a tobacco privilege license fee levied or assessed under article VII, of this chapter, to either the administrative hearing officer or the circuit court in accordance with the applicable procedures and requirements provided in section 15-75 of this chapter.

(c) *License tax appeals from denied refund.* Appeals from the denial, in whole or part, of a petition for a refund of a business license tax levied or assessed under article II, a liquor privilege license tax levied or assessed under article IV, a sale of liquid fuel privilege license tax levied or assessed under article V, and a tobacco privilege license fee levied or assessed under article VII, of this chapter, shall be to the circuit court in accordance with section 15-75 of this chapter.
(Ord. No. 25-388, § 3, 5-22-2025)

Sec. 15-6. Administrative tax appeals.

(a) *Administrative hearing officer; process.*

(1) The purpose of this section is to establish an administrative hearing process for tax appeals made to the administrative hearing officer pursuant to this chapter,

and to establish the authority and responsibilities of the administrative hearing officer concerning such appeals. The provisions of this section should be liberally construed to provide for the fair, efficient, complete resolution of all matters in dispute. The administrative hearing process and the authority of the administrative hearing officer established in this section do not govern appeals from other actions taken under this chapter, including actions against business licenses, which are governed by other provisions of this chapter.

(2) The administrative hearing officer shall be an attorney in private practice licensed to practice law in the state that is impartial and reasonably knowledgeable of the relevant tax laws governing the taxes levied under this chapter. The city finance director shall maintain a list of qualified attorneys to select from to act as the administrative hearing officer in an appeal under this chapter. Nothing in this provision shall be construed to waive the conflict provisions of the Alabama Rules of Professional Conduct.

(3) The administrative hearing officer shall have the authority to schedule and conduct hearings on properly filed appeals to the administrative hearing officer from the action appealed from in accordance with this chapter and render decisions and orders relating thereto. The administrative hearing officer hearing the case may prescribe the procedure to be followed in a given circumstance if there is no controlling law, including this chapter and applicable state law, that applies.

(4) Except in cases involving the denial of a claim for refund and except as provided in the Alabama statute regarding jeopardy assessments (see Code of Ala. 1975, § 40-29-91), the taxpayer shall have the right to have his or her case heard by the administrative hearing officer prior to the payment of any of the amounts asserted as due by the tax administrator and prior to the posting of any bond.

(5) In the case of sales, use, rental, and lodging taxes if, with or after the filing of a timely notice of appeal, the taxpayer pays all or part of the tax or other amount in issue before the administrative hearing officer has rendered a decision, the administrative hearing officer shall treat the taxpayer's notice of appeal as a protest of a denial of a claim for refund of the amount so paid.

(6) The administrative hearing officer shall decide questions regarding the constitutionality of the application of state statutes, city laws, and ADOR regulations related to sales, use, rental, and lodging taxes, to the taxpayer, but shall not have the power to declare such laws and regulations facially unconstitutional. A taxpayer desiring to challenge the constitutionality of said laws on their face, at the taxpayer's election, may do so by one of the following methods:

a. Commence a declaratory action in the courts of Alabama with respect to the constitutional challenge and file a notice of appeal with the administrative hearing officer with respect to the remainder of the matter, which proceeding shall be stayed by the administrative hearing officer pending final resolution of the constitutional challenge.

b. File a notice of appeal with the administrative hearing officer with respect to issues other than the constitutional challenge, in which the taxpayer preserves the constitutional challenge until the entire matter, including the constitutional challenge and the facts related to the constitutional challenge, is presented to a court of competent jurisdiction.

c. Commence and simultaneously prosecute a declaratory action in the courts of Alabama with respect to the constitutional challenge and

a proceeding with the administrative hearing officer with respect to the remainder of the issues.

Where the taxpayer elects to file a notice of appeal with the administrative hearing officer as provided for in this subsection (a)(6), such filing of the notice of appeal shall be accomplished in accordance with subsection (b) of this section.

(b) *Pleadings.*

(1) A taxpayer may commence a proceeding with the administrative hearing officer by filing with the city finance department a notice of appeal: (i) of a final assessment protesting the city finance director's determination imposing a liability for a tax, penalty, or interest levied under this chapter; or (ii) from the finance director's denial of a refund involving a sales, use, rental, or lodgings tax levied under article III of this chapter; or (iii) of a preliminary assessment involving a sales, use, rental, or lodgings tax levied under article III of this chapter that has been entered but not withdrawn or finalized by the finance director within five years from the date of entry. The administrative hearing officer shall not have authority to hear appeals from the denial of a petition of refund involving a business license tax levied under article II, a liquor privilege license tax levied under article IV, a sale of liquid fuel privilege license tax levied under article V, and a tobacco privilege license fee levied under article VII, of this chapter.

(2) With regard to sales, use, rental and lodgings taxes, the notice of appeal shall be filed in accordance with the time periods required by the Code of Ala. 1975, § 40-2A-7. With regard to business license taxes, liquor privilege license taxes, sale of liquid fuel privilege license taxes, and tobacco privilege license fee, the notice of appeal shall be filed in accordance with the time periods required by the Code of Ala. 1975, § 11-51-191 and section 15-75 of this chapter.

(3) The notice of appeal filed by the taxpayer shall be filed with the city finance department and shall identify the final assessment, denied refund, or non-withdrawn or non-finalized preliminary assessment, which is the subject of the appeal, the position of the appealing party (taxpayer), the basis on which relief should be granted, and the relief sought. A notice of appeal that does not include all of the above information shall be sufficient to invoke the jurisdiction of the administrative hearing officer. The administrative hearing officer may require a taxpayer to file an amended notice of appeal if more information is deemed necessary.

(4) Upon receipt of the notice of appeal, the city finance director shall assign an administrative hearing officer to the case. Upon the administrative hearing officer's acceptance of the appeal, the finance director shall: (i) forward the original appeal to him; (ii) notify the city attorney in writing that an appeal has been filed, provide him with a copy of the appeal (with attachments) and the name of the administrative hearing officer accepting the assignment of the appeal; and (iii) mail a copy of such notification (except for the copy of the appeal), along with the name of the administrative hearing officer, to the taxpayer or its authorized representative. The city attorney, on behalf of the finance director, shall file his answer with the administrative hearing officer no later than 45 days after the city attorney's receipt of the notification from the city finance director that an appeal has been filed and the name of the administrative hearing officer accepting the appeal. Upon written request, the administrative hearing officer may grant up to 45 additional days to file an answer. The answer shall state the facts and the issues involved and the city finance director's position relating thereto. The

administrative hearing officer may require the city finance director to file an amended answer if more information is deemed necessary. The city finance director shall serve a copy on the taxpayer's representative or, if the taxpayer is not represented, on the taxpayer, and shall file proof of such service with the answer.

(5) The taxpayer may file a reply with the administrative hearing officer within 30 days after receipt of the answer. The taxpayer shall serve a copy on the city attorney and shall file proof of such service with the reply. When a reply has been filed, or, if no reply has been filed, then 30 days after the filing of the answer, the controversy shall be deemed at issue and will be scheduled for hearing.

(6) The notice of appeal and any subsequent pleadings submitted by the parties shall be deemed to conform to the evidence submitted by the parties. If an issue is raised or evidence is presented at a hearing that was not previously pled or raised, the opposing party may, at the discretion of the hearing officer, be allowed time to address the issue or evidence, either through brief, or at a subsequent hearing in the case, as fairness dictates.

(c) The administrative hearing officer shall have the authority to hold pre-hearing conferences and may enter a preliminary order directing one or more parties to take such action as deemed appropriate.

(d) *Fees; costs.* No filing fee shall be imposed on a taxpayer for an appeal filed with the administrative hearing officer.

(e) *Stipulation.* The parties to a proceeding shall stipulate all relevant and non-privileged matters to the fullest extent to which complete or qualified agreement can or fairly should be reached.

(f) *Hearings.*

(1) Proceedings before the administrative hearing officer shall be tried de novo.

(2) Except as set forth in this section or otherwise precluded by law, the administrative hearing officer may subpoena such witnesses, consistent with the procedure set out in the Code of Ala. 1975, § 40-2A-7, as may be requested by the taxpayer or the finance director, or as otherwise deemed by the administrative hearing officer to be important to the decision of the matter, and shall take evidence, conduct hearings, and issue final and preliminary orders. An appeal may be held in abeyance by the agreement of the parties or at the discretion of the administrative hearing officer or may be submitted for decision on a joint stipulation of facts without a hearing or as otherwise agreed by the parties. The administrative hearing officer, with or without a hearing, may dismiss any appeal or grant appropriate relief to any party, if a party refuses to comply with any applicable law concerning appeals before the administrative hearing officer or if a party refuses to comply with any preliminary order directing the party to take such action as deemed appropriate by the administrative hearing officer.

(3) Hearings shall not be open to the public and all pleadings and other materials filed with or submitted to the administrative hearing officer are not considered to be a public record of the city.

(4) The administrative hearing officer shall not be bound by the rules of evidence applicable to civil cases in the circuit courts of this state. The administrative hearing officer shall admit relevant evidence, including hearsay, if it is probative of a material fact in controversy. The administrative hearing officer shall exclude irrelevant and unduly repetitious evidence. Notwithstanding the foregoing, the rules of privilege recognized by law shall apply.

(5) Testimony may be given only on oath or affirmation.

(6) In the case of an issue of fact, the taxpayer shall have the burden of persuasion by a preponderance of the evidence in the record, except that the tax administrator shall have the burden of persuasion in the case of an assertion of fraud and in other cases provided by law. The final assessment shall be prima facie correct, and the burden of proof shall be on the taxpayer to prove the assessment is incorrect.

(7) Hearings involving taxpayers that appear pro se or that are represented by an authorized representative who is not an attorney shall be informal in nature. To ensure a fair hearing in such cases, the hearing officer may explain to the pro se taxpayer or the taxpayer's non-attorney authorized representative the general procedures to be followed in the hearing, the legal issue or issues involved in the case, and the facts that are generally relevant in deciding the legal issue or issues. The intent of this subsection is to ensure that all taxpayers will receive a fair hearing, and that taxpayers and their non-attorney authorized representative fully understand the legal issue or issues and the relevant facts involved in the case.

(8) All hearings shall be recorded by a qualified court reporter, and the proceedings shall be transcribed at the request of either the city finance director, the taxpayer, or the administrative hearing officer, with the expense of transcription being charged to the requesting party. The record of the proceedings or transcript thereof shall be maintained by the finance department for at least five years; provided, however, upon appeal to circuit court by either party, the administrative hearing officer shall thereafter prepare a record on appeal, which shall include the orders of the administrative hearing officer, the stenographic transcript of the hearing before the administrative hearing officer, the pleadings, and all exhibits and documents admitted into evidence.

(g) *Decisions.*

(1) The administrative hearing officer shall render his final decision in writing, including therein a concise statement of the facts found and the conclusions of law reached. The administrative hearing officer's decision, subject to law, shall grant such relief, invoke such remedies, and issue such orders as he or she deems appropriate to carry out his or her decision. The administrative hearing officer may enter a preliminary order directing one or more parties to take such action as deemed appropriate. The administrative hearing officer, after a hearing or after a case is otherwise submitted for decision, may issue an opinion and preliminary order, which shall include findings of fact and conclusions of law. The opinion and preliminary order may direct the finance director to recompute a taxpayer's liability or the amount of a refund due or for any party to take such action as specified in the preliminary order.

(2) The administrative hearing officer shall render his or her preliminary or final order, as applicable, no later than six months after submission of the last brief filed subsequent to completion of the hearing or, if briefs are not submitted, then no later than six months after completion of the hearing. The administrative hearing officer may extend the six-month period, for good cause, up to three additional months.

(3) If the administrative hearing officer fails to render either a preliminary order or a final order within the prescribed period, either party may institute a proceeding in the circuit court to compel the issuance of such decision.

(4) The administrative hearing officer's decision shall finally decide the matters in controversy, unless any party to the matter timely appeals the decision as provided for under applicable state law.

(5) Any party may apply for rehearing from any final order or opinion and preliminary

order of the administrative hearing officer; provided, however, the application must be filed with the administrative hearing officer within 15 days from the date of entry of such order. The application for rehearing shall specify the reasons and supporting arguments why such order is incorrect and should be reconsidered. The timely filing of an application for rehearing from a final order shall suspend the time period for filing an appeal to circuit court as provided in this chapter and under applicable state law. If an application for rehearing is timely filed, the administrative hearing officer shall thereafter issue a final or other order on rehearing, either with or without a hearing on the application, at the discretion of the administrative hearing officer. The time for filing a notice of appeal to circuit court shall begin anew on the date of entry of the final order on rehearing.

(6) The administrative hearing officer's final order shall have the same effect, and shall be enforced in the same manner, as a judgment of a circuit court of the state, unless altered or amended on appeal or rehearing.

(h) *Appeals.* Appeals from a decision of the administrative hearing officer shall be to the appropriate circuit court and shall follow the procedure for appeals from final or appealable orders of the Alabama Tax Tribunal as set out in Code Ala. Code 1975, § 40-2B-2(m). The appropriate circuit court for appeals shall be as follows:

(1) Any appeal by the city shall be filed with the circuit court of the county in which the taxpayer resides or has a principal place of business in Alabama.

(2) Any appeal by the taxpayer shall be filed with the circuit court of Madison County, Alabama, or with the circuit court of the county in which the taxpayer resides or has a principal place of business in Alabama.

(3) Notwithstanding paragraphs a. and b., if the taxpayer does not reside in Alabama or have a principal place of business in Alabama, any appeal by the taxpayer or the city shall be filed with the circuit court of Madison County, Alabama.

(i) *Representation.*

(1) Appearances in proceedings conducted by the administrative hearing officer may be by the taxpayer; by an attorney admitted to practice in this state, including an attorney who is a partner or member of, or is employed by, an accounting or other professional services firm; by an accountant licensed in this state; or by an authorized representative with written authority or power of attorney to represent the taxpayer. Nothing herein shall be construed as entitling any such individual who is not a license attorney to engage in the practice of law.

(2) The city attorney is authorized to represent or provide representation for the city finance director in all proceedings before the administrative hearing officer and the circuit court under this chapter and applicable state law.

(j) *Service of process.*

(1) Mailing by first class or certified or registered mail, postage prepaid, to the address of the taxpayer given on the taxpayer's notice of appeal, or to the address of the taxpayer's representative of record, if any, or to the usual place of business of the city finance director, shall constitute personal service on the other party. The administrative hearing officer may prescribe that notice by other means shall constitute personal service and, in a particular case, may order that notice be given to additional persons or by other means.

(2) Mailing by registered or certified mail and delivery by a private delivery service approved by the Internal Revenue Service in accordance with section 7502(f) of the Internal Revenue Code of 1986, as amended, shall be deemed to have

occurred, respectively, on the date of mailing and the date of submission to the private delivery service.

(3) Timely mailed document considered to be timely filed.

(k) *Settlement by the parties.* Nothing in this section shall be construed to prevent the parties from settling a matter that is pending on appeal before the administrative hearing officer or the circuit court and requesting a dismissal of the appeal, with or without prejudice, and the entry of an order consistent with the terms of the settlement, as may be agreed to by the parties. (Ord. No. 25-388, § 4, 5-22-2025)

Secs. 15-7—15-30. Reserved.

ARTICLE II. BUSINESS LICENSES*

DIVISION 1. GENERAL PROVISIONS

Sec. 15-31. Definitions applicable to this article; conflict with chapter 3 of this Code.

(a) *Definitions.* The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Business means any commercial or industrial activity or any enterprise, trade, profession, occupation, or livelihood, including the lease or rental of residential or nonresidential real estate, whether or not carried on for gain or profit, and whether or not engaged in as a principal or as an independent contractor, which is engaged in, or caused to be engaged in, within the city.

Business license means an annual license issued by the city pursuant to this article for the privilege of doing any kind of business, trade, profession, or any other activity in the city, by whatever name called, which document is required to be conspicuously posted or displayed in accordance with subsection 15-44(d) of this article. The term does not include the liquor, motor fuel, or tobacco taxes levied under articles IV, V, or VII, respectively, or the sales, uses, rental, or lodging taxes levied under article III, of this chapter.

Business license remittance form means any business license return, renewal reminder notice, or other writing on which a taxpayer calculates its business license tax liability for all or part of the license year and remits the amount so calculated with the form.

Gross receipts means a measure of any and all receipts of a business from whatever source derived, to the maximum extent permitted by applicable laws and constitutional provisions, to be used in calculating the amount due for a business license. Provided, however, that:

(1) Gross receipts shall not include any of the following taxes collected by the business on behalf of any taxing jurisdiction or the federal government: All taxes which are imposed on the ultimate consumer, collected by the taxpayer, and remitted by or on behalf of the taxpayer to the taxing authority, whether state, local, or federal, including utility gross receipts taxes levied pursuant to Code of Ala. 1975, Article 3, Chapter 21, Title 40; license taxes levied pursuant to Code of Ala. 1975, Article 2, Chapter 21, Title 40; or reimbursements to professional employer organizations of federal, state, or local payroll taxes or unemployment insurance contributions; but no other deductions or exclusions from gross receipts shall be allowed except as provided in this article.

(2) A different basis for calculating the business license may be used by the city with respect to certain categories of taxpayers as prescribed in Code of Ala. 1975, § 11-51-90.2.

(3) For a utility or other entity described in Code of Ala. 1975, § 11-51-129, gross receipts shall be limited to the gross

*__Editor's note—__Section 2 of Ord. No. 12-365, adopted May 24, 2012, amended art. II in its entirety to read as herein set out. Former art. II, §§ 15-31—15-39, 15-41—15-62, pertained to general privilege licenses. See the Code Comparative Table for a complete derivation.

receipts derived from the retail furnishing of utility services within the city during the preceding year that are taxed under Code of Ala. 1975, Article 3 of Chapter 21 of Title 40, except that nothing herein shall affect any existing contract or agreement between the city and a utility or other entity. The gross receipts derived from the furnishing of utility services shall not be subject to further business license taxation by the city.

(4) Gross receipts shall not include dividends or other distributions received by a corporation, or proceeds from borrowings, the sale of a capital asset, the repayment of the principal portion of a loan, the issuance of stock or other equity investments, or capital contributions, or the undistributed earnings of subsidiary entities.

License form means any business license application form, renewal reminder notice, business license remittance form, or business license return by whatever name called.

License year means the calendar year.

Municipality means any town or city in this state that levies a business license tax from time to time. The term shall also include the town's or city's police jurisdiction, where the business license tax is levied in the police jurisdiction.

Person means any individual, association, estate, trust, partnership, limited liability company, corporation, or other entity of any kind.

Principal means any person that is a sole proprietor, shareholder of a privately held corporation, officer, director, principal, partner, member if the member manages or has the right to manage the entity or organization, or any other person serving as a part of the governing authority of an entity.

Taxing jurisdiction means any municipality that levies a business license tax, whether or not a business license tax is levied within its police jurisdiction, or the Department of Revenue acting as agent on behalf of a municipality pursuant to the Code of Ala. 1975, §§ 11-51-180 et seq., as the context requires.

Taxpayer means any person subject to or liable under this article for any business license tax; any person required to file a return with respect to, or pay or remit the business license tax levied under this article or to report any information or value to the city; or any person required to obtain, or who holds any interest in, any business license issued by the city; or any person that may be affected by any act or refusal to act by the city under this article, or to keep any records required by this article.

Other terms. Other capitalized or specialized terms used in this article, and not defined in this subsection (a) or section 15-1, shall have the same meanings ascribed to them in Code of Ala. 1975, § 40-2A-3, unless the context otherwise requires.

(b) *Conflict with chapter 3.* Chapter 3 of this Code contains regulations concerning alcoholic beverages and may contain provisions that are inconsistent with one or more provisions of this article. In such case chapter 3 shall apply.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-32. Method for providing notice under this article.

(a) *Methods; receipt.*

(1) *Notice by city.* Unless otherwise provided for in this article, all written notice required to be sent by the city under this article shall be sent, at the city finance director's option, by personal delivery, or by certified mail, return receipt requested, or by first class U.S. mail, to the last-known mailing address of record in the city finance department. Unless otherwise provided for in this article, written notices shall be deemed served or received as follows: if by personal delivery, upon delivery; if by first class U.S. mail, three days after mailing; or if by certified mail, upon receipt.

(2) *Notice by taxpayer.* Unless otherwise provided for in this article, all written

notice required to be sent by the taxpayer under this article shall be sent to the city finance department using any one of the methods, at the taxpayer's option, prescribed in subsection (1) above. Unless otherwise provided for in this article, written notices shall be deemed served or received as set forth in subsection (1) above.

(b) *Alternative methods.* The taxpayer may also request, at any time and from time to time, that, as alternative but not additional methods of providing notice to the taxpayer from the city, that notice be sent via facsimile to the facsimile number provided by the taxpayer, or by electronic mail to the email address provided by the taxpayer. It shall be solely at the city finance director's option the method of providing notice that will be used, unless provided for otherwise in this article. Unless otherwise provided for in this article, written notices using the alternative methods shall be deemed served or received as follows: if by facsimile or electronic mail, upon confirmation of delivery.

(c) *State-required methods.* Notwithstanding anything to the contrary contained in this section, where applicable provisions of state tax laws dictate the proper method of sending notice, the method used shall conform to such state tax law.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Secs. 15-33—15-35. Reserved.

DIVISION 2. BUSINESS LICENSE REQUIRED; APPLICATION PROCESS

Sec. 15-36. Business license required.

(a) *Levy of business license.* There is hereby levied on each of the following persons who are within the city's business license jurisdiction, or who engage in activity subject to the city's business license jurisdiction, a business license to be paid in the amount as provided elsewhere in this article:

(1) Each person engaging in any activity listed or described in the business license schedule of section 15-85; or

(2) Each person engaged in any exhibition, trade, business, vocation, occupation, or profession; or

(3) Each person engaged in any activity for which Code of Ala. 1975, Chapter 51 of Title 11, or any other provision of the Code of Ala. 1975, enables the city to levy a business license.

(b) *Purposes of levy.* The levy of business licenses is in the exercise of the police power and for the purpose of raising revenue.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-37. Prima facie evidence of engaging in business.

(a) *Indications of business activity.* Each of the following, without limitation, shall constitute prima facie evidence of engaging in business:

(1) The maintenance of an office or place of business.

(2) Advertising, signs, web sites, promotional materials, or similar matters that promote the business.

(3) Maintaining books or records indicating business activity.

(4) Engaging in any activity which would require that the person obtain a license from the state or any county within which the city is located, or the obtaining of such a license; or the filing of a tax return with the Alabama Department of Revenue or Internal Revenue Service indicating the existence of a business.

(5) Engaging in any activity described in the 2002 North American Industrial Classification System.

(6) Engaging in any activity for which state law would enable or authorize the city to require a business license.

(b) *List not exclusive.* This section is supplemental to all other provisions of this article. No specific kind of evidence of engaging in business activity shall be required. A business

license shall be required as provided in this article regardless of the quality or quantity of evidence.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-38. Exemptions.

(a) In addition to any other exemptions required to be provided under applicable federal and state laws, or that are otherwise provided for in this article, the following shall be exempt from the business license requirements of this article:

(1) *Farmer's exemption.*

a. For purposes of subsection (1), the following terms shall have the meanings ascribed to them in this subsection a.:

(i) The term farmer means a farmer or other individual engaged in the production of farm products for sale or other disposition exclusively of articles produced by him.

(ii) The term farm product means all agricultural, horticultural, vegetable and fruit products of the soil, meats, marine food products, poultry, eggs, dairy products, wool, hides, feathers, nuts and honey, but shall not apply to seeds sold at retail, nor include timber products, tea, coffee or pelts of fur-bearing animals.

b. No business license shall be required of any farmer; provided, however, it shall be unlawful for any farmer to sell or offer for sale within the corporate limits of the city any farm product produced by him without first having obtained, without cost, an annual farmer's permit from the city finance director.

c. In the event a farmer applying for a farmer's permit holds a grower's permit issued by the Alabama cooperative extension system, he shall include a copy of the grower's permit with his application. Any farmer selling with a grower's permit shall be allowed to sell or offer for sale only those farm products listed on the grower's permit at the location specified. Any farmer selling any other farm product not listed on the grower's permit shall forfeit the exemption allowed for under this article for the items not listed.

(2) *Exemption for public school booster organizations.* No license shall be required of any bona fide nonprofit school music, academic, or athletic group, group booster, or parents' group when raising money by selling "band" candy, ornaments, fruitcakes, fresh fruit or gift items, or washing cars, etc., where all of the profits from such sales will go to support the school band, math team, athletic team, cheerleaders, etc., by purchasing equipment, musical instruments, or uniforms, or to pay for transportation to and from games, tournaments, competitions, or exhibitions where such trips or activities, games, tournaments, competitions, or exhibitions are approved by the school board of the city schools. If a retail sale of these items is made, an academic sponsor or parents group would be responsible to see that any and all sales tax would be collected and paid to the city finance director.

(3) *Certain nonprofits.* Any nonprofit corporation formed under the laws of Alabama which is operated to enable municipalities that become members of such nonprofit corporation to finance or refinance capital projects and related undertakings, on a cooperative basis, and whose board of directors or other governing body consists primarily of elected officials of municipalities.

(b) The person claiming an exemption from business licensing hereunder shall provide appropriate proof of eligibility as may be required by the city finance director or by applicable federal or state laws.

(c) Exemption from licensing under this section does not relieve any person from complying with other applicable city laws including the zoning ordinance and technical codes of the city. (Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-39. License application process.

(a) *Application.* Each taxpayer who is required to purchase a business license shall make application to the city finance department utilizing forms provided by the city finance director for that purpose. Such applications shall be sworn to by the taxpayer or its duly authorized agent. Although the city finance department may assist the person in determining the proper classification for the license and shall have the authority to determine the proper license classification, the taxpayer shall be responsible for obtaining a business license for the proper classification. Where a taxpayer who is already licensed under this article or whose existing business license is under renewal is adding a new line of business which requires licensing under this article, the taxpayer shall be required to make application for the new line of business.

(b) *Contact information.* All taxpayers making application for a business license shall provide sufficient contact information to the city finance director for the purpose of receiving any notice or other documentation required to be sent to the taxpayer by the city under this chapter.

(c) *Code compliance procedure.* Applications shall be processed in accordance with the following section 15-40.

(d) *Building contractors or subcontractors.* Notwithstanding anything to the contrary in this article, where a business license is for contractors or subcontractors who are subject to the city's building, gas, plumbing, or electrical codes, the city finance director may direct that applications and renewals for such business licensing be initiated with, processed through, or administered in whole or part by the city's inspection division.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-40. Code compliance procedure.

(a) *Definition.* For the purposes of this section, the term "suitable for licensing" or "suitability for licensing" means that the application for business licensing includes the applicant, the proposed business to be licensed, its premises, and its operation: (1) is in compliance with all applicable laws, including the zoning laws, building and other technical codes, fire codes, health codes, and this chapter; (2) has met prerequisites required for licensing; and (3) is not found to have a condition to exist which would constitute a basis for action being taken under subsection 15-56(a).

(b) *Code compliance procedure.* Upon submission of a completed application for a business license and prior to the issuance of same, the city finance department is authorized to investigate whether the application is suitable for licensing. Such investigation may include the recommendations of other city departments as to suitability for licensing. Such recommendations may include recommendations for approval, recommendations for disapproval stating the reasons therefor, or recommendations for approval subject to stated conditions being met which make the application suitable for licensing. Upon receipt of the recommendations of applicable departments, the city finance director is authorized to determine suitability for licensing. The city finance director shall not determine that an application is suitable for licensing where at least one department has recommended disapproval.

(c) *Disapproval; conditional approval.* If an application for licensing is not approved, the city finance department shall provide written notice to the applicant of the disapproval and the reason for disapproval. If the application is approved with conditions, the applicant shall accept the conditions in writing and, thereafter, the business license shall be issued subject to such conditions, which shall become part of the business license and a violation of such conditions shall constitute a violation of this article. If the applicant does not accept the conditions, the application shall be disapproved and written notice thereof provided to the applicant.

(d) *Appeal of disapproval.* A person who applied for a business license that has been disapproved may appeal as follows:

(1) Within 30 days after receipt of the notice of the disapproval the person must submit to the city finance department a signed written notice that the disapproval is being appealed.

(2) The city finance department shall set an informal administrative hearing before the city finance director, or his delegate which shall be a city license inspector, within 30 days after receipt of the notice of the appeal. Reasonable notice of the date, time, and place of the hearing shall be given by the city finance director to the appellant in writing. The 30-day period may be extended by the city finance director for good cause shown, or by agreement between the city finance director and the appellant. The city finance department shall inform the other city department which recommended disapproval or conditional approval of the appeal, and such other department shall have a representative who is familiar with the reason therefor and who has the discretion to amend or remove the disapproval or conditional approval present at the administrative hearing. The administrative hearing shall be controlled and conducted by the city finance director, or his delegate who must be a license inspector of the city. The participants shall discuss the circumstances giving rise to the action appealed from in good faith and ascertain whether an agreement can be reached to alter, amend, mitigate, or remove the action appealed from. The city finance director, or his delegate who must be a license inspector of the city, shall have the final decision whether to alter, amend, mitigate, or remove the disapproval or approval with conditions and shall notify the appellant in writing of his decision within 14 days after the close of the hearing.

(3) If the appellant is aggrieved by the decision of the city finance director, or his delegate, the appellant may appeal the decision to the city council by filing a written notice of the appeal with the city finance department within 15 days after receipt of the ruling from the city finance director. The appeal shall be forwarded to the city council which shall set a hearing thereon. The appellant shall be given at least ten days' advance written notice of the date, time, and place for the hearing on the appeal, and the hearing on the appeal shall be conducted by the city council in the same manner as license revocation hearings under subsection 15-56(c)(2). In the event the appellant fails to appear at the hearing before the city council, provided due notice has been given thereof, the appellant shall have waived any right it has to contest the action taken.

(4) Within 30 days after the conclusion of the hearing the city council shall, by resolution, decide whether to alter, amend, mitigate, or remove the disapproval or approval with conditions. Thereafter, the appellant shall be notified of the council's decision by providing the appellant with a copy of the resolution. The city council's decision shall be final, subject to any applicable rights of judicial review provided by state law.

(5) Where the determination under an appeal under this subsection (d) is an approval with conditions, the applicant shall accept the conditions in writing and, thereafter, the business license shall be issued subject to such conditions, which shall become part of the business license.

(e) *Alternative procedure.* Notwithstanding anything to the contrary contained in this section, in the event there is an existing appeals process in place for the department that recommended disapproval or approval with conditions, such process shall be followed in lieu of the one provided for in this section. Such appeals include but are not necessarily limited to appeals under the zoning laws and the technical codes of the city.

(f) *Code compliance not a certification of lawfulness; no cause of action.* The code compliance procedure is entirely regulatory in nature as an exercise of the police powers of the city, and for determining whether a license shall be issued. It shall not relieve the taxpayer from compliance with all such laws, codes, ordinances, rules, and regulations. Issuance of a business license shall not constitute a certification, endorsement, finding, representation, warranty, or guarantee by the city or the city finance director that the taxpayer is conducting a lawful business or is otherwise in compliance with such laws, codes, ordinances, rules, and regulations; or that the taxpayer or its business does not and shall not negatively impact public health, safety, or welfare. The code compliance procedure and the issuance of a business license shall not give rise to any cause of action against the city for any activity by the taxpayer or the taxpayer's business, even if the city erroneously concludes that the taxpayer is in compliance.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-41. Effect of state regulations.

(a) As a prerequisite to licensing, every person who applies for a license under this chapter to conduct any trade or business that is subject to state licensing board oversight shall submit proof satisfactory to the city finance department that such person has obtained all applicable permits, licenses, and certifications that are required by law to conduct the trade or business. Such proof includes a true and accurate copy of the taxpayer's card or certificate, issued by the particular state licensing board within 14 months of the date on which the taxpayer applies for a business license.

(b) Any establishments selling articles of food or drinks must have a permit from the county health department before the city shall issue a license.

(c) The city finance director shall determine, upon receipt of an application to obtain or renew a business license, whether the applicant's business is identified as an industrial activity under the regulations adopted by the environmental protection agency at 40 CFR 122, "National Pollutant Discharge Elimination System [NPDES] Permit Application Regulation for Storm Water Discharges; Final Rule." If the applicant's business is identified as an industrial activity, the applicant will be required to enter, on the license application form, the NPDES discharge permit number issued by the Alabama department of environmental management (ADEM) and the permit's date of expiration. Failure to enter the valid NPDES permit number on the application shall result in the city finance director's sending a copy of the applicant's license to ADEM.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-42. Issuance of business license generally; issuance fee; payment by check.

(a) *Issuance generally.* Upon meeting all conditions for the issuance of a business license, the city finance director shall issue an appropriate license, but the issuance and grant thereof is expressly conditioned upon the truth and accuracy of the application and sworn statements. The license shall be revocable as provided in this article if such information was untruthful, inaccurate, or if the amount paid by the licensee was insufficient.

(b) *Issuance fee.* In addition to the amount of each license fee due the city, a fee of $10.00, or the current amount set by the Alabama department of revenue, for issuing or renewing a license shall be charged and paid as a part of each license issued. Such issuance fee shall be paid at the time of issuing or renewing the license and shall not be prorated.

(c) *Payment by check.* Whenever a business license or business license receipt shall be issued in return for any check, the license shall not be valid or of any force or effect unless such check shall be duly paid upon presentation to the drawee. The city finance director shall collect an administrative bad check charge as provided by section 2-154 of this Code on any and every check that is not honored, for whatever reason, upon presentation to the drawee.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-43. Terms of licenses; transfers.

(a) *Term.* All licenses due the city shall be valid for the remainder of the calendar year in which they are issued, except in cases where a daily, weekly, or monthly license is specifically provided. Every license shall automatically expire at the end of the period for which it is valid. For a flat rate business license that is taken out after July 1, only one-half of the license fee shall be charged and collected, except for those classifications for which daily, weekly, monthly, quarterly or semiannual licenses are provided.

(b) *Transfer of licenses.*

(1) Subject to subsection (b)(2) of this section, no license shall be transferred to a different taxpayer, person, location, or otherwise; provided that a mere change in the name or ownership of a taxpayer that is a corporation, partnership, limited liability company, or other form of legal entity now or hereafter recognized by the laws of Alabama shall not constitute a transfer for purposes of this section, unless:

a. The change requires the taxpayer to obtain a new federal employer identification number or department of revenue taxpayer identification number; or

b. The subject license is one for the sale of alcoholic beverages, in which case a new business license application and approval shall be required as provided in chapter 3 of this Code.

(2) Notwithstanding anything to the contrary in subsection (b)(1) of this section, upon application for a transfer and a surrender of the original license, the city finance director may allow a business license, other than an alcoholic beverage license regulated by chapter 3 of this Code, to be transferred once during the license year to reflect a physical change in location; provided, however, the transfer application shall be subject to the same code compliance process as an original license as such compliance process relates to the suitability of the proposed premises for the business or its operation. It shall be unlawful for the taxpayer, its principals, servants, agents, or employees, to conduct or allow the conduct of business at the new location until the transfer has been approved and a license issued for the new location and each day a violation of this subsection occurs constitutes a separate offense.

(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-44. License required for each location and line of business; posting of license required.

(a) *License specific to location.* Every taxpayer required to purchase a business license under this article shall obtain a separate business license for each location at which it does business in the city; provided, however, a regularly licensed business selling at a temporary location in the city for no more than five days and no more than twice in a given license year shall not be required to pay an additional issuance fee in relation to the business license issued for the temporary location.

(b) *More than one line of business.* Any taxpayer engaged in multiple lines of business shall purchase a license for each separate line of business from which the taxpayer derived more than 35 percent of its gross receipts during the preceding license year. For each business license, the gross receipts which are taxed with regard to such license shall be only those gross receipts which arise within the line of business which is the subject of the license, except as provided in subsection (c), other provisions of this article, or as otherwise provided by law.

(c) *Gross receipts not meeting 35 percent threshold.* Nothing herein shall be construed to exempt the gross receipts derived from one or more additional lines of business of the taxpayer if those gross receipts do not exceed the required 35 percent threshold for the purchase of a second or multiple business licenses. Instead, those

gross receipts shall be included in the business license for the taxpayer's primary line of business.

(d) *Posting of license.* Each business license is required to be conspicuously posted or displayed at the location where such business is conducted except for that portion of the license that lists the taxpayer's business license tax or other financial information. Any transient or nonresident person doing business within the city who does not have a permanent business location in the city shall carry such license either upon his person or in any vehicle or other conveyance which is used in such business. A non-transient license must show the location of business and is valid only at the indicated location. The taxpayer shall, upon request, immediately show the license to any revenue officer with the finance department or any law enforcement officer of the city.

(e) *Compliance with other city laws.* Notwithstanding anything to the contrary contained in this section, where a taxpayer is not required to purchase a business license for a particular line of business because the 35 percent threshold has not been met, the taxpayer shall nevertheless comply with and be subject to applicable city laws that govern the business including the zoning laws, fire codes, building codes, and other technical codes of the city.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-259, § 1, 4-10-2025; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-45. Renewal dates.

(a) *Annual renewal.* Each annual business license shall be due on January 1 of each year and shall be renewed on or before January 31 of each year and shall be delinquent if renewed after January 31. If the due date for payment of any business license hereunder falls on a weekend or a holiday recognized by the city from time to time, the due date shall automatically be extended until the next business day.

(b) *Insurance companies.* Notwithstanding the foregoing, insurance company licenses shall be renewed annually on or before March 1, in accordance with Code of Ala. 1975, § 11-51-122, and the license tax due according to the license schedule shall be accompanied by the certified statement of the amount of gross premiums received during the preceding year. Failure to furnish such statement or to pay such sum shall subject the company and its agents to those penalties as prescribed for doing business without a license as provided for in this article.

(c) *When received.* A renewal is deemed received on the day payment is actually made in the city finance department, or, if sent by the United States mail and received in the city finance department within a reasonable time, the day it is lawfully postmarked. For those business licenses which the city finance director has directed to be renewed through the inspection division, payment shall be made to the inspection division.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-46. Renewal notices and taxpayer duty to report certain changes.

The city finance department shall mail or otherwise transmit a renewal reminder notice to each taxpayer that purchased a business license during the preceding license year, via regular U.S. mail addressed to the taxpayer's last known mailing address, on or before December 31 of the current license year. The failure of the city finance department to comply with the preceding sentence shall not, however, preclude it from enforcing the business license tax laws against a taxpayer, but shall preclude the assessment of any fines or penalties otherwise due for late payment until ten days after a renewal reminder notice has been mailed to the taxpayer at its last known mailing address as indicated in the records of the city finance department, or personally delivered to the taxpayer, and the taxpayer then fails or refuses to remit the business license tax due for such license year within the ten-day period. If the city finance department mails a renewal reminder notice to the last known mailing address of the taxpayer, as indicated in the records of the city finance department, there shall exist a presumption that the city finance department has complied with the above provisions. The city finance department shall not be precluded from assessing fines and penalties

otherwise due for late payment if the taxpayer does not notify the city finance department of a change in address within 90 days after changing such address. Taxpayers shall notify the city finance department of a change of mailing address within 90 days of the address change. In like manner, taxpayers shall notify the city finance department of a change in their federal employer identification number or Alabama department of revenue taxpayer identification number within a reasonable time after such number is changed. (Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Secs. 15-47—15-55. Reserved.

DIVISION 3. ENFORCEMENT

Sec. 15-56. Action taken against licensing.

(a) *Basis for action.* Any business license issued pursuant to this article may be revoked or suspended by the city council after notice and hearing for any of the following reasons:

(1) The taxpayer, its principal, agent, servant, or employee violates or has violated any provision of this Code or any ordinance of the city, or any federal or state law, rule, or regulation, relating to the license, business, business premises, or business activity, to which the license or application pertains.

(2) The taxpayer, its principal, agent, servant, or employee, violates or aids or abets in violating or knowingly permits or suffers to be violated any criminal ordinance of the city or any criminal law of the state on the licensed premises, or under color of license.

(3) Any application, affidavit, return, statement, or other document filed by or on behalf of the taxpayer under this chapter contains false or misleading information or an omission of a material fact.

(4) The business or its operation is, or is reasonably likely to become if allowed to commence or continue, offensive, injurious, or dangerous to the public health, safety, or general welfare, to the extent of constituting a nuisance.

(5) The taxpayer fails or has failed to pay within the time prescribed by law any business license or tax liability for which a final assessment has been entered, if one is required to be entered under this chapter, and for which all direct appeals have been exhausted or the time to appeal has expired, or for which the taxpayer or license applicant is required to pay as the result of a conviction for which no further direct appeal is available, or any other liability due and owing to the city after any applicable process for judicial or administrative review has been concluded or has expired.

(6) The taxpayer fails to meet any qualification, criteria, or credentialing standard under federal, state, or municipal law required in order to engage in the kind of business to which the license relates.

(7) The taxpayer or its principal has been convicted of a felony within the past five years that is related to activity that tends to show that licensing of the business in question would place the health, safety, or welfare of the general public at risk.

(8) Any other reason provided or allowed by law or rule.

(b) *Non-renewal.* The conditions set forth hereinabove as grounds for suspension or revocation of a license shall also constitute grounds for refusing to renew a license by the city finance director. In the case of non-renewal, the taxpayer may appeal the city finance director's decision to the city council by filing a written notice of appeal with the city finance department within 15 days after receipt of the notice of non-renewal. Upon receipt of the notice of appeal the city finance director shall petition the city council to set a hearing thereon in accordance with subsection (c) of this section.

(c) *Process.*

(1) The city council, upon petition by the city finance director, shall set a hearing on the matter of revoking, suspending, or refusing to renew a license. Notice of the hearing and grounds for the revocation, suspension, or non-renewal of the license shall be in writing and served on the taxpayer at least ten calendar days prior to the hearing.

(2) At such hearing, the taxpayer shall have the right to present evidence, the right to introduce witnesses, and the right to be represented by an attorney. The public hearing shall be recorded or transcribed for the purpose of maintaining a reasonably accurate record of the proceedings. Provided, however, the city council shall not be required to follow rules of evidence or procedure unless specifically required by law or ordinance.

(3) The taxpayer may elect, at any time prior to the hearing, to waive in writing the taxpayer's right to a hearing and concede the basis for action being taken against the license; in which case the city council may proceed to take action against the license in accordance with this section. In the event the taxpayer fails to appear at the hearing, provided due notice has been given thereof, the taxpayer shall have waived any right it has to contest the basis for action being taken against the license.

(d) *Action taken.* Within 30 days following the close of the hearing contemplated by paragraph (c) of this section the city council may, by resolution, take any of the following actions against a business license (which may include each line of business of the taxpayer):

(1) Suspend the then-current business license for a period not to exceed 12 months, and if the then-current license is to expire before the end of the suspension period, the renewal of the license shall be held in abeyance until the expiration of the suspension period. The city council may also suspend a business license for any business in which all or any of the principals of the affected taxpayer is also a principal. At the end of the suspension period the then-current license shall be automatically reinstated; provided, however, if the license has expired during the suspension period and is up for renewal, the license may be processed for renewal in accordance with this article.

(2) Revoke the then-current business license for up to a 36-month period. The city council may also revoke a business license for any business in which all or any of the principals of the affected taxpayer is also a principal. The taxpayer may apply for a new business license at the end of the revocation period, subject to the code compliance process of section 15-40.

(3) Refuse to renew the business license for up to a 36-month period. The city council may also refuse to renew a business license for any business in which all or any of the principals of the affected taxpayer is also a principal. The taxpayer may apply for a new license at the end of the non-renewal period, subject to the code compliance process of section 15-40.

(4) Refuse to issue a new business license for any business in which all or any of the principals of the affected taxpayer is also a principal, during the period of suspension, revocation, or non-renewal of a business license.

(e) *Notice of action.* A copy of the city council's resolution shall be mailed to the taxpayer in the same manner as the notice of the hearing.

(f) *Unlawful to violate action.* It shall be unlawful for any person to violate the terms of the revocation, suspension, or non-renewal as set forth in the resolution of the city council.

(g) *Injunction.* As an additional or alternative remedy, the city may institute injunctive proceedings in a court of competent jurisdiction against the taxpayer.

(h) *Judicial review.* The taxpayer may seek judicial review in accordance with state law.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-57. Penalties for failure to obtain or renew license.

(a) *Criminal penalties.*

(1) It shall be unlawful for any person, taxpayer, or agent of a person or taxpayer to engage in the activity for which a business license is levied under this article without first having procured a business license therefor, which includes its renewal by the due date. In addition to any applicable civil penalties, violations of this subsection shall be punishable, at the discretion of the court trying the same, by a fine of up to $500.00 for each offense, and, if the violation is willful, by imprisonment not to exceed six months for each offense. Each day during which such violation occurs shall constitute a separate offense.

(2) Until the proper business license is obtained, the activity for which the license is required shall cease and it shall be unlawful for any person associated with the taxpayer, as a principal, servant, agent, or employee, to willfully allow or undertake to carry on the non-licensed activity until the proper business license is obtained therefor. Violations of this subsection shall be punishable, at the discretion of the court trying the same, by a fine of up to $500.00 for each offense, and by imprisonment not to exceed six months for each offense. Each day during which such violation occurs shall constitute a separate offense.

(b) *Civil penalties.* In addition to the penalties prescribed by subsection (a), if a taxpayer fails to pay any business license tax owed to the city on or before the date prescribed therefor, there shall be assessed a penalty of 15 percent of the business license tax required to be paid with the license form. There shall be assessed a penalty of 30 percent of any business license tax required to be paid with the license form if the business license tax and any assessed penalties are not paid within 30 days of the due date prescribed in the preceding sentence. Such penalties shall not be cumulative.

(c) Waiver for reasonable cause. Notwithstanding the foregoing, no fine or penalty under this section shall be assessed, or if assessed, shall be waived, if reasonable cause exists. "Reasonable cause" shall mean: The death or major illness of or an accident involving a sole proprietor causing serious bodily injury that in either case resulted in the sole proprietor being unable to purchase the license or operate his or her business during the ten days preceding the due date for the license; natural disaster, fire, explosion, or accident that caused the closing or temporary cessation of the business of the taxpayer during the ten days preceding the due date for the license; or reliance on the erroneous advice of the city finance director, which includes his delegates, given in writing or by electronic mail. The city finance director may, but is not required to, waive the penalty for other reasons, including the taxpayer's reliance on erroneous but good faith advice from its tax adviser or on erroneous oral advice from the city finance director, which includes his delegates. The burden of proving reasonable cause shall be on the taxpayer, and a determination by the city finance director that reasonable cause does not exist shall be reversed only if that determination was made arbitrarily and capriciously.

(d) All penalties and interest administered by the taxing jurisdiction pursuant to this section and section 15-4 shall be assessed and collected in the same manner as business license taxes.

(e) Notwithstanding anything to the contrary contained in this chapter, during the period of an appeal from a final assessment under this chapter, criminal proceedings against the applicable taxpayer for failure to pay the license fee or tax, including penalty and interest, under review shall be held in abeyance, pending the outcome of the appeal.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-58. Unlawful acts.

It shall be unlawful for any person, or for any principal, agent, servant, or employee of such person, to fail or refuse to perform any duty imposed by this article; to obstruct or interfere with the city finance director in carrying out the purposes of this article; or to knowingly provide a false return, report, certificate, affidavit, statement, or other information required to be submitted under this article.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-59. Criminal violations of article.

Unless otherwise provided for in this article, any person found guilty of violating any of the provisions of this article shall be subject to the general penalty provisions of section 1-7 of this Code. Each day that the violation occurs constitutes a separate offense.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-60. Lien for non-payment of license tax.

On all property, both real and personal, used in any exhibition, trade, business, vocation, occupation, or profession for which a license is or may be required, the city shall have a lien for such license, which lien shall attach as of the date the license is due and shall be superior to all other liens, except the lien of the state, county, and municipal corporations for taxes and the lien of the state and county for licenses. Such lien may be enforced by attachment.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-61. Injunctive relief; nuisance.

In addition to the remedies provided by Ala. Code of 1975, §§ 11-51-150 et seq., the continued or recurrent performance of any act or acts within the corporate limits of the city for which action may be taken against a license under section 15-56 is hereby declared to be detrimental to the health, safety, comfort, and convenience of the public and is a nuisance. The city, as an additional or alternative remedy, may institute injunctive proceedings in a court of competent jurisdiction to abate the same.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-62. Prosecutions unaffected.

The adoption of this article shall not in any manner affect any prosecution of any act illegally done contrary to the provisions of any ordinance now or heretofore in existence, and every such prosecution, whether begun before or after the enactment of this article shall be governed by the law under which the offense was committed; nor shall a prosecution, or the right to prosecute, for the recovery of any penalty or the enforcement of any forfeiture be in any manner affected by the adoption of this article; nor shall any civil action or cause of action existing prior to or at the time of the adoption of this article be affected in any manner by its adoption.
(Ord. No. 12-365, § 2, 5-24-2012)

Secs. 15-63—15-72. Reserved.

DIVISION 4. PROCEDURES FOR PURPOSES OF DETERMINING TAX DUE

Sec. 15-73. Duties of taxpayer.

(a) *Duty to provide sworn statement.* It shall be the duty of the taxpayer to furnish to the city finance director, on such forms as may be required by the city finance director, a sworn statement as to those factors upon which the license classification or license tax depend, including, but not necessarily limited to, the amount of capital invested, value of goods or stocks, the amounts of sales or gross receipts, or other factors which form the basis for classification or taxation under this article and, failing or refusing to so furnish, it shall be a violation of this article.

(b) *Duty to allow inspection.* To the extent allowed by the statutes and constitutions of the United States or state, upon demand by the city finance director, the taxpayer shall be required to provide access during business hours to all portions of the place of business to enable the city finance director to gain such information as may be necessary or convenient for determining

the proper license classification or the correct amount of license tax, and, failing therein, it shall be a violation of this article. In the event a search warrant is required by law, the city finance director shall collaborate with the police department to make application for obtaining and execution of a search warrant.

(c) *Record keeping.* In accordance with Code of Ala. 1975, § 11-51-190, taxpayers under this article shall keep and maintain, and allow an examination of in accordance with section 15-74, accurate and complete set of records, books, and other information sufficient to allow the city finance director to determine the correct amount of any business license tax levied under this article, or other records or information as may be necessary for the proper administration of any matters under the jurisdiction of the city including proper business license classification, and failing therein, it shall be a violation of this article. Such records shall include but are not necessarily limited to all books of account, invoices, purchases, sales, receipts, register tapes, inventory, reports, bank statements, financial statements, employment records, and copies of federal income tax returns and Alabama sales and income tax returns.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-74. Rights of taxpayer; abatement of penalty; business license examination.

(a) *Rights.* In the administration of this article, taxpayers shall have the rights afforded to them under Code of Ala. 1975, § 11-51-186(a), which is incorporated herein by reference; provided that the city shall not be prohibited from assessing any business license tax otherwise due under this article, nor excuse the taxpayer from timely complying with any time limitations under this article for failing to provide such rights to the taxpayer.

(b) *Abatement of penalty.* Penalties shall be abated by the city finance director as required by applicable state tax laws including Code of Ala. 1975, § 11-51-186, which is incorporated herein by reference.

(c) *Examinations.* Business license examinations shall be conducted in accordance with applicable provisions of Code of Ala. 1975, §§ 11-51-186(a) and 11-51-187, which are incorporated herein by reference.

(d) *Policies and procedures.* The city finance director is hereby authorized to establish policies and procedures necessary to comply with the dictates of state tax laws applicable to business license examinations and assessments.
(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-75. Determination of amounts due; preliminary and final assessments; review; appeal; refund for overpayment.

(a) *Basis for entry of preliminary assessment.* If the city finance director determines that the amount of any business license tax reported on or remitted with a business license remittance form is incorrect, if no business license remittance form is filed within the time prescribed, or if the information provided on the form is insufficient to allow the city finance director to determine the proper amount of business license tax due, the city finance director may calculate the correct amount of the tax based on the most accurate and complete information reasonably obtainable. The city finance director may thereafter enter a preliminary assessment for the correct amount of business license tax, including any applicable penalty and interest. Nothing contained herein shall limit or restrict the city's right to seek injunctive relief under Code of Ala. 1975, § 11-51-150 et seq.

(b) *Immediate entry of final assessment.* In the event any of the following occurs: (1) the amount of the license tax reported on a remittance form is undisputed by the city finance director; (2) the taxpayer consents in writing to any deficiency; or (3) the taxpayer consents in writing to the amount of the preliminary assessment, then the city finance director may, immediately enter a final assessment for the amount of the tax due, plus any applicable penalty and interest.

(c) *Method and limitation period for entry.*

(1) All preliminary and final assessments of business licenses issued by the city finance director shall be executed by the city finance director or by those to whom he has delegated the right to execute said assessments. Such execution may be written by hand or facsimile signature, or by any other method which constitutes a valid method for executing any form of official document.

(2) Any preliminary assessment shall be entered within four years from the due date of the business license form, or four years from the date the form is filed, whichever is later, except as follows:

a. A preliminary assessment may be entered at any time if no license form is filed as required, or if a false or fraudulent license form is filed with the intent to evade the business license tax.

b. A preliminary assessment may be entered within six years from the due date of the license form or six years from the date the license form is filed with the finance department, whichever date occurs last, if the taxpayer omits or fails to report an amount in excess of 25 percent of its gross receipts or other applicable business license tax base.

c. A preliminary assessment may be entered within five years from the due date of the license form, or five years from the date the form is filed, whichever is later, if the taxpayer or its authorized agent fails or refuses to execute and return to the city finance department a written extension of the statute of limitations on issuing preliminary assessments for up to eight months, as requested by the city finance department or its agent, within 30 days after receipt of the request for extension by the taxpayer or its authorized agent.

(3) The preliminary assessment entered by the city finance director, or a copy thereof, shall promptly upon entry be mailed by the city finance department to the taxpayer's last known mailing address by either first class U.S. mail or certified U.S. mail with return receipt requested, but at the option of the city finance department, the preliminary assessment may be delivered to the taxpayer by personal delivery.

(d) *Petition for review of preliminary assessment; entry of final assessment.*

(1) If a taxpayer disagrees with a preliminary assessment as entered by the city finance director, the taxpayer may file a petition for review with the city finance department, within 30 days from the date of entry of the preliminary assessment setting out the specific objections to the preliminary assessment. If a petition for review is timely filed, or if the city finance director otherwise deems it necessary, the city finance director, or his delegate, shall schedule a conference with the taxpayer for the purpose of allowing the taxpayer or its representatives and the representatives of the city to present their respective positions, discuss any omissions or errors, and to attempt to agree upon any changes or modifications to their respective positions.

(2) If a petition for review:

a. Is not timely filed; or

b. Is timely filed, and upon further review the city finance director determines that the preliminary assessment is due to be upheld in whole or in part, the city finance director may make the assessment final in the amount of business license tax due as computed by the city finance director, with applicable interest and penalty computed to the date of entry of the final assessment. The city finance director shall, whenever practicable, complete his review of the taxpayer's petition for

review and applicable law within 90 days following the later of the date of filing of the petition or the conference, if any.

(3) The final assessment entered by the city finance director, or a copy thereof, shall promptly upon entry be mailed to the taxpayer's last known mailing address:

a. By either first class U.S. mail or certified U.S. mail with return receipt requested in the case of assessments of business license tax of $500.00 or less; or

b. By certified U.S. mail with return receipt requested in the case of assessments of business license tax of more than $500.00.

In either case and at the option of the city finance department, the final assessment, or a copy thereof, may be delivered to the taxpayer by personal delivery.

(e) *Appeals of final assessment.*

(1) A taxpayer may appeal from any final assessment entered hereunder by the city finance director by filing a notice of appeal, within 30 days from the date of entry of the final assessment, with the city finance department. Upon receipt the city finance director shall promptly forward a copy of the notice of appeal and related documents to the administrative hearing officer. No filing fee or supersedeas bond shall be required for such appeals. [See section 15-6 for the administrative hearing process]

(2) In lieu of the appeal under subdivision (1) to the administrative hearing officer, and at the option of the taxpayer, the taxpayer may appeal from any final assessment hereunder to the circuit court of Madison County, Alabama by filing a notice of appeal within 30 days from the date of entry of the final assessment with both the city clerk and the clerk of the circuit court and by otherwise following the requirements of Code of Ala. 1975, § 11-51-191(e).

(f) Appeal from administrative hearing officer. A final order issued by the administrative hearing officer is appealable in accordance with Code of Ala. 1975, § 11-51-191(f). The city finance director is hereby authorized and empowered to file such appeals and prosecute them through all appeals on behalf of the city, with the assistance and representation of the city attorney, or an attorney selected by the city attorney.

(g) *Petition for refund.*

(1) Any taxpayer may file a petition for refund with the city finance department for any overpayment of business license tax erroneously paid to the city. If a final assessment for the tax has been entered by the city finance director, a petition for refund of all or a portion of the tax may be filed only if the final assessment has been paid in full prior to or simultaneously with the filing of the petition for refund.

(2) A petition for refund shall be filed with the city finance department within a) three years from the date that the business license form was filed, or b) two years from the date of payment of the business license tax which is the subject of the petition, whichever is later, or if no form was timely filed, two years from the date of payment of the business license tax.

(3) The city finance director shall either grant or deny a petition for refund within six months from the date the petition is filed, unless the period is extended by written agreement of the taxpayer and the city finance director acting on behalf of the city. The taxpayer shall be notified of the city finance director's decision concerning the petition for refund by first class U.S. mail or by certified U.S. mail, return receipt requested, sent to the taxpayer's last known mailing address. If the city finance director fails to grant a full refund within the time provided herein, the petition for refund shall be deemed to be denied.

(4) If the petition is granted, or the city finance director or a court otherwise determines that a refund is due, the overpayment shall be promptly refunded to the taxpayer by the city finance director, together with interest to the extent provided in section 15-4 of this chapter. If the city finance director or a court determines that a refund is due, the amount of overpayment plus any interest due thereon may first be credited by the city finance director against any outstanding final tax liabilities due and owing by the taxpayer to the city, and the balance of any overpayment shall be promptly refunded to the taxpayer. If any refund or part thereof is credited to any other tax by the city finance director, the taxpayer shall be provided with a written detailed statement showing the amount of overpayment, the amount credited for payment to other taxes, and the amount refunded.

a. A taxpayer may appeal from the denial in whole or in part of a petition for refund by filing a notice of appeal with the clerk of the circuit court of Madison County, Alabama by filing the notice of appeal within two years from the date the petition is denied. The circuit court shall hear the appeal according to its own rules and procedures and shall determine the correct amount of refund due, if any.

b. If an appeal is not filed with the appropriate circuit court within two years of the date the petition is denied, then the appeal shall be dismissed for lack of jurisdiction.

c. The provisions of this section 15-75 shall also be applied to the taxes levied and assessed under articles IV, V, and VII of this chapter.

(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, §§ 5, 6, 5-22-2025)

Sec. 15-76. Disclosure of license information; exchange of information.

(a) *Generally.* It shall be unlawful for any person to print, publish, or divulge, without the written permission or approval of the taxpayer, the license form of any taxpayer or any part of the license form, or any information secured in arriving at the amount of tax or value reported, for any purpose other than the proper administration of this chapter, or upon order of any court, as otherwise allowed by Code of Ala. 1975, § 11-51-196, or as otherwise allowed by state or federal law. Nothing herein shall prohibit the disclosure, upon request, of the fact that a taxpayer has or has not purchased a business license or of the name and address of a taxpayer purchasing or renewing a business license from the city. Statistical information pertaining to taxes may be disclosed to the city council upon request.

(b) *Exchange of information.* Pursuant to Code of Ala. 1975, § 11-51-196, the city finance director is hereby authorized to exchange business license information between and among the city and other municipalities adopting similar ordinances or between county and state governments in a manner consistent with applicable state law including Code of Ala. 1975, § 40-2A-10(e), and Alabama department of revenue regulations promulgated pursuant thereto, subject to the confidentiality restrictions of this section and state law. The city finance director may charge a reasonable fee for providing such information.

(c) *No damages against city.* In no event shall any damages, attorney fees, or court costs be assessed against the city under this section, nor shall any damages, attorney fees, or court costs be assessed against elected officials, officers, or employees of the city under this section.

(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 25-388, § 5, 5-22-2025)

Secs. 15-77—15-81. Reserved.

DIVISION 5. COMPUTATION OF TAX; CLASSIFICATIONS; SCHEDULES

Sec. 15-82. Computation of license fee based on gross receipts.

(a) *Computation.* In the case of business licenses computed on the basis of gross receipts, the method for computing the license fee shall be as follows:

(1) For the initial business license, taxpayer shall make a good-faith estimate of the total amount of gross receipts it expects for the remainder of the calendar year, which shall be referred to as the "short year." The initial business license payment shall be based on this estimated amount. When the taxpayer next renews the business license, the estimated amount for the initial business license shall be compared to the taxpayer's actual gross receipts in the short year, and the amount for the initial license shall be adjusted accordingly, with the taxpayer owing at the time of such renewal any deficient amounts, or alternatively obtaining a credit for any overpayment. The basis for the license tax in the short year shall be the actual gross receipts for the short year.

(2) For the first renewal of the business license, the amount paid for the taxpayer's business license initially shall be based on an estimated full year's gross receipts, to be determined and adjusted utilizing the following procedure. The taxpayer shall project the first full year's gross receipts by annualizing the short year's gross receipts. This shall be done by dividing the number of full months the taxpayer was in business in the municipality or police jurisdiction into the short year's gross receipts and multiplying that amount by 12; provided that each taxpayer shall be deemed to have been in business in the municipality for a minimum of one month for purposes of this calculation. The initial amount levied on the taxpayer for this first renewal shall be based on this annualized projected amount, but the final levy shall be based on the actual gross receipts for that year.

(3) When the business license is renewed the following year after a full year of doing business, the amount paid in the previous year shall be adjusted to accord with the taxpayer's actual annual gross receipts, with the taxpayer owing at the time of such renewal any deficient amounts, or alternatively obtaining a credit for any overpayment for the previous year.

(4) In all subsequent years that the business license is renewed, the amount of business license owed shall be based on the gross receipts for the license year next preceding the current license year.

(b) *Effect of applicable law.* Where a business license tax is to be calculated based on gross receipts and applicable federal or state law requires that certain gross receipts be excluded from the calculation or where applicable federal or state law otherwise dictates how gross receipts are to be determined, for purposes of taxation under this article, it shall be the taxpayer's responsibility to properly make such exclusions or determinations based on applicable federal or state law.

(c) *Payment protection.* Any first time licensee or transient merchant may be required by the city to pay the business license fee and the issuance fee in cash or by certified check before a business license is issued. Any licensee who has paid the business license fee or issuance fee in prior years with financial instruments that were returned unpaid to the city by the financial institution on which drawn may be required by the city to pay the license fee and issuance fee in cash or by certified check before a business license is issued.

(d) *Sworn statements required.* Taxpayers shall be required to file with each renewal of a business license a sworn statement in accordance with section 15-73; provided, however, for licenses in the phase-in period that are based on estimated

gross receipts, the taxpayer shall only be required to make an unsworn good faith effort to reasonably estimate the gross receipts.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-83. Branch office rules.

A taxpayer required by this article to purchase a business license that is engaged in business in more than one municipality shall be permitted to account for its gross receipts so that the part of its gross receipts attributable to one or more branch offices will not be subject to the business license tax imposed on the principal business office required to obtain a business license. Branch office gross receipts are those receipts that are the result of business conducted at or from a qualifying branch office. In order to establish the existence of a qualifying branch office, the taxpayer shall meet all the following criteria:

(1) Demonstrate the continuing existence of an actual physical facility located outside the police jurisdiction of the municipality in which its principal business office is located, such as a retail store, outlet, business office, showroom, or warehouse, to which employees or independent contractors, or both, are assigned or located during regular normal working hours.

(2) Maintain books and records which reasonably indicate a segregation or allocation of the taxpayer's gross receipts to the particular facility or facilities.

(3) Provide reasonable proof that separate telephone listings, signs, or other indications of separate activity are in existence.

(4) Billing or collection activities, or both, relating to the business conducted at the branch office or offices are performed by an employee or other representative of the taxpayer who has such responsibility for the branch office, whether or not the representative is physically located at the branch office.

(5) All business claimed by a branch office or offices must be conducted by and through the office or offices.

(6) Supply proof that all applicable business licenses, as that term is defined by Code of Ala. 1975, § 11-51-90.1, with respect to the branch office or offices have been issued.

(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-84. Delivery license.

(a) In lieu of any other type of license, a taxpayer may at its option purchase for $100.00 plus the issuance fee, a delivery license for the privilege of delivering its merchandise in the city if the taxpayer meets all of the following criteria:

(1) Other than deliveries, the taxpayer has no other physical presence within the city;

(2) The taxpayer conducts no other business in the city other than delivering merchandise and performing the requisite set-up and installation of said merchandise;

(3) Such delivery and set-up and installation is performed by the taxpayer's employees or agents, concerns the taxpayer's own merchandise in the city, and is done by means of delivery vehicles owned, leased, or contracted by the taxpayer;

(4) The gross receipts derived from the sale and any requisite set-up or installation of all merchandise so delivered shall not exceed $75,000.00 during the license year;

(5) Any set-up or installation shall relate only to that required by the contract between the taxpayer and the customer or as may be required by state or local law, and the merchandise so delivered;

(6) If at any time during the current license year the taxpayer fails to meet any of the above stated criteria, then within the ten days after any of said criteria have been violated or exceeded, the taxpayer shall purchase all appropriate business licenses from the city for the entire license year and without regard to this section.

(b) Mere delivery of the taxpayer's merchandise by common carrier shall not allow the city to assess a business license tax against the taxpayer, but the gross receipts derived from any sale and delivery accomplished by means of a common carrier shall be counted against the $75,000.00 limitation described in the preceding section if the taxpayer also during the same license year sells and delivers into the city using a delivery vehicle other than a common carrier.

(c) A common carrier, contract carrier, or similar delivery service making deliveries on behalf of others shall not be entitled to purchase a delivery license.

(d) The delivery license shall be calculated in arrears, based on the related gross receipts during the preceding license year.

(e) The purchase of a delivery license shall not, in and of itself, establish a nexus between the taxpayer and the city for purposes of the taxes levied by or under the authority of Code of Ala. 1975, Title 40 or other provisions of law, nor does the purchase of a delivery license conclusively determine that a nexus does not exist between the taxpayer and the city.
(Ord. No. 12-365, § 2, 5-24-2012)

Sec. 15-85. License schedule.

The following schedule is declared to be a schedule of the charges for licenses for the calendar year beginning January 1, 2008, and ending December 31, 2008, and the schedule is levied for the calendar year 2008 and for each calendar year thereafter until it has been amended or repealed, on all persons engaged in any exhibition, trade, business, vocation, occupation, profession or calling or doing any action specified within the corporate limits of the city. The licenses in this schedule shall be paid to the city as set forth in the schedule of licenses as follows:

(1) *Advertising.* Each person engaged in the business of advertising, by whatever means, shall pay a license tax on annual gross receipts as follows:

$0.00 to $19,999.00	$65.00
$20,000.00 and over	65.00
Plus, per $1,000.00 in excess of $20,000.00 . .	1.00

Where a taxpayer is required to include advertising gross receipts in calculating license taxes due under other schedules of this section, the taxpayer shall not be required to also include such receipts under this schedule.

(2) *Amusement machines.* Each person engaged in the business of owning, operating, possessing or giving space in their place of business to a lawful automatic amusement, picture, video, pinball, information vending, dispensing or displaying machine, or machine on which a person is weighed or blood pressure given shall pay a license tax as follows:

For each machine.	$50.00

This license shall be due and payable by the person, owner or proprietor of the place of business where such vending machine is located.

This schedule shall not apply to machines dispensing tangible products, to any coin-operated telephone, or to any machine vending postage stamps.

(3) *Automotive dealer (transportation and industrial equipment), new.* Each person engaged in the business of buying, selling or trading new or new and used aircraft, automobiles, mobile homes, recreational vehicles, farm tractors, industrial equipment, or trucks shall pay a license tax based on gross annual receipts as follows:

$0.00 to $199,999.00	$250.00
$200,000.00 to $29,999,999.00	250.00
Plus, per $1,000.00 in excess of $200,000.00 .	1.00
$30,000,000.00 to $49,999,999.00	30,050.00
Plus, per $1,000.00 in excess of $30,000,000.00	0.50

$50,000,000.00 to $99,999,999.00	40,050.00
Plus, per $1,000.00 in excess of $50,000,000.00	0.25
$100,000,000.00 and over	52,550.00
Plus, per $1,000.00 in excess of $100,000,000.00	0.14

For the purpose of this schedule, gross receipts shall mean the entire receipts of the business, including all receipts from activities such as repair services, selling replacement parts and accessories, government sales, or sales outside the city except as provided in this schedule. Gross receipts shall not include used automobiles taken in trade or in a series of trades as credit or part payment on the sale of a new or used vehicle, the amount reported being the net trade difference; and a deduction shall be allowed for federal excise tax, wholesale parts sales (on in-house or intercompany book transfers only), labor (where work is performed on vehicles in the sales inventory only), freight on new automobiles, and for repossessions of automobiles, such deduction for the repossessions being based on the unpaid taxable purchase price remaining at the time of the repossession.

This schedule does not allow for the operation of a wrecker or vehicle towing/hauling service, which shall be licensed under the hauling for hire schedule (schedule (45)).

This schedule shall not apply to the sale of lawn mowers, motorbikes, motorcycles and garden tractors, all of which should be licensed according to the merchant—retail schedule (schedule (56)).

(4) *Automotive dealer, used.* Each person engaged in the business of buying, selling or trading used aircraft, automobiles, mobile homes, recreational vehicles, farm tractors, industrial equipment or trucks shall pay a license tax based on gross annual receipts as follows:

$0.00 to $199,000.00	$160.00
$200,000.00 and over	160.00
Plus, per $1,000.00 in excess of $200,000.00	1.00

(5) *Automobile or truck rental or leasing.* Each person engaged in the business of renting or leasing automobiles or trucks shall pay a license tax as follows:

For each vehicle	$30.00

Schedule (5) does not apply to the rental or lease of aircraft, boats or heavy equipment. Aircraft, boats, or heavy equipment rental or leasing shall be licensed according to the renting and/or leasing schedule (schedule (72)).

(6) *Reserved.*

(7) *Barbershop or beauty shop.* Each person operating a barbershop or beauty shop shall pay a license tax in accordance with the number of chairs/stations in each shop as follows:

For the first chair/station	$50.00
For each additional chair/station	20.00

A license shall be required for each chair/station whether or not such chair/station is in use. Any sale of merchandise within the shop will be licensed according to the merchant retail schedule (schedule (56)). Any rental of space within the shop will be licensed according to the renting and/or leasing schedule (schedule (72)). Any nail technician will be licensed according to the service schedule (schedule (77)).

(8) *Beverages, alcoholic.* Each person engaged in the following businesses shall, prior to engaging in such business, pay to the city for the privilege of so engaging an annual license tax for each business as follows:

State of Alabama Code Number	*Type of Licensee*	*Amount (Each Business)*
010	Lounge Retail Liquor—Class I	$1,200.00
011	Lounge Retail Liquor—Class II (Package)	1,200.00
020	Restaurant Retail Liquor	1,200.00
031	Club Liquor—Class I	1,200.00
032	Club Liquor—Class II	1,200.00
040	Retail Beer (On- or Off-Premises)	75.00
050	Retail Beer (Off-Premises Only)	50.00
060	Retail Table Wine (On- or Off-Premises)	75.00
070	Retail Table Wine (Off-Premises Only)	75.00
080	Liquor Wholesale	1,500.00
090	Wholesale Beer Only	250.00
100	Wholesale Table Wine Only	275.00
110	Wholesale Beer and Table Wine Combined	375.00
120	Warehouse License	250.00
130	Additional warehouse, Wine, Beer, or both	100.00
140	Special Events Retail	250.00
150	Special Retail License—30 days or less	1,200.00
160	Special Retail—More than 30 days	1,200.00
200	Manufacturer	500.00
210	Importer	250.00
220	Brewpub	75.00

(9) *Reserved.*

(10) *Reserved.*

(11) *Reserved.*

(12) *Reserved.*

(13) *Reserved.*

(14) *Reserved.*

(15) *Reserved.*

(16) *Billiard or pool tables.* Each person operating a billiard or pool room or parlor shall pay an annual license tax as follows:

For the first table at each location $125.00

For each additional table at each location 25.00

This license is required for all tables, whether in use or not.

(17) *Bingo.* Any person operating an authorized bingo game in accordance with chapter 4, article II, shall pay an annual license tax as follows:

For each license year $500.00

For one calendar week 25.00

(18) *Bonds—Appearance and appeal.* Each person, firm or corporation engaged in the business of becoming or procuring surety for any court, appeal appearances or otherwise for consideration, except guarantee companies or corporations otherwise specifically licensed, shall pay a license tax based on gross annual receipts as follows:

$0.00 to $24,999.00 . . . . . $320.00

$25,000.00 and over 320.00

Plus, per $1,000.00 in excess of $25,000.00 . . 1.00

(19) *Bowling alley.* Each person engaged in the business of providing bowling alleys, including ten pin alleys, box ball alleys, shuffleboards, and miniature bowling alleys and shuffleboards shall pay an annual license tax as follows:

For each lane. $40.00

This license is required for all lanes, whether in use or not.

(20) *Broker or dealer in securities.* Each person engaged in the business of acting as broker or dealing in securities, commodities or mutual funds, or in the business of lending money on stocks, bonds, securities or commodities shall pay an annual license tax for each registered agent, broker or dealer employed by or using the facilities or resources of the agency, as follows:

For each registered broker, agent or dealer	$350.00

(21) *Building and loan or savings and loan association or banks.* Each person operating a building and loan association or bank shall pay an annual license tax as follows:

When capital surplus, reserves and undivided profits combined are:

Less than $50,000.00	$10.00
$50,000.00 and less than $100,000.00	20.00
$100,000.00 and less than $150,000.00	30.00
$150,000.00 and less than $200,000.00	40.00
$200,000.00 and less than $250,000.00	50.00
$250,000.00 and less than $300,000.00	60.00
$300,000.00 and less than $350,000.00	70.00
$350,000.00 and less than $400,000.00	80.00
$400,000.00 and less than $450,000.00	90.00
$450,000.00 and less than $500,000.00	100.00
$500,000.00 and less than $600,000.00	110.00
$600,000.00 and over	125.00
For each branch of such association or bank	10.00

Provided, however, if a bank holding company is engaged in additional lines of business that do not fall within NACIS SECTORS 551 or 522 and which are not considered financial in nature, as defined under federal banking law, the bank holding company shall obtain a business license for each additional line of business so assessed by the city for each location where these additional lines of business are conducted in the city.

(22) *Carnival, fair or circus.* Each person operating a carnival, fair, circus or similar activity shall pay a license tax as follows:

For each week or part-week of operation	$2,500.00
For any carnival or fair operated for five days or less, by or for a local charitable organization that qualifies with an IRS 501 exemption or church where ten or fewer rides, concessions stands, sideshows or other amusements or other stands are set up	$250.00

This fee shall include all sideshows, rides, concession stands, amusements or other stands. Anyone purchasing a license under this schedule must post with the city finance director a certificate of insurance showing at least $5,000,000.00 coverage for liability. Anyone qualifying as a carnival or fair with ten or fewer rides, concession stands, sideshows, amusements or other stands must post with the city finance director a certificate of insurance showing at least $1,000,000.00 coverage for liability. Also, a tax bond in an amount determined by the clerk-treasurer must be posted with the city finance department to ensure the prompt payment of any and all additional taxes that would be due the city. Each carnival, fair or circus must obtain a special exception to the zoning ordinance (Appendix A to this Code) and Madison County health department food permits (if food is being prepared and served in any manner)

before a city privilege license will be granted (This process should be applied for at least 60 days before the event starts).

(23) *Cemetery company.* Each person engaged in the business of selling, soliciting the sale, or of furnishing cemetery lots or mausoleum space shall pay a license tax on gross annual receipts as follows:

$0.00 to $19,999.00	$125.00
$20,000.00 and over	125.00
Plus, per $1,000.00 in excess of $20,000.00 . .	1.00

(24) *Reserved.*

(25) *Club, social or recreational.* Each person engaged in the operation of a private or public social club, lounge, restaurant, health facility, swimming pool or any other facility where a membership fee, door charge, gate fee, cover charge or any other like or similar type fee is collected either one time, annually, semiannually, quarterly, monthly, weekly, daily or in any other manner, must obtain a license for such activity and shall pay a license tax on annual gross fees as follows:

$0.00 to $9,999.00	$100.00
$10,000.00 and over	100.00
Plus, per $1,000.00 in excess of $10,000.00 . .	1.00

(26) *Contractor, general, building.* Each person engaged in the business of accepting orders, contracts or subcontracts for erecting, enlarging, improving, relocating any building or structure shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$75.00
$25,000.00 to $99,999.00	150.00
$100,000.00 to $999,999.00	250.00
$1,000,000.00 to $4,999,999.00	350.00
$5,000,000.00 to $9,999,999.00	500.00
$10,000,000.00 and over . . .	500.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25

Each person engaged in the business of constructing houses or buildings for resale, whether on contract or otherwise, or who maintains an office in the city in connection with such construction within or outside of the city shall pay the license tax as provided in this schedule.

All general contractors shall, upon request, furnish the building inspector or license inspector or their duly authorized representative with a full and complete list showing the names, addresses and license numbers of all subcontractors to whom work has been contracted. The general contractor shall not allow any work to proceed by any subcontractor until such subcontractor has exhibited to him his current city privilege license for the work to be performed.

(27) *Contractor/subcontractor, specialty.* Each person engaged in the business of accepting orders, contracts or subcontracts for making improvements to the land (including but not limited to building, grading, paving, installation of curbs, gutters or sewers, excavating, or landscaping) or any other type of construction shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$75.00
$25,000.00 to $99,999.00 . . .	150.00
$100,000.00 to $999,999.00	250.00
$1,000,000.00 to $4,999,999.00	350.00
$5,000,000.00 to $9,999,999.00	500.00
$10,000,000.00 and over . . .	500.00
Plus, per $1,000.00 in excess of	

$10,000,000.00	0.25

(28) *Contractor, electrical.* Each person engaged in the business of accepting orders, contracts or subcontracts for electrical installation, construction, or repairs, shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$75.00
$25,000.00 to $99,999.00 ...	150.00
$100,000.00 to $999,999.00	250.00
$1,000,000.00 to $4,999,999.00	350.00
$5,000,000.00 to $9,999,999.00	500.00
$10,000,000.00 and over ...	500.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25

(29) *Contractor, plumbing.* Each person engaged in the business of accepting orders, contracts or subcontracts for plumbing installation, construction or repairs shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$75.00
$25,000.00 to $99,999.00 ...	150.00
$100,000.00 to $999,999.00	250.00
$1,000,000.00 to $4,999,999.00	350.00
$5,000,000.00 to $9,999,999.00	500.00
$10,000,000.00 and over ...	500.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25

(30) *Contractor, gas fitters.* Each person engaged in the business of accepting orders, contracts or subcontracts for gas piping installation, construction or repairs shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$75.00
$25,000.00 to $99,999.00 ...	150.00
$100,000.00 to $999,999.00	250.00
$1,000,000.00 to $4,999,999.00	350.00
$5,000,000.00 to $9,999,999.00	500.00
$10,000,000.00 and over ...	500.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25

(31) *Contractor, heating and air conditioning.* Each person engaged in the business of accepting orders, contracts or subcontracts for heating and air conditioning installation, construction or repairs shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$75.00
$25,000.00 to $99,999.00 ...	150.00
$100,000.00 to $999,999.00	250.00
$1,000,000.00 to $4,999,999.00	350.00
$5,000,000.00 to $9,999,999.00	500.00
$10,000,000.00 and over ...	500.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25

(32) *Contractor/subcontractor, other.* Each person engaged in the business of accepting orders, contracts or subcontracts for the building construction related services of trades of sheet metal or any other service or trade for installation, construction or repairs, or other related services not specifically provided for, shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$75.00
$25,000.00 to $99,999.00 ...	150.00
$100,000.00 to $999,999.00	250.00

$1,000,000.00 to $4,999,999.00	350.00
$5,000,000.00 to $9,999,999.00	500.00
$10,000,000.00 and over	500.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25

All contractors, general and subcontractors, schedules (26)—(32) shall upon request furnish the building inspector or license inspector or his duly authorized representative a signed copy of the contract or any other document necessary, authorizing the contractor to begin the construction project for which a permit is being purchased, reflecting the total gross amount of the construction project. The total gross amount reflected in the project shall be used either at the beginning of the year as a current projection of the gross receipts from the construction project, or upon completion of the construction project, or year end, at which time remittance from each general or subcontractor for any additional privilege license fees shall be due and payable. This fee can be simply billed out to the contractor or subcontractor by the inspection department, and remittance in full is expected within 30 days of the date of such billing.

No permits for work of any type for which a license is required according to schedules (26)—(32) shall be issued to a contractor, subcontractor, owner or any authorized agency by the building inspection department until all privilege license taxes have been paid.

(33) *Contractors and subcontractors, engineering, research or manufacturing.* Each person engaged in the business of accepting orders, contracts or subcontracts for engineering, research or manufacturing of a product developed by the engineering or research services shall pay a license tax based on annual gross receipts from contracts performed within the city as follows:

$0.00 to $99,999.00	$250.00
$100,000.00 to $999,999.00	250.00
Plus, per $1,000.00 in excess of $100,000.00	1.00
$1,000,000.00 to $9,999,999.00	1,150.00
Plus, per $1,000.00 in excess of $1,000,000.00	0.50
$10,000,000.00 to $99,999,999.00	5,650.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25
$100,000,000.00 to $999,999,999.00	28,150.00
Plus, per $1,000.00 in excess of $100,000,000.00	0.14
$1,000,000,000.00 to $9,999,999,999.00	154,150.00
Plus, per $1,000.00 in excess of $1,000,000,000.00	0.07
$10,000,000,000.00 and over	784,150.00
Plus, per $1,000.00 in excess of $10,000,000,000.00	0.04

(34) *Contractors and subcontractors, engineering, research, manufacturing, or support service.* Each person maintaining an office for liaison, marketing or administering contracts, who maintains an agent, representative or employees, where no contracts are performed within the city, shall pay a license tax based on the annual total gross operating cost of such

office within the city or total gross receipts credited to such office within the city, whichever is greater, as follows:

$0.00 to $99,999.00	$200.00
$100,000.00 to $999,999.00	200.00
Plus, per $1,000.00 in excess of $100,000.00	1.00
$1,000,000.00 to $9,999,999.00	1,100.00
Plus, per $1,000.00 in excess of $1,000,000.00	0.50
$10,000,000.00 to $99,999,999.00	5,600.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25
$100,000,000.00 to $999,999,999.00	28,100.00
Plus, per $1,000.00 in excess of $100,000,000.00	0.14
$1,000,000,000.00 to $9,999,999,999.00	154,100.00
Plus, per $1,000.00 in excess of $1,000,000,000.00	0.07
$10,000,000,000.00 and over	784,100.00
Plus, per $1,000.00 in excess of $10,000,000,000.00	0.04

(35) *Delivery.* Each person delivering articles of merchandise or any other property within the city when not in connection with a regularly licensed business shall pay a license tax based on gross receipts as follows:

$0.00 to $74,999.00	$100.00
$75,000.00 to $124,999.00	200.00
$125,000.00 to $174,999.00	300.00
$175,000.00 to $249,999.00	400.00
$250,000.00 and over	400.00
Plus, per $1,000.00 in excess of $250,000.00	1.00

As used in this schedule, a delivery license shall mean a business license for the limited privilege of delivering and requisite set-up and installation, by the taxpayer's employees or agents, of the taxpayer's own merchandise in the City of Huntsville, by means of delivery vehicles owned, leased, or contracted by the taxpayer. Mere delivery of the taxpayer's merchandise by common carrier shall not allow the City of Huntsville to assess a business license.

Persons taking orders, soliciting or consummating sales of merchandise or taking orders, soliciting or consummating sales of services or performing such services within the city shall obtain a license based on such trade, business, occupation, profession or vocation, which shall entitle such business to deliver within the city without obtaining an additional license.

(36) *Development of property.* Each person engaged in the business of developing, subdividing and selling lots to builders or others shall pay a license tax based on annual gross receipts as follows:

$0.00 to $49,999.00	$125.00
$50,000.00 and over	125.00
Plus, per $1,000.00 in excess of $50,000.00	1.00

(37) *Directory.* Each person engaged in the business of making, compiling, selling or offering for sale any directory shall pay:

Annually	$1,000.00

This schedule shall entitle such person to sell advertising in the directory without procuring an additional license.

(38) *Entertainment.* Each person, other than religious, charitable or educational organizations, engaged in any type of

entertainment, not otherwise provided for, including but not limited to boxing, wrestling, rodeos, sports events, races, museums, lectures, concerts, or other shows or performances where charges are made for admission shall pay a license [tax] as follows:

All events, per day	$100.00
All events, per week	200.00
All events, per year	500.00

(39) *Exterminator.* Each person selling disinfectant, insecticide and/or exterminators engaged in the business of pest extermination in any manner shall pay a license tax based on annual gross receipts tax as follows:

$0.00 to $26,000.00	$65.00
$26,000.00 and over	65.00
Plus, per $1,000.00 in excess of $26,000.00	2.50

(40) *Finance and/or loan company.* Each person engaged in the business of acting as broker for mortgage contracts, consulting on mortgage contracts, lending money or discounting or buying conditional sales contracts, drafts, acceptances, notes or mortgages shall pay a license [tax] based on annual gross receipts as follows:

$0.00 to $49,999.00	$350.00
$50,000.00 and over	350.00
Plus, per $1,000.00 in excess of $50,000.00	1.00

(41) *Funeral director.* Each person engaged in business as a funeral director, undertaker or mortician shall pay an annual license tax based on annual gross receipts as follows:

$0.00 to $49,999.00	$250.00
$50,000.00 and over	250.00
Plus, per $1,000.00 in excess of $50,000.00	1.00

This schedule shall include embalming, the sale of caskets, vaults, undertaking supplies and the operation of hearses where the gross receipts from such sales and services are included as one figure, when computing this license.

(42) *Gasoline, retail.* Each person engaged in the business of selling gasoline, including kerosene, at retail or operating a gasoline filling station shall pay an annual license tax as follows:

For the first multiple nozzle dispenser	$100.00
For each additional multiple nozzle dispenser	60.00
For the first single nozzle dispenser	60.00
For each additional single nozzle dispenser	40.00
For each truck used for retail delivery	100.00

This schedule shall not include the sale of any other item or the operation of any other line of business, which shall require separate licensing. Gross receipts from the sale of gasoline shall not be included in the computation of any other license required.

(43) *Gasoline, wholesale.* Each person engaged in the business of selling gasoline or other petroleum products for resale or delivering gasoline or diesel fuel within the city shall pay an annual license tax based on the number of gallons sold or delivered within the city as follows:

$0.00 to $2,999,999.00	$375.00
$3,000,000.00 to $3,999,999.00	500.00
$4,000,000.00 and over	625.00
Plus, per four million gallons in excess of four million	150.00

(44) *Golf.* Each person engaged in the operation of a golf course, driving range, miniature golf or similar activity shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$150.00

$25,000.00 and over	150.00
Plus, per $1,000.00 in excess of $25,000.00 . .	1.00

(45) *Hauling for hire.* Each person engaged in the business of transporting freight, vehicles or any other property for hire within the city shall pay an annual license tax as follows:

For each vehicle	$100.00

(46) *Hospital and/or clinic.* Each person operating a hospital or clinic shall pay an annual license tax as follows:

For the first five beds	$150.00
For each additional bed	10.00

This schedule does not allow for the operation of a restaurant, gift shop, pharmacy (other than for in hospital sales only), classes, etc., which shall be licensed according to each separate schedule of this section as specified.

(47) *Hotel/motel/lodging.* Each person engaged in the business of renting or furnishing any room or rooms, lodging, or accommodations, for a period of less than 180 consecutive days, including any hotel, motel, inn, boarding or rooming house, or any other place in which rooms, lodgings, or accommodations are furnished, shall pay an annual license tax as follows:

For the first 25 rooms.	$150.00
For each additional room. . .	$5.00

This schedule does not include the right to operate a restaurant, barbershop, cigar stand or newsstand, or any other secondary business operated in connection with the renting of rooms without purchasing additional schedules.

(48) *Insurance, fire and marine.* Each person doing business as a fire and marine insurance company shall pay an annual license [tax] of $4.00 on each $100.00 or major fraction thereof on the gross premiums, less return premiums, on policies issued during the next preceding year on property located in the city. No credit or deduction of any kind shall be allowed or made on account of the cost of reinsurance by such company in a company not authorized to do business in this state. Each person doing business as a fire and marine insurance company for the first time in the city shall pay a minimum license [tax] of $30.00 on which there shall be an adjustment on the same basis at the expiration of the year.

(49) *Insurance, other.* Each person doing business as an insurance company other than a fire and marine insurance company shall pay an annual license tax of $50.00 and $1.00 for each $100.00, or major fraction thereof, of gross premiums, less return premiums, received during the preceding year on policies issued during such year to citizens or residents of the city. Each person doing business as an insurance company, other than fire and marine, for the first time in the city shall pay a minimum license [tax] of $50.00 on which there shall be an adjustment on this basis at the expiration of the year.

(50) *Laundry and/or dry cleaners.* Each person engaged in the business of operating a laundry, dry cleaners, linen supply service, diaper service or any service of like nature shall pay a license tax on gross annual receipts as follows:

$0.00 to $49,999.00	$250.00
$50,000.00 and over	250.00
Plus, per $1,000.00 in excess of $50,000.00 . .	1.00

(51) *Laundry pickup station.* Each person engaged in the business of collecting laundry and/or dry cleaning only shall pay an annual license tax as follows:

For each location	$50.00

(52) *Laundry, self-service.* Each person engaged in the business of operating a self-service laundry or renting washing machines, dryers or dry cleaning machines shall pay an annual license tax as follows:

For each machine.	$6.00

(53) *Manufacturer.* Each person engaged in the business of manufacturing, producing, fabricating, compounding or processing not otherwise specifically licensed shall pay a license tax based on annual gross receipts as follows:

$0.00 to $49,999.00	$125.00
$50,000.00 to $99,999.00	250.00
$100,000.00 to $999,999.00	250.00
Plus, per $1,000.00 in excess of $100,000.00	1.00
$1,000,000.00 to $9,999,999.00	1,150.00
Plus, per $1,000.00 in excess of $1,000,000.00	0.50
$10,000,000.00 to $99,999,999.00	5,650.00
Plus, per $1,000.00 in excess of $10,000,000.00	0.25
$100,000,000.00 to $999,999,999.00	28,150.00
Plus, per $1,000.00 in excess of $100,000,000.00	0.14
$1,000,000,000.00 to $9,999,999,999.00	154,150.00
Plus, per $1,000.00 in excess of $1,000,000,000.00	0.07
$10,000,000,000.00 and over	784,150.00
Plus, per $1,000.00 in excess of $10,000,000,000.00	0.04

Manufacturers shall be allowed to sell the products that they manufacture at wholesale without the need to obtain a separate license to do so, provided that the gross receipts received therefrom are included in the gross receipts calculations under this schedule, as appropriate.

(54) *Marketing and/or sales representative.* Each person engaged in business as a manufacturing, marketing and/or sales representative, where the product sold is not warehoused within the city and is delivered by common carrier, shall pay a license tax based on annual gross commissions and/or total annual gross operating cost of such office within the city, whichever is greater, as follows:

$0.00 to $24,999.00	$35.00
$25,000.00 and over	35.00
Plus, per $1,000.00 in excess of $25,000.00	1.00

(55) *Mediums.* Each medium, fortuneteller, palmist, clairvoyant crystal gazer, divine healer, spiritual reader or similar profession whether or not any fee is charged directly or indirectly or whether or not any gratuity is accepted shall pay an annual license tax as follows:

For each person so engaged	$1,000.00

(56) *Merchant, retail.* Each person engaged in the business of selling goods, wares or products (not specifically provided for in this license schedule) to others for consumption or use shall pay a license tax based on annual gross receipts as follows:

$0.00 to $9,999.00	$35.00
$10,000.00 to $19,999.00	65.00
$20,000.00 to $249,999.00	65.00
Plus, per $1,000.00 in excess of $20,000.00	2.00
$250,000.00 and over	525.00
Plus, per $1,000.00 in excess of $250,000.00	1.00

The term "gross receipts" for this schedule shall also include any and all receipts derived from the sale of registration cards, identification cards or any other type card which is required, for entrance into or to be able to purchase from a particular person making any type sales.

(57) *Merchant, retail, sponsor.* Each person engaged in the business of selling goods, wares or products at flea markets, craft shows, art shows and exhibitions may obtain one license from the city finance director issued to the person sponsoring or benefiting from the sale or exhibition, upon agreement of such person to account for the entire gross receipts of all vendors otherwise required to be licensed under this schedule participating in the sale or event. Such agreement shall be accompanied by such bond as may be determined by the city finance director to be reasonably required for the purpose of assuring payment to the city of all license and sales taxes due to the city. The license fee shall be based on the entire gross receipts of the sale or exhibition as follows:

$0.00 to $9,999.00	$35.00
$10,000.00 to $19,999.00 . . .	$65.00
$20,000.00 to $249,999.00 . .	$65.00
Plus, per $1,000.00 in excess of $20,000.00 . .	$2.00
$250,000.00 and over	525.00
Plus, per $1,000.00 in excess of $250,000.00 .	$1.00

Where temporary sales of merchandise or services for which a license is required under this section occurs on the premises of an existing licensee of the city, it shall be the duty of the licensee, the owner, and/or person in possession of the premises, knowingly allowing such sales of merchandise or services to allow such sales only upon presentation of proof from the person sponsoring the temporary sale that a valid and existing license has been issued by the city finance director permitting the sale. Each seller of merchandise or services required to be licensed for a temporary sale under this section shall display at the place of sale, at a place viewable by the public, an appropriate license issued by the city finance director, indicating on the license the dates, aggregating not more than 29 days, during which the license is valid. Where the license is issued to the sponsoring organization or beneficiary, the city finance director can deliver a separate license showing the same identification number and dates for each separate seller. No such license shall be valid for more than one location or event.

It is further provided that where a bona fide nonprofit, educational, or civic organization is eligible for an exemption as provided in sections 15-37, 15-38 and 15-41, a license will be issued to such organization upon payment of the issuance fee only.

The term "gross receipts" for this schedule shall also include any and all receipts derived from the sale of registration cards, identification cards, or any other type card which is required for entrance into or to be able to purchase from a particular person making any type sales.

(58) *Merchant, wholesale.* Each person engaged in the business of selling goods, wares or products (not specifically provided for in this license schedule) to others for resale who has a physical presence within the city shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$65.00
$25,000.00 to $49,999.00 . . .	100.00
$50,000.00 to $99,999.00	200.00
$100,000.00 to $149,999.00	300.00
$150,000.00 to $199,999.00	400.00
$200,000.00 and over	400.00
Plus, per $1,000.00 in excess of $200,000.00 .	1.00

(59) *Miscellaneous.* Each person who shall, in any capacity engage in or transact any business, commercial occupation, profession, trade or vocation for which no other license is specifically required by this section shall pay a license tax based on

annual gross receipts or total annual gross cost of operation within the city, whichever is greater, as follows:

$0.00 to $9,999.00	$35.00
$10,000.00 and over	35.00
Plus, per $1,000.00 in excess of $10,000.00 . .	1.00

(60) *Motor carrier, airplane terminals.*

a. Each person engaged in the business of maintaining or operating a motor bus terminal or operating any terminal or station facilities for transportation of passengers, property or express transported by motor carrier and each person operating any motor carrier which does business in the city by receiving passengers or freight for transportation for hire between the city and another point in Alabama shall pay a license tax as follows:

Each carrier	$200.00

b. Each person engaged in the business of maintaining or operating a terminal for transportation of passengers, property or express transported by airplane shall pay a license tax as follows:

Each carrier	$200.00

(61) *Newspapers, local.* Each person publishing or distributing newspapers which are printed or published within the city shall pay a license tax based on gross receipts as follows:

$0.00 to $49,999.00	$250.00
$50,000.00 and over	250.00
Plus, per $1,000.00 in excess of $50,000.00	1.00

Gross receipts for this schedule shall include all revenues received from sales of newspapers, advertising, and other goods or services.

(62) *Newspapers, out-of-town.* Each person distributing or delivering newspapers published outside of the city shall pay an annual license tax as follows:

Each	$100.00

(63) *Parking lot.* Each person engaged in the business of storing or parking automobiles or other vehicles shall pay a license tax as follows:

For the first 25 spaces	$100.00
For each additional space . .	5.00

(64) *Pawnbroker.* Each person engaged in business as a pawnbroker shall pay a license [tax] based on annual gross interest receipts as follows:

$0.00 to $19,999.00	$200.00
$20,000.00 and over	200.00
Plus, per $1,000.00 in excess of $20,000.00 . .	1.00

It shall also be required that any person accepting vehicles on pawn must also purchase a license according to the automotive dealer, used schedule (schedule (4)), to be able to sell those vehicles not taken out of pawn by the owner of the vehicle, and/or a merchant, retail schedule (schedule (56)) must also be purchased to be able to sell, those other items not taken out of pawn by the owners.

(65) *Pistols and/or other weapons.* Each person engaged in the business as a dealer in guns, pistols, revolvers, rifles, shotguns, explosives, Bowie knives, dirks or other weapons shall pay a license fee based on annual gross receipts as follows:

$0.00 to $19,999.00	$200.00
$20,000.00 and over	200.00
Plus, per $1,000.00 in excess of $20,000.00 . .	1.00

(66) *Precious metals, stones.* Each person engaged in the business of purchasing precious metals or precious stones, including gold, silver, platinum, pearls, diamonds, rubies and other precious stones, and any ornament or item made

from or containing gold, silver or platinum on which is set or displayed pearls, diamonds, rubies or other precious stones from the public shall pay an annual license tax as follows:

Each	$200.00

Any person purchasing a license according to this schedule shall also be required to purchase a merchant, retail schedule (schedule (56)) or a merchant, wholesale schedule (schedule (58)) to cover the sale of these items.

(67) *Profession and vocation.* Each person or member of a firm, partnership, professional corporation or association engaged in any practice, vocation or profession shall pay a license tax based on his gross annual receipts as follows:

$0.00 to $4,999.00	$65.00
$5,000.00 to $9,999.00	95.00
$10,000.00 to $24,999.00	160.00
$25,000.00 to $49,999.00	250.00
$50,000.00 to $99,999.00	345.00
$100,000.00 to $149,999.00	440.00
$150,000.00 to $199,999.00	535.00
$200,000.00 to $249,999.00	625.00
$250,000.00 and over	625.00
Plus, per $1,000.00 in excess of $250,000.00	1.00

Where the licensed entity is a partnership, the gross receipts of each partner will be determined according to the partnership agreement by allocating to each partner gross receipts in the same proportion as the profits distributed to that partner. Where the entity licensed is a corporation, the records and accounts of the corporation owned by each professional practitioner and the license of each practitioner shall be determined according to his percentage of ownership.

Persons who are primarily performing such services as are described in contractor, subcontractor—engineering, research or manufacturing of this section shall be exempt from a license if a contractor, subcontractor—engineering, research or manufacturing license is lawfully obtained by such person.

(68) *Radio and television broadcasting stations.* Each person who solicits advertising for radio or television broadcasting stations or companies shall pay an annual license tax based on annual gross receipts as follows:

$0.00 to $49,000.00	$190.00
$50,000.00 and over	190.00
Plus, per $1,000.00 in excess of $50,000.00	0.50

This license shall not apply to that portion of the business that may be interstate or foreign commerce or to business with the government of the United States of America.

(69) *Railroads.* Each person engaged in the business of operating a railroad or railway train for transportation of freight and/or passengers, to and from other points in the state and having an office or place of business in the city shall pay a license fee as follows:

Each	$2,000.00

(70) *Real estate agency, brokers.* Each person engaged in the business of buying, selling or exchanging real estate on commission shall pay a license fee based on annual gross receipts as follows:

$0.00 to $4,999.00	$65.00
$5,000.00 to $9,999.00	95.00
$10,000.00 to $24,999.00	160.00
$25,000.00 to $49,999.00	250.00

$50,000.00 to $99,999.00	345.00
$100,000.00 to $149,999.00	440.00
$150,000.00 to $199,999.00	535.00
$200,000.00 to $249,999.00	625.00
$250,000.00 and over	625.00
Plus, per $1,000.00 in excess of $250,000.00	1.00

(71) *Registration card/coupon.* Each person engaged in the business of issuing, selling or leasing to merchants or others, trading stamps, registration cards, coupons, certificates or anything of like character, which are redeemable or which will be accepted in full or partial payment or in exchange, shall pay an annual license tax based on gross receipts as follows:

$0.00 to $99,999.00	$625.00
$100,000.00 and over	625.00
Plus, per $1,000.00 in excess of $100,000.00	1.00

Gross annual receipts means and includes the full amount received from merchants and all others giving, using or issuing such trading stamps, registration cards, coupons, certificates or anything of like character.

(72) *Renting and/or leasing.* Each person engaged in the business of renting or leasing real or personal property to others, including, but not limited to, apartments, office space, buildings, houses, furniture and equipment, shall pay a license tax based on gross receipts as follows:

$0.00 to $9,999.00	$35.00
$10,000.00 to $99,999.00	35.00
Plus, per $1,000.00 in excess of $10,000.00	1.00
$100,000.00 and over	125.00
Plus, per $1,000.00 in excess of $100,000.00	0.50

Any person receiving less than $10,000.00 annually from the rental of residential real estate (this does not include commercial real estate) shall not be considered as engaged in the business of renting and/or leasing and shall be exempt from this license tax.

For short term rentals of real property for less than 180 consecutive days see schedule 47 (Hotel/Motel/Lodging).

(73) *Repairs.* Each person engaged in the business of repairing, installing, improving or servicing property which belongs to others shall pay a license tax based on annual gross receipts as follows:

$0.00 to $4,999.00	$35.00
$5,000.00 to $9,999.00	65.00
$10,000.00 to $24,999.00	95.00
$25,000.00 and over	95.00
Plus, per $1,000.00 in excess of $25,000.00	1.00

Any person engaged in the business of repairing, installing, improving or servicing real estate shall be considered a contractor and shall be required to purchase a license as such is defined in this article.

(74) *Restaurant, cafe, cafeteria.* Each person engaged in the business of conducting a restaurant, cafe, cafeteria, catering service, lunch counter, soda fountain or public place where meals, food or refreshments are prepared, furnished or served, or where a food permit is required by the county health department, shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$65.00
$25,000.00 to $249,999.00	65.00
Plus, per $1,000.00 in excess of $25,000.00	1.75

$250,000.00 to $499,999.00	458.75
Plus, per $1,000.00 in excess of $250,000.00	1.25
$500,000.00 and over	771.25
Plus, per $1,000.00 in excess of $500,000.00	1.00

(75) *Retirement home.* Each person engaged in the business of operating a retirement home, rest home, nursing home, sanitarium, etc., shall pay a license fee as follows:

For the first five beds	$100.00
For each additional bed	5.00

This shall not cover retail sales, operation of food service type facilities, pharmacy, beauty shop, etc.

(76) *Schools.* Each person engaged in the business of conducting a school, college, kindergarten, nursery, day care, teaching classes in any manner or conducting seminars shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$65.00
$25,000.00 and over	65.00
Plus, per $1,000.00 in excess of $25,000.00	1.00

Any person conducting a kindergarten, nursery or day care facility enrolling six or less children shall be exempt from this license tax.

This license tax shall not apply to schools operated by the state, county, city or churches, or other nonprofit organizations who hold a certificate issued by the Internal Revenue Service under Internal Revenue Code, section 501(a), as an organization described in section 501(c)(3).

(77) *Service.* Each person engaged in the business of performing any service not regarded as a profession or vocation shall pay a license tax based on annual gross receipts as follows:

$0.00 to $4,999.00	$35.00
$5,000.00 to $9,999.00	65.00
$10,000.00 to $24,999.00	95.00
$25,000.00 and over	95.00
Plus, per $1,000.00 in excess of $25,000.00	1.00

(78) *Shooting gallery.* Each person engaged in the business of operating a shooting gallery, pistol or rifle range, etc., shall pay a license tax based on gross receipts as follows:

$0.00 to $24,999.00	$150.00
25,000.00 and over	150.00
Plus, per $1,000.00 in excess of $25,000.00	1.00

Any person engaged in this business must also have written permission from the police department.

(79) *Skating rink.* Each person engaged in the business of operating a skating rink shall pay a license tax based on annual gross receipts as follows:

$0.00 to $24,999.00	$125.00
$25,000.00 and over	125.00
Plus, per $1,000.00 in excess of $25,000.00	1.00

(80) *Taxicabs and other vehicles for hire.* Any person engaged in the business of operating automobiles or other vehicles for hire, including taxicabs and limousines, shall pay an annual license tax as follows:

For transportation network companies	$2,000.00
For every other type of vehicle for hire company	125.00 for each vehicle so operated

Vehicles for hire must also comply with chapter 8, article IV before any license will be issued.

(81) *Telegraph company.* Each person engaged in the business of sending or receiving telegraphic messages to and from points within the state shall pay a license tax as follows:

Annually	$750.00

(82) *Telephone company, local.* Each person engaged in the business of operating a telephone exchange within the city shall pay a license tax as follows:

Annually	$1,110.00

Plus the sum of $60.00 for each additional 1,000 inhabitants according to the last federal census.

(83) *Telephone company, long distance.* Each person engaged in the business of operating a long distance telephone system between the city and intrastate points shall pay a license tax as follows:

Annually	$278.00

Plus $15.00 for each 1,000 inhabitants in the city in excess of 20,000 inhabitants according to the last federal census.

It is not the purpose of this schedule to tax interstate or foreign messages or any United States government business.

(84) *Telephone solicitation.* Each person engaged in the business of making solicitations, where the telephone is used as the primary means of solicitation, shall pay a license tax on gross receipts as follows:

$0.00 to $19,999.00	$625.00
$20,000.00 and over	625.00
Plus, per $1,000.00 in excess of $20,000.00	1.00

(85) *Television (cable or multichannel video services), franchise holders.* Each person holding a franchise or other similar use agreement from the city to use the public rights-of-way to provide cable or multichannel video services locally shall pay a license tax of:

Each business	$100.00

(86) *Theaters or motion picture shows.* Each person in the business of operating a theater, motion picture show, or theatrical theater where general admission is charged shall pay a license tax based on gross receipts as follows:

$0.00 to $19,999.00	$65.00
$20,000.00 and over	65.00
Plus, per $1,000.00 in excess of $20,000.00	1.00

A separate license must be purchased for the sales of merchandise, advertising, operation of a snack bar, amusement machines or any other secondary operations.

(87) *Trailer/mobile home parks.* Each person engaged in the operation of a camp, lot, park or other place in which are parked or stationed house trailers, recreational vehicles, tents, etc., which house trailers, recreational vehicles, tents, etc., are used as a place of abode shall pay an annual license tax as follows:

For the first ten spaces	$60.00
For each additional space	6.00

(88) *Warehouse.* Each person engaged in the business of warehousing or storage of merchandise, including cotton, household goods, and other freight or commodities shall pay a license tax based on annual gross receipts as follows:

$0.00 to $9,999.00	$65.00
$10,000.00 and over	65.00
Plus, per $1,000.00 in excess of $10,000.00	1.00

(89) *Waste grease collection.* Each person engaged in the business of purchasing and receiving or collecting waste grease and animal byproducts for rendering or recycling, from businesses, schools and institutions located in various cities of the state, shall pay the following annual license tax:

In cities of over 100,000 population	$50.00

(90) *Reserved.*

(91) *Reserved.*

(92) *Natural gas companies / utilities or marketers.*

a. Each person, firm or corporation engaged in the business of selling, distributing or delivering natural gas in the city for any purpose whatsoever shall first obtain a license to do so and shall keep the license current at all times by payment of the license fee described herein. The license fee shall be payable monthly in an amount equal to three percent of the gross receipts of the business transacted by such person, firm or corporation in the city from the sale, distribution or delivery of such gas from any point in, into or for consumption within the city for the preceding calendar month. Said license fee shall be paid on or before the fifth day of the month following the month of business. The gross receipts from said sales, distribution or delivery shall specifically include all brokerage fees, reconnection fees and any other fee or service charge imposed and collected by the person, firm or corporation. In addition thereto, the person, firm or corporation engaged in the business of selling, distributing or delivering natural gas shall also be required to pay a license tax based on all other activities incidental to its operations, but which do not involve the sale, distribution or delivery of gas, to the same extent as all other like businesses.

b. The license tax imposed hereinabove shall not apply to the City of Huntsville d/b/a Huntsville Utilities, which is paying to the city six percent of its gross receipts collected from the sale of gas to residential, commercial and industrial customers excluding sales to governmental or quasi-governmental industrial customers billed through an industrial variable monthly rate. On those governmental or quasi-governmental industrial entities billed through an industrial variable rate Huntsville Utilities shall pay the city three percent of its gross receipts collected from the sales of gas to these entities.

(93) *Reserved.*

(94) *Reserved.*

(95) *Reserved.*

(96) *Reserved.*

(Ord. No. 12-365, § 2, 5-24-2012; Ord. No. 15-415, § 1, 6-25-2015; Ord. No. 16-104, § 1, 2-11-2016; Ord. No. 18-243, §§ 1, 2, 4-26-2018; Ord. No. 23-321, § 1, 4-27-2023; Ord. No. 25-388, § 5, 5-22-2025)

Sec. 15-86. North American Industrial Classification System (NAICS).

Every taxpayer required to purchase a business license under this chapter shall:

(1) Purchase a business license for each location at which it does business in the city.

(2) Except as provided in Code of Ala. 1975, § 11-51-193, with respect to taxpayers subject to state licensing board oversight, be classified into one or more of the following 2002 North American Industrial Classification System ("NAICS") sector and applicable sub-sectors, industry groups, industries and U. S. Industries thereunder:

SECTOR	*NAICS TITLE*	*BASIS FOR LICENSE CALCULATION*
111XXX	Crop production	Gross receipts
112XXX	Animal production	Gross receipts
113XXX	Forestry and logging	Gross receipts
114XXX	Fishing, hunting, and trapping	Gross receipts
115XXX	Support for agriculture and forestry	Gross receipts

SECTOR	*NAICS TITLE*	*BASIS FOR LICENSE CALCULATION*
211XXX	Oil and gas extraction	State regulated
212XXX	Mining (except oil and gas)	Gross receipts where not state regulated
213XXX	Support for mining activities	State regulated
221XXX	Utilities	State regulated
236XXX	Building developing and general contracting	Gross receipts
237XXX	Heavy construction	Gross receipts
238XXX	Special trade contractors	Gross receipts
311XXX	Food manufacturing	Gross receipts
312XXX	Beverage and tobacco manufacturing	Gross receipts
313XXX	Textile mills	Gross receipts
314XXX	Textile product mills	Gross receipts
315XXX	Apparel manufacturing	Gross receipts
316XXX	Leather and allied product manufacturing	Gross receipts
321XXX	Wood products manufacturing	Gross receipts
322XXX	Paper manufacturing	Gross receipts
323XXX	Printing and related support activities	Gross receipts
324XXX	Petroleum and coal products manufacturing	Gross receipts
325XXX	Chemical manufacturing	Gross receipts
326XXX	Plastics and rubber products manufacturing	Gross receipts
327XXX	Nonmetallic mineral product manufacturing	Gross receipts
331XXX	Primary metal manufacturing	Gross receipts
332XXX	Fabricated metal product manufacturing	Gross receipts
333XXX	Machinery manufacturing	Gross receipts
334XXX	Computer and electronic products manufacturing	Gross receipts
335XXX	Electrical equipment manufacturing	Gross receipts
336XXX	Transportation equipment manufacturing	Gross receipts
337XXX	Furniture and related products manufacturing	Gross receipts
339XXX	Miscellaneous manufacturing	Gross receipts
421XXX	Wholesale trade, durable goods	Gross receipts
422XXX	Wholesale trade, nondurable goods	Gross receipts
441XXX	Motor vehicle and parts dealer	Gross receipts
442XXX	Furniture and home furnishing stores	Gross receipts
443XXX	Electronics and appliance stores	Gross receipts
444XXX	Building material and gardening equipment dealers	Gross receipts
445XXX	Food and beverage stores	Gross receipts where not state regulated
446XXX	Health and personal care stores	Gross receipts
447XXX	Gasoline stations	Gross receipts and/or flat rate
448XXX	Clothing and accessories stores	Gross receipts

SECTOR	*NAICS TITLE*	*BASIS FOR LICENSE CALCULATION*
451XXX	Sporting goods, hobby, book, music	Gross receipts
452XXX	General merchandise	Gross receipts
453XXX	Miscellaneous store retailers	Gross receipts
454XXX	Non-store retailers	Gross receipts
481XXX	Air transportation	Gross receipts where not state regulated
482XXX	Rail transportation	State regulated
483XXX	Water transportation	Gross receipts where not state regulated
484XXX	Truck transportation	State regulated
485XXX	Transit and ground passenger transportation	Gross receipts where not state regulated and/or flat rate
487XXX	Scenic and sightseeing transportation	Gross receipts
492XXX	Couriers and messengers	Gross receipts and/or flat rate
493XXX	Warehousing and storage	Gross receipts and/or flat rate
511XXX	Publishing industries (except Internet)	Gross receipts
512XXX	Motion picture and sound recording industry	Gross receipts
515XXX	Broadcasting (except Internet)	Gross receipts where not state regulated
516XXX	Internet publishing and broadcasting	Gross receipts where not state regulated
517XXX	Telecommunication	Gross receipts where not state regulated
519XXX	Information services and data processing	Gross receipts
522XXX	Credit intermediation and related activities	Gross receipts
523XXX	Securities, commodity, other financial products	Gross receipts where not state regulated
524XXX	Insurance carriers and related activities	State regulated
525XXX	Funds, trusts, other financial vehicles	Gross receipts where not state regulated
531XXX	Real estate	Gross receipts where not state regulated
532XXX	Rental and leasing services	Gross receipts and/or flat rate
541XXX	Professions scientific, technical, services	Gross receipts
551XXX	Management of companies and enterprises	Gross receipts where not state regulated
561XXX	Administration and support services	Gross receipts where not state regulated
562XXX	Waste management and remediation services	Gross receipts where not state regulated
611XXX	Educational services	Gross receipts where not state regulated
621XXX	Ambulatory health care services	Gross receipts
622XXX	Hospitals	Gross receipts and/or flat rate
623XXX	Nursing and residential care facilities	Gross receipts and/or flat rate
624XXX	Social assistance	Gross receipts where not state regulated
711XXX	Performing arts, spectator sports	Gross receipts and/or flat rate
712XXX	Museums, historical sites	Gross receipts
713XXX	Amusement. gambling. and related	Gross receipts and/or flat rate where not state regulated
721XXX	Accommodations	Gross receipts and/or flat rate
722XXX	Food services and drinking places	Gross receipts and/or flat rate where not state regulated

SECTOR	*NAICS TITLE*	*BASIS FOR LICENSE CALCULATION*
811XXX	Repair and maintenance	Gross receipts
812XXX	Personal and laundry services	Gross receipts
910XXX	Category for: Vending machines, pool tables, amusement devices, etc.	Gross receipts and/or flat rate
923XXX	Administration of human resources programs	Gross receipts where applicable
924XXX	Administration of environmental quality programs	Gross receipts where applicable
925XXX	Administration of housing, urban comm.	Gross receipts where applicable
926XXX	Administration of economic programs	Gross receipts where applicable
927XXX	Space research and technology	Gross receipts where applicable
928XXX	National security and international affairs	Gross receipts where applicable

(Ord. No. 12-365, § 2, 5-24-2012)

Secs. 15-87—15-90. Reserved.

ARTICLE III. SALES, USE, RENTAL, AND LODGING TAXES*

DIVISION 1. GENERALLY

Sec. 15-91. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Except as may be otherwise provided in this section or where the context clearly indicates a different meaning or where inapplicable, all words, terms, and phrases used in this article that are defined in the corresponding state tax laws shall have the meanings ascribed to them therein.

City taxes means the sales, use, rental, and lodging taxes levied or assessed by the city against a city taxpayer under this article, and, where appropriate, shall be substituted for the corresponding terms in the corresponding state tax laws.

City taxpayer means any person liable to the city for taxes levied or assessed under this article and, where appropriate, the term shall be substituted for the term taxpayer as such term appears in the corresponding state tax laws.

Local Tax Simplification Act or *LTSA* means the Local Tax Simplification Act of 1998, 1998 Alabama Laws Act 98-192, as such may be superseded or amended from time to time.

Lodging tax means the taxes levied by the state under Code of Ala. 1975, tit. 40, ch. 26, and the corresponding tax levied by the city under division 5 of this article.

Rental tax means the taxes levied by the state under Code of Ala. 1975, tit. 40, ch. 12, art. 4, and the corresponding tax levied by the city under division 4 of this article.

Sales tax means the taxes levied by the state under Code of Ala. 1975, tit. 40, ch. 23, art. 1, and the corresponding tax levied by the city under division 2 of this article.

State taxes means the state's sales, use, rental, and lodging taxes.

Use tax means the taxes levied by the state under Code of Ala. 1975, tit. 40, ch. 23, art. 2, and the corresponding tax levied by the city under division 3 of this article.
(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 25-388, § 7, 5-22-2025)

*__Editor's note—__Section 3 of Ord. No. 12-365, adopted May 24, 2012, amended art. III in its entirety to read as herein set out. Former art. III, §§ 15-91—15-107, pertained to hotel and lodging privilege license. See the Code Comparative Table for a complete derivation.

Sec. 15-92. Conformance with state tax laws.

(a) *Provisions of corresponding state tax laws applicable to article and city taxes.* The city sales, use, rental, and lodgings taxes levied or assessed under this article are subject to all definitions, exceptions, exemptions, proceedings, requirements, provisions, rules and regulations promulgated under the Alabama Administrative Procedures Act, direct pay permit and drive-out certificate procedures, statutes of limitations, penalties, fines, punishments, and deductions for the corresponding state sales, use, rental, or lodgings tax, except for those provisions relating to the tax rate, and except where inapplicable or where otherwise provided in this chapter and in the Code of Ala. 1975, tits. 11 and 40, including provisions for enforcement and collection of the taxes. All provisions of the corresponding state tax laws, including those for collection and enforcement, that are made applicable in this subsection (a) to the city taxes levied or assessed in this article are incorporated herein by reference and made a part hereof as if fully set forth herein.

(b) In accordance with subsection (a), the Alabama Taxpayers' Bill of Rights and Uniform Revenue Procedures Act (Code of Ala. 1975, tit. 40, ch. 2A), which is incorporated herein by reference as if fully set forth, shall apply to the taxes administered in this article, except where inapplicable or where otherwise provided.
(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 21-703, § 1, 8-26-2021; Ord. No. 25-388, § 8, 5-22-2025)

Sec. 15-93. License required; general provisions not affected.

(a) The city taxes levied under this article shall be additional to and cumulative of all amounts required to be paid under this chapter, except as otherwise specifically provided for in this chapter, and nothing herein shall be construed to repeal any provisions of the general privilege or business license code of the city and the requirement for licensing thereunder.

(b) No provision of this article shall be construed as relieving any person from the payment of any tax imposed by law.
(Ord. No. 12-365, § 3, 5-24-2012)

Sec. 15-94. Penalties, etc.

(a) *Civil penalties.* In addition to other penalties provided by law, civil penalties and liabilities levied against a person, including a taxpayer, applicable to the state's sales, use, rental or lodging tax, including those provided for pursuant to the Alabama Taxpayers' Bill of Rights and Uniform Procedures Act, are hereby made applicable under this article for the city's sales, use, rental, or lodging tax, and are incorporated herein by reference as if fully set forth.

(b) *State misdemeanors and violations of corresponding state tax laws.*

(1) Except for an offense that is declared by state law to be a felony, any person committing an offense within the corporate limits of the city that is declared by a corresponding state tax law to be a misdemeanor or a violation, or that results in the imposition of a fine, shall be guilty of an offense against the city.

(2) A person convicted of a violation of subsection (1) above shall be punishable as prescribed in the corresponding state tax law; provided, however, where the penalty or fine under the corresponding state tax law exceeds the penalty provisions of section 1-7 of this Code, in such case section 1-7 shall apply and violations that are continuous in nature with respect to time shall constitute a separate offense for each day or month, as appropriate, that the violation continues.

(c) *Willful failure to collect or pay over tax.* It shall be unlawful for any person that is required under this article to collect, account for, and pay over any tax imposed by this article to willfully fail to collect or truthfully account for and pay over such tax and upon conviction thereof, shall, in addition to other penalties provided by law, be punished by a fine not exceeding $500.00 or by imprisonment in the city jail for a period not exceeding six months, together with costs of court, or by any combination. Each month of such failure shall constitute a separate offense. The penalty imposed upon a corporation shall consist of the fine only, plus costs of court.

(d) *Violation of article.* Where not otherwise provided for under this article, including corresponding state tax laws incorporated herein by reference, any person violating any of the provisions of this article, on conviction, shall be punished by a fine not exceeding $500.00 or by imprisonment in the city jail for a period not exceeding six months, together with costs of court, or by any combination. With respect to violations of this section that are continuous with respect to time, each day or month, as appropriate, that the violation continues is a separate offense. The penalty imposed upon a corporation shall consist of the fine only, plus costs of court.

(e) *Violator may be restrained from continuing in business.* Any city taxpayer who shall violate any of the provisions of this article, including corresponding state tax laws incorporated herein by reference, may be restrained from continuing in business, and the proper prosecution shall be instituted in the name of the city by the city attorney, until such person shall have complied with the provisions of this article.

(f) *Reports under oath.* Wherever in the corresponding state tax laws a report is required to be sworn to, the same, as it relates to city taxes, shall be sworn to by the city taxpayer or his agent before some officer authorized to administer oaths, and any false statement to a material fact made with intent to defraud shall constitute perjury, and upon conviction thereof, the person so convicted shall be punished as provided by law.

(g) *Lien for taxes.* The city shall have a lien for the city taxes as such lien may be provided for or authorized by state law, rule, or regulations.

(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 21-703, § 2, 8-26-2021; Ord. No. 25-388, § 9, 5-22-2025)

Sec. 15-95. Filing of electronic returns.

(a) *Purpose.* The purpose of this section is to authorize the city finance director to accept tax returns filed in electronic commerce without violating other ordinances originally drafted for the use of paper returns submitted either personally or through the mail; to require the filing of certain returns electronically; and, to require the payment of certain returns electronically.

(b) *Electronic filing acceptance.*

(1) The city finance director shall have the authority to accept electronically filed returns or other documents of any type which meet the requirements of applicable state laws and city laws, rules, or regulations adopted under the authority state laws including this article. Electronically filed returns may be accepted if submitted directly by the taxpayer, or by any entity authorized by the city or the Alabama department of revenue.

(2) The city finance director is authorized to accept electronically filed returns and payments for the city taxes levied under this article III.

(3) Electronically filed returns may be accepted if submitted by the taxpayer to any entity authorized by the city to accept such submissions.

(c) *Electronic filing required.* After receiving notice from the city finance director, a taxpayer registered to file a sales tax, use tax, rental tax, or lodgings tax return electronically with the State of Alabama shall file all city sales tax, use tax, rental tax, and lodgings tax returns electronically with the city.

(d) *Electronic payment required.* After receiving notice from the city finance director, a taxpayer that is required to file a return electronically and that is required to make a payment of $750.00 or more with such return shall make the payment electronically to the city. After the $750.00 threshold is met for the first payment, all subsequent payments required with electronically filed returns must be made electronically regardless of the amount.

(e) *Electronic filing return and signature requirements.*

(1) *Electronic filing return.* The tax return consists of the electronic transmission

and electronic data, and any and all supporting documentation as required by regulation.

(2) *Electronic filing signature requirements.* Electronic filing signature requirements shall be as prescribed by applicable state laws.

(f) *Due date for filing electronic returns.* The due date for filing electronic returns for the city taxes levied under this article III shall be the same due date applicable to the electronic payment of the taxes reported on the return. The date and time the taxpayer files the tax return through the Alabama Department of Revenue's electronic filing system shall be the date and time used to determine timely filing of an electronic return.
(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 25-388, § 10, 5-22-2025)

Secs. 15-96—15-107. Reserved.

DIVISION 2. SALES TAXES

Sec. 15-108. Sales tax authorized.

There is hereby levied, in addition to all other taxes of every kind now imposed by law, and shall be collected as herein provided, a privilege or license tax against the person on account of the business activities and in the amount to be determined by the application of rates against gross sales, or gross receipts, as the case may be, as follows:

(1) Upon every person, firm, or corporation, (including the State of Alabama, the University of Alabama, Auburn University and all other institutions of higher learning in the state, whether such institutions be denominational, state, county, or municipal institutions, and any association or other agency or instrumentality of such institutions) engaged or continuing within the city, in the business of selling at retail any tangible personal property whatsoever, including merchandise and commodities of every kind and character, (not including, however, bonds or other evidences of debts or stocks, nor sales of material and supplies to any person for use in fulfilling a contract for the painting, repair, or reconditioning of vessels, barges, ships, and other watercraft and commercial fishing vessels of over five tons load displacement as registered with the U.S. Coast Guard and licensed by the State of Alabama Department of Conservation and Natural Resources), an amount equal to four and one-half percent of the gross proceeds of sales of the business except where a different amount is expressly provided herein. Provided, however, that any person engaging or continuing in business as a retailer and wholesaler or jobber shall pay the tax required on the gross proceeds of retail sales of such business at the rates specified, when his books are kept so as to show separately the gross proceeds of sales of each business, and when his books are not so kept he shall pay the tax as a retailer, on the gross sales of the business.

Where any used part including tires of an automotive vehicle or a truck trailer, semitrailer, or house trailer is taken in trade, or in a series of trades, as a credit or part payment on the sale of a new or rebuilt part or tire, the tax levied herein shall be paid on the net difference, that is, the price of the new or used part or tire sold less the credit for the used part or tire taken in trade, provided however, this provision shall not be construed to include batteries.

(2) Upon every person, firm or corporation engaged or continuing within the city in the business of conducting or operating places of amusement or entertainment, billiard and pool rooms, bowling alleys, amusement devices, musical devices, theaters, opera houses, moving picture shows, vaudevilles, amusement parks, athletic contests, including wrestling matches, prize fights, boxing and wrestling exhibitions, football and baseball games, (including athletic contests, conducted by or under the auspices of any

educational institution within the city, or any athletic association thereof, or other association whether such institution or association be a denominational, a state, or county, or a municipal institution, or association or a state, county, or city school, or other institution, association or school), skating rinks, race tracks, golf courses, or any other place at which any exhibition, display, amusement or entertainment is offered to the public or place or places where an admission fee is charged, including public bathing places, public dance halls of every kind and description within the city, an amount equal to four and one-half percent of the gross receipts of any such business. Provided, however, notwithstanding any language to the contrary in the prior portion of this subsection, the tax provisions so specified shall not apply to any athletic event conducted by a public or nonpublic primary or secondary school or any athletic event conducted by or under the auspices of the Alabama High School Athletic Association. The tax amount which would have been collected pursuant to this subsection shall continue to be collected by said public or nonpublic primary or secondary school but shall be retained by the school which collected it and shall be used by said school for school purposes. This subsection does not apply to ticket sales from co-promotion agreements entered into by the Von Braun Center for events to be held at the Von Braun Center.

(3) Upon every person, firm or corporation engaged or continuing within the city in the business of selling at retail machines used in mining, quarrying, compounding, processing, and manufacturing of tangible personal property, an amount equal to zero percent of the gross proceeds of the sale of machines. The term "machine," as herein used, shall include machinery which is used for mining, quarrying, compounding, processing, or manufacturing tangible personal property, and the parts of such machines, attachments and replacements therefor, which are made or manufactured for use on or in the operation of the machines and which are necessary to the operation of the machines and are customarily so used.

(4) Upon every person, firm, or corporation engaged or continuing within the city in the business of selling at retail any automotive vehicle or truck trailer, semitrailer, house trailer, or mobile home set-up materials and supplies including but not limited to steps, blocks, anchoring, cable pipes, and any other materials pertaining thereto an amount equal to one and three-fourths percent of the gross proceeds of sale of said automotive vehicle or truck trailer, semitrailer, house trailer, or mobile home set-up materials and supplies provided, however, where a person subject to the tax provided for in this subsection withdraws from his stock in trade any automotive vehicle or truck trailer, semitrailer, or house trailer for use by him or by his employee or agent in the operation of such business, there shall be paid, in lieu of the tax levied herein, a fee of $5.00 per year or part thereof during which such automotive vehicle, truck trailer, semitrailer or house trailer shall remain the property of the person. Each such year or part thereof shall begin with the day or anniversary date, as the case may be, of such withdrawal and shall run for the 12 succeeding months or part thereof during which the automotive vehicle, truck trailer, semitrailer, or house trailer shall remain the property of the person.

Where any used automotive vehicle or truck trailer, semitrailer, or house trailer is taken in trade or in a series of trades, as a credit or part payment on the sale of a new or used vehicle, the tax levied herein shall be paid on the net difference, that is, the price of the new or used vehicle sold less the credit for the used vehicle taken in trade.

(5) Upon every person, firm or corporation engaged or continuing within the city in

the business of selling at retail any machine, machinery or equipment which is used in planting, cultivating and harvesting farm products, or used in connection with the production of agricultural produce or products, livestock or poultry on farms, and the parts of such machines, machinery or equipment, attachments and replacements therefor which are made or manufactured for use on or in the operation of such machine, machinery or equipment, and which are necessary to and customarily used in the operation of such machine, machinery or equipment, an amount equal to zero percent of the gross proceeds of the sale thereof. Provided, however, the zero percent rate herein prescribed with respect to parts, attachments, and replacements shall not apply to any automotive vehicle or trailer designed primarily for public highway use, except farm trailers used primarily in the production and harvesting of agricultural commodities.

Where any used machine, machinery or equipment which is used in planting, cultivating, and harvesting farm products, or used in connection with the production of agricultural produce or products, livestock and poultry on farms is taken in trade or in a series of trades as a credit or part payment on a sale of a new or used machine, machinery or equipment, the tax levied herein shall be paid on the net difference, that is, the price of the new or used machine, machinery or equipment sold, less the credit for the used machine, machinery or equipment taken in trade.

(6) Upon every person, firm, or corporation engaged or continuing within the city in the business of selling through coin-operated dispensing machines, food and food products for human consumption, not including beverages other than coffee, milk, milk products and substitutes therefor, there is levied a tax equal to four and one-half percent of the cost of the food, food products, and beverages sold through the machines, which cost for the purpose of this subsection shall be the gross proceeds of sales of the business.

(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 13-968A, §§ 1—3, 12-19-2013)

Sec. 15-109. Disposition of sales and use taxes.

The council directs that sales and use tax revenue of the city, as determined pursuant to generally accepted accounting principles be disposed of as follows:

(1) For sales and use tax revenue earned based on tax rates in effect prior to March 1, 2014:

a. The revenue will be reported in the general fund of the city.

b. For fiscal years 2011 and 2012, 23.1 percent of the revenue, and for fiscal year 2013 and each year thereafter, 18.0 percent of the revenue will be appropriated from the general fund to the capital improvement fund of the city each fiscal year, and shall be expended in the capital improvement fund consistent with the city's ten-year capital improvement plan.

c. For fiscal years 2011 and each year thereafter, designates that 14.7 percent of sales and use tax revenue be appropriated from the general fund to the city board of education each fiscal year, and further directs that such appropriation be paid directly to the city board of education on a monthly basis.

(2) For the additional one percent sales and use tax rate effective March 1, 2014:

a. The revenue will be reported in the 2014 capital improvement fund of the city.

b. Revenue shall first be used to establish and maintain a reasonable contingency and debt service reserve, as prescribed in the city's budget.

c. Should the city issue debt obligations to finance any costs described herein, remaining revenue shall be appropriated to pay the principal, interest and other debt-related costs on such obligations.

d. For fiscal year 2014 and thereafter, the lesser of $25,000,000.00 per year or remaining revenue, but not to exceed $125,000,000.00 in total, shall be appropriated to fulfill the city's commitment for the cost of infrastructure projects identified in the State of Alabama/City of Huntsville 5-Year Joint Projects Funding Agreement released December 2, 2013.

e. Remaining revenue shall first be appropriated for the construction of public roads, including but not limited to, right-of-way acquisition, engineering, testing, construction costs of the roads and all infrastructure related thereto, and shall be at least $25,000,000.00 per year, inclusive of any amounts appropriated pursuant to subsection (2)d above.

f. Any remaining revenue, over and above the amounts appropriated pursuant to subsections (2)d and e above, shall be expended for the cost of new, long-lived city capital assets, or long-lived improvements to city capital assets, consistent with the city's ten-year 2015 capital improvement plan, or economic development incentives.

g. The unexpended appropriations of any fiscal year described herein shall be re-appropriated in the subsequent fiscal year until fully expended.

(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 13-959A, § 1, 12-19-2013)

Sec. 15-110. Provisions of corresponding state sales tax applicable to city sales tax.

All provisions of the corresponding state sales tax law, including those for collection and enforcement, that are made applicable in section 15-92 to the city sales taxes levied or assessed in this division are incorporated herein by reference and made a part hereof as if fully set forth herein. Without limiting the generality of the foregoing, the following are violations of this division:

(1) *Penalty for failure to make reports or keep records.* Any person subject to the provisions of this division who shall fail to make the reports or any of them, as required, or who shall fail to keep the records as required, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense. Each month of such failure shall constitute a separate offense. (See Code of Ala. 1975, § 40-23-11)

(2) *Penalty for willful refusal to make reports or permit examination of records.* Any person subject to the provisions of this division willfully refusing to make the reports required, or who shall refuse to permit the examination of his records by the finance department, or its duly authorized agents, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned in the city jail for a period not to exceed six months. Each month of failure to make such reports shall constitute a separate offense, and each refusal of a written demand of the department to examine, inspect or audit such records shall constitute a separate offense. (See Code of Ala. 1975, § 40-23-12)

(3) *Tax to be added to purchase price; refund unlawful; tax a direct tax on retail consumer.*

a. Every person, firm, corporation, association or copartnership engaged in or continuing within this city in the business for which a license or privilege tax is required by this division shall add to the sales price

and collect from the purchaser on all sales upon the gross receipts or gross proceeds of which there is levied by this division a sales tax at the rate set forth in section 15-108 of this division.

b. It shall be unlawful for any person, firm, corporation, association or copartnership described in this section to fail or refuse to add to the sales price and collect from the purchaser the amount required by this section to be so added to the sales price and collected from the purchaser; and it shall likewise be unlawful to refund or offer to refund all or any part of the amount collected, or to absorb or advertise directly or indirectly the absorption or refund of the amount required to be added to the sales price and collected from the purchaser, or any portion of such amount. Any person, firm, corporation, association or copartnership violating any of the provisions of this section shall be guilty of a misdemeanor, and upon conviction shall be fined in a sum of not less than $50.00 nor more than $100.00, or may be imprisoned in the city jail for not more than six months, or may be punished by both such fine and imprisonment, and each act in violation of the provisions of this division shall constitute a separate offense. The provisions of this section that there shall be added to the sale price and collected from the purchaser the amounts provided herein shall in no way relieve the person, firm, corporation, association or copartnership described in this section of the tax levied by this division; nor shall the inability, impracticability, refusal or failure to add to the sales price and collect from the purchaser the amounts provided herein relieve such person, firm, corporation, association or copartnership from the tax levied by this division.

c. All taxes paid in pursuance to this division or any other statute enacted in this connection shall conclusively be presumed to be a direct tax on the retail consumer, precollected for the purpose of convenience and facility only.

d. In the event that any sum is collected from a consumer that purports to be collected because of this section, whether or not the amount is actually provided for hereunder, then any such sum, except such as is collected solely because of rounding the correct amount of tax upward to the nearest cent, shall be paid to the city for the purposes provided in section 15-106 of this division. (See Code of Ala. 1975, § 40-23-26)

(Ord. No. 25-388, § 11, 5-22-2025)

Secs. 15-111—15-115. Reserved.

DIVISION 3. USE TAX

Sec. 15-116. Property taxed; persons liable.

(a) An excise tax is hereby imposed on the storage, use or other consumption in the city of tangible personal property, not including, however, materials and supplies bought for use in fulfilling a contract for the painting, repairing, or reconditioning of vessels, barges, ships, and other watercraft and commercial fishing vessels of over five tons load displacement as registered with the U.S. Coast Guard and licensed by the State of Alabama Department of Conservation and Natural Resources, purchased at retail on or after the effective date of this ordinance for storage, use or other consumption in the city, except as provided in subsections (b), (c) and (f), at the rate of four and one-half percent of the sales price of such property within the corporate limits of the city.

(b) An excise tax is hereby imposed on the storage, use or other consumption in the city of any machines used in mining, quarrying, compounding, processing, and manufacturing of tangible personal property purchased at retail on or after the effective date of this ordinance at the rate of zero percent of the sales price of any such machine; provided, that the term "machine" as herein used, shall include machinery which is used for mining, quarrying, compounding, processing, or manufacturing tangible personal property, and the parts of such machines, attachments and replacements therefor, which are made or manufactured for use on or in the operation of such machines and which are necessary to the operation of such machines and are customarily so used.

(c) An excise tax is hereby imposed on the storage, use or other consumption in the city on any automotive vehicle or truck trailer, semitrailer, house trailer, and mobile home set-up materials and supplies including but not limited to steps, blocks, anchoring, cable pipes and any other materials pertaining thereto purchased at retail on or after the effective date of this ordinance for storage, use or other consumption in the city at the rate of one and three-fourths percent of the sales price of such automotive vehicle, truck trailer, semitrailer or house trailer, and mobile home set-up materials and supplies within the corporate limits of the city. Where any used automotive vehicle or truck trailer, semitrailer or house trailer is taken in trade, or in a series of trades, as a credit or part payment on the sale of a new or used vehicle, the tax levied herein shall be paid on the net difference, that is, the price of the new or used vehicle sold less the credit for the used vehicle taken in trade.

(d) Every person storing, using or otherwise consuming in the city tangible personal property purchased at retail shall be liable for the tax imposed by this article, and the liability shall not be extinguished until the tax has been paid to the city; provided, that a receipt from a retailer maintaining a place of business in the city or a retailer authorized by the city, under such rules and regulations as it may prescribe, to collect the tax imposed hereby and who shall for the purpose of this article be regarded as a retailer maintaining a place of business in the city, given to the purchaser in accordance with the provisions of Code of Ala. 1975 § 40-23-67, shall be sufficient to relieve the purchaser from further liability for tax to which such receipt may refer.

(e) An excise tax is hereby imposed on the classes of tangible personal property, and at the rates imposed on such classes, specified in subsections (a), (b) and (c) of this section, on the storage, use, or other consumption in the performance of a contract in the city of any such tangible personal property, new or used, the tax to be measured by the sales price or the fair and reasonable market value of such tangible personal property when put into use in the city, whichever is less; provided, that the tax imposed by this subsection shall not apply where the taxes imposed by subsection (a), (b) or (c) of this section apply.

(f) An excise tax is hereby levied and imposed on the storage, use or other consumption in the city of any machine, machinery or equipment which is used in planting, cultivating and harvesting farm products, or used in connection with the production of agricultural produce or products, livestock or poultry on farms, and the parts of such machines, machinery or equipment, attachments and replacements therefor which are made or manufactured for use on or in the operation of such machine, machinery or equipment, and which are necessary to and customarily used in the operation of such machine, machinery or equipment, which is purchased at retail after the effective date of this ordinance, for the storage, use or other consumption in the city at the rate of zero percent of the sales price of such property within the corporate limits of said City of Huntsville, Alabama, regardless of whether the retailer is or is not engaged in the business in the city. Provided, however, the zero percent rate herein prescribed with respect to parts, attachments, and replacements shall not apply to any automotive vehicle or trailer designed primarily for public highway use, except farm trailers used primarily in the production and harvesting of agricultural commodities.

(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 13-969A, § 1, 12-19-2013)

Sec. 15-117. Disposition of funds derived from tax.

Proceeds derived from the use taxes described in this article shall be disposed of in accordance with the requirements of section 15-109.
(Ord. No. 12-365, § 3, 5-24-2012)

Sec. 15-118. Provisions of corresponding state use tax applicable to city use tax.

All provisions of the corresponding state use tax law, including those for collection and enforcement, that are made applicable in section 15-92 of this chapter to the city use taxes levied or assessed in this division are incorporated herein by reference and made a part hereof as if fully set forth herein. Without limiting the generality of the foregoing, the following are violations of this division:

(1) *Seller to collect tax; seller not to assume or absorb tax.* Every such seller, as "such seller" is specified in Code of Ala. 1975, § 40-23-66, making sales of tangible personal property for storage, use or other consumption in this city, not exempted under the provisions of Code of Ala. 1975, § 40-23-62, shall at the time of making such sales or, if the storage, use or other consumption of the tangible personal property is not then taxable hereunder, at the time such storage, use or other consumption becomes taxable hereunder, collect the tax imposed by this division from the purchaser, and give to the purchaser a receipt therefor in the manner and form prescribed by the finance department. The tax required to be collected by the seller from the purchaser shall be displayed separately from the list, advertised in the premises, marked or other price on the sales check or other proof of sales. It shall be unlawful for any such seller to advertise or hold out or state to the public or to any customer, directly or indirectly, that the tax or any part thereof imposed by this division will be assumed or absorbed by the seller or that it will not be added to the selling price of the property sold, or if added that it or any part thereof will be refunded. Any person violating any of the provisions of this section shall be guilty of a misdemeanor. The tax herein required to be collected by the seller shall constitute a debt owed by the seller to this city. (See Code of Ala. 1975, § 40-23-67)

(2) *Failure to file a return; false return.* Any seller or other person failing or refusing to furnish any return required to be made, or failing or refusing to furnish a supplemental return or other data required by the finance department, or rendering a false or fraudulent return, shall be guilty of a misdemeanor and subject to a fine of not exceeding $500.00 for each such offense. (See Code of Ala. 1975, § 40-23-88)

(3) *False or fraudulent return.* Any person required to make, render, sign or verify any report as aforesaid who makes any false or fraudulent return, with intent to defeat or evade the determination of an amount due required by law to be made shall be guilty of a misdemeanor, and shall for each such offense be fined not less than $50.00 and not more than $500.00, or be imprisoned in the city jail not exceeding six months or be subject to both said fine and imprisonment in the discretion of the court. (See Code of Ala. 1975, § 40-23-88)

(Ord. No. 25-388, § 12, 5-22-2025)

Secs. 15-119—15-123. Reserved.

DIVISION 4. RENTAL TAX

Sec. 15-124. License required.

If any person shall engage in or continue in any business for which a privilege tax is imposed by section 15-125 as a condition precedent to engaging or continuing in such business, he shall apply for and obtain from the city finance department a license to engage in and to conduct such business for the current tax year upon the condition that he shall pay the license fees

accruing to the city under the provisions of this article; however, no license shall be issued under the provisions of this article to any person who has not complied with the provisions of this article, and no provision of this article shall be construed as relieving any person from the payment of any license or privilege fee imposed by law.
(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 25-388, § 13, 5-22-2025)

Sec. 15-125. Levy and amount of fee.

(a) In addition to all other taxes imposed by law, there is levied and shall be collected as provided in this article a privilege or license tax on each person engaging or continuing within the city in the business of leasing or renting tangible personal property at the rate of three percent of the gross proceeds derived by the lessor from the lease or rental of tangible personal property; provided, that the said privilege or license tax on each person engaging or continuing within this city in the business of leasing or renting any automotive vehicle or truck trailer, semitrailer or house trailer shall be at the rate of one and one-half percent of the gross proceeds derived by the lessor from the lease or rental of such automotive vehicle or truck trailer, semitrailer or house trailer; provided further, that the fee levied in this section shall not apply to any leasing or rental, as lessor, by the state or any municipality or county in the state, or any public corporation organized under the laws of the state, including without limiting the generality of the foregoing, any corporation organized under the provisions of Code of Ala. 1975, §§ 11-54-80 through 11-54-101; provided further, that the privilege or license tax on each person or firm engaging or continuing within the city in the business of the leasing and rental of linens and garments shall be at the rate of three percent of the gross proceeds by the lessor from the lease or rental of such linens and garments.

(b) Notwithstanding the above, nothing shall prohibit a lessor subject to a state or local privilege or license tax from passing such amounts on to a lessee by adding such taxes to the leasing price or otherwise, provided, however, that all such amounts passed on to the lessee shall be includable in the gross proceeds derived from the lease of tangible personal property which shall be subject to the privilege or license tax owed by the lessor.

Provided, however, the authority to pass on such amounts of the privilege or license tax granted in this subsection shall not apply to the leasing or renting of tangible personal property to the State of Alabama, a municipality, or county in the state, unless the flat amount collected by the lessor includes both the tax and the leasing fee.
(Ord. No. 12-365, § 3, 5-24-2012)

Sec. 15-126. Proceeds of fees deposited in general fund.

The proceeds derived from the fees levied in this article shall be placed in the general fund of the city, subject to appropriation by the city council for any lawful purpose of the city.
(Ord. No. 12-365, § 3, 5-24-2012)

Sec. 15-127. Provisions of corresponding state rental tax applicable to city rental tax.

All provisions of the corresponding state rental tax law, including those for collection and enforcement, that are made applicable in section 15-92 of this chapter to the city rental taxes levied or assessed in this division are incorporated herein by reference and made a part hereof as if fully set forth herein. Without limiting the generality of the foregoing, the following are violations of this division:

(1) *Penalty for failure to make reports or keep records.* Any person subject to the provisions of this division who shall fail to make the reports or any of them, as required, or who shall fail to keep the records as required, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense. Each month of such failure shall constitute a separate offense. (See Code of Ala. 1975, § 40-23-11, made applicable under Code of Ala. 1975, § 40-12-224)

(2) *Penalty for willful refusal to make reports or permit examination of records.* Any person subject to the provisions of this division willfully refusing to make the reports required, or who shall refuse to permit the examination of his records by the finance department, or its duly authorized agents, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned in the city jail for a period not to exceed six months. Each month of failure to make such reports shall constitute a separate offense, and each refusal of a written demand of the department to examine, inspect or audit such records shall constitute a separate offense. (Code of Ala. 1975, § 40-23-12 made applicable under Code of Ala. 1975, § 40-12-224)

(Ord. No. 25-388, § 14, 5-22-2025)

Secs. 15-128—15-130. Reserved.

DIVISION 5. LODGING TAX

Sec. 15-131. Levy of license fee.

(a) There is levied and imposed, in addition to all other fees of every kind now imposed by law, a privilege or license tax upon every person engaging in the city in the following:

(1) The business of renting or furnishing any room or rooms, lodging, or accommodations to transients in any hotel, motel, inn, tourist camp, tourist cabin, or any other place in which rooms, lodging, or accommodations are regularly furnished to transients for a consideration. The tax shall be in an amount equal to nine percent of the charge for such room, rooms, lodgings, or accommodations, including the charge for use or rental of personal property and services furnished in such room; plus $2.00 per room or lodging for each day, or portion of a day, such room or lodging is rented or furnished to a transient for a consideration; or

(2) The business of renting or furnishing space for accommodation of trailers for consideration. The license fee shall be in an amount equal to nine percent of the charge for such trailer space; provided, that charges made by persons in the business of renting trailer space for use of washing machines, electric power, garbage collection, water supply, and other such charges shall not be included in the measure of the privilege license tax; only the charge for trailer space proper shall be included; plus $2.00 per trailer space for each day, or portion of a day, such space is rented or furnished for a consideration for the accommodation of a trailer.

(b) As generally provided for in section 15-92 of this article, the exemptions for the lodging tax levied by this division shall be parallel to exemptions of the corresponding state lodging tax, which include exemptions for rooms, lodgings, or accommodations supplied: (i) for a period of 180 continuous days or more in any place; (ii) by camps, conference centers, or similar facilities operated by nonprofit organizations primarily for the benefit of, and in connection with, recreational or educational programs for children, students, or members or guests of other nonprofit organizations during any calendar year; (iii) by privately operated camps, conference centers, or similar facilities that provide lodging and recreational or educational programs exclusively for the benefit of children, students, or members or guests of nonprofit organizations during any calendar year; or (iv) in connection with the production of a qualified film duly certified for exemption by the state film office in accordance with the corresponding state tax laws.

(c) For purposes of subsection (b), "children" means individuals under age 21; "student" is defined in accordance with 26 U.S.C. § 151(c)(4), as in effect from time to time or by any successor law; "nonprofit organization" is an organization exempt from federal income tax under 26 U.S.C. § 501(c)(3), as in effect from time to time or any successor law; and "privately operated" refers to

any camp, conference center, or similar facility other than those operated by a nonprofit organization as herein defined.
(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 13-355, § 1, 5-23-2013; Ord. No. 13-433, § 1, 6-27-2013; Ord. No. 17-456, § 1, 6-13-2017)

Sec. 15-132. Certain municipal privilege license taxes excluded in computation of tax.

Municipal privilege license taxes which are levied and collected by the application of a flat percentage rate on gross sales or gross receipts from sales, and which are passed on directly by the licensee-seller to the purchaser-consumer or user shall be excluded from gross sales or gross receipts, as the case may be, in the computation of the city lodgings tax levied and imposed by this division.
(Ord. No. 12-365, § 3, 5-24-2012)

Sec. 15-133. Accounting for license fees.

The nine percent privilege license fee ("percentage fee") and the $2.00-per-day (per room and per space) privilege license fee ("per-day fee") levied in subsections 15-131(a)(1) and (a)(2) shall be used as follows:

(1) Five percentage points of the percentage fee shall be used for the planning, operation, maintenance, and expansion of a visitor's bureau, a civic center, and a sports commission.

(2) One percentage point of the percentage fee shall be used for the construction, maintenance, repair, or replacement of recreational facilities and structures.

(3) One percentage point of the percentage fee shall be used for the promotion of tourism, including, but not limited to, "bid proposal fees" for convention and meeting events, and related tourism promotional fee requirements. Allocation of these funds shall be administered in accordance with Resolution No. 13-915, adopted November 7, 2013, as such resolution may be amended from time to time.

(4) a. Subject to subsection b. below, two percentage points of the percentage fee and $1.00 of the per-day fee shall be used for capital projects involving the expansion, renovation, or repair of a civic center and/or amphitheater.

b. Effective October 1, 2020, and for each subsequent fiscal year until retired, 20 percent of this fee, that is, the two percentage points of the percentage fee and $1.00 of the per-day fee, shall be allocated to payment of debt associated with the original construction of the amphitheater.

(5) One dollar of the per-day license fee shall be used for the promotion of tourism through funding of annual operation and maintenance of the various tourism supporting facilities and activities within the city.

(Ord. No. 12-365, § 3, 5-24-2012; Ord. No. 13-355, § 2, 5-23-2013; Ord. No. 13-433, § 2, 6-27-2013; Ord. No. 17-456, § 2, 6-13-2017; Ord. No. 20-486, § 1, 6-25-2020)

Sec. 15-134. Provisions of corresponding state lodging tax applicable to city lodging tax.

All provisions of the corresponding state lodging tax law, including those for collection and enforcement, that are made applicable in section 15-92 of this chapter to the city lodging taxes levied or assessed in this division are incorporated herein by reference and made a part hereof as if fully set forth herein. Without limiting the generality of the foregoing, the following are violations of this division:

(1) *Failure to make reports and keep records.* Any person, firm or corporation subject to the provisions of this division who fails to make the reports or any of them as herein required, or who fails to keep the records as herein required, shall be guilty of a misdemeanor and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense. Each

month of such failure shall constitute a separate offense. (See Code of Ala. 1975, § 40-26-8)

(2) *Willful refusal to make reports or permit examination of records.* Any person, firm or corporation subject to the provisions of this division willfully refusing to make the reports herein required, or who shall refuse to permit the examination of his or its records by the finance department, or its duly authorized agents, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $50.00 nor more than $500.00 for each offense, and in addition may be imprisoned in the city jail for a period not to exceed six months. Each month of failure to make such report shall constitute a separate offense and each refusal of a written demand of the department to examine, inspect or audit such records shall constitute a separate offense. (See Code of Ala. 1975, § 40-26-9)

(3) *Failure to add tax to price of service; refund or absorption of tax prohibited.*

It shall be unlawful for any person, firm or corporation engaged in or continuing within this city in any business for which a license or privilege tax is required by this division to fail or refuse to add to the price of the service rendered the amount due by the taxpayer on account of the tax levied by this division. Nor shall any person refund or offer to refund all or any part of the amount collected as tax under this division or to absorb such tax or to advertise directly or indirectly the absorption or refund of such tax or any portion of the same. Any person, firm or corporation violating any of the provisions of this section shall be guilty of a misdemeanor and upon conviction shall be fined in a sum not less than $50.00 nor more than $100.00, or may be imprisoned in the city jail for not more than six months, or by both such fine and imprisonment, and each act or violation of the provisions of this division shall constitute a separate offense. (See Code of Ala. 1975, § 40-26-16)
(Ord. No. 25-388, § 15, 5-22-2025)

Secs. 15-135—15-140. Reserved.

ARTICLE IV. LIQUOR PRIVILEGE LICENSE*

Sec. 15-141. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Gross receipts or *gross sales* means the total amount charged or received as consideration by a licensee in connection with the sale of liquor or alcoholic drinks containing liquor (including all ingredients which are made a part of such drinks).

Liquor means any alcoholic, spirituous, vinous, fermented, or other alcoholic beverage, or combination of liquors and mixed liquor, a part of which is spirituous, fermented, vinous or otherwise alcoholic, and all drinks or drinkable liquids, preparations or mixtures intended for beverage purposes, which contain one-half of one percent or more of alcohol by volume, except beer and table wine, as those terms are defined by applicable state law.
(Ord. No. 93-21, § 1, 1-28-1993; Ord. No. 02-364, § 1, 5-9-2002; Ord. No. 12-365, § 4, 5-24-2012; Ord. No. 19-524, § 1, 7-11-2019)

Cross reference—Definitions generally, § 1-2.

Sec. 15-142. License fee imposed.

There is levied, in addition to all other taxes of every kind and nature imposed by law, and shall be collected as provided in this article, a privilege or license fee upon every person, including private clubs, engaged or continuing within the corporate limits of the city in the business of selling liquor or alcoholic drinks containing liquor (including all ingredients which are made a part of such drinks) in an amount equal to 12 percent of the gross receipts or gross sales from that part of the business described in this article. The provisions of this section shall not apply to any privately owned retail liquor store or any liquor store operated by the state alcoholic beverage control board, or to the retail sales of a duly licensed

*Cross reference—Alcoholic beverages, ch. 3.

manufacturer of liquor for off-premises consumption made in accordance with applicable state law.
(Ord. No. 93-21, § 2, 1-28-1993; Ord. No. 93-534, § 1, 8-26-1993; Ord. No. 13-355, § 3, 5-23-2013; Ord. No. 19-524, § 2, 7-11-2019; Ord. No. 20-1003, § 1, 11-5-2020)

State law reference—Privilege licenses on alcohol authorized, Code of Ala. 1975, § 28-3A-21(c).

Sec. 15-143. License required; general license provisions not affected.

(a) If any person shall engage in or continue in any business for which a privilege fee is imposed by this article as a condition precedent by engaging or continuing in such business, he shall apply for and obtain from the city finance department a license to engage in and to conduct such business for the current tax year upon the condition that he shall pay the privilege fees accruing to the city finance department under the provisions of this article.

(b) The amount of privilege license fees provided for in this article shall be additional to and cumulative of all amounts required to be paid under article II of this chapter and to all other licenses and taxes levied by law as a condition precedent to engaging in any business taxable under this article, except as in this article otherwise specifically provided.

(c) No provision of this article shall be construed as relieving any person from the payment of any license or privilege fee imposed by law.

(d) No license shall be issued under the provisions of this article to any person who has not complied with the provisions of this article.
(Ord. No. 93-21, § 3, 1-28-1993; Ord. No. 25-388, § 16, 5-22-2025)

State law reference—Privilege license authorized, Code of Ala. 1975, § 11-51-90(a)(1).

Sec. 15-144. License fees due monthly; filing of reports; estimated payment authorized; extension of time for making returns.

The license fees levied under the provisions of this article, except as otherwise provided, shall be due and payable in monthly installments on or before the 20th day of the month next succeeding the month in which the license fee accrues. On or before the 20th of each month, every person on whom the license fees levied by this article is imposed shall render to the city, on a form prescribed by the city, a true and correct statement showing the gross sales, the gross proceeds of sales, or gross receipts of his business, as the case may be, for the next preceding month; the amount of gross proceeds or gross receipts which are not subject to the license fee, or are not to be used as a measurement of the fees due by such person, and their nature, together with such other information as the city may demand and require. At the time of making such monthly report such persons shall compute the license fees due and shall pay to the city finance department the amount of license fees shown to be due.
(Ord. No. 93-21, § 4, 1-28-1993; Ord. No. 25-388, § 16, 5-22-2025)

Sec. 15-145. Cash sales and credit collections to be reported.

Any person taxable under this article, having cash and credit sales, may report such cash sales; and the taxpayer shall thereafter include in each monthly report all credit collections made during the month preceding and shall pay the license fees due at the time of filing such report; but in no event shall the gross proceeds of credit sales be included in the measure of the license fee to be paid until collections of such credit sales shall have been made.
(Ord. No. 93-21, § 5, 1-28-1993)

Sec. 15-146. Records to be kept.

It shall be the duty of every person engaging or continuing in this city in any business for which a privilege license fee is imposed by this article, to keep and preserve suitable records of the gross sales, gross proceeds of sales, and gross receipts or gross receipts of sales of such business and such other books or accounts as may be necessary to determine the amount of privilege license fee for which he is liable under the provisions of this article. And it shall be the duty of every person to keep and preserve all invoices

of goods for resale or otherwise; and all such books, invoices and other records shall be open for examination by the city. All sales shall be subject to the license fee in the absence of such records.
(Ord. No. 93-21, § 6, 1-28-1993)

Sec. 15-147. Reports under oath.

The monthly reports required in this article to be made are not required to be made on oath; but wherever in this article any report is required to be sworn to, it shall be sworn to by the taxpayer or his agent before some officer authorized to administer oaths.
(Ord. No. 93-21, § 7, 1-28-1993)

State law reference—Perjury and related offenses, Code of Ala. 1975, § 13A-10-100 et seq.

Sec. 15-148. Penalty for failing to make reports or keep records.

Any person subject to the provisions of this article who shall fail to make the reports or any of them as required in this article or who shall fail to keep the records as required in this article shall be guilty of a misdemeanor and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense. Each month of such failure shall constitute a separate offense.
(Ord. No. 93-21, § 8, 1-28-1993)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 15-149. Willful failure to file return, supply information, or pay privilege license fee.

Any person required under this article to pay the privilege or license fee levied hereunder, or required by this article to make a return, keep any records, or supply any information, who willfully fails to pay such fee, make such return, keep such records, or supply such information, at the time or times required by law, shall, in addition to other penalties provided by law, be guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than $50.00 nor more than $500.00, for each offense, and in addition may be imprisoned in the city jail for a period not to exceed six months, together with the cost of court. Each month of such failure shall constitute a separate offense.
(Ord. No. 93-21, § 9, 1-28-1993; Ord. No. 21-703, § 3, 8-26-2021)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 15-150. Person selling out or quitting business to file return, part of purchase money to be withheld.

Any person subject to the provisions of this article who shall sell out his business or stock of goods, or shall quit business, shall be required to make out the return provided for under section 15-144 within 30 days after the date he sold out his business or stock of goods, or quit business; and his successor in business shall be required to withhold sufficient of the purchase money to cover the amount of license fees due and unpaid until such time as the former owner shall produce a receipt from the city showing that the license fees have been paid, or a certificate that no license fees are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money, the license fees shall be due and unpaid after the 30-day period allowed and he shall be personally liable for the payment of the license fees accrued and unpaid on account of the operation of the business by the former owner. If in such cases the city deems it necessary in order to collect the license fees due the city, it may make a jeopardy assessment.
(Ord. No. 93-21, § 10, 1-28-1993)

Sec. 15-151. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this article may be restrained from continuing in business, and the proper prosecution shall be instituted in the name of the city by its attorney until such person shall have complied with the provisions of this article.
(Ord. No. 93-21, § 11, 1-28-1993)

Sec. 15-152. Enforcement; appointment of agents.

The enforcement of any of the provisions of this article shall be under the jurisdiction and

supervision of the city finance department, and the city finance department may require the assistance of and act through the city attorney.
(Ord. No. 93-21, § 12, 1-28-1993; Ord. No. 25-388, § 16, 5-22-2025)

Sec. 15-153. Reserved.

Editor's note—Section 5 of Ord. No. 12-365, adopted May 24, 2012, repealed § 15-153 which pertained to mayor to make rules and regulations, and derived from Ord. No. 93-21, § 13, adopted Jan. 28, 1993.

Sec. 15-154. Accounting for license fees.

The proceeds derived from the privilege license fees levied in this article shall be accounted for within a special account of the general fund. The proceeds derived from the privilege license fees levied shall be used for the promotion of tourism and the planning, construction and operation of a civic center and auditorium for the city.
(Ord. No. 93-21, § 14, 1-28-1993; Ord. No. 03-556, § 1, 7-10-2003)

Sec. 15-155. Uniform procedures.

The provisions of section 15-75 of this chapter shall govern the administrative review and appeal rights available under this article.
(Ord. No. 93-21, § 15, 1-28-1993; Ord. No. 12-365, § 6, 5-24-2012)

Secs. 15-156—15-190. Reserved.

ARTICLE V. SALE OF LIQUID FUEL PRIVILEGE LICENSE

Sec. 15-191. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Distributor or *seller* includes every person who shall engage in selling or delivering gasoline or motor fuel, or both, within the corporate limits of the city.

Gasoline means gasoline, naphtha and all other liquid fuels commonly used in internal combustion engines. However, the term shall not include those products known commercially as kerosene oil, fuel oil or crude oil commonly used for heating, lighting, or industrial purposes; nor shall the term include any fuel sold and delivered for use in the operation of an airplane, helicopter, or other vehicle used for private or commercial aviation.

Motor fuel includes diesel fuel, tractor fuel, gas oil, distillate, or liquefied gas when sold and delivered for use in the operation of any motor vehicle upon public highways in the city.
(Ord. No. 93-23, § 1, 1-28-1993; Ord. No. 02-366, § 1, 5-9-2002; Ord. No. 12-365, § 7, 5-24-2012)

Cross reference—Definitions generally, § 1-2.

Sec. 15-192. License fee imposed.

Every distributor or seller shall pay a license fee to the city. A license fee is fixed and levied and shall be an amount equal to $0.01 for each gallon of gasoline or motor fuel sold or delivered within the corporate limits of the city by such distributor or seller.
(Ord. No. 93-23, § 2, 1-28-1993)

State law reference—Privilege license fee authorized, Code of Ala. 1975, § 11-51-90(a)(2).

Sec. 15-193. License required; general license provisions not affected.

(a) If any person shall engage in or continue in any business for which a privilege fee is imposed by this article, as a condition precedent by engaging or continuing in such business, he shall apply for and obtain from the city finance department a license to engage in and to conduct such business for the current tax year upon the condition that he shall pay the privilege fees accruing to the city finance department under the provisions of this article.

(b) It shall be unlawful for any distributor or seller having no place of business within the corporate limits of the city to make any sales or deliveries of gasoline in the city without first having obtained a permit from the city finance department. Such distributor or seller shall be liable for and pay the same license fee as that fixed and levied in section 15-192. Any seller or

distributor who shall violate any provisions of this article shall be punished as provided by the city.

(c) The amount of privilege license fees provided for in this article shall be additional to and cumulative of all amounts required to be paid under article II of this chapter and to all other license fees and taxes levied by law as a condition precedent to engaging in any business taxable under this article, except as in this article otherwise specifically provided.

(d) No provision of this article shall be construed as relieving any person from the payment of any license or privilege fee imposed by law.

(e) No license shall be issued under the provisions of this article to any person who has not complied with the provisions of this article.
(Ord. No. 93-23, § 3, 1-28-1993; Ord. No. 25-388, § 17, 5-22-2025)

State law reference—Privilege license authorized, Code of Ala. 1975, § 11-51-90(a)(1).

Sec. 15-194. Exemption on purchases from other distributors or sellers.

Any person engaged as a distributor or seller in selling or distributing gasoline or motor fuel purchased from other distributors or sellers who have paid the license fee imposed in this article with respect to the sale or delivery of motor fuel shall not be required to pay any license fee with respect to the sale or delivery of such gasoline or motor fuel so purchased; provided, that in order to obtain the exemption in this section, such distributor or seller must on or before February 20, 1957, and on or before the 20th of every month thereafter file with the city a sworn, written statement showing each and every purchase by such person of gasoline and motor fuel during the calendar month next preceding, as well as the name of the person from whom, the amount and the date on which purchased.
(Ord. No. 93-23, § 4, 1-28-1993)

Sec. 15-195. Sales in interstate commerce excluded.

The provisions of this article shall not apply to any sales or deliveries which constitute interstate commerce.
(Ord. No. 93-23, § 5, 1-28-1993)

Sec. 15-196. Pumps must be metered.

It shall be the duty of every person selling or distributing gasoline within the corporate limits of the city to have a meter in good working order on each and every pump from which gasoline is dispensed and to keep an accurate record of the readings of the meter.
(Ord. No. 93-23, § 6, 1-28-1993)

Sec. 15-197. Written statement of sales must be filed.

Each distributor and seller, except such as are exempt from license fees under the provisions of section 15-194, shall on or before February 20, 1957, and on or before the 20th day of each month thereafter, file with the city a sworn, written statement. Such sworn, written statement shall be a full, true, accurate and correct statement of the following:

(1) The amount and quantity of all gasoline and of all motor fuel sold or delivered by such distributor or seller within the corporate limits of the city; and

(2) The amount and quantity of all gasoline sold and delivered to any other distributor within the corporate limits of the city.

(Ord. No. 93-23, § 7, 1-28-1993)

Sec. 15-198. Records to be kept.

It shall be the duty of every person engaging or continuing in this city in any business for which a privilege license fee is imposed by this article to keep and preserve suitable records of the gross sales and gross receipts or gross receipts of sales of such business and such other books or accounts as may be necessary to determine the amount of privilege license fee for which he is liable under the provisions of this article. It shall be the duty of every person to keep and preserve all invoices of goods for resale or otherwise; and

all such books, invoices and other records shall be open for examination by the city. All sales shall be subject to the license fee in absence of such records.
(Ord. No. 93-23, § 8, 1-28-1993)

Sec. 15-199. Reports under oath.

The monthly reports required in this article to be made are not required to be made on oath; but wherever in this article any report is required to be sworn to, it shall be sworn to by the taxpayer or his agent before some officer authorized to administer oaths.
(Ord. No. 93-23, § 9, 1-28-1993)

State law reference—Perjury and related offenses, Code of Ala. 1975, § 13A-10-100 et seq.

Sec. 15-200. Penalty for failure to make reports or keep records.

Any person subject to the provisions of this article who shall fail to make the reports or any of them, as required in this article or who shall fail to keep the records as required in this article shall be guilty of a misdemeanor and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense. Each month of such failure shall constitute a separate offense.
(Ord. No. 93-23, § 10, 1-28-1993)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 15-201. Willful failure to file return, supply information, or pay license fee.

Any person required under this article to pay the license fee levied hereunder, or required by this article to make a return, keep any records, or supply any information, who willfully fails to pay such fee, make such return, keep such records, or supply such information, at the time or times required by law, shall, in addition to other penalties provided by law, be guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than $50.00 nor more than $500.00, for each offense, and in addition may be imprisoned in the city jail for a period not to exceed six months, together with the cost of court. Each month of such failure shall constitute a separate offense.
(Ord. No. 93-23, § 11, 1-28-1993; Ord. No. 21-703, 8-26-2021)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 15-202. Person selling out or quitting business to file return; part of purchase money to be withheld.

Any person subject to the provisions of this article who shall sell out his business or stock of goods, or shall quit business, shall be required to make out the return provided for under section 15-197 within 30 days after the date he sold out his business or stock of goods, or quit business; and his successor in business shall be required to withhold sufficient of the purchase money to cover the amount of the license fees due and unpaid until such time as the former owner shall produce a receipt from the city showing that the license fees have been paid, or a certificate that no license fees are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money, the license fees shall be due and unpaid after the 30-day period allowed and he shall be personally liable for the payment of the license fees accrued and unpaid on account of the operation of the business by the former owner. If in such cases the city deems it necessary in order to collect the license fees due the city, it may make a jeopardy assessment.
(Ord. No. 93-23, § 12, 1-28-1993)

Sec. 15-203. Violator may be restrained from continuing in business.

Any taxpayer who shall violate any of the provisions of this article may be restrained from continuing in business, and the proper prosecution shall be instituted in the name of the city by its attorney until such person shall have complied with the provisions of this article.
(Ord. No. 93-23, § 13, 1-28-1993)

Sec. 15-204. Enforcement; appointment of agents.

The enforcement of any of the provisions of this article in any of the courts of the state shall

be under the jurisdiction and supervision of the city finance department, and the city finance department may require the assistance of and act through the city attorney.
(Ord. No. 93-23, § 14, 1-28-1993; Ord. No. 25-388, § 17, 5-22-2025)

Sec. 15-205. Reserved.

Editor's note—Section 8 of Ord. No. 12-365, adopted May 24, 2012, repealed § 15-205 which pertained to mayor to make rules and regulations, and derived from Ord. No. 93-21, § 15, adopted Jan. 28, 1993.

Sec. 15-206. Proceeds of tax deposited in general fund.

The proceeds derived from the taxes levied in this article shall be placed in the general fund of the city subject to appropriation by the city council for any lawful purpose of the city.
(Ord. No. 93-23, § 16, 1-28-1993)

Sec. 15-207. Uniform procedures.

The provisions of section 15-75 of this chapter shall govern the administrative review and appeal rights available under this article.
(Ord. No. 93-23, § 17, 1-28-1993; Ord. No. 12-365, § 9, 5-24-2012)

Secs. 15-208—15-240. Reserved.

ARTICLE VI. RESERVED*

Secs. 15-241—15-299. Reserved.

*__Editor's note—__Section 10 of Ord. No. 12-365, adopted May 24, 2012, repealed art. VI, §§ 15-241—15-255. Former art. VI pertained to renting and leasing privilege license, and derived from Ord. No. 93-20, §§ 1—15, adopted Jan. 28, 1993; and Ord. No. 02-363, § 1, adopted May 9, 2002. See art. I and art. III of this chapter.

ARTICLE VII. TOBACCO PRIVILEGE LICENSE FEE†

Sec. 15-300. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Chewing tobacco means tobacco prepared in such a manner as to be suitable for chewing only and not suitable for smoking.

Cigar means a compact roll of tobacco leaves prepared for smoking and shall include cigars, of all description containing any quantity of tobacco such as, but not limited to, cheroots and stogies.

Cigarette means a roll of finely cut tobacco or any substitute therefor, which is enclosed in paper and prepared for smoking by individuals.

Cigarillo means a small cigar or cigarette wrapped in tobacco instead of paper and sold in packages rather than by individual cigar.

Dealer means any wholesale or retail dealer as defined in this section.

Person or *company, used interchangeably,* means any individual, firm, company, partnership, association, corporation, receiver or trustee, or any other group or combination acting as a unit, and the plural as well as the singular number, unless the intention to give a more limited meaning is disclosed by the context.

Retail dealer means any person, other than a wholesale dealer, who sells or delivers tobacco products within the city, and any person operating under a merchant, retail dealer's license.

Retail sale means any sale by retail dealer of tangible personal property to users or consumers for personal use and not for resale.

Smoking tobacco means prepared in such a manner as to be suitable for smoking in a pipe or

†__Editor's note—__Ord. No. 03-914, §§ 1—16, adopted Nov. 20, 2003, added a new art. VII, §§ 15-300—15-314, to ch. 9 entitled "Tobacco Privilege License." Ord. No. 04-68, §§ 1—18, adopted Jan. 22, 2004, changed the title of art. VII to "Tobacco Privilege License Fee" and amended art. VII in its entirety to read as herein set out.

cigarette which shall include granulated, plug cut, crimp cut, ready rubbed and other kinds and forms of tobacco.

Snuff and other tobacco products used in a similar manner means a preparation of finely pulverized tobacco that can be drawn up into the nostrils by inhaling and other tobacco products used in a similar manner, not smoked or chewed.

Tobacco product means cigars, cheroots, stogies, cigarettes, cigarillos, smoking tobacco, chewing tobacco, snuff, tobacco in any form or condition or any substitute therefor.

Wholesale dealer means a person engaged in wholesale sales.

Wholesale sale means a sale of tangible personal property by wholesalers to licensed retail merchants, jobbers, dealers or other wholesalers for resale, and does not include a sale by wholesalers to users or consumers, not for resale; and as further defined under state law.
(Ord. No. 04-68, § 2, 1-22-2004; Ord. No. 12-365, § 11, 5-24-2012)

Sec. 15-301. License fee imposed.

There is levied, in addition to all other taxes of every kind and nature imposed by law, and shall be collected as provided in this article, a privilege or license fee upon every person engaged within the corporate limits of the city in the sale, storage or delivery of all tobacco products. Each person making such a sale of any tobacco product shall remit said license fee which shall be paid one time only per individual package of tobacco product sold, unless otherwise provided for. The fee shall be as follows:

(a) *Cigarettes:* Upon all cigarettes which contain any quantity of tobacco or any substitute, a fee of $0.10 for each individual package;

(b) *Cigarillos:* Upon all cigarillos which contain any quantity of tobacco or any substitute, a fee of $0.10 for each individual package;

(c) *Cigars:* Upon cigars of all description containing any quantity of tobacco or any substitute, a fee of $0.03 for each cigar sold individually and not as part of a package;

(d) *All other tobacco products:* Upon all other tobacco products of any type including but not limited to chewing tobacco, smoking tobacco, cigars sold as a part of a package, and snuff, a fee of $0.10 for each individual package sold.

(Ord. No. 04-68, § 3, 1-22-2004; Ord. No. 12-365, § 12, 5-24-2012)

Sec. 15-302. License required; general license provisions not affected.

(a) If any person shall engage in or continue in any business for which a privilege fee is imposed by article II of this chapter as a condition precedent to engaging or continuing in such business, he shall apply for and obtain from the city finance department a license to engage in and to conduct such business for the current tax year upon the condition that he shall pay the privilege license fee accruing to the city finance department under the provisions of this article.

(b) The amount of privilege license fees provided for in this article shall be additional to and cumulative of all amounts required to be paid under article II of this chapter and to all other licenses and taxes levied by law as a condition precedent to engaging in any business taxable under this article, except as in this article otherwise specifically provided.

(c) No provision of this article shall be construed as relieving any person from the payment of any license or privilege fee imposed by law.

(d) No license shall be issued under the provisions of the article to any person who has not complied with the provisions of this article.
(Ord. No. 04-68, § 4, 1-22-2004; Ord. No. 25-388, § 18, 5-22-2025)

Sec. 15-303. License fees due monthly; filing of reports; estimated payment authorized; extension of time for making returns.

The license fees levied under the provisions of this article, except as otherwise provided, shall

be due and payable in monthly installments on or before the 20th day of the month next succeeding the month in which the license fee accrues. On or before the 20th of each month, the person responsible for remitting the license fee to the city shall report such license fee on forms and in a manner prescribed by the city. At the time of making such monthly report such persons shall compute the license fees due and shall pay to the city finance department the amount of license fees shown to be due.
(Ord. No. 04-68, § 5, 1-22-2004; Ord. No. 25-388, § 18, 5-22-2025)

Sec. 15-304. Purchase and use of stamps for cigarettes only.

(a) *Stamps to be affixed.* The license fee imposed by this article shall be paid by affixing stamps in the manner and at the time herein set forth.

(1) The city finance director shall keep on hand for sale an adequate quantity of stamps to be affixed to each individual package of cigarettes sold, stored or delivered in denominations as required under this article. The city finance director shall be the sole distributor of the stamps. The stamps may be sold at a discounted price to licensed wholesale dealers at a price equal to 90 percent of the full amount thereof, the remaining ten percent of such full amount shall represent compensation to the wholesale dealer for the labor of affixing such stamps to the packages in which the cigarettes are contained. All other persons, except licensed wholesale dealers, must pay the full face amount of the stamps, but no person shall be entitled to purchase any such number of stamps as shall cause the purchase price to include a fraction of a cent.

(2) Before any cigarettes shall be sold, stored or delivered within the corporate limits of the city by any dealer, such dealer shall affix to each package a stamp or stamps obtained from the city finance director in the amounts set out in this article in payment of the license fees imposed by this article. Every dealer shall, within six hours after receipt of any cigarettes within the city, unless sooner offered for sale, cause stamps equal to the required amount of the license fee to be affixed as herein provided and shall cause the same to be canceled by writing or stamping with waterproof ink a registered number, which shall be furnished to such dealer by the city finance director, across the face of each stamp. After such stamping has been begun, it shall be continued with reasonable diligence by such person until all unstamped cigarettes shall have been stamped and the stamps canceled as herein provided. No stamp required to be affixed to any package of cigarettes shall, after the same has been affixed as herein provided, be again used in payment of any part of the license fee levied under this article. The stamps shall be affixed in such a manner that the removal of the stamp will require continued application of water or steam. The required stamp shall be affixed to each individual package in such a way that the stamp shall be torn in two or mutilated when such package is opened.

(b) *When requirements not applicable.*

(1) The requirements of subsection (a) of this section do not apply to the sale or delivery of cigarettes by a wholesale dealer in the following cases:

a. To a retail dealer that is located outside the corporate limits of the city; or

b. To a wholesale dealer to the extent the wholesale dealer sells or delivers to retail dealers to which the immediately preceding subsection (1) applies;

(2) A wholesale dealer shall establish reasonable business rules and practices that establish when a retail dealer is located

outside the corporate limits of the city and, failing therein, the requirements of subsection (a) shall apply.

(Ord. No. 04-68, § 6, 1-22-2004; Ord. No. 12-365, § 13, 5-24-2012; Ord. No. 25-388, § 18, 5-22-2025)

Sec. 15-305. Cash sales and credit collections to be reported.

Any person required to remit license fees under this article, having cash and credit sales, may report such cash sales; and the taxpayer shall thereafter include in each monthly report all credit collections made during the month preceding and shall pay the license fees due at the time of filing such report; but in no event shall the proceeds of credit sales be included in the measure of the license fee to be paid until collections of such credit sales shall have been made.

(Ord. No. 04-68, § 7, 1-22-2004)

Sec. 15-306. Records to be kept.

Every wholesale dealer shall, at the time of selling or delivering tobacco products into the city, make a true duplicate of the invoice of the sale or delivery, which shall show full and complete details of the sale or delivery of such tobacco products and the prices thereof. Every wholesale dealer and every retail dealer shall keep a record of the purchase, sale, exchange or receipt of all tobacco products. All such invoices, records, all canceled checks and other memoranda pertaining to any such purchase, sale, exchange or receipt shall be retained for a period of three years, and shall be subject to inspection of the city finance director or his duly authorized deputy, who shall have the power and authority to enter upon the premises of any dealer at all reasonable times for the purpose of examining such invoices, records, canceled checks and other memoranda.

(Ord. No. 04-68, § 8, 1-22-2004; Ord. No. 25-388, § 18, 5-22-2025)

Sec. 15-307. Illegal acts.

(a) It shall be unlawful for any person who is required by this article to affix stamps to cigarettes to fail to affix such stamps or to fail to cancel such stamps in the manner or within the time required by this article.

(b) It shall be unlawful for any person to sell, offer for sale, store or deliver within the city any cigarettes which have not been affixed with stamps and which have not been cancelled, or other tobacco products on which sales have not been reported and taxes have not been paid as provided in this article.

(c) It shall be unlawful for any person to have in his possession or under his control, any cigarettes that have not been affixed with a stamp as required by this article for more than six hours after receipt of such cigarettes on the premises of such person. The possession of each package of a tobacco product which lacks the required number of stamps shall be deemed a separate offense.

(d) It shall be unlawful for any person to effectuate or to attempt to manufacture, buy, sell, offer for sale or possess any reproduction or counterfeit of the stamps provided for in this article or to possess tools, implements, instruments or materials of any kind necessary or appropriate to reproduce or counterfeit such stamps, or to alter or cause to be altered any stamps as herein provided.

(e) It shall be unlawful for any person to remove from a package or otherwise prepare any stamp with intent to use or cause the same to be used, after it has already been used, or to buy, sell, offer for sale or give away any washed, removed, altered or restored stamp to any person, or to have in possession any such washed, removed, restored or altered stamp, or, for the purpose of indicating payment of any license fee under this article, to reuse any stamp which previously has been used for the payment of any license fee provided in this article or for any person other than the city finance director to sell any stamp provided for herein.

(f) It shall be unlawful for any person to reuse or refill with cigarettes any stamped package from which cigarettes have been removed and the required license fee has previously been paid.

(g) It shall be unlawful for any person, who is required under this article to keep records, to fail or omit to keep the those records in the manner

herein provided, or to refuse to permit the city finance director or his duly authorized deputy to inspect the same at any reasonable hour, or to interfere with or obstruct the city finance director or his duly authorized deputy in the making of any such inspection.

(h) It shall be unlawful for any person who is required by this article to file statements with the city finance director to fail or omit to make or file any statement herein provided within the time herein specified, or to make any false statement therein, and such offense shall be a continuing offense against the city and each day during which such person shall sell, store, or deliver cigarettes or other tobacco products in the city during such default shall constitute a separate offense.

(i) It shall be unlawful for any person who is required to pay the license fee provided for in this article to fail or omit to pay the same within the time herein specified, and such offense shall be a continuing offense against the city and each day during which such person shall sell, store or deliver tobacco products in the city during such default shall constitute a separate offense.

Any person who violates any provision of this section shall be guilty of a misdemeanor and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense, and in addition may be imprisoned in the city jail for a period not to exceed six months. Each violation shall constitute a separate offense.
(Ord. No. 04-68, § 9, 1-22-2004; Ord. No. 25-388, § 18, 5-22-2025)

Sec. 15-308. Reports under oath.

The monthly reports required in this article to be made are not required to be made on oath; but wherever in this article any report is required to be sworn to, it shall be sworn to by the person responsible for remitting the license fee or his agent before some officer authorized to administer oaths.
(Ord. No. 04-68, § 10, 1-22-2004)

Sec. 15-309. Penalty for failing to make payments, to make reports or to keep records.

Any person subject to the provisions of this article who shall fail to make the payments herein required, fail to make the reports herein required or who shall fail to keep the records as herein required, shall be guilty of a misdemeanor, and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense. Each occurrence of such failure shall constitute a separate offense.
(Ord. No. 04-68, § 11, 1-22-2004)

Sec. 15-310. Penalty for willful refusal to make reports or permit examination of records.

Any person subject to the provisions of this article willfully refusing to make the reports required in this article or who shall refuse to permit the examination of this records by the city shall be guilty of a misdemeanor and upon conviction shall be fined not less than $25.00 nor more than $500.00 for each offense, and in addition may be imprisoned in the city jail for a period not to exceed six months. Each month of failure to make such reports shall constitute a separate offense; and each refusal of a written demand of the city to examine, inspect or audit such records shall constitute a separate offense.
(Ord. No. 04-68, § 12, 1-22-2004)

Sec. 15-311. Person selling out or quitting business to file return, part of purchase money to be withheld.

Any person subject to the provisions of this article who shall sell out his business or stock of goods, or shall quit business, shall be required to make out the return provided for under section 15-303 within 30 days after the date he sold out his business or stock of goods, or quit business; and his successor in business shall be required to withhold sufficient of the purchase money to cover the amount of license fees due and unpaid until such time as the former owner shall produce a receipt from the city showing that the license fees have been paid, or a certificate that no license fees are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money, the license fees shall be due and unpaid after the 30-day period allowed and he shall be personally liable for the payment of the license fees accrued and unpaid on account of

the operation of the business by the former owner. If in such cases the city deems it necessary in order to collect the license fees due the city, it may make a jeopardy assessment.
(Ord. No. 04-68, § 13, 1-22-2004)

Sec. 15-312. Violator may be restrained from continuing in business.

Any person who shall violate any of the provisions of this article may be restrained from continuing in business, and the proper prosecution shall be instituted in the name of the city by its attorney until such person shall have complied with the provisions of this article.
(Ord. No. 04-68, § 14, 1-22-2004)

Sec. 15-313. Enforcement; appointment of agents.

The enforcement of any of the provisions of this article shall be under the jurisdiction and supervision of the city finance department, and the city finance department may require the assistance of and act through the city attorney.
(Ord. No. 04-68, § 15, 1-22-2004; Ord. No. 25-388, § 18, 5-22-2025)

Sec. 15-314. Reserved.

Editor's note—Section 14 of Ord. No. 12-365, adopted May 24, 2012, repealed § 15-314 which pertained to mayor to make rules and regulations, and derived from Ord. No. 04-68, § 16, adopted Jan. 22, 2004.

Sec. 15-315. Distribution of license fee proceeds.

The proceeds derived from the privilege license fees levied in this article shall be placed in the general fund.
(Ord. No. 04-68, § 17, 1-22-2004)

Sec. 15-316. Uniform procedures.

The provision of section 15-75 of this chapter shall govern the administrative review and appeal rights available under this article.
(Ord. No. 04-68, § 18, 1-22-2004; Ord. No. 12-365, § 15, 5-24-2012)

Secs. 15-317—15-400. Reserved.

ARTICLE VIII. AD VALOREM TAXES

Sec. 15-401. Ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall affect Ord. No. 73-132-A or any other ordinance levying or imposing ad valorem taxes. All such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code.
(Ord. No. 12-365, § 16, 5-24-2012)

Chapter 16

MUNICIPAL COURT*

Article I. In General

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Article II. Bail Bonds

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***Cross reference—**Administration, ch. 2.

State law references—Municipal courts, Code of Ala. 1975, § 12-14-1 et seq.; establishment of municipal court, Code of Ala. 1975, § 12-14-1.

ARTICLE I. IN GENERAL

Sec. 16-1. Presiding judges.

(a) It shall be the obligation of the presiding judge to see that the court docket is kept as current as is reasonably possible; and to such end the presiding judge shall establish a court calendar of cases and shall have the authority to set dockets and assign cases for trial and disposition before such municipal judges as shall be appointed. The presiding judge shall also prescribe and publish reasonable rules and regulations for the dispatch of the business of the court.

(b) The presiding judge, in order to maintain a current docket, shall have the authority to hold, or direct to be held, such sessions of court as shall be necessary. All sessions of court shall be presided over by the presiding judge or by a judge assigned by the presiding judge. This subsection will be construed in pari materia with section 16-6(d).

(c) The presiding municipal judge shall designate any other municipal officers who shall be authorized to approve appearance and appeal bonds.

(Ord. No. 94-413, §§ 15-2(g), (h), 15-7(a), 6-23-1994)

Sec. 16-2. Benefits for judges.

(a) Each full-time municipal judge shall be entitled to employee benefits on the same basis as from time to time is provided for other employees of the city.

(b) Each part-time municipal judge who is an employee of the city shall be entitled to two weeks' leave (four sessions for night court) annually in lieu of all other leave benefits and shall also be subject to any health insurance program of the city provided for other part-time employees of the city.

(Ord. No. 94-413, § 15-3(c), (d), 6-23-1994)

State law references—Designation of presiding judge required, Code of Ala. 1975, § 12-14-30(c); powers of judges, Code of Ala. 1975, § 12-14-31 et seq.

Sec. 16-3. Probation.

(a) The grant of probation by the municipal court will consist of one of three aspects: unsupervised probation, supervised or monitored probation, or intensive supervised probation.

(b) Unsupervised probation will be probation granted by the municipal court wherein the probationer will not have to adhere to a reporting schedule. A probation officer will follow up on specified reports of violations or possible violations of probation conditions.

(c) Supervised or monitored probation will be granted by the municipal court wherein the probationer will have a reporting schedule and will require continuous contact and followup by a probation officer or other designated officer of the court. Any person who is placed on supervised probation by the municipal court and who has an income shall be required to contribute between a maximum of $20.00 and a minimum of one hour gross wage, at the discretion of the court, per scheduled contact visit with their assigned probation officer toward the cost of his supervision and rehabilitation beginning 30 days from the date he has an income. The responsibility of assuring such contribution is that of the probationer. Exemptions from payment required by this section may be granted for undue hardship on a case-by-case basis by the sentencing court. In the event of over two months' arrearage or delinquency in making such contribution, such arrearage or delinquency shall constitute sufficient ground for revocation of the probation of the person in arrears. Payment shall be deposited in a timely manner with the clerk of municipal court and maintained in a separate account with the city clerk-treasurer's office and used only to defray the cost of the service performed.

(d) Intensive supervised or monitored probation will be granted by the municipal court wherein all the specifications of supervised probation are applicable and will be enhanced by the use of remote electronic monitoring. This particular program will be utilized only upon the convicted misdemeanant's voluntary participation and the affirmative discretion of the court. Any convicted misdemeanant participating in the remote electronic monitoring system who receives a wage

from gainful employment shall be required to pay one hour of the gross wage, per day of utilization, for maintenance of the system, to be deposited with the clerk of municipal court and maintained in a separate account with the city clerk-treasurer's office and used only to defray the cost of the service performed.

(e) The sentencing court shall, at the time probation is granted, make specification as to unsupervised probation, supervised or monitored probation or intensive supervised probation and in the specification of the latter two alternatives will order the frequency of the interview, counseling and contact visits along with the specified contribution per contact visit required by the probationer.
(Ord. No. 94-413, § 15-4(f)(5), 6-23-1994)

State law reference—Probation, Code of Ala. 1975, § 12-14-13.

Sec. 16-4. Court costs.

(a) Upon each conviction in the municipal court for violation of any provision of this Code or other ordinance of the city, there shall be taxed against the defendant as court costs the sum of $10.00. In each case where the defendant has posted cash bond and such bond is forfeited, there shall be taxed against the defendant as court costs the sum of $10.00. These costs shall be in addition to other costs provided by law. In all cases which are nolle prosequi, the court may, at the discretion of the judge, tax costs to the defendant or to the complainant.

(b) In addition to the court costs assessed in accordance with the provisions of subsection (a) of this section, there shall be assessed and collected on each case filed in the municipal court, and accounted for within a special account of the general fund, additional court costs and fees up to an amount not to exceed the court costs and fees in the district court of the county for a similar case. These funds are to be used exclusively for the operation and maintenance of a municipal correctional facility, other correctional facilities, any juvenile detention center, or any court complex. The court cost shall not be waived by any court unless all other costs, fees, assessments, fines or charges associated with the case are waived.

(c) No part of the court costs shall be taxed against or paid by the city.

(d) Whenever a person is tried on the complaint of another and acquitted, the municipal judge may, in his discretion, tax the party making the complaint with all or any of the costs.

(e) Court costs will not apply to parking violation adjudications.
(Ord. No. 94-413, § 15-6, 6-23-1994; Ord. No. 95-268, § 1, 4-11-1995; Ord. No. 95-592, 9-14-1995; Ord. No. 03-558, § 1, 7-10-2003)

State law reference—Court costs, Code of Ala. 1975, § 12-14-14.

Sec. 16-5. Costs for copies and certification of court records.

(a) A fee of $0.25 per page shall be charged for copies of court records made by the clerk; however, at the discretion of the clerk, copies of court records may be made at no charge for governmental agencies whether federal, state, county or municipal. A fee of $1.00 shall be charged by the clerk for each certification made to copies of court records. These costs are to defray the expense of the service performed. Such fees collected shall be distributed by the clerk to the city clerk-treasurer's office.

(b) Fees collected by the clerk for copies of court records shall be disbursed to the city general fund.

(c) As used in this section, the term "copies" shall mean any reproduction of a document of file in the office of the clerk, whether produced by photograph or photostat machine, by computer, by microfilm equipment, or by any other means.

(d) No case file shall be removed from the control of the clerk except by order of the court and only upon good cause shown.

(e) The provisions of this section shall not alter the provision that court files shall be open to inspection free of charge.
(Ord. No. 94-413, § 15-9, 6-23-1994)

Sec. 16-6. Municipal court administrative agency.

(a) The municipal court shall have under its supervision a municipal court administrative agency empowered to provide expeditious service in connection with administrative adjudication of ordinance violations; the handling of uniform traffic tickets and complaints; the issuance and accounting of arrest warrants; the issuance and accounting of search warrants issued by nonfull-time magistrates authorized to practice law in the state and whose remuneration shall be on a contract basis with payment for services verified and authenticated by the chief of police prior to disbursement of moneys; the acceptance of guilty pleas in accordance with the fine schedule as established in rule 20 of the state rules of judicial administration, including the supreme court's extended schedule of fines appearing as appendix B to rule 20, as now existing or hereafter amended by the state supreme court, and the fine schedule included under subsection (g) of this section; the summary disposition of parking offenses and the administrative adjudication of parking offenses wherein a dispute arises with appeals lying to the circuit court for a trial de novo; and other powers and duties provided by law.

(b) There is created the office of clerk of the municipal court. The clerk of the municipal court shall be appointed by the presiding judge of the municipal court, subject to approval by the council in the same manner as provided by law for the appointment of department heads in Act No. 738 of the 1971 legislature. The clerk of the municipal court shall hold office for the term of the mayor of the city, and may be removed or demoted for cause by the presiding judge of the municipal court, subject to review by the city council as provided for department heads in Act No. 738 of the 1971 legislature. The clerk of the municipal court shall serve as the chief administrative officer of the municipal court administrative agency and shall answer to the presiding judge of the municipal court. The clerk of the municipal court shall assist the presiding judge in connection with his duties as the administrative head of the municipal court, which shall include the presiding judge's responsibility to ensure that the business of the court is attended with proper dispatch, the court dockets are not permitted to become congested, and trials of cases are not unreasonably delayed. The clerk of the municipal court, or in his absence, the assistant municipal court clerk, or other such person as directed by the presiding judge, shall be responsible for the general custody and control of the records of the municipal court, and shall perform all duties of the court clerk as defined by the laws and supreme court rules of the state, and by the ordinances of the city; provided, however, that before performing the duties of magistrate, any such person must be duly appointed as a municipal court magistrate. In connection with the administration of justice within the municipal court, the clerk of the municipal court shall coordinate the functions and duties of administrative personnel and court-support persons and agencies, including magistrates, probation officers, court referral officers, victim advocates, and research personnel, so that the overall administration of justice may function with efficiency and cooperation. The clerk of the municipal court shall disburse funds collected by the court to the proper agencies, with such disbursements to be made not less than monthly, as provided by state law for municipal court clerks. The clerk of the municipal court shall be under the supervision of the presiding judge, and shall represent the municipal court on administrative matters before the mayor and council and at other times as deemed appropriate. The clerk of the municipal court shall perform such other duties as may be prescribed by the presiding judge. The clerk of the municipal court shall not be considered to be a department head or division manager and shall not be eligible for appointed employee pay as set forth in Ordinance No. 97-90.

(c) All officials, officers and employees of the municipal court, excluding the clerk of the municipal court, shall be classified employees within the city's then current salary classification plan, and shall be appointed by the clerk of the municipal court, subject to the approval of the presiding judge, and shall be subject to the provisions of the city's Personnel Policies and

Procedures Manual, except to the extent that this ordinance is in conflict with the provisions of such provisions.

(d) The presiding judge shall request the appointment of employees, subject to authorization by the city council, or the filling of vacancies (in accordance with the then current policy for filling vacancies) as needed for the efficient conduct of the business of the municipal court. Personnel action requests made by the municipal court shall be submitted by the presiding judge to the mayor and the city council. The presiding judge is authorized to direct the expenditure of funds budgeted for and appropriated to the municipal court. On behalf of the municipal court, the presiding judge, with the assistance of the clerk of the municipal court, shall report once every six months to the mayor on the state of the court. This report shall include, at a minimum, activities of the court that have fostered the maintenance or improvement in the five performance areas established by the trial court performance standards:

(1) Access to justice;

(2) Expedition and timeliness;

(3) Equality, fairness and integrity;

(4) Independence and accountability; and

(5) Public trust and confidence.

This report shall also include the court's compliance with the time standards for case management established by the American Bar Association, as the same may have been modified by the presiding judge of the municipal court.

(e) All magistrates of the municipal court shall maintain in the office of the court clerk a log showing the names of each person applying to the magistrate for a search or arrest warrant, together with a notation as to whether or not a warrant was issued as a result of such application.

(f) Municipal court shall be open for the transaction of court business. Any full-time judge, part-time judge, or substitute judge may hold regular sessions of court and special settings at such times as may be set by ordinance, by court rule, or by the presiding judge. A full-time judge or part-time judge shall be available to issue search warrants required by the police department, except for search warrants required during regular sessions of court. The presiding judge shall designate one or more of the full-time or part-time judge to be available to issue search warrants required by the police department, except for search warrants required during regular sessions of court.

(g) Municipal court magistrates, in addition to those powers and duties specified in subsection (a) of this section, may accept a plea of guilty and impose the stated fine for any of the following offenses:

Driving on Barricaded/Closed Road	$ 20.00
Failure To Signal	20.00
Improper Seating	20.00
Improper Towing	20.00
Wrong Way on One-Way Street	30.00
Disobeying Traffic Control Device	20.00
Improper Lane Change	25.00
Off Truck Route	25.00
Improper Lane Usage	30.00
Cutting Corner To Avoid Intersection	20.00
Headlights Required During Wiper Use	20.00
No Helmet/Shoes on Motorcycle	10.00
Operating Steel Disc on Highway	20.00
Highway Littering (on extended schedule)	100.00
Motorcycle Handlebar Violation	10.00
Motorcycle—Improper Riding	30.00
Pedestrian—Improper Crossing	10.00
No Horn/Improper Horn	20.00
Failure To Restrain or Confine Dog or Cat	20.00
Failure To Register/Obtain License/Permit for Animal	15.00

Failure To Confine a Female Dog or Cat in Estrus (Season/Heat)	25.00
Failure To Attach Current License Tag to Animal	15.00
Failure To Attach Current Rabies Tag to Animal	15.00
Confining Animal or Animals in Pen Less Than Minimum Area or Improper Distance from Occupied Dwelling	15.00
Allowing an Animal Other Than a Dog or Cat To Run At Large	25.00
Misuse of Animal Trap	25.00
Violation of chapter 12, article V (noise control ordinance)	50.00
Violation of section 8-3 (Vehicles displayed or offered for sale)	200.00
Violation of section 25-7 (Private property impoundment and repossession notification)	50.00

Any person convicted of two or more traffic violations in the past 12 months must appear in court. Failure to appear is not a traffic violation. Any person convicted of one or more violations of section 8-3 listed in this subsection must appear in court. Any person convicted of two or more violations of chapter 5 or section 25-7 listed in his subsection must appear in court. The fines listed above are in addition to all applicable court costs.

(Ord. No. 94-413, § 15-10, 6-23-1994; Ord. No. 95-268, § 2, 4-11-1995; Ord. No. 96-566, 7-11-1996; Ord. No. 96-659, § 1, 9-12-1996; Ord. No. 00-190, § 1, 2-24-2000; Ord. No. 00-444, § 1, 6-6-2000; Ord. No. 01-902, 11-8-2001; Ord. No. 22-36, § 1, 1-27-2022)

State law reference—Municipal court administrative agency, Code of Ala. 1975, § 12-14-50 et seq.

Sec. 16-7. Time and manner of beginning prosecutions.

Prosecutions for violations of the provisions of this Code and other city ordinances must be commenced within 12 months after the commission of the act or offense complained of, and may be begun by summons, by warrant of arrest, or by arrest without warrant.

(Ord. No. 94-413, § 15-12, 6-23-1994)

Sec. 16-8. Person arrested to be brought before municipal judge unless bailed.

(a) When any person is arrested, with or without a warrant, for the violation of any ordinance of the city, it shall be the duty of the officer making the arrest to bring such person before the municipal judge, or to detain him in custody until he can be brought before the judge, unless such person shall give bond, in the sum of not more than $1,000.00, as the court shall prescribe, conditioned for his appearance before the judge on the day named, not more than three days after the arrest, to answer the charge preferred against him. Upon giving such bond, such person shall be discharged from custody.

(b) In case of an arrest without a warrant, the arresting officer shall have the probation officer's written statement provided under Code of Ala. 1975, § 12-14-13(i).

(Ord. No. 94-413, §§ 15-4(f)(4), 15-13, 6-23-1994)

Sec. 16-9. Subpoenas for witnesses.

Subpoenas for witnesses for the city or the defendant may be issued by the municipal judge or the municipal court clerk. It is the duty of the chief of police or any police officer, to whom they are delivered, to execute and return them to the court clerk.

(Ord. No. 94-413, § 15-21, 6-23-1994)

State law reference—Execution of process, Code of Ala. 1975, § 12-14-4.

Sec. 16-10. Judgment nisi on failure of witness to appear; notice and judgment final.

(a) If witnesses, after being summoned, fail to appear and testify, a conditional judgment may be rendered against them and in favor of the summoning party; and in such cases, the proceedings, in all material respects as to notice, final

judgment and other matters may be made to conform to those provided in the case of forfeited bail bonds.

(b) The penalty for the nonattendance of witnesses shall be $100.00; and the judgment nisi must be entered for that amount, to be made absolute for the whole or any part, as the municipal judge shall determine.
(Ord. No. 94-413, § 15-22, 6-23-1994)

Sec. 16-11. Statement of offense contents.

No statement of the offense need be made other than that contained in the summons or complaint and warrant of arrest. It shall be a sufficient statement of the offense in the complaint, warrant or entry on the court docket to designate the offense or act by name, or by some other phrase which in common parlance designates it. It shall be no objection to the proceedings that they are imperfect or inaccurate, and all amendable errors shall be regarded as amended, so as to present only the substantial inquiry of the guilt or innocence of the defendant in accordance with all applicable federal, state and local laws.
(Ord. No. 94-413, § 15-23, 6-23-1994)

Sec. 16-12. Establishment of comprehensive traffic safety programs.

(a) There is established an alcohol abuse educational program to be known as the highway intoxication seminar, which shall be under the supervision of the clerk of municipal court. Each person attending the seminar shall be charged no more than $300.00 for evaluation and/or registration. Such fees are to be assessed by the judge of municipal court as appropriate unless waived by the municipal judge or by the clerk of municipal court in such cases where the individual is being referred by an outside agency.

(b) There is established a traffic safety educational program which shall be under the supervision of the clerk of municipal court. Each person attending the seminar shall be charged no more than $150.00 for registration. Such fees are to be assessed by the judge of municipal court as appropriate unless waived by the municipal judge or by the clerk of municipal court in such cases where the individual is being referred by an outside agency.

(c) There is established an advisory committee consisting of the presiding municipal judge or his designee, the chief of police or his designee, and the city attorney or his designee.

(d) The clerk of municipal court shall be responsible for scheduling of classes, instructors and facilitators and setting reasonable fees for the payment of the instructors and facilitators. The clerk of municipal court shall adopt rules and regulations for the operation of the established educational programs, criteria for acceptance and completion and established fees for the appropriate program. These rules and regulations, policy and procedures, and fee list shall be readily available for public inspection.

(e) All moneys collected as a result of this article in the form of registration fees, evaluation fees and/or tuition fees shall be maintained in a separate account with the city clerk-treasurer's office to be used only to defray the cost of services provided by the previously mentioned educational programs and for the purpose of providing various other traffic safety education and awareness programs to the city through the highway safety office of municipal court. The collection and use of these moneys shall be under the supervision of the clerk of municipal court.
(Ord. No. 94-413, § 15-24, 6-23-1994)

Sec. 16-13. Work release programs.

(a) There is established a work release program to be under the supervision of the presiding judge of the municipal court. The judges of the municipal court shall have the authority to sentence defendants, upon petition to the court by the defendant or upon application through a duly appointed officer of the court, to any one of the established programs.

(b) Municipal court work release will consist of three distinct types of programs applicable at the discretion of the court.

(1) Private industry work furlough involves the qualifying individual's being allowed

to go to his jobsite during working hours on the judge's authorization. The individual must return to confinement at the end of his specified workday and can go nowhere else without the approval of the court. An inmate who is released from custody under this program is required to pay costs incident to confinement equal to one hour gross wage for each day of work release as a minimum and no more than 20 percent of the gross wage per day of work release as a maximum, as ordered by the court. These costs will be deposited with the clerk of municipal court and maintained in a separate account with the city clerk-treasurer's office and used

only for the purposes as are established by the presiding judge and available for public inspection.

(2) Inmate community service involves the qualifying individual's being assigned to supervised work crews which are detailed to different city departments for community service projects. This program does not involve furlough and is based on supervised/custody work within the community. Appropriate rules, regulations and policies will be established by the presiding judge and available for public inspection.

(3) Alternative service involves the qualifying individual's being assigned community service work as opposed to incarceration. The program is based on intensive supervision and requires the court's authorization for placement. The individual must report to the court for community service work each day at a specified time unless otherwise authorized by the court. Appropriate rules, regulations and policies will be established by the presiding judge and available for public inspection.

(c) Municipal court work release programs may utilize extended limits of confinement to facilitate its purpose and is authorized to adopt rules, regulations and policies with specification and definition as to those extended limits of confinement.

(d) Municipal court work release programs designated as private industry work furlough and alternative service may utilize remote electronic monitoring with the convicted misdemeanant's voluntary participation and the affirmative discretion of the court. Any convicted misdemeanant participating in the remote electronic monitoring system who receives a wage from gainful employment shall be required to pay one hour of the gross wage, per day of utilization, for maintenance of the system, to be deposited with the clerk of municipal court and maintained in a separate account with the city clerk-treasurer's office and used only to defray the cost of the service performed.

(e) Indigent convicted misdemeanants will be subject to and governed by all laws presently in effect and hereinafter enacted.

(f) Convicted misdemeanants that are involved in municipal court work release programs will be responsible for their own medical costs pursuant to law.

(g) The municipal court shall adopt pertinent, reasonable and across-the-board rules, regulations, policies, procedures and guidelines, available for public inspection, regarding the availability, implementation, evaluation, utilization and maintenance of work release programs under the direction of the municipal court.
(Ord. No. 94-413, § 15-25, 6-23-1994)

Sec. 16-14. Indigent defense system.

(a) *Purpose.* The purpose of this section is to:

(1) Establish the indigent defense system to be used in the municipal court;

(2) Provide for the collection, accounting and disbursement of moneys used in the indigent defense system; and

(3) Provide legal counsel for any person found to be indigent by the court.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Appointed counsel means any attorney licensed to practice law in the state who is appointed by the court to represent one or more indigent defendants.

Indigent defendant means any person charged in a criminal proceeding in the municipal court for which proceeding representation by counsel is constitutionally required and who under oath or affirmation states that he is unable to pay for his defense and who is found by the court to be financially unable to pay for the defense.

Indigent defense system means any method or mixture of methods for providing legal representa-

tion to indigent defendants, including use of appointed counsel or any alternative method meeting constitutional requirements.

(c) *Provision of indigent defense services.*

(1) Pursuant to the provisions of Code of Ala. 1975 tit. 15, ch. 12 (Code of Ala. 1975, § 15-12-1 et seq.), §§ 12-14-9, 12-19-250, 12-19-250.1, and 12-19-251.1, the municipal court (clerk) administrator shall collect the appropriate fair trial tax on all applicable cases and deposit the moneys in the general fund of the city. Upon using and expending so much of the moneys as is necessary to defray the costs of providing representation for indigent defendants in the municipal court and after payment of such costs, the city shall pay into the state treasury any funds not used for that purpose with an accounting of the moneys expended. Attorney's fees to be paid by the city from this fund must be claimed on the proper fee declaration form duly authenticated and authorized by the signature of the municipal judge.

(2) The municipal court (clerk) administrator shall maintain a roster of six attorneys licensed to practice law in the state. One such attorney will attend each session of municipal court, as necessary, and shall be appointed by the court to assist indigent defendants at initial appearances, plea negotiations, guilty pleas and sentence impositions from previous appearances.

(3) The municipal court (clerk) administrator shall maintain a roster of all interested attorneys licensed to practice law in the state. Any rostered attorney may be appointed at any time to represent an indigent defendant as private counsel for trial arrangements, trials, appeals or any other circumstance when the appointed attorney as provided in subsection (c)(3) of this section cannot provide prompt and adequate representation or when a conflict of interest is evident.

(Ord. No. 94-212, §§ 1—3, 4-14-1994)

State law reference—Indigent defense, Code of Ala. 1975, § 12-14-9.

Sec. 16-15. Establishing a pretrial diversion program.

(a) Pursuant to authority granted by the state legislature, a pretrial diversion program is hereby established whereby certain offenses may be dismissed upon a defendant's successful completion of the program requirements including, but not limited to, payment of applicable fees and costs, treatment, and community service work. Eligibility for the program shall be determined by the municipal court and shall be subject to the City of Huntsville Pretrial Diversion Guidelines and Procedures as approved by the city's governing body. Eligibility further requires an admission of guilt and a waiver of the right to appeal by defendants entering the program. Any defendant who fails to comply with the requirements of the pretrial diversion program may face sanctions (including incarceration, extension of time of supervision, or further orders of the court), or termination from the program.

(b) The presiding municipal court judge, acting in consultation with the municipal prosecutor(s) of the office of the city attorney, is hereby authorized to establish guidelines regarding eligibility for participation in the pretrial diversion program pursuant to enabling legislation enacted by the Legislature of the State of Alabama and as approved by the city's governing body. The presiding municipal court judge's guidelines are attached hereto and the presiding municipal court judge, after consultation with the municipal prosecutor(s) shall have the authority to modify the guidelines as needed.

(c) The following application fees assessed for admittance and evaluation for the pretrial diversion program shall be based on the underlying criminal offense charged and shall be charged as follows:

(1) DUI: $507.00;

(2) Theft of property in the third degree: $307.00;

(3) Domestic violence offenses (excludes offense involving a minor child as victim): $507.00;

(4) Other misdemeanor offenses: $307.00; and

(5) Other violations: $307.00.

The application fee shall be nonrefundable upon approval for participation in the pretrial diversion program. The application fee shall be collected by the city municipal court clerk and allocated to the city's general fund, except that a minimum of 25 percent shall be directed to the City of Huntsville's Advanced Technical Data Fund and a minimum of 25 percent shall be directed to the City of Huntsville Indigent Treatment Fund as established by the city.

(d) The following monitoring, supervision and testing fees for participation in the pretrial diversion program shall be assessed as follows:

(1) Compliance monitoring fee: $30.00, per appointment;

(2) Drug/alcohol testing fee: $25.00, per test; and

(3) Rescheduling fee: $15.00, per reschedule.

Each offender shall also be responsible for payment of the cost of any treatment program made a part the offender's pretrial diversion program. Such programs may include: drug and alcohol treatment programs, other addiction treatment programs, behavior modification treatment programs or other therapy programs as may be required on a case by case basis.

In addition to all fees required for participation in the pretrial diversion program, an offender shall also be liable for all court costs and fees, restitution, victims' compensation fund assessment, and any and all other fees and assessments, in the same manner as if the offender had not applied for entry into the program and has been found guilty of the offense or offenses involved. No costs, fees, restitution, or assessments shall be waived or remitted, absent an express agreement to that effect between the city judge and the offender, without a finding by the city judge that the offender does not have the reasonable ability to pay the same within the reasonably foreseeable future.

With the exception of the evaluation fee, as previously provided, all other pretrial diversion program fees, assessments and treatment program costs, as well as, all court costs, court fees and court assessments shall be collected by the city municipal court clerk and shall be distributed as provided by state law. The municipal court clerk shall also collect fees as required by Code of Ala. 1975, § 12-17-226.17, as that section may be amended.

(e) The City of Huntsville Office of Probation shall be charged with reporting information to the office of prosecution services as required by Code of Ala. 1975, § 12-17-226.17, as that section may be amended.
(Ord. No. 13-845, § 1, 11-7-2013; Ord. No. 18-670, § 1, 9-13-2018)

Secs. 16-16—16-50. Reserved.

ARTICLE II. BAIL BONDS*

Sec. 16-51. Cash bail bonds.

(a) The clerk of municipal court, or designee as provided by law, shall be authorized to accept cash bonds on criminal charges for violation of any section of this Code or other ordinance of the city within the city. Such bond shall be approved by the municipal judge or magistrate.

(b) The municipal judge of the city may forfeit such cash bonds placed with the clerk of municipal court, or designee as provided by law, by persons arrested for violation of any provision of this Code or other ordinance of the city for their appearance in the municipal court upon the failure of the person arrested to appear in accordance with the terms of such bail.

(c) All cash bonds heretofore accepted by the clerk of municipal court, or designee as provided by law, and heretofore forfeited by the person charged with violation of any provision of this Code or other city ordinance by their failure to appear in the municipal court and upon which the municipal judge has entered a forfeiture shall be and are forfeited to the city.

*__State law reference—__Bail, Code of Ala. 1975, § 12-14-5.

(d) All such cash bonds forfeited to the city shall be transferred in a timely manner, by the clerk of municipal court, to the city clerk-treasurer.
(Ord. No. 94-413, § 15-14, 6-23-1994)

Sec. 16-52. Liability on bail bond.

The bail bond provided for in this article binds all and each of the obligors for the appearance of the defendant on the day named, and on each subsequent day to which the case may be adjourned or continued, until discharged by law.
(Ord. No. 94-413, § 15-15, 6-23-1994)

Sec. 16-53. Judgment nisi on default of appearance.

If the defendant fails to appear, as required by his bail bond, the municipal judge shall enter up a conditional judgment against him and his sureties.
(Ord. No. 94-413, § 15-16, 6-23-1994)

Sec. 16-54. Notice of judgment nisi.

(a) If the defendant fails to appear, the municipal court clerk shall issue a notice to each defendant of the rendition of judgment nisi.

(b) The notice provided for in this section may be executed by the chief of police or any police officer and must be returned by the officer executing it, with the proper return, on or before the day appointed for the parties to show cause.
(Ord. No. 94-413, §§ 15-17, 15-18, 6-23-1994)

Sec. 16-55. Alias notice.

If the notice mentioned in section 16-54 is not served on any of the parties, such other notices as are necessary may, from time to time, be issued, or the court may proceed against the parties on whom notice has been served.
(Ord. No. 94-413, § 15-19, 6-23-1994)

Sec. 16-56. When judgment set aside, reduced or made absolute.

If the defendants appear and show sufficient cause for the default, the conditional judgment shall be set aside without costs; but if they fail to appear, or appearing fail to show sufficient excuse for the default, the judgment must be made absolute for the entire penalty of the bond, or any part of the bond, according to circumstances, as the municipal judge shall deem proper.
(Ord. No. 94-413, § 15-20, 6-23-1994)

Chapter 17

OFFENSES AND MISCELLANEOUS PROVISIONS*

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ARTICLE I. IN GENERAL

Sec. 17-1. State misdemeanors, violations and offenses.

(a) Any person committing an offense within the corporate limits of the city that is declared by a law of the state to be a misdemeanor shall be guilty of an offense against the city.

(b) Any person committing an offense within the corporate limits of the city, or that is declared by a law of the state to be a violation shall be guilty of an offense against the city.

(c) Any person committing within the corporate limits of the city an offense as defined by section 13A-1-2 of the Alabama Criminal Code, which offense is not declared by a law of the state to be a felony, misdemeanor or violation shall be guilty of an offense against the city.

(d) Except as described below, a person convicted of a violation of this section shall be punished by a fine not exceeding $500.00 or by imprisonment in the city jail or hard labor for a period not exceeding six months, or by any combination thereof:

(1) In the enforcement of a Class A misdemeanor, including a domestic violence offense, the fine may not exceed $5,000.00 and the sentence of imprisonment may not exceed one year;

(2) In the enforcement of penalties prescribed in Code of Ala. 1975, § 32-5A-191, the fine shall not exceed $5,000.00 and the sentence of imprisonment or hard labor shall not exceed one year;

(3) The maximum fine for a person either convicted for violating any of the misdemeanor offenses described in Code of Ala. 1975, § 11-45-9(d) or adjudicated as a youthful offender thereof shall be $1,000.00;

(4) When a provision of this Code provides a particular penalty expressly applicable to certain violations, the express penalty shall be the penalty imposed upon the conviction for those certain violations;

(5) The penalty imposed upon a corporation shall consist of the fine only, plus costs of court.

(e) Except as otherwise provided by law or ordinance, with respect to violations of this Code that are continuous with respect to time, each day that the violation continues is a separate offense.

(Code 1982, § 18-4; Ord. No. 83-448, § 1, 10-13-1983; Ord. No. 96-290, 4-11-1996; Ord. No. 18-249, 4-26-2018)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 17-2. Posting bills, similar materials.

It shall be unlawful for any person to post any bill or advertisement, sign or notice by attaching it to or placing it around or against any telegraph, telephone or electric light pole or street lighting post in the city. It shall be unlawful for any person to post any bill or advertisement by attaching it to or placing it around or against any tree within the right-of-way of a dedicated street or highway within the city.

(Code 1982, § 18-26)

Sec. 17-3. Swimming in drainage system facilities.

It shall be unlawful for any person to swim in any creek, stream, ditch, pipe or similar facility maintained by the city as part of its public drainage system.

(Code 1982, § 18-19)

Sec. 17-4. Fishing in drainage system facilities.

It shall be unlawful for any person to fish in any creek, stream, ditch or similar facility maintained by the city as part of the city's drainage system without the permission of the owner, the owner's agent or person in possession of the property upon which the easement or right-of-way for the maintenance of the facility is located.

(Code 1982, § 18-20)

Sec. 17-5. Unattended receptacles.

(a) *Generally.* It shall be unlawful for any person to cause or allow to be placed, left or kept upon any lot or parcel of land within the corporate limits of the city any remote and unattended receptacle, bin, box, container, portable building or structure for the purpose of collecting, holding or storing discarded clothing, furniture, household hardware, appliances, household items or any other tangible items.

(b) *Exceptions.* Excepted from the requirements of this section are:

(1) Any accessory structure, portable building or other secondary structure which is located on the same property on which a primary structure is located and which is incidental to the occupation and use of any residential or commercial structure provided the structure is maintained and located in accordance with the ordinances and regulations of the city.

(2) Any dumpster, trash receptacle or other container for the collection and storage of trash, garbage or debris provided the dumpster, trash receptacle or container is maintained and located in accordance with the laws of the city.

(3) Any receptacle, box, bin, container, portable building or structure that is located on the premises where the daily business operations of a charitable organization are conducted provided such receptacle, box, container, portable building or structure is maintained in accordance with the zoning ordinance and other ordinances of the city.

(c) *Enforcement.* The manager of community development or his authorized representative shall be responsible for and possess the authority to enforce the provisions of this section. If any person shall fail or refuse to comply with the requirements of this section, the manager of community development or any code enforcement officer of community development may cause to be served upon such person, in person or by first class mail, a written official notice apprising the person of the violation of this section and requiring such person to comply with this section within a time stated in the notice, which shall be a period of not less than 15 calendar days. If a person fails to comply with the notice which has been served upon him in accordance with this section the manager of community development or any code enforcement officer working under his supervision may appear before the municipal court magistrate and make oath as to the facts constituting a violation of this section and apply for a summons or warrant with respect to any alleged offense. Any person found guilty of a violation of this section shall be subject to the same penalties as provided for violations of city ordinances in section 1-7.

(d) *Removal.* In addition to or in lieu of the enforcement procedures outlined in this section, the manager of community development or his authorized representative may cause the receptacle, bin, box, container, portable building or structure and its contents which are in violation of this section to be removed from its location and impounded at a depository designated by the manager of community development for such purpose. The receptacle, bin, box, container, portable building or structure and its contents shall be held at the depository for a period of 30 days, during which time it may be retrieved by the owner provided the owner reimburses the city for the reasonable costs of transportation to and storage in the depository. In no event shall the owner be required to reimburse the city more than $100.00. After 30 days, the receptacle, bin, box, container, portable building or structure and its contents if any shall be disposed of in the most suitable manner as determined by the manager of community development.

(Ord. No. 95-469, §§ 1, 2, 7-13-1995)

State law reference—Citations, Code of Ala. 1975, § 11-45-9.1.

Sec. 17-6. Graffiti.

(a) *Intent.* Graffiti on private or public property is a blighting factor which deteriorates property and depreciates the value of the property and of adjacent and surrounding properties. The city council finds that graffiti or related inscribed material is a public nuisance and recognizes that

it is done without the permission of the property owner and constitutes an act of vandalism, and is criminal activity under state law. It is the city council's further intent to provide for the prohibition of the placement of graffiti on public or private property as set forth in this section. Graffiti is inconsistent with the city's aesthetic standards and is injurious to the comfort, welfare and safety of the community. The existence of graffiti tends to breed community discontent and further criminal activity. The prompt removal of graffiti is necessary to prevent its proliferation, and failure to promptly remove or obscure graffiti increases the likelihood and probability that more graffiti will occur on the same site and on other nearby property. While a property and its owner or possessor are usually victims of the graffiti, it is always the duty of the owner or possessor of the property to remove graffiti immediately. To assist in preventing and controlling the spread of graffiti, the city council authorizes the use of city funds to remove graffiti on public and private property as set forth in this section. The council does not intend for this section to conflict with any existing state law.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Code officer means an officer or employee of the code enforcement section of the community development division of the city.

Community development means the community development division of the city.

Graffiti means any writing, drawing, inscription, figure, letter, number, symbol, word, marking, or combination, or other defacement with paint, ink, chalk, dye or other similar substances, or which are etched on public or private buildings, structures or places which are not authorized in advance by the property owner, or which are not permitted under the city's codes and ordinances, or despite authorization by the property owner or responsible party, is otherwise deemed a public nuisance by the city. Graffiti includes but is not limited to any form of writing, drawing, doodling, inscription, figure, letter, number, word, symbol, marking or etching, initials, slogans, aphorisms, threats or insults, expressions of profanity, or that which is deemed obscene, vulgar or otherwise offensive, or other defacements, regardless of the content or nature of the materials used in the commission of the act.

Graffiti nuisance means any graffiti that has not been immediately removed or otherwise abated by the owner or responsible party of the property.

Manager means the manager of the community development division of the city or his designee or representative.

Owner means the recorded legal titleholder, or any person, group, firm, company, association or corporation having a legal or equitable interest in real or personal property, including but not limited to the interest of a lessee, tenant or occupant, or possessor of property.

Property means any real or personal property, including but not limited to any building, structure, wall, sign or fence, or that which is affixed, incidental or appurtenant to real property.

Public nuisance means any public nuisance known at common law, or that which may be detrimental to the health, safety or welfare of the public. Property defaced by graffiti is declared a public nuisance.

Responsible party means an owner, lessee, tenant, occupant or person acting as an agent or manager for an owner, a lessee, tenant, occupant or any person having possession, charge or control of a property. Regardless of any arrangement or agreement to the contrary with any other party, each owner shall be a responsible party for the purposes of this section. There may be more than one responsible party for a property.

(c) *Graffiti prohibited.*

(1) *Application of graffiti.* It shall be unlawful for any person to write, paint, scratch, inscribe, scrawl, spray, place, draw or otherwise apply graffiti to any public or private building, structure or any other property within the city. Any person convicted of an offense under this subsection (c)(1) shall be fined not less than $200.00 and shall be ordered to perform a minimum of ten hours of community service for each offense.

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

(2) *Duty of owner and responsible party.* It shall be the duty of the owner or responsible party of a property to maintain that property free from graffiti. It shall be unlawful for an owner or responsible party to allow graffiti to remain on his property or to fail, neglect or refuse to immediately remove or abate any graffiti from his property. Any owner or responsible party whose property is vandalized by the application of graffiti is encouraged to notify community development. Upon notification by an owner or responsible party, community development shall notify the gang task force, or other appropriate contact, within the criminal investigation division of the police department, which shall record all reports of graffiti for investigation and reference purposes. If the owner or responsible party notifies com-

munity development as provided in this subsection, such owner or responsible party shall be allowed 14 days from the date of such notification to abate the graffiti nuisance, using whatever resources may be available for graffiti abatement through community development. Should the owner or responsible party fail, neglect or refuse to remove or abate the graffiti from the property within the 14 days provided in this subsection, the owner or responsible party shall be issued a notice from community development to abate the graffiti as provided in subsection (d)(2) of this section.

(d) *Enforcement.*

(1) *Inspections.* The community development manager or any code officer is authorized to make inspections of properties within the city to enforce the provisions of this section.

(2) *Notice.* If the owner or responsible party of any real property within the corporate limits of the city shall fail, neglect or refuse to comply with the provisions of this section, the community development manager or any code officer may cause to be served upon the owner or responsible party, in person or by first class mail, a written notice apprising the owner or responsible party of the violation of this section and requiring such owner or responsible party to comply with this section by removing or abating graffiti within 14 days of the date the notice is issued. This notice shall contain the street address or location of the property, a statement that the property is a graffiti nuisance, a concise description of the conditions that render the property a graffiti nuisance, and a statement that the graffiti nuisance must be abated by removal within a time as specified in the notice. The notice shall advise the owner or responsible party that if the graffiti nuisance is not abated within the allowed time, the city may enter the property and abate the graffiti nuisance and assess the costs of abatement to the property owner or responsible party and cause a citation to the municipal court to be issued for a violation of this section. The notice shall also advise that the owner or responsible party may request an appeal hearing as set forth in subsection (d)(3) of this section, and shall name the date, time and place for the hearing.

(3) *Appeal hearing.* An owner or responsible party receiving a notice may request an administrative hearing before the community development manager, or other hearing officer as designated by the community development manager, to determine whether the owner or responsible party is in violation of this section. The community development manager and the owner or responsible party shall have the right to compel attendance of witnesses on their behalf at such hearing. If after the hearing the community development manager determines that this section has been violated, the owner or responsible party shall have five days from the date of notification of the determination to comply with this section. If the owner or responsible party fails, neglects or refuses to comply after such notification, the community development manager may institute the following enforcement procedures:

a. The community development manager may cause the abatement of the graffiti nuisance by removing or obscuring the graffiti. An account of the costs of the abatement shall be kept by the community development manager. Costs may include but are not limited to costs incurred in inspecting the property, in documenting the nuisance, in preparation of notices, work orders, and abatement contracts, and in inspection of the abatement work, in legal expenses, and other expenses. A billing notice of the expenses incurred by the city for the graffiti abatement may be served upon the owner or responsible party by certified mail or by

personal delivery. The billing notice shall include the street address or location of the property where the abatement occurred and a statement of the expenses incurred by the city for abating the nuisance on the subject property and requiring that the expenses be paid to the city within 30 days from the date of the billing notice, or an assessment may be placed against the subject property. If the expenses are not paid within the allotted time, the community development manager may render an itemized report in writing to the city council setting forth the costs for abating the graffiti nuisance and requesting that an assessment be placed against the subject property. The community development manager shall notify the owner or responsible party at least five days in advance of the time fixed for the council to receive the report, and the owner or responsible party may appear at that time and present any objections to the report. At the time fixed for receiving and considering the report, the council shall hear the report, along with any objections which may be raised by the owner or responsible party whose property is liable to be assessed for the abatement. The council may make such modifications to the report as they deem necessary, after which by motion or resolution the report shall be confirmed. The amounts set forth in the report shall constitute special assessments against the subject property and shall constitute a lien on the property for the amount of the assessments. After confirmation of the report, a copy shall be given to the city clerk-treasurer, who is charged with the collection of assessments, whereupon it shall be the duty of the city clerk-treasurer to charge the assessments against the respective property; and thereafter the amounts shall be collected at the same time and in the same manner as ordinary municipal assessments are collected and shall be subject to the same penalties and the same procedures under foreclosure and sale in case of delinquency as provided for ordinary municipal assessments.

b. The community development manager, or any code officer, may cause a citation to be issued to any owner or responsible party who, after written notice has been issued, fails, neglects or refuses to comply with the provisions of this section. Such citation shall name the party charged, the address or location of the property where the graffiti nuisance is located, and the nature of the offense or violation. It shall also apprise the responsible party of the date, time and place at which to appear for court. Such citation shall be returnable to the municipal court.

c. The community development manager may institute both enforcement procedures set forth in subsections (d)(3)a. and b. of this section.

(e) *Emergency removal.* If the community development manager or any code officer determines that any graffiti is an immediate danger to the health, safety or welfare of the public, then 48 hours after the notice is posted on a conspicuous place on the property, the city may remove or cause the graffiti to be removed.

(f) *Right of entry.* The community development manager, or any code officer, is authorized to enter upon any property within the city for the purpose of enforcing this section, or for the purpose of abating a graffiti nuisance.

(g) *Materials.* In no case shall the city be required to paint or repair any more extensive an area than that where graffiti is located, or is necessary to remove or abate the graffiti, as determined by community development. The city shall not be required to restore the property to its original condition with regards to color, texture or type material used for abatement.

(h) *Penalty.* Any owner or responsible party of a graffiti nuisance property who violates this section by allowing graffiti to remain upon the property shall upon conviction be punished by a fine of not less than $100.00 upon conviction in the municipal court.
(Ord. No. 96-918, §§ 1—8, 11-25-1996)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 17-7. Global positioning system monuments.

The city, to aid in more accurate surveying, has placed global positioning system (GPS) monuments at various locations. Global positioning system monuments are concrete cylinders four feet in length, eight inches in diameter with numeric characters engraved on a three-inch diameter brass disc implanted in the cylinder and placed in the ground with the brass disc exposed or just below grade. The alteration, removal, disfiguration or destruction of a global positioning system monument without the specific permission of the public works services department is an act of destruction of city property and is unlawful.
(Ord. No. 87-244, 6-23-1987)

Sec. 17-8. Discontinuance of CATV service.

(a) No franchised cable TV provider of the city shall disconnect or discontinue basic subscriber service to any subscriber, solely on the basis that the subscriber has refused the provider entry into the living area of the residential subscriber; however, such service may be discontinued after notification by the franchise holder to both the subscriber and to the city clerk-treasurer and after a hearing by the city council if the provider shows that there is reasonable grounds for such entry and that entry has been denied.

(b) Reasonable grounds shall include but are not limited to:

(1) Reasonable suspicion that the operation of a subscriber's equipment and attached to the franchise holder's cable is causing interference which places the franchise holder in potential violation of FCC regulations.

(2) Reasonable grounds to believe that illegal or unauthorized connections or attachments are attached to the franchise holder's cable.

This provision shall not apply where there is an immediate danger to public safety because of the connection.
(Ord. No. 83-444, 12-8-1983)

Secs. 17-9—17-40. Reserved.

ARTICLE II. OFFENSES AGAINST PROPERTY RIGHTS*

Sec. 17-41. Failure to return library books.

(a) It shall be unlawful for any person who has been issued a membership card by the Huntsville Public Library, the government and supervision of which is vested in the library board, after receiving written notice as provided in this section, to fail or refuse to return or cause to be returned any book, periodical, recording or other material borrowed or withdrawn from the library or any branch or bookmobile of the library on such card to the public library, together with all overdue assessments or late charges, in compliance with the rules of the board.

(b) The failure of any person borrowing or withdrawing any book, periodical, recording or other material from the library or any branch or bookmobile on any membership card issued by the library to return the material within the time required by the rules of the board shall be prima facie evidence of intent not to return the book, periodical, recording or other material to the library by the holder of the membership card to which the material is charged.

(c) Any person who is shown to be the holder of a membership card upon the records of the library shall be chargeable with all loans or withdrawals made upon such membership card unless such person shall have prior to such loan or withdrawal surrendered his card to the library or given written notification to the library of the loss or theft of the card.

*__State law reference—__Offenses against property rights, Code of Ala. 1975, §§ 13A-7-1 et seq., 13A-8-1 et seq.

(d) Before any holder of a membership card of the public library shall be charged with any violation of this section, such holder shall first be given not less than ten days' written notice that borrowed or withdrawn library material is overdue. Such notice shall be conclusively presumed to have been given when the notice is deposited with the United States Postal Service and addressed to such holder at the address shown upon the membership records of the library.

(e) This section shall apply only to offenses where the borrowing or withdrawal of the book, periodical, recording or other material actually occurred entirely within the city, it not being within the authority of the city council to create an offense for an act occurring entirely outside the city.

(f) Any person violating any provision of this section shall upon conviction be punished by a fine not in excess of $100.00, or may be sentenced to the city jail for a term not exceeding 30 days, either or both, at the discretion of the municipal judge.

(Ord. No. 82-367, §§ 1—6, 9-23-1982)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Secs. 17-42—17-70. Reserved.

ARTICLE III. OFFENSES AGAINST PUBLIC SAFETY*

Sec. 17-71. Emergency calls; interference.

(a) For purposes of this section, the following terms will be defined, as follows:

(1) *Emergency response officer* means any city employee, including but not limited to police and fire personnel, and other emergency response personnel, whether employed by the city or otherwise. The term shall not include the public information officer of the police department or the fire and rescue department.

(2) *Emergency call* means any call for assistance, whether emergency or otherwise, which is being or recently has been transmitted over city, police, fire or emergency radio systems.

(b) It shall be unlawful for any person, after hearing or receiving information regarding an emergency call, to contact emergency response officers, including those at the police department, fire and rescue department, or any participating emergency response agency, including the E 911 center, in an attempt to obtain information about an emergency call. It shall also be unlawful for any person to interfere in any way with an emergency response officer in answering an emergency call.

(c) The provisions of subsection (b) of this section shall not preclude a person from contacting emergency response officers at the scene of an emergency so long as such conduct does not interfere with an emergency response officer in responding to the emergency call or otherwise in performing his duties.

Sec. 17-72. Discharging firearms.

(a) It shall be unlawful for any person to shoot or fire a gun or other firearm within the city except as follows:

(1) In the execution of the law.

(2) At a military parade by order of a proper officer.

(3) If the person holds a license, which license may be issued by the chief of police upon the application of an individual or organized gun or skeet club to discharge shotguns only upon specifically described premises within the city. Each application for such authority shall be submitted to the chief of police at least five days in advance of any requested shooting date and must be accompanied by a map or plat showing all roads and development within 300 yards of the property upon which the shooting is to be allowed. Any license issued by the chief of police to any individual or club under this subsection shall be limited as to the premises and shall be limited to such times as the chief of police may determine, not exceeding

*__State law reference—__Offenses involving public order and safety, Code of Ala. 1975, § 13A-11-1 et seq.

one year. The chief of police shall take into consideration, in granting or refusing such permits, the proximity of such premises to inhabited dwellings, businesses, streets or highways, and also the likelihood that persons or domestic animals will be endangered by such shooting.

(4) At a range, shooting gallery, or test site, for the discharge of specific types of firearms and ammunition, approved by the inspection division as meeting the design, operational and other requirements set forth as follows:

a. *Location.* Location shall be as set forth in the zoning ordinances for the city.

b. *Codes.* Building and construction shall comply with the following codes as adopted and amended by the city:

1. Standard Building Code.
2. National Electrical Code.
3. Standard Plumbing Code.
4. Standard Gas and Mechanical Codes.
5. Other ordinances as they may apply.

c. *Miscellaneous building requirements.* Notwithstanding all other provisions of this section:

1. Other uses within an indoor firing range building shall be separated from the firing range as required by the Standard Building Code.
2. Buildings classified as type V or VI construction by the Standard Building Code shall not be considered for use as an indoor firing range.
3. Walls, floors and ceilings of the firing range itself must be bulletproof for the type of firearms, bullet weight, velocity and bullet construction to be permitted. Bulletproof means the ability of the wall, floor and ceiling material to contain three maximum power projectiles fired into any point from behind the firing line, and as certified by an architect or engineer registered under the laws of the state.
4. Ricochet control within the firing range shall be by absorption and/or deflection and shall be explained by plans and specifications.

d. *Plans and specifications.* The permittee shall submit to the inspection division the following:

1. A complete set of building plans and specifications and other engineering reports as may be required as sealed by an architect or engineer legally registered under the laws of the state, the plan to include plat, building specifications, parking availability, landscaping, outdoor advertisement signs, and types of firearms, bullet weight, velocity and bullet construction to be allowed.
2. A standard operating procedures manual, for file purposes only, which shall include, but not be limited to, the following:
   i. Posting of warning or precautionary signs.
   ii. Availability of hearing and eye protection.
   iii. Firing range cleaning procedures and methods of disposing of waste.
   iv. Procedures for removing lead from bullet trap.
   v. Disposal of lead recovered from bullet trap.
   vi. Disposal procedures for spent bullet trap material.
   vii. Ventilation system testing procedures and schedules.

viii. Specifications of and maintenance schedules for air cleaning system (recirculation type only).

3. Proof of a public liability insurance policy with a minimum limit amount of $500,000.00 for the purpose of payment of all damages to persons or property which may arise from or be caused by the conduct of any act on the property, authorized by the city, upon which any legal judgment results.

e. *Environmental.*

1. *Noise.* All noises emanating from the property shall comply with chapter 12, article V, except that the sound of firearm discharge and the sound of bullet impact shall not exceed 65 percent of the levels established in those sections; and where a firing range property adjoins residentially zoned property, the sound of firearm discharge and the sound of bullet impact shall not be audible at or beyond the property line. Compliance with noise requirements shall be determined by personnel of the natural resources and environmental management divisions and reported to the manager of the inspection division for appropriate action. These noise restrictions apply only to adjoining property lines exterior to any building which houses a firing range.

2. *Ventilation system.*

i. *Fresh air system.* The exhaust system shall be so designed that the air entering the range is from above and behind the firing line, is evenly distributed across all firing stations, and will result in an air velocity of between 65 and 85 feet per minute (fpm) past the firing line. At least 75 percent of the air volume shall be exhausted at the target/backstop area. The velocity shall be tested and certified every six months and results reported to the inspection division. Prior approval of the methodology for testing and certification must be given by the inspection division.

ii. *Recirculation system.* If a recirculation type ventilation system is utilized, the requirements stated in subsection (a)(4)e.2.i. of this section shall apply, and in addition, an air cleaning system (with pressure drop indicator) which will remove 99.97 percent of all particles greater than or equal to 0.3 micron in diameter must be installed and operated.

3. *Wastewater.* If the range area is to be cleaned by flushing with water, the floor drain shall be equipped with a grit trap and other control devices as required and approved by the natural resources and environmental management division.

4. *Inspection.* The range shall be subject to periodic inspection by the natural resources and environmental management division to determine compliance with noise and ventilation requirements. Results of such inspections shall be reported to the inspection division for appropriate action.

5. *Testing.* Before a certificate of occupancy is issued, the range

shall be tested for the requirements contained within this section. This testing shall be accomplished by an agency approved by the inspection division. All costs associated with such testing shall be paid by the owner. Results of a test completed within the previous six months to validate compliance of the bulletproof and ventilation requirements shall accompany the application for an annual business license.

(b) Nothing contained in this section shall exempt compliance with all other applicable laws, ordinances or regulations.

(Code 1982, § 18-49; Ord. No. 84-835, 12-13-1984; Ord. No. 88-208, 5-26-1988; Ord. No. 89-109, 3-9-1989)

State law references—Firearms and weapons, Code of Ala. 1975, § 13A-11-50 et seq.; preemption of handgun ordinances, Code of Ala. 1975, § 11-45-1.1.

Sec. 17-73. Discharging air rifles, airguns, air pistols, BB guns, paintball guns.

(a) It shall be unlawful for any person to shoot or discharge an air rifle, airgun, air pistol or BB gun within the city except as provided in subsection (b) of this section.

(b) The chief of police may upon application permit an individual or organization to discharge BB guns within an indoor facility approved for such use by the chief of police subject to the provisions of the city's zoning ordinance and the following provisions:

(1) Each application for a permit shall be submitted to the chief of police at least 14 calendar days in advance of any requested shooting event date.

(2) Permits, if approved, shall be issued on an event basis only.

(3) In reviewing applications for BB gun permits, the chief of police shall take into consideration the:

a. Suitability of the indoor facility for such use;

b. Safety procedures to be implemented by the individual or organization responsible for such use;

c. The proximity of the indoor facility to inhabited dwellings, businesses, streets or highways; and

d. Likelihood that persons will be endangered by such use.

The chief of police is authorized to deny or revoke any permit if in his opinion use of the facility as proposed by the individual or organization presents a danger to persons or damage to property.

(c) Notwithstanding anything contained in this section 17-73 to the contrary, it shall be lawful to shoot or discharge a paintball gun within the city limits at a site which has been granted a special exception by the board of zoning adjustment of the city, in accordance with the city's zoning ordinance.

(Code 1982, § 18-50; Ord. No. 97-171, § 18-50, 3-13-1997; Ord. No. 05-310, § 1, 5-12-2005)

Secs. 17-74—17-100. Reserved.

ARTICLE IV. OFFENSES AGAINST PUBLIC PEACE AND ORDER*

DIVISION 1. GENERALLY

Sec. 17-101. Sleeping in parked vehicles, public places or on private lot of another.

(a) It shall be unlawful for any person to sleep in, or use for sleeping quarters, any automobile, truck or any other vehicle, while the vehicle is parked on any street or other public roadway or public land, except this provision shall not prohibit sleeping in recreational vehicles on public land officially established as a trailer camp, tent camp or tourist camp and designed for overnight sleeping.

*__State law reference—__Offenses against public order and decency, Code of Ala. 1975, § 13A-11-1 et seq.

(b) It shall be unlawful for any person to sleep in, or use as sleeping quarters, any public place, public house, building or structure within the city unless such building or structure is one which has been provided with beds or sleeping quarters.

(c) It shall be unlawful for any person to sleep in or upon, or use as sleeping quarters, any private lot or ground, whether such sleeping, or use for sleeping, is had or done in an automobile, truck or other vehicle located upon such private lot or land without the written consent of the person owning such private lot or land; except that nothing in this subsection shall be construed as prohibiting the right of any person to sleep in or upon, or use for sleeping quarters, any such private lot or land which is owned by the person so using the vehicle for such sleeping purpose; nor shall the vehicle be construed as prohibiting the use for sleeping or sleeping quarters of the area embraced in any regularly licensed trailer camp, tent camp or tourist camp.
(Code 1982, § 18-23)

Cross references—Streets, sidewalks and other public places, ch. 23; traffic and vehicles, ch. 25.

Sec. 17-102. Disturbing the peace.

It shall be unlawful for any person willfully to disturb the peace of others by violence, offensive, boisterous or tumultuous conduct or carriage or by language calculated to provoke a breach of the peace, or to create or aid in a rout or riot within the city.
(Code 1982, § 18-48)

State law reference—Disorderly conduct, Code of Ala. 1975, § 13A-11-7.

Sec. 17-103. Trespassing, prowling, loitering, etc. on private property.

It shall be unlawful for any person to enter, remain, loiter, prowl or wander about, whether in a motor vehicle or on foot, upon or around any private premises, or in any enclosed lot, or in and around any dwelling, without the permission, consent or knowledge of the owner or lessee of the premises, lot or dwelling.
(Code 1982, § 18-17; Ord. No. 05-1033, § 1, 11-22-2005)

Sec. 17-104. Police department firing range.

It shall be unlawful and shall constitute a trespass for any person, not authorized by the chief of police or his designee, to enter, remain, loiter or prowl about any section or part of the police department firing range, located on or about 325 Wall-Triana Highway S.W. in the city.
(Ord. No. 17-337, § 1, 5-25-2017)

Sec. 17-105. Police department evidence and impound storage lot and/or facility.

It shall be unlawful and shall constitute a trespass for any person, not authorized by the chief of police or his designee, to enter, remain, loiter or prowl about any section or part of any police department evidence and impound storage lot and/or facility owned by the city.
(Ord. No. 17-337, § 1, 5-25-2017)

Secs. 17-106—17-120. Reserved.

DIVISION 2. UNLAWFUL ASSEMBLIES*

Sec. 17-121. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Missile means a weapon or object thrown or projected or intended to be projected.

Police officer means any member of the police department or any member of the fire department engaged in assisting police officers in police work, or any other person who, at the request of an officer of the city or of police officers, is engaged in assisting police officers in police work.

Public place means any public park, public building or other public place of the city.

Street means any public street, public avenue, public road or public alley or sidewalk of the city.

*__State law reference—__Unlawful assembly, Code of Ala. 1975, § 13A-11-5.

Unlawful assembly means an assembly which is unlawful according to Code of Ala. 1975, § 13A-11-5, or any other state act or statute.
(Code 1982, § 18-69)

Cross reference—Definitions generally, § 1-2.

Sec. 17-122. Authority to prohibit use of public places when disorder threatened.

(a) Whenever the chief of police has good reason to believe that an unlawful assembly on a street or in a public place within the city is in progress or is planned to be held, the chief of police, if he has good reason to believe that it is necessary to prevent a breach of the peace, a disorder or a riot, may prohibit, for the time being, persons from occupying or passing on any street or public place where such breach of the peace, disorder or riot is threatened or is believed by the chief of police likely to occur, and to otherwise regulate passage or occupancy upon such street and place.

(b) The chief of police or, in his absence, the officer mentioned in section 17-123, may deputize any member of the police department to impose the prohibitions or regulations upon occupying or passing on streets or public places provided for in this section.
(Code 1982, § 18-70)

Sec. 17-123. Delegation of authority in absence of chief of police.

In the absence of the chief of police from the police headquarters in the city hall, the officer in command of headquarters in the absence of the chief of police shall have all authority conferred by any section of this division on the chief of police. In order to be absent within the meaning of this section, it shall not be necessary that the chief of police be absent from the city or that he be off duty. If he is not physically present in police headquarters, then that officer in command of police headquarters while the chief of police is not present shall have all authority conferred by this article on the chief of police.
(Code 1982, § 18-71)

Sec. 17-124. Authority to prohibit persons near jails.

The chief of police may, if he deems it advisable, prescribe a reasonable distance in the vicinity of any jail or other place where prisoners are held within which persons shall not come without the permission of the officer in charge of such jail or place. No person shall knowingly and willfully, without lawful excuse, come within such limits without permission, or refuse to retire after being ordered to do so by a police officer.
(Code 1982, § 18-72)

Sec. 17-125. Demonstrations in public buildings.

It shall be unlawful for any person to take part in or otherwise participate in any demonstration within any public building.
(Code 1982, § 18-73)

Secs. 17-126—17-150. Reserved.

DIVISION 3. MOBS, RIOTS AND TUMULTS*

Sec. 17-151. Prohibiting sale of firearms, alcoholic beverages.

(a) It shall be unlawful for any person with knowledge of a proclamation under Code of Ala. 1975, § 11-43-82 or after having been informed by a police officer, firefighter or other employee of the city or any peace or military officer of the state or the United States to violate such proclamation.

(b) Whenever any mob, riot or tumult has occurred in the city or there is reasonable cause to apprehend such an occurrence, the mayor may in his judgment issue his proclamation ordering the closing of all places where alcoholic or malt brewed beverages are sold within the area of the city affected by such an occurrence or that will be affected by an occurrence which the mayor has reasonable cause to apprehend; and when in the judgment of the mayor such closing should be extended to all such places in the city, he may by

*__State law reference—__Riot, Code of Ala. 1975, § 13A-11-3.

proclamation do so. Such places shall remain closed until such times as in the judgment of the mayor the opening of such places may be effected without danger to the public peace and safety. It shall be unlawful for any person with knowledge of such proclamation or after having been informed by a police officer, firefighter or other employee of the city or any peace or military officer of the state or the United States to violate the proclamation.
(Code 1982, § 18-91)

Sec. 17-152. Curfew authorized.

(a) Whenever any tumult, riot or mob has occurred or is progressing, or there is reasonable cause to apprehend an occurrence in the city the mayor shall have power to issue his proclamation ordering a curfew for the city or any area of the city whenever, in his judgment, such would be an aid in suppressing or preventing such an occurrence. The mayor in his proclamation shall specify the hours of day of such curfew and the areas of the city affected, and such curfew shall continue in force and effect in accordance with such proclamation or any modification until terminated by the mayor. A copy of such proclamation shall be delivered or made available to the press, radio and television stations.

(b) It shall be unlawful for any person to be or remain on any street, avenue, alley, park or other public place in the city in violation of a proclamation of curfew issued by the mayor where such person has knowledge of the curfew. It shall be unlawful for any person to remain on any street, avenue, alley, park or other public place in violation of such a curfew after having been informed by a police officer, a firefighter or other employee of the city or any peace or military officer of the state or the United States.

(c) The mayor may provide for exemptions from the application of his proclamation of curfew for any person individually or as a class, who, in the judgment of the mayor, have a legitimate excuse to be in or go into the area affected by such

curfew during the hours of curfew when, in his judgment, to do so will not adversely affect the maintenance of law and order.
(Code 1982, § 18-92)

Secs. 17-153—17-180. Reserved.

ARTICLE V. OFFENSES AGAINST PUBLIC MORALS*

DIVISION 1. GENERALLY

Sec. 17-181. Possession or use of glue and other intoxicating chemical substances.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Inhale means the act of inhaling by nose or mouth.

Intoxication means the disturbance of mental or physical capacities by the introduction through inhalation into the body of any toxicating substances.

Substance means the essential nature of any gaseous, liquid or solid matter, and any modification of that essential nature, to include the basic part and the whole, which when introduced into the body, disturb the physical, mental or behavioral aspects of the person that inhaled stated substance. Substances, the inhalation of which is prohibited by this section, include but are not limited to paint, paint thinner, toluene, glue, aerosol sprays, rubbing alcohol, cough syrup, gas, gasoline, kerosene, natural gas, enamel, nail polish, nail polish remover, varnish, insecticides, paint remover and solvents, but do not include intoxicating beverages, the sale and use of which is otherwise regulated.

Toxic means any substance capable of producing toxication or poisoning.

(b) *Unlawful to inhale.* It shall be unlawful for any person, absent medical direction or supervision, or other lawful cause, to intentionally inhale, for the purpose of inducing a state of intoxication, or by which a state of intoxication is induced, or for the purpose of having an intoxicating effect, any substance which in any manner distorts, disturbs or alters the nervous system, audio, visual or mental processes of the body.

(c) *Unlawful possession.* It shall be unlawful for any person to intentionally possess any substance for the purpose of using the same in the manners prohibited in subsection (b) of this section.
(Code 1982, §§ 12-4—12-6; Ord. No. 87-289, 7-9-1987)

Sec. 17-182. Betting with a minor.

It shall be unlawful for any person who is of full age to bet or hazard any money or other thing of value with a minor, or to allow any minor to bet or hazard any money or other thing of value at any tenpin alley, billiard table, any gaming table or any game of keno kept, exhibited or conducted by him or in which he is interested or concerned, whether such table, alley or game is regularly licensed or not, or to allow any minor to play at such table, game or alley without the written consent or in the actual presence of the parent or guardian of such minor.
(Code 1982, § 18-122)

State law reference—Gambling, Code of Ala. 1975, § 13A-12-20 et seq.

Sec. 17-183. Animal fighting.

It shall be unlawful for any person to fight any chickens, dogs or other fowl or animals or to cause them to be fought in the city or for any person to be concerned or engaged in such fight or to bet or hazard any money or thing of value on the result of such fight.
(Code 1982, § 18-125)

Cross reference—Animals, ch. 5.

State law reference—Keeping cockpit, cockfighting, Code of Ala. 1975, § 13A-12-4.

Secs. 17-184—17-200. Reserved.

*__State law reference—__Offenses against public health and morals, Code of Ala. 1975, § 13A-12-1 et seq.

DIVISION 2. OBSCENITY*

Sec. 17-201. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Disseminate publicly means to expose, place, perform, exhibit, show or in any fashion display, in any location, public or private, any material in such a manner that the material can either be readily seen and its content or character distinguished by normal unaided vision or be physically examined, by viewing or examining the material from any public place or any place to which members of the general public are invited.

Distribute means to import, export, sell, rent, lend, transfer possession of or title to, display, exhibit, show, present, provide, broadcast, transmit, retransmit, communicate by telephone, play, orally communicate or perform.

Export means to send or cause to be sent outside of the city.

Import means to bring or cause to be brought into the city.

Knowingly means knowingly doing an act involving a material when the person knows the nature of the material.

Knows the nature of the material means a person knows the nature of the material when any one of the following exists:

(1) The person knows the nature of the material;

(2) The person has reason to know the nature of the material; or

(3) The person has a belief or reasonable ground for belief as to the nature of the material which warrants further inspection or inquiry of the character and content of the material.

Material means any book, magazine, newspaper, printed or written matter, writing, description, picture, drawing, animation, photograph, motion picture, film, videotape, pictorial representation, depiction, image, electrical or electronic reproduction, broadcast, transmission, telephone communication, live performance or dance.

Minor means any unmarried person under the age of 18 years.

Nudity means the showing of the human male or female genitals, pubic area or buttocks with less than a fully opaque covering, or the showing of the post-pubertal female breast with less than a fully opaque covering of any portion below the top of the areola, or the depiction of covered male genitals in a discernibly turgid state.

Obscene means that:

(1) The average person, applying contemporary community standards, would find that the material, taken as a whole, appeals to the prurient interest;

(2) The material depicts or describes, in a patently offensive way, sexual conduct, actual or simulated, normal or perverted; and

(3) A reasonable person would find that the material, taken as a whole, lacks serious literary, artistic, political or scientific value.

Recklessly means recklessly doing an act involving a material when the person knows the nature of the material. A person acts recklessly with respect to a result or to a circumstance when he is aware of and consciously disregards a substantial and unjustifiable risk that the result will occur or that the circumstance exists.

Sadomasochistic abuse means:

(1) Flagellation or torture, in an act of sexual stimulation, by or upon a person who is nude or clad in undergarments or in a revealing or bizarre costume; or

(2) The binding or physical restraining of a person who is nude or clad in undergarments or in a revealing or bizarre costume in an act of sexual stimulation.

*__State law reference—__Obscenity, Code of Ala. 1975, § 13A-12-130 et seq.

Sexual conduct means:

(1) Any act of sexual intercourse, masturbation, urination, defecation, lewd exhibition of the genitals, sadomasochistic abuse, bestiality, or the fondling of the sex organs of animals; or

(2) Any other physical contact with a person's clothed or unclothed genitals, pubic area, buttocks, or the breast or breasts of a female, whether alone or between members of the same or opposite sex or between a human and an animal, in an act of sexual stimulation, gratification or perversion.

Sexual intercourse means intercourse, whether genital-genital, oral-genital, anal-genital, or oral-anal, and whether between persons of the same or opposite sex or between a human and an animal.
(Ord. No. 90-274, § 18-242, 6-11-1990)

Cross reference—Definitions generally, § 1-2.

Sec. 17-202. Exceptions.

The possession or exhibition forbidden by this division shall not apply to a possession or exhibition by a police officer, sheriff, deputy sheriff or other peace officer, or any person under his supervision and control, or any judge, jury or attache of a court, or any attorney, or any member of a legislative body, municipal, state or federal, when such possession or exhibition is connected with the prosecution or investigation of a violation or possible violation of this division or other law or the consideration of legislation or proposed legislation designed to eliminate or reduce obscenity in any form nor to any possession or exhibition by any person where such possession or exhibition is for a bona fide scientific or educational purpose.
(Ord. No. 90-274, § 18-243, 6-11-1990)

Sec. 17-203. Distribution, possession with intent to distribute obscene material prohibited.

(a) It shall be unlawful for any person to knowingly distribute, possess with intent to distribute, or offer or agree to distribute any obscene material.

(b) It shall be unlawful for any person, being a wholesaler, to knowingly distribute, possess with intent to distribute, or offer or agree to distribute, for the purpose of resale or commercial distribution at retail, any obscene material.
(Ord. No. 90-274, § 18-244, 6-11-1990)

Sec. 17-204. Dissemination of obscene material.

It shall be unlawful for any person to knowingly disseminate publicly any obscene material.
(Ord. No. 90-274, § 18-245, 6-11-1990)

State law reference—Distribution of obscenity, Code of Ala. 1975, § 13A-12-200.2.

Sec. 17-205. Material harmful to minors; distribution, possession with intent to distribute, display for sale prohibited; affirmative defenses.

(a) It shall be unlawful for any person to knowingly or recklessly distribute to a minor, possess with intent to distribute to a minor, or offer or agree to distribute to a minor any material which is harmful to minors.

(b) It shall be unlawful for any person to openly and knowingly display for sale at any business establishment frequented by minors, or any other place where minors are or may be invited as part of the general public, any material which is harmful to minors; however, a person shall not be deemed to have violated the provisions of this subsection, relating to display for sale, by displaying material harmful to minors in sealed wrappers or behind opaque covers commonly known as "blinder racks" so that in either event the lower two-thirds of the material are concealed from view and the content of such material is not available for inspection by minors.

(c) The following shall be affirmative defenses to a charge of violating this section as it may relate to a particular minor:

(1) The minor exhibited to the defendant, his agent or employee, a draft card, driver's license, birth certificate, marriage license or other governmental document purporting to show that such minor was not an unmarried person under the age of 18

years and that the person to whom the document was exhibited did not otherwise have reasonable cause to believe that such minor was an unmarried person under the age of 18 years.

(2) A parent or legal guardian accompanied the minor or consented to the act charged.

(3) The defendant is the parent or legal guardian of the minor.

(4) The act charged was done for a bona fide medical, scientific, educational, legislative, judicial or law enforcement purpose.

(Ord. No. 90-274, § 18-246, 6-11-1990)

State law reference—Dissemination of material harmful to minors, Code of Ala. 1975, § 13A-12-200.5.

Sec. 17-206. Employment of minor to violate provisions.

It shall be unlawful for any person knowingly or recklessly to hire, employ or use such minor to do or assist in the doing of any act described in sections 17-203, 17-204 and 17-205.

(Ord. No. 90-274, § 18-247, 6-11-1990)

Sec. 17-207. Promotion of sales of material.

It shall be unlawful for any person to write or create advertising for or otherwise promote the sale or distribution of material represented or held out by him to be obscene.

(Ord. No. 90-274, § 18-248, 6-11-1990)

Sec. 17-208. Compelling the receipt of material.

It shall be unlawful for any person to knowingly, as a condition to a sale, allocation, consignment or delivery for resale of any paper, magazine, book, periodical, publication or other merchandise, require that the purchaser or consignee receive any material reasonably believed by such purchaser or consignee to be obscene; or deny or threaten to deny a franchise; or revoke or threaten to revoke or impose any penalty, financial or otherwise, by reason of the failure of any such purchaser or consignee to accept such material by reason of the return of such material.

(Ord. No. 90-274, § 18-249, 6-11-1990)

Secs. 17-209—17-230. Reserved.

DIVISION 3. PROSTITUTION*

Sec. 17-231. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Prostitution means the commission by a person of any natural or unnatural sexual act for a monetary consideration or other thing of value.

(Ord. No. 89-700, § 18-276, 1-11-1990)

Cross reference—Definitions generally, § 1-2.

Sec. 17-232. Penalties.

Upon first conviction, a person found to have violated any provision of this division shall be punished by a fine of not less than $200.00 nor more than $500.00 and by imprisonment in jail for a period not to exceed six months. This sentence shall include a mandatory sentence of not less than seven days in jail, which shall not be subject to suspension or probation. Upon a second conviction, a person found to have violated any provision of this division shall be punished by a fine of not less than $500.00, and by imprisonment in jail for a period not to exceed six months. This sentence shall include a mandatory sentence of not less than 30 days in jail which shall not be subject to suspension or probation. Upon a third or subsequent conviction, a person found to have violated any provision of this division shall be punished by a fine of not less than $500.00, and by imprisonment in jail for a period not to exceed six months. This sentence shall include a mandatory sentence of not less than 60 days in jail, which shall not be subject to suspension or probation.

(Ord. No. 89-700, § 18-284, 1-11-1990; Ord. No. 93-398, 7-8-1993)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 17-233. Declared unlawful.

No person shall commit an act of prostitution.

(Ord. No. 89-700, § 18-277, 1-11-1990)

*__State law reference—__Prostitution, Code of Ala. 1975, § 13A-12-110 et seq.

Sec. 17-234. Soliciting, inviting or enticing person for the purpose of prostitution; loitering for such purposes.

(a) No person shall solicit, invite or entice any person to have sexual intercourse or participate in any natural or unnatural sexual act for a monetary consideration or other thing of value.

(b) No person shall loiter, lurk, remain or wander about in a public place, or in a place within view of the public, or in a place open to the public, for the purpose of prostitution, or of patronizing a prostitute, or of soliciting for prostitution, and thence conduct himself in a manner or under circumstances manifesting the purpose of inducing, enticing, soliciting or procuring another to commit an act of prostitution. Among the circumstances which may be considered in determining whether such a purpose is manifested are that:

(1) Such person is a known prostitute or panderer, having been convicted within the past year under the terms of this division, the fact of such conviction being known to the arresting officer at the time of arrest;

(2) Such person repeatedly beckons to, stops, attempts to stop, or interferes with the free passage of other persons, or repeatedly attempts to engage passersby in conversation; or

(3) Such person repeatedly stops or attempts to stop motor vehicle operators by hailing, waving of arms or other bodily gestures.

No conviction shall be had under the terms of this subsection based on proof merely of a single instance of conduct described in this subsection or only one similar fact, nor upon proof of only one such instance in conjunction with proof of a prior conviction of an offense prescribed within this division.
(Ord. No. 89-700, § 18-278, 1-11-1990)

Sec. 17-235. Agreeing to engage in sexual conduct for value.

No person shall agree to engage in sexual intercourse with another or participate in any natural or unnatural sexual act for a monetary consideration or other thing of value and give or accept such monetary consideration or other thing of value in furtherance of such agreement.
(Ord. No. 89-700, § 18-279, 1-11-1990)

Sec. 17-236. Causing or allowing member of family to prostitute themselves.

No person shall cause his spouse or other member of his family to solicit, invite or entice any person to have sexual intercourse or participate in any natural or unnatural sexual acts for a monetary consideration or other thing of value.
(Ord. No. 89-700, § 18-280, 1-11-1990)

Sec. 17-237. Transportation of persons for immoral purposes.

It shall be unlawful for any common carrier or for the driver or person in charge of any taxicab or other public service vehicle to knowingly transport or aid or abet in the transportation of any person to or from any place in the city for the purpose of prostitution.
(Ord. No. 89-700, § 18-281, 1-11-1990)

Sec. 17-238. Aiding, abetting, procuring, receiving profit from prostitution.

No person shall knowingly:

(1) Cause or aid a person to commit or engage in prostitution;

(2) Procure or solicit patrons for prostitution;

(3) Provide persons or premises for prostitution purposes;

(4) Receive or accept money or other thing of value pursuant to a prior agreement with any person whereby he participates or is to participate in the proceeds of any prostitution activity; or

(5) Operate or assist in the operation of a house of prostitution or a prostitution enterprise.

(Ord. No. 89-700, § 18-282, 1-11-1990)

Sec. 17-239. Servants of lodging places aiding or abetting prostitution.

(a) It shall be unlawful for any bellhop, elevator operator, desk clerk, servant or employee of a hotel, motel, inn, boardinghouse, apartment house or any lodging place of like kind for the purpose of or in furtherance of unlawful sexual misconduct or prostitution to:

(1) Conduct any person to the room of any guest or occupant of such place; or

(2) Carry any note or message to or from a person to or from any guest or occupant of such place.

(b) It shall be unlawful for the owner or manager of any hotel, motel, inn, boardinghouse, apartment house or any lodging place or like kind to employ in such place any person who has been convicted of aiding or abetting prostitution.
(Ord. No. 89-700, § 18-283, 1-11-1990)

Secs. 17-240—17-270. Reserved.

ARTICLE VI. OFFENSES AGAINST ADMINISTRATION OF GOVERNMENT*

Sec. 17-271. Alteration or forgery of licenses, permits or other certificates.

It shall be unlawful for any person, falsely and with intent to defraud, to alter, forge, change or falsify any license, permit or other certificate which is subject to issuance or has been issued by any city official or city employee in his official capacity.
(Code 1982, § 18-37)

Secs. 17-272—17-300. Reserved.

*__State law reference—__Offenses against public administration, Code of Ala. 1975, § 13A-10-1 et seq.

ARTICLE VII. SECURITY SYSTEMS†

Sec. 17-301. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm business means the business, by an individual, partnership, corporation, company or other entity licensed by the city, of installing, maintaining, servicing, repairing, altering, replacing, moving, or monitoring an alarm system at an alarm site. This does not include individuals performing work without compensation.

Alarm notification or dispatch request means a notification intended to summon the police either manually or automatically to a particular alarm site. At the discretion of the PSO, multiple false alarm notifications in a 24-hour period of time may be counted as one false alarm.

Alarm site means a single fixed premises or location served by an alarm system. Multi-unit buildings or complexes with multiple physical addresses, are considered separate alarm sites, even if served by only one alarm system:

(1) Small commercial includes a non-residential business with the largest building being less than 10,000 square feet.

(2) Large commercial includes a non-residential business with the largest building being 10,000 square feet or more.

(3) Residential site means any single-family premises having a separate street address.

Alarm system means a device or series of devices, including, but not limited to, hard-wired and wireless systems, and systems interconnected with cellular or private radio signals, that emit, transmit or relay a local audible, visual or electronic signal intended to indicate an alarm condition and summon a police emergency response, or that would reasonably be expected

†__Editor's note—__Ord. No. 21-984, § 1, adopted Oct. 14, 2021, amended the title of Art. VII to read as herein set out. The former Art. VII title pertained to alarm systems.

to summon police services, including but not limited to self-monitoring alarms. Alarm system does not include:

(1) An alarm installed on a vehicle or boat unless the vehicle is permanently located at an alarm site;

(2) An environmental alarm designed to alert only the inhabitants of a location that does not have an external local alarm or contact the owner or service personnel of a location;

(3) A personal medical alert device unless it communicates directly through an alarm system;

(4) An alarm that is portable or a temporary self-contained unit, is not permanently affixed or electrically connected to the property, does not have a sound or sight signal that can be heard or seen from the exterior, and is designed only to alert the inhabitants within; or

(5) An alarm designed and classified as a department of defense system, provided each system has been excluded, in writing, by the PSO.

Alarm user means any person who uses an alarm system to protect his premises or has responsibility for the primary control of an alarm site.

ANSI/SIA Control Panel Standard CP-01 means the American National Standard Institute (ANSI) approved Security Industry Association — SIA CP-01 Control Panel Standard, as may be updated from time to time, that details recommended design features for alarm system control panels and their associated arming and disarming devices to reduce the incidence of false alarms. Control panels built and tested to this standard by Underwriters Laboratories (UL), or other nationally recognized testing organizations, shall be marked to state: "Design evaluated in accordance with SIA CP-01 Control Panel Standard Features for False Alarm Reduction".

Automatic voice dialer means any electrical, electronic, mechanical, or other device capable of being programmed to send a prerecorded voice message, when activated, over a telephone line, radio or other communication system, to a public safety or emergency services agency requesting dispatch.

Cancellation means the process where an alarm dispatch request is terminated by the monitoring company for an alarm site prior to police arrival at the alarm site.

False alarm means an alarm notification or dispatch request summoning the police department to the location of the alarm activation where the responding officer finds no evidence of any criminal offense, or attempted criminal offense, after having completed an inspection of the interior or exterior of the alarm site. False alarm specifically excludes the following:

(1) Alarm activation signal caused by extreme weather conditions which cause damage to the premises or alarm system. Such damage must be clearly established and must be verified by the PSO;

(2) Cancellation of an alarm dispatch request by an alarm business performing the monitoring service prior to the dispatch of police;

(3) Alarms caused by failure of the alarm equipment, provided that written proof of repair of the alarm equipment is provided to the PSO; or

(4) Other reasonable, extenuating circumstances as determined by the PSO.

Holdup alarm means an alarm signal generated by the manual activation of a device intended to signal a crime in progress.

Inactive status means a permit has been placed in an inactive status after the alarm site exceeded six false alarms within a 12-month period. Alarm permits designated inactive are subject to increased administrative fees, fines and other penalties.

Keypad means a device that allows control of an alarm system by the manual manipulation of pushbuttons, locks, knobs, etc. A keypad may also be designated as an arming station or a command station.

Keyholder means an individual capable of reaching and accessing the alarm site, possessing the code to the alarm system, and/or the authority to approve repairs to the alarm system.

Monitoring means the process by which an alarm business receives signals from alarm systems and relays alarm notification to a public safety dispatcher for the purpose of summoning police response to the alarm site.

One plus duress alarm means a manual activation of a silent alarm signal by entering a code at an arming station that adds one to the last digit of the normal arm/disarm code (e.g. normal code = 1234, one plus duress code 1235).

Panic alarm means an audible and/or visible alarm system signal generated by the manual activation of a device intended to signal a life threatening or emergency situation requiring emergency response.

Public safety alarm office (PSO) means a person or persons designated by the chief of police to issue alarm permits, review false alarm notifications, assist with registration of security cameras, and/or otherwise administer this ordinance.

Public safety dispatcher means police department dispatcher.

Security camera system means a security video camera system located in the city with either public-facing cameras or cameras located on the outside of a home, business or governmental agency.

Security camera system user means the owner, manager or operator of a security camera system.

Unregistered alarm site means a site that has not complied with registration requirements set forth in this article.

Verify means an attempt by the alarm business or its representative to determine the validity of an alarm signal by contacting the alarm site or alarm user by at least two different designated telephone numbers or other electronic means before requesting a police dispatch, whether or not actual contact with a person is made, in an attempt to avoid an unnecessary alarm dispatch.

Zones means the capability of an alarm system to separate and report incidents or alarms by area at the alarm site (Example: Zone 1—Front Door Contact; Zone 2—Front Entry Motion Detector).

(Ord. No. 98-701, § 2, 9-10-1998; Ord. No. 21-984, § 2, 10-14-2021)

Cross reference—Definitions generally, § 1-2.

Sec. 17-302. Fines and penalties.

(a) An alarm user shall be subject to warnings, fines, and other penalties depending on the number of false alarm notifications (FAN) emitted from an alarm system within a 12-month period based upon the following schedule:

(1) First and second FAN for registered active sites, no fine, warning only.

(2) Third and fourth FAN, $50.00 fine.

(3) Fifth FAN, $75.00 fine.

(4) Sixth or more FAN, $100.00 fine per occurrence, and the alarm permit shall be placed in inactive status.

(b) Any alarm user or person operating a nonpermitted or unregistered alarm system shall be subject to a citation and assessment of a $100.00 fine, in addition to the penalty for the designated FAN occurrence as set forth in subsection (a) of this section.

(c) Any alarm user of a registered site placed in inactive status shall be subject to penalties as set forth in subsection (a) of this section, plus an additional penalty of $50.00 for each FAN occurrence.

(d) A false alarm awareness class may be offered by the PSO. Upon successful completion of the class, an alarm user's first fine may be waived.

(e) After four unexcused FANS, as evidenced by written or electronic notification from the PSO, an alarm user, apartment owner or property manager (or his representative) must respond to any subsequent alarm notification and make

contact with the responding police officer at the alarm site. Failure to comply with the provisions of this subsection shall constitute a violation of this article.

(f) An alarm business, or any person performing services on behalf of an alarm business, may be subject to a fine of $50.00 for any FAN caused by such alarm business or person performing services on behalf of the alarm business.

(g) Failure to renew the alarm permit within 30 days of the anniversary date of the initial registration shall subject the alarm user to a fine, in addition to any administrative fee, in an amount equivalent to the initial registration fee.

(h) Commercial alarm users and alarm businesses with unpaid fines and penalties are subject to being reported to the city clerk-treasurer's office for business license suspension.
(Ord. No. 98-701, § 14, 9-10-1998; Ord. No. 21-984, § 3, 10-14-2021)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 17-303. Violations.

(a) An alarm user, owner of an alarm business and/or person commits an offense if he violates by commission or omission any provision of this article that imposes upon him a duty or responsibility, and is subject to the general penalty provisions of section 1-7 of this Code. Unless otherwise provided, the minimum fine for any violation of this article shall be $50.00.

(b) In addition to the provisions of subsection (a) of this section, a person commits an offense if he operates an alarm business within the corporate limits of the city without having first obtained required city and state licenses.

(c) In addition to the provisions of subsection (a) of this section, a person commits an offense if he fails to pay any fines or other penalties assessed by the PSO within 30 days of written or electronic notification.
(Ord. No. 98-701, § 15, 9-10-1998; Ord. No. 21-984, § 4, 10-14-2021)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 17-304. Purpose.

(a) The purpose of this article is to encourage security camera system users, security alarm users and alarm businesses to register alarm systems and security camera systems with the city, maintain operational reliability of alarms and security cameras, and limit unnecessary police emergency responses to false alarms.

(b) This article governs burglary, robbery, panic and holdup alarm systems, and security camera systems; requires permits; establishes fees; provides for penalties and violations; establishes a system of administration; and encourages their proper use.

(c) Alarm and/or security camera registration is not intended to, nor shall it, create a contract, duty or obligation, either expressed or implied, of response. Any liability and consequential damage resulting from the failure to respond to a notification is hereby disclaimed and governmental immunity as provided by law is retained. By applying for an alarm registration and/or security camera registration, the alarm user acknowledges that public safety response may be limited by uncontrollable factors including, but not limited to, the availability of police, priority of calls, weather, traffic, or other emergency conditions.
(Ord. No. 98-701, § 1, 9-10-1998; Ord. No. 21-984, § 5, 10-14-2021)

Sec. 17-305. Appeals.

(a) If the PSO assesses a fine or denies the issuance, renewal, or reinstatement of an alarm permit, the PSO shall send written notice of the action and a statement of the right to appeal to the affected party.

(b) The user, keyholder, or installation, servicing, and/or alarm business may appeal an assessment of a fine or the activation to inactive status of an alarm registration to the PSO by submitting, in writing, the reasons for the appeal within five business days of the date of the notice.
(Ord. No. 98-701, § 13, 9-10-1998; Ord. No. 21-984, § 6, 10-14-2021)

Sec. 17-306. Alarm business.

(a) An alarm business shall maintain all licenses as required by city, state and federal law.

(b) An alarm business shall not install, service or monitor automatic voice dialers; program alarm systems to send one plus duress alarm; or install a device to activate a holdup or panic alarm with a single action, non-recessed button.

(c) Upon request, an alarm business shall provide the PSO with a customer list in a format acceptable to the PSO.

(d) An alarm business shall notify the PSO prior to any routinely scheduled maintenance or testing of an alarm system. The PSO should be notified of any urgent situations resulting in maintenance or testing as soon as possible.

(e) Alarm installation or servicing companies shall also:

(1) Install alarm system detectors to report detailed zone and detector information to the monitoring company and prevent the occurrence of false alarms;

(2) Provide written and oral instructions to alarm user on proper use and operation of alarm system;

(3) Provide a summary of this ordinance to alarm user if completing initial registration for alarm user;

(4) Provide PSO a completed alarm registration for each new installation site if completing initial registration for alarm user; and

(5) Use only ANSI/SIA CP-01 listed alarm control panels on all new installations and panel replacements or upgrades.

(f) Monitoring companies shall also:

(1) Communicate dispatch requests to the public safety dispatcher in a manner and form determined by the PSO. Said dispatch request shall include alarm site address and permit number; nature of alarm (i.e. burglary, robbery, holdup, panic, audible, silent etc.); specific location of alarm at alarm site (i.e. interior or perimeter, north, south, front, back, etc.); name and estimated time of arrival of alarm user or keyholder; monitoring company operator name, I.D. number, and call-back phone number;

(2) Verify alarm activation before requesting police response, except a panic or holdup alarm activation, or where a crime-in progress has been verified by real-time audio/video surveillance of an alarm site by the monitoring company;

(3) Communicate cancellations to the public safety dispatcher in a manner and method determined by PSO; and

(4) Maintain, and make available to PSO upon request, for a period of at least 24 months following a request for police dispatch to an alarm site, records relating to the dispatch. Records must include the name, address and phone number of the alarm user, the activated alarm system zones or locations, and the time of the request for police dispatch. Failure to provide requested records within 30 days shall be deemed a violation of this article.

(Ord. No. 98-701, § 3, 9-10-1998; Ord. No. 21-984, § 7, 10-14-2021)

Sec. 17-307. Alarm permit required; application; fee; transferability; false statements.

(a) A person commits a violation of this article if he operates or causes to be operated an alarm system without a valid alarm registration and permit issued by the city for each alarm site. The permit required by this article is in addition to any permit which may be required by city for the installation of an alarm system.

(b) The non-refundable, non-transferable registration or renewal fee for a permit is $25.00 a year for a residential alarm site; $35.00 a year for a small commercial alarm site; and $50.00 a year for a large commercial alarm site. The permit fee shall be submitted to the PSO by the alarm user or the alarm company within 30 days of the alarm installation, activation, possession or anniversary date for annual renewal.

(c) An alarm permit decal will be issued to the alarm user, which shall be posted in a conspicuous place at the front entrance of the site and which is visible from the exterior of the alarm site. The alarm permit decal shall remain the property of the city.

(d) Each permit application must include the following information:

(1) The name of the person who will be the permit holder and be responsible for the proper maintenance and operation of the alarm system and payment of fees assessed under this article;

(2) The classification of the alarm site as residential, small commercial or large commercial; and

(3) All other information required by the PSO.

(e) Any false statement of a material matter made by an applicant or alarm business for the purpose of obtaining an alarm permit shall be sufficient cause for refusal to issue a permit and shall constitute a violation of this article.

(f) An alarm permit shall not be transferred to another person or location.

(g) An alarm user shall inform the PSO of any change that alters any information listed on the permit application within a reasonable amount of time as determined by the PSO.

(h) All fees owed by an applicant must be paid before a permit may be issued.
(Ord. No. 98-701, § 4, 9-10-1998; Ord. No. 21-984, § 8, 10-14-2021)

Sec. 17-308. Multi-unit alarm systems.

(a) If an alarm system is the responsibility of the individual tenant in a multi-unit complex, the tenant is the alarm user and shall be responsible for permit registration and renewal, and the payment of any fines, fees and other penalties associated therewith.

(b) If the alarm system in a unit is provided by the multi-unit complex (i.e. an amenity), the complex owner or property manager is the alarm user and shall be responsible for permit registration and renewal, and the payment of any fines, fees and other penalties associated therewith, regardless as to whether the unit is occupied or not.

(c) The name of the multi-unit complex, building number, and unit number must be provided to register, renew and/or modify the status of alarm permits.

(d) The owner or property manager of a multi-unit complex shall obtain a separate commercial alarm permit for any alarm system operated in a non-residential area of the multi-unit complex, including but not limited to common tenant buildings and areas, offices, and storage and equipment areas and buildings.

(e) At the discretion of the PSO, a single alarm registration and permit may be allowed for a commercial non-residential multi-unit building or complex if all units or buildings are served by one alarm system and located at the same physical address.

(f) If commercial multi-unit buildings or complexes have separate physical addresses or are served by separate alarm systems, a permit shall be required for each alarm site.
(Ord. No. 98-701, § 5, 9-10-1998; Ord. No. 21-984, § 9, 10-14-2021)

Sec. 17-309. Proper alarm system operation and maintenance.

(a) An alarm user shall:

(1) Maintain the premises and the alarm system in good working order and in a manner that will minimize or eliminate false alarm notifications;

(2) Pay all administrative fees and penalties associated with the operation and maintenance of the alarm system;

(3) Respond or cause the keyholder to appear at the system's location within one hour, when notified by the city, to deactivate a malfunctioning alarm system, to provide access to the premises, and/or to provide alternative security for the premises;

(4) Not activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report;

(5) Provide the alarm installation and/or monitoring company with the alarm system permit number; and

(6) Notify the PSO within 30 days if the alarm system is disconnected or terminated; the permitted alarm user or business moves; or the alarm site is sold.

(b) An alarm user shall adjust the mechanism or cause the mechanism to be adjusted so that an alarm audible or visible on the exterior of an alarm site will be actuated for no longer than ten minutes after being activated.

(c) An alarm user shall not contract to retain an alarm business that does not comply with the requirements of this article or is not licensed by the city or state.

(d) This section applies to all alarm sites, including alarm systems that are self-installed, self-monitored or proprietary.
(Ord. No. 98-701, § 6, 9-10-1998; Ord. No. 21-984, § 10, 10-14-2021)

Sec. 17-310. Prohibited alarm equipment.

(a) It shall be unlawful for any person to use a device for activating a holdup alarm (i.e., "panic" button) which is easily accessible by the public.

(b) Automatic devices dialing into the police department or the E 911 center are prohibited. It is unlawful for any person to program an automatic dialing device to summon police assistance or to select any telephone line into the police department.
(Ord. No. 98-701, § 7, 9-10-1998; Ord. No. 21-984, § 11, 10-14-2021)

Sec. 17-311. Records.

In the interest of public safety, all information submitted through the alarm registration process, records relating to alarm dispatch requests, applications for appeals, and all security camera video recordings and photographs shall be designated confidential, proprietary and safety sensitive and shall be maintained by the police department and not disseminated unless otherwise required by state or federal law.
(Ord. No. 98-701, § 8, 9-10-1998; Ord. No. 21-984, § 12, 10-14-2021)

Sec. 17-312. Public safety office.

(a) If there is a reason to believe that an alarm system is not being used or maintained in a manner that ensures proper operation and suppresses false alarms, the PSO may require a conference with an alarm user, keyholder and/or the alarm business responsible for maintenance, repair or monitoring of the alarm system to review the circumstances of each false alarm. Failure to attend the required conference shall constitute a violation of this article.

(b) Upon receipt of registration form and applicable registration fee, the PSO shall register the applicant unless assessed fines or administrative fees have not been paid; or an alarm site permit has been marked inactive and the violation causing such has not been corrected.

(c) The PSO shall notify the alarm user electronically or in writing of the date and time of the false alarm; the amount of the assessed fine; and the number of false alarms at the site to date.

(d) The PSO may require an alarm user to modify his alarm system or change how dispatches are requested to conform with this ordinance. Failure to make required modifications shall constitute a violation of this article.
(Ord. No. 98-701, § 9, 9-10-1998; Ord. No. 21-984, § 13, 10-14-2021)

Sec. 17-313. Security camera program.

(a) To deter criminal activity and assist with public safety efforts, owners, managers or operators of security camera systems may voluntarily participate in the police security camera share program by registering their security camera systems with the police department and sharing public facing video recordings or video recordings from cameras located on the outside of homes or businesses with law enforcement.

(b) The minimal requirements for the registered security camera system include capabilities of recording and retrieving video images and downloading saved images to an external device when needed for review by law enforcement.

(c) Commercial or governmental security camera systems seeking to provide real-time video access or other additional network access to the police department to assist with crime prevention or address an active community safety issue may require additional specifications as determined by the police department.

(d) Registered systems shall be issued a decal to be posted in a highly visible, conspicuous place at the front entrance of the physical site or location of the security camera system. The permit decal shall remain the property of the city.

(Ord. No. 98-701, § 10, 9-10-1998; Ord. No. 21-984, § 14, 10-14-2021)

Sec. 17-314. Reserved.

Editor's note—Ord. No. 21-984, § 15, adopted Oct. 14, 2021, repealed § 17-314, which pertained to alarm dispatch requirements and derived from Ord. No. 98-701, § 11, adopted Sept. 10, 1998.

Sec. 17-315. Reserved.

Editor's note—Ord. No. 21-984, § 15, adopted Oct. 14, 2021, repealed § 17-315, which pertained to system performance reviews and derived from Ord. No. 98-701, § 12, adopted Sept. 10, 1998.

Chapter 18

PEDDLERS AND SOLICITORS*

Article I. Residential Solicitation

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*__Cross references—__Businesses, ch. 8; streets, sidewalks and other public places, ch. 23.

ARTICLE I. RESIDENTIAL SOLICITATION

DIVISION 1. IN GENERAL

Sec. 18-1. Purpose; scope; handbilling.

(a) *Purpose.* The city council finds that its citizens have the right to be secure from unwanted intrusion into their privacy and from criminal or fraudulent conduct or activity. The city council further finds that solicitation at a residence directly implicates the security of citizens of this city and city officials have received and are aware of citizen complaints about certain practices or conduct associated with solicitation in this city including fraud. The city council is also aware of criminal activity occurring in this city as well as other cities as a result of solicitors gaining access to residences under the guise of soliciting. The city council recognizes that there are constitutional guarantees associated with the practice of soliciting which are to be respected and safeguarded. Therefore, the purpose of this article is to adopt police power regulations which are designed to protect the security of citizens in their lives, their homes, and their property, and which do not offend constitutional guarantees.

(b) *Scope.* This article shall have full force and effect throughout the corporate limits of the city and is intended to regulate all forms of solicitation that physically occur at a residence, whether commonly known as soliciting, peddling, hawking, canvassing, or other similar terms.

(c) *Placing of handbills.* Section 22-39 of this Code applies to commercial and noncommercial handbilling and solicitors employing the practice of handbilling while soliciting shall abide by section 22-39. Notwithstanding any contrary provisions of section 22-39, where the occupant of a residence has posted a notice in accordance with section 18-3 of this article prohibiting solicitation, then no solicitor shall leave any literature concerning the solicitation at the residence.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-2. Definitions.

(a) The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commercial solicitor means:

(1) A person who engages or attempts to engage in residential selling; or

(2) A person who engages or attempts to engage in solicitation on behalf of another person in exchange for taxable compensation whether as an employee, agent, independent contractor, or otherwise, except that a bona fide officer or employee of an organization for which residential advocacy or residential fundraising is being conducted shall not be included in the definition of a commercial solicitor.

Competent individual means a person claiming or reasonably appearing to be at least 19 years of age, or who claims to be an emancipated minor, and who reasonably appears to be of sufficiently sound mind and body to be able to engage in rational thought, conversation, and conduct, or to otherwise have the capacity to contract.

Disqualifying factors means:

(1) A person has been criminally convicted of (which includes any disposition of a criminal case resulting in the imposition of a fine, probation, incarceration, or other adverse sentence of a punitive nature, whether or not the person has been formally adjudicated guilty, unless the conviction has been set aside on appeal or pursuant to a writ of habeas corpus) or has criminal charges currently pending against them for:

   a. Homicide or manslaughter of any type, class, or degree;

   b. Physically abusing, sexually abusing, or exploiting a minor;

   c. The sale or distribution of controlled substances;

   d. Sexual assault of any type, class, or degree; or

e. Theft, robbery, burglary, or assault, of any type class, or degree.

(2) A person has been criminally convicted (which includes any disposition of a criminal case resulting in the imposition of a fine, probation, incarceration, or other adverse sentence of a punitive nature, whether or not the person has been formally adjudicated guilty, unless the conviction has been set aside on appeal or pursuant to a writ of habeas corpus) for a felony in the last ten years.

(3) A person has been confined or imprisoned in a federal or state prison within the last ten years.

(4) A person has been criminally convicted (which includes any disposition of a criminal case resulting in the imposition of a fine, probation, incarceration, or other adverse sentence of a punitive nature, whether or not the person has been formally adjudicated guilty, unless the conviction has been set aside on appeal or pursuant to a writ of habeas corpus) of a misdemeanor within the past five years involving a crime of moral turpitude according to the laws of this state, or violent or aggravated conduct involving persons or property.

(5) A person has a final, nonappealable civil judgment entered against them within the last five years involving fraud or intentional misrepresentation;

(6) A person is currently on parole or probation to any court, penal institution, or governmental entity, which include being under house arrest or subject to a tracking device;

(7) A person has an outstanding warrant from any jurisdiction; or

(8) A person is currently subject to a protective order, based on physical or sexual abuse, issued by a court of competent jurisdiction.

Goods means tangible items of any kind, which include merchandise, wares, foodstuffs, perishables, publications, subscriptions, supplies, materials, and manufactured or compounded products.

Manager means a person that manages, supervises, or oversees a commercial solicitor, whether or not the manager actually solicits.

Master permit means the master permit issued in accordance with division 2 of this article.

Master solicitor means a person that employs, hires, engages, or otherwise uses a commercial solicitor for soliciting. A master solicitor who is an individual must be at least 19 years of age.

Non-commercial solicitor means a person that engages in residential advocacy or residential fundraising who is not a commercial solicitor.

Residence means and includes every separate living unit occupied for residential purposes by one or more persons, which includes those contained within any type of building or structure.

Residential advocacy means, while upon residential premises, engaging or attempting to engage an occupant of the residence in conversation, without that person's prior invitation or consent, for the purpose of promoting or facilitating the receipt of information regarding a cause, practice, or belief, which includes charitable, political, religious, eleemosynary, social, philanthropic, benevolent, humanitarian, environmental, health-related, patriotic, civic, or educational causes, practices, or beliefs.

Residential fundraising means, while upon residential premises, obtaining or attempting to obtain from an occupant of the residence, without that persons prior invitation or consent, any form of gift, donation, or contribution of money, clothing, or any other thing of value, for the sole benefit of an educational, charitable, civic, religious, or other nonprofit organization, purpose, or project. The providing of something of value, whether tangible or intangible, in exchange for the gift, donation, or contribution shall not constitute residential selling unless a business license is required under chapter 15 of this Code in connection with the exchange.

Residential premises mean the residence, its accessory structures, and the lot on which the residence is located and which lot is under the

control of the owner, tenant, or occupant of the residence. The term does not include common areas or public areas adjacent to the residential premises.

Residential selling means, while upon residential premises, obtaining or attempting to obtain from an occupant of the residence, without that person's prior invitation or consent, a prospective customer or a sale of or order for goods or services, regardless of the timing or method of payment, remuneration, or consideration, and regardless of the time of delivery of the goods or performance of the service.

Services mean intangible items or benefits of any kind, which include construction, maintenance, repairs, improvements, professional services, insurance coverage, housekeeping, landscaping or yard care, real estate products or services, investment opportunities, technical services, computer services, and communications services.

Soliciting or *solicit* or *solicitation* means residential advocacy, residential fundraising, or residential selling.

Solicitor means any person engaged in soliciting.

Solicitor's permit means the solicitor's permit and accompanying photo identification tag issued in accordance with division 2 of this article.

(b) Where not otherwise defined in subsection (a) of this section, the words, terms, and phrases, when used in this article, shall have the meanings and rules of construction ascribed to them in section 1- 2 of this Code, except where the context clearly indicates a different meaning.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-3. Notice regulating residential soliciting.

(a) *Form of notice.* Any occupant of a residence may give notice of a desire to refuse soliciting by posting a reasonably visible and legible sign upon or near the main entrance door or main entrance gate to the residence, or on or near the property line adjacent to the sidewalk leading to the residence. Where the notice states "No Solicitation" or "No Trespassing," or words of similar import, then all forms of solicitation are prohibited at such residence.

(b) *Effect of notice.* Any such sign so exhibited shall constitute sufficient notice to any solicitor of the determination by the occupant of the residence regarding soliciting at such residence.

(c) *Duty to abide by notice.* It shall be the duty of every solicitor upon going onto any residential premises in the city to first examine for the notice provided for in this section and, if one is found to exist, it shall be a violation of this article to fail to abide by the notice by immediately and peacefully departing from the premises without making any effort to conduct or engage in solicitation, which includes, in any manner, attempting to attract the attention of or secure an audience with the occupant of the residence in an effort to solicit.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-4. Duty of solicitors.

(a) In no event will any solicitor enter inside or follow a person into a residence without the express invitation or permission of the occupant who must be a competent individual. Any solicitor who has gained entrance into any residence, whether invited or not, shall immediately and peacefully depart from the premises when requested to do so by the occupant.

(b) It is a violation for any solicitor through ruse, deception, or fraudulent concealment of a purpose, to solicit or to take action calculated to secure an audience with an occupant of a residence.

(c) A solicitor while soliciting shall not intentionally or recklessly make any physical contact with, or touch another person without the person's consent.

(d) A solicitor shall not continue repeated soliciting and shall immediately and peacefully leave the premises after the occupant of the residence has expressly declined the solicitation.

(e) A solicitor shall not engage in abusive, threatening, harassing, intimidating, or coercive conduct toward the occupant of a residence.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-5. Time limit on soliciting.

It is unlawful for any person, whether or not issued a solicitor's permit, to go upon any residential premises and ring the doorbell upon or near any door of a residence located thereon, or rap or knock upon any door or create any sound in any other manner calculated to attract the attention of the occupant of such residence, for the purpose of securing an audience with the occupant thereof and engage in, or attempt to engage in, soliciting on any day prior to 8:00 a.m. or after 8:00 p.m., unless the solicitor has the express invitation or permission of the occupant who is a competent individual.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-6. Age limitations for commercial solicitors.

Any person under the age of 16 who is engaged as a commercial solicitor shall be under the direct supervision of a person at least 19 years of age. Direct supervision means the supervising person shall at all time have the minor in sight and shall in no event be more than 100 feet away from the minor.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-7. Restrictions on methods of solicitation.

(a) A solicitor shall not falsely represent, directly or by implication, that the solicitor is acting on behalf of a governmental organization, a charitable organization, or any person other than the person for whom the solicitor is actually acting.

(b) A solicitor shall not intentionally make any materially false or fraudulent statement in the course of soliciting.

(c) A solicitor shall use their real name and shall not use a fictitious name, an alias, or any name other than their correct name.
(Ord. No. 12-60, § 1, 3-22-2012)

DIVISION 2. SOLICITATION PERMITTING

Sec. 18-8. Permit required; exemption.

(a) *Solicitor's permit.* A commercial solicitor shall be required to obtain a solicitor's permit prior to soliciting and failure to do so shall constitute a violation of this article. At all times while soliciting, the solicitor shall be required to carry and present the permit, which shall include a copy of the city business license, upon the request of the person being solicited or a law enforcement officer or license official of the city, and to conspicuously display the photo identification tag hereinafter provided for.

(b) *Master permit.* A master solicitor may make application for a solicitor's permit for each of the commercial solicitors that will be soliciting on the master solicitor's behalf by applying for a master permit as hereinafter provided.

(c) *Exemption.* A solicitor's permit shall not be required for a noncommercial solicitor.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-9. Permit application; notice.

(a) *Form, etc.* Applications for permitting under this division shall be made on forms provided by the city clerk-treasurer for such purpose and shall be signed and verified by oath or affirmation by the applicant if a natural person or, in the case of an association, partnership, or limited liability company, by a member or partner, or in the case of a corporation by an executive officer, or any person specifically authorized by the corporation to sign the application to which shall be attached written evidence of his authority. Prior to or after the issuance of a permit, applications shall be immediately updated should there be a change in any of the information provided, or additional information to be added. It shall be the duty of the master solicitor to update its application for a master permit, which includes adding or removing its commercial solicitors, as appropriate.

(b) *Master permit application.* A master solicitor may make application for a master permit to include solicitor's permits for each of the commercial solicitors who will be conducting soliciting on the master solicitor's behalf. Each solicitor's permit issued under a master permit shall be conditioned upon the continued validity of the master permit and subject to all actions taken against the master permit. In addition to the information

required under subsection (c) of this section, the master solicitor shall furnish each of the following:

(1) The master solicitor's true and correct name (which includes any former names or aliases used during the last ten years) and complete then-current contact information which includes a telephone number and permanent and, if applicable, local business address (not a post office box);

(2) Proof of the master solicitor's tax exemption status, if applicable;

(3) The master solicitor's social security number or federal identification number;

(4) Proof of possession of any license or permit which is required by the city in order to conduct the proposed solicitation;

(5) The nature of the business relationship of the solicitor to the master solicitor, which includes an employee, agent, or independent contractor; and

(6) The certification required in subsection (e) of this section.

(c) *Solicitor's permit application.* The application for a solicitor's permit shall contain the following information for each person who will be conducting solicitation activities as a commercial solicitor:

(1) The proposed solicitor's true and correct name (which includes any former names or aliases used during the last ten years), date of birth, social security number, and then-current contact information which includes a telephone number and permanent home and, if applicable, local address (not a post office box);

(2) The proposed solicitor's valid state driver's license, a state-approved identification card with a photograph, or other form of government issued photo identification acceptable to the city clerk-treasurer (The city clerk-treasurer will make a photocopy and attach to the application);

(3) If a vehicle is used, a description of the same, together with the state where licensed, license number, and the vehicle identification number;

(4) Two photographs suitable for reproduction, measuring at least 1.5 inch x 1.5 inch and showing the head and shoulders of the proposed solicitor in a clear and distinguishing manner, which shall have been taken within the preceding 60 days before filing the application;

(5) Proof of possession of any license or permit which is required by the city in order to conduct the proposed solicitation;

(6) If the proposed solicitor is soliciting on behalf of a master solicitor, the solicitor shall furnish the information concerning its master solicitor that is required in subsection (b) of this section together with appropriate written credentials that authorize the solicitor to solicit on the master solicitor's behalf;

(7) The nature of solicitation activity;

(8) The approximate time period when the soliciting will be conducted, this includes the projected start date and completion date, and the proposed days of the week and times of day of solicitation;

(9) In the case of residential selling, the method of payment for the goods or services;

(10) The certification required in subsection (e) of this section; and

(11) If the proposed solicitor has a manager that is or will be present in the city during all or any portion of the solicitation, the applicant shall provide the name, permanent and, if applicable, local business address (not a post office box), and complete contact information of the manager.

(d) *Notice.* Each applicant shall provide an address where all notices required to be issued under this article are to be sent and if there is a local address, then such address shall be that address. Where the city clerk-treasurer is required to provide written notice under this divi-

sion to an applicant or permit holder or appellant such notice shall be accomplished by personal delivery or by first class or certified mail to the address on the application. Notice shall be deemed to have been received upon delivery or, if mailed, then three days after mailing.

(e) *Certification; investigation.*

(1) *Certification.* Each master solicitor shall be required to provide a written certification, on forms provided by the city clerk-treasurer, that no disqualifying factors exist for each solicitor soliciting on its behalf or for the master solicitor itself which, in the case of an entity, includes its controlling officers, directors, partners, or members, as the case may be. Such certification shall be signed and verified by oath or affirmation in the same manner as the application. Where the solicitation will not be conducted on behalf of a master solicitor, then the applicant for a solicitor's permit shall be required to provide written certification that he has no disqualifying factor.

(2) *Investigation.* The chief of police and city clerk-treasurer, or their respective designees, are hereby authorized to conduct an investigation they deem appropriate into the matters contained in the application. The applicant's submission of the application authorizes the city to verify information submitted with the application.

(f) *Solicitation by minors.* A minor who conducts commercial solicitation shall operate under the authority of a master solicitor who will be responsible for controlling the conduct of the minor.

(g) *Application fee.* At the time of submission of an application, each applicant shall pay a non-refundable fee, in an amount to be determined by the city clerk-treasurer, which is sufficient to defray the costs incurred by the city for processing the application and issuing the photo identification tag.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-10. Permit issuance.

(a) Upon receipt of a completed application and completion of any investigation, then the city clerk-treasurer shall issue a solicitor's permit or master permit, as appropriate, unless he finds any one of the following reasons for denial exists:

(1) The application for permitting is not complete;

(2) False or misleading statements are found to be included in the application for a permit;

(3) The applicant or the applicant's master solicitor has a disqualifying factor or does not otherwise meet the requirements of this article;

(4) Within the 12 months preceding the date of the application, the applicant or the applicant's master solicitor has had a prior permit issued pursuant to this article revoked or denied;

(5) Within the 12 months preceding the date of the application, the applicant or applicant's master solicitor has been convicted of or has charges pending for a violation of this article;

(6) The applicant has failed to pay the application fee; or

(7) The applicant or applicant's master solicitor has not obtained proper business licensing or the business license has been denied, revoked, suspended, or not renewed.

(b) If an application is denied, the city clerk-treasurer shall provide the applicant with written notice of the denial along with the reason for the denial.

(c) Each solicitor's permit shall be issued accompanied by the photo identification tag which shall be worn constantly by the permittee in a conspicuous place on his or her person while conducting solicitation activities in the city. A person commits an offense if the person wears or displays a photo identification tag issued to another person or alters a photo identification issued hereunder. Any solicitor who by affidavit

notifies the city clerk-treasurer that his or her tag has been lost or stolen shall be issued a replacement tag upon payment of the fee for the tag.

(d) Permits are hereby expressly issued upon the condition that the holder thereof shall abide by the provisions of this article, and operate in conformance with the statements or representations contained in the permit application, which includes the nature of the solicitation activity and the timing of solicitation. All permits issued pursuant to this article are not transferrable.

(e) In no event shall the holder of a permit issued under this article represent or imply that the issuance of the permit or display of the photo identification tag means that the city in any way endorses the purpose or method of the solicitation.

(f) Unless revoked sooner, permits issued pursuant to this division shall be valid for the dates and times specified on the application, provided, however, no permit issued hereunder shall be valid for more than a consecutive 12-month period of time. Upon expiration of a permit or where not renewed, it shall be unlawful to continue to solicit or to display the expired permit or photo identification tag for the purpose of soliciting.

(g) Permits may be renewed in the same manner as the original issuance.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-11. Revocation or suspension of permit.

(a) A master permit or solicitor's permit may be revoked or suspended by the city clerk-treasurer for any of the following reasons:

(1) The city clerk-treasurer finds that any fact or event which would constitute a basis for denial of the permit is true or has become true since the application was completed; or

(2) The solicitor conducts solicitation activities in violation of any provision of this article.

(b) Action against master.

(1) Should more than one complaint be received that solicitors for any one master solicitor have violated any of the provisions of this article, the city clerk-treasurer may suspend or revoke all solicitor permits for such master solicitor and notify the permit holders of such action.

(2) Should more than one complaint be received that solicitors who are soliciting under a master permit have violated any of the provisions of this article, the city clerk-treasurer may suspend or revoke the master permit and notify the master solicitor, which shall have the effect of revoking all the solicitor's permits issued under the master permit without the need of further action by the city or notification of each solicitor.

(3) Upon any action being taken to suspend or revoke a master permit, all solicitor's permits issued under the master permit shall be included in such action and the right to appeal the action shall be solely that of the master solicitor.

(c) Upon revocation or suspension, the city clerk-treasurer shall immediately provide written notice to the permit holder stating the action and the reasons supporting such action. Where permits are issued under a master permit, the notice to the holder of the master permit shall constitute sufficient notice to all solicitors working under the master permit.

(d) The city clerk treasurer shall have the authority to seize any and all permits and photo identification tags possessed by persons conducting business as a solicitor while the official notification process and any appeals process is underway if the basis for the action is the existence or occurrence of a disqualifying factor or if the chief of police finds that there is an immediate threat to the public health or safety if the soliciting is allowed to continue. Upon seizure of the permit and tag all solicitation activities conducted under the authority of that permit shall cease.
(Ord. No. 12-60, § 1, 3-22-2012)

Sec. 18-12. Appeals.

(a) A person who is denied a solicitor's permit or master permit, or whose permit is revoked or suspended by the city clerk-treasurer, may appeal

the decision to the appeals officer designated by the mayor by filing a written notice of appeal with the city clerk-treasurer, stating the action appealed from and grounds for the appeal, within 15 days after receiving notice of the action appealed from.

(b) Within ten days of the receipt of the notice of appeal, the appeals officer shall set a time and place for a hearing on the appeal which shall be not later than 30 days from the date of receipt of the notice of appeal.

(c) At least ten days' advance written notice of the time and place of the hearing shall be provided to the appellant.

(d) The decision of the appeals officer on the appeal is final. No other administrative procedures are provided by the city.
(Ord. No. 12-60, § 1, 3-22-2012)

Secs. 18-13—18-30. Reserved.

ARTICLE II. CENTRAL CITY AREA

Sec. 18-31. Delineated.

The provisions of this division shall apply in the more congested and intensely developed area of the city, which for the purpose of this division is designated as the central business district of the city, more specifically described as follows:

Beginning at the intersection of Church Street and the Norfolk Southern Railroad; thence South on the centerline of Church Street to the intersection with Monroe Street; thence Southwest on Monroe Street to the intersection with Holmes Avenue; thence West along the centerline of Holmes Avenue to the intersection with Highway 231/431 (Memorial Parkway); thence South along the centerline of Memorial Parkway to the intersection with Governor's Drive; thence east along the centerline of Governor's Drive to the intersection with Franklin Street; thence Northwest along the centerline of Franklin Street to the intersection with Eustis Avenue; thence northeast along the centerline of Eustis Avenue to the intersection with Greene Street; thence Northwest along the centerline of Greene Street to the intersection with Monroe Street and Meridian Street; thence North along the centerline of Meridian Street to the intersection with Pratt Avenue; thence West along the centerline of Pratt Avenue to the intersection with I-565; thence Southwest along the centerline of I-565 to the intersection with Church Street; thence Southeast along the centerline of Church Street to the intersection with the Norfolk Southern Railroad and the point of beginning.
(Code 1982, § 18-381; Ord. No. 10-430, § 1, 6-10-2010)

Sec. 18-32. Purpose.

The purpose of this division is to promote the health, safety and welfare of the citizens of the city; to lessen and reduce congestion in the streets, sidewalks and other public places in the more congested and intensely developed central business district of the city, and to regulate the use of the streets, other public areas and private yards and parking areas open and accessible to the public within the area.
(Code 1982, § 18-382)

Sec. 18-33. Private yards and parking lots open to public access.

It shall be unlawful for any person to peddle, hawk, sell or offer for sale any goods, wares or merchandise upon any private yard, lot or parking area of any private premises or business within the central city area of the city and open to public access, without at the time having in his possession a written permit or written permission from the owner, person in possession or from the duly authorized agent of the owner or person in possession. This section shall not apply to the employees or agents of the owner or person in possession of such premises.
(Code 1982, § 18-383)

Sec. 18-34. Public buildings, other public areas.

It shall be unlawful for any person to peddle, hawk, sell or offer for sale any goods, wares or merchandise upon the premises of the city municipal building, city utility building, senior citizens center, Von Braun Center, public library, Big

Spring International Park, any city off-street parking structure or lot or any other public building of the city, all located within the central city area of the city, without first having secured a written permit or written permission from the director, manager or other agent or written permission from the director, manager or other responsible agent or employee of the city.
(Code 1982, § 18-384)

Sec. 18-35. Streets, sidewalks, parks.

Except as provided in section 18-36, it shall be unlawful for any person to peddle, hawk, sell or offer for sale any goods, wares or merchandise upon the dedicated right-of-way of any public street or sidewalk located within the central city area of the city.
(Code 1982, § 18-385; Ord. No. 94-546, 8-11-1994; Ord. No. 95-508, § 1, 7-27-1995; Ord. No. 97-173, § 1, 3-25-1997)

Cross reference—Streets, sidewalks and other public places, ch. 23.

Sec. 18-36. Sidewalk cafes, vendors, and mobile food vendors.

(a) *Definitions*. For purposes of this section 18-36, the following words, terms, and phrases shall have the meanings ascribed to them in this subsection (a), unless the context clearly indicates a different meaning:

Central city area means the area described in section 18-31.

Central city core area means the following described area located within the central city area:

Beginning at the intersection of Church Street and the Norfolk Southern Railroad; thence Southeast along the centerline of Church Street to the intersection with Monroe Street; thence Southwest along the centerline of Monroe Street to the intersection with Holmes Avenue; thence East along the centerline of Holmes Avenue to the intersection with Church Street; thence Southeast along the centerline of Church Street to the intersection with Williams Avenue; thence Northeast along the centerline of Williams Avenue to the intersection with Franklin Street; thence Northwest along the centerline of Franklin Street and to the intersection with Eustis Avenue; thence Northeast along the centerline of Eustis Avenue to the intersection with Greene Street; thence Northwest along the centerline of Greene Street to the intersection with Monroe Street and Meridian Street; thence North along the centerline of Meridian Street to the intersection with Pratt Avenue; thence West along the centerline of Pratt Avenue to the intersection with I-565; thence Southwest along the centerline of I-565 to the intersection with Church Street; thence Southeast along the centerline of Church Street to the intersection with the Norfolk Southern Railroad and the point of beginning.

Central city review committee or *committee* means a committee comprised of the police chief, the city-clerk treasurer, and the manager of planning administration, or their respective designees.

Business license shall have the same meaning ascribed to it in section 15-31 of this Code.

Permit means a sidewalk cafe permit, a vendor's permit, or a mobile food vendor's permit issued under the authority of this section.

Permitted activity means the sidewalks cafes, vendors, or mobile food vendors permitted under this section.

Permitted premises means that portion of the public streets, sidewalks, or parks that is allowed by the permit to be occupied for the permitted activity.

Public works activity means any public works project; public building project; infrastructure construction, maintenance, or repair; or other public improvement activity of the state or city.

(b) *General conditions*. Each of the following conditions shall apply to the activity or persons permitted or regulated under this section:

(1) The permit shall be in addition to the required business license and the permit holder shall obtain and maintain a business license from the city and, failing to so obtain or maintain the business license, the permit issued under this section shall

be automatically revoked without the need for any action from the city or any right of appeal by the permit holder.

(2) The permit holder shall comply with all applicable laws, rules, and regulations that pertain to the permitted activity and use of the permitted premises, including city and state health laws and the obtaining of the required health department permitting.

(3) The free passage of pedestrians along the sidewalk shall not be prevented or substantially impaired and there shall be at least a minimum sidewalk width of five feet of unencumbered sidewalk that is open for pedestrian use maintained adjacent to the permitted premises.

(4) No signs shall be allowed to be placed on any portion of the public sidewalks, streets, or parks, including the permitted premises, except that a mobile food vendor may affix signage to its mobile food vending unit and a vendor may affix signage to its cart or other equipment.

(5) Access to adjacent buildings or uses shall not be impeded.

(6) At any time and from time to time the city clerk-treasurer may, in the case of a vendor's permit or mobile food vendor's permit, re-assign a permit holder's assigned space to another appropriate location and, in the case of a sidewalk cafe permit or a mobile food vendor's permit, temporarily suspend the permit, in order to accommodate:

a. A special event, including lease events and sponsor events, permitted under chapter 23, article VI of this Code;

b. Another permitted activity authorized under this section; or

c. A state or city project, activity, or event, including a public works activity.

(7) A permit holder shall keep the permitted premises and adjacent public property clean and free from all trash, litter, debris, or waste generated from the operation of its business. The permit holder's installations, equipment, carts, and other items shall be maintained and kept in good and presentable condition and repair and free from graffiti.

(8) The permit holder shall not erect or construct any permanent structure or modify or affix anything to any existing structure or any public property or otherwise damage or deface public property.

(9) A vendor or mobile food vendor must use its permitted premises for its permitted activity on a routine basis during the appropriate seasons for outdoor use, unless prevented from doing so by circumstances beyond the permit holder's control.

(10) The city clerk-treasurer may, at any time and from time to time, attach additional conditions to the use of the permitted premises in order to protect the public health, safety, or general welfare.

(11) Upon the termination, whether by revocation or otherwise, of the permit, the permit holder shall restore the permitted premises to the satisfaction of the city clerk-treasurer.

(c) *Permits.*

(1) *Permit requirement*.

a. Every person who shall desire to use public space in the central city core area or, where allowed under this section, the central city area, to conduct an activity authorized under this section shall make application with the city clerk-treasurer on forms provided by the city, which application shall include the applicants complete name and address and, where applicable, its trade name, the address of any location used for storage of carts, supplies, equipment, or inventory, installation plans, indemnification of the city, and proof of insurance.

b. Permits required by this section shall be renewed annually by filing, at business license renewal time, a permit renewal application with the city clerk-treasurer on forms provided by the city. Permits are not transferrable.

c. Permit holders shall notify the city clerk-treasurer within ten days of a change in the permit holder's address.

d. The city-clerk treasurer is hereby authorized to administer the provisions of this section and to issue a permit authorized under this section in accordance with this section.

(2) *Use fee*. At the time of the filing its application or renewal application, as the case may be, the applicant for a permit shall pay to the city a non-refundable, annual use fee for the right to use the permitted premises as follows:

a. The applicant for a vendor's permit shall pay $100.00.

b. The applicant for a sidewalk cafe permit shall pay $100.00.

c. The applicant for a mobile vendor's permit shall pay $100.00 per mobile food vending unit located on public vending space.

(3) *Revocation, suspension, or non-renewal of permit; no vested right*.

a. The city clerk-treasurer is authorized to revoke or suspend or not renew a permit for a violation of this section; provided that the permit holder shall first be given a reasonable period of time, not to exceed 20 days, to cure the violation, unless the clerk-treasurer determines that the violation is not reasonably capable of being cured, the permit holder refuses to cure the violation, or the permit holder has on multiple occasions within a given calendar year committed the same violation.

b. The permit holder may appeal the action taken against the permit to the two remaining members of the central city review committee by filing, within 20 days of the date of the action taken, a written request with the city clerk-treasurer. The hearing on the appeal shall be held by the two remaining members of the committee within a reasonable period of time and the permit holder shall be provided advance written notice of the date and time of the hearing of the appeal and shall have the opportunity to be heard at the hearing. The decision of the city clerk-treasurer shall be upheld unless the two remaining members of the committee determine that a reversal is justified under the circumstances.

c. Notwithstanding anything to the contrary in this subsection (3), while an appeal is pending the permit holder may continue to operate under the permit unless the city clerk-treasurer determines that the permit should be suspended pending the outcome of the appeal in order to protect the public's health or safety or prevent damage to or destruction of public property.

d. Action taken against a permit shall not constitute action being taken against the business license.

e. Notwithstanding anything to the contrary in this section: (i) a permit holder shall acquire no vested right to a permit or use of the permitted premises and the provisions of this section and any rights granted hereunder, in whole or part, are subject to repeal or amendment, at any time or from time to time; and (ii) there is no right of appeal from a temporary suspension of a permit under subsection (b)(6) of this section.

f. Nothing in this subsection (3) shall be construed to prevent the enforce-

ment, by arrest or citation, of applicable laws, including a violation of this section.

(d) *Sidewalk cafes*.

(1) *Sidewalk cafe permit*. Subject to the provisions of this section, any person engaged in the business of operating a restaurant, cafe, cafeteria, or other public place where meals, food, or refreshments are prepared and furnished upon premises licensed for such use that are within the central city core area may apply for a sidewalk cafe permit from the city in order to use the public sidewalk adjacent to such premises as a sidewalk cafe for its patrons.

(2) *General conditions*. Sidewalk cafes shall be subject to each of the following conditions:

a. No alcoholic beverages are to be served or consumed upon the permitted premises unless the provisions of subsection (3) of this subsection (d) are met.

b. The city may require that the permitted premises be delineated by a railing or other method of delineation that is not affixed to any portion of the sidewalk or other public property.

c. During hours when the establishment is closed for business chairs shall either be removed from the sidewalk or otherwise secured so as to prevent their use while the business is closed; provided that, notwithstanding the foregoing, the city clerk-treasurer may, at any time and from time to time, require that all or any portion of the installations on the permitted premises be removed when the establishment is closed for business for public safety or convenience. At all times the permitted premises and the installations thereon shall be maintained in a neat and presentable manner, without clutter, and chairs shall be neatly stacked or placed when not in use.

d. All proposed installations upon or over the permitted premises, including location, materials used, appearance, style, extent, and method of installation, shall be subject to review and approval of the central city review committee. Detailed plans and specifications of the installation suitable in form and content to the committee shall be submitted to the office of the city clerk-treasurer together with any other information that may be required by the committee in order to approve the installation. Such installations may include customer tables and seating, railings or other methods of delineating the space, awnings to be installed over the permitted premises, table umbrellas, and containers of plants. At any time and from time to time the committee may require installations to be modified or removed for the public health, safety, or general welfare. All installations shall be installed at the sole costs and expense of the permit holder and under proper building and other technical code permitting as may be required.

e. A permit holder shall make its indoor bathroom facilities available to its sidewalk cafe customers, and in no event shall the permit holder be allowed to install any outdoor bathroom facilities.

f. Should the committee determine that lighting is required for the public safety and convenience, then the permit holder shall, at its sole expense and cost, provide such required lighting; provided said lighting shall not be affixed so as to damage or deface public property, and further provided, the permit holder shall obtain and maintain any applicable per-

mits for installation and operation of the lighting, including but not limited to electrical permits.

g. There shall be no outside live music or entertainment. Music may be played outside over a public address system, provided that it shall cease at 10:00 p.m.

(3) *Sidewalk cafes serving alcoholic beverages*. Alcoholic beverages may be served to patrons seated at tables and chairs on the permitted premises, subject to each of the following conditions:

a. The permit holder shall be duly licensed by the state and city to sell alcoholic beverages for on-premises consumption and such licensing shall include as a portion of the licensed premises the permitted premises.

b. The permit holder shall not be an establishment that provides live entertainment or dancing inside its licensed premises unless it qualifies as a restaurant (as defined by the zoning laws of the city).

c. The establishment shall comply with applicable state and city alcoholic beverage laws, which includes the regulations of the Alabama Alcoholic Beverage Control Board governing the display of alcoholic beverages and their service on patios adjacent to the licensed premises.

d. The permit holder shall be responsible for the provision of security within the permitted premises during the period of the permit; provided, however, nothing herein shall prevent any law enforcement officer or other official from entering upon the permitted premises to perform any law enforcement function or otherwise administer or enforce any federal, state, or local law.

e. The permit holder shall obtain and maintain throughout the permitted period bodily injury and property damage liability insurance, on an occurrence basis, naming the city, its officials, officers, employees, and agents as an additional insureds, covering the permitted premises in a minimum amount of $100,000.00 for the injury to or death of any one person and $300,000.00 for the injury to or death of any number of persons in one occurrence, and property damage liability insurance in the amount of $100,000.00. Such insurance shall specifically insure the permit holder against all liability assumed by the permit holder hereunder as well as liability imposed by law, and shall insure both the city and permit holder, but shall be so endorsed as to create the same liability on the part of the insurer as though a separate policy had been written for the city and permit holder. Such policy of insurance shall be issued by a company authorized to engage in the insurance business in the State of Alabama, maintaining a Best rating of not less than "A," and shall be approved by the city attorney or his designee prior to the issuance of a permit. The city clerk-treasurer may, at any time and from time to time, require the permit holder to provide a certificate of insurance or other proof of insurance.

f. The applicant for a permit shall, at the time of making application for a permit and on forms provided by the city, agree to indemnify and hold harmless the city, its officials, officers, employees, agents, contractors, and volunteers performing authorized city functions, from and against any and all claims, costs, losses, expenses through appeal (including reasonable attorneys' fees, and costs or expenses incidental to the investigation of claims and lawsuits), demands, payments, suits, actions, recoveries, penalties, fines, liabilities, and judgments, of any nature and description, resulting from or aris-

ing out of the acts or omissions of the permit holder, its officers, servants, agents, contractors, employees, or customers, in connection with the conduct of the permitted activity or the use of the permitted premises. This provision shall survive the termination, whether by revocation or otherwise, of the permit.

(e) *Vendor's permit*.

(1) *Definitions*. For purposes of this subsection (e), the following words, terms, and phrases shall have the meanings ascribed to them in this subsection (1), unless the context clearly indicates a different meaning:

Public vendor space means the public sidewalks and parks located in the central city core area, and the routes of public parades which are located within the central city area, but only during the hours of such parades.

Vendor activity means:

a. Demonstration or sale of the following products:

1. Sandwiches, hot dogs, hot tamales, hamburgers, pizzas and drinks (other than alcoholic beverages);

2. Candies, nuts, popcorn and confections;

3. Ice cream, ice cream bars and related confections;

4. Fruits and vegetables;

5. Novelties and homemade artifacts which are handmade by the permit holder or his employees, and specifically excluding finished or unfinished products bought for resale; and

6. Fresh cut and dried flowers.

b. To take and sell photographs where the parties photographed willingly pose for the pictures and the picture is developed on the spot where taken and there delivered to the parties photographed.

c. Painting, sketching, drawing; exhibiting original paintings, sketches or drawings of the permit holder; or the sale of the permit holder's original (including prints or other reproductions) paintings, sketches, or drawings.

d. The sale of new or used books.

e. Exhibitions or performances by a single performer, educational or otherwise, when admission or fee is charged. The term shall not include exhibitions or performances that are a part of the conduct of an organized event regulated by chapter 23, article VI of this Code.

(2) *Vendor's permit*. Subject to the provisions of this section, any person engaged in the business of operating a vendor activity may apply for a vendor's permit from the city in order to use public vendor space to conduct its vendor activity.

(3) *Assignment of space*. Each vendor's permit shall designate that portion of the public vendor space assigned to the permit holder by the city clerk-treasurer. Assignments shall be made by the city clerk-treasurer based on the preference of the applicant, the availability of the space, and any other factor deemed appropriate by the city clerk-treasurer based on the public's health, safety, and general welfare. Where more than one applicant for a permit expresses a preference for the same location, the space shall be assigned to the applicant first filing a completed application for the space; provided, that, where a permit is being renewed from the prior year, then the renewal applicant may be given preference.

(4) *Sponsor's events*. Where there are multiple vendors of vendor activities organized under a single sponsor, the sponsor shall make application for a special event permit under chapter 23, article VI of this

Code, and shall be regulated by that article. A vendor operating under a sponsor's special event permit shall not be required to obtain a vendor's permit under this subsection (e).

(5) *Condition*. No permit holder shall operate or locate in any residential district or adjacent to any building used exclusively for residential use.

(f) *Mobile food vendors*.

(1) *Definitions*. For purposes of this subsection (f), the following words, terms, and phrases shall have the meanings ascribed to them in this subsection (1), unless the context clearly indicates a different meaning:

Mobile food vending unit means a trailer or motorized vehicle designed to be portable and not permanently attached to the ground from which only prepared food or beverages, excluding alcoholic beverages, are peddled, vended, sold, displayed, offered for sale, or given away.

Public mobile food vendor space means space on public property located within the central city core area, which is approved for a mobile food vending unit by the city's manager of planning administration.

(2) *Mobile food vendor's permit*. Subject to the provisions of this section, any person engaged in the business of operating a mobile food vending unit may apply for a mobile food vendor's permit from the city in order to use public mobile food vendor space to operate its mobile food vending unit.

(3) *Assignment of space; number of units*.

a. Each permit shall designate that portion of the public mobile food vendor space assigned to the permit holder by the city clerk-treasurer. Assignments shall be made by the city clerk-treasurer based on the preference of the applicant, the availability of the space, and any other factor deemed appropriate by the city clerk-treasurer based on the public's health, safety, and general welfare. Where more than one applicant for a permit expresses a preference for the same location, the public mobile food vendor space shall be assigned to the applicant first filing a completed application for the space; provided, that, where a permit is being renewed from the prior year, then the renewal applicant may be given preference.

b. A mobile food vendor may apply for more than one public mobile food vendor space. However, in order to accommodate other mobile food vendors, the city clerk-treasurer may limit or equitably apportion the number of public mobile food vendor spaces used by a mobile food vendor or a person associated with the vendor, such as a relative, family member, or, in the case of a vendor that is an entity, its officers, members, managers, or partners.

(4) *Conditions*.

a. For mobile vending units that are located on or adjacent to a street, food service shall be solely from that side of the unit that opens away from the street.

b. Hours of operation for mobile food vending units, not including set-up or take-down, shall be from 9:00 p.m. Wednesday, Thursday, Friday, and Saturday until 2:00 a.m. Friday, Saturday, and Sunday; and from 6:00 a.m. until 11:00 a.m. Saturdays and holidays recognized by the city. Vendors may set-up one hour before opening and take-down 30 minutes after closing. Mobile food vending units shall be removed from public property at times other than the hours of operation and the set-up and take-down periods.

c. Mobile vending units shall not be placed or operated so as to impede vehicular traffic's use of the streets.

d. No outdoor loudspeaker, public address system, music, or other form of entertainment shall be audible from mobile food vending units.

(Ord. No. 97-173, § 2, 3-25-1997; Ord. No. 03-1063, 12-18-2003; Ord. No. 10-430, § 1, 6-10-2010; Ord. No. 13-434, § 1, 6-27-2013; Ord. No. 16-739, § 1, 10-13-2016)

Cross reference—Streets, sidewalks and other public places, ch. 23.

Chapter 19

RECREATION SERVICES*

Article I. In General

Sec. 19-1. Wheeled recreational vehicles.
Sec. 19-2. Vehicles in parks to be driven on roadways.
Sec. 19-3. Persons in parks at night.
Sec. 19-4. Bathing in public springs, streams.
Sec. 19-5. Fishing in Big Spring and Big Spring Lake.
Sec. 19-6. Trespassing upon Big Spring Park dam.
Sec. 19-7. Trespassing upon public parks and athletic fields which are closed for repair.
Secs. 19-8—19-40. Reserved.

Article II. Swimming Pools

Sec. 19-41. Supervision and regulation.
Sec. 19-42. Accounting of funds.
Sec. 19-43. Fees.
Secs. 19-44—19-70. Reserved.

Article III. Huntsville Tennis Center

Sec. 19-71. Accounting of funds.
Sec. 19-72. Supervision and regulation.
Sec. 19-73. Fees.

***Cross references—**Environmental management, ch. 12; streets, sidewalks and other public places, ch. 23; vegetation, ch. 27.

State law reference—Municipal parks, playgrounds and other recreational and athletic areas and facilities, Code of Ala. 1975, § 11-47-210.

ARTICLE I. IN GENERAL

Sec. 19-1. Wheeled recreational vehicles.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Wheeled recreational vehicle means any vehicle used for recreational purposes, whether motorized or nonmotorized, which has one or more wheels affixed to the vehicle, and which shall include but is not limited to motorcycles, scooters, skateboards, in-line skates, and roller blades. Specifically excluded from this definition are baby strollers, wheeled vehicles required to assist the disabled, and nonmotorized bicycles and tricycles.

(b) *Use in park prohibited.* It shall be unlawful for any person to use, operate or allow to be used or operated within any public park in the city limits any wheeled recreational vehicle unless otherwise posted.
(Ord. No. 95-568, §§ 1, 2, 8-24-1995; Ord. No. 05-711, § 1, 9-8-2005)

Cross reference—Traffic and vehicles, ch. 25.

Sec. 19-2. Vehicles in parks to be driven on roadways.

No person shall ride or drive any vehicle in any public park within the city limits unless it is upon a road or driveway set apart for such use.
(Code 1982, § 19-1)

Cross reference—Traffic and vehicles, ch. 25.

Sec. 19-3. Persons in parks at night.

(a) It shall be unlawful for any person to be upon the grounds of any public park under the supervision of the director of parks and recreation, except Big Spring Park, during the period from one-half hour after sunset to one-half hour before sunrise unless such person is at the time a participant or spectator of an activity officially scheduled by the parks and recreation department.

(b) This section shall be effective as to each such park from and after such time as appropriate signs are erected in such park informing the public of the provisions of this section.
(Code 1982, § 19-2)

Sec. 19-4. Bathing in public springs, streams.

It shall be unlawful for any person to bathe in the Big Spring Branch between its head and Lehmans Ferry Road. It shall also be unlawful for any person to bathe or wash in an indecent manner in any of the streams within the corporate limits of the city.
(Code 1982, § 19-4)

State law references—Indecent exposure, Code of Ala. 1975, § 13A-6-68; public lewdness, Code of Ala. 1975, § 13A-12-130.

Sec. 19-5. Fishing in Big Spring and Big Spring Lake.

It shall be unlawful for any person to catch or take or attempt to catch or take fish, minnows or bait from or out of Big Spring from its head through and including Big Spring Park Lake; however, the director of recreation and landscape management, upon application or by his own initiative, may permit the removal of fish or minnows for relocation purposes, upon such terms and conditions as he may impose, taking into consideration the biological results in granting or refusing such permit.
(Code 1982, § 19-5)

Sec. 19-6. Trespassing upon Big Spring Park dam.

It shall be unlawful for any person to trespass upon the dam at Big Spring Park or climb upon or in any manner interfere with the chains stretched across the branch below the dam.
(Code 1982, § 19-6)

Sec. 19-7. Trespassing upon public parks and athletic fields which are closed for repair.

It shall be unlawful for any person to trespass upon any public park or city operated or main-

tained athletic field when signs have been posted by the city which shall give notice that the park or athletic field has been closed for repair.

Any such trespass shall constitute a misdemeanor. Upon conviction of a violation under this section, the guilty party shall be subject to a fine of not less than $250.00 nor more than $500.00.
(Ord. No. 05-252, § 1, 4-28-2005)

Secs. 19-8—19-40. Reserved.

ARTICLE II. SWIMMING POOLS

Sec. 19-41. Supervision and regulation.

A swimming activities coordinator shall supervise city-owned swimming pools subject to the overall supervision of the director of recreation and landscape management and shall have the power and authority to promulgate and enforce reasonable rules and regulations for the efficient operation, use and management of the aquatic facilities; and when posted in a conspicuous place at city-owned swimming pools such rules and regulations shall be effective. Failure to adhere to such rules and regulations may result in a loss of facility use.
(Code 1982, § 19-22)

Sec. 19-42. Accounting of funds.

Swimming activities coordinators shall make an accounting daily to the city clerk-treasurer of all moneys received by them belonging to the city, and shall pay over such money daily to the city clerk-treasurer.
(Code 1982, § 19-23)

Sec. 19-43. Fees.

The following schedule of fees is hereby set and established for all city-owned and -operated swimming pools:

(1) Brahan Spring Park Natatorium (located at Brahan Spring Park), James A. Williams Aquatic Center (located on Monroe Street), and Dr. Richard Showers, Sr. Pool (located on Blue Spring Road).

a. Nonrestricted public swimming (during nonscheduled hours).

1. The sum of $2.00 per person for all ages, in advance, for general admission to swim during public hours. On October 1, 2008, this rate will change to $3.00. On October 1, 2010, this rate will change to $4.00.
2. The sum of $50.00 for tickets issued to swimmers 19 years of age and over for swimming any day during public hours for any three-month period. On October 1, 2008, this rate will change to $60.00. On October 2, 2010, this rate will change to $70.00.
3. The sum of $100.00 for tickets issued to families for swimming any day during public hours for any three-month period. On October 1, 2008, this rate will change to $120.00. On October 1, 2010, this rate will change to $140.00.
4. Persons who are eligible to receive food stamps under the federal food stamp program operated pursuant to the provisions of 7 USC 2011 et seq., are eligible for a special rate of $1.00 per person, in advance, for general admission to swim during public hours. Proof of eligibility, together with a valid driver's license or other identification containing a photograph of the applicant, shall be furnished when a special rate under this subsection is claimed. Application for the special rate shall be made upon a form prescribed by the city. The city may designate the manager of recreation services or any other person to determine eligibility

for the special rate. The decision of such person designated by the city shall be final. Any person who qualifies for the special rate shall be required to reapply for the special rate on an annual basis. The form for reapplication shall be the same as for initial application. The reapplication period shall be between October 1 and December 1 of each calendar year.

5. The sum of $90.00 for a 30-visit, nonrefundable, punch card which is valid for a period of one year from the date of purchase.

b. Restricted public swimming (scheduled by pool manager).

1. The sum of $75.00 per person in advance per course for all basic swimming and aquatic safety programs, except that those persons who meet the eligibility requirements of paragraph (1)a.4. of this section shall pay the sum of $20.00 per person in advance for such programs.

2. The sum of $75.00 per person in advance per course for any advanced Red Cross program (lifeguarding, lifeguard instructor, and water safety instructor). On October 1, 2010, this rate will change to $100.00.

3. Refunds will be issued according to departmental policy.

4. The sum of $10.00 per person per month for all ages participating with a year-round competitive swim group. On October 1, 2008, this rate will change to $15.00. On October 2, 2010, this rate will change to $20.00.

5. The sum of $10.00 per person per month for all ages participating with a year-round competitive dive group. On October 2, 2008, this rate will change to $15.00. On October 1, 2010, this rate will change to $20.00.

c. Group rates.

1. Nonoperating hours.

i. Organized group(s) i.e. scuba, kayaking, etc, wishing to use any facility after normal operating hours shall be a minimum rate of $75.00 per hour, or $3.00 per person per hour, whichever is greater. On October 1, 2010, this rate will change to $100.00 per hour, or $4.00 per person per hour, whichever is greater. In addition to facility charges these organized groups shall pay any overtime wage accrued by supervisory personnel during the scheduled activity.

(2) Swim meets.

The following schedule of fees is hereby set and established for swim and dive meets to be held at the Brahan Spring Park Natatorium and Dr. Richard Showers, Sr. Pool:

a. Swimming pool rental.

1. The sum of $300.00 per day during the months of September through April. On October 2, 2010, this rate will change to $400.00.

2. The sum of $400.00 per day during the months of May through August. On October 1, 2010, this rate will change to $500.00.

b. Timing system rental and operation.

1. The sum of $200.00 per system per day for use of the timing system(s).

2. In addition to the usage charge for the timing system(s), the swimming organization shall be

charged in order to compensate for any overtime accrued by any city employee(s) while operating the timing system during a swim meet.

3. There will be an additional charge of $50.00 for setup on a one-day meet. This fee is waived if the event runs for more than one day. On October 1, 2010, this rate will change to $75.00.

(3) Special account.

The proceeds collected from subsections (2)a. and b. of this section, pertaining to swimming and diving meet fees shall be placed in special numbered account, 01-0000-2268-0000, of the city and shall be used only for the purpose of repairing, replacing or upgrading equipment used by the swimming and diving organizations, or the costs which may result from hosting a championship meet, subject to the approval of the recreation services manager.

(Ord. No. 96-308, § 1, 5-9-1996; Ord. No. 96-783, §§ 1, 2, 9-26-1996; Ord. No. 08-129, § 1, 2-28-2008; Ord. No. 11-258, §§ 1, 2, 5-12-2011)

Secs. 19-44—19-70. Reserved.

ARTICLE III. HUNTSVILLE TENNIS CENTER

Sec. 19-71. Accounting of funds.

The tennis activities supervisor shall make an accounting daily to the city clerk-treasurer of all moneys received by him belonging to the city, and shall pay over such money daily to the city clerk-treasurer.

Sec. 19-72. Supervision and regulation.

A tennis activities supervisor shall supervise the Huntsville Tennis Center, subject to the overall supervision of the director of recreation and landscape management and shall have the power and authority to promulgate and enforce reasonable rules and regulations for the efficient operation, use and management of the facility; and when posted in a conspicuous place at the Huntsville Tennis Center, such rules and regulations shall be effective. Failure to adhere to such rules and regulations may result in a loss of facility use.

Sec. 19-73. Fees.

(a) The following schedules of fees are set and established for the Huntsville Tennis Center (located in Brahan Spring Park) for play when courts are available:

(1) The sum of $2.00 per person in advance for two hours; play on hard courts only. (Courts 11—16.)

(2) The sum of $2.50 per person in advance for two hours; play on soft courts only. (Courts 1—10.)

(3) The sum of $175.00 annually for seasonal tickets issued to a family of three, plus $25.00 for each additional family member.

(4) The sum of $60.00 annually for season tickets issued to persons 65 years of age and over. This pass is restricted to Monday through Friday only and shall not be valid on weekends and holidays.

(5) The sum of $100.00 annually for season tickets issued to persons under 65 years of age.

(6) Persons playing in tennis tournaments at the Huntsville Tennis Center shall be required to pay a fee of $8.00 per tournament. This fee may be paid as part of a tournament entry fee or directly to the tennis center personnel (in addition to the regular tournament entry fee).

(7) The superintendent of special facilities shall have the authority, subject to the approval of the director of parks and recreation, to negotiate and set fees for special events that may be held at the Huntsville Tennis Center.

(b) All fees must be paid prior to obtaining a court. Seasonal tickets, unless otherwise indicated, shall mean a 12-month period from the time of purchase.

(Ord. No. 88-635, 12-8-1988)

Chapter 20

SECONDHAND GOODS*

Article I. In General

Secs. 20-1—20-30. Reserved.

Article II. Garage Sales

Sec. 20-31. Definitions.
Sec. 20-32. General restrictions.
Sec. 20-33. Place, duration.
Sec. 20-34. Frequency.

*__Cross reference—__Businesses, ch. 8.

ARTICLE I. IN GENERAL

Secs. 20-1—20-30. Reserved.

ARTICLE II. GARAGE SALES

Sec. 20-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Garage sale means the display and offer for sale of any goods, wares or merchandise, on the premises of any residential lot within the city limits of the city, which goods, wares or merchandise are household furnishings or personal possessions of persons residing in the household upon which they are displayed and offered for sale, under circumstances where many such items are displayed upon the premises at the same time, and persons are invited to come upon the premises to view such items for the purpose of sale.
(Code 1982, § 18-333)

Cross reference—Definitions generally, § 1-2.

Sec. 20-32. General restrictions.

It shall be unlawful for any person to hold a garage sale upon any residential premises at which items are not the household furnishings or personal possessions of persons residing in the household upon which they are displayed. The offer for sale by means of a garage sale of property which has been specifically acquired for resale, or the consignment of which has been accepted for display and offered for sale at a garage sale, is specifically prohibited.
(Code 1982, § 18-334)

Sec. 20-33. Place, duration.

It shall be unlawful for any person to hold a garage sale except upon premises to which he has the right to possession and of which he is a member of the household. It shall be unlawful to hold a garage sale of longer duration than three consecutive days.
(Code 1982, § 18-335)

Sec. 20-34. Frequency.

It shall be unlawful for any person to hold any garage sale at any time within 60 days subsequent to the holding of any such previous sale by him or any member of his household upon the same premises.
(Code 1982, § 18-336)

Chapter 21

SEWERS, SEWAGE DISPOSAL AND OTHER WASTEWATER DISPOSAL*

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*__Cross references—__Buildings and building regulations, ch. 7; stormwater management, § 12-331 et seq.; utilities, ch. 26; disposal-storage district regulations, app. A, art. 61.

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ARTICLE I. IN GENERAL

Sec. 21-1. System standards.

(a) No sewage collection, treatment and disposal system shall be permitted within the city unless the system shall be:

(1) Connected to the public sewer system of the city; or

(2) Permitted according to the terms and procedures set forth in this section.

This section specifically excludes septic tanks installed according to state health department standards and permits.

(b) As used in this section, the following words and terms shall have the following meanings:

Developer means any person, individual, corporation, firm, company or other legal entity. The term "developer" may be used synonymously with the term "person."

Private package wastewater treatment plant (PWTP) means any system, excluding septic tanks, for collecting, piping, conveying, storing, treating or disposing of sewage where the system is not connected to a public sewer system, together with all appurtenances. The term "PWTP" includes all mains, laterals, disposal and treatment plants and all property used in connection with the system.

Sewage means the human, animal or vegetable waste from residences, buildings, institutions, food service and industrial establishments, and other facilities.

Subdivision means the division of a lot, tract or parcel of land into two or more lots, plats, sites or other divisions of land for the purpose, whether immediate or future, of sale or building development.

(c) The engineering division is authorized and directed to develop standards and criteria for the design and construction of PWTPs covered under this section, and to promulgate and enforce the standards and criteria as set forth in this section, all as the public health, safety and general welfare shall require.

(d) Before the construction or operation of a PWTP for the disposition of sewage, the developer of the PWTP shall obtain a permit from the engineering division as follows:

(1) a. The developer shall submit a preliminary site application to the director and obtain a certificate of preliminary site approval before any further application shall be accepted.

b. The preliminary site application must show the wastewater treatment facility in relation to other elements of the PWTP. Sufficient topographical features must also be included to indicate the PWTP's location with relation to streams, existing and proposed wells, and the effluent disposal system.

c. The preliminary site approval shall be granted only if:

1. No public sewer system of the city is available;

2. The design and capacity of the proposed private sewer treatment facility is compatible with any master sewer plan adopted for the proposed site by the appropriate public authority; and

3. The developer has been previously granted an NPDES discharge permit by the state department of environmental management.

(2) After receipt of a certificate of preliminary site approval, the developer shall submit to the engineering division an application for a package wastewater treatment plant, on the form provided by the engineering division. The engineering division shall review the application, the plans and specifications submitted with the application, and any other pertinent information brought to his attention affecting the proposed PWTP and determine whether the proposed system meets

the design and construction criteria for PWTPs adopted and promulgated by the engineering division.

(3) If the proposed system meets the design and construction criteria, then prior to construction and final approval by the engineering division, the developer and the city shall enter into a private wastewater treatment plant (PWTP) agreement, which agreement shall contain the following provisions:

For PWTPs located within the corporate limits of the city or serving property located within the corporate limits of the city.

a. The developer will agree to pay for the costs of construction and to construct the PWTP in accordance with the approved plans and the standards and criteria promulgated by the engineering division.

b. Upon completion of the construction of the PWTP, the developer shall dedicate and transfer full title and ownership of the PWTP to the city, free and clear of liens, without cost to the city.

c. The city shall assume ownership, operation and maintenance of the PWTP only after the final consummation of the transaction set forth in subsection (d)(3)b of this section.

d. The city shall assess and collect any sewer fees assessed for users of the PWTP.

e. The city shall control all connections to the PWTP after its acquisition by the city provided in this section.

(e) As a part of its approval of any PWTP, the engineering division may require the proposed PWTP to be constructed with a capacity in excess of that capacity required to serve the developer's project. In such event, the city and the developer will agree that the city will share with the developer the expense of the construction, maintenance and operation of the PWTP on a pro rata share basis.

(f) The engineering division shall cause to be conducted regular and periodic inspections of the proposed PWTP system during its construction. The developer shall construct and install the PWTP according to all plans, specifications and regulations promulgated by the department.

(g) Upon completion of construction of the PWTP according to engineering division standards and criteria, the engineering division shall issue a final approval of the PWTP. The PWTP will then be dedicated to the city.

(h) The developer shall, at the time of the transfer of ownership of any PWTP to the city, dedicate to the city such easements for egress and ingress as are necessary for the maintenance and operation of the PWTP.
(Ord. No. 87-354, §§ I—VIII, 8-27-1987)

Secs. 21-2—21-30. Reserved.

ARTICLE II. SEWERS AND SEWAGE DISPOSAL*

DIVISION 1. GENERALLY

Sec. 21-31. Definitions.

The following words, terms and phrases, wherever used in this article, shall have the meanings respectively ascribed to them in this section unless the context plainly indicates otherwise or that a more restricted or extended meaning is intended:

Authority means the city.

AWIC means the Alabama Water Improvement Commission.

BOD (denoting biochemical oxygen demand) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five days at 20

*__Cross reference—__Requirements for improvements and design of sanitary sewer facilities in subdivisions, app. B, § 4.

__State law references—__Exercise of police jurisdiction over sanitary or stormwater sewers, Code of Ala. 1975, § 11-47-22; municipal sewers and sewer systems generally, Code of Ala. 1975, § 11-50-50 et seq.

degrees Celsius, expressed in parts per million by weight. BOD shall be determined by Standard Methods.

Building (house) sewer means the extension from the building drain to the sewer lateral at the property line or other lawful place of disposal.

COD (denoting chemical oxygen demand) means the quantity of dissolved oxygen required for the chemical oxidation of decomposable matter under aerobic conditions.

Composite sample means a sample consisting of several effluent portions collected during a 24-hour period in which the portions of sample are taken at even intervals and combined to form a representative sample.

Consistent removal means the reduction in the amount or alteration of the nature of a pollutant by the POTW to a less toxic or harmless state in the effluent which is achieved by the system in 95 percent of the samples taken when measured according to the procedures set forth in 40 CFR 403.7(c) "General Pretreatment Regulations for Existing and New Sources of Pollution."

Constituents means the combination of particles, chemicals or conditions which exist in the industrial wastes.

Control manhole means an appropriately located manhole from which a given user's effluent can be effectively sampled by the city.

Cooling water means the water discharged from any use to which the only pollutant added is heat.

Director means the director of water pollution control or his duly authorized deputy, agency or representative.

Effluent means the discharge of flow of a treatment facility.

Flammable means existing fire regulations covering the city.

Grab sample means a sample taken on a one-time basis which is not a function of flow or time.

Grease trap means a fixture through which all of the discharge of a connection flows and which provides a minimum detention period of ten minutes between influent and effluent baffles with 20 percent of the total volume as allowance for a sludge pocket.

Grit chamber means a device to remove sand and gritty material from sewage.

Illicit discharge means any discharge to the municipal separate storm sewer that is not composed entirely of stormwater, except discharges pursuant to a National Pollutant Discharge Elimination System (NPDES) permit (other than the NPDES permit for discharges from the municipal separate storm sewer) and discharges resulting from firefighting activities.

Industrial plant means any plant producing liquid waste, with or without bearing suspended solids, required to be discharged either with or without pretreatment, into the city sanitary sewer system.

Industrial plant site means a parcel of land occupied by a facility which discharges industrial wastes. Each separate industrial plant connected to a city sewer will be considered and assessed for each connection individually even though an owner may operate one or more industrial plants on the same site. A single- or multi-building industrial plant with more than one connection located on a single site shall not arbitrarily combine waste qualities by computations for the purpose of obtaining a dilution benefits.

Industrial user or contributor means an industry which discharges wastewaters having the characteristics of industrial wastes, as distinct from commercial wastes or domestic wastes and having a BOD of 250 ppm or greater and/or total suspended solids of 250 ppm or greater or other chemical constituents above or different from normal domestic and/or commercial waste.

Industrial waste surcharge means the additional service charge assessed against industries in the city service area of which waste characteristics exceed those of normal wastewater.

Influent means the wastewater arriving at the wastewater treatment plant for treatment and those structures associated with its initial treatment.

Metered water means the amount of water consumed by the sewer customer as measured by the city water meter.

Mg/l (milligrams per liter) means ratio by weight, to volume, interchanged with ppm.

Municipal separate storm sewer means a conveyance or system of conveyances (including roads with drainage systems, municipal streets, catchbasins, curbs, gutters, ditches, manmade channels, or storm drains):

(1) Owned by the city having jurisdiction over disposal of sewage, industrial wastes, stormwater or other wastes;

(2) Designed or used for collecting or conveying stormwater;

(3) Which is not a combined sewer; and

(4) Which is not part of a publicly owned treatment works (POTW).

Natural outlet means any outlet into a watercourse, pond, ditch, lake or other body of surface water or groundwater.

Normal means those values taken as standards in the measurement of this article; these limits are defined in context.

Owner means any individual, firm, company, association, society, corporation or group.

pH means the logarithm of the reciprocal of the weight of hydrogen ions in grams per liter of solution; pH shall be determined by Standard Methods.

POTW means publicly owned treatment works, i.e., the city's wastewater treatment facilities.

ppm (parts per million) means ratio by weight.

Pretreatment means that biological, physical or chemical treatment given to waste or those processes utilized for this purpose before discharge into the sanitary sewer system.

Public sewer means a sewer in which all owners of abutting properties have certain rights and includes all fixtures and appurtenances connected and used in the wastewater collection system, and is controlled by public authority.

Receiving waters means those waters into which wastes are discharged.

Residential or domestic user means premises or a person that discharges wastewaters to the city sewers, which closely match normal wastewater as to their volume and strength, and further, for billing purposes, is defined as a dwelling place or place of residence.

Sampling means the collection of a sample of two effluent discharges by a given connection to the system.

Sanitary sewer means a sewer which carries wastewater and to which stormwaters, surface waters and groundwaters are excluded.

Septic tank waste means that waste which results from the emptying of domestic septic tanks.

Sewer means a pipe or conduit for carrying wastewater.

SIC means Standard Industrial Classification, pursuant to the manual issued by the Executive Office of the President, Office of Management and Budget 1972, as amended.

Significant industrial user means a user who has a discharge flow of 25,000 gallons or more per average workday, or a flow greater than five percent of the POTW, or has in its discharge toxic pollutants, or is found to have a significant impact, either singly or in combination with other industrial users on the POTW system.

Standard Methods means those procedures or methods established by the latest edition of the "Standard Methods for the Examination of Water and Wastewater," 20th edition, as prepared, approved and published jointly by the American Public Health Association, the American Water Works Association and the Water Environment Federation.

Standard strength means wastes of any origin having a content of 250 mg/l or less of five-day, 20 degrees Celsius BOD and/or containing 200 mg/l or less of suspended solids, and having no prohibited qualities for sanitary sewer system admission.

Storm sewer and *storm drain* mean a sewer which carries stormwaters and surface waters and drainage, but excludes wastewater and polluted industrial wastes.

Stormwater means stormwater runoff, snow melt runoff, and surface runoff and drainage.

Suspended solids means solids that either float on the surface of or are in suspension in water, wastewater or liquid and which are removable by laboratory filtering.

Total solids means total weight ppm of all solids, dissolved, undissolved, organic or inorganic.

Toxic means constituents of wastes which adversely affect the organism involved in wastewater treatment or aquatic life in receiving statements.

Wastewater and *wastes* mean a combination of the water-carried wastes from residences, business buildings, institutions and industrial establishments; treatable wastes.

Wastewater treatment plant means any arrangement of devices and structures used for treating wastewater.

Watercourse means a channel in which an open flow of water occurs either continuously or intermittently.
(Code 1982, § 20-101; Ord. No. 82-192, 6-15-1981; Ord. No. 87-167, § 1, 5-14-1987; Ord. No. 93-270, § 1, 5-13-1993; Ord. No. 00-129, § 1, 3-9-2000)
Cross reference—Definitions generally, § 1-2.

Sec. 21-32. Application of article.

The rules and regulations incorporated in this article shall govern the installation, alteration and maintenance of all storm and sanitary drainage within the city.
(Code 1982, § 20-102)

Sec. 21-33. Compliance with article.

It shall be unlawful for any person to do or cause to be done any of the acts prohibited by this article or to fail, refuse or neglect to do any of the acts required to be done or performed by this article.
(Code 1982, § 20-104)

Sec. 21-34. Sewer mains under exclusive control of city.

(a) All sewer mains established in or under the streets, avenues, easements or public ways of the city are now declared to be under the exclusive control of the city, to be maintained and kept in repair by the city, without interference by any person.

(b) It shall be unlawful for any person to undertake to exercise control over such sewer mains, or to aid in or grant the right to make connections without obtaining a permit from the city.

(c) The provisions of this section shall not apply to the service lines established and connected with such sewer mains. Such service (building sewer) lines are to be maintained and kept in repair by the person owning or controlling the property serviced by such service lines except that repair and maintenance of service lines used in connection with individual sewer systems requiring grinder pumps shall be made by employees or agents of the city or other qualified factory trained servicemen with the cost for all labor and materials to be paid by the property owner.
(Code 1982, § 20-105; Ord. No. 87-167, § 1, 5-14-1987)

Sec. 21-35. Right of entry of inspectors.

(a) The director and other duly authorized employees of the city are authorized to receive and investigate complaints of violations of this article, including but not limited to investigation of possible illicit discharges to the municipal separate storm sewer system and possible violations of the city's National Pollutant Discharge Elimination System (NPDES) permit.

(b) The director and other duly authorized employees of the city bearing proper credentials and identification shall be permitted to enter all properties for the purposes of inspection, observation, measurement, sampling and testing in connection with enforcement of the provisions of this article. The director or such duly authorized representative shall have no authority to inquire into any processes, including metallurgical, chemical, oil, refining, ceramic, paper or other industries,

beyond that point having direct bearing on the kind and source of discharge to the sewers, facilities for waste treatment, or the municipal separate storm sewer system.

(c) While performing the necessary work on private properties referred to in subsection (b) of this section, the director or duly authorized employees of the city shall observe all safety rules applicable to the premises established by the company. The company shall be held harmless for injury or death to the city's employees caused by the negligence of the city's employees; and the city shall indemnify the company against loss or damage to its property by the city's employees and against liability claims and demands for personal injury or property damage asserted against the company and growing out of the negligence of any city employee in the measurement, sampling and testing operation, except as such may be caused by the negligence of the company or its officers, agents or employees or failure of the company to maintain safe conditions.
(Code 1982, § 20-106; Ord. No. 87-167, § 1, 5-14-1987; Ord. No. 93-270, § 2, 5-13-1993)

Sec. 21-36. Indemnification.

In any and all instances where the city has reasonable cause to believe that any of the rules, regulations or provisions set forth in this article or that have otherwise been adopted by the city have been, may be or are being violated by any person discharging waste into the sanitary sewer system, the city may require such person to give bond or enter into an indemnity agreement in a form acceptable to the city with sufficient surety to be approved by the approving authority to protect, indemnify and hold harmless the city from any loss, damage or expense that may suffer or incur as a result of such noncompliance or violation by such person; and, in the event of the failure to do so after ten days' notice by registered U.S. mail that the bond will be required, the use of the sanitary sewer system by such person shall be denied or discontinued.
(Code 1982, § 20-107)

Sec. 21-37. Special agreements.

No statement contained in this article shall be construed as preventing any special agreement or arrangement between the city and any industrial concern by the city for treatment, subject to payment, by the industrial concern.
(Code 1982, § 20-108)

Sec. 21-38. Appeals procedure.

Any person aggrieved by a decision of the director or by any determination of the sewer rules and regulations shall have the right to appeal to the council or to a committee which may be established by the council for the purpose of hearing such appeals. The appellant must file with the city clerk-treasurer a request in writing for such a hearing and also cite the sections of the rules and regulations that he is aggrieved by. Upon receipt of such request, it shall be the duty of the city clerk-treasurer to present the request to the council at the next regular scheduled meeting. The council may elect to hear the appeal or may refer the request to a committee the council will establish. The appellant will be given the time, date and place of the hearing and may present the objection in his behalf at the hearing.
(Code 1982, § 20-109)

Sec. 21-39. Discontinuance of connections discharging injurious substances into sewers.

The director shall have power to prevent or discontinue any connection with the public sewer which discharges any substance liable to injure the sewers or obstruct the flow of the sewerage.
(Code 1982, § 20-110)

Sec. 21-40. New sewer lines.

(a) No person shall construct or lay sewer lines in any subdivision of the city, or in any easements or public rights-of-way of the city, where public sewers are not existing or located, without first presenting plans and specifications for the laying of such sewers to the city council or its duly designated agent and obtaining the consent for the laying of such sewer lines. A copy of such plans and specifications shall be left on file with the engineering division.

(b) The engineering division is designated the lawful agent of the city to receive and approve such plans and specifications.

(c) Physical location for grinder pumps shall be forward of the rear wall of the main building but shall in no case be obstructed by shrubbery, fences or any other object which would prevent clear access or visibility from the public street.

(d) The installation and use of individual sewer systems requiring grinder pumps shall be permitted provided that all provisions set forth in this article are complied with.

(e) The developer or person in control of any subdivision of the city who is permitted to install any sewer system utilizing grinder pumps shall be required to provide at no cost to the city, and before the actual installation begins, an inventory of replacement parts in an amount equal to ten percent of the total number of grinder pump units to be installed and shall consist of the following: complete simplex grinder pumps, pump O-rings, pump seals, pump gaskets, grinder pump impellers, pump shredding rings, complete float assemblies, float brackets, complete junction boxes, complete simplex control panels, control panel circuit breakers, control panel overloads, control panel run caps, control panel start relay, control panel start caps, control panel contractors, control panel run lights, and any other parts as recommended by the equipment manufacturer.
(Code 1982, § 20-111; Ord. No. 87-167, § 1, 5-14-1987)

Sec. 21-41. Shows and carnivals to be provided with approved toilets, sanitary and water connections.

(a) It shall be unlawful for any person within the city to conduct and operate a show or carnival on any lands upon which there is located no good and sufficient toilets, sanitary and water connections, the sufficiency of which is to be approved by the health officer.

(b) It shall be unlawful for any person owning or controlling lands within the city to rent, lease or permit the occupancy of such lands by any person for the purpose of conducting a show or carnival unless such lands are provided with a toilet, sanitary and water connections which have been or are approved by the health officer.
(Code 1982, § 20-112)

Sec. 21-42. Design and acceptance manual for sanitary sewers.

The Design and Acceptance Manual for Sanitary Sewers, 2005 Edition, city engineering department, is adopted.
(Ord. No. 00-862, § 1, 11-9-00; Ord. No. 05-1016, § 1, 12-15-05)

Sec. 21-43. Design and acceptance manual for wastewater pump stations.

The Design and Acceptance manual for wastewater pump stations, dated October 2000, city engineering department, is adopted.
(Ord. No. 00-864, § 1, 11-9-2000)

Secs. 21-44—21-60. Reserved.

DIVISION 2. ENFORCEMENT

Sec. 21-61. Criminal enforcement.

(a) Any person who shall violate any provision of this article or fails to comply with any of its requirements or who shall fail to comply with any order made under the provision of this article shall, upon conviction, be punished as provided in section 1-7. Each person shall be deemed guilty of a separate offense for each and every day or portion during which any violation of any of the provisions of this article is committed or continued.

(b) It shall be unlawful for any person to falsely tamper with or knowingly render inaccurate any monitoring device or method required to be maintained under this article.
(Code 1982, § 20-121; Ord. No. 81-192, 6-25-1981)

State law reference—False statements, Code of Ala. 1975, § 13A-10-109.

Sec. 21-62. Termination of service.

The city may terminate water and wastewater disposal service and disconnect an industrial customer from the system when:

(1) A government agency informs the city that the effluent from the wastewater treatment plant is no longer of quality permitted for discharge to a watercourse, and it is found that the customer is deliv-

ering wastewater to the city s system that cannot be sufficiently treated or requires treatment that is not provided by the city as normal domestic treatment.

(2) The industrial customer:

a. Discharges industrial waste or wastewater that is in violation of the permit issued by the city.

b. Discharges waters or wastes having a deleterious effect upon the city s sewer system.

c. Discharges wastewater at an uncontrolled, variable rate in sufficient quantity to cause an imbalance in the wastewater treatment system.

d. Fails to pay monthly bills for water and sanitary sewer services when due.

e. Repeats a discharge of prohibited wastes to a public sewer.

(Code 1982, § 20-122)

Sec. 21-63. Disconnection.

If service is disconnected pursuant to this division, the city shall:

(1) Disconnect the customer.

(2) Supply the customer with the governmental agency s report and provide the customer with all pertinent information.

(3) Continue disconnection until such time as the industrial customer provides additional pretreatment or other facilities designed to remove the objectionable characteristics from its industrial wastes.

(Code 1982, § 20-123)

Sec. 21-64. Other legal sanctions.

In addition to sanctions provided for by this article, the city is entitled to exercise sanctions provided for by the other ordinances of the city for failure to pay the bill for water and sanitary sewer service when due.
(Code 1982, § 20-125)

Secs. 21-65—21-90. Reserved.

DIVISION 3. USE OF PUBLIC SEWERS

Sec. 21-91. Requirement of sewer use.

(a) The owner of all houses, buildings or properties used for human occupancy, employment, recreation or other purposes, situated within the service area located or may in the future be located, a public sanitary sewer of the city, is hereby required at his expense to install suitable toilet facilities therein, and to connect such facilities directly with the proper public sewer in accordance with the provisions of this article within 360 days after the date of official notice to do so, provided that said public sewer is within 300 feet of the property line.

(b) The disposal of wastewater by means other than the use of the available sanitary wastewater system shall be in accordance with local county and state law. The disposal of wastewater by private disposal systems shall be as specified in sections 21-241—21-244.
(Code 1982, § 20-136; Ord. No. 02-333, 4-25-2002)

State law references—Authority of city to require premises to be connected to sewer system, Code of Ala. 1975, §§ 11-50-53, 11-50-54; regulation of septic tanks, Code of Ala. 1975, § 11-50-55.

Sec. 21-92. Sewer connections.

No permit shall be issued where a connection to the sanitary sewer is required unless the building contractor or plumber involved has located by actual excavation the sewer which will serve his building, and has so planned the flow elevation and building sewer elevation to provide a proper slope in the sewer connection to the sanitary sewer.
(Code 1982, § 7-145)

Sec. 21-93. When connections made by city.

If any owner shall fail to have a sewer connection made as provided by section 21-91(a), without sufficient legal excuse for such failure, the engineering division shall cause such sewer connection to be made or the property ditched or drained or water closets put in and connected with the city sewer system, as the case may be, at the cost and expense of the property owner. The engineering division shall report to the city council the costs and expenses of such work and

materials, or either, which report shall be entered upon the minutes of the city council; and such costs shall constitute and be a lien on such property prior to all other liens, except for taxes, which lien may be enforced by sale of the property, in all respects as in cases of assessments for street improvements and also in the courts of the state in equity.
(Code 1982, § 20-137)

State law references—Similar provisions, Code of Ala. 1975, § 11-50-54; authority of city to require property owners to ditch and drain premises, Code of Ala. 1975, § 11-50-53.

Sec. 21-94. Statement of cost of work done by city to be filed with county probate judge.

Whenever any water closet is installed or connections made by the city under the provisions of this division, the mayor shall prepare a statement in writing setting forth the name of the owner and a description of the property on which such improvements have been made together with the costs of such sanitary connections and installing of closets, or either, which must be signed by the mayor in his official capacity and filed with the probate judge of the county for record in the mortgage records of the county. The filing of such statement shall operate as notice of the existence of such lien from the date of its filing.
(Code 1982, § 20-138)

Sec. 21-95. Service of notice required by section 21-91.

The notice required by section 21-91, where the property owner is a resident of the city, shall be given either by personal delivery to him or by mail addressed to him with postage fully prepaid. Where such property owner is a nonresident of the city, such notice may be given to his agent, if any, in the city who has charge of such property or its rental. If the owner has no resident agent, such notice must be given by advertisement once a week for three successive weeks in some newspaper published in the city.
(Code 1982, § 20-139)

State law reference—Similar provisions, Code of Ala. 1975, § 11-50-56.

Sec. 21-96. Discharge to municipal separate storm sewer system or natural outlet.

(a) It shall be unlawful for any person to place, discharge or cause to be placed or discharged any illicit discharge into the municipal separate storm sewer system or any natural outlet.

(b) It shall be unlawful for any person to discharge any sanitary sewage or wastewater into the municipal separate storm sewer system or any natural outlet.
(Code 1982, § 20-140; Ord. No. 93-270, § 3, 5-13-1993)

Sec. 21-97. Unsanitary methods of discharge.

It shall be unlawful for any person to place, or permit to be deposited in any unsanitary manner on public or private property within the service area, or in any area under the jurisdiction of the city, any human or animal excrement, garbage or other objectionable waste.
(Code 1982, § 20-141)

Sec. 21-98. Septic tanks.

Septic tanks will be prohibited except as provided in this article and the Standard Plumbing Code (chapter 7, article IV, division 6) as adopted and amended by the city.
(Code 1982, § 20-142)

Sec. 21-99. Reporting of illicit discharge.

(a) Any person who places, discharges or causes to be placed or discharged any illicit discharge into the municipal separate storm sewer system or any lake, stream or other body of water located within the corporate limits shall report all information relevant to the discharge, including but not limited to the date, location, nature and volume or quantity discharged, if known, to the division of natural resources and environmental management within 24 hours of such discharge.

(b) Failure to report an illicit discharge as provided in this section shall constitute a misdemeanor. Each day any violation of this section shall continue shall constitute a separate offense.
(Ord. No. 93-270, § 3, 5-13-1993)

Secs. 21-100—21-120. Reserved.

DIVISION 4. BUILDING SEWERS AND CONNECTIONS*

Sec. 21-121. Duties of owner generally.

(a) All costs and expenses incident to the installation and connection of the building sewer shall be borne by the owner. The owner shall indemnify the city from any loss or damage that may directly or indirectly be occasioned by the installation, maintenance or mechanical failure of the building sewer.

(b) All industries, commercial organizations or other producers of liquid waste of any form, including domestic waste, as at apartments, hotels, motels, hospitals, universities, schools or homes served by the city sewer system, must obtain a permit from the director prior to making a connection to the city sanitary sewer system.

(c) Service charge for repair and maintenance of grinder pumps during normal working hours shall be $15.00 per hour for technician and $7.50 per hour for laborer/helper. Service charge for after-hours call-out shall be computed on the greater of:

(1) Four times the hourly rate of this subsection; or

(2) Actual number of hours worked times the overtime rate (time and one-half).

Property owner shall be responsible for invoice cost (replacement parts, including freight, factory service, etc.) plus ten percent, and billing shall be in accordance with section 21-276. Rates will be reviewed on an annual basis and changed as necessary by the engineering division.
(Code 1982, § 20-151; Ord. No. 87-167, § 1, 5-14-1987)

Sec. 21-122. Fee when connection was at no cost to the owner.

In all cases where the sewer main to which the connection is to be made has been installed at no cost to the property involved, the applicant shall, before obtaining a permit from the inspection division, pay to the city clerk-treasurer the sum of $1,000.00. This provision shall not apply to a connection made to serve approved subdivisions where the sewer mains in the subdivision have been installed at the expense of the property served in the subdivision and a connection made to a developed lot served, at the time of the connection, by a septic tank system of wastewater removal.
(Code 1982, § 20-152; Ord. No. 94-809, § 1, 12-20-1994)

Sec. 21-123. Connections outside city.

It shall be unlawful for any person to connect with or maintain a connection with the city sewer system any premises located outside the corporate limits of the city; however, this section shall not prevent any person from maintaining any connection heretofore made with such system, or from connecting and maintaining any premises to such system in accordance with approval of the city council heretofore rendered; and the owners of any tract in close proximity to the existing corporate boundaries who are not legally entitled to become annexed to the city because of lack of contiguity may, with the approval of the council, be specifically authorized to connect specifically described premises to the city sewer system under the following conditions:

(1) The applicant must file an application with the council describing the premises to be served and listing the proposed use of the facilities and the type and volume of effluent to be discharged.

(2) The applicant must agree to pay all connection and service fees.

(3) The applicant must irrevocably agree to annexation into the city limits at the discretion of the city council at such time as contiguity with the present city boundary and compliance with applicable law can be met.

(4) The applicant must agree, prior to annexation, to make an annual payment in lieu of city ad valorem taxes, such payment to be based upon the city tax rate applied against the value as assessed for state

*__Cross reference—__Buildings and building regulations, ch. 7.

and county ad valorem taxes, the first such payment to be due for the tax year beginning next after such connection is actually made and terminating with the tax year ending prior to the year such property is annexed, or if such property is disconnected from the system, terminating with the year ending prior to the year of termination.

(5) The applicant must file such agreement in the office of the judge of probate of the county. Such agreement must, by its terms, bind the successors in interest to the property.

(Code 1982, § 20-153(b); Ord. No. 94-297, 5-12-1994; Ord. No. 95-511, 8-10-1995)

State law reference—Authority of city to make sewer improvements outside corporate limits, Code of Ala. 1975, § 11-48-80 et seq.

Sec. 21-124. Prohibited connections.

No person shall make connection of roof downspouts, exterior foundation drains, areaway drains or other sources of surface runoff or groundwater to a building sewer or building drain which in turn is connected directly or indirectly to a public sanitary sewer.
(Code 1982, § 20-154)

Sec. 21-125. Method of connection.

The size, slope, alignment, materials of construction of a building sewer and the methods to be used in excavating, placing of the pipe, jointing, testing and backfilling the trench shall all conform to the requirements of the building and plumbing code or other applicable rules and regulations of the city.
(Code 1982, § 20-155)

Sec. 21-126. Elevation of connection.

Whenever possible, the building sewer shall be brought to the building at an elevation below the basement floor. In all buildings in which any building drain is too low to permit gravity flow to be the public sewer, sanitary wastewater carried by such building drain shall be lifted by an approved means and discharged to the building sewer.
(Code 1982, § 20-156)

Sec. 21-127. Engineering standards.

The connection of the building sewer into the public sewer shall conform to the requirements of the building and plumbing codes or other applicable rules and regulations of the city, or the procedures set forth in appropriate specifications of the ASTM (American Society for Testing Materials) and the WPCF (Water Pollution Control Federation) Manual of Practice No. 9. All such connections shall be made gastight and watertight. Any deviation from the prescribed procedures and materials must be approved by the director before installation.
(Code 1982, § 20-157)

Sec. 21-128. Separate connections.

Every building in which plumbing fixtures are installed shall have a connection to a public or private sewer, except where a public sewer is not available, an individual sewage disposal system shall be of a type that is acceptable and approved by the director or other governing authority having jurisdiction.
(Code 1982, § 20-158)

Sec. 21-129. Public hazard.

All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks, parkways and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the city.
(Code 1982, § 20-159)

Sec. 21-130. Grease and solid removal.

Grease, oil and sand interceptors shall be provided when, in the opinion of the director, they are necessary for the proper handling of liquid wastes containing grease in excessive amounts or any flammable wastes, sand or other harmful ingredients; except that such interceptors shall not be required for private living quarters or dwelling units. All interceptors shall be of a type and capacity approved by the engineering division and shall be located as to be readily and easily accessible for cleaning and inspection.
(Code 1982, § 20-160)

Sec. 21-131. Preliminary treatment devices.

Where preliminary treatment of flow-equalizing facilities is provided for any waters or wastes, it shall be maintained continuously in satisfactory and effective operation by the owner at his expense.
(Code 1982, § 20-161)

Sec. 21-132. Control manhole.

The owner of any property serviced by a building sewer carrying industrial wastes shall install a suitable control manhole together with such necessary meters and other appurtenances in the building sewer to facilitate observation, sampling and measurement of the wastes. Such manhole, when required, shall be accessibly and safely located and shall be constructed in accordance with plans approved by the director. The manhole shall be installed by the owner at his expense and shall be maintained by him so as to be safe and accessible at all times. The manhole must be located on the industrial waste service connection with all sanitary wastes excluded.
(Code 1982, § 20-162)

Sec. 21-133. Cross connections.

Any cross connection between potable water supply and sanitary sewer shall be prohibited, except as specified by the Standard Plumbing Code (chapter 7, article IV, division 6) as adopted and amended by the city.
(Code 1982, § 20-163)

Secs. 21-134—21-150. Reserved.

DIVISION 5. PERMITS

Sec. 21-151. Connection to sewer mains generally.

It shall be unlawful for any person to connect with or maintain a connection with any sewer main within the corporate limits of the city without first having secured a permit for such connection from the engineering division.
(Code 1982, § 20-171)

Sec. 21-152. Industrial permits.

(a) Any person owning or operating an industrial plant producing a liquid industrial waste of any quantity or strength or other qualities requiring special consideration, as relevant conditions are defined in this division, or who desires to make connection for the industrial waste-producing facilities of any such establishment, to the sanitary sewer system of the city, shall make application on the supplied forms to the engineering division for a permit authorizing such connection. A sample of the required form is attached. (See subsection (c) of this section.)

(b) The engineering division shall not issue a plumbing permit for any industrial plant until the applicant presents a completed and approved industrial sewer connection application.

(c) Application for a permit under this section shall be in essentially the following form:

APPLICATION FOR PERMIT
TO
DISCHARGE INDUSTRIAL WASTE

TO: Engineering Division
City of Huntsville
Post Office Box 308
Huntsville, Alabama 25804

DATE:

NAME OF FIRM: _____

ADDRESS: _____

_____

TELEPHONE: _____

Application is hereby made for a permit to discharge industrial waste into the sanitary sewer system of the City of Huntsville, Alabama.

It is understood in making this application that should a change in ownership of the firm be made, a new application will be required.

If the industrial waste is being pretreated prior to discharge into the sanitary sewer system, the method of treatment is indicated:

_____

_____

_____

The City of Huntsville is given permission to enter onto the plant premises and observe any process creating the waste, and to measure and/or secure samples for analysis.

The applicant agrees to abide by all the laws of the State of Alabama, and the ordinances of the City of Huntsville, concerning the pretreatment and discharge of such waste now in force, or as they may be from time to time amended. The applicant further agrees to report to the engineering division immediately in writing any change in the process which causes any measurable change in composition of waste discharge and any change in volumetric discharge of more than ten percent in GPD.

It is understood that the permit, if issued, will authorize only the discharge of waste listed in this application, and none other, and that a new application will be made and permit requested if the composition of waste discharge and/or volume, or both, listed in this application are exceeded.

A complete chemical analysis of the effluent discharged, or to be discharged, is reported below. The BOD content, the quantity of suspended solids, and the total volumetric discharge in gpd is indicated:

	ppm
Aluminum	_____
Arsenic	_____
Barium	_____
Boron	_____
Cadmium	_____
Chlorides	_____
Chromium (Total)	_____
Chromium (Hexavalent)	_____
Copper	_____
Cyanide	_____
Detergents ABS (Hard)	_____
Detergents LAS (Soft)	_____
Detergents (Biodegradable)	_____
Fluorides	_____
Zinc	_____
Iron	_____
Lead	_____
Lithium	_____
Mercury	_____
Molybdenum Magnesium	_____
Nickel	_____
Phosphate (Total)	_____
Selenium	_____
Silver	_____
Manganese	_____
Tin	_____
Total Kjeldahl Nitrogen (TKN)	_____
Oil and Grease (Hexane or Petroleum soluble)	_____
Total Dissolved Solids (TDS)	_____
MBAS (Nonbiodegradable)	_____
Organic Toxicants	_____
Radioactivity Gross Beta	_____
Ra^{226}	_____
Sr^{90}	_____
H^3	_____
pH	_____
BOD Content (ppm by Weight)	_____
Suspended Solids (ppm by Weight)	_____
Industrial Waste Discharge (gpd) (See note below)	_____

The City of Huntsville reserves the right to request a periodic chemical analysis report should conditions so warrant.

The applicant further agrees to abide by the terms of the permit when issued.

FIRM: _____

BY: _____

(Authorized Representative)

_____

(Title)

Note: The discharge of industrial waste only will be reported. This may be arrived

at by metering or by agreement between a representative of the engineering division and the firm concerned. If the total water supply for the firm is furnished by the City of Huntsville, water used for purposes other than for treatment of industrial waste will not be reported under the industrial waste discharge. If the source of water supply for processing industrial waste is obtained from a source other than from the city water department, this volumetric discharge will be considered as a supplement to water furnished by the city, will be metered, and will be reported in industrial waste discharge.

(Code 1982, § 20-172)

Sec. 21-153. Permit where no pretreatment required.

For those applicants for which no pretreatment is required for the waste to be discharged into the city sewer from the premises desiring service, if the engineering division determines that the capacity of the available existing city mains and treatment plant facilities are sufficient to accommodate the applicant's waste, upon the applicant's providing a proper connection from his plant or premises to the city sewer, the engineering division will issue the applicant a permit to discharge waste connection and permit the applicant to discharge waste from such premises into the city sewer at the rate and in the quantities stated. Upon receipt of such permit, the applicant will thereafter be charged by the city at the rates established by ordinance for the taking and disposing of such waste.

(Code 1982, § 20-173)

Sec. 21-154. Chemical analysis required.

Any person now discharging or desiring to discharge industrial waste into the sanitary sewer system shall submit with his application to the approving authority a complete chemical analysis of the waste being discharged or proposed to be discharged, including concentrations of BOD and suspended solids contained in such discharges. Such person shall also submit pertinent flow data, including rates and duration, and description of his operation. Should the waste from such person's operations be deemed to be inadmissible into the sanitary sewer system because of objectionable character as defined by this division, because of concentrations of elements or substances in excess of the limits established by the approving authority, or because of flow characteristics incompatible with the best use of the receiving sewer, the approving authority will not approve the discharge of such waste into the sanitary sewer system until such person has employed, at his own expense, methods and processes for pretreatment as will render the waste admissible to the sanitary sewer system in accordance with this division.

(Code 1982, § 20-174; Ord. No. 81-192, 6-25-1981)

Sec. 21-155. Approval of discharge.

The approving authority will not specify, suggest or recommend equipment, structures or arrangements comprising the pretreatment processes. Approval of discharge of industrial waste by any person will be given only on the basis of performance of pretreatment processes, if pretreatment should be required. Approval given to any person for discharge of industrial waste, whether pretreated or not, into the sanitary sewer system shall in no way relieve such person of the responsibility for full compliance with this division at all times.

(Code 1982, § 20-175; Ord. No. 81-192, 6-25-1981)

Sec. 21-156. Acid or alkaline range.

No wastewater which for any sustained period shows an acid or alkaline reaction outside of the recommended pH range (i.e., less than six or more than nine) shall be placed in the sanitary sewer system. Wastewater outside of these limits may be chemically adjusted, and the process used shall be at the option of the producer. It shall also be the responsibility of the producer to design, operate and maintain the pretreatment plant and demonstrate its effective use to the satisfaction of the engineering division. The continuous operation and maintenance of the plant with consistent results will be the responsibility of the producer, even though the pretreatment plans have been approved by the director. Dilution, in no way, will be accepted as a form of pretreatment except and

only then when duly authorized by the engineering division, AWIC and/or the Environmental Protection Agency (EPA).
(Code 1982, § 20-176; Ord. No. 81-192, 6-25-1981)

Sec. 21-157. Connection charge determination.

After issuance of the required permit under this division, the industrial waste disposal connection charge will be made as provided for completion connection charge and billing with water service.
(Ord. No. 81-192, 6-25-1981)

Sec. 21-158. Effect of approvals.

Any approval by the engineering division of a type, kind or capacity of an installation shall not relieve a person of the responsibility of revamping, enlarging or otherwise modifying such installation to accomplish an intended purpose; nor shall any fixed or oral agreement as to limits of constituents or volumes of waters or wastes be considered as final approval for continuing operation. These limits will be subject to constant study and change as considered necessary to serve their intended purpose.
(Code 1982, § 20-177)

Sec. 21-159. Property rights.

The issuance of a permit by the engineering division does not convey any property rights in either real or personal property, or any exclusive privileges, nor does it authorize any injury to private property or any invasion of personal rights, nor any infringement of federal, state or local laws or regulations.
(Code 1982, § 20-178)

Sec. 21-160. Ownership changes.

If a property or plant authorized to make a connection to the city sewer for industrial waste disposal under the provisions of this article is sold, leased or its operation is assumed or taken over by a person other than that named in the permit, a new application or permit will be made by the new owner, lessee or operator. No permit issued under the provisions of this division shall be assignable to any other persons to exercise the privileges and receive the benefits of such permit, and a violation of the provisions of this article shall be grounds for summary cancellation of such permit by the director.
(Code 1982, § 20-179)

Sec. 21-161. Due date; amount of fees.

(a) Industrial waste permits shall be due on January 1 in three-year intervals and shall be delinquent on the following February 1.

(b) Applicants shall pay a fee of $15.00 for the first permit issued and a renewal fee of $15.00. If the permit fee becomes delinquent, there shall be added a penalty of $15.00. If a permit is canceled for cause under the provisions of this division by the engineering division, a fee of $45.00 shall be payable for a subsequent initial permit issued to such applicant on completion by the applicant of forms provided and their approval.
(Code 1982, § 20-180; Ord. No. 81-192, 6-25-1981)

Sec. 21-162. Permit cancellation.

The engineering division is authorized to cancel any permit issued under the provisions of this division and terminate such service at any time that an applicant violates any of the provisions of this article or other ordinances of the city pertaining to wastewater disposal into city sewers by such plant; or should the applicant fail or refuse to pay, when due, charges made by the city for such sewer service; or should the applicant discharge waste at a rate, or in a quantity or strength or other quality in excess of that provided for by the permit or of a quality violating the permit or prohibited by this article or other related city ordinance. Such cancellation shall be subject to review as provided for.
(Code 1982, § 20-181)

Sec. 21-163. Conflicts with state and federal laws.

(a) Where conflicts exist between city and state or federal regulations, the more stringent requirement shall apply. In all cases where limits have not been specifically determined in this article, the more stringent of state or federal regulations shall apply.

(b) Within nine months of the promulgation of a National Categorical Pretreatment Standard, the industrial waste permit of users subject to such standards shall be revised to require compliance with such standard within the timeframe prescribed by the standard, except when the state and/or city pretreatment standards are more stringent than the National Categorical Pretreatment Standard.
(Ord. No. 81-192, § 9, 6-25-1981)

Sec. 21-164. Monthly reports.

Any user subject to pretreatment standards and requirements shall submit to the engineering division a monthly report indicating the nature and concentration of all pollutants in the discharge from the regulated wastestream and the average daily flow rate of the discharge. This monthly self-monitoring report shall be signed by an authorized representative of the industrial user.
(Ord. No. 81-192, § 10, 6-25-1981)

Sec. 21-165. Confidential information.

Information and data on a user obtained from reports, questionnaires, permit applications and monitoring shall be available to the public or governmental agency without restriction unless the user requests and is able to demonstrate to the satisfaction of the engineering division that the release would divulge processes or methods entitled to protection as trade secrets of the user.
(Ord. No. 81-192, § 11, 6-25-1981)

Sec. 21-166. Treatment credits.

Where the POTW achieves consistent removal of pollutants limited by federal pretreatment standards, the city or an industrial user may apply to the AWIC for modification of specific limits in the standards. After sufficient analytical proof of consistent removal is obtained (the cost of which can, at the option of the city, be borne by the industrial user), the city may then modify that pollutant discharge limits if the requirements contained in 40 CFR 403.7 are fulfilled and with prior AWIC approval obtained.
(Ord. No. 81-192, § 12, 6-25-1981)

Sec. 21-167. FDF variances.

FDF (fundamentally different factors) variances, referred to in section 307(b) of the Clean Water Act of 1977, are allowances in which an industrial user can present information and data to the EPA and the AWIC which verify that the user's particular process is different, fundamentally, from others in his pretreatment category and thus different from those factors which were used to develop the categorical pretreatment standards for that group. These are case-by-case adjustments which can make the standards more or less stringent and approval for such requests is reserved for the EPA. The written submission, however, is handled by the AWIC and should have certain content and be in acceptable form. This information as well as essential qualifications for approval and other aspects of the FDF variance are available from the AWIC upon request. The city reserves the right to comment on FDF variance applications submitted by its industrial users.
(Ord. No. 81-192, § 13, 6-25-1981)

Secs. 21-168—21-190. Reserved.

DIVISION 6. INDUSTRIAL SURCHARGES

Sec. 21-191. Definition; amount of charges.

Industrial waste is considered any effluent with pollutant loadings in excess of the following maxima during a 24-hour average for a billing period. Industrial surcharges shall apply as follows:

(1) BOD^5—In excess of 250 ppm, $0.17 per pound.

(2) SS—In excess of 250 ppm, $0.12 per pound.
(Code 1982, § 20-191; Ord. No. 00-129, § 2, 3-9-2000)

Sec. 21-192. Computation of pounds.

(a) Pounds shall be computed by 8.34 (the weight of one gallon of water), times the volume of the wastewater in million gallons, times the parts per million in excess of normal strength. (P = 8.34 × MGD × PPM)

(b) Alternatively, pounds shall be computed by 0.00624 pound, the conversion factor to determine the weight in pounds of one mg/l for a volume in hundreds of cubic feet, times the volume of wastewater in hundreds of cubic feet, times the parts per million in excess of normal strength.
(Code 1982, § 20-192)

Sec. 21-193. High concentrations of pollutants.

At the discretion of the director, on a case-by-case basis, high concentrations of specific pollutants will warrant a surcharge based upon the higher cost of treatment of the discharge.
(Code 1982, § 20-193)

Secs. 21-194—21-210. Reserved.

DIVISION 7. PROHIBITED DISCHARGES

Sec. 21-211. Generally.

(a) No person shall discharge or cause to be discharged any stormwater, surface water, groundwater, roof runoff, subsurface drainage, uncontaminated cooling water, or unpolluted industrial process waters to any sanitary sewer.

(b) In no case shall a slug load have a flow rate concentration or qualities of pollutants that exceed for any time period longer than 15 minutes or more than five times the average 24-hour concentration, quantities or flow during normal operation that will interfere with the operation of the POTW.
(Code 1982, § 20-201; Ord. No. 81-192, 6-25-1981)

Sec. 21-212. Substances prohibited in public sewers.

(a) Except as otherwise provided in this section, no person shall discharge or cause to be discharged any of the following waters or wastes into any public sewers:

(1) Any liquid or vapor having a temperature higher than 150 degrees Fahrenheit.

(2) a. Any water or waste which may contain more than 100 ppm, by weight, of fats, oil or grease, or any water or waste containing oil, grease, or other substance that will solidify or become viscous at temperatures between 32 and 90 degrees Fahrenheit.

b. As set forth in sections 21-154—21-156, minimal pretreatment of wastes containing concentrations of grease (i.e., animal and vegetable fats and oils) in excess of 75 ppm is required.

c. Such minimal pretreatment requires passage through a grease trap meeting the city's engineering standards and providing a minimum retention time of ten minutes between influent and effluent battles with 20 percent of the total volume as allowance for a sludge pocket. This sludge pocket should be kept reasonably free of inorganic solids, and all grease and other floating materials shall be skimmed from the tank at sufficiently frequent intervals to avoid reduction of efficiency of the trap.

d. Upon written notification by the director that a grease trap is required for a given discharge, the user will have a period of 90 days for compliance. Such compliance consists of the complete installation and operability of a grease trap approved by the director. Failure to comply will result in the implementation of the enforcement procedures of division 2 of this article. Grease traps shall be available for inspection by the director or his staff at all reasonable times.

(3) Any gasoline, benzene, naphtha, fuel oil, mineral spirits, commercial solvent, motor oil or other flammable or explosive liquid, or any other petroleum derivative.

(4) Any waters or wastes that contain more than ten ppm by weight of hydrogen sulfide, sulfur dioxide or nitrous oxide.

(5) Any ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, offal, plastics, wood, whole blood, paunch manure, hair and fleshings, entrails, lime

residues, beer or distillery slops, chemical residues, fiberglass, paint or ink residues, cannery waste, bulk solids or any other solid or viscous substance capable of causing obstruction to the flow in sewers, or other interference with the proper operation of the wastewater works without proper pretreatment and written approval of the director.

(6) Any waters or wastes having a pH lower than six or higher than nine at any time, or having any other corrosive property capable of causing damage or hazard to structures, equipment or personnel of the wastewater works, or the treatment process.

(7) a. Any waters or wastes containing toxic or poisonous substances in such concentration as to constitute a hazard to humans or animals, or to interfere with any wastewater treatment process, or to create any hazard in the receiving waters of the wastewater treatment plant without proper pretreatment and written approval of the director.

b. These limits may be used as a guide in design and plant control, but may be altered by the director as required or authorized by state or federal law in the event of a cumulative overload on a particular drainage basin or wastewater treatment plant.

(8) Any waters containing suspended solids of such character and quantity that unusual provision, attention or expense is required to handle such materials at the wastewater treatment plant.

(9) Any noxious or malodorous gas or substance, capable of creating a public nuisance or hazard to life or preventing entry into sewers for their maintenance, inspection and repair.

(10) Any waters containing quantities of radium, naturally occurring, or artificially produced radioisotopes in excess of presently existing or subsequently accepted limits for drinking water as established by the National Committee on Radiation Protection and Measuring.

(11) Any concentrated dye wastes, spent tanning solutions or other wastes which are highly colored, or wastes which are of unusual volume, concentration of solids or composition that may create obstruction to the flow in sewers or other interference with the proper operation and treatment of influent of the wastewater works without proper pretreatment and written approval of the director.

(12) Any waters or wastes containing substances which are not amenable to treatment or reduction by the wastewater treatment processes employed, or are amenable to treatment to only such degree that the wastewater treatment plant effluent cannot meet the requirements of other agencies having jurisdiction over discharge to the receiving waters.

(13) Any water or waste containing more than 2,000 ppm total solids.

(14) Any wastes at a flow rate and/or pollutant discharge rate which is excessive over a short period of time so that there is a treatment process overload and subsequent loss of treatment efficiency.

(15) Any wastewater containing phenols or other taste-producing substances in such concentrations as to produce odor in the effluent as to affect the taste or odor of the receiving water. Quantities of such substances will be determined by the director on a case-by-case basis.

(b) No person may discharge into grinder pumps or operate grinder pumps in any manner which is not recommended by the equipment manufacturer.

(Code 1982, § 20-202; Ord. No. 87-167, § 1, 5-14-1987)

Sec. 21-213. Concentrations.

Fixed upper limits for constituents (ppm, by weight) are as follows:

	Maximum Concentration (ppm) Composite Sample 24-Hour Flow Proportionate	*Maximum Concentration Instantaneous (ppm) Grab Sample*
Aluminum	5.00	10.00
Arsenic	0.40	0.40
Barium	2.00*[1]	4.00
Boron	*	*
Cadmium	0.10	0.20
Chlorides	*	*
Chromium (Total)	0.50	1.00
Chromium (Hexavalent)	0.10	0.20
Copper	0.50	1.00
Cyanide	0.10	0.20
Detergents ABS (Hard)	5.00	10.00
Detergents LAD (Soft)	5.00	10.00
Detergents (Biodegradable)	*	*
Fluorides	5.00*[1]	10.00
Iron	3.00	6.00
Lead	0.40*	0.40
Lithium	*	*
Mercury	0.0004*[1]	0.008
Magnesium	5.00	10.00
Nickel	0.50	1.00
Phosphate (Total)	10.00	20.00
Selenium	0.02*[1]	0.04
Silver	0.10	0.20
Manganese	–1.00	2.00
Tin	0.10	0.20
Total Kjeldahl Nitrogen (TKN)	60.0	90.0
Oil and Grease:		
Hexane or petroleum soluble	100.00	150.00
Total Dissolved Solids	5000.00	7500.00
Organic Toxicants	NDA	NDA
Radioactivity Gross Beta	50 pc/1*[2]	50 pc/1
Ra^{226}	5 pc/1*[2]	5 pc/1
Sr^{90}	2 pc/1*[2]	2 pc/1
H^3	1000 pc/1*[2]	1000 pc/1
pH	6—9	6—9
Zinc	0.80	1.60

*To be established by the director.

*[1]Two times the current drinking water standards.

*[2]Current drinking water standards (in Pico Curies/L).

(Code 1982, § 20-203)

Sec. 21-214. Dilution.

The admission into the public sewers of any waters or wastes in volumes, or with constituents, such that existing dilution conditions in the sewers or at the treatment plant would be affected to the detriment of the city, shall be subject to review and approval of the director. Where necessary, in the opinion of the director, pretreatment or equalizing units may be required to bring constituents or volume of flow within the limits previously prescribed or to an otherwise acceptable level, and to hold or equalize flows such that no peak flow conditions may hamper the operation of any unit of the sewer system. This equalization or holding unit shall have a capacity suitable to serve its intended purpose, and be equipped with acceptable outlet control facilities to provide flexibility in operation and accommodate changing conditions in the waste flow.
(Code 1982, § 20-204)

Sec. 21-215. Suspended solids.

The admission into the public sewers of any waters or wastes having a suspended solids content in excess of 500 ppm, by weight, on a 24-hour composite basis or having a suspended solids content for any grab sample greater than five times the average influent value recorded at the affected wastewater treatment plant during the previous calendar year, will be subject to review by the director. Where necessary, in the opinion of the director, pretreatment may be required as stated in this division.
(Code 1982, § 20-205)

Sec. 21-216. Chemical oxygen demand (COD).

The admission into the public sewers of any water or waste having a chemical oxygen demand (COD) in excess of 850 ppm, by weight, on a 24-hour composite basis or for any grab sample having a five-day biochemical oxygen demand in excess of five times the average influent value for the affected wastewater treatment plant during the previous calendar year, will be subject to review by the director. Where necessary, in the opinion of the director, pretreatment may be required as stated in this division.
(Code 1982, § 20-206)

Sec. 21-217. Biochemical oxygen demand (BOD) limit.

The admission into the public sewers of any waters or wastes having a five-day biochemical oxygen demand in excess of 500 ppm, by weight, on a 24-hour composite basis, or for any grab sample having a five-day biochemical oxygen demand in excess of five times the average influent value for the affected wastewater treatment plant during the previous calendar year, will be subject to review by the director. Where necessary, in the opinion of the director, the owner shall provide and operate, at his own expense, such pretreatment as may be required to reduce the biochemical oxygen demand to meet these requirements.
(Code 1982, § 20-207)

Sec. 21-218. Action by director.

If any waters or wastes are discharged or are proposed to be discharged to the public sewers, which waters or wastes contain the substances or possess the characteristics enumerated in this article and which in the judgment of the director, and/or the local, state and federal agencies having jurisdiction, may have a deleterious effect upon the wastewater works, processes, equipment, or receiving waters, or which otherwise create a hazard to life or constitute a public nuisance, the director may:

(1) Reject the wastes;

(2) Require pretreatment to an acceptable condition for discharge to the public sewers;

(3) Require control over the quantities and rates of discharge; and/or

(4) Require payment to cover the added cost of handling and treating the wastes not covered by existing taxes or sewer charges. Such payments shall be as specified in this article.

(Code 1982, § 20-208; Ord. No. 81-192, 6-25-1981)

Sec. 21-219. Approval of facilities.

(a) If the director permits the pretreatment or equalization of waste flows, the design and installation of the plants and equipment shall be subject to the review and approval of the director and

the local, state and federal agencies having jurisdiction and subject to the requirements of all applicable codes, resolutions and laws.

(b) Facilities to prevent accidental discharge of prohibitive material shall be provided and maintained at the owner's cost and expense. Detailed plans showing facilities and operating procedures to provide this protection shall be submitted to the director for review and shall be approved by the director before construction of the facility.

(c) In the event of an accidental spill of unavoidable loss to the sanitary sewer system of any deleterious materials, the owner concerned shall promptly notify the director of the nature of the spill, the quantity, and the time of occurrence. Within five working days following an accidental discharge, the user will submit a written report describing the cause and measures to be taken to prevent any further occurrence.
(Code 1982, § 20-209; Ord. No. 81-192, 6-25-1981)

Sec. 21-220. Manifest requirements.

A manifest is required of all users having a hazardous waste that is not acceptable at the POTW and requiring disposal at an approved hazardous materials disposal facility. The user shall submit to the director a quarterly report denoting the materials hauler, date, time, quantity and place of disposal (reference PL 94-540 subtitle C).
(Ord. No. 81-192, § 9, 6-25-1981)

Sec. 21-221. Discharge to storm sewers.

Stormwater and all other unpolluted drainage shall be discharged to such sewers as are specifically designated as storm sewers, or to a natural outlet approved by the local, state and federal agencies having jurisdiction. Industrial cooling water or unpolluted process waters may be discharged on approval of the local, state and federal agencies having jurisdiction.
(Code 1982, § 20-210)

Secs. 21-222—21-240. Reserved.

DIVISION 8. WATER QUALITY AND QUANTITY DETERMINATIONS

Sec. 21-241. Rate of delivery of effluent and waste.

The delivery of all effluent and waste from a producer to the city's sanitary sewer shall be at a reasonable uniform rate, as produced without storage by the producer, except that storage which is necessary in the pretreatment plant of the producer.
(Code 1982, § 20-218)

Sec. 21-242. Prohibitions.

(a) No person who is engaged in the process of collecting, storing or holding wastewaters, oils, grease, portable toilet waste, grease trap contents or sand trap contents shall deposit any of these wastes, oils or greases into the wastewater collection system of the city.

(b) It shall be unlawful for any person to dump or place any semiliquid waste material whatsoever, including but not limited to waste cleaned from septic tanks and portable sources into the city sanitary sewer system except through a duly authorized permanent connection, or if dumped from a portable source then in conformity with the following:

(1) No such material will be placed or dumped into the system except under the immediate supervision of employees designated for that purpose on duty at the city sewer treatment plant No. 1.

(2) Each person dumping or placing waste in the city sanitary sewer system from portable sources shall pay to the city a service fee of $10.00 per month for each month during which any such material is dumped or placed, plus an additional amount of $23.00 per each 1,000 gallons of waste dumped into the sanitary sewer system.

(Code 1982, § 20-219; Ord. No. 00-129, § 3, 3-9-2000)

Sec. 21-243. Requirements as to permits.

(a) No permit for the disposal of industrial waste will be approved by the director which will permit the acceptance of waste which will damage either the sewers, plants or appurtenances of the sewer system or produce results detrimental to the treatment process, including sludge disposal, or producing plant effluent contrary to the rules and standards set out by the local, state and federal agencies having jurisdiction.

(b) No waste shall be placed in the sanitary sewer system and no permit will be approved for acceptance of any waste which will produce damage or stoppage to the sewers of the city system. No waste shall be placed in the sanitary sewer system except by appropriate permit from the director, and no industrial waste shall be placed in any city sewer system or sanitary sewer system without an industrial waste disposal permit issued by the director.
(Code 1982, § 20-220)

Sec. 21-244. Acceptance of waste.

(a) Wastes will be accepted which have been placed in satisfactory conditions or quality after pretreatment by the producer in a plant or by a process which has been approved by the director, and which is continuously maintained and operated by the producer at no cost to the city and which is continuously subject to inspection by the director or his designated representative. The construction plans for such pretreatment plants shall, after their approval, be placed on file in permanent reproducible form with the director without cost to the city.

(b) Septic tank waste will be received by the city only at the disposal site located at treatment plant No. 1, on Vermont Road.
(Code 1982, § 20-221)

Sec. 21-245. Quality determination.

(a) Determination of the average concentration or strength of the waste delivered shall be the obligation of the city. Tests made on representative average samples collected by the city shall be made at intervals as the city may desire so long as at least annual samples are taken.

(b) Samples may be taken and tests made at the city's option without notice to the owner and test results made and approved by the city shall be final in fixing the applicable rate. However, the owner may request in writing that parallel sampling and tests at all times be made by the owner and the city, in which case consideration may be given to using the average of comparable values obtained by the owner and the city.
(Code 1982, § 20-222)

Sec. 21-246. Testing wastes.

It is specifically agreed by the producer that the city may at any time test any of the waste being discharged by the company for quality or quantity, and a duly authorized city representative may enter a plant at any time by appropriate application at the plant office during business or operational hours for this purpose or for checking company operation to estimate the quantity and quality of waste.
(Code 1982, § 20-223)

Sec. 21-247. Effluent sampling.

(a) All measurements, tests and analyses of the characteristics of waters and wastes to which reference is made in this article shall be determined in accordance with the latest edition of "Standard Methods for the Examination of Water and Wastewater," 20th edition, published by the American Public Health Association, the American Water Works Association, and the Water Environment Federation, and/or "Methods for Chemical Analysis of Water and Wastes," U.S. Environmental Protection Agency, Washington, D.C. 20460, which publications shall be on file in the office of the city clerk-treasurer and be available for use and examination by the public in that office at all reasonable times; and all such measurements, tests and analyses shall be determined at the control manhole provided, or upon suitable samples taken at the control manhole. If no special manhole has been installed, the control manhole shall be considered to be the nearest downstream manhole in the public sewer to the point at which the building sewer is connected. Sampling shall be carried out by customarily accepted methods to reflect the effect of constitu-

ents upon the wastewater works and to determine the existence of hazards of life, limb and property.

(b) The particular analyses involved will determine whether a 24-hour composite of all outfalls of the premises is appropriate or whether a grab sample should be taken. Normally, but not always, BOD and suspended solids analyses are obtained from 24-hour composites of all outfalls whereas pHs are determined from periodic grab samples.

(c) The increased charge or surcharge, as specified in division 6 of this article for sewer and industrial waste which exceeds the standard quality set out in this division, is used to provide for the increased costs, which costs vary with both quality and quantity when waste is treated. The variations in cost with strengths are admittedly difficult to exactly determine, and the method is to be effective without reference to other possible methods of computation. This provision shall not alter any of the terms and provisions of this article.
(Code 1982, § 20-224)

Sec. 21-248. Quality changes.

The director shall have made from time to time tests to determine the quality of waste being discharged into the city sewer from users or connectors, including the premises or industrial waste disposal permit holders under the provisions of this article. If at any time such waste becomes or the industrial process changes to a quality that requires pretreatment according to the city standards, the director shall have the authority to require that proper permits be obtained and proper pretreatment facilities be installed by the permit holder. Should any user or connector, or a permit holder, fail or refuse to install such facilities or initiate the installation to the satisfaction and approval of the director within 30 days after receipt of written notice from the director, the director (subject to review as provided in this article) shall have the authority to revoke such permit and to terminate sewer service to such premises until such time as there has been compliance with the requirements of this division.
(Code 1982, § 20-225)

Sec. 21-249. Quantity determination.

(a) Unless otherwise provided, the quantity of waste delivered to city sewers will be used as the same as the water delivered to the producer by the city water system; if well water is to be used, it must be known to the city and metered at the user's expense, using a metering device which meets the city's engineering standards. The user shall pay the city the cost incurred in meter reading and billing. Such metering devices will be accessible to authorized city representatives at all reasonable times.

(b) Should the producer evaporate or dispose of water delivered by the city water system, it shall be the obligation of the producer to install such meters or other devices to determine the portion of quantity delivered to the sewer system.

(c) The director will consider establishing a constant ratio, factor or percentage to be applied to the metered water quantity delivered by the city in order to determine the waste delivered by the industry. Determination of this factor will be the responsibility of the waste producer as also will be the demonstration to obtain the director's approval of the factor. The value of this factor will be periodically reviewed for accuracy.
(Code 1982, § 20-226)

Secs. 21-250—21-270. Reserved.

DIVISION 9. RATES

Sec. 21-271. Definitions.

The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bill means water and sewer charges.

Billing period means the period intervening between monthly readings of meters forming a part of the water system or installed pursuant to the provisions of this article.

Establishment means any premises used for residential, commercial, or industrial, religious, charitable or any other purposes of whatsoever kind or character.

Major industrial means users discharging 100,000,000 gallons or more of effluent per year.

Other means hotels, motels, multifamily, general commercial, retail, some industrial users, and, for the purpose of establishing sewer service charges under section 21-275, any single-family residence served by more than a single water meter.

Sanitary sewer system means the sanitary sewer system of the city.

Single-family residence means the space provided for the occupancy of a single-family, i.e., including separate living quarters and kitchen, and which is served by a single water meter. For purposes of establishing sewer service charges under section 21-278, this definition shall not include a premise served by more than a single water meter.

(Code 1982, § 20-236; Ord. No. 05-50, § 1, 2-24-2005; Ord. No. 25-426, § 1, 6-26-2025)

Cross reference—Definitions generally, § 1-2.

Sec. 21-272. Determination of quantity of discharge/consumption.

In the case of each establishment that obtains from the water system all water that is discharged into the sanitary sewer system by or from such establishment, the quantity of water consumed during a billing period shall be deemed to be the quantity shown by the water bill rendered on the same statement. In the case of any establishment that discharges into the sanitary sewer system water obtained from any source other than the water system, the occupant of such establishment shall install a meter of a type approved by the city at the occupant's expense for the purpose of measuring the quantity of water consumed or discharged at such establishment.

(Code 1982, § 20-237; Ord. No. 94-809, § 2, 12-20-1994)

Sec. 21-273. Sewer service charges.

There are hereby established monthly charges for sanitary sewer service to each establishment which is served by a water meter which discharges into the sanitary sewer system of the city, said charges being based upon the monthly consumption of water by each establishment, or where discharge is made into said system from a source other than the city water system, then the combination of the two, subject to the charges hereinafter established, as follows:

Effective Date	*Usage Per Gallons*	*Single Family*	*Other*	*Major Industrial*
9-1-2025	1,000	$5.83	$6.86	$5.69
9-1-2026	1,000	$6.08	$7.15	$5.93
9-1-2027	1,000	$6.33	$7.45	$6.18
9-1-2028	1,000	$6.58	$7.74	$6.42
9-1-2029	1,000	$6.83	$8.04	$6.67
9-1-2030	1,000	$7.03	$8.27	$6.86
9-1-2031	1,000	$7.23	$8.51	$7.06
9-1-2032	1,000	$7.43	$8.74	$7.25
9-1-2033	1,000	$7.63	$8.98	$7.45
9-1-2034	1,000	$7.83	$9.21	$7.64

(Ord. No. 81-387, § 1, 11-24-1981; Code 1982, § 20-238; Ord. No. 84-676, § 1, 10-25-1984; Ord. No. 94-809, § 3, 12-20-1994; Ord. No. 97-54, 2-13-1997; Ord. No. 05-50, § 2, 2-24-2005; Ord. No. 25-426, § 2, 6-26-2025)

State law reference—Charges for services of sewer systems, Code of Ala. 1975, § 11-50-120 et seq.

Sec. 21-274. Grease and septic tank charges.

There are hereby established the following charges for the treatment of grease or septage delivered or deposited by grease or septic haulers at the appropriate designated wastewater treatment facility, as designated by the director of the water pollution control department of the city:

For grease or septage delivered or deposited from locations within the corporate limits of the City of Huntsville: $250.00 per 1,000 gallons.

For grease or septage delivered or deposited from locations within the unincorporated areas of Madison County: $350.00 per 1,000 gallons.

No grease or septage will be accepted from locations outside of the corporate limits of the City of Huntsville or the unincorporated areas of Madison County. No leachate or other landfill discharge waste shall be accepted.
(Ord. No. 05-50, § 3, 2-24-2005; Ord. No. 25-426, § 3, 6-26-2025)

Sec. 21-275. Interim charges.

If any establishment is initially connected with the sanitary sewer system during a billing period, the charge for sanitary sewer service to such establishment during the period intervening between the date of the connection and the first day of the then next succeeding billing period applicable to such establishment shall be an amount equal to the minimum monthly charge applicable to such establishment multiplied by a fraction, the denominator of which shall be 30 and the numerator of which shall be the number of days intervening between the date of the initial connection to the sanitary sewer system and the first day of the then next succeeding billing applicable to such establishment.
(Code 1982, § 20-239)

Sec. 21-276. Billing.

All bills for water and sanitary sewer service shall be rendered monthly on the same bill. The rates set forth in the sewer service charges set forth in this division are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.
(Code 1982, § 20-240; Ord. No. 15-910, 12-17-2015)

Sec. 21-277. Effect of failure to receive bill.

Failure to receive a bill shall not entitle any person to the net rate nor shall it prevent the city from discontinuing service or cutting off the water in accordance with this article.
(Code 1982, § 20-241)

Sec. 21-278. Payment of bill with bad check.

When any check or order is delivered to the city in payment of any bill and is accepted and such check or order, upon due presentation to the bank or trust company upon which it is drawn, is not paid, the city shall charge the amount of such check or order back to the bill of such person. Such bill shall be considered a delinquent account, and the city shall be authorized to discontinue water and sewer service as if the check or order had not been given.
(Code 1982, § 20-242)

Sec. 21-279. When service discontinued for failure to pay bill; reconnection charge.

If any consumer or owner of a house, building or property shall refuse or neglect to pay his water bill or charge on or before the penalty date as shown on the statement, the water may be turned off and shall not be turned on again until the bill or charge shall be paid in full, plus a reasonable charge for turning on and off the water.
(Code 1982, § 20-243)

Sec. 21-280. When service restored where water has been cut off for failure to pay bill.

When the water is cut off by the city for nonpayment of a bill, it shall not be the duty of

the city to turn the water back on until the consumer shall have paid the bill due in full, plus a reconnection fee for turning on and off the water.
(Code 1982, § 20-244)

Sec. 21-281. Service not to be restored while delinquent customer to reside on premises.

No member of the consumer's family, or anyone else living in the same house, building or on the property with the consumer where the water is cut off, shall have the right to make or offer to make a deposit for water or to demand that the city turn on the water at that place so long as the delinquent customer lives there and the bill due, plus a reconnection fee for turning on and off the water, is unpaid.
(Code 1982, § 20-245)

Sec. 21-282. Sewer access fees.

(a) Purpose. Heretofore, extensions and improvements to the city sanitary sewer system necessary to accommodate the collection and transportation of new and expanded sanitary sewage discharges, or flows, to city sanitary sewage treatment facilities have been made from the sanitary sewer system extension fund, created from payments made by all system rate payers, or as a result of agreements and negotiations by the city with private sources benefited by such extensions and improvements. It is the purpose of this section to create a policy whereby some portion, not exceeding the actual costs of such extensions and improvements, is collected as new and additional discharges, or flows, are established. In a general way, this section begins to create a policy whereby, through the adjustment of the rates herein established, new development or growth creating new flows into the sanitary sewer system will bear a substantial portion of the costs to the city of improvements and extensions made necessary by new development and growth. It is anticipated that from time to time the city council will review and adjust this policy to achieve the purpose herein stated.

(b) There is hereby established with respect to the sanitary sewer system of the city, a schedule of charges for new or expanded discharges, or flows, into the system, to be known as new discharge access fees. The amount of such fees shall be based upon the new or added water meter size, as follows:

SEWER ACCESS FEES

New or Additional Water Meter Size	*Fee*
¾"	$1,000.00
1"	1,500.00
1½"	2,000.00
2"	3,000.00
3"	4,000.00
4" or above	6,000.00

(c) There is hereby created an account to be known as the sanitary sewer system access fund. The proceeds collected by the city inspection department from the charges herein required shall be paid into the sanitary sewer system access fund account, to be appropriated and used solely to pay city costs for improvements and extensions to the system made necessary to accommodate the collection and transportation of new and expanded discharges, or flows, into the system.

(d) No entitlement created. This section is not intended to change any existing policy, or create any entitlement. The city will continue to, and reserves the right to, evaluate sanitary sewer collection extensions and improvements based upon economic feasibility, and to negotiate agreements with persons benefited on a case by case basis.
(Ord. No. 05-51, § 1, 2-24-2005; Ord. No. 06-926, § 1, 10-12-2006)

Secs. 21-283—21-310. Reserved.

ARTICLE III. STORM SEWERS*

DIVISION 1. GENERALLY

Sec. 21-311. Drainage of stormwater.

(a) *Definitions.*

(1) For purposes on this section, the following words, terms, and phrases shall have the following meanings:

Accumulations mean dirt, trash, debris, gravel, yard waste, grass clippings, grass, weeds, and other matter or materials that when they are deposited, grow, or are allowed to remain in or upon road-side facilities prevent or are likely to prevent the facilities from properly collecting and diverting stormwater runoff.

Director of engineering means the city's director of engineering or his/her designee or subordinate.

Director of public works means the city's director of public works or his/her designee or subordinate.

Drainage berm means any elevated portion of ground or grade so constructed for the purpose of collecting, diverting, routing, or changing the direction of flow of stormwater, or increasing the capacity of an existing drainage swale or channel by increasing the depth of the swale or channel by placement fill dirt/material along the top of the swale or channel.

Drainage channel means not only well-defined channels, such as ditches, but also shall include any swales, however broad, through which stormwater moves at a depth.

Drainage facilities mean structures or facilities, whether natural or man-made, that are designed or intended to control and/or transport stormwater, including, but not limited to, drainage pipes, drainage structures, road-side facilities, drainage channels, drainage berms, swales, ponds, lakes, and other installations which are intended to carry stormwater.

Enforcement officer means the person or persons designated by the director of engineering or the director of public works to administer or enforce all or a portion of this section.

Road-side facilities mean drainage facilities that are within or immediately adjacent to a public road, including, but not limited to, curbs, gutters, swales, and/or ditches.

(b) *Encumbering drainage facilities.* No building, structure, fencing, fill, or other material shall be placed, installed, maintained, or constructed across, within, or over a public drainage facility so as to impede the proper functioning of the facility, access to the facility, or maintenance of the facility for functionality; except, in the case of a drainage channel, a pipe or ditch of sufficient size may be installed, subject to approval by the director of engineering, to permit the continued passage of the water that would otherwise flow through the drainage channel.

(c) *Maintenance.* The owner or person otherwise in control or possession of private premises shall maintain private drainage facilities located on the premises so that such drainage facilities will not become a hazard to or interfere with the use, function, or physical integrity of nearby public streets or public drainage improvements.

(d) *Road-side facilities.*

(1) *Findings.* Road-side facilities are drainage facilities that are designed to collect stormwater runoff and divert it into a storm drain or channel. A gutter, or similar facility, serves to prevent the ponding of water on the roadway for both pedestrian and vehicle convenience and safety, and for protection of the physical condition of the roadway. Poor or inadequate yard maintenance practices, on residential premises adjacent to a roadway that is improved with a road-

*__Cross reference—__Requirements for improvements and design of drainage and storm sewers in subdivisions, app. B, § 4.

side facility, allow or cause accumulations to occur which interfere with the proper functioning of such facilities.

(2) *Requirements.* The owner or person otherwise in possession or control of residential premises which are located adjacent to a roadway with a speed limit of 25 mile per hour or less that is improved with a road-side facility shall not allow or cause accumulations to occur in the facility upon or adjacent to their premises which accumulations interfere or are likely to interfere with the proper functioning of the road-side facility.

(e) *Enforcement and administration.*

(1) The enforcement officer may cause a written notice to be issued, as set forth in subsection (e)(3) hereof, to the owner or person otherwise in possession or control of the premises indicating the existence of a violation of this section and directing that there be compliance. Such notice shall:

a. Provide that compliance must be made within 15 days of such notice;

b. State the name and contact information (address, facsimile, e-mail address) of the enforcement officer to whom all requests allowed under this section shall be directed; and

c. Indicate that failure to comply with the notice may result in prosecution for a municipal ordinance violation.

(2) Failure to comply with a notice issued pursuant to subsection (1) hereof within the specified time shall constitute a violation of this section and is therefore unlawful, and each day thereafter that the property continues to fail to comply can constitute a separate offense.

(3) *Service of notice.* Service of the notice provided for in subsection (1) hereof shall be made by (i) personal delivery to the owner or person in possession or control of the premises or by posting such notice on a conspicuous place on such premises (service deemed complete as of the moment of delivery or posting), or (ii) by certified mail, return receipt requested to the owner of record in the tax assessor's office (service deemed complete upon receipt).

(4) *Waiver or extension of time.*

a. An individual who receives a notice of a violation of subsection (d)(2) of this section concerning accumulations in road-side facilities may request a hardship waiver from the requirements of subsection (d)(2) where the individual is able to establish to the satisfaction of the director that, due to a hardship beyond his or her control, whether financial or physical, they are unable to remedy the violation.

b. An individual who receives a notice of a violation of this section may request one extension of the time for compliance for good cause shown.

c. A written request for a waiver or extension, stating the basis for the request, must be received by the enforcement officer before the expiration of the 15-day period for compliance and shall be delivered either by hand, mail, email, or facsimile to the contact information stated on the notice.

(Code 1982, § 7-143; Ord. No. 19-519, § 1, 7-11-2019)

Secs. 21-312—21-330. Reserved.

DIVISION 2. NPDES COMPLIANCE

Subdivision I. In General

Sec. 21-331. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

ADEM means the Alabama Department of Environmental Management.

BMPs and *best management practices* mean schedules of activities, prohibitions of practices, maintenance procedures and other management practices to prevent or reduce the discharge of pollutants to the municipal separate storm sewer system. BMPs also include treatment requirements, operating procedures and practices to control facility site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

Clean Water Act means the Federal Clean Water Act, 33 USC 1251 et seq., and regulations promulgated under that act.

Commercial area means any facility associated with commercial activity which is not subject to its own NPDES permit or an ADEM general stormwater permit.

Director means the manager of the division of natural resources and environmental management of the city or his designated representative.

Discharge and *discharge of a pollutant* mean any addition of any pollutant to the municipal separate storm sewer system. This term does not include an addition of pollutants by any indirect discharger or from any source specifically excluded from the definition of point source.

Discharge monitoring report and *DMR* mean the EPA or ADEM uniform form for the reporting of self-monitoring results by NPDES permittees.

EPA means the Federal Environmental Protection Agency.

High-risk facility means municipal landfills; other treatment, storage or disposal facilities for

municipal waste (e.g., transfer stations, incinerators, etc.); and hazardous waste treatment, storage, disposal and recovery facilities.

Holder means a person to whom a BMP plan approval has been issued.

Illicit discharge means any discharge to the municipal separate storm sewer system that is not composed entirely of stormwater except discharges pursuant to an NPDES permit (other than the NPDES permit for discharges from the municipal separate storm sewer system) and discharges from firefighting and emergency management activities.

Indirect discharger means a nondomestic discharger introducing pollutants to a publicly owned treatment works.

Industrial facility means any facility associated with industrial activity.

Municipal separate storm sewer system means a conveyance or system of conveyances (including roads with drainage systems, streets, catchbasins, curbs, gutters, ditches, manmade channels, or storm drains), which is owned or operated by the city, designed or used for collecting or conveying stormwater, and is neither a POTW nor a combined sewer.

NPDES and *National Pollutant Discharge Elimination System* mean the national permitting program implemented under the Clean Water Act.

Person responsible and *responsible person* mean a person who has or represents having:

(1) An ownership interest in or financial or operational control of a source or potential source of a discharge or a discharge regulated by this article;

(2) Possession or control of a source or potential source of a discharge regulated by this article who directly or indirectly allowed, either by act or omission, a discharge regulated by this article; or

(3) Benefited from a source or potential source of a discharge or a discharge regulated by this article.

There may be one or more persons responsible or responsible persons.

Point source means any discernible, confined and discrete conveyance, including but not limited to any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are discharged. This term does not include return flows from irrigated agriculture or agricultural stormwater runoff.

Pollutant means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, chemical waste, biological materials, radioactive materials (except those regulated under the Atomic Energy Act of 1954 (42 USC 2011 et seq.), as amended), heat, wrecked or discarded equipment, rock, sand, cellar dirt, and industrial, domestic and agricultural waste discharged into water.

Publicly owned treatment works and *POTW* mean any device or system used in the treatment of municipal sewage or industrial wastes of a liquid nature which is owned by the city. This definition includes sewers, pipes or other conveyances only if they convey wastewater to a POTW providing treatment.

Significant materials includes, but is not limited to the following:

(1) Raw materials;

(2) Fuels;

(3) Materials such as solvents, detergents and plastic pellets;

(4) Finished materials such as metallic products;

(5) Raw materials used in food processing or production;

(6) Hazardous substances designated under section 101(14) of the Comprehensive Environmental Response Compensation and Liability Act of 1980 (CERCLA), 42 USC 9601 et seq.;

(7) Any chemical the facility is required to report pursuant to section 313 of title III

of the Superfund Amendments and Reauthorization Act of 1986 (SARA), 42 USC 11023(b);

(8) Fertilizers;

(9) Pesticides; and

(10) Waste products such as ashes, slag and sludge that have the potential to be released with stormwater discharges.

Stormwater means stormwater runoff, snow melt runoff, and surface runoff and drainage.

Stormwater discharge associated with industrial activity means the same as in the Clean Water Act and regulations promulgated under that act.

Stormwater discharge from sites of industrial activity means stormwater discharges from industrial facilities that are subject to section 313 of title III of SARA or that have significant materials, raw materials, material handling equipment or activities, intermediate products or industrial machinery exposed to stormwater, except for those industrial facilities which possess their own NPDES permit or are subject to an ADEM general stormwater permit. In addition, this definition also shall include industrial facilities that the director determines are contributing a substantial pollutant loading to the municipal separate storm sewer system.

To the extent practicable, when used in reference to terms and conditions of NPDES permits (other than the NPDES permit issued to the city) and procedures and methods established by federal regulation, means that the director shall defer to these terms, conditions, procedures and methods so long as the city's compliance with its own NPDES permit, or federal or state law is not jeopardized in any manner.

Water Pollution Control Act means the Alabama Water Pollution Control Act of 1972, Code of Ala. 1975, § 22-22-1 et seq., and regulations promulgated under that act.
(Ord. No. 98-3, § 2, 2-12-1998)

Cross reference—Definitions generally, § 1-2.

Sec. 21-332. Intent.

This division is enacted to preserve, protect and promote the health, safety and welfare of the citizens of the city through the reduction, control and prevention of the discharge of pollutants to the city municipal separate storm sewer system. It is the expressed intent of the city council in enacting this division to provide for and promote compliance by the city with federal and state laws governing the discharge of pollutants from the municipal separate storm sewer system and to provide for and promote compliance with an NPDES permit issued to the city for such discharge. The city does not intend for this division to conflict with any existing federal or state law.
(Ord. No. 98-3, § 1, 2-12-1998)

Sec. 21-333. Penalties.

Any person who violates any provision of this division or any provision of a BMP plan approval issued under this division shall be guilty of a violation and, upon conviction, shall be punished as provided by law, including those penalties set forth in Code of Ala. 1975, § 11-45-9.
(Ord. No. 98-3, § 20, 2-12-1998)

Sec. 21-334. Exemption.

The provisions of section 21-340 and subdivision II of this division shall not apply to a discharge or activity specifically authorized by an NPDES permit.
(Ord. No. 98-3, § 16, 2-12-1998)

Sec. 21-335. Existing authorities.

(a) Nothing in this division shall be construed to limit the existing authority of the city to enforce rules and regulations regarding:

(1) Charges, limits and restrictions on the discharge of waste into the sanitary sewer system;

(2) Requirements of the stormwater management manual of the city;

(3) Health or sanitation ordinances of the city enforced by the county health department; or

(4) Ordinances governing the sanitation of premises where animals are kept.

(b) This division shall be cumulative to and in furtherance of any statutory common law, or other legal right, duty, power or authority possessed by the city. Compliance with this division or a BMP plan approval issued under this division shall not excuse any person from compliance with any other federal, state or local law, ordinance, regulation, rule or order.
(Ord. No. 98-3, § 21, 2-12-1998)

Sec. 21-336. Discharge prohibitions.

(a) The illicit discharge of pollutants to the municipal separate storm sewer system by any person is prohibited.

(b) The discharge of pollutants to the municipal separate storm sewer system from sites of industrial activity and high-risk facilities is prohibited except as authorized by a BMP plan approval issued by the director pursuant to section 21-351. The discharge of pollutants to the municipal separate storm sewer system by discharging stormwater associated with industrial activity is prohibited except as authorized by an NPDES permit. Compliance with all terms and conditions of a valid NPDES permit authorizing the discharge of stormwater associated with industrial activity, to the extent practicable, shall be deemed in compliance with the provisions of this division which relate to such discharge.

(c) The spilling, dumping or disposal of materials other than stormwater to the municipal separate storm sewer system is prohibited. The spilling, dumping or disposal of materials other than stormwater in such a manner as to cause the discharge of pollutants to the municipal separate storm sewer system is also prohibited.
(Ord. No. 98-3, § 3, 2-12-1998)

Sec. 21-337. Exceptions to prohibition.

The following discharges are specifically excluded from the prohibitions included in section 21-336:

(1) Water line flushing (including fire hydrant testing).

(2) Landscape irrigation.

(3) Diverted streamflows.

(4) Rising groundwaters.

(5) Uncontaminated groundwater infiltration.

(6) Discharges from potable water sources.

(7) Foundation drains.

(8) Air conditioning condensation.

(9) Irrigation water.

(10) Springs.

(11) Water from crawl space pumps.

(12) Footing drains.

(13) Lawn watering.

(14) Individual residential car washing.

(15) Flows from riparian habitats and wetlands.

(16) Dechlorinated swimming pool discharges.

(17) Street wash water.
(Ord. No. 98-3, § 4, 2-12-1998)

Sec. 21-338. Inspection and monitoring of discharges.

(a) The director may enter and inspect any private property or premises, including but not limited to any private property or premises which is or may be the source of a stormwater discharge associated with industrial activity, or the source of a discharge from a site of industrial activity, or the source of a discharge from a high-risk facility, or the source of an illicit discharge, upon reasonable notice to the person owning the property or premises and the person in possession and during normal business hours, for the purpose of performing investigations regarding the existence and source of contamination and determining from the person responsible for such property or premises or other appropriate individual the methods which are being or will be employed to stop, neutralize, remove or otherwise remedy the contamination, and, as needed, to determine compliance or noncompliance with this division or with the conditions of a BMP plan approval issued pursuant to section 21-351. No person shall refuse entry or access to the director or his authorized representative when he requests entry for the purpose of inspection and presents appropriate

credentials. If requested, the person responsible for such property or premises shall receive a report from the director setting forth the findings of the inspection with respect to compliance status.

(b) The director may require the person responsible for any private property or premises, including but not limited to any private property or premises which is or may be the source of a stormwater discharge associated with industrial activity, or the source of a discharge from a site of industrial activity, or the source of a discharge from a high-risk facility, or the source of an illicit discharge, at that person's expense, to establish and maintain such records, make such reports, install, use and maintain such monitoring equipment or methods, sample such discharge in accordance with such methods, at such locations, and intervals as the director shall prescribe, and provide periodic reports relating to the discharge. To the extent practicable, the director shall recognize and approve the sampling procedures and test methods established by 40 CFR 136.
(Ord. No. 98-3, § 5, 2-12-1998)

Sec. 21-339. Best management practices.

All industrial facilities and high-risk facilities are required to implement, at their own expense, structural and nonstructural BMPs, as appropriate, to prevent the discharge of pollutants to the municipal separate storm sewer system. Further, the director may require any person responsible for property or premises which is or may be the source of a discharge from a site of industrial activity, or the source of a discharge from a high-risk facility, or the source of an illicit discharge, to implement, at that person's expense, additional structural and nonstructural BMPs, as provided in sections 21-351—21-358, to prevent the discharge of pollutants to the municipal separate storm sewer system. To the extent practicable, the director shall recognize and approve the use of appropriate BMPs described or referenced in one or more of the NPDES general permits issued by the ADEM authorizing the discharge of stormwater associated with industrial activity. To the extent practicable, the director shall recognize that storage and handling of significant materials, material handling equipment or activities, intermediate products or industrial machinery in such a manner that they are not exposed to stormwater is an effective BMP. Compliance with all terms and conditions of a valid NPDES permit authorizing the discharge of stormwater associated with industrial activity, to the extent practicable, shall be deemed in compliance with the provisions of this section.
(Ord. No. 98-3, § 6, 2-12-1998)

Sec. 21-340. Good housekeeping practices required.

Commercial areas and industrial facilities shall employ good housekeeping practices to prevent debris such as cigarette butts, paper, bottles, cans, plastic, etc., from entering the municipal separate storm sewer system from areas such as parking lots, loading zones, sidewalks, trash cans and dumpster sites. It shall be unlawful for any person to discharge chemicals, waste products or any pollutant to the parking lot or grounds of a commercial area or an industrial facility.
(Ord. No. 98-3, § 7, 2-12-1998)

Sec. 21-341. Providing false information and tampering prohibited.

(a) It shall be unlawful for any person to provide false information to the director or anyone working under the director's supervision when such person knows or has reason to know that the information provided is false, whether such information is required by this division, any BMP plan approval granted under this division, or any inspection, recordkeeping or monitoring requirement carried out or imposed under this division.

(b) It shall be unlawful for any person to falsify, tamper with or knowingly render inaccurate any monitoring device or method required under this division or a BMP plan approval issued under this division.
(Ord. No. 98-3, § 18, 2-12-1998)

Sec. 21-342. Method of enforcement.

The director, any person acting under his supervision, and sworn law enforcement officers of the city are authorized to issue citations to appear in municipal court to answer charges of violation of any of the provisions of this division. In no

event shall any enforcement action under this division be taken for an alleged violation of this division if any of the following conditions exist:

(1) The ADEM has issued a notice of violation with respect to the same violation and is proceeding with enforcement action;

(2) The ADEM has issued an administrative order with respect to the same alleged violation and is proceeding with enforcement action; or

(3) The ADEM has commenced and is proceeding with enforcement action or has completed any other type of administrative or civil action with respect to the same alleged violation;

however, enforcement action under this division may be pursued for continued or continuing violations, and each day that a violation of this division continues shall be considered a separate violation.
(Ord. No. 98-3, § 19, 2-12-1998)

Secs. 21-343—21-350. Reserved.

Subdivision II. Best Management Practices (BMP) Approval

Sec. 21-351. Application.

(a) Whenever stormwater will be discharged into the municipal separate storm sewer system from a site of industrial activity or a high-risk facility, the person responsible for such site of industrial activity, high-risk facility or discharge, except as such site, high-risk facility or discharge may be expressly excepted from coverage of this division, shall submit an application for BMP plan approval to the director. The application shall be submitted to the director within 60 days of this division's effective date for discharges from sites of industrial activity or high-risk facilities existing or commencing within 60 days of this division's effective date and thereafter at least 30 days prior to the date of any discharge from a site of industrial activity or high-risk facility unless an extension is authorized by the director. The application shall be submitted on forms provided by the director and include any information requested by the director which may be required to describe the discharge or determine the propriety and sufficiency of BMPs to be employed. An application fee of $25.00 shall be paid to the city for each application at the time the application is submitted and shall be nonrefundable.

(b) Upon receipt, and after investigation, of information that pollutants are or may be being discharged to the municipal separate storm sewer system from a site of industrial activity, a high-risk facility or a commercial area, the director shall request, in writing, that the person responsible for such site of industrial activity, high-risk facility, or commercial area which is, or could be, the source of discharge submit an application and the person shall submit the application on forms provided by the director. Such application shall include any information requested by the director which may be required to describe the discharge or determine the propriety and sufficiency of BMPs to be employed. Such application shall be submitted to the director not more than 30 days from receipt of the written request unless an extension is authorized by the director. An application fee of $25.00 shall be paid to the city for each application at the time the application is submitted and shall be nonrefundable.
(Ord. No. 98-3, § 8, 2-12-1998)

Sec. 21-352. Granting and denial of BMP plan approval.

(a) Upon receipt of an application, the director shall issue a notice of BMP plan approval, setting forth the terms and conditions under which the discharge of pollutants to the municipal separate storm sewer system can occur, unless one or more of the following circumstances is found to exist:

(1) The application is incomplete in a material respect;

(2) The application contains false information;

(3) The application relates to an area or subject matter not covered by this division;

(4) The applicant has failed to submit the requisite application fee;

(5) The applicant has a substantial record of noncompliance with this division or a BMP

plan approval issued under this division and has made no reasonable effort to rectify the circumstances or conditions which resulted in the record of noncompliance;

(6) No terms or conditions, including BMPs or other precautions, or combination, required under a BMP plan approval will satisfactorily control the quality of stormwater discharged by the applicant into the municipal separate storm sewer system;

(7) A BMP plan approval previously issued to the applicant was revoked on grounds of substantial noncompliance with this division or a BMP plan approval issued under this division; or

(8) For any other reason if, in the judgment of the director, the issuance of a BMP plan approval is not consistent with the purposes of this division.

(b) Terms and conditions imposed by a BMP plan approval issued under subsection (a) of this section may include, at the holder's expense, the following:

(1) Institution and installation of site-specific monitoring, recordkeeping, and reporting requirements and BMPs;

(2) Submission to inspection requirements, compliance schedules, applicable requirements under federal, state or local laws, regulations, orders or standards;

(3) Limitations on the character or amount of certain pollutants or the characteristics of stormwater discharged into the municipal separate storm sewer system; or

(4) Other terms and conditions as deemed appropriate by the director to ensure compliance with this division or the city's NPDES permit.

(c) If an application is denied, the director shall provide written notice of denial of a BMP plan approval, including the reasons for denial and a statement of the appeal procedure in section 21-358 to the applicant within ten days of the denial. The notice of denial shall be delivered by certified mail/return receipt requested at the address of the responsible person set forth in the application. Denial of a BMP plan approval may be appealed in accordance with the provisions of section 21-358.
(Ord. No. 98-3, § 9, 2-12-1998)

Sec. 21-353. Term of BMP plan approval.

A BMP plan approval issued under this division shall be for a term of three years. Any holder wishing to continue to discharge to the municipal separate storm sewer system beyond the term of a BMP plan approval shall submit an application for renewal of BMP plan approval, on forms provided by the director, at least 60 days prior to the expiration of the BMP plan approval. If the director does not issue a notice of renewal of BMP plan approval prior to the expiration date due to circumstances beyond the control of the holder, the standards and requirements set forth in the expiring BMP plan approval shall remain in full force and effect until such notice of renewal is issued by the director. An expiring BMP plan approval shall not be renewed unless its terms and conditions continue to adequately address the concerns set forth in this division.
(Ord. No. 98-3, § 10, 2-12-1998)

Sec. 21-354. BMP plan approvals nonassignable.

BMP plan approvals are granted to a specific holder for a specific site of industrial activity, high-risk facility or commercial area. The BMP plan approvals do not constitute a property interest and shall not be assigned, conveyed, transferred or sold. A BMP plan approval granted under this division shall be null and void upon attempted assignment, conveyance, transfer or sale.
(Ord. No. 98-3, § 11, 2-12-1998)

Sec. 21-355. Modifications to BMP plan approvals.

A BMP plan approval issued under this division may be modified in order to comply with any federal, state or local law, regulation, order or standard, or when, in the opinion of the director, a modification is necessary to accurately control

changes in the character or amount of pollutants or the characteristics of stormwater discharged into the municipal separate storm sewer system, or any other applicable condition. A holder shall be given a 30-day notice of the impending modification. Deadlines for compliance with the modified requirements shall be determined on a case-specific basis.
(Ord. No. 98-3, § 12, 2-12-1998)

Sec. 21-356. Grounds for revocation of a BMP plan approval.

(a) The director may revoke a BMP plan approval issued under section 21-352 if he determines that one or more of the following conditions exist:

(1) The holder provided false information in obtaining BMP plan approval;

(2) The holder provided false information with respect to any monitoring, record-keeping or reporting requirements or BMPs imposed under this division or a BMP plan approval;

(3) The holder is convicted of violating the provisions of this division;

(4) Any term or condition imposed under a BMP plan approval was not satisfied within the timeframe specified in the BMP plan approval;

(5) Any federal, state or municipal statute, law, ordinance, regulation, order or standard is being violated by the holder;

(6) The holder has refused entry to the director for purposes of inspection or monitoring; or

(7) For any other reason if, in the judgment of the director, the continuance of a BMP plan approval is not consistent with the purposes of this division.

(b) Whenever the director determines that grounds exist for revocation of a BMP plan approval, the director shall serve upon the holder a written notice of proposed revocation, stating the facts or conduct which warrant revocation of the BMP plan approval, and providing the holder with an opportunity to demonstrate or achieve compliance with all lawful requirements by submitting to the director, within ten days of the date of the notice of proposed revocation, written or demonstrative evidence of satisfactory compliance or a written plan for achieving satisfactory compliance.

(c) If the holder fails to respond to a notice of proposed revocation or fails to provide adequate evidence of satisfactory compliance or an adequate written plan for achieving satisfactory compliance, the director shall order the holder to show cause at a hearing why the proposed revocation should not occur. The director shall deliver to the holder a notice of show cause hearing, specifying the time and place of the hearing to be held before the director, the purpose of the hearing, the reasons for the proposed revocation, and directing the holder to show cause why the proposed revocation action should not occur. The notice of show cause hearing shall be delivered to the holder by certified mail/return receipt requested at least ten days before the hearing.

(d) If after the hearing the director determines that the BMP plan approval is due to be revoked, the director shall deliver, by certified mail/return receipt requested, a written notice of revocation to the holder. The notice of revocation shall be effective immediately and shall include a statement of the reasons for revocation and the appeal procedure set forth in section 21-358.
(Ord. No. 98-3, § 13, 2-12-1998)

Sec. 21-357. Emergency suspension of BMP plan approval.

(a) Notwithstanding any other provision of this division, the director may, without notice or hearing, suspend a BMP plan approval issued under this division by delivery to the holder, by hand delivery, certified mail/return receipt requested, or the posting in at least three conspicuous places at the site subject to the BMP plan approval, of a notice of emergency suspension of BMP plan approval. A BMP plan will be suspended under this section only when such suspension is necessary, in the opinion of the director, to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare

of persons or to the environment, or causes interference with the municipal separate storm sewer system or causes the city to violate any condition of its NPDES permit. The notice of emergency suspension of BMP plan approval shall state the grounds for suspension, the corrective action necessary for reinstatement of the BMP plan approval, and a statement of the appeal procedure in section 21-358.

(b) Any holder notified of suspension of a BMP plan approval under this section shall immediately stop activity conducted pursuant to the BMP plan approval. The director shall reinstate the BMP plan approval upon proof of the elimination of the endangering discharge or circumstances.

(c) Emergency suspension of a BMP plan approval may be appealed in accordance with the provisions of section 21-358.
(Ord. No. 98-3, § 14, 2-12-1998)

Sec. 21-358. Appeal of denial, revocation or suspension of BMP plan approvals.

(a) The director of urban development ("urban development director"), or such other city official as the mayor may designate, (hereinafter referred to as "hearing officer") is authorized to hear and decide appeals from a person denied a BMP plan approval required by this division or a holder whose BMP plan approval under this division is revoked or suspended. The appellant may commence the appeal by filing a written notice of appeal, specifying the grounds for the appeal, with the director and the hearing officer within 15 days following receipt of the director's notice of denial, notice of revocation, or notice of suspension.

(b) The hearing officer shall hear and decide such appeal within a reasonable time following his/her receipt of the notice of appeal. The director and appellant shall be notified, in writing of the date and time of such hearing at least five days prior to the scheduled date of the hearing.

(c) At the hearing, the director shall state his grounds for denying, revoking or suspending the BMP plan approval and shall provide any evidence supporting such denial, revocation or suspension. The appellant may appear in person or be represented by an authorized representative. Failure of the appellant to appear in person or through an authorized representative shall be deemed to be a withdrawal of the appeal. Evidence on the appellant's behalf may be presented at such hearing. The hearing officer shall affirm the director's decision if any reason for his denial, revocation or suspension is a valid ground, as set forth in section 21-352, 21-356 or 21-357, respectively, and the existence of such ground is supported by a preponderance of the evidence. The decision of the hearing officer shall either sustain the decision of the director or reverse or vary the decision of the director, specifying the manner in which any variations shall be made, the conditions upon which they are to be made and the reasons. The director and the appellant shall be notified in writing of the hearing officer's decision within five days of the close of the hearing. Every decision of the hearing officer shall be final, subject, however, to such remedy as any aggrieved party may have at law or in equity. Every decision shall be filed in the office of the director.
(Ord. No. 98-3, § 15, 2-12-1998; Ord. No. 20-1062, § 2, 12-17-2020)

Sec. 21-359. Noncompliance with terms or conditions of a BMP plan approval prohibited.

It shall be unlawful to refuse or fail to comply with the terms or conditions of a BMP plan approval issued under this division.
(Ord. No. 98-3, § 17, 2-12-1998)

Chapter 22

SOLID WASTE*

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***Cross references—**Dead animals, § 5-151 et seq.; buildings and building regulations, ch. 7; environmental management, ch. 12; junk, litter and inoperable vehicles, § 12-151 et seq.; litter and garbage on private property, § 12-175; health and sanitation, ch. 14; utilities, ch. 26.

State law references—Solid Waste Disposal Act, Code of Ala. 1975, § 22-27-1 et seq.; local solid waste management programs, Code of Ala. 1975, § 22-27-47; criminal littering, Code of Ala. 1975, § 13A-7-29.

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ARTICLE I. IN GENERAL

Sec. 22-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Acceptable waste means that portion of solid waste characteristic of that collected or disposed of as part of normal municipal solid waste, including without limitation garbage, market refuse, rubbish, ashes, bulky waste, street refuse, construction and demolition waste, and industrial refuse, not including, however, any of the foregoing or other solid waste that constitutes unacceptable waste or hazardous waste; however, if any governmental agency or unit having appropriate jurisdiction shall at any time determine that any substances that were not theretofore acceptable waste because they were considered harmful, toxic or dangerous, are not harmful, toxic or dangerous, then such substances shall thereafter be considered acceptable waste unless they constitute unacceptable waste or hazardous waste; and any substances that were theretofore acceptable waste are harmful, toxic or dangerous, then such substances shall thereafter not be considered acceptable waste. Materials or substances which are discarded or rejected as spent, useless or worthless to the owners, and which have a positive market value for reuse may be excluded from acceptable waste by the owner of the premises when such material is sold and delivered for such reuse, provided that removal and processing shall be in accordance with all applicable laws and regulations and in a manner so as not to create any nuisance upon the premises.

Act means Code of Ala. 1975, tit. 11, ch. 89A (Code of Ala. 1975, § 11-89A-1 et seq.); Act No. 80-278 1980 regular session of the legislature and all amendatory or supplemental acts of the legislature.

Actual acceptance date means the date on which the plant begins accepting for disposal or processing acceptable waste from the public generally, which such date shall be deemed to have occurred only if prior to such date there has been published in a newspaper published and having general circulation in the city a notice specifying such date with particularity.

Agreement means the solid waste and sewage sludge delivery agreement between the authority and the city, the proposed text of which is set out in Ordinance No. 88-418, a signed copy of which is on file and available for public inspection in the office of the director of public works services and in the office of the clerk-treasurer at the city administration building.

Approved receptacle means the collection container provided by the city and where the container is not so provided, shall mean a durable, easily cleanable container with tightfitting lids, doors or covers, so as to be leak-proof, rodent-proof and insect-proof and in the case of containers or receptacles provided for industrial and commercial premises, including, but not limited to, premises designed for or intended for multiple occupancy, who contract with licensed private haulers, no container or receptacle shall be considered approved unless it is serviced and collected with sufficient frequency so as to prevent overflow, spillage and the emanation of offensive odors.

Ashes means residue from fires used for cooking and for heating buildings, and cinders.

Authority means the solid waste disposal authority of the city, a public corporation and instrumentality under the laws of the state.

Authorized disposal facility means any of the following:

(1) The plant;

(2) The existing landfill; and

(3) Any other facility that constitutes an authorized disposal facility within the meaning of the agreement.

Authorized receiving facility means any of the following:

(1) The plant;

(2) The existing landfill; and

(3) Any other facility that constitutes an authorized receiving facility within the meaning of the agreement.

Bonds means the original bonds and the other indenture-secured bonds.

Bulk waste means large auto parts; tires; furniture; large crates; large piles of tree limbs, tree parts or yard waste; or any waste not capable of being containerized. Also known as trash.

Bundle means a packaged bunch or accumulation of waste, bound with string or cord, and placed out by the customer for collection by the city. Bundles must not exceed 48 inches in any dimension or weigh more than 50 pounds.

Business day means each Monday, Tuesday, Wednesday, Thursday and Friday that is not a holiday.

City means the City of Huntsville, Alabama, a municipal corporation under the laws of the State of Alabama, its successors and assigns and, when used with reference to a geographic area, means the area within the corporate limits of the city as they exist at the time and does not include any area outside such corporate limits.

Construction and demolition waste means lumber, roofing and sheathing scraps, dirt, stones, bricks, ceramics, rubble, broken concrete, plaster, conduit, pipe, wire, insulation, carpet or carpet padding, gutters, sheet rock, siding, HVAC, etc.

Containerized collection service means the collection of waste from a premises by the sanitation division by emptying of an approved, specially designed container furnished and distributed by the sanitation division.

Existing landfill means that certain landfill that is located in the city at or near the south end of Leeman Ferry Road and that is now being utilized for the disposal of acceptable waste.

Facilities means the entire solid waste disposal and resource recovery system and facilities of the authority as they may at any time exist, including, without limitation:

(1) The plant;

(2) The existing landfill;

(3) Any other landfills and similar facilities for the storage and disposal of acceptable waste or sewage sludge;

(4) Steam and condensate lines for transmitting to others steam generated by the plant and for returning condensate to the plant;

(5) Facilities for extracting landfill gas from the existing landfill and for pumping and transporting such gas to the plant;

(6) Facilities for the management of sewage sludge from the city's wastewater or sanitary sewage collection and treatment system;

(7) Transfer stations and other similar facilities for the temporary storage of acceptable waste pending transfer to other facilities for disposal or recycling; and

(8) All other facilities, machinery, equipment, properties and interests in properties (real, personal or mixed) owned, leased or otherwise available for use by the authority in the collection, storage, utilization, processing or disposition of acceptable waste and sewage sludge, and all additions, renewals, replacements, enlargements, improvements and extensions.

Garbage means putrescible animal and vegetable waste resulting from the handling, storage, preparation, cooking, serving and consumption of food.

Hazardous waste means:

(1) Any material that by reason of its composition or characteristics constitutes toxic or hazardous waste as defined in either the Solid Waste Disposal Act, as amended (42 USC 6901 et seq.), and the regulations under that act or the Hazardous Waste Management and Minimization Act, as amended (Code of Ala. 1975, § 22-30-1 et seq.), and any regulations under that act;

(2) Special nuclear or byproduct materials within the meaning of the Atomic Energy Act of 1954, as amended;

(3) Polychlorinated biphenyls, as described in section 6(e) of the Toxic Substance Control Act (15 USC 2605(c)); or

(4) Any other material that may present a substantial danger to health or safety or has a reasonable possibility of adversely affecting the operation of the facilities;

However, if any governmental agency or unit having appropriate jurisdiction shall at any time determine that substances that were not theretofore considered harmful, toxic or dangerous are harmful, toxic or dangerous, then such substances shall thereafter be considered hazardous waste.

Holiday means New Year's Day, Martin Luther King Day, Memorial Day, Independence Day, Labor Day, Veterans Day, Thanksgiving, Christmas and not exceeding two other days during each calendar year as shall from time to time be designated by the authority, with the consent of the city, as holidays.

Indenture means the trust indenture between the authority and a trustee and under which the bonds are authorized to be issued.

Industrial refuse means solid or semisolid waste resulting from industrial processes and manufacturing operations, such as food processing wastes, boiler and house cinders, wood, plastic, metal scraps and shavings, byproducts accumulated as a result of treatment of liquid waste, etc.

Litter means all solid waste that can be or is subject to being blown or carried from place to place by the elements.

Market refuse means putrescible animal and vegetable waste from the handling, storage and sale of produce and meats.

Original bonds means the authority's solid waste disposal and resource recovery revenue bonds, series 1988, authorized to be issued under the indenture in one or more series to finance the facilities.

Other indentured-secured bonds means any of the following (if and to the extent that they are issued under and secured by the indenture):

(1) Any bonds, and any notes or other securities or obligations, that may, subsequent to the issuance of the original bonds, be issued by the authority to complete, improve, extend or replace any of the facilities, or to acquire, construct, complete, improve, extend or replace any other facilities (including transfer stations and landfills) for the storage, processing or other disposal of acceptable waste; and

(2) Any bonds, notes or other securities or obligations that may, subsequent to the issuance of the original bonds, be issued by the authority for the purpose of refunding any of the original bonds or any of the bonds, notes or other securities or obligations referred to in subsection (1) of this definition or for the combined purpose of refunding any such original bonds, or other bonds, notes or other securities or obligations and of acquiring, constructing, completing, improving, extending or replacing any of the facilities or any other facilities (including transfer stations and landfills) for the storage, processing or other disposal of garbage, refuse or other waste.

Plant means that certain plant or facility that is to be located on a 20-acre site approximately 1¾ miles south of Drake Avenue and bounded on the east by Triana Boulevard and on the south by the bed of the dismantled L & N Railroad and that is to be used for receiving, separating and sorting garbage, refuse and other waste and for producing steam by incinerating such garbage, refuse and other waste, as well as sewage sludge, landfill gas, oil, or other fossil fuels.

Premises designed or intended for multiple occupancy means any building or portion of a building, which is occupied as the home or residence of one or more families living independently of each other and doing their own cooking in the building, and shall include but is not limited to apartment complexes. For purposes

of this definition, the term "family" means one or more persons living together, whether related by birth, marriage or adoption, and having common housekeeping facilities.

Receiving time means the period from 7:00 a.m. until 3:30 p.m. on each business day; the period from 7:00 a.m. until 12:00 noon on each Saturday that is not a holiday; and any additional or substitute period that may at the time have been established by the authority, with the consent of the city, as a time when any particular authorized receiving facility or authorized disposal facility shall be open for the dumping, deposit or disposal of acceptable waste from the public generally.

Rubbish means paper, cardboard, cartons, wood, boxes, excelsior, plastics, rags, cloth, bedding, leather, rubber, metals, tin cans, metal foils, crockery, glass bottles and other mineral refuse.

Sanitation division means the sanitation division of the department of public works of the city.

Solid waste means all nonliquid materials or substances that are generally discarded or rejected as being spent, useless or worthless to the owners at the time of such discard or rejection, including (without limitation) garbage, trash, refuse, industrial and commercial waste, rubbish, ashes, contained gaseous materials, incinerator residue, and construction and demolition waste.

Street refuse means street sweepings, dirt, leaves, catch basin dirt and contents of litter receptacles.

System means the "Huntsville, Alabama, Solid Waste Collection and Disposal System" created in section 22-3.

Unacceptable waste means any solid waste or portion of solid waste that is not acceptable waste or hazardous waste, including (without limitation) sewage sludge other than from the city's wastewater or sanitary sewer system, herbicides or pesticides, gaseous products and their containers (except household types), scrap motor vehicles, scrap boats, utility trailers, pharmaceutical products (other than those for normal household use) and pathological wastes.

White goods means refrigerators, stoves, dishwashers, clothes washers, clothes dryers, other large appliances, etc.

Yard waste means grass, leaves, yard trimmings, shrubbery clippings, trees, branches, palm fronds, and all other miscellaneous vegetation.
(Ord. No. 94-236, § 1, 4-21-1994; Ord. No. 97-817, § 1, 12-11-1997; Ord. No. 99-88, § 1, 1-28-1999; Ord. No. 15-416, § 1, 6-25-2015; Ord. No. 24-784, § 1, 10-24-2024)

Cross reference—Definitions generally, § 1-2.

Sec. 22-2. Findings.

The city council has ascertained and does find, determine and declare as follows:

(1) That the removal, storage, transportation, utilization and disposal of solid waste are matters of serious public concern affecting the public health and welfare;

(2) That the health, safety and welfare of the people of the city require efficient waste removal and disposal service and also efficient utilization of acceptable waste, with such removal, disposal and utilization being under controlled conditions;

(3) That as a result of the growth of the city, the density of its population, environmental considerations and other factors, it has become increasingly difficult to find suitable areas within reasonable proximity to the city for the location of landfills or other similar facilities for the storage and disposal of solid waste;

(4) That there exists a need to develop alternative sources of energy in order to reduce dependence on petroleum products, natural gas, nuclear and hydroelectric power;

(5) That solid waste represents a potential source of fuel that can be converted into energy and that there exists technology to produce usable energy from solid waste;

(6) That solid waste disposal authorities organized under the provisions of the act are vested with power to acquire, construct, equip, finance and operate

facilities for the collection, storage, processing and disposal of solid waste and for the production of usable energy from solid waste;

(7) That the city council did, in its Resolution No. 85-81 adopted on February 14, 1985, find and determine that it was wise, expedient and necessary that the authority be formed and authorize the authority to be incorporated in accordance with the act;

(8) That the authority has been organized and incorporated and the city council has appointed persons to serve on its board of directors;

(9) That the authority is now exercising the powers vested in it by the act;

(10) That the authority has acquired and is operating the existing landfill and has acquired, constructed, and equipped and is operating the plant and certain appurtenant and related facilities, all primarily for the processing and/or disposal of all acceptable waste generated by residents of and generated by all businesses and institutions located in the city and for the production of salable steam from such waste;

(11) That in order to finance the costs of acquiring, constructing and equipping the plant and certain appurtenant and related facilities, the authority has issued the original bonds, which are revenue bonds payable solely from authority revenues that are derived primarily from the sale of steam and from tipping fees and other user charges for the disposal of waste at authority facilities;

(12) That the acceptable waste that the city anticipates collecting with its own forces and equipment through the operation of its solid waste collection system, referred to in section 22-3(1), is not expected to be sufficient to provide for the most efficient and economical operation of the plant;

(13) That a substantial amount of acceptable waste generated by businesses and institutions located in the city is now collected by so-called private collectors or haulers through the operation of that part of the system referred to in section 22-3(2);

(14) That to provide an efficient system for the removal of waste from premises within the city, and to assure and enhance the marketability of the original bonds, and any other indenture-secured bonds that the authority may issue, it is necessary that the authority have available at all times an adequate supply of waste from which salable steam may be generated at the plant;

(15) That to accomplish the ends referred to in subsection (14) of this definition, the city council has, in Ordinance No. 88-418, authorized the execution and delivery (on the part of the city) of the agreement, which obligates the city, subject to certain exceptions and conditions, to deliver to the authority for disposal and processing at the plant or for disposal at the existing landfill or other authorized disposal facility all acceptable waste collected through the operation of the city's solid waste collection system referred to in section 22-3(1) and to cause all acceptable waste that is generated, occurs or accumulated in the city and that is collected through the operation of that part of the system operated by so-called private collectors or haulers, referred to in section 22-3(2), also to be so delivered to the authority, for disposal or processing;

(16) That the city has the power under existing law (including, without limitation, Code of Ala. 1975, tit. 22, ch. 27 (Code of Ala. 1975, § 22-27-1 et seq.)) to regulate the storage, removal, collection, transportation and disposal of solid waste as provided in this chapter; and

(17) That in order to secure an adequate supply of acceptable waste to operate the plant, to promote the efficient and economical operation of the facilities, to

assure timely payment of debt service on the bonds, to provide a substantially uniform and compulsory system for the removal, transportation and disposal of solid waste and thereby protect the public health, safety and welfare of the people of the city and its environs, to prevent obstructions in the streets, to promote the economic welfare of the city by maintaining a healthy and aesthetically pleasing environment, and to assure that the public streets, avenues, alleys and other public ways of the city are used by any licensed private haulers for the purpose of removal or transporting solid waste in a manner consistent with these objectives, it is necessary generally to provide comprehensively for the storage, removal, transportation, disposal and regulation of solid waste generated, occurring or accumulating within the city and specifically to require all acceptable waste that occurs or accumulates or is generated in the city and that is collected by such licensed private haulers to be delivered to the authority for disposal or processing.

(Ord. No. 94-236, § 2(20-255), 4-21-1994)

State law reference—Authority to provide for solid waste collection and disposal, Code of Ala. 1975, §§ 11-47-135, 22-27-3.

Sec. 22-3. System created.

There is created for the city a system to provide for the storage, removal, transportation, disposal and regulation of solid waste generated or occurring within the city, such system to be known as the Huntsville, Alabama, Solid Waste Collection and Disposal System. The system shall be composed of the following components:

(1) The solid waste removal and collection system operated by the sanitation division, for the collection and transportation of acceptable waste from the premises of single-family and multiple-family residences, apartments, commercial and industrial premises and other public and private premises. The sanitation division primarily provides waste collection and disposal for single-family residential properties within the city limits. Premises designed or intended for multiple residential occupancy and all other commercial properties are intended to be served by private collection and hauling services. At the discretion of the director of public works, on a very limited basis, multi-occupancy residential or commercial premises may be served by the sanitation division.

(2) Those vehicles and other facilities and properties operated, for the removal and transportation of solid waste from certain apartment, commercial and industrial premises, by so-called private collectors or haulers licensed or franchised by the city pursuant to law, this chapter, or any pertinent ordinance of the city (it being understood that such private collectors or haulers are not, and shall not be, agents of the city in any respect but are and shall be subject to regulation by the city as provided in this chapter and in any ordinance of the city at the time in force and effect); and

(3) The facilities of the authority for the disposal of acceptable waste, including, without limitation, any authorized disposal or receiving facility owned, controlled or used by the authority for the purpose of disposing of acceptable waste by incineration, landfilling, recycling or otherwise, and any other facilities as defined in this chapter.

(Ord. No. 94-236, § 3(20-257), 4-21-1994; Ord. No. 24-784, § 2, 10-24-2024)

Secs. 22-4—22-30. Reserved.

ARTICLE II. LITTER AND RELATED ISSUES*

Sec. 22-31. Penalties.

Any person who violates or fails or refuses to obey or comply with any provision of this article

*__State law reference—__Criminal littering, Code of Ala. 1975, § 13A-7-29.

shall, upon conviction, be punished, in addition to such other punishment, including a term of community service, as may be provided by the court, by minimum fines and penalties as follows:

(1) For a first conviction of $100.00 or by imprisonment for not more than ten days;

(2) For conviction of a second offense committed within one year after the date of the first offense, by a fine of $200.00 or by imprisonment for not more than 30 days or by both such fine and imprisonment;

(3) For conviction of a third or subsequent offense committed within one year after the date of the first offense, by a fine of $500.00 or by imprisonment for not more than three months or by both such fine and imprisonment.

(Ord. No. 97-817, § 7, 12-11-1997)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 22-32. Presumption.

If an article of solid waste bearing a person's name is discovered on any public property not designated for the throwing, dumping or depositing of solid waste, including public streets, sidewalks, gutters, alleys, bodies of water, drainage ditches, storm sewers, sanitary sewers, or other property over or with respect to which the city has an easement, or on private property of another without such person's permission, a rebuttable, prima facie presumption shall arise that the person whose name appears on the article threw, dumped, attached, placed, deposited or otherwise caused the article to be thrown, dumped, attached, placed or deposited at the place where it was found; however, this presumption, if unrebutted at trial, shall not serve as a basis for a conviction for violation of any provision of this chapter in the absence of other evidence of such nature and degree as required by law.

(Ord. No. 97-817, § 8, 12-11-1997)

Sec. 22-33. Maintenance of premises.

It shall be unlawful for the owner or person in control of any private property within the city to fail to maintain the premises free of any solid waste that would tend to attract children and endanger their lives and health, spread disease, invite plundering, attract vagrants, and create fire hazards or other safety or health hazards.

(Ord. No. 94-236, § 4(20-259), 4-21-1994)

Sec. 22-34. Unlawful accumulations in residential sections.

(a) It shall be unlawful for an owner of property in any residential section within the city to allow to remain on such premises any unsightly and dangerous walls, any abandoned construction of any kind or nature, any stacks or piles of building materials not presently being used on such premises in construction, any motor vehicles not in usable condition, or any parts or pieces of motor vehicles when any of such items are exposed to the view of the general public.

(b) Any construction shall be presumed to have been abandoned if work has been discontinued for a period of at least 90 days, irrespective of whether a valid permit is then in existence for such construction.

(Ord. No. 94-236, § 4(20-260), 4-21-1994)

Sec. 22-35. Refrigerators, similar containers.

It shall be unlawful for any person to place for removal or collection, or to leave in any place accessible to children, any icebox, refrigerator or other container of any kind (including, without limitation, garbage or trash containers) that is large enough to enclose a human being and that has a snaplock or other similar device without first removing such snaplock, other device or doors from such icebox, refrigerator or container or providing a device that will allow the door to be operated from inside such icebox, refrigerator or container.

(Ord. No. 94-236, § 4(20-261), 4-21-1994)

Sec. 22-36. Litter and dumping.

(a) It shall be unlawful for any person to throw, dump, place, leave or deposit litter, refuse, paper, rubbish, debris, brush, tree removal debris,

boxes, tools, scrap iron, machinery, construction or demolition waste, scrap or waste material, or other trash or debris on public property, including, but not limited to, a city right-of-way, road or other public thoroughfare, or on private property within the city, irrespective of whether such private property is owned by such person; however, the owner or person in control of such private property may utilize authorized private containers in such a manner that such material will be prevented from being carried or deposited by the elements onto any street, sidewalk or other public place or private property; however, such material shall be permitted on such public or private property when it is properly placed for collection, as provided by this chapter.

(b) It shall be unlawful for the owner or person in control of any private property within the city to fail to maintain the premises free of litter, scrap or waste material.

(c) It shall be the duty of all persons owning or occupying a building or lot within any business district of the city to sweep or clean the sidewalks and alleys adjacent to such building or lot so as to remove all solid waste or filth and to maintain the cleanliness of the premises.

(d) It shall be unlawful for any person to throw, dump, place, leave, deposit or dispose of solid waste at any site other than at a facility permitted by ADEM to accept the type of waste being offered for disposal or to store, collect, transport, process, dispose of, sell or offer for sale solid waste or salvage materials so as to create a nuisance or unless properly licensed to perform this type of work.
(Ord. No. 94-236, § 2, 12-11-1994; Ord. No. 97-817, § 2, 12-11-1997)

Sec. 22-37. Depositing solid waste in streets or gutters.

It shall be unlawful for any person to sweep or deposit into the public streets, sidewalks, gutters or alleys in the city, or other property in the city over or with respect to which the city or the public has an easement, any solid waste or any other material or article that would tend to impede the flow of water in such gutters or along such streets, sidewalks, alleys or other property; to clog the storm drainage system; or to be an obstruction to traffic or pedestrians.
(Ord. No. 94-236, § 4(20-263), 4-21-1994)

Cross reference—Streets, sidewalks and other public places, ch. 23.

Sec. 22-38. Depositing solid waste in ditches or sewers.

It shall be unlawful for any person to throw, sweep, dump or otherwise deposit in or around the public drainage ditches, storm sewers or sanitary sewers of the city any solid waste or any other article or material that would tend to impede the flow of water or that would tend to clog such ditches, storm sewers or sanitary sewers.
(Ord. No. 94-236, § 4(20-264), 4-21-1994)

Sec. 22-39. Depositing of handbills.

(a) *Definitions*. The following words, terms, and phrases, when used in this section, shall have the following meanings ascribed to them, except where the context clearly indicates a different meaning:

Deposit means to deposit, drop, throw, distribute, deliver, or place in or upon real or personal property.

Handbill means any form of printed or written matter, including commercial or non-commercial handbills, handouts, fact sheets, advertisements, circulars, leaflets, folders, pamphlets, pictures, newspapers, magazines, or literature. The term does not include mail from the United States Postal Service or legal notices that are required by law to be posted on property.

Person in control means an owner, occupant, tenant, or person otherwise in possession or control of private premises, or those authorized to act on their behalf, including as agents, trustees, or guardians.

Private premises means occupied or unoccupied private land, any buildings, structures, or improvements thereto, and that portion of the public right-of-way adjacent to the property that the person in control of the property maintains

Vehicle means a motorized or non-motorized vehicle.

(b) *Depositing handbills on vehicles*. It shall be unlawful for any person to deposit any handbill upon a vehicle that is not their own or in their possession and that is parked or otherwise located upon any private property or public street, highway, sidewalk, road, alley, park, or other public property within the city; however, such matter may be transmitted directly to the owner, occupant, or other person then present that is willing to accept the handbill.

(c) *Depositing handbills on private premises*.

(1) It shall be unlawful for any person to deposit any handbill in or upon any private premises within the city; however, subject to subsections (d) and (e) below, such handbill may be transmitted directly to the person in control of the private premises or other person then present in or upon such private premises that is willing to accept it or may be deposited in a box, container, or manner to prevent such handbill from being scattered, blown, carried, or otherwise subjected to the elements.

(2) Notwithstanding anything to the contrary in this section, it shall be unlawful for any person to knowingly deposit an unsolicited handbill in or upon private premises that are vacant or unoccupied where it is apparent that such property is unoccupied or where it is apparent that handbills deposited on previous days have not been removed.

(d) *Refusal to accept unsolicited handbills by posting private residential premises*.

(1) *Posting of notice*. The person in control of private residential premises within the city may refuse to accept unsolicited handbills in advance by posting on said premises, in a conspicuous, readily visible location, a sign of sufficient size bearing the words "No Handbills," "No Trespassing," "No Solicitation," or words of similar import.

(2) *Effect of notice*. Any such sign so exhibited shall constitute sufficient notice to any person that the person in control of the posted private residential premises is unwilling to accept unsolicited handbills.

(3) *Duty to abide by notice*. It shall be the duty of every person that intends to deposit unsolicited printed materials on private residential premises in the city to first examine for the notice provided for in this subsection (d) and, if one is found to exist, it shall be unlawful to deposit unsolicited handbills in or upon such premises.

(e) *Refusal to accept unsolicited handbills on private residential premises by advance notice*.

(1) In addition to or in lieu of posting the premises in accordance with subsection (d) above, a person in control of private residential premises may provide advance written notice, as prescribed in subsection (2) below, to the responsible person that they are unwilling to accept unsolicited handbills on their premises.

(2) Written notice shall: (i) be sent by certified mail, return receipt requested, to the responsible person, (ii) state the name and contact information of the person providing the notice, (iii) state the purpose of the notice, and (iv) give the street address of the private residential premises. The notice shall become effective 14 days after receipt of the request and shall, unless renewed in December of each year for the next calendar year, expire at the end of each calendar year.

(3) After the notice becomes effective, it shall be unlawful for the responsible person to deposit or allow or cause to be deposited unsolicited handbills in or upon the private residential premises identified in the notice.

(4) The person in control of the private residential premises that sent the notice provided for in this subsection shall be responsible for initiating the enforcement of a violation of this subsection (e).

(f) It shall also be unlawful for any person to attach or affix in any manner or cause the attachment of any handbill to any property, real or personal, public or private, without the consent of the owner, except as may be otherwise permitted by this section or this Code.
(Ord. No. 94-236, § 4, 4-21-1994; Ord. No. 97-817, § 3, 12-11-1997; Ord. No. 15-416, § 2, 6-25-2015)

Sec. 22-40. Segregation of garbage from other waste.

(a) It shall be the responsibility of the customer to segregate uncollectible material from garbage, yard waste and other permitted household and commercial refuse. It shall be unlawful for any person to deposit or knowingly permit to be deposited waste unacceptable for collection in any approved container provided or intended for garbage or yard waste.

(b) It shall be the responsibility of the customer to segregate yard waste from garbage and other permitted household and commercial refuse. It shall be unlawful for any person to combine yard waste and garbage in any approved container provided or intended for garbage or yard waste collection.
(Ord. No. 94-236, § 4(20-266), 4-21-1994)

Sec. 22-41. Litter in bodies of water.

(a) It shall be unlawful for any person to throw, sweep, dump or otherwise deposit in or around any public lake, stream or body of water of

or is required to maintain, including sidewalks, alleys, and yards. The term includes private residential premises.

Private residential premises means private premises improved with a residential dwelling, whether occupied or unoccupied, including accessory structures and improvements, the driveway or walkway leading to the dwelling, and that portion of the public right-of-way that the person in control of the property maintains or is required to maintain, including the sidewalk and yard.

Responsible person means the person for whom the unsolicited handbills are being deposited, including the publisher, advertiser, promoter, fundraiser, candidate, advocate, or seller.

Unsolicited handbills mean handbills deposited or intended to be deposited on private premises without the consent of the person in control of the premises.

Vehicle means a motorized or non-motorized vehicle.

(b) *Depositing handbills on vehicles*. It shall be unlawful for any person to deposit any handbill upon a vehicle that is not their own or in their possession and that is parked or otherwise located upon any private property or public street, highway, sidewalk, road, alley, park, or other public property within the city; however, such matter may be transmitted directly to the owner, occupant, or other person then present that is willing to accept the handbill.

(c) *Depositing handbills on private premises*.

(1) It shall be unlawful for any person to deposit any handbill in or upon any private premises within the city; however, subject to subsections (d) and (e) below, such handbill may be transmitted directly to the person in control of the private premises or other person then present in or upon such private premises that is willing to accept it or may be deposited in a box, container, or manner to prevent such handbill from being scattered, blown, carried, or otherwise subjected to the elements.

(2) Notwithstanding anything to the contrary in this section, it shall be unlawful for any person to knowingly deposit an unsolicited handbill in or upon private premises that are vacant or unoccupied where it is apparent that such property is unoccupied or where it is apparent that handbills deposited on previous days have not been removed.

(d) *Refusal to accept unsolicited handbills by posting private residential premises*.

(1) *Posting of notice*. The person in control of private residential premises within the city may refuse to accept unsolicited handbills in advance by posting on said premises, in a conspicuous, readily visible location, a sign of sufficient size bearing the words "No Handbills," "No Trespassing," "No Solicitation," or words of similar import.

(2) *Effect of notice*. Any such sign so exhibited shall constitute sufficient notice to any person that the person in control of the posted private residential premises is unwilling to accept unsolicited handbills.

(3) *Duty to abide by notice*. It shall be the duty of every person that intends to deposit unsolicited printed materials on private residential premises in the city to first examine for the notice provided for in this subsection (d) and, if one is found to exist, it shall be unlawful to deposit unsolicited handbills in or upon such premises.

(e) *Refusal to accept unsolicited handbills on private residential premises by advance notice*.

(1) In addition to or in lieu of posting the premises in accordance with subsection (d) above, a person in control of private residential premises may provide advance written notice, as prescribed in subsection (2) below, to the responsible person that they are unwilling to accept unsolicited handbills on their premises.

(2) Written notice shall: (i) be sent by certified mail, return receipt requested, to the responsible person, (ii) state the name

and contact information of the person providing the notice, (iii) state the purpose of the notice, and (iv) give the street address of the private residential premises. The notice shall become effective 14 days after receipt of the request and shall, unless renewed in December of each year for the next calendar year, expire at the end of each calendar year.

(3) After the notice becomes effective, it shall be unlawful for the responsible person to deposit or allow or cause to be deposited unsolicited handbills in or upon the private residential premises identified in the notice.

(4) The person in control of the private residential premises that sent the notice provided for in this subsection shall be responsible for initiating the enforcement of a violation of this subsection (e).

(f) It shall also be unlawful for any person to attach or affix in any manner or cause the attachment of any handbill to any property, real or personal, public or private, without the consent of the owner, except as may be otherwise permitted by this section or this Code.
(Ord. No. 94-236, § 4, 4-21-1994; Ord. No. 97-817, § 3, 12-11-1997; Ord. No. 15-416, § 2, 6-25-2015)

Sec. 22-40. Segregation of garbage from other waste.

(a) It shall be the responsibility of the customer to segregate uncollectible material from garbage, yard waste and other permitted household and commercial refuse. It shall be unlawful for any person to deposit or knowingly permit to be deposited waste unacceptable for collection in any approved container provided or intended for garbage or yard waste.

(b) It shall be the responsibility of the customer to segregate yard waste from garbage and other permitted household and commercial refuse. It shall be unlawful for any person to combine yard waste and garbage in any approved container provided or intended for garbage or yard waste collection.
(Ord. No. 94-236, § 4(20-266), 4-21-1994)

Sec. 22-41. Litter in bodies of water.

(a) It shall be unlawful for any person to throw, sweep, dump or otherwise deposit in or around any public lake, stream or body of water of the city any solid waste or any other article or material that would tend either to impede the flow of water or clog such bodies of water or otherwise detract from the environmental quality or aesthetics of the area.

(b) It shall be unlawful for any person to throw, drop, dump or deposit litter or any foreign material in any fountain, pond, lake, stream, bay or any other body of water in or adjacent to a public park or elsewhere within the city.
(Ord. No. 97-817, § 4, 12-11-1997)

Sec. 22-42. Demolition and construction waste.

(a) It shall be unlawful for any construction or demolition contractor to fail to provide on-site containers for loose debris, paper, building material waste, scrap building material, and other trash produced by those working on the site. The manager of inspection or his designee shall have the authority to determine the number of containers necessary to provide proper containerization.

(b) Dirt, mud, demolition and construction waste, and other debris, whether located upon public or private property, shall be removed on a continuing basis as produced on the premises or in relation to a demolition or construction project; and in no case shall such waste remain on or near the premises or in relation to a demolition or construction project for a period longer than 30 days. Construction sites, and demolition and construction materials and wastes on such sites, shall be kept in a clean, litterfree and orderly condition at all times. The occupant of each premises or the contractor of a construction or demolition project shall collect and remove or arrange for the collection and removal of all demolition and construction waste produced on such premises or in relation to a demolition or construction project. In cases where the occupant or contractor arranges for collection and removal of demolition and construction work, such collection and removal must be conducted by a solid waste collector using a solid waste collection

vehicle licensed by the city for such collection. Such demolition and construction waste shall be disposed of at a facility permitted by ADEM to accept the type of waste being offered for disposal, whether such facility is operated by the city or privately. Any solid waste collector licensed for the purpose of offering collection service for demolition and construction waste may offer such services in accordance with the schedule of charges such collector determines to be appropriate.

(c) No person shall transfer responsibility or financial liability for disposal of demolition or construction waste by depositing the waste upon any public street, other public place or private parcel, lot premises, litter receptacle or refuse receptacle, except as otherwise authorized by sections 22-71 and 22-80. Any permit granted for construction/demolition may be subject to a stop work order at any time for failure to comply with the requirements of this subsection. No certificate of occupancy shall be issued for multifamily, commercial or industrial development until these materials are removed by the owner or contractor.

(Ord. No. 97-817, § 5, 12-11-1997)

Cross reference—Buildings and building regulations, ch. 7.

Sec. 22-43. Home composting.

It shall be unlawful for any person to engage in home composting operations in such a manner so as to create a nuisance or danger to public health, sanitation or welfare.

(Ord. No. 97-817, § 6, 12-11-1997)

Secs. 22-44—22-70. Reserved.

ARTICLE III. STORAGE AND COLLECTION*

Sec. 22-71. Containers.

(a) *Required.*

(1) Every person in possession, charge or control of any premises within the city where any solid waste is created or accumulated which is collected and disposed of by the sanitation division, shall cause all such material to be placed in the container provided by the city, except as required for leaves, grass clippings, yard waste and other bulk waste as provided in section 22-75, section 22-82 of this article and section 22-182 and section 22-183 of article VI. The sanitation division shall not collect waste placed in any container other than that provided by the city.

(2) Persons disposing of their own solid waste pursuant to Code of Ala. 1975, § 22-27-3(g) shall cause all such materials to be placed in approved receptacles during collection, transportation and disposal at approved solid waste collection facilities.

(3) Every person, owner, tenant and/or property management company (or their agent) in possession, charge or control of any premises within the city where any solid waste is created or accumulated, and which contracts or permits contracting with licensed private haulers shall cause all such material to be placed in approved receptacles.

(b) *Containerized collection service.*

(1) Customers served by the city's sanitation division shall use a specified collection container for the collection and removal of solid waste, such container to be distributed by the city at no cost to the customer. The container shall remain the property of the city and shall not be removed from the property when a customer changes residences or tenants vacate the premises as the container is assigned to the property address by an identifying number.

(2) If a container is lost by theft, or damaged beyond use by any means other than by the customer's own neglect or misuse, a container shall be replaced by the city at no cost to the customer. If a container is lost by theft, the customer must file a report with the police department before

*__State law reference—__Authority to provide for solid waste collection, Code of Ala. 1975, §§ 11-47-135, 22-27-3.

the city will replace the container. If the container is lost or damaged beyond use as a result of the customer's neglect or misuse, a designated fee will be charged by the city for a replacement container.

(3) The customer shall promptly notify the city sanitation division in the event of the need for repair to or replacement of a container.

(4) On scheduled collection days, collection containers shall be placed within three feet of the street curb or edge of the road, or in a location designated by the sanitation division. All containers must be placed so as to face in the proper direction and so as not to obstruct the collection vehicle. Container lid must be kept closed at all times to prevent any accumulation of water. Bags, boxes or other items shall not be placed on top of the closed container lid.

(5) Solid waste placed in the container must be containerized in either plastic or paper bags to prevent the contents from being displaced by the elements when the container is being emptied.

(6) It shall be unlawful to overload containers in a manner which is likely to cause damage to the collection vehicle or the container, create a litter condition, or impede collection.

(7) The city sanitation division shall not collect solid waste on or around containers except as specifically provided in this subsection. If additional refuse is generated on the premises that cannot be accommodated by regularly scheduled service in the city-provided containers, the customer may request and use additional containers up to a maximum of four containers per household or premises. Waiver of the four-container limitation shall be at the sole discretion of the director of public works.

(c) *Use by other customers.* It shall be unlawful for any person to place or deposit any solid waste generated elsewhere in or around a refuse container owned or provided for the use of another customer.

(d) *Spilling or scattering contents.* It shall be unlawful for any person to interfere with the contents of any container set out for removal by the city or any private collection agency in such a manner that the contents of the container are left spilled out or scattered on public or private property.

(e) *Damage to or destruction of.* It shall be unlawful for any person to damage or destroy any container placed at the curbside for collection.

(f) *Violation of section; penalties.* Any person who violates or fails or refuses to obey or comply with any subsection of this section shall upon conviction be punished, in addition to such other punishment, including a term of community service, as may be provided by the court, by minimum fines and penalties:

(1) For a first conviction of $100.00 or by imprisonment for not more than ten days;

(2) For conviction of a second offense committed within one year after the date of the first offense, by a fine of $200.00 or by imprisonment for not more than 30 days or by both such fine and imprisonment;

(3) For conviction of a third or subsequent offense committed within one year after the date of the first offense, by a fine of $500.00 or by imprisonment for not more than three months or by both such fine and imprisonment.

(Ord. No. 94-236, § 5(20-271), 4-21-1994; Ord. No. 97-817, §§ 9—11, 12-11-1997; Ord. No. 99-88, § 2, 1-28-1999; Ord. No. 24-784, § 3, 10-24-2024)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 22-72. Commercial and industrial bulk rubbish collection.

It shall be the duty of every person in possession, charge or control of any commercial or industrial place of business where the volume of combustible rubbish makes the use of curbside collection impracticable to utilize approved receptacles designed for the storage and collection of such rubbish.

(Ord. No. 94-236, § 5(20-272), 4-21-1994)

Sec. 22-73. Reserved.

Editor's note—Ord. No. 24-784, § 4, adopted Oct. 24, 2024, repealed § 22-73, which pertained to bailers and compactors and derived from Ord. No. 94-236, § 5(20-273), Apr. 21, 1994.

Sec. 22-74. Wastes from businesses not placed in city containers.

It shall be unlawful for any person operating a place of business, or any employee of such person, to place or deposit, in any waste container that is furnished and maintained upon a public street or sidewalk by the city for the convenience of the walking public, garbage, rubbish or other waste material accumulated at such place of business except in such cases where the city provides a container for specific use by a particular business.
(Ord. No. 94-236, § 5(20-274), 4-21-1994)

Sec. 22-75. Bulk waste, white goods and yard waste.

(a) All bulk waste, white goods or loose yard waste to be removed by the sanitation division from private residences shall be placed either between the sidewalk and curb or in an accessible place approved by the sanitation division. Tree limbs shall be cut in lengths not exceeding five feet in length, with protruding branches trimmed. All such waste shall be placed in an orderly, neat manner adjacent to that portion of the street right-of-way normally used by vehicles so as not to obstruct sidewalks or the flow of traffic or water. All bulk waste, white goods and loose yard waste shall be collected weekly. All such waste not removed by the city must be delivered by the owner to an authorized receiving facility.

(b) It shall be unlawful for any tree removal contractor, licensed or otherwise, to leave or deposit tree or limb removal debris at curbside for the city to remove. All contractors doing business in the city shall collect and remove or arrange for the collection and removal of tree or limb removal debris to a facility permitted by ADEM to accept this type of waste, whether such facility is operated by the city or privately.

(c) It shall be unlawful to place for removal bulk waste, white goods or loose yard waste between utility poles and utility pole support cables, under trees, under low utility wires; around, adjacent to, or on top of fire hydrants; or adjacent to fences or building.

(d) Leaves and grass clippings shall be containerized (bagged) and placed for pickup on the designated collection day for that property. Leaves shall be placed in tied, closed, or sealed bags, and placed adjacent to that portion of the street right-of-way normally used by vehicles and in a location and manner so as to not obstruct the flow of storm drainage runoff in gutters and ditches. Each bag shall not exceed 50 pounds in weight.

(e) Shrubbery clippings and other small miscellaneous vegetation, including garden vegetation, if tied in bundles, shall not exceed 50 pounds in weight or 48 inches in any dimensions, and, if containerized (bagged), shall not exceed 50 pounds in weight.

(f) If customers choose to place waste out for collection in bundles, the bundles must not have any dimension greater than 48 linear inches or weigh more than 50 pounds.

(g) Cardboard or pasteboard boxes or other similar containers may be placed out for noncontainerized collection if because of their size or quantity they would be impractical to contain. Cardboard or pasteboard boxes or other similar containers shall be prepared in a manner so as not to create a litter problem, stacked in a manner that permits convenient removal, and placed in a location designated by the sanitation division for collection on the day determined by the manager of the sanitation division.

(h) Small quantities of yard waste, small enough to fit in the city provided container used for disposal of household waste, shall be placed in the container for collection and disposal by the sanitation division.
(Ord. No. 94-236, § 5(20-275), 4-21-1994; Ord. No. 10-675, § 1, 9-23-2010; Ord. No. 19-20, § 1, 1-24-2019; Ord. No. 24-784, § 5, 10-24-2024)

Sec. 22-76. Reserved.

Editor's note—Ord. No. 24-784, § 6, adopted Oct. 24, 2024, repealed § 22-76, which pertained to shrubbery clippings and derived from Ord. No. 94-236, § 5(20-276), Apr. 21, 1994.

Sec. 22-77. Reserved.

Editor's note—Ord. No. 24-784, § 7, adopted Oct. 24, 2024, repealed § 22-77, which pertained to cardboard or pasteboard boxes and derived from Ord. No. 94-236, § 5(20-277), Apr. 21, 1994; and 97-817, § 12, Dec. 11, 1997.

Sec. 22-78. Ashes.

Ashes must be containerized and not contain live coals and must be wetted sufficiently to prevent dust from forming during collection. The sanitation division will not remove ashes from apartment complexes utilizing licensed haulers or from commercial or industrial places of business. Instead the owners of such premises shall remove all such material to an authorized receiving facility.
(Ord. No. 94-236, § 5(20-278), 4-21-1994)

Sec. 22-79. Reserved.

Editor's note—Ord. No. 24-784, § 8, adopted Oct. 24, 2024, repealed § 22-79, which pertained to bulky waste, white goods and loose yard waste; and derived from Ord. No. 94-236, § 5(20-279), Apr. 21, 1994; 97-817, § 13, Dec. 11, 1997; and 17-601, § 1, Aug. 24, 2017.

Sec. 22-80. Service not provided by city.

(a) The city does not provide service for the removal or collection, from any premises, of:

(1) Construction and demolition waste or materials resulting from the construction, demolition or renovation of buildings or structures which is not containerized as provided in section 22-71(1);

(2) Materials resulting from commercial-related activities, work performed by a contractor, or work requiring a building permit;

(3) Tree limbs and trimmings resulting from land clearing or from tree service contractors or other commercial workers;

(4) Loose rubbish;

(5) Rocks, mulch, dirt, including topsoil and potting soil, and other debris resulting from a residential or commercial landscaping or construction effort;

(6) Hazardous wastes or other wastes that are determined by law or by the sanitation division to be hazardous to the health or safety of collection personnel; or

(7) Animal or fowl excrement, dead animals or fowl or their parts;

(8) Bulky waste, yard waste or rubbish from apartment complexes, or commercial or industrial places of business that use private hauler collection agencies; and

(9) Motor vehicle tires from a business engaged in the manufacture, sale, exchange, repair, replacement or changing of tires or in a related tire business.

(b) It shall be the duty of the person in possession, charge or control of the premises to provide for the removal of solid waste, and in those instances specified above, and to deliver such waste to an authorized receiving facility.
(Ord. No. 94-236, § 5(20-280), 4-21-1994; Ord. No. 97-817, § 14, 12-11-1997; Ord. No. 17-601, § 2, 8-24-2017)

Sec. 22-81. Accidents, collisions, wrecks.

It shall be the duty of any person engaged in the business of moving wrecked or damaged motor vehicles from the public streets or other public property in the city to:

(1) Put out, immediately upon arrival at the scene of such wrecked or damaged vehicle, any necessary or absorbent material to absorb any petroleum product, radiator fluid or any other fluid released onto such street or property as a result of the wreck or damage, and to properly recover and dispose of such material so as to prevent, to the extent possible, such petroleum product, radiator fluid or other pollutant from entering the municipal separate storm sewer system; and

(2) Remove from the public street or other public property, at and about the scene of

such damaged or wrecked motor vehicle, all glass, metal, debris, oil spills or other hazards that may have been cast upon the public street or other public property as a result of such motor vehicle's being wrecked or damaged.

(Ord. No. 94-236, § 5(20-281), 4-21-1994)

Sec. 22-82. Residential collection practices.

(a) Garbage removal from occupied single-family residential units shall be made exclusively by the sanitation division on a once-per-week schedule approved by the mayor or his designee. Participation in the city's removal or collection system by single-family residential customers is mandatory for all residents of the city. Single-family residential customers may choose their level of service by choosing the number of containers they will use as provided in section 22-71(b)(7) of this article. Customers will be allowed to adjust their level of service one time during the year following the service start date. Otherwise, customers will be allowed to change service levels only on or about the anniversary of their service start date.

(b) Yard and bulk waste collection shall be made by the sanitation division on weekly schedules approved by the mayor or his designee. Participation in the city's removal or collection system by single-family residential customers is mandatory for all residents of the city. Yard and bulk waste shall be placed for collection as required by section 22-75 of this article.

(Ord. No. 94-236, § 5(20-282), 4-21-1994; Ord. No. 05-659, § 1, 9-29-2005; Ord. No. 24-784, § 9, 10-24-2024)

Sec. 22-83. Commercial collection practice.

Commercial garbage collection may, at the discretion of the director of public works services, be provided by the sanitation division, as requested, for commercial establishments within the city on a once-per-week basis. All such services by the sanitation division shall be by means of approved cans, bags or city provided automated containers. The owners and persons in possession, charge or control of each commercial establishment, and in the case of premises designed or intended for multiple occupancy, the owners and property management company (including the agents) are responsible for removal of all acceptable waste from such premises, and for its delivery to an authorized receiving facility. Private containerized collected shall be provided by licensed haulers in accordance with health and safety standards. If the director of public works services determines in his or her sole discretion that resources may need to be reallocated to serve residential accounts, then the director shall have authority to terminate collection of garbage collection for any commercial account.

(Ord. No. 94-236, § 5(20-283), 4-21-1994; Ord. No. 97-817, § 15, 12-11-1997; Ord. No. 99-88, § 3, 1-28-1999; Ord. No. 05-659, § 2, 9-29-2005; Ord. No. 23-74, 2-9-2023)

Sec. 22-84. Placement location.

It shall be unlawful to place garbage cans or containers for collection of garbage, refuse or other waste at any place other than immediately adjacent to the curb (or the edge of the roadway on noncurb streets) in front of the premises where such waste was accumulated unless prior ap-

proval is, upon a showing of need, obtained from the sanitation division for placement at some other location. Where collections are authorized to be made from private alleys and accessways, approaches shall be maintained in such a manner as not to be a hazard to sanitation division collection personnel or equipment (it being understood that tree limbs, parked cars and holes in such alleys or accessways shall, without limiting the generality of the foregoing, be considered as hazards to such personnel). Failure to comply with these provisions after notification by the sanitation division will cause service to be discontinued until correction has been made. At no time will collection personnel enter houses, buildings or fences for the purpose of the collection of garbage, refuse or other waste; however, the director of public works services of the city shall promulgate rules pertaining to special off-street service for persons with disabilities who are without assistance and cannot place containers at the curb, but no outbuilding or fence shall be entered without permission.
(Ord. No. 94-236, § 5(20-284), 4-21-1994; Ord. No. 97-817, § 16, 12-11-1997)

Sec. 22-85. Placement time.

It shall be unlawful to place or permit the placement of garbage cans or containers immediately adjacent to the curb (or the edge of the roadway on noncurb streets) before sundown on the day preceding the days designated by the sanitation division for collection, or to leave such cans or containers on the placement site after the days designated for collection. Containers must be properly placed for collection prior to the beginning of the scheduled work day for sanitation personnel.
(Ord. No. 94-236, § 5(20-285), 4-21-1994)

Sec. 22-86. Medical supplies and laboratory waste disposal.

It shall be the duty of any person disposing of needles, glass, vials, plaster casts and laboratory wastes or other medical supplies to package disposed-of items in such a manner as not to be a hazard to collection and disposal personnel. If a hazard is determined to exist by the sanitation division, collection service will be discontinued until correction has been made.
(Ord. No. 94-236, § 5(20-286), 4-21-1994)

Sec. 22-87. Dumpsters and commercial containers.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection (a), except where the context clearly indicates a different meaning:

Adjacent property means public or private property adjacent to the private premises utilizing a dumpster.

Dumpster means a dumpster or commercial container used for the collection of garbage, trash or other debris.

Dumpster owner means the owner of the company providing the dumpster or any person working on its behalf.

Person in charge of the premises means the owner or person in possession, charge or control of any private property utilizing a dumpster.

Premises means any lot, yard, plot, tract, parcel or other piece of land or property located within the city.

Public property means any real property which is owned, maintained or controlled by the city or any other county, state, or federal governmental entity, and shall include any street, sidewalk, avenue, road, drive, lane, boulevard, alley, highway, park or other property owned, operated or controlled by the city, or any other public governmental entity for the use, benefit or enjoyment of the general public.

(b) *City rights-of-way or easements.*

(1) a. It shall be unlawful for the dumpster owner and the person in charge of the premises to place or locate a dumpster, except for dumpsters placed by the city or a contractor acting on the city's behalf, on any right-of-way or easement of the city.

b. Dumpsters found to be in violation of the foregoing subsection regarding placement on the city right-of-way or easement, shall be relocated from said right-of-way or easement by the dumpster owner. In cases where no other location is available, then the dumpster owner must remove the dumpster permanently and the person in charge of the premises must arrange for another satisfactory means of waste disposal for the location in question.

(2) Access ways to dumpsters which cross or intersect any city right-of-way must be paved and constructed so as to withstand the maximum gross vehicle weight of the collection vehicle. Compliance with this provision shall be the responsibility of the person in charge of the premises.

(c) *Placement; access; and identification.*

(1) a. The person in charge of the premises shall provide a concrete or asphalt surface of sufficient dimension for the location and placement of the dumpster. It shall be the responsibility of the dumpster owner to see that the dumpster is placed and maintained on said surface and said dumpster owner shall not place or locate any dumpster on premises that do not provide the required surface.

b. In cases of hardship which are not merely financial in nature and which are beyond the control of the person in charge of the premises, the director of public works may, upon the written request of the person in charge, agree to waive or modify the surfacing requirement and may prescribe appropriate conditions or safeguards thereto.

(2) The person in charge of the premises shall maintain the surface and access ways thereto in good repair and condition.

(3) The dumpster owner shall maintain a log, which the dumpster owner shall make available to the city upon request, identifying:

a. The name of the person in charge of the premises and his or her contact information including address (if other than the address where the dumpster is located) and telephone number(s);

b. The address where the dumpster is located; and

c. The type of dumpster.

(d) *Condition.*

(1) a. Dumpster owners shall provide dumpsters in good repair and condition with tight fitting lids, doors, or covers.

b. The dumpster owner shall ensure that upon collection the closures or access points for the dumpster are closed and secured.

(2) The person in charge of the premises shall see that the dumpster lids, doors, covers, and access doors remain closed when not in actual use.

(3) Dumpster owners shall ensure that drain plugs with respect to dumpsters designed with drains shall be in place at all times except during cleaning.

(4) All dumpsters shall be kept in good condition, clean, free of loose debris and litter and disinfected. Any dumpsters producing or causing noxious, foul or offensive odors shall be immediately removed or cleaned to eliminate the odor. Compliance with this provision shall be the responsibility of the dumpster owner and person in charge of the premises.

(e) *Placement of garbage.*

(1) It shall be unlawful for the person in charge of the premises to have or allow the placement of garbage, trash or other solid waste outside the dumpster.

(2) Removal of debris shall be accomplished by either placing said debris in the dumpster or transporting it to the solid waste disposal authority. In the event the debris is removed to the solid waste disposal authority, said person in charge of the premises shall provide, upon request of a city agency, proof of disposal at the solid waste disposal authority.

(3) In general, for a violation of this subsection (e), the penalty provisions of section 1-7 of this Code shall apply, including, but not limited to, subsection (e) thereof; provided, however, the following penalty shall be imposed for violation of this subsection (e):

a. Over a 12-month period, upon first conviction regarding the premises in question or the person in charge of the premises, a fine of not less than $200.00 or more than $500.00, or imprisonment for not more than ten days.

b. Upon a second conviction regarding the premises in question or the person in charge of the premises, a fine of not less than $300.00 or more than $500.00, or imprisonment for not more than 30 days, or both such fine and imprisonment.

c. Upon a third or subsequent conviction regarding the premises in question or the person in charge of the premises, a fine of not less than $500.00 and imprisonment in jail for a period of not to exceed six months. Such sentence shall include a mandatory sentence of not less than two days in jail, which shall not be subject to suspension or probation.

(f) *Waste removal.* It shall be unlawful for the person in charge of the premises to fail to maintain the premises, including the dumpster, free of solid waste that would tend to:

(1) Attract children and endanger their lives and health;

(2) Spread disease;

(3) Invite plundering;

(4) Attract vagrants; or

(5) Create fire hazards or other safety or health hazards.

(g) *Screening.*

(1) It shall be unlawful for the person in charge of the premises to maintain a dumpster that is not screened so as not to be visible from the ground level of adjacent property. Such screening may be accomplished by any one of the following:

a. By locating the dumpster on a portion of the premises where it is not visible from adjacent property;

b. By providing a visual screen consisting of (i) a fully enclosed structure; (ii) a solid or otherwise non-transparent vertical wall or fence of a minimum height of at least six inches above the top of the dumpster at any point which is maintained in good condition and repair; (iii) natural objects, plantings, structures or other appropriate means which are at a minimum height of at least six inches above the top of the dumpster at any point which are neat and well maintained; or (iv) any combination of the foregoing;

c. In cases of hardship which are not merely financial in nature and which are beyond the control of the person in charge of the premises, the director of public works may, upon the written request of said person in charge, agree to waive or modify the screening requirement provided that he may prescribe appropriate conditions which mitigate the visual impact to adjacent property.

(2) The dumpster owner shall not place a dumpster on premises without the proper screening or a waiver thereof, or outside the screened area.

(h) *Enforcement.* The provisions of section 22-87 may be enforced by either a sworn officer of the Huntsville Police Department or by an employee of the Code Enforcement Section of the Community Development Division of the City of Huntsville.
(Ord. No. 94-236, § 5(20-287), 4-21-1994; Ord. No. 97-817, § 17, 12-11-1997; Ord. No. 99-88, § 4, 1-28-1999; Ord. No. 02-312, 5-9-2002; Ord. No. 03-506, § 1, 6-26-2003; Ord. No. 03-818, § 1, 10-9-2003; Ord. No. 05-774, § 1, 9-22-2005; Ord. No. 08-651, § 1, 7-31-2009; Ord. No. 10-66, § 1, 2-11-2010; Ord. No. 11-514, §§ 1, 2, 8-11-2011)

Sec. 22-88. Change in commercial service.

Changes to or from city service requested by commercial customers shall be requested in writing and shall be approved by the sanitation division. The sanitation division reserves the right to decline service to any commercial business, including premises designed or intended for multiple occupancy.
(Ord. No. 94-236, § 5(20-288), 4-21-1994; Ord. No. 99-88, § 5, 1-28-1999)

Sec. 22-89. Special collections.

Waste that has not been containerized, bundled or stored and is authorized for collection in accordance with the provisions of this article may be collected by the sanitation division by making arrangements for a special collection or other means of disposal. Residents disposing of building or construction debris (which is not the result of commercial related activity and which does not result from the work of a general contractor) that is determined by the sanitation division to be impractical to contain may arrange for a special collection. In cases where no arrangements for special collection have been made with respect to waste that has not been containerized, bundled or stored and is authorized for collection in accordance with the provisions of this article, such waste may be collected by the sanitation division and shall be considered a special collection. Fees for these special collections are in addition to the customer's normal monthly rate for containerized service and are determined as provided in section 22-182. Materials resulting from the repair or replacement of driveways or concrete slabs are excluded from special collections.
(Ord. No. 97-817, § 18, 12-11-1997)

Secs. 22-90—22-120. Reserved.

ARTICLE IV. LICENSED HAULERS AND RELATED ISSUES*

Sec. 22-121. Removal by city collectors and licensed haulers only; exceptions.

(a) No person, except duly authorized collectors of the city or private collectors or haulers licensed by the city pursuant to law, shall collect or remove any solid waste generated, occurring or accumulating within the city or use any of the streets, avenues, alleys or public places and ways of the city for the purpose of collecting or transporting solid waste. All licenses granted by the city to private collectors or haulers and all contracts or other forms of authorization of duly authorized private collectors or haulers shall, until such time as all the bonds have been fully paid and retired, require that all acceptable waste

*__Cross reference—__Licenses, ch. 15.

collected and transported under authority of such license, contract or authorization be delivered as follows:

(1) Until the actual acceptance date, such acceptable waste shall be delivered to the authority at the existing landfill for disposal at the existing landfill;

(2) From and after the actual acceptance date, such acceptable waste shall be delivered to the authority at the plant, for disposal and processing there or for subsequent transportation by such private haulers or collectors to the existing landfill and disposal there;

however, if the authority cannot accept acceptable waste at the existing landfill or the plant (or at another authorized receiving facility to which acceptable waste is at the time required by the provisions of this article to be delivered), such acceptable waste shall be delivered to the authority at such authorized receiving facility as shall have been specified in a notice published in a newspaper having general circulation and published in the city (which such notice shall also specify the location or locations of such authorized receiving facility). Further, no person shall use any of the streets, avenues, alleys or public places or ways of the city for the purpose of collecting or transporting any solid waste generated, occurring or accumulating within the city, or shall be granted a franchise so to use any of the streets, avenues, alleys or public places or ways of the city (irrespective of whether such person is licensed, and irrespective of whether such person is required to be licensed, by the city), unless all acceptable waste so collected and transported by such person shall be delivered to the authority to the same extent as provided in this subsection.

(b) All the provisions of subsection (a) of this section are subject, however, to the following exceptions:

(1) The owner or person in possession of any household, business, industry or other property in the city may store, haul and dispose of acceptable waste generated, occurring or accumulated upon the premises of such person (not including, however, any acceptable waste previously collected by any such person from the premises of others, notwithstanding that title to such waste may have been transferred to such person) on his own land or otherwise, if such storage, haulage or disposal is accomplished pursuant to a certificate of exception obtained under the provisions of Code of Ala. 1975, § 22-27-3(e);

(2) Any person owning or being in charge or possession of any private residence, commercial business or industry may remove and transport acceptable waste generated or occurring upon the premises of such person provided such acceptable waste is delivered to the authority for disposal as and to the same extent required and provided in this section with respect to private collectors or haulers collecting and removing acceptable waste under licenses granted by the city; and

(3) Any acceptable waste that is appropriately delivered or tendered to the authority as provided in this section and that the authority does not accept, process or otherwise dispose of, may thereafter be delivered and disposed of in any lawful manner deemed desirable by the licensed private collector or hauler or other person collecting or transporting the waste, it being understood and agreed that, for purposes of the preceding portions of this subsection (b)(3), the authority shall be considered not to have accepted, processed or otherwise disposed of any such acceptable waste only if such acceptable waste shall have been duly and appropriately tendered to the authority, in accordance with its rules and regulations, at an authorized receiving facility and the authority shall have rejected or otherwise failed to accept it, or the authority shall have published in a newspaper having general circulation and published in the city a notice to the effect that it cannot accept any acceptable waste and shall not have revoked or otherwise withdrawn (by notice published in like manner) such notice.

(c) Any solid waste that is not acceptable waste shall be disposed of, in a manner authorized or permitted by law, by the person responsible for generating the waste.

(d) The city council expressly readopts by reference, as a basis for this section (and other ancillary provisions of this chapter), the findings contained in section 22-2, including particularly (but without limitation) those contained in subsections 22-2(3) through (15).
(Ord. No. 87-65, § 1(20-291), 5-27-1987)

Sec. 22-122. Issuance and revocation of licenses.

Licenses for private haulers shall be issued by the city clerk-treasurer of the city based upon applications provided for that purpose. Licenses shall be issued on a calendar year basis—i.e., for a period beginning on January 1 of a calendar year and ending on December 31 of the same calendar year; and each license shall be renewable upon application, provided the applicant demonstrates compliance with:

(1) This chapter;

(2) The laws and regulations of the state;

(3) The rules and regulations of the state and county health departments;

(4) The pertinent ordinances of the city; and

(5) Insofar as authority property and the use of such property are concerned, with the applicable rules and regulations of the authority.

Licenses may, however, be revoked by the city council after notice and hearing. Prior to issuance of any such license the city clerk-treasurer shall collect the privilege tax required by the privilege license code of the city. Licensees shall at all times collect, transport and dispose of solid waste in accordance with this chapter and, insofar as authority property and its use are concerned, in accordance with the applicable rules and regulations of the authority.
(Ord. No. 87-65, § 1(20-292), 5-27-1987)

Secs. 22-123—22-150. Reserved.

ARTICLE V. DISPOSAL FACILITIES*

Sec. 22-151. Authorized areas for disposal of acceptable waste.

It shall be unlawful for any person to dispose of, at any place within the city other than at an authorized receiving facility or authorized disposal facility, any acceptable waste that is generated, occurs or accumulates within the city, subject, however, to the provisions of section 22-121.
(Ord. No. 87-65, § 1, 5-27-1987)

Sec. 22-152. Limitations on use of authorized receiving and disposal facilities.

The authority shall not permit any person to dump, deposit or dispose of, at any authorized receiving facility or authorized disposal facility, acceptable waste other than acceptable waste generated, occurring or accumulating within the city or within the county; however, the authority may, pursuant to a contract with the authority, permit the dumping, deposit or disposal, at an authorized receiving facility or authorized disposal facility, of acceptable waste generated, occurring or accumulating outside the city and outside the county, but if and only to the extent that, after adequately providing for the proper disposal of all acceptable waste generated, occurring or accumulating from within the city and from areas outside the city but within the county, the available facilities of the authority are at the time adequate also to provide for the proper disposal of such acceptable waste generated, occurring or accumulating outside the city and outside the county.
(Ord. No. 87-65, § 1, 5-27-1987)

Sec. 22-153. Authority rules, regulations and tipping fees; certain unlawful activities.

The authority shall, prior to March 1, 1988, establish rules and regulations respecting:

(1) The use of any authorized receiving facilities and any authorized disposal facilities at the time owned or operated by the authority;

***State law reference—**Authority to provide for solid waste disposal, Code of Ala. 1975, §§ 11-47-135, 22-27-3.

(2) The storage or disposal of acceptable waste at any authorized receiving facilities and any authorized disposal facilities at the time owned or operated by the authority;

(3) The conduct of persons engaging in the dumping of acceptable waste and related activities at any authorized receiving facilities and any authorized disposal facilities at the time owned or operated by the authority;

and may at any time and from time to time thereafter modify, revise, amend, alter or rescind any such rules and regulations so established. The city recognizes that, under the provisions of existing law (including, without limitation, the act), the authority may fix and establish tipping fees and other charges for the disposal of acceptable waste at any authorized receiving facility and any authorized disposal facility and may at any time and from time thereafter modify, amend, alter or rescind any such tipping fees and other charges so established. It shall be unlawful for any person to dispose of acceptable waste at any authorized receiving facility and any authorized disposal facility without paying (or providing, in a manner satisfactory to the authority, for the payment of) any then prescribed tipping fees or other applicable charges; and it shall be unlawful for any person who is delinquent in the payment of any charges that are due the authority for the disposal of acceptable waste and who has refused to pay cash, after being requested to do so by the authority, to enter the boundaries of any authorized disposal facility or authorized receiving facility for the purpose of dumping, depositing or disposing of acceptable waste, until all outstanding charges then due to the authority by such person have been paid or otherwise satisfied in full. Further, it shall be unlawful for any person to dispose of, at other than an authorized receiving facility or an authorized disposal facility, any acceptable waste that is required by this article or by the terms of a license issued by the city to be delivered to the authority and to deposit any hazardous waste or unacceptable waste at any authorized receiving facility or authorized disposal facility.

(Ord. No. 87-65, § 1(20-303), 5-27-1987; Ord. No. 87-545, § 1, 11-24-1987)

Sec. 22-154. Unlawful activities generally.

(a) It shall be unlawful for any person to deposit, for collection and transportation by the sanitation division, any acceptable waste generated, occurring or accumulated from a commercial or industrial establishment under the pretense that such waste was generated, occurred or accumulated from a noncommercial or nonindustrial establishment.

(b) It shall be unlawful for any person to dump, deposit or dispose of any acceptable waste at any authorized disposal facility or authorized receiving facility other than during the receiving time unless authorized by the authority; and it shall be unlawful for any person to dump, deposit or dispose of, at any authorized receiving facility or authorized disposal facility, any acceptable waste not generated, occurring or accumulating from within the city or the county, except pursuant to a contract with the authority as and to the extent provided in section 22-152.

(c) It shall be unlawful for a person not authorized or actively employed and performing assigned duties at an authorized disposal facility or authorized receiving facility, not having acceptable waste to deposit at an authorized disposal facility or an authorized receiving facility, or not a so-called "business invitee," to enter the boundaries of such a facility.

(d) It shall be unlawful for any person, while disposing of acceptable waste at an authorized disposal facility or an authorized receiving facility, or at any other time, to scavenge or remove any item from any such facility. If a person dumps or disposes of, at an authorized disposal facility or an authorized receiving facility, any item or items by mistake, then that and only that person will be permitted to remove such item from such facility and then only with the permission of the authority. If any item that is disposed of by mistake has been covered at a landfill by the landfill crew, the permission from the authority must be obtained before the item may be removed from such landfill. In no event shall anyone be allowed to remove items from the pit at the plant.

(e) It shall be unlawful for any person to be upon any authorized disposal facility or authorized receiving facility except during the receiving time unless authorized by the authority.

(f) It shall be unlawful for any person to operate, within the boundaries of an authorized disposal facility or an authorized receiving facility, any vehicle for the purpose of depositing or delivering solid waste without first having presented such vehicle at the weigh-in station for the purpose of having it weighed, or to leave such a facility without first presenting such vehicle such weigh-in station for the purpose of having it inspected and weighed.
(Ord. No. 87-65, § 1, 5-27-1987)

Secs. 22-155—22-180. Reserved.

ARTICLE VI. RATES AND CHARGES*

Sec. 22-181. Generally.

There are established, for the collection, hauling and disposal of acceptable waste by the city, the fees and charges prescribed in this article.
(Ord. No. 94-236, § 8 (20-320), 4-21-1994)

Sec. 22-182. Residential.

(a) *Garbage, yard waste and other acceptable waste.*

(1) For each occupied single-family dwelling unit, there shall be a mandatory minimum charge in accordance with the following rate schedule:

a. For standard service of garbage and yard waste, $16.50 per month (through December 31, 2024).

Effective January 1, 2025, $21.50 per month.

Effective January 1, 2027, $24.50 per month.

Effective January 1, 2029, $27.50 per month.

b. Additional 96-gallon containers may be requested and will carry an additional charge of $3.00 per container per month, respectively (through December 31, 2024).

Effective January 1, 2025, $9.00 per container per month.

Effective January 1, 2027, $12.00 per container per month.

Effective January 1, 2029, $15.00 per container per month.

c. For less than a full month's service, the charge shall be prorated.

(2) Special residential rate program.

a. Persons who are eligible to receive food stamps under the Federal Food Stamp Program operated pursuant to the provisions of 7 USC 2011, et seq., are eligible for a special rate for any residential dwelling unit occupied by such persons. Proof of eligibility, together with a valid driver's license or other identification containing a photograph of the applicant, shall be furnished when a special rate under this subsection is claimed.

b. Application for the special rate shall be made upon a form prescribed by the city. The mayor may designate the director of community development or any other person to determine eligibility for the special rate. The decision of such person designated by the mayor shall be final. Any person who qualified for the special rate shall be required to reapply for the special rate on an annual basis. The form for reapplication shall be the same as for initial application. The reapplication period shall be between October 1 and December 1 of each calendar year.

c. Persons who, as of January 1, 1999, have qualified for the special rate under the eligibility criteria set forth in prior versions of this article shall

*__State law reference—__Fees authorized, Code of Ala. 1975, §§ 11-47-135, 22-27-5.

continue to be eligible for the special rate, and shall not have to reapply for the special rate on an annual basis.

d. The special rate schedule for standard residential waste collection service shall remain $10.00 per month.

e. Additional 96-gallon containers may be requested and will carry an additional charge of $3.00 per container per month, respectively (through December 31, 2024).

Effective January 1, 2025, $6.00 per month, respectively.

Effective January 1, 2027, $9.00 per month, respectively.

Effective January 1, 2029, $11.00 per month, respectively.

f. For less than a full month's service, the charge shall be prorated.

(b) *Collection of yard and bulk waste.*

(1) Fees for the collection of yard and bulk waste shall be set in accordance with the following rate schedule:

a. Up to ten cubic yards per collection per week is included in standard residential service at no additional charge.

b. Each additional five cubic yards, $45.00 per collection (through December 31, 2024).

Effective January 1, 2025, $55.00 per collection.

Effective January 1, 2027, $60.00 per collection.

Effective January 1, 2029, $65.00 per collection.

(2) Fees due for special collection of yard or bulk waste shall be billed in the same manner as regular service and shall be due and payable under the same conditions as regular service. Waiver of the fees for excessive or special collection of yard waste resulting from natural disaster impacts is at the sole discretion of the director of public works.

(c) Special collections. A minimum charge of $45.00 shall be charged for each special collection (through December 31, 2024). The special collection charge for materials, including but not limited to rocks, bricks, cinder blocks, sand, ceramic tile, sheet rock, dirt, sod or any other like material, shall be the greater of the minimum charge or the city's actual disposal cost. The special collection charge for all other materials shall be the greater of the minimum charge or a charge of $45.00 per five cubic yards (through December 31, 2024).

Effective January 1, 2025, $55.00 per collection.

Effective January 1, 2027, $60.00 per collection.

Effective January 1, 2029, $65.00 per collection. (Ord. No. 94-236, § 8(20-321), 4-21-1994; Ord. No. 97-817, § 19, 12-11-1997; Ord. No. 98-956, § 1, 1-14-1999; Ord. No. 10-675, §§ 1, 2, 9-23-2010; Ord. No. 24-784, § 10, 10-24-2024)

Sec. 22-183. Commercial and industrial; garbage and other acceptable waste.

(a) The sanitation division may provide waste collection service to commercial or industrial premises at the sole discretion of the director of public works.

(b) Single occupant premises best served by city-provided 96-gallon containers, as determined at the sole discretion of the director of public works, shall be served in accordance with the processes and procedures for single-family residential premises as provided in section 22-71(b), section 22-82 of article III and section 22-182 of this article, billed at the following rates:

1. For standard service of a commercial/industrial premises, $29.00 per month (through December 31, 2024).

Effective January 1, 2025, $37.00 per month.

Effective January 1, 2027, $41.00 per month.

Effective January 1, 2029, $45.00 per month.

2. Additional 96-gallon containers may be requested and will carry an additional charge of $21.90 per container per month, respectively (through December 31, 2024).

   Effective January 1, 2025, $27.00 per month, respectively.

   Effective January 1, 2027, $31.00 per month, respectively.

   Effective January 1, 2029, $35.00 per month, respectively.

(c) Any person using city garbage collection service and operating an approved business (other than a customary home occupation) at a residence, including short term rental, shall pay a garbage charge at the commercial rate provided in this article, but shall not be required to pay any residential charge.

(d) For a commercial complex comprised of multiple commercial establishments where all the refuse and garbage is collected by the city from a central point, the charge shall be made on a volume basis for total volume generated by all such establishments depositing waste at the central point of collection; and the city will bill the owner, manager or agent of such commercial complex for the collection, hauling and disposal of refuse and garbage from such central point consistent with the pricing structure provided for containerized collection service in section 22-183(b).
(Ord. No. 94-236, § 8(20-322), 4-21-1994; Ord. No. 97-817, § 20, 12-11-1997; Ord. No. 98-956, § 2, 1-14-1999; Ord. No. 24-784, § 11, 10-24-2024)

Sec. 22-184. Premises designed or intended for multiple long-term residential occupancy.

(a) Premises designed or intended for multiple occupancy, including apartment buildings and complexes, are intended to be served by private haulers but may be served by the sanitation division at the sole discretion of the director of public works. If served by the sanitation division, these premises shall be charged for service using the residential rates set forth in section 22-182 at the full rate per residential unit. In all other respects, premises designed or intended for multiple occupancy, including apartment buildings and complexes, will be treated as commercial establishments.

(b) Fees for service rendered with respect to premises designed or intended for multiple occupancy, including apartment buildings and complexes, which have master utility accounts, may be charged to the person or entity whose name is listed on the master utility account applicable to such property. Such accounts shall be charged at the full residential rates set forth in section 22-182 per residential unit.

(c) Residents of a unit within a premise designed or intended for multiple occupancy, including apartment buildings and complexes, if individually responsible for waste collection fees as provided in this article and eligible for the special rate as provided in section 22-182(a)(2) shall be charged at the special rate.
(Ord. No. 99-961, § 1, 11-23-1999; Ord. No. 24-784, § 12, 10-24-2024)

Sec. 22-185. Errors in charges; discontinuance of service.

(a) It shall be the responsibility of the person in charge of a commercial, industrial or residential establishment to report to the sanitation division any error on the garbage charge. No adjustment of any such charge as a result of a determination by the city that an incorrect charge has been made shall be made with respect to any period more than three months prior to the month during which such determination is made. Request for billing correction shall be made in writing to the sanitation division and/or the agent for the sanitation division.

(b) It shall be the responsibility of the person in charge of a commercial, industrial or residential establishment to request in writing any desired discontinuance of garbage service. Charges shall continue to accrue until such a written request is received by the sanitation division of the city.

(c) Residential customers may request a suspension of garbage services for a minimum period of three months in cases where residents are out of town or rental property is vacant. Requests for suspension of garbage service shall be made in writing to the sanitation division at least five working days prior to the affected period. No requests for suspension of garbage service will be accepted in arrears. In cases of rental property, proof of ownership may be requested.
(Ord. No. 94-236, § 8 (20-323), 4-21-1994)

Sec. 22-186. Reserved.

Editor's note—Ord. No. 24-784, § 13, adopted Oct. 24, 2024, repealed § 22-186, which pertained to rooming houses or boardinghouses and derived from Ord. No. 94-236, § 8 (20-324), Apr. 21, 1994.

Sec. 22-187. Penalty for nonpayment.

(a) All the charges and rates set forth or provided for in this article are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(b) If the fees, charges or rates for the services furnished by the city or a licensee of the city shall not be paid within 30 days after they become due and payable, the city may, at the expiration of such 30-day period, suspend services or, pursuant to resolution, proceed to recover the amount of any delinquency with interest in a civil action, or both.
(Ord. No. 94-236, § 8 (20-325), 4-21-1994; Ord. No. 98-652, § 1, 8-27-1998; Ord. No. 15-911, 12-17-2015)

Chapter 23

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES*

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***Cross references—**Any ordinance providing for local improvements or levying or imposing any special assessment saved from repeal, § 1-11(a)(14); any ordinance dedicating, establishing, naming, locating, relocating, opening, paving, widening, repairing or vacating any street saved from repeal, § 1-11(a)(15); any ordinance establishing the grade of any street or sidewalks saved from repeal, § 1-11(a)(16); horses not to stand in streets unless hitched or attended, § 5-109; aviation, ch. 6; buildings and building regulations, ch. 7; cemeteries, ch. 9; environmental management, ch. 12; sleeping in parked vehicles, public places or on private lot of another, § 17-101 et seq.; peddlers and solicitors, ch. 18; peddlers and solicitors in central city area streets, sidewalks and parks, § 18-35; peddlers and solicitors in central city area streets, sidewalks and parks, exceptions, § 18-36; recreation services, ch. 19; depositing solid waste in streets or gutters, § 22-37; traffic and vehicles, ch. 25; unlawful materials on streets, § 25-6; tracking debris onto public streets or other public ways prohibited, § 25-392; riding bicycles on sidewalks, § 25-425; utilities, ch. 26; vegetation, ch. 27; protection of trees on public lands or public rights-of-way, utility easements, or land on which another public interest has been granted, § 27-53; zoning, app. A; subdivision regulations, app. B; requirements for improvements and design of sidewalks in subdivisions, app. B, § 4.6.

State law reference—Municipal streets, Code of Ala. 1975, § 11-49-1 et seq.

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ARTICLE I. IN GENERAL

Sec. 23-1. Encumbering streets and sidewalks.

It shall be unlawful for any person to encumber a street or sidewalk with goods or merchandise, lumber or fuel or any article or obstruction whatever, except under a building permit from the city.
(Code 1982, § 20-22)

Sec. 23-2. Consent for erection or maintenance of obstruction in streets.

It shall be unlawful for any person to erect or maintain on any of the streets, public alleys or public grounds any obstruction or building without first obtaining the consent of the city council.
(Code 1982, § 20-23)

Sec. 23-3. Obstructing sidewalk or street at night; placing red lights.

It shall be unlawful for any person to place or leave any material or obstruction of any kind on or to stretch a rope across any street or sidewalk of the city during the night, without placing a sufficient number of red lights to warn all persons before reaching such obstruction that there is danger and that the street or sidewalk is obstructed.
(Code 1982, § 20-24)

Sec. 23-4. Removal of obstructions.

The chief of police and the director of public works services are authorized to remove all obstructions on city streets, avenues, alleys or sidewalks, regardless of the kind of obstructions, that may be a hazard to pedestrians or traffic.
(Code 1982, § 20-26)

Sec. 23-5. Maintenance and repair of railroad tracks.

(a) All persons subject to the requirements of Code of Ala. 1975, § 11-49-3 shall use, for the maintenance and repair of any street, materials suitable for maintaining the traveled surface of the roadway in a manner conforming to the grade of the street in which the subject railroad tracks are laid, all in a condition safe for use by the public.

(b) The materials used for the maintenance and repair of the streets required in this section shall be of an equal or better grade than the material used in surfacing the street over which the tracks pass. The director of public works services or other designated official of the city shall have the authority to prescribe and/or approve the materials to be used for the construction of any new placement or crossing of any such tracks; and it shall be unlawful for any street or other railway company to construct any new tracks at grade within or crossing any public street of the city except upon approval by the council and according to plans approved by the director of public works services or other designated official.
(Ord. No. 83-359, § 1, 8-30-1983)

Sec. 23-6. Removal of abandoned railroad tracks.

At any time any street or other railroad company abandons any portion of its track within the city and removes the rails and other rail facilities and appurtenances from the right-of-way of the railroad company within the city, it shall be the duty of the street or other railroad company to remove, within a reasonable time after the abandonment, all tracks and other appurtenances in connection with the railway from the streets of the city in accordance with plans approved by the director of public works services, and to restore the street to a condition consistent with the maintenance of the street without the burden of the tracks, and so that the street, without the burden of the tracks, is made safe for public travel. Any such removal with respect to any railway-street crossing shall include not only the rails, ties and other appurtenances, but shall also include the restoration of all approaches to the crossing which are necessary to make the crossing consistent with the grade of the street within the vicinity of such crossing.
(Ord. No. 83-359, § 2, 8-30-1983)

Sec. 23-7. Driveways.

No driveways shall be constructed to residences or buildings from a street with curbs and

gutters unless they are constructed in accordance with Drawing No. 610503, as published by the director of public works services.
(Code 1982, § 7-142)

Sec. 23-8. Municipally maintained dikes.

(a) It shall be unlawful for any person to build any building nearer than 30 feet to any municipally maintained dike without first obtaining the written approval of the city council.

(b) The manager of inspection shall issue no building permits for the erection of any buildings in violation of subsection (a) of this section until it has been presented to the city council and received its approval.
(Code 1982, § 7-141)

Sec. 23-9. Closing of streets; barriers and barricades; precautions.

When any street or street intersection is in the process of construction or repair, or in the event of any emergency requiring that a street, alley or portion of a street be closed to the public, or when any public work is being done which renders it necessary to fence off any portion of a street, alley or public place within the city, the city engineer or department of public works services shall cause proper barriers or barricades to be constructed or erected, closing such street or such portion of a street, which barriers or barricades shall have placed on or in close proximity a sufficient number of red or yellow lights or flares to warn all persons before reaching such barrier or barricade that there is danger and that the street is obstructed or closed to the public, which red or yellow lights or flares shall be illuminated from one-half hour after sunset to one-half hour before sunrise, and which barriers or barricades shall have displayed suitable markers or signs, so that the public may know that such street or such portion of a street is closed to use by the public.
(Code 1982, § 20-27)

Sec. 23-10. Driving upon streets being repaired.

When any street or sidewalk in the city is being repaired or built and closed or barred to traffic by the city engineer or department of public works services, or other persons doing or in charge of such work, any person going upon, riding or driving any vehicle, automobile, truck or animal upon such closed street or sidewalk shall be guilty of a misdemeanor.
(Code 1982, § 20-28)

Sec. 23-11. Removal, relocation of signs; when done by city; cost to be lien.

(a) Every person erecting, maintaining or interested in a sign lawfully erected upon or over the streets or sidewalks of the city under the official building code of the city may be required by the manager of inspection to readjust, relocate or remove the streets and sidewalks if, in the opinion of the manager of inspection, the space covered by the sign is necessary for the extension of public utility lines, sewage lines, traffic lights or other improvements necessary for the public convenience.

(b) If in the opinion of the manager of inspection it becomes necessary to readjust, relocate or remove such sign, he shall give 30 days' written notice to the person who owns or who is interested in such sign, to remove, readjust or relocate the sign, and upon his failure to do so, may remove the sign. The cost shall be a charge against the property upon which the sign is located, and the cost shall be a lien on the sign and collected the same as taxes are collected.

(c) All sign permits shall include a provision to such effect, giving notice to the applicant of the conditions of removal, readjustment or relocation.
(Code 1982, § 20-32)

Sec. 23-12. Playing ball.

It shall be unlawful for any person to engage in any kind of ball playing on the streets, alleys or sidewalks of the city.
(Code 1982, § 20-33)

Sec. 23-13. Cellar doors on sidewalks; permission of city council.

Steps, stairs, cellar doors or other impediments to free passage that are above the grade of the pavement shall not be permitted upon any side-

walk or pavement without the express permission of the city council recorded upon its minutes. This permission may be rescinded at any time.
(Code 1982, § 20-36)

State law reference—Authority of city to prohibit openings on sidewalks for cellar entrances, Code of Ala. 1975, § 11-49-2.

Sec. 23-14. Cellar doors level with sidewalk.

All cellar doors, trap doors or cellar chutes shall be placed or built upon a level with the grade of the sidewalk at that point. Such cellar or trap doors shall be constructed of iron grating to be approved by the director of public works services or other designated person. It shall be unlawful for any person to violate the provisions of this section or to refuse or fail to comply with its provisions after ten days' notice to do so.
(Code 1982, § 20-37)

Sec. 23-15. Leaving cellar doors on sidewalks open.

It shall be unlawful for any person to leave a cellar door or grating in the public square or on a street open at night, except when it is in actual use.
(Code 1982, § 20-38)

Sec. 23-16. Keeping cellar doors on sidewalks secure.

It shall be unlawful for any person to have or keep a cellar door on the public square or any street so insecure as to render the walking upon or over it unsafe or dangerous.
(Code 1982, § 20-39)

Sec. 23-17. Assessment of curb and gutter improvements.

In addition to all other provisions of pertinent law, there is adopted a policy and procedure for assessment of curb and gutter improvements on public streets within the city having no existing curbs and gutters. Improvements the cost of which is to be assessed, would include all necessary structures to provide proper drainage. The procedure to be followed by interested residents is described in the following text and will be coordinated with the department of public works services. The cost of such improvements are to be assessed against the abutting property served and benefited by the improvement. Special circumstances will affect assessments and are described in detail in subsection (1) of this section. Locations eligible for consideration will be restricted to city limits boundaries. Detailed procedures for curb and gutter improvements are as follows:

(1) *Technical considerations.*

a. Project costs shall include all clearing, grubbing, curb and gutter, base, asphalt, inlets, storm drain, and any other appurtenances required due to the installation of the curb and gutter along the street, except such work that may be deemed extra work as defined in subsection (1)b of this section.

b. If the curb and gutter plans require extra work, the assessment cost will not include the cost for extra work. Extra work is defined as the extension of sanitary sewer lines, the replacement of dilapidated utility lines, and all off-site work outside of the boundaries defined in subsection (1)c of this section.

c. Assessment boundaries will be limited to the lots or tracts of land abutting the streets improved, and which benefit from the improvement. All assessments will be apportioned along the abutting property based upon frontage but no assessment will be more than the increased value of the assessed property due to the improvement. Increased value will be determined prior to project approval, and the project shall not be commenced except upon approval of 51 percent of the owners as to the increased value.

d. All projects shall be designed and constructed by the department of public works services or by contract entered into between the city and the lowest bidder.

(2) *Prioritization procedure.*

a. In order to be considered for curb and gutter improvements, a written request must be submitted to the department of public works services. This request must contain the limits of desired improvements, statement of intent to waive all objections to assessment costs, and a petition signed by all affected property owners within the improvement limits.

b. All projects to be considered shall terminate at street intersections.

c. All requests shall be rated by the department of public works services prior to October 1 of each fiscal year in order to be considered for the following fiscal year.

d. The city council will determine, after required legal advertising and hearings, whether or not to proceed with the assessment. Funds for improvements may be advanced by the city from municipal funds, or may be provided by long-term borrowing. Assessments shall be payable annually over a period of ten years or less at the legal rate chargeable by the city for public improvement assessments.

(Ord. No. 90-357, 7-12-1990)

State law reference—The Municipal Public Improvement Act, Code of Ala. 1975, § 11-48-1 et seq.

Sec. 23-18. Unauthorized motor vehicles on public property.

(a) It shall be unlawful for any person to drive, operate, tow, push or park any vehicle, piece of equipment or structure of any kind upon any public property not designated for vehicular use without requesting and receiving prior authorization from the city. This section shall not apply to any person or entity while in the performance of a contract with the city or the state for the construction, repair or improvement of any public way or any utility located within the public property specified in such contract.

(b) A person convicted of a violation of this section shall be guilty of a misdemeanor.
(Ord. No. 03-751, § 1, 8-28-2003)

Secs. 23-19—23-50. Reserved.

ARTICLE II. TECHNICAL CODES*

Sec. 23-51. Construction code adopted.

The city Standard Specifications for Construction, 1991 edition, as amended through the adoption date of this Code, are adopted.
(Ord. No. 91-376, § 1, 6-13-1991; Ord. No. 91-435, 9-26-1991; Ord. No. 93-269, 5-13-1993)

Sec. 23-52. Engineering standards adopted.

The city Engineering Standards for Construction of Public Improvements, 1991 edition, as amended through the adoption date of this Code, are adopted.
(Ord. No. 91-374, § 1, 6-13-1991; Ord. No. 91-431, 9-26-1991; Ord. No. 93-268, 5-13-1993)

Sec. 23-53. Scope.

All newly constructed streets within the corporate boundaries of the city, both those constructed by and on behalf of the city, and those constructed by private developers, to be eligible for acceptance for maintenance as public streets of the city, shall be constructed in accordance with Engineering Standards for Construction of Public Improvements (1991 edition), adopted by Ordinance No. 91-374, as amended, or Standard Specifications for Construction (1991 edition), adopted by Ordinance No. 91-376, as amended, as applicable, which standards are administered by the city engineer. Curbs, gutters and attendant drainage improvements are required with respect to such streets and must be in place prior to such acceptance.
(Ord. No. 86-779, § 1, 12-23-1986)

*__Cross reference—__Buildings and building regulations, ch. 7.

Sec. 23-54. Accommodating utilities on highways.

The city council formally adopts the state highway department standards for accommodating utilities on highway rights-of-way as standards (as written and future amendments) for use by the city for accommodating utilities on roads and streets under the jurisdiction of the city on those roads and streets which have or will involve the expenditure of state or federal highway funds. (Code 1982, § 20-20)

Cross reference—Utilities, ch. 26.

State law reference—Consent of city as to use of streets for construction or operation of public utility, Code of Ala. 1975, § 11-49-1.

Secs. 23-55—23-80. Reserved.

ARTICLE III. SIDEWALKS

Sec. 23-81. Authorization for laying sidewalk.

It shall be unlawful for any person to lay a sidewalk within city right-of-ways without first having obtained authorization from the city engineer.
(Code 1982, § 20-81)

Sec. 23-82. Notification of construction; grades.

(a) When property owners plan to build, alter or repair the sidewalk in front of their property, they shall notify the city engineer for approval; and all sidewalks shall be built to the grade so established.

(b) All owners of property abutting on streets that have been paved shall bring their sidewalks to the grade established by the curbing of the street pavement and this shall be done whether or not the sidewalks on the present grade are in good condition. All pavements of the city shall be so constructed as to correspond with the grade of the streets and be free from any abrupt descents, by steps or otherwise and shall incline to the street at the rate of one-quarter inch in each foot of its width.
(Code 1982, § 20-82)

Sec. 23-83. Establishment of grades; supervision of construction; specifications.

It shall be unlawful for any person to lay a sidewalk in the city until a grade for such walk has been established by the city engineer. Construction shall be under the supervision of the city engineer and shall be in accordance with specifications on file in the office of the city clerk-treasurer.
(Code 1982, § 20-83)

Sec. 23-84. Specifications of director of public works services; acceptance.

Property owners repairing or building sidewalks shall make them conform to the plans and specifications set forth in the Engineering Standards for Construction of Public Improvements (1991 edition), and such sidewalks when finished shall be approved by the city engineer.
(Code 1982, § 20-84)

Sec. 23-85. Material for sidewalks.

No sidewalk shall be built of brick or of any material other than that prescribed by the Engineering Standards for Construction of Public Improvements (1991 edition) unless authorized by the city engineer.
(Code 1982, § 20-85)

Sec. 23-86. Maintenance by property owners.

All property owners abutting on the streets shall put their sidewalks in proper condition and keep them in such condition at all times.
(Code 1982, § 20-86)

State law reference—Authority of city to require owners of abutting property to keep sidewalks in repair, Code of Ala. 1975, § 11-49-2.

Sec. 23-87. Erecting steps on sidewalks.

It shall be unlawful for any person, unless authorized by the city engineer, to erect steps on a sidewalk.
(Code 1982, § 20-87)

State law reference—Authority of city to remove stairways on sidewalks, Code of Ala. 1975, § 11-49-2.

Sec. 23-88. Poles not in use to be removed.

It shall be unlawful for any telephone or electric lighting pole or part of such pole that is not actually in use, or any telephone or electric lighting wire not actually in use, to remain in or upon the streets or stretched or hung along or across any of the streets of the city. The resident managers of the various telephone and electric lighting companies shall be charged with the enforcement of the provisions of this section. It shall be unlawful for any such managers to fail or refuse to remove or have removed any such poles or wires within five days after being notified by the city or its officers to do so.
(Code 1982, § 20-89)

Secs. 23-89—23-120. Reserved.

ARTICLE IV. EXCAVATIONS

Sec. 23-121. Compliance.

It shall be unlawful for any person, except employees of the city, and Huntsville Utilities to make any excavations in or under the streets of the city, without first complying with the terms of this article.
(Code 1982, § 20-61)

Sec. 23-122. Permits.

(a) Any person who shall desire to make any excavation in or under the streets or sidewalks of the city shall be required before commencing such excavation to file a written application and obtain a written permit from the engineering division.

(b) Any person performing any land disturbing activity shall request and obtain a permit in coordination with the Stormwater Management Manual, section 2.2.2, grading permits.
(Code 1982, § 20-62)

Sec. 23-123. Responsibility for damage to sewers and streets.

(a) Any person who makes any excavation in or under the streets or sidewalks of the city shall be held responsible for any damage he may do to the sewer, street or sidewalk. He shall restore the street and sidewalk to as good condition as it was at the beginning of his work.

(b) Should any person fail to make such repairs to the streets and sidewalks as are necessary to restore them to as good condition as they were at the beginning of his work, the street superintendent shall make such repairs; and for such work, there shall be made by the city a reasonable charge against such person. Where such work is on a paved street or sidewalk the minimum charge shall be $3.00 for each square yard or any part of a yard. Nothing in this section shall be construed to release from liability any person who may dig into or out any street or sidewalk and leave it in an unsafe condition. Any person who fails or refuses to pay any such charges made against him by the city within five working days after notice by the director of public works services of such charges against him shall then and there forfeit the license for any occupation which requires excavating in or under the streets and sidewalks of the city.
(Code 1982, § 20-64)

Sec. 23-124. Leaving excavation open.

If any person making any excavation in or near a street or sidewalk shall leave such excavation open, so as to endanger persons in passing along the street or sidewalk, he shall be guilty of a misdemeanor.
(Code 1982, § 20-65)

Sec. 23-125. Fences required around excavations abutting sidewalks or streets.

(a) Any person who makes any excavation for the purpose of improving property or for any other purpose or any other excavation dangerous to the public, or who has already made any excavation for the purpose of improving property or for any other purpose, alongside or abutting any sidewalk or public street in the city shall be required, for the purpose of protecting pedestrians, to provide the following means of safety: He shall erect and establish, where such excavation abuts a sidewalk or public street, a substantial fence, either of posts and woven wire or posts and boards or planks, such fence to be at least four feet in height from the grade line of such sidewalk or public street and if built of planks or boards, to be constructed of planks or boards of at least one-half inch in thickness and three inches in width, to be not more than 12 inches apart, and whether built of boards, planks or woven wire, to be fastened to and supported by good and substantial posts, securely set in the ground, not more than eight feet apart.

(b) Any person who shall make or cause to be made any excavation for the purpose of improving property or for any other purpose, or who has already made such excavation for the improvement of property or for any other purpose, alongside any sidewalk or public street in the city and who permits it to remain open and unprovided

with means of protection to pedestrians, for a period of 24 hours, shall be guilty of a misdemeanor.
(Code 1982, § 20-66)

Sec. 23-126. Excavating or removing earth, similar material, from streets.

Any person who shall dig or make any excavation in any street, sidewalk, alley or other public grounds of the city, or remove any earth, brick, stone or gravel, unless permitted by the engineering division, shall be guilty of a misdemeanor.
(Code 1982, § 20-67)

Sec. 23-127. Inspection; permission to fill.

When an excavation is made in or under any street, avenue, sidewalk or alley of the city, no person shall cause or allow it to be closed until the pipe laid or repaired in such excavation has been inspected by the city engineer.
(Code 1982, § 20-69)

Sec. 23-128. Approvals for utility service; persons authorized to make street openings; repairs.

(a) The approval to construct or reconstruct any utility service in the highway or street or to request permits for same, must be approved by the engineer of public works and the contractor shall not be entitled to any utility damages either for the excavation of the street or for any delay occasioned thereby.

(b) When a person is authorized through a duly executed permit from the department having jurisdiction, the contractor shall allow parties bearing such permits, and only those parties, to make openings in the road, street, or highway. The contractor shall make in an acceptable manner all necessary repairs due to such openings and such necessary work will be paid for as provided in these specifications, and will be subject to the same conditions as original work performed.
(Code 1982, § 20-70)

Secs. 23-129—23-160. Reserved.

ARTICLE V. BUILDING NUMBERING AND STREET ADDRESSES*

Sec. 23-161. Violations; notice.

If the owner of any building required to be numbered by this article shall neglect for the period of 20 days to duly attach and maintain the proper number of such building, the city engineer shall serve upon him a notice requiring such owner to properly number the building; and if he neglects to do so for ten days after the service of such notice, he shall be deemed to have violated this article.
(Code 1982, § 14-346)

Sec. 23-162. Numbering system established.

There is established a uniform system for numbering buildings fronting on all streets, avenues and public ways in the city; and all houses and other buildings shall be numbered in accordance with the provisions of this article.
(Code 1982, § 14-347)

Sec. 23-163. Base lines; quarter sections, rectifying lines.

(a) Governor's Drive, West Clinton Avenue, East Clinton Avenue, Tollgate Road and Bankhead Parkway shall constitute the base line which will divide the city into northern and southern parts. Meridian Street, Jefferson Street, Madison Street and Whitesburg Drive shall be considered the base line which divides the city into east and west parts. The city will be divided into quarter sections: Northeast, southeast, northwest and southwest. Streets running predominantly north and south will be known as streets, and streets running predominantly east and west will be known as avenues. The suffix "northeast," "southeast," "northwest" or "southwest" will become a part of the street name.

(b) Each building north of West Clinton Avenue, East Clinton Avenue, Toll Gate Road and Bankhead Parkway, and facing a street running

*Cross reference—Buildings and building regulations, ch. 7.

in a northerly direction, shall carry a number and address indicating its location north of the base line.

(c) Each building south of the north-south base line and facing a street running in a southerly direction shall carry a number and address indicating its location south of the base line.

(d) Each building east of Meridian Street, Jefferson Street, Madison Street and Whitesburg Drive, and facing a street running in an easterly direction, shall carry a number and address indicating its location east of the base line.

(e) Each building west of Meridian Street, Jefferson Street, Madison Street and Whitesburg Drive, and facing a street running in a westerly direction, shall carry a number and address indicating its location west of the base line.

(f) All buildings on diagonal streets shall be numbered the same as buildings on northerly and southerly streets if the diagonal runs more from the north to the south, and the same rule shall apply on easterly and westerly streets if the diagonal runs more from the east to the west.

(g) To ensure uniform numbering to the outlying sections of the city, there are established what are known as rectifying lines. Rectifying lines are auxiliary base lines and correct or rectify nonconformity of block numbers causes by unequal lengths of blocks on different streets. All streets running south of Governor's Drive will commence with 2,000 block; all streets running west of Memorial Parkway will commence with 2,000 block; all streets running north of Oakwood Avenue will commence with 2,000 block; all streets running east of Andrew Jackson and California Street will commence with 1,000 block. These streets constitute the rectifying lines.
(Code 1982, § 14-348; Ord. No. 84-166, § 1, 4-12-1984)

Sec. 23-164. Numbering to begin at base line; assignment of block numbers.

(a) The numbering for each street shall begin at the base line. The numbers within the first block shall be from 1 to 100, and the numbers in each succeeding block shall increase from the base line in units of 100, namely, the first block shall be 1 to 100; the second block shall be 200 to 299; the third block, 300 to 399, etc. There shall be assigned 100 numbers to each block, square or space that would be one block or square if streets each way were so extended as to intersect each other, and one number shall be assigned to each 15 feet of frontage. In blocks or equivalent space longer than 750 feet which is not intersected by a street, if extended the total length of space divided by 50 shall be used to determine the feet of frontage assigned to each number.

(b) Where blocks of different lengths occur on opposite sides of a street, the numbers on both sides shall be assigned on the basis of the shorter blocks unless the city engineer determines otherwise.

(c) All lots and houses on the right side proceeding from the base line shall be even numbers; all lots and houses on the left side proceeding from the base line shall be odd numbers, each commencing with the hundred assigned to that block, and shall increase from the base line number for each 15 feet of frontage, except as provided in this section. Where any building has more than one door serving separate occupants, a separate number shall be assigned to each door serving a separate occupant, providing the building is 15 feet or more in width. If the building is not 15 feet or more in width and the entrances are not that far apart, the next consecutive number shall be marked fractional. Buildings fronting on two or more streets shall have a number assigned only to the main entrance unless other entrances serve different occupants.

(d) A multiple-family dwelling having only one main entrance shall be assigned only one number; and separate apartments in the building will carry a letter designation such as "A," "B" and "C" in addition to the number assigned to the main entrance.

(e) All buildings facing streets not extending through to base line shall be assigned the same relative number as if the street had extended to the base line.
(Code 1982, § 14-349)

Sec. 23-165. Building numbers to be assigned; specifications; cost; posting.

(a) There shall be assigned to each house and building located on any street, avenue, alley or highway in the city its respective number under the uniform system provided for in this article. When each house and building has been assigned its respective number, the owner shall place or cause to be placed upon each house or building and/or both sides of a curb-mounted mailbox controlled by him the number assigned under the uniform system provided for in this article.

(b) Such numbers shall be placed or if missing, replaced, within 20 days after the assigning of the proper number. The cost of the numbers shall be paid for by the property owner.

(c) The standard minimum height of numbers for all houses and buildings is three inches. Single-family and duplex dwellings built and approved for occupancy before May 1, 1984, may continue to use numbers 2½ inches in height.

(d) The numbers shall be conspicuously placed so that they can be seen plainly and be read from the street. Further:

(1) With single-family duplex dwellings, the numbers shall be placed immediately above, on or at the side of the door or alongside the pathway to the door, and/or both sides of a curb-mounted mailbox.

(2) With multiple-family dwellings, the numbers shall be placed on the building face most visible from the parking area or street.

(3) With commercial buildings whose public entrance is visible from the street, the numbers shall be placed above, on or at the side of the door of each individual business. If no public entrance is visible from the street, the building will be numbered on the side most visible from the street.

(4) Whenever any building is situated more than 50 feet from the sidewalk line, the number of such building shall be conspicuously displayed on the owner's property at the sidewalk line, near the walk, driveway or common entrance to such building and upon the gatepost, fence, post, both sides of a curb-mounted mailbox, or other appropriate place so as to be easily describable from the sidewalk or street.

(e) All numbers shall be of a durable material with numbers in contrast to background color.
(Code 1982, § 14-350; Ord. No. 84-166, § 2, 4-12-1984)

Sec. 23-166. New buildings.

Whenever any house, building or structure shall be erected or located in the city after the establishment of this uniform system of house and building numbering, in order to preserve the continuity and uniformity of numbers of the houses, buildings and structures, it shall be the duty of the owner or builder to get the proper number assigned by the city engineer. Once the number has been assigned, it is the responsibility of the owner or builder to procure the correct number, of a three-inch minimum size, and to immediately fasten the number so assigned upon the building as provided by this article. No building permit shall be issued for any house, building or structure until the owner has been assigned an official number by the city engineer for the premises. Final approval of any structure erected, repaired, altered or modified after May 1, 1984, shall be withheld by the manager of inspection until permanent and proper numbers have been affixed to the structure.
(Code 1982, § 14-351; Ord. No. 84-166, § 3, 4-12-1984)

Sec. 23-167. Numbers not to be transferred.

Numbers shall not be moved from one house to another and shall remain on the structure or location to which assigned unless changed by authority of the city engineer.
(Code 1982, § 14-352)

Sec. 23-168. Duty of city engineer.

It shall be the duty of the city engineer to inform any party applying of the number belonging to or embraced within the limits of any lot or property as provided in this article. In case of

conflict as to the proper number to be assigned to any building, the city engineer shall determine the number of such building.
(Code 1982, § 14-353)

Sec. 23-169. Private streets, drives, other ways.

The provisions of this article shall apply to private streets and drives, and other private ways providing access to more than one dwelling unit; however, street name signs of a distinctively different design or color, as determined by the city engineer, shall be posted or arrangements for posting satisfactory to the city engineer shall be made before assignment of any numbers are made; further, all traffic control signs and traffic markings located on private streets, drives or other private ways must be installed and maintained by the private developers or owners having access rights over such ways. All traffic control signs, markings and other devices installed at the intersection of a private street, drive or other private way shall meet the same standards applicable to public ways and shall be installed and maintained at the expense of the private developer or owners having access rights.
(Ord. No. 83-550, § 14-354, 12-8-1983)

Secs. 23-170—23-200. Reserved.

ARTICLE VI. ORGANIZED EVENTS*

DIVISION 1. GENERALLY

Sec. 23-201. Purpose; definitions.

(a) *Purpose*. In order to preserve and protect the rights guaranteed under the First Amendment of the United States and Alabama Constitutions and to provide for the safe and orderly use of public property, for both First Amendment activity and activity that is not protected by the First Amendment, this article is intended to establish reasonable time, place, and manner regulations for the use of public property characterized as traditional public forums. The regulations are designed to be content-neutral, narrowly tailored to serve significant governmental interests, and to leave open ample alternative channels for communications of information. The regulations are also intended to coordinate multiple uses of limited space; assure preservation of public facilities and improvements; prevent dangerous, unlawful, or impermissible uses of public property; protect the public safety; ensure that city resources are deployed efficiently and effectively; provide for fees and cost recovery; address secondary harms; and authorize and establish objective standards in the administration of this article.

(b) *Definitions*. The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Assembly means a gathering of individuals organized by an event organizer for a common purpose, which is intended to remain in the same general location.

Basic event means an organized event which:

(1) Does not require or include for the conduct of the event the use of an enhancement;

(2) Does not require approval, licensing, or permitting pursuant to other city laws, including the city's alcoholic beverage laws, technical and fire codes, and business license code, and laws administered by the health department;

(3) Does not require city event services in excess of the standard complement; and

(4) Is not expected to have more than 500 participants at any one time during the event.

Business day means a day on which the city administrative offices are open for regularly conducted business and does not include Saturdays, Sundays, official city holidays, or a day on which weather or other conditions have made the city's administrative offices inaccessible.

*__Editor's note__—Ord. No. 13-189, § 1, adopted May 9, 2013, amended Art. VI in its entirety to read as herein set out. Former Art. VI, §§ 23-201—23-241, pertained to special events, and derived from Ord. No. 97-611, § 1, 10-23-1997.

Capacity limit means the capacity limit for the public space upon which an assembly is to be conducted, as follows:

(1) The stated capacity of a given public space established by policy or practice;

(2) If there is no stated capacity, then the capacity of the public space based on a formula of nine square feet per participant, which is arrived at by taking the square footage of the public area generally available for occupancy by participants and dividing the number by nine; or

(3) An adjusted increase or decrease in the capacity limit established by the event administrator at the time of permitting or during the event conduct, should the administrator determine that such adjustment is warranted taking into account the public safety and event conduct.

Clear zone means the areas described in chapter 25, article IX of this Code that are to remain unobstructed, which, in the case of an organized event means unobstructed by objects or an assembly of participants.

City event services are city services provided or required by the event administrator as a result of event conduct.

City event services standard complement or *standard complement* means those city event services normally available to be assigned or provided to an organized event by the event administrator in accordance with standard policy or procedure.

City services mean generally available services of the city, including labor and materials, which are provided by the city for an organized event, including public safety services such as safety, traffic and crowd control, public works services, and the use of public structures, instrumentalities, or equipment. The term does not include services provided under a contract with the city or an employee of the city on an extra-duty or off-duty status, including traffic control or security.

Conditional application means an application for a special event permit that is complete in all respects except for required approval, licensing, or permitting pursuant to other city laws or laws administered by the health department, or except for required leasing of the public space.

Enhancements include facilities, structures, equipment, instrumentalities, or animals used in the conduct of an event that require permitting under the city's technical or fire codes or are reasonably likely to create a secondary harm, such as stages, fencing, generators, barricades, pyrotechnics, inflatables, motorized vehicles, utility poles, floats, booths, canopies, and tents. The term does not include small objects that can be accommodated within the public space used for the event without implicating the foregoing requirement or concern, such as coolers, signage, folding chairs or tables, small tents or canopies, accommodation for the handicap, or small portable equipment that does not require electricity.

Enhanced event means an organized event which:

(1) Requires or includes the use of an enhancement;

(2) Requires approval, licensing, or permitting pursuant to other city laws, including the city's alcoholic beverage laws, technical and fire codes, and business license code, and laws administered by the health department;

(3) Requires city event services in excess of the standard complement; or

(4) Is expected to have more than 500 participants at any one time during the event.

Event administrator means the chief of police, or his designee.

Event conduct or *conduct of the event* means the time, place, or manner in which an event is conducted by or for participants, including event set-up and take-down, and which has nothing to do with the content of protected forms of speech, or the conduct of non-participants including counter-protesters or hecklers.

Event organizer or *organizer* means a person organizing, sponsoring, initiating, coordinating, promoting, or holding an organized event. The term does not include a person who provides only

incidental funds or support for an organized event and who does not otherwise have responsibility for the event.

Extended event means an organized event that occurs, with or without interruption, for more than 20 dates over a consecutive six-month period. An extended event shall be deemed to include the same organized event or an event organized by the same event organizer.

For-profit event means an organized event which is primarily intended as a profit-making or revenue raising enterprise for any person that is not a non-profit organization. The term also means an organized event that is conducted primarily for the sale, demonstration, advertisement, or promotion of products, goods, or services.

Include or *including* does not limit a term to a specified example.

Major arterial means a street or highway of great continuity designed to accommodate the highest traffic volumes and longest trip desires. Major arterials are defined and designated in the city's major street plan.

Minor event means an organized event which:

(1) Will be conducted at a time and place and in a manner that complies with applicable laws, including section 23-232 of this article;

(2) Does not require or include for the conduct of the event the use of an enhancement;

(3) Does not require approval, licensing, or permitting pursuant to other city laws, including the city's alcoholic beverage laws, technical and fire codes, and business license code, and laws administered by the health department;

(4) Does not require city event services including the standard complement;

(5) In the case of an organized event conducted on a street, does not have more than 25 vehicles at any one time during the conduct of the event;

(6) In the case of an organized event conducted in a park, does not have more than 300 participants at any one time during the conduct of the event, subject to applicable capacity limits for the public space;

(7) In the case of an organized event conducted on a sidewalk, does not have participants at any one time during the conduct of the event whose number exceeds 50 participants in the case of an assembly and 100 participants in the case of a procession, subject to applicable capacity limits for the public space;

(8) Is not a sound event; and

(9) Is not a for-profit event.

Notice means the sending of any notice or notification required under this article to the appropriate address, by personal delivery, facsimile, electronic mail, first class mail, or certified mail return receipt requested; and the receipt thereof within the time specified in this article, which receipt shall be deemed to occur as follows: upon delivery in the case of personal delivery, upon confirmation of delivery in the case of facsimile and electronic mail, three days after mailing in the case of first class mail, and as indicated in the return receipt in the case of certified mail.

Organized event means an assembly or procession, or a combination thereof.

Park means public park grounds under the control of the city and shall include the sidewalks within but not immediately adjacent to the park, unless expressly permitted otherwise.

Park amenities mean features of a park such as picnic tables, small shelters, and gazebos, which are generally available for public use in accordance with park regulations on a first-come-first-serve basis with or without the need for a reservation or a permit.

Park facilities mean those park grounds or those buildings, structures, facilities, or improvements within a park, which are dedicated, designed, or intended for specific uses, including recreation centers, senior citizen centers, park buildings, nature preserves, nature centers, sports facilities, model airplane fields, tot lots, lakes, and picnic shelters.

Park regulations mean city laws or stated departmental policy or practice of general application, which govern the use of or conduct within parks.

Participants mean only those persons actually taking part in the event, including those organizing the event, those invited to attend, those paying to attend, or those for whom the event is organized including the general public.

Procession means a gathering of individuals organized by an event organizer for a common purpose, which is not intended to remain in the same general location, but to proceed along a route without unreasonable delay.

Prior use means a use of public property which takes precedence over a proposed organized event because the prior use is:

(1) Another organized event that is first in time;

(2) The subject of an already-pending or executed lease or license; or

(3) A scheduled state or city project, activity, or event.

Public facilities mean those municipal buildings, structures, facilities, or improvements dedicated, designed, or intended for specific uses which are not considered to be traditional public forums, including civic centers, sports facilities, park facilities, cemeteries, public garages, parking lots, museums, or other such municipal buildings, structures, facilities, or improvements.

Public place, public space, or *public area* means public property of the city that is generally available for organized events including public streets, sidewalks, and parks.

Public safety means the health, security, and safety of the public, including the general public, event participants, and public employees.

Restoration reimbursement costs mean those losses, damages, costs, or expenses that are incurred or suffered by the city as a result of event conduct for which the city is due to be reimbursed or compensated. In no event shall "restoration reimbursement costs" mean or refer to those losses, damages, costs, or expenses that are incurred or suffered by the city as a result of the conduct of nonparticipants.

Secondary harm refers to the danger, damage, injury, or unreasonable inconvenience, interference, demand, or annoyance, to or on adjacent or nearby uses, the general public, public property, the use of public space, other organized events, city resources, or public safety, resulting or likely to result from event conduct.

Sidewalk means that portion of a public right-of-way under the control of the city that is generally between the curb line or lateral line of the street and the adjacent property line, or public easements located on private property, which portion is dedicated or intended for use by pedestrians.

Sound event means an organized event the event conduct of which would violate the city's noise ordinance found in chapter 12, article V of this Code.

Special event means an organized event that is required to obtain a permit under this article.

Special event permit or *event permit* means a permit issued pursuant to this article.

Sports facilities mean public property designed, used, or maintained primarily for the purpose of athletic events, competitions, or exhibitions, including ball fields, skateboard parks, equestrian facilities, ice skating rinks, concession stands, swimming pools and pool houses, bocci courts, hockey courts, volleyball courts, tennis courts, basketball courts, and multi-purpose courts.

Street means any public road, thoroughfare, avenue, boulevard, parkway, drive, or other public way dedicated or used primarily for purposes of vehicular traffic that is under the control of the city.

(Ord. No. 13-189, § 1, 5-9-2013; Ord. No. 21-449, § 1, 5-27-2021)

Sec. 23-202. Property and activities not covered.

(a) *Property not covered.*

(1) Unless the organized event requires for its successful execution the provision of

city event services in accordance with subsection (d) of this section, this article is not intended to regulate organized events that are not conducted on public property or property which is not otherwise under the control or jurisdiction of the city, including the following:

a. Private property;

b. Property which is under the control or jurisdiction of the federal government or any agency or instrumentality of the federal government;

c. Property which is under the control or jurisdiction of the state or any agency or instrumentality of the state unless the state has specifically authorized the city to control the use of such property for organized events; or

d. Property which is under the control or jurisdiction of municipal boards or agencies.

(2) *Public facilities*. Unless the organized event requires for its successful execution the provision of city event services in accordance with subsection (d) of this section, this article is not intended to regulate organized events which are conducted upon or within public facilities; provided, however, such facilities may be designated by city policy as available for organized events regulated pursuant to this article, but only to the extent such designation does not interfere with the dedicated, designed, or intended use of such facilities, or is not contrary to any applicable limitations on the property. Nothing in this subsection (a) shall be construed to prevent the city from charging rent or a use fee for the use of public facilities, including those facilities made available for organized events regulated by this article.

(b) *Activities not covered*.

(1) This article shall not apply to funeral processions, programmed activities provided or managed by the city such as recreational programs, military or other official convoys or motorcades, or other activities upon public property which are regulated or permitted by other provisions of this Code.

(2) This article is not intended to regulate or allow the use of public property solely for the conduct of a commercial enterprise including the sale, demonstration, advertisement, or promotion of products, goods, or services. Such uses of public property shall be regulated by applicable laws including zoning and franchising laws and laws governing sales in the central city area. Notwithstanding the immediately foregoing provision, sponsor events in the central city area, which involve multiple vendors of permitted activities, which activities are those set forth in section 18-36(e) of this Code, operating under a sponsor shall be governed by this article.

(c) Exclusion from the terms of this article pursuant to this section does not relieve the person responsible for an event from the responsibility of obtaining permission or authorization from the appropriate person for the use of property or conduct of activities that are not covered by this article.

(d) *City event services*. Where an organized event otherwise excluded from the requirements of this article in accordance with subsection (a) of this section requires for its successful execution the provision of city event services, the event organizer must make application for a special event permit in accordance with this article. The event organizer may be required to pay for the city event services costs, including the standard complement, provided for the event. (Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-203. General conditions.

(a) *Organized events*. All organized events, including special events, regulated by this article shall be subject to the following conditions:

(1) Organized events shall be conducted in a safe and sanitary manner.

(2) Immediately following the termination of an organized event, the event organizer

shall be responsible for restoring the public area used for the event and public property damaged by the event to its condition prior to the commencement of the event, or where public property is damaged beyond repair replacing it; where such restoration or replacement is necessitated by event conduct.

(3) At any time prior to or during the event, the event administrator shall have the authority to condition, limit, or prohibit an organized event in the construction or use of enhancements in order to address a secondary harm.

(4) Participants in an organized event shall comply with this article and conditions imposed pursuant to this article, and shall otherwise comply with applicable law.

(5) The issuance of a special event permit or the right to use public space for an organized event pursuant to this article shall not entitle the participants to use public property not regulated by this article, including public facilities.

(6) The use of the parks for an organized event shall be subject to applicable park regulations, unless specifically waived in the special event permit, including regulations concerning park closure, use of park amenities and charges for their use, and conduct in the park.

(7) The conduct of an event, including that of its participants, shall not prevent access to uses adjacent to the site of the event, including public facilities, unless permission has first been obtained from the owner or person in control thereof.

(8) An organized event shall not protest or picket before the residence or dwelling of any individual who is the target of the protest or picket.

(9) Organized events shall be conducted during daylight hours, except in areas possessing sufficient artificial light which provides enough illumination throughout the event area to protect public safety.

(10) Event conduct, including that of its participants, shall not obstruct or impede vehicular access to and from properties adjacent to the event, unless the event administrator determines that to do so would not be likely to cause a hazard to public safety, an unreasonable inconvenience to the traveling public, or an unreasonable hardship to adjacent uses.

(11) Event conduct, including that of its participants, shall not assemble or place an object in the clear zone, unless specifically relieved of this condition by the event administrator in the event permit.

(12) No organized event shall be conducted upon a major arterial unless a special event permit has been issued allowing the event to be conducted on the major arterial because the magnitude of the event requires it and such an event cannot reasonably be accommodated elsewhere. This subsection (12) shall not apply to an organized event that is a procession that merely crosses a major arterial and that is not otherwise prohibited according to the terms of this article.

(13) Handicap access installed on the public space shall be preserved or an acceptable alternative provided.

(14) In the case of a procession, the event shall move from its point of origin to the point of termination without unreasonable delays en route.

(15) Event participants shall not wear gas masks or use other devices that are designed, used, or intended to be used to interfere with the ability of the police to control or manage crowds.

(16) The number of participants in an organized event shall not exceed applicable capacity limits for the public space and shall not exceed the number of participants established for the type of event being conducted.

(17) Participants of an organized event shall not encamp on public space.

(18) An organized event shall be subject to the city's alcoholic beverage regulations found in chapter 3 of this Code.

(19) Where there is more than one organized event conducted upon a sidewalk in the same general area, the events shall be conducted generally at least ten feet apart, unless the special event permit allows otherwise.

(b) *Special events*. In addition to the conditions of subsection (a), special events regulated by this article shall be subject to the following conditions:

(1) A special event shall be conducted within the area or route designated in the permit for the event during the conduct of the event.

(2) At least one organizer of the special event shall carry the special event permit upon their person during the conduct of the event.

(c) *Additional conditions*. The event administrator may establish such other reasonable conditions in the conduct of an organized event at the time of permitting or during the conduct of an event which the administrator considers to be reasonably necessary in order to carry out the provisions of this article, consistent with its stated purpose, including addressing secondary harms. A violation of such conditions shall constitute a violation of this article.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-204. Public conduct.

(a) No person, including participants in another organized event, shall unreasonably hamper, obstruct, impede, or interfere with an organized event or with any person, vehicle, or animal participating or used in the event.

(b) No driver of a vehicle shall drive between the event's units, participants, or vehicles that are in motion and conspicuously designated as being a part of the event, unless otherwise directed to do so by law enforcement personnel.

(c) The chief of police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street constituting a part of the route or location of an organized event. When necessary, the chief of police shall see that signs are posted to such effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation of such signs.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-205. Revocation or termination of an event; opportunity to cure.

(a) *Revocation; termination during event*. An organized event may be terminated or special event permit revoked on the day of the event without prior written notice and without a hearing, if the mayor, the chief of police, the fire chief, or the event administrator determines that:

(1) Revocation or termination is in the interest of the immediate public safety because of fire, casualty, act of nature, or a public emergency;

(2) The conduct of the event violates applicable law, including provisions of this article or permit conditions, which has resulted in a secondary harm; or

(3) A breach of the peace is occurring or an activity in the nature of a riot has occurred.

(b) *Cure*. Before revoking an event permit or terminating an organized event under subsection (a)(2) of this section, the event administrator shall, if the administrator believes it reasonable to do so without comprising public safety or public property, endeavor to allow event conduct to be modified in order to cure the violation and address the secondary harm, to the administrator's satisfaction; provided, however, if city event services are required to protect public safety or public property and such services are not available, then the event permit shall be revoked or the event terminated. Where the violation includes a failure to obtain permitting in accordance with this article, the event administrator may immediately issue a permit, provided that the secondary harm caused by event conduct has been addressed to the satisfaction of the event administrator. Nothing in this subsection (b) shall be construed to prevent the enforcement, by arrest or citation, of applicable laws.

(c) *Requirements upon termination or revocation*. Upon receipt of the notification that the permit to use the public area has been revoked or the organized event terminated pursuant to this section, the event participants shall cease the event and may be directed to either disperse immediately or to commence with restoring the site to its condition prior to the event in accordance with section 23-203(a)(2) of this article.

(d) *Revocation prior to event*. The event administrator shall have the authority to revoke a special event permit issued for the use of public space any time before the time the event is scheduled to commence if he determines that, due to new information or a change in circumstances, grounds to deny the application exist, in which case the event organizer may appeal the revocation in accordance with the procedures of section 23-238 of this article; provided, however, no appeal shall be available where the revocation of the event permit is done in the interest of the public safety because of fire, casualty, act of nature, or a public emergency.
(Ord. No. 13-189, § 1, 5-9-2013)

Secs. 23-206—23-230. Reserved.

DIVISION 2. PERMIT REQUIREMENTS

Sec. 23-231. Requirement; event cancellation; lease events; sound events; extended events.

(a) *Permit requirement*. Except for minor events, all organized events conducted on a public area shall be required to obtain a special event permit. No person shall knowingly participate in a special event for which an event permit is required under this article unless an event permit has been issued for the event.

(b) *Event cancellation or delay*. In order to prevent the unnecessary tying up of public space or city event services for a special event that does not occur as scheduled, each of the following shall apply:

(1) *Cancellation or delay of basic events and enhanced events*.

a. *Basic events*. The organizer of a permitted special event that is a basic event shall provide to the event administrator: (i) at least 24 hours' advance notice of a delay of more than one hour in the start time of the event on any given day of the event, and (ii) at least 48 hours' advance notice of a cancellation of the event, which, in the case of a multiple day event, means 48 hours' notice in advance of the day on which the event will not occur, if the event is not entirely cancelled.

b. *Enhanced events*. The organizer of a permitted special event that is an enhanced event shall provide to the event administrator: (i) at least 48 hours of a delay of more than one hour in the start time of the event on any given day of the event, and (ii) at least five business days advance notice of a cancellation of the event, which, in the case of a multiple day event, means five business days notice in advance of the day on which the event will not occur, if the event is not entirely cancelled.

c. *Event canceled*. Unless the organizer has provided the required advance notice in accordance with the immediately foregoing subsections (1)a. and b., where no participants have arrived or event set-up started at the location or starting point of a basic event or enhanced event within two hours after its scheduled starting time for any given day of the event, the event shall be deemed to have been canceled and the permit surrendered for the remainder of the event. In the case of multiple day events whose permit has been deemed surrendered, the event administrator may, upon the request of the event organizer, reinstate the permit provided that the request is made at least 20 hours before the next scheduled start time for the event and further provided that the required city event services, if any, and the public space are available.

d. *Permit denial*. Failure of the same event or event organizer to provide the required advance notice of cancellation of an event three or more times within the same calendar year shall constitute grounds for denying a subsequent event permit application made during the same year for the same event organizer or same event.

e. *Reimbursement for services*. Where city event services have been assigned to a special event that has been canceled by the organizer without the required advance notice, the organizer shall reimburse the city upon invoicing for costs incurred, if any, for city event services in excess of the standard complement.

f. *Weather events, etc*. Notwithstanding anything to the contrary contained in this subsection (1), where the delay or cancellation of an event is necessary because of a potentially hazardous weather event or other situation beyond the organizer's control that is likely to pose a risk to public safety, then the organizer shall be required to provide notice of the delay or cancellation of the event as soon as reasonably practicable under the circumstances.

g. *Delayed events*. Events that are delayed in starting on a given day shall still end at the time stated in the permit, unless the event administrator reasonably determines that the event can end later to make up for the delay in the start time.

(2) *Cancellation of permitted minor events*. With regard to a minor event that has obtained a permit, where no participants have arrived or event set-up started at the location or starting point of the event within two hours after its scheduled starting time, the permit shall be deemed to have been surrendered for that day. The minor event may still be conducted on that day, but the event will have lost its prior use status under the permit for that day.

(c) *Lease events*.

(1) As a condition of event permitting, organizers for alcoholic beverage licensed events or for-profit events may be required to obtain a lease or license from the city for the use of the public space.

(2) In addition, the city may require a lease or license for:

a. Those organized events which involve the use of enhancements that pose an enhanced risk to public safety or damage to public property, including events that involve dangerous instrumentalities such as pyrotechnics;

b. Organized events that are anticipated to have in excess of 10,000 participants over the duration of the event; or

c. Multiple-day events that will not remove from the public area the event facilities or equipment.

(3) An event organizer that desires to have exclusive control or possession of public space upon which the event will be held may request a lease or license from the city, which the city is not obligated to grant.

(4) A lease or license event shall be subject to the provisions of this article including applicable permitting and, in addition, the city may impose additional requirements in the lease or license including insurance, the posting of security, and indemnification requirements.

(5) Leases or licenses for for-profit events may include use fees to be paid to the city by the event organizer for the use of the public space based on either a flat fee or percentage of gross event proceeds.

(6) Notwithstanding anything to the contrary contained in this article, leases or licenses for for-profit events or alcoholic

beverage licensed events may include provisions for cost recovery to be paid to the city for city event services.

(7) The issuance of a lease or license shall not convert the space from a traditional public forum.

(d) *Sound events*.

(1) Sound events are subject to the approval of the city's department of natural resources and event organizers shall be required to complete an application on forms provided by the city. The application will be processed by the department of natural resources in conjunction with the processing of the special permit application by the event administrator.

(2) In approving sound events the department of natural resources may consider, among other relevant considerations, the proposed time, location, and duration of the event; secondary harms; whether there is a more suitable alternative location or time for the event; the affect the sound levels would have on the ability of the city to conduct crowd control; the likely hardship on the successful conduct of the event if the sound event is not approved; the history of citizens' noise complaints for the same or substantially similar events or locations; and the decibel level likely to be generated by the event.

(3) In approving a sound event the department of natural resources may attach reasonable conditions which address the impact of the sound event, such as limiting the duration or time of the event, moving the event to a more suitable location or time, setting acceptable decibel levels for the event, and dictating the positioning and direction of the amplification equipment.

(e) *Private events*.

(1) For purposes of this subsection (e), the term *private event* means an organized event which is intended to be limited to an invited or select group of individuals including:

a. Parties, reunions, ceremonies, fundraisers, and other social gatherings where guests are there by invitation only;

b. Gatherings of friends or family;

c. Gatherings of members or guests of an organization;

d. Gatherings for religious observances;

e. Location shoots or tapings of films, photographs, commercials, or other similar audio or videotaped events;

f. Events requiring paid admission or tickets; or

g. Events involving an official who has a security detail that requires the event to be private in order to assure security.

(2) Nothing in this article shall be construed to prevent private events from limiting access or admission to the event to those for whom the private event is organized.

(3) The status of an organized event as a private event under this subsection (e) shall not convert the public space into a private premises for purposes of the city's prohibition against drinking in a public place found in chapter 3 of this Code.

(f) *Extended events*. Where an extended event is using the same or substantially similar public space that is a preferred location for another organized event and multiple events cannot reasonably be accommodated, the event administrator may apportion the time or public space between or among the organized events on an equitable basis, provided reasonable accommodation is made for the other event in reasonably close proximity to the preferred location.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-232. Minor events.

(a) *Permitting not required for minor events*. Subject to the provisions of this section, for public spaces regulated by this article, minor events

shall not be required to obtain a special event permit; provided, however, the event organizer may elect to obtain permitting in accordance with this article upon following the application procedures for a special event permit and the event shall, upon the issuance of an event permit, be considered to be a special event.

(b) *Conditions for minor events*.

(1) In the conduct of minor events, the event shall be subject to applicable provisions of this article that apply to organized events including section 23-203, general conditions, and section 23-205, revocation or termination of an event.

(2) The use of public space by a minor event shall:

a. Be on a first-come-first-serve basis and shall be subordinate to prior uses of the same or a substantially similar public space and multiple uses cannot reasonably be accommodated; and

b. Not be conducted upon or in unreasonably close proximity to public property which is unavailable due to fire, casualty, acts of nature, scheduled construction or maintenance, or public emergency.

(3) In the case of minor events conducted on the sidewalk, as required of all organized event conducted on a sidewalk, minor events on a sidewalk shall be conducted generally at least ten feet apart from other organized events; provided, however, this separation requirement shall not prevent participants of other organized events when not actually participating in their own event from simply walking along that portion of the sidewalk left unencumbered by the minor sidewalk event.

(4) Participants in a minor event conducted on the streets or sidewalks shall proceed in an orderly fashion, observe all traffic signals when crossing a street, and otherwise obey the rules of the road, including, where applicable, Code of Ala. 1975, section 32-5A-215.

(5) Minor events conducted on the streets shall not have more than 25 vehicles at any one time during the conduct of the event.

(6) For minor events on the sidewalk, such events shall be conducted in a manner that does not substantially inhibit the flow of pedestrian traffic upon the sidewalks.

(7) Participants in a minor event shall use only the amount of public space reasonably necessary for the conduct of the event so that other minor events that want to hold an event in the same general area can be accommodated. The event administrator may require a reasonable adjustment in event conduct to accommodate multiple uses, including other organized events, of the public space.

(8) Signage accessory to the event is allowed; provided, however, such signage shall not be affixed to or installed on public property, shall not be within the clear zone, and shall not be constructed or used so as to endanger public safety or interfere with others in their use of public property.

(9) Minor events shall be conducted in a manner that is consistent with the dedicated or intended use the public space occupied by the event and in a manner which does not interfere with or detract from the use of the public space by other persons or organized events, or pose an unreasonable risk to the public safety.

(c) If the conduct of an organized event that does not require permitting under this section creates a secondary harm or violates a condition applicable to a minor event, the event administrator shall have the right to require the elimination or modification of the condition creating the harm or the violation, or to otherwise proceed in accordance with section 23-205.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-233. Application.

(a) *Application*. A person seeking issuance of a special event permit shall file an application during regular business hours with the event administrator on forms provided by the city.

(b) *Application timing*.

(1) *Application deadlines*. Subject to subsection (b)(4) concerning extended events, in order to facilitate advance planning for a special event, organizers may submit completed or conditional applications for a special event permit starting one year prior to the date of the event. In order to ensure that applications for a special event can be processed prior to the special event, the following event permit application deadlines for completed applications shall apply:

a. In the case of a minor event that is not required to be permitted but where the event organizer wants to obtain an event permit, the application deadline is no later than ten days before the date of the proposed event.

b. In the case of basic events, the application deadline is no later than 20 days before the date of the proposed event.

c. In the case of enhanced events or lease events, the application deadline is no later than 30 days before the date of the proposed event.

(2) *Late applications*. Late applications received after the application deadlines noted above shall be accepted and processed by the event administrator prior to the date of the event if reasonably practicable under the circumstances given the proposed conduct of the event.

(3) *Conditional applications*. Conditional applications may be submitted in order to meet the application deadline, subject to the obtaining of the required approval, license, permit, or lease at least five business days prior to the start date of the event.

(4) *Extended events*. A completed or conditional application for an extended event may be submitted no earlier than 180 days prior to the first day of the event. Where multiple applications have been submitted for an extended event, the applications shall be treated as one application.

(c) *Applications processed in order of receipt*. Completed or conditional applications will be processed in order of receipt. An application shall not be considered complete until all required information is provided. Where the event administrator cannot reasonably determine order of receipt, the administrator may conduct a random drawing to determine priority of use.

(d) *Application information*. The application for a special event permit shall include information consistent with the purpose of this article and in sufficient detail to allow for its administration, including, where appropriate, the following:

(1) The name and contact information of the event organizer and the person who will be in charge of the conduct of the event;

(2) If the special event is proposed to be conducted on behalf of an organization, a letter from that organization shall be required authorizing the event to be conducted on its behalf;

(3) A detailed description of the event;

(4) Logistical requirements of and specific plans for the event;

(5) Information demonstrating compliance with requirements or conditions for permit issuance;

(6) The expected source of event proceeds, including cash receipts, licensing, sponsorships, television, advertising, and other revenues or concessions, and the expected disbursement of those proceeds;

(7) A notarized statement that indicates permission has been obtained for the event's use of private property or property under the control or jurisdiction of any board, agency, or other governmental entity;

(8) A statement of any special circumstances which are material to the permit requested; and

(9) Such other relevant information as the event administrator may reasonably require in the administration of this article.

(e) *Report*. Within four weeks after the conclusion of the event, the event organizer shall provide an itemized report containing receipts and disbursements from the event, which report is subject to verification for accuracy by the city upon written request within 60 days after receipt of the report.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-234. Insurance and indemnification.

(a) *Insurance*. In the case of enhanced events which are not required to obtain a lease but which the event administrator determines are reasonably likely to pose a risk to persons or property because of the conduct of the event, the event administrator may require the organizer, as a condition to permitting, to provide, at the time of the filing of a permit application, proof of bodily injury and property damage liability insurance written on an occurrence basis and naming the city, its officials, officers, employees, agents, contractors, and volunteers performing authorized city functions, as additional insureds, and covering the entire public area of the event for the duration of the event in a minimum amount of $100,000.00 for the injury to or death of any one individual and $300,000.00 for the injury to or death of any number of individuals in one occurrence, and property damage liability insurance in the amount of $100,000.00. Such policy shall insure both the city and the organizer but shall be so endorsed as to create the same liability on the part of the insurer as though a separate policy had been written for the city and the organizer. Such policy shall be issued by a company authorized to engage in the insurance business in the state and maintaining a Best rating of not less than "A."

(b) *Indemnification*. The organizer of a special event shall, at the time of making application for a special event permit and on forms provided by the city, agree to indemnify and hold harmless the city, its officials, officers, employees, agents, contractors, and volunteers performing authorized city functions, from and against any and all claims, costs, losses, expenses through appeal (including reasonable attorneys' fees, and costs or expenses incidental to the investigation of claims and lawsuits), demands, payments, suits, actions, recoveries, penalties, fines, liabilities, and judgments, of any nature and description, resulting from or arising out of the acts or omissions of the event organizer, its officers, servants, agents, contractors, or employees, or event participants, in connection with the conduct of the event.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-235. Services criteria, fees, and costs.

(a) *Park fees*. An event organizer shall pay at the time of the filing of an application for a special event permit any fees required for the use of any park amenities in accordance with the schedule of fees established by the city's recreation and landscape management department.

(b) *City event services costs*.

(1) *City event services criteria*. City event services, including the standard complement, will be assigned to or required for an organized event based on pre-established objective criteria related to event conduct that the event administrator determines as being reasonably necessary in order to address secondary harms and accommodate the logistical requirements of and specific plans for the event conduct. Organizers of special events shall work in good faith with the event administrator to try and achieve the least expensive alternative available consistent with the purpose of the proposed special event.

(2) *Exclusion from provisioning of city services.* The city shall not provide as a part of the provisioning of city event services for an organized event under this article services for over-night security of an event site, gate security, security for monies or valuables, carting or hauling of waste, and other services which are typically available on a private contractual basis. This subsection (b)(2) shall not be con-

strued to prevent an event organizer from hiring city personnel on an off-duty or extra duty basis to provide such services.

(3) *Provisioning of city event services subject to availability*. Notwithstanding anything in this article to the contrary, the provisioning of city event services, including the standard complement, shall be subject to the availability of such services for an event, including unavailability due to prior assignment, public emergency, equipment damage or repair, or scheduled maintenance. Where city event services, including the standard complement, are necessary for the conduct of the event but are unavailable, then the organizer of the special event may elect to modify the conduct of the event to eliminate the need for city event services, cancel the event, provide its own services subject to the approval of the police chief for public safety services, or reschedule the event to a time when city event services are available.

(4) *Reimbursement for city event services*. Subject to section 23-231(c)(6):

a. *Standard complement for special events*. The city event services standard complement shall, subject to availability and as needed, be provided by the city without charge for special events, except for for-profit events.

b. *City event services in excess of standard complement for enhanced events*. Subject to the following subsection c., an organizer of an enhanced event shall be required to reimburse the city for the actual costs for city event services that are incurred by or on behalf of the city that are in excess of the standard complement. Prior to the commencement of the event, the event administrator will provide the organizer with an estimate of such costs; however, the city will not be bound by the estimate should it differ from the actual costs incurred by the city. In no case shall an event organizer be required to reimburse the city for the costs associated with providing city services based on the actual or anticipated conduct of non-participants.

c. *Early application for enhanced events*. Except for for-profit events, an organizer of an enhanced event will not be required to reimburse the city for city event services in excess of the standard complement if the organizer has filed a completed or conditional application at least 120 days prior to the date the proposed event is scheduled to commence.

(5) Where an event organizer desires city events services in excess of those suggested or required by the city based on the criteria set forth above in subsection (b)(1) of this section, the organizer shall be required to either, at the election of the event administrator, pre-pay the estimated costs of such services, which shall be adjusted as necessary once the actual costs have been determined, or reimburse the city for the actual costs of such services.

(c) *Restoration reimbursement costs*.

(1) Notwithstanding anything to the contrary contained in this section, if the event organizer fails to perform the organizer's restoration responsibilities in accordance section 23-203(a)(2), the city may perform or have performed the restoration work and invoice the event organizer for the restoration reimbursement costs. Within ten business days after the date of receipt of an invoice, an event organizer who has been invoiced by the city for the restoration reimbursement costs that disagrees with the reimbursement requirement or its amount may file a written objection with the event administrator stating the basis for the objection.

(2) The event administrator shall consider the objection and provide a new invoice

sustaining the original amount, or modifying or eliminating the charge based on the objection.

(d) *Deposit*. At the time of permitting and as a condition to permit issuance the organizer of a special event may be required by the event administrator to post a refundable security deposit of no more than $100.00 for a minor event or basic event and no more than $500.00 for an enhanced event to cover any restoration reimbursement costs that might be incurred by the city. Such deposit, if required, must be required of all organizers of permitted events, or of only those event organizers which, in the past, have failed to perform their restoration responsibilities or have failed to pay restoration reimbursement costs to the city.

(e) *Non-event costs*. In no case shall an organizer be required to reimburse the city for the costs associated with providing city services that are assigned by the event administrator based on the anticipated or actual conduct of nonparticipants in the event.

(f) *Invoicing*. The city shall provide an itemized invoice for any reimbursements owed to the city under this article, which shall be paid by the responsible person by the date stated in the invoice.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-236. Recommendations.

The event administrator may obtain the recommendation of any city department that will be affected by the proposed special event. The event administrator will provide the date by which the recommendation is to be made and any recommendations not received by the due date will be deemed to have been favorable.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-237. Processing application; grounds for denial.

(a) The event administrator shall make a decision on a completed application consistent with this article and as expeditiously as possible given the scope of the conduct of the event. The event administrator shall provide the organizer with notice of his decision and, if the event administrator must deny the application, he shall state in the notice the basis for denial.

(b) The application for a permit for the special event shall be granted unless one or more of the following conditions are found to exist:

(1) *Application requirements*. The application:

a. Is incomplete in a material respect;

b. Has been fraudulently completed;

c. Is for an organized event that is not regulated by this article; or

d. Is for a special event the proposed conduct of which does not comply with applicable law, including this article or other city laws.

(2) *Prior conduct of organizer or organized event*. The application is for an event organizer or organized event that:

a. Is in violation of the cancellation policies of section 23-231(b)(1);

b. Has on a prior occasion made a material misrepresentation in an application for a special event that has resulted in a significant secondary harm; or

c. Has on prior occasions failed to restore the public space or restore or replace damaged public property, or pay to the city the restoration reimbursement costs or other costs or fees due the city under this article.

(3) *Location limitations*. The proposed public space, or a portion of the space, cannot reasonably accommodate the proposed event due to:

a. Insufficient space or capacity;

b. A prior use of some or all of the same public space or a public space in reasonably close proximity to the space; or

c. Unavailability because of fire, casualty, acts of nature, or public emergency.

(4) *Non-curable secondary harms*. The proposed conduct of the event would have secondary harms that cannot reasonably be cured, including unreasonable hardship to adjacent or nearby uses due to repeated or prolonged street closure; unreasonable interference with the use of the public space by other persons or organized events; or unreasonable demands on the city's resources because of unusual, extraordinary, or burdensome costs or expenses.

(5) *Use of parks*. The likely detrimental impact of the proposed event on the use and physical integrity of the park and its facilities or amenities taking into account such factors as:

a. The ability of the park to accommodate the conduct of the event;

b. The physical condition of the park;

c. The existence of reasonably available alternatives;

d. Conflicting uses of the park;

e. Secondary harms; or

f. The number of prior uses already scheduled for the park and the ability of the park to accommodate repeated uses without suffering material damage.

(6) *Public safety*. The proposed conduct of the event will be likely to have an impermissible impact upon public safety because it will:

a. Substantially interrupt the safe and orderly movement of traffic in the area of its route or location and there are insufficient public safety services available at the time to mitigate the disruption;

b. Require the diversion of so great a number of police officers of the city to properly police the area or route that will be occupied by the special event and contiguous areas so as to prevent normal police protection to the city;

c. Require the diversion of so great a number of ambulances and fire rescue units as to prevent normal ambulance and rescue service to portions of the city other than those areas or routes that will be occupied by the special event and contiguous areas;

d. Involve the concentration of persons, animals, floats, or vehicles at the assembly points of the event that will unduly interfere with proper fire and police protection of or ambulance service to areas contiguous to such assembly areas;

e. Interfere with the movement of firefighting equipment en route to a fire;

f. Fail to provide proper sanitation services; or

g. Otherwise pose an unreasonable risk to the public safety.

(7) *Major arterials*. The location requested is for a street that is a major arterial within the city limits, unless the magnitude of the event requires it and such an event cannot reasonably be accommodated elsewhere. This subsection (7) shall not apply to processions that merely cross a major arterial and that are not otherwise prohibited according to the terms of this article.

(c) *Alternative to denial*. Should the event administrator have to deny a permit pursuant to this section and there are reasonable alternatives to the conduct of the event that are available and that would eliminate the basis for denial, the administrator shall propose the alternatives to the organizer who must accept those alternatives by providing a notice of its acceptance by the next business day following the organizer's receipt of the administrator's decision notice, otherwise the denial shall stand.

(d) *Conditional approval*.

(1) In the case of completed or conditional applications that have been filed more than 30 days in advance of the event, the

event administrator may issue conditional approval for the event if the event is due to be approved except for one or more of the following pending items:

a. Action being taken with regard to required approval, licensing, or permitting pursuant to other city laws or laws administered by the health department, or except for required leasing of the public space;

b. Confirmation of the availability of city event services; or

c. Confirmation that the public area requested for the event has not been scheduled for a state or city public building or works project, including improvement or infrastructure maintenance, repair, or construction.

(2) Issuance of a conditional approval shall mean that, except for the pending items, there are no conditions that are known to exist that would constitute a ground for denying the permit. Nothing in this subsection (d) shall prevent the revocation of a permit in accordance with section 23-205.

(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-238. Appeal of denial.

(a) *Right of appeal*. An organizer denied a special event permit may ask for a review of the decision by filing a written notice of appeal, stating the reason the denial should be overturned, with the event administrator within five business days following receipt of the event administrator's decision notice denying the permit. The appeal shall be heard and decided by the mayor's designee who shall schedule a hearing on the request within five business days following receipt of the notice of appeal. Should the time scheduled for the hearing cause a delay of the proposed event, an alternate date will be made available upon request and, should the public area requested be available and uncommitted, it will be reserved for the event, pending the outcome of the appeal. The organizer shall be given at least 24 hours' advanced notice of the hearing.

(b) *Conduct of hearing*. The organizer, or someone designated by the organizer to act on the organizer's behalf, shall appear at the hearing in person, and may be represented by counsel. Failure of the organizer, or the organizer's designee, to appear at the hearing shall be deemed to be a withdrawal of the appeal. The event administrator shall attend the hearing. The event administrator and the organizer, or the organizer's designee, shall have the right to be heard on the matter and present evidence in support of their respective positions. The mayor's designee shall uphold the decision of the event administrator if a ground for denial exists and, where appropriate, offer an alternative to denial in accordance with section 23-237(c). The decision may be made at the conclusion of the hearing stating orally the reasons for the decision, or, by written notice by the close of the next business day following the close of the hearing and shall state the reasons for the decision. Failure of the mayor's designee to render a decision by the close of the next business day following the close of the hearing shall operate as an automatic upholding the event administrator's decision.

(c) *When review not available*. In no event will a review lie under the provisions of this section for the denial of any permitting or licensing that is not issued under the authority of this article, including alcoholic beverage licensing, business licensing, technical and fire code permitting, and fireworks permitting.

(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-239. Permit amendment.

(a) A special event organizer who wishes to materially modify the conduct of the event as authorized by the special event permit shall file a permit amendment application with the event administrator on a form provided by the city within the applicable time prescribed in section 23-233(b). The permit amendment application shall describe the proposed change in the conduct of the event with the same detail required by section 23-233(d) for the initial permit application and shall otherwise comply with the provisions of this article. The event administrator shall take action on the special event permit amendment application in accordance with the terms of this

article. The notice of decision and hearing provisions set forth in this article also shall apply to applications for permit amendments.

(b) A non-material change to the event conduct of permitted special event that complies with this article may be made at any time prior to the start of the event by notifying the event administrator of the proposed change.
(Ord. No. 13-189, § 1, 5-9-2013)

Sec. 23-240. Contents.

Each permit issued under this article shall specify the restrictions, conditions, or limitations on event conduct as the event administrator may deem necessary for the administration of this article.
(Ord. No. 13-189, § 1, 5-9-2013)

Secs. 23-241—23-300. Reserved.

ARTICLE VII. COMMUNICATIONS PROVIDERS

DIVISION 1. GENERAL

Sec. 23-301. Automatic conformity to federal and state law; construction of article.

(a) To the extent any provision of this article may conflict with any valid superseding federal or state law, it shall automatically conform to such federal or state law. The city franchise manager or the city engineer, as appropriate, is authorized to administer this article in accordance with such automatic conformity. Nothing in this subsection (a) shall be construed to prevent the city council from amending any provision of this article that does not comply with any valid superseding federal or state law.

(b) This article shall be construed in a manner consistent with applicable laws.
(Ord. No. 20-270, § 1, 4-9-2020)

Secs. 23-302—23-350. Reserved.

DIVISION 2. CONSTRUCTION OF COMMUNICATIONS FACILITIES

Sec. 23-351. Coverage; definitions.

(a) *Coverage*.

(1) This division is an exercise of the city's police powers and generally governs and applies to construction and construction-related activity of providers that hold a franchise for the use and occupancy of the rights-of-way or are otherwise authorized to use and occupy the rights-of-way. In the case of an irreconcilable conflict between a provision of this division and a provision of a franchise granted to the provider by the city, the franchise, including siting permits issued pursuant thereto, shall govern.

(2) Except as otherwise explicitly provided in division 3 of this article, this division shall apply to "wireless providers" and the installation and maintenance of "small cell facilities" and "support structures" as those terms are defined in division 3 of this article.

(3) Nothing in this division shall be construed to affect any private property rights or the rights of third parties. A provider shall be responsible for compliance with applicable law relative to private property or the rights of third parties.

(b) *Definitions*. The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning.

City engineer means the city's director of engineering, or his/her designees or subordinates.

Construct, including its derivations, means to construct, re-construct, excavate for, repair, rehabilitate, place, replace, erect, maintain, install, relocate, or remove all or any portion of the facilities.

Cure period means a specific cure period provided under this division or, where there is no

specific cure period, a cure period of at least 30 days, except where the provisions of this division state that no cure period is allowed.

Facilities mean all or any portion of a provider's tangible personal property constructed in the rights-of-way.

Franchise means lawful authorization granted by a governmental authority to a provider to use and occupy the rights-of-way for the construction and operation of its facilities, including a franchise, lease, license, or use agreement entered into between the provider and the city. The term does not include a business license issued by the city in order to conduct business in the city.

Franchise manager means the city's ITS director, or his/her designees or subordinates.

Provider means the provider of communications services.

Rights-of-way means the surface of and the space on, above, and below any public street, public road, public highway, public freeway, public lane, public way, public alley, public sidewalk, public boulevard, public parkway, public drive, public right-of-way, or public utility easement (to the extent of the city's interest or authority), now or hereafter held by the city which shall, within its proper use and meaning, entitle the holder of the franchise to the use thereof for the purpose of installing and operating its facilities and providing its services. This term shall not include any state or federal rights-of-way or any property owned or controlled by any person other than the city, except as provided by applicable law or pursuant to an agreement between the city and any such governmental entity or person. The term shall also not include property, such as city parks, city buildings, city property, public works facilities, or public utility facilities owned or leased by the city that is not used or is not typically used as rights-of-way for vehicular or pedestrian transport or the installation of utility distribution facilities.

Siting permit means a permit issued by the franchise manager in accordance with an existing franchise with the city, including a franchise for small cell wireless facilities in accordance with division 3 of this article.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-352. Construction standards.

(a) Construction of a provider's facilities shall be in accordance with applicable law, industry standards, the requirements of other lawful authority, as such may be amended or superseded from time to time, including applicable sections of the Occupational Safety and Health Act of 1970, as amended. A provider shall, at its sole cost, expense, and risk, be responsible for ensuring that the construction of its network in the right-of-way is, at all times, in compliance with the Americans with Disabilities Act of 1990, as amended or as may be amended from time to time.

(b) All of a provider's facilities shall be located, constructed, and functioning in accordance with good engineering practices and so as to avoid unreasonable interference with or causing damage to public infrastructure or improvements or the facilities of others in the rights-of-way and in a manner that will not unreasonably interfere with the usual and customary uses in the rights-of-way, including pedestrian and vehicular traffic, utilities, and traffic control systems. All such work must be performed by qualified maintenance and construction personnel.

(c) All installation of electronic service equipment shall be done in accordance with the applicable provisions of the National Electrical Safety Code of the National Bureau of Standards and National Electrical Code of the National Board of Fire Underwriters.

(d) A provider shall at all times employ ordinary care and shall install, maintain, and use commonly accepted methods and devices for preventing accidents which are likely to cause damage or injury to the public, and, where applicable, shall comply with the latest edition of the Manual on Uniform Traffic Control Devices.

(e) *Least disruptive technology*. A provider is encouraged to perform construction of its facilities in a manner resulting in the least amount of

damage and disruption of the rights-of-way including other facilities therein and improvements thereto. A provider may be required to use trenchless technology for projects, within roadway limits, which encompasses the roadway and its shoulder, in arterial and other high-volume streets and in roadways constructed or resurfaced within the last five years. The city engineer may require trenchless technology in other locations, where extreme circumstances prevent or make open cut methods impractical. A provider may use either the open cut method or trenchless technology for projects outside roadway limits, except as otherwise provided for in this subsection (e).
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-353. Above-ground facilities installation and placement; undergrounding.

The city desires to promote the undergrounding of facilities in the rights-of-way, their judicious siting, and the use of the least obtrusive facilities in order to reduce or eliminate their impact or potential impact to the public health, safety, and general welfare or otherwise for rights-of-way management purposes. To this end each of the following shall apply relative to a provider's facilities:

(1) A provider shall install its facilities underground without cost to the city: (i) in accordance with the subdivision regulations of the city, (ii) where substantially all of the facilities of the city d.b.a. Huntsville Utilities or other utilities or service providers in a given area are underground, or (iii) where the city adopts an underground plan and substantially all utility facilities or other facilities are placed underground. Except in the case of an emergency, a provider is not authorized to place above ground any of its facilities that have previously been underground without prior approval from the city engineer and subject to the applicable provisions of this division, its franchise with the city, or applicable law. Nothing herein shall be construed to prevent the above-grounding of those types of facilities which, due to technical limitations must be placed above ground, including small cell facilities and support structures, as such terms are defined in division 3, that have been issued a siting permit by the city or that use support structures that the city has permitted to remain above ground after its adoption of an underground plan contemplated by this subsection.

(2) In the construction or upgrading of its facilities, a provider shall use the smallest, reasonably available equipment then in use by the provider or any of its affiliates.

(3) A provider shall select locations for its above-ground facilities, both outside and in the rights-of-way, which comply with the city's visibility obstruction regulations; which are not within the paved or traveled portions of existing or platted rights-of-way, including the sidewalks, or which do not otherwise block or impede vehicle or pedestrian traffic; which do not block or impede existing public drainage facilities or channels or are otherwise in a designated floodway; or which otherwise raise a reasonable public health, safety, or welfare concern.

(4) A provider shall, subject to approval of the city engineer, which shall not be unreasonably withheld, select locations and methods of installation and screening for its above-ground facilities which eliminate or reduce the impact to residential uses including those immediately adjacent to or on the same lot as the proposed facilities.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-354. Construction approval; as-builts.

(a) *Construction approval.*

(1) Subject to subsection (2), at its own expense and cost and concurrent with submission of permit requests for construction of its facilities or prior to the commencement of construction, including reconstruction, of its facilities, a

provider shall submit to the city engineer for his/her approval construction schedule, plans, and drawings suitable in form and content to the city engineer. The submittal shall include a schedule and location of work, plans and drawings for construction and restoration acceptable to the city engineer.

(2) The city engineer's prior approval shall not be required for accessing existing facilities in such a manner so as to: (i) not interfere with the use of, or other facilities in, the rights-of-way, (ii) not have the likelihood of creating a threat to the public health or safety, or (iii) require restoration or repair of the rights-of-way. Provided the foregoing conditions are met, such accessing includes accessing existing subsurface facilities through existing manholes or handholes; routine repair and maintenance of existing facilities; running aerial or underground service lines or drops outside the roadway limits, which encompasses the roadway and its shoulder, to individual customers; running overhead lines on existing poles; replacement of existing facilities that does not appreciably alter their location, or enlarge or expand their occupancy of the rights-of-way; or installing lines of wire, cable, or fiber through existing conduits.

(3) Nothing in this subsection (3) shall be construed to relieve a provider from obtaining and abiding by a siting permit.

(b) *As-builts*.

(1) As a provider undertakes construction of its facilities, a provider shall, at its own cost and expense, provide updated "as-built" maps to the city engineer showing the location of the provider's installed facilities in the rights-of-way. A provider's "as-built" maps shall be provided in the format set forth in subsection (2) below. In order to protect a provider's confidential business information and the security of a provider's facilities, the level of detail in maps provided by the provider shall be limited to that which is needed for the city's administration and enforcement of this division. A provider shall have an ongoing duty to provide to the city engineer current up-to-date "digital as-builts" of its facilities in a form acceptable to the city.

(2) Unless allowed otherwise by the city engineer, submittals shall be prepared in a Microstation V7, 2D, .dgn or compatible format, or ESRI compatible format, with working master units in feet, and 1,000 positional units, geo-referenced to the Alabama State Plane Coordinate System, NAD 1983, Alabama East Zone as described in the Code of Ala. 1975, § 35-2-1, and NGVD 1988 and showing a tie to the public land survey.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-355. Restoration of property.

(a) For purposes of this section, the following terms shall have the following meanings:

Construction waste means debris, litter and other waste related to the construction activity of a provider.

Covered property means the rights-of-way and all public and private property located therein or adjacent thereto, including public improvements and infrastructure.

Damage, including its derivations, means damage to or destruction of all or any portion of the covered property.

Restore, including its derivations, means to repair, restore, or replace the covered property, and to remove construction waste from the covered property.

(b) In the performance of any construction activity relative to a provider's facilities, a provider, and those performing on its behalf, shall use its (their) reasonable efforts to protect the covered property from damage and to keep the covered property free from construction waste.

(c) A provider shall restore covered property which may be damaged as a result of the construction of the provider's facilities and shall also

remove construction waste from the covered property. A provider shall perform such restoration promptly, but in no event later than the restoration period, if any, set by the city engineer. Subject to subsection (d) below, any such restoration shall be performed at the provider's sole cost and expense and to the reasonable satisfaction of the city engineer.

(d) It shall be presumed that prior to the construction activity the covered property was in good condition, order and repair and without defect and that any damage of all or any portion of the covered property was caused by the provider's construction activity, unless the provider provides dated photographs of the covered property immediately prior to the commencement of the construction activity.

(e) The city engineer may require replacement of covered property which he/she reasonably determines cannot be repaired.

(f) A provider shall not be afforded a cure period under this section. If the provider fails to perform the restoration of the covered property within the required period of time, then the city engineer may perform or have performed such work and invoice the provider for all costs and expenses, including labor and materials, associated with the work. A provider shall pay the invoiced amount within 30 days from the date of the invoice. The city engineer may withhold the issuance of permitting under this division until the invoice is paid.

(g) Notwithstanding anything to the contrary in this division, the city engineer shall have the right, but not the obligation, to require a provider to restore public property, including the rights-of-way and public infrastructure, improvements, or facilities, to be in accordance with construction standards for public infrastructure and improvements adopted by the city or standards required by the city engineer, which may include, but not necessarily be limited to, restoration to the roadway, including sidewalks and curbing, that minimizes deterioration.

(h) A provider shall be responsible for coordinating with affected private property owners when crossing driveways and other private infrastructure. Notification to property owners will be the responsibility of the provider. A provider shall notify the city engineer at least 72 hours in advance of any road closures so that appropriate notices and press releases may be issued by the city in a timely manner.

(i) Prior to beginning work on a site, a provider shall be responsible for complying with applicable local, state, and federal utility facility locate laws.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-356. Relocation of facilities.

(a) For purposes of this section the term "relocate", including its derivations, means to protect, support, disconnect, relocate in, or remove from the rights-of-way, all or any portion of a provider's facilities when required by the city pursuant to this section.

(b) The city, through the city engineer, may, upon reasonable notice applicable to the conditions warranting such relocation and as then reasonably determined by the city engineer, require a provider to, either temporarily or permanently, promptly relocate its facilities for any lawful purpose, which includes the city's exercise of its police powers for the public health, safety, convenience, necessity, or general welfare, and wholly or partially city-funded public works, building, or improvement projects. The city will use its reasonable efforts to coordinate the timing and scope of such activity with a provider upon the request of a provider, including discussions of the least disruptive process. Subject to section 23-353, nothing in this section shall be construed to change the applicable law, terms of a franchise with the city, or city policy or practice as to who is responsible, as between the city and a provider, to bear the relocation costs.

(c) In the event the city relocates the rights-of-way where a portion of a provider's facilities is located, it will be the responsibility of the provider to find an alternative location for its facilities, provided, however, that the city will use its reasonable efforts to provide the provider with a reasonable alternative location for the affected portion of the provider's facilities to be relocated

from the relocated rights-of-way, subject to applicable requirements for a siting or right-of-way permit.

(d) Nothing in this division shall be construed to hinder the right or authority of the city to perform or carry on any public works project, public improvement project, or public building project.

(e) Written notice of the requirement to relocate shall be given by the city engineer to a provider and shall contain the basis for the relocation, the required commencement and completion dates, and a description of the relocation to be performed. The time allowed for the provider's performance shall be as reasonably determined by the city engineer and shall take into account, among other things, the nature and scope of the request, any relevant information or limitations provided to the city engineer by the provider, whether any emergency exists, and the requirements of the lawful purpose necessitating the relocation. The provider may request, and the city engineer may grant, reasonable extensions of the provider's performance period based on then-current relevant factors.

(f) The city retains the right and privilege to relocate any of a provider's facilities located in the rights-of-way as the city may determine to be necessary, appropriate, or useful in response to any life-threatening emergency. The city will use its reasonable efforts to notify and consult with the provider's technical point of contact if there is a potential that the provider's facilities will be impacted and if there is an opportunity to do so. Nothing herein shall be construed to create any duties or obligations on the city to so notify a provider nor shall the city, its officials, agents, employees, or volunteers be in any way liable to a provider for any failure to notify the provider.

(g) In the event that after notice from the city, and absent any extensions granted by the city pursuant to this division, a provider fails to perform the relocation within the specified time, the provider shall have 30 days to cure the noncompliance, except in the case of an emergency. Thereafter, if the provider fails to so perform, the city may, at the sole cost, expense, and risk of the provider, perform or have performed the relocation, without assuming or having any liability to the provider, and invoice the provider therefor. In addition to or in the alternative, the city may invoice the provider, for any costs or expenses, including construction delays, suffered by the city that are attributable to said failure. Invoiced amounts shall be paid by the provider within 45 days from notice of same. The city engineer may withhold the issuance of permitting under this division until the invoice is paid.

(h) Notwithstanding anything in this division to the contrary, the provider shall not be afforded a cure period in the case of an emergency condition that, in the city's opinion, poses a likelihood of: (1) endangering life or health, (2) causing a significant loss of property or services, or (3) causing significant damage to or destruction of the rights-of-way.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-357. Conditions of use.

(a) A provider shall, at its own cost and expense, maintain its facilities in good working order, condition, and repair and free from graffiti. A provider, including its contractors and agents, shall remove its construction debris from the rights-of-way and shall not bring onto the rights-of-way anything of a dangerous, noxious, or offensive nature or which would create a hazard or undue interference to the use of the rights-of-way.

(b) Facilities, both outside of and in the rights-of-way, shall not be installed across or within public sewer or stormwater drainage facilities including ditches, pipes, or channels, or otherwise in such a manner so as to obstruct the flow of sewage or stormwater run-off.

(c) A provider shall control its agents, contractors, and employees in such a manner so as to not create any nuisance and to otherwise comply with the requirements of this section.

(d) The city shall have no obligation to insure or safeguard a provider's facilities against unauthorized access.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-358. Temporary movement of facilities.

Upon the request of the city engineer a provider shall temporarily move its facilities to permit the moving of large objects, vehicles, buildings, or other structures. Except where requested by the city for a city purpose, the expense of such temporary moves shall be paid to the provider by the person requesting the same, and the provider may require such payment in advance. In no event shall the city pay such expense. Nothing herein shall be construed to abrogate the provisions for moving facilities contained in any pole attachment agreement the provider has with another person, including the city d.b.a. Huntsville Utilities.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-359. Trees.

A provider shall comply with all applicable laws with respect to the removal, trimming and cutting of trees and keeping its facilities clear of trees in the rights-of-way, including the tree regulations, as such laws may be amended or superseded. Within 14 days' notice from the city engineer or immediately in the case of an emergency, a provider will cooperate in the removal of any tree or branch which has fallen onto its aerial facilities. Except in emergency situations and except for routine trimming and then subject to the tree regulations, in installing, maintaining, and removing its facilities, a provider shall not remove, cut, or damage any trees in the rights-of-way that are greater than four inches in diameter, as measured at 12 inches above the ground, except with the prior consent of the city forester or his designee.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-360. Joint trench coordination; planned infrastructure.

(a) *Joint trenching*. Whenever it is possible and reasonably practicable to joint trench or share bores or cuts or joint share conduit, a provider shall work with the city and other rights-of-way users, so as to reduce, as far as possible, the number of street cuts within the city.

(b) *Planned infrastructure*. If required of other users of the rights-of-way, when a provider installs any new trench or conduit as part of its facilities, the provider may, at the request of the city engineer, install, at the expense of the city, sufficient additional space or additional conduits or other related facilities. The cost to the city shall be the costs of material and labor attributable or proportional to said installation. The city shall have the option to lay its own conduit or place other public improvements, such as wiring for traffic signals and street lights, that do not cause significant cost, delay or redesign, in a provider's open trenches during the initial construction and during any future rebuilds or repairs. A provider shall provide written notice of the proposed construction to the city engineer, and the city engineer will then have five business days after receipt to respond in writing to the provider. Nothing in this subsection (b) shall be construed to require the provider to share space within conduits occupied by its facilities or the facilities of others.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-361. Advertising, signs, or extraneous markings.

Unless otherwise authorized by applicable law, a provider shall not place or cause to be placed any sort of signs, advertisements, or other extraneous markings, whether relating to the provider or any other person or entity in the rights-of-way including facilities therein, except such necessary minimal markings as approved by the city engineer as are reasonably necessary to identify the system for service, repair, maintenance, or emergency purposes, or as may be otherwise required or permitted by the city engineer or by the state or federal government to be affixed by applicable law or regulation for such purposes.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-362. Abandonment of construction or facilities; removal.

(a) Upon abandonment, whether voluntary or involuntary, of construction or of all or any portion of the facilities, or where a provider's franchise is no longer in effect for whatever

reason, the city engineer, at his/her sole discretion, may require a provider, upon the city engineer's written request and within a reasonable time as determined by the city engineer, to remove from the rights-of-way, at the provider's own cost and expense, all or any portion of its abandoned facilities; provided, however, the removal requirement shall not apply to buried facilities which the city engineer reasonably determines should not be removed or when the city engineer otherwise gives written consent to a provider's written request to allow such facilities to remain in place. If the city engineer determines that the buried facilities can or should be abandoned in place, the ownership of such facilities in the rights-of-way shall automatically transfer to the city, and the provider shall have no further obligation therefor. Notwithstanding a provider's request that any such facilities remain in place, the city engineer may require the provider, at its sole cost and expense, to remove the facilities from the street area or modify the facilities in order to protect the public health and safety or otherwise serve the public interest.

(b) In removing the facilities, a provider shall, at its own cost and expense, refill and compact any or all excavation that shall be made by it and restore the rights-of-way and other property to the reasonable satisfaction of the city engineer to substantially the same condition as existed immediately prior to the facilities being removed or as otherwise provided for in subsection 23-355(g). If a provider fails to comply with the said removal or modification order pursuant to this section, the city may, or may contract to, do so at the provider's cost, expense, and risk, without assuming or having any liability to the provider, and invoice the provider therefor; which invoiced amount shall be paid by the provider within 30 days from notice of same. The city engineer may withhold the issuance of permitting under this division until the invoice is paid.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-363. Technical point of contact; authority of city engineer; stop work order; penalties.

(a) *Point of contact.* A provider shall designate a responsible technical contact individual or individuals including a telephone number available seven days a week, 24 hours a day, with whom representatives of the city can communicate with on all matters relating to the construction of the facilities and management of the rights-of-way, and in the case of an emergency.

(b) *Authority of city engineer*. The city engineer is hereby authorized to enforce and administer this division on behalf of the city and may act through subordinates or designees.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-364. Enforcement.

In addition to other legal or equitable remedies available to the city, including under this division, under an existing franchise with the city, and other provisions of this Code, the city may, individually or in combination, enforce this division as follows:

(1) *Stop work order*. The city engineer may, at any time and from time to time, issue a stop work order for construction of all or any portion of the facilities when the city engineer determines, in his/her sole discretion: (1) that the activity is being performed contrary to the provisions of this division, including construction or other standards required by the city engineer; or (2) that the activity has caused, or is likely to cause, a situation to exist that poses or would pose a clear and immediate danger: (i) to life or health, (ii) of a significant loss of property or services, or (iii) of significant damage to or destruction of the rights-of-way. The order may be issued, at the city engineer's option, on the construction site or to the provider's technical contact person. The city engineer will lift any such stop work order as soon as possible after he/she determines that the situation giving rise thereto no longer exists. It shall be a

violation of this division for a provider, or those persons working on its behalf, to disobey a stop work order.

(2) *Revocation or suspension of permitting*. The city engineer may suspend or revoke a permit issued under this division, subject to applicable cure periods, for a violation of the provisions of this division, including any permit conditions. It shall be a violation of this division for a provider, or those persons working on its behalf, to continue any construction activity authorized under a suspended or revoked permit.

(3) *Penalties*. The general penalty provisions of section 1-7 of this Code shall apply and a citation may be issued in accordance with section 2-1 of this Code. Each day that the violation continues constitutes a separate offense.

(Ord. No. 20-270, § 1, 4-9-2020)

Secs. 23-365—23-420. Reserved.

DIVISION 3. SMALL CELL WIRELESS FACILITIES

Sec. 23-421. Purpose; scope; no city warranties; zoning.

(a) The purpose of this division is to exercise the city's rights and authority over the rights-of-way and city-owned poles and structures located therein, and to otherwise manage the installation, operation, collocation, modification, replacement and removal of small cell facilities in the city's rights-of-way and on small cell support structures and to protect other important city interests, including the public health, safety and welfare, aesthetics and local property values, while recognizing the benefits of wireless communications. It is the intent of this division to promote the health, safety and general welfare of the citizens of the city by establishing an orderly process for managing the siting of small cell facilities in the rights-of-way.

(b) It is not the purpose or intent of this division to: prohibit or have the effect of prohibiting wireless communication services; unreasonably discriminate among providers of functionally equivalent wireless communication services; regulate the placement, construction or modification of small cell facilities on the basis of the environmental effects of radio frequency emissions where it is demonstrated that the wireless communications facility does or will comply with applicable FCC regulations; or prohibit or effectively prohibit collocations or modification that the city must approve under state or federal law.

(c) *No warranty*. The city makes no express or implied representation or warranty regarding its right to authorize or permit the installation of small cell facilities or support structures on any particular segment of the rights-of-way or the location or dimensions of any particular segment of the rights-of-way, nor does the city make any express or implied representation or warranty regarding its right to authorize the construction or placement of any small cell facilities or support structure in any public utility easement. The burden and responsibility for making all such determinations in advance of installation shall be entirely upon the grantee.

(d) Nothing in this division shall be construed to relieve the grantee from complying with the city's then-current zoning laws to the extent that such laws are applicable to the small cell facilities or support structures on separate property, as defined in section 23-422.

(e) When reference is made to this division, the term shall mean and include each license and siting permit issued hereunder and the terms and conditions thereof.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-422. Definitions.

The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Abandon, including its derivations, means that, following the placement of small cell facilities or support structures in the city pursuant to a siting permit issued to a grantee, any of the following has occurred: (1) for any reason the

small cell facilities or support structure ceases to be used to transmit signals, data or messages or otherwise be used for their intended purposes for a period of 180 days without the grantee otherwise notifying the city and obtaining city approval; (2) the city revokes the siting permit for placement and use of those facilities or the support structure due to nonpayment of applicable fees, the failure of the grantee to comply with conditions in the siting permit or the requirements of this division or other city law, or other valid reason; or (3) the grantee fails to perform any of its responsibilities, obligations and requirements in this division, any franchise, use agreement, license, or siting permit that relates to the installation, construction, maintenance, use or operation of the small cell facilities or support structures, and that breach remains uncured for the applicable cure period.

Accessory equipment or *equipment* means any equipment, other than an antenna, that is used in conjunction with a small cell facility. This equipment must be attached to or in the immediate vicinity of a small cell support structure, and includes cabinets, optical converters, power amplifiers, radios, DWDM and CWDM multiplexers, radio units, fiber optic and coaxial cables, wires, meters, pedestals, power switches, and related equipment.

Affiliate or *affiliated person* means any person, directly or indirectly, controlling, controlled by, or under common control with a grantee or applicant; provided, however, that affiliate shall not include any limited partner or shareholder holding an interest of less than 15 percent of grantee or applicant, or any creditor of a grantee or applicant solely by virtue of its status as a creditor and which is not otherwise an affiliate by reason of owning a controlling interest in, being owned by, or being under common ownership, common management, or common control with, a grantee or applicant.

Annual license fee means the annual fee described in subsection 23-426(b) of this division.

Antenna means communications equipment that transmits or receives electromagnetic radio signals, electromagnetic waves, radio or other wireless signals used in the provision of wireless communication services, is attached to a small cell support structure and is used to communicate wireless service. The use of the term 'antenna' shall also refer to the antenna concealment enclosure when such concealment enclosure is required by this division or the applicable design standards. A concealment element otherwise will not count against the volumetric cap for an antenna when determining if a facility qualifies as a "small cell facility" under this division.

Applicable codes mean the duly adopted technical codes of the city, including the building, fire, electrical, plumbing, or mechanical codes, which are adopted by reference from the codes of a national code organization, including any local amendments made thereto at any time and from time to time, or codes that are otherwise applicable in the city. The term includes the regulations of the FCC and the Occupational Safety and Health Administration, as well as any local standards or regulations governing the use of rights-of-way, including division 2 of this article.

Applicable law means any or all federal, state, or city statutes, ordinances, rules, regulations, standards, and other laws, that are now existing or hereafter adopted, as such laws are amended or as they may be from time to time amended or superseded, which apply to an applicant's or grantee's communications services, its facilities, or the matters covered by this division, including city laws. Where reference is made to a specified law, including a specified city law, the United States Code, and the Code of Federal Regulations, it shall mean and include such laws as amended or as may be from time to time amended or superseded.

Applicant means a wireless provider that has applied for a license or siting permit pursuant to this division, and upon issuance of the license or siting permit, the term shall include those wireless providers that have been issued same.

Application means an application for a license or siting permit issued under this division.

Application fee means a siting permit application fee assessed pursuant to subsection 23-426(a) of this division for the city's review of a small cell site application.

City means the City of Huntsville, Alabama, and where necessary for the purposes of the administration and enforcement of this division shall include the city's delegated authorities or representatives authorized to perform as contemplated.

City attorney means the city attorney for the city or designee.

City clerk-treasurer means the city clerk-treasurer for the city or designee.

City engineer means the director of engineering for the city or designee.

City laws mean the duly adopted laws and legislation of the city including the Code of Ordinances of the City and any codes, regulations, standards, or specifications adopted by reference; and shall also include the subdivision regulations and any other such rules or regulations that departments, agencies, commissions, boards, or bureaus of the city are authorized to establish; all of which are as amended or as may from time to time be amended or superseded.

City-owned pole means (i) a pole owned by the city in the right-of-way that provides street lighting functions, including light poles, (ii) traffic signal poles and stanchions owned by the city, and (iii) a pole or similar structure owned or operated by the city in the right-of-way that supports only wireless facilities. Notwithstanding the foregoing, the term does not include the utility facilities, including utility poles and light poles, of the city d.b.a. Huntsville Utilities. Applicants and grantees must obtain access to Huntsville Utilities facilities through separate agreement with Huntsville Utilities.

City-owned structure means any facility, structure or infrastructure located in the rights-of-way to which the city holds title, including city-owned poles, towers, and communications infrastructure. Notwithstanding the foregoing, the term does not include the utility facilities, including utility poles and light poles, of the city d.b.a. Huntsville Utilities. Applicants and grantees must obtain access to Huntsville Utilities facilities through separate agreement with Huntsville Utilities.

City-owned support structure means a city-owned pole or city-owned structure that is available or approved for collocation or attachment of a small cell facility in accordance with section 23-433.

Collocate, or its derivations*,* means to place or install a small cell facility on an existing support structure that is owned, controlled, or leased by a utility, the city, or other person or entity, including applicant; or the modification or replacement of such a structure for the purpose of such placement or installation.

Contingent license fee means the rental amount and annual rate described in subsection 23-426(b)(2) of this division.

Distributed antenna system or *DAS* means a network or facility that distributes radio frequency signals to provide wireless services and consisting of: (1) remote antenna nodes deployed throughout a desired coverage area; (2) a high-capacity signal transport medium connected to a central hub site; and, (3) equipment located at the hub site to process or control the radio frequency signals through the antennas and meets the height and size characteristics of a small cell facility.

Emergency means a condition that (1) constitutes an immediate danger to the health, welfare, or safety of the public, or (2) has caused or is likely to cause substantial damage to the right-of-way or to facilities in the right-of-way, or adjacent thereto.

FCC means the Federal Communications Commission of the United States or any successor agency.

Franchise manager means the person authorized, assigned, or delegated the responsibility to administer and enforce this division on behalf of the city, and that person's designee.

Grantee means an applicant that is granted a license under this division.

Include, or its derivations, does not limit a term to its specified example.

Install, or its derivations, means to install, construct, place, locate, collocate, relocate, replace, or modify a small cell facility or support structure in the rights-of-way.

License means the authorization granted by the city to an applicant pursuant to this division allowing applicant to install and operate small cell facilities or support structures in the rights-of way. The term does not include a business license issued by the city to conduct business in the city.

Make-ready work means work that an authority reasonably determines to be required to accommodate a wireless provider's installation on a city-owned support structure under this division and to comply with all applicable standards. The work may include repair, rearrangement, replacement and construction of poles; inspections; engineering work and certification; permitting work; tree trimming (other than tree trimming performed for normal maintenance purposes); site preparation; and electrical power configuration. The term does not include a wireless provider's routine maintenance.

Micro wireless facility or *micro facility* means a small wireless facility that (a) is not larger in dimension than 24 inches in length, 15 inches in width, and 12 inches in height; and (b) has an exterior antenna no longer than 11 inches.

Point of demarcation means the point of where the transmission media of small cell equipment terminates and interconnects with broadband backhaul transmission facilities, which is the point that the small cell connects into fiber or other wired mediums to transmit or assist in the transmission of data, whether provided by landline or wireless communications infrastructure.

Private property means real property located in the city that does not lie within the right-of-way, including such appurtenances or easements attached to or associated with such property, and that is not owned by the city, state, or other public body.

Replacement means installing a new small cell support structure of comparable or smaller proportions and of comparable or shorter height to a preexisting small cell support structure in order to accommodate collocation of small cell facilities, and the associated removal of the preexisting small cell facilities or support structure. To qualify as a replacement, the replacement support structure must be installed no more than five feet of the location of the existing support structure that it will replace.

Rights-of-way means the surface of and the space on, above, and below any public street, public road, public highway, public freeway, public lane, public way, public alley, public sidewalk, public boulevard, public parkway, public drive, public right-of-way, or public utility easement immediately adjacent to and parallel with any such street, road, highway, lane, alley, or sidewalk (to the extent of the city's interest or authority), now or hereafter held by the city which shall, within its proper use and meaning, entitle grantee to the use thereof for the purpose of installing and operating its facilities and providing its wireless communications services. This term shall not include any state or federal rights-of-way or any property owned or controlled by any person other than the city, except as provided by applicable law or pursuant to an agreement between the city and any such governmental entity or person. The term shall also not include property, such as city parks, city buildings, city property, public works facilities, or public utility facilities owned or leased by the city that is not used or is not typically used as rights-of-way for vehicular or pedestrian transport or the installation of utility distribution facilities.

Separate property means real property, whether private property or property publicly owned or controlled, that does not lie in the rights-of-way.

Siting permit means an authorization issued by the franchise manager to a grantee in accordance with this division.

Small cell facilities or *facilities* mean the following types of wireless facilities: antenna and associated accessory equipment, which meet the following requirements: (1) each antenna associated with the deployment, excluding associ-

ated accessory equipment, is no more than three cubic feet in volume; (2) all other accessory equipment associated with the structure, including the wireless equipment associated with the antenna and any pre-existing associated equipment on the structure, is no more than 28 cubic feet in volume; (3) the facilities are mounted on structures 50 feet or less in height including their antennas, or are mounted on structures no more than ten percent taller than other adjacent structures located within 100 feet and on the same portion of the right-of-way, or do not extend existing structures on which they are located to a height of more than 50 feet or by more than ten percent, whichever is greater; (4) the facilities do not require antenna structure registration under the FCC's rules; and (5) the facilities do not result in human exposure to radio frequency emissions in excess of the standard specified in applicable FCC rules, as these rules may be hereafter amended. The term includes micro wireless facilities, DAS and other wireless technologies that fall within the above specifications and may be referred to as a "node(s)" when referencing the numbers of small cell facilities per application or elsewhere in this chapter. Where reference is made in this division to small cell facilities or facilities, it shall mean the antenna or associated accessory equipment, or both.

Small cell support structure or *support structure* means a freestanding structure designed or used to support, or capable of supporting, small cell facilities. The term includes utility poles, street light poles, and similar structures, which are located solely in the rights-of-way. The term does not include the city-owned poles or city-owned structures that are not available or approved for collocation or attachment of a small cell facility in accordance with section 23-433.

Stealth technology or *stealth* means a method of concealing or minimizing the visual impact of a small cell facility and support structure by incorporating features or design elements which either totally or partially conceal such small cell facilities. All wiring associated with the small cell facilities shall be shrouded or concealed in shrouding on the facility. The use of these design elements is intended to produce the result of having such facilities blend into the surrounding environment or disguise, shield, hide or create the appearance that the small cell facilities are an architectural component of the support structure.

Transmission media refers to the point within a small cell facility or its support structure at which radio waves are guided along a physical path; examples of guided media include twisted pair cables, coaxial cables, and optical fibers, all of which shall be shrouded or concealed within the facility or support structure.

Utility pole means a pole or similar structure located in the right-of-way that is used in whole or in part to provide landline telecommunications services or for electric distribution or a similar utility function. The term does not include such a pole or similar structure 15 feet in height or less unless the city has granted a waiver to permit its use for small cell facilities.

Wireless communications services or *wireless services* mean communications services made available to subscribers through wireless facilities, including any FCC licensed or unlicensed radio communications services, whether used for transmission or reception of voice, video, or data, including, wireless fidelity ("WiFi") and personal wireless services as defined by the Communications Act, which includes FCC licensed commercial wireless telecommunications services, including cellular, personal communication services (PCS), specialized mobile radio (SMR), enhanced specialized mobile radio (ESMR), paging and similar services that currently exist or that may in the future be developed. The term does not include broadcast radio or television services. The term does not include broadcast television or radio services, private business radio services, or amateur radio services.

Wireless facilities mean equipment at fixed location which enables wireless communications between user equipment and a communications network, including radio transceivers, antennas, DAS, wires, coaxial or fiber-optic cable or other cables, regular and backup power supplies, and comparable equipment, regardless of technological configuration, and equipment associated with wireless communications. The term does not

include: (1) the structure or improvements on, under, within, or adjacent to the structure on which the equipment is collocated; (2) wireline backhaul facilities; or (3) coaxial or fiber-optic cable that is between wireless structures or utility poles or that is otherwise not immediately adjacent to or directly associated with a particular antenna.

Wireless infrastructure provider means any person, including a person authorized to provide telecommunications service in the state, that builds or installs small cell facilities or support structures, but that is not a wireless services provider.

Wireless provider means a wireless infrastructure provider or a wireless service provider.

Wireless service provider means a person that provides personal wireless communication services to the public or citizens of the city on a commercial basis and is authorized by the FCC to provide those services.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-423. Grant of authority; license.

(a) (1) *Grant*. Upon application by a wireless provider on forms provided by the city, the city may, where the city has the right and authority to do so, grant to such provider a non-exclusive license to construct, maintain, and operate small cell facilities or support structures in the rights-of-way in accordance with and subject to the provisions of this division, applicable law, and any acceptable additional terms as negotiated by the city or permitted by applicable law. Approval of installation of facilities at specific locations or on specific support structures will be administered through the siting permit process set forth in this division.

(2) Each license shall contain the following certifications by the grantee:

a. Grantee is a _____, duly organized, validly existing, and in good standing under the laws of the State of _____, is qualified to do business under the laws of the State of Alabama, and has the power and authority to own its properties, to carry on its business as now being conducted, to execute and deliver the acceptance of this license, to carry out the transactions contemplated hereby, and to perform and carry out all obligations on its part to be performed under and pursuant to this license.

b. Grantee, as of the date of the grant of the license, has adequate financial resources to install the small cell facilities or support structures in accordance with the provisions of chapter 23, article VII, division 3 of the City Code, and knows of no technical or legal impediment which would prevent it from performing as contemplated in said division.

c. Grantee is not prohibited by any agreement or applicable law from executing and accepting a license.

d. All corporate actions and consents required on grantee's part to execute and deliver the acceptance of the license have been completed.

The foregoing certifications are material to the grant of the license. A breach of any of the certifications in subsections a. through c. above shall constitute a non-curable default under the license, and shall entitle the city to immediately revoke the license for cause. A breach of the certification contained in subsection d. shall constitute a curable default under the license, wherein following written notice, grantee will have reasonable time to cure such default.

(3) *Nonexclusive*. Grantee's use of the rights-of-way pursuant to this division shall be nonexclusive. The city specifically reserves the right to grant, at any time and from time to time, such additional franchises, licenses, use agreements or other rights to use the rights-of-way for any purpose

as determined by the city, and to any other person, including itself, as it deems appropriate, subject to applicable law.

(4) *No title*. The grant of a license shall not convey title, equitable or legal, in the rights-of-way, and the rights granted by the license do not excuse the grantee from obtaining appropriate access or attachment agreements before locating its facilities on another person's support structures in the rights-of-ray, including the city d.b.a. Huntsville Utilities.

(b) *Term of license*.

(1) *Term.* Subject to termination or revocation in accordance with this division, the license granted pursuant to subsection (a) shall be valid for a period of five years from its effective date and shall be subject to renewal as provided in this subsection. Upon a grantee's written certification to the franchise manager within 30 days of the expiration of the license that grantee remains in compliance with the provisions of this division, including its license and each siting permit, then the license will be automatically renewed for an additional five year term without further action required by the city.

(2) *Operation after termination; holding over.* Notwithstanding anything to the contrary contained in this division, in the event a grantee, at the sufferance of the city, holds over beyond the term of its license and continues to operate all or any part of its small cell facilities, provide all or any of its wireless communications services, or otherwise exercise all or any of the rights granted under the license, after the term of the license, then grantee shall continue to comply with and be subject to all applicable provisions of this division, including all fee and other payment provisions, throughout the period of such holding over, provided that any such holding over shall in no way be construed as a renewal or other extension of the license. In the event the term of a license has expired and the parties are in the process of re-negotiating, applying for, or processing an application for a renewal of the license or a new license, or as they may otherwise agree, the license shall continue on a month-to-month basis, unless either party gives 30-days' advance written notice to the other that they desire to terminate the lease.

(c) *Franchise or use agreements for other uses of rights-of-way*.

(1) The license granted pursuant to this division only relates to, and only grants a grantee authority with respect to, the placement of small cell facilities on or in the immediate vicinity of support structures, including fiber optic cable for up to 25 feet on either side of the support structure, that are located or proposed to be located in the rights-of-way. No provision in this division is intended to permit, regulate or authorize the placement by a grantee or applicant of wire or fiber optic lines, coaxial cable, switches, pedestals or networking equipment of any type that is used to transport communication signals, data or messages between support structures or between any other points in the rights-of-way. In the event a grantee or applicant desires to place communications equipment or other facilities along the rights-of-way of a kind not authorized by the license, it will need to obtain a separate franchise or similar authorization from the city that would authorize, govern and apply to the construction of other kinds of facilities or use of other locations on or along the rights-of-way.

(2) If a grantee or applicant desires to use any of its small cell facilities for the purpose of providing any services other than the provision of telecommunications or information service, such as cable service, other subscription multichannel video programming services, utility, or other non-utility services to existing or potential subscribers or resellers, or by providing any other use of small cell facilities to existing or potential consum-

ers, an applicant shall seek such additional and separate franchise, use agreement or authorization from the city and other authority as may be required by applicable law.

(d) *Only small cell facilities allowed*. No wireless facilities, other than small cell facilities or small cell support structures, shall be allowed or permitted in the rights-of-way.

(e) *Compliance with law.* A grantee shall at all times comply with and abide by all applicable laws.

(f) *Records and reports*. Grantee shall cooperate with the city with respect to the administration of this division and to this end, shall furnish or make available to the city upon request, at no cost to the city, such records, reports, and other information reasonably necessary, as determined by the city, for the administration and enforcement of this division and in such form and manner as prescribed by the city.

(g) *Revocation*. The city may revoke a license in accordance with subsection 23-442(b) of this division.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-424. Notice of transfer, sale or assignment.

(a) *Notice of transfer.* A grantee shall not sell, transfer, lease, assign, sublet, or dispose of, in whole or in part, either directly or indirectly, either voluntarily or by force or involuntary sale, or ordinary sale, consolidation, transfer of control of the grantee or any of its affiliates through merger or equity sale, or otherwise (except for a transfer in trust, mortgage, or other instrument of hypothecation, in whole or in part, to secure an indebtedness, or for a transfer to or merger with an affiliated person), its facilities in the rights-of-way without providing the city with prior written notice: (1) identifying the person (hereinafter referred to in this section as "successor in interest") that will acquire control of the grantee, or that will acquire the facilities; (2) a summary of the proposed transaction; and (3) a statement from a person with authority to bind the successor in interest certifying under penalty of perjury that the successor in interest agrees to and accepts, and is able to meet the terms and conditions of, this division.

(b) *Notice of consummation.* Within 45 days after the closing of the transaction, or such additional time as the franchise manager may allow, grantee's successor in interest shall submit to the city: (i) a written certification, executed by an authorized senior officer or executive of the successor in interest, certifying under penalty of perjury that (1) the successor in interest accepts and agrees to be bound by, and to assume all liabilities and obligations of its predecessor under this division, and (2) all required licenses, consents, certificates of public convenience and necessity, or other governmental authorizations issued by the FCC, the Alabama Public Service Commission or any other agency with jurisdiction over the successor in interest's acquisition of an interest in the grantee's facilities have been obtained; (ii) proof of insurance and the posting of any required security in accordance with section 23-437 of this division; (iii) the names and addresses of those persons to whom notice should be sent in accordance with this division; and (iv) the name and contact information of the technical point of contact in accordance with division 2 to this article. In the event the applicant/licensee has outstanding compensation, other payments or other liabilities due to the city under this division that have not been paid or satisfied prior to close of the transaction, both the grantee and its successor in interest shall be jointly and severally liable to the city for same. The post-transaction notice requirements of this subsection (b) shall also apply to transfers or mergers with an affiliated person.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-425. Siting permits required; pre-application review.

(a) *Requirement.*

(1) Before a grantee who holds a valid license issued under this division can install a small cell facility or support structure in the right-of-way the grantee shall apply with the franchise manager for a siting permit for each proposed location, pay the required fees, and obtain a siting

permit, except as otherwise provided in this division. The franchise manager will review and administratively process an application in accordance with this division to determine if the application is complete and consistent with this division, the license issued under this division, and applicable codes and whether a siting permit for the small cell facilities or support structure should be issued for the location in the manner requested by the applicant, consistent with this division and applicable laws. The permitting process will be administrative and not require the approval of the city council, unless otherwise provided in this division.

(2) A siting permit application must be submitted for each small cell facility or new support structure on a form, paper or electronic, provided by the city. If the applicant has a good faith belief that any information submitted is proprietary or confidential, then the applicant must mark each page accordingly. An application packet will be maintained by the franchise manager.

(3) The burden of proof shall at all times be on the applicant or grantee to establish compliance with requirements under this division and applicable law.

(b) *When siting permit not required*. Subject to section 23-354 of division 2 concerning construction approval of the city engineer and to applicable code requirements, a siting permit and the one-time application fee shall not be required for small cell facilities and support structures that have already received a siting permit in the following instances:

(1) For routine maintenance or repairs.

(2) For modifications that do not appreciably change position, characteristic, size, or appearance of the existing facility, unless such change would violate a provision of this division, the license, or the siting permit.

(c) *Emergency.* Where a facility has been installed without a siting permit due to an emergency, a siting permit shall be required after-the-fact within ten days if a siting permit would have originally been required to perform the work undertaken in the right-of-way in connection with the emergency. Once the emergency is abated, the small cell facilities in question must be removed unless siting permitted without the emergency as a basis for the siting permit.

(d) *Inspection*. In addition to any inspections that may be required in connection with building and electrical permitting, the city reserves the right to inspect all small cell facility or support structure work to ensure compliance with this division, including applicable siting permits. Upon completion of a facility or support structure installation, the applicant or grantee shall provide a written notice and certification of compliance, as required by the franchise manager, that the facilities or support structure were constructed in accordance with the approved specifications. No operation at the facility shall occur unless the franchise manager, should he elect to do so, has conducted a final inspection and issued a certificate of completion, provided that if the franchise manager elects not to inspect the site, the certificate of completion will be deemed issued within 14 days of the applicant's submission of its notice and certification of compliance, or upon any required final inspections and approvals required under applicable building and electrical permitting, whichever is later.

(e) *Pre-application review.* Prior to the submission of an application, the applicant is encouraged to have a voluntary pre-application meeting with the franchise manager to review preliminary documents and graphic exhibits of the proposed facilities or support structure and discuss the application, location, and design requirements for the proposed facilities. The primary purposes of the review are to streamline application processing and reduce site plan and design revisions, as well as the multiple reviews associated therewith. Any applicant desiring a pre-application review will agree in writing that the applicable timeline

for application review, as set forth in section 23-431, will be tolled during such review period. (Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-426. Fees.

(a) *One-time application fees.* Unless otherwise provided by law, all applications for siting permits pursuant to this division shall be accompanied by a nonrefundable fee for actual, direct, and reasonable costs incurred by the city to process and review the application, in the following amounts:

(1) $500.00 for an application seeking up to five small cell facilities attached to existing support structures, with an additional $100.00 for each attached small cell facility in excess of five; or

(2) For an application to install a new support structure (i.e., not a collocation), a one-time fee of $1,000.00.

(b) *Annual license fee*.

(1) As compensation for the installation of its facilities and support structures in the rights-of-way, a grantee shall pay in advance an annual license fee as follows:

a. For facilities that are collocated on an existing support structure or on a support structure, the annual license fee is $200.00 per facility (with each of grantee's installations on or about a single support structure counting as a single facility).

b. For each new pole or other support structure that grantee has erected or installed in the rights-of-way, the annual license fee is $900.00 per support structure.

(2) *Alternative license fee during pending litigation*. During the pendency of all appeals of the FCC's Declaratory Ruling and Third Reported Order in Accelerating Wireless Broadband Deployment and Removing Barriers to Infrastructure Investment, WC Docket No. 17-79, WC Docket No. 17-84, FCC 18-33, 83 Fed. Reg. 51867 (Oct. 15, 2018) ("FCC small cell order"), grantee may, in lieu of the annual license fee amounts set forth in subsection (1) above, pay the city a contingent annual license fee ("contingent license fee") of $270.00 per facility (including any support structure), less the recurring amount of any pole attachment fee charged by Huntsville Utilities for attachment of the facility subject to the license fee to a Huntsville Utilities utility pole. Upon a final decision in the appeals of the FCC small cell order, no longer subject to further review, the following shall occur with respect to the annual license fee:

a. If the portions of the FCC small cell order addressing recurring fees are upheld, then grantee shall pay the contingent license fee amount set forth in this subsection (2) unless, by separate ordinance, the city sets a different annual license fee that is (i) a reasonable approximation of the city's objectively reasonable costs associated with or allocable to applicant's use and occupancy of the rights-of-way, and (ii) no higher than the fees charged to similarly situated competitors for their installation of similar communications facilities in the rights-of-way.

b. If the portions of the FCC small cell order addressing recurring fees are reversed, vacated, or otherwise overturned by the court or are otherwise modified or repealed by applicable federal law, then applicant shall, commencing with the first payment due date after the court's decision or the effective date of that decision or change in applicable federal law, pay the license fee amounts set forth in subsection (1) above for all future license fee payments. If such fee amounts are inconsistent with applicable law, the city will revise such fees to be consistent with applicable law.

(3) *License fee computation and payment; report*.

a. The license fee (or contingent license fee, as applicable) shall be prorated

based upon the date of issuance of a siting permit for each facility and support structure. To illustrate, for a siting permit issued for a facility on June 1, applicant shall pay as the annual license fee for that facility for that year an amount equal to 7/12 of the annual amount of the license fee for that facility. After the year of siting permit issuance, there shall be no proration of the license fee for that facility.

b. The prorated license fee (or contingent license fee, as applicable) for a facility shall be due and paid at the time a siting permit is issued for that facility, and the license fee shall be due and paid annually thereafter no later than January 30 for each succeeding year. Each annual license fee payment shall be accompanied by a report, certified as true and accurate by an officer of applicant, setting forth the basis for the computation of that year's annual license fee and listing the location of each of applicant's facilities and support structures in the rights-of-way during the preceding calendar year.

(4) *Inspection and audit; verification*.

a. Subject to subsection (4)b. below, the city shall have the right to inspect and audit, upon reasonable written notice and no more frequently than every year, at grantee's offices where such records are located, all business records relevant to calculating the license fee in the form and manner as reasonably prescribed by the city to verify compliance with the license fee or other payment requirements of this division.

b. Should grantee's business records be located in another city or state, applicant shall, upon the written request of the city, make such records or information available to the city at a convenient location in the city within a time agreed to by the city and the grantee. The city and grantee shall each pay its own costs and expenses incurred in connection with any such audit, except in the event there is an underpayment of five percent or more of the amount that was due and payable to the city, in which case, in addition to making full payment of the relevant obligation, grantee will promptly pay to the city the actual costs and expenses incurred by the city associated with the audit, including attorneys' fees and the professional services of the auditor to perform the audit; provided, however, grantee's obligations to pay such costs and expenses shall be capped at $15,000.00 for any one audit. The city may not retain any person or entity to perform the audit whose compensation for performing the audit is dependent in any manner upon the outcome of any such audit, including the audit findings, the recovery of fees, or the recovery of any other payments.

c. Any additional amount due to the city as a result of the audit, including any applicable interest, shall be paid by grantee within 30 days after grantee receives a written notice from the city accompanied by a copy of the audit report and any other supporting document necessary to determine the alleged amount due is correct.

(5) *Final payment*. In the event grantee quits its operations or facilities within the city, whether by transfer or otherwise, it shall make a final payment of any amounts owed to the city within 90 calendar days thereof, and shall provide a report for the calendar year through the date of cessation of the operations or facilities, which report shall contain the information and certification required.

(6) *Evasion of license fee prohibited*. Any transactions which have the effect of circumventing grantee's payment of the license fee, including evasion of payment of the license fee by non-reporting of facilities, or grantee constructed or owned support structures, or by granting title to the facilities or support structures to any entity other than grantee, or any other means which evade the city's collection of license fee revenues, are prohibited. For a violation of this section, the city may, in addition to other remedies it may have under this division or applicable law, require the grantee to remove, at its sole expense and risk, any non-reported facility or support structure and pay a penalty of three times the annual license fee that would be due, without any proration. The removal of the non-reported facility or support structure shall be subject to the removal, repair and restoration requirements contained in this division, including division 3 which is incorporated herein by reference.

(7) *Affiliate facilities*. Facilities or support structures owned by any affiliate of grantee shall be included in the calculation of the license fee unless a fee is paid to the city by such affiliate for the use contemplated by this division.

(c) *No waiver of city rights*. No acceptance of any payment by the city shall be construed as an accord that the amount paid is in fact the correct amount, nor shall such acceptance of payment be construed as a release of any claim the city may have for further or additional sums payable under the provisions of this division. All amounts paid shall be subject to audit and re-computation by the city in compliance with this division.

(d) *Application of interest*. In the event any payment is not made on the due date, interest on the amount due shall accrue from such date at the annual rate comparable to the then-current rate used by city for late payment of delinquent taxes.

(e) *City office for payment*. Unless the city permits electronic payments or provides another payment method, all remittances for the monies due according to the terms of this division are to be made payable to the city clerk-treasurer and mailed or delivered to:

City of Huntsville, Alabama

Office of City Clerk-Treasurer

ATTN: City Clerk-Treasurer

308 Fountain Circle

Huntsville, AL 35801

Such remittances shall clearly identify or reference the applicant and its license.

(f) *Removal fee may be applicable.* A fee for removal of small cell facilities or grantee's support structure may be applicable and is hereby authorized as necessary unless the removal does not hinder vehicular or pedestrian traffic or an ongoing city project or improvement, and the city incurs no additional cost to ensure safe removal.

(g) *Additional cost for make-ready work for attachment.* Grantee may be required to bear additional costs for any necessary make-ready work estimate or construction for attachment to city-owned support structures as provided in subsection 23-433(d).

(h) *Escalation of fees.* Notwithstanding anything to the contrary contained in this section, the fees required under subsections (a) and (b) of this section may be adjusted (1) to recover a reasonable approximation of the city's actual and reasonable costs in administering and overseeing the small cell facilities and support structures installed pursuant to this division, or (2) as otherwise permitted, or not prohibited, by applicable laws.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-427. Prohibitions.

In no event shall a siting permit be approved for a small cell facility or new small cell support structure that does, or that has a reasonable likelihood of, any of the following:

(1) Interfering with the safe operation of traffic control equipment, public safety communications equipment, street or traffic control lights, or utility facilities;

(2) Interfering with sight lines or clear zones for vehicular transportation, pedestrians, or public safety purposes;

(3) Interfering with compliance with the Americans with Disabilities Act or similar federal or state standards regarding pedestrian access or movement;

(4) Interfering with vehicular traffic, passage of pedestrians, or other use of the right-of-way by the public;

(5) Interfering or failing to comply with the Alabama Department of Transportation Utility Manual, as it may be applicable and as amended;

(6) Failing to comply with applicable law, including applicable codes and standards, regarding public health and safety;

(7) Is proposed to be located closer than five feet from the street curb or edge of pavement if no curb is present, unless otherwise approved by the franchise manager;

(8) In the case of small cell facilities, being placed on any arms or any horizontal structure used to support or mount traffic control signals or other traffic control devices;

(9) In the case of small cell facilities, interfering with electrical lines, cable lines, or their associated equipment, in that small cell facilities must be placed at least ten feet away from energized electrical distribution lines, unless otherwise approved by the electric utility;

(10) In the case of small cell facilities, being hung from energized electrical lines; or

(11) In the case of small cell facilities, being mounted on abandoned poles or poles to be removed in conjunction with the undergrounding of electrical utilities in a particular area.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-428. Requirements for minimum spacing, minimal physical installation, and ability to restore rights-of-way.

(a) *Spacing*. Small cell facilities and small cell support structures shall comply with the following spacing requirements:

(1) Minimum spacing between proposed new (non-replacement) and existing privately-owned support structures that are not city-owned structures shall be as follows: the minimum horizontal distance between a new (non-replacement) support structure and associated small cell facilities and any other existing, or permitted but unconstructed, support structures and small cell facilities on the same side of the right-of-way at the time a complete application is filed with the city, irrespective of the owners/operators, shall not be less than 300 linear feet as measured parallel to the right-of-way. The franchise manager may grant any waivers of this requirement as needed based on demonstrated need or other circumstances.

(2) Spacing between proposed new (non-replacement) support structures and existing city-owned structures shall be as follows: new support structures shall be located midway between the immediately adjacent existing publicly-owned support structures on either side of the proposed support, unless a waiver is granted by the franchise manager based upon demonstrated need or other circumstances.

(3) Multiple requests for installations at the same location shall be as follows: if multiple requests are received and are pending at the same time to install small cell support structures that would violate the applicable spacing requirements, or to collocate two or more small cell facilities on the same support structure, the city may resolve conflicting requests in a reasonable and nondiscriminatory manner. The franchise manager may

grant any waivers as needed based upon demonstrated need or other circumstances.

(b) *Physical installation*. An application shall demonstrate that the placement of the proposed small cell facilities or support structure in the right-of-way is the minimal physical intrusion and burden on the rights-of-way that will achieve the goal of enhancing the provision of personal wireless services when considering all pertinent factors contained in sections 23-429 and 23-430.

(c) *Ability to restore*. If the proposed installation will disturb conditions in the right-of-way, the applicant may be required by the franchise manager to demonstrate its ability and financial resources to restore the subject area in accordance with the restoration requirements set forth in division 2.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-429. Technical considerations.

(a) If allowed, small cell facilities collocated on the same utility pole as a street light shall be on the same disconnect as the street light, where practicable.

(b) Small cell facilities shall be grounded and otherwise comply fully with all applicable codes.

(c) Whenever a conduit of small cell facilities crosses telephone or electric power wires, wires shall cross and be maintained in accordance with the National Electrical Code, the National Electrical Safety Code, and all applicable ordinances, codes and regulations of the city and all other applicable codes.

(d) Small cell facilities and support structures shall comply with the applicable structural requirements with respect to wind loading.

(e) The proposed facility or support structure shall comply with ANSI/TIA 222-G-2 structural safety requirements.

(f) The proposed facility shall comply with FCC RF safety rules.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-430. Factors.

(a) In addition to other siting permit prohibitions, technical considerations, limitations and requirements provided for in this division, the franchise manager or subsequently, upon appeal, the city council, may consider the factors, requirements, and guidelines in this section, and will apply them when determining whether to issue a siting permit for placement of new support structures or small cell facilities in the right-of-way.

(b) *Effect of prohibiting*. Consideration may be given to whether denial of a siting permit to place the proposed structures at the requested location would prohibit or have the effect of prohibiting the provision of telecommunications or personal wireless service.

(c) *General factors*. Each of the following general factors may be considered for each proposed installation regardless as to whether the installation otherwise meets the requirements, terms or conditions of this division:

(1) The ability and specifications of the structures upon which the small cell facilities are placed to safely support those facilities.

(2) The visual impact of placing the support structures or small cell facilities in the subject area, including the already existing above-ground utilities and other equipment already burdening the proposed site.

(3) The character of the area in which the facilities or structures are requested, including surrounding buildings, properties and uses.

(4) Whether the appearance and placement of the requested facilities or structures are consistent with the uniform design guidelines as may be provided in subsection (f) of this section.

(5) Whether the facilities or structures would be consistent with the historic nature and characteristics (if any) of the surrounding area; with the residential nature and characteristics of the surrounding

area; with the enhanced nature and characteristics of areas such as research parks, industrial parks, medical campuses and other similar parks and campuses; and with city and other public improvement projects, plans, and revitalization efforts in the surrounding area.

(d) *Factors related to the installation*. The following factors related to an installation may be considered regardless as to whether the installation otherwise meets the requirements, terms or conditions of this division:

(1) With regard to each antenna associated with a small cell facility:

a. When mounted at the top of a support structure, whether or not enclosed, (i) an initial installation will not exceed six feet above the top of the support structure, and (ii) a collocated installation will be no taller than necessary to house the collocation but in no event more than ten percent taller than the greater of six feet, or the original height of the support structure before the effective date of this division, or as the support structure was originally installed, whichever is later;

b. When mounted at the top of a support structure, a pole-top extension shall be no taller than necessary for separation from other attachments;

c. When mounted on a lateral standoff bracket on a support structure, the antenna shall protrude no more than necessary to meet clearances;

d. When mounted on or within an existing or replacement decorative support structure, shall conform to the design aesthetics of the original support structure, including the design, style and color; and

e. The installation shall not otherwise impair the function of the support structure.

(2) With regard to accessory equipment:

a. When mounted on a support structure other than at the top, the equipment shall be flush-mounted or as near to flush as possible;

b. When mounted on a support structure other than at the top, the equipment shall provide a minimum of ten feet of clearance above streets, driveways and sidewalks; and

c. When located in a ground-mounted cabinet, the equipment shall meet design, style, color and material requirements as may be required by the franchise manager in accordance with this division.

(3) With regard to replacement support structures:

a. Shall be installed within five feet of the location for the original support structure; and

b. Shall be of a material and dimensions that matches as closely as feasible existing adjacent support structures, or consistent with any published local standards for utility pole placements.

(4) With regard to new (non-replacement) support structures:

a. Shall be aligned with the predominant pattern of existing adjacent structures; and

b. Shall not be located directly in front of primary walkways or primary egress points to buildings, unless the franchise manager grants a waiver.

(5) All cables and wires associated with a small cell facility shall:

a. Be installed within the support structure; or

b. Flush-mounted to the support structure where internal installation is not feasible; and shrouded or

encased in a cover or conduit when flush-mounted to the support structure.

(6) An electric meter, if required, will be support structure-mounted where feasible to the extent authorized by the support structure owner and electric utility.

(7) If a facility is attached to a pre-existing utility pole or other support structure in the right-of-way, no antenna or other part of the facility shall extend more than ten feet above the height of that structure; provided that, in the event that the applicant demonstrates that National Electric Safety Code, National Electric Council, or International Code regulations (as maintained and adopted by the city) or other factors create an undue hardship in complying with this height requirement, the city franchise manager may permit a facility to extend up to 15 feet above the height of such support structure, unless it creates a public safety issue, subject to other limitations set out in this division.

(8) The accessory equipment shall, if reasonably possible, be placed at least ten feet above the ground.

(9) The color of antenna and accessory equipment shall be compatible with that of the support structure in the franchise manager's discretion.

(10) The facility (including the accessory equipment) shall not be illuminated unless required by federal regulations.

(e) *Collocation; new structures*.

(1) Subject to the provisions of this subsection (e), all small cell facilities that are placed in the rights-of-way shall be attached to a pre-existing support structure, unless the applicant demonstrates that (i) no reasonable collocation opportunities exist in the area where the small cell facility is proposed to be placed, or (ii) attachment to a new structure will provide a more visually appealing design, demonstrably more effective service coverage, or some other public benefit that would not be achieved by collocation, the applicant may request that a new pole or other support structure be installed in that area for purposes of installing the small cell facilities.

(2) Before any new support structure is permitted the applicant must have provided the city written evidence supporting a claim under subsection (e)(1)(i) or (ii) above. In the case of (1)(i), this evidence shall include, but not be limited to, affidavits, correspondence, or other written information that demonstrates that the applicant has taken all commercially reasonable actions to achieve collocation in the requested location that the applicant has pursued but has received no response or has been denied access to all potential collocation sites in the subject area (and the reasons for any such denial(s)), and otherwise show that the applicant is unable to co-locate on an existing support structure. In the case of (1)(ii), the evidence required by the city may include affidavits, correspondence, engineering report or other written information depicting the claimed more visually appealing design, demonstrating the claimed more effective service coverage, or demonstrating the claimed public benefit.

(3) If small cell facilities are to be collocated on or attached to a support structure, other than to a city-owned support structure, the applicant shall provide to the franchise manager a lease, license, permit, certificate of authority, express waiver, or other similar documentation (which documentation may be redacted as to business terms including rent or other fee or payment information), evidencing proper authorization to do so from the owner or that the owner agrees in principle to authorize that attachment. If a siting permit is issued by the franchise manager before the requisite documentation is provided, the siting permit is hereby declared to be conditional

and the documentation shall be provided to the franchise manager before the commencement of the installation, otherwise the siting permit is void without further action required by the city.

(4) To the extent consistent with applicable federal law, the franchise manager may request an applicant for a new support structure in the right-of-way to demonstrate that there are no available, technically and commercially reasonable alternative sites on separate property in the vicinity of the proposed site.

(f) *Design guidelines and considerations*.

(1) *Similar character and style of area required*. The applicant shall use its best efforts to provide a reasonable location, context, color, stealth and concealment necessary to maintain the character and style of the surrounding areas so as to minimize the visibility and environmental impact.

(2) *Design guidelines*. The franchise manager is authorized to develop a set of uniform design guidelines addressing aesthetic requirements of an installation that is consistent with this division and is applied objectively. The design guidelines may take into account standard designs generally used by wireless providers. In addition, the franchise manager may work with a grantee to establish a pre-approved set of designs for its installations that meet the provisions of this division. Any uniform set of design guidelines shall be posted on the city's website or be otherwise made available to an applicant or grantee.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-431. Application review; decisions; timeframes.

(a) *Standards for review.* Review of applications shall be in light of its conformity with applicable provisions of this division and the licenses issued hereunder, and shall be issued on a nondiscriminatory basis.

(b) *Review for completeness; notice of deficiency.* In the case of a small cell facility application, the franchise manager will, within ten days after receiving the application, determine and notify the applicant by electronic mail to the email address provided in the application whether the application is complete. An application shall not be deemed complete until the applicant has submitted all documents, information, forms and fees specifically enumerated in this division that pertain to the location, construction, or configuration of the small cell facilities or support structures at the requested location(s). If an application is deemed materially incomplete, the city must specifically identify (i) the missing documents or information, and (ii) the specific rule, regulation or code provision creating the underlying obligation to provide same. If the applicant makes a supplemental submission to address or provide the missing information or documents identified by the city within 60 days of the notice sent by the city, the city shall have ten days from receipt of such supplemental submission to verify that the application is complete and, if not, notify the applicant in writing that the supplemental submission was not sufficient to render the application complete and specifically identify the missing documents or information that still need to be submitted pursuant to the city's original notice. The additional documents or information provided in the supplemental submission shall be limited to the deficiencies cited in the original notice from the city and no material changes shall be made to the original application other than those necessary to cure any identified deficiencies. If a supplemental submission includes material changes to the proposed small cell facilities identified in the original application, proposes or requests a small cell facility not identified in the original application, or otherwise includes or makes a material change to the original application other than as necessary to cure the deficiencies identified by the city, such supplemental submission shall be deemed a new application. If an applicant fails to submit sufficient documents or information to render the application complete within 60 days of the notice sent by the city, the original notice sent by the city shall serve as written notice of the denial of the application, and the application shall be deemed denied.

(c) *Timeline for action on applications.* Unless otherwise agreed to by the applicant and the franchise manager, the franchise manager will approve or deny an application for a siting permit within the applicable time period set forth in this subsection, plus any tolling period(s) pursuant to subsection (c)(2) below.

(1) *General time period for action on application*. Subject to the tolling provisions set forth below, the city, by and through the franchise manager, will make its final decision to approve or deny the application(s) within the following time periods, unless the franchise manager and the applicant agree to toll the applicable deadline:

a. For an application(s) to collocate a small cell facility on an existing structure, within 60 days of receipt of such application(s); or

b. For an application(s) to deploy a small cell facility on a new structure, within 90 days of receipt of such application(s); or

c. For multiple applications or a single, consolidated application for a small cell facility network project which seeks approval of a mix of collocated small cell facilities and new structures (i.e., one or more of the applications is for a new structure), within 90 days of receipt of such applications.

(2) *Tolling period*. Unless otherwise agreed to in writing by the applicant and the city, the tolling period for an application, if any, shall be as follows:

a. If within ten days of receipt of an application for a siting permit to install a small cell facility in the right-of-way, the franchise manager notifies the applicant that an application is materially incomplete and specifically identifies (i) the missing documents or information and (ii) the specific rule, regulation or code provision creating the obligation to submit same to the city, the time period for action on an application shall reset and not begin until the applicant submits all of the documents and information identified by the franchise manager to render the application complete (i.e., the date the applicant submits all of the documents and information identified by the city in the deficiency notice is day zero).

b. For resubmitted applications (or supplemental submissions) following a notice of deficiency from the city pursuant to subsection (c)(2) of this section, the tolling period shall be the number of days from:

(i) The day after the date the city sends written notice to the applicant that the applicant's supplemental submission is not sufficient to render the application complete and specifically identifies the missing documents or information that need to be submitted based on the city's original notice under subsection (c)(2)b. of this section, until

(ii) The date the applicant submits all the documents and information identified by the city to render the application complete, provided that such notice regarding the insufficiency of the supplemental submission is sent by the city to the applicant within ten days following the city's receipt of the supplemental submission in response to the city's original notice under subsection (c)(2)b. of this section.

(3) *Final decision*. The franchise manager will inform the applicant in writing of his/her final decision and, if such final decision is to deny the application, provide the basis for such denial, including identifying the city code, rule, regula-

tion, or application form provision, or other applicable law on which the denial was based.

(4) *Effect of timelines*. The city's failure to issue a final decision within the processing timelines set forth shall not constitute, or be construed to constitute, a grant of an applicant's application(s). Upon expiration of these timelines, applicant may pursue whatever remedies are available to it under applicable law.

(d) *Consolidated applications.* An applicant may file a consolidated application and receive a single siting permit for approval of up to five small cell facilities, provided that the proposed facilities are in reasonably close proximity to one another. If the application includes multiple facilities, then the city may separately address each facility for which incomplete information has been received or for which the application is denied.

(e) *Appeal of decision by franchise manager.* Upon denial of its application by the franchise manager, the applicant may, at its option, either seek review in a court of competent jurisdiction or file a written appeal to the city clerk within 15 days for reconsideration by the city council and placement on the next regularly scheduled agenda of the city council. If the applicant appeals to the city council, it may seek review of an adverse council decision in a court of competent jurisdiction.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-432. Application requirements and process.

(a) *Approval required.* Except as otherwise provided, a siting permit to construct or install small cell facilities shall not be granted under this division except upon approval by the franchise manager, city council in the case of an appeal, or as otherwise designated by resolution or ordinance to consider application under this division, in which applicant must sufficiently describe the manner, form, design, placement, its effect and impact, and other pertinent information with regard to placement and maintenance of small cell facilities or new support structures in the right-of-way.

(b) *Application.* An application must be submitted for every small cell facility or support structure.

(c) *Application requirements.* At a minimum every application should include, as follows:

(1) The applicant's name, address, telephone number, and e-mail address; and the names, addresses, telephone numbers, and e-mail addresses of all consultants, if any, acting on behalf of the applicant with respect to the filing of the application;

(2) A general description of the proposed work and the purposes and intent of the small cell facility. The scope and detail of such description shall be appropriate to the nature and character of the work to be performed, with special emphasis on those matters likely to be affected or impacted by the work proposed;

(3) Site plan and engineering design and specifications, including engineering drawings to scale, of the proposed small cell facilities and related structures, including the location of radios, antenna facilities, transmitters, equipment shelters, cables, conduit, point of demarcation, backhaul solution, electrical distribution panel, electric meter, and electrical conduit and cabling, and support structure(s); the engineering drawing shall include the seal of an engineer licensed to perform services in the State of Alabama;

(4) Design documents should include photos of the existing support structure, and a photo simulation of the support structure with attached equipment. Where applicable, the design documents should include specifications on stealth design, support structure modification, and ADA compliance;

(5) Maps designating with specificity the locations of the requested facilities;

(6) The geographic coordinates (GIS) of all antenna and other proposed facilities;

(7) For city traffic light signal, written verification from the city that the pole is eligible for attachment;

(8) A load bearing study that determines whether the support structure requires re-enforcement or replacement in order to accommodate attachment of small cell facilities or equipment. If support structure re-enforcement or replacement is warranted, the design documents should include the proposed support structure modification certified by an engineer licensed to perform services in the State of Alabama;

(9) Copy of the manufacturer's detailed specifications for small cell equipment and antennas, including photographs or illustrations and a complete description of all pertinent physical and electrical characteristics;

(10) Supporting information if stealth modifications are required in order to comply with the design standards (i.e., to blend with the character and style of the surrounding area) or criteria for installations;

(11) Supporting information if the application seeks approval of a new support structure, including design and specification drawings for the new support structure, and a statement regarding the reasons for and what other alternatives, if any, were identified but not utilized, and why;

(12) Applicable design and specification drawings if the proposed installation will require reinforcement or replacement of an existing support structure;

(13) The number, size, type and proximity to the small cell facilities of all communications conduit(s) and cables to be installed;

(14) Description of the utility services required to support the small cell facilities to be installed;

(15) If the small cell facilities will be located on a support structure on the right-of-way that is owned by any entity other than the city or the applicant, the authorization documentation required in subsection 23-430(e);

(16) All permits and letters of authorization;

(17) Valid FCC license, where applicable or other appropriate certificates or permits as required;

(18) A certification from a licensed engineer that the small wireless facility and any associated new or replacement support structure shall comply with all applicable codes and FCC rules and regulations, including federal standards for RF emissions; and

(19) A declaration signed by an authorized representative of the applicant stating that the information in the application is true and accurate and that the small wireless facility and (if applicable) associated support structure will be built in conformance with the specifications set forth in the application.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-433. City-owned poles and structures.

(a) *Limitations*. City-owned poles or structures for attachment or collocation, which includes the city's decorative and architecturally significant street light poles, and traffic signal poles or stanchions, may not be available for collocation or attachment where the city engineer determines, in his/her sole discretion, that such poles are inappropriate for use as a support structure, or their use would be otherwise detrimental to public safety or welfare, and replacement or make ready use for these poles or structures may be limited or declined, unless otherwise agreed to in writing by the city engineer. All such decisions will be final.

(b) Availability of city-owned poles or structures that are allowed to be used as a support structure will be on a first-come, first-served basis, and if the city engineer, in his/her sole discretion,

determines collocation on such city-owned poles or structures has reached its maximum, is unsafe or should otherwise not be permitted, the city engineer may propose alternative collocations to the applicant.

(c) Should the city allow the use of city-owned structures or poles as a support structure, in addition to the applicable provisions of this division, the city, through its city engineer, may establish additional requirements related to the installation that are designed to address engineering, technical, safety, and other similar standards, specifications or requirements, and to otherwise protect the proper functioning, operation, maintenance, repair, and replacement of such poles or structures, and to otherwise protect the public safety and welfare. Any such additional requirements will be posted at the city's website.

(d) *Make-ready work for collocation.*

(1) For a city-owned support structure that does not support an aerial facility used to provide electric service, the applicant seeking to collocate a small cell facility shall provide a make-ready estimate of the costs, at the applicant's expense, for the work necessary to support the facility, including support structure replacement, and the applicant shall perform the make-ready work. If support structure replacement is required, the scope of the make-ready estimate is limited to the design, fabrication, and installation of a support structure that is substantially similar in color and composition to the pre-existing support structure. Applicant's make-ready work shall be subject to the right-of-way construction and restoration standards set forth herein including division 2 of this article. The replaced or altered city-owned support structure shall remain the property of the city.

(2) The city shall not require more make-ready work than is required to meet applicable codes or industry standards, the city's design guidelines, or where applicable, the city's decorative support structure requirements.

(3) If the city performs the make-ready work, the fees it charges the applicant for make-ready work shall not include costs related to pre-existing damage to the support structure or the support structure's pre-existing noncompliance with applicable codes. Such fees for make-ready work, including any support structure replacement, shall not exceed actual costs or the amount charged to communication service providers other than wireless providers for similar work.

(4) The applicant must pay the city's fees for make-ready work performed by the city, even if those fees exceed the applicant's make-ready estimate, before the wireless facilities may be operational, unless the city and the applicant otherwise agree.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-434. Construction.

(a) *Incorporation of division 2*. Unless expressly provided for otherwise in this division, the provisions of division 2 of this article, which are incorporated into this division by reference and which shall be included when reference is made to this division, shall apply to small cell facilities and support structures, including their construction, removal, abandonment, maintenance and relocation. In the case of an irreconcilable conflict between this division and division 2, this division shall apply.

(b) *Contractors*. Before any installation or other work in the right-of-way or on structures in the right-of-way commences pursuant to a siting permit, grantee must provide the franchise manager with a list of the contractors and subcontractors, and their contact information, authorized to work on the project, all of which must have a valid city business license at the time they perform any work in the city.

(c) *Coordination of work*. Upon request of the city, an applicant may be required to coordinate placement or maintenance activities under a siting permit with any work, construction, installation or repairs that may be occurring or scheduled to occur within a reasonable time frame in the subject rights-of-way, and applicant

may be required to reasonably alter its placement or maintenance schedule as necessary to minimize disruptions.

(d) *Undergrounding*. Where undergrounding is required in accordance with section 23-353 of division 2, those portions of a small cell facility that cannot be technically placed underground will be subject to stealth requirements.

(e) *Restoration*. Applicant shall be subject to the restoration provisions at section 23-355 of division 2.

(f) *Scheduling*. In the interest of the public's health, safety and welfare, upon request of the city, through the franchise manager or city engineer, an applicant shall coordinate placement or maintenance activities under a siting permit with any other work, construction, installation or repairs that may be occurring or scheduled to occur within a reasonable timeframe in the subject rights-of-way. The city may require an applicant to alter reasonably its placement or maintenance schedule for permitted work as necessary so as to minimize disruptions and disturbance in the rights-of-way. The city may provide a more definite time frame based on specific city construction or maintenance schedules.

(g) *As-builts*. An application for a siting permit, including an application to replace an existing small cell facility in the right-of-way, shall include plans showing the location of the proposed installation of facilities or structures in the rights-of-way. If the plans so provided require revision based upon actual installation, the applicant shall promptly provide revised plans. Further, the applicant shall provide "as-builts" upon completion of any installation or construction. The plans shall be in a digitized format showing the two-dimensional location of the facilities as provided in subsection 23-354(b) of division 2. The applicant shall provide such plans at no cost to the city.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-435. Conditional use of public right-of-way.

(a) The city shall retain the right, without limitation, to alter, change, or cause to be changed, the grading, installation, relocation or width of the rights-of-way within the limits of the city. Neither the issuance of a permit nor any provision set forth in this division shall affect the city's authority to add, modify, vacate or abandon rights-of-way.

(b) A grantee or an applicant, or any person that leases or otherwise uses the small cell facilities of an applicant, which has been issued a siting permit or that has otherwise been authorized to place a small cell facility or support structure in the rights-of-way shall not take any action against the city that will impede the lawful exercise of the city's rights, including the city's right to require the removal or relocation of such facilities or support structure from the rights-of-way of the city, notwithstanding the effect of same on applicant's ability to place or maintain small cell facilities in rights-of-way of the city.

(c) *All rights of city reserved*. Notwithstanding any provision of this division or the city's issuance of a license, siting permit or other authorization to place a small cell facility or support structure in the right-of-way, the city may place and maintain, grant utility easements for, or otherwise permit the placement and maintenance of other facilities in the rights-of-way, including, water, sewer, electric, gas, storm drainage, telecommunications, communications, traffic, and other types of facilities, cables or conduit, including underground and overhead installations, in rights-of-way occupied by a grantee or applicant. The city further reserves without limitation the right to alter, change, or cause to be changed, the grading, installation, relocation or width of the rights-of-way within the city.

(d) *Applicant's liability and risk*. The city makes no warranties or representations regarding the fitness, suitability or availability of rights-of-way for the small cell facilities or support structure and any performance of work or costs incurred by applicant or provision of services shall be at grantee's or applicant's sole risk. Nothing in this division shall affect the city's authority to add, vacate or abandon rights-of-way, and the city makes no warranties or representations regarding the availability of any

added, vacated or abandoned rights-of-way for small cell facilities or support structure. Notwithstanding any requirements or conditions that the city may impose in order to protect the public from injury and the right-of-way from damage, a grantee or an applicant shall be solely responsible for the adequacy and safety of the engineering of its facilities and the operations authorized by the siting permit. Construction performed to place or maintain a grantee's or an applicant's small cell facilities or support structure shall not interfere, displace, damage or destroy any utility or other facilities in the rights-of-way, including sewers, gas or water mains, storm drains, pipes, cables or conduits of the city or any other person's facilities lawfully occupying the rights-of-way of the city.

(e) *Inspection*. The city shall have the right to make such inspections of small cell facilities or support structures placed or maintained in rights-of-way as it finds necessary to ensure compliance with this division or other applicable laws. In the event the city determines that a violation exists with respect to applicant's placement or maintenance of facilities or support structures in the rights-of-way that is not considered to be an emergency or danger to the public health, safety or welfare, the city will provide notice and an opportunity to cure in accordance with subsection 23-442(a).

(f) *Cooperation*. Applicant shall comply with section 23-358 of the Code with respect to temporary movement of its facilities.

(g) *Signage*. Applicant shall comply with section 23-361 regarding signage. Notwithstanding the foregoing, applicant may install on each facility one small sign measuring no more than one foot by two feet that contains wireless provider information, emergency telephone numbers, and any other information required by local, state, and federal regulations governing small cell facilities. Such signage shall not include commercial advertising and is subject to approval by the city.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-436. Effect of siting permit.

(a) *Authority granted; no property right or other interest created.* A siting permit from the city authorizes an applicant to undertake only certain activities in accordance with this division and creates a license only. A siting permit does not create a property right or grant authority to the applicant to impinge upon the rights of others who may already have an interest in the rights-of-way.

(b) *Duration.*

(1) *For use in general*. No siting permit issued to conduct construction, installation or other activities in the right-of-way shall be valid for a period greater than 180 days.

(2) *Limitations on construction.* When the siting permit application is approved to undertake the activities described in this division, every siting permit issued shall become invalid unless the work on the site authorized by such siting permit is completed within 180 days after its issuance, or if the work authorized on the site by such siting permit is suspended or abandoned for a period of 180 days after the time the work is commenced. The franchise manager is authorized to grant, in writing, one additional extension of time, for periods that collectively do not exceed more than 180 days, provided that any extension shall be requested in writing with justifiable cause demonstrated, and further provided that:

a. If no request for extension is received, then the siting permit will become invalid;

b. If construction has not commenced by the 180th day of siting permit issuance, then the applicant must re-apply and be subject to the same provisions of this division as if the applicant is applying for the first time; and

c. Nothing in this section shall be construed to give an applicant a period for use of the right-of-way greater than 12 months without applying for a new siting permit.

(c) *No warranties.* The city makes no warranties or representations regarding the fitness, suitability, or availability of the city's right-of-way or city-owned support structures. A grantee's or applicant's use of the city's right-of-way or city-owned support structures for installation and operation of small cell facilities or for provision of wireless service is at its sole risk.

(d) *Revocation of siting permits.* Revocation of siting permits shall be governed by subsection 23-442(b) of this division.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-437. Insurance and security.

(a) *Insurance*.

(1) *Commercial general liability*. A grantee or applicant shall, at its sole expense, maintain, throughout the term of its license and any extension or renewal thereof, and such other period of time during which the grantee or applicant operates or is engaged in the removal of its facilities or structures (hereinafter referred to as "coverage period"), commercial general liability insurance using carriers licensed, authorized or permitted to conduct business in the State of Alabama and maintaining a Best rating of not less than "A." Such insurance shall include coverage for premises and operations, underground, collapse and explosion, and products and completed operations, independent contractors, contractual liability and personal and advertising injury, and shall include as additional insureds the city's present and future officers, elected or appointed officials, council, boards, commissions, agents, representatives, volunteers performing authorized city functions, and employees. Such insurance shall be in the amount of $2,000,000.00 per occurrence for bodily injury (including death) and property damage and $3,000,000.00 general aggregate. The grantee or applicant shall insure any contractors and subcontractors providing services in connection with its license or permit maintain appropriate levels of insurance and that the city is included as an additional insured under each policy except workers compensation and employer's liability. Insurance will be written on an occurrence basis.

(2) *Commercial automobile liability*. A grantee or applicant shall, at its sole expense, maintain during the coverage period commercial automobile liability insurance with a limit of $2,000,000.00 combined single limit for any one accident or loss for bodily injury, including death, and property damage covering owned, leased, non-owned, and hired automobiles used in conjunction with its operations under its license or permit. Such insurance shall include the city and the city's present and future officers, elected or appointed officials, council, boards, commissions, agents, representatives, volunteers performing authorized city functions, and employees as additional insureds.

(3) *Workers' compensation and employer's liability*. A grantee or applicant shall, at its sole expense, maintain, during the coverage period, workers' compensation coverage as prescribed by the laws of the State of Alabama and employer's liability coverage in an amount of $1,000,000.00 each accident/disease/policy limit.

(4) *Umbrella or excess liability*. A grantee or applicant shall, at its sole expense, maintain during the coverage period umbrella or excess liability insurance in the amount of $2,000,000.00. Such insurance shall include the city and the city's present and future officers, elected or appointed officials, council, boards, commissions, agents, representatives, volunteers performing authorized city functions, and employees as additional insureds.

(5) *Evidence of insurance; deductibles; approval; reservation*. On grant of a license pursuant to this division and upon each policy renewal thereafter, a grantee or applicant shall, at no cost to the city,

furnish to the city certificates of insurance (or proof of self-insurance) evidencing all of the aforementioned types and limits of insurance to be in effect. The city reserves the right to require proof of self-insurance at any time and from time to time, at no cost to the city. A grantee or applicant has the right to maintain reasonable deductibles and the city reserves the right to review and approve such deductibles, which approval shall not be unreasonably withheld or delayed. The policies obtained by applicant and proof thereof, shall be subject to the city's reasonable approval. The city reserves the right to review these insurance requirements during the coverage period and upon prior written notice to, and review and acceptance by applicant, to adjust insurance coverages and their limits when deemed necessary and prudent by the franchise manager, based upon changes in statutory law, court decisions, or the claims history of the industry, or a grantee or applicant.

(6) *Maintenance of insurance policies; grantee's coverage primary*. The liability insurance policies required under this section, if any, shall be maintained by applicant through the coverage period. Upon receipt of notice from its insurer(s), grantee or applicant shall provide the city with 30 days' prior written notice of cancellation or non-renewal of any required coverage to the city. Grantee or applicant's coverage shall be primary and non-contributory to any other insurance carried by the city, if applicable to a loss, is excess.

(7) *No limit of liability*. The legal liability of grantee or applicant to the city and any person for any of the matters that are the subject of the insurance policy(ies) required by this section, shall not be limited by said insurance policy(ies) or by the recovery of any amounts thereunder.

(8) *Certificate of insurance*. Certificates of insurance, if any, shall include the city and the city's present and future officers, elected or appointed officials, council, boards, commissions, agents, representatives, volunteers performing authorized city functions and employees as additional insureds, in the case of commercial general liability, commercial automobile liability, and umbrella or excess liability insurance. Worker's compensation and employer's liability insurance shall waive rights of subrogation in favor of the city. All subsequent notices or certificates shall be delivered to the franchise manager and the city attorney at 308 Fountain Circle, Huntsville, Alabama 35801. All deductibles under said policy shall be the sole responsibility of the grantee or applicant.

(9) *Self-insurance*. Notwithstanding any other provision of this section to the contrary, a grantee or applicant is given the option, at any time throughout the term of its license, to self-insure any or all of the types or limits of insurance coverage described in this section. If a grantee or applicant elects to self-insure, it shall submit to the city with a statement certifying such self-insurance, and a request for the city to approve such self-insurance, together with sufficient information to show that it has sufficient financial resources to self-insure without posing additional risk to the city. Provided that the grantee or applicant provides adequate information concerning its financial resources, the city will not unreasonably withhold, condition, or delay its approval of grantee's or applicant's request to self-insure.

(b) *Security*.

(1) Subject to the following subsection (2), grantee or applicant shall obtain, maintain, and replenish, at its sole cost and expense, and file with the franchise manager, an irrevocable standby letter of credit in favor of the city or surety bond in the amount of $100,000.00, or in such other amount established by the franchise manager, and suitable in form and content,

including any amendments thereto, to the franchise manager ("letter of credit", "bond", or "security"), both to guarantee the timely completion and faithful performance of all work required in connection with the license including the construction and operation of the facilities and to secure performance of grantee's or applicant's obligations and faithful adherence to all requirements of this division. Throughout the term of its license, and for 120 days thereafter, applicant shall maintain the required letter of credit or bond in the amount specified in accordance with this section. To the extent that the applicant maintains security under any separate franchise or its wireline right-of-way use agreement with the city, such security may, at grantee's or applicant's option, serve to fulfill its obligation under this subsection (b)(1), provided that said security shall refer to and include this division and shall be subject to the terms and conditions applicable to security under this division, including the right to increase the amount of security.

(2) Based on then-current factors, including the construction activity of the grantee or applicant, whether grantee or applicant is engaged in the removal of the facilities, applicant's history of compliance with this division, or such other factors which reasonably necessitate the contemplated action, the franchise manager may, in his sole discretion, modify the obligations of the foregoing subsection (1). Such modifications may include: (i) upon the written request of grantee or applicant, a waiver of the requirement to post security, or a whole or partial release of the security posted; provided that at any time and from time to time the franchise manager may require the posting of any security so waived or released; and (ii) upon the written notice to grantee or applicant, an increase in the amount of security posted. Grantee or applicant shall post the required security within 30 days or such additional time as the franchise manager may allow, without the right of an additional cure period, and the franchise manager may delay any construction activity of applicant until the required security is posted.

(3) The letter of credit may be drawn on directly by the city at any time and from time to time for the payment of the following purposes but not before the expiration of any notice or cure provisions to the extent applicable:

a. To secure the faithful performance by grantee or applicant of all terms, conditions, and obligations of this division and any later enacted regulations and ordinances pertaining to the rights-of-way or their use, including the proper installation, maintenance, operation, and removal of the facilities;

b. To compensate the city for any loss or damage to any city-owned pole or structure or other property of the city, during the course of any construction of the facilities by grantee or applicant, its agents, or employees, or any contractors or subcontractors of applicant;

c. To compensate the city for any expenditure, damage, or loss incurred by the city occasioned by grantee's or applicant's non-compliance with the provisions of this division or default under any later enacted regulations and ordinances pertaining to the rights-of-way or their use, or its failure to comply with all rules, regulations, orders, permits, and other directives of the city, issued pursuant to this division or other present or future ordinances adopted by the city;

d. To secure the payments of premiums for the liability insurance required pursuant to this division; or

e. The payment to the city of any amounts for which applicant is liable that are not paid by grantee's or applicant's insurance.

(4) For the city to recover under this subsection (b) for any failure to properly construct or operate the facilities or any alteration, repair, maintenance, or restoration of city structures or property, in connection with such construction or operation, it is not necessary that the city first perform such work.

(5) The rights reserved to the city with respect to the letter of credit are in addition to all other rights of the city, whether provided for in this division or otherwise authorized by law; and no action, proceeding, or exercise of a right with respect to such letter of credit shall affect any other rights the city may have.

(c) *Right to require replacement of letter of credit or insurance*. If the financial condition of any company issuing a letter of credit pursuant to this section 23-437 materially and adversely changes, the city may, at any time and from time to time, require that any such letter of credit be replaced with such other insurance policy or letter of credit consistent with the requirements set forth in this section.

(d) *Notice*.

(1) Each insurance policy shall contain a covenant or endorsement of the insurer to provide 30 days' advance written notice by certified mail of such insurer's intention to cancel, substantially change, or not to renew such policy to both the franchise manager, city attorney, and grantee or applicant; provided, however, in the event said policy fails to so contain such a notice provision to the franchise manager and city attorney, then grantee or applicant shall be responsible for providing notice to the franchise manager or city attorney. Grantee or applicant shall, in the event of any such notice, obtain, pay premiums for, and file with the franchise manager and city attorney written evidence of the issuance of replacement policies prior to the expiration of any such policy.

(2) In no event shall the letter of credit be canceled without 60 days' advance written notice by certified mail to both the franchise manager and city attorney. Grantee or applicant shall, in the event of any such cancellation, obtain and file with the franchise manager and city attorney written evidence of the issuance of a replacement letter of credit that conforms to the requirements of this section prior to the expiration of any such letter of credit.

(3) Failure to carry or keep such insurance and letter of credit in force throughout the period set forth in this section shall constitute a violation of this division. The city, through its franchise manager, reserves the right to stop any work related to the facilities until proper evidence of insurance and the letter of credit is furnished.

(e) *Commencement of work*. Grantee or applicant shall not commence any work in the rights-of-way, including the work of installing any facilities, until the insurance and letter of credit requirements of this section have been complied with.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-438. Damages and defense.

(a) *Hold harmless and indemnification*.

(1) Grantee by its acceptance of its license agrees to and does thereby indemnify, defend, and hold the city and the city's present and future officers, elected or appointed officials, council, boards, commissions, agents, representatives, volunteers performing authorized city functions, and employees whole and harmless from and against all claims, costs, losses, expenses through appeal (including reasonable attorneys' fees, and costs or expenses incidental to the investigation of claims and lawsuits), demands, payments, suits, actions, recoveries, penalties, fines, liabilities, judgments, and damages, of any nature and description, including any suit or claim for personal injury, property damage, defamation, antitrust, errors and omission, theft, fire,

royalties, license fees, or infringement of copyright or patent rights, resulting from or arising out of or by reason of: (1) grantee's actions pursuant to its license, and each siting permit issued thereunder, and the rights awarded thereunder, or the procedures leading thereto, (2) any act or omission of grantee, its agents, employees, representatives, contractors, or sub-contractors, including in the construction, installation or operation of, or the provision of service over, the small cell facilities or support structure in the city, or any portion thereof, (3) any failure by grantee to comply with any applicable law or the terms and conditions of this division, its license and each siting permit, (4) grantee's performance under its license and each siting permit, (5) the use of portions of grantee's small cell facilities or support structures by other persons, including other communications service providers, or (6) the presence of any hazardous substance or environmental hazard brought into the rights-of-way by grantee or by any person acting on its behalf or under the rights granted under its license and siting permits.

(2) The foregoing obligations of this subsection (a) shall survive the expiration, termination, or revocation of the license.

(b) *Notice*. In order for the city to assert its rights to be indemnified, defended, or held harmless, the city must notify grantee within a reasonable time of any claim or legal proceeding which gives rise to such right.

(c) *Defense*. With respect to grantee's indemnity obligations set forth in this section and in section 23-439, grantee shall provide the defense of any claims brought against the city by selecting counsel of grantee's choice to represent the city and defend the claim, subject to the consent of the city, which shall not be unreasonably withheld. Nothing herein shall be deemed to prevent the city from cooperating with grantee and participating in the defense of any litigation by its own counsel at its own cost and expense. After consultation with the city, grantee shall have the right to defend, settle, or compromise, at its cost and expense, any claim or action arising hereunder, and grantee shall have the authority to decide the appropriateness and the amount of any such settlement, provided, however, that any such settlement shall include, at a minimum, a full and final release of all claims against the city and shall include a provision that the settlement does not constitute an admission of wrongful conduct by the city. In the event that the terms of any such settlement do not include a full and final release of the city, grantee shall not settle the claim or action raised against the city. All of grantee's right to enter a settlement shall entail only payment of monetary amounts by grantee or obligations to be performed fully by grantee, and under no circumstances shall grantee have the power to bind the city to any obligation to pay any monetary amounts, perform any particular action, or refrain from performing any action (although the city may in its discretion independently agree to any such condition).

(d) *Indemnification not limited*. The indemnification obligations hereunder are not limited in any way by limitation of the amount or type of damages or compensation payable by or for grantee under worker's compensation, disability or other employee benefits acts, or the acceptance of insurance certificates required hereunder, or the terms, applicability, or limitations of any insurance held by grantee.

(e) *No waiver of city rights*. The city does not and shall not waive any rights against grantee which it may have by reason of grantee's indemnification, or because of the acceptance by the city of grantee's proof of insurance or deposit with the city of any insurance policies described herein.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-439. Limitation of liability; immunity.

Except to the extent expressly provided for otherwise in this division, the city shall be responsible for its own acts of negligence, or intentional or willful misconduct committed by the city for which the city is legally responsible, subject to defenses, immunities, and limitations

of liability provided by applicable law; provided, however, notwithstanding anything to the contrary contained in this division and in no event shall the city, its present and future officers, elected or appointed officials, council, boards, commissions, agents, representatives, volunteers performing authorized city functions, or employees be liable to grantee, its affiliates, officers, directors, agents, employees, customers, tenants, licensees, contractors, subcontractors, or assigns for any special, indirect, or consequential damages, including any loss, expense, or damage to profits, business, revenue, or income (whether arising out of the damage to or destruction of the small cell facilities or support structures, in whole or in part, transmission interruptions or problems, any interruption or degradation of service or otherwise), arising in any manner, including the city's negligence, and grantee shall indemnify, defend, and save harmless the city and its present and future officers, elected or appointed officials, council, boards, commissions, agents, representatives, volunteers performing authorized city functions, and employees from and against any and all claims, costs, losses, expenses through appeal (including reasonable attorneys' fees, and costs or expenses incidental to the investigation of claims and lawsuits), demands, payments, suits, actions, recoveries, penalties, fines, liabilities, and judgments, of any nature and description, with respect to such special, indirect, or consequential damages. The foregoing obligations of this section shall survive the expiration, termination or revocation of the license.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-440. Compliance with laws.

(a) *Compliance with laws.* All small cell facilities and associated support structures shall be installed, erected, maintained and operated in compliance with all applicable federal, state and local laws and regulations, including, but not limited to, regulations of the FCC.

(b) *Engineer's certification.*

(1) Following the installation of any small cell facilities and associated support structures, and thereafter no more than once annually upon the written request of the franchise manager, the grantee or applicant, shall furnish the franchise manager, a written certification from a licensed professional engineer qualified to practice in the State of Alabama stating that those facilities and structures have been inspected and are being maintained, operated and used in compliance with all applicable laws and regulations, including those of the FCC that pertain to the transmission of wireless communication signals.

(2) In addition, the franchise manager may require that, along with the engineering certification, the report or study upon which the certification is based is provided to the city. The city may, at its sole cost, have the report or study reviewed by an engineer engaged by the city to review the report or study for compliance with applicable law.

(3) If those facilities and support structures should fail at any time to comply with applicable laws and regulations, the grantee or applicant, at its expense, shall (1) cause those facilities and structures to be brought into compliance with such laws and regulations within 15 days of the date of any written notice to them from the franchise manager of noncompliance, or (2) cease all wireless service operations related to those facilities or structures until the grantee or applicant comes into full compliance with laws and regulations.

(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-441. Applicability.

(a) *Amendments.* The city may, at any time and from time to time, amend this article, including this division and division 2, as it shall find necessary in the lawful exercise of its police powers and in the management of the rights-of-way or otherwise in the exercise of its control and authority over the rights-of-way and city property located therein. The provisions hereof shall be applicable to all small cell facilities and support structures placed in the rights-of-way on or after the effective date of the ordinance adopting or amending these provisions, as

applicable. Further, to the full extent permitted by state and federal law, the provisions hereof shall be applicable to all existing small cell facilities and support structures placed in the rights-of-way prior to the effective date of the ordinance adopting or amending these provisions, as applicable, except that any provision of this division regarding the design, size, composition, or location of small cell facilities shall not apply to any facilities lawfully placed within any right-of-way prior to the effective date of the ordinance from which such provision is derived.

(b) *Exemptions and non-applicability.* This division regulates the placement of small cell facilities and support structures located or proposed to be located on the rights-of-way. This division does not apply to the placement of such facilities or structures on city-owned property not located within the right-of-way, which placement will be allowed only through a lease or similar agreement with the city. The placement of an antenna, facilities or equipment related to the following types of wireless communication services are exempt from regulation under this division: facilities owned or controlled, or dedicated to primary use by any federal, state or local government or agency to provide safety or emergency services. Further, the provisions in this division are not intended to alter, affect or modify the provisions of existing franchises, licenses, use agreements or ordinances relating to the franchising of cable systems, cable operators, or any landline telecommunications and related facilities, providers or services. No provision in this section or elsewhere in this division is intended to permit, regulate or authorize the placement by grantee or applicant or other wireless provider of fiber optic lines, coaxial cable, switches, pedestals or networking equipment of any type that is used to transport telecommunication signals, data, messages, or cable services between support structures or between any other points on the right-of-way. In the event any such grantee or applicant or wireless provider desires to place telecommunications or cable system equipment along the right-of-way at points not regulated by this division, it must obtain from the city a separate franchise or similar agreement or authorization that authorizes, governs and applies to such use of other locations on or along the right-of-way.

(c) *Existing agreements.* If a wireless provider has an existing franchise agreement, lease, right-of-way use agreement or other similar agreement with the city that addresses the placement of small cell facilities or support structures that was in effect prior to the enactment of this division, the existing franchise or agreement shall remain in force for its remaining term (but not for any extension or renewal thereof), and its provisions shall control over any conflicting provisions of this division. Thereafter, the wireless provider's small cell facilities or support structures shall be regulated by this division. Notwithstanding the foregoing, any such wireless provider with an existing franchise or agreement related to small cell facilities may, at its sole option, elect to terminate the franchise or agreement and become immediately subject to this division.
(Ord. No. 20-270, § 1, 4-9-2020)

Sec. 23-442. Enforcement.

(a) *Notice of violation; opportunity to cure.*

(1) If the franchise manager is of the opinion that a grantee is in violation of a provision of this division, including a license or a siting permit issued under the authority of this division, he shall provide grantee with a written notice of violation describing the nature of the violation and requirements for correction.

(2) Within ten business days of receiving a notice of apparent violation, grantee shall present facts and arguments in refutation or excuse of the alleged violation, or present a plan for correction of the violation including an estimated schedule for completion of the corrective action. The franchise manager shall thereafter determine whether the violation has been refuted or excused, or may approve the corrective plan in whole or part, or require changes thereto. The cure period for any corrective action shall be reasonably established by the franchise manager, provided that the period shall not be less than 30 days in the case of any fees or other charges due and not less than 60 days in all other cases, except in the case

of an emergency or except as otherwise expressly provided for in this division, the license or a siting permit.

(3) During the cure period any action to prosecute the violation, including revocation of the license or a siting permit, shall be held in abeyance.

(b) *Revocation*.

(1) In addition to all other rights or remedies which the city has pursuant to law or equity or under this division or a license or siting permit issued hereunder, and subject to applicable law, the city may revoke the license and all rights and privileges pertaining thereto including each and every siting permit issued thereunder, or to revoke one or more siting permits, in the event that:

a. Grantee is in violation of any material provision of this division, its license, or a siting permit, and the violation is not capable of being cured or grantee has not, to the city's satisfaction, refuted or excused the failure to comply or has not complied with the cure provisions set forth hereinabove in subsection (a).

b. Grantee has engaged in an evasion or attempt to evade any material provision of this division, its license, or a siting permit, and fails or refuses to cure it.

c. Grantee has perpetrated or attempted to perpetrate any fraud or deceit upon the city.

d. There is any material misrepresentation of fact by grantee in any permit application or report filed pursuant to this division.

(2) The franchise manager shall have the authority to revoke a siting permit, subject to the right of appeal to the city council provided that the grantee files a written notice of appeal with the franchise manager within 30 days of the revocation. The city council shall have the authority to revoke a license, which includes all siting permits issued thereunder. Prior to revoking the license, or in the case of a duly filed appeal of the revocation of a siting permit, the city council shall schedule a hearing on the matter and grantee shall be given at least 30 days' advance notice of the date and time for the hearing and the grounds for revocation of the license. At such hearing, grantee shall have the right to be heard on the matter and may present evidence on its behalf, including proof refuting or excusing the violation.

(3) Within 30 days of the conclusion of the hearing, the city council may, by a majority vote of its members, adopt a resolution revoking the license or upholding the revocation of a siting permit, where it finds that there is a basis to do so and grantee shall, thereafter, be notified in writing of the council's decision.

(c) *Stop work order*.

(1) The franchise manager may, at any time and from time to time, issue a stop work order for construction of all or any portion of the facilities or a support structure when the franchise manager determines, in his/her sole discretion: (1) that, subject to the cure provisions in subsection (a) of this section, the activity is being performed contrary to the provisions of the siting permit issued for the site; or (2) that the activity has caused, or is likely to cause, a situation to exist that poses or would pose a clear and immediate danger: (i) to life or health, (ii) of a significant loss of property or services, or (iii) of significant damage to or destruction of the rights-of-way (there is no opportunity to cure in this instance). The order may be issued, at the franchise manager's option, on site or to the provider's technical contact person. The franchise manager will lift any such stop work order as soon as possible after he/she determines that the situation giving rise thereto no longer exists.

(2) It shall be a violation of this division for a provider, or those persons working on its behalf, to disobey a stop work order. The general penalty provisions of section 1-7 of this Code shall apply and a citation may be issued in accordance with section 2-1 of this Code. Each day that the violation continues constitutes a separate offense.

(d) *Violation by wireless provider*. Subject to the cure provisions set forth in subsection (a) of this section, it shall be a violation of this division for a wireless provider to fail to comply with this division and any terms or conditions of its license or a siting permit. The penalty provisions of section 1-7 of this Code apply and a citation may be issued in accordance with section 2-1 of this Code. Each day that the violation continues, after the applicable cure period, if any, constitutes a separate offense.

(e) *Unauthorized facilities or support structure*.

(1) It shall be a violation of this division for any person, its contractor, servant, agent, or employee, to construct, operate, or maintain, a small cell facility or support structure in the rights-of-way without having obtained a license from the city and a siting permit for the particular location from the franchise manager. The penalty provisions of section 1-7 of this Code apply and a citation may be issued in accordance with section 2-1 of this Code. Each day a violation continues is a separate offense.

(2) In addition to prosecution of the violation in accordance with subsection (1) above, a wireless provider who has failed to obtain a siting permit for a particular location shall pay an additional administrative fee of $500.00 for each such location that does not have a siting permit.

(f) The remedies and penalties set forth herein are nonexclusive and the exercise of one or more of such remedies or penalties shall not preclude the exercise of another.

(g) In addition to the other remedies previously set forth herein, the city may take all necessary civil action to enforce the provisions hereof and may seek appropriate legal or equitable remedies or relief, including injunctive relief. The remedies set forth in this section are in addition to and cumulative of all other remedies provided by law.
(Ord. No. 20-270, § 1, 4-9-2020)

Chapter 24

RESERVED*

*__Editor's note—__Section 17 of Ord. No. 12-365, adopted May 24, 2012, repealed former ch. 24, §§ 24-31—24-43, 24-61—24-65, 24-91—24-95, 24-121—24-125, 24-161, 24-201—24-220, 24-251—24-264, which pertained to taxation and derived from Ord. No. 93-19, §§ 1—30, adopted Jan. 28, 1993; Ord. No. 93-24, §§ 1—14, adopted Jan. 28, 1993; Ord. No. 93-25, §§ 1—20, adopted Jan. 28, 1993; Ord. No. 94-248, §§ 2—4, adopted May 5, 1994; Ord. No. 00-1015, adopted Dec. 21, 2000; Ord. No. 02-367, § 1, adopted May 9, 2002; Ord. No. 02-368, § 1, adopted May 9, 2002; Ord. No. 02-956, § 1, adopted Nov. 14, 2002; Ord. No. 02-1069, § 1, adopted Dec. 19, 2002; Ord. No. 03-807, § 2(1), (2), adopted Sept. 11, 2003; Ord. No. 04-245, § 1, adopted March 25, 2004; Ord. No. 04-246, § 1, adopted 3-25-2004; Ord. No. 10-186, §§ 1, 2, adopted March 25, 2010; and Ord. No. 10-678, §§ 1—5, adopted Sept. 9, 2010. See ch. 15, art. III and art. VIII.

Chapter 25

TRAFFIC AND VEHICLES*

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ARTICLE I. IN GENERAL

Sec. 25-1. Definitions.

The following words, terms and phrases, when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section and in Code of Ala. 1975, § 32-1-1.1, except in those instances where the context clearly indicates a different meaning and except as otherwise provided.

Stop, when required, means complete cessation from movement.
(Code 1982, § 14-1)

Cross reference—Definitions generally, § 1-2.

Sec. 25-2. State law and regulations adopted.

In addition to all other provisions of law relating to the speed and operation of motor vehicles in the city, there are adopted by the city all laws of the state and all rules and regulations of the state highway department pertaining to the control of traffic and motor vehicles on highways that are not felonies under state law. A violation of such laws, rules and regulations shall be unlawful and a violation of this Code.
(Code 1982, § 14-2; Ord. No. 87-217, § 14-2, 5-28-1987)

Sec. 25-3. Persons riding animals or driving animal-drawn vehicles.

Every person riding an animal or driving any animal-drawn vehicle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this chapter except those provisions of this chapter which by their very nature can have no application.
(Code 1982, § 14-26)

State law reference—Similar provisions, Code of Ala. 1975, § 32-5A-5.

Cross reference—Animals, ch. 5.

Sec. 25-4. Roadblocks.

It shall be unlawful for any person, either individually or in concert with others, to operate upon or adjacent to the traveled portion of any public street or highway of the city any roadblock, or to stand in the traveled portion of any public street or highway, or in close proximity thereto, while operating any roadblock, or while soliciting money, making sales of merchandise or handing out any pamphlets or leaflets to the drivers or passengers of vehicles traveling such street. This section shall not apply to any roadblock for a driver's license check or other legitimate law enforcement purpose by authorized officers of the city, county or state.
(Code 1982, § 14-9)

State law reference—Obstructing vehicular or pedestrian traffic, Code of Ala. 1975, § 13A-11-7(a)(5).

Sec. 25-5. Ambulances; when to go to accident scene.

It shall be unlawful for any person to take an ambulance to the scene of any motor vehicle accident within the city unless such ambulance has been called by the owner or operator of a motor vehicle involved in an accident, or the police department.
(Code 1982, § 14-12; Ord. No. 05-654, § 1, 8-23-2005)

Sec. 25-6. Unlawful materials on streets; damage to public way.

(a) It shall be unlawful for any person to drive, operate, tow, push or park any vehicle, piece of equipment or structure of any kind upon any public way open to vehicular traffic when any part of such vehicle, equipment or structure or its cargo making surface contact with such public way is metal, metal alloy, wood, glass, plastic or other hard material. This section is not applicable to any person while in the performance of a contract with the city or the state for the construction, repair or improvement of any public way or of any utility located within the right-of-way. The exception contained in this subsection is limited to work authorized under the contract at the location specified in the contract and does not apply to the transportation of persons, equipment, machinery or materials of any kind to or from the location specified in the contract.

(b) It shall be unlawful for any person to do any damage to any part of any public way open to vehicular traffic or of any structure forming or supporting part of a public way open to vehicular traffic.

(c) Nothing in this section shall be interpreted as prohibiting any person from doing any act specifically authorized by the city council.
(Ord. No. 90-590, §§ 1—3, 11-20-1990)

Cross reference—Streets, sidewalks and other public places, ch. 23.

State law reference—Studs, flanges, etc., on tires, Code of Ala. 1975, § 32-5-210(b).

Sec. 25-7. Reserved.

Editor's note—Ord. No. 05-654, adopted Aug. 23, 2005, enacted new provisions which in effect superseded provisions formerly set out as § 25-7 of the Code. Former § 25-7 pertained to reports by motor vehicle repossessors of repossessing vehicles and reports by towing companies of tows made from private property at request of other than vehicle owner or police department and derived from Ord. No. 00-127, §§ 1—5, adopted Feb. 24, 200; and Ord. No. 00-219, §§ 1—3, adopted March 23, 2000. Provisions similar to those formerly set out as § 25-7 are now located in §§ 25-83 and 25-84 of the Code.

Secs. 25-8—25-40. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

DIVISION 1. GENERALLY

Sec. 25-41. Direction of traffic by police.

Officers of the police department, or such officers as are assigned by the chief of police, are authorized to direct all traffic by voice, hand or other signal in conformity with traffic laws; provided that, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.
(Code 1982, § 14-27)

State law references—Authority to regulate traffic by means of traffic officers, Code of Ala. 1975, § 32-5-1(d); obedience to police and firefighters, Code of Ala. 1975, § 32-5A-4.

*__Cross reference—__Administration, ch. 2.

Sec. 25-42. Direction of traffic by officers of fire and rescue department.

Officers of the fire and rescue department, when at the scene of a fire, may direct or assist the police in directing traffic at the scene or in the immediate vicinity.
(Code 1982, § 14-28)

State law references—Authority to direct traffic by means of traffic officers, Code of Ala. 1975, § 32-5-1(d); obedience to police and firefighters, Code of Ala. 1975, § 32-5A-4.

Sec. 25-43. Enforcement of handicapped parking zones.

Enforcement for provisions of section 25-220 shall be the responsibility of the director of parking and public transit and the chief of police.
(Ord. No. 84-164, § 1, 4-12-1984)

Sec. 25-44. Enforcement of unauthorized vehicles parking on private property.

Enforcement of section 25-222 shall be the responsibility of the director of parking and public transit and the chief of police. Such enforcement will be performed upon receipt of complaint. A ticket will be issued after the complainant signs an affidavit.
(Ord. No. 84-164, § 2, 4-12-1984)

Secs. 25-45—25-70. Reserved.

DIVISION 2. VEHICLE TOWING AND IMPOUNDMENT†

Sec. 25-71. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

†__Editor's note—__Ord. No. 25-310, §§ 21—26, adopted April 24, 2025, repealed the former Art. II., Div. 2, §§ 25-71—25-93, and enacted a new Art. II., Div. 2 as set out herein. The former Art. II, Div. 2 pertained to similar subject matter and derived from the 1982 Code, § 14-8; Ord. No. 85-256, §§ 1—4, adopted May 9, 1985; Ord. No. 00-58, §§ 1—4, adopted Feb. 10, 2000; Ord. No. 05-654, §§ 2—20, adopted Aug. 23, 2005; Ord. No. 06-282, § 1, adopted April 11, 2006; Ord. No. 07-606, §§ 1 and 2, adopted 6-28-07; Ord. No. 07-900, § 1, adopted Sept. 13, 2007; Ord. No. 11-116, §§ 1—12, adopted Dec. 15, 2011; Ord. No. 16-964, §§ 1—7, adopted Jan. 12, 2017; and Ord. No. 20-950, §§ 1—18, adopted Nov. 5, 2020.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means the operator of a wrecker service who, after being advised of the requirements and regulations for participation therein, makes known his/her desire to voluntarily participate in the city's rotation roster by making application for the same.

Chief or *police chief* shall refer to the chief of the city police department or his/her designee.

City means the City of Huntsville.

Contract wrecker shall mean that wrecker company which has contracted with the city to provide wrecker services requested by the City of Huntsville, for public safety reasons, as opposed to wrecker services requested by a private individual.

Department means the city police department.

Disabled vehicle means any vehicle which has lost its ability of self-propulsion or its ability to be transported or drawn on a public street by normal methods other than by a wrecker.

Fire department emergency incident commander means the highest ranking fire department official who is in charge of hazardous material incidents and other emergency situations which may arise while executing the mission of the fire department, duties include but are not limited to the following: management decisions related to personnel, equipment, procedures, etc., at the scene of any emergency incident.

Fire extinguisher shall mean a portable device used for extinguishing fires as defined by the National Board of Fire Underwriters, dry chemical extinguisher with either a 5-B.C. or 10-B.C. rating and underwriters laboratory approval in a quick release carrier which is capable of extinguishing fires.

Large wreckers shall be classified as any of the following types of wreckers: Tandem dual wheel or tandem rear end wreckers, or twin booms with factory rated or tested lifting capacity of 12.5 tons or over per drum and per winch and per winch line, with dual drum capacity, hydraulic or power take-off driven, and shall be equipped with dual rear twin-screw axles, and shall be equipped with quick air couplings for towing vehicles with air brakes, and shall be utilized to tow any vehicle having a gross vehicle weight exceeding 10,000 pounds, or any vehicle having dual rear axles or any tractor-trailer combination. The wrecker company shall provide documentation of lifting capacity from the factory or qualified testing facility.

Motor vehicle shall mean every vehicle which is self-propelled.

Owner means any person who holds a legal title to a motor vehicle or who has the legal right of possession thereof.

Person means any individual, partnership or association, syndicate, company, firm, trust, corporation, department, bureau, agency, business, bank, or any entity recognized by law.

Place of business shall mean the place where the wrecker company conducts business and is licensed pursuant to municipal law.

Police officer means any duly sworn law enforcement officer employed by the city.

Repossession wrecker shall mean any wrecker or large wrecker, as defined herein, used for the sole purpose of repossessing vehicles. Repossession wrecker shall include vehicles commonly referred to as "snatch trucks," as well as any and all motor vehicles used to tow or remove any vehicle from one location to another. Repossession wrecker shall not apply to wreckers used for the dual purpose of performing regular wrecker services and repossession services.

Repossessor shall mean any person in the business of providing repossession services to others or who performs repossession services on its own behalf, and includes, but is not limited to, officers, managers, agents or employees thereof.

Rotation roster means the rotation list of wrecker companies available for request by private individuals as prepared and used as provided in the execution of this chapter.

Street means a thoroughfare including public streets, lanes, alleys, etc., within the city and its police jurisdiction which is reserved for vehicle traffic.

Traffic hazard means any disabled vehicle, other than those resulting from a vehicular accident as defined herein, and which is an obstruction to the normal movement of traffic on any public street.

Vehicle shall mean every device in or by which any person or property is or may be transported or drawn upon a public street, except devices moved only by human power, or used exclusively upon stationary rails or tracks, and shall include trailers and semi-trailers.

Vehicular accident means any incident involving contact between a vehicle and any other object or vehicle which results in disabling damage to any vehicle requiring the services of a wrecker.

Wrecker shall mean any motor vehicle used for the purpose of towing or removing motor vehicles from one location to another location, for any purpose.

Wrecker business shall mean the act of towing or removing motor vehicles from one location to another location, for any reason, where either the beginning or ending location is within the city. This definition shall not include situations whereby a business owns or leases wreckers for the sole purpose of towing other vehicles owned or leased by the business.

Wrecker company shall mean any person engaged in the wrecker business.

Wrecker operator means any person who drives or otherwise uses a wrecker for wrecker business as defined herein.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-72. Wreckers declared not to be emergency vehicles.

It is hereby declared and determined that wreckers and large wreckers are not emergency vehicles and shall comply with all laws and ordinances relating to motor vehicles.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-73. Business license and vehicle inspection permits required.

No person shall engage in the wrecker business or operate wreckers on the streets within the city without first obtaining a license to do business from the city clerk-treasurer, and without first obtaining a vehicle inspection permit for each wrecker to be operated, in accordance with this chapter to be issued by the police department on an annual basis.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-74. Liability.

Each wrecker operator doing business in the city who moves or otherwise makes contact with any vehicle to be towed, assumes liability for injury to persons, property damage, fire, theft or any other acts of negligence stemming from the towing process.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-75. Vehicle inspection.

Each wrecker company doing business in the city shall be inspected by the city police department at least once per year, but more often if complaints arise, to ensure compliance with the following provisions:

(1) *Equipment necessary for all wreckers:*

a. All equipment necessary for the towing vehicle or combination of towing vehicle and towed vehicle, i.e. required lighting, including rear tow lamps or tow bar, must be fully operational, functional and in safe operating condition, and must comply with the applicable requirements of 49 C.F.R. §§ 390—399, of the Federal Motor Carrier Rules and Regulations, as the same currently exist or as they may be amended in the future. Any future amendments of the Federal Motor Carrier Rules and Regulations which result in a conflict with the additional requirements contained in this section shall be resolved in favor of compliance with the Federal Motor Carrier Rules and Regulations.

b. Certification: All wreckers of the wrecker company shall have an annual DOT (department of transportation) compliant inspection, and each wrecker shall display or carry a current and valid inspection decal or inspection certificate signifying that the wrecker is in safe operating condition. The following mechanical functions and systems shall be in proper working order and each wrecker of the wrecker company shall have the following additional equipment in the vehicle:

1. Wheels: bearings, lugs;
2. Tires: front left and right (no recap) minimum tread depth 5/32; rear left, outside, and all drive tires minimum tread depth 4/32;
3. Brakes: master cylinder; fluid level, leaks; wheel cylinder; brake hose and lines; hydrovac and lines; vacuum or air tanks; parking brake; vacuum or air gauge and buzzer or light; brake pedal fade; pedal pads, if factory equipped; adjustment; brakes;
4. Exhaust system: exhaust manifold; exhaust pipe; muffler; tail pipe;
5. Rear end: springs, shackles and clamps; leaks;
6. Clutch and transmission: adjustment, release;
7. Body: seats securely fastened and in good condition; no broken glass in any window, and no broken or cracked glass in any windshield which obstructs the driver's vision; mirrors, left and right, with no broken or cracked glass which obstructs or limits the driver's vision; wipers, windshield washers; horn; fire extinguisher; markings; driver's and passenger seat belts; flags and flares; sun visor for driver;
8. Steering: steering arm; tie rod-ends and drag-link; front springs, shackles and clamps; sector to frame mounting; steering free play; and
9. Most current edition of the Department of Transportation Emergency Response Guide Book.

c. Each wrecker shall be equipped with factory installed one-ton capacity dual wheels. Dummy wheels are prohibited.

d. Each wrecker shall be equipped with a power winch, winch line, and boom with a factory rated lifting capacity, or a tested capacity, of not less than 8,000 pounds single line capability. At the time of application, the wrecker operator shall provide documentation of lifting capacity from the factory or qualified testing facility.

e. Appropriate equipment shall be attached to each wrecker in order to prevent any vehicle being hauled or towed from being further damaged by coasting, rocking, swinging, or slamming into the wrecker or any part thereof.

f. Each wrecker shall have the following standard equipment: tow bar; safety chains; operational, fully charged 5-B.C. rated fire extinguisher mounted in an easily accessible location; wrecking bars, which must be a minimum length of 36 inches; brooms, which must have a minimum handle length of 30 inches; shovel; axe, which must have a minimum handle length of 30 inches; dolly, which is rated for use on the highway; at least three reflective road warning devices; a minimum of 80 pounds of serviceable oil dry; and a minimum of 75

feet of ⅜ inch diameter or larger steel cable for rollbacks, and 100 feet of ⅜ inch diameter or larger steel cable for conventional wreckers.

g. Yellow emergency lights shall be affixed above the top of the cab of the wrecker and must be visible from every angle, 360 degrees, around the wrecker. The warning lights shall be visible from a distance of not less than 1,500 feet under normal atmospheric conditions at night. Sirens are prohibited.

h. The name, address, and telephone number of the wrecker operator, and the wrecker number, i.e. truck #1 or other identifying number specific to that wrecker, shall be permanently affixed to and prominently displayed on both sides of the wrecker, using letters and numerals of a contrasting color than the rest of the vehicle that are clearly visible from a distance of 100 feet. The lettering used for the operator name shall be at least four inches tall and the lettering and numerals used for the address, telephone number and wrecker number shall be at least two inches tall.

i. The wrecker company shall not place or imprint on its vehicles, buildings, equipment, clothing, advertisements, or correspondence anything suggesting or implying any official relationship between the wrecker company and the city. Without limitation, the wrecker company shall not use any colors or paint schemes similar to those used by the police department; decals similar in design to department decals; any logo similar to those employed by the city or any of its departments; or any other language or wording which would cause the general public to believe the wrecker is owned or operated by the city.

j. Each wrecker shall be properly equipped with clearance and marker lights and all other equipment as required by law.

k. Each wrecker shall be equipped with warning devices, as the same are required by law applicable to trucks.

l. Each wrecker shall be equipped with dual rear adjustable floodlights with a minimum of 20,000 candlepower each.

m. Use of a hand-held mobile telephone:

1. No driver shall use a hand-held mobile telephone while driving a wrecker or vehicle.

2. No motor carrier shall allow or require its drivers to use a hand-held mobile telephone while driving a wrecker or vehicle.

3. For the purpose of this section only, driving means operating a vehicle or wrecker on a highway, including while temporarily stationary because of traffic, a traffic control device, or other momentary delays. Driving does not include operating a wrecker or vehicle when the driver has moved the wrecker or vehicle to the side of, or off, a highway and has halted in a location where the wrecker or vehicle can safely remain stationary.

4. Emergency exception: Using a hand-held mobile telephone is permissible by drivers of a CMV when necessary to communicate with law enforcement officials or other emergency services.

n. Each wrecker shall be equipped with disposable bags or other containers to safely contain and properly dispose

of any broken glass, injurious substances, oil spills, and other debris, as required by section 25-90 (14) and section 22-81 of this Code.

o. Each wrecker shall be equipped with tarps and ties adequate and serviceable to properly cover and secure any wrecked or damaged vehicle being hauled or towed to prevent materials or debris from flying or falling off while moving.

p. Each wrecker shall be equipped with one pair of bolt cutters with a minimum one-half inch opening.

q. Any wrecker equipped with tinted windshields or side windows shall have light transmission of at least 70 percent of normal visibility, and comply with applicable requirements of the Federal Motor Carrier Rules and Regulations.

r. The minimum equipment standards referred to throughout this chapter shall be determined solely by the manufacturer's specifications for the capabilities and capacities of the wreckers and all towing equipment.

s. Each wrecker shall be equipped with only those winches and cranes that have been produced and constructed by a manufacturer of such equipment which carries product liability and which regularly produces winches and cranes. A winch or crane will not be prohibited by this section if the wrecker operator submits to the chief a certification from a reputable testing laboratory, regularly engaged in the testing of such equipment or similar equipment, indicating that the capacity of the winch or crane is not less than what is required in this division of this chapter.

(2) *Equipment necessary for large wreckers:* In addition to the requirements contained in subsection (1), large wreckers, as defined herein, are required to be equipped with the following additional items and equipment:

a. Air control valve or an electrical break capability with an electrical break control box for the purpose of providing braking capability for the vehicle or trailer being towed or removed;

b. Two chock blocks to prevent rolling or slippage of the wrecker. These chock blocks should have the capability of being secured firmly to the wrecker and should be of a width equal to that of the dual wheels of the wrecker;

c. A minimum of 200 feet of ⅝ inch steel cable on multiple drums, which shall be measured from the end of the bed of the wrecker;

d. Air brakes constructed to lock the rear wheels automatically upon failure and to supply air to disabled vehicles;

e. A minimum total of two operating, fully charged 10-B.C. rated fire extinguishers mounted in easily accessible locations;

f. External air hookups and hoses;

g. At least six reflective road warning devices;

h. A minimum of 160 pounds of serviceable oil dry.

(3) *Equipment necessary for roll back wreckers:* In addition to the requirements contained in subsection (1), roll back wreckers, as defined herein, are required to be equipped under the following modifications:

a. A one-ton truck with a 19-foot bed, dual wheels, and one power winch with an 8,000 pound capacity;

b. A brake lock device;

c. Two safety tie-down chains at least ten feet in length;

d. The following standard equipment shall be substituted for the requirements of subsection (1)e. above: tow bar; safety chains; operating, fully charged 5-B.C. rated fire extinguisher mounted in an easily accessible location; wrecking bar, which must be a minimum length of 36 inches; brooms, which must have a minimum handle length of 30 inches; shovel; axe, which must have a minimum handle length of 30 inches; at least three reflective road warning devices; a minimum of 80 pounds of serviceable oil dry; and a minimum of 75 feet of ⅜ inch diameter or larger steel cable.

(4) *Equipment necessary for repossession wreckers:* In addition to the requirements contained in subsection (1), repossession wreckers, as defined herein, are required to be equipped under the following modifications:

a. The following standard equipment shall be substituted for the requirements of subsection (1)f. above: tow bar; safety chains; operating, fully charged 5-B.C. rated fire extinguisher mounted in an easily accessible location; wrecking bars, which must be a minimum length of 36 inches; and at least three reflective road warning devices.

b. The following shall be substituted for the requirements of subsection (1)h. above: The initials of the repossessor business name and USDOT number of the repossessor shall be permanently affixed to and prominently displayed on both sides of the wrecker, using letters and numerals of a contrasting color than the rest of the vehicle that are clearly visible from a distance of 100 feet. The lettering used for the repossessor name shall be at least four inches tall and the lettering and numerals used for the USDOT number shall be at least two inches tall. Additionally, all repossession wreckers shall also be clearly marked as a "recovery vehicle" or "repo wrecker" in lettering of equal size to the repossessor name.

c. Repossession wreckers shall comply with all other requirements as stated in the above subsections.

Following inspection by the city police department, each wrecker shall be issued a decal which shall be displayed in the lower left corner of the windshield. Each decal shall indicate the wrecker permit number and the current calendar year. The fee for each annual inspection and issuance of each annual inspection decal shall be $15.00. In the event a wrecker fails the annual inspection, the fee for any subsequent re-inspection shall be $15.00. If a wrecker is not issued an inspection decal following any city police department inspection or if the decal is not properly displayed on the wrecker for which it was issued, that wrecker is not authorized to do business within the city.
(Ord. No. 25-310, §§ 1, 21—26, 4-24-2025)

Sec. 25-76. Required rear lighting and illumination.

Every wrecker towing or pulling a vehicle or a train of vehicles shall display red lighted lamps and illuminating devices, including rear tow lamps and/or tow bar, on the rear end of the last vehicle that are clearly visible at a distance of 500 feet.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-77. Required reflective wear.

While on the scene of any dispatch, all wrecker operators shall wear reflective vests, coats or shirts that meet Class 2 or Class 3 of the American National Standard for High-Visibility Safety Apparel as set forth in ANSI/ISEA 107-2020.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-78. Driver's license and medical card required.

No person shall be a wrecker operator or be allowed to drive any wrecker unless such person

has in his possession a valid state driver's license or a commercial driver's license, if required by law, issued by the state department of public safety, and a current department of transportation (DOT) medical card.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-79. Authority at the scene of an accident.

Either the police officer or the fire department emergency incident commander in charge of the scene shall have the ultimate authority to direct all activities concerning the removal of vehicles and any clean up activities including requesting any additional assistance that is needed, or canceling any unneeded wreckers, vehicles, or other unneeded assistance in the interest of public safety and welfare. No wrecker company shall be allowed to clean up, load, unload or otherwise handle the cargo or contents of any wrecked or disabled vehicle beyond that which is necessary in order to properly tow the vehicle and clean the street or highway of debris as necessary without the expressed consent of the police officer in charge of the scene, the fire department emergency incident commander, the owner of the vehicle and/or the owner of the vehicle's contents and/or his agent.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-80. Release of towed vehicle by wrecker company.

A motor vehicle towed or impounded pursuant to this chapter shall be released by the wrecker company if the person or designee of the owner of the motor vehicle, including any other towing or automobile repair company, redeeming the motor vehicle satisfies in full the cost of removing and impounding the vehicle, plus such reasonable amount as may be charged by the wrecker company for storing the vehicle.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-81. Removal of a vehicle from an accident scene.

Any police officer at the scene of an accident, who in the exercise of his discretion as a police officer suspects that a vehicle involved in an accident may have been used during the commission of a crime, may direct that such vehicle be taken by the driver of the contract wrecker towing the vehicle directly to the location designated by the police officer and there held by the city for any lawful purpose, and the city will be responsible for payment of towing and storage fees.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-82. Unauthorized presence of a wrecker at an accident scene.

No person, agent or employee of a wrecker company shall drive a wrecker or large wrecker to or near the scene of a vehicular accident or disabled vehicle on the streets of the city and park the same unless such wrecker has been authorized to proceed to the scene of the vehicular accident or disabled vehicle by the police department of the city or the owner(s) or operator(s) of the vehicle(s), nor shall any representative, agent or employee of a wrecker company solicit business in any manner for a wrecker company at the scene of a vehicular accident, disabled vehicle, or on the streets of the city. The unauthorized presence of any wrecker or large wrecker parked on any public street or highway in the city at or near the scene of any accident, collision, or disabled vehicle shall be prima facie evidence of a solicitation in violation of this section.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-83. Intercepting police radio wrecker communications.

No person shall intercept any message emanating through the radio frequencies utilized by the city police department or shall divulge or publish the existence, contents, substance, purpose, effect or meaning of such intercepted communication, and use the same or any information therein contained for the purpose of soliciting or aiding another in the solicitation of wrecker business.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-84. Impoundments.

(a) Any unoccupied vehicle parked upon a public street or any public alley in the city at a place, in a manner or for a length of time

prohibited by any ordinance of the city is declared to be an obstruction to traffic and a public nuisance. Any police officer and the director of public works services are authorized to remove such vehicle or to cause the vehicle to be removed and impounded at police headquarters or in a depository provided by the city for such purpose. Such removal may be done by hauling the vehicle by wrecker. Any charge for the removal and/or impoundment of the vehicle unless otherwise provided shall be charged against the owner of the vehicle.

(b) Whenever any police officer shall find within the city limits any vehicle which he has reasonable cause to believe to be lost, stolen or abandoned, or any vehicle which is, or is likely to become, an obstruction on a public way, or to be without proper protection by reason of the person in charge or control thereof having been arrested and incarcerated, such officer shall have authority immediately to remove such vehicle or cause the vehicle to be removed to and impounded at police headquarters or in a depository provided by the city for such purposes.

(c) Whenever the driver of a motor vehicle fails to produce a valid driver's license upon the lawful request of an officer who is acting in his capacity as a law enforcement officer, such officer shall have authority immediately to remove such vehicle or cause the vehicle to be removed to and impounded at police headquarters or in a depository provided by the city for such purposes, regardless of ownership, subject to the following conditions:

(1) The officer shall make a reasonable attempt to verify the license status of a driver who claims to be properly licensed, but who is unable to produce the license on demand. A notation of the officer's attempt to verify that the driver is properly licensed shall be noted on the departmental report. If the officer is unable to verify that the driver is a properly licensed driver, the vehicle shall be impounded and the driver and occupants of the motor vehicle will be transported to a place of safety by the impounding officer.

(2) The officer shall not impound a motor vehicle pursuant to this section if the license of the driver expired within the preceding 60 days and the driver would otherwise have been properly licensed.

(3) The officer shall not impound a motor vehicle pursuant to this section if the owner of the motor vehicle or another family member of the owner is present in the motor vehicle and has a valid license.

(4) The officer may elect not to impound the motor vehicle in the event there is a medical necessity jeopardizing life or limb.

(d) A motor vehicle impounded pursuant to this section shall be released if the person redeeming the motor vehicle satisfies in full the cost of removing and impounding the vehicle, plus such reasonable amount as may be charged by the depository for storing the vehicle, and:

(1) The registered owner appears at the contract wrecker company, and presents a valid driver's license and either the original vehicle title or a copy of both the front and back of the title or a copy of the current vehicle tag receipt in the registered owner's name; or

(2) If the registered owner does not have a valid driver's license, the registered owner must present some form of picture identification along with either the original vehicle title or a copy of both the front and back of the title or a copy of a current vehicle tag receipt in the registered owner's name, and must be accompanied by an individual who has a verified valid driver's license; or

(3) A representative of the owner appears at the contract wrecker company with a valid driver's license along with a written notarized authorization from the registered owner and either the original vehicle title or a copy of both the front and back of the title or a copy of a current vehicle tag receipt in the registered owner's name; or

(4) Upon order of a court of competent jurisdiction.

(e) The contract wrecker company may have a lien upon each impounded vehicle for the amount of the cost of removing and impounding the vehicle, plus such reasonable amount as may be charged by the depository for storing the vehicle.

(f) The chief of police, or his designee, which may include the company contracted by the city to store all impounded vehicles, may advertise and sell all vehicles which have been impounded, taken or seized by the city, and which have not been claimed by the owner after such articles have been held by the chief of police or his designee for a period of 45 days or more in accordance with Ala. Code 1975, § 32-13-1 et seq.
(Ord. No. 25-310, §§ 2—4, 21—26, 4-24-2025)

Sec. 25-85. Impoundment hearings.

(a) The owner or person entitled to possession of any motor vehicle which is removed or towed from the public streets of the city, or from any public parking facility of the city, pursuant to any ordinance or policy of the city, or any of its departments, shall be entitled to an immediate due process hearing, prior to paying any towing or storage fee concerning the motor vehicle. The chief of police or any supervisory officer of the police department of the rank of police sergeant or above, designated by the chief of police, is designated and appointed as a hearing officer for the purpose of carrying out these requirements. Any owner or person entitled to possession of any motor vehicle, unless the right is waived, shall be provided an immediate due process hearing before such officer prior to being required to pay any such towing charge or storage fee. When the hearing officer shall determine at the hearing that the towing of the vehicle was in error, or that neither the owner nor any person lawfully entitled to possession caused the motor vehicle to be subject to towing under any such ordinance or policy, the vehicle shall be ordered immediately released and returned to the owner or the person in possession without the payment of any charges or fees.

(b) Any person aggrieved by any decision of any hearing officer made pursuant to this section shall be entitled to a hearing before a municipal judge by filing notice with the clerk of the municipal court within five days from the date of any such decision.

(c) At any time an arrest or citation for violation of municipal ordinances is made in connection with the towing or impoundment of any motor vehicle by the police department, the municipal judge trying the case may also hear evidence concerning the impoundment, towing and storage of the motor vehicle. If the municipal judge shall determine, after a due process hearing, that neither the owner nor any person lawfully entitled to possession of the motor vehicle was guilty of any act which caused the impoundment, towing or storage, the municipal judge shall order the vehicle immediately released without the payment of any fees or charges, or if the fees or charges have already been paid, shall order the return of the fees to the person paying the fees.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-86. Reports of repossession required.

(a) Every wrecker company or repossessor who repossesses a motor vehicle within the city limits shall notify the Huntsville Police Department records division by providing the information indicated in section 25-88 within one hour after the repossession is completed, and shall also file a written report of repossession or towing, as indicated in section 25-88, with the Huntsville Police Department records division within five days after the repossession is completed.

(b) At the time of repossession, every wrecker company operator or repossessor who repossess a motor vehicle within the city limits shall be required to have official paperwork authorizing the repossession of the vehicle on his/her person. The authorizing paperwork should include, at a minimum: the name of the authorizing entity, the name of the person/entity believed to be in possession of the vehicle, and a description of the vehicle to include tag number and vehicle identification number.
(Ord. No. 25-310, §§ 5, 21—26, 4-24-2025)

Sec. 25-87. Reports of towing from private property required.

Every towing service which tows a motor vehicle from private property within the city limits at the request of any person other than the owner of the vehicle, a person designated by the owner, or the city police department, shall notify the city police department records division by providing the information indicated in section 25-88 within one hour after completion of the towing service, and shall also file a written report of repossession or towing, as indicated in section 25-88, with the city police department records division within five days after completion of the towing service.
(Ord. No. 25-310, §§ 6, 21—26, 4-24-2025)

Sec. 25-88. Information for written reports.

The report of repossession or towing, applicable to notifications and the filing of written reports, shall contain the following information:

(1) Name and address of the person in possession, or believed to be in possession, of the motor vehicle at the time that it was repossessed or towed;

(2) Location where the motor vehicle was found and the repossession or towing was carried out, including street name and block number;

(3) Time that the repossession or towing was carried out;

(4) Date and time that the report was filed;

(5) Name of the repossessor or towing service who carried out the repossession or towing;

(6) Name of person on whose behalf the repossession or towing was carried out, if different from the repossessor or towing service;

(7) Description of the motor vehicle repossessed or towed, including, but not limited to, the year, make, model, style, vehicle identification number, tag number, and color (inside and outside);

(8) Location of the motor vehicle following repossession or towing; and

(9) Signature of the individual who carried out the repossession or towing.

(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-89. Applications and conditions for participation in city wrecker rotation system.

(a) *Written request for participation in the rotation system.* Each applicant desiring to be placed on the rotation roster shall file a written application with the police chief on a form furnished by the police department. A new applicant may file a written application at any time. Once an applicant has been accepted and placed on the rotation roster, applications for renewal shall be submitted in January of each year thereafter, and shall adhere to all of the same terms and conditions as apply to new applicants. An applicant may request to discontinue participation in the rotation roster at any time.

(b) *Equipment certification*. Each applicant shall certify that each wrecker to be utilized in service of the rotation roster meets or exceeds the following requirements at the time application is made:

(1) For each regular haul wrecker, in addition to the criteria established in section 25-75, a conventional wrecker must be equipped with dollies rated for highway use and wheel lift or hydraulic operated tilting bed trucks, with one ton rated chassis or larger and equipped with a broom, which must have a minimum handle length of 30 inches, and shovel, two fully charged 10-B.C. rated fire extinguishers, and agents to remove oil spills from the roadway;

(2) The name of the company must be permanently affixed on each side of the wrecker in four inch high or larger letters and the address and telephone number in two inch high or larger letters;

(3) All safety equipment, horns, lights, flashers, amber lights, brakes, and other similar equipment must be operational.

(c) *Copy of rules and regulations*. The chief will furnish each applicant with a copy of the rules and regulations pertaining to the operation of wreckers within the rotation system.

(d) *Inspection of wreckers and equipment.* Prior to being placed on the rotation roster, the applicant shall present and make available for inspection by the chief all wreckers and equipment that are to be used by the applicant for the provision of wrecker services.

(e) *Business license required.* Prior to being placed on the rotation roster, the applicant must furnish the chief with a copy of a current, valid business license issued by the city in the applicant's name, and prominently display said license in the applicant's principal place of business. To remain on the rotation roster, the wrecker company's city business license must remain current and valid.

(f) *Storage facilities*. Prior to being placed on the rotation roster, the applicant must agree to a preapproval inspection of the premises to ensure adequate outside storage sufficient to accommodate a minimum of ten vehicles, which is well and continuously lighted during the hours of darkness, and, at a minimum, include an area completely enclosed within a six foot high chain link or other equivalent fencing material designed to protect against unauthorized entry. Any inside storage must be within a supervised or locked building. In addition to the provision of a secure storage area, each wrecker company shall employ reasonable safeguards and procedures so that all personal belongings and contents in a stored vehicle remain intact and are returned to the vehicle's owner or agent upon request or upon release of the vehicle.

(g) *Location of storage facilities*. The wrecker company, wrecker(s) utilized, operators(s), and storage facilities must be located within the city limits or within ten miles of the city administration building. A map of those areas falling within ten miles of the administration building shall be kept on file by the city clerk/treasurer.

(h) *Certificate of insurance.* Each wrecker company participating on the rotation roster, from the time he/she moves or otherwise makes contact with any vehicle to be towed, assumes liability for injury to persons, damage to property, fires, or theft resulting from the operator's negligent acts or omissions. Therefore, prior to being placed on the rotation roster, the applicant shall furnish the chief with a certificate of insurance that indicates compliance with the following insurance guidelines:

(1) The certificate of insurance should state that the city is an additional insured. The city, its officers, employees, elected officials, agents, contractors, and specified volunteers shall be named as additional insureds on all general liability, garage keepers liability, garage liability and on-hook liability insurance. Failure of the city to procure the certificate of insurance does not waive any insurance provisions required in this chapter.

(2) The certificate of insurance should contain no special limitations on the scope of protection afforded to the city, its officers, employees, elected officials, agents, contractors, or specified volunteers.

(3) The certificate of insurance should indicate that coverage under the wrecker company's policy shall be written or endorsed to provide primary coverage to any other valid or collectible insurance. Any city coverage is noncontributory.

(4) The certificate of insurance should indicate that the city will be provided with a 30-day notice of any material change, cancellation or non-renewal, with the exception of a 10-day notice for nonpayment of premium.

(5) The certificate of insurance should state that the coverages below are in force:

a. General liability. Commercial general liability insurance, including coverage for bodily injury, property damage, personal injury, death, and products/completed operations, in an amount not less than $1,000,000.00 per occurrence and $2,000,000.00 in the aggregate.

b. Garage liability. Garage liability coverage of at least $1,000,000.00 per occurrence combined single limit for bodily injury and property damage covering owned, non-owned and hired automobiles used in conjunction with its operations under the chapter.

c. On-hook liability. On-hook liability coverage of at least $50,000.00 per occurrence.

d. Garage keepers liability. Comprehensive garage keepers' liability insurance with coverage of $50,000.00 per occurrence.

e. Workers' compensation. Workers' compensation coverage as prescribed by the State of Alabama Department of Labor.

(i) *Waiver of subrogation.* Each wrecker company/operator performing any service pursuant to this chapter waives any and all claims it may have against the city for injury, loss or damage covered under any insurance policy and each such wrecker company/operator shall cause its insurance carriers to waive any right of subrogation with respect thereto and to so notify the city.

(j) *Indemnification; non-liability.* Each wrecker company/ operator performing any service pursuant to this chapter shall indemnify and hold harmless and does hereby agree to indemnify and hold harmless the city, its officials, officers, elected officials, employees, agents, contractors and volunteers performing an authorized city function, (hereinafter referred to as "indemnitees") from and against any and all claims, liability, loss, judgments, suits, penalties, costs, expenses and damages aforesaid, including but not limited to, reasonable attorneys' fees and expenses and court costs and fees. Each wrecker company/operator's duties hereunder shall survive the termination of the wrecker company's participation in the rotation roster.

(k) *No waiver of statutory immunity.* Nothing contained in this chapter shall be construed as a waiver of any immunity of statutory protection of the city, and no third party may expand any recovery against the city due to each wrecker company/operator's duty of indemnification, set forth in subsection (j).

(l) *Decal required.* A department decal will be placed on each participating wrecker in the lower left corner of the windshield to indicate current inspection and eligibility to participate in the rotation system. Each decal shall indicate the rotation roster permit number and the current calendar year. The fee for each wrecker inspection and issuance of each decal shall be $15.00. In the event a wrecker fails the inspection, the fee for any subsequent re-inspection shall be $15.00.

(m) *Valid license plates required.* Each wrecker company shall be required to maintain a current, valid license plate on each wrecker used in responding to rotation roster calls.

(n) *Wrecker company listed only once.* Each wrecker company shall be listed on the rotation roster only once. This listing will use the name the wrecker company submitted during the application process and under which he/she is qualified under this chapter. It is prohibited for a wrecker company conducting business at one location to receive multiple listings by utilizing a different or fictitious name for wreckers operating from the same location or by utilizing wreckers with the same name out of different locations within the city. When two or more businesses or companies are owned by the same individual, partnership or parent corporation, each business or company may have a separate listing only when each business maintains completely separate offices, required documentation, logs, and wreckers labeled with the appropriate business name in accordance with section 25-75(1)h. at the approved locations. A wrecker business will be regarded as having separate locations only when each business or company continuously and regularly occupies separate, different, permanent, nonresidential, non-overlapping structures: each with its own phone number and service; each with its own dispatch number and dispatch operator; each keeping its own towing and recovery books, logs, tax records, and other required records; each prominently displaying

its city and state licenses; and each business open to customers with an employee present and available to assist customers continuously between the hours of 8:00 a.m. until 5:00 p.m., Monday through Friday.

(o) *Authorization, placement on roster.* When the chief is satisfied that the applicant is qualified, he/she will place the applicant on the rotation roster and so notify applicant.

(p) Attempts to circumvent the intent of the rotation system will result in the removal of all wrecker companies and operators associated in any way to the offending wrecker company.
(Ord. No. 25-310, §§ 7, 8, 21—26, 4-24-2025)

Sec. 25-90. Conduct of wrecker companies and operators on the rotation roster.

The following conditions shall govern the conduct of wrecker companies and operators on the rotation roster:

(1) *Obedience to traffic laws; operator safety.* No operator shall speed or violate any other traffic laws or disregard any traffic control devices while answering a call. The provision of wrecker services shall be done in a reasonable and safe manner and no operator shall needlessly congest the scene of a vehicle accident.

(2) *Rotation system participation.* Authorization to participate in the rotation system shall be considered a personal grant of permission to the wrecker company who made application for the same and shall constitute authorization only to that particular legal entity as it operates a bona fide wrecker service. It shall not be subject to assignment, transfer or lease; neither shall the wrecker company sublet the use of the name under which rotation system participation was requested and neither shall the operator permit the exercise by another in any manner of the rights or privileges granted by authorization for participation in the rotation system. Participation on the rotation roster shall not constitute a property interest. Authorization under this article is void if the business address or location of facilities is changed. Further, any change in ownership due to sale, merger, dissolution, death or any other reason shall result in removal of the wrecker company from the rotation roster and shall necessitate a new application being filed.

(3) *Submission of daytime and nighttime telephone numbers.* At the time of application, each wrecker company shall furnish the chief with one telephone number to be used for dispatches during the day and one telephone number to be used for dispatches during the night. Any changes in the aforementioned telephone numbers shall be immediately transmitted to the chief. No pagers or answering machines are permitted as call-out numbers.

(4) *Twenty-four hour service; hours of availability for vehicle access.* Each wrecker company shall maintain and be fully capable of providing wrecker services 24 hours a day, seven days a week. Further, each wrecker company shall, at no additional charge, provide access, immediately upon request, to its storage facilities between the hours of 8:00 a.m. and 5:00 p.m., Monday through Friday, to individuals legally entitled or otherwise authorized to view, inspect, access, claim or retrieve personal property or vehicles stored therein.

(5) *Availability.* One attempt by phone shall be made to reach the wrecker service appearing next on the appropriate roster. The acceptance of an assignment may be made by any authorized representative of the company who can verify an immediate dispatch of the wrecker. If no contact is made or the company is unable to accept the call, that company shall be passed for that rotation of the roster and the next company in line shall be called. A wrecker operator shall not accept a dispatch for wrecker services from the rotation roster unless the operator has a

wrecker and the necessary equipment immediately available to perform the requested service.

(6) *Use of lights.* No wrecker operator shall use yellow emergency lights when in route to a service or wrecker call. The use of yellow emergency lights is authorized only at the scene of an accident or other call for service and when towing a vehicle from the scene. The use of "wig-wag" headlights is prohibited at all times.

(7) *Response with own wrecker.* The wrecker company shall respond to each dispatch received from the city with its own wrecker and shall not send another wrecker service in response to a rotation roster dispatch. The responding wrecker must display the name of the wrecker company called by the police department. In the event the dispatched wrecker is unable to perform the required services or needs assistance, the police officer has the discretion to cancel that wrecker and/or dispatch another rotation wrecker.

(8) *Response while impaired prohibited.* No wrecker operator shall respond to a dispatch when he or she has consumed alcohol in any amount or has ingested either prescription or non-prescription drugs that may impair motor skills. No wrecker operator shall respond to a dispatch when he or she is under the influence of any controlled substance.

(9) *Restriction for conviction of crimes.* No wrecker operator shall be used or employed by any wrecker company on the rotation roster if he or she has any pending criminal charges, or has been convicted within the last five years, of any felonies, or misdemeanors related to his or her capability to provide wrecker services to the public in a safe and responsible manner, including but not limited to, drug and/or alcohol offenses, assault, theft, sex crimes, murder, burglary and/or homicide.

(10) *Proficiency.* All wrecker operators on the rotation roster shall be proficient and competent in the operation of such wrecker.

(11) *Uniform clothing.* Operators shall wear clothing consistent with his/her employing wrecker company, i.e. uniform, company logo, etc.

(12) *Removal of glass, debris, etc.* Operators shall remove all glass, injurious substances, oil spills, and other debris at or near the scene of the vehicle as required by section 22-81 of this Code. No glass, injurious substances, oil spills, and other debris shall be placed inside of the towed vehicle. Any damaged personal items to be placed inside of the towed vehicle will be placed inside of a disposable bag or other container, inside of the vehicle's trunk or floor board, if possible, to prevent additional damage to towed vehicle.

(13) *Notice of acquisition of wrecker.* Each wrecker company on the rotation roster shall give notice to the chief of any wrecker acquired subsequent to placement on the rotation roster. The police department will inspect the wrecker to determine if it meets all the criteria required by this chapter. No wrecker shall be allowed to perform any rotation roster activity unless properly inspected and decaled in accordance with section 25-89.

(14) *Compliance with laws.* Every wrecker company must comply with all applicable federal, state and local laws.

(Ord. No. 25-310, §§ 9—14, 21—26, 4-24-2025)

Sec. 25-91. Storage procedures for the rotation roster.

(a) All personal property left in a vehicle and which is unclaimed will be handled in accordance with existing laws.

(b) Any person showing proof of identity and showing either proof of ownership or written authorization from the vehicle's registered or legal owner may, without charge, inspect the

vehicle and remove personal belongings therefrom during normal business hours. For purposes of this subsection, personal belongings shall be defined as those items which belong to the owner, driver or other occupant of the vehicle and which are not attached in any permanent or semi-permanent manner to the interior or exterior of the vehicle. For purposes of this subsection, permanent or semi-permanent shall mean that the removal of an attached object would cause physical damage or deformity to the interior or exterior of the vehicle.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-92. Records required for the rotation roster.

(a) Each operator shall maintain accurate records reflecting all wrecker services performed pursuant to his/her participation on the rotation roster. All information printed on the records shall be legible. Each record of wrecker service, and/or tow ticket, shall be sequentially numbered, and include the pre-printed name, address and phone number of the wrecker company, as well as the following information:

(1) The date and time the operator was contacted and requested to perform the service;

(2) The name of the person requesting the service;

(3) The location of the vehicle;

(4) A description of the towed vehicle, including license tag and identification number;

(5) The owner or operator of the vehicle, if known;

(6) Itemized list of all service charges and fees;

(7) The name of the wrecker operator;

(8) The final disposition of the vehicle; and

(9) Any related police accident, incident, arrest, event or miscellaneous identification numbers.

Regardless of the method of payment, each customer shall be given a written receipt containing the above required information, and a copy of same shall be maintained by the wrecker company for all wrecker services provided.

(b) All records required herein must be available immediately upon request so long as the request is made between the hours of 8:00 a.m. until 5:00 p.m., Monday through Friday for inspection by the chief or other city representatives. Advanced notice of an inspection by the chief or other city representative shall not be required.

(c) The operator shall maintain the aforementioned records for the current calendar year and the preceding calendar year.

(d) A record of all abandoned motor vehicles is to be maintained by the wrecker operator and any abandoned motor vehicle sold or disposed of by the operator shall be so sold or disposed of in accordance with Code of Ala. 1975, § 32-13-1 et seq., as may be amended.
(Ord. No. 25-310, §§ 21—26, 4-24-2025)

Sec. 25-93. Rotation roster notification and response.

(a) A wrecker shall be called from the rotation roster when the following circumstances occur: when the owner, driver, or person in charge of a vehicle to be towed has been advised by the officer on the scene that such vehicle must be removed and that he may call or request the wrecker company of his choice. However, only wrecker companies permitted to tow within the city shall be contacted by police. In the event the owner, driver, or person in charge of the vehicle indicates that he has no preference, or the permitted wrecker of his choice fails to respond to the call within a reasonable period of time considering the time of day, the weather conditions and the traffic conditions, the officer shall see that the next wrecker from the appropriate roster shall be called. In no event shall any officer suggest, direct, or otherwise imply that a particular wrecker be called.

(b) A wrecker operator shall promptly respond to a dispatch and arrive on-scene with a fully functional wrecker within 40 minutes under normal driving conditions. If a wrecker operator

is not capable at the time of dispatch to so respond, he/she shall immediately notify the department's communication center of this fact. If the wrecker operator provides immediate notice of the delay and provides a reasonable time of arrival on-scene, the wrecker operator may take up to a total of 50 minutes from the time of dispatch to arrive. If this is not feasible, however, the wrecker operator shall make the same known to the department's communication center and the wrecker company will be passed over for that rotation and the dispatch will go to the next wrecker company on the rotation roster. When determining whether a violation of this provision has occurred, the police department shall consider the time of day, the weather conditions and traffic conditions. Any wrecker company that refuses or fails to respond when contacted by the department's communication center for three consecutive times shall receive a 15-day suspension from the rotation roster.

(c) When a wrecker operator responds to a dispatch, but renders no wrecker services through no fault of his/her own, the wrecker company will not lose position on the rotation roster if the wrecker operator provides prompt notification of the same to the department's communications center.

(d) Two separate rosters are established as follows:

(1) *Regular haul roster:* This roster shall be in effect 24 hours a day, seven days a week for assignment by the police department to tow up to 75 ton vehicles for those persons who have no preference as to the company to use; and

(2) *Large haul roster:* This roster shall be in effect 24 hours a day, seven days a week for assignment by the police department to tow vehicles over 75 ton for those persons who have no preference as to the company to use.

(e) If the wrecker operator does not arrive on-scene within the time requirements established herein or if the public health, safety and welfare necessitate more expeditious action, the police department reserves the right to request the services of the next wrecker company on the rotation roster. Under these circumstances, the wrecker company who received the first call will forfeit his/her position on the rotation roster for that turn. Any wrecker operator who is late in responding to dispatches for wrecker service without justification may be subject to penalties as provided herein.

(f) The chief has the right to inspect any wrecker or equipment of a wrecker company on the city's rotation roster at any time to ascertain if it is being properly maintained and all required equipment is on the wrecker and in proper operating order.

(g) All wrecker companies on the rotation roster shall have wreckers and equipment inspected annually by the police department. A current inspection sticker will be issued by the department and must be properly displayed at all times.

(h) Any operator on said roster shall be an employee of the wrecker company, or listed on the company's payroll.
(Ord. No. 25-310, §§ 16, 17, 21—26, 4-24-2025)

Sec. 25-94. Rates and charges for the rotation roster.

(a) The maximum fees for wrecker services, including any overhead fees, charged by any wrecker service company on the rotation roster in regard to services provided as a result of rotation system dispatch shall not exceed, but may be less than, the following amounts per wrecker, unless otherwise indicated:

(1) Towing of wrecked or disabled vehicle: Two-axle vehicle weighing 10,000 pounds or less—$175.00.

(2) Towing of wrecked or disabled vehicle: Two-axle vehicle weighing 10,001 pounds through 26,000 lbs.—$225.00.

(3) Towing of wrecked or disabled vehicle: Two-axle vehicle weighing 26,001 pounds or more, or any vehicle with more than two axles—$375.00.

(4) Towing of wrecked or disabled vehicle with a trailer or other vehicle attached in tandem: $75.00 per trailer or vehicle attached in tandem.

(5) Towing of wrecked or disabled vehicle with a trailer or other vehicle attached in tandem, when the tandem trailer or other vehicle exceeds 40 feet in length: $75.00 per trailer or vehicle attached in tandem.

(Note: Towing services provided hereunder include cleaning of debris from roadway, pickup and towing of vehicle to any destination within the city limits.)

(6) Oil dry: Included in towing services.

(7) Righting: Two-axle vehicle weighing 26,000 lbs. or less—$200.00 for the first hour and prorated in ten minute increments thereafter based on $200.00 per hour. (For example, if righting a vehicle takes one hour and 38 minutes, the total charge would be $200.00 + $133.33 = $333.33) If a second wrecker is required to attach to the vehicle simultaneously with the first wrecker in order to right the vehicle, the second wrecker may charge $100.00 for the first hour and prorated in ten minute increments thereafter based on $100.00 per hour.

(8) Righting: Two-axle vehicle weighing 26,001 pounds or more, or any vehicle with more than two axles—$450.00 for the first hour and prorated in ten minute increments thereafter based on $450.00 per hour. If a second wrecker is required to attach to the vehicle simultaneously with the first wrecker in order to right the vehicle, the second wrecker may also charge $225.00 for the first hour and prorated in ten minute increments thereafter based on $225.00 per hour.

(9) Winching: Two-axle vehicle weighing 10,000 pounds or less—$75.00 for the first hour and prorated in ten minute increments thereafter based on $75.00 per hour. If a second wrecker is required to attach to the vehicle simultaneously with the first wrecker in order to wench the vehicle, the second wrecker may also charge $75.00 for the first hour and prorated in ten minute increments thereafter based on $75.00 per hour.

(10) Winching: Two-axle vehicle weighing 10,001 pounds through 26,000 pounds—$200.00 for the first hour and prorated in ten minute increments thereafter based on $200.00 per hour. If a second wrecker is required to attach to the vehicle simultaneously with the first wrecker in order to wench the vehicle, the second wrecker may also charge $200.00 for the first hour and prorated in ten minute increments thereafter based on $200.00 per hour.

(11) Winching: Two-axle vehicle weighing 26,001 pounds or more, or any vehicle with more than two axles—$350.00 for the first hour and prorated in ten minute increments thereafter based on $350.00 per hour. If a second wrecker is required to attach to the vehicle simultaneously with the first wrecker in order to wench the vehicle, the second wrecker may also charge $350.00 for the first hour and prorated in ten minute increments thereafter based on $350.00 per hour.

(Note: For the purposes of this section, winching shall be defined as the removal of a vehicle, trailer or other piece of equipment from a location inaccessible to a wrecker to a location where the object of removal may be safely secured and towed by a wrecker. Winching shall not include any incidental or routine winching necessary to load any vehicle onto the wrecker. Second wrecker fees may only be charged when it is necessary that both wreckers are hooked to the vehicle, and pulled in tandem, to right or winch the vehicle safely.)

(12) Righting or lifting vehicle by airbag, per pound lifted: $0.035.

(13) Forklift, backhoe, trackhoe, and any other necessary recovery equipment services shall be at commercial rental rates plus ten percent per hour (not including operator).

(14) No keys to vehicle: Included in towing services.

(15) Passenger vehicle storage rates:

a. First day: $40.00. (The first day ends at midnight on the day that the vehicle was towed.)

b. Each day thereafter: $40.00. (Beginning at midnight on the day after the vehicle was towed.)

(16) Large haul storage rates:

a. $100.00 per day, per piece.

(17) Tows to locations outside the city limits only:

a. Regular haul: The per mile rate shall be $5.00.

b. Large haul: The per mile rate shall be $8.00.

(18) Gate fee, including any fee to bring a vehicle from the storage lot to a vehicle owner, or allowing a vehicle owner to retrieve personal belongings or other items from a vehicle, as set forth in section 25-90(4) of this Code during regular business hours: No charge. After-hours i.e., times other than Monday through Friday, 8:00 a.m. to 5:00 p.m.: $50.00.

(19) No fees incurred by the wrecker company to report or enter vehicle information on the ALDOR unclaimed/abandoned vehicle portal may be charged if the vehicle is redeemed or returned to the owner or his designee within two calendar days. After two calendar days, no more than $75.00 may be charged for fees associated with reporting or entering vehicle information on the ALDOR unclaimed/abandoned vehicle portal.

(20) Credit card payments allowed. Each wrecker company shall be required to allow cash, credit and/or debit card payments for services rendered pursuant to the rotation roster.

(21) No fee may be charged for debit card payments. No more than a three percent transaction fee may be charged for credit card payments.

(b) The rates and charges as established herein do not relate to or regulate consensual wrecker services in which the vehicle's owner or operator expressly requests towing or wrecker services from a specific wrecker operator and chooses not to utilize the rotation roster system.
(Ord. No. 25-310, §§ 18, 21—26, 4-24-2025)

Sec. 25-95. Temporary removal from the rotation roster.

Wrecker companies shall be immediately removed from the roster for the following reasons:

(1) Failure of a wrecker to continue to meet the requirements established in section 25-75;

(2) Failure of a wrecker to continue to meet the requirements established in section 25-89; and/or

(3) Failure to accept a motorcycle tow shall not constitute a refusal, but will be that company's call for that rotation of the roster.

After a wrecker company has corrected the violation for which it was removed, the wrecker company may reapply for inclusion on the rotation roster using the procedures established in section 25-89. Three removals of a wrecker company's name from the rotation roster, or conviction of the owner of the wrecker company of a felony, or any criminal conviction of the owner or any employee of the wrecker company for a criminal violation related to the wrecker business shall be sufficient grounds for the permanent revocation of any and all wrecker rotation roster permits issued to such company by the city.
(Ord. No. 25-310, §§ 19, 21—26, 4-24-2025)

Sec. 25-96. Suspension from the rotation roster.

(a) Upon receipt of proof satisfactory to the chief of police, that any wrecker company has violated any of the provisions of this chapter

related to the rotation roster, or any other ordinance of the city or law of the state or the United States, the chief of police may, in his discretion, immediately remove such wrecker company's name from any or all rotation rosters for such length of time as set forth herein regardless of whether the violation has been corrected. Suspension hereunder shall be established pursuant to the following criteria:

(1) First violation: 15-day suspension.

(2) Second violation: 30-day suspension.

(3) Third violation: 60-day suspension.

(b) Three suspensions or removals of a wrecker company's name from the wrecker rotation roster, or conviction of the owner of the wrecker company of a felony, or any criminal conviction of the owner or any employee of the wrecker company for a criminal violation related to the wrecker business shall be sufficient grounds for the permanent revocation of any and all wrecker rotation roster permits issued to such company by the city.

(c) In the event that suspension or revocation of permits is contemplated against any wrecker company, the police department shall have the authority to require the wrecker company to make available to the chief of police or his designee any and all books and records of the wrecker company pursuant to any investigation of violations of this chapter by the police department.
(Ord. No. 25-310, §§ 20—26, 4-24-2025)

Secs. 25-97—25-100. Reserved.

ARTICLE III. TRAFFIC CONTROL SIGNS, SIGNALS, DEVICES AND MARKINGS*

Sec. 25-101. Location ratified.

The location of traffic control signs, signal devices and markings in place on the adoption date of this Code is ratified and confirmed and shall be considered to have been authorized by ordinance.

Sec. 25-102. Required; exception.

No provision of this chapter for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.
(Code 1982, § 14-47(b))

Sec. 25-103. Display of unauthorized signs, signals or markings.

No unauthorized person shall erect or maintain upon any street or highway any warning or direction sign, marker, signal or light in imitation of any official sign, marker, signal or light erected under the provisions of this chapter; and no person shall erect or maintain upon any street or highway any traffic or highway sign or signal bearing any commercial advertising; but nothing in this section shall be construed to prohibit the erection or maintenance of signs, markers or signals bearing the name of an organization authorized to erect the sign, marker or signal by the state highway department or by the proper city authority. Any person violating this section shall be guilty of a misdemeanor.
(Code 1982, § 14-48)

State law reference—Similar provisions, Code of Ala. 1975, § 32-5A-36.

Secs. 25-104—25-130. Reserved.

ARTICLE IV. GENERAL RULES OF VEHICLE OPERATION

DIVISION 1. GENERALLY

Sec. 25-131. Driving through business property to avoid traffic control devices.

It shall be unlawful for any person to operate or drive any vehicle upon the streets or highways

*__State law references—__Authority to regulate traffic by means of semaphores or other signaling devices or traffic control devices, Code of Ala. 1975, §§ 32-5-1(d), 32-5-31; notice of special speed restrictions required, Code of Ala. 1975, § 32-5-1(e); traffic signs, signals and markings, Code of Ala. 1975, § 32-5A-30 et seq.

of the city at any intersection where gasoline filling stations or other business property is located, so as to cause such vehicle to cut the corners of any such intersection by passing over the space used in the operation of such filling station or other business property, and thereby avoid the traffic light or traffic signal at any such intersection, or so as to avoid stopping at any such intersection as is required by the laws of the city, or so as to avoid traveling at any such intersection over the usual lanes of traffic.
(Code 1982, § 14-62)

Sec. 25-132. Truck routes.

(a) This section establishes truck routes to regulate traffic and allow movement of commercial vehicle traffic on certain designated streets within the city limits. These routes shall have signs designating the truck route. These signs shall conform to state and federal standards and shall be posted at intersections and at reasonable intervals so the public will have notice of such designation.

(b) The truck routes established in this section shall include the following state highways:

(1) Interstate 565.

(2) U.S. Highway 431.

(3) U.S. Highway 231.

(4) U.S. Highway 72 East and West.

(5) Alabama Highway 53.

(6) Alabama Highway 20.

(7) Rideout Road.

(c) In addition, the truck routes established in this section shall include the following city streets:

(1) Jordan Lane from I-565 to Redstone Arsenal.

(2) Triana Boulevard south of Bob Wallace Avenue.

(3) Johnson Road from Triana Boulevard to Leeman Ferry Road.

(4) Airport Road from Leeman Ferry Road to Carl T. Jones Road.

(5) Carl T. Jones Road from Airport Road to Bailey Cove Road.

(6) Bailey Cove Road from Carl T. Jones Road to Green Cove Road.

(7) Bob Wallace Avenue from I-565 to Memorial Parkway.

(8) Pulaski Pike from University Drive to city limits.

(9) Sparkman Drive west of Jordan Lane.

(10) Pratt Avenue between Memorial Parkway and Meridian Street.

(11) Meridian Street north of Pratt Avenue.

(12) Oakwood Avenue between Jordan Lane and Andrew Jackson Way.

(13) Moores Mill Road between U.S. Highway 72 East and Winchester Road.

(14) Winchester Road from Pulaski Pike to city limits.

(15) Stringfield Road between Alabama Highway 53 and Pulaski Pike.

(16) Mastin Lake Road between Pulaski Pike and Memorial Parkway.

(17) Old Madison Pike from I-565 to city limits.

(18) Martin Road in its entirety.

(19) Green Cove Road from Memorial Parkway to Bailey Cove Road.

(20) Whitesburg Drive from Airport Road to Memorial Parkway.

(d) It shall be unlawful for any person to operate any commercial vehicle at any time upon any streets or parts of streets other than on the truck routes described in this section, except that such vehicles may be operated on such streets for the purpose of delivering or picking up goods, services or merchandise, or leaving or returning to the firm, corporation, place of business or residence where the driver is employed or where the vehicle is stationed, and then only by entering and leaving such street at the major intersection with a street not designated as a truck route nearest the destination of the vehicle. If a commercial vehicle is lawfully on a street not

designated as a truck route, as provided in this section, such commercial vehicle may proceed on the undesignated street if a truck route street is closer than the next scheduled stop for such commercial vehicle, as verified by a freight ticket, bill of lading or other similar documentation.

(e) Under this section, a commercial vehicle shall include any self-propelled or towed vehicle which alone or in combination possesses dual rear wheels or more than two axles; except that this shall not include any vehicle with dual rear wheels or more than two axles that is used by an individual or group of individuals solely for private and nonbusiness purposes, emergency vehicles, military vehicles and vehicles owned, leased or operated by federal, state, county or city governments or any political subdivision of such governments.

(Code 1982, § 14-5; Ord. No. 84-122, § 1, 3-8-1984; Ord. No. 85-556, 9-12-1985; Ord. No. 96-810, §§ 1—4, 10-24-1996)

State law reference—Authority for above section, Code of Ala. 1975, § 32-1-3.

Sec. 25-133. Driving on old airport property.

It shall be unlawful for any person, at a place which has not been designated by signs for motor vehicle traffic, to operate a motor vehicle upon the property commonly known as the Old Huntsville Airport property and so designated on the map on file in the office of the city clerk-treasurer identified by Ordinance No. 79-101; however, the mayor may, upon application, grant limited permission to operate a motor vehicle upon such property in accordance with the terms, conditions and safeguards which adequately protect persons and property from injury as follows:

(1) Adequate security for the protection of persons and property must be provided.

(2) Liability insurance with minimum limits of $100,000.00/$300,000.00 must be provided.

(3) The property must be left in the same or better condition and free of litter.

(4) The city must be indemnified and held harmless in the use of the property.

(5) Such other and additional conditions as shall be appropriate.

(Code 1982, § 14-13)

Sec. 25-134. U-turns at intersections.

Except as permitted by ordinance, no vehicle shall make a U-turn or complete turn of 360 degrees at any street intersection.

(Code 1982, § 14-70; Ord. No. 90-95, 3-20-1990)

Sec. 25-135. Vehicles driven through processions.

No vehicle shall be driven through a procession except by permission of a police officer. This section shall not apply to authorized emergency vehicles.

(Code 1982, § 14-110)

Sec. 25-136. One-way streets.

(a) The following named public streets or highways are hereby designated for one-way traffic movement only:

(1) Jefferson Street, from its intersection with I-565 to North Side Square for one-way southbound traffic.

(2) West Side Square, from its intersection with North Side Square to South Side Square for one-way southbound traffic.

(3) Franklin Street, from its intersection with Williams Avenue to South Side Square for one-way northbound traffic.

(4) East Side Square, from its intersection with South Side Square to North Side Square for one-way northbound traffic.

(5) Washington Street, from its intersection with North Side Square to I-565 for one-way northbound traffic.

(6) Greene Street, from its intersection with Monroe Street to Williams Avenue for one-way southbound traffic.

(7) Lincoln Street, from its intersection with Williams Avenue to Meridian Street for one-way northbound traffic.

(8) Holmes Avenue, from its intersection with Greene Street to Jefferson Street for one-way westbound traffic.

(9) Clinton Avenue, from its intersection with Church Street to Lincoln Street for one-way eastbound traffic.

(10) Randolph Avenue, from its intersection with Greene Street to East Side Square for one-way westbound traffic.

(11) North Side Square, from its intersection with East Side Square to West Side Square for one-way westbound traffic.

(12) South Side Square, from its intersection with West Side Square to East Side Square for one-way eastbound traffic.

(13) Eustis Avenue, from its intersection with East Side Square to Lincoln Street for one-way eastbound traffic.

(14) Hoover Street, from its intersection with Webster Drive to Hurst Avenue for one-way northbound traffic.

(15) Gale Avenue, from its intersection with Washington Street to Hoover Street for one-way eastbound traffic.

(16) Hurst Avenue, from its intersection with Burbank Street to Washington Street for one-way eastbound traffic.

(17) Burbank Street, from its intersection with Abingdon Avenue to Hurst Avenue for one-way southbound traffic.

(18) Garrison Street, from its intersection with Abington Avenue to Webster Drive for one-way southbound traffic.

(19) Webster Drive, from its intersection with Garrison Street to Abington Avenue for one-way northbound traffic.

(20) Frederick Avenue, from its intersection with Webster Drive to Orchard Street for one-way westbound traffic.

(21) Abington Avenue, from its intersection with Orchard Street to Webster Drive for one-way eastbound traffic.

(b) This section shall be effective at such time as signs are erected along said street or highways, which said signs are so designed and constructed as to inform the traveling public of the provisions of this section.

(Ord. No. 03-913, 11-13-2003; Ord. No. 05-582, §§ 1, 2, 7-14-2005)

Editor's note—Ord. No. 03-913, adopted Nov. 13, 2003, did not specifically amend this Code; hence, inclusion of its provisions as § 25-136 herein was at the discretion of the editor.

Secs. 25-137—25-160. Reserved.

DIVISION 2. SPEED*

Sec. 25-161. Generally.

The speed limit on all streets or highways, or portions of streets and highways, not defined in section 25-163 shall be 25 miles per hour.

(Code 1982, § 14-92; Ord. No. 00-161, 3-23-2000; Ord. No. 00-460, § 1, 5-25-2000)

Sec. 25-162. Signs.

Sections 25-161 and 25-163 shall be effective from and after such time as signs are erected along the streets or highways described in section 25-163, which signs are designated and constructed as to inform the traveling public of the provisions of sections 25-161 and 25-163.

(Code 1982, § 14-94)

*__State law references—__Speed generally, Code of Ala. 1975, §§ 32-5-92 et seq., 32-5A-170 et seq.; alteration of speed limits, Code of Ala. 1975, §§ 11-47-114, 32-5A-173.

Sec. 25-163. Street schedule.

(a) It shall be unlawful for any person to drive or operate any motor vehicle within the city limits at a rate of speed greater than provided by this section on the street or highway, or portions of said street or highway as defined by the terminal points hereinafter set out. The names of said street or highway, the portions thereof as determined by the terminal points hereinafter set out, and the maximum rate of speed allowed in miles per hours over and along each portion or segment of said street or highway are as follows:

NAME OF STREET	TERMINAL POINTS	MAX SPEED
A Cleaner Way	Triana Blvd. to Dead End	35
Advanced Gateway	Redstone Gateway to Rideout Rd.	35
Adventist Blvd.	Sparkman Dr. to Oakwood Rd.	45
Airport Rd.	Memorial Pkwy to Springhouse Rd.	40
Airport Rd.	Memorial Pkwy. to Leeman Ferry Rd.	45
AL Hwy. 20	I-565 to Zierdt Road	55
AL Hwy. 20 ramp	County Line Rd. to AL Hwy. 20 parallel to I-565	45
AL Hwy. 20	North side of I-565: County Line Rd. to Mooresville Rd.	55
AL Hwy. 20	South side of I-565: Swancott to Pryor Rd. and City Limit to Dead End west of Mooresville Rd.	55
AL Hwy. 53	Nick Fitcheard to Kelly Spring	55
Andrew Jackson Way	Oakwood Ave. to Pratt Ave.	35
Andrew Jackson Way	Pratt Ave. to Clinton Ave.	30
Avocent Way	Corporate Dr. to Sanderson St.	40
Bailey Cove Rd.	Four Mile Post Rd. to Weatherly Rd.	40
Bailey Cove Rd.	Weatherly Rd. to Green Cove Rd.	45
Balch Rd.	US Hwy. 72 to Capshaw Rd.	40
Balch Rd.	US Hwy. 72 to City Limits south of Wann Dr.	40
Balmoral Dr.	Airport Rd. to Eagletree Ln.	30
Bankhead Pkwy.	Maysville Rd. to Fearn St.	35
Beadle Ln.	Swancott Rd. to Wall Triana Hwy.	50
Beadle Ln.	Wall Triana Hwy. to Zierdt Rd.	45
Beaver Dam Rd.	Pulaski Pike to Ivy Vine Dr.	40
Bell Rd.	Bonnie Oaks Dr. to Hobbs Rd.	35
Bi Low Rd.	Swancott Rd. to Barlowe Rd.	35
Bibb Garrett Rd.	Mooresville Rd. to east side of I-65	50
Bibb Garrett Rd.	West of I-65 to City Limit	30
Big Cove Rd.	California St. to Chippendale Dr.	30
Blake Bottom Rd.	East of Hwy. 53	35
Blake Bottom Rd.	West of Hwy. 53	40
Blanda Dr.	Whitesburg Dr. to Weatherly Rd.	30
Blue Spring Rd.	Oakwood Ave. to Max Luther Dr.	35
Blue Spring Rd.	Max Luther Dr. to Winchester Rd.	40
Blue Spring Rd.	Winchester Rd. to Dead End	35
Bob Heath Dr.	Explorer Blvd. to Dead End	35
Bob Wade Ln.	Pulaski Pike to end of 4-lane divided roadway	55
Bob Wade Ln.	End of the 4-lane divided roadway to Memorial Pkwy.	50
Bob Wade Ln.	Dr. Martin Luther King Jr. Hwy. to Kelly Springs Rd.	50
Bob Wallace Ave.	Whitesburg Dr. to Memorial Pkwy.	35
Bob Wallace Ave.	Memorial Pkwy. to I-565	40

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Boeing Blvd.	Wall Triana Hwy. to County Line Rd.	50
Bradford Dr.	Sparkman Dr. to Explorer Blvd.	40
Bradford Ln.	Winchester Rd. to City Limit	35
Burgreen Rd.	City Limit to City Limit	35
Burwell Rd.	Carters Gin Rd. to City Limit	50
Byrd Spring Rd.	Whitesburg Dr. to Memorial Pkwy.	35
Caldwell Ln.	U.S. Hwy. 431 to Ginn Point Rd.	35
California St.	Clinton Ave. to White St.	30
California St.	White St. to Whitesburg Dr.	40
Cap Adkins Rd.	Hobbs Island Road to City Limits	35
Capshaw Rd.	Wall Triana Hwy. to Old Railroad Bed Rd.	45
Capshaw Rd.	Nance Rd. to Wall Triana Hwy.	40
Carl T. Jones Dr.	Beginning of 4-lane divided roadway east of Springhouse Rd. to Four Mile Post Rd.	45
Carters Gin Rd.	Pulaski Pike to City Limits	40
Cecil Ashburn Dr.	Bailey Cove Rd. to Old Big Cove Road	40
Chaney Thompson Rd.	Green Cove Rd. to Mountain Gap Rd.	35
Chase Rd.	Meridian St. to Higdon Rd.	35
Chase Rd.	Higdon Rd. to City Limit	30
Cherry Tree Rd.	Old Hwy. 431 to City Limit	45
Christian Ln.	Quietdale Dr. to U.S. 72 East	35
Church St.	Williams Ave. to Oakwood Ave.	35
Clinton Ave.	Governors Dr. to Church St.	35
Cochran Rd.	Wall Triana Hwy. to Dead End	35
Commerce Pkwy.	Memorial Pkwy. to Logan Dr.	30
Commercial Dr.	Jordan Ln. to Retail Dr.	35
Cook Ave.	Memorial Pkwy to Church St.	35
Coretta Dr.	Greenbrier Pkwy to Greenbrier Rd.	35
Corporate Dr.	Wynn Dr. to Research Dr.	35
Countess Rd.	Memorial Pkwy. to City Limits	50
Country Club Ave.	Pulaski Pike to Memorial Pkwy.	35
County Line Rd.	Madison Blvd. to Boeing Blvd.	50
County Line Rd.	Boeing Blvd. to City Limit	45
County Line Rd.	Madison Blvd. to Sherborn Dr.	45
County Line Rd.	U.S. 72 West to 600' north of Freedom Way	45
Cox Ave.	Pulaski Pike to Memorial Pkwy.	35
Dallas Ave.	Holmes Ave. to Church St.	30
Dan Tibbs Rd.	Jordan Ln. to City Limits	40
Diamond Dr.	Old Madison Pike to Quality Cir.	40
Discovery Dr.	Enterprise Way to Explorer Blvd.	35
Ditto Marina Pkwy.	Green Cove Rd. to Hobbs Island Rd.	45
Dr. Martin Luther King Jr. Hwy. service road	AL Highway 255 from the intersection of SR 53, milepost 6.35, northerly to the end of the route, milepost 10.00, a distance of 3.65 miles	55
Douglass Rd.	Hwy. 53 to Indian Creek Rd.	45
Drake Ave.	Whitesburg Dr. to Dotson Dr.	35
Drake Ave.	Patton Rd. to Whitesburg Drive	40

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Dug Hill Rd.	Broad Armstrong Rd. to 1,360' East of Wimbledon Rd.	35
Dug Hill Rd.	King Drake Rd. to east City Limit	35
Dunlop Blvd.	Wall Triana Hwy. to Huntsville Utilities Substation south of Intergraph Way	45
Dupree Worthy Rd.	City Limit to City Limit	45
Eagletree Ln.	Balmoral Dr. to L&N Dr.	35
Eastern Bypass	Old Hwy. 431 to end of 4-lane divided road	55
Eastern Bypass	End of 4-lane divided road to Little Cove Road	45
Electronics Blvd.	Wall Triana Hwy. to James Record Rd.	35
Engle Dr.	Monroe St. to Governors Dr.	35
Enterprise Way	University Dr. to Explorer Blvd.	35
Epworth Dr.	U.S. 72 East service road (all-way stop) to U.S. 72 East	35
Esslinger Dr.	Cherry Tree Rd. to City Limits	35
Evangel Dr.	University Dr. to Executive Dr.	30
Executive Dr.	Sparkman Dr. to Putman Dr.	30
Explorer Blvd.	Enterprise Way encircling Research Park and ending at Enterprise Way	35
Fanning Dr.	Gunters Way to Dead End	35
Farrow Rd.	Slaughter Rd. to Explorer Blvd.	35
Fearn St.	Lookout Dr. to Bankhead Pkwy.	30
Fifteenth Ave.	Triana Blvd. to 1st St.	30
First St.	Ivy St. to 9th Ave.	30
Four Mile Post Rd.	Garth Rd. to Bailey Cove Rd.	40
Four Mile Post Rd.	Whitesburg Dr. to Garth Rd.	30
Fourteenth St.	Governors Dr. to Holmes Ave.	40
Franklin St.	Lowe Ave. to Whitesburg Dr.	35
Gallatin St.	Williams Ave. to Lowe Ave.	35
Gallatin St.	Lowe Ave. to Marsheutz Ave.	30
Garth Rd.	Deborah Dr. to Drake Ave.	30
Garth Rd.	Drake Ave. to Four Mile Post Rd.	35
Golf Rd.	Memorial Pkwy. to Dead End	35
Governors Dr.	I-565 to Clinton Ave.	45
Governors Dr.	Clinton Ave. to California St.	40
Governors Dr.	California St. to Parkhill Rd.	45
Governors Dr.	Parkhill Rd. to Monte Sano Blvd.	50
Governors House Dr.	Bob Wallace Ave. to Jordan Ln.	40
Governors West	Old Madison Pike to Madison Blvd.	50
Gray Rd.	Huntsville Browns Ferry Rd. to Newby Rd.	45
Greenbrier Pkwy	I-565 to Greenbrier Rd.	45
Greenbrier Pkwy	Greenbrier Rd. to Huntsville Browns Ferry Rd.	55
Greenbrier Rd.	Coretta Dr. to Old Hwy. 20	35
Greenbrier Rd.	Greenbrier Pkwy to Dead End	35
Green Cove Rd.	Bailey Cove Rd. to Redstone Arsenal	45
Green Mountain Rd.	Bailey Cove Rd. to North Shawdee Rd.	35
Grizzard Rd.	Jordan Ln. to Pulaski Pike	35
Gunters Way	AL Hwy. 20 to Old Hwy. 20	45
Harbin Rd.	Wall Triana Hwy. to Summer Pointe Ln.	40

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Harris Hill Blvd.	High Mountain Rd. to Old Gurley Rd.	35
Haysland Rd.	Memorial Pkwy to Redstone Rd.	45
Heart of Huntsville Dr.	Clinton Ave. to Monroe St.	35
Henderson Rd.	Wall St. to City Limits	35
Hobbs Rd.	Bailey Cove Rd. to Memorial Pkwy.	35
Hobbs Rd.	Memorial Pkwy. to Redstone Rd.	45
Hobbs Island Rd.	Memorial Pkwy. to City Limits	50
Holladay Blvd.	U.S. 72 West to Huntsville Browns Ferry Rd.	45
Hollow Rd.	Meridian St. to Pisgah Dr.	35
Holmes Ave.	Andrew Jackson Way to Lincoln St.	30
Holmes Ave.	Church St. to Woodson St.	35
Holmes Ave.	Woodson St. to Ben Graves Dr./John Wright Dr.	40
Holmes Ave.	Ben Graves Dr./John Wright Dr. to Sparkman Dr.	35
Holmes Ave.	Sanderson Rd. to University Dr.	35
Holmes Ave.	Sparkman Dr. to Wynn Dr.	35
Homer Nance Rd.	Jordan Rd. to Gary Glen Blvd.	35
Homer Nance Rd.	Winchester Rd. to River Bridge Way	35
Humphrey Rd.	Mooresville Rd. to City Limit	45
Hundley Dr.	Oakwood Ave. to Pratt Ave.	35
Huntsville Browns Ferry Rd.	City Limit to City Limit	55
I-565	I-65 to elevated roadway beginning east of Triana Blvd. (MM 18.1).	70
I-565	Elevated roadway east of Triana Blvd. (MM 18.1) to U.S. 72 East at MM 21.7 (Maysville Rd.)	65
I-565	U.S. 72 East at MM 21.7 (Maysville Rd.) to end of controlled access highway	60
Indian Creek Rd.	Old Monrovia Rd. to City Limits	45
Indian Springs Rd.	I-565 to County Line Rd.	30
Industrial Dr.	Memorial Pkwy. to Meridian St.	35
Ivy Ave.	Drake Ave. to Triana Blvd.	35
James Record Rd.	Martin Rd. to Dead End	45
James Record Rd.	Laracy Dr. to 600' east of Glenn Hearn Blvd.	40
James Record Rd.	600' east of Glenn Hearn Blvd. thru ramp to southbound Glenn Hearn Blvd.	30
Jan Davis Dr.	Old Madison Pike to Explorer Blvd.	40
Jeff Rd.	U.S. 72 West to Ce-Lee Dr.	40
Jetplex Blvd.	Wall Triana Hwy. to Electronics Blvd.	35
Johns Rd.	Oakwood Rd. to Plummer Rd.	45
Johnson Rd.	Triana Blvd. to Leeman Ferry Rd.	45
Jordan Ln.	Bob Wallace Ave. to University Dr.	40
Jordan Ln.	University Dr. to Elton Rd.	45
Jordan Ln.	Elton Rd. to Mastin Lake Rd.	50
Jordan Ln.	Mastin Lake Rd. to Nick Fitcheard Rd.	55
Jordan Rd.	Moores Mill Rd. to City Limit	35
Jordan Rd.	Homer Nance Rd. to Ryland Pike	40
Kelly Cemetery Rd.	Pulaski Pike to City Limits	45

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Kellner Rd.	Wall Triana Hwy. to Dead End	35
King Rd.	Indian Creek Rd. to Old Monrovia Rd.	40
King Drake Rd.	Caldwell Ln. to City Limits	30
Knotty Walls Rd.	City Limit to City Limit	35
L&N Dr.	Bob Wallace Ave. to Eagletree Ln.	35
Laracy Dr.	Short Pike Rd. to James Record Rd.	40
Laracy Dr.	Short Pike Rd. to Dead End	35
Leeman Ferry Rd.	Memorial Pkwy. to Drake Ave.	35
Leeman Ferry Rd.	Drake Ave. to Johnson Rd.	40
Liberty Hill Rd.	Prosperity Dr. to Monroe Rd.	35
Lily Flagg Rd.	Memorial Pkwy. to Valley View Dr.	30
Little Cove Rd.	Eastern Bypass to City Limit	45
Lodge Rd.	Grizzard Rd. to Mastin Lake Rd.	35
Lowe Ave.	Williams Ave. to California St.	35
Madison St.	Williams Ave. to Governors Dr.	35
Mainline Way	Rime Village Dr. to West Park Loop	30
Mark C. Smith Dr.	Discovery Dr. to Explorer Blvd.	35
Martin Rd.	James Record Rd. to Redstone Arsenal	45
Martin Rd.	Memorial Pkwy. to Redstone Arsenal	55
Martin Rd.	Whitesburg Dr. to Memorial Pkwy.	45
Mastin Lake Rd.	U.S. 72 East to Memorial Pkwy.	35
Mastin Lake Rd.	Memorial Pkwy. to Jordan Ln.	40
Max Luther Dr.	Meridian St. to Washington St.	30
Max Luther Dr.	Washington St. to Memorial Pkwy.	35
Max Luther Dr.	Memorial Pkwy. to Blue Spring Rd.	40
Maysville Rd.	U.S. 72 East to Oakwood Ave.	35
Maysville Rd.	Oakwood Ave. to Randolph Ave.	30
McClung Ave.	California St. to Owens Dr.	30
McCrary Rd.	Nance Rd. to Wall Triana Hwy.	35
McMullen Rd.	City Limit to City Limit	35
McMurtrie Dr.	Moore Farm Lane to University Dr.	30
McCutcheon Loop Rd.	City Limit to City Limit	45
Meadowbrook Dr.	Memorial Pkwy west to National Blvd.	35
Memorial Pkwy.	Bob Wade Ln. to 500' North of Mastin Lake Rd.	55
Memorial Pkwy.	500' north of Mastin Lake Rd. to Tennessee River	50
Memorial Pkwy. service road	1,000' south of Mastin Lake Rd. to Meadowbrook Dr.	40
Meridian St.	Lincoln St. to Oakwood Ave.	35
Meridian St.	Oakwood Ave. to Winchester Rd.	40
Meridian St.	Winchester Rd. to Memorial Pkwy.	45
Millennium Dr.	Adventist Blvd. to Rideout Dr.	35
Miller Ln.	Old Big Cove Rd. to U.S. 431	30
Monroe Rd.	Pulaski Pike to 1.1 miles east of Liberty Hill Rd.	50
Monroe St.	Clinton Ave. to Meridian St.	35
Monroe St.	St. Clair Ave. to Governors Dr.	35
Monte Sano Blvd.	Governors Dr. to Lookout Dr.	35
Moore Farm Ln.	Enterprise Way to McMurtrie Dr.	35

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Moores Mill Rd.	U.S. 72 south to Harris Hill Blvd.	35
Moores Mill Rd.	U.S. 72 East north to M&M Cir.	45
Mooresville Rd.	I-565 to Bibb Garrett Rd.	50
Mooresville Rd.	City Limit to City Limit between Fennell Rd. and Boseck Rd.	55
Mooresville Rd.	Humphrey Rd. to Huntsville Browns Ferry Rd.	55
Mooresville Rd.	Huntsville Browns Ferry Rd. north to City Limit	45
Moquin Dr.	Discovery Dr. to Explorer Blvd.	35
Mountain Gap Rd.	Memorial Pkwy. to Chaney Thompson Rd.	30
Mountain Gap Rd.	Chaney Thompson Rd. to Bailey Cove Rd.	40
Nance Rd.	U.S. 72 West to McCrary Rd.	45
National Blvd.	Memorial Pkwy service road to Meadowbrook Dr.	35
Naugher Rd.	Winchester Rd. to City Limit	35
Nick Fitcheard Rd.	Dan Tibbs Rd. to AL Hwy. 53	35
Nick Fitcheard Rd.	AL Hwy. 53 to Bob Wade Ln.	40
Nick Fitcheard Rd.	Bob Wade Ln. to Carters Gin Rd.	50
Ninth Ave.	Jordan Ln. to Seminole Dr.	35
Nolen Ave.	Monte Sano Blvd. to Monte Sano State Park	30
Oakwood Ave.	Jordan Ln. to Memorial Pkwy.	40
Oakwood Ave.	Memorial Pkwy. to Andrew Jackson Way	35
Oakwood Ave.	Andrew Jackson Way to Maysville Rd.	40
Oakwood Ave.	Maysville Rd. to High Mountain Rd.	30
Oakwood Rd.	Jordan Ln. to Oakwood University gate	35
Oakwood Rd.	Adventist Blvd. to Research Park Blvd.	35
Oakwood Rd.	Research Park Blvd. to Johns Rd.	45
Odyssey Dr.	Explorer Blvd. to end	30
Old Big Cove Rd.	U.S. Hwy. 431 to Sutton Rd.	30
Old Big Cove Rd.	Sutton Rd. south to City Limits	35
Old Blue Spring Rd.	Blue Spring Rd. to Dead End	30
Old Dry Creek Rd.	Old Monrovia to Dead End	40
Old Gurley Rd.	U.S. 72 East to U.S. 72 East	30
Old Highway 20	County Line Rd. to Greenbrier Pkwy	45
Old Highway 431	U.S. Hwy. 431 South to Eastern Bypass	55
Old Highway 431	Cherry Tree Rd. south to U.S. Hwy 431 South	40
Old Madison Pike	I-565 to Research Park Blvd.	40
Old Madison Pike	Research Park Blvd. to Morning Vista Dr.	45
Old Monrovia Rd.	Sanderson St. to University Dr.	40
Old Monrovia Rd.	University Dr. to Johns Rd.	35
Old Monrovia Rd.	Johns Rd. to Hunting Trl	45
Old Railroad Bed Rd.	City Limit to City Limit	45
Old River Rd.	U.S. Hwy. 231 to River Loop Rd.	35
One Aviation Way	Swancott Rd. to Dead End	30
Opportunity Blvd.	Pulaski Pike to Prosperity Dr.	35
Patton Rd.	Bob Wallace Ave. to Redstone Arsenal	45
Pegasus Dr.	Explorer Blvd. to 700' south of Midtowne Ln.	30
Peoples Rd.	Swancott Rd. to Pryor Rd.	30
Perimeter Pkwy.	University Dr. to Old Monrovia Rd.	35

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Plummer Rd.	AL Hwy. 53 to Indian Creek Rd.	40
Powell Rd.	City Limit to City Limit	45
Pratt Ave.	Maysville Rd. to Andrew Jackson Way	30
Pratt Ave.	Andrew Jackson Way to Meridian St.	35
Pratt Ave.	Meridian St. to Washington St.	40
Pratt Ave.	Washington St. to Church St.	35
Prosperity Dr.	Pulaski Pike to Opportunity Blvd.	35
Providence Main St.	University Dr. to Dry Creek Bridge	35
Pryor Rd.	Old Hwy. 20 to City Limit	30
Pulaski Pike	Holmes Ave. to Cedar Point Dr.	40
Pulaski Pike	Cedar Point Dr. to Prosperity Dr.	45
Pulaski Pike	Prosperity Dr. to Beaver Dam Rd./Monroe Rd.	50
Putman Dr.	University Dr. to Jordan Ln.	35
Quality Cir.	Old Madison Pike to Dead End	35
Rabbit Ln.	Wall St. northward to Swancott Rd.	35
Redstone Gateway	Rideout Rd. to Rideout Rd.	35
Redstone Rd.	Memorial Pkwy. to Haysland Rd.	45
Redstone Rd.	Haysland Rd. to Redstone Arsenal Gate	35
Remington Trl.	Wall Triana Hwy. to Electronics Blvd.	35
Research Dr.	Wynn Dr. to Corporate Dr.	35
Research Park Blvd.	I-565 to Plummer Rd.	65
Research Park Blvd. service road	Old Monrovia Rd. to Plummer Rd.	45
Rideout Dr.	Old Monrovia Rd. to Oakwood Rd.	35
Rideout Rd.	I-565 to Redstone Arsenal Gate	50
River Loop Rd.	City Limit to City Limit	45
Rockhouse Rd.	Henderson Rd. south to end of pavement at Wheeler Wildlife Refuge	35
Rockhouse Rd.	Henderson Rd. north to City Limit	45
Routt Rd.	Pulaski Pike to Liberty Hill Rd.	35
Sam Dr.	Winchester Rd. to Industrial Dr.	35
Sanderson St.	Old Monrovia Rd. to Wynn Dr.	40
Sanderson Rd.	City Limit to Nick Davis Rd.	45
Saint Clair Ave.	Madison St. to Monroe St.	35
Segers Rd.	Old Highway 20 to City Limit	45
Seminole Dr.	9th Ave. to Clinton Ave.	35
Shields Rd.	Hwy. 72 East south to Old Gurley Rd.	35
Shields Rd.	Hwy. 72 East north to Jordan Rd.	40
Short Pike Rd.	Wall Triana Hwy. to Dead End	35
Sixth St.	Wall Triana Hwy. to Lakeside Dr.	45
Slaughter Rd.	Madison Blvd. to Old Madison Pike	35
Slaughter Rd.	Old Madison Pike to City Limit	45
South Green Mountain Rd.	City Limit to City Limit	35
South Shawdee Rd.	Green Mtn. Rd. to South Green Mountain Rd.	30
Sparkman Dr.	Memorial Pkwy. to University Dr.	40
Sparkman Dr.	University Dr. to I-565	45
Stringfield Rd.	Blue Spring Rd. to Pulaski Pike	35

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Stringfield Rd.	Pulaski Pike to Jordan Ln.	45
Sutton Rd.	Old Big Cove Rd. to U.S. 431	45
Swancott Rd.	I-565 to Peoples Rd.	50
Swancott Rd.	Rockhouse Rd. to Wall Triana Hwy.	50
Taylor Ln.	Taylor Rd. to U.S. 431	40
Taylor Rd.	Sutton Rd. to Old Big Cove Rd.	45
Technology Dr.	Sparkman Dr. to Wynn Dr.	40
Terry-Drake Rd.	Taylor Rd. to Old Big Cove Rd.	30
The Boardwalk	University Dr. to University Sq.	40
The Meadows Blvd.	US Hwy. 431 to Old Hwy. 431	30
Todd Mill Rd.	Weatherly Rd. to Mountain Gap Rd.	30
Toll Gate Rd.	Bankhead Pkwy. to Wells Ave.	30
Trademark Dr.	Wall Triana Hwy. to Martin Rd.	40
Triana Blvd.	Holmes Ave. to Dead End	40
University Dr.	Church St. to Memorial Pkwy.	35
University Dr.	Memorial Pkwy. to Jeff Rd.	45
U.S. 431 South	Monte Sano Blvd. to City Limit	55
U.S. 72 West	Jeff Rd. to 100' east of Nance Rd.	55
U.S. 72 West	100' east of Nance Rd. to 600' west of Balch Rd.	45
U.S. 72 West	600' west of Balch Rd. to the City Limit	55
U.S. 72 East	Memorial Pkwy. to Maysville Rd.	45
U.S. 72 East	End of I-565 controlled access (MM 100.9) and extending easterly for approximately 3.6 miles to the Eastern City Limit (MM 104.5, Martinson Blvd.)	55
Vaughn Rd.	McCutcheon Loop Rd. south to City Limit	45
Vermont Rd.	Memorial Pkwy. to Dead End	35
Voyager Way	Old Madison Pike to Explorer Blvd.	35
Wall St.	Swancott Rd. to Henderson Rd.	40
Wall Triana Hwy.	Cleghorn Blvd. to Boeing Blvd.	50
Wall Triana Hwy.	Boeing Blvd. to end of 4-lane divided roadway	55
Wall Triana Hwy.	End of 4-lane divided roadway to end of road	45
Wall Triana Hwy.	McCrary Rd. to Harbin Rd.	45
Washington St.	Monroe St. to Oakwood Ave.	35
Washington St.	Oakwood Ave. to U.S. 72 East	40
Weatherly Rd.	Bailey Cove Rd. to Valley Ln.	35
Weatherly Rd.	Memorial Pkwy. to Bailey Cove Rd.	40
Wells Ave.	California St. to Toll Gate Rd.	30
West Park Blvd.	University Dr. to West Park Loop	30
West Park Loop	West Park Blvd. to West Park Blvd.	30
Wheeler Ave.	Memorial Pkwy. to Church St.	35
Whitesburg Dr.	Governors Dr. to California St.	35
Whitesburg Dr.	California St. to Airport Rd.	40
Whitesburg Dr.	Airport Rd. to Memorial Pkwy.	45
Willowbrook Dr.	Bailey Cove Rd. to Doubletree Dr.	30
Wimbledon Rd.	Dug Hill Rd. to Dead End	30
Winchester Rd.	Pulaski Pike to West Swaim Cir.	40
Winchester Rd.	West Swaim Cir. to East Swaim Cir.	30

NAME OF STREET	TERMINAL POINTS	MAX SPEED
Winchester Rd.	East Swaim Cir. to Meridian St.	40
Winchester Rd.	Meridian St. to the City Limits	45
Woodson St.	Holmes Ave. to Clinton Ave.	35
Wynn Dr.	Old Madison Pike to Bradford Dr.	40
Wynn Dr.	Bradford Dr. to Adventist Blvd.	45
Zierdt Rd.	Madison Blvd. to end of 4-lane divided roadway south of Martin Rd.	45
Zierdt Rd.	End of 4-lane divided roadway south of Martin Rd. to Fox Rd.	50
Zierdt Rd.	Fox Rd. to Beadle Ln.	40

(b) That the speed limit on all streets or highways, or portions of said streets or highways, not defined in section (a) above shall be 25 miles per hour.

(c) That this section shall be effective from and after such time as signs are erected along said streets or highways described in section (a), which said signs are designated and constructed to inform the traveling public of the provisions of this section.

(d) That this section shall become a part of the Code of Ordinances of the City of Huntsville, Alabama and shall supersede and amend Ordinance No. 12-622 and any and all ordinances in conflict with this section.
(Ord. No. 00-161, 3-23-2000; Ord. No. 00-460, § 1, 5-25-2000; Ord. No. 03-132, 2-13-2003; Ord. No. 06-453, 5-11-2006; Ord. No. 06-1285, 12-21-2006; Ord. No. 08-347, 4-22-2008; Ord. No. 09-473, 6-11-2009; Ord. No. 10-955, 12-16-2010; Ord. No. 12-333, 5-3-2012; Ord. No. 23-388, 5-11-2023; Ord. No. 25-347, 5-8-2025)

Sec. 25-164. Construction or repair zones.

It shall be unlawful to operate or drive any vehicle at a speed in excess of 25 miles per hour between the warning signs placed on the street during construction or repairs, when such signs are placed not more than 500 feet from the place where the construction or repair is in progress.
(Ord. No. 85-268, 5-23-1985)

Secs. 25-165—25-179. Reserved.

DIVISION 3. RESTRICTED USE OF WIRELESS COMMUNICATION DEVICES WHILE DRIVING*

Sec. 25-180. Definitions.

The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Except as may be otherwise provided in this division, all words and phrases used in this division which are defined in Code of Ala. 1975, § 32-1-1.1 shall have the meanings ascribed to them in that section.

*__Editor's note—__Ord. No. 10-464, § 1, adopted July 22, 2010, became effective 60 days from and after the date of its adoption. Section 2 of the ordinance provides: "The City of Huntsville shall erect a sign on every major thoroughfare entering the City to notify persons traveling to or through the City that the use of wireless communication devices, other than to make a phone call, while operating a vehicle is prohibited within the City. Such signs shall be erected no later than thirty (30) days of the adoption of this ordinance."

Text-based communication shall include, but is not limited to, a text message, instant message, e-mail, or internet data communicated through a wireless telecommunications device.

Utility services shall include electric, natural gas, water, wastewater, cable, telephone, or telecommunications services or the repair, location, relocation, improvement, or maintenance of utility poles, transmission structures, pipes, wires, fibers, cables, easements, rights-of-way, or associated infrastructures.

Wireless telecommunications device shall include a cellular, analog, wireless or digital device, computer or telephone, capable of accessing the internet or sending, receiving or downloading any electronic or digital data or other wireless communication with another person, including, but not limited to, videos, pictures, text-based communications, or phone calls. Covered devices include, but are not limited to, devices commonly known as smartphones, cell phones, electronic readers, electronic tablets, laptops, netbooks, GPS devices and other similarly equipped wireless devices. Covered devices shall not include voice radios, mobile radios, land mobile radios, commercial mobile radios, two-way radios or their functional equivalent with the capability to transmit and receive voice transmission utilizing a "push to talk" or "press to transmit" function, subscription-based emergency communication devices, prescribed medical devices, amateur or ham radio devices, or in-vehicle security, navigation, or remote diagnostic systems. (Ord. No. 10-464, § 1, 7-22-2010; Ord. No. 23-694, § 1, 10-12-2023)

Sec. 25-181. Restricted use of wireless communication devices while driving.

No person shall operate or drive a vehicle upon any highway, public roadway or street while doing any of the following:

(1) Using a wireless telecommunications device to write, send, read, or otherwise engage in a text-based communication;

(2) Watching, recording, or capturing a photograph or video;

(3) Using a handheld wireless telecommunications device to engage in a voice-based communication; and/or

(4) Physically holding or otherwise supporting with any part of his or her body a wireless telecommunications device.

(Ord. No. 10-464, § 1, 7-22-2010; Ord. No. 23-694, § 2, 10-12-2023)

Sec. 25-182. Exceptions.

The following uses of a wireless telecommunications device are not subject to the restrictions of section 25-181:

(1) An emergency services professional, including a law enforcement officer, emergency medical services personnel, ambulance operator, firefighter, volunteer firefighter, or other similarly employed public safety-first responder, using a wireless telecommunications device during the performance of his or her official duties. Personal use of a wireless communication device shall remain subject to the provisions contained in section 25-181.

(2) An individual using an earpiece, a headphone device, steering wheel controls, speaker phone or any voice-activated technology, or other device worn on the person or mounted onto the dashboard, center console, windshield, or other part of the vehicle to conduct substantially hands-free voice-based wireless communications.

(3) An individual using a wireless telecommunication device to obtain emergency services including, but not limited to, an emergency call to a law enforcement agency, health care provider, fire department, or other emergency services agency or entity.

(4) An individual using a wireless telecommunication device while the motor vehicle is parked on the shoulder of the highway, roadway or street, or the vehicle is stopped due to normal traffic being obstructed.

(5) An individual using a wireless telecommunication device as a global positioning or navigation system to receive driving directions which has been preprogrammed with the desired coordinates. A person programming coordinates while operating a vehicle remains a violation of section 25-181.

(6) An individual using a continuous recording device that operates within or outside the vehicle, including, but not limited to, a dash camera or backup camera.

(7) An individual using a wireless telecommunications device by an employee or contractor of a utility services provider within the scope of his or her employment while responding to a utility emergency or performing other critical utility services.

(8) An individual using an ignition interlock device, as defined in Code of Ala. 1975, § 32-5A-191.4.

(9) An individual using a wireless telecommunications device who is a passenger in a vehicle, and not the driver or operator of the vehicle.

(10) An individual 18 years of age or older, using a wireless telecommunications device in a manner that requires the physical use of the individual's hand while operating or driving a motor vehicle if both of the following occur:

a. The device is mounted to the vehicle, including the windshield, dashboard, or center console of the vehicle, and the device does not create an unsafe obstruction of the person's view of the road.

b. The individual's hand is used to activate or deactivate a feature or function of the device with the motion of one swipe or tap of the individual's finger, and the swipe or tap does not activate the camera, video, or gaming features or functions for viewing, recording, amusement, or other nonnavigational functions, other than functions or features related to the transportation of persons or property for compensation or payment of a fee.

(11) A licensed physician using a wireless telecommunications device while responding to an emergency medical situation.

(Ord. No. 10-464, § 1, 7-22-2010; Ord. No. 23-694, § 3, 10-12-2023)

Sec. 25-183. Violations.

(a) A law enforcement officer enforcing this section may treat a violation as the primary or sole reason for issuing a citation to the operator of a motor vehicle.

(b) A law enforcement officer enforcing this section may not search a motor vehicle or the operator or passenger of the motor vehicle solely because of a violation of this section.

(c) A law enforcement officer may not use a violation of this section to establish probable cause for any other violation of state or local law without articulable suspicion pertaining to the other violation.

(Ord. No. 10-464, § 1, 7-22-2010; Ord. No. 23-694, § 1, 10-12-2023; Ord. No. 24-29, § 1, 1-25-2024)

Sec. 25-184. Penalty.

Any person who violates any provision of this division shall upon conviction be punished, in addition to such other punishment as may be provided by the court, by fines and penalties as follows:

(1) For a first conviction, within a 24-month period of time, by a fine of $50.00.

(2) For a second conviction, within a 24-month period of time, by a fine of $100.00.

(3) For a third or subsequent conviction, within a 24-month period of time, by a fine of $150.00 and/or a term of community service.

(Ord. No. 10-464, § 1, 7-22-2010; Ord. No. 23-694, § 5, 10-12-2023)

Secs. 25-185—25-200. Reserved.

ARTICLE V. STOPPING, STANDING AND PARKING*

DIVISION 1. GENERALLY

Sec. 25-201. Fines.

(a) For the following violations, the parking fines, in addition to court costs, shall be as follows:

(1)	Meter violation	$ 10.00
(2)	Excessive overtime	10.00
(3)	Prohibited parking	15.00
(4)	Improper parking	15.00
(5)	Loading zone violation	15.00
(6)	No permit	15.00
(7)	Handicap space violation, see section 25-221	50.00
	a. Second offense, 40 hours community service	100.00
	b. Third offense, 40 hours community service	500.00
(8)	Facing traffic	15.00
(9)	Parking on sidewalk	15.00
(10)	Parking on private property	30.00
(11)	Abandoned vehicle	100.00
(12)	Emergency lane violation	50.00
	a. Second offense	100.00
	b. Third offense	500.00
(13)	Partial payment parking	50.00
(14)	Other parking violations not listed	15.00

(b) For each parking violation still outstanding seven days past the scheduled court date, a $10.00 penalty charge shall be assessed in addition to the normal fine and applicable court costs.

(Ord. No. 82-486, § 14-224, 12-9-1982; Ord. No. 86-699, 7-8-1987; Ord. No. 87-285, 7-9-1987)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 25-202. Application of article.

The provisions of this article prohibiting the stopping, standing or parking of a vehicle shall apply at all times or at those times specified in this article or as indicated on official signs, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic control device. The provisions of this article imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.

(Code 1982, § 14-139)

Sec. 25-203. Signs and/or markings required.

Whenever by a provision of this article parking is prohibited or restored on any street, section of a street or in any municipal off-street parking facility, the mayor shall have the duty and is empowered to cause to be installed appropriate signs and/or markings on such street or part of the street giving notice. Markings are described but not limited to as follows: stop line markings, crosswalk markings, curb markings, or yellow or white pavement markings on areas of pavement that prohibit parking in the absence of curbs. No such regulations shall be effective unless such signs or markings are in place on any street, section of a street, or off-street municipal parking facility at the time of any alleged offense.

(Code 1982, § 14-140; Ord. No. 88-631, 11-22-1988)

*__Cross references—__Off-street parking and loading requirements, app. A, ch. VII, art. 70; off-street parking and vehicular use area (Pva) landscaping requirements, app. A, ch. VII, art. 71.

State law references—Stopping, standing and parking generally, Code of Ala. 1975, §§ 32-5-152 et seq., 32-5A-136 et seq.; authority to regulate parking, Code of Ala. 1975, § 32-5-1(e).

Sec. 25-204. Stopping, standing or parking prohibited in specified places.

(a) Except when necessary to avoid conflict with other traffic, or in compliance with law or the directions of a police officer or official traffic-control device, no person shall:

(1) Stop, stand or park a vehicle:

a. On the roadway side of any vehicle stopped or parked at the edge or curb of a street;

b. On a sidewalk;

c. Within an intersection;

d. On a crosswalk;

e. Between a safety zone and the adjacent curb or within 30 feet of points on the curb immediately opposite the ends of a safety zone, unless a different length is indicated by signs or markings;

f. Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic;

g. Upon any bridge or other elevated structure, upon a highway or within a highway tunnel or beneath a highway viaduct;

h. On any railroad tracks;

i. At any place where official signs prohibit stopping.

(2) Stand or park a vehicle, whether occupied or not, except momentarily to pick up or discharge a passenger or passengers:

a. In front of a public or private driveway;

b. Within 15 feet of a fire hydrant;

c. Within 20 feet of a crosswalk at an intersection;

d. Within 30 feet upon the approach to any flashing signal, stop sign, yield sign or traffic-control signal located at the side of a roadway;

e. Within 20 feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within 75 feet of said entrance (when properly signposted);

f. At any place where official signs prohibit stopping, standing or parking.

(3) Park a vehicle, whether occupied or not, except temporarily for the purpose of and while actually engaged in loading or unloading merchandise or passengers:

a. Within 50 feet of the nearest rail or railroad crossing;

b. At any place where official signs prohibit stopping, standing or parking.

(b) No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such a distance as is unlawful.

(c) Penalties for violation of this section shall be as provided in section 25-201 of this Code and as may be further provided in Ala. Code § 32-5-312 (1975), as may be amended.
(Ord. No. 10-607, § 1, 8-26-2010)

Sec. 25-205. Violations.

It shall be unlawful for any person to violate or fail to comply with any of the provisions of this article, or to counsel or aid or abet any such violation or failure to comply.
(Code 1982, § 14-141)

Editor's note—Sections 25-205—25-223 were formerly numbered as §§ 25-204—25-222, and were renumbered by Ord. No. 10-607, § 2, adopted Aug. 26, 2010.

Sec. 25-206. Parking not to obstruct traffic.

No person shall park any vehicle upon a street, other than an alley, in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic.
(Code 1982, § 14-142)

Note—See editor's note, § 25-205.

Sec. 25-207. Bus stops.

The director of parking and public transit shall from time to time designate and establish places or stops for the stopping or parking of buses operating within the city, and such stops shall be plainly marked. It shall be unlawful for any person to park any vehicle within the spaces designated as bus stops.
(Code 1982, § 14-143)
Note—See editor's note, § 25-205.

Sec. 25-208. Unauthorized vehicles parking in designated stands.

It shall be unlawful for the operator of any vehicle other than a bus, taxicab or for-hire automobile to stand or park in an officially designated bus, taxicab or for-hire automobile stand; except that the operator of any passenger vehicle may temporarily stop in any such stop or stand for the purpose of and while actually engaged in the loading or unloading of passengers.
(Code 1982, § 14-145)
Note—See editor's note, § 25-205.

Sec. 25-209. Spaces for government vehicles.

The director of parking and public transit is authorized to designate certain on-street and off-street parking spaces for official government-owned law enforcement vehicles, provided that unmarked law enforcement vehicles shall be subject to citations by meter enforcement personnel.
(Code 1982, § 14-146)
Note—See editor's note, § 25-205.

Sec. 25-210. Parking or standing on railroad tracks.

It shall be unlawful for any person to leave standing or cause to be left standing any vehicle, motor or otherwise, upon or within 50 feet of any railroad track, spur railroad track or side railroad track within the city.
(Code 1982, § 14-147)
Note—See editor's note, § 25-205.

Sec. 25-211. Obstructing alleyways prohibited.

It shall be unlawful for any person to park, place, cause to be placed, or leave unattended any automobile, vehicle, structure or obstacle which would prevent the free passage of emergency vehicles or personnel through any alley or alleyway.
(Code 1982, § 14-148)
Note—See editor's note, § 25-205.

Sec. 25-212. Parking vehicles more than 20 feet in length.

Motor vehicles more than 20 feet in length may be parked only on those streets on which parallel parking is allowed. This section shall not apply to any truck parked not longer than 30 minutes for the purpose of loading or unloading merchandise.
(Code 1982, § 14-149)
Note—See editor's note, § 25-205.

Sec. 25-213. Parking on service drive or alley in public housing project.

It shall be unlawful for any person to park or leave standing any vehicle upon or along any service drive or alleyway in any public housing project within the city.
(Code 1982, § 14-150)
Note—See editor's note, § 25-205.

Sec. 25-214. Parking at entrance to hotels, theaters, and bus stations.

It shall be unlawful to park any automobile, motorcycle or other vehicle within 12½ feet on either side of the center of the entrance of any hotel, picture theater, theater or bus station in the city for more than five minutes.
(Code 1982, § 14-151)
Note—See editor's note, § 25-205.

Sec. 25-215. Parallel and angle parking; manner of parking.

Except as otherwise provided in this section, every vehicle stopped or parked upon a roadway where there are adjacent curbs shall be so stopped or parked with the righthand wheels of

such vehicle parallel to and within 18 inches of the righthand curb, and shall be so parked as to leave a space of at least three feet between such vehicle and any other vehicle parked on such street; except where signs are posted requiring bumper-to-bumper parking, vehicles shall park in such a manner so as to be as close as practical to adjacent vehicles. These provisions shall not apply in the following circumstances:

(1) Upon one-way streets, vehicles may be parked with the lefthand wheels adjacent to and within 18 inches of the lefthand curb.

(2) Upon any street which is officially designated and lined for angle parking, vehicles shall be parked at an angle parallel to the painted parking lines and markings, and at least three feet from any other vehicle parked on such street, and not more than 12 inches from the curb.

(Code 1982, § 14-159)

State law reference—Parallel and angle parking, Code of Ala. 1975, § 32-5A-138.

Note—See editor's note, § 25-205.

Sec. 25-216. Parking for certain purposes.

It shall be unlawful for any person engaged in the business of dealing in, selling or repairing automobiles, trucks, motor vehicles or other kinds of vehicles in his possession or under his control to allow them to be parked upon or along any of the streets or alleys of the city except when in actual use by such person.

(Code 1982, § 14-160)

Note—See editor's note, § 25-205.

Sec. 25-217. Limited parking.

(a) It shall be unlawful for any person to park or leave standing any motor vehicle upon a street whenever such conduct has been proscribed by law or traffic control device.

(b) A motor vehicle shall be permitted to stand in a designated pull-off bay for a maximum of 30 minutes for the purpose of loading or unloading passengers or for unloading and delivery or pickup of articles, materials, or merchandise. This shall be called the 30-minute parking zone.

(c) A commercial motor vehicle having the business or company clearly identified by markings visible on the outside of such vehicle shall be permitted to stop or stand in a designated pull-off bay for a period of time not exceeding 30 minutes for the purpose of unloading and delivery or pickup and loading of articles, materials or merchandise.

(Code 1982, § 14-163; Ord. No. 97-291, § 1, 4-10-1997)

Note—See editor's note, § 25-205.

Sec. 25-218. Stopping or standing prohibited during certain hours on certain streets.

When signs are erected on any street or part of a street in each block giving notice, no person shall stop or stand a vehicle on any such street or part of a street in each block so designated between the hours specified by the signs.

(Code 1982, § 14-164; Ord. No. 97-291, § 2, 4-10-1997)

Note—See editor's note, § 25-205.

Sec. 25-219. Loading and unloading trucks.

It shall be unlawful for any person to park, load or unload any truck having a length greater than 22 feet in meter zone 1, between the hours of 8:00 a.m. and 6:00 p.m. except Saturdays, Sundays and holidays; however, where deliveries must be accepted from trucks longer than 22 feet during the business day, the director of parking and public transit is authorized to issue and place meter bags or traffic cones upon application and payment of fees, wherein two or more adjacent metered spaces may be reserved from 8:00 a.m.—12:00 noon, or 1:00 p.m.—4:00 p.m. at the applicable hourly meter rate per metered space reserved.

(Code 1982, § 14-165)

Note—See editor's note, § 25-205.

Sec. 25-220. Street cleaning.

The director of parking and public transit is authorized to prohibit parking on any street

when proper signs are posted giving notification, between the hours of 12:00 midnight and 6:00 a.m. for street cleaning purposes.
(Code 1982, § 14-166)

Note—See editor's note, § 25-205.

Sec. 25-221. Parking for disabled individuals.

(a) For the purposes of this section, the term "disabled individual" means any person having a physical impairment or permanent mental impairment which limits mobility to the extent that the individual would have difficulty safely walking alone a distance of 50 feet or more.

(b) Beginning with the implementation of the staggered system of motor vehicle license plate registration, any person who submits to the judge of probate, license commission or other issuing authority medical proof satisfactory to the commissioner of revenue that he is a disabled individual shall be issued either a distinctive license plate or a decal and a special identification placard displaying the international system of access, thereby designating the driver of the vehicle or the passenger as being a disabled person. The distinctive license plates, decals and placards shall be prepared by the commissioner of revenue and shall be issued in the same manner as motor vehicle license plates.

State law reference—Similar provisions, Code of Ala. 1975, § 32-6-231.

(c) The disabled individual to whom valid distinctive license plates and/or decals or placards are issued shall be allowed to park for unlimited periods in parking zones designated for disabled persons; however, such disabled persons shall pay parking fees the same as any other person. The provisions of this subsection shall not apply to zones where stopping, standing or parking is prohibited to all vehicles, or zones which are reserved for special types of vehicles; nor will these provisions apply where there is a local ordinance prohibiting parking during heavy traffic periods during morning, afternoon or evening rush hours, or where parking would clearly present a traffic hazard. In designated disabled loading zones, disabled persons shall be limited to one-hour parking, as these loading zones are not intended for unlimited parking usage.

State law reference—Similar provisions, Code of Ala. 1975, § 32-6-232.

(d) It shall be unlawful for any person who is not a disabled individual to willfully and falsely represent himself as a disabled person to obtain the distinctive license plate and/or decal or placard or to misuse or abuse the parking privilege protected by this section, or to own a vehicle bearing distinctive license plate and/or decals when not entitled to do so under the provisions of this section.

State law reference—Similar provisions, Code of Ala. 1975, § 32-6-233.

(e) It shall be unlawful for any person to park or allow to be parked any vehicle in any zone designated for "handicap only" or "disabled only" parking, not bearing the distinctive license plate and/or decal or placard. It shall also be unlawful for any person to park or allow to be parked any vehicle or allow the placement of any material or other equipment which would block an access ramp or curb cut.

State law reference—Similar provisions, Code of Ala. 1975, § 32-6-233.1.

(f) Any automobile unlawfully occupying a parking zone designated for disabled or handicapped persons may be towed away at the owner's expense.
(Ord. No. 94-337, §§ 1—6, 5-12-1994)

Note—See editor's note, § 25-205.

Sec. 25-222. Parking in emergency lanes.

(a) As used in this section, the following words and phrases will have the following meanings unless the context clearly indicates a different meaning:

Emergency lane means a part of a public access area which is designed to provide clear and unobstructed access to emergency vehicles, equipment and personnel to and from all 30,000 square feet and above mercantile occupancies adjacent to or served by such public access area. Emergency lanes shall be a minimum of 60 feet in length and 20 feet in width and shall be located in front of or adjacent to each public entrance to such occupancies and structures.

Public access area means any publicly owned property or any privately owned property provided for the general public for the movement or parking of vehicles in connection with a shopping center or publicly owned structures used for assembly or educational purposes.

(b) No parking shall be permitted at any time on any emergency lane, and no parking shall be permitted at any location which would prevent access to any emergency lane by any emergency response equipment.

(c) No person shall stop, let stand or park a vehicle, whether occupied or not, on any emergency lane at any time; and no owner, manager or tenant of any premises shall permit any customer or visitor to stop, let stand or park any unoccupied vehicle on any part of any emergency lane at any time. Notwithstanding the provisions of the first sentence of this subsection, a person may stop a vehicle temporarily in an emergency lane for the limited purpose of allowing passengers on the vehicle to disembark or allowing persons waiting on the vehicle to board; and a person may stop, let stand or park a commercial vehicle temporarily, but in no event for a period of time exceeding one hour, in an emergency lane for the limited purpose of:

(1) Waiting for passengers to return to the vehicle from the public access area;

(2) Performing commercial pickups or deliveries within the public access area which require only a single trip between the public access area and the subject vehicle, or which, for security or other compelling reasons, cannot be completed using standard parking facilities or loading bays;

so long as the commercial vehicle is occupied by a person properly licensed and authorized to operate and move the vehicle at all times during which the limited purposes identified in this sentence are being accomplished; however, no exception provided in this sentence shall apply within any area or zone identified in subsection (c) of this section or excuse noncompliance with or violation of such subsection.

(d) The property owner of any property subject to the emergency lane requirements of this section shall mark each emergency lane with red painted curbs or where curbs are absent, with a red painted six-inch-wide lane line along the entire length of the emergency lane to warn people against blocking the lane. The owner of the area where an emergency lane is located shall also post appropriate signs, in words and dimensions as indicated on exhibit A attached to Ordinance No. 95-429, indicating that the emergency lane is an emergency lane, and indicating that no parking is permitted on the emergency lane. The owner shall erect one such sign for every 50 feet of distance along the curb adjacent to the emergency lane or, where curbs are absent, adjacent to the red painted lane line. Signs shall be posted so that the bottom edge of the sign is not less than 42 inches from the ground or more than seven feet from the ground. Each sign shall be maintained in a good state of repair by the property owner.

(e) No person shall stop, let stand or park a vehicle, whether occupied or not:

(1) Within 15 feet of a fire hydrant or within an area clearly marked with red painted curbs, spanning 30 feet along the curb of the public parking area by every fire hydrant; or

(2) Within any zone, not less than 30 feet in length, designated by official signs denoting "No parking—standpipe or sprinkler system connections," as indicated on exhibit B attached to Ordinance No. 95-429, and further designated with red painted curbs.

The owner of the area or property where a standpipe or sprinkler system connection is located shall post appropriate signs indicating that no parking is permitted in the zone.
(Ord. No. 95-429, §§ 1—5, 6-22-1995; Ord. No. 98-288, 4-7-1998)

State law reference—Parking within 15 feet of fire hydrant, Code of Ala. 1975, § 32-5A-137(a)(2)b.

Note—See editor's note, § 25-205.

Sec. 25-223. Parking on private property.

(a) It shall be unlawful for any person to park or leave or cause to be parked or left any automobile or other motor vehicle on the premises

of another after having been warned not to do so by word of mouth or sign or otherwise, but this section shall not apply to employees of the city in the discharge of their official duties.

(b) The presence of an unattended automobile or other motor vehicle on the premises of one who is not the owner or in control of such automobile or other motor vehicle shall raise a prima facie presumption that the registered owner of the automobile or other motor vehicle parked or left or caused to be parked or left the automobile or other motor vehicle on such premises, and the burden of proof shall be upon the registered owner to show otherwise.

(c) The police department or any member of the police department or a member of the department of parking and public transit is authorized and directed to issue a citation to any respective automobile or any driver of that automobile, that is otherwise violating this section on request of the owner, operator of the premises where the violation is occurring.

(Ord. No. 83-325, §§ 1, 2, 4, 9-22-1983)

Note—See editor's note, § 25-205.

Secs. 25-224—25-240. Reserved.

DIVISION 2. PUBLIC PARKING SYSTEM

Sec. 25-241. Established.

For the purpose of regulating traffic and reducing congestion in the streets, of enhancing the free flow of traffic in and through the city, of improving access to property for the rapid and effective fighting of fires, of providing for the rapid and effective disposition of the police force, and of promoting the health, safety and welfare of the general public, there is established in the city a public parking system consisting of parking upon the public streets and rights-of-way of the city, and also of convenient off-street parking facilities, at grade and in such structures as may be from time to time established by the council. All of the parking facilities established in this division, or that may be established as part of such system, are declared to be necessary and in furtherance of the purposes stated in this division.
(Code 1982, § 14-176)

State law reference—Authority of city to construct and maintain off-street parking facilities, Code of Ala. 1975, §§ 11-47-240 et seq., 11-61-1 et seq.

Sec. 25-242. Central business parking district established.

(a) There is established a central business district for the purpose of regulating on-street and off-street parking. The director of parking and public transit or his designee shall, after due consideration of the volume and nature of parking demands, classify the types of parking, install appropriate meters where required for use by the public in paying to the city established charges, and regulate parking spaces according to maximum time limitation, as he deems appropriate to best serve public demand for parking.

(b) The central business parking district shall be located within the following boundaries:

(1) North boundary, Pratt Avenue.

(2) South boundary, Longwood Avenue.

(3) East boundary, Lincoln Street.

(4) West boundary, Memorial Parkway.
(Code 1982, § 14-177; Ord. No. 96-124, § 1, 4-11-1996)

Sec. 25-243. Permits.

The parking and public transit department may sell monthly permits for no more than ten-hour parking, which shall entitle the person in possession of the permit to park or leave standing a motor vehicle for no more than ten hours at the same location. Each permit shall entitle the holder to park one motor vehicle in the designated off-street parking facility described in section 25-244 for no more than ten hours each day during the month for which it was issued, provided the permit is upon or within the vehicle in a place directed so as to be easily read by enforcement personnel.
(Ord. No. 96-124, § 2, 4-11-1996)

Sec. 25-244. Off-street parking facilities enumerated.

At such time as site acquisition and necessary improvements are made, the following off-street facilities are established as off-street parking facilities of the city:

Facility No.	*General Description of Off-Street Municipal Parking Facilities*
A	Municipal Hall Parking Garage along Fountain Circle across from Municipal Complex—300 Madison Street
B	On Fountain Circle north of Williams Avenue, south of Gates Avenue—318 Fountain Circle
C	Church Street (South side of Fire Station)
D	On the southeast corner of the intersection of Holmes Avenue N.E. and Green Street N.E.—300 Holmes Avenue
E	On the northwest corner of the intersection of Green Street S.E. and Eustis Avenue S.E.—209 Eustis Street

Facility No.	*General Description of Off-Street Municipal Parking Facilities*
H	On the northwest corner of the intersection of Holmes Avenue N.W. and Jefferson Street N.W.—100 Holmes Avenue
K	620 Clinton Avenue across from Downtown Post Office
M	Along the north edge of Big Spring International Park between Monroe Street and Church Street, known as the VBC Parking Garage—100 Church Street
O	On the south side of Clinton Avenue S.W., between Jefferson Street and Washington Street, known as the Central City Parking Garage—116 Clinton Avenue
P	Municipal Justice Complex (815 Wheeler Avenue)
V	601 Clinton Avenue west of Von Braun Center
Z	On the East Side of Church Street behind the Municipal Complex

(Ord. No. 96-124, § 3, 4-11-1996; Ord. No. 05-55, § 1, 2-10-2005)

Sec. 25-245. Fees and rates for off-street parking facilities.

(a) [The following fees and rates are required for off-street parking facilities:]

Facility	*Maximum First Hour*	*Maximum Each Succeeding Hour*	*Maximum per Vehicle per Day*	*Monthly 6:00 a.m. to 6:00 p.m. Monday—Friday*	*Events*	*After 6:00 p.m. Garage O Only*
A (Metered Portion Only)	$0.50	$0.50	NA	NA	5.00	NA
A (300 Madison Street)	0.50	0.50	4.00	56.00	5.00	NA
B (318 Fountain Circle)	0.50	0.50	4.00	56.00	5.00	NA
C (Church Street (South side of Fire Station))				56.00	5.00	NA
D (300 Holmes Avenue)	0.50	0.50	4.00	56.00	5.00	NA
E (209 Eustis Street)	0.50	0.50	4.00	56.00	5.00	NA
H (100 Holmes Avenue)	0.50	0.50	4.00	56.00	5.00	NA
K (620 Clinton Avenue)	0.50	0.50	4.00	56.00	5.00	NA
M (100 Church Street)	0.50	0.50	4.00	56.00	5.00	NA
O (116 Clinton Avenue)	0.50	0.50	4.00	56.00	5.00	2.00
P (815 Wheeler Avenue)				56.00	5.00	NA
V (601 Clinton Avenue)	NA	NA	NA	56.00	5.00	NA

Facility	*Maximum First Hour*	*Maximum Each Succeeding Hour*	*Maximum per Vehicle per Day*	*Monthly 6:00 a.m. to 6:00 p.m. Monday—Friday*	*Events*	*After 6:00 p.m. Garage O Only*
Z Designated Municipal Officials Only (East side of Church Street behind the Municipal Complex)	NA	NA	NA	56.00	5.00	NA

(b) The director of parking and public transit, or his designee, may charge up to an additional $1.00 per space for event parking when the size and scope of the event requires extensive support services such as special revenue collection or transit activities.

(c) Effective October 1, 2006, monthly parking rates will increase to $48.00 per month per space.

(d) Effective October 1, 2008, monthly parking rates will increase to $52.00 per month per space.

(e) Effective October 1, 2010, monthly parking rates will increase to $56.00 per month per space.

(f) Any new business that locates in the central business district (as defined in section 25-242), or any existing business that relocates to the central business district will be eligible to enroll in the downtown business incentive program during the period from February 9, 2017 through February 8, 2018. Any business located within the central business district as of February 10, 2017 shall not be eligible for the program. Enrollment in the program shall entitle qualified businesses to receive the following special parking rates at city parking facilities listed in section 25-244:

Any business that has between five and ten full-time employees shall be eligible to purchase monthly parking at 50 percent of the monthly rate established by this section 25-245 for a period of one year from its enrollment in the downtown business incentive program.

Any business that has between 11 and 20 full-time employees shall be eligible to purchase monthly parking at 50 percent of the then-existing monthly rate for a period of two years from its enrollment in the downtown business incentive program.

Any business that has 21 or more full-time employees shall be eligible to purchase monthly parking at 50 percent of the then-existing monthly rate for a period of three years from its enrollment in the downtown business incentive program.

The authority to determine eligibility for the program shall rest with the director of parking and public transit, whose decision shall be final. The director shall designate which city parking facilities will be utilized for the program and shall be authorized to discontinue the use of certain facilities or to terminate the enrollment period prior to February 9, 2018 if parking demand exceeds availability.
(Ord. No. 96-124, § 4, 4-11-1996; Ord. No. 97-291, § 4, 4-10-1997; Ord. No. 05-55, § 2, 2-10-2005; Ord. No. 07-354, § 2, 4-26-2007; Ord. No. 10-739, 10-14-2010; Ord. No. 13-654, 9-26-2013; Ord. No. 17-045, 2-9-2017)

Sec. 25-246. On-street meter rates.

(a) Parking meter rates at designated meter space parking facilities shall be established by the director of parking and public transit up to a maximum rate of $0.50 per hour.

(b) All on-street parking shall be free to the public after 5:00 p.m. on each day, except for parking at meters located on the west side of

Church Street between Clinton Avenue and Williams Avenue, which shall be enforced from 8:00 a.m. to 12:00 midnight seven days per week.
(Ord. No. 96-124, § 5, 4-11-1996; Ord. No. 97-291, § 5, 4-10-1997)

Sec. 25-247. Convention groups; rate modification; city-owned parking facilities.

Notwithstanding the fees and rates established for city-owned parking facilities, the Huntsville-Madison County Convention and Visitors Bureau and the Von Braun Center shall be authorized to negotiate with the director of parking and public transit or his designee parking discounts with large convention groups. The director of parking and public transit or his designee will also have the authority to negotiate parking agreements with other agencies that want to use city parking facilities for special events; however, these events must not impact parking for VBC events that are already scheduled.
(Ord. No. 96-124, § 6, 4-11-1996; Ord. No. 97-291, § 6, 4-10-1997)

Sec. 25-248. Buses.

Bus parking shall be provided as required at on-street and off-street parking facilities as determined by the director of parking and public transit, or his designee, at a charge of $10.00 per bus.
(Ord. No. 96-124, § 7, 4-11-1996; Ord. No. 05-55, § 3, 2-10-2005)

Sec. 25-249. Control devices in off-street parking facilities; duty of director of parking and public transit.

The director of parking and public transit shall cause to be installed in each off-street parking facility of the city appropriate control devices, including but not limited to meters, gates, coin or token receptacles and gates actuated by magnetic cards, so that appropriate means will be available at all times whereby members of the public parking in such facilities may pay the established charge for parking in such facility or otherwise verify prior to leaving such facility that the established charge for the parking service has been paid.
(Code 1982, § 14-184; Ord. No. 96-124, § 8, 4-11-1996)

Sec. 25-250. Compliance.

It shall be unlawful for any person to remove a vehicle parked in any off-street parking facility of the city without first paying the established charge, either by paying the charge to the designated attendant, by depositing the proper amount of money in coin or token receptacles, by displaying upon the vehicle an appropriate permit indicating that the charge has been prepaid or by the use of a magnetic card device for which the charge has been prepaid. In all cases where a permit or magnetic card has been acquired as evidence that the permittee has paid the established charge to the city, it shall be unlawful for any person to park any motor vehicle or exit any city parking facility while the permit has expired or is delinquent according to the established rules of the department of parking and public transit for its issuance.
(Ord. No. 96-124, § 9, 4-11-1996)

Sec. 25-251. Use of parking facilities restricted.

(a) It shall be unlawful for the operator of a vehicle to park or leave standing a vehicle upon a city-owned parking facility for a period longer than 24 hours without first making arrangements in advance with the department of parking and public transit.

(b) It shall be unlawful for any person to park or leave standing in any off-street parking facility of the city using gates for revenue control, or within any multilevel parking structure, any vehicle of 80 inches or more in overall width or 78 inches or more in overall height.
(Ord. No. 96-124, § 10, 4-11-1996)

Secs. 25-252—25-270. Reserved.

DIVISION 3. PARKING METERS

Sec. 25-271. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Operator means and includes every individual who shall operate a vehicle as the owner, or as the agent, employee or permittee of the owner, or is in actual physical control of a vehicle.

Park and *parking* mean the standing of a vehicle, whether occupied or not, upon a street or in an off-street parking facility otherwise than in obedience to traffic regulations, signs or signals or

an involuntary stopping of the vehicle by reason of causes beyond the control of the operator of the vehicle.

Parking meter means and includes any mechanical device or meter not inconsistent with this division placed or erected for the regulation of parking by authority of this division. Each parking meter installed shall indicate by proper legend the legal parking time established by the city and when operated shall at all times indicate the balance of legal parking time, and at the expiration of such period shall indicate illegal or overtime parking.

Parking meter space means any space within a parking meter zone or adjacent to a parking meter in an off-street parking facility and which is duly designated for the parking of a single vehicle by lines painted or adjacent to or adjoining the parking meters.
(Code 1982, § 14-201)

Cross reference—Definitions generally, § 1-2.

Sec. 25-272. Designation of parking spaces.

The director of parking and public transit is directed and authorized to mark off individual parking spaces as directed or authorized by ordinance, such parking spaces to be designated by lines painted or by appropriate signs. At each space so marked off, it shall be unlawful to park any vehicle in such a way that such vehicle shall not be entirely within the limits of the space so designated. It shall be unlawful for any person to park any vehicle in a parking space marked and posted for vehicles of certain designated maximum length or width, having an overall length or width in excess of that posted.
(Code 1982, § 14-202)

Sec. 25-273. Bus stops, taxicab stands.

Nothing in this division shall be construed as prohibiting the director of parking and public transit from providing for bus stops, taxicab stands and other matters of similar nature, including the loading and unloading of trucks, vans or other commercial vehicles.
(Code 1982, § 14-203)

Sec. 25-274. Designation of loading zones.

The director of parking and public transit is authorized to mark off loading zones in the parking meter areas as directed by city ordinance, such loading zones to be designated by painted lines or by appropriate signs. Each space so marked shall be used only for the purpose of loading and unloading.
(Code 1982, § 14-204)

Sec. 25-275. Installation of meters.

In parking meter areas, there shall be installed parking meters immediately adjacent to the parking spaces provided for by city ordinance.
(Code 1982, § 14-205)

Sec. 25-276. Arrangement and maintenance of meters.

The director of parking and public transit shall be responsible for the maintenance of parking meters. Each device or parking meter shall be so set and arranged as to display a signal showing legal parking upon the deposit of the appropriate coins, lawful money of the United States of America, for the period of time prescribed by ordinance. Each device or parking meter shall be so arranged that upon the expiration of the lawful time limit, it will indicate by a proper visible signal that the lawful parking period has expired and in such cases the right of such vehicle to occupy such space shall cease and the operator, owner, possessor or manager shall be subject to the penalties provided in section 1-7.
(Code 1982, § 14-206)

Sec. 25-277. Operation of meters.

(a) Except in a period of emergency determined by an officer of the fire department or police department, or in compliance with the directions of a police officer or traffic control sign or signal, when any vehicle shall be parked in any parking space alongside or next to which a parking meter is located, the operator of such vehicle shall, upon entering such parking meter space, immediately deposit or cause to be deposited in such meter such proper coin of the United States as is required for such parking meter and as is designated by proper directions on the meter, and

as required by the directions on the meter. Failure to deposit such proper coin, when so required, shall constitute a violation of this division. Upon the deposit of such coin, the parking space may be lawfully occupied by such vehicle during the period of time which has been prescribed for the part of the street in which such parking space is located.

(b) Any person placing a vehicle in a parking meter space adjacent to a meter which indicates that unused time has been left in the meter by the previous occupant of the space shall not be required to deposit a coin so long as his occupancy of such space does not exceed the indicated unused parking time. If such vehicle shall remain parked in any such parking space beyond the parking time limit set for such parking space, and if the meter shall indicate such illegal parking, such vehicle shall be considered as parking overtime and beyond the period of legal parking time; and such parking shall be deemed a violation of this division.
(Code 1982, § 14-207)

Sec. 25-278. Hours of operation of parking facilities.

The hours of operation and enforcement of parking facilities shall be as follows:

(1) Downtown metered on-street Zone 1—8:00 a.m.—6:00 p.m., except Saturdays, Sundays and holidays.

(2) Huntsville Public Library and City Hall Zone—consisting of Lot C and on-street meters along Fountain Circle—8:00 a.m.—9:00 p.m. except Sundays and holidays.

(3) Von Braun Center on-street meter zone along Monroe Street, Pollard Street and Gallatin Street—8:00 a.m. to 12:00 midnight, seven days a week.

(4) Off-street parking facilities—24 hours daily, seven days a week, unless otherwise posted or marked.
(Code 1982, § 14-208)

Sec. 25-279. Vehicles to be parked in marked spaces.

It shall be unlawful for any person to park any vehicle across any line or marking or a parking meter space or in such position that the vehicle shall not be entirely within the area designated by such lines or markings, provided that trucks longer than 22 feet may park parallel adjacent to two or more meters subject to the provisions of section 25-290.
(Code 1982, § 14-209)

Sec. 25-280. Collection and disposition of coins.

It shall be the duty of the director of parking and public transit to make regular collections of the money deposited in parking meters, and it shall be his duty to remove from the parking meters the coins so deposited in such meters and to deliver such coins to the city clerk-treasurer, who shall deposit such funds as required by law.
(Code 1982, § 14-210)

Sec. 25-281. Overtime parking; deposit of coin to extend time.

It shall be unlawful for any person to cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked overtime, or beyond the period of legal parking time established as described on the parking meter; or for any person, whether or not he is the owner or operator, to deposit in any parking meter any coin for the purpose of parking beyond the maximum legal parking time for the particular parking meter zone.
(Code 1982, § 14-211)

Sec. 25-282. Parking adjacent to expired meter.

It shall be unlawful for any person to permit any vehicle to remain or be placed in any parking space adjacent to any parking meter while such meter is displaying a signal indicating that the vehicle occupying such parking space has already been parked beyond the period prescribed for such parking space.
(Code 1982, § 14-212)

Sec. 25-283. Occupying vehicle overnight.

It shall be unlawful for any person to park overnight and occupy a recreational vehicle, motor home, housecar, travel trailer, pickup camper, van or other motor vehicle having sleeping quarters on the streets of the city or in a city municipal parking facility unless specifically permitted and posted.
(Code 1982, § 14-213)

Sec. 25-284. Covering meters.

It shall be unlawful for any person, other than the director of parking and public transit or his representative, to place or cause to be placed any meter bag or other device with the intent of covering a parking meter or reserving a parking space on the streets of the city.
(Code 1982, § 14-214)

Sec. 25-285. Report of parking violations; general duties.

It shall be the duty of the chief of police and his assistants and the designated enforcement officers of the department of parking and public transit to check the parking spaces and meters and report the violation of this division as provided in sections 25-286—25-288.
(Code 1982, § 14-217)

Sec. 25-286. Parking violations information reported; notice.

The officers designated in section 25-285 shall:

(1) Keep an account of and report the number of each parking meter which indicates that the vehicle occupying the parking space adjacent to such parking meter is or has been parked in violation of any of the provisions of this division, the date and hour of such violation, the make and the state license number of such vehicle, and any other facts a knowledge of which is necessary to a thorough understanding of the circumstances attending such violation.

(2) Attach to such vehicle a notice stating that it has been parked in violation of this division and instructing the owner or operator to report at a certain designated time and place to the municipal court in regard to such violation. Each such owner or operator may, within five days after such notice is attached to such vehicle, pay the sum of $10.00 to the clerk of the municipal court as a penalty for and in full satisfaction of a parking meter violation.

(Code 1982, § 14-218)

Sec. 25-287. Failure to pay fine for violation.

If a violator does not appear in response to the notice affixed to a motor vehicle within a period of five days, the municipal court shall send to the registered owner of the motor vehicle to which the notice was affixed a letter informing him of the violation and warning him that if such letter is disregarded for a period of five days, a complaint will be filed and warrant of arrest issued.
(Code 1982, § 14-219)

Sec. 25-288. Failure to respond to parking violation notices.

If a violator does not appear in response to the notice affixed to a motor vehicle or to a letter sent to the owner of the motor vehicle by the municipal court within ten days after such notice was attached to such vehicle or mailed to him respectively, he shall be guilty of a misdemeanor regardless of the disposition of the case for parking meter violations.
(Code 1982, § 14-220)

Sec. 25-289. Meter bags for special church events.

The director of parking and public transit is authorized to install meter bags at no cost to religious institutions for their abutting metered spaces only, to reserve such spaces for weddings, funerals, revivals and other special major events where quantities of parking spaces are required.
(Code 1982, § 14-221)

Sec. 25-290. Meter bags for contractors.

The director of parking and public transit is authorized to install meter bags permitting con-

tractor vehicles and equipment to park in meter zones 1 and 10 for the construction, renovation or repairs to business or residential establishments. Daily charges for the meter bags shall be the equivalent of eight hours' purchase of meter time.
(Code 1982, § 14-222)

Secs. 25-291—25-320. Reserved.

ARTICLE VI. SCHOOL TRAFFIC

Sec. 25-321. Traffic study.

The city engineer is authorized to make or cause to be made within the city studies of traffic problems within the city, as they pertain to both vehicular and pedestrian traffic within the vicinity of public and private schools. Such study shall include the areas within the city within the immediate vicinity of public and private schools and in addition shall include other areas over and along the public streets of the city where children customarily cross public streets on the way to and from school.
(Code 1982, § 14-327)

Sec. 25-322. School crossings; signs; speed limit.

The city engineer, after having conducted a study of traffic conditions as required in section 25-321, shall cause to be designated and marked off with signs and appropriate markings on the surface of the street certain areas along and upon the public streets of the city which shall be designated and known as school crossings. From and after such time as signs as provided in section 25-323 shall be erected to warn the traveling public, it shall be unlawful to drive a motor vehicle over, along or through a school crossing at a rate of speed greater than 25 miles per hour or such other lesser speed which shall have been determined to be the maximum rate of speed allowable by such a traffic study provided for in section 25-321 after such lesser speed limit as determined by the study shall be approved by the mayor. The city shall designate, by appropriate markings upon the signs, the hours of the day during which the special regulations shall be in effect and the maximum speed limit allowable.
(Code 1982, § 14-328)

Sec. 25-323. Signs.

In carrying out the authority of sections 25-321 and 25-322, the city engineer or other person designated to erect the signs required under these sections shall designate school crossings with traditional signs and markings in common ordinary use for such purpose, or by use of any other sign or device approved by the Manual of Uniform Traffic Control Devices as published by the United States Bureau of Public Roads.
(Code 1982, § 14-329)

Sec. 25-324. Direction of traffic.

(a) *Traffic survey; required purpose.* The city engineer is authorized, empowered and directed to make or cause to be made surveys pertaining to traffic conditions in the vicinity of schools within the city. These surveys shall particularly pertain to the direction of traffic within the vicinity of schools to the end that traffic over and along public streets in the vicinity of schools shall be required to move in a harmonious and safe manner.

(b) *Designation of one-way streets.* The city engineer is empowered to determine as a result of such surveys of traffic over and along the public streets of the city within the vicinity of schools that vehicular traffic shall be required to proceed one way only over and along certain portions of certain streets.

(c) *Signs; required, effect of erection.* In exercising the power granted in this section, the city engineer may provide that traffic movements over and along portions of designated public streets will be required to move one way only during certain hours; however, the city engineer or other designated person shall place or cause to be placed portable or permanent signs at the entrances to such areas to warn the traveling public of such regulations and restrictions upon the movement of traffic.
(Code 1982, § 14-330)

Sec. 25-325. Parking areas; designation.

The board of education is authorized and empowered to determine areas on school property to be used for the parking of automobiles and other motor vehicles and to post appropriate signs and markings to warn the public of such regulation. In exercising this authority, the board of education may designate certain areas on school property where only teachers and employees may park their vehicles, certain areas for students and certain areas for visitors, such regulations to be posted by appropriate signs and markings to warn the public.
(Code 1982, § 14-331)

Sec. 25-326. Obedience to parking area signs.

From and after such time as signs are in place, which signs shall be so designated and worded as to warn the public of parking regulations, it shall be unlawful for any person to park or leave standing an automobile or motor vehicle on school property within the city except in conformity with such regulations.
(Code 1982, § 14-332)

Sec. 25-327. Driving on school grounds.

It shall be unlawful for any person to drive any motor vehicle, including motor-driven cycles, upon the grounds of any public school except in the driveways, access roads or other public places set aside by the board of education for such purpose, except at the express direction or permission of appropriate school authorities.
(Code 1982, § 14-333)

Sec. 25-328. Turning movements at exits from school grounds.

(a) *Regulation.* The director of parking and public transit is authorized and empowered to control turning movements of automobiles and motor vehicles at all exits from public school grounds to the public streets of the city.

(b) *Signs required.* The director of parking and public transit shall place or cause to be placed appropriate signs along the public streets at such exits from public schools as he deems necessary and desirable for the safety of the traveling public, which signs shall warn the traveling public of the restrictions upon turning movements. These signs shall read "No Right Turn," "No Left Turn" or "No Turn" as the director of parking and public transit may from time to time determine.
(Code 1982, § 14-334(a), (b))

Secs. 25-329—25-360. Reserved.

ARTICLE VII. VEHICLE EQUIPMENT AND CONDITION*

DIVISION 1. GENERALLY

Sec. 25-361. Condition of brakes.

The chief of police, or any police officer, is authorized to require an inspection of the brakes of any motor-driven vehicle and to disapprove any brakes which he finds are not adequate. All such brakes shall be maintained in good working order.
(Code 1982, § 14-251(b))

State law reference—Brakes, Code of Ala. 1975, § 32-5-212.

Sec. 25-362. Mufflers; prevention of noise.

Every motor vehicle shall at all times be equipped with a muffler in good working order.
(Code 1982, § 14-255)

State law reference—Mufflers, Code of Ala. 1975, § 32-5-216.

Secs. 25-363—25-380. Reserved.

DIVISION 2. VEHICLES SCATTERING LOAD†

Sec. 25-381. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Construction and demolition materials means lumber, roofing and sheathing, scraps, dirt, stone,

*__State law reference—__*Vehicle equipment, Code of Ala. 1975, § 32-5-210 et seq.

†__State law references—__Vehicles spilling loads, Code of Ala. 1975, § 32-5-76; littering, Code of Ala. 1975, §§ 13A-7-29, 32-5A-60; securing vehicle loads, Code of Ala. 1975, § 32-5-75.

brick, ceramic, rubble, broken concrete, plaster, conduit, pipe, wire, insulation, carpet or carpet padding, gutters, sheetrock, siding, HVAC, or other similar material.

Debris means the remains of any material broken down and tracked onto any highway by any vehicle, including but not limited to dirt, gravel, mud, rocks, brush and any other loose material.

Garbage means putrescible animal and vegetable wastes resulting from the handling, storage, preparation, cooking, serving and consumption of food, including wastes from markets, storage facilities, or the handling and sale of produce and other food products.

Litter means all solid waste that can be or is subject to being blown or carried from place to place by the elements, including but not limited to cigarette butts, rubbish, refuse, waste material, garbage, dead animals or fowl, offal, paper, glass, cans, bottles, trash, scrap metal, debris and any foreign substance of whatever kind and description, and whether or not it is of value.

Load means any material put in, on or drawn by any vehicle for transport, including but not limited to garbage, litter, trash, rubbish, refuse, loose material, debris, process and fill materials, construction and demolition materials, yard waste, and any foreign substance of whatever kind and description, whether putrescible or nonputrescible, and whether or not it is of value. Loads shall not include people.

Loose material means any material that is hauled on, in or by any vehicle that could spill, drop, sift, leak, blow or otherwise escape the vehicle, but not limited to garbage, litter, trash, rubbish, refuse, loose material, debris, process and fill materials, construction and demolition materials, yard waste, and any foreign substance of whatever kind and description, whether putrescible or nonputrescible, and whether or not it is of value.

Process and fill materials means all materials used for fill or that are the result of a specific process. This term includes but is not limited to rock, gravel (any aggregate), sand, dirt, asphalt, pug mix, brick, cinder blocks, cement, concrete, tar, petroleum products, liquid and similar materials.

Refuse means all solid or semisolid waste resulting from industrial processes and manufacturing operations, such as food processing wastes, boiler and house cinders, wood, plastic, metal scraps and shavings, byproducts accumulated as a result of treatment of liquid waste, etc.; putrescible and nonputrescible animal and vegetable waste from the handling, storage and sale of produce and meats; street sweepings, dirt, leaves, catchbasin dirt and contents of litter receptacles. This term includes but is not limited to garbage, rubbish, ashes, street cleanings, dead animals or fowl, offal, abandoned motor vehicles, and solid market or industrial wastes.

Rubbish means nonputrescible solid wastes consisting of both combustible and noncombustible wastes, including but not limited to paper, cardboard, rags, cartons, wood, boxes, excelsior, cloth, furniture, bedding, leather, rubber, plastics, yard trimmings, leaves, glass, crockery, metals, metal cans, metal foils, metal furniture, mineral refuse and similar materials.

Special vehicle means any vehicle specially manufactured to transport or draw a particular type of load which is used solely in strict accordance with the purpose for which the special vehicle was manufactured, and, in order to accomplish this purpose, is designed without solid sides or a tailgate, or so that the load will extend above a point four inches below the top of the sides of the special vehicle, or so that a tarpaulin or confinement system cannot be rigged or the load covered, secured or sealed while still allowing the special vehicle to accomplish its purpose. Exceptions in this article related to special vehicles shall be narrowly construed so that a vehicle qualifying as a special vehicle shall be exempt only from those requirements of this article which are inherent in the design and purpose of the special vehicle, as manufactured, but not from any other requirements of this article which are not inherent in the design and purpose of the special vehicle, as manufactured.

Tarpaulin or confinement system means a solid or semisolid cover or system placed and secured

over open-topped vehicles to secure loads and of sufficient and appropriate size, structure and strength to prevent the dispersal of loads and loose material from the vehicle. A tarpaulin or confinement system may be constructed from any suitable material, including but not limited to canvas, polyethylene, rubberized cloth, netting, ropes, straps, chains, cables, and racks with a restraining or enclosing system.

Trash means any nonputrescible solid wastes, including but not limited to yard clippings, leaves, wood, compost, tree limbs, tree trunks, furniture, bedding, appliances, paper, cardboard, plastics, wrappings, cans, tires and similar materials.

Vehicle means any device in, upon or by which any person or property is or may be transported or drawn upon the highway, except devices moved by human power or used exclusively upon stationary rails or tracks. This term includes but is not limited to trucks, trailers and automobiles. This term includes special vehicles unless specifically denoted otherwise.

Yard waste means grass, leaves, yard trimmings, shrubbery clippings, trees, branches, palm fronds and all other miscellaneous vegetation.
(Ord. No. 97-91, § 2, 2-27-1997)

Cross reference—Definitions generally, § 1-2.

Sec. 25-382. Penalties.

Any person who violates or fails or refuses to obey or comply with any provision of this article shall upon conviction be punished, in addition to such other punishment as may be provided by the court, by minimum fines and penalties, for a first conviction of $100.00 or by imprisonment for not more than ten days; for conviction of a second offense committed within one year after the date of the first offense, by a fine of $200.00 or by imprisonment for not more than 30 days or by both such fine and imprisonment; for conviction of a third or subsequent offense committed within one year after the date of the first offense, by a fine of $500.00 or by imprisonment for not more than three months or by both such fine and imprisonment.
(Ord. No. 97-91, § 12, 2-27-1997)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

Sec. 25-383. Intent.

The spilling of vehicle loads upon the public streets and other public ways of the city is a dangerous and blighting factor which damages, deteriorates and depreciates these public streets and other public ways, as well as adjacent and surrounding property. The city council finds that the spilling of vehicle loads is a public nuisance and recognizes that appropriate measures must be taken to keep public streets, other public ways and adjacent and surrounding property free from debris and other materials spilling from vehicles. Debris and other materials spilling from vehicles pose a danger of physical injury and property damage to motorists, pedestrians and other inhabitants of the city and cause the proliferation of trash, garbage, litter, and other dangerous or unsanitary debris within the city. The prevention of the spilling of vehicle loads and the removal of spillage from streets is necessary to prevent proliferation of this problem. This article is enacted to protect, promote and preserve the safety and welfare of the citizens of the city through the reduction, control and prevention of vehicle spillage within the city. The council does not intend for this article to conflict with any existing state law.
(Ord. No. 97-91, § 1, 2-27-1997)

Sec. 25-384. Presumption.

If an article of litter or loose material bearing a person's name is discovered on any public property not designated for the throwing, dumping or depositing of solid waste, including public streets, sidewalks, gutters, alleys, bodies of water, drainage ditches, storm sewers, sanitary sewers or other property over or with respect to which the city has an easement, or on private property of another without such person's permission, then a rebuttable, prima facie presumption shall arise that the person whose name appears on the article threw, spilled, scattered, dumped, placed, deposited or otherwise caused the article to be thrown, spilled, scattered, blown, dumped, placed or deposited at the place where it was found; however, this presumption, if unrebutted at trial, shall not serve as a basis for a conviction for violation of any provision of chapter 22 in the absence of other evidence of such nature and degree as required by law.
(Ord. No. 97-814, § 1, 11-13-1997)

Sec. 25-385. Exemptions.

The following activities are exempt from the provisions of sections 25-387, 25-389 and 25-392:

(1) The deposit or spreading of sand or other substances, not otherwise expressly prohibited, on the streets of the city for the purpose of street construction, maintenance or repair, or maintenance of utilities or the use of water or other substances in cleaning or maintaining public streets or public ways, when such acts are performed by a city, state or federal governmental entity or a contractor conducting such actions pursuant to a valid contract with a city, state or federal governmental entity. Vehicles carrying loads or loose material covered by this subsection, while in transit to a work site, must satisfy all requirements and prohibitions of this article.

(2) The deposit of sand or other substances, not otherwise expressly prohibited, on the streets of the city for the purpose of increasing traction when such acts are performed by a city, state or federal governmental entity or a contractor conducting such actions pursuant to a valid contract with a city, state or federal governmental entity, or by motorists spreading sand from public receptacles.

(3) Vehicles hauling loads or loose material that have reached their final destination and are preparing to unload. Vehicles carrying loads or loose material covered by this subsection, while in transit to their final destination, must satisfy all requirements and prohibitions of this article.

(Ord. No. 97-91, § 10, 2-27-1997)

Sec. 25-386. Enforcement.

The provisions of this article shall be enforced by the police department. Any sworn officer of the police department is empowered to issue citations to appear in municipal court to answer charges for violation of any provision of this article.
(Ord. No. 97-91, § 11, 2-27-1997)

Sec. 25-387. Spilling vehicle loads prohibited.

It shall be unlawful for any person to drive, operate or permit to be operated any vehicle upon the public streets or other public ways of the city when such vehicle is so constructed, maintained or loaded that the vehicle's load or loose material is permitted to blow, spill, drop, bounce, fall, waste or otherwise escape from such vehicle upon the public streets or other public ways or adjacent or surrounding property.
(Ord. No. 97-91, § 3, 2-27-1997)

State law reference—Vehicles scattering loads, Code of Ala. 1975, § 32-5-76.

Sec. 25-388. Solid sides, tailgate and solid top or tarpaulin or confinement system required with exception for special vehicles.

It shall be unlawful for any person to haul a load or loose material unless the vehicle has solid sides and a tailgate, and is further equipped with a solid top or so rigged that a tarpaulin or confinement system can be spread or secured tightly over the top of such vehicle and is further equipped with a tarpaulin or confinement system. Any one or more of the requirements imposed by this section shall not apply to a special vehicle. Each vehicle shall have signs painted on both doors or, if the vehicle does not have doors, then on both sides of the vehicle indicating the correct name of the hauler and his telephone number.
(Ord. No. 97-91, § 4, 2-27-1997)

Sec. 25-389. Covering, securing, or sealing of loads required.

It shall be unlawful for any person to haul a load or loose material unless the vehicle is covered, secured or sealed to the extent that there will be no loss or spillage during haulage to cause littering of streets or highways or cause a nuisance or hazard to the public health. The requirement imposed by this section shall not apply to a special vehicle.
(Ord. No. 97-91, § 5, 2-27-1997)

Sec. 25-390. Securing of boat loads required.

It shall be unlawful for any person to haul a boat upon the public streets or other public ways

of the city unless all food, coolers, trash, life jackets, vests, skis, ropes, fishing gear, other equipment and loose material are stored and secured to prevent these items from blowing, spilling, dropping, bouncing, falling, wasting or otherwise escaping onto public streets or other public ways or adjacent and surrounding property.
(Ord. No. 97-91, § 6, 2-27-1997)

State law reference—Securing of loads, Code of Ala. 1975, § 32-5-75.

Sec. 25-391. Maximum load height imposed.

It shall be unlawful for any person to haul a load or loose material in a vehicle which does not have a solid top unless the load or loose material remains at least four inches below the top of the sides of such vehicle as measured at the front, back and side walls of the vehicle. The use of a tarpaulin or confining system on a vehicle shall not excuse any person from compliance with the provisions of this section. The requirement imposed by this section shall not apply to a special vehicle.
(Ord. No. 97-91, § 7, 2-27-1997)

Sec. 25-392. Tracking debris onto public streets or other public ways prohibited.

It shall be unlawful for any person to drive, operate or permit to be operated any vehicle upon the public streets or other public ways of the city unless the vehicle is free of debris and trash that could be tracked onto the public streets or other public ways of the city in such a manner as to:

(1) Cause a safety hazard;

(2) Create rough driving conditions;

(3) Impede the flow of water in gutters or along streets or that would tend to clog drains, ditches, or sewers;

(4) Create a nuisance from dust generated by driving over debris and trash which has been tracked onto the highway; or

(5) Create a likelihood of gravel, stone, other debris or trash being thrown into the windshield of other vehicles.

The requirements of this section shall not apply to the tracking of debris onto public streets and other public ways of the city if the public streets and public ways are part of a construction or maintenance work site.
(Ord. No. 97-91, § 8, 2-27-1997)

Sec. 25-393. Clearing of streets by persons responsible for spills or tracking.

Any person operating or permitting to be operated a vehicle or hauling a boat in violation of this article shall immediately cause the public street or other public way or surrounding and adjacent property to be cleared of spilled or tracked material so long as the person does not endanger himself or any other person. If traffic or other conditions are such that it would not be safe to remove the spilled or tracked material, the person responsible for the spilled or tracked material shall immediately notify the police department and request assistance. The person responsible for spilled or tracked material shall bear the costs involved in the containment and removal of the spilled or tracked material.
(Ord. No. 97-91, § 9, 2-27-1997)

Cross reference—Streets, sidewalks and other public places, ch. 23.

Secs. 25-394—25-420. Reserved.

ARTICLE VIII. BICYCLES*

Sec. 25-421. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bikeway means any facility that explicitly provides for bicycle travel. There are three classes of bikeways:

(1) *Bikepath.* A bikepath is a completely separated right-of-way designated for the exclusive use of bicycles.

*__State law reference—__*Bicycles and play vehicles, Code of Ala. 1975, § 32-5A-260 et seq.

(2) *Bikelane.* A bikelane is a restricted right-of-way designated for the semiexclusive use of bicycles, usually on the street alignment.

(3) *Bikeroute.* A bikeroute is a shared right-of-way designated as a bikeway by signs placed on vertical posts or stencilled on the pavement. Right-of-way may be shared with either or both motor vehicles and pedestrians.

(Code 1982, § 14-291)

Cross reference—Definitions generally, § 1-2.

Sec. 25-422. Rider responsibility.

Every person riding a bicycle upon the streets of this city shall be granted all the rights and shall be subject to all the duties applicable to the driver of a motor vehicle by the laws of this state declaring rules of the road applicable to vehicles or by the traffic ordinances of this city applicable to the driver of a vehicle, except as to special regulations in this article and except as to those provisions of law and ordinances which by their very nature can have no application.

(Code 1982, § 14-300(a))

State law reference—Similar provisions, Code of Ala. 1975, § 32-5A-260.

Sec. 25-423. Condition.

The rider of a bicycle shall be responsible for maintaining his bicycle in a safe mechanical condition.

(Code 1982, § 14-300(b))

Sec. 25-424. Towing.

A bicycle operator shall not tow any vehicle or person except that bicycle trailers properly attached to the bicycle which allow for the firm control and braking may be used.

(Code 1982, § 14-302)

State law reference—Clinging to vehicles, Code of Ala. 1975, § 32-5A-262.

Sec. 25-425. Riding on sidewalks.

Bicycles and tricycles shall not be ridden on the sidewalks of this city unless such sidewalk has been designated as a part of a bikeway.

(Code 1982, § 14-306)

Cross reference—Streets, sidewalks and other public places, ch. 23.

Sec. 25-426. Trick riding.

A person riding a bicycle shall not weave in and out of traffic or ride in an irregular or reckless manner such as zigzagging, stunting or otherwise ride with disregard for his own safety or the safety of others. It shall be unlawful for any person to ride a bicycle without having at least one hand upon the handlebars.

(Code 1982, § 14-308)

Sec. 25-427. Parking.

The operator shall not park his bicycle upon a sidewalk in such a manner as to obstruct pedestrian traffic. Bicycles shall not be parked upon the streets in spaces designated for the use of a motor vehicle.

(Code 1982, § 14-309)

Sec. 25-428. Warning for safe operation.

The operator shall give an audible warning whenever necessary to ensure the safe operation of the bicycle; however, the use of a siren or whistle is prohibited.

(Code 1982, § 14-313)

Sec. 25-429. Bicycle alterations.

No bicycle shall be operated upon a street with handlebars so raised that the hands of the operator are above his shoulders while gripping them. Any alteration to extend the fork of a bicycle except by a commercially manufactured fork is prohibited.

(Code 1982, § 14-314)

Secs. 25-430—25-460. Reserved.

ARTICLE IX. VISUAL OBSTRUCTIONS

Sec. 25-461. Enforcement.

The provisions of this article shall be enforced by the city engineer. When the city engineer shall find that any provision of this article is being violated, he shall issue written notification to the person owning, renting or leasing or otherwise in possession of the real property upon which the violation exists, of such violation, indicating the nature of the violation and the necessary action

required to correct the violation. If the violation is not removed or abated within 14 days from the written notification, the city engineer may issue a citation to the person responsible for the violation, directing him to appear in the municipal court at a time and on a date stated in the citation to answer to charges of violations of this article, which charges shall be stated in the citation. It shall be unlawful and a misdemeanor for any person to fail to appear in municipal court at the time and place stated in a citation issued by the city engineer pursuant to this article.
(Code 1982, § 20-46)

Sec. 25-462. Street intersections; visibility area delineated.

(a) It shall be a misdemeanor for any person owning, renting, leasing or otherwise in possession of real property at intersecting streets to install, set out or maintain or allow the installation, setting out or maintenance of any sign, hedge, fence, shrubbery, natural growth or other obstruction to the view, whether movable or stationary, higher than 30 inches (76.2 centimeters) above the level of the adjacent intersection.

(b) The obstruction shall not be placed in that triangular area between the property line and a diagonal line joining points on the property line, 30 feet (9.1 meters) from the point of their intersection.

(c) In the case of rounded property corners, that triangular area shall be between the property lines extended and a diagonal line joining points on the property lines, 30 feet (9.1 meters) from the point of their intersection.

(d) In both subsections (b) and (c) of this section, such area within the triangle that encroaches within the interior of the setback lines applicable to any lot or parcel of real property by and through the zoning ordinances of this city as fully set forth in this Code shall be exempted from the application of this section and shall not be deemed a part of the visibility area.

(e) Subsections (b), (c) and (d) of this section shall also apply to the intersection of a public street right-of-way and a railroad right-of-way.
(Code 1982, § 20-47)

Sec. 25-463. Driveways; visibility area delineated.

It shall be a misdemeanor for any person owning, renting, leasing or otherwise in possession of real property to install, set out or maintain or allow the installation, setting out or maintenance of any sign, hedge, fence, shrubbery, natural growth or other obstruction to the view, whether movable or stationary, higher than 30 inches (76.2 centimeters) above the level of the adjacent roadway on any lot where a private drive enters a street within the triangular area formed by the street property line, the private drive-edge line and a line connecting them at ten feet (three meters) from their intersection.
(Code 1982, § 20-48)

Sec. 25-464. Outside the triangular area.

It shall be a misdemeanor for any person owning, renting, leasing or otherwise in possession of real property to install, set out or maintain or to allow the installation, setting out or maintenance of any sign, hedge, fence, shrubbery, natural growth or other obstruction to the view, whether movable or stationary, but outside the triangular area as defined in sections 25-462 and 25-463, if the city engineer shall determine, after notice and hearing, that maintenance of such obstruction is, because of the peculiar topography at or near the intersection, an actual hazard, and is being maintained outside the setback lines applicable to the lot or parcel of real property upon which it is situated under the applicable zoning ordinance or regulations.
(Code 1982, § 20-49)

Sec. 25-465. Exceptions.

Sections 25-462 and 25-463 shall not apply to small trees that are not more than 12 inches (30.5 centimeters) in diameter (trimmed to the trunk), that are at least 15 feet above the level of the intersection and that are planted so as to leave a clear and unobstructed crossview. Sections 25-462 and 25-463 also shall not apply to fire hydrants; public utility poles; street markers; traffic control devices; existing permanent buildings; and signs

mounted 15 feet or more above the ground the supports of which do not constitute an obstruction as defined in sections 25-462 and 25-463.
(Code 1982, § 20-50)

Sec. 25-466. Existing obstructions.

Except as provided in this article, no obstruction to cross-visibility shall be excepted from the application of this article because of its being in existence at the time of the adoption of this article.
(Code 1982, § 20-51)

Chapter 26

UTILITIES*

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*__Cross references—__Administration, ch. 2; electric utility board, § 2-1501 et seq.; gas utility board, § 2-1521 et seq.; waterworks utility board, § 2-1861 et seq.; buildings and building regulations, ch. 7; electrical code, § 7-211 et seq.; gas code, § 7-241 et seq.; mechanical code, § 7-261 et seq.; plumbing code, § 7-281 et seq.; businesses, ch. 8; cultural facilities and historical preservation, ch. 10; environmental management, ch. 12; stormwater management, § 12-331 et seq.; water wells, § 12-401 et seq.; health and sanitation, ch. 14; sewers, sewage disposal and other wastewater disposal, ch. 21; solid waste, ch. 22; streets, sidewalks and other public places, ch. 23; accommodating utilities on highways, § 23-54; maintenance practices of City of Huntsville and of public utilities for weeds and overgrown grass, § 27-95; subdivision regulations, app. B; requirements for improvements and design of utilities in subdivisions, app. B, § 4.10.

__State law reference—__Public utilities generally, Code of Ala. 1975, § 11-50-1 et seq.

Sec. 26-107. Service not restored while delinquent consumer on premises.
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ARTICLE I. IN GENERAL

Sec. 26-1. Design and Acceptance Manual for Sanitary Sewers.

(a) The Design and Acceptance Manual for Sanitary Sewers, dated March, 2011, City of Huntsville Engineering Department, is hereby adopted.

(b) A copy of such Code shall be kept on file in the office of the city clerk-treasurer and shall be available for all persons desiring to examine the same.
(Ord. No. 11-375A, §§ 1, 5, 7-14-2011)

Editor's note—Ord. No. 11-375A, did not specify manner of inclusion; hence, codification as § 26-1 was at the discretion of the editor.

Sec. 26-2. Design and Acceptance Manual for Wastewater Pump Stations.

(a) The Design and Acceptance Manual for Wastewater Pump Stations, dated March, 2011, City of Huntsville Engineering Department, is hereby adopted.

(b) A copy of such code shall be kept on file in the office of the city clerk-treasurer and shall be available for all persons desiring to examine the same.
(Ord. No. 11-376A, §§ 1, 5, 7-14-2011)

Editor's note—Ord. No. 11-376A, did not specify manner of inclusion; hence, codification as § 26-2 was at the discretion of the editor.

Secs. 26-3—26-30. Reserved.

Sec. 26-31. Right of ingress, egress.

Where a public utility facility has existed over, under, along or across any property in the city limits for a period of seven years or more, or was so placed with the property owners' knowledge and consent, the public utility shall have a right of ingress and egress to such facility of sufficient length, width and depth to operate and maintain safe and reliable service. A facility built, operated or maintained by a public utility for the sole benefit of the property owner shall not be subject to this section.
(Ord. No. 85-165, 3-28-1985)

Sec. 26-32. Endangering utility facilities.

It shall be unlawful to erect or maintain buildings or other structures or objects or to store materials, either temporarily or permanently, in a manner which might endanger the facilities of a public utility of the city or endanger the general public, or prevent access to or maintenance of these facilities by the city or its agents, employees, equipment or vehicles.
(Ord. No. 85-165, 3-28-1985)

Secs. 26-33—26-60. Reserved.

ARTICLE II. ELECTRIC SERVICE

DIVISION 1. GENERALLY

Sec. 26-61. Expenditures for construction or additions.

Pursuant to Act No. 1304 of the 1971 regular session, no expenditure for new construction, additions or replacements to the municipal electric distribution system or the equipment used by the system shall be made by the municipal electric utility board where the total expense is more than $25,000.00 without the prior consent and approval of the city council.
(Code 1982, § 16-29; Ord. No. 98-865, § 16-29, 11-12-1998)

Secs. 26-62—26-80. Reserved.

DIVISION 2. SERVICE REGULATIONS

Sec. 26-81. Scope.

This division is part of all contracts for receiving electric service from the city, and applies to all service received from the city whether the service is based upon contract, agreement, signed application or otherwise.
(Code 1982, § 16-46)

Sec. 26-82. Underground service lines.

Customers desiring underground service lines from the city's overhead system must bear the

incidental excess cost. Specifications and terms for such construction will be furnished by the city on request.
(Code 1982, § 16-47)

Sec. 26-83. Inspections.

Except as provided in section 7-63, the city shall have the right but shall not be obligated to inspect any installation before electricity is introduced or at any later time and reserves the right to reject any wiring or appliances not in accordance with the city's standards; such inspection or failure to inspect or reject shall not render the city liable or responsible for any loss or damage resulting from defects in the installation, wiring or appliances, or from violation of the city's rules, or from accidents which may occur upon the customer's premises.
(Code 1982, § 16-48)

Sec. 26-84. Standards of customer's wiring.

All wiring of the customer must conform to the city's requirements and accepted modern standards, as exemplified by the requirements of the National Electrical Safety Code, International Building Code and National Electrical Code.
(Code 1982, § 16-49; Ord. No. 15-908, 12-17-2015)

Sec. 26-85. Service charges for temporary service.

Customers requiring electric service on a temporary basis may be required by the city to pay all costs for connection and disconnection incidental to the supplying and removing of service. This rule applies to circuses, carnivals, fairs, temporary construction and the like.
(Code 1982, § 16-50)

Sec. 26-86. Application for service.

Each prospective customer desiring electric service may be required to sign the city's standard form of application for service or contract before service is supplied by the city.
(Code 1982, § 16-51)

Sec. 26-87. Deposit.

A cash deposit or suitable guarantee, as approved by the electric utility board, not exceeding twice the highest bill, may be required of any customer or person before electric service is supplied. The electric utility board may enter into an agreement with the gas utility board and the waterworks utility board to establish a combined utility deposit; to establish a minimum deposit for all types of service and to distribute the proceeds from these deposits. Interest may be accumulated on these deposits from October 1, 1973, at a rate as may from time to time be determined by the boards and will be added to the deposit at the time service is terminated. The deposit, plus accumulated interest, may be applied against any unpaid bills of the customer and if any balance remains after such application is made, such balance shall be refunded to the customer.
(Code 1982, § 16-52; Ord. No. 15-908, 12-17-2015)

Sec. 26-88. Point of delivery.

The point of delivery is the point, as designated by the city, on the customer's premises where current is to be delivered to the building or premises. All wiring and equipment beyond this point of delivery shall be maintained by the customer.
(Code 1982, § 16-53)

Sec. 26-89. Billing.

Bills will be rendered monthly and shall be paid within 15 days from the date of the bill. Failure to receive a bill will not release the customer from payment of the obligation. Should bills not be paid, the city may at any time thereafter, after providing reasonable notice to the customer, discontinue service. Bills not paid in a timely manner will incur a late payment charge. Payments that are due on a weekend or holiday will be due the next business day.
(Code 1982, § 16-54; Ord. No. 15-908, 12-17-2015)

Sec. 26-90. Billing adjusted to standard periods.

The demand charges and the blocks in the energy charges set forth in the rate schedules

are based on billing periods of approximately one month. In the case of the first billing of new accounts, (temporary service, cotton gins and other seasonal customers excepted) and final billings of all accounts (temporary service exempted) where the period covered by the billing involves fractions of a month, the demand charges and the blocks of the energy charge will be adjusted to a basis proportionate with the period of time during which service is extended.
(Code 1982, § 16-55)

Sec. 26-91. Connection and disconnection charges.

A fee for connection, reconnection and disconnection for electric services, and a charge to process returned checks which may or might be dishonored, may be established and collected to cover costs incurred for connecting, reconnecting or disconnecting service. Such charge for such services shall be those charges which shall be made and determined by the electric utility board.
(Code 1982, § 16-56)

Sec. 26-92. Voltage fluctuations caused by customer.

Electric service shall not be used in such a manner as to cause unusual fluctuations or disturbances to the city's system. The city may require the customer, at his own expense, to install suitable apparatus which will reasonably limit such fluctuations.
(Code 1982, § 16-57)

Sec. 26-93. Additional load.

The service connection, transformers, meters and equipment supplied by the city for each customer have definite capacity and no addition to the equipment or load connected to the equipment will be allowed except by consent of the city. Failure to give notice of additions or changes in load, and to obtain the city's consent, shall render the customer liable for any damage to any of the city's lines or equipment caused by the additional or changed installation.
(Code 1982, § 16-58)

Sec. 26-94. Standby and resale service.

All purchased electric service, other than emergency or standby service, used on the premises of any customer shall be supplied exclusively by the city; and the customer shall not directly or indirectly sell, sublet, assign or otherwise dispose of the electric service or any part of such service.
(Code 1982, § 16-59)

Sec. 26-95. Nonstandard service.

The customer shall pay the cost of any special installation necessary to meet his peculiar requirements for service at other than standard voltages or for the supply of closer voltage regulation than required by standard practice.
(Code 1982, § 16-60)

Sec. 26-96. Notice of trouble.

Customers shall notify the city immediately should the service be unsatisfactory for any reason, or should there be any defects, trouble or accidents affecting the supply of electricity.
(Code 1982, § 16-61; Ord. No. 15-908, 12-17-2015)

Sec. 26-97. Interruption of service.

The city shall use reasonable diligence to provide a regular and uninterrupted supply of current; but if the supply of current should be interrupted or disturbed for any cause, the city shall not be liable for resultant damages.
(Code 1982, § 16-62)

Sec. 26-98. Shortage of electricity.

In the event of an emergency or other condition causing a shortage in the amount of electricity for the city to meet the demand on its system, the city may, by an allocation method deemed equitable by the city, fix the amount of electricity to be made available for use by the customer and/or may otherwise restrict the time during which the customer may make use of electricity and the uses which the customer may make of electricity. If such actions become necessary, the customer may request a variance because of unusual circumstances, including matters

adversely affecting the public health, safety and welfare. If the customer fails to comply with such allocation or restriction, the city may take such remedial actions as it deems appropriate under the circumstances, including temporarily disconnecting electric service and charging additional amounts because of the excess use of electricity. The provisions of section 26-97 are applicable to any such allocation or restriction.
(Code 1982, § 16-63)

Sec. 26-99. Meter tests.

The city shall, at its own expense, make periodical tests and inspections of its meters in order to maintain a high standard of accuracy. The city shall make additional tests or inspections of its meter at the request of any customer. If such tests show that the meter is accurate within two percent, slow or fast, no adjustment will be made in the customer's bill and a testing charge as established by the electric utility board of the city shall be collected from the customer to cover the costs incurred. If the test shows the meter to be in excess of two percent, fast or slow, an adjustment shall be made in the customer's bill over a period of not over 30 days prior to the date of such test; and the costs of making such test shall be borne by the city.
(Code 1982, § 16-64)

Sec. 26-100. Extensions and additions to street lighting systems.

The city shall, at the request of a customer for street lighting service, provide additions and extensions to the street lighting system; provided, that if, in any year ending June 30, the customer requests additions or extensions with a total cost in excess of five percent of the investment in street lighting property and equipment, the customer may be required to finance such excess cost.
(Code 1982, § 16-65)

Sec. 26-101. Athletic field lighting.

Athletic field lighting installations not owned or maintained by the city may be served on an off-peak basis in accordance with the provisions of the standard street lighting rate as set out in division 3, subdivision IV of this article. For athletic field lighting an investment charge provided for in the street lighting rate will be based on the city's investment in furnishing and installing the equipment devoted to supplying this service. Energy will be billed in accordance with the street lighting schedule and each installation will be considered a separate customer for billing purposes. Customers' bills rendered in accordance with this provision shall be subject to any surcharge and amortization charge applied by the city. The off-peak period shall be determined by the city, but in no case shall it commence earlier than 7:00 p.m. The customer may be permitted to use up to ten percent (not to exceed ten kilowatts) of the total installed lighting capacity prior to the commencement of the off-peak period, such use to be considered off-peak for billing purposes. If a customer fails to restrict service in accordance with this section, he shall be billed under the appropriate large or small lighting and power rate, as set out in division 3, subdivision III of this article.
(Code 1982, § 16-66)

Sec. 26-102. Right of entry.

The city's identified employees shall have access to the customer's premises at all reasonable times for the purpose of reading meters, testing, inspecting, repairing, removing or exchanging any or all equipment belonging to the city.
(Code 1982, § 16-67; Ord. No. 15-908, 12-17-2015)

Sec. 26-103. Termination of contract by customer.

Customers who have fulfilled their contract terms and wish to discontinue service must give at least one business days' notice to that effect unless the contract specifies otherwise. Notice to discontinue service prior to expiration of contract term will not relieve a customer from any minimum or guaranteed payment under any contract or rate.
(Code 1982, § 16-68; Ord. No. 15-908, 12-17-2015)

Sec. 26-104. Discontinuance of service by city.

The city may refuse to connect or may discontinue service for the violation of any of its rules and regulations, or for violation of any of the provisions of this article or of the application of the customer or contract with the customer. The city may discontinue service to the customer for the theft of current or the appearance of current theft devices on the premises of the customer. The discontinuance of service by the city for any cause as stated in this section does not release the customer from his obligation to the city for payment of minimum bills as specified in the application of the customer or the contract with the customer.
(Code 1982, § 16-69)

Sec. 26-105. Customer's responsibility for city's property.

All meters, service connections and other equipment furnished by the city shall be and remain the property of the city. The customer shall provide a space for and exercise proper care to protect the property of the city on his premises; and in the event of loss or damage to the city's property arising from neglect of the customer to care for the property, the cost of necessary repairs or replacements shall be paid by the customer.
(Code 1982, § 16-70)

Sec. 26-106. Filing and posting.

A copy of this article shall be kept open to inspection at the office of the city electric system and the office of the city clerk-treasurer.
(Code 1982, § 16-71)

Sec. 26-107. Service not restored while delinquent consumer on premises.

(a) No member of the consumer's family, or anyone else living in the same house or building or on such property with the consumer where the electricity is cut off, shall have the right to make or offer to make a deposit for electricity, or to demand that the city turn on the electricity at such place, so long as the delinquent consumer lives in the house or on the property and the electricity bill or charges, plus a reasonable charge for turning on and off the electricity, is unpaid.

(b) Delinquent charges owed by any member of the consumer's family or anyone else living in the same house or building or on such property with the consumer will be charged back to the current active account for electricity service to the consumer.
(Ord. No. 84-677, § 16-72, 10-25-1984; Ord. No. 84-889, 1-10-1985)

Secs. 26-108—26-130. Reserved.

DIVISION 3. RATES, CHARGES AND SERVICE CLASSIFICATIONS*

Subdivision I. In General

Secs. 26-131—26-140. Reserved.

Subdivision II. Residential Rate

Sec. 26-141. Scope.

The provisions of this subdivision apply to the residential rate. In this subdivision the term "rate" means the residential rate.

Sec. 26-142. Availability.

The residential rate shall apply only to electric service to a single-family dwelling and its appurtenances, where the major use of electricity is for domestic purposes such as lighting, household appliances and the personal comfort and convenience of those residing therein. Any such dwelling in which space is occasionally used for the conduct of business by a person residing therein may be served under this rate. Where a portion of a dwelling is used regularly for the conduct of business, the electricity consumed in that portion so used shall be separately metered

*__Editor's note—__The rates and charges in this division are those in effect at the time of preparation of this Code. They are subject to change without council approval to the extent provided in sections 26-171(i), 26-172(i), 26-173(i) and 26-174(i).

and billed under the general power rate; if separate circuits are not provided by the customer, service to the entire premises shall be billed under the general power rate.
(Code 1982, § 16-86)

Sec. 26-143. Character of service.

Voltage supplied shall be at the discretion of the electric department and shall be determined by the voltage available from distribution lines in the vicinity and/or other conditions. Multiphase service shall be supplied in accordance with the electric department's standard policy. Customers requesting additional voltage/services may be required to pay aid to construction costs.
(Code 1982, § 16-87; Ord. No. 15-908, 12-17-2015)

Sec. 26-144. Rate.

(a) The availability charge shall be $6.15 per month less hydro allocation credit of $2.48 ($3.67 per delivery point per month).

(b) The energy charge shall be as follows:

(1) First 2,000 kilowatt-hours per month, $5.400 cents per kilowatt-hour.

(2) Additional kilowatts per month at $5.950 cents per kilowatt-hour.

(c) The customer's bill for each month shall be increased or decreased in accordance with the current adjustment addendum published by the Tennessee Valley Authority (TVA).
(Code 1982, § 16-88)

Sec. 26-145. Minimum monthly bill.

The availability charge constitutes the minimum monthly bill for all customers served under this division except those customers for which a higher minimum monthly bill is required under the electric department's standard policy because of special circumstances affecting the electric department's cost of rendering service.
(Code 1982, § 16-89)

Sec. 26-146. Payment.

The rates fixed in this division are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00.
(Code 1982, § 16-90; Ord. No. 15-908, 12-17-2015)

Sec. 26-147. Single-point delivery.

The charges under this division are based upon the supply of service through a single delivery and metering point, and at a single voltage. If service is supplied to the same customer through more than one point of delivery or at different voltages, the supply of service at each delivery and metering point and at each different voltage shall be separately metered and billed under this division.
(Code 1982, § 16-91)

Sec. 26-148. Rules and regulations.

Service is subject to rules and regulations of the electric department.
(Code 1982, § 16-92)

Secs. 26-149—26-170. Reserved.

Subdivision III. General Power Rate

Sec. 26-171. Schedule GSA.

(a) *Scope and availability.* This section establishes the general power rate—schedule GSA and is applicable to such schedule. This shall apply to the firm power requirements for electric service to commercial, industrial and governmental customers; institutional customers including, without limitation, churches, clubs, fraternities, orphanages, nursing homes, rooming or boarding houses and like customers; and other customers except those to whom service is available under other resale rate schedules.

(b) *Character of service.* Electrical service provided to those commercial, industrial and governmental customers listed in subsection (a) of this section will be alternating current, single or three-phase, 60 hertz. Under subsection (c)(1) of this section power shall be delivered at a voltage available in the vicinity or agreed to by the electric department. Under subsections (c)(2)

and (c)(3) of this section power shall be delivered at a transmission voltage of 161 kv or if such transmission voltage is not available, at the highest voltage available in the vicinity, unless at the customer's request a lower standard voltage is agreed upon.

(c) *Base charges.*

(1) If the higher of the customer's currently effective contract demand, if any, or its highest billing demand during the latest 12-month period is not more than 50 kw and the customer's monthly energy takings for any month during such period do not exceed 15,000 kwh:

a. *Customer charge.* $7.15 per delivery point per month.

b. *Energy charge. $0.05895 per kwh per month.*

(2) If the higher of the customer's currently effective contract demand or its highest billing demand during the latest 12-month period is greater than 50 kw but not more than 1,000 kw or if the customer's billing demand is less than 50 kw and its energy takings for any month during such period exceed 15,000 kwh:

a. *Customer charge.* $7.65 per delivery point per month.

b. *Demand charge.* First 50 kw of billing demand per month, no demand charge. Excess over 50 kw of billing per month, at $7.86 per kw.

c. *Energy charge.* First 15,000 kwh per month at $0.05895 per kwh. Additional kWh per month at $0.03181 per kwh.

(3) If the higher of the customer's currently effective contract demand or its highest billing demand during the latest 12-month period is greater than 1,000 kw:

a. *Customer charge.* $7.65 per delivery point per month.

b. *Demand charge.* First 1,000 kw of billing demand per month, at $8.10 per kw. Excess over 1,000 kw of billing demand per month at $9.12 per kw per month for each kw, if any, of the amount by which the customer's billing demand exceeds the higher of 1,000 kw or its contract demand.

c. *Energy charge.* $0.03147 per kwh per month.

(d) *Facilities rental charge.* This subsection applies only to subsections (c)(2) and (c)(3) of this section. There shall be no facilities rental charge under the general power rate schedule for delivery at bulk transmission voltage levels of 161 kv or higher. For delivery at less than 161 kv, there shall be added to the customer's bill a facilities rental charge. This charge shall be $0.36 per kilowatt per month except for delivery at voltages below 46 kv, in which case the charge shall be $0.93 per kilowatt per month for the first 10,000 kilowatts and $0.73 per kilowatt per month for the excess over 10,000 kilowatts. Such charge shall be applied to the higher of the highest billing demand established during the last 12 consecutive month period or the customer's currently effective contract demand and shall be in addition to all other charges under this subdivision including minimum bill charges.

(e) *Reactive demand charges.* If the reactive demand (in kvar) is lagging during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's highest metered demand occurs, there shall be added to the customer's bill a reactive charge of $0.78 per kvar of the amount, if any, by which the reactive demand exceeds 33 percent of such metered demand. If the reactive demand (in kvar) is leading during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's lowest metered demand (excluding any metered demands which are less than 25 percent of the highest metered demand) occurs, there shall be added to the customer's bill a reactive charge of $0.33 per kvar of the amount of reactive demand. Such charges shall be in addition to all other charges under this rate schedule, including minimum bill charges.

(f) *Determination of demand.* The electric department shall meter the demands in kw of all customers served. The metered demand for any month shall be the highest average during any 30-consecutive-minute period beginning or ending on a clock hour of the month of the load metered in kw, and such amount shall be used as the billing demand, except that the billing demand for any month shall in no case be less than the sum of:

(1) Thirty percent of the first 5,000 kw; and

(2) Forty percent of any kw in excess of 5,000 kw of the higher of the currently effective contract demand or the highest billing demand established during the preceding 12 months.

(g) *Minimum bill.* The monthly bill, excluding any facilities rental charges and any reactive charges, shall not be less than the sum of the base customer charge, the base demand charge, as adjusted (but excluding the additional portion thereof applicable to excess of billing demand over contract demand) applied to the customer's billing demand, and the base energy charge, as adjusted, applied to the customer's energy takings. The distributor may require higher minimum bills.

(h) *Seasonal service.*

(1) Customers who contract for service on a seasonal basis shall be limited to 2,500

kw and shall pay the above charges, as adjusted, plus an additional seasonal use charge determined as follows:

a. Under subsection 26-171(c)(1) of the base charges, said charge shall be equal to $0.01 per kwh per month.

b. Under subsection 26-171(c)(2) and (3) of the base charges, said charge shall be equal to $0.01 per kwh per month of the lesser of the amount computed by multiplying 300 hours by the customer's billing demand or the customer's energy takings for the month, except in the case under subsection 26-171(c)(2) where the customer's billing demand is less than 50 kw, in which case said charge shall be equal to $0.01 per kwh for the first 15,000 kwh of the customer energy takings for the month.

(2) Consistent with the distributor's standard policy, the customer may arrange for seasonal testing of equipment during offpeak hours.

(3) For such customers, the exception language under subsection (f) of this section and the minimum bill provided for in subsection (g) of this section shall not apply. The distributor may require additional charges to provide recovery of costs for customer-specific distribution facilities.

(i) *Contract requirement.* The distributor shall require contracts for all service provided under this subdivision. The contract shall be an initial term of at least five years and any renewals or extensions of the initial contract shall be for a term of at least one year; after ten years of service, any such contract for the renewal or extension of service may provide for termination upon not less than four months' notice. The customer shall contract for its maximum requirements, which shall not exceed the amount of power capable of being used by the customer, and the distributor shall not be obligated to supply power in greater amount at any time than the customer's currently effective contract demand. If the customer uses any power other than that supplied by the distributor under this division, the contract may include other special provisions. The rate schedule in any power contract shall be subject to adjustment, modification, change, or replacement from time to time as provided under the power contract between the distributor and TVA.

(j) *Payment.* Bills will be rendered monthly. Any amount of the bill unpaid after the due date specified on the bill may be subject to additional charges under the distributor's standard policy.

(k) *Single-point delivery.* Charges are based upon the supply of service through a single delivery and metering point, and at a single voltage. If service is supplied to the same customer through more than one point of delivery or at different voltages, the supply of service at each delivery and metering point and at each different voltage shall be separately metered and billed.

(l) *Rules and regulations.* Service is subject to rules and regulations of the electric department. (Code 1982, §§ 16-93—16-104)

Sec. 26-172. Schedule GSB.

(a) *Scope and availability.* This section establishes the general power rate—schedule GSB and is applicable to such schedule. This section shall apply to the firm power requirements for electric service to commercial, industrial and governmental customers; institutional customers including, without limitation, churches, clubs, fraternities, orphanages, nursing homes, roominghouses or boardinghouses and like customers; and other customers where a customer's currently effective contract demand is greater than 5,000 kw but not more than 15,000 kw.

(b) *Character of service.* Electrical service provided to those commercial, industrial and governmental customers listed in subsection (a) of this section will be alternating current, single or three phase, 60 hertz. Power shall be delivered at a transmission voltage of 161 kv or if such transmission voltage is not available, at the highest voltage available in the vicinity, unless at the customer's request a lower standard voltage is agreed upon.

(c) *Base rate.*

(1) *Customer charge.* $1,500.00 per delivery point per month.

(2) *Demand charge.* $10.18 per kw of billing demand per month, plus an additional $10.18 per kw per month for each kw, if any, of the amount by which the customer's billing demand exceeds its contract demand.

(3) *Energy charge.* $0.02790 per kwh for up to 620 hours use of metered demand per month. $0.02278 per kwh for all additional kwh per month.

(d) *Facilities rental charge.* There shall be no facilities rental charge under the general power rate schedule for delivery at bulk transmission voltage levels of 161 kv or higher. For delivery at less than 161 kv, there shall be added to the customer's bill a facilities rental charge. This charge shall be $0.36 per kilowatt per month except for delivery at voltages below 46 kv, in which case the charge shall be $0.93 per kilowatt per month for the first 10,000 kilowatts and $0.73 per kilowatt per month for the excess over 10,000 kilowatts. Such charge shall be applied to the higher of the highest billing demand established during the last 12 consecutive month period or the customer's currently effective contract demand and shall be in addition to all other charges under this subdivision including minimum bill charges.

(e) *Reactive demand charges.* If the reactive demand (in kvar) is lagging during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's highest metered demand occurs, there shall be added to the customer's bill a reactive charge of $0.78 per kvar of the amount, if any, by which the reactive demand exceeds 33 percent of such metered demand. If the reactive demand (in kvar) is leading during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's lowest metered demand (excluding any metered demands which are less than 25 percent of the highest metered demand) occurs, there shall be added to the customer's bill a reactive charge of $0.33 per kvar of the amount of reactive demand. Such charges shall be in addition to all other charges under this rate schedule, including minimum bill charges.

(f) *Determination of demand.* The electric department shall meter the demands in kw of all customers served. The metered demand for any month shall be the highest average during any 30-consecutive-minute period beginning or ending on a clock hour of the month of the load metered in kw, and such amount shall be used as the billing demand, except that the billing demand for any month shall in no case be less than the sum of:

(1) 30 percent of the first 5,000 kw; and

(2) 40 percent of any kw in excess of 5,000 kw of the higher of the currently effective contract demand or the highest billing demand established during the preceding 12 months.

(g) *Minimum bill.* The monthly bill, excluding any facilities rental charges and any reactive charges, shall not be less than the sum of the base customer charge; the base demand charge, as adjusted (but excluding the additional portion thereof applicable to excess of billing demand over contract demand) applied to the customer's billing demand; and the base energy charge, as adjusted, applied to the customer's energy takings. The distributor may require higher minimum bills.

(h) *Seasonal service.*

(1) Customers who contract for service on a seasonal basis shall be limited to 2,500 kw and shall pay the above charges, as adjusted, plus an additional seasonal use charge determined as follows:

a. Under subsection 26-171(c)(1) of the base charges, the charge shall be equal to $0.01 per kwh per month.

b. Under subsection 267-171(c)(2) and (3) of the base charges, said charge shall be equal to $0.01 per kwh per month of the lesser of the amount computed by multiplying 300 hours by the customer's billing demand or the customer's energy takings for the month, except in the case under subsection 26-171(c)(2) where the

customer's billing demand is less than 50 kw, in which case said charge shall be equal to $0.01 per kwh for the first 15,000 kwh of the customer energy takings for the month.

(2) Consistent with the distributor's standard policy, the customer may arrange for seasonal testing of equipment during offpeak hours.

(3) For such customers, the exception language under subsection (f) of this section and the minimum bill provided for in subsection (g) of this section shall not apply. The distributor may require additional charges to provide recovery of costs for customer-specific distribution facilities.

(i) *Contract requirement.* The distributor shall require contracts for all service provided under this subdivision. The contract shall be an initial term of at least five years and any renewals or extensions of the initial contract shall be for a term of at least one year; after ten years of service, any such contract for the renewal or extension of service may provide for termination upon not less than four months' notice. The customer shall contract for its maximum requirements, which shall not exceed the amount of power capable of being used by the customer, and the distributor shall not be obligated to supply power in greater amount at any time than the customer's currently effective contract demand. If the customer uses any power other than that supplied by the distributor under this division, the contract may include other special provisions. The rate schedule in any power contract shall be subject to adjustment, modification, change, or replacement from time to time as provided under the power contract between the distributor and TVA.

(j) *Payment.* Bills will be rendered monthly. Any amount of the bill unpaid after the due date specified on the bill may be subject to additional charges under the distributor's standard policy.

(k) *Single-point delivery.* Charges are based upon the supply of service through a single delivery and metering point, and at a single voltage. If service is supplied to the same customer through more than one point of delivery or at different voltages, the supply of service at each delivery and metering point and at each different voltage shall be separately metered and billed.

(l) *Rules and regulations.* Service is subject to rules and regulations of the electric department. (Code 1982, §§ 16-93—16-104)

Sec. 26-173. Schedule GSC.

(a) *Scope and availability.* This section establishes the general power rate—schedule GSC and is applicable only to such schedule. This section shall apply to the firm electric power requirements where a customer's currently effective contract demand is greater than 15,000 kw but not more than 25,000 kw.

(b) *Character of service.* Service is alternating current, single- or three-phase, 60 hertz. Power shall be delivered at a transmission voltage of 161 kV or, if such transmission voltage is not available, at the highest voltage available in the vicinity, unless at the customer's request a lower standard voltage is agreed upon.

(c) *Base charges.*

(1) *Customer charge.* $1,500.00 per delivery point per month.

(2) *Demand charge.* $10.02 per kw of billing demand per month, plus an additional $10.02 per kw per month for each kw, if any, of the amount by which the customer's billing demand exceeds its contract demand.

(3) *Energy charge.* $0.02790 per kwh for up to 620 hours use of metered demand per month. $0.02278 per kwh for all additional kwh per month.

(d) *Adjustment.* The base demand and energy charges shall be increased or decreased in accordance with the current adjustment addendum published by TVA. (In addition, such charges shall be increased or decreased to correspond to increases or decreases determined by TVA in the value of the hydro generation benefit allocated to residential customers.)

(e) *Facilities rental charge.* There shall be no facilities rental charge under this section for delivery at bulk transmission voltage levels of 161 kV or higher. For delivery at less than 161 kV, there shall be added to the customer's bill a facilities rental charge. This charge shall be $0.36 per kw per month except for delivery at voltages below 46 kV, in which case the charge shall be $0.93 per kw per month for the first 10,000 kw and $0.73 per kw per month for the excess over 10,000 kw. Such charge shall be applied to the higher of the highest billing demand established during the latest 12-consecutive-month period or the customer's currently effective contract demand and shall be in addition to all other charges under this subdivision, including minimum bill charges.

(f) *Reactive demand charges.* If the reactive demand (in kvar) is lagging during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's highest metered demand occurs, there shall be added to the customer's bill a reactive charge of $0.78 per kvar of the amount, if any, by which the reactive demand exceeds 33 percent of such metered demand. If the reactive demand (in kvar) is leading during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's lowest metered demand (excluding any metered demands which are less than 25 percent of the highest metered demand) occurs, there shall be added to the customer's bill a reactive charge of $0.33 per kvar of the amount of reactive demand. Such charges shall be in addition to all other charges under this rate schedule, including minimum bill charges.

(g) *Determination of demand.* The distributor shall meter the demands in kw of all customers served under this rate schedule. The metered demand for any month shall be the highest average during any 30-consecutive-minute period beginning or ending on a clock hour of the month of the load metered in kw, and such amount shall be used as the billing demand, except that the billing demand for any month shall in no case be less than the sum of 30 percent of the first 5,000 kw, 40 percent of the next 20,000 kw, and 50 percent of any kw in excess of 25,000 kw of the higher of the currently effective contract demand or the highest billing demand established during the preceding 12 months.

(h) *Minimum bill.* The monthly bill under this section, excluding any facilities rental charges and any reactive charges, shall not be less than the sum of the base customer charge, the base demand charge, as adjusted (but excluding the additional portion thereof applicable to excess of billing demand over contract demand) applied to the customer's billing demand, and the base energy charge, as adjusted, applied to the customer's energy takings. The distributor may require higher minimum bills.

(i) *Contract requirement.* The distributor shall require contracts for all service provided under this section. The contract shall be for an initial term of at least five years and any renewals or extensions of the initial contract shall be for a term of at least one year; after ten years of service, any such contract for the renewal or extension of service may provide for termination upon not less than four months' notice. The customer shall contract for its maximum requirements, which shall not exceed the amount of power capable of being used by customer, and distributor shall not be obligated to supply power in greater amount at any time than the customer's currently effective contract demand. If the customer uses any power other than that supplied by distributor under this rate schedule, the contract may include other special provisions. The rate schedule in any power contract shall be subject to adjustment, modification, change, or replacement from time to time as provided under the power contract between the distributor and TVA.

(j) *Payment.* Bills under this section will be rendered monthly. Any amount of the bill unpaid after the due date specified on the bill may be subject to additional charges under the distributor's standard policy.

(k) *Single-point delivery.* The charges under this section are based upon the supply of service through a single delivery and metering point, and at a single voltage. If service is supplied to the same customer through more than one point of delivery or at different voltages, the supply of

service at each delivery and metering point and at each different voltage shall be separately metered and billed.

(l) *Rules and regulations.* Service is subject to rules and regulations of the distributor.

Sec. 26-174. Schedule GSD.

(a) *Scope and availability.* This section establishes the general power rate—schedule GSD and is applicable only to such schedule. This section shall apply to the firm electric power requirements where a customer's currently effective contract demand is greater than 25,000 kw.

(b) *Character of service.* Service is alternating current, single- or three-phase, 60 hertz. Power shall be delivered at a transmission voltage of 161 kv or, if such transmission voltage is not available, at the highest voltage available in the vicinity, unless at the customer's request a lower standard voltage is agreed upon.

(c) *Base charges.*

(1) *Customer charge.* $1,500.00 per delivery point per month.

(2) *Demand charge.* $12.60 per kw of billing demand per month, plus an additional $12.60 per kw per month for each kw, if any, of the amount by which the customer's billing demand exceeds its contract demand.

(3) *Energy charge.* $0.02265 per kwh per month.

(d) *Adjustment.* The base demand and energy charges shall be increased or decreased in accordance with the current adjustment addendum published by TVA. (In addition, such charges shall be increased or decreased to correspond to increases or decreases determined by TVA in the value of the hydro generation benefit allocated to residential customers.)

(e) *Facilities rental charge.* There shall be no facilities rental charge under this section for delivery at bulk transmission voltage levels of 161 kv or higher. For delivery at less than 161 kv, there shall be added to the customer's bill a facilities rental charge. This charge shall be $0.36 per kw per month except for delivery at voltages below 46 kv, in which case the charge shall be $0.93 per kw per month for the first 10,000 kw and $0.73 per kw per month for the excess over 10,000 kw. Such charge shall be applied to the highest billing demand established during the latest 12-consecutive-month period or the customer's currently effective contract demand and shall be in addition to all other charges under this section, including minimum bill charges.

(f) *Reactive demand charges.* If the reactive demand (in kvar) is lagging during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's highest metered demand occurs, there shall be added to the customer's bill a reactive charge of $0.78 per kvar of the amount, if any, by which the reactive demand exceeds 33 percent of such metered demand. If the reactive demand (in kvar) is leading during the 30-consecutive-minute period beginning or ending on a clock hour of the month in which the customer's lowest metered demand (excluding any metered demands which are less than 25 percent of the highest metered demand) occurs, there shall be added to the customer's bill a reactive charge of $0.33 per kvar of the amount of reactive demand. Such charges shall be in addition to all other charges under this rate schedule, including minimum bill charges.

(g) *Determination of demand.* The distributor shall meter the demands in kw of all customers served under this rate schedule. The metered demand for any month shall be the highest average during any 30-consecutive-minute period beginning or ending on a clock hour of the month of the load metered in kw, and such amount shall be used as the billing demand, except that the billing demand for any month shall in no case be less than the sum of 30 percent of the first 5,000 kw, 40 percent of the next 20,000 kw, 50 percent of the next 25,000 kw, 60 percent of the next 50,000 kw, 70 percent of the next 100,000 kw, 80 percent of the next 150,000 kw, and 85 percent of all kw in excess of 350,000 kw of the higher of the currently effective contract demand or the highest billing demand established during the preceding 12 months.

(h) *Minimum bill.* The monthly bill under this section, excluding any facilities rental charges and any reactive charges, shall not be less than

sum of the base customer charge, the base demand charge, as adjusted (but excluding the additional portion thereof applicable to excess of billing demand over contract demand) applied to the customer's billing demand and the base energy charge, as adjusted, applied to the customer's energy takings. The distributor may require higher minimum bills.

(i) *Contract requirement.* The distributor shall require contracts for all service provided under this section. The contract shall be for an initial term of at least five years and any renewals or extensions of the initial contract shall be for a term of at least five years; after ten years of service, any such contract for the renewal or extension of service may provide for termination upon not less than 16 months' notice. The customer shall contract for the maximum requirements, which shall not exceed the amount of power capable of being used by the customer, and the distributor shall not be obligated to supply power in greater amount at any time than the customer's currently effective contract demand. If the customer uses any power other than that supplied by the distributor under this section, the contract may include other special provisions. The rate schedule in any power contract shall be subject to adjustment, modification, change, or replacement from time to time as provided under the power contract between the distributor and TVA.

(j) *Payment.* Bills under this section will be rendered monthly. Any amount of the bill unpaid after the due date specified on the bill may be subject to additional charges under the distributor's standard policy.

(k) *Single-point delivery.* The charges under this section are based upon the supply of service through a single delivery and metering point, and at a single voltage. If service is supplied to the same customer through more than one point of delivery or at different voltages, the supply of service at each delivery and metering point and at each different voltage shall be separately metered and billed.

(l) *Rules and regulations.* Service is subject to rules and regulations of the distributor.
(Code 1982, § 16-95)

Secs. 26-175—26-190. Reserved.

Subdivision IV. Outdoor Lighting Rate

Sec. 26-191. Scope.

The provisions of this subdivision apply to the outdoor lighting rate. In this subdivision the term "rate" means the outdoor lighting rate.

Sec. 26-192. Availability.

The outdoor lighting rate is available for service to street and park lighting systems, traffic signal systems, athletic field lighting installations (during prescribed use-period) and outdoor lighting for individual customers.
(Code 1982, § 16-105)

Sec. 26-193. Payment.

The rates fixed in this subdivision are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00.
(Code 1982, § 16-106; Ord. No. 15-908, 12-17-2015)

Sec. 26-194. Rules and regulations.

Service under this subdivision is subject to rules and regulations of the electric department.
(Code 1982, § 16-107)

Sec. 26-195. Rates—Generally.

(a) The rates for street and park lighting systems, traffic systems and athletic field lighting installations shall be as follows:

(1) An energy charge of $0.004378 per kilowatt-hour.

(2) The customer's bill for each month shall be increased or decreased in accordance with the current adjustment addendum published by the Tennessee Valley Authority.

(b) In addition, there shall be an investment charge as follows:

(1) The annual investment charge shall be nine percent of the installed cost to the electric department of the facilities devoted to street and park lighting service specified in this section. Such installed cost shall be recomputed on July 1 of each year, or more often if substantial changes in the facilities are made. Each month, 1/12 of the then total annual investment charge shall be billed to the customer. If any part of the facilities has not been provided at the electric system's expense or if the installed cost of any portion thereof is reflected on the books of another municipality or agency or department, the annual investment charge shall be adjusted to reflect properly the remaining cost to be borne by the electric system.

(2) Traffic signal systems and athletic field lighting installations shall be provided, owned and maintained by and at the expense of the customer, except as the electric department may agree otherwise in accordance with the provisions of subsection (b)(3) of this section. The facilities necessary to provide service to such systems and installations shall be provided by and at the expense of the Huntsville Utilities Electric Department, and the annual investment charge provided for in subsection (b)(1) of this section shall apply to the installed cost of such facilities.

(3) When so authorized by policy duly adopted by the electric department's governing board, traffic signal systems and athletic field lighting installations may be provided, owned and maintained by the electric department for the customer's benefit. In such cases the electric department may require reimbursement from the customer for a portion of initial installed cost of any such system or installation and shall require payment by the customer of an investment charge sufficient to cover all of the electric department's costs (except reimbursed costs), including appropriate overheads, or providing, owning and maintaining such system or installation; provided that, for athletic field lighting installations, such investment charge shall in no case be less than 12 percent per year of such costs. Such investment charge shall be in addition to the annual investment charge on the facilities necessary to provide service to such system or installation as provided for in subsection (b)(1) of this section. Replacement of lamps and related glassware for traffic signal systems and athletic field lighting installations provided under this subsection shall be paid for under the provisions of subsection (c)(1) of this section.

(c) The customer shall be billed and shall pay for maintenance and replacements as provided below, which shall be applied to all service for street, park lighting and traffic signal systems installed by the city.

(1) The electric department shall bill the customer monthly for such replacements during each month at the electric department's cost of materials, including appropriate store room expense.

(2) The electric department shall bill the customer monthly for 1/12 of the amount by which the electric department's cost of materials, including appropriate storeroom expense, exceeds the product of three mills multiplied by the number of kilowatt-hours used for street and park lighting during the fiscal year immediately preceding the fiscal year in which such month occurs.

(d) For any billing month or part of such month in which the energy is not metered or for which a meter reading is found to be in error or a meter is found to have failed, the energy for billing purposes for that billing month or part of such month shall be computed from the rated capacity of the lamps (including ballast) plus five percent of such capacity to reflect secondary circuit losses, multiplied by the number of hours of use.

(e) Service to athletic field lighting installations under this rate schedule shall not commence earlier than 7:00 p.m., except that the customer may be permitted to use up to ten percent (not to exceed ten kilowatts) of the total installed lighting capacity prior to commencement of such period. If the customer fails to restrict service in accordance with these requirements, service shall be billed under the general power rate.

(f) The electric department's costs of providing service under this section are subject to review at any time and from time to time to determine if the electric department's revenues from the charges being applied are sufficient to cover such costs. If any such review discloses that revenues are either less or more than sufficient to cover such costs, the electric department shall revise the above investment charges provided for in this section so that revenues will be sufficient to cover such costs. Any such revision of the annual investment charge provided for first above in subsection (b)(1) of this section shall be by agreement between the electric department and the Tennessee Valley Authority.

(g) Replacement of lamps and related glassware will be made in accordance with replacement policies of the electric department without additional charge to the customer.

(h) The rates in this section are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00.

(i) Service is subject to rules and regulations of the utilities electric department.
(Code 1982, § 16-108; Ord. No. 15-908, 12-17-2015)

Sec. 26-196. Same—Individual customers.

(a) The monthly charges for outdoor lighting for individual customers shall be as follows:

		Lamp Size			
(1)	*Type of Fixture*	*(Watts)*	*(Lumens)*	Rated kwh	*Facility Charge*
	Mercury vapor or incandescent	175	7,650	70	$2.71
		250	10,400	98	3.21
		400	19,100	155	4.06
		700	33,600	266	5.48
		1,000	47,500	378	6.98
	High pressure sodium	70	4,860	31	3.85
		100	8,550	42	4.12
		150	14,400	63	4.24
		200	18,900	82	4.61
		250	23,000	105	4.87
		400	45,000	165	5.78
		1,000	126,000	385	9.24
	Low pressure sodium	55	7,650	32	3.87
		90	12,750	53	6.44
		135	22,000	75	8.49
		180	33,000	93	9.64

(2) *Energy charge.* For each lamp size under subsection (1) of this section, $0.04378 kwh per month. The charges in this subsection (2) are limited to service from a photo-electrically controlled standard street lighting fixture installed at a location other than on a pole already in place. The electric department may apply a monthly charge not to exceed $2.00 per pole for additional poles required to serve the fixture from the electric department and may uniformly adjust the above base monthly charges up or down by an amount not to exceed $1.00.

(b) When so authorized by policy duly adopted by the electric department's governing board, special outdoor lighting installations may be provided, owned and maintained by the electric department. In such cases the electric department may require reimbursement from the customer for a portion of the initial installed cost of any such installation and shall require payment by the customer of monthly charges sufficient to cover all of the electric department's costs (except reimbursed costs), including appropriate overheads, of providing, owning and maintaining such installations.
(Code 1982, § 16-108)

Secs. 26-197—26-400. Reserved.

ARTICLE III. NATURAL GAS SERVICE

DIVISION 1. GENERALLY

Sec. 26-401. Expenditures for construction or additions.

Pursuant to Act No. 893 of the 1971 regular session, no expenditure for new construction, additions or replacements to the municipal gas distribution system or the equipment used by the system, shall be made by the municipal gas utility board where the total expense is more than $25,000.00 without the prior consent and approval of the city council.
(Code 1982, § 17-29; Ord. No. 98-866, § 17-29, 11-12-1998)

Secs. 26-402—26-420. Reserved.

DIVISION 2. METERS, BILLS AND COLLECTIONS

Sec. 26-421. Application for service.

Each prospective customer desiring gas service may be required to sign the city's standard form of application for service or contract before service is supplied by the city.
(Code 1982, § 17-46)

Sec. 26-422. Maintenance of equipment.

It shall be the duty of each customer or consumer of gas from the city gas distribution system to keep the gas equipment used by such customer or owner of the house, building or premises where the equipment is located in proper condition; and if the customer or consumer fails to do so, the gas distribution system shall not be liable for cutting off the gas service from such premises because of such failure of the customer or the owner to keep such gas equipment in proper condition.
(Code 1982, § 17-47)

Sec. 26-423. When consumers to be billed.

(a) A statement shall, as soon as practicable after the meter is read, be either mailed or electronically delivered to each customer of gas furnished by the city to the occupant of the house, building or premises where such gas service is furnished, which statement shall show the quantity of gas consumed by such customer or consumer for the next preceding 30 days, and the amount due.

(b) In the case of the first billing of new accounts and final billings of all accounts where the period covered involves fractions of a month, the minimum charges shall be adjusted to a basis proportionate with the period of time during which service was furnished.

(c) Any consumer requiring service shall be required to pay the minimum per-month charge.
(Code 1982, § 17-48; Ord. No. 15-909, 12-17-2015)

Sec. 26-424. Effect of failure to receive bill.

Failure to receive a statement or gas bill shall not entitle any person to the net rates, nor shall it prevent the city from discontinuing service or cutting off the gas in accordance with section 26-428.
(Code 1982, § 17-49)

Sec. 26-425. Payment of bill with bad check.

When any check or order is delivered to the city in payment of any gas account or gas bill and is accepted, and such check or order upon first presentation to the bank or trust company upon which it is drawn is not paid, the city shall charge the amount of such check or order back to the gas bill or gas account of such person; and such gas bill or gas account shall be considered a delinquent account. The city shall be authorized to discontinue service to such consumer in accordance with section 26-428, the same as if the check or order had not been given.
(Code 1982, § 17-50)

Sec. 26-426. Right of entry.

(a) Where a gas meter is located on private property and is connected with the city gas distribution system for service, the city shall at all times have the right and authority by and through its agent, servant, officer or employee to go upon and enter such premises for the purpose of reading the gas meter, or to cut on or off the gas or gas service, or to perform any necessary maintenance to the gas meter and other equipment owned by the city on such premises, as it deems necessary.

(b) Where any property owner or tenant refuses to allow the city, or its properly authorized agent, servant, officer or employee to enter such premises for the purposes set out in this section, the city shall have the right and authority to cut off the gas or gas service from such premises at any other place. Service shall not be restored until the property owner or tenant shall have caused the gas meter to be removed and placed, ready for service, at whatever place the city shall designate. The city shall not be liable for cutting off the gas or gas service upon such premises.
(Code 1982, § 17-51; Ord. No. 15-909, 12-17-2015)

Sec. 26-427. Meters.

(a) *Record; reading.* A record of all gas meters installed shall be kept by the city, and all meters shall be read monthly to ascertain the amount of gas consumed by each customer.

(b) *Failing to register.* When any gas meter fails to register, a daily average shall be obtained from the readings taken from such meter the next preceding month during which the meter was known to be operating correctly and this reading used as a basis of payment for gas consumed through such meter for the period in which the meter is out of order and until repaired.

(c) *Tests.* The city shall, at its own expense, make periodic tests and inspections of its gas meters in order to maintain a high standard of accuracy. The city shall make additional tests or inspections of its meter at the request of any customer. If such tests show that the meter is accurate within two percent, slow or fast, no adjustment will be made in the customer's bill; and a charge may be established and collected to cover costs incurred. The charge for such services shall be determined by the gas utility board of the city. If the test shows the meter to be in excess of two percent, fast or slow, an adjustment shall be made in the customer's bill over a period of not more than 30 days prior to the date of such test; and the cost of making such test shall be borne by the city.
(Code 1982, §§ 17-52—17-54)

Sec. 26-428. Service discontinued for failure to pay bill; reconnection charge.

If any consumer or owner of the house, building or property shall refuse or neglect to pay his gas bill or charge on or before the penalty date as shown on the statement, the gas may be turned

off and shall not be turned on again until the bill or charge shall be paid in full, plus a reasonable charge for turning on and off the gas.
(Code 1982, § 17-55)

Sec. 26-429. Connection and disconnection charges.

A fee for connection, reconnection and disconnection for gas services, and a charge to process returned checks which may or might be dishonored, may be established and collected to cover costs incurred for connecting, reconnecting or disconnecting service. Such charge for such services shall be those charges which shall be made and determined by the gas utility board.
(Code 1982, § 17-56)

Sec. 26-430. Resumption of service.

(a) *Amount of fee required.* Any customer or consumer of the gas system of the city who discontinues the use of the services and facilities of such gas system, and subsequently desires to resume such services and facilities at the same premises shall be charged by the city and shall pay the city the current setup fee for resumption of such services and facilities made and determined by the gas utility board. The current customer service fee schedule is published on the utility website (www.hsvutil.org).

(b) *City employees not to restore services until fee paid.* No employee of the city shall restore gas services or facilities for any customer or consumer as set out in subsection (a) of this section until the charge shall have been paid by each such customer or consumer of natural gas.
(Code 1982, §§ 17-57, 17-58; Ord. No. 15-909, 12-17-2015)

Sec. 26-431. Service not restored while delinquent consumer on premises.

No member of the consumer's family, or anyone else living in the same house, building or on such property with the consumer where the gas is cut off, shall have the right to make or offer to make a deposit for gas, or to demand that the city turn on the gas at such place, so long as the delinquent consumer lives there and the gas bill or charges, plus a reasonable charge for turning on and off the gas is unpaid. Further, delinquent charges owed by any member of the consumer's family living in the same house or delinquent charges of anyone else living in the same house will be charged back to the current active account to the same extent as if those charges were owed by the person who made the application for the account.
(Ord. No. 85-54, § 17-59, 1-24-1985)

Sec. 26-432. Unlawful turning on or use of gas.

Any unauthorized person who shall turn on the city gas after a consumer has been cut off for failure to pay gas service and charges as provided by this division shall be guilty of a misdemeanor.
(Code 1982, § 17-60)

Sec. 26-433. Underground utility damage prevention program.

(a) *Scope.* This section is adopted pursuant to 49 CFR 192.614, Notification of Excavation or Demolition, Chapter 15. Section 37-15-1 to 37-15-11 Code of Alabama 1975 as amended and hereinafter referred to as "Alabama 811 or One Call Notification Systems" is hereby adopted and any terms and conditions of the provisions hereinafter set forth which conflict with the terms and conditions of Code of Alabama 1975, §§ 37-15-1 to 37-15-11, are hereby amended to comply with the provisions of Code of Alabama 1975, §§ 37-15-1 to 37-15-11, as last amended. All operators of buried natural gas pipelines and distributors are required to adopt a written program to prevent damage to natural gas lines due to excavation and to adopt rules and regulations to prevent damage to all underground utilities owned and operated by the city and to provide for a one-call service for the location of all utilities.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Damage means the substantial weakening of structural support of an underground utility, penetration or destruction of any protective coat-

ing, housing or other protective device of an underground utility, and the partial or complete severance of an underground utility.

Demolish or *demolition* means any operation by which a structure or mass of material is wrecked, razed, rendered, moved or removed by means of any tools, equipment, or discharge of explosives.

Excavate or *excavation* means an operation for the purpose of the movement or removal of earth, rock or other materials in or on the ground by use of mechanized equipment or by discharge of explosives, and including augering, backfilling, boring, digging, ditching, drilling, grading, plowing-in, pulling-in, ripping, scraping, trenching and tunneling.

Mechanized equipment means equipment operated by means of mechanical power, including trenchers, bulldozers, power shovels, augers, backhoes, scrapers, drills, cable and pipe plows and other equipment used for plowing-in or pulling-in cable or pipe.

Operator means any person who owns or operates a utility.

Person means any individual, any corporation, partnership, association or any other entity organized under the laws of any state; any subdivision or instrumentality of a state; and any employee, agent or legal representative of a state.

Utility means any line, pipeline, system or facility used for producing, storing, conveying, transmitting or distributing electricity, natural gas, water or other utilities, which facilities are operated by the city.

Working day means every day.

(c) *Excavation and demolition permits.* A permit issued pursuant to law authorizing excavation or demolition operations shall not be deemed to relieve a person from the responsibility for complying with the provisions of this section.

(d) *Purpose.* The purpose of this section is to establish a system to provide timely and expeditious notification to the operators of the city's utilities by excavators of their intent to dig, bore, blast or otherwise disturb the surface of the earth in such a manner that may cause damage to underground facilities or create a hazard or interruption of service to the general public. All persons therefore who need to excavate or work with the earth in such a manner as to contact or cause possible damage to subsurface utilities are encouraged to utilize the notification procedures set forth in subsection (g) of this section.

(e) *Notice of intent to excavate or demolish.*

(1) Before commencing any excavation or demolition operation designated in subsection (d) of this section, each person responsible for such excavation or demolition shall serve telephonic or electronic notice of intent to excavate or demolish prior to the time of excavation or demolition. Notification of excavation for the location of utilities shall be made to Alabama 811.

(2) Prior notice of requirements is not required of persons responsible for emergency excavation or demolition to ameliorate an imminent danger to life, health or property provided such persons give, as soon as practicable, oral notice of the emergency excavation or demolition to Alabama 811 and requests emergency assistance from each operator so identified in locating and providing immediate protection to underground utilities. An imminent danger to life, health or property exists whenever there is a substantial likelihood that loss of life, health or property will result before the procedures under this section can be fully complied with.

(3) The telephonic or electronic notice required by subsection (e)(1) of this section must contain the name, address, and telephone number of the person filing the notice of intent and, if different, the person responsible for the excavation or demolition, the starting date, anticipated duration, and type of excavation or demolition operation to be conducted, the loca-

tion of the proposed excavation or demolition, and whether or not explosives are to be used.

(4) Each excavation request shall be made to and taken by Alabama 811, in accordance with subsection (e)(1), (2) and (3) of this section.

(f) *Temporary marking.*

(1) Utility locate personnel or contractors shall use a bright yellow paint, which is the national standard color for gas, when marking their utility facilities. Other utilities shall use the national standard color in the marking of their facilities. The markings shall be placed directly or as close as possible over the utility facilities. For purposes of this section, the term "as close as possible over the utility facilities" is defined as a strip of land at least three feet wide but not wider than the width of the utility plus 1½ feet on either side of the utility.

(2) Provisions will be made for temporary marking of buried utilities in the area of excavation activity before, as far as practical, the activity begins.

(g) *Inspections.*

(1) Where there is reason to believe utility facilities close to the excavation activity may be damaged, they shall be inspected as frequently as necessary to verify the integrity of the facility.

(2) If blasting occurs, any inspection must include leakage or breakage surveys immediately after and periodically to determine that no damage due to blasting has occurred to the facilities.

(h) *Precautions to avoid damage.* In addition to the notification requirements of subsection (e) of this section, each person responsible for any excavation or demolition operation designated in subsection (d) of this section shall:

(1) Plan the excavation or demolition to avoid damage to or minimize interference with the underground utility in and near the construction area;

(2) Maintain a clearance between the underground utility and the cutting edge or point of any mechanized equipment, taking into account the known limit of control of such cutting edge or point, as may be reasonably necessary to avoid damage to such utility; and

(3) Provide such support for underground utility in and near the construction area, including during backfill operations, as may be reasonably necessary for the protection of such utility.

(i) *Excavation or demolition damage.*

(1) Except as provided by subsection (i)(2) of this section, each person responsible for any excavation or demolition operation designated in subsection (d) of this section, that results in any damage to the underground utility shall, immediately upon discovery of such damage, notify the operator of such utility of the location and nature of the damage and shall allow the operator reasonable time to accomplish necessary repairs before completing the excavation or demolition in the immediate area of such utility.

(2) Each person responsible for any excavation or demolition operations designed in subsection (d) of this section, that results in damage to the underground utility shall, immediately upon discovery of such damage, notify the operator, police and fire departments, and take any other action as may be reasonably necessary, to protect persons and property and to minimize the hazards until arrival of the operator's personnel or police and fire departments. The person responsible for such damage shall pay to the utility all costs associated with the repair and loss of utility for such damage.

(j) *Locations.* This section shall encompass all locations served by all utilities of the city.
(Ord. No. 83-206, § 17-62, 6-9-1983; Ord. No. 15-909, 12-17-2015)

Secs. 26-434—26-450. Reserved.

DIVISION 3. RATES AND CHARGES*

Sec. 26-451. Generally.

Rates or charges for natural gas to consumers served by the gas distribution system of the city shall be as provided in this division.
(Ord. No. 00-315, § 17-76, 4-13-2000)

Sec. 26-452. Allocations, prorations and penalties.

(a) *Allocations, prorations.* Whenever, for any reason, any or all of the suppliers of natural gas to the city curtails, decreases or impairs in any way whatsoever the supply of natural gas which the city secures for the consumers and customers of the city natural gas system or should the supply of natural gas not be available to serve all of the customers and consumers of the city natural gas system, then, in such event, the city shall have the right, for the purposes of allocating the supply to the consumers and customers of the city natural gas system to allocate and prorate the amount of natural gas which any or all of the consumers or customers receive for such periods of time as shall be required by the city. Notice of such allocations shall be given by announcements to media, newspapers and other means of communication.

(b) *Penalty and curtailment*. Should any customer, on any day or for any month, who has been placed on allocation or proration without the city's prior approval take or use a volume of natural gas in excess of the maximum daily or monthly quantity of natural gas which the city has allocated or prorated to any of its customers or consumers, then such volume in excess of such allocation or proration shall constitute unauthorized overrun volume, and for such overrun volume the customer or consumer who incurs such overrun shall pay unto the city any penalty assessed on the city by any pipeline or supplier for the overrun and a penalty of $1.00 for each mcf of natural gas constituting unauthorized overrun volume taken by the customer or consumer up to and including the volume of natural gas which is one percent in excess of the amount which has been allocated or prorated to the customer or consumer, and a penalty of $10.00 for each additional mcf of natural gas in excess of one percent over and above the amount allocated or prorated to the consumer or customer. The penalty shall be paid by the customer or consumer who incurred the unauthorized overrun together with and in addition to the demand and commodity charges payable by the customer or consumer for the month in which said overrun volume was taken. The payment of a penalty for unauthorized overrun shall not under any circumstances be considered giving such customer or consumer the right to take unauthorized overrun nor shall such payment be considered as a substitute for any other remedy available to the city against the offending customer or consumer for failure to respect its obligations to adhere to the provisions of this rate schedule. In addition to the penalties imposed or improvised in this subsection, whenever such unauthorized overrun has or might impair or jeopardize the supply of natural gas which the city has secured for its other customers and consumers, then the city shall have the right to discontinue the natural gas service to such customer or consumer who has incurred such unauthorized overrun.

(c) *Applicability*. The provisions of this section shall be applicable to all customers served by the city natural gas system, including but not being limited to those customers and consumers whose rates and charges are set forth in class 00, class 10, class 11, class 16, class 22, class 35, class 39, class 40 and class 41.
(Ord. No. 00-315, §§ 17-77—17-79, 4-13-2000; Ord. No. 01-970, § 17-92, 11-20-2001; Ord. No. 15-909, 12-17-2015)

Sec. 26-453. Deposit and rate adjustment.

(a) *Deposit*. A cash deposit or suitable guarantee, as approved, by the city gas utility board, not exceeding twice the highest bill may be required of any customer or person before gas or transportation service is supplied. The city electric utility board, the city gas utility board and the city waterworks utility board may enter into an agreement to establish a combined utility

*__Editor's note—__The rates and charges in this division are those in effect at the time of preparation of this Code. They are subject to change without council approval to the extent provided in section 26-453.

deposit; to establish a minimum deposit for all types of service, and to distribute the proceeds from these deposits. Interest may be accumulated on these deposits from October 1, 1973, at a rate as may from time to time be determined by the board and will be added to the deposit at the time service is terminated. The deposit, plus accumulated interest, may be applied against any unpaid bills of the customer and if any balance remains after such application is made, such balance shall be refunded to the customer.

(b) *Gas rate adjustment.* Recognizing that rates charged for natural gas are governed and determined by the cost of natural gas and other gas which is purchased by the city, the rates which are set forth in the rate schedules for charges for natural gas as set forth in sections 26-454—26-464 are to be increased and decreased daily on the basis of the cost of natural gas or other gas purchased by the city from its supplier. To the cost of gas purchased, the city shall add the cost of transportation, manufacturing gas, operational and distribution costs, and six percent of the total cost as charged to the customer. The adjusted rate shall be effective on the same date as such rate is made effective to the city by its supplier or suppliers of natural gas or such other gas as may or might be injected to the city natural gas system.

(c) *Transportation rate adjustment.* Recognizing that rates charged for transportation services are determined by the cost of agreements and contracts with pipeline suppliers, whereby capacity received by the city is to be paid for whether the contracted capacity is fully utilized and such fixed cost is to be factored into the cost of gas delivered to the customers of the city natural gas distribution system, and that the rates charged for natural gas are to be adjusted as set forth in subsection (b) of this section, all of which has been necessitated by the deregulation of natural gas which will cause the rates or charges for natural gas to fluctuate, it is therefore determined that adjustments to the industrial transportation rates and charges as set forth in sections 26-465—26-469 will be necessary and that all adjustments, changes or amendments from time to time as determined necessary will be made by the city gas utility board to assure that cost of transportation service and other costs charged to customers that utilize industrial transportation rate schedule will compensate the city natural gas system for all costs and expenses that it has and will be incurring in having gas pipeline capacity service being made available to the city natural gas system through which industrial transportation service can be made available to industrial customers as set forth in this division. (Ord. No. 00-315, § 17-89, 4-13-2000; Ord. No. 01-970, § 17-93, 11-20-2001; Ord. No. 15-909, 12-17-2015)

Sec. 26-454. Commercial and industrial firm gas rate schedule, class 00.

(a) *Availability*. The schedule of rates in this section is available for gas service to all firm commercial or industrial customers contracting and using not less than 15,000 cubic feet and not more than 50,000 cubic feet of maximum daily demand served from the city's gas distribution system. Gas supplied under this rate schedule is for the exclusive use of the customer and will not be resold or shared with others.

(b) *Applicability*. The rate schedule in this section is applicable to firm commercial and industrial customers, including single-metered apartment houses and multiple unit housing projects, with maximum daily gas consumption not less than 15,000 cubic feet. (1,000 cubic feet = 1 mcf.)

(c) *Rate*.

(1) *Demand charge*. $11.64 per month for each 1,000 feet of maximum daily demand of gas delivered to the customer on any day during the 12-month period ending with the current billing month; plus

(2) *Commodity charge*. For all gas consumed each month at $7.53 per 1,000 cubic feet, per month.

(d) *Availability charge*. The availability charge is $12.00 per month. In addition, there will be a charge equal to the highest demand charge established during the 12-month period ending with the current billing month times the demand charge. The availability charge will apply during

each month of the calendar year whether or not service is continuously used during such year. If the customer discontinues gas service during a portion of the year, the availability charge will apply each month whether service is active or inactive. In addition to the availability charge, the city may charge the customer for the cost of disconnecting and reconnecting the service.

(e) *Payment*. The rates in this section are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Maximum daily demand.* The maximum daily demand will be defined as the maximum 24-hour use of gas during the 12-month period ending with the close of the current month. The maximum daily demand will be determined at the option of the city according to one of the following methods:

(1) By estimate: 1/20 of the maximum monthly gas consumption during the 12-month period ending with the current month.

(2) By actual test.

(3) By demand meter.

(g) *Single point delivery*. Rates are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(h) *Deposit required*. The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(i) *Rules and regulations*. Service under this section will be subject to the rules and regulations of the city's natural gas system.

(j) *Contract terms*. The term of contract under this section will be by agreement of the parties, but in no event, less than one year.
(Ord. No. 00-315, § 17-77, 4-13-2000; Ord. No. 15-909, 12-17-2015)

Sec. 26-455. Reserved.

Editor's note—Ord. No. 15-909, adopted Dec. 17, 2015, repealed § 26-455, which pertained to school and college interruptible rate schedule, class 9, and derived from Ord. No. 00-315, § 17-78, 4-13-2000.

Sec. 26-456. Industrial interruptible rate schedule, class 10.

(a) *Availability*. The schedule of rates in this section is available for gas service to all interruptible industrial customers contracting and using not less than 50,000 and not more than 299,000 cubic feet of maximum daily demand. Gas supplied under this section is for the exclusive use of the customer and will not be resold or shared with others. (1,000 cubic feet = 1 mcf.)

(b) *Applicability*. Gas sold under this section will be termed "interruptible gas" and will be interrupted whenever, in the opinion of the city, the interruption is necessary to prevent an increase in the city's previously established maximum day's use from the city's wholesale gas supplier, or under any circumstances where the supply of natural gas to users of a higher priority is in jeopardy. Customers receiving gas service under this section will at no time take gas during any period of curtailment.

(c) *Monthly rate*. The monthly rate is $6.88 per 1,000 cubic feet of gas consumed per month.

(d) *Availability charge*. The availability charge is $30.00 per month. The availability charge will apply during each month of the calendar year whether or not service is continuously used during such year. If the customer discontinues gas service during the contract term, the availability charge will apply each month whether service is active or inactive. In addition to the availability charge, the city may charge the customer for the cost of disconnecting and reconnecting the service.

(e) *Payment*. The rates in this section are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Maximum daily demand*. The maximum daily demand will be defined as the maximum 24-hour use of gas during the 12-month period ending with the close of the current month. The maximum daily demand will be determined at the option of the city according to one of the following methods:

(1) By estimate: 1/20 of the maximum monthly gas consumption during the 12-month period ending with the current month.

(2) By actual test.

(3) By demand meter.

(g) *Single point delivery*. The rates in this section are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(h) *Deposit required*. The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(i) *Rules and regulations*. Service under this section will be subject to the rules and regulations of the city's natural gas system.

(j) *Contract terms*. The term of contracts under this section will be by agreement of the parties, but in no event less than one year.
(Ord. No. 00-315, § 17-79, 4-13-2000; Ord. No. 15-909, 12-17-2015)

Sec. 26-457. Industrial interruptible rate schedule, class 11.

(a) *Availability*. The schedule in this section is available for gas service to all interruptible industrial customers contracting and using not less than 300,000 cubic feet of maximum daily demand. Gas supplied under this section is for the exclusive use of the customer and will not be resold or shared with others. (1,000 cubic feet = 1 mcf.)

(b) *Applicability*. Gas sold under this section will be termed "interruptible gas" and will be interrupted whenever, in the opinion of the city, the interruption is necessary in order to prevent an increase in the city's previously established maximum day's use from the city's wholesale gas supplier, or under any circumstances where the supply of natural gas to users of a higher priority is in jeopardy. Customers receiving gas service under this section will at no time take gas during any period of curtailment.

(c) *Monthly rate*. The monthly rate is $6.72 per 1,000 cubic feet (mcf) of gas consumed per month.

(d) *Availability charge.* The availability charge is $30.00 per month. The availability charge will apply during each month of the calendar year whether or not service is continuously used during such year. If the customer discontinues gas service during the contract term, the availability charge will apply each month whether service is active or inactive. In addition to the availability charge, the city may charge the customer for the cost of disconnecting and reconnecting the service.

(e) *Payment*. The rates in this section are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Maximum daily demand*. The maximum daily demand will be defined as the maximum 24-hour use of gas during the 12-month period ending with the close of the current month. The maximum daily demand will be determined at the option of the city according to one of the following methods:

(1) By estimate: 1/20 of the maximum monthly gas consumption during the 12-month period ending with the current month.

(2) By actual test.

(3) By demand meter.

(g) *Single point delivery.* The rates in this section are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(h) *Deposit required.* The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(i) *Rules and regulations.* Service under this section will be subject to the rules and regulations of the city's natural gas system.

(j) *Contract terms.* The term of contracts under this section will be by agreement of the parties, but in no event, less than one year.
(Ord. No. 00-315, § 17-80, 4-13-2000; Ord. No. 15-909, 12-17-2015)

Secs. 26-458—26-460. Reserved.

Editor's note—Ord. No. 15-909, adopted Dec. 17, 2015, repealed §§ 26-458—26-460, which pertained to interruptible rate schedule, classes 12—14, and derived from Ord. No. 00-315, § 17-81—17-83; 4-13-2000.

Sec. 26-461. Combination firm and interruptible gas service (Redstone Arsenal), class 15.

(a) *Availability.* The schedule of rates in this section is available for gas service to Redstone Arsenal, Alabama, as served from the city's gas distribution system. Gas supplied under this section is for the exclusive use of the customer.

(b) *Applicability.* This section is applicable to Redstone Arsenal only.

(c) *Rate.*

(1) *Firm gas:*

a. *Demand charge:* $10.80 per month, per mcf of demand;

b. *Commodity charge:* $3.89 per mcf delivered each month.

The term "firm gas" is defined as being 1,000 mcf delivered, or the maximum quantity of gas delivered to the Army Missile Support Command, Redstone Arsenal, at the points of delivery as shown in the service specifications in any 24-hour period ending at 3:00 p.m. on a date which the city natural gas system has directed a curtailment of interruptible gas service, whichever quantity is the greater amount.

(2) *Minimum annual charge:* The sum of monthly demand charges plus a minimum annual commodity payment equal to 50 percent of the contracted demand multiplied by 365 times the applicable commodity charge per mcf.

Interruptible gas: $3.32 per mcf delivered each month.

The term "interruptible gas" is defined as the quantity of gas delivered daily in excess of firm gas. For example, on days of noncurtailment, all gas delivered in excess of 1,000 mcf firm gas will be supplied at the interruptible rate with no limit as to quantity, so long as such quantity is available from the city.

(d) *Heat content adjustment.* The rate in this section is based on natural gas having an average standard heating value of 1,000 BTU per cubic foot. If the average heating value of the gas supplied during any billing month should vary from this standard, the metered quantity of the gas supplied any consumer hereunder may be adjusted upward or downward proportionate to the increase or decrease in such average heating value. For the purpose of determining such average heating value, the city may rely on the accuracy of the reports furnished to it on such heating value by the city's supplier.

(e) *Minimum monthly bill.* The minimum monthly bill will be equal to the highest demand charge established during the 12-month period ending with the last day of the current month. Minimum monthly bills will apply during each month of the calendar year whether or not service is continuously used during such year. If a customer discontinues gas service during a

portion of the year, the minimum monthly bill will apply each month whether service is active or inactive.

(f) *Maximum daily demand.* The maximum daily demand will be defined as the maximum 24-hour use of gas during the 12-month period ending with the close of the current month. The maximum daily demand will be determined by demand meters installed by the city at the point of delivery.
(Ord. No. 00-315, § 17-84, 4-13-2000)

Sec. 26-462. Industrial firm and interruptible schedule, class 16.

(a) *Availability*. The schedule of rates in this section is available for gas service to all interruptible industrial customers contracting and using a minimum of 50,000 cubic feet of maximum daily interruptible demand, plus additional firm demand of natural gas service served and billed through one gas meter by the city. Gas supplied under this section is for the exclusive use of the customer and will not be resold or shared with others. (1,000 cubic feet = 1 mcf.)

(b) *Applicability*. Gas sold under this section will be termed "interruptible gas" and will be interrupted whenever, in the opinion of the city, the interruption is necessary in order to prevent an increase in the city's previously established maximum day's use from the city's wholesale gas supplier, or under any circumstances where the supply of natural gas to users of a higher priority is in jeopardy. Customers receiving gas service under this section will at no time take gas during any period of curtailment. Any interruptible gas consumed during any period of curtailment may be subject to penalty and/or additional charges.

(c) *Monthly rates.*

(1) Firm gas will be billed at the applicable firm rate schedule according to the class qualifications.

   (a) 60 mcf/day at $7.54 per 1,000 cubic feet (mcf) of consumed gas per month.

(2) Remainder of daily consumption will be billed at the applicable industrial interruptible rate schedule according to class qualifications.

   (a) >60 mcf/day at $6.88 per 1,000 cubic feet (mcf) of consumed gas per month (based on IGM-10 class qualifications).

   (b) >60 mcf/day at $6.72 per 1,000 cubic feet (mcf) of consumed gas per month (based on IGM-11 class qualifications).

(d) *Availability charge/minimum bill*. The firm availability charge is $12.00 per month and the interruptible available charge is $30.00 per month. The availability charge/minimum bill will apply during each month of the calendar year whether or not service is continuously used during such year. If the customer discontinues gas service during the contract term, the availability/minimum bill charge will apply each month of the contract term whether service is active or inactive. In addition to the availability charge/minimum bill, the city may charge the customer for the cost of disconnecting and reconnecting the service.

(e) *Payment*. The rates in this section are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Maximum daily demand*. The maximum daily demand will be defined as the maximum 24-hour use of gas during the 12-month period ending with the close of the current month. The maximum daily demand will be determined at the option of the city according to one of the following methods:

(1) By estimate: 1/20 of the maximum monthly gas consumption during the 12-month period ending with the current month.

(2) By actual test.

(3) By demand meter.

(4) By agreement with customer according to amount of firm connected load as specified.

(g) *Single point delivery*. The rates in this section are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(h) *Deposit required*. The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(i) *Rules and regulations.* Service under this section will be subject to the rules and regulations of the city's natural gas system.

(j) *Contract terms.* The term of contracts under this section will be by agreement of the parties, but in no event, less than one year.
(Ord. No. 00-315, § 17-85, 4-13-2000; Ord. No. 15-909, 12-17-2015)

Sec. 26-463. Residential rate schedule, class 22.

(a) *Availability*. The schedule of rates in this section is available for gas service to domestic consumers served from the city's gas distribution system. Gas supplied under this schedule is for the exclusive use of the customer and will not be resold or shared with others.

(b) *Applicability*. This section is applicable to residences containing not in excess of a single dwelling unit. Service to multiple housing units containing in excess of one unit will be considered nonresidential service and will be billed on the appropriate commercial rate.

(c) *Monthly rate*. For all gas consumed per month, the rate shall be $8.01 per 1,000 cubic feet.

(d) *Availability charge.* The availability charge for residential service will be $5.50 per month. The availability charge will apply during each month of the calendar year whether or not service is continuously used during such year. If the customer discontinues gas service during a portion of the year, the availability charge will apply each month whether service is active or inactive. In addition to the availability charge, the city may charge the customer for the cost of disconnecting and reconnecting the service.

(e) *Payment*. The rates in this section are net. If any bill is not paid on or before date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Single delivery point.* The rates are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately measured and billed.

(g) *Heating value.* The natural gas distributed under this section contains approximately 1,000 BTU per cubic feet.

(h) *Deposit required.* The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(i) *Rules and regulations.* Service under this section is subject to the rules and regulations of the city's natural gas system.

(j) *Contract terms.* The term of this contract under this section will be for not less than one year and from year to year thereafter.
(Ord. No. 00-315, § 17-86, 4-13-2000; Ord. No. 15-909, 12-17-2015)

Sec. 26-464. Small nonresidential rate schedule, class 35.

(a) *Availability*. The schedule of rates in this section is available for firm gas service to all nonresidential customers served from the city's gas distribution system. Gas supplied under this section is for the exclusive use of the customer and will not be resold or shared with others.

(b) *Applicability*. This section is applicable to industrial and commercial customers, including single-metered apartment houses and multiple unit housing projects with maximum daily gas consumption less than 15,000 cubic feet.

(c) *Rate*. The rate for all gas consumed per month shall be $8.51 per 1,000 cubic feet.

(d) *Availability charge.* The availability charge will be $8.50 per month. The availability charge will apply during each month of the calendar year whether or not service is continuously used during such year. If the customer discontinues gas service during a portion of the year, the availability charge will apply each month whether service is active or inactive. In addition to the availability charge, the city may charge the customer for the cost of disconnecting and reconnecting service.

(e) *Payment*. The rates in this section are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Single point delivery.* The rates in this section are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(g) *Deposit required.* The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(h) *Rules and regulations.* Service under this section is subject to the rules and regulations of the city's natural gas system.

(i) *Contract terms.* The term of contract under this section shall be by agreement of the parties, but in no event, less than one year.
(Ord. No. 00-315, § 17-87, 4-13-2000; Ord. No. 15-909, 12-17-2015)

Secs. 26-465, 26-466. Reserved.

Editor's note—Ord. No. 15-909, adopted Dec. 17, 2015, repealed §§ 26-465, 26-466, which pertained to industrial transportation rate schedule, classes 37, 38, and derived from Ord. No. 00-315, § 17-89, 4-13-2000.

Sec. 26-467. Industrial transportation rate schedule, class 39.

(a) *Availability*. This transportation schedule is available to all industrial customers contracting to transport not less than 300,000 cubic feet and not more than 999,000 cubic feet per day of natural gas delivered to and as metered by the city gas system meter. Transportation service as supplied under this rate schedule is for the exclusive use of the customer, and this transportation service and any gas received through this transportation service will not be resold or shared with any other person or entity. Transportation service under this schedule may be interrupted for any cause as determined by the city. (1,000 cubic feet = 1 mcf.) The city will not be liable for damages resulting from any conditions, which cause transportation service to be interrupted.

(b) *Applicability*. The customer will be responsible for gas supply and transportation on all upstream pipeline for delivery of the customer's natural gas to the city gas system's city gate station, together with all associated cost.

(c) *Firm transportation rate.* A service charge of $530.00 per month, plus:

Daily Transportation Volume (Mcf)	*Rate (Mcf)*
300—999	$0.85

(d) *Minimum bill.* The minimum bill will be $3,000.00 for each month service is provided.

(e) *Payment*. The above rates are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Single point delivery.* The above rates are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. Separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(g) *Deposit required.* The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(h) *Rules and regulations.* Service under this schedule will be subject to the rules and regulations of the city's natural gas system.

(i) *Contract terms.* The term of contract under this schedule will be by agreement of the parties, and shall be on a month-to-month contract.
(Ord. No. 01-970, § 17-90, 11-20-2001; Ord. No. 15-909, 12-17-2015)

Sec. 26-468. Industrial transportation rate schedule, class 40.

(a) *Availability*. This transportation schedule is available to all industrial customers contracting to transport not less than 100,000 cubic feet and not more than 299,000 cubic feet per day of natural gas delivered to and as metered by the city gas system meter. Transportation service as supplied under this rate schedule is for the exclusive use of the customer, and this transportation service and any gas received through this transportation service will not be resold or shared with any other person or entity. Transportation service under this schedule may be interrupted for any cause as determined by the city. (1,000 cubic feet = 1 mcf.) The city will not be liable for damages resulting from any conditions, which cause transportation service to be interrupted.

(b) *Applicability*. The customer will be responsible for gas supply and transportation on all upstream pipeline for delivery of the customer's natural gas to the city gas system's city gate station, together with all associated cost.

(c) *Firm transportation rate.* A service charge of $530.00 per month, plus:

Daily Transportation Volume (Mcf)	*Rate (Mcf)*
100—299	$0.85

(d) *Minimum bill.* The minimum bill will be $1,500.00 for each month service is provided.

(e) *Payment*. The above rates are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(f) *Single point delivery.* The above rates are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(g) *Deposit required.* The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(h) *Rules and regulations.* Service under this schedule will be subject to the rules and regulations of the city natural gas system.

(i) *Contract terms.* The term of contract under this schedule will be by agreement of the parties, and shall be on a month-to-month contract.
(Ord. No. 01-970, § 17-91, 11-20-2001; Ord. No. 15-909, 12-17-2015)

Sec. 26-469. Fueling station transportation rate schedule, class 41.

(a) *Availability*. This transportation schedule is available to all customers contracting to transport not less than 15,000 cubic feet per day of natural gas as metered by the city's gas system that will be sold by the customer for use in fueling motor vehicles and other equipment and vehicles that utilize natural gas as a fuel. The natural gas under this schedule is to be used as and for a fueling station for motor vehicles and other equipment and vehicles that utilize natural gas as a fuel and shall not be used,

resold, or shared with any other person or entity, except as set forth herein. Transportation service under this schedule may be interrupted for any cause as determined by the city. 1,000 cubic feet = 1 Mcf. The city will not be liable for damages resulting from any conditions, which cause transportation service to be interrupted.

(b) *Applicability*. The customer will be responsible for gas supply and transportation on all upstream pipelines for delivery of the customer's natural gas to the city gas system's city gate station, together with all associated costs.

(c) *Transportation rate.* A service charge of $200.00 dollars per month plus:

Daily Transportation Volume (Mcf)	*Rate (Mcf)*
15 Mcf to 99 Mcf	$1.80

(d) *Payment*. The above rates are net. If any bill is not paid on or before the date shown on the bill, there will be added to the bill an amount equal to five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00. Payments that are due on a weekend or holiday will be due the next business day.

(e) *Single point delivery.* The above rates are based upon the supply of service to the customer's premises through a single delivery and metering point, and at a single pressure. A separate supply for the same customer at other points of consumption, or at different pressures, will be separately metered and billed.

(f) *Deposit required*. The city may require a deposit prior to commencing service under this schedule equal to an amount not exceeding twice the highest bill.

(g) *Rules and regulations.* Service under this schedule will be subject to the rules and regulations of the city's natural gas system.

(h) *Contract terms.* The term of the contract under this schedule will be by agreement of the parties.

(i) *Transportation rate adjustment.* Recognizing that rates charged for transportation services are determined by the cost of agreements and contracts with pipeline suppliers, whereby capacity received by the city is to be paid for whether the contract capacity is fully utilized and such fixed cost is to be factored into the cost of gas delivered to the customers of the city's natural gas distribution system, and that the rates charges for transportation service are to be adjusted which has been necessitated by pipeline contracts being revised which will cause the rates or charges for transportation service to fluctuate, it is therefore determined that adjustments to the transportation rates and charges as set forth in this section will be necessary and that all adjustment, changes, or amendments from time to time deemed necessary will be made by the city gas utility board to assure that cost of transportation services and other costs charged to customers that utilize transportation rate schedule will compensate the city's natural gas system for all costs and expenses that it has and will be incurring in having gas pipeline capacity service being made available to the city's natural gas system which transportation service can be made available to customers as set forth in this division.

(Ord. No. 13-187, 3-28-2013; Ord. No. 15-909, 12-17-2015)

Secs. 26-470—26-500. Reserved.

ARTICLE IV. WATER SERVICE*

DIVISION 1. GENERALLY

Sec. 26-501. Consent of consumers to provisions of article.

All persons who are consumers of city water shall be deemed to have consented to the provi-

*__State law references__—Authority of city to establish, operate and maintain waterworks, Code of Ala. 1975, §§ 11-50-1, 11-50-5; contracts and indebtedness for construction, extension, etc., of waterworks system, Code of Ala. 1975, § 11-47-3.

sions of this article and to all of the rights, powers and authority reserved to the city under the terms of this article.
(Code 1982, § 23-1)

Sec. 26-502. Expenditures for construction or additions.

No expenditures for any new construction, additions or replacements to the waterworks plant and waterworks system of the city, or equipment used by the plant or the system, shall be made by the waterworks utility board where the total expense will be more than $25,000.00 without the consent and approval of the city council.
(Code 1982, § 23-49)

State law reference—Authority for above section, Code of Ala. 1975, § 11-50-442.

Secs. 26-503—26-530. Reserved.

DIVISION 2. SERVICE RULES

Sec. 26-531. Cutting off water in cases of leakage or wastage.

The city shall have the right, power and authority to cut off the water from any house, building or property when the underground service pipe or service line or any part leading from the water meter to the house, building or property shall become defective or out of repair so as to cause a leakage or wastage of water.
(Code 1982, § 23-4)

Sec. 26-532. Opening and closing valves on pipes or mains.

No person, except an employee of the waterworks, shall be permitted to open or close the valves upon the pipes or mains.
(Code 1982, § 23-5)

Sec. 26-533. Consent of city for use of water.

No person having charge or control of any hydrant or water pipe connected with the waterworks of the city shall allow or permit any other person to habitually take, draw or use any water from any such hydrant or water pipe as the other person's primary source of water without first obtaining the permission and consent of the city.
(Code 1982, § 23-10)

Sec. 26-534. Application for service.

Each prospective customer desiring water service may be required to sign the city's standard form of application for service or contract before service is supplied by the city.
(Code 1982, § 23-11)

Sec. 26-535. City to maintain mains and service lines up to water meter.

It shall not be the duty of the city to keep in repair any underground pipe, service pipe or service line except the main pipe, generally known as the city water main and the service pipe or service line from the city's water main to the water meter on the customer's premises; nor shall it be the duty of the city to furnish water to any customer whose water pipe is not in a fit condition to receive the water and prevent its waste.
(Code 1982, § 23-12)

Sec. 26-536. Customers to maintain water pipes.

When a customer owns or uses any water pipe and becomes a customer of water from the city, it shall be the duty of such customer, or the owner of the house, building or property, to keep all water pipes from the point where the customer's line is connected with the city's water meter in fit condition to receive water; and if such customer or owner of the house, building or property fails to do so, the city shall not be liable for cutting off the water upon such premises upon such failure of the customer or owner to keep such water pipe or line in fit condition. If the customer owns or uses any water pipe jointly with any other customer who may have separately contracted with the city to furnish water through such common line into the respective branches, the city shall have the right to cut off the water from such common line when the pipe of either or any of the service lines or any branch have been

permitted to get out of repair or in condition unfit to receive water; and the city shall not be liable for so cutting off water because of the getting out of repair or unfitness of any common line, pipe, service or branch line.
(Code 1982, § 23-13)

Sec. 26-537. Equipment and maintenance of water systems.

Persons taking water from the water system must keep their own water pipes and all fixtures connected with the system in good repair and protected from frost. They must provide a stopcock and waste cock properly located, and have the pipes so arranged that the water can be drawn from them when there is danger of freezing. Water will not be furnished any premises not provided with a stopcock and waste cock.
(Code 1982, § 23-14)

Sec. 26-538. Tanks, containers, reservoirs kept in sanitary condition.

(a) Any tank, container or reservoir not owned, controlled and operated by the city located within the city which is being used or maintained or which in the future may be used or maintained by any person for the storage of city water obtained from any of the city water pipe lines, from which tank, container or reservoir consumers of city water receive or obtain a supply of city water, shall at all times be kept in a sanitary condition, free from and protected from contamination, subject to the examination and approval of the health officer.

(b) Any person who owns or has control of any such tank, container or reservoir and who fails or neglects to maintain it in a sanitary condition free from and protected from contamination shall be guilty of a misdemeanor each day such container, tank or reservoir is permitted to remain in an unsanitary condition, and not free from and protected from contamination.

(c) Whenever it may be found that any such tank, container or reservoir is in an unsanitary condition and not free from and protected from contamination, the city shall have the right to cut off all consumers obtaining water from such supply without liability to the city.
(Code 1982, § 23-15)

Sec. 26-539. Backflow prevention.

(a) *Responsibility*. The city water system shall be responsible for the protection of the public potable water distribution system from contamination or pollutants due to the backflow or back siphonage of contaminants or pollutants through the water service connection. The customer has the primary responsibility of preventing pollutants and contaminants from entering their potable water system or the public water system through the elimination or protection of all cross-connections on their premises. The customer's responsibility starts at the service connections to the public potable water system and includes all of their water system.

(b) *Backflow preventer required*. When any customer or consumer of the city water system is engaged in any type of activity or business, the nature of which may or might result in backflow or backsiphonage which could or might result in pollution or contamination of any portion of the city water system, the city water system shall require such customer or consumer to install, at the expense of the customer or consumer, a backflow preventer of such nature and design, as determined by the city water system to be installed in such places and manner as shall be required by the city water system.

(c) *Inspection and notice*. The city water system shall conduct a survey or inspection of the premises of a customer or consumer to determine whether such customer or consumer is engaged in such activity or business as shall require the installation of a backflow preventer and if the city water system determines that such backflow preventer is necessary to prevent possible pollution or contamination of any portion of the city water system, such customer or consumer shall be given written notice by the city water system that such backflow preventer is necessary, together with the type to be installed and the manner and method to install the preventer. Any customer who cannot or will not allow city water system

personnel on the premises for an inspection of the customer's water and piping shall be required to install the backflow prevention assembly that will provide the maximum protection to the public potable water supply system. Refusal by a customer to allow an inspection or refusal to install the required backflow prevention assembly shall be a reason to discontinue service for noncompliance.

(d) *Installation of backflow preventer*. The customer or consumer, within a time frame prescribed by the city water system which shall not exceed 90 days, after receipt of the written notice as set forth in subsection (c) of this section, at the expense of the customer or consumer, shall install the backflow preventer as specified by the city water system in the manner and method as set forth by the city water system.

(e) *Failure to install backflow preventer*. If the customer or consumer fails or refuses to install a backflow preventer as specified in the manner and method as set forth by the city water system, or fails or refuses to install the specified backflow preventer in a manner and method as set forth by the city water system, within 90 days from the receipt of the written notice from the city water system to the customer or consumer, which written notice is set forth in subsection (c) of this section, the city water system shall terminate the water supply to such customer or consumer until such time as the specified backflow preventer is installed in the manner and method as required by the city water system. For justifiable cause shown, the city water system may grant written extensions of time to install the specified backflow preventer for such periods of time as shall be reasonable.

(f) *Discontinuance of service*. The city water system may deny or discontinue water service to any customer if a required backflow prevention device is not installed, tested or properly maintained, or if a cross-connection exists on the premises and there is inadequate backflow protection at the service connection. Water service shall not be restored to such premises until the deficiencies have been corrected or eliminated.

(g) *Unauthorized consumption*. Any person or persons who fails to install backflow preventer within the time required by the city water system and takes or causes to be taken any water from the city water system or carries away or causes to be carried away water for any purpose or use whatsoever without first obtaining the consent and permission of the city water system shall be guilty of a misdemeanor.
(Code 1982, §§ 23-17—23-20; Ord. No. 15-7, 1-22-2015)

Sec. 26-540. Right of entry; refusing entry.

Where a service line is located on private property and is connected with the city's water system for service, the city shall, at all times, have the right and authority to go upon and enter such premises for the purpose of cutting off the water, reading, repairing, inspecting or testing its water meter or service line or making any repairs the city deems necessary. When any property owner or tenant refuses to allow the city or any of its properly authorized agents, servants, officers or employees to enter the premises for any one of the purposes set out in this section, the city shall have the right and authority to cut off the water from such premises at any other convenient place; and water service shall not be reinstated until the property owner or tenant shall authorize such service line and water meter to be repaired and placed ready for service. The city shall not be liable for cutting off the water on such premises.
(Code 1982, § 23-21)

Sec. 26-541. Cutting off water from mains for repairs or extensions.

The city expressly reserves the right to cut off the water without notice from any or all of its water mains for the purpose of making repairs or extensions.
(Code 1982, § 23-22)

Sec. 26-542. Discontinuing service to consumers using common line where one branch out of repair.

If one of several branches from a common line through which water is distributed individually

and separately to the several consumers from the common line should get out of condition and leak or waste water, although such branch belongs individually to the consumer or owner of the house, building or property, the city shall have the right to cut the water off to the entire common line as mentioned in section 26-536 and thereby deprive other consumers on such common line of water, though their individual branches are in repair, if such cutting off the water is necessary and without fault of the city, to avoid the creation or maintenance of a nuisance to property owners not connected with or interested in the common line, or to any other person or property.
(Code 1982, § 23-23)

Secs. 26-543—26-560. Reserved.

DIVISION 3. CONNECTIONS

Sec. 26-561. Made by city employees.

It shall be unlawful for any person other than the employees of the city waterworks system or its agents to make a connection with or to tap a water main of the city.
(Code 1982, § 23-66)

Sec. 26-562. Permit required; applications; deposit.

All persons desiring to connect with the city water system shall file a written application with the waterworks utility board, which application shall show the point at which the city is requested to furnish water service. At the time the application is filed, the applicant shall pay to the waterworks utility board a sum designated by such board as the reasonable cost to the city of connecting such customer to the city's water system.
(Code 1982, § 23-67)

Secs. 26-563—26-580. Reserved.

DIVISION 4. DEPOSITS

Sec. 26-581. Generally.

A cash deposit or suitable guarantee, as approved by the waterworks utility board, not exceeding twice the highest bill, may be required of any customer or person before water service is supplied. The waterworks utility board may enter into an agreement with the electric utility board and the gas utility board to establish a combined utility deposit; to establish a minimum deposit for all types of service and to distribute the proceeds from these deposits. Interest may be accumulated on these deposits from October 1, 1973, at a rate as may from time to time be determined by the boards and will be added to the deposit at the time service is terminated. The deposit, plus accumulated interest, may be applied against any unpaid bills of the customer; and if any balance remains after such application is made, such balance shall be refunded to the customer.
(Code 1982, § 23-81; Ord. No. 15-912, 12-17-2015)

Sec. 26-582. Unlawful to use water until deposit made.

It shall be unlawful for any person to use water supplied by the city without first having made with the city the deposit required in section 26-581.
(Code 1982, § 23-82)

Sec. 26-583. Water not turned on until deposit made.

No employee of the city shall turn on the water for service at any place until the deposit required in section 26-581 for such place has been made with the city.
(Code 1982, § 23-83)

Secs. 26-584—26-600. Reserved.

DIVISION 5. METERS

Sec. 26-601. Duty of city to supply meters.

It shall be the duty of the city to install a uniform type of water meter for all consumers of city water, at the expense of the city; and where any consumer has already installed another and different type of meter from that designated by the city, the city shall have the right to replace the meter in use or installed by the consumer by

one of the uniform type designated or to be designated by the city; however, in the installation of any meter by the city as provided in this division the expense for the installation of such meter shall only extend to the purchase price of the meter, the retaining box, necessary fixtures to attach the pipe and their installation and shall not extend to the purchase and installation of the necessary pipes required by this article to be furnished by the consumer and installed by the consumer.
(Code 1982, § 23-96)

Sec. 26-602. Responsibility of waterworks utility board.

The waterworks utility board shall see that water meters of a uniform type are installed throughout the city on the connections of all water consumers for the purpose of regulating and measuring the amount of water that may be used by all consumers from the city waterworks.
(Code 1982, § 23-97)

Sec. 26-603. Approval; stopcocks required between meters and mains.

All meters shall be of a kind approved by the waterworks utility board and must be placed to the satisfaction of the waterworks utility board. Between each meter and the main a stopcock shall be placed within one foot of the meter. No meter shall be set within four feet of any sink or privy.
(Code 1982, § 23-98)

Sec. 26-604. Use of water by unauthorized person.

If any person shall permit another, not a guest, employee or boarder in his home or place of business, to use water through his meter, he shall be guilty of a misdemeanor.
(Code 1982, § 23-99)

Sec. 26-605. Meters on private property.

Where the water meter is located on private property and is connected with the water system for service, the city shall at all times have the right and authority, by and through its agent, servant, officer or employee to go upon and enter such premises for the purpose of reading the water meter, or to cut on or cut off the water, or make any such necessary repairs to the water meter as it deems necessary. Where any property owner or tenant refuses to allow the city or its properly authorized agent, officer or employee to enter such premises for the purpose set out in this section, the city shall have the right and authority to cut off the water from such premises at any other convenient place; and the services shall not be reinstated until the property owner or tenant shall have caused such water meter to be removed and placed ready for service, at whatever place the city shall designate. The city shall not be liable for cutting off the water upon such premises.
(Code 1982, § 23-100)

Sec. 26-606. Record of meters installed, reading of meters.

The city shall ascertain and keep a record of all water meters and shall read such meters and ascertain or cause such meters to be read and ascertained as soon as practical after the first day of each month the amount of water consumed by each and every customer, during the next preceding 30 days.
(Code 1982, § 23-101)

Sec. 26-607. Fire protection and fire service lines and systems.

(a) *Establishment.* Fire hydrants, fire sprinkler systems, hose racks and fire prevention systems may be established on private property by its owner at his own cost for pipe, valves, fittings and connections to water mains, etc. The work shall be done under the supervision of the water or fire department and the maintenance of such mains, valves and hydrants shall be at the cost and expense of the owner of the property. The regular, established rate for such connection for such fire hydrants, fire sprinkler systems, hose racks and fire prevention systems shall be paid and, if not, it shall be disconnected.

(b) *Connection to water system.* Any person establishing fire hydrants, fire sprinkler systems, hose racks and fire prevention systems shall have the right to have them connected to the

city's water system provided the owner pays to the water department, prior to installation and connection, the cost of the meter to be installed and prescribed and specified by the city water department. All work necessary for connection of such system and meters to the city water system shall be performed and done by the water department. No water is to be used from the fire hydrants, fire sprinkler systems, hose racks and fire prevention systems at any point on the line, except in case of fire; nor are any fixtures whatsoever to be connected with such fire line.

(c) *Charges.* The owner of all fire hydrants, fire sprinkler systems, hose racks and fire prevention systems installed and connected to the city water system shall pay unto the city a monthly charge based on the current water rate schedule.

(d) *Restrictions on unmetered systems.* The owner of all existing unmetered fire hydrants, fire sprinkler systems, hose racks and fire prevention systems located within the city and without the city, and connected to the city water system, shall keep and maintain such systems in such a manner as not to cause or allow leakage or waste of water; and if the owner of the system allows the fire hydrants, fire sprinkler systems, hose racks or fire prevention systems to consume or use water for any other cause or reason other than fire, the superintendent of the water department shall have the right and authority to disconnect the service and, prior to restoring or reconnecting such service, may cause or require the owner to comply with the provisions of sections 26-607(b) and 26-607(c), and, after restoring or reconnecting the service with a meter, to be subject to the payment of the charges as set forth in section 26-607(c).

(e) *No guarantee by city.* The city guarantees no certain water pressure and shall in no case be in any way liable or responsible to any persons whatsoever in case of fire, for any damage that may result from any alleged insufficiency of such fire protection, either from want of pressure or volume, accessibility or for any other cause.

(Code 1982, §§ 23-102—23-104, 23-106, 23-107; Ord. No. 15-912, 12-17-2015)

Cross reference—Fire prevention and protection, ch. 13.

Sec. 26-608. Tests.

The city shall, at its own expense, make periodic tests and inspections of its water meters in order to maintain a high standard of accuracy. The city shall make additional tests or inspections of its meter at the request of any customer. If such tests show that the meter is accurate based on industry standards, no adjustment will be made in the customer's bill; and a charge may be established and collected to cover costs incurred. The charge for such services shall be determined by the waterworks utility board of the city. An adjustment shall be made to the customer's bill over a period of not more than 30 days prior to the date of any test demonstrating that the meter was inaccurate based on industry standards; and the cost of making such test shall be borne by the city.

(Code 1982, § 23-108; Ord. No. 15-912, 12-17-2015)

Secs. 26-609—26-630. Reserved.

DIVISION 6. RATES AND CHARGES; BILLING AND COLLECTION PROCEDURES

Subdivision I. In General

Sec. 26-631. Schedule.

(a) The rate charges to consumers of water by the city for the monthly consumption beginning with January 2013 billing cycle, increasing on the October 2013 billing cycle, increasing on the October 2014 billing cycle, increasing on the October 2015 billing cycle and increasing on the October 2016 billing cycle and continuing thereafter, shall be as follows:

Consumer Classes	*Effective January 2013*	*Effective October 2013*	*Effective October 2014*	*Effective October 2015*	*Effective October 2016*
Residential—Inside City Limits					

Consumer Classes	*Effective January 2013*	*Effective October 2013*	*Effective October 2014*	*Effective October 2015*	*Effective October 2016*
First 3,000 gallons	$1.28 per 1,000 gallons	$1.29 per 1,000 gallons	$1.30 per 1,000 gallons	$1.32 per 1,000 gallons	$1.33 per 1,000 gallons
Next 3,000 gallons	$1.64 per 1,000 gallons	$1.66 per 1,000 gallons	$1.68 per 1,000 gallons	$1.69 per 1,000 gallons	$1.71 per 1,000 gallons
Next 6,000 gallons	$1.83 per 1,000 gallons	$1.85 per 1,000 gallons	$1.87 per 1,000 gallons	$1.89 per 1,000 gallons	$1.91 per l,000 gallons
Over 12,000 gallons	$2.51 per 1,000 gallons	$2.69 per 1,000 gallons	$2.75 per 1,000 gallons	$2.88 per 1,000 gallons	$3.01 per 1,000 gallons
All Sprinkler	$2.51 per 1,000 gallons	$2.69 per 1,000 gallons	$2.75 per 1,000 gallons	$2.88 per 1,000 gallons	$3.01 per 1,000 gallons
Wholesale/Resale					
Sole Source	$1.89 per 1,000 gallons	$1.91 per 1,000 gallons	$1.92 per 1,000 gallons	$1.94 per 1,000 gallons	$1.96 per 1,000 gallons
Supplemental	$5.96 per 1,000 gallons	$6.08 per 1,000 gallons	$6.20 per 1,000 gallons	$6.32 per 1,000 gallons	$6.45 per 1,000 gallons
Multi-Meter Sole Source					
First 5,000,000 gallons	$1.89 per 1,000 gallons	$1.91 per 1,000 gallons	$1.92 per l,000 gallons	$1.94 per l,000 gallons	$1.96 per l,000 gallons
Over 5,000,000 gallons	$1.55 per 1,000 gallons	$1.56 per 1,000 gallons	$1.58 per 1,000 gallons	$1.59 per 1,000 gallons	$1.61 per 1,000 gallons
Commercial/Industrial					
Up to 1,000,000 gallons	$1.89 per 1,000 gallons	$1.91 per 1,000 gallons	$1.92 per 1,000 gallons	$1.94 per 1,000 gallons	$1.96 per l,000 gallons
Above 1,000,000 gallons	$1.55 per 1,000 gallons	$1.56 per 1,000 gallons	$1.58 per 1,000 gallons	$1.59 per 1,000 gallons	$1.61 per l,000 gallons
All Sprinkler	$2.51 per 1,000 gallons	$2.69 per 1,000 gallons	$2.75 per 1,000 gallons	$2.88 per 1,000 gallons	$3.01 per 1,000 gallons
Metered Fire Line	$2.51 per 1,000 gallons	$2.69 per 1,000 gallons	$2.75 per 1,000 gallons	$2.88 per 1,000 gallons	$3.01 per 1,000 gallons

(b) In addition to the above rates for water consumed, there is an availability charge that is added to the consumption charge, which charge is based on having water available to the customer or consumer for water consumed or used. In the event there is no consumption, the availability charge alone will apply. The availability charge is based on meter size, and is as follows:

Meter Size	*Effective January 2013*	*Effective October 2013*	*Effective October 2014*	*Effective October 2015*	*Effective October 2016*
Each 1" meter or smaller	$6.34	$7.84	$9.34	$10.84	$12.34
Each 1½" meter	$19.53	$24.15	$28.77	$33.40	$38.02
Each 2" meter	$29.64	$36.65	$43.66	$50.67	$57.68
Each 3" meter	$63.02	$77.93	$92.84	$107.75	$122.66
Each 4" meter	$102.25	$126.44	$150.63	$174.82	$199.01
Each 6" meter	$203.18	$251.25	$299.32	$347.39	$395.46
Each 8" meter	$276.37	$341.75	$407.14	$472.53	$537.91
Each 10" meter	$525.30	$649.58	$773.86	$898.14	$1,022.42
Fire line	$5.16 per inch	$6.38 per inch	$7.60 per inch	$8.82 per inch	$10.04 per inch
Fire hydrant charge	$7.24	$7.31	$7.39	$7.46	$7.53

(c) Except for wholesale/resale supplemental and sole-source sale where water is used through a common meter; and

(1) Where more than one house, building, or structure used for living, eating, or sleeping quarters, or in which a business occupation or profession is conducted or carried on;

(2) In apartment houses or buildings;

(3) In houses or buildings occupied by more than one family;

(4) In business houses or buildings where one or more persons or entities are located therein and each person or entity is engaged in a separate business or different business; or

(5) Mobile home parks or facilities where multiple units or spaces each have a water connection, then each separate house, building, or structure, each unit in an apartment house or building, each family in one house, each person or entity engaged in a separate business or different business in one business house or building, each space or unit in a mobile home park or facility shall be subject to the availability charge per month of $6.34 effective January 2013, $7.84 effective October 2013, $9.34 effective October 2014, $10.84 effective October 2015 and $12.34 effective October 2016 in addition to any water consumed. If there is no consumption, the availability charge as set forth in paragraph (b) will apply.

(d) Provided further, that for residences, apartments, mobile home parks, and commercial establishments serving six or more families, apartment units, separate or different businesses through a common master meter, the charge shall be $1.64 per 1,000 gallons effective January 2013, $1.66 per 1,000 gallons effective October 2013, $1.68 per 1,000 gallons effective October 2014, $1.69 per 1,000 gallons effective October 2015, and $1.71 per 1,000 gallons effective October 2016. In addition to the above, there will be an availability charge per month of $6.34 effective January 2013, $7.84 effective October 2013, $9.34 effective October 2014, $10.84 effective October 2015, and $12.34 effective October 2016, per unit.

(e) The City of Huntsville shall pay a monthly maintenance charge of $7.24 effective January 2013, $7.31 effective October 2013, $7.39 effective October 2014, $7.46 effective October 2015, and $7.53 effective October 2016, for each fire hydrant in the water system.

(f) *Rates—Consumers outside the city limits.*

(1) In addition to the rates for water consumed, there is an availability charge that is added to the consumption charge which charge shall be based on having water available to the customer or consumer for water consumed or used. In the event there is no consumption, the availability alone will apply. The availability charge is based on the meter size and is as follows:

Monthly Availability Charge	*Effective January 2013*
Each 1" meter or smaller	$10.00
Each 1½" and 2" meter	$30.00
Each 3" meter	$50.00
Each 4" meter and larger	$100.00

(2) The rate charges to consumers for water outside the city limits for monthly consumption shall be as follows:

Consumer Classes Outside City Limits	*Effective January 2013*
Residential	
First 2,500 gallons	$2.50 per 1,000 gallons
Next 2,500 gallons	$3.75 per 1,000 gallons
Next 5,000 gallons	$3.50 per 1,000 gallons
Next 40,000 gallons	$3.25 per 1,000 gallons
All over 50,000 gallons	$4.51 per 1,000 gallons
Multi-Unit Residential	
First 2,500 gallons	$2.50 per 1,000 gallons

Consumer Classes Outside City Limits	*Effective January 2013*
Next 2,500 gallons	$3.75 per 1,000 gallons
Next 5,000 gallons	$3.50 per 1,000 gallons
Next 40,000 gallons	$3.25 per 1,000 gallons
All over 50,000 gallons	$4.51 per 1,000 gallons
Commercial	
First 2,500 gallons	$2.50 per 1,000 gallons
Next 2,500 gallons	$3.75 per 1,000 gallons
Next 5,000 gallons	$3.50 per 1,000 gallons
Next 40,000 gallons	$3.25 per 1,000 gallons
All over 50,000 gallons	$4.51 per 1,000 gallons
Multi-Unit Commercial	
First 2,500 gallons	$2.50 per 1,000 gallons
Next 2,500 gallons	$3.75 per 1,000 gallons
Next 5,000 gallons	$3.50 per 1,000 gallons
Next 40,000 gallons	$3.25 per 1,000 gallons
All over 50,000 gallons	$4.51 per 1,000 gallons

Additionally, the charge or rate for all over 50,000 gallons is to be increased at the same time the wholesale/resale supplemental rate is increased by Huntsville Utilities as charged to the Madison County Water Department.

(3) Adjustment: The rate charges to consumers outside the city limits shall be increased or decreased when rates charged by the Madison County Water Department to its consumers are increased or decreased.

(4) However, in no event shall a customer outside the city limits pay less than comparable customers inside the city limits plus a $0.15 per 1,000 gallon service premium added to any outside the city limits rate classes.

The rates and charges as set forth in this amendment shall become effective with meter readings on and after December 31, 2012.

(Code 1982, § 23-121; Ord. No. 90-617, 11-20-1990; Ord. No. 95-306, 5-11-1995; Ord. No. 99-314, 4-8-1999; Ord. No. 00-313, § 23-121, 4-13-2000; Ord. No. 02-842, § 23-121, 10-10-2002; Ord. No. 05-550, 8-11-2005; Ord. No. 07-1125, 11-20-2007; Ord. No. 12-1019, 12-20-2012)

Sec. 26-632. Leaks, waste.

If any leak or waste is found to have occurred at any water meter box, due to defective plumbing by the city, a water bill or charge for the current month shall be rendered to the consumer equal to the average bill or charge for the past three preceding months. If any leak or waste is found on private property underground where such leak or waste is not plainly visible, a bill or charge for the then current month shall be rendered to the customer at such place or the owner of the property, equal to the average bill for the past three preceding months, and there shall be added to the average bill, based on the past three preceding months' consumption, a charge at the then current residential-inside city limits-first 3,000 gallons rate schedule as set forth in Ordinance No. 12-1019 adopted on December 20, 2012 used over and above the averaged amount for the past three preceding months; provided, further however, that if such leak or waste shall occur in any water fixture or if it shall be otherwise visible or audible or known to the consumer, a bill or charge for the full amount of water used as shown by the meter reading shall be rendered against such customer and no allowance or credit thereon shall be made. The rates and charges as set forth in this amendment shall become effective on date of adoption of this ordinance.

(Ord. No. 13-249, 4-25-2013)

Editor's note—Ord. No. 13-249, adopted Apr. 25, 2013, repealed former § 26-632, and enacted a new section as set

out herein. The former section pertained to similar subject matter and derived from Code 1982, § 23-122; Ord. No. 84-713, 11-20-1984; Ord. No. 95-305, 5-11-1995.

Sec. 26-633. When meters fail to register.

When any water meter fails to register, an average shall be obtained from the readings taken from such meter from the preceding three months during which the meter was known to be operating correctly; and these readings shall be used as a basis of payment for water consumed through such meter for the period in which the meter is out of order and until repaired or replaced.
(Code 1982, § 23-123)

Secs. 26-634—26-640. Reserved.

Subdivision II. Billing and Collection Procedures

Sec. 26-641. When consumers billed.

The city shall, as soon as practical after the meter is read, cause to be either mailed or electronically delivered to the customer a statement of water consumption furnished by the city or to the owner of the house, building or property where such water service is furnished. Such statement shall show the quantity of water consumed by the consumer for the preceding 30 days and the amount due. In the case of the first billing of new accounts and final billings of all accounts where the period covered involves fractions of a month, the availability charges shall be adjusted to a basis proportionate with the period of time during which service was furnished. Any consumer requiring service for a period not exceeding 30 days shall be required to pay the availability charge for one month, together with the rate for the water consumed.
(Code 1982, § 23-136; Ord. No. 15-912, 12-17-2015)

Sec. 26-642. Failure to receive bill.

Failure to receive a statement or water bill shall not entitle any person to the net rates, nor shall it prevent the city from discontinuing service or cutting off the water in accordance with section 26-645.
(Code 1982, § 23-137)

Sec. 26-643. Dishonored checks.

When any check or order is delivered to the city in payment of any water account or water bill and is accepted and such check, or order, upon due presentation to the bank or trust company upon which it is drawn is not paid, the city shall charge the amount of such check or order back to the water bill or water account of such person. Such water bill or water account shall be considered a delinquent account, and the city shall be authorized to discontinue service in accordance with section 26-645, the same as if the check or order had not been given.
(Code 1982, § 23-138)

Sec. 26-644. Penalties.

A penalty of five percent on the first $250.00 of the bill plus one percent on any portion of the bill exceeding $250.00 shall be charged on all water bills based upon the rates set out in section 26-631 if such bill is not paid in full on or before the date shown on such bill. Payments that are due on a weekend or holiday will be due the next business day.
(Code 1982, § 23-139; Ord. No. 15-912, 12-17-2015)

Sec. 26-645. When service discontinued for failure to pay bill; reconnection charge.

If any consumer or owner of the house, building or property shall refuse or neglect to pay his water bill or charge on or before the penalty date as shown on the statement the water may be turned off and shall not be turned on again until the bill or charge shall be paid in full, plus a reasonable charge for turning on and off the water.
(Code 1982, § 23-140)

Sec. 26-646. Collection of connection and disconnection charges.

A fee for connection, reconnection and disconnection for water services, and a charge to

process returned checks which may or might be dishonored, may be established and collected to cover costs incurred for connecting, reconnecting service or disconnecting service. Such charges for such services shall be those charges which shall be made and determined by the waterworks utility board.
(Code 1982, § 23-141)

Sec. 26-647. Service not restored while delinquent consumer resides on premises.

No member of the consumer's family or anyone else living in the same house or building or on such property with the consumer where the water is cut off shall have the right to make or offer to make a deposit for water, or to demand that the city turn on the water at such place, so long as a delinquent lives there, and the water bill or charges, plus a reasonable charge as required in section 26-645, is unpaid. Further, delinquent charges owed by any member of the consumer's family living in the same house or delinquent charges of anyone else living in the same house will be charged back to the current active account to the same extent as if those charges were owed by the person who made the application for the account.
(Code 1982, § 23-142; Ord. No. 85-53, 1-24-1985)

Secs. 26-648—26-670. Reserved.

DIVISION 7. WATER CONSERVATION PLAN

Sec. 26-671. Established.

There is established a city water conservation plan.
(Ord. No. 87-326, § 1, 8-13-1987)

Sec. 26-672. Declaration of policy.

It is declared that, because of water conditions prevailing and which may prevail in the city, the general welfare requires that the water resources available to the city be put to the maximum beneficial use to the extent to which they are capable, and that the waste or unreasonable use or unreasonable methods of use of water be prevented, and the conservation of such water is to be extended with a view to the reasonable and beneficial use of water in the interests of the people of the city and for the public health and welfare.
(Ord. No. 87-326, § 2, 8-13-1987)

Sec. 26-673. Authorization.

The general manager of the city's utilities, or his designate, is authorized and directed to implement the applicable provisions of this division under his determination that such implementation is necessary to protect the public health and welfare and safety.
(Ord. No. 87-326, § 3, 8-13-1987)

Sec. 26-674. Application.

The provisions of this division shall apply to all persons, customers and property utilizing City of Huntsville dba Huntsville Utilities water wherever situated.
(Ord. No. 87-326, § 4, 8-13-1987)

Sec. 26-675. Water conservation stages.

(a) No customer of or person who uses water from the City of Huntsville dba Huntsville Utilities shall knowingly make, cause, use or permit the use of water received from the city for residential, commercial, industrial, agricultural, governmental or any other purpose in a manner contrary to any provision of this division, or in an amount in excess of that use permitted by the conservation stage in effect pursuant to action taken by the general manager of Huntsville Utilities, or his designate, in accordance with the provisions of this division.

(b) The general manager of Huntsville Utilities, or his designate, shall promulgate guidelines which shall set forth the criteria for determining when a particular conservation stage is to be implemented and terminated. Such guidelines shall be updated when, in the opinion of the general manager of Huntsville Utilities, or his designate, the conditions of the utility system have changed so as to necessitate such update.

(1) *Stage I, voluntary conservation.* Customers of or persons who use the water utility of the City of Huntsville dba Huntsville Utilities are requested to

voluntarily limit the amount of water to the amount absolutely necessary for health, business and outdoor use.

(2) *Stage II, mandatory compliance, water alert.* Upon implementation by the general manager of Huntsville Utilities, or his designate, and publication of notice, the following restrictions shall apply to all customers of or persons who use the water utility of the City of Huntsville dba Huntsville Utilities: Irrigation utilizing individual sprinklers from hoses, or buried sprinkler systems for the purpose of watering lawns, gardens, landscaped areas, trees, shrubs and other plants is prohibited except on designated water use days, which shall be as follows: Odd-numbered street addresses will water on odd days of the month, and even-numbered street addresses will water on even days of the month. This restriction shall not apply to commercial nurseries; however, commercial nurseries should restrict water use to that which is absolutely necessary. There is further exempt from the restriction any hand-held garden hose or small hand-held watering container which may be used on any day to water small areas that might need more frequent watering.

(3) *Stage III, mandatory compliance, water warning.* Upon implementation by the general manager of Huntsville Utilities or his designate and publication of notice, the following restrictions shall apply to all customers of or persons who use the water utility of the City of Huntsville dba Huntsville Utilities: Irrigation utilizing individual sprinklers from hoses, or buried sprinkler systems for the purpose of watering lawns, gardens, landscaped areas, trees, shrubs and other plants is prohibited except on designated water use days, which shall be as follows: Users of water at street addresses containing odd numbers will water on either Saturday or Sunday and Wednesday or Thursday when such date is on an odd calendar month number, and users of water at street addresses containing even numbers will water on either Saturday or Sunday and Wednesday or Thursday when such date is on an even calendar month number, it being the intent to have four designated outdoor watering days per week and to allow each user of water to water two times each week. During Stage III, mandatory compliance, water warning, the following additional restrictions shall apply:

a. On the Saturday/Sunday and Wednesday/Thursday watering days, no watering may be done between the hours of 6:00 p.m. and 9:00 p.m. Hand-held garden hoses or small hand-held watering containers may be used on any day except during the hours of 6:00 p.m. to 9:00 p.m.

b. Washing of private vehicles is prohibited except on the Saturday/Sunday and Wednesday/Thursday odd/even basis. No private vehicles may be washed between the hours of 6:00 p.m. and 9:00 p.m. Commercial car washes and service stations are exempt from this restriction.

c. Swimming pools will be filled only on the Saturday/Sunday and Wednesday/Thursday odd/even basis. There shall be no filling between the hours of 6:00 p.m. and 9:00 p.m.

d. Washing of sidewalks, streets, driveways, parking areas, tennis courts, patios or other paved areas is absolutely prohibited except by the department of public works services and the fire department to alleviate health or fire hazard.

e. Placing sprinklers which spray a significant amount of water in the street is prohibited.

f. Taking water from a fire hydrant is prohibited unless the person taking the water from the fire hydrant has a permit from the water department for an expressed purpose and

date that hydrant may be used, signed by an authorized utility representative. Utility crews, public works services department and fire department are exempt from this condition in order to properly maintain the water system and provide for public health and safety.

The Saturday/Sunday and Wednesday/Thursday restriction does not apply to commercial nurseries. However, commercial nurseries should restrict water use to what is absolutely necessary.

(4) *Stage IV, mandatory compliance, water emergency.* Upon implementation by the general manager or his designate and publication of notice, the following restriction shall apply to all customers of or persons who use the water utility of the City of Huntsville dba Huntsville Utilities: During stage IV, mandatory compliance, water emergency, no outside irrigation utilizing individual sprinklers from hoses or buried sprinkler systems for the purpose of watering lawns, gardens, landscaped areas, trees, shrubs and other plants is permitted. Also prohibited are the following:

a. The washing of private vehicles is prohibited except at commercial car washes or service stations.

b. The use of water from fire hydrants for any reason other than use by utility crews, department of public works, and the fire department to maintain the water system and quality is prohibited.

c. Stage IV, water emergency temporarily voids any standing fire hydrant use permits until the emergency has passed.

d. Washing of sidewalks, streets, driveways, parking areas, tennis courts, patios or other paved areas is absolutely prohibited except by the public works services department and the fire department to alleviate health or fire hazard.

e. The filling of swimming pools is prohibited during the water emergency.

(Ord. No. 87-326, § 5, 8-13-1987)

Sec. 26-676. Compliance; golf courses and tennis courts.

(a) Any golf course, either public or private, that uses City of Huntsville dba Huntsville Utilities water for watering greens and fairways must comply with the watering restrictions imposed by a water alert (stage II) or water warning (stage III). During a water emergency (stage IV), no water from the City of Huntsville dba Huntsville Utilities may be used for watering the fairways.

(b) Tennis courts (public or private) utilizing rubico surfaces are exempt from the restrictions of stage II and stage III and may be exempt from restrictions during a water emergency if conditions allow.

(Ord. No. 87-326, § 6, 8-13-1987)

Sec. 26-677. Mandatory conservation stage implementation.

The water department of the City of Huntsville dba Huntsville Utilities shall monitor its pumping capacity and demand for water by its customers on a daily basis during periods of hot and dry weather and shall determine the extent of conservation required through the implementation or termination of particular conservation stages in order for the City of Huntsville dba Huntsville Utilities Water Department to continue to supply adequate water to its customers. Thereafter, the general manager of Huntsville Utilities or his designate, may order the appropriate stage of water conservation be implemented or terminated in accordance with the applicable provisions of this division. This order shall be made by public announcement on the utility website and/or through social media. The order shall become effective immediately upon such publication and shall continue until such time as all restrictions are removed.

(Ord. No. 87-326, § 7, 8-13-1987; Ord. No. 15-912, 12-17-2015)

Sec. 26-678. Area implementation.

Due to the varied elevations, service areas with varied pumping and storage capacities, certain areas of the city that utilize the city water system may be designated to be in different stages of conservation at various times; and it shall be lawful to designate certain areas of the city to be in a certain stage of conservation.
(Ord. No. 87-326, § 8, 8-13-1987)

Sec. 26-679. Presumption.

For the purpose of this division, it shall be presumed that a person in whose name the water utility of the City of Huntsville dba Huntsville Utilities is or was last billed or who is receiving the economic benefit of the water supply has knowingly made, caused, used or permitted the use of water received from the city for residential, commercial, industrial, agricultural, governmental or any other purpose in a manner contrary to any provisions of this division, or in an amount in excess of the use permitted by the conservation stage in effect, if the water has been used in a manner contrary to any provision of this division, or in an amount in excess of the use permitted by the conservation in effect.
(Ord. No. 87-326, § 9, 8-13-1987)

Sec. 26-680. Penalty.

Any person violating any provision of this division shall be deemed guilty of an offense and upon conviction shall be punished as and for a violation of a misdemeanor. The violation of each provision and each separate violation shall be deemed a separate offense and shall be punished accordingly. Compliance may be further sought through injunctive relief.
(Ord. No. 87-326, § 10, 8-13-1987)

Chapter 27

VEGETATION*

Article I. In General

Secs. 27-1—27-30. Reserved.

Article II. Trees

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Sec. 27-32. Policy.
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Division 2. Tree Maintenance and Protection

Sec. 27-51. Trees on public land or easement-laden land.
Sec. 27-52. Trees on private land.
Sec. 27-53. Tree care standards.
Sec. 27-54. Pruning standards.
Sec. 27-55. Required electric power line clearances.
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Article III. Weeds and Overgrown Grass

Sec. 27-91. Definitions.
Sec. 27-92. Exceptions.
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Sec. 27-96. Enforcement.
Sec. 27-97. Satisfaction of liens.

***Cross references—**City tree commission, § 2-1451 et seq.; buildings and building regulations, ch. 7; environmental management, ch. 12; cutting grass, shrubbery, and weeds for mosquito control, § 14-36; recreation services, ch. 19; storage and collection of shrubbery clippings, § 22-76; streets, sidewalks and other public places, ch. 23; zoning, app. A; off-street parking and vehicular use area (Pva) landscaping requirements, app. A, ch. VII, art. 71; subdivision regulations, app. B.

ARTICLE I. IN GENERAL

Secs. 27-1—27-30. Reserved.

ARTICLE II. TREES*

DIVISION 1. GENERALLY

Sec. 27-31. Purpose.

The purpose of this article is:

(1) To establish recognized standards of tree planting and maintenance on public and easement-laden lands in the city;

(2) To protect trees and shrubs on public and easement-laden lands from willful and/or negligent harm; and

(3) To provide for active and continuing programs for public education about, and management of, trees.

(Ord. No. 04-45, § 1, 2-12-2004)

Sec. 27-32. Policy.

The policy of the city is to establish and maintain trees upon and within the rights-of-way of improved public streets and highways maintained by the city for ornamentation and to protect the public health, safety, and welfare. Interest in, and responsibility for, trees on the rights-of-way of improved public streets and highways maintained by the city is shared by the city and the owner of the adjoining land, in the absence of other specific provisions to the contrary. No tree planted by the city for ornamentation or public safety purposes within said rights-of-way shall be removed or intentionally damaged, injured, or destroyed, except by a duly authorized person, company, organization, or agent of the city who has first secured a permit from the city forester. Any tree presently located within such a right-of-way which is maintained by the owner of the adjacent property for ornamentation, shade, screening, or other purposes, may continue to be so maintained so long as that portion of the right-of-way is not improved for travel or utility purposes, and so long as maintenance of said tree is not inconsistent with the health, safety, and welfare. Such trees shall not be removed by the city without notice of the adjoining owner, except when such notice would impede the city's protection of the safe movement of vehicular and pedestrian traffic, or the safe operation and maintenance of the street or highway, or of public utilities or drainage facilities located within said rights-of-way. Removal for any other purpose shall be preceded by reasonable notice to the owner of the adjacent property, and based upon a finding by the city forester that such removal is in accordance with adopted standards.

(Ord. No. 04-45, § 2, 2-12-2004)

Sec. 27-33. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adopted tree care standards are those standards of tree maintenance, trimming clearances, and methods of protection of trees during construction, as established in the American National Standards Institute (ANSI) Standard A300 (2001), National Standard for Tree Care Operations - Tree, Shrub and Other Woody Plant Maintenance - Part 1 - Standard Pruning Practices, as may be amended; and the American National Standards Institute (ANSI) Standard Z133.1 (2000), Arboricultural Operations - Pruning, Trimming, Repairing, Maintaining, and Removing Trees, and Cutting Brush - Safety Requirements, as may be amended.

Caliper means tree trunk diameter, measured six inches above ground for trees with up to a four-inch caliper, and 12 inches above ground for larger trees.

City means the City of Huntsville and its authorized agents and contractors.

Critical rooting distance means the radius around the base of a tree including both the root plate and the transport roots attached to them, in

*__Editor's note—__Ord. No. 04-45, §§ 1—14, adopted Feb. 12, 2004, amended art. II of this chapter in its entirety to read as herein set out. Prior to amendment, art. II, §§ 27-31, 27-51—27-54, pertained to similar subject matter and derived unamended from the original Code.

which soil disturbance is likely to affect the overall health of the tree, and root damage is likely to introduce disease-causing organisms into the tree. This radius, in feet, is approximately 2.5 times the tree's d.b.h. in inches. (See also, "root plate" and "d.b.h.")

d.b.h. means "diameter breast height." For a single trunk tree, the d.b.h. is derived by measuring the trunk circumference of a tree at a point that is 4½ feet above ground on the uphill side of the tree and then dividing the circumference by 3.14. For a multi-stemmed tree, the d.b.h. is derived by obtaining the sum of the separate circumferences measured at a point 4½ feet above ground, then dividing the sum of the circumferences by 3.14.

Easement-laden land means privately owned land on which an easement has been granted to the city or another entity to allow for public services such as utility distribution, water distribution and drainage, access to maintain the public services, etc. An easement is only a right of use. The grant of an easement does not transfer ownership rights.

Electric power facilities refer to power transmission and distribution lines, transformers, substations, and associated equipment.

Hedgerow means a row of closely-spaced shrubs or bushes used to delineate space, restrict access, provide screening, or achieve a similar function.

Lateral separation means distance, measured horizontally at ground level, such as between an electrical conductor and the center of the trunk of a tree.

Live crown ratio means the fraction or percentage of the overall height of a tree bearing living, healthy branches.

Mulch means any organic material or rock placed over the soil surface of a planting area which serves the same function as leaf-litter in a natural forest environment.

Owner means the possessor of title, his agent or assignee, to the land on which particular trees stand. In the case of a tree on easement-laden land, ownership rights and responsibilities are defined in section 27-51, in the absence of other specific provisions by deed or other binding agreement.

Person means any individual acting on his own behalf, or on behalf of a company, agency, corporation, or other body.

Planting means establishing a tree, shrub, groundcover, vine, or other species of vegetation in a location where it is to remain for an extended period, usually the useful lifespan of the plant in the absence of unforeseen circumstances.

Private land means land belonging to a person or corporate entity, and not the city or other agency of government.

Public land means any land belonging to the city, including platted rights-of-way or streets and alleys. For the purposes of this definition, federal, state and county land is excluded from this category unless the city has specifically assumed responsibility for its maintenance.

Root plate means the area around the base of a tree in which the roots taper rapidly from pedestal roots to small transport roots; these structural roots are constantly subjected to compression and tension during windy conditions, so damage to these roots and subsequent decay commonly leads to catastrophic failure, especially during windy weather. (See also "critical rooting distance.")

Shrub, see the definition of *trees and shrubs* below.

Tree commission means any member of the Huntsville Tree Commission as described in division 8 of article VIII of chapter 2 of this Code, or any individual, including the city forester, assigned or contracted by the tree commission, acting in pursuit of the objectives of this article within its scope and within the bounds of law.

Trees and shrubs mean all woody vegetation, whether naturally occurring or planted; rights, responsibilities, and standards applying to trees shall, from a legal standpoint, apply to shrubs as well.

Utility, private means a commercial service distributed by use of the public streets, alleys, and easements of the city by the use of facilities

and fixtures located therein, but not regulated by the State of Alabama Public Service Commission.

Utility, public means a service distributed by wire, pipe, or airwaves to customers, and either regulated by the State of Alabama Public Service Commission (as in the case of telephone service) or not regulated by the Public Service Commission, but established as a municipal utility (as in the case of water, electric and gas service).
(Ord. No. 04-45, § 3, 2-12-2004)

Sec. 27-34. Offenses.

In relation to any tree or shrub located on public or easement-laden land, it shall be unlawful for any person not authorized to do so:

(1) To break, injure, mutilate, burn, kill, remove, or destroy any tree or shrub without authority to do so as set forth in this article;

(2) To knowingly permit any leak to exist in any gas pipe or main, within the root zone of such tree or shrub;

(3) To permit any toxic chemical, either solid or liquid, to pass, drain, or be emptied on or about any such tree or shrub;

(4) To knowingly permit any wire designed to carry electrical current to be attached to any tree or shrub, except in accordance with adopted standards;

(5) To excavate any tunnel, ditch, or trench, or to lay any driveway, sidewalk, or pavement through or across the root zone of any such tree or shrub, except in accordance with adopted standards;

(6) To attach any wire, rope, cable, poster, sign, nail, or other fastener to such tree or shrub, except in accordance with adopted standards;

(7) To place, deposit, or store any stone, brick, sand, earth, or other material so as to impede the passage of water, air, and fertilizer to the roots of any such tree or shrub, except in accordance with adopted standards;

(8) To move any building or other large object along any street in such a manner as to damage any tree or shrub that is maintained in accordance with adopted standards;

(9) To undertake to build any structure, pavement, utility, or other construction without proper consideration of such trees and shrubs in accordance with adopted standards;

(10) To unreasonably prevent, delay, or interfere with the city tree commission or any of its agents engaging in or about the planting, maintenance, or removal of any tree or shrub on public, easement-laden, or private lands as authorized in this article.

(Ord. No. 04-45, § 4, 2-12-2004)

Sec. 27-35. Enforcement.

When it comes to the attention of a city department or Huntsville Utilities that trees or other vegetation is in violation of these standards, that agency will request the city forester to inspect the problem jointly with a representative of that department. If a violation is believed to exist, the city forester will refer the matter to the property owner for redress, at his or her expense, within 14 calendar days. If the owner has not corrected the problem within that time, the city forester will refer all information to the appropriate enforcement authority.
(Ord. No. 04-45, § 5, 2-12-2004)

Sec. 27-36. Penalties and appeals.

(a) *Penalties.* Any person violating or failing to comply with any of the provisions of this article shall be guilty of a misdemeanor and upon conviction thereof shall be fined a sum sufficient to restore any damage resulting from the violation not to exceed $500.00 per tree or shrub damaged, and may be required to make such restitution in goods and/or labor as may be determined by the proper court of law, or may be sentenced to any combination of these penalties.

(b) *Appeals.* Appeals of arbitration, decisions or other actions by the tree commission may be made first to the city council and further to the proper court of law.
(Ord. No. 04-45, § 6, 2-12-2004)

Secs. 27-37—27-50. Reserved.

DIVISION 2. TREE MAINTENANCE AND PROTECTION

Sec. 27-51. Trees on public land or easement-laden land.

(a) *Maintenance.* Maintenance of trees located on public or easement-laden lands shall be performed under the supervision of the city forester who shall be in consultation with the city department having jurisdiction over the property in question.

(b) *Abatement of hazards.* When it comes to the attention of an officer or agent of the city that any tree maintained on a parcel of property which adjoins any public land or easement-laden land which is, or is likely to become, a threat to the public safety, the appropriate agent of the city, including the city forester, shall take one or more of the following actions:

(1) a. If the tree in question is deemed to be on private property, the officer or agent of the city shall, if possible, give notice to the property owner upon whose land the hazardous condition exists and allow the property owner a fixed period of time to take the necessary action or actions needed to remedy the hazardous condition; or

b. The officer or agent of the city may forthwith abate the hazardous condition by taking the appropriate and necessary action or actions in accordance with adopted standards.

c. If the tree in question is deemed to be wholly located on private property, and the owner of the private property has failed to abate the hazardous condition, the cost of the city's abating the hazard shall be assessed against the property owner.

(2) If the tree in question is deemed to be partially located on private property and partially located on public property, then the cost of abating the hazard shall be borne both by the city and the private property owner. The assessment of costs that shall be attributed to the city and to the property owner shall be assessed and prorated based on the proportion of the stump diameter of the tree located on private and public property.

When it comes to the attention of any owner of a parcel of land which adjoins any public land or easement-laden land that any tree maintained by him is, or is likely to become, a threat to the public safety, it is the duty of said owner to abate said hazard by appropriate action in accordance with the adopted standards.

(c) *Planting of trees on public land.* Any tree hereafter planted on, or in such location that as it matures it will affect the safe use of public land shall be selected, sited, planted, and maintained in accordance with the tree care standards set out in this article. Further, any tree classified by the city forester and the tree commission as unacceptable for planting on city property may be removed through the processes described in this article. A copy of the acceptable and unacceptable species of trees for planting shall be provided upon request by the city forester.

(d) *Removal and replacement of trees on public land.*

(1) *Tree removal permits.* Any public department or public utility removing a tree or shrub from public land shall do so in accordance with the standards adopted in this article. Any person or agency, private or public, needing to remove a tree six inches or more in d.b.h. from public land shall first obtain by telephone a removal permit from the city forester. Such permits may be granted for one tree or for groups of trees, and shall be issued at no cost under guidelines established by the tree commission.

(2) *Replacement of trees removed by permit.* Any person or agency removing trees, by permit, which are six inches or more in d.b.h. shall provide for the planting of new trees in approximately equal numbers and in appropriate locations mutually agreed upon by the city forester and the person obtaining the permit. Failure to obtain a permit when one would be required for removal of a tree shall not relieve responsibility for its replacement.

The city forester shall coordinate planting of trees as needed to replace those removed during construction by any city agency.

(Ord. No. 04-45, § 7, 2-12-2004)

Sec. 27-52. Trees on private land.

(a) Trees located on private land are the property and responsibility of the owner of such land. Yet such trees also have public usefulness, and value in energy conservation; in moderating extremes of temperature and humidity; in reducing noise, glare, and air pollution; in reducing soil erosion; and in improving the city's aesthetic character. To encourage conservation of this resource, the tree commission is empowered to take the following measures:

(1) Provide information and technical referral service to landowners, developers, builders, and other interested parties, including persons and private and public agencies, in protecting trees during planting and construction;

(2) Cooperate with interested public and private parties in conservation efforts such as Arbor Week observance, plant digs, community tree-planting, etc.;

(3) Participate in cooperative community projects as authorized and directed elsewhere in this article.

(b) *Trees on, or affecting, the use of easement-laden lands.* Trees on easement-laden lands are the property and responsibility of the owner of the land on which the easement lies. The city accepts no responsibility for the management of such trees beyond what is necessary to accomplish its lawful activities on such land, or consequent to such activities within applicable statutes of limitations. All removal or maintenance work involving such trees shall be conducted in accordance with the tree care standards adopted herein.

(Ord. No. 04-45, § 8, 2-12-2004)

Sec. 27-53. Tree care standards.

(a) *Tree planting.*

(1) *Planting procedures.* The planting specifications approved by the city forester and the tree commission shall be used for all planting projects executed or coordinated by the city. These procedures are to be adapted for individual planting sites by the city forester. The procedures include proper watering, mulching, staking, guying, etc. Additional information, including a copy of the planting specifications, shall be available from the city forester upon request.

(2) *Minimum size of trees to be planted on city property.*

Mature tree size (A copy of the classification chart is available through the city forester.)	*Minimum size at planting*
Large & medium	1½" caliper (2"—2.5" preferred)
Small	5'—6' height (6'—8' preferred)

(3) *Planting distance from above ground electrical utility lines, as measured horizontally from a line on the ground directly under the nearest charged conductor, generally.*

Mature tree size (A copy of the classification chart is available through the city forester.)	*Minimum lateral separation*
Large	20'
Medium	15'

Mature tree size (A copy of the classification chart is available through the city forester.)	*Minimum lateral separation*
Small	no lateral separation required
In instances where the minimum lateral separation requirement would prevent the planting of a tree, the city department having jurisdiction over the property in question shall work with Huntsville Utilities in order to reach a solution which will allow for the planting of a tree. Should the parties involved be unable to reach an agreement, the matter will be settled by a majority vote of the tree commission only after each of the involved parties have had an opportunity to present argument.	

(4) *Planting distance from sewer lines, sanitary & storm, generally.*

Tree species	*Minimum lateral separation*
Most trees, other than exceptions listed below	5'
Hackberry, pines, and all hedgerows	10'
Species deemed unacceptable by the city forester and the tree commission. Further information is available upon request from the city forester.	May not be planted
In instances where the minimum lateral separation requirement would prevent the planting of a tree, the city department having jurisdiction over the property in question shall work with water pollution control and/or public works in order to reach a solution which will allow for the planting of a tree. Should the parties involved be unable to reach an agreement, the matter will be settled by a majority vote of the tree commission only after each of the involved parties have had an opportunity to present argument.	

(5) *Parking lot landscaping plantings.* All parking lot landscaping must conform to appendix A, zoning, of this Code, as amended or supplemented.

(b) *Greenspace planting agreement.* The city wishes to encourage and promote the planting of shade trees along streets within the city; however right-of-way space is limited and not always adequate for large-growing shade trees. Space on private property adjoining the right-of-way is often adequate for the planting of shade trees by the city, and the use of such space would insure that many streets and neighborhoods that would otherwise be excluded from the city tree planting program would be included. The planting of shade trees by the city on private property adjoining the right-of-way would produce significant public benefits by providing a healthy and attractive tree canopy along city streets, and also serve to encourage property owners to plant suitable shade trees in a similar manner on their property.

For these reasons, the city forester is hereby authorized to contract with property owners within the city using the following contract:

"GREENSPACE PLANTING AGREEMENT

"This Greenspace planting agreement is made by the undersigned property owner(s) and the Huntsville City Forestry Division, under the authority of Section 2-1455 of the Code of Ordinances of the City of Huntsville. The purpose of this agreement is to encourage the planting of desirable trees in locations that will benefit all citizens of the City of Huntsville, to disseminate useful and accurate information on the selection, planting, and care of urban trees, and to stimulate public interest and pride in the ownership of trees.

"THE UNDERSIGNED PARTIES HEREBY AGREE AS FOLLOWS:

"1. The Huntsville City Forestry Division agrees:

"a. to provide one or more trees of mutually acceptable species, under the terms described below;

"b. to select mutually acceptable location(s), as described below, in which the tree(s) will be planted to maximize public and private benefits, and minimize the likelihood of future tree-related problems;

"c. to provide information on the planting and maintenance of trees;

"d. to provide initial horticultural pruning approximately one year after planting.

"2. The undersigned property owner agrees:

"a. to plant the tree(s), unless other arrangements are made, in the location(s) and manner agreed upon as described below;

"b. to use reasonable care in maintaining the tree(s), including periodic watering and mulching, and reasonable efforts to prevent or minimize damage to the tree(s), particularly with mowing equipment;

"c. to notify the Urban Forestry Division of tree problems affecting the use of adjacent rights-of-way.

"3. This agreement in no way limits or restricts the authority of the City of Huntsville to prune branches or otherwise abate conditions constituting a danger or hazard to the public, and in no way limits or restricts the authority of Huntsville Utilities to prune or trim trees under provisions set out in Article II, Trees, of Chapter 27, Vegetation, of the Code of Ordinances of the City of Huntsville, Alabama.

"4. The tree(s) planted under this agreement shall be the property and responsibility of the property owner, except to the extent modified by this agreement.

"5. This is a personal agreement between the parties and does not run with the land. This agreement shall be effective for 10 years from the date signed, unless sooner termination by conveyance of the land, by agreement of the parties, or otherwise.

"6. Specific arrangements:

a. species	common name	type	size	quantity
_____	_____	_____	_____	_____

b. planting location(s): _____

_____

c. cost sharing and other arrangements: __

_____

"7. Sketch planting site here, or attach a separate sheet.

"8. The undersigned property owner expresses a genuine desire to have the tree(s) described above at the site(s) agreed upon, and certifies that this agreement is entered into with full authority and that no other person or entity need be included as property owner with reference to the above described planting location.

"BY:

_____	_____
City Forester	Date
_____	_____
Property Owner	Property Owner"

(Ord. No. 04-45, § 9, 2-12-2004)

Sec. 27-54. Pruning standards.

The pruning of trees on city property, or pruning conducted by city employees shall be in accordance with:

(1) The American National Standards Institute (ANSI) Standard A300 (2001), as may be amended; and

(2) The American National Standards Institute (ANSI) Standard Z133 (2000), as may be amended.

(Ord. No. 04-45, § 10, 2-12-2004)

Sec. 27-55. Required electric power line clearances.

(a) When pruning is required to maintain the necessary clearance between any existing tree and an electric power line, the pruning shall be conducted in accordance with ANSI Standard A300. Branches or leaders to be cut back shall either be pruned to the next lateral having a

diameter at least one-third of that being cut, or else be pruned just outside the branch-collar at the base of the branch.

(b) Except as provided in subsection (c) below, the following maximum clearances shall be periodically established between electrical conductors at various voltages and adjoining vegetation:

(1) Telephone, TV cable, and other insulated communication lines require no minimum clearance;

(2) Secondary electric lines which carry voltage between 21—750 volts, insulated, shall require a clearance of two feet for areas of existing construction, and a clearance of four feet for areas of new construction;

(3) Distribution and transmission lines which carry voltage between 750—35,000 volts, uninsulated, shall require a clearance of ten feet;

(4) Distribution and transmission lines which carry voltage in excess of 35,000 volts, uninsulated, shall require a clearance of 15 feet.

(c) To lengthen the time between clearance pruning cycles for electric transmission and distribution lines, and to facilitate proper pruning to laterals as described in ANSI Standard A300, as referenced in subsection (a), above, clearances around transmission and distribution lines as set out in subsections (b)(3) and (b)(4), above, may be increased to 15 feet and 20 feet, respectively, at the discretion of Huntsville Utilities, for the following species only:

Hackberry and Sugarberry (*Celtis occidentalis* and *Celtis laevigata*

Boxelder (*Acer negundo*)

Silver maple (*Acer saccharinum*)

Tree of heaven (*Ailanthus altissima*)

Cottonwood (*Populus deltoides*)

Princesstree (*Paulownia tomentosa*)

Siberian elm (*Ulmus pumila*)

Black cherry (*Prunus serotina*)

Loblolly pine (*Pinus taeda*)

(d) *Removal and replacement of street trees near electric power facilities.* When in the judgment of Huntsville Utilities, a tree interferes with the safe and reliable operation of the electric power system along a street right-of-way, and cannot be pruned in accordance with ANSI Standard A300 so as to provide the required clearance as listed in subsection (b) and (c), above, Huntsville Utilities may offer to remove the tree and request replacement planting by the city, with a species and in a location mutually acceptable to the city, to Huntsville Utilities, and to the property owner. Such trees may be planted on public land, or private property, within the limitations and intent of section 27-53(b).
(Ord. No. 04-45, § 11, 2-12-2004; Ord. No. 05-576, 7-14-2005)

Sec. 27-56. Required right-of-way clearances.

The pruning clearances applicable to sidewalks, streets, allies, or any other rights-of-way, traffic control signals or signs, and all street lighting shall be in accordance with the standards adopted in section 25-462 of this Code.
(Ord. No. 04-45, § 12, 2-12-2004)

Sec. 27-57. Protection of trees on public land during construction.

(a) Plans for any construction done by or for the city, on either public land or easement-laden land, shall include a tree management plan, developed by or in cooperation with the city forester, for existing trees on the construction site. This plan shall:

(1) Identify and provide protection instructions for trees whose species, condition and location justify their preservation on the construction site. Protection instructions shall include, at a minimum, measures to:

a. Prevent mechanical damage to the trunks and branches of trees to be preserved;

b. Prevent construction activities of all types in trees' root-plate area;

c. Evaluate planned construction (grade cuts and fills; paving; materials storage; traffic and parking; fires; attach

ment of signs, fences, utility boxes; improper handling and dumping of toxic materials; washing and maintenance of equipment; etc.) in the critical rooting distance of trees to be saved, and provide measures to minimize damage to the trees in such areas;

d. Provide landscaping recommendations for interfaces between construction areas and tree-save zones;

e. Provide elements of an education program for work crew members and their supervisors.

(2) Provide for the removal of trees that cannot or should not be preserved during construction.

(b) The project manager shall consult the city forester for individual tree problems when necessary.

(c) For the disposal or removal of tree-maintenance residues, see article III, storage and collection, of chapter 22, solid waste, of this Code.
(Ord. No. 04-45, § 13, 2-12-2004)

Sec. 27-58. Education of tree care workers.

(a) The city forester will acquire or develop training materials oriented toward field tree-service crews and their supervisors, on the following topics and others as needed:

(1) Company and public policies, ordinances, etc.;

(2) Tree anatomy and growth;

(3) Tree reactions to injury and decay;

(4) Tree maintenance standards (ANSI Standard A-300);

(5) Safety and aerial rescue (ANSI Standard Z-133); and

(6) Utility pruning techniques.

(b) The city forester shall provide appropriate assistance, as requested by city departments, utility companies, commercial tree-service companies, etc., in the training of crews, supervisors, and other personnel, and may contract with instructors available from outside sources, if needed, with costs shared by agencies requesting the training.
(Ord. No. 04-45, § 14, 2-12-2004)

Secs. 27-59—27-90. Reserved.

ARTICLE III. WEEDS AND OVERGROWN GRASS

Sec. 27-91. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Grass and weed nuisance means any abundance of overgrown grass or weeds within the city, which is injurious to the general health, safety and welfare by providing breeding grounds and shelter for rats, mice, snakes, mosquitoes and other vermin, insects and pests; or attaining such heights and dryness so as to constitute a fire threat or hazard; bearing wingy or downy seeds, when mature, that cause the spread of weeds and, when breathed, irritation to the throat, lungs and eyes of the public; or hiding debris, such as broken glass or metal, which could inflict injury on any person going upon the property; or being unsightly, or any growth of grass or weeds, other than ornamental growth, which exceeds a height of eight inches growing upon any lot or parcel of land within any platted, subdivided, or improved residential, commercial or industrial subdivision, and any growth of grass or weeds, other than ornamental growth, which exceeds a height of 12 inches on property adjacent to a platted, subdivided, or improved residential, commercial or industrial subdivision.

Improved subdivision means a division of a tract of land or acreage into tracts or parcels, and the improvement by construction of streets, water lines and, where applicable, sewer lines to serve the subdivided property.

Natural condition means uncultivated and unseated land, still in a state of nature; but any growth on land once it has been cleared or plowed is not a natural condition, even though it has not been planted or cultivated by anyone.

Owner of property means legal titleholder, or lessee, or occupant of property, or agent of legal titleholder or lessee, in charge, possession or control of the property.
(Ord. No. 86-294, 5-8-1986; Ord. No. 04-948, 12-9-2004; Ord. No. 15-922, § 1, 12-17-2015)

Cross reference—Definitions generally, § 1-2.

Sec. 27-92. Exceptions.

Excepted from the requirements of this article are:

(1) Any property which is in its natural condition. Any growth on land once it has

been cleared or plowed is not a natural condition, even though it has not been planted or cultivated by anyone.

(2) Any property which is located outside any improved subdivision and is located more than 200 feet from any boundary of any lot or parcel of real estate upon which any dwelling is located, and more than 200 feet from any commercial enterprise.

(3) Cultivated row crops and garden plants in their respective growing seasons. But this exception applies only to growing crops and garden plants and shall not be construed to permit any crops or gardens to become overgrown with grass and weeds in violation of the remaining terms of this article.

(4) Ornamental shrubbery and ground cover, provided that such uses are part of a landscaping theme and not associated with a general deterioration of the property.

(Ord. No. 86-294, 5-8-1986)

Sec. 27-93. Overgrown condition prohibited.

It shall be unlawful and a nuisance, in violation of this article, for the owner of any real property situated within the corporate limits of the city to allow such real property to become overgrown with tall grass, or with any weed or plant such as jimson, burdock, ragweed, cocklebur or other weed of like kind, or any weed or plant bearing wingy or downy seeds, or any weed or plant that is otherwise noxious, dangerous, harmful or poisonous.

(Ord. No. 86-294, 5-8-1986)

Sec. 27-94. Maintenance of grass, weeds.

(a) It shall be the duty of the owner of any real property located within the city to maintain any grass or weeds growing upon the property in such a manner as not to constitute a nuisance.

(b) The duties and obligations of the owner of any real property located within the city extend to and include any such real property situated within a dedicated right-of-way or easement burdening the property, except to the extent that it may be impracticable to do so because of public facilities located there. Such rights-of-way and easements must be maintained by the owner in a manner consistent with the maintenance of the owner's remaining property and within the requirements set forth in this article, except to the extent it may be impracticable to do because of public facilities located there.

(Ord. No. 86-294, 5-8-1986)

Sec. 27-95. Maintenance practices of City of Huntsville and of public utilities.

The dedication and existence of a right-of-way for a public road and of an easement for drainage or for public utilities represents the grant of only a limited interest in property and does not change the actual ownership of the property upon which the right-of-way or easement is located. The public authority maintains rights-of-way and easements only to the extent necessary to maintain the public facility and to maintain safety. The owner of the burdened property continues to control the property, except to the extent that such control interferes with the public use. The public authority does not cut grass, weeds and other growth upon rights-of-way or easements, except to the extent necessary for operations and safety purposes. All other maintenance is the responsibility of the owner of the property upon which the right-of-way or easement is located.

(Ord. No. 86-294, 5-8-1986)

Cross reference—Utilities, ch. 26.

Sec. 27-96. Enforcement.

If the owner of real property located within the corporate limits of the city shall fail or refuse to comply with the provisions of this article, the manager of the community development division or other code enforcement officer of the community development division may cause to be served upon such owner, in person or by first class mail, notice requiring such owner to comply with this article within a time stated in the notice, or to appear for an administrative hearing before the manager or other code enforce-

ment officer or officers of the community development division as designated by the manager to determine whether the owner is in violation of this article. The notice shall apprise the owner of the facts of the claims against him and shall name a particular date, time and place for such hearing. The manager and the owner shall have the right to compel attendance of witnesses on his own behalf at such hearing. If after the hearing the manager finds that this article has been violated and a nuisance exists, the owner shall have five days from the hearing date, or five days from the date of notice by personal service or by first class mail, of the manager's determination, whichever is the later date, to comply with this article; otherwise, the manager may thereafter institute the following enforcement procedures:

(1) a. The manager of the community development division may cause the cutting of the offending grass or weeds. The manager shall keep an account of the costs of the cutting of the grass or weeds and shall render an itemized report in writing to the city council, setting forth the costs of cutting the grass or weeds. The owner shall be notified by first class mail at least five days in advance of the time fixed by the manager for the council to receive the report; and the owner may appear at that time and present objections, if any there be, to the report.

b. At the time fixed for receiving and considering the report, the council shall hear the report, together with any objections which may be raised by any of the owners whose property is liable to be assessed for the work and thereupon make such modifications in the report as they deem necessary, after which by motion or resolution the report shall be confirmed. The amounts of the cost for cutting and removing the grass or weeds mentioned in the report shall constitute special assessments against the land and as thus made and confirmed shall constitute a lien on the property for the amount of such assessments, which is to be collected by the city treasurer, or his/her designee, as any other debts are collected or liens enforced.

(2) The manager of the community development division or any enforcement officer working under his supervision may issue a citation to the owner of the property, requiring the owner to appear in the municipal court to answer charges for the violation of this article. Such citation shall name the party charged, the address of the property where the alleged violation is located, and the nature of the offense or violation. It shall also apprise the owner of the date, time and place at which to appear for court. Upon a finding of guilty in the municipal court, the owner is subject to the same penalty as provided for violation of city ordinances in section 1-7. Such citation, returnable to the municipal court shall be served on the owner of the property by any enforcement officer for the community development division, who shall forthwith appear and make oath as to the alleged offense before a magistrate of the municipal court. This provision for the issuance of a citation to municipal court shall not prevent any such officer from appearing before a municipal court magistrate and making oath as to the facts and applying for a summons or warrant with respect to any alleged offense, in lieu of issuing a citation.

(3) The manager of the community development division may institute both enforcement procedures set forth in subsections (1) and (2) of this section. The institution of one procedure does not preclude the subsequent or simultaneous institution of the other procedure, provided the criminal procedure is not used to collect any outstanding civil assessments against the subject property.

(Ord. No. 86-294, 5-8-1986; Ord. No. 23-696, § 1, 9-14-2023)

Cross reference—Weed lien and unsafe building demolition assessment, § 14-4.

Sec. 27-97. Satisfaction of liens.

Upon payment of the itemized accounts arising under this article, any liens or assessments filed under this article may be marked "Satisfied" and "Paid in Full" by the city treasurer or his/her designee.

(Ord. No. 86-294, 5-8-1986; Ord. No. 23-696, § 2, 9-14-2023)

State law reference—Authority to cut weeds at property owner's expense, Code of Ala. 1975, § 11-47-140.

APPENDIX A

ZONING ORDINANCE*

Article 1. Title, Application and Interpretation

1.1. Short title.
1.2. Application of regulations.
1.3. Interpretation, purpose, and conflict.

Article 2. Districts

2.1. Establishment of districts.
2.2. Provision for official zoning maps.
2.3. District boundaries defined.

Article 3. Definitions

3.1. Interpretation.

Chapter I. Residence District Regulations

Article 10. Residence 1 District Regulations

10.1. Uses permitted.
10.2. Density controls.
10.3. Off-street parking requirements.
10.4. Private streets; private subdivisions.
10.5. Signs permitted.
10.6. Second kitchens.
10.7. Conditions on uses.

Article 11. Residence 1-A District Regulations

11.1. Uses permitted.
11.2. Density controls.
11.3. Off-street parking requirements.
11.4. Private streets; private subdivisions.
11.5. Signs permitted.
11.6. Conditions on uses.

***Editor's note—**Printed in this appendix is Ord. No. 63-93, as adopted on March 21, 1963, as amended. This appendix is derived from a compiled copy of the ordinance furnished by the city that was current through Ord. No. 95-498, adopted August 24, 1995, and ordinances adopted subsequent thereto. Amendments adopted since August 24, 1995, are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the document adopted on March 21, 1963. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes and session laws, and expression of numbers in text as appears in the Code of Ordinances has been used. Additions made for clarity are indicated by brackets. At the requests of the city, the titles of city officials have been changed so as to be current through December 31, 1999.

Cross references—Any ordinance pertaining to zoning, including but not limited to the basic zoning ordinance and amendments and ordinances rezoning specific property saved from repeal, § 1-11(20); planning commission, § 2-1761 et seq.; buildings and building regulations, ch. 7; cultural facilities and historical preservation, ch. 10; environmental management, ch. 12; streets, sidewalks and other public places, ch. 23; vegetation, ch. 27.

State law reference—Zoning, Code of Ala. 1975, § 11-52-70 et seq.

Article 12. Residence 1-B District Regulations

12.1. Uses permitted.
12.2. Density controls.
12.3. Off-street parking requirements.
12.4. Private streets; private subdivisions.
12.5. Signs permitted.
12.6. Conditions on uses.

Article 13. Residence 2 District Regulations

13.1. Uses permitted.
13.2. Density controls.
13.3. Off-street parking requirements.
13.4. Private streets; private subdivisions.
13.5. Signs permitted.
13.6. Conditions on uses.

Article 14. Residence 2-A District Regulations

14.1. Uses permitted.
14.2. Density controls.
14.3. Off-street parking requirements.
14.4. Private streets; private subdivisions.
14.5. Signs permitted.
14.6. Conditions on uses.

Article 15. Residence 2-B District Regulations

15.1. Uses permitted.
15.2. Density controls.
15.3. Off-street parking requirements.
15.4. Private streets; private subdivisions.
15.5. Signs permitted.
15.6. Conditions on uses.

Article 16. Residence 1-C District Regulations

16.1. Uses permitted.
16.2. Density controls.
16.3. Off-street parking requirements.
16.4. Signs permitted.
16.5. Conditions on uses.

Article 17. Residence 2-C District Regulations

17.1. Uses permitted.
17.2. Density controls in Lincoln Village South of Oakwood.
17.3. Conditions on uses.

Chapter II. Business District Regulations

Article 20. Neighborhood Business C-1 District Regulations

20.1. Uses permitted.
20.2. Density controls.
20.3. Off-street parking and loading requirements.

20.4. Off-street parking and vehicular use area (PVA) landscaping and lighting.
20.5. Landscaping requirements.
20.6. Designation of new C-1 districts.
20.7. Alcoholic beverage establishment regulations.

Article 21. Reserved

Article 22. Neighborhood Business C-2 District Regulations

22.1. Uses permitted.
22.2. Density controls.
22.3. Off-street parking requirements.
22.4. Off-street parking and vehicular use area (PVA) landscaping and lighting.
22.5. Conditions on uses.

Article 23. General Business C-3 District Regulations

23.1. Uses permitted.
23.2. Density controls.
23.3. Installation and maintenance of landscaping.
23.4. Signs permitted.
23.5. Off-street parking requirements.
23.6. Historic district buffer zone density controls and design guidelines.
23.7. Alcoholic beverage establishment regulations.

Article 24. Highway Business C-4 District Regulations

24.1. Uses permitted.
24.2. Density controls.
24.3. Required yards.
24.4. Signs permitted.
24.5. Off-street parking and loading requirements.
24.6. Off-street parking and vehicular use area (PVA) landscaping and lighting.
24.7. Alcoholic beverage establishment regulations.

Article 25. Commercial Recreation C-5 District Regulations

25.1. Uses permitted.
25.2. Density controls and setbacks.
25.3. Street access and frontage.
25.4. Off-street parking and loading requirements.
25.5. Off-street parking and vehicular use area (PVA) landscaping and lighting requirements.
25.6. Signs permitted.
25.7. Height.
25.8. Development procedure.
25.9. Alcoholic beverage establishment regulations.

Article 26. Central Business C-B District Regulations

26.1. Uses permitted.
26.2. Density controls.
26.3. Off-street parking requirements.
26.4. Site development.
26.5. Landscaping requirements.

26.6. Signs permitted.

Article 27. Village Business C-6 District Regulations

27.1. Uses permitted.
27.2. Density controls.
27.3. Site development.
27.4. Signs permitted.
27.5. Off-street parking and loading requirements.
27.6. Off-street parking and vehicular use area (PVA) landscaping and lighting.
27.7. Reserved.
27.8. Performance standards.
27.9. Alcoholic beverage establishment regulations.

Chapter III. Planned Development PD District Regulations

Article 30. Planned Development PD District Regulations

30.1. Planned development, defined.
30.2. Relation of PD regulations to general zoning, subdivision or other regulations; variations on equal satisfaction of public purposes.
30.3. Planned development PD districts, where permitted; how established and designated.
30.4. PD additions to PD districts.
30.5. Procedures on PD amendments.
30.6. Expiration of time limits in relation to PD amendments; failure to meet other requirements.

Article 31. PD-H, Planned Development-Housing District Regulations

31.1. PD-H districts, where permitted; intensity of use.
31.2. Permitted principal and accessory uses and structures.
31.3. Land use intensity (LUI) ratings and related requirements.
31.4. Site planning, external relationships.
31.5. Site planning, internal relationships.
31.6. Open space and spacing of buildings or portions of buildings containing dwelling or lodging units.

Article 32. Reserved

Article 33. Reserved

Chapter IV. Industrial District Regulations

Article 40. Light Industry District Regulations

40.1. Uses permitted.
40.2. Density controls.
40.3. Off-street parking.
40.4. Off-street parking and vehicular use area (PVA) landscaping and lighting.
40.5. Alcoholic beverage establishment regulations.

Article 41. Heavy Industry District Regulations

41.1. Uses permitted.
41.2. Uses normally prohibited.
41.3. Density controls.
41.4. Off-street parking.
41.5. Off-street parking and vehicular use area (PVA) landscaping and lighting.
41.6. Bicycle parking requirements.
41.7. Alcoholic beverage establishment regulations.

Article 42. Planned Industrial District Regulations

42.1. Uses permitted.
42.2. Performance standards.
42.3. Required yards.
42.4. Density controls.
42.5. Street access and frontage.
42.6. Off-street parking and loading requirements.
42.7. Landscaping requirements.
42.8. Industrial district plan.

Article 43. Airport Industrial Park District Regulations

43.1. Uses permitted.
43.2. Uses specifically prohibited.
43.3. Required yards and landscaped areas for industrial buildings.
43.4. Density regulations.
43.5. Street access and frontage.
43.6. Off-street parking and loading requirements for industrial uses.
43.7. Performance standards.
43.8. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Article 44. Commercial Industrial Park District Regulations

44.1. Uses permitted.
44.2. Density controls.
44.3. Required yards.
44.4. Street access and frontage.
44.5. Off-street parking and loading requirements.
44.6. Signs permitted.
44.7. Height requirements.
44.8. Landscaping requirements.
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44.10. Performance standards.
44.11. Development procedure for tracts or parcels.
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Article 45. Heavy Manufacturing District Regulations

45.1. Uses permitted.
45.2. Density controls.
45.3. Street access and frontage.
45.4. Required yards.
45.5. Performance standards.
45.6. Off-street parking and loading requirements.
45.7. Landscaping requirements.
45.8. Heavy manufacturing district plan.

Article 46. Industrial Park District Regulations

46.1. Uses permitted.
46.2. Use standards.
46.3. Performance standards.
46.4. Required yards.
46.5. Density controls.
46.6. Street access and frontage.
46.7. Off-street parking and loading requirements.
46.8. Landscaping requirements.
46.9. Industrial park plan.

Chapter V. Research Park District Regulations

Article 50. Research Park District Regulations

50.1. Uses permitted.
50.2. Performance standards.
50.3. Required yards.
50.4. Density regulations.
50.5. Street access and frontage.
50.6. Off-street parking and loading requirements.
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50.8. Height requirements.
50.9. Landscaping requirements.
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50.11. Development procedure for tracts or parcels.

Article 51. Research Park West District Regulations

51.1. Uses permitted.
51.2. Performance standards.
51.3. Required yards.
51.4. Density regulations.
51.5. Street access and frontage.
51.6. Off-street parking and loading requirements.
51.7. Signs permitted.
51.8. Height requirements.
51.9. Landscaping requirements.
51.10. Development procedure for tracts or parcels.

Article 52. Research Park Applications District Regulations

52.1. Uses permitted.
52.2. Performance standards.
52.3. Required yards.
52.4. Density regulations.
52.5. Street access and frontage.
52.6. Off-street parking and loading requirements.
52.7. Signs permitted.
52.8. Height requirements.
52.9. Landscaping requirements.
52.10. Development procedure for tracts or parcels.

Article 53. Research Park Commercial District Regulations

53.1. Uses permitted.

53.2. Density regulations.
53.3. Street access and frontage.
53.4. Required yards.
53.5. Parking and loading areas.
53.6. Permitted signs.
53.7. Height limitations.
53.8. Landscaping requirements.
53.9. Lighting.
53.10. District requirements.
53.11. Development procedure.
53.12. Alcoholic beverage establishment regulations.

Article 54. Research Park Applications 2 District Regulations

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ARTICLE 1. TITLE, APPLICATION AND INTERPRETATION

1.1. Short title.

This ordinance shall be known and may be cited as "The Zoning Ordinance of the City of Huntsville, Alabama."

1.2. Application of regulations.

The regulations set by this ordinance within each district shall be minimum regulations and shall apply uniformly to each class or kind of structure or land and particularly, except hereinafter provided:

1.2.1. No building, structure, or land shall hereafter be used or occupied, and no building or structure or part thereof shall hereafter be erected, constructed, reconstructed, moved or structurally altered unless in conformity with all of the regulations herein specified for the district in which it is located.

1.2.2. No building or other structure shall hereafter be erected or altered:

1. To exceed the height;
2. To accommodate or house a greater number of families;
3. To occupy a greater percentage of lot area;
4. To have narrower or smaller rear yards, front yards, or side yards;

than herein required or in any other manner contrary to the provisions of this ordinance.

1.2.3. No yard or lot existing at the time of passage of this ordinance shall be reduced in dimension or area below the minimum requirements set forth herein. Yards or lots created after the effective date of this ordinance shall meet at least the minimum requirements established by this ordinance.

1.3. Interpretation, purpose, and conflict.

In their interpretation and application, the provisions of this ordinance shall be considered minimum requirements, adopted for the promotion of the public health, safety, morals, convenience, order, prosperity, and general welfare of the City of Huntsville. Wherever the requirements of this ordinance are at variance with the requirements of any other lawfully adopted rules, regulations or ordinances, the most restrictive or that imposing the higher standards shall govern.

ARTICLE 2. DISTRICTS*

2.1. Establishment of districts.

For the purpose of this ordinance, the area of the City of Huntsville, Alabama, is hereby divided into districts as follows:

Residence 1 district

Residence 1-A district

Residence 1-B district

Residence 1-C district

Residence 2 district

Residence 2-A district

Residence 2-B district

Residence 2-C district

Neighborhood business C-1 district

Neighborhood business C-1A district

Neighborhood business C-2 district

General business C-3 district

Highway business C-4 district

Commercial recreation C-5 district

Central business C-B district

Light industry district

Heavy industry district

Planned industrial district

Airport industrial park district

Commercial industrial park district

Heavy manufacturing district

Industrial park district

*__State law reference—__Conflicts between zoning and other ordinances, Code of Ala. 1975, § 11-52-82.

Research park district

Research park west district

Research park applications district

Research park commercial district

Research park applications 2 district

Medical district

Medical 2 district

Disposal storage district

Airport obstruction and noise exposure district

Airport commercial district

Planned development-housing PD-H district

Planned development—shopping center district

Planned development—highway commercial district

Flood hazard district

Slope development district

Residential office district

Office district
(Ord. No. 98-260, § 1, 5-14-1998; Ord. No. 99-206, § 1, 4-8-1999; Ord. No. 05-860, § 1, Ord. No. 11-22-2005; Ord. No. 06-732, § 1, 9-28-2006; Ord. No. 06-1201, § 1, 1-25-2007)

State law reference—Districts authorized, Code of Ala. 1975, § 11-52-70)

2.2. Provision for official zoning maps.

The boundaries and designations of the districts provided for herein are hereby established as shown on the maps identified by the title, "City of Huntsville, Alabama, Zoning Maps," which maps shall be further identified by the numbers and effective dates of the adopting and amending ordinances.

The official ordinances defining district boundaries and bearing the signature of the Mayor of the City of Huntsville shall be on file in the office of the city clerk-treasurer. The official zoning maps shall be on file in the planning office.

2.3. District boundaries defined.

Unless otherwise specifically shown on the Official Zoning Maps of the City of Huntsville, the boundaries of districts are lot lines, the centerlines of streets or alleys or such lines extended, railroad rights-of-way, natural boundary lines such as natural or artificial watercourses, the corporate limit lines as existed at the time of enactment or amendment of this ordinance.

Questions concerning the exact location of district boundary lines shall be decided by the board of adjustment constituted as provided in article 92 hereof.

ARTICLE 3. DEFINITIONS

Except where specifically defined herein, all words used in this ordinance shall carry their customary meanings. Words used in the present tense include the future; and the plural number includes the singular, and the singular the plural. The word "shall" is mandatory, the word "may" is permissive. The word "lot" includes the word "plot" or "parcel." The word "person" includes a firm, association, organization, partnership, trust company, or corporation, as well as an individual. The word "building" includes the word "structure"; the term "occupied" or "used" shall be considered as though followed by the words "or intended, arranged, or designed to be used or occupied."

3.1. Interpretation.

For the purpose of this ordinance, certain terms or words shall be interpreted as follows:

Accessory structure. A supplementary structure detached from a principal building on the same lot and customarily incidental and subordinate to the principal building or use, containing no plumbing facilities other than one laundry sink and/or one toilet, and meeting the requirements of section 73.8 with the exception that plumbing facilities may be allowed in an accessory structure that is used as a bathhouse in conjunction with a swimming pool, provided such bathhouse does not exceed 180 square feet in area.

Accessory use. See section 73.1.1 in supplementary regulations hereof.

Alley. A public thoroughfare having a narrow right-of-way and affording a secondary means of access to abutting properties.

Antenna. A device used to transmit and/or receive radio frequency signals.

Apartment. See dwelling, multiple-family.

Area, building. Total building area is the area of the lot covered by all buildings, principal and accessory, but not including the ordinary projections of window sills, belt courses, cornices, eaves, chimneys and other architectural features provided that such features shall not project more than two feet from the building.

Assisted living facility. A system of housing and limited care that is designed for those who need some assistance with daily activities but do not require care in a nursing home.

Basement. A story partly underground, but having at least one-half of its height above the average level of the adjoining ground.

Bearing capacity. The safety factor for bearing capacity applies to all structures that have a foundation. A soilbearing capacity is defined as the amount of load a soil can carry without experiencing a shear failure. A minimum safety factor of 3.0 is commonly recommended for bearing capacity.

Bed and breakfast. A bed and breakfast is a single-family dwelling operated as a transient lodging facility by a resident of the dwelling which provides overnight accommodations and morning meals to overnight guests for compensation.

Boarding house. A boarding house is a building, other than a hotel, motel, or bed and breakfast, where, for compensation, individual rooms and board (meals) are provided by a resident or non-resident landlord/operator for up to ten (10) transient or non-transient, related or unrelated individuals, and in which the boarders share common areas, and where the landlord/operator may supply some services such as laundry and cleaning services.

Broadcast services. The transmission of television and radio programming to reach the general public. For the purposes of this ordinance, towers supporting VHF and UHF television and FM radio transmitting antennas shall be regulated as broadcast towers as shall any other towers that require an elevated site to broadcast programming to the general public. AM radio broadcast towers, which do not require elevated sites, exceptionally tall towers or line of sight transmission, shall be regulated as for mobile and fixed point radio service towers.

Buffer of screen planting. A strip of land not less than 15 feet wide containing plant materials planted and maintained as follows:

One tree per 15 linear feet of length of said strip, no less than 60 percent of which shall be of an evergreen screening tree species, as defined herein, with the remainder of the required trees being deciduous trees, 50 percent of which shall be deciduous screening trees, as defined herein, with no single species constituting more than one-third of the total required trees; as well as, two screening shrubs, as defined herein, per five linear feet of said strip, a minimum of which 60 percent shall be evergreen, however, in no case shall any one species constitute more than one-third of the total number of required shrubs; as well as, grass, permanent mulch beds, or other permanent vegetative ground cover on all parts of each screen planting strip. All required plants shall be arranged in such a manner so as to provide a variety of plant materials, locations, and spacing with the intent of achieving the greatest degree of screening practical. Additional plants may be planted within the strip provided the minimum screening requirements as listed above are met. Existing vegetation may be credited in lieu of the required planting provided the existing vegetation is identified by species, size and condition on an approved landscape plan, and provided that the existing vegetation provides a degree of screening that meets or exceeds that which would be provided by the required planting.

A *screening shrub* shall be a locally adapted species of a type capable of reaching a minimum height of five feet and a minimum spread of

five feet within three years of planting. All such shrubs shall be a minimum 24 inches in height and spread at time of installation.

A *screening tree* shall be any deciduous or evergreen tree whose mature height can be expected to exceed 35 feet, and which has an expected crown spread of 20 feet or more. Deciduous screening trees shall be at least ten feet in height and two inches in diameter measured at one-half foot above grade for newly planted trees at the time of planting, or two inches in diameter measured 4½ feet above grade if existing. Evergreen screening trees shall be at least six feet in height and three feet in crown width at the time of planting, or two inches in diameter measured at 4½ feet above grade if existing. However, in no case shall any tree required herein be of a height of less than six feet, or of a crown width of less than three feet at the time of planting.

In the case where there is an easement on the property in the area where the buffer of screen planting is required and said easement prevents the planting of landscape materials as required in the buffer of screen planting, then the required buffer of screen planting shall be located outside of and alongside the easement and shall meet the full requirements of the buffer of screen planting.

In the case where there are overhead utility lines located within 15 feet of the boundary of the required buffer of screen planting, the required screening trees shall be replaced by tree species with an expected mature height of no less than ten feet, and no greater than 20 feet; however, no less than 60 of the required trees, in such cases, shall be evergreen, and no single species shall constitute more than one-third of the required trees.

A *shade tree* shall be any deciduous or evergreen tree whose mature height of its species can be expected to exceed 35 feet and which has an expected crown spread of 30 feet or more and is considered a shade tree in accordance with American Standards of Nursery Stock, set forth by the American Association of Nurserymen. The shade tree, existing or planted, shall be at least eight feet in height and two inches in diameter measured at one-half foot above grade for new planted trees and measured 4½ feet above grade for existing trees.

Buildable area. The buildable area is the portion of the lot remaining after required yards have been provided. Buildings may be placed in any part of the buildable area, but limitations on total building area as a percent of lot area may require open space within the buildable area.

Building. Any structure having a roof supported by columns or by walls.

Building height. The vertical distance measured from the average elevation of the proposed finished grade at the front of the building to the highest point of the roof for flat roofs, to the deck line of mansard roofs, and the mean height between eaves and ridge for gable, hip and gambrel roofs.

Building line. A line showing the nearest distance to the street property lines that it is permissible to build a structure as permitted by this ordinance.

Child care center. A facility licensed by the Alabama Department of Human Resources that provides for the care of 13 or more children.

Child care home. A child care facility which is a family home, which receives on a regular basis not more than six children for care during part of the 24-hour day, and which is licensed and regulated by the Alabama Department of Human Resources.

Commercial mobile radio services. Encompasses those mobile services that are operated for profit, are connected to a telephone exchange network, and are available to the general public; includes services such as cellular telephone, personal communication services (PCS), specialized mobile radio (SMR), and paging.

Convenience store. A small scale retail store that offers for sale a limited line of groceries and household items and may also sell gasoline.

Court. A court is an uncovered outdoor space enclosed on two or more sides by exterior walls of

buildings on the same lot. Courts need not be based at or near grade level, depending on their function in buildings, but where a court is overlooked by residential occupancies, limitations on occupancy from the surface of the required court upward shall be as provided for in [the term] "yard," below.

Coverage. That percentage of the lot area covered by the building area.

Day care home. See child care home.

DBS. Direct broadcast satellite services; a satellite system with sufficient power to allow small earth stations to be used for reception of compressed video signals.

Dog kennel. A structure used for the harboring of more than three dogs that are more than six months old.

Domicile. A family's true, fixed, sole, and permanent home and place of habitation.

Dwelling. Any building or portion thereof which is principally used solely as a residence for a family.

Dwelling, multiple-family. Three or more dwelling units on a single lot.

Dwelling, single-family. One detached or semi-detached dwelling unit on a single lot.

Dwelling, two family. Two dwelling units on a single lot.

Dwelling unit. A dwelling used as a separate residence for one family with its own permanent facilities for living, sleeping, eating, cooking, and sanitation.

Earth station. A facility that transmits and/or receives radio signals to and/or from a satellite.

Enclosed mall shopping center. A single structure composed of buildings or groups of buildings connected by a covered mall and designed primarily for mercantile use with multiple tenants.

Expected future use. The land use that is anticipated to be appropriate for a site after reclamation has been completed.

Expressway. A multi-lane divided highway for through traffic with full control of access and with grade separations at street intersections.

Extraction activities. All functions, work, and activities in connection with the development or extraction of mineral deposits, and all uses reasonably incidental thereto, including but not limited to the construction of roads and other means of access, pipelines, electric power lines, storage facilities, structures, processing equipment, and recirculating water systems, but not including chemical processing plants. The definition of extraction activities also includes all preextraction activities, which are those activities involving physical alteration of the earth that are necessary before the actual extraction process can begin, and includes clearing and grading, but excludes site surveying, coring, mapping, and other functions necessary solely for proper planning and evaluation of the site.

Extraction site. All that land owned, leased or controlled for the primary purpose of conducting extraction activities to include but not be limited to all surface areas from which minerals are removed or are to be removed in the future, related storage and processing areas, and areas disturbed by extraction activities such as the construction or improvement of roads.

FAA. Federal Aviation Administration.

Family. A family consists of:

(i) An individual living alone as a single housekeeping unit;

(ii) Any number of related individuals who are connected by the following established and verifiable relations: blood within the fourth degree of consanguinity (first cousins), marriage, adoption, foster care, or guardianship, and who are living together as a single housekeeping unit;

(iii) Two unrelated individuals in a domestic relationship who have made a commitment to share their lives and where each party is responsible for the basic material needs of the other, along with their respective relations who are connected by the following established and verifiable relations: blood within the fourth

degree of consanguinity, marriage, adoption, foster care, or guardianship, and who are living together as a single housekeeping unit; or

(iv) Up to four unrelated individuals living together as a single housekeeping unit.

Farmers market. A market conducted outdoors or in an unenclosed shelter where retail sales and demonstration of home-grown products, including produce, ornamental crops, meat, eggs and other agricultural products; homemade value added products, including baked goods, jams and jellies, pickles and relish, dried fruits, syrups and honey; and handmade arts, crafts, and unique local goods are conducted by the vendor engaged in the production of such products. The term does not include the sale or demonstration of mass produced items, used clothing, appliances, and other similar products.

FCC. Federal Communications Commission.

Fixed point radio services. Encompasses nonmobile common carriers and multipoint distribution service operations that require fixed transmitting and receiving facilities, such as fixed point microwave and multipoint multichannel distribution services (MMDS).

Food court. A common space adjacent to food vendors within an enclosed shopping mall designed and furnished for the convenience of diners.

Food kiosk. A non-motorized pushcart or stand designed to be portable and not permanently attached to the ground from which prepared food or beverages are peddled, vended, sold, displayed, offered for sale, or given away.

Garage, private. An accessory structure used for storage purposes only and having a capacity of not more than three automobiles, or not more than two automobiles per family housed in the building to which the garage is accessory, whichever is greater.

Garage, repair. Any garage other than a private garage, available to the public, operated for gain, and which is used for storage, repair, rental, greasing, washing, servicing, adjusting or equipping of automobiles, or other motor vehicles.

Gravel pit. A site from which gravel is removed or excavated for the purpose of disposition away from the immediate premises whether such disposition is immediate or in the future.

Group child care home. A child care facility which is a family home, which receives on a regular basis at least seven but no more than 12 children for care during part of the 24-hour day, which has at least two adults present and supervising the activities, and which is licensed and regulated by the Alabama Department of Human Resources.

Group day care home. See group child care home.

Group nighttime home. See group child care home.

Health officer. Huntsville-Madison County Health Officer or his duly authorized assistant.

Heliport (commercial). An area, either at ground level or elevated on a structure, that is used for the frequent landing and takeoff of helicopters, whose surface of the heliport be [is] of such material that dust, dirt, or other objectional matter will not be blown onto adjoining property by helicopter operations, which heliport may or may not contain all or part of such auxiliary facilities as waiting rooms, hangers, parking, fueling, and maintenance areas.

Hotel. A building or group of buildings used by transient guests and containing no cooking facilities in the individual units.

House trailer. Any structure intended for or capable of human habitation, mounted upon wheels and capable of being driven, propelled, or towed from place to place without change in structure, or design by whatsoever name it is colloquially or commercially known; and regardless of whether or not its wheels are removed and the structure is fixed to a permanent foundation.

Hydrologic. Dealing with the properties, distribution and circulation of water on the surface of the land, in the soil and underlying rocks, and in the atmosphere.

Kitchenette. A facility designed and intended for storing and preparing food for limited use for transient guests. Such kitchenette shall be limited to six linear feet of counter space containing a stove having not more than three eyes, a sink, and a refrigerator having a volume of not more than 4.5 cubic feet. Overhead cabinets shall not exceed six linear feet in length.

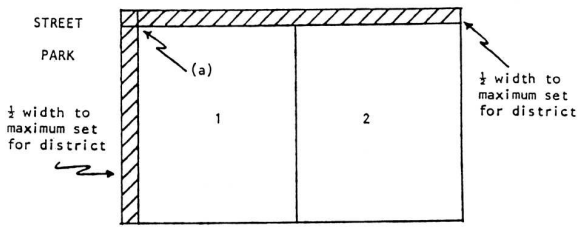
Launderette. A business premises equipped with individual clothes washing machines for the use of retail customers.

Lot. A lot is a parcel of land. For the regulatory purposes of this ordinance a lot may consist of a single lot of record, a portion of a lot of record, combinations of adjacent individual lots and/or portions of lots, or a parcel described by metes and bounds, provided that in no case of division or combination by private action shall any residual lot be created which does not meet the requirements of this ordinance and other applicable regulations.

Lot, area. Lot areas shall be computed as follows:

(1) Net area of a regular lot shall be computed as total area within its boundaries.

(2) Gross area of a regular lot shall be computed as net area plus half of adjoining permanent open space, such as streets, parks, floodplains or slopes on which building is prohibited, or lands dedicated or covenanted to remain in permanent open space, up to a maximum specified for the district. Where such permanent open space adjoins a lot on two or more adjacent sides, the area thus added shall include the area required to complete the gap otherwise left at the intersection, as indicated at (a) below:



Street Park

The gross area of lot 1 is thus the area within its boundaries plus the hatched areas at the top and side, including the small rectangle marked (a).

Major arterial. A street or highway of great continuity designed to accommodate the highest traffic volumes and longest trip desires. Major arterials are defined and designated in the major street plan.

Major collector. A street of reasonable continuity that channels traffic between arterials and from other collector streets to the arterial system. Major collectors are defined and designated in the major street plan.

Major repair work. Any work on a motorized vehicle, including, but not limited to, major mechanical and body work, straightening of body parts, painting, welding, storage of automobiles not in operating condition or other work involving noise, glare, fumes, smoke or vibration.

Major street plan. The latest adopted major street plan of the City of Huntsville as it may be from time to time amended.

Mineral. Any substance, organic or inorganic, found in nature as part of the earth and having sufficient value away from its natural location to be mined, quarried, or dug for its own sake or for its own specific use.

Minor arterial. A street or highway of considerable continuity interconnecting with and augmenting the principal arterial system and providing service to moderate length trips at a somewhat lower level of mobility. Minor arterials are defined and designated in the major street plan.

Minor collector. A street that carries traffic from a number of local streets to the major collector/arterial system, between other collectors, and from activity centers to a street of higher classification. Minor collectors are defined and designated in the major street plan.

MMDS. Multichannel multipoint distribution services (also called wireless cable).

Mobile food vending site. A collection of mobile food vending units clustered together on a single lot or parcel of land under common ownership or control.

Mobile food vending unit. A trailer or motorized vehicle designed to be portable and not permanently attached to the ground from which only prepared food or beverages are peddled, vended, sold, displayed, offered for sale, or given away.

Mobile radio services. A radio communication service that operates between mobile and fixed stations or between mobile stations. Mobile radio includes personal wireless services and private mobile radio services.

Motel. A building or group of buildings used by transient guests.

Nighttime home. See child care home.

Nursery school. A school designed to provide daytime care or instruction for two or more children from two to five years of age inclusive.

Offices. Space or rooms used for professional, administrative, clerical, and other similar uses.

Parking space. An off-street space, enclosed or unenclosed, containing not less than 180 square feet of area exclusive of driveways appurtenant thereto, permanently reserved for the temporary storage of one motor vehicle and connected without obstruction to a street or alley by a driveway.

PCS. Personal communications services.

Performing arts center. A facility for the presentation of the performing arts, including indoor live performances, and indoor and outdoor concert halls.

Permanent building. A building erected with the required footings and supported on a perimeter foundation, piers or slab; connected to all required utilities; and meeting all applicable building codes.

Personal use tower. A tower or must supporting only those antennas used for amateur radio service, non-commercial citizens band, short wave listening, residential TV and/or radio broadcast reception or other personal radio enthusiast or public service purposes, which are used entirely on a non-revenue-producing basis.

Personal wireless services. Includes commercial mobile services, unlicensed wireless services, and common carrier wireless exchange access services as defined by the Federal Communications Commission.

Photovoltaic solar energy production facility. Consists of one or more freestanding ground, pole, or roof mounted solar collector devices, solar related equipment and other accessory structures and buildings including substations, electrical infrastructure, transmission lines and other appurtenant structures and facilities.

Portable storage structure. A transportable storage structure that is designed and used primarily for the storage of household goods, personal items and other materials for use on a limited basis on residential property. Such structures are uniquely designed for their ease of loading to and from a transport vehicle. For the purposes of this ordinance, the trailer portion of a tractor trailer, boxcars and shipping containers shall also be considered portable storage structures when expressly used for the purposes of on-site storage in residential districts.

Portable tower, mobile tower or truck-mounted tower. Towers designed to be portable, whether or not the facility of which they are a part is permanently affixed to the ground, a building, or other permanent structure and utilized to supplement the service of a personal wireless service provider on a temporary basis.

Private accessway. A private vehicular thoroughfare permanently reserved in order to provide a means of access to more than one zoning lot, all having frontage on a public or private street.

Private mobile radio services. Includes mobile radio services such as two-way radio used by public safety, special emergency, land transportation, and industrial radio service users.

Quarry. An extraction operation in which rock, stone or any mineral other than sand, gravel and soil is removed or excavated for the purpose of disposition away from the immediate premises whether such disposition is immediate or in the future.

Radio. Generic term referring to the communication of impulses, sounds and pictures through space by means of electromagnetic waves.

Reclamation. The reconditioning or rehabilitation of land used for an extraction activity to make it suitable for the expected future use.

Residence. A residence is: (1) a domicile; or (2) a family's place of habitation for a period of 180 continuous days or more. This term does not include transient occupancy. Related terms, including, but not limited to, the terms reside, residing, resident, and residential, shall have meanings consistent with the term residence.

Rooming house. A rooming house is a building where, for compensation, individual rooms are provided by a resident or non-resident landlord/operator for up to ten (10) transient or non-transient, related or unrelated individuals, and in which the roomers share common areas, and where the landlord/operator may supply some services such as laundry and cleaning services.

Sand pit. A site from which sand is removed or excavated for the purpose of disposition away from the immediate premises whether such disposition is immediate or in the future.

Seating capacity. Number of seats or occupancy permitted in any area as established by the Huntsville Bureau of Fire Prevention in accordance with relevant safety codes.

Sign. See article 72, sign control regulations.

Single housekeeping unit. A single housekeeping unit is a household consisting of a non-transient individual, or a non-transient interactive group of individuals jointly occupying an abode, including joint access to and use of all common living areas, including living, kitchen, and eating areas within the abode. A single housekeeping unit may also be comprised of domestic servants; one professional caregiver at any one time; and gratuitous, temporary guests of a resident. The term does not include transients, occupants of a boarding house or rooming house, or occupants that act as separate roomers or boarders.

Soil pit. A site where dirt or soil is removed below the grade of surrounding land for any purpose other than that necessary for and incidental to site grading or building construction.

Stability. The safety factor for stability is the sum of the forces which resist downslope movement divided by the sum of the forces which would cause downslope movement. For stability a value of unity (1.0) represents static equilibrium, and any value less than 1.0 represents failure. A minimum safety factor of 1.5 is commonly recommended for stability.

Story. That portion of a building included between the surface of any floor and the surface of the floor next above it, or if there be no floor above it, then the space between any floor and the ceiling next above it.

Story, half. A top floor in which the floor area with eight feet or more of head clearance is less than 50 percent of the floor area of the story next below.

Street. Any public or private way set aside for common travel more than 21 feet in width if such existed at the time of enactment of this ordinance, or such right-of-way 40 feet or more in width if established thereafter.

Street frontage. All the property on one side of a street between two intersecting streets (crossing or terminating), or if the street is dead ended, then all of the property abutting on one side between an intersecting street and the dead end of the street. In no case shall this definition be construed to mean or include any portion of a dead end street which is perpendicular to the centerline of the street. For the purpose of this definition, a cul-de-sac is not considered a dead end street.

Structure. Any combination of materials, including buildings, constructed or erected, the use of which requires location on the ground or attachment to anything having location on the ground, including among other things, signs, billboards, and fences, but not including telephone poles and overhead wires, fences less than three feet high, retaining walls or terraces.

Subdivision regulations. Subdivision Regulations of the City of Huntsville adopted September 29, 1949, or as may be revised or amended from time to time.

Swimming pools, private. Permanent or semipermanent pools accessory to residential uses; this does not include portable plastic wading pools.

Total floor area. The area of all floors of a building including finished attics and basements when considered as a story under the terms of this ordinance.

Tourist home. A dwelling in a residential district in which the permitted area for business use under this ordinance consists of rooms for the accommodations of paying transient guests.

Trailer camp. Any site, lot, field, or tract of land privately or publicly owned or operated, upon which two or more house trailers used for living, eating, or sleeping quarters are located; such establishments being open and designated to the public as places where temporary residential accommodations are available, whether operated for or without compensation, by whatsoever name or title they are colloquially or commercially termed.

Trailer regulations. Madison County Regulations governing the construction, equipment, and operations of trailer camps adopted and approved August 25, 1966, as the same may be amended.

Transient. The term transient means an individual or family who is temporarily boarding, rooming, lodging, or otherwise staying in a place for a period of less than 180 continuous days. Where there is a legal arrangement, including a lease, that purports to have a term of 180 continuous days or more, but which has been negotiated to allow or allows for a shorter term in an attempt to evade the length-of-stay requirement, the individual or family shall nevertheless be treated as being engaged in a transient stay.

Transmitter. Equipment that generates radio signals for transmission via antenna.

TVBS. Television broadcast station.

Use. The purpose for which land, or a building or other structure is designed, arranged, or intended, or for which it is or may be occupied or maintained.

Variance. A variance is a relaxation of the terms of the Zoning Ordinance where such variance will not be contrary to the public interest and where, owing to the conditions peculiar to the property and not the result of the action of the applicant, a literal enforcement of the ordinance would result in unnecessary and undue hardship. As used in this ordinance, a variance is authorized only for height, area, and size of structure, or size of yards and open spaces; establishment or expansion of a use otherwise prohibited shall not be allowed by variance, nor shall a variance be granted because of the presence of non-conformities in the zoning district or adjoining zoning districts. (63-93)

Wireless telecommunications. Any transmission or reception of signs, signals, writing, images, sounds, and/or data of any nature by means of the electromagnetic spectrum. Wireless telecommunications include but are not limited to cellular telephone, personal communication services (PCS), commercial and private mobile radio, paging, public safety, fixed point microwave, amateur radio, radio and television broadcasting, satellite services such as direct broadcast satellite (DBS), and multichannel multipoint distribution services (MMDS).

Wireless telecommunications tower. A structure, such as a self-supporting lattice tower, a guyed tower, or a monopole, designed and constructed primarily for the purpose of supporting one or more antennas, which may include accessory facilities necessary for equipment storage and unmanned operations.

Yard. A yard is an open space other than a court, unoccupied and unobstructed by any structure or portion of a structure from 36 inches above the general ground level of the graded lot upward (except as otherwise provided by these regulations); provided, however, that fences and walls may be permitted in any yard subject to any height limitations established herein, and further provided that poles, posts, and other customary yard accessories, ornaments and furniture shall be permitted in any required yard if they do not constitute substantial impediments to [the] free flow of light and air across the yard to adjoining properties.

Ordinary projections of window sills, belt courses, chimneys, cornices, eaves and similar architectural features, and air conditioners or similar appliances, shall not project more than two feet into any required yard, and no support for a roof shall be based in any required yard.

Yard, front. A yard extending across the front of a lot between the side lot lines. Corner lots have two front yards, as described in section 73.7 hereof. Front yards are measured at the building line.

Yard, rear. A yard extending across the rear of a lot between the side lot lines. The rear yard shall be to the rear of the front yard, as described in section 73.7 hereof.

Yard, side. A yard between the main building and the side lot line and extending from the required front yard to the required rear yard, as described in section 73.7 hereof.
(Ord. No. 96-1008, § 1, 1-23-1997; Ord. No. 97-512, § 1, 8-14-1997; Ord. No. 98-104, § 1, 3-26-1998; Ord. No. 98-689, § 1, 10-1-1998; Ord. No. 99-206, § 2, 4-8-1999; Ord. No. 01-732, § 1, 10-25-2001; Ord. No. 03-593, § 1, 8-14-2003; Ord. No. 05-013, § 1, 2-10-2005; ; Ord. No. 06-730, § 1, 10-12-2006; Ord. No. 06-826, § 1, 10-26-2006; Ord. No. 06-1203, § 1, 1-25-2007; Ord. No. 07-401, § 1, 6-14-2007; Ord. No. 08-529, § 1, 8-14-2008; Ord. No. 11-11, § 3, 2-24-2011; Ord. No. 11-899, § 1, 1-26-2012; Ord. No. 12-466, § 1, 8-23-2012; Ord. No. 13-882, § 1, 12-19-2013; Ord. No. 14-576, § 1, 9-25-2014; Ord. No. 15-406, § 1, 7-23-2015; Ord. No. 21-46, § 2(a), 2-25-2021; Ord. No. 24-289, §§ 1, 2, 5-23-2024; Ord. No. 25-267, §§ 1, 2, 6-12-2025)

CHAPTER I. RESIDENCE DISTRICT REGULATIONS

ARTICLE 10. RESIDENCE 1 DISTRICT REGULATIONS

Within a residence 1 district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

10.1. Uses permitted.

Land and buildings shall be used only for the following uses:

Single-family dwellings.

Agricultural uses, provided no sales are made on the premises; and gardens customary to residential occupancy and buildings incidental thereto, but not including commercial animal or poultry farms or kennels.

Municipal, county, state or federal use, including publicly owned or operated schools, libraries, museums, and art galleries.

Churches and similar places of worship.

Accessory structures.

Accessory uses as defined and regulated by section 73.1.1 hereof.

Church bulletin board that does not exceed 12 square feet in area.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.
(Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 21-46, § 1(Exh. A, § B.1.), 2-25-2021)

10.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73:

10.2.1. Minimum required lot area: 15,000 square feet

10.2.2. Minimum required lot width: 100 feet

10.2.3. Minimum required lot frontage: 20 feet

10.2.4. Minimum required depth of front yard:

From major arterials *(See Section 73.15)*: 50 feet

From other streets: 40 feet

For homes built prior to the adoption of this section, newly constructed front porches may encroach on the front yard setback by a maximum of five feet. For the purposes of Residence 1 District regulations and restrictions, a "front porch" shall mean a roofed one-story open structure projecting from and structurally connected to the front of the residence. The front porch shall not be enclosed by glass, wood, siding, screening or other material.

10.2.5. Minimum required depth of rear yard: 45 feet

10.2.6. Minimum required width of each side yard: 15 feet

10.2.7. Maximum total building area: 35 percent of total lot area

10.2.8. Maximum stories: 2½

10.2.9. Maximum height: 35 feet

(Ord. No. 07-109, § 1, 3-22-2007; Ord. No. 12-583, § 1, 8-23-2012)

10.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

10.4. Private streets; private subdivisions.

Developments may be approved abutting upon private streets provided the following standards are observed:

10.4.1. Private streets and private subdivisions must be designed and constructed prior to final approval to the same standards required for design and construction of public streets and public subdivisions, and must provide adequate access to the public authority for police and fire protection, public utilities, and other public services.

10.4.2. Density. Dwelling units shall not exceed requirements for development with public streets.

10.4.3. Adequate provision must be made, as shown on the approved plan, for maintenance of private streets, private accessways and common areas to the standard practiced in the city for maintenance of public streets and areas by use of a homeowners association or other agreement approved by the city attorney.

10.4.4. Adequate provision must be made, noted upon the approved plan, and recorded in the office of judge of probate, for the dedication of any private streets which in the determination of the governing body of the city may in the future be required to provide adequate public access for adjacent or other property. Each private subdivision shall exhibit a self-contained street pattern with no more than two ways in or out.

10.4.5. No private street shall be permitted if such street is shown on the major street plan of the City of Huntsville Planning Commission.

10.4.6. No development shall be permitted and no permit shall be issued therefor for development abutting upon a private street or streets except in accordance with a plan approved by the Huntsville Planning Commission and the governing body of the city, the approval by each to be preceded by a public hearing similar in all respects to public hearings required for public subdivisions, and in accordance with such conditions as may be required by the Huntsville Planning Commission and the governing body of the city to ensure that the purpose, intent, and spirit of the city plan is observed.

10.4.7. The above regulations governing development along private streets and in private subdivisions shall be permitted for single-family detached development within

Residence 1, 1-A, 1-B, 1-C, 2, 2-A, 2-B and 2-C districts and for single-family attached developments within Residence 2 and 2-A districts.

(Ord. No. 99-206, § 3, 4-8-1999; Ord. No. 07-460, § 1, 6-28-2007)

10.5. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 99-206, § 3, 4-8-1999; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

10.6. Second kitchens.

10.6.1. A property owner shall be permitted to construct a second kitchen in a single-family detached dwelling, if the property is, and will be, in compliance with the zoning regulations and does not require a variance for installation of the second kitchen.

10.6.2. A second kitchen shall be located within the dwelling and shall share at least one common interior wall with and be directly accessible from the living areas of the dwelling and shall not be separated from the living areas by an exterior connection or by a nonhabitable space, such as a garage or breezeway.

10.6.3. No kitchen shall be permitted in a detached accessory structure on a single-family lot nor in a structure physically attached to the dwelling but separated from it by a garage, breezeway, porch or any other nonhabitable space.

10.6.4. A second kitchen shall not be permitted in a single-family dwelling having roomers or boarders as regulated by section 73.1.1.

10.6.5. Users of the second kitchen must be family members or temporary guests of the property owner, and the property owner must occupy the dwelling as his/her legal residence. A family member in the context of this section shall include only individuals related by blood, marriage or law. A temporary guest is one who maintains a legal residence elsewhere. The property owner shall not receive any rent or other remuneration from temporary guests.

10.6.6. A second kitchen shall be served by the dwelling's utility connections. There shall be no separate meters.

10.6.7. A single-family dwelling having two kitchens shall not be permitted to operate a home occupation that is in any way dependent upon the presence of the second kitchen.

10.6.8. A single-family dwelling having two kitchens shall not give evidence of such by having two mailboxes or two addresses.

10.6.9. A single-family dwelling having two kitchens in a single-family zoning district shall not be used as rental property, and it shall be the responsibility of the owner, when selling such property, to inform any prospective purchaser of this attached condition. If the property is to be used as rental property, then all facilities accommodating the second kitchen shall be removed prior to rental. If a property is found to be operating in violation of this section, then the second kitchen shall be immediately dismantled at the owners' expense.

10.6.10. The zoning administrator shall maintain a record of all single-family dwellings having two kitchens in a single-family zone.

10.6.11. These regulations governing the installation of second kitchens in single-family detached dwellings shall apply in residence 1, 1-A, 1-B and 1-C districts.

(Ord. No. 01-732, § 2, 10-25-2001; Ord. No. 07-460, § 1, 6-28-2007)

10.7. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 1, 6-26-2008; Ord. No. 15-758, § 1, 11-19-2015; Ord. No. 25-157, § 2, 4-24-2025)

ARTICLE 11. RESIDENCE 1-A DISTRICT REGULATIONS

Within a residence 1-A district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

11.1. Uses permitted.

Land and buildings shall be used only for the uses permitted in section 10.1 hereof.

11.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73 hereof:

11.2.1. Minimum required lot area: 12,000 square feet

11.2.2. Minimum required lot width: 75 feet

11.2.3. Minimum required lot frontage: 20 feet

11.2.4. Minimum required depth of front yard:

From major arterials *(See Section 73.15)*: 50 feet

From other streets: 35 feet

For homes built prior to the adoption of this section, newly constructed front porches may encroach on the front yard setback by a maximum of five feet. For the purposes of Residence 1-A District regulations and restrictions, a "front porch" shall mean a roofed one-story open structure projecting from and structurally connected to the front of the residence. The front porch shall not be enclosed by glass, wood, siding, screening or other material.

11.2.5. Minimum required depth of rear yard: 40 feet

11.2.6. Minimum required width of each side yard:

Main building 1 to 1½ stories in height: 10 feet

Main building 2 to 2½ stories in height: 12 feet

11.2.7. Maximum total building area: 35 percent of total lot area

11.2.8. Maximum stories: 2½

11.2.9. Maximum height: 35 feet

(Ord. No. 07-109, § 2, 3-22-2007; Ord. No. 12-583, § 2, 8-23-2012)

11.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

11.4. Private streets; private subdivisions.

See section 10.4.

11.5. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

11.6. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 2, 6-26-2008; Ord. No. 15-758, § 2, 11-19-2015; Ord. No. 25-157, § 3, 4-24-2025)

ARTICLE 12. RESIDENCE 1-B DISTRICT REGULATIONS

Within a residence 1-B district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

12.1. Uses permitted.

Land and buildings shall be used only for the uses permitted in section 10.1 hereof.

12.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73 hereof:

12.2.1. Minimum required lot area: 7,500 square feet

12.2.2. Minimum required lot width: 60 feet

12.2.3. Minimum required lot frontage: 20 feet

12.2.4. Minimum required depth of front yard:

From major arterials *(See Section 73.15)*: 50 feet

From other streets: 30 feet

For homes built prior to the adoption of this section, newly constructed front porches may encroach on the front yard setback by a maximum of five feet. For the purposes of Residence 1-B District regulations and restrictions, a "front porch" shall mean a roofed one-story open structure projecting from and structurally connected to the front of the residence. The front porch shall not be enclosed by glass, wood, siding, screening or other material.

12.2.5. Minimum required depth of rear yard: 35 feet

12.2.6. Minimum required width of each side yard:

Main building 1 to 1½ stories in height: eight feet

Main building 2 to 2½ stories in height: ten feet

12.2.7. Maximum total building area: 40 percent of total lot area

12.2.8. Maximum stories: 2½

12.2.9. Maximum height: 35 feet

(Ord. No. 07-409, § 3, 3-22-2007; Ord. No. 12-583, § 3, 8-23-2012)

12.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

12.4. Private streets; private subdivisions.

See section 10.4.

12.5. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

12.6. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 3, 6-26-2008; Ord. No. 15-758, § 3, 11-19-2015; Ord. No. 25-157, § 4, 4-24-2025)

ARTICLE 13. RESIDENCE 2 DISTRICT REGULATIONS

Within a residence 2 district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

13.1. Uses permitted.

Land and buildings shall be used only for the following uses:

Uses permitted in section 10.1 hereof.

Two-family dwellings.

Zero lot line dwellings.

Single-family attached dwellings.

Semi-detached dwellings.

Accessory structures and uses.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 01-646, 9-13-2001; Ord. No. 09-1053, § 1, 12-17-2009)

13.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73 hereof:

13.2.1. *For single-family dwellings:*

(1) Minimum required lot area: 6,000 square feet

(2) Minimum required lot width: 50 feet

(3) Minimum required lot frontage: 20 feet

(4) Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

From other streets: 20 feet

(5) Minimum required depth of rear yard: 25 feet

(6) Minimum required width of each side yard:

Main building one story in height: five feet

Main building two stories in height: six feet

Least sum of widths of both side yards: 14 feet

(7) Maximum total building area: 40 percent of total lot area

(8) Maximum stories: two

(9) Maximum height: 30 feet

13.2.2. *For two-family dwellings:*

(1) Minimum required lot area: 7,500 square feet

(2) Minimum required lot width: 60 feet

(3) Minimum required lot frontage: 20 feet

(4) Minimum required depth of front yard:

From major arterials (see section 73-15): 50 feet

From other streets: 20 feet

(5) Minimum required depth of rear yard: 25 feet

(6) Minimum required width of each side yard:

Main building one story in height: five feet

Main building two stories in height: six feet

Least sum of widths of both side yards: 14 feet

(7) Maximum total building area: 35 percent of total lot area

(8) Maximum stories: two

(9) Maximum height: 30 feet

13.2.3. *Single-family attached dwellings.* Single-family attached dwellings shall not form long unbroken lines of row housing. The planning commission shall determine that the proposed single-family attached dwellings are designed in such a manner as to be in harmony with good land use planning. Single-family attached dwellings shall constitute groupings making efficient, economical, compatible, and convenient use of land and open space and serving the public purposes of zoning by means alternative to conventional arrangements of yards and building areas. Also, front yard parking is prohibited.

(1) Minimum required lot area: 2,200 square feet

(2) Minimum required lot width: 20 feet

(3) Minimum required depth of front yard for each complex shall be 50 feet from a major arterial and ten feet from other public or private streets.

(4) Minimum required width of each side yard (required only at unattached ends of single-family attached dwelling complex): ten feet

(5) Maximum stories: 2½

(6) Maximum height of building: 35 feet

(7) Not less than four or more than eight single-family attached dwellings shall be contiguous. Also, no two contiguous single-family attached dwellings shall be built with the same front line. The required difference in front line shall be a minimum of three feet.

(8) No portion of a single-family attached dwelling or accessory structure in or related to one single-family attached dwelling complex shall be closer than 20 feet to any portion of a single-family attached dwelling or accessory structure related to another single-family attached dwelling complex, or to any building outside the single-family attached dwelling area.

(9) Each single-family attached dwelling shall be constructed on its own lot.

(10) Each single-family attached dwelling shall provide not less than 600 square feet of yard space exclusive of private accessways and off-street parking. If the yard space is divided, one space shall not contain less than 400 square feet of open yard space, and the remaining 200 square feet shall be secluded at ground level from view from streets or neighboring property. Locating the secluded yard space in the required front yard is prohibited.

(11) Off-street parking shall be provided at a minimum rate of two spaces per each single-family attached dwelling.

(12) Any private accessway must be maintained by an association.

13.2.4. *Zero lot line dwellings.* The purpose of zero lot line dwellings is to permit the construction of detached single-family dwellings on lots with a small side yard requirement on one side of the lot. This concept permits better use of the entire lot by compacting the usual front, rear, and side yards into one or more internal gardens which may be completely walled in or screened.

(1) Minimum required lot area: 6,000 square feet

(2) Minimum required lot width: 50 feet

(3) Minimum required lot frontage: 20 feet

(4) Minimum required depth of front yard: 20 feet

(5) Minimum required depth of rear yard: 15 feet

(6) Minimum required width of each side yard:

One side yard of one inch; opposite side yard of 12 feet.

(7) Maximum total building area: 50 percent of total lot area

(8) Maximum stories: two

(9) Maximum height: 30 feet

(10) Off-street parking shall be provided at a minimum rate of two spaces for each dwelling.

(11) Zero lot line dwellings shall be constructed against the lot line on one side of a lot, with the exception of corner lots, and no windows, doors, or other openings shall be permitted on this side. Where adjacent zero lot line dwellings are not constructed against a common lot line, the developer must provide for a perpetual wall maintenance easement of five feet in width along the adjacent lot and parallel with such wall.

13.2.5. *Semi-detached dwellings.* A single-family dwelling attached to one other single-family dwelling by a common vertical wall, with each dwelling located on a separate lot and having separate utilities. The purpose of the semi-detached dwelling is to permit the construction of duplex type housing where each dwelling can be owned in fee simple. Semi-detached dwellings must be constructed

in multiples of two on two contiguous lots, each of which shall meet the following density controls:

(1) Minimum required lot area per dwelling: 4,500 square feet

(2) Minimum required lot width: 30 feet

(3) Minimum required lot frontage: 20 feet

(4) Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

From other streets: 20 feet

(5) Minimum required depth of rear yard: 25 feet

(6) Minimum required width of each side yard:

Unattached side: ten feet

Attached side: none

(7) Maximum total building area: 50 percent of total lot area

(8) Maximum stories: two

(9) Maximum height: 30 feet

(10) Minimum number of off-street parking spaces per dwelling: two

(11) The common party wall must be without openings and extend from the cellar floor to the highest point of the roof along the common lot line.

(12) Where a garage door faces the street, the garage shall be set a minimum of five feet behind the front wall of the dwelling.

(Ord. No. 01-646, § 1, 9-13-2001; Ord. No. 07-462, § 1, 6-28-2007)

13.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

13.4. Private streets; private subdivisions.

See section 10.4.

13.5. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

13.6. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 4, 6-26-2008; Ord. No. 15-758, § 4, 11-19-2015; Ord. No. 25-157, § 5, 4-24-2025)

ARTICLE 14. RESIDENCE 2-A DISTRICT REGULATIONS

Within a residence 2-A district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

14.1. Uses permitted.

Land and buildings shall be used only for the following uses:

Uses permitted in section 10.1 hereof.

Two-family dwellings.

Multiple-family dwellings.

Accessory structures and uses.

Zero lot line dwellings.

Single-family attached dwellings.

Semi-detached dwellings.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 01-646, § 2, 9-13-2001; Ord. No. 09-1053, § 1, 12-17-2009)

14.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in articles 73 and 92:

14.2.1. *For single-family dwellings.* The density controls in section 13.2.1 shall apply.

14.2.2. *For two-family dwellings.* The density controls in section 13.2.2 shall apply.

14.2.3. *For multiple-family dwellings containing only one building:*

(1) Minimum required lot area is 8,000 square feet for the first two families; 3,000 square feet for each additional family dwelling unit.

(2) Minimum required lot width: 70 feet

(3) Minimum required lot frontage: 30 feet

(4) Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

From other streets: 30 feet

(5) Minimum required depth of rear yard: 35 feet

(6) Minimum required width of each side yard:

Main building 1 to 1½ stories in height: eight feet

Main building two stories in height: ten feet

(7) Maximum total building area: 35 percent of total lot area

(8) Maximum stories: two

(9) Maximum height: 30 feet

14.2.4. *For multiple-family dwellings containing more than one building:* The density controls in section 73.13 shall apply.

14.2.5. *For single-family attached dwellings:* The density controls in section 13.2.3 shall apply.

14.2.6. *For zero lot line dwellings:* The density controls in section 13.2.4 shall apply.

14.2.7. *For semi-detached dwellings:* The density controls in section 13.2.5 shall apply.
(Ord. No. 01-646, § 2, 9-13-2001)

14.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 10-507, § 2, 8-26-2010)

14.4. Private streets; private subdivisions.

See section 10.4.

14.5. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

14.6. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.
(Ord. No. 08-429, § 5, 6-26-2008; Ord. No. 15-758, § 5, 11-19-2015; Ord. No. 25-157, § 5, 4-24-2025)

ARTICLE 15. RESIDENCE 2-B DISTRICT REGULATIONS

Within a residence 2-B district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

15.1. Uses permitted.

Land and buildings shall be used only for the following uses:

Hotels, motels, tourist homes, roominghouses, boardinghouses and office buildings.

Kitchenettes in bona fide motels, located on state or federal highways, not to exceed 20 percent of the total number of units.

Multiple-family dwellings.

Semi-detached dwellings.

Two-family dwellings.

Uses permitted in section 10.1 hereof.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Assisted living facilities.

Single-family attached dwellings.
(Ord. No. 01-646, § 3, 9-13-2001; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 14-316, § 1, 6-26-2014; Ord. No. 14-576, § 2, 9-25-2014; Ord. No. 18-446, § 1, 7-26-2018)

15.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73:

15.2.1. *For single-family dwellings:* The density controls in section 13.2.1 shall apply.

15.2.2. *For two-family dwellings:* The density controls in section 13.2.2 shall apply.

15.2.3. *For multiple-family dwellings containing only one building:*

(1) Minimum required lot area is 6,000 square feet for the first two families; 2,000 square feet for each additional family dwelling unit.

(2) Minimum required lot width: 60 feet

(3) Minimum required lot frontage: 30 feet

(4) Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

From other streets: 30 feet

(5) Minimum required depth of rear yard: 25 feet

(6) Minimum required width of each side yard:

Main building one story in height: five feet

Main building two or more stories: seven feet

Least sum of widths of both side yards: 14 feet

(7) Maximum total building area: 50 percent of total lot area

(8) Maximum stories: three

(9) Maximum height: 45 feet

15.2.4. *For multiple-family dwellings containing more than one building:* The density controls in section 73.13 shall apply.

15.2.5. *For hotels, motels and office buildings:*

(1) Minimum required lot area: 6,000 square feet

(2) Minimum required lot width: 40 feet

(3) Minimum required lot frontage: 20 feet

(4) Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

From other streets: 30 feet

(5) Minimum required depth of rear yard: 25 feet

(6) Minimum required width of each side yard:

Main building one story in height: five feet

Main building two or more stories: seven feet

Least sum of widths of both side yards: 14 feet

(7) Maximum total building area: 50 percent of total lot area

(8) Maximum stories: three

(9) Maximum height: 45 feet

15.2.6 *For semi-detached dwellings:* The density controls in section 13.2.5 shall apply.

15.2.7 *For single-family attached dwellings:* The density controls in section 13.2.3 shall apply.

(Ord. No. 01-646, § 3, 9-13-2001; Ord. No. 14-316, § 1, 6-26-2014)

15.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.

(Ord. No. 10-507, § 2, 8-26-2010)

15.4. Private streets; private subdivisions.

See section 10.4.

(Ord. No. 09-1053, § 2, 12-17-2009)

Editor's note—Sections 15.4—15.6 were formerly numbered as §§ 15.5—15-7, and were renumbered by Ord. No. 09-1053, § 2, 12-17-2009.

15.5. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 09-1053, § 2, 12-17-2009; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

Note—See editor's note, § 15.4.

15.6. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 6, 6-26-2008; Ord. No. 09-1053, § 2, 12-17-2009; Ord. No. 15-758, § 6, 11-19-2015; Ord. No. 25-157, § 6, 4-24-2025)

Note—See editor's note, § 15.4.

ARTICLE 16. RESIDENCE 1-C DISTRICT REGULATIONS

Purpose. The purpose of the residence 1-C district is to provide a single-family zoning district designed to meet the existing small lot dimensions of older neighborhoods. The intent is to minimize nonconformities while encouraging the preservation and continuity of the neighborhood. It is not the intent that these regulations should be applied to new subdivisions.

Within a residence 1-C district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

16.1. Uses permitted.

Land and buildings shall be used only for the following uses:

Uses permitted in section 10.1 hereof.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 09-1053, § 1, 12-17-2009)

16.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73 hereof:

(1) Minimum required lot area: 5,500 square feet

(2) Minimum required lot width: 40 feet

(3) Minimum required lot frontage: 20 feet

(4) Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

From other streets: 15 feet

From side street on corner lots (see section 73.7.4): five feet

(5) Minimum required depth of rear yard: 25 feet

(6) Minimum required width of each side yard:

Main building one story in height: four feet

Main building two stories in height: five feet

(7) Maximum total building area: 40 percent of total lot area

(8) Maximum stories: two

(9) Maximum height: 30 feet
(Ord. No. 01-644, § 1, 9-13-2001; Ord. No. 09-1051, § 1, 12-17-2009)

16.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

16.4. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

16.5. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.
(Ord. No. 08-429, § 7, 6-26-2008; Ord. No. 15-758, § 7, 11-19-2015; Ord. No. 25-157, § 7, 4-24-2025)

ARTICLE 17. RESIDENCE 2-C DISTRICT REGULATIONS

Purpose. The purpose of the Residence 2-C District is to provide a zoning district tailored to protect, preserve, and continue the distinctive configuration, scale, and appearance of Huntsville's mill villages as they were constructed during the early decades of the 20th century. The intent is to minimize nonconformities while encouraging the preservation and continuity of these neighborhoods which document a significant phase of Huntsville's history and which provide a scale and type of housing that is vital to the city's future ability to adequately house all its residents. It is not the intent that these regulations should be applied to new subdivisions.

Within a Residence 2-C District as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

17.1. Uses permitted.

Land and buildings shall be used only for the following uses:

Single-family dwellings.

Two-family dwellings.

Multiple-family dwellings on lots currently or previously occupied by multiple-family dwellings.

Agricultural uses, provided no sales are made on the premises; and gardens customary to residential occupancy and buildings incidental thereto, but not including commercial animal or poultry farms or kennels.

Municipal, county, state or federal uses; including publicly owned or operated schools, libraries, museums, and art galleries.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

Accessory structures.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.
(Ord. No. 06-640, § 1, 8-24-2006; Ord. No. 09-1053, § 1, 12-17-2009; (Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

17.2. Density controls in Lincoln Village South of Oakwood.

The following yard, density, and height requirements shall be observed:

17.2.1 For Single-Family and Two-Family Dwellings—except as provided for in Article 73 hereof.

(1) Minimum required lot area shall be as platted in Lincoln Park Second Addition (Plat Book v. 1, Page 299) and the minimum required lot area for newly created lots shall be 4,800 square feet.

(2) Minimum required lot width: 35 feet.

(3) Minimum required lot frontage: 20 feet.

(4) Required depth of front yard shall match the front line setback of the existing structures on the block. If there are no existing dwellings on the block, the front setback shall be no less than ten feet nor more than 20 feet. (See Section 73.7.4)

(5) Minimum required depth of rear yard: Five feet.

(6) A minimum separation of six feet two inches shall be maintained between the side walls of dwellings on adjoining lots.

Minimum required depth of side yard to street: Three feet.

Minimum required depth of side yard to alley: One foot.

(7) Maximum stories: One.

(8) Maximum height: 15 feet.

(9) Maximum width of single-family dwellings: 35 feet.

(10) Maximum width of each unit in a two-family dwelling: 18 feet.

17.2.2. For multiple-family dwellings.

(1) Multiple-family dwellings shall be permitted on Lots 19, 24, 31, 32, 33, 34, 43, 56, 57 & 58 as platted in Lincoln Park Second Addition (Plat Book v. 1, Page 299). Buildings having three or more residential units shall be configured as an unbroken line of housing.

(2) Minimum required lot width: 100 feet.

(3) Minimum required lot frontage: 20 feet

(4) Required depth of front yard shall match the front line setback of the existing structures on the block. If there are no existing dwellings on the block, the front setback shall be no less than ten feet nor more than 20 feet. (See Section 73.7.4)

(5) Minimum required depth of rear yard: Ten feet.

(6) A minimum separation of six feet two inches shall be maintained between the side walls of dwellings on adjoining lots.

Minimum required depth of side yard to street: Five feet.

Minimum required depth of side yard to alley: Three feet.

(7) Maximum stories: One.

(8) Maximum height: 15 feet.

17.2.3. For nonresidential buildings.

(1) Nonresidential buildings shall be permitted only on lots that are occupied, at the time of this amendment, by nonresidential uses permitted in the district; provided, however, no nonresidential buildings shall be permitted on lots previously or currently used for residences.

(2) Minimum required lot width: 100 feet.

(3) Minimum required lot frontage: 20 feet.

(4) Minimum required depth of front yard: 30 feet.

(5) Minimum required depth of rear yard: Ten feet.

(6) Minimum required depth of side yards: 25 feet.

(7) Maximum stories: Two and one-half.

(8) Maximum height: 30 feet.

17.2.4. Parking requirements.

(1) Residential parking shall be permitted only in rear yards and on street. Detached garages are permitted in the rear yard if access is from an alley. No parking, garages, or garage access shall be permitted in any front or side yard.

(2) Nonresidential parking shall not be allowed in any required yard. Five visitor parking spaces may be located in front of a building but not in the required front yard.

17.2.5. Design requirements for dwellings.

(1) In order to maintain the unique building character of the residential structures in Lincoln Park Second Addition and to preserve the identity and sense of place

of this historic mill village, the following design requirements shall apply to existing residential structures:

(a) Where a two-family dwelling is combined to form a single-family dwelling, the original facade of the two-family dwelling shall be maintained as that of a two-family dwelling with the doors, windows and porches remaining in their original configuration.

(b) Where two dwelling units of a multiple-family dwelling are combined to form one dwelling unit, the original facade of the multiple-family dwelling shall be maintained with the doors, windows and porches remaining in their original configuration. The facade of the multiple-family dwelling shall maintain the appearance of having dwelling units with a maximum width of 18 feet per dwelling unit.

(c) All dwellings shall have their primary entrance facing the street and each unit shall have a separate entry porch.

(2) In order to maintain the unique building character of the residential structures in Lincoln Park Second Addition and to preserve the identity and sense of place of this historic mill village, the following design requirements shall apply to newly constructed residential structures:

(a) New construction shall follow the size, style and placement of the doors and windows and maintain the rhythm of the porch orientation of the existing historic residential dwellings.

(b) The exterior of newly constructed multiple-family dwellings shall maintain the appearance of having a maximum width of 18 feet per dwelling unit with the doors, windows and porches having the same configuration and orientation of the existing historic multiple-family dwellings.

(c) All dwellings shall have their primary entrance facing the street and each unit shall have a separate entry porch.

(Ord. No. 06-640, § 1, 8-24-2006)

17.3. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.
(Ord. No. 08-429, § 8, 6-26-2008; Ord. No. 15-758, § 8, 11-19-2015; Ord. No. 25-157, § 8, 4-24-2025)

CHAPTER II. BUSINESS DISTRICT REGULATIONS*

ARTICLE 20. NEIGHBORHOOD BUSINESS C-1 DISTRICT REGULATIONS

Purpose. The neighborhood business C-1 district is primarily intended to serve the day-to-day needs of surrounding residential neighborhoods for retail goods and personal services. It is to be a restricted commercial district offering a limited range of convenience goods and services combined with low-intensity business and professional offices and upper story apartments.

The goal is to encourage the location of small scale businesses and to provide districts conducive to the establishment and growth of locally owned businesses. It is further the intent of these regulations that neighborhood business C-1 district zones [shall] be limited in size in order to best serve their intended purpose; to minimize the impact of noise, light, traffic, trash and other pollutants on nearby residents; and to encourage pedestrian use.

*__Cross reference—__Businesses, ch. 8.

Landscaped buffer yards are required along the perimeters of the district to create a transitional area between residential and commercial uses, to shield nearby residents from the disruptions associated with commercial operations, and to upgrade the appearance of neighborhood shopping areas.

Within a neighborhood business C-1 district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

20.1. Uses permitted.

20.1.1. Land and buildings shall be used only for the following uses:

Accessory structures and uses.

Agricultural uses, excluding firewood sales and outdoor nurseries.

Antique stores and art galleries, excluding flea markets.

Apparel stores.

Assisted living facilities.

Bakeries, where not more than five persons are employed on the premises and where the products made are sold exclusively at retail on the premises.

Banks and credit unions.

Barbershops, beauty parlors, reducing salons and fitness/exercise centers, excluding tattoo and body piercing parlors.

Book, map, card and stationery stores.

Cafes, delicatessens, coffee shops and restaurants without alcohol.

Carwash facilities, provided they are no larger than one bay and are operated as an accessory use to a service station.

Churches and similar places of worship.

Computer and telephone sales and service shops.

Confectionery stores.

Convenience stores.

Dancing and music academies.

Drugstores.

Dry cleaning establishments utilizing only nonflammable dry cleaning fluids.

Florist shops.

Grocery, health, and ethnic foodstores.

Hardware stores, gift shops and variety stores.

Home furnishings stores.

Jewelry stores and watch repair shops.

Launderettes.

Medical, optical and dental offices and clinics for health professionals, excluding overnight care and ambulance services.

Multiple-family dwellings, accessory structures and uses, provided that such multiple-family dwellings conform to the requirements set forth in article 15, residence 2-B district, and section 20.2.1 hereof.

Municipal, county, state or federal uses, excluding off-premises liquor retailers.

Music and video stores.

Newsstands and hobby shops.

Notions and dry goods stores.

Nurseries, kindergartens or day care centers for children.

Office supply stores.

Offices for architects, attorneys and other professionals; consumer service offices, such as real estate and insurance agencies; and administrative offices.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Pet supply stores, excluding the sale of live animals.

Photography studios and photo retail sales.

Pickup stations for laundry or dry cleaning; coin-operated dry cleaning establishments, excluding steam presses of any type.

Quick copy print shops.

Radio, television and appliance stores and repair shops.

Residential dwelling units on the upper stories above commercial or office uses, provided such units are in compliance with all applicable regulations for habitable space. Such residential uses shall have an entrance separate from the non-residential uses unless the entrance to the building opens into a lobby from which access to each use originates.

Shoe stores, shoe repair shops and tailor shops.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

Sporting goods shops.

Upholstering shops employing not more than five persons.

20.1.2. Conditions on uses [shall be as follows:]

(1) No outdoor loudspeaker, public address system, music or other form of entertainment shall be audible at any residential property line.

(2) All businesses shall be conducted within an enclosed building, except for agricultural uses, sidewalk/patio seating at restaurants, gasoline pumps, and playgrounds for child care centers.

(3) No exterior display of goods or merchandise shall be permitted in parking and vehicular use areas, required yards, or landscaped areas.

(4) No exterior storage of any type shall be permitted, unless it is totally contained, the containers are screened from public view, and such storage is located in a rear or side yard.

(5) Trash collection facilities and dumpsters shall be located away from residential districts and shall be concealed by solid wood and/or masonry walls for their full height. Where wood is used as the screening material, it shall be securely attached to an all metal support structure; if the wood is not pressure treated, it shall be cedar, redwood or cypress; and no wood member shall exceed 12 inches in width. The gates shall be of metal, shall be at least 80 percent opaque, and shall be self closing.

(6) No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 96-1008, § 1, 1-23-1997; Ord. No. 02-196, § 1(20.1), 4-25-2002; Ord. No. 03-285, §§ 1, 2, 5-22-2003; Ord. No. 06-730, § 2, 10-12-2006; Ord. No. 08-429, § 9, 6-26-2008; Ord. No. 09-1053, §§ 1, 3, 12-17-2009; Ord. No. 11-11, § 4, 2-24-2011; Ord. No. 14-576, § 3, 9-25-2014; Ord. No. 15-758, § 9, 11-19-2015; Ord. No. 18-718, § 1, 10-25-2018; Ord. No. 19-355, § 1, 6-27-2019; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021; Ord. No. 25-157, § 9, 4-24-2025)

20.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73 hereof:

20.2.1. *Multiple-family dwellings.* The requirements set forth in article 15, residence 2-B district regulations, shall be applicable except that maximum height shall be regulated by section 20.2.2(5); building setbacks from rights-of-way shall be regulated by section 20.2.2(1); setbacks from side lot lines shall be 15 feet and from rear lot lines shall be 20 feet; and internal spacing shall be as required by section 73.13.4(2).

20.2.2. *Business structures and other permitted uses.*

(1) Minimum required depth of front yard:

From major arterials: 50 feet

(See section 73.15)

From other streets: 5 feet

For areas that have frontage along a road indicated by the adopted long range transportation plan (LRTP) and/or the transportation improvement program (TIP) the setback shall be determined by measuring from the centerline of the right-of-way classification dictated by the adopted major street plan of the road plus ten feet.

(2) For corner lots, the front yard requirements of section 20.2.2(1) shall be observed from both streets upon which the land abuts.

(3) Rear yards are not required except where the rear lot line abuts on a residential district; in such cases, there shall be provided a rear yard of not less than 20 feet.

(4) Side yards are not required, except where the side lot line abuts a residential district, then a minimum side yard of 15 feet shall be provided. Where buildings are not contiguous, the space between them shall be at least ten feet and shall be improved for use by pedestrians or vehicles or be landscaped.

(5) Maximum height is 50 feet; however, wherever a C-1 district abuts a residential district (except across a street) the maximum height shall be 30 feet at the required setback line for the C-1 district: height limit shall increase one foot for every four-foot increase in distance from the setback line up to a maximum height of 50 feet.

(Ord. No. 02-196, § 1(20.2), 4-25-2002; Ord. No. 19-355, §§ 2, 3, 6-27-2019)

20.3. Off-street parking and loading requirements.

For single tenant developments, off-street parking and loading requirements shall be provided as set forth in article 70 hereof.

For multi-tenant, mixed use, and multi-family developments, shared parking and loading requirements shall be provided as set forth in the shared parking factor matrix of article 27 hereof.

Parking shall not be permitted in any required side yard nor in the first 15 feet of any required rear yard.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 02-196, § 1(20.3), 4-25-2002; Ord. No. 09-430, § 3, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010; Ord. No. 19-355, § 4, 6-27-2019)

20.4. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements, except for multifamily dwellings which must comply only with section 71.6, PVA lighting requirements, when applicable. Where the requirements of article 71 are in conflict with article 20, then the more stringent shall apply.
(Ord. No. 99-1020, § 1, 1-13-2000; Ord. No. 02-196, § 1(20.4), 4-25-2002)

20.5. Landscaping requirements.

20.5.1. *Front yards.*

(1) On local streets contained wholly within a C-1 district, the first five feet of the required front yard shall be landscaped with a minimum of one small type 3 or type 4 tree per each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

(2) On local streets that extend into other zoning districts and on collector and arterial streets, the following landscaping is required:

(a) Whenever 80 percent of the length of a building's street facade is located at the minimum building line, then the first five feet (ten feet on major arterials) of the required front yard shall be landscaped with a minimum of one small type 3 or type 4 tree per

each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

(b) If more than 20 percent of a building's street facade is set back farther than the minimum building line, then the first 15 feet of the required front yard shall be landscaped with a minimum of one large type 1 or type 2 shade tree per each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

20.5.2. *Side and rear yards.* Where side [yards] or rear yards are required adjacent to residential districts, the first 15 feet shall be landscaped with a buffer of screen planting as defined herein. However, if the proposed development is apartments and the adjacent residentially zoned property is already developed with, or has a building permit for, apartments, then that side [yards] or rear yard may be landscaped with a minimum of one large type 1 or type 2 shade tree per each 50 linear feet of yard or portion thereof in place of the buffer of screen planting.

Dumpsters and other structures are not permitted in any required rear [yard] or side yard.

Pedestrian paths are permitted through buffers of screen planting to connect residential areas with neighborhood businesses so long as they do not intrude on or cross any private property without the owner's permission.

20.5.3. *Lots in use without buildings.* In the event that a parcel is put to use without a building, then the first ten feet along all lot lines shall be landscaped with a minimum of one large type 1 or type 2 shade tree and eight shrubs per each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass. If the parcel abuts a residential district, then section 20.5.2 shall apply along the side and/or rear lot lines.

20.5.4. *Installation and maintenance of landscaping.*

(1) Trees and shrubs shall be well-distributed, though not necessarily evenly spaced and shall meet the minimum size standards as set out in table 1 of section 71.5.1(2).

(2) All landscaping shall be installed in accordance with section 71.5.3(1), (2), (3), (4), (7) and (8), installation requirements, and with section 73.19, installation of landscaping.

(3) The owner, lessee, or his agents shall be responsible for providing, maintaining, and protecting all landscaping in a healthy and growing condition and for keeping it free from refuse and debris. All unhealthy and dead materials shall be replaced within one year after notification or during the next appropriate planting period, whichever comes first.

(Ord. No. 02-196, § 1(20.5), 4-25-2002)

20.6. Designation of new C-1 districts.

The designation of a new neighborhood business C-1 district or the enlargement [of] an existing C-1 district after the adoption of this ordinance shall not create a C-1 district that exceeds 200 feet in depth from a local street right-of-way, 400 feet in depth from a collector street right-of-way, or 500 feet in depth from an arterial street right-of-way, except where a preexisting condition would make such limitations unworkable or unreasonable in the opinion of the planning commission. When enforcing these depth limitations, no remainder piece of land shall be created that would be rendered unusable by the regulations of this zoning ordinance.

(Ord. No. 02-196, § 1(20.6), 4-25-2002)

20.7. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.1, and shall be regulated by article 75 - alcoholic beverage establishment regulations.

(Ord. No. 11-11, § 4, 2-24-2011)

ARTICLE 21. RESERVED

Editor's note—Ord. No. 15-585, § 1, adopted Sept. 24, 2015, repealed Art. 21, §§ 21.1—21.8, which pertained to neighborhood business C-1A district regulations. For prior history, see Code Comparative Table.

ARTICLE 22. NEIGHBORHOOD BUSINESS C-2 DISTRICT REGULATIONS

Within a neighborhood business C-2 district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

22.1. Uses permitted.

Land and buildings shall be used only for the following uses:

22.1.1. Any use permitted in a neighborhood business C-1 district provided such uses shall conform to the requirements of said district.

22.1.2. Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

22.1.3. Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

22.1.4. Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.1, and shall be regulated by article 75 - alcoholic beverage establishment regulations.

(Ord. No. 09-1053, § 4, 12-17-2009; Ord. No. 11-11, § 6, 2-24-2011; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

22.2. Density controls.

These regulations shall be identical to section 20.2.

(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

22.3. Off-street parking requirements.

Required off-street parking spaces shall be provided as set forth in article 70 hereof.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.

(Ord. No. 10-507, § 2, 8-26-2010)

22.4. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements, except for multifamily dwellings which must comply only with section 71.6, PVA lighting requirements, when applicable.

(Ord. No. 99-1020, § 1, 1-13-2000)

22.5. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 11, 6-26-2008; Ord. No. 15-758, § 10, 11-19-2015; Ord. No. 25-157, § 10, 4-24-2025)

ARTICLE 23. GENERAL BUSINESS C-3 DISTRICT REGULATIONS*

Within a General Business C-3 District as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

23.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or

*__Editor's note—__Ord. No. 06-1203, § 2, adopted January 25, 2007, amended Art. 23, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Art. 23 pertained to similar subject matter. See also the Code Comparative Table.

maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Antique stores.

Apparel stores.

Art and craft galleries and studios.

Bakeries, where not more than five persons are employed on the premises and where the products made are sold exclusively at retail on the premises.

Banks and credit unions.

Barber shops and beauty parlors.

Book, map, card and stationery stores.

Cafes, delicatessens, coffee shops and restaurants without alcoholic beverages.

Churches and similar places of worship.

Commercial and trade schools.

Commercially operated parking garages having at least two levels of parking.

Computer and telephone sales and service shops.

Computer programming, software design and web design services.

Confectionery stores.

Convenience stores.

Dance and music academies.

Drug stores.

Dry cleaning pick-up stations.

Farmers markets.

Florist shops.

Food kiosks and street vendors.

Grocery, health, and ethnic food stores.

Gymnasiums, reducing salons, fitness and exercise centers, health clubs and spas.

Hardware stores, gift shops, hobby shops and variety stores.

Home furnishings stores.

Hotels, motels and bed and breakfasts.

Jewelry stores and watch repair shops.

Launderettes.

Light manufacturing and assembly—Provided the goods are to be sold on the premises only and provided that not more than ten persons are employed in the process.

Locksmiths.

Medical, optical and dental offices and clinics for health professionals, excluding overnight care and ambulance services.

Mobile food vending sites.

Mobile food vending units.

Multiple-family dwellings, accessory structures and uses.

Municipal, county, state or federal uses and facilities.

Music and video stores.

Newsstands.

Newspaper offices.

Notions and dry goods stores.

Nurseries, kindergartens or day care centers for children.

Office supply stores.

Offices for accountants, architects, attorneys and other professionals; consumer service offices such as real estate agencies, insurance agencies, travel agencies and advertising agencies; and administrative offices.

Performing arts centers.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Pet supply stores, excluding the sale of live animals.

Photography studios and photo retail sales.

Places of amusement and assembly including skating rinks, bowling alleys, billiard or pool parlors, trampoline centers, miniature golf, baseball batting stations, skateboard parks, but not including theatres.

Private schools.

Quick copy or print shops.

Radio and television studios but not including broadcast towers.

Radio, television and appliance stores and repair shops.

Residential dwelling units—provided such residential units occupy upper-story space within new or rehabilitated existing buildings having non-residential uses on the street level and provided that such residential units are in compliance with all applicable regulations for habitable space. All such residential uses shall have an entrance separate from the

non-residential uses on the street level unless the entrance to the building opens into a lobby from which access to each use originates.

Shoe stores, shoe repair shops and tailor shops.

Social, social service, union and civic organizations.

Sound and video recording studios.

Sporting goods shops.

Telephone answering services and telemarketing services.

Upholstering shops employing not more than five persons.

Other uses that are similar to and fit within one of the above categories but not including (1) off-premises liquor retailers, (2) trailer parks, (3) tattoo and body piercing parlors, (4) flea markets and (5) car wash facilities. No use shall be permitted which is not in harmony with the character of the district and with the specifically enumerated uses by reason of noise, odor, dust, dirt, gases, vibration, fire and explosive hazards. It is further stipulated that no exterior storage of wares, goods or materials shall be permitted within this district.

(Ord. No. 06-1203, § 2, 1-25-2007; Ord. No. 07-401, § 2, 6-14-2007; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 11-11, § 7, 2-24-2011; Ord. No. 13-882, § 2, 12-19-2013; Ord. No. 14-576, § 4, 9-25-2014; Ord. No. 15-315, § 1, 6-25-2015; Ord. No. 15-406, § 2, 7-23-2015; Ord. No. 12-356, § 1, 6-28-2012; Ord. No. 19-1040, § 1, 12-19-2019)

23.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in Article 73 hereof:

(1) *Minimum front yard requirements:* None, however the maximum setback shall be 15 feet.

(2) *Minimum rear yard requirements:* None, except that when the rear lot line abuts a residential district, except across a street, a rear yard of 25 feet is required of which the first five feet of the required rear yard shall be landscaped with a minimum of one small Type 3 or Type 4 tree and six shrubs per each linear 50 feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

(3) *Minimum side yard requirements:* None, except that when the side lot line abuts a residential district, except across a street, a side yard of ten feet is required.

(4) *Maximum height for new construction is unlimited;* however, where the property abuts a Residence 1, Residence 1-A, Residence 1-B, Residence 1-C, Residence 2, Residence 2-A or Residence 2-C District, except across a street, the maximum number of stories shall be two stories with a maximum height of 35 feet. Where the property abuts a Residence 2-B District, except across a street, the maximum number of stories shall be three stories with a maximum height of 45 feet. The properties that abut residential properties and that fall within these height restrictions shall be designated and referred to as Historic District Buffer Zone A.

Within Historic District Buffer Zone B, the maximum number of stories shall be four stories and with a maximum height of 60 feet.

Within Historic District Buffer Zone C, the maximum number of stories shall be five stories with a maximum height of 75 feet.

Within Historic District Buffer Zone D, the maximum number of stories shall be six stories with a maximum height of 90 feet.

(5) *Maximum total building area* is 100 percent of total lot area, except when the side or rear lot line abuts a residential district.

(6) *Where buildings are not contiguous,* the space between them shall be a minimum

of ten feet and shall be improved for use by pedestrians or vehicles or be landscaped.

(Ord. No. 06-1203, § 2, 1-25-2007; Ord. No. 09-510, § 1, 7-23-2009; Ord. No. 19-1040, § 2, 12-19-2019)

23.3. Installation and maintenance of landscaping.

(1) Trees and shrubs shall be well distributed, though not necessarily evenly spaced and shall meet the minimum size standards as set out in Table 1 of Section 71.5.1(2).

(2) All landscaping shall be installed in accordance with Section 71.5.3—Installation Requirements (1), (2), (3), (4), (7) and (8) and with Section 73.19—Installation of Landscaping.

(3) The owner, lessee, or his agents shall be responsible for providing, maintaining, and protecting all landscaping in a healthy and growing condition and for keeping it free from refuse and debris. All unhealthy and dead materials shall be replaced within one year after notification or during the next appropriate planting period, whichever comes first.

(Ord. No. 06-1203, § 2, 1-25-2007)

23.4. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 06-1203, § 2, 1-25-2007; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

23.5. Off-street parking requirements.

Off-street parking is not required in a General Business C-3 District; however, where off-street parking and vehicular use areas are provided, landscaping and lighting are required in accordance with Article 71—Off-Street Parking and Vehicular Use Area Landscaping Requirements. Off-street loading and vehicle standing space shall be provided as required in Article 70 hereof.

(Ord. No. 06-1203, § 2, 1-25-2007)

23.6. Historic district buffer zone density controls and design guidelines.

Due to the historic nature of this district as a retail, office and residential area, with buildings abutting the sidewalks and sharing party walls, the following density controls and design guidelines shall apply in Historic District Buffer Zone A, Historic District Buffer Zone B, Historic District Buffer Zone C and Historic District Buffer Zone D:

23.6.1. *Front yards.* None permitted, except:

(1) A National Register listed building moved from its original site may retain its existing setback to a maximum of ten feet; or

(2) Where there is located a porte-cochere, plaza, courtyard, or other such public space. In such case, the porte-cochere must be built to the property line along the street frontage.

All open space on a site not covered by building, parking or sidewalks shall be landscaped according to the applicable provisions of section 23.6.7, landscaping requirements.

23.6.2. *Side and rear yards.*

(1) *Minimum rear yard requirements:* None, except that when the rear lot line abuts a residential district, except across a street, a rear yard of 25 feet is required of which the first five feet of the required rear yard shall be landscaped with a minimum of one small Type 3 or Type 4 tree and six shrubs per each linear 50 feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

(2) *Minimum side yard requirements:* None, except that when the side lot line abuts a residential district, except across a street, a side yard of ten feet is required.

23.6.3. *Height.*

(1) Where General Business C-3 District properties abut a Residence 1, Residence 1- A, Residence 1-B, Residence 1-C, Residence 2, Residence 2-A or Residence 2-C district, except across a street, the maximum number of stories shall be two

stories with a maximum height of 35 feet. Where the property abuts a Residence 2-B District, except across a street, the maximum number of stories shall be three stories with a maximum height of 45 feet. The properties that abut residential properties and that fall within these height restrictions shall be designated and referred to as Historic District Buffer Zone A.

(2) Within Historic District Buffer Zone B, the maximum number of stories shall be four stories with a maximum height of 60 feet.

Historic District Buffer Zone B is defined as the property that lies within the following boundaries: Begin at the intersection of the centerlines of Clinton Avenue and Monroe Street/Lincoln Street; then in a southerly direction along the centerline of Monroe Street/Lincoln Street to the intersection of the centerlines of Lincoln Street and Randolph Avenue; then West along the centerline of Randolph Avenue to the intersection of the centerlines of Randolph Avenue and Green Street; then South along the centerline of Green Street to the intersection of the centerlines of Green Street and Eustis Avenue; then West along the centerline of Eustis Avenue to the intersection of the centerlines of Eustis Avenue and Franklin Street; then South along Franklin Street to the intersection of the centerlines of Franklin Street and Gates Avenue; then West along the centerline of Gates Avenue to the intersection of the centerlines of Gates Avenue and Madison Street; then South along the centerline of Madison Street to the intersection of the centerlines of Madison Street and Lowe Avenue; then West along Lowe Avenue to a point near the half-block line on the north side of Lowe Avenue between Gallatin Street and Madison Street; then in a northerly direction along the rear lot lines of those properties fronting Madison Street to the centerline of Manning Drive; then West along the centerline of Manning Drive to the intersection of the centerlines of Manning Drive and Fountain Row; then North along the centerline of Fountain Row to the intersection of the centerlines of Fountain Row/Fountain Circle and Williams Avenue; then continue north along the centerline of Fountain Circle to the intersection of the centerlines of Fountain Circle and Gates Avenue; then East along the centerline of Gates Avenue to the intersection of the centerlines of Gates Avenue and Madison Street; then North along the centerline of Madison Street to the intersection of the centerlines of Madison Street and South Side Square; then East along the centerline of South Side Square to the intersection of the centerlines of South Side Square and East Side Square; then North along the centerline of East Side Square to the intersection of the centerlines of East Side Square and Randolph Avenue; then East along the centerline of Randolph Avenue to the intersection of the centerlines of Randolph Avenue and Green Street; then North along the centerline of Green Street to the intersection of the centerlines of Green Street and Clinton Avenue; then East along the centerline of Clinton Avenue to the intersection of the centerlines of Clinton Avenue and Lincoln Street and the point of beginning.

(3) Within Historic District Buffer Zone C, the maximum number of stories shall be five stories with a maximum height of 75 feet.

Historic District Buffer Zone C is defined as the property that lies within the following boundaries: Begin at the intersection of the centerlines of Green Street and Monroe Street/Lincoln Street; then in a southerly direction along the centerline of Monroe Street/Lincoln Street to the intersection of the centerlines of Lincoln Street and Clinton Avenue; then West along the centerline of Clinton Avenue to the intersection of the centerlines of Clinton Avenue and Green Street;

then North along the centerline of Green Street to the intersection of the centerlines of Green Street and Monroe Street/Lincoln Street and the point of beginning.

(4) Within Historic District Buffer Zone D, the maximum number of stories shall be six stories with a maximum height of 90 feet.

Historic District Buffer Zone D is defined as the property that lies within the following boundaries: Begin at the intersection of the centerlines of Clinton Avenue and Green Street; then South along the centerline of Green Street to the intersection of the centerlines of Green Street and Randolph Avenue; then West along the centerline of Randolph Avenue/North Side Square to the intersection of the centerlines of Randolph Avenue/North Side Square and Jefferson Street/West Side Square; then North along the centerline of Jefferson Street to the intersection of the centerlines of Jefferson Street and Clinton Avenue; then East along the centerline of Clinton Avenue to the point of beginning.

(5) In order to create a sense of harmony and compatibility, all buildings within the historic district buffer zones shall be designed to be overlooked by taller buildings within the General Business and Central Business districts as well as be seen from surrounding streets and public places.

Elevator shafts and similar structural elements not intended as places of occupancy or storage; heating, ventilating and air conditioning equipment; solar collectors; communication and transmission devices and similar mechanical fixtures may extend above the roof if they conform to the following requirements:

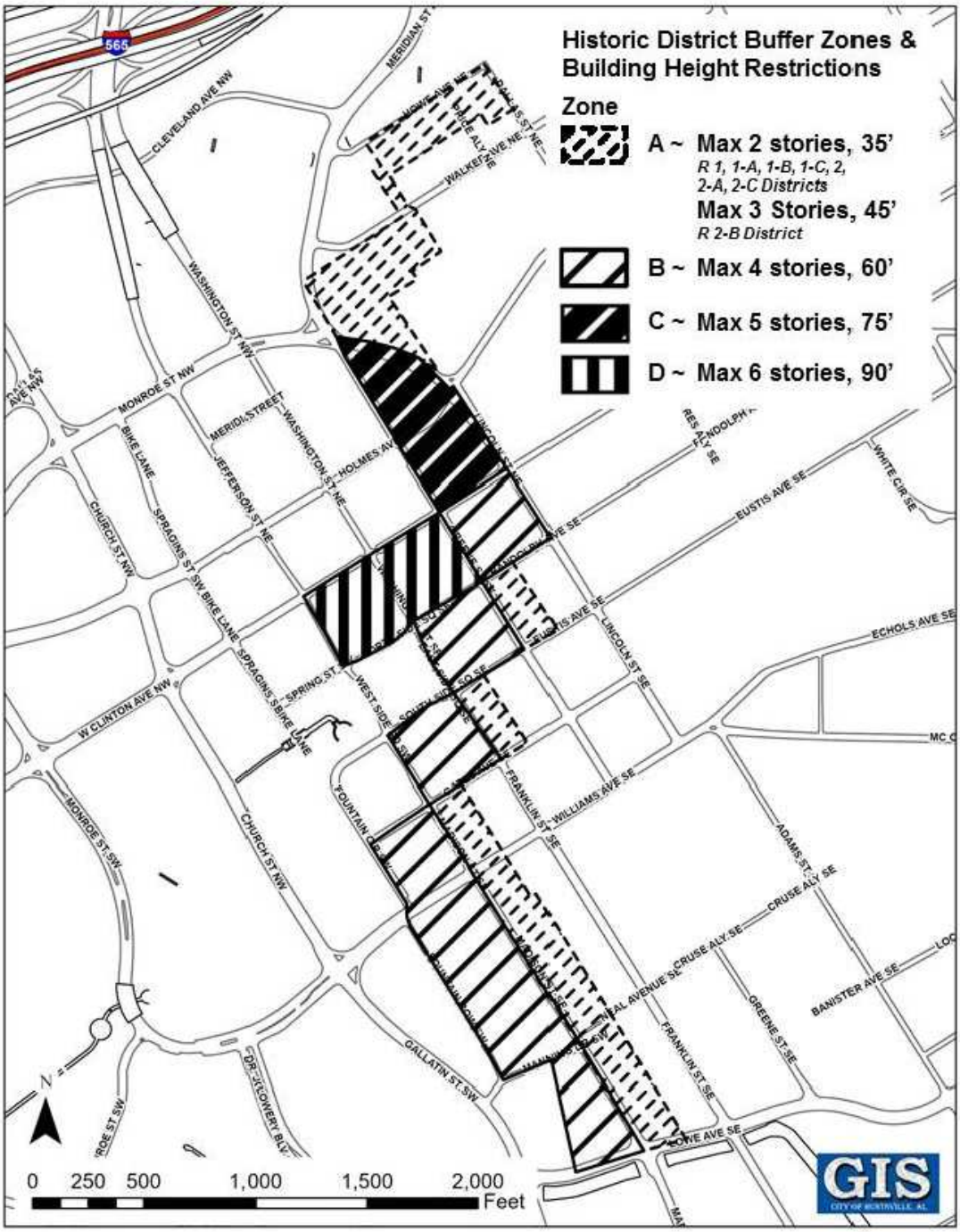
(a) Such fixtures and structural elements must be completely shielded from view at street level and/or incorporated into the architectural design of the building as a whole; and

(b) Complementary parapets, screens, shades and superstructures are encouraged to create a visually pleasing and architecturally consistent roofscape for the building.

(6) Rooftop gardens, decks and terraces must be completely shielded from view at street level with their railings and screens situated discretely behind parapets so as not to attract attention away from the building cornices. In all historic district buffer zones, roof gardens, decks and terraces are considered to be places of occupancy, and as such, must conform to the height limitations for eye level (defined as six feet above the highest occupied surface). The height limitations for eye level shall be included in calculating the height of the building and shall not be less than six feet below the prescribed maximum height for the building. An example of the height limitations for eye level is presented in the following illustration.



General Business C3 District
Historic District Buffer Zone



23.6.4. *Off-street parking requirements.*

(1) Off-street parking is not required in the General Business C-3 District; however, where off-street parking and vehicular use areas are provided in the Historic District Buffer Zones, lighting is required in accordance with section 71.6, PVA Lighting Requirements. Off-street loading and vehicle standing space shall be provided as required in article 70 hereof. No surface parking or vehicular drive parallel to the street shall be permitted between a building and any street on which it has frontage, except in the case of a porte-cochere. In such case, the porte- cochere must be built to the property line along the street frontage.

(2) Five or more surface parking spaces must be screened from streets, pedestrian areas, and sidewalks according to the provisions of section 23.6.7(a) and section 23.6.7(b).

(3) Surface parking shall utilize alleys for ingress and egress. A curb cut from a public street will be allowed only if alternative access is not available.

(4) No more than 15 percent of a building site or other tract may be utilized for surface parking. If additional spaces are needed, they shall be provided within the building itself or within a parking garage.

(5) All parking surfaces and unpaved driveways shall be curbed along their perimeters.

23.6.5. *Parking garages.* Parking garages erected within the Historic District Buffer Zones shall comply with the following requirements:

(1) All street level garage frontages shall provide commercial space equivalent to 75 percent of the linear frontage of street frontage, exclusive of driveways; such commercial space shall be a minimum of 18 feet deep as measured from the façade of the building.

(2) Vehicular driveways shall be sited and designed so as to create the least hazard to pedestrians, and curb cuts shall not exceed 25 percent of any street frontage greater than 160 feet.

(3) The ground floor façade should be differentiated from the upper levels to further enhance the continuity of the street wall and shall comply with the provisions of section 23.6.6[1], street level walls.

(4) Sloping floor levels shall not be revealed or implied by the exterior design of the garage elevations as seen from any street frontage.

(5) Parked cars shall be screened from public view to a height of three feet and six inches, consistent with the guardrail height as defined by the International Building Code.

(6) Façades should be designed to be compatible with the surrounding buildings in terms of scale, color and texture of materials, form and massing, and design detailing.

23.6.6. *Site development.* The Historic District Buffer Zones are intended to create harmonious transition zones between the urban core and the residential areas. These Historic District Buffer Zones will preserve and enhance the many historic buildings while adding new buildings that will expand and contribute to the low scale, small town, urban environment that makes the downtown attractive for pedestrians. Every effort should be made to preserve and renovate the historic structures and to create new infill construction that is compatible with the old in terms of scale, proportion, materials, design and function without being imitative.

(1) *Street level walls.* The purpose of the street level wall requirement is twofold. The first goal is to promote the establishment of a variety of retail, service and entertainment type businesses for the convenience of the office, residential, and tourist populations in the downtown area. The second aim is to promote pedestrian use and activity and to encourage a higher degree of street life and vitality in the downtown. Retailing is enhanced by

having transparent store fronts abutting the sidewalk and by assembling a critical mass of continuous retail activities along adjoining streets.

(a) The front façade of all new buildings shall be oriented toward a public street as shall the principal entrances.

(b) Doorways shall be recessed into the building interior to a depth sufficient to separate sidewalk traffic from outwardly opening doors, to create focal interest, and to punctuate the street wall.

(c) To maintain consistency with the existing historic streetscapes, new construction shall utilize natural materials for the exterior cladding of all visible wall surfaces. The facades should be designed to be compatible with surrounding buildings in terms of scale, color and texture of materials, form and massing, and design detailing. Acceptable materials include, but are not limited to, brick, stone, concrete stucco, terra cotta, precast concrete, glass, and where appropriate, cast metal for fenestrations, columns and beams. Polished stone and mirrored glass should be avoided as primary materials. Synthetic and imitation materials as well as aluminum, vinyl and plastic materials are not acceptable.

(d) To create an animated streetscape, an unbroken expanse of solid or blank wall shall not exceed 20 linear feet. Devices suitable to break such a wall span include doors, windows, display windows and cases, street art, fountains, plazas, trees and landscaping, pedestrian furniture and the introduction of variety in materials, texture, color and/or pattern of wall materials.

(e) Street level commercial spaces should be configured as units 15 to 50 feet wide in order to stimulate visual interest, establish a predictable rhythm for pedestrians, and encourage the introduction of small retail and service businesses.

(f) Windows located in street level walls, with the exception of stained glass windows, shall be transparent. Windows located in street level walls shall have a maximum sill height of 48 inches as measured from the sidewalk.

(2) *Utilities and mechanical units.*

(a) All power, communication and other wiring shall be located underground.

(b) All exterior mechanical equipment, trash facilities, and loading areas shall be adequately screened as well as practicable so as not to be visible from any street or by pedestrians.

23.6.7. *Landscaping requirements.*

(1) *Landscape buffers for surface parking.* Buffer strips required to separate surface parking spaces from streets and pedestrian uses shall be landscaped in one of the following ways:

(a) A minimum five-foot wide planting bed having a continuous masonry wall between 30 and 42 inches high planted on the street side with at least one nondeciduous vine or shrub for every ten feet of wall length and one small maturing tree for every 30 feet of wall length. Trees, shrubs and vines shall be evenly distributed along the length of the wall. The landscape bed shall be planted with an evergreen ground cover; or

(b) A minimum five-foot wide bed having a hedge of a nondeciduous species, planted and maintained to form a continuous visual screen at least 30 inches high within one year of planting and one small maturing tree for every 30 linear feet of required planting bed. The bed shall be planted with an evergreen ground cover.

(2) *General landscape requirements.*

(a) Plant material used to fulfill these requirements must be provided with an adequate irrigation system which does not rely on drainage from the street, sidewalk, or buildings.

(b) All plant material must conform to the current version of the "American Standard for Nursery Stock" published by the American Association of Nurserymen.

(c) The species of trees used must be consistent with adopted city ordinances concerning urban trees.

(d) Maintenance of landscaping in a healthy, neat and attractive condition is the responsibility of the owner of the property. Specifically, all plant material shall be watered, fertilized, pruned, kept free from weeds and litter, and replaced if diseased, injured or dead in a manner consistent with good horticultural practices.

(e) All landscaping shall be installed in accordance with section 73.19, installation of landscaping.

(Ord. No. 09-510, § 2, 7-23-2009; Ord. No. 19-1040, § 3, 12-19-2019; Ord. No. 21-46, § 1(Exh. A, § B.1.), 2-25-2021)

23.7. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.2, and shall be regulated by article 75 - alcoholic beverage establishment regulations. (Ord. No. 11-11, § 7, 2-24-2011)

ARTICLE 24. HIGHWAY BUSINESS C-4 DISTRICT REGULATIONS

Purpose. The purpose of the highway business C-4 district is to provide for the retailing of goods and the furnishing of major services, selected trade shops, and automotive repairs. Characteristically, this district occupies a larger area than the neighborhood business C-1 district, is intended to serve a considerably greater population, and offers a wider range of specialized services. This district is intended to be utilized primarily by those commercial uses which cater to the traveling public, tourists, trucks, and heavy automobile traffic.

To this extent, this district is usually located on a major arterial highway at or near the intersection with one or more other major arterial highways so that it is accessible from all directions.

It is not the intent of this district to encourage the extension of existing strip commercial areas, since the pattern of present development provides more than ample frontage for this purpose. Future expansion of this district should desirably occur as an increase in district depth rather than as further striplike extension along thoroughfares.

Within a highway business C-4 district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

24.1. Uses permitted.

24.1.1. Land and buildings shall be used only for the following uses:

Accessory structures and uses as permitted herein.

Agricultural uses.

Apparel stores.

Ambulance services.

Animal hospital or veterinary clinic, pet shops.

Assisted living facilities.

Auction gallery, including auto auction.

Automobile sales, new and used, retail and wholesale with attendant facilities, except that any mechanical or body repair must be conducted entirely within an enclosed structure and provided further that all vehicles on a used car sales lot must be in operating condition at all times.

Automobile repair garage, mechanical and body, provided all operations are conducted entirely within an enclosed structure.

Bakery, where not more than five persons are employed on the premises and where the products made are sold exclusively at retail on the premises.

Bank, savings and loan associations.

Barbershop, beauty parlor, reducing salons.

Bookstores.

Building and lumber supply establishments—provided the entire storage area is enclosed within a solid fence at least seven feet in height, or greater, if required to adequately screen such area, and that any machine operations must be conducted entirely within an enclosed structure.

Bus depots.

Cafes, delicatessens, coffee shops and restaurants without alcohol.

Carwash establishments.

Churches and similar places of worship.

Commercial parking garages or lots.

Confectionery store.

Dancing or music academy.

Drugstores and apothecaries.

Dry cleaning establishments utilizing only non-flammable dry cleaning fluids.

Farmers markets.

Florist shops and greenhouses.

Furniture stores.

Gasoline service stations.

Grocery stores.

Gymnasiums, fitness and exercise centers, health clubs and spas.

Hardware store, gift shop and variety store.

Hotels, motels, tourist homes, camping trailer courts.

Jewelry store, watch repair shop.

Laundry operations, launderette, coin-operated dry cleaning establishments.

Light manufacturing and assembly, provided the goods are to be sold on the premises only, and provided not more than ten persons are employed in the process.

Mobile food vending sites.

Mobile food vending units.

Mobile home and trailer parks.

Mortuaries and crematoriums.

Municipal, county, state or federal use.

Multiple-family dwellings.

Music or record shop.

Newsstand, hobby shop.

Notion and dry goods store.

Nursery, kindergarten or day care for children.

Offices, professional buildings.

Office-warehouse, where the structure is used for offices and the storage of goods, wares, or merchandise in conjunction with a business located on the site. No outside storage of goods, wares, or merchandise is permitted on premises.

Parking lots and parking garages.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Photographic studios, photo retail sales.

Places of amusement including skating, bowling, trampolines, golf driving ranges, miniature golf, baseball batting, and similar nonoffensive establishments, but not including theaters or drive-in theaters.

Print shops, newspaper publishing house.

Private hospitals, sanitarium or nursing home.

Radio and television studios but not including broadcast towers.

Radio and television appliance stores and repair shops.

Self-propelled, camping and recreational vehicle sales; trailer and mobile home sales; [and] boat sales.

Shoe store, shoe repair shop, tailor shop.

Upholstering shop, where not more than five persons are employed.

24.1.2 *Variances.* The board of adjustment shall have no authority to grant variances that would reduce required separation distances for establishments selling or serving alcoholic beverages or permit such uses on street classifications other than those specified in section 24.1.1.
(Ord. No. 96-1008, § 2, 1-23-1997; Ord. No. 97-707, § 1, 11-13-1997; Ord. No. 03-593, § 3, 8-14-2003; Ord. No. 03-672, §§ 1—4, 9-11-2003; Ord. No. 07-401, § 3, 6-14-2007; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 11-11, § 5, 2-24-2011; Ord. No. 11-899, § 2, 1-26-2012; Ord. No. 13-882, § 2, 12-19-2013; Ord. No. 14-576, § 5, 9-25-2014; Ord. No. 15-406, § 2, 7-23-2015; Ord. No. 18-03, § 1, 2-22-2018)

24.2. Density controls.

The following yard, density, and height of building requirements shall be observed:

24.2.1. *Multiple-family dwellings.* Plans for multiple-family projects containing two or more buildings which are located on the same parcel of land shall be presented to the planning commission for review. The planning commission shall make certain the proposed development meets the following requirements:

(1) The proposed development shall be compatible with requirements and intent of the subdivision regulations relative to access, drainage, utilities, and major streets.

(2) Sidewalks not less than four feet wide are required in the project area leading from all front and rear doors to streets. Sidewalks are also required along all property of the project abutting streets.

(3) Six thousand square feet of land area for the first two dwelling units; 2,000 square feet of land area for each additional dwelling unit; provided, however, such required land area must be exclusive of vehicular accessways but may include parking spaces.

(4) Closest permitted distance between any two apartment buildings shall be ten feet for one-story buildings; 14 feet for two-story buildings.

(5) Minimum distance from an apartment building to a parking space shall be eight feet.

(6) Minimum distance from front or side of an apartment building shall be 50 feet to a major arterial right-of-way and 30 feet to other public street rights-of-way.

(7) Minimum distance from side of apartment building to side property line shall be seven feet for one-story buildings; eight feet for two-story buildings.

(8) Minimum distance from rear of apartment building to side property line shall be 30 feet.

(9) Minimum distance from either rear or side of apartment building to rear lot line shall be 25 feet.

(10) Minimum distance from front of one apartment building to front of another apartment building shall be 30 feet.

(11) Windows in all apartment buildings shall have not less than a 20-foot view (measured perpendicular from the window) unobstructed by other buildings located on the same parcel of land.

(12) Minimum distance from the parking areas to any street right-of-way shall be 20 feet.

(13) Maximum number of stories shall be ten.

(14) Maximum number of structures shall be limited to four structures per acre.

(15) No front of a multi-family dwelling building shall be in the rear of another building.

24.2.2. *Trailer parks and mobile home parks.*

(1) Minimum parcel of land required shall be not less than five acres for each park.

(2) Minimum size lot required for each trailer space shall be not less than 40 feet wide and 80 feet long.

(3) Minimum side yard setback, ten feet from the side lot or space line.

(4) A buffer strip not less than 20 feet deep shall be provided completely around the trailer park or mobile home park; provided, however, that a minimum front yard depth of 50 feet, of which the first 20 feet shall be landscaped and maintained, shall be required along a major arterial.

(5) Such trailer or mobile home park shall not accept trailers until at least 50 percent of its lots have been completely developed together with facilities as required by other ordinances and regulations.

(6) Such trailer or mobile home park shall be required to also meet regulations required by other local codes and ordinances.

24.2.3. *Camping trailer courts.*

(1) Minimum parcel of land required shall be not less than two acres for each court.

(2) Minimum size lot required for each trailer space shall be not less than 15 feet wide and 40 feet long.

(3) A buffer strip not less than 20 feet deep shall be provided completely around the court; provided, however, that a minimum front yard depth of 50 feet, of which the first 20 feet shall be landscaped and maintained, shall be required along a major arterial.

(4) Such camping trailer court shall not accept trailers until 50 percent of its lots have been completely developed together with facilities as required by these regulations.

(5) [For] side yard setback, trailers shall be set back a minimum of five feet from the side lot or space line.

24.2.4. *Business structures and other permitted uses.*

(1) Minimum required depth of front yard, all structures shall be set back not less than 50 feet from arterial rights-of-way and not less than five feet from all collector and local street rights-of-way.

(2) Minimum required depth of rear yard—none, except where the rear lot line abuts a residential district there shall be provided a rear yard of not less than 20 feet.

(3) Minimum required width of each side yard, none, except where a side lot line abuts a residential district there shall be provided a side yard of not less than 20 feet.

(4) Maximum number of stories shall be ten.

24.2.5 *Multiple family dwelling within opportunity zones.*

Plans for multiple family projects containing two or more buildings which are located on the same parcel of land within an opportunity zone, as defined by the Tax Cuts and Jobs Act of 2017 shall be presented to the planning commission for review. The planning commission shall make certain the proposed development meets the following requirements:

(1) The proposed development shall comply with requirements and intent of the subdivision regulations relative to access, drainage, utilities, and major streets.

(2) Sidewalks not less than four feet wide are required in the project area leading from all front and rear doors to streets. Sidewalks are also required along all property of the project abutting streets.

(3) Closest permitted distance between any two apartment buildings shall be ten feet for one-story buildings; 14 feet for two-story buildings or more.

(4) Minimum distance from an apartment building to a parking space shall be eight feet.

(5) Minimum distance from front or side of an apartment building shall be 50 feet to a major arterial right-of-way and five feet to other public street rights-of-way.

(6) Minimum distance from either rear or side of apartment building to side and rear lot line shall be five feet, except where the rear or side lot line abuts a residential district there shall be provided a distance not less than 25 feet.

(7) Minimum distance from front of one apartment building to front of another apartment building shall be 12 feet, except when the apartment building has a height of 25 feet or above then a 30-feet distance is required.

(8) Windows in all apartment buildings shall have not less than a 12-foot view (measured perpendicular from the window) unobstructed by other buildings located on the same parcel of land. Except, when an apartment building has a height of 25 or above then a 20-foot view is required.

(9) Minimum distance from the parking areas to any street right-of-way shall be 20 feet.

(10) Maximum number of stories shall be ten.

(11) Maximum number of structures shall be limited to four structures per acre.

(12) No front of a multi-family dwelling building shall be in the rear of another building.

(Ord. No. 17-164, § 1, 4-27-2017; Ord. No. 19-665, § 1, 9-26-2019; Ord. No. 22-685, § 1, 10-27-2022; Ord. No. 22-484, § 1, 8-25-2022)

24.3. Required yards.

24.3.1. Off-street parking areas, driveways and vehicular access ways, except as necessary to cross the required front yard, are not permitted in the first 20 feet of the required front yard as measured from the arterial right-of-way or in the first five feet of the required front yard as measured from the collector and local streets right-of-way. Said area shall be landscaped and maintained in a manner as to be neat in appearance when viewed from any street.

24.3.2. Exterior storage of materials shall be in the side and rear yards only and shall be contained by fencing in such a manner as to be neat in appearance when viewed from any street. No exterior storage or display of materials or products, whether for sale or not, is permitted in the required front yard except farm equipment sales, new and used car sales, trailer sales, recreational vehicle sales and mobile home sales and these uses shall not be permitted in the first 20 feet of the required front yard.

24.3.3. A seven-foot-high screen shall be provided along the perimeter at the rear and side yards of the tract to be developed and/or used for commercial purposes when the tract abuts either on the rear or side lot line of a residential district. Such screening shall not extend closer than 50 feet to any street right-of-way. If planting is to be used as a screen, it shall be provided as set forth in section 3.1, buffer of screen planting, hereof. Such plants shall be initially not less than seven feet in height.

(Ord. No. 09-430, § 5, 7-9-2009; Ord. No. 17-164, § 2, 4-27-2017; Ord. No. 18-03, § 2, 2-22-2018)

24.4. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

24.5. Off-street parking and loading requirements.

For single tenant developments, off-street parking and loading requirements shall be provided as set forth in article 70 hereof.

For multi-tenant, mixed use, and multi-family developments, shared parking and loading requirements shall be provided as set forth in the Shared Parking Factor matrix of article 27 hereof.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 09-430, § 6, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010; Ord. No. 17-164, § 3, 4-27-2017)

24.6. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements, except for multifamily dwellings which must comply only with section 71.6, PVA lighting requirements, when applicable.
(Ord. No. 99-1020, § 1, 1-13-2000; Ord. No. 09-430, § 8, 7-9-2009)

Editor's note—Ord. No. 09-430, § 7, adopted July 9, 2009, repealed § 24.6, which pertained to off-street loading requirements. Section 8 of said ordinance renumbered § 24.7 as § 24.6. See also the Code Comparative Table.

24.7. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.3, and shall be regulated by article 75 - alcoholic beverage establishment regulations.
(Ord. No. 11-11, § 8, 2-24-2011)

ARTICLE 25. COMMERCIAL RECREATION C-5 DISTRICT REGULATIONS

Purpose. The commercial recreation C-5 district is established to provide areas under unified control in which the principal use of land is devoted to recreation and resort complexes catering to the local or tourist population. The intent is to reserve lands which because of particular location and natural features are adapted for such recreational uses and to encourage the development of these locations in such a manner as to minimize traffic hazards and to foster compatibility with other uses in the vicinity.

25.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Amusement parks and entertainment centers.

Cafes, delicatessens, coffee shops and restaurants without alcohol.

Camping facilities and grounds and tourist oriented trailer parks not for permanent residence.

Convenience foodstores of no more than 4,000 square feet in floor area operated as an accessory use to other principal uses.

Country clubs and golf courses.

Educational institutions, including dormitories, faculty domiciles and related uses.

Farmers markets.

Hotels and motels.

Marinas and related waterfront uses.

Mobile food vending sites.

Mobile food vending units.

Municipal, county, state or federal use, including publicly owned or operated libraries, museums, art galleries and exhibit centers.

Other uses similar in character to those enumerated herein.

Residential uses only in connection with other principal permitted uses.

Souvenir and curio shops, only when operated in conjunction with another principal use enumerated herein.

Buildings, structures, and uses accessory and customarily incidental to any of the above uses.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.
(Ord. No. 97-707, § 1, 11-13-1997; Ord. No. 03-593, § 4, 8-14-2003; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 11-11, § 9, 2-24-2011; Ord. No. 13-882, § 2, 12-19-2013; Ord. No. 15-406, § 2, 7-23-2015)

25.2. Density controls and setbacks.

25.2.1. Minimum lot area shall not be less than five acres for each use or group of uses as originally proposed. Additions of less than five acres to existing uses shall be allowed.

25.2.2. Yards facing an existing or proposed public street other than a controlled access highway shall be considered front yards. Such yards shall have a minimum depth of 50 feet, provided that no building shall project through an imaginary height plane as described in section 25.6.

25.2.3. All other yards shall have a minimum depth of 25 feet, provided that no building shall project through an imaginary height plane as described in section 25.6.

25.2.4. All required yards shall be kept clear of parking, loading areas, accessory uses and buildings; provided, however, a gate or security station may be located in a required yard.

25.3. Street access and frontage.

25.3.1. Each lot shall have a minimum frontage of 100 feet on a public road.

25.3.2. Access to building sites shall be via collector or arterial streets wherever possible. No access roads serving sites shall be permitted which may place heavy traffic on residential streets that are not classified as major collector or arterial streets.

25.4. Off-street parking and loading requirements.

Off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 09-430, § 9, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

25.5. Off-street parking and vehicular use area (PVA) landscaping and lighting requirements.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular Use area (PVA) landscaping requirements.
(Ord. No. 09-430, § 10, 7-9-2009)

25.6. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 09-430, § 11, 7-9-2009; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

25.7. Height.

No portion of any building shall project through imaginary height planes leaning inward from yards as defined in section 25.2.2 or 25.2.3 at a slope of 1.0 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary.
(Ord. No. 09-430, § 11, 7-9-2009)

25.8. Development procedure.

25.8.1. Anyone desiring to receive a building permit for the use of land lying in a commercial recreation C-5 district must submit to the manager of planning the following information for the approval of plans:

(1) A site plan showing property boundaries, easements, locations and design of buildings, driveways, driveway intersections with streets, parking and loading areas, grading and landscaping plans, and sidewalks.

(2) Plans for all signs to be erected, including location, design, color and lighting of each sign.

25.8.2. The manager of planning shall review and approve by signature the proposed site plan upon finding that the same complies with these regulations. If the proposed site plan is not approved, the manager of planning shall state in writing on the proposed site plan the cause for such disapproval.
(Ord. No. 09-430, § 11, 7-9-2009)

25.9. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.4, and shall be regulated by article 75 - alcoholic beverage establishment regulations.
(Ord. No. 11-11, § 9, 2-24-2011)

ARTICLE 26. CENTRAL BUSINESS C-B DISTRICT REGULATIONS

Purpose. The Central Business C-B District is intended to serve as a community focal point by recognizing and encouraging those unique characteristics that make Huntsville and its downtown distinctive. For 150 years Huntsville has functioned as a small, rural town although growth during the late 20th century has partially obscured those origins. The downtown and adjoining residential historic preservation districts are the only surviving concentrations of the historic town; two of the districts are listed on the National Register of Historic Places and more than 35 structures and sites in the commercial core are individually listed on the Register.

The purpose of these regulations is to continue the development of the downtown in such a way as to provide a strong sense of continuity with the past by continuing those characteristics that created its identity: a dense concentration of low-scale buildings, a pedestrian rather than car orientation, high-quality materials and design, a diversity of uses including street level retail and services uses, and generous landscaping to soften the streetscape and buffer where needed.

The streets in the downtown area are the networks of public open space that set the tone for the district. Because visual continuity is an important aspect in creating an identity for the downtown, a consistency in streetscape design should extend to redevelopment of the streets, the sidewalk pavement, the landscaping, and street furniture. To further enhance this continuity, a moderate building is specified, the intrusion of surface parking is discouraged, street level retail and commercial service uses are encouraged and identifiable building entrances are required.

The ten-story height limit assures that new construction will be compatible with historic structures; minimizes the wind tunnel effect between buildings; assures the penetration of sunlight to ground level; enhances the pedestrian streetscape; and is conducive to small scale retail and service establishments.

While parking cannot be eliminated, it can be treated so as to diminish its disruptive effects on the streetscape and its unsightly visual qualities. Surface parking is held to a minimum in this district and landscaping is required wherever parking abuts pedestrian use areas. The goal is to eventually replace surface lots with occupied buildings and to have parking provided in multi-level garages or within the buildings themselves.

Within a Central Business C-B District as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

26.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Antique stores.

Apparel stores.

Art and craft galleries and studios.

Bakeries, where not more than five persons are employed on the premises and where the products made are sold exclusively at retail on the premises.

Banks and credit unions.

Barber shops and beauty parlors.

Book, map, card and stationery stores.

Brewpubs and beer breweries.

Cafes, delicatessens, coffee shops and restaurants without alcoholic beverages.

Churches and similar places of worship.

Class 1 and Class 2 restaurants and Class 3 On-Premises Beer or Table Wine Retailers including sidewalk cafes.

Class 1 and Class 2 On-Premises Beer and Table Wine Retailers.

Class 3 Lounges.

Class 4 Lounges—Provided that such use shall be subject to each of the following restrictions:

(1) (a) A Class 4 Lounge shall not be located within 500 feet of a residential district.

(b) Said distance shall be measured from the external boundary of the licensed premises of the Lounge, inclusive of any adjoining parking areas whether such areas are owned, leased or otherwise assigned to the Lounge, to the closest point of the residential district boundary.

(2) (a) A Class 4 Lounge shall not be located within 500 feet of a church, or public or private elementary or secondary school, nursery, kindergarten or day care center, except a Class 4 Lounge may be located within 500 feet of accessory day care centers located in office buildings.

(b) Said distance shall be measured from the external boundary of the licensed premises of the Class 4 Lounge, inclusive of any adjoining parking areas whether such areas are owned, leased or otherwise assigned to the Class 4 Lounge, to any buildings within which such other uses are located.

(c) The aforesaid distance restrictions from churches, schools, nurseries, kindergartens and day care centers shall not apply in the following enumerated cases: (i) where the licensed premises and the church or school, nursery, kindergarten or day care center front on different streets and do not have common exits or driveways providing access or adjoining property lines, or (ii) where the church, school, nursery, kindergarten or day care center was established after the licensed premises began operation and said operation has not been abandoned or discontinued for a period of six months.

Clubs.

Commercial and trade schools.

Commercially operated parking garages having at least two levels of parking.

Computer and telephone sales and service shops.

Computer programming, software design and web design services.

Confectionery stores.

Convenience stores.

Dance and music academies.

Drug stores.

Dry cleaning pick-up stations.

Florist shops.

Food kiosks and street vendors.

Grocery, health, and ethnic food stores.

Gymnasiums, reducing salons, fitness and exercise centers, health clubs and spas.

Hardware stores, gift shops, hobby shops and variety stores.

Home furnishings stores.

Hotels and bed & breakfasts.

Jewelry stores and watch repair shops.

Launderettes.

Locksmiths.

Medical, optical and dental offices and clinics for health professionals, excluding overnight care and ambulance services.

Municipal, county, state or federal uses and facilities.

Music and video stores.

Newsstands.

Newspaper offices.

Notions and dry goods stores.

Nurseries, kindergartens or day care centers for children.

Office supply stores.

Offices for accountants, architects, attorneys and other professionals; consumer service offices such as real estate agencies, insurance agencies, travel agencies and advertising agencies; and administrative offices.

Off-premises beer retailer and off-premises table wine retailer—Provided that such uses shall not be within 500 feet of a residential district as measured from the external boundaries of the property of said uses, nor within 500 feet of any buildings in which there is a church, or public or private elementary or secondary school, nursery, kindergarten or day care center. The aforesaid distance restrictions from churches, schools, nurseries, kindergartens or day care centers shall not apply in the following enumerated cases: (i) where the licensed premises and the church or school, nursery, kindergarten or day care center front on different streets and do not have common exits or driveways providing access or adjoining property lines, or (ii) where the church, school, nursery, kindergarten or day care center was established after the licensed premises began operation and said operation has not been abandoned or discontinued for a period of six months.

Performing arts centers.

Pet supply stores, excluding the sale of live animals.

Photography studios and photo retail sales.

Private schools.

Pub—Provided that such use shall be subject to each of the following restrictions:

(1) (a) A pub shall not be located within 500 feet of a residential district;

(b) Said distance shall be measured from the external boundary of the licensed premises of the Pub, inclusive of any adjoining parking areas whether such areas are owned, leased or otherwise assigned to the Pub, to the closest point of the residential district boundary.

(2) (a) A pub shall not be located within 500 feet of a church, or public or private elementary or secondary school, nursery, kindergarten or day care center, except a pub may be located within 500 feet of a accessory day care centers located in office buildings.

(b) Said distance shall be measured from the external boundary of the licensed premises of the pub, inclusive of any adjoining parking areas whether such areas are owned, leased or otherwise assigned to the pub, to any buildings within which such other uses are located.

(c) The aforesaid distance restrictions from churches, schools, nurseries, kindergartens and day care centers shall not apply in the following enumerated cases: (i) where the licensed premises and the church or school, nursery, kindergarten or day care center front on different streets and do not have common exits or driveways providing access or adjoining property lines, or (ii) where the church, school, nursery, kindergarten or day care center was established after the licensed premises began operation and said operation has not been abandoned or discontinued for a period of six months.

Quick copy or print shops.

Radio and television studios but not including broadcast towers.

Radio, television and appliance stores and repair shops.

Residential dwelling units—Provided such residential units occupy upper-story space within new or rehabilitated existing buildings

having nonresidential uses on the street level and provided that such residential units contain at least 800 square feet and are in compliance with all applicable regulations for habitable space. All such residential uses shall have an entrance separate from the nonresidential uses on the street level unless the entrance to the building opens into a lobby from which access to each use originates.

Shoe stores, shoe repair shops and tailor shops.

Social, social service, union and civic organizations.

Sound and video recording studios.

Sporting goods shops.

Telephone answering services and telemarketing services.

Upholstering shops employing not more than five persons.

Other uses that are similar to and fit within one of the above categories but not including (1) off-premises liquor retailers, (2) new commercially operated surface parking lots, (3) tattoo and body piercing parlors, (4) flea markets, (5) gasoline service stations, (6) car wash facilities or (7) storage facilities. No use shall be permitted which is not in harmony with the character of the district and with the specifically enumerated uses by reason of noise, odor, dust, dirt, gases, vibration, fire and explosive hazards. It is further stipulated that no exterior storage of wares, goods or materials shall be permitted within this district.

(Ord. No. 06-1201, § 1, 1-25-2007 Ord. No. 07-401, § 4, 6-14-2007)

26.2. Density controls.

Due to the historic nature of this district as a retail, office and residential area, with buildings abutting the sidewalks and sharing party walls, the following density requirements shall apply:

26.2.1. Front yards. None required and none permitted, except:

(1) A National Register listed building moved from its original site may retain its existing setback to a maximum of ten feet; or

(2) Parking garages using the landscaped setback option rather than the street level wall requirements.

All open space on a site not covered by building, parking or sidewalks shall be landscaped according to the applicable provisions of Section 26.5—Landscaping Requirements.

26.2.2. Side and rear yards. None required except where a side or rear lot line abuts a residential district. In that case, there shall be provided a side or rear yard equal to twice the height of the tallest portion of the rear building wall, of which the first ten feet along the district boundary shall be planted and maintained as a landscape buffer as specified in section 26.5.2. The remaining setback may be landscaped or used for a driveway or parking.

26.2.3. Height.

(1) Maximum height for new construction is limited to ten stories and 150 feet above the sidewalk on which it fronts; however, where the property abuts a residential zoning district or is across the street from residentially zoned land, then the maximum height shall be two stories and 30 feet.

(2) Elevator shafts and similar structural elements not intended as places of occupancy or storage; heating, ventilating and air conditioning equipment; solar collectors; communication and transmission devices and similar mechanical fixtures may extend above the roof if they conform to the following requirements:

(a) No more than one-third of the roof area may be used for such features;

(b) These fixtures must be set back from the edge of the roof a minimum distance of two feet for every foot by which they extend above the roof surface up to a maximum height of 15 feet; and

(c) All such roof fixtures must be screened by an architectural

structure compatible in material and design with the main body of the building.

(Ord. No. 06-1201, § 1, 1-25-2007)

26.3. Off-street parking requirements.

26.3.1. Off-street parking is not required in the Central Business C-B District; however, where off-street parking and vehicular use areas are provided, lighting is required in accordance with Section 71.6—PVA Lighting Requirements. Off-street loading and vehicle standing space shall be provided as required in Article 70 hereof. No surface parking or vehicular drive parallel to the street shall be permitted between a building and any street on which it has frontage.

26.3.2. Five or more surface parking spaces must be screened from streets, pedestrian areas, and sidewalks according to the provisions of Section 26.5.1 and Section 26.5.2.

26.3.3. Surface parking shall utilize alleys for ingress and egress. A curb cut from a public street will be allowed only if alternative access is not available.

26.3.4. No more than 15 percent of a building site or other tract may be utilized for surface parking. If additional spaces are needed, they shall be provided within the building itself or within a parking garage.

26.3.5. All parking surfaces and unpaved driveways shall be curbed along their perimeters.

26.3.6. Parking garages erected within the district shall comply with the following requirements:

(1) All street level garage frontages shall provide commercial space equivalent to 75 percent of the linear frontage of street frontage, exclusive of driveways; such commercial space shall be a minimum of 18 feet deep as measured from the facade of the building;

or

The garage must have a landscaped setback of ten feet, planted and maintained as required by Section 26.5.2—General Landscape Requirements.

(2) Vehicular driveways shall be sited and designed so as to create the least hazard to pedestrians, and curb cuts shall not exceed 25 percent of any street frontage greater than 160 feet.

(3) The ground floor facade should be differentiated from the upper levels to further enhance the continuity of the street wall and shall comply with the provisions of Section 26.4.1—Street Level Walls.

(4) Sloping floor levels shall not be revealed or implied by the exterior design of the garage elevations.

(5) Parked cars shall be screened from public view.

(6) Facades should be designed to be compatible with the surrounding buildings in terms of scale, color and texture of materials, form and massing, and design detailing.

(Ord. No. 06-1201, § 1, 1-25-2007)

26.4. Site development.

The Central Business C-B District is intended to create a stable urban core that will preserve and enhance the many historic buildings while adding new buildings that will expand and contribute to the low scale, small town, urban environment that makes the downtown attractive for pedestrians. Every effort should be made to preserve and renovate the historic structures and to create new infill construction that is compatible with the old in terms of scale, proportion, materials, design and function without being imitative. The Central Business C-B District is perceived as being a very specialized sector of the city, one that combines private and governmental businesses with entertainment and tourism while encouraging high density residential development as an integral part of the mix. The regulations that follow focus on those aspects of development that are essential to the creation of a center that attracts people, who in turn provide the vitality that makes the downtown successful.

26.4.1. Street level walls. The purpose of the street level wall requirement is twofold. The first goal is to promote the establishment

of a variety of retail, service and entertainment type businesses for the convenience of the office, residential, and tourist populations in the downtown area. The second aim is to promote pedestrian use and activity and to encourage a higher degree of street life and vitality in the downtown. Retailing is enhanced by having transparent store fronts abutting the sidewalk and by assembling a critical mass of continuous retail activities along adjoining streets.

(1) The front facade of all new buildings shall be oriented toward a public street as shall the principle entrances.

(2) Doorways shall be recessed into the building interior to a depth sufficient to separate sidewalk traffic from outwardly opening doors, to create focal interest, and to punctuate the street wall.

(3) To maintain consistency with the existing historic streetscapes, new construction shall utilize natural materials for the exterior cladding of all visible wall surfaces. Acceptable materials include, but are not limited to, brick, stone, concrete stucco, terra cotta, recast concrete and glass. Synthetic and imitation materials as well as metal, aluminum, vinyl and plastic materials are not acceptable.

(4) To create an animated streetscape, at least 50 percent of the street level walls shall be windows and doorways. An unbroken expanse of solid or blank wall shall not exceed 20 linear feet. Devices suitable to break such a wall span include street art, fountains, plazas, trees and landscaping, pedestrian furniture and the introduction of variety in materials, texture, color and/or pattern of wall materials.

(5) Street level commercial spaces should be configured as units 15 to 40 feet wide in order to stimulate visual interest, establish a predictable rhythm for pedestrians, and encourage the introduction of small retail and service businesses.

(6) Windows located in street level walls, with the exception of stained glass windows, shall be transparent.

26.4.2. Utilities and mechanical units.

(1) All power, communication and other wiring shall be located underground.

(2) All exterior mechanical equipment, trash facilities, and loading areas shall be adequately screened as well as practicable so as not to be visible from any street or by pedestrians.

(Ord. No. 06-1201, § 1, 1-25-2007)

26.5. Landscaping requirements.

26.5.1. landscape buffers for surface parking. Buffer strips required to separate surface parking spaces from streets and pedestrian uses shall be landscaped in one of the following ways:

(1) A five-foot wide planting bed having a continuous masonry wall between 30 and 42 inches high planted on the street side with at least one nondeciduous vine or shrub for every ten feet of wall length and one small maturing tree for every 30 feet of wall length. Trees, shrubs and vines shall be evenly distributed along the length of the wall.

(2) A five-foot bed having a hedge of a nondeciduous species, planted and maintained to form a continuous visual screen at least 30 inches high within one year of planting and one small maturing tree for every 30 linear feet of required planting bed. The bed shall be planted with an evergreen ground cover.

26.5.2. General landscape requirements.

(1) Plant material used to fulfill these requirements must be provided with an adequate irrigation system which does not rely on drainage from the street, sidewalk, or buildings.

(2) All plant material must conform to the current version of the "American Standard for Nursery Stock" published by the American Association of Nurserymen.

(3) The owner of any lot that becomes vacant for any reason after the date of adoption of this article shall have 180 days to either secure a building permit and begin construction of a new building or landscape the first 15 feet adjoining the public right-of-way in accordance with Section 26.5.1.

(4) The species of trees used must be consistent with adopted city ordinances concerning urban trees.

(5) Maintenance of landscaping in a healthy, neat and attractive condition is the responsibility of the owner of the property. Specifically, all plant material shall be watered, fertilized, pruned, kept free from weeds and litter, and replaced if diseased, injured or dead in a manner consistent with good horticultural practices.

(6) All landscaping shall be installed in accordance with Section 73.19—Installation of Landscaping.

(Ord. No. 06-1201, § 1, 1-25-2007)

26.6. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 06-1201, § 1, 1-25-2007; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

ARTICLE 27. VILLAGE BUSINESS C-6 DISTRICT REGULATIONS

Purpose.

The Village Business C-6 District is intended to preserve neighborhood character as well as encourage a variety of uses in a more pedestrian oriented setting and sustain a harmonious transition between existing and new structures. This district is intended to encourage innovative redevelopment projects that set standards for landscaping, community design and aesthetics.

Within a Village Business C-6 District as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

(Ord. No. 15-677, § 1, 10-22-2015)

27.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Accessory structures and uses.

Agricultural uses.

Antique stores and art galleries, excluding flea markets.

Bakeries, where not more than five persons are employed on the premises.

Barber shops, beauty parlors, reducing salons and fitness/exercise centers, excluding tattoo and body piercing parlors.

Book, map, card and stationery stores.

Cafes, delicatessens, coffee shops and restaurants without alcoholic beverages.

Churches and similar places of worship.

Computer programming, software design and web design services.

Dance and music academies.

Drug stores.

Florist shops.

Grocery, health, and ethnic food stores.

Gift shops.

Home furnishings stores.

Jewelry stores and watch repair shops.

Multiple family dwellings, accessory structures and uses.

Municipal, county, state or federal uses and facilities.

Music and video stores.

Newsstands and hobby shops.

Notions and dry goods stores.

Office supply stores.

Offices for accountants, architects, attorneys and other professionals; consumer service offices

such as real estate agencies, insurance agencies, travel agencies, advertising agencies; and administrative offices.

Performing arts centers.

Photography studios and photo retail sales.

Quick copy print shops.

Radio and television studios but not including broadcast towers.

Residential dwelling units—provided such residential units occupy upper-story space within new or rehabilitated existing buildings having non-residential uses on the street level and provided that such residential units are in compliance with all applicable regulations for habitable space. All such residential uses shall have an entrance separate from the non-residential uses on the street level unless the entrance to the building opens into a lobby from which access to each use originates.

Shoe stores, shoe repair shops and tailor shops.

Sound and video recording studios.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.2 hereof.

(Ord. No. 15-677, § 1, 10-22-2015)

27.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in Article 73 hereof:

(1) Minimum front yard requirements: None.

(2) Minimum rear yard requirements: None, except that when the rear lot line abuts a residential district, except across an alley or street, a rear yard of 25 feet is required of which the first five feet of the required rear yard shall be landscaped with a minimum of one small Type 3 or Type 4 tree and six shrubs per each linear 50 feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

(3) Minimum side yard requirements: None, except that when the side lot line abuts a residential district, except across a street, a side yard of ten feet is required.

(4) Maximum height is 35 feet.

(Ord. No. 15-677, § 1, 10-22-2015; Ord. No. 16-648, § 1, 10-27-2016)

27.3. Site development.

In order to promote the purpose of the district the following standards shall be applied:

(Ord. No. 15-677, § 1, 10-22-2015)

27.3.1. Building size, architecture, and walkability.

(1) For purposes of this section: (a) buildings sharing a common wall or having walls touching at or above grade shall be considered as one building; (b) the term "retail trade" means an establishment engaged primarily in selling goods, including groceries, or merchandise to the general public at retail.

(2) An individual retail trade, including tenants, shall not occupy more than 25,000 square feet of gross floor area in a building, including all interior floor space, roof top parking, and outdoor retail and storage areas.

(3) A group of retail trades separately owned or operated, including tenants, shall not occupy more than 50,000 square feet of floor area in a building, including all interior floor space, roof top parking, and outdoor retail and storage areas.

(4) New buildings shall not have, nor shall existing buildings be altered to have, a distinct architectural style commonly employed by retail franchises to enhance or promote brand identity through visual recognition.

(5) Where buildings are not contiguous, the space between them shall be a minimum of ten feet and shall be improved for use by cyclists, pedestrians, or vehicles, or be landscaped.

(Ord. No. 15-677, § 1, 10-22-2015)

27.3.2. Street level walls. The purpose of the street level wall requirement is to promote pedestrian use and activity and to encourage a higher degree of street life and vitality in the village district. Retailing is enhanced by having transparent store fronts abutting the sidewalk and by assembling a critical mass of continuous retail activities along adjoining streets.

(1) Doorways that front on a public sidewalk shall be recessed into the building interior to a depth sufficient to separate sidewalk traffic from outwardly opening doors, to create focal interest, and to punctuate the street wall.

(2) New construction, including substantial remodeling, shall utilize natural materials for the exterior cladding of all visible wall surfaces. The facades should be designed to be compatible with the purpose of the district in terms of scale, color and texture of materials, form and massing, and design detailing. Acceptable materials include, but are not limited to, brick, stone, concrete stucco, terra cotta, precast concrete, glass, and where appropriate, cast metal for fenestrations, columns and beams. Reflective materials, including mirrored glass should be avoided as primary materials. Synthetic and imitation materials as well as aluminum, steel or other metal siding or cladding, vinyl and plastic materials are not allowed, except as a special exception in accordance with section 92.5.3(37). Where a new or remodeled non-residential building abuts a lot containing an existing single or two-family dwelling unit or a residential district, its facades should be designed to be compatible with the residential use in terms of scale, color and texture of materials, form and massing, and design detailing.

(3) To create an animated streetscape, an unbroken expanse of solid or blank wall shall not exceed 20 linear feet. Devices suitable to break such a wall span include doors, windows, display windows and cases, street art, fountains, plazas, trees and landscaping, pedestrian furniture and the introduction of variety in materials, texture, color and/or pattern of wall materials.

(4) Street level commercial spaces should be configured as units in order to stimulate visual interest, establish a predictable rhythm for pedestrians, and encourage the introduction of small retail and service businesses.

(5) Windows located in street level walls, with the exception of stained glass windows, shall be transparent.

(Ord. No. 15-677, § 1, 10-22-2015; Ord. No. 25-157, § 11, 4-24-2025)

27.3.3. Utilities and mechanical units.

(1) All electrical, communication and other wiring shall be located underground within the alleys where practicable.

(2) All exterior mechanical equipment and loading areas shall be adequately screened as well as practicable so as not to be visible from any street or by pedestrians.

(3) Trash collection facilities and dumpsters shall be concealed by solid wood and/or masonry walls for their full height. Where wood is used as the screening material, it shall be securely attached to an all metal support structure; if the wood is not pressure treated, it shall be cedar, redwood or cypress; and no wood member shall exceed 12 inches in width. The gates shall be of metal, shall be at least 80 percent opaque, and shall be self-closing.

(Ord. No. 15-677, § 1, 10-22-2015)

27.3.4. Landscaping requirements.

(1) *Landscape buffers for surface parking.* Buffer strips required to separate surface parking spaces from streets and pedestrian uses shall be landscaped in one of the following ways:

(a) A minimum five-foot wide planting bed having a continuous masonry wall between 30 and 42 inches high planted on the street side with at least one nondeciduous vine or shrub for every ten feet of wall length and

one small maturing tree for every 30 feet of wall length. Trees, shrubs and vines shall be evenly distributed along the length of the wall. The landscape bed shall be planted with an evergreen ground cover; or

(b) A minimum five-foot wide bed having a hedge of a nondeciduous species, planted and maintained to form a continuous visual screen at least 30 inches high within one year of planting and one small maturing tree for every 30 linear feet of required planting bed. The bed shall be planted with an evergreen ground cover.

(2) *General landscape requirements.*

(a) Plant material used to fulfill these requirements must be provided with an adequate irrigation system which does not rely on drainage from the street, sidewalk, or buildings.

(b) All plant material must conform to the current version of the "American Standard for Nursery Stock" published by the American Association of Nurserymen.

(c) The species of trees used must be consistent with adopted city ordinances concerning urban trees.

(d) Maintenance of landscaping in a healthy, neat and attractive condition is the responsibility of the owner of the property. Specifically, all plant material shall be watered, fertilized, pruned, kept free from weeds and litter, and replaced if diseased, injured or dead in a manner consistent with good horticultural practices.

(e) All landscaping shall be installed in accordance with Section 73.19—Installation of Landscaping.

(Ord. No. 15-677, § 1, 10-22-2015)

27.3.5. Exterior storage. No exterior storage of any type shall be permitted, unless it is totally contained, the containers are screened from public view, and such storage is located in a rear or side yard.

(Ord. No. 15-677, § 1, 10-22-2015)

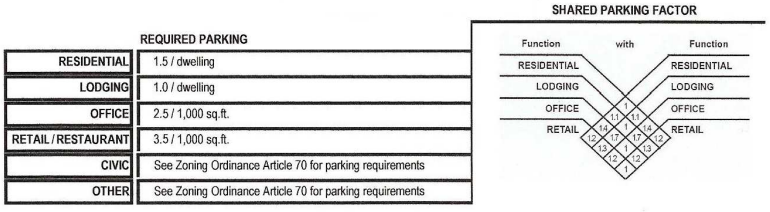
27.4. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign Control Regulations.

(Ord. No. 15-677, § 1, 10-22-2015; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

27.5. Off-street parking and loading requirements.

For all single tenant, individual retail trade and multi-tenant retail trades, mixed use, and multi-family developments, shared parking is strongly encouraged. Off-street parking and loading requirement shall be provided as set forth on the following chart.



Sharing factor—The sharing factor may be used to calculate the required parking for any shared parking agreement or mixed use development (defined as two dissimilar functions occurring within the same development or property, as determined by the planning department). The actual parking required is calculated by adding the total number of spaces required by each

separate function and dividing the total by the appropriate factor from the Sharing Factor Table. When three or more uses share parking, the highest factor shall be used to calculate the required number of spaces.

(Example: A residential component with 50 units requires 75 spaces while a retail component, comprised of 14,000 square feet, requires 49 spaces. Independently they would require a total of 124 spaces, but when divided by the sharing factor of 1.2, they would require only 103 spaces. Buildings may be designed to a functional density corresponding to 124 parking spaces.)

Any available on-street and public parking, which correlates with the applicable site or development, shall be counted towards the overall parking and loading requirements. These parking spaces must be provided within 1,200 feet of the intended site or development.

Parking shall not be permitted in any required side yard nor in the first five feet of any required rear yard.

Required bicycle parking spaces and facilities shall be provided as set forth in Article 76 hereof.
(Ord. No. 15-677, § 1, 10-22-2015; Ord. No. 16-493, § 1, 8-25-2016)

27.6. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping of the interior of parking lots and lighting of off-street parking and vehicular use areas is required in accordance with the provisions of Article 71—Off-Street Parking and Vehicular Use Area Landscaping Requirements.
(Ord. No. 15-677, § 1, 10-22-2015)

27.7. Reserved.

27.8. Performance standards.

The performance standards listed in section 50.2 (Research Park District) hereof shall be required for all uses located in a Village Business C-6 District.
(Ord. No. 15-677, § 1, 10-22-2015)

27.9. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with Section 75.3—Permitted Establishments by Districts, subsection 75.3.7, and shall be regulated by Article 75—Alcoholic Beverage Establishment Regulations.
(Ord. No. 15-677, § 1, 10-22-2015)

CHAPTER III. PLANNED DEVELOPMENT PD DISTRICT REGULATIONS*

ARTICLE 30. PLANNED DEVELOPMENT PD DISTRICT REGULATIONS

Purpose. Within districts now existing or hereafter created, it is intended to permit establishment of new PD, planned development districts for specialized purposes where tracts suitable in location, area and character for the uses and structures proposed are to be planned and developed on a unified basis.

Suitability of tracts for the development proposed shall be determined primarily by reference to any applicable officially adopted plans, of the city, but due consideration shall be given to existing and prospective character of development of surrounding property.

PD districts shall be so related to the general development pattern and the objectives of applicable officially developed plans as to provide for comfort and convenience of occupants, facilitate protection of the character of surrounding neighborhoods, and provide facilities appropriate to the needs of the city. Within PD districts, regulations adapted to such unified planning and development are intended to accomplish the purposes of zoning and other applicable regulations to an equivalent or higher degree than where such regulations are designed to control unscheduled development on individual lots, and to promote economical and efficient land use, an improved level of amenities, appropriate and harmonious variety, creative design, conservation of resources, and a better environment.

*__Cross reference—__Businesses, ch. 8.

In view of the substantial public advantages of planned development, it is the intent of these regulations to promote and encourage development in this form where appropriate in location, character and timing.

30.1. Planned development, defined.

For the purposes of these regulations, a planned development is:

30.1.1. Land under unified control, to be planned and developed as a whole;

30.1.2. In a single development operation or a definitely programmed series of development operations, including all access, lands and buildings;

30.1.3. For principal and accessory structures and uses substantially related to the character and purposes of the district;

30.1.4. According to plans that include not only sewers, drainage, streets, utilities, lots and/or building sites and the like, but also typical floor plans and elevations for all buildings as intended to be located, constructed, used and related to each other, and detailed plans for other uses and improvements on the land as related to the buildings; and

30.1.5. With a program for provision, operation, and maintenance of such areas, improvements, facilities, and services as will be for common use by some or all of the occupants of, or visitors to, the district, but will not be provided, operated, or maintained at general public expense.

30.2. Relation of PD regulations to general zoning, subdivision or other regulations; variations on equal satisfaction of public purposes.

The planned development regulations that follow shall apply generally to the initiation and regulation of all planned development districts. Where there are conflicts between the special PD regulations herein and general zoning, subdivision or other regulations or requirements, these regulations shall apply in PD districts unless the city council shall find, in the particular case, that provisions herein do not serve public purposes to a degree at least equivalent to such general zoning, subdivision, or other regulations or requirements.

Where actions, designs, or solutions proposed by the applicant are not literally in accord with applicable PD or general regulations, but the city council makes a finding that in the particular case public purposes are satisfied to an equivalent or greater degree, council may make specific modification of the regulations in the particular case, provided that where floor area and similar ratios (other than off-street parking requirements) have been established by PD regulations, council shall not act in a particular case to modify such ratios.

Except as indicated above, notwithstanding procedures and requirements generally in effect, procedures and requirements set forth herein, and in guides and standards officially adopted as part of regulations for particular classes of PD districts, shall apply in PD districts, to any amendments creating such districts, and to issuance of all required permits therein.

30.3. Planned development PD districts, where permitted; how established and designated.

Planned development PD districts may hereafter be established by amendment to the official

zoning maps and related amendatory action where tracts suitable in location and character for the uses and structures proposed are to be planned and developed on a unified basis, according to the requirements and procedures set forth herein.

PD districts shall be appropriately located with respect to intended function, to the pattern and timing of development existing or proposed in officially adopted plans, and to public or private facilities existing or clearly to be available at the time the development reaches the stage where they will be needed. All requirements specified in article 90, amendments, shall be met, as well as the following specific requirements:

30.3.1. *Access.* PD districts shall be directly accessible from major or collector streets, and shall be so designed as to provide direct access, without creating an additional amount of traffic on local streets in adjoining residential neighborhoods that would exceed the amount of traffic created if developed under existing zoning. Local streets may be connected only when it can be certified that by doing so this will not create an unnecessary hardship within the PD district or surrounding residential areas. A traffic demand analysis must be submitted before local streets can be connected.

30.3.2. *Relation to public utilities, facilities and services; private provision or contribution.* PD districts shall be located in the proximity of adequate existing or planned sanitary sewers, water lines, storm and surface drainage systems, and other utility systems and installations.

30.3.3. *Physical character of the site; relation to surrounding property.* The site shall be suitable for development in the manner proposed, without hazards to persons or property, on or off the tract, from probability of flooding, erosion, subsidence or slipping of the soil, or other dangers, annoyances, or inconvenience. Condition of soil, ground water level, drainage, and topography shall be appropriate to both kind and pattern of such intended development.

If appropriate to the form of planned development, lands to be included in PD districts may be divided by streets, rights-of-way or easements, waterways or other separation, but shall be so located, dimensioned, and arranged as to permit unified planning and development and to meet all requirements in connection therewith, as well as to provide necessary protection against adverse relationships between uses in the district and uses in surrounding areas.

30.4. PD additions to PD districts.

Where planned development additions are proposed to an existing PD district, and where the land and proposed plan of development is appropriately related to the existing PD district and provides necessary safeguards in relation to the surrounding area, PD amendments allowing such additions may be made without regard to the minimum area requirements set forth herein. Such additions may be of the same classification as the PD district being added to, or may be of another classification if the planning commission recommends and the city council approves such other classification and plans proposed therefor as complementary to the original PD district.

30.5. Procedures on PD amendments.

Applications for amendment shall be submitted as for other amendments, and the following additional procedures shall be followed and requirements met:

30.5.1. *Preapplication conference.* Before submitting an application for PD amendment, a prospective applicant may confer with the manager of planning or his delegated representative to obtain information and guidance before entering into binding commitments or incurring substantial expense in the preparation of plans, surveys, reports, and other data. In arranging such meetings, the manager of planning may request the attendance of such officials or agency representatives as may be appropriate in the circumstances of the case. No statement made or information given during such preapplication conferences shall be binding on the city or the applicant, but a record shall be kept of recommendations made, and a copy of such record shall be provided to the applicant.

30.5.2. *Applications for PD amendments; materials to be submitted with applications; materi-*

als to be submitted on subsequent request. Applications for PD amendments shall be submitted as for other amendments. Materials required with the application, or on subsequent request, shall include all plans, maps, studies or reports reasonably necessary to the city for the purpose of making required determinations generally, or in the particular case, with copies as necessary for referrals and recording.

At the time of application, all of the following shall be filed:

(1) A location map on a scale of 1″ = 800′.

(2) A boundary and topographic survey of 1″ = 200′ with 5′ intervals and extending 500′, beyond the district boundaries. Existing features or conditions to be shown are public and private roads, pedestrian ways, utilities, and easements.

(3) A description of physical features establishing limitations on location or kind of development or access, including but not necessarily limited to:

(a) Slopes;

(b) Soils (erosion characteristics, construction limitations);

(c) Flood hazards (floodplains, major flash flood channels);

(d) Sinkholes, springholes, caves;

(e) Areas subject to slippage, sedimentation or rockfalls from above;

(f) Areas requiring special limitation or treatment to avoid hazards to property below from slippage, sedimentation, runoff, rockfalls; and

(g) Existing streams, creeks, lakes and natural drainage features.

(4) A description of natural or cultural features to be considered in relation to preservation which may establish further limitations on location or kind of development or access, including but not necessarily limited to:

(a) Significant tree stands, understory vegetation or other ground cover;

(b) Buildings or sites of substantial historic or cultural significance;

(c) Major trails and other established pedestrian ways; and

(d) Cemeteries.

(5) A report identifying all property owners within the area of the proposed PD district, and giving evidence of unified control of its entire area. The report shall state agreement of all present property owners and/or their prospective successors in title:

(a) To proceed with the proposed development according to the regulations in effect when the map amendment creating the district is passed, with such modifications as are set by the city council in the course of such action;

(b) To provide bonds, dedications, guarantees, agreements, contracts, and deed restrictions acceptable to city council for completion of such development according to approved plans; and for continuing operation and maintenance of such areas, facilities, and services as are not to be provided, operated, or maintained at general public expense; and such dedications, contributions, or guarantees as are required for provision of needed public facilities and services;

(c) To bind further successors in title to any commitments made under [subsections] (a) and (b) above.

(6) A preliminary development concept plan shall be submitted in addition to, or as part of, the report described above, together with proposals in accord with [subsections] (a) and (b) above, as a basis for specific agreements concerning plans, programs, and instruments, or specific modifications of details of applicable regulations where it is alleged by the applicant that such modification serves public purposes to an equivalent or higher degree than would strict conformity with such regulations.

In addition to identification of the proposed planned development, the developers and the persons or firm preparing the plan, scale, date, and similar details, this plan shall indicate:

(a) Use and approximate location, orientation, height, and floor area of proposed structures and portions of structures; similar data on existing structures, if any;

(b) Points of access for principal pedestrian and vehicular ways, plan for access from external ways, circulation pattern within the district;

(c) Location of water, sewerage and drainage facilities, lines, and easements of other utilities, within the district and as extended to connect outside the district;

(d) Location, character and scale of vehicular parking and service facilities;

(e) Relation to adjoining land uses and zoning districts, including, where view protection or provision is an objective, location of principal public viewpoints within, into, or through the proposed PD district;

(f) Existing lot and blocks, if any, and general pattern of proposed lot and blocks, if any; and

(g) Where development is to be in stages, nature and timing of each stage shall be indicated.

30.5.3. *Preliminary review of application as submitted; requirement for special studies, investigations or reports.* On receipt of the application and preliminary concept plan and proposals as indicated above, the manager of planning and such other agencies or officials as he may deem appropriate in the circumstances of the particular case shall study the proposal to determine conformity with any officially adopted plans of the city, and with the stated intent and substance of zoning and other applicable regulations.

In the course of such review, written findings shall be made as to the necessity for any special studies, investigations or reports needed to make determinations called for in the particular case, where existing information available to the planning division or cooperating agencies or officials is inadequate.

30.5.4. *Preliminary conferences with applicants.* Following such review, unless complete conformity is found and no special studies are required, the applicant shall be notified in writing of any discrepancies, and of the willingness of the manager of planning and other appropriate officials or agencies to confer for the purposes of assisting the applicant in bringing the material submitted as nearly as possible into conformity with requirements and/or to define specific modifications of regulations or officially adopted plans that seem justified in view of equivalent services of public purposes by the proposal.

The applicant shall also be informed of the need for any special studies, investigations or reports, and of the reasons such material is required in the circumstances of the particular case. Where the need for such special studies, investigations or reports arises as a result of a proposal for a PD district, applicants shall pay

all costs incidental thereto, and the studies shall be made by the city, agencies cooperating with the city, or experts acceptable to the city.

If the applicant does not desire to participate in such conferences, or to provide or pay the costs of any special studies, investigations or reports requested, the manager of planning shall base his report to the planning commission and city council on the application as received.

If the applicant joins in such conferences, changes may be made in the original proposal, further conferences may be held, and additional material requested on finding of need as above.

In the course of such preliminary conferences, any recommendations for changes shall be recorded in writing, with reasons therefor, and shall become part of the record in the case. Applicants shall indicate, in writing, their agreement to such recommendations, or their disagreement and reasons therefor; and such response by applicants shall also be included in the record.

30.5.5. *Planning division recommendations.* At such time as further conferences appear unnecessary, or at any time on request of the applicant, the planning division shall prepare a report to the planning commission and city council containing findings:

(1) As to the suitability of the tract for the general type of PD zoning proposed, physical characteristics of the land, and relation of the proposed development to surrounding areas and existing and probable future development;

(2) As to relation to, and access from, major or collector roads, and to utilities and other facilities and services;

(3) As to adequacy of evidence on unified control and suitability of any proposed agreements, contracts, deed restrictions, sureties, dedications, contributions, guarantees, or other instruments, or the need for such instruments, or for amendments in those proposed (with findings as to such matters based on opinions of the city attorney);

(4) As to the suitability of plans proposed, or the desirability of changes, with reasons therefor; and

(5) As to the desirable specific modifications in generally applicable regulations or officially adopted plans, as applicable in the particular case, based on determinations that such modifications are necessary or justified in the particular case by demonstration that the public purposes of PD or other regulations would be met to at least an equivalent degree by proposals of the applicant.

Based on such findings, the planning division shall recommend to the planning commission approval of the PD amendment as proposed, approval conditioned on specific stated modifications, or disapproval, with recorded reasons therefor.

30.5.6. *Actions by planning commission, city council.* Following receipt of the planning division report, the planning commission shall recommend to the city council approval of the PD amendment as proposed, approval conditioned on specific stated modifications, or disapproval with recorded reasons therefor. Where the PD development concept plan involves a subdivision of land, the planning commission may hold a public hearing on such subdivision as required by Alabama law before submitting a recommendation regarding the PD zoning proposal to city council.

Actions by the city council shall be as for zoning amendments generally. Council may grant the application in accord with PD and other regulations applicable, may include specific modifications of PD or other applicable regulations as provided at section 30.5.5(5), or may deny the application, with written reasons for the denial.

If amendment is granted, the city council shall in its amending action approve the preliminary development concept plan as it may have been changed during earlier procedures, or indicate

required modifications, if any, which shall be binding in determinations concerning final development plans. If modifications are required, the city council shall officially state its reasons therefor in the record.

If amendment is granted, the development shall be required to be in accord with final development plans meeting the requirements of these and other regulations, as supplemented or modified by the city council in the particular case as part of the amending action, and shall conform to any time or priority limitations established by council on beginning and completion of the development as a whole, or in specified stages.

At the time of amendment, the city council shall pass upon the adequacy in form and substance of any agreements, contracts, deed restrictions, sureties, or other instruments involved; and before development may proceed, such instruments shall be approved by appropriate officers and agencies.

30.5.7. *Planning commission action on approval of final plans.* Not more than 90 days after the city council approves the PD rezoning, the final plan must be submitted to the planning commission or, if the planned development is to be developed in stages, then the final plan for the first stage must be submitted within 90 days after council approval. The planning commission must approve the staging of development and the following provisions must be complied with:

(1) In a PD, the ratio of gross floor area as initially approved or amended shall not be exceeded at any given stage of construction.

(2) Each stage shall be so planned and so related to existing surroundings and available facilities and services that failure to proceed to the subsequent stages will not have an adverse impact on the PD district or its surroundings at any stage of the development.

(3) The commencement of actual construction of any stage of the PD district shall be governed by the provisions of section 30.6.

If the planning commission does not receive the final plan or the final plan of an approved stage within 90 days of the PD rezoning by the city council, it may take action as described in section 30.6.

After a PD district has been established, no building permit shall be issued therein, and no grading, clearing, excavations or filling shall take place, until the planning commission has approved final plans and reports. Such approval shall be based on substantial compliance with the preliminary development concept plan, including any modifications required by the city council in its amending action, and on compliance with regulations applying at the time of rezoning, including any modification in application established by the city council. Where applicable regulations are amended following the rezoning action, applicants or their successors in interest may elect to conform to such amended regulations, subject to the same modifications if they affect such amended regulations in the same way.

Form and content of such final plans and reports shall be as prescribed in zoning, subdivision or other lawful regulations, generally or for particular PD districts, and in rules of the planning commission and other affected agencies.

Upon approval of final plans and reports, building permits or other required permits shall be issued in the same manner as applies generally, provided that any requirements or limitations concerning the order and location in which such permits are to be issued in the particular PD district shall be observed.

Except as provided below, final plans and reports approved shall be binding on the applicants and any successors in title so long as PD zoning applies to the land. Final plan approval does not require formal public notice or hearing.

30.5.8. *Changes in approved final plans.* Minor changes in the location, siting, and height of buildings and structures, lot and block configuration and street geometrics may be authorized by the planning commission without additional public hearings if required by engineering or other circumstances not foreseen at the time the final plan was approved. Where minor changes involve changes in an approved subdivision plat, the form and content of such changes shall meet the requirements of the subdivision regulations. No change authorized by this subsection may cause any of the following:

(1) A change in the primary use or character of the development;

(2) An increase in the intensity of use;

(3) An increase in the problems of traffic circulation and public utilities;

(4) A reduction in approved open spaces; or

(5) A reduction of off-street parking and loading space or required pavement widths.

All changes other than minor changes shall be subject to review and recommendation by the planning commission, another public hearing, and further amendatory action by the city council as required for original approval.

30.6. Expiration of time limits in relation to PD amendments; failure to meet other requirements.

Where time limits are set for beginning or completion of development or stages of development, or where other requirements are established in connection with a PD amendment, and where such time limits or other requirements are not met, the manager of planning shall promptly call the matter to the attention of the planning commission with a full written account of the circumstances, and the findings and recommendations of the planning division. The planning commission shall then review the case and make recommendations to the city council:

30.6.1. That PD zoning for the entire district be continued with revised time limits; or

30.6.2. That PD zoning be continued for part of the district, with or without revised time limits, that appropriate steps be taken to correct any deficiencies in area or open space requirements in designated portions of the district which have not been developed, and that remaining portions of the district be rezoned to an appropriate category; or

30.6.3. That the entire district be rezoned from PD to an appropriate category; and/or

30.6.4. That such other steps be taken as seem equitable in the circumstances of the case and will appropriately protect the public interest.

Such recommendations shall include proposals for appropriate action concerning any legal instruments in the case.

ARTICLE 31. PD-H, PLANNED DEVELOPMENT-HOUSING DISTRICT REGULATIONS

The following regulations and requirements apply to PD-H, planned development-housing districts, defined for the purposes of these regulations as planned development districts primarily for dwellings and related uses and facilities.

31.1. PD-H districts, where permitted; intensity of use.

PD-H districts may hereafter be established in accordance with the general procedures and requirements set forth in article 30. Intensity (or density) of residential use in any PD-H district hereafter created shall be established at the time of amendment creating the district.

31.2. Permitted principal and accessory uses and structures.

31.2.1. *Principal uses and structures permitted generally.* The following principal uses and structures shall be permitted generally:

(1) Dwellings, detached, semi-detached and attached, including multifamily; residence hotels, apartment hotels, and other facilities including lodgings other than for transients, except as permitted as accessory uses;

(2) Public schools through the secondary level, and private schools with similar academic curriculums, except that no school shall conduct training in the industrial arts in such a manner that there is external evidence of the conduct of such activity;

(3) Day nurseries, kindergartens, day care centers for children or for the elderly;

(4) Noncommercial social, recreational and cultural facilities, such as neighborhood or community centers, game rooms, libraries, golf courses, swimming pools, and the like;

(5) Places of worship; and

(6) Structures and uses required for operation of a public utility, performance of a governmental function, or performance of any function found reasonably necessary for the operation and maintenance of the planned development and otherwise permitted under these or general regulations, subject to the requirements thereof.

31.2.2. *Accessory uses and structures permitted generally.* Customary accessory uses and structures clearly incidental to permitted principal uses and structures shall be permitted in this district, subject to the limitations of section 73.1, with home occupations limited to 25 percent of residential floor area. In addition, agricultural uses accessory to principal uses in the district may be permitted other than on the lots or adjacent to the building sites of such principal uses, where it is found that satisfactory arrangements have been made for continuing management and maintenance. In connection with such agricultural uses, there shall be no sales on the premises and no commercial animal or poultry operations or kennels.

31.2.3. *Additional principal or accessory structures and uses.* Where the scale, character and/or location of particular planned developments justify additional principal or accessory structures and uses, they may be specifically authorized by city council at the time of rezoning to PD-H status, or subsequent to rezoning by the board of adjustment as special exceptions. Examples of such additional principal or accessory uses and structures include convalescent or rest homes in large planned developments primarily for the elderly, convenience or other commercial facilities in large planned developments, or in developments where such facilities are not conveniently available in the vicinity, personal service establishments, or medical or dental offices. The following requirements and limitations shall apply:

(1) No evidence of any such additional facilities shall be apparent from outside the planned development;

(2) Such uses and structures shall be designed and intended primarily to serve occupants of the development and their guests, and not to attract other visitors or customers;

(3) Scale of such facilities shall be in keeping with scale of residential development to the period at which such facilities are installed or provided, except that in the case of staged development, facilities may be scaled to serve residential occupancy anticipated within one year;

(4) Commercial, service or office floor area authorized for such additional principal or accessory structures and uses shall not exceed ten percent of an amount equal to residential floor area developed, or staged for completion within one year;

(5) Such facilities shall be so located, and access and parking so designed, as to maximize convenience for occupants of the development, and minimize hazards or annoyances;

(6) Off-street parking required for such nonresidential uses shall, where reasonably feasible, be combined with other nonresidential parking at neighborhood or community centers, and when so combined shall not be required to exceed one-half the amount required generally at section 70.1;

(7) No such facilities shall be permitted if their construction would reduce open space, or increase coverage by buildings or im-

permeable surface, or increase residential floor area beyond limits established for the district; and

(8) No outside storage shall be permitted with any accessory use.

31.3. Land use intensity (LUI) ratings and related requirements.

The following requirements and limitations apply to dwelling and lodging uses within PD-H districts hereafter created from or within other districts. Application of these requirements and limitations, and definitions and rules of interpretation of the terms involved, appear at section 73.16.

PD-H District Created From or Within District

	R-1	*R-1A*	*R-1B*	*R-2*	*Research Park R-2A*	*R-2B and Other Districts*
Gross area minimum for district	5 acres	5 acres	5 acres	5 acres	5 acres	5 acres
LUI rating	35	37	40	45	50	56
Residential floor area ratio (FAR)	0.141	0.162	0.200	0.283	0.400	0.606
Open space ratio (OSR)	0.78	0.77	0.76	0.74	0.72	0.70
Livability space ratio (LSR)	0.54	0.53	0.52	0.48	0.44	0.40
Recreation space ratio (RSR)	0.030	0.032	0.036	0.042	0.052	0.065
Off-street parking/spaces per dwelling unit (D.U.)	2.0	2.0	1.5	1.5	1.25	1.25

Gross land area × FAR = Maximum permitted residential floor area.

Gross land area × OSR = Minimum required open space.

Gross land area × LSR = Minimum livability (nonvehicular open space, a part of total open space).

Gross land area × RSR = Minimum recreation space, a part of livability space.

31.4. Site planning, external relationships.

Site planning within the district shall provide protection of the development from potentially adverse surrounding influences, and protection of surrounding areas from potentially adverse influences within the development including prevention of excessive storm drainage in runoff peaks. In particular:

31.4.1. *Principal vehicular access points.* Principal vehicular access points shall be designed to encourage smooth traffic flow with controlled turning movements and minimum hazards to vehicular or pedestrian traffic. Merging and turnout lanes and/or traffic dividers shall be required where existing or anticipated heavy flows indicate need. Minor streets shall not be directly connected with streets outside the district in such a way as to encourage use of such minor streets by substantial amounts of through traffic.

31.4.2. *Access for pedestrians and bicycles.* Access for pedestrians and cyclists entering or leaving the district shall be by safe and convenient routes. Such access need not be adjacent to, or limited to the vicinity of, access points for

automotive vehicles. Where there are crossings of pedestrian ways and vehicular routes at edges of planned developments, such crossings shall be safely located, marked, and controlled; and where such ways are exposed to substantial automotive traffic at edges of districts, safeguards including fencing may be required to prevent crossings except at designated points. Bicycle and/or bridle paths, if provided, shall be so related to the pedestrian system that street crossings are combined.

31.4.3. *Protection of visibility; automotive traffic, cyclists, and pedestrians.* Protection of visibility for automotive traffic, cyclists, and pedestrians shall be as generally provided at section 73.10, corner visibility. In addition, where there is pedestrian, bicycle, or equestrian access from within the development to a street at its edges by paths across yards or other open space without a barrier to access to the street, no material impediment to visibility, as defined therein, shall be created or maintained within areas appropriate to the circumstances of the case, but in any event within a visibility triangle equivalent to that required in section 73.10.

31.4.4. *Uses adjacent to single-family residence districts.* If a PD-H district adjoins a single-family residence district, then either:

(1) The portion of the perimeter of the PD-H district so adjoining shall be planned and developed only for uses permitted in the adjoining residential district and in accordance with all other requirements for such district; or

(2) Common open space for the PD-H district to a depth of 100 feet from the district boundary shall be provided. No intensive recreational use or off-street parking shall be permitted within 75 feet of the district boundary in such cases.

31.4.5. *Yards, fences, walls, or vegetative screening at edges of PD-H districts.* Yards, fences, walls, or vegetative screening shall be provided at edges of PD-H districts where needed to protect residents from undesirable views, lighting, noise, or other off-site influences, or to protect residential occupants of other districts from similar adverse influences within the PD-H district. In particular, extensive off-street parking areas, service areas for loading and unloading vehicles other than passenger, and areas for storage and collection of refuse and garbage shall be screened.

31.4.6. *Height limitations at edges of PD-H districts.* Except along boundaries where adjoining districts permit greater heights within similar areas, no portion of any building in such district shall project through imaginary planes leaning inward from district boundaries at an angle representing an increase in height for each foot of horizontal distance perpendicular to the boundary as follows: Adjacent to Residence 1, 1-A, 1-B, 1-C, 2 and 2-C districts, 0.5 foot; adjacent to other districts, 1.0 foot.

31.4.7. *Signs permitted.* Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 07-460, § 2, 6-28-2007; Ord. No. 21-46, § 1(Exh. A. § B.2.), 2-25-2021)

31.5. Site planning, internal relationships.

The site plan shall provide for safe, efficient, convenient and harmonious groupings of structures, uses, and facilities, for appropriate relation of space inside and outside buildings to intended uses and structural features, and for preservation of desirable natural or historic features and minimum disturbance of natural topography. In particular:

31.5.1. *Streets, drives, parking and service areas.* Streets, drives, parking and service areas shall provide safe and convenient access to dwelling units and general facilities, and for service and emergency vehicles. Streets shall not be so laid out as to encourage outside traffic to traverse the development on local streets, nor occupy more land than is required to provide access as indicated, nor create unnecessary fragmentation of the development into small blocks. In general, block size

shall be the maximum consistent with use and shape of the site and the convenience and safety of occupants.

31.5.2. *Vehicular access to streets.* Vehicular access to streets shall be limited and controlled as follows:

(1) *Streets or portions of streets serving 50 or fewer dwelling units.* If the street or portion thereof serves 50 or fewer dwelling or lodging units, vehicular access from off-street parking and service areas may be directly to the street from the sites of individual dwelling or lodging units. Determination of number of units served shall be based on normal routes of traffic anticipated in the development.

(2) *Vehicular access to other streets or portions of streets.* Vehicular access to other streets or portions of streets from off-street parking and service areas shall be so combined, limited, located, designed, and controlled as to channel traffic from and to such areas conveniently, safely, and in a manner that minimizes marginal traffic friction and promotes free flow of traffic on streets without excessive interruption.

31.5.3. *Ways for pedestrians and cyclists; use by emergency or service vehicles.* Walkways shall form a logical, safe and convenient system for pedestrian access to all dwelling units, appropriate project facilities, and principal off-site pedestrian destinations. Maximum walking distance in the open between dwelling units and parking areas, delivery areas, and refuse and garbage storage areas shall not exceed 150 feet.

Walkways to be used by substantial numbers of children as play areas or as routes to school or other destinations shall be so located and safeguarded as to minimize contact with normal automotive traffic. If substantial bicycle traffic is anticipated, bicycle paths shall be coordinated with the walkway system. Street crossings shall be held to a minimum on walkways, bicycle paths, and/or bridle trails and shall be located and designed to promote safety and appropriately marked and otherwise safeguarded.

Pedestrian ways and bicycle paths, appropriately located, designed, and constructed, may be combined with other easements and used by emergency and service vehicles, but shall not be used by other automotive traffic, including motorbikes and motorcycles.

31.5.4. *Protection of visibility; automotive traffic, cyclists, and pedestrians.* Protection of visibility for automotive traffic, cyclists, and pedestrians shall be as provided at section 31.4.3.

31.6. Open space and spacing of buildings or portions of buildings containing dwelling or lodging units.

Definitions, rules for interpretation, and requirements and limitations concerning open space and spacing of buildings or portions of buildings containing dwelling or lodging units shall be as provided at section 73.16.

ARTICLE 32. RESERVED

Editor's note—Ord. No. 16-491, § 1, adopted Aug. 25, 2016, repealed Art. 32, which pertained to PD-SC, Planned Development—Shopping Center District Regulations. For prior history, see Code Comparative Table.

ARTICLE 33. RESERVED

Editor's note—Ord. No. 16-491, § 1, adopted Aug. 25, 2016, repealed Art. 33, which pertained to PD-HC, Planned Development—Highway Commercial District Regulations. For prior history, see Code Comparative Table.

CHAPTER IV. INDUSTRIAL DISTRICT REGULATIONS*

ARTICLE 40. LIGHT INDUSTRY DISTRICT REGULATIONS

Within a light industry district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

40.1. Uses permitted.

Land or buildings shall be used only for the following uses:

Accessory structures and uses.

Agricultural uses, including sales on premises.

Any lawful retail sales and services except off-premises liquor retailers, theatres or drive-in theatres, indoor firing ranges, and the sale of alcoholic beverages by any restaurant or food vendor located in or adjacent to a food court.

Apartment house containing not less than three dwelling units, provided the requirements of article 15, residence 2-B district, are met.

Assisted living facilities.

Boarding houses and rooming houses.

Correctional facilities.

Farmers markets.

Gymnasiums, fitness and exercise centers, health clubs and spas.

Mobile food vending sites.

Mobile food vending units.

Mortuaries, funeral homes and crematoriums.

Municipal, county, state or federal use.

Parking lots and parking garages.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Places of amusement including skating, bowling, trampolines, golf driving ranges, miniature golf, baseball batting, and similar establishments, but not including theatres.

Private hospitals, sanitarium or nursing home.

Single-family and two-family residence only when constructed on lots recorded prior to March 21, 1963, provided the rules and regulations of article 13, residence 2 district, are met.

Small animal farms, pet shops, kennels, veterinarian operations.

Trailer parks - provided that such trailer parks conform to the requirements set forth in section 24.2.2 hereof.

Uses permitted by section 23.1 hereof, provided:

(1) There is no limit on the number of employees of any establishment;

(2) Retail and/or wholesale activities are permitted in conjunction with industries;

(3) Dry cleaning and laundry operations are permitted;

(4) Signs shall be permitted in accordance with the provisions of article 72—Sign Control Regulations.

Wholesale operations, storage, trucking terminals.

(Ord. No. 96-259, § 3, 5-23-1996; Ord. No. 97-707, § 1, 11-13-1997; Ord. No. 09-815, § 2, 12-17-2009; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 10-182, § 1, 4-22-2010; Ord. No. 11-11, § 10, 2-24-2011; Ord. No. 11-899, § 2, 1-26-2012; Ord. No. 13-882, § 2, 12-19-2013; Ord. No. 14-576, § 6, 9-25-2014; Ord. No. 15-406, § 2, 7-23-2015; Ord. No. 19-778, § 1, 10-24-2019; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

40.2. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73 hereof:

40.2.1. Permitted residential uses shall conform to the regulations of article 15, residence 2-B district.

40.2.2. Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

*__Cross reference—__Businesses, ch. 8.

From other streets: 30 feet

40.2.3. Minimum rear yard: None, except that when rear of lot abuts a residential district, a rear yard of 25 feet is required.

40.2.4. Minimum side yard: None, except that when the side lot line abuts a residential district, a side yard of 25 feet is required.

40.3. Off-street parking.

Required off-street parking spaces and loading requirements shall be provided as set forth in article 70 hereof.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 10-507, § 2, 8-26-2010)

40.4. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements, except for multifamily dwellings which must comply only with section 71.6, PVA lighting requirements, when applicable.
(Ord. No. 99-1020, § 1, 1-13-2000)

40.5. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.5, and shall be regulated by article 75 - alcoholic beverage establishment regulations.
(Ord. No. 11-11, § 10, 2-24-2011)

ARTICLE 41. HEAVY INDUSTRY DISTRICT REGULATIONS

Within a heavy industry district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

41.1. Uses permitted.

Land or buildings shall be used only for the following uses:

Any use permitted under section 40.1 and under the conditions therein enumerated except private hospitals, sanitarium or nursing home.

Assisted living facilities.

Commercial heliports and/or helipads.

Correctional facilities.

Industries listed in section 41.2 hereof.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.
(Ord. No. 09-815, § 3, 12-17-2009; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 11-11, § 11, 2-24-2011; Ord. No. 14-576, § 7, 9-25-2014)

41.2. Uses normally prohibited.

The intent of this section is to permit those industries that would not be obnoxious or offensive to other uses permitted in and adjacent to the district by reason of noise, smoke, dirt, dust, odor, fire, or explosion hazard, and other objectionable features.

The following uses are specifically prohibited except, however, that such industries may be permitted in this district as special exceptions, authorized by the board of adjustment as hereinafter provided:

Abattoir, stockyards.

Asphalt manufacture, limestone drying.

Auto wrecking, or storage of wrecked autos for purpose of used parts sales.

Bag cleaning.

Blast furnaces, boiler and tank works.

Cement, lime, gypsum or plaster of Paris manufacture.

Central mixing plant for cement mortar or paving materials.

Gasoline and L.P. gas bulk storage plants.

Junk, scrap metal, rags, paper, cotton waste, storage, or baling.

Manufacture of acetylene gas, acid, ammonia, or chlorine, bleaching chemicals, powder, alcoholic beverages.

Manufacture of paint, turpentine, varnish, soap and tar products, disinfectants and dyestuff.

Ore reduction.

Paper and paper pulp manufacture.

Processing, incineration or storage of dead animal materials, including curing, tanning and storage of hides, distillation of bones, coal, fat rendering, candle making, fertilizer manufacture, glue size, and gelatine manufacture.

Salvage yards.

Wool pulling or scouring.

41.3. Density controls.

The following yard, density, and height of building requirements shall be observed except as provided in article 73 hereof:

41.3.1. Permitted residential uses shall conform to the regulations of article 15, residence 2-B district.

41.3.2. Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet

From other streets: 30 feet

41.3.3. Minimum rear yard: None, except that when the rear lot line abuts a residential district, a rear yard of 25 feet is required.

41.3.4. Minimum side yard: None, except that when the side lot line abuts a residential district, a side yard of 25 feet is required.

41.4. Off-street parking.

Required off-street parking spaces and loading requirements shall be provided as set forth in article 70 hereof.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 10-507, § 2, 8-26-2010)

41.5. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements, except for multifamily dwellings which must comply only with section 71.6, PVA lighting requirements, when applicable.
(Ord. No. 99-1020, § 1, 1-13-2000)

41.6. Bicycle parking requirements.

Bicycle parking requirements shall be provided as set forth in Article 76 hereof.
(Ord. No. 10-507, 8-26-2010)

41.7. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.6, and shall be regulated by article 75 - alcoholic beverage establishment regulations.
(Ord. No. 11-11, § 11, 2-24-2011)

ARTICLE 42. PLANNED INDUSTRIAL DISTRICT REGULATIONS

Purpose. The purpose and intent of the planned industrial district regulations are to provide for a comprehensively planned district for the orderly growth and development of certain industrial uses which are, by virtue of controls, mutually harmonious with other industries permitted in said planned industrial district and also harmonious with residential, commercial, and other uses permitted in nearby districts. The planned industrial district caters to basic industries requiring large tracts of land; it is intended to be protected from encroachment by commercial, residential, and other land uses adverse to the location and expansion of industrial development. The planned industrial district regulations are intended to promote the health, safety, morals, welfare, comfort, and convenience of the inhabitants of this district and the surrounding lands. Within a planned industrial district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

42.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be

erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Agricultural operations on tracts of ten acres or greater, provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Commercial heliports and/or helipads.

Computer and data processing services.

Educational, scientific, and research organizations.

Engineering, architectural, and design services.

Federal, state, county, city or public utilities owned or operated buildings and uses.

Manufacturing, processing, fabrication or assembly of the following:

(1) Apparel.

(2) Automotive and implements.

(3) Chemicals and chemical products.

(4) Electrical and electronic machinery, equipment and supplies.

(5) Food and kindred products intended for human consumption.

(6) Lumber and wood products.

(7) Machinery other than electrical.

(8) Metal and metal products.

(9) Ordnance and accessories.

(10) Plastics, glass and rubber products.

(11) Printing and publishing.

(12) Professional, scientific, and controlling instruments.

(13) Research and development operations.

(14) Textile mill products.

(15) Transportation equipment.

Medical and dental laboratories.

Office buildings for general office purposes.

Research, experimental and testing laboratories.

Trucking terminals.

Warehousing, interior storage, and distribution in conjunction with manufacturing, assembly and office use.

Exterior storage in conjunction with the above mentioned uses, completely screened from adjacent property lines and streets.

Accessory structures and uses to those permitted herein.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 09-815, § 4, 12-17-2009; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 18-1001, § 1, 12-20-2018; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

42.2. Performance standards.

The performance standards set forth in section 50.2 hereof shall be required for all uses located in the planned industrial district.

42.3. Required yards.

42.3.1. Yards facing an existing or proposed street other than a controlled access highway shall be considered front yards. Such yards shall have a minimum depth of 100 feet.

42.3.2. All other yards shall have a minimum depth of 50 feet, except as provided for in section 42.3.4.

42.3.3. All required yards shall be kept clear of parking areas, driveways and vehicular access ways except as provided for in sections 42.6.4 and 42.6.5, and shall be kept clear of loading areas, exterior storage areas, and accessory uses and buildings, provided however, a gate or security station may be located in a required yard.

42.3.4. Railroad setback: Where a tract of land abuts a railroad right-of-way, the rear or side yard setback requirements for principal or accessory structures may be reduced to 25 feet from the railroad right-of-way.

42.3.5. Easements: There shall be provided an easement of not less than 25 feet along each side and rear lot line for utilities, drainage, and railroad purposes.
(Ord. No. 09-430, § 12, 7-9-2009)

42.4. Density controls.

42.4.1. Buildings shall not cover an area greater than 70 percent of the total area of the tract.

42.4.2. Minimum lot area shall not be less than four acres for each tract.

42.4.3. Minimum lot width of each tract shall not be less than 200 feet as measured at the building line.

42.4.4. Maximum number of stories and maximum height are unlimited except as provided for in article 63, airport obstruction and noise exposure district regulations.
(Ord. No. 18-232, § 1, 5-24-2018)

42.5. Street access and frontage.

42.5.1. Each lot shall have a minimum frontage of 100 feet on a public road.

42.5.2. Access to building sites shall be via collector or arterial streets, wherever possible. No access roads serving plants shall be permitted which may place heavy traffic on residential streets that are not classified as major collector or arterial streets.

42.6. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

42.6.1. All parking areas shall be paved and properly drained. No parking shall be permitted any place other than in paved parking areas.

42.6.2. Loading areas shall not be placed within any front yard or in any required yard and shall be located and properly screened, as well as practicable, so as to not be visible from any existing or proposed street.

42.6.3. Parking and loading areas shall be landscaped in accordance with section 42.7, landscaping requirements.

42.6.4. Off-street parking for visitors, executives and handicapped persons may be permitted in the required front yard not to exceed three spaces per 100 feet of frontage on a public street and shall not encroach within 70 feet of an existing or proposed street.

42.6.5. Off-street parking areas and accessways in required rear and side yards are not permitted within 30 feet of any side or rear property line.

42.6.6. Driveways and vehicular access ways in required rear and side yards, except as necessary to cross a required rear or side yard, are not permitted within 30 feet of any rear or side property line. Driveways and vehicular access ways shall be paved and properly drained.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 09-430, § 13, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

42.7. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

42.7.1. All yards required under this ordinance shall be landscaped and maintained. A minimum of one tree per 20 linear feet of distance for each boundary line shall be planted in the required yards.

42.7.2. All off-street parking, loading and unloading areas shall be screened, as well as practicable, from view from streets by the use of earth berms or landscaping materials.

42.7.3. Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements.

42.7.4. Each side and rear yard shall have not less than a 30-foot wide strip of land adjacent to the property line planted and maintained, except as provided for in [section] 42.3.4; however, if any yard faces an existing or proposed street, then it shall have not less than a 70-foot wide strip of land planted and maintained except for main access drives into the site.

(Ord. No. 99-1020, § 5, 1-13-2000)

42.8. Industrial district plan.

42.8.1. Any landowner of property lying in a planned industrial district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

42.8.2. Anyone desiring to secure a building permit for the use of land lying in a planned industrial district must submit to the manager of planning (city planning division) a generalized plot plan of the tract to be developed for approval. Such generalized plot plan shall have shown thereon the following information:

(1) Location map showing the boundaries of the tract to be developed.

(2) The location of all buildings proposed to be constructed.

(3) The general location of parking areas, loading docks, proposed railroad spurs, and public and/or private accessways.

(4) Site grading and storm drainage plan.

(5) Proposed utilities services.

(6) Required screening.

(7) Required and adequate easements.

The manager of planning (city planning division) shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations.

If the proposed plot plan is not approved, the manager of planning (city planning division) shall state in writing on the proposed plot plan the cause for such disapproval.

ARTICLE 43. AIRPORT INDUSTRIAL PARK DISTRICT REGULATIONS*

Purpose. The purpose of the airport industrial park district is to provide a protective district for the orderly and harmonious development of the lands of the Huntsville-Madison County Airport Authority.

These regulations shall apply to all the lands of the Huntsville-Madison County Airport Authority located in Huntsville, Madison County, Alabama, consisting of some 3,000 acres, more or less.

The nature and type of uses permitted in this district shall be governed by their performance standards relative to smoke, dust, dirt, and other particulate matter; toxic or noxious matter; odorous matter, vibration; noise; fire and explosive hazard; heat; glare; radioactive materials; electromagnetic interference; and stream pollution.

The minimum standards heretofore referred to set forth the minimum control necessary in each of the several areas to prevent adverse effect of land use permitted in the airport industrial park district, on the operation and maintenance of the Huntsville-Madison County Airport, and on nearby property.

These airport industrial park district regulations are intended to promote the physical and mental health, safety, morals, welfare, comfort, and convenience of the inhabitants of the district and its environs.

Within an airport industrial park district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

43.1. Uses permitted.

No building, structure or land shall be used and no building or structure shall hereafter be

*__Cross reference—__Aviation, ch. 6.

erected, structurally altered, enlarged, or maintained, except for one or more of the following uses:

Dwellings only in connection with bona fide agricultural operations, or as living quarters for bona fide caretakers and/or watchmen and their families.

Farming and other agricultural uses.

Federal, state, county or city owned or operated buildings and uses.

Office buildings for general office purposes.

Off-street parking for motor vehicles in connection with uses within the district.

Research, experimental and testing laboratories.

Industrial uses, manufacturing and processing, provided all such uses are in accordance with performance standards as stated in section 43.7 hereof.

Structures accessory to uses permitted by [this] section 43.1 hereof, including but not limited to, warehouses, storage buildings, and pump houses.

Accessory uses to uses permitted in the airport industrial park district such as recreational facilities and dining facilities in connection with the operation of an establishment and primarily for employees.

Heliports and radio and television studios but not including broadcast towers, provided such uses are in accordance with section 43.7 hereof.

Retail sales and consumer service establishments (not including warehouse sales) accessory to any permitted use, other than agricultural or residential uses.

Bulk fuel storage.

Hotel, motel, and related dining facilities.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 96-1008, § 2, 1-23-1997; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

43.2. Uses specifically prohibited.

The intent of this section is to prohibit those industries which could be obnoxious or offensive to other uses permitted in and adjacent to the district by reason of noise, smoke, dirt, dust, odor, fire or explosive hazard, and other objectionable features.

The following uses are specifically prohibited:

Abattoir, stockyards.

Asphalt manufacture.

Auto wrecking or storage of wrecked autos for the purpose of used parts sales.

Processing, incineration or storage of dead animal materials including curing, tanning, and storage of hides, distillation of bones, and fat rendering.

Salvage yards or junkyards.

Paper pulp manufacture.

Coal, coke, or wood storage yard.

Dead animal or offal reduction.

Grease, lard, or tallow manufacture from animal fats.

Poultry killing or dressing.

Veterinary hospital.

Trailer parks.

43.3. Required yards and landscaped areas for industrial buildings.

43.3.1. No principal or accessory structure shall be located less than 50 feet from any side or rear lot line.

43.3.2. No principal or accessory structure shall be located less than 100 feet from any existing or proposed major street as adopted by the Huntsville Planning Commission.

43.3.3. The required front and side yards set forth above shall be landscaped and the provisions of section 3.1, buffer of screen planting, of this ordinance shall be observed where appropriate.

43.3.4. Exterior storage of materials shall be contained by fencing in such a manner as to be neat in appearance when viewed from any street.

43.3.5. All building heights shall conform to the airport obstruction ordinance (article 63) and amendments thereto.

43.4. Density regulations.

43.4.1. Buildings shall not cover an area greater than 30 percent of the total area of the tract upon which the buildings are located.

43.4.2. Minimum lot width of each tract shall be not less than 200 feet as measured at the building line, except lots for permitted residential uses.

43.5. Street access and frontage.

Each lot shall have a minimum frontage of 150 feet on a public road; provided, however, the planning commission may approve a lesser frontage to a minimum of 50 feet for lots located on culs-de-sac or on street curves, or having other extraordinary characteristics.

43.6. Off-street parking and loading requirements for industrial uses.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

43.6.1. Off-street parking and loading spaces are not permitted in the required front yard except for visitors and/or administrative parking.

43.6.2. Visitor parking shall be provided on a basis of at least one parking space for each ten employee spaces.

43.6.3. Parking shall not be permitted in more than 25 percent of the required front yard or in the first ten feet.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof. (Ord. No. 09-430, § 14, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

43.7. Performance standards.

43.7.1. *General.* No part of the airport industrial park district and no improvement thereon shall be used or allowed to be used at any time for the manufacture, storage, distribution, or sale of any product or the furnishing of any service, in a manner which is unreasonably noxious or offensive, or an unreasonable annoyance or a nuisance to other tenants on the airport because of odors, heat, fumes, smoke, noise, glare, vibration, soot, or dust. No activity shall be carried on which may be or may become dangerous to public health and safety; which shall increase the fire insurance rating for adjoining or adjacent property, or which shall be illegal.

43.7.2. *Noise.* Except for the operation of motor vehicles, aircraft and other transportation facilities to, from, and on a building site or incidental to the use thereof, and on the public airport areas of the airport, the sound pressure level generated on a building site shall not at any point on the property line exceed the decibel level in the designated octave bands shown below:

Octave Band Cycle/Second	*Maximum Permitted Sound Level in Decibels Re 0.0002 Dynes/cm2*
3 — 300	75
300 — 1,200	55
1,200 — 4,800	45
4,800 and above	40

Testing of aircraft engines and other engines shall be conducted in noise-suppressing test cells so that sound levels do not exceed the levels specified above.

43.7.3. *Vibration.* Maximum permitted vibration from any cause shall not exceed the following when measured at the property line:

Frequency (Cycles/Second)	*Displacement (Inches)*
10 and below	0.0008
10—20	0.0005
20—30	0.0003
30—40	0.0002
40—50	0.0001
50 and above	0.0001

43.7.4. *Air pollution.* Except for the operation of motor vehicles and aircraft to, from, and on the building site or incidental to the use thereof, the following requirements shall apply:

(1) Any use producing smoke, dust, odor, fumes, gas, aerosols, particulates, products or combustion, or any other atmospheric pollutant, shall be conducted within a completely enclosed building.

(2) No use shall emit smoke for more than three minutes in any one hour which is darker than Number One in the Ringelmann Chart as published and revised by the U.S. Bureau of Mines.

(3) No operation shall discharge toxic or noxious matter into the atmosphere.

(4) The emission of noxious or objectionable odors which are detectable without instruments at or beyond the property line will not be permitted.

(5) Particulate matter shall be defined as any material discharged into or suspended in the atmosphere in finely divided form. Calculation of the total net rate of emission of particulate matter within the boundaries of any lot shall be made in the following manner:

(a) Determine maximum emission in pounds per hour from each source of emission and divide this figure by the acres in the lot area, thereby obtaining the gross hourly rate of emission in pounds per acre.

(b) For each gross hourly rate of emission, deduct the height of emission correction factor from the following table, interpolating as necessary for heights not given:

Allowances for Height of Emission

Height of Emission Above Grade (Feet)	*Correction Pounds/Hour/Acre*
50	0.01
100	0.06

The result is the net hourly rate of emission in pounds per acre from each source of emission.

(c) Adding together individual net rates of emission gives the total net rates of emission from all sources of emission within the boundaries of the lot.

The total net rate of emission from all sources within the boundaries of a lot in the airport industrial park district shall not exceed one pound per acre of lot area during any one hour. The emission from all sources within any lot area of particulate matter containing more than ten percent by weight of particles having a diameter larger than 44 microns is prohibited. The emission of particles in the form of fly ash from any flue or smokestack shall not exceed 0.2 grains per cubic foot of flue gas at a stack temperature of 500 degrees Fahrenheit.

43.7.5. *Stream pollutants.* No effluent shall be discharged in any stream, nor any discharge in the Huntsville sewerage system shall be permitted, except as approved by the City of Huntsville City Engineer and the State of Alabama Water Improvement Commission.

43.7.6. *Heat or glare.* Any operation producing intense glare or heat shall be performed within an enclosed or screened area in such a manner that the glare or heat emitted will not be perceptible without instruments at any property line of a building site.

43.7.7. *Fire and explosive hazard.* All activities and all storage of flammable and explosive materi-

als shall be in accordance with the National Board of Fire Underwriters' publications and local ordinances.

43.7.8. *Industrial waste materials.* All disposal of industrial waste shall be in accordance with the State of Alabama Water Improvement Commission regulations therefor.

43.7.9. *Radioactive materials.* The handling of radioactive materials, the discharge of such materials into the air or water, and the disposal of radioactive wastes shall be in conformance with the regulations of the Atomic Energy Commission as set forth in Title 10, Chapter 1, Part 20, "Standards for Protection Against Radiation," as amended.

43.7.10. *Electromagnetic interference.* Industries shall emit only that amount of unshielded spurious electromagnetic radiation as is necessary for the conduct of their operations. Federal Communications Commission requirements shall govern maximum radiation which tends to interfere with meaningful signals.

43.8. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements.
(Ord. No. 99-1020, § 2, 1-13-2000)

ARTICLE 44. COMMERCIAL INDUSTRIAL PARK DISTRICT REGULATIONS

Purpose. The purpose of the commercial industrial park district is to provide for the retailing of goods and services, the light manufacture and assembly of products, and the warehousing and distribution of such products within the controlled environment of an attractive, park-like setting. Minimum lot sizes are defined, front, side and rear yards are required, signage is restricted, and landscaping and natural buffers are specified.

Within a commercial industrial park district as shown on the official Zoning Maps for the City of Huntsville, Alabama, the following regulations shall apply:

44.1. Uses permitted.

Accessory structures and uses to those permitted herein.

Agricultural uses including sales on premises.

Any lawful retail sales and services except indoor firing ranges, and theatres or drive-in theatres.

Farmers markets.

Federal, state, county, city or public utility owned or operated buildings and uses.

Gymnasiums, fitness and exercise centers, health clubs and spas.

Light manufacturing and assembly, provided all such uses are in accordance with the performance standards referenced in section 44.10 hereof.

Mobile food vending sites.

Mobile food vending units.

Mortuaries, funeral homes and crematoriums.

Office buildings.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Recreational facilities intended primarily for use by employees and tenants of the commercial industrial park development.

Warehousing, wholesaling, interior storage, distribution, and logistics.
(Ord. No. 96-259, § 4, 5-23-1996; Ord. No. 97-707, § 1, 11-13-1997; Ord. No. 09-815, § 5, 12-17-2009; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 11-11, § 12, 2-24-2011; Ord. No. 11-899, § 2, 1-26-2012; Ord. No. 13-882, § 2, 12-19-2013; Ord. No. 15-406, § 2, 7-23-2015; Ord. No. 16-259, § 1, 5-26-2016; Ord. No. 18-904, § 1, 11-15-2018; Ord. No. 18-1001, § 1, 12-20-2018; Ord. No. 21-693, § 1, 9-23-2021)

44.2. Density controls.

44.2.1. Minimum lot size shall not be less than one acre for each tract.

44.2.2. Minimum lot width of each tract shall not be less than 100 feet as measured at the minimum building line.

44.3. Required yards.

44.3.1. All required yards shall be kept clear of driveways and vehicular access ways, except as necessary to cross a required yard, and shall be kept clear of parking areas, loading areas, accessory uses and buildings, provided however, that a gate or security station or a detached ground identification sign meeting the requirements of section 72.4.5 may be located in a required yard.

44.3.2. Yards facing an existing or proposed public street shall be considered front yards. Such yards shall have a minimum depth of 50 feet from a major arterial and 40 feet from other public streets. On corner lots having two front yards, the required front yard shall be maintained on the street that the building front faces; the required front yard on the remaining street may be reduced to a minimum depth of 30 feet, provided said street is not a major arterial.

44.3.3. Minimum required depth of rear yard shall be 20 feet with a berm and planting screen or 35 feet without a berm and planting screen.

44.3.4. Minimum required width of each side yard shall be ten feet except where a side lot line abuts a residential district, then there shall be provided a side yard of not less than 30 feet with a berm and planting screen.
(Ord. No. 09-430, § 15, 7-9-2009)

44.4. Street access and frontage.

Each lot shall have a minimum frontage of 100 feet on a public road; provided, however, the manager of planning may approve a lesser frontage to a minimum of 50 feet for lots located on culs-de-sac or street curves.

Access to lots and building sites shall be via collector or arterial streets, wherever possible.

44.5. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

44.5.1. Driveways and vehicular access ways, except as necessary to cross a required yard, and parking areas are not permitted in any required yard.

44.5.2. All driveways, vehicular access ways and parking areas shall be paved and properly drained. No parking shall be permitted any place other than in paved parking areas.

44.5.3. Loading areas shall not be placed within any front yard or any required side or rear yard and shall be located and properly screened, as well as practicable, so as to not be visible from any existing or proposed street.

44.5.4. Parking and loading areas shall be landscaped in accordance with section 44.8, landscaping requirements, and parking areas shall be lighted in accordance with section 71.6, PVA lighting requirements.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 99-1020, § 6, 1-13-2000; Ord. No. 09-430, § 16, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

44.6. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

44.7. Height requirements.

Maximum number of stories shall be ten.

44.8. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following

manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

44.8.1. All yards required under the ordinance from which this section was derived shall be planted with grass or an evergreen ground cover and shall be maintained so as to present an attractive and healthy appearance. Yard tree requirements shall be as follows:

(1) Front yards: A minimum of one tree per 30 linear feet of distance for each lot line fronting a public street shall be planted in the required front yard(s).

(2) Side and rear yards shall be planted with a minimum of one tree per 40 linear feet for each side and rear lot line unless such yard abuts a residential or office district, in which case the first 15 feet of the required yard shall be landscaped with a buffer of screen planting as defined herein.

Existing vegetation shall substitute for the required landscaping if the type, size and density of the existing vegetation creates a year round visual screen separating the industrial park from adjacent districts.

44.8.2. Required yard trees, unless elsewhere specified, shall be a mix of deciduous shade trees and evergreens; loblolly pines shall not account for more than 25 percent of the required number of trees; other conifers shall be those varieties that retain their branches at ground level.

44.8.3. All off-street parking areas, to include drives within the parking areas, greater than either 20 automobile spaces or 6,000 square feet shall have at least five percent of the interior of the parking area landscaped in planting islands or peninsulas. Width of islands or peninsulas shall be a minimum width of at least five feet between backs of curbs and at least one tree per 20 parking spaces shall be planted within the planting islands or peninsulas in addition to other landscaping materials and plants.

44.8.4. All parking areas shall be screened from view of public streets as well as is practicable by the use of berms, fencing or buffers of plant materials.

44.8.5. All mechanical and utility equipment, incinerators and trash containers, and accessory structures necessary for the conduct of a permitted use shall be adequately screened, as well as is practicable, by fencing or landscaping so as to not be visible from any existing or proposed street or from the ground floor of adjacent buildings.

(Ord. No. 09-1053, § 5, 12-17-2009)

44.9. Underground wiring requirement.

All power, communication, and other wiring hereafter installed in a commercial industrial park district shall be placed underground.

44.10. Performance standards.

The performance standards listed in section 50.2 (research park district) hereof shall be required for all uses located in a commercial industrial park district.

44.11. Development procedure for tracts or parcels.

44.11.1. Any landowner of property lying within a commercial industrial park district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission for approval a plan of the proposed street, road, or right-of-way.

44.11.2. Anyone desiring to secure a building permit for the use of land lying within a commercial industrial park district must submit to the manager of planning the following information, as appropriate for approval of plans:

(1) A site plan for traffic engineering analysis, showing location and design of buildings, driveways, driveway intersections with streets, parking areas, loading areas, maneuvering areas and sidewalks;

(2) A planting plan, including screen walls and fences, for analysis of adequacy of visual screening and landscape architectural design;

(3) Plans for all signs to be erected, including location and lighting of each sign.

The manager of planning shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations. If the proposed plot plan is not approved, the manager of planning shall state in writing on the proposed plot plan the cause for such disapproval.

44.12. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.4, and shall be regulated by article 75 - alcoholic beverage establishment regulations. (Ord. No. 11-11, § 12, 2-24-2011)

ARTICLE 45. HEAVY MANUFACTURING DISTRICT REGULATIONS

Purpose. The purpose of the heavy manufacturing district is to provide sites suitable for the operation of those industries engaged in the mechanical or chemical transformation of materials or substances into new products. These operations frequently require large tracts of land suitable for the external storage of both raw materials or components and finished products, and their physical plants may incorporate various towers, tanks and other external mechanical devices. It is the intent of this article to protect appropriate lands from the intrusion of incompatible uses while establishing regulations that would permit manufacturing companies to function in near proximity to dissimilar uses. To achieve this goal, these regulations require a minimum ten-acre lot size, generous yard setbacks based on the compatibility of adjacent uses, landscape screening of outdoor storage and operations, and performance standards.

The heavy manufacturing district regulations are intended to promote the health, safety, welfare, comfort and convenience of the users of this district as well as of the inhabitants of the surrounding districts.

Within a heavy manufacturing district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

45.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Agricultural operations on tracts of ten acres or greater, provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Federal, state, county, city or public utilities owned or operated buildings and uses.

Manufacturing, processing, fabrication or assembly of the following major groups as identified by the Standard Industrial Classification Manual (1987). The SIC major group number appears in parentheses at the end of each entry.

Food and kindred products intended for human consumption (20)

Textile mill products (22)

Apparel and other finished products made from fabrics (23)

Lumber and wood products (24)

Furniture and fixtures (25)

Printing and publishing (27)

Chemicals and chemical products (28)

Rubber and plastic products (30)

Leather and leather products (31)

Stone, clay, glass and concrete products operating without a mine or quarry (32)

Fabricated metal products (34)

Industrial and commercial machinery and computer equipment (35)

Electronic and other electrical equipment and components (36)

Transportation equipment (37)

Measuring, analyzing and controlling instruments; photograph, medical and optical goods; watches and clocks (38)

Miscellaneous manufacturing industries (39)

Offices, laboratories, and showrooms when operated as accessory uses to any permitted use.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

Warehousing, interior storage, and distribution in conjunction with manufacturing and assembly uses.

Exterior storage in conjunction with the abovementioned uses.

Accessory structures and uses to those permitted herein.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

45.2. Density controls.

45.2.1. Minimum lot area shall not be less than ten acres.

45.2.2. No portion of any building or structure shall project through an imaginary height plane leaning inward from any yard at a slope of 0.4 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary.

45.3. Street access and frontage.

45.3.1. Each lot shall have at least 200 feet of frontage on a public street.

45.3.2. Access to building sites shall be via collector or arterial streets. No access roads serving plants shall be permitted which may place heavy traffic on residential streets which are not classified as major collector or arterial streets.

45.4. Required yards.

45.4.1. Yards facing an existing or proposed street other than a controlled access highway shall be considered front yards.

45.4.2. Required yard setbacks shall be determined by the type of permitted heavy manufacturing use and by the use immediately adjacent to the heavy manufacturing tract according to the following table:

If the permitted HM use is...	*And the adjacent use* is...*		
	Residential Recreational Street ROW Then the required yard setback is...	Commercial Retail Office Research PK Medical	Industrial (Light & Heavy Ind. and Heavy Mfg.)
Office, showroom, visitors parking lot	100`	100`	50`
Fully enclosed manufacturing operations, warehouses, employees parking lot	200`	150`	50`
Exterior storage	300`	200`	50`

If the permitted HM use is...	*And the adjacent use* is...*		
Exterior manufacturing operations	400`	250`	100`

*Adjacent use shall be determined by its zoning district designation unless the actual use clearly falls within another category (e.g., a residential subdivision in a light industry zone would be treated as residential.)

45.4.3. There shall be required a minimum setback of 50 feet from all property lines unless otherwise specified in this article.

45.4.4. No loading areas, exterior storage areas, or accessory uses and buildings shall be located in any required yard; provided, however, a gate or security station may be placed in such yards.

45.4.5. Railroad setback. Where a tract of land abuts a railroad right-of-way, the rear or side yard setback requirements for principal or accessory structures may be reduced to 50 feet from the railroad right-of-way.

45.4.6. Easements. There shall be provided an easement of not less than 25 feet along each side and rear lot line for utilities, drainage, and railroad purposes.

45.5. Performance standards.

All permitted operations shall comply with applicable federal, state and local regulations concerning air pollution, odor, vibration, noise, fire and explosive hazards, glare, radiation, radioactive materials, electromagnetic interference, water pollution, and waste disposal.

45.6. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

45.6.1. Parking areas provided for executives and visitors shall be paved and properly drained.

45.6.2. Parking areas in required rear and side yards are not permitted within 50 feet of any rear or side property line.

45.6.3. Driveways and vehicular access ways in required rear and side yards, except as necessary to cross a required rear or side yard, are not permitted within 50 feet of any rear or side property line.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof. (Ord. No. 99-1020, § 7, 1-13-2000; Ord. No. 09-430, § 17, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

45.7. Landscaping requirements.

Every site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

45.7.1. Visitors' parking lots shall be screened from view of all public streets and adjacent residential and recreational uses by a perimeter landscaping strip at least five feet in width planted with an average of one tree and six shrubs per 50 linear feet or fraction thereof of perimeter. Where a berm at least three feet in height is used, the shrubs are optional but the trees will still be required. Such berms shall be planted with a vegetative ground cover.

45.7.2. All yards required under this article shall be landscaped and maintained. A minimum of one tree per 40 linear feet of distance for each boundary line adjacent to a nonindustrial use (i.e., other than light or heavy industry or heavy manufacturing or railroad right-of-way) or street right-of-way shall be planted in the required yards. Existing vegetation may substitute for part or all of this requirement if it forms a broken screen composed of intermittent visual obstructions

from the ground to a height of at least 20 feet and provides screening equivalent to having one tree every 40 feet. The majority of the trees used should be of nondeciduous species in order to ensure a visual screen in all seasons and should be of a variety that maintains its foliage to the ground.

45.8. Heavy manufacturing district plan.

45.8.1. Any landowner of property lying in a heavy manufacturing district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

45.8.2. Anyone desiring to secure a building permit for the use of land lying in a heavy manufacturing district must submit to the manager of planning (city planning division) a generalized plot plan of the tract to be developed for approval. Such generalized plot plan shall have shown thereon the following information:

(1) Location map showing the boundaries of the tract to be developed.

(2) The location of all buildings and structures proposed to be constructed.

(3) The general location of parking areas, loading docks, exterior storage areas, proposed railroad spurs, and public and/or private accessways.

(4) Site grading and storm drainage plan.

(5) Proposed utilities services.

(6) All required screening and landscaping.

(7) Required and adequate easements.

The manager of planning (city planning division) shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations.

If the proposed plot plan is not approved, the manager of planning (city planning division) shall state in writing on the proposed plot plan the cause for such disapproval.

ARTICLE 46. INDUSTRIAL PARK DISTRICT REGULATIONS

Purpose. The purpose of the industrial park district is to provide sites for manufacturing, recycling, warehousing and industrial operations within the city that possess a moderate level of site amenities through perimeter landscaping, street setbacks, restrictions on outdoor operations, and screening of storage. Because industrial uses can produce excessive noise, activity, and heavy traffic, provisions have been included to protect adjacent residential and office districts through the inclusion of increased setbacks and an enhanced level of landscaping along their common boundaries. Building heights are permitted to increase in direct proportion to the building's distance from property lines. Adherence to adopted performance standards is required to prevent all types of environmental pollution. These regulations are intended to permit incompatible uses to function in close proximity; to encourage the establishment of attractive industrial districts responsive to the demands of modern industrial operations; and to promote the health, safety, welfare, comfort and convenience of the users of this district as well as of the inhabitants of the surrounding districts.

Within an industrial park district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

46.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Agricultural operations on tracts of ten acres or greater, provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Federal, state, county, or city owned or operated buildings and uses.

Light and heavy manufacturing operations subject to compliance with section 46.3 hereof.

Warehousing and wholesale operations.

Trucking terminals.

Recycling operations.

Commercial heliports and/or helipads.

Medical and dental laboratories.

Research and experimental and testing laboratories.

Gasoline and L.P. bulk fuel storage facilities.

Office buildings.

Retail sales and exterior storage only as accessory uses to permitted uses and subject to the provisions of section 46.2.

Structures and other uses accessory to those permitted herein.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 09-815, § 6, 12-17-2009; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 10-178, § 1, 4-22-2010; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

46.2. Use standards.

46.2.1. All permitted uses, with the exception of agricultural operations, truck and heavy equipment parking, container storage, bulk fuel storage, and heliports, shall be conducted within completely enclosed buildings.

46.2.2. Exterior storage shall be permitted only within rear yards, and the stored products or materials shall be in an enclosed building or enclosed by a masonry wall, fence or evergreen hedge of sufficient opacity and size to completely screen the stored materials from view from adjacent properties and streets.

46.2.3. Parking or storage of company vehicles, trucks, containers, and heavy equipment used in connection with a permitted business shall be in the rear yard only and shall be screened by vegetation or a berm not less than four feet high.

46.2.4. Retail sales shall not occupy more than 20 percent of the total floor area of all buildings on any lot or group of contiguous lots in common ownership or control.

46.2.5. Bulk fuel storage facilities shall meet all setbacks as required for principal buildings in this district.

46.2.6. Recycling operations shall not include the collection, processing, storage or disposal of hazardous wastes as defined by federal and state regulations, but may include the collection and storage of household batteries. Recycling operations may include the collection, temporary holding, and transfer of medical wastes, but shall not include their storage or disposal.

46.2.7. Any lot in an industrial park district that is used for any purpose other than agriculture, whether or not it contains a structure, shall meet all setback, landscaping, and parking regulations of this article.

(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

46.3. Performance standards.

All operations shall comply with applicable federal, state and local regulations concerning air pollution, odor, vibration, noise, fire and explosive hazards, glare, radiation, radioactive materials, electromagnetic interference, water pollution, and waste disposal, including the performance standards set forth in section 50.2 hereof.

46.4. Required yards.

46.4.1. Front yards. Yards facing an existing or proposed street other than a controlled access highway shall have a minimum depth of 40 feet. On a corner lot, the street frontage that the building faces may be designated as the front yard, in which case, the yard opposite the designated front yard shall be considered the rear yard.

46.4.2. Interior side and rear yards are those yards that abut land zoned industrial park district. Interior rear yards shall have a minimum depth of 25 feet; interior side yards shall have a minimum depth of 20 feet.

46.4.3. Exterior side and rear yards are those yards that abut land in a zoning district other than industrial park. They shall have a minimum depth of 40 feet.

46.4.4. All required yards shall be kept clear of driveways and vehicular access ways, except as necessary to cross a required yard, and shall be kept clear of parking areas, loading areas, exterior storage areas, trash and waste storage containers, and accessory uses and buildings, provided however, a gate or security station may be located in a required yard.

46.4.5. Security fences shall not be placed in any required front yard.

46.4.6. There shall be provided an easement of not less than 20 feet along each side and rear lot line for utilities, drainage, and railroad purposes. (Ord. No. 09-430, § 18, 7-9-2009)

46.5. Density controls.

46.5.1. Minimum lot area shall not be less than two acres.

46.5.2. Minimum lot width shall not be less than 100 feet as measured at the building line.

46.5.3. No portion of any building shall project through imaginary height planes leaning inward from any yard as defined in section 46.4 at a slope of 0.6 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary; provided, however, that the maximum height shall not exceed 120 feet.

46.5.4. Buildings shall not cover an area greater than 60 percent of the total area of the lot.

46.6. Street access and frontage.

46.6.1. Each lot shall have a minimum frontage of 75 feet on a public street.

46.6.2. Access to building sites shall be via collector or arterial streets, wherever possible. No access streets serving plants shall be permitted which may place heavy traffic on residential streets that are not classified as major collector or arterial streets.

46.7. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

46.7.1. All driveways, vehicular access ways and parking areas shall be paved and properly drained. No parking shall be permitted any place other than in paved parking areas.

46.7.2. Loading areas shall not be placed within any front yard or in any required yard and shall be located and sufficiently screened so as to not be visible from any existing or proposed street.

46.7.3. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6, PVA lighting requirements. All regulations of article 71 concerning perimeter landscaping for parking areas must be met for parking areas located in any portion of a front yard.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof. (Ord. No. 99-1020, § 8, 1-13-2000; Ord. No. 09-430, § 19, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

46.8. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

46.8.1. All yards required under this ordinance shall be planted with grass or an evergreen ground cover and shall be maintained so as to present an attractive and healthy appearance. Yard tree requirements shall be as follows:

(1) *Front yards.* A minimum of one tree per 30 linear feet of distance for each lot line fronting a public street shall be planted in the required front yard(s).

(2) *Side and rear yards.* [Side and rear yards] shall be planted with a minimum of one tree per 40 linear

feet for each side and rear lot line unless such yard abuts a residential or office district, in which case such yard shall be planted with a minimum of three large deciduous shade trees, five large evergreen trees and seven understory trees for each 100 linear feet of yard.

Existing vegetation shall substitute for the required landscaping if the type, size and density of the existing vegetation creates a yearround visual screen separating the industrial park from adjacent districts.

46.8.2. Required yard trees, unless elsewhere specified, shall be a mix of deciduous shade trees and evergreens; loblolly pines shall not account for more than 25 percent of the required number of trees; other conifers shall be those varieties that retain their branches at ground level.

46.8.3. All off-street parking, loading and unloading areas, and outdoor trash and waste storage containers shall be screened, as well as practicable, from view from streets by the use of walls, earth berms and/or vegetation.

46.9. Industrial park plan.

46.9.1. Any landowner of property lying in an industrial park district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

46.9.2. Anyone desiring to secure a building permit for the use of land lying in an industrial park district must submit to the manager of planning a generalized plot plan of the lot to be developed for approval. Such generalized plot plan shall have shown thereon the following information:

(1) Location map showing the boundaries of the tract to be developed and all adjacent uses.

(2) The location of all buildings and structures proposed to be constructed.

(3) The location of parking areas, loading docks, storage areas, proposed railroad spurs, and public and/or private accessways.

(4) Site grading and storm drainage plan.

(5) Proposed utilities services.

(6) Required and adequate easements.

(7) Proposed landscaping plans including the numbers, types and placement of trees and other vegetation.

(8) Details of all required screening including materials, locations, and extent.

(9) Proposed signage including size and location.

The manager of planning (or his designee) shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations.

If the proposed plot plan is not approved, the manager of planning (or his designee) shall state in writing on the proposed plot plan the cause for such disapproval.

CHAPTER V. RESEARCH PARK DISTRICT REGULATIONS

ARTICLE 50. RESEARCH PARK DISTRICT REGULATIONS

Purpose. The purpose and intent of the research park district regulations are to provide a protective district with a park-like development for the orderly growth and development of certain industries and uses which are, by virtue of control, mutually harmonious with other industries and uses permitted, as well as with residential, commercial, and other uses permitted in nearby districts. The research park district caters to industries requiring the benefits that accompany this zoning classification and protects these industries from encroachment by commercial, residential, and other land uses adverse to the location and expansion of such development.

These research park district regulations are intended to promote the physical and mental health, safety, morals, welfare, comfort, and convenience of the inhabitants of this district and its environs.

Within the research park district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

50.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained, except for one or more of the following uses:

Accessory uses permitted in the research park district such as recreational facilities and dining facilities in connection with the operation of an establishment and primarily for employees, students, or faculty.

Agricultural uses, provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Banks and credit unions.

Dwellings only in connection with bona fide agricultural operations, or as living quarters for bona fide caretakers and/or watchmen and their families; provided, however, that residential subdivisions recorded prior to April 12, 1962, may be developed for single-family use.

Educational, scientific and research organizations.

Federal, state, county, city or public utility owned or operated buildings and uses.

Heliports and radio and television studios but not including broadcast towers, provided such uses are in accordance with section 50.2 hereof.

Limited, temporary sleeping quarters for scientists, laboratory technicians, custodians and caretakers that are demonstrated to be necessary to carry out a permitted use in this district.

Mobile food vending sites.

Mobile food vending units.

Office buildings for general office purposes.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Research and development and limited manufacturing and processing where at least 30 percent of the building area is devoted to nonmanufacturing activities to include offices, laboratories, technical support, etc. The remaining 70 percent may be used for manufacturing, assembly, storage and related uses.

Research, experimental and testing laboratories.

Retail sales and consumer service establishments (not including wholesale sales), accessory to any permitted uses other than agricultural or residential uses, and dealing primarily with employees, students, or faculty of establishments permitted as principal uses, provided that such commercial uses shall not occupy more than five percent of the total floor area of all buildings on any lot or group of contiguous lots in common ownership or control.

Structures accessory to uses permitted by section 50.1 hereof including, but not limited to, warehouses, storage buildings, and pump houses provided such accessory uses shall not exceed 20 percent of the total building area of the primary use.

(Ord. No. 96-1008, § 2, 1-23-1997; Ord. No. 05-547, § 1, 8-23-2005; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 15-479, § 1, 8-27-2015; Ord. No. 17-883, § 1, 12-21-2017)

50.2. Performance standards.

The following performance standards shall be required for all uses located in the research park district:

50.2.1. *Air pollution.* Every use shall be so operated as to comply with the emission limitations specified in Chapter 12, Article III, section 12-31, Code of Ordinances, City of Huntsville, Alabama, April 2003, as the same may be amended or revised, except that in the case of visible emission restrictions no visible emissions will be allowable.

50.2.2. *Odor.* No odors shall be emitted that are detectable without instruments at or beyond any property line.

50.2.3. *Vibration.* Maximum permitted vibration from any cause shall not exceed the following, when measured at the lot line:

Frequency (Cycles per Second)	*Displacement (Inches)*
10 and below	0.0008
10—20	0.0005
20—30	0.0003
30—40	0.0002
40—50	0.0001
50 and above	0.0001

50.2.4. *Noise.* Every use shall be so operated as to comply with the noise limitations specified in Chapter 12, Article V, Noise, Code of Ordinances, City of Huntsville, Alabama, April 2003, as the same may be amended or revised.

50.2.5. *Fire and explosion hazard.* All activities and all storage of flammable and explosive materials shall be in accordance with the National Board of Fire Underwriters, publications and other local ordinances.

50.2.6. *Glare.* No direct or reflected glare shall be produced so as to be visible at or beyond any lot line.

50.2.7. *Radiation.* Research operations shall cause no dangerous radiation at any property line as specified by the regulations of the Alabama Department of Public Health, Bureau of Radiological Health.

50.2.8. *Radioactive materials.* The handling of radioactive materials, the discharge of such materials into air or water, and the disposal of radioactive wastes, shall be in conformance with the regulations of the Alabama Department of Public Health, Bureau of Radiological Health.

50.2.9. *Electromagnetic interference.* Industries shall emit only that amount of unshielded spurious electromagnetic radiation as is necessary for the conduct of their operations. Federal Communications Commission requirements shall govern maximum radiation which tends to interfere with meaningful signals.

50.2.10. *Water pollution.* No effluent shall be discharged in any stream. Discharge into the Huntsville sewerage system shall be as approved by the City of Huntsville City Engineer.

50.2.11. *Waste.* All industrial wastes shall be treated and disposed of in such a manner as to comply with all federal, local, and state standards.

50.3. Required yards.

50.3.1. Yards facing an existing or proposed street other than a controlled access highway shall be considered front yards. Such yards shall have a minimum depth of 100 feet, provided that no building shall project through an imaginary height plane as described in section 51.8.1.

50.3.2. All other yards shall have a minimum depth of 50 feet, provided that no building shall project through an imaginary height plane as described in section 51.8.2.

50.3.3, 50.3.4. Reserved.
(Ord. No. 17-883, § 2, 12-21-2017)

50.4. Density regulations.

50.4.1. Buildings shall not cover an area greater than 85 percent of the total area of the tract upon which the buildings are located. (17-)

50.4.2. Minimum required depth of front yard: 100 feet, but shall conform to the building setback lines established by the approved subdivision plat. (17-)

50.4.3. No principal or accessory structure shall be located less than ten feet from any side or rear lot line, except that when the side or rear of lot abuts a residential district, a minimum of 30 feet is required. (17-)

50.4.4. Exterior storage of materials shall not be placed in any required yard and shall be contained by fencing in such a manner as to be neat in appearance when viewed from any street. (84-70)
(Ord. No. 17-883, § 3, 12-21-2017)

50.5. Street access and frontage.

50.5.1. Each lot shall have a minimum frontage of 150 feet on a public road; provided however, the director of planning may approve a lesser frontage to a minimum of 100 feet for lots located on cul-de-sacs or on street curves, or having other extraordinary characteristics.

50.5.2. Access to building sites shall be via collector or arterial streets. No access roads serving plants shall be permitted which may place heavy traffic on residential streets which are not classified as major collector or arterial streets.
(Ord. No. 17-883, § 4, 12-21-2017)

50.6. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

50.6.1. Driveways and vehicular access ways in required front yards, except as necessary to cross the required front yards, are not permitted within 75 feet of any existing or proposed street.

50.6.2. Parking areas in required front yards are not permitted within 75 feet of any existing or proposed street.

50.6.3. Parking areas shall be paved and properly drained. No parking shall be permitted any place other than paved parking areas.

50.6.4. Loading areas for supplies and service shall be sufficient to meet the requirements of each use. Loading areas shall not be placed within any front yard and shall be located and properly screened so as to be not visible from any existing or proposed street.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 05-547, § 2, 8-23-2005; Ord. No. 09-430, § 20, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010; Ord. No. 17-883, § 5, 12-21-2017)

50.7. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

50.8. Height requirements.

Minimum height: Unlimited, except where the property abuts a residential district; in such cases, no portion of any building shall project through imaginary height planes leaning inward from any yard other than a front yard, as defined in section 51.3.2, at a slope of .6 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary, except as provided for in section 73.9.1.
(Ord. No. 17-883, § 6, 12-21-2017)

50.9. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

50.9.1. All side and rear yards shall have not less than a ten-foot wide strip of land adjacent to the property lines planted and maintained, except that where a rear or side yard abuts a residential district, then a 30-foot wide strip of land shall be provided. Within the 30-foot strip there shall be a 15-foot wide planting screen as provided for in section 3.1—Buffer of Screen Planting. (84-70, 92-4, 17-)
(Ord. No. 17-883, § 7, 12-21-2017)

50.10. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71, off-street parking and vehicular use area landscaping requirements.
(Ord. No. 99-1020, § 2, 1-13-2000)

50.11. Development procedure for tracts or parcels.

50.11.1. Any landowner of property lying in a research park district desiring to dedicate any

street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

50.11.2. Anyone desiring to secure a building permit for the use of land lying in a research park district must submit to the director of planning a generalized plot plan of the tract to be developed for approval. Such generalized plot plan shall have shown thereon the following information:

(1) Location map showing the boundaries of the tract to be developed.

(2) The general location of main buildings proposed to be constructed.

(3) The general location of parking areas, loading docks, and public and/or private access ways.

(4) Site grading and storm drainage plan.

(5) Proposed utilities services.

(6) Required screening.

(7) Required and adequate easements.

(8) Landscaping provisions.

The director of planning shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations. If the proposed plot plan is not approved, the director of planning shall state in writing on the proposed plot plan the cause for such disapproval. (84-70)
(Ord. No. 17-883, § 8, 12-21-2017)

ARTICLE 51. RESEARCH PARK WEST DISTRICT REGULATIONS

Purpose. The purpose and intent of the research park west district regulations are to provide a controlled and protected environment for the orderly growth and development of high technology industries within a park-like setting.

Within the research park west district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

51.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

A single-family dwelling, only in connection with bona fide agricultural operations, as defined in [this] section 51.1.

Agricultural operations on tracts of ten acres or greater, provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Commercial heliports and/or helipads.

Computer programming and other software services.

Educational, scientific and research organizations.

Engineering, architectural, and design services.

Federal, state, county, city or public utility owned or operated buildings and uses.

Limited, temporary sleeping quarters for scientists, laboratory technicians, custodians and caretakers that are demonstrated to be necessary to carry out a permitted use in this district.

Mobile food vending sites.

Mobile food vending units.

Office buildings for general office purposes, but only in connection with on-site research, development testing and related manufacturing or in connection with such uses offsite (example: the general administrative offices of a research and development firm are permitted though no onsite research and development occurs.)

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Production facilities and operations with a high degree of scientific input and activity where at least 30 percent of the building area is devoted to nonmanufacturing activities to include offices, laboratories, technical support, etc. The remaining 70 percent may be used for manufacturing, assembly and related uses.

Research, experimental and testing laboratories.

Retail sales, consumer service establishments and other accessory uses (not including wholesale sales) are allowed in connection with any permitted use. Such uses will be primarily for the convenience of employees, students, or faculty of establishments permitted as principal uses; provided, however, that commercial uses shall not occupy more than five percent of the total floor area of all buildings on any lot or group of contiguous lots in common ownership or control.

Structures accessory to uses permitted herein including, but not limited to, warehouses, storage buildings, and pump houses provided such accessory uses shall not exceed 30 percent of the total building area of the primary use.

Telecommunications businesses, excluding radio and television studios.

(Ord. No. 96-1008, § 2, 1-23-1997; Ord. No. 05-547, § 3, 8-23-2005; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 15-479, § 1, 8-27-2015; Ord. No. 12-581, § 1, 8-23-2012)

51.2. Performance standards.

The performance standards listed in section 50.2, research park district hereof, shall be required of all uses located in the research park west district.

51.3. Required yards.

51.3.1. Yards facing an existing or proposed street other than a controlled access highway shall be considered front yards. Such yards shall have a minimum depth of 100 feet.

51.3.2. All other yards shall have a minimum depth of 50 feet, provided that no building shall project through an imaginary height plane as described in section 51.8.1.

51.3.3. All required yards shall be kept clear of driveways and vehicular access ways, except as necessary to cross a required yard, and shall be kept clear of parking areas, loading areas, accessory uses and buildings, provided however, a gate or security station may be located in a required yard.

(Ord. No. 09-430, § 21, 7-9-2009; Ord. No. 17-885, § 1, 12-21-2017; Ord. No. 18-536, § 1, 8-23-2018)

51.4. Density regulations.

51.4.1. Buildings shall not cover an area greater than 40 percent of the total area of the tract upon which the buildings are located.

51.4.2. Buildings and all paved areas shall not cover an area greater than 60 percent of the total area of the tract.

51.4.3. Minimum lot area shall be not less than four acres for each tract.

51.4.4. Minimum lot width of each tract shall be not less than 300 feet measured at the minimum building line.

(Ord. No. 17-885, § 2, 12-21-2017; Ord. No. 18-232, §§ 2, 3, 5-24-2018)

51.5. Street access and frontage.

51.5.1. Each lot shall have a minimum frontage of 100 feet on a public road.

51.5.2. Access to building sites shall be via collector or arterial streets, wherever possible. No access roads serving plants shall be permitted which may place heavy traffic on residential streets that are not classified as major collector or arterial streets.

51.6. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

51.6.1. Driveways and vehicular access ways, except as necessary to cross a required yard, are not permitted in any required yard. Driveways and vehicular access ways shall be paved and properly drained.

51.6.2. Parking areas shall not be placed in any required yard and shall be paved and properly drained. No parking shall be permitted any place other than paved parking areas.

51.6.3. Loading areas shall not be placed within any front yard or any required side or rear yard and shall be located and properly screened so as not to be visible from any existing or proposed street.

51.6.4. Parking and loading areas shall be landscaped in accordance with section 51.9, landscaping requirements.

51.6.5. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6, PVA lighting requirements.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 99-1020, § 9, 1-13-2000; Ord. No. 05-547, § 4, 8-23-2005; Ord. No. 09-430, § 22, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

51.7. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

51.8. Height requirements.

51.8.1. Unlimited, except when abutting residential districts; when abutting residential districts, the following regulations shall be applicable: no portion of any building shall project through imaginary height planes leaning inward from any yard other than a front yard, as defined in section 51.3.2, at a slope of .6 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary, except as provided for in section 73.9.1.

51.8.2. Reserved.
(Ord. No. 05-547, § 5, 8-23-2005; Ord. No. 18-536, §§ 2, 3, 8-23-2018)

51.9. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

51.9.1. All yards required under this ordinance shall be landscaped and maintained. A minimum of one tree per 20 linear feet of distance for each boundary line shall be planted in the required yards.

51.9.2. All off-street parking areas shall be screened, as well as practicable, from view from streets by the use of earth berms or landscaping materials.

51.9.3. All off-street parking areas, to include drives within the parking areas, greater than either 20 automobile spaces or 6,000 square feet shall have at least five percent of the interior of the parking area landscaped in planting islands or peninsulas. Width of islands or peninsulas shall be a minimum width of at least five feet between backs of curbs and at least one tree per 20 parking spaces shall be planted within the planting islands or peninsulas in addition to other landscaping materials and plants.

51.10. Development procedure for tracts or parcels.

51.10.1. Any landowner of property lying in a research park west district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

51.10.2. Anyone desiring to secure a building permit for the use of land lying in a research park district must submit to the director of planning a generalized plot plan of the tract to be developed for approval. Such generalized plot plan shall have shown thereon the following information:

(1) Location map showing the boundaries of the tract to be developed.

(2) The general location of main buildings proposed to be constructed.

(3) The general location of parking areas, loading docks, and public and/or private access ways.

(4) Site grading and storm drainage plan.

(5) Proposed utilities services.

(6) Required screening.

(7) Required and adequate easements.

(8) Landscaping provisions.

The director of planning shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations. If the proposed plot plan is not approved, the director of planning shall state in writing on the proposed plot plan the cause for such disapproval. (84-70)

(Ord. No. 17-885, § 3, 12-21-2017)

ARTICLE 52. RESEARCH PARK APPLICATIONS DISTRICT REGULATIONS

Purpose. The purpose and intent of the research park applications district regulations are to provide a controlled environment designed specifically for those manufacturing and assembly plants and processing, warehousing, wholesale, and distribution operations that support and complement the existing research park district.

Within the research park applications district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

52.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

A single-family dwelling only in connection with bona fide agricultural operations, as defined in [this] section 52.1 hereof.

Accessory structures and uses to those permitted herein.

Agricultural operations on tracts of ten acres or greater, provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Commercial heliports and/or helipads.

Communication services, not elsewhere classified.

Computer and data processing services.

Educational, scientific, and research organizations.

Engineering, architectural, and design services.

Exterior storage in conjunction with the abovementioned uses, completely screened from adjacent property lines and streets.

Federal, state, county, city or public utility owned or operated buildings and uses.

Limited, temporary sleeping quarters for scientists, laboratory technicians, custodians and caretakers that are demonstrated to be necessary to carry out a permitted use in this district.

Manufacturing, processing, fabrication, or assembly of the following:

(1) Printing and publishing.

(2) Electrical and electronic machinery, equipment and supplies.

(3) Professional, scientific, and controlling instruments.

(4) Plastics, glass and rubber products.

(5) Machinery other than electrical.

(6) Transportation equipment.

(7) Metal and metal products.

(8) Chemicals and chemical products.

(9) Ordnance and accessories, except ammunition.

Medical and dental laboratories.

Mobile food vending sites.

Mobile food vending units.

Office buildings for general office purposes.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Radio and television studios but not including broadcast towers.

Research, experimental and testing laboratories.

Telecommunications.

Warehousing, interior storage, and distribution in conjunction with manufacturing, assembly and office use.

(Ord. No. 96-1008, § 2, 1-23-1997; Ord. No. 05-547, § 6, 8-23-2005; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 15-479, § 1, 8-27-2015; Ord. No. 12-581, § 2, 8-23-2012)

52.2. Performance standards.

The performance standards listed in section 50.2, research park district, shall be required for all uses located in the research park applications district.

52.3. Required yards.

52.3.1. Yards facing an existing or proposed street other than a controlled access highway shall be considered front yards. Such yards shall have a minimum depth of 100 feet, provided that no building shall project through an imaginary height plane as described in section 52.8.1.

52.3.2. All other yards shall have a minimum depth of 50 feet, provided that no building shall project through an imaginary height plane as described in section 52.8.2.

52.3.3. All required yards shall be kept clear of driveways, vehicular access ways and parking areas, except as provided for in sections 52.6.1 and 52.6.2, and shall be kept clear of loading areas, exterior storage areas, accessory uses and buildings, provided however, a gate or security station may be located in a required yard.

(Ord. No. 97-676, § 1, 10-23-1997; Ord. No. 09-430, § 23, 7-9-2009)

52.4. Density regulations.

52.4.1. Buildings shall not cover an area greater than 30 percent of the total area of the tract upon which the buildings are located.

52.4.2. Buildings and all paved areas shall not cover an area greater than 70 percent of the total area of the tract.

52.4.3. Minimum lot area shall not be less than four acres for each tract.

52.4.4. Minimum lot width of each tract shall not be less than 200 feet measured at the minimum building line.

52.5. Street access and frontage.

52.5.1. Each lot shall have a minimum frontage of 100 feet on a public road.

52.5.2. Access to building sites shall be via collector or arterial streets, wherever possible. No access roads serving plants shall be permitted which may place heavy traffic on residential streets that are not classified as major collector or arterial streets.

52.6. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

52.6.1. Driveways and vehicular access ways, except as necessary to cross a required yard, are not permitted in any required rear or side yard, nor within 100 feet of the property line in any required front yard. Driveways and vehicular access ways shall be paved and properly drained.

52.6.2. Parking areas shall not be placed in any required side or rear yard, or within 100 feet of the property line in any required front yard. All parking areas shall be paved and properly drained. No parking shall be permitted any place other than paved parking areas.

52.6.3. Loading areas shall not be placed within any front yard or any required side or rear yard and shall be located and properly screened so as not to be visible from any existing or proposed street.

52.6.4. Parking and loading areas shall be landscaped in accordance with section 52.9, landscaping requirements.

52.6.5. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6, PVA lighting requirements.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof. (Ord. No. 99-1020, § 10, 1-13-2000; Ord. No. 05-547, § 7, 8-23-2005; Ord. No. 09-430, § 24, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

52.7. Signs permitted.

Signs shall be permitted in accordance with section 72.4.2 and shall be regulated in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

52.8. Height requirements.

52.8.1. No portion of any building shall project through imaginary height planes leaning inward from a front yard, as defined in section 52.3.1, at a slope of 0.3 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary.

52.8.2. No portion of any building shall project through imaginary height planes leaning inward from any yard other than a front yard, as defined in section 52.3.2, at a slope of 0.6 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary.
(Ord. No. 97-676, § 1, 10-23-1997)

52.9. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

52.9.1. All yards required under this ordinance shall be landscaped and maintained. A minimum of one tree per 20 linear feet of distance for each boundary line shall be planted in the required yards.

52.9.2. All off-street parking areas shall be screened, as well as practicable, from view from streets by the use of earth berms or landscaping materials.

52.9.3. All off-street parking areas, to include drives within the parking areas, greater than either 20 automobile spaces or 6,000 square feet, shall have at least five percent of the interior of the parking area landscaped in planting islands or peninsulas. Width of islands or peninsulas shall be a minimum width of at least five feet between backs of curbs and at least one tree per 20 parking spaces shall be planted within the planting islands or peninsulas in addition to other landscaping materials and plants.

52.10. Development procedure for tracts or parcels.

52.10.1. Any landowner of property lying in a research park applications district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

52.10.2. Anyone desiring to secure a building permit for the use of land lying in a research park applications district must submit to the manager of planning the following information, as appropriate for approval of plans:

(1) A site plan for traffic engineering analysis, showing location and design of buildings, driveways, driveway intersections with streets, parking areas, loading areas, maneuvering areas and sidewalks;

(2) The percent of coverage of the total site in buildings, parking areas, accessory structures and drives;

(3) A grading plan and a planting plan, including screen walls and fences, for analysis of adequacy of visual screening and landscape architectural design;

(4) A site plan showing utilities and utility easements, including any waste disposal facilities; and

(5) Plans for all signs to be erected, including location, design, color and lighting of each sign.

The manager of planning shall review and approve by signature the proposed plot plan upon finding

that the same complies with these regulations. If the proposed plot plan is not approved, the manager of planning shall state in writing on the proposed plot plan the cause for such disapproval.

ARTICLE 53. RESEARCH PARK COMMERCIAL DISTRICT REGULATIONS

Within a research park commercial district as shown on the official zoning maps of the City of Huntsville, Alabama, the following regulations shall apply:
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Ambulatory health care facilities, including dental care.

Accessory structures only when essential for the operation of the permitted use.

Apparel stores.

Bakeries, where the products made are sold exclusively at retail on the premises.

Banks and credit unions.

Barber shops, beauty parlors, reducing salons.

Book stores and newsstands.

Bowling alleys.

Cafes, delicatessens, coffee shops and restaurants without alcohol.

Confectionery stores.

Conference/convention centers.

Drug stores and apothecaries.

Dry cleaning establishments utilizing only non-flammable dry cleaning fluids.

Emergency health care clinics.

Florist shops.

Gift shops.

Grocery stores, provided no gasoline is offered for sale.

Hardware stores and variety stores, provided that no such business shall occupy more than 30,000 square feet of gross floor area.

Health clubs or gyms.

Hobby shops.

Home furnishings stores.

Hotels and motels.

Jewelry stores.

Medical or dental centers.

Municipal, county, state or federal uses.

Music, record, and video sales and rental stores.

Nurseries, kindergartens or day care centers for children.

Office buildings.

Office supply and computer supply stores.

Other uses that are similar to those enumerated and that would support and complement uses permitted within the adjoining research park district, but not including the display, storage, or sales of merchandise in any parking and vehicular use area.

Performing arts center.

Permitted Uses as Special Exceptions as defined and regulated by Subsection 92.5.3 hereof.

Photo finishing shops and photography studios.

Print shops and copying services.

Radio station studios and offices including required transmission equipment, but not including broadcast towers.

Residential dwelling units on the upper floors of hotels, mixed use, commercial or office buildings, provided such units contain a minimum of 600 square feet and are in compliance with all applicable regulations for habitable space.

Restaurants, delicatessens, and cafes.

Shoe stores, shoe repair shops, and tailor shops.

Spa or wellness centers.

Sporting goods stores.

Teleconferencing centers.

Teleport.

Travel agencies.

Warehouse retail, provided that no such business shall occupy more than 50,000 square feet of gross floor area.

(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005; Ord. No. 06-826, § 2, 10-26-2006 Ord. No. 07-401, § 5, 6-14-2007; Ord. No. 11-11, § 13, 2-24-2011; Ord. No. 19-936, §§ 1, 2, 11-21-2019)

53.2. Density regulations.

53.2.1. Minimum lot area shall be not less than one-half acre.

53.2.2. Minimum lot width of each tract shall be not less than 100 feet measured at the minimum building line.

(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.3. Street access and frontage.

53.3.1. Each lot shall have a minimum frontage of 50 feet on a public road.

53.3.2. Access into a research park commercial district shall be from a collector or arterial street and shall be in accordance with the adopted master plan, if any, for the adjoining research park district. No access roads serving the commercial district shall be permitted which may place heavy traffic on residential streets that are not classified as collector or arterial streets.

53.3.3. All establishments shall be accessed from streets or drives internal to the research park commercial district; curb cuts across the boundaries of the commercial district to provide access for individual establishments shall not be permitted.

(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.4. Required yards.

The following minimum yards shall be required:

53.4.1. Yards abutting an existing or proposed street shall be considered front yards. No principal structure, accessory structure, exterior storage or merchandise shall be located less than 50 feet from any existing or proposed collector or arterial street right-of-way, except as provided for in section 53.5.2.

53.4.2. All yards abutting collector or arterial streets shall be kept clear of parking, loading areas, vehicular access ways, except as necessary to cross a required yard and except as provided for in section 53.5.2, parking and loading areas. All yards described herein shall be landscaped in accordance with section 53.8.1, landscaping requirements.

53.4.3. Side and rear yards that abut the boundaries of the research park commercial district and have no street frontage shall have a minimum depth of 50 feet in which no principal structure, accessory structure, or exterior storage or merchandise shall be located.

53.4.4. All required side and rear yards that abut the boundaries of the research park commercial district shall be kept clear of parking, loading areas, and vehicular access ways, except as necessary to cross a required yard, and except as provided for in section 53.5.2, parking and loading areas. All yards described herein shall be landscaped in accordance with section 53.8.1, landscaping requirements.

53.4.5. Yards having frontage on local streets shall have a minimum depth of 20 feet of which the first 15 feet adjacent to the street shall be landscaped in accordance with section 53.8.3, landscaping requirements.

53.4.6. Internal side and rear yards that abut other side or rear yards within the commercial district shall have a minimum depth of ten feet and shall be landscaped.

(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.5. Parking and loading areas.

53.5.1. The minimum number of off-street parking spaces shall be provided and maintained as follows:

(1) *Day care and nurseries:* One space for each staff member plus one space for each ten children permitted plus a passenger loading space situated so that children will not have to cross a parking area or lanes of traffic.

(2) *Hotels and motels:* One space for each room or unit offered for rent.

(3) *Lounges:* One space per 100 square feet of gross floor area plus one space per employee on the largest shift.

(4) *Medical clinics and medical offices:* One space for each 200 square feet of gross floor area.

(5) *Office buildings:* One space for each 250 square feet of gross floor area.

(6) *Restaurants:* One space per 100 square feet of gross floor area plus one space per employee on the largest shift.

(7) *Retail sales and service establishments:* One space for each 300 square feet of gross floor area.

(8) Required off street parking may be located within the research park commercial district boundary without respect to the use said parking is to serve, so long as the total provided off street parking is not less than the cumulative total required by all permitted uses within the district boundary.

53.5.2. Off street parking, including parking structures, loading areas and vehicular access ways, except as necessary to cross a required yard, shall not be permitted within 20 feet of any boundary of the research park commercial district.

53.5.3. Parking shall be paved and properly drained and have curbs and gutters. No parking shall be permitted any place other than paved parking areas.

53.5.4 Loading areas shall be sufficient to meet the requirements of each use. Loading areas shall not be placed within any front yard and shall be screened from view from public rights-of-way by the use of a six-foot high wall or by a combination of live plant materials that is opaque from the ground to a height of at least six feet during all seasons of the year.

53.5.5. Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005; Ord. No. 10-507, § 2, 8-26-2010; Ord. No. 15-481, § 1, 8-27-2015)

53.6. Permitted signs.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

53.7. Height limitations.

53.7.1. Maximum number of stories for motels, hotels and office buildings shall be 12 stories.

53.7.2. Maximum number of stories for structures other than hotels, motels, and office buildings shall be five.
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.8. Landscaping requirements.

53.8.1. Yards having frontage on arterial or collector streets shall be landscaped with a minimum of one type 1 shade tree per 20 linear feet of distance for each boundary line of such yards. Said trees shall be planted in a manner so as to distribute the required trees throughout the required yards. Each yard shall be planted with turf grass or other permanent evergreen ground cover.

53.8.2. Yards abutting a boundary of the district that does not have frontage on a right-of-way shall be landscaped with a minimum of one type 1 shade tree and one type 4 coniferous evergreen tree per 30 linear feet of distance for each boundary line of such yards, planted in a manner so as to distribute the required trees throughout

the required yards. Grass or other permanent evergreen ground cover shall be maintained on the remainder of the required yard

53.8.3. Yards having frontage on a local street shall be planted with one type 1 shade tree per 20 linear feet of required yard, planted in a manner so as to distribute the required trees throughout the required yards. Grass or other permanent evergreen ground cover shall be maintained on the remainder of the required yard.

53.8.4. Parking areas shall be landscaped as follows:

(1) All off-street parking areas, shall be screened, as well as practicable, from view from public rights-of-way by the use of earth berms planted with a living evergreen ground cover or by evergreen shrubbery or by a combination of both to create a screen at least four feet high along the perimeter of the parking and vehicular use areas.

(2) All off-street parking areas, excluding any below grade level area within a parking structures, to include drives within the parking areas, greater than either 20 automobile spaces or 6,000 square feet shall have at least five percent of the interior of the parking area landscaped in planting islands or peninsulas. No island shall contribute more than 500 square feet of area to the required total. Width of islands or peninsulas shall be a minimum width of at least eight feet between backs of curbs. Landscaped islands and peninsulas shall be located so that no parking space shall be located farther than ten spaces from a landscaped island or peninsula each of which shall contain at least one type 1 shade tree. Grass or other permanent evergreen ground cover shall cover the remainder of each such landscaped island or peninsula.

53.8.5. All landscaping must be installed in accordance with the provisions of section 71.5, plant materials and installation requirements and section 73.19, installation of landscaping.

53.8.6. All landscape requirements are cumulative and may be distributed on the site in coordination with an overall landscape master plan as submitted and approved by the City of Huntsville Planning Department.
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.9. Lighting.

Lighting of off-street parking and vehicular use areas shall be in accordance with section 71.6, PVA lighting requirements.
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 99-1020, § 11, 1-13-2000; Ord. No. 05-013, § 2, 2-10-2005)

53.10. District requirements.

For land to be designated as a research park commercial district it must satisfy the following conditions:

53.10.1. The land must be located within or contiguous to a research park, research park west, or research park applications district.

53.10.2. The research park commercial district must be directly accessible from collector or arterial streets when developed.
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.11. Development procedure.

53.11.1. Any landowner of property lying in a research park commercial district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

53.11.2. Anyone desiring to secure a building permit, except for interior tenant improvements, for the use of land lying in a research park commercial district must submit to the director of the city planning department the following information, as appropriate for approval of plans:

(1) A site plan showing location and design of buildings, driveways, driveway intersections with streets, parking areas, loading areas, maneuvering areas, sidewalks, utilities and utility easements, and waste disposal facilities, and

(2) The percent of coverage of the total site in buildings, parking areas, accessory structures and drives.

(3) A grading and drainage plan showing all existing and proposed contours, spot elevations, drainage facilities, all required drainage calculations, and all required erosion and sedimentation control measures.

(4) A landscape plan showing all required landscaping, all calculations for required landscape areas and plants, all screen walls and fences, plant schedules of types and sizes, and appropriate installation details.

(5) Building plans including floor plans and elevations showing finish materials, colors and accessories.

(6) Criteria for all signs to be erected, including location, dimensions, design, colors, material and lighting for each.

The director of the city planning department shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations within 30 business days from a complete submittal. If the proposed plot plan is not approved, the director of the city planning department shall state in writing on the proposed plot plan the cause for such disapproval within 30 business days from a complete submittal.
(Ord. No. 98-52, § 1, 2-26-1998; Ord. No. 05-013, § 2, 2-10-2005)

53.12. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.5, and shall be regulated by article 75 - alcoholic beverage establishment regulations.
(Ord. No. 11-11, § 13, 2-24-2011)

ARTICLE 54. RESEARCH PARK APPLICATIONS 2 DISTRICT REGULATIONS

Purpose. The purpose and intent of the Research Park Applications 2 District Regulations are to provide a controlled environment designed specifically for those manufacturing and assembly plants and processing, warehousing, wholesale, and distribution operations that support and complement the existing Research Park Districts.

Within the Research Park Applications 2 District as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

54.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Accessory structures and uses to those permitted herein.

Agricultural operations on tracts of ten acres or greater—provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Commercial heliports and/or helipads.

Communication services, not elsewhere classified.

Computer and data processing services.

Educational, scientific, and research organizations.

Engineering, architectural, and design services.

Exterior storage in conjunction with the above mentioned uses, completely screened from adjacent property lines and streets.

Federal, state, county, city or public utility owned or operated buildings and uses.

Manufacturing, processing, fabrication, or assembly of the following:

(1) Printing and publishing.

(2) Electrical and electronic machinery, equipment and supplies.

(3) Professional, scientific, and controlling instruments.

(4) Plastics, glass and rubber products.

(5) Machinery other than electrical.

(6) Transportation equipment.

(7) Metal and metal products.

(8) Chemicals and chemical products.

(9) Ordnance and accessories, except ammunition.

(10) Automotive and implements.

(11) Food and kindred products intended for human consumption.

(12) Research and development operations.

(13) Medical and dental instruments, apparatus and prosthetics.

Medical and dental laboratories.

Mobile food vending sites.

Mobile food vending units.

Office buildings for general office purposes.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.2 hereof.

Radio and television studios but not including broadcast towers.

Research, experimental and testing laboratories.

Telecommunications.

Warehousing, interior storage, and distribution in conjunction with the above mentioned manufacturing, assembly and office uses.

(Ord. No. 09-813, § 1, 10-22-2009; Ord. No. 15-479, § 1, 8-27-2015)

54.2. Performance standards.

All operations shall comply with applicable federal, state and local regulations concerning air pollution, odor, vibration, noise, fire and explosive hazards, glare, radiation, radioactive materials, electromagnetic interference, water pollution, and waste disposal, including the performance standards set forth in section 50.2—Research Park District hereof.

(Ord. No. 09-813, § 1, 10-22-2009)

54.3. Use standards.

54.3.1. All permitted uses, with the exception of agricultural operations, truck and heavy equipment parking, container storage, and heliports, shall be conducted within completely enclosed buildings.

54.3.2. Exterior storage shall be permitted only within rear yards, and the stored products or materials shall be in an enclosed building or enclosed by a masonry wall, fence or evergreen hedge, of sufficient opacity and size to completely screen the stored materials from view from adjacent properties and streets.

54.3.3. Parking or storage of company vehicles, trucks, containers, and heavy equipment used in connection with a permitted business shall be in the rear yard only and shall be screened by vegetation or an earthen berm not less than four feet high.

54.3.4. Any lot in a Research Park Applications 2 District that is used for any purpose other than agricultural, whether or not it contains a structure, shall meet all setback, landscaping and parking regulations of this article.

(Ord. No. 09-813, § 1, 10-22-2009; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

54.4. Required yards.

54.4.1. *Front yards.* Yards facing an existing or proposed street other than a controlled access highway shall have a minimum depth of 40 feet. On a corner lot, the street frontage that the building faces may be designated as the front yard, in which case, the yard opposite the designated front yard shall be considered the rear yard.

54.4.2. Interior side and rear yards are those yards that abut land zoned Research Park Applications 2; interior side yards shall have minimum depth of 20 feet; interior rear yards shall have a minimum depth of 25 feet.

54.4.3. Exterior side and rear yards are those yards that abut land in a zoning district other than Research Park Applications 2; they shall have a minimum depth of 40 feet.

54.4.4. All required yards shall be kept clear of driveways and vehicular access ways, except as necessary to cross a required yard, and shall be kept clear of parking areas, loading areas, exterior storage areas, trash and waste storage containers, and accessory uses and buildings, provided however, a gate or security station may be located in a required yard.

54.4.5. Security fences shall not be placed in any required front yard.

54.4.6. There shall be provided an easement of not less than 20 feet along each side and rear lot line for utilities and drainage.

(Ord. No. 09-813, § 1, 10-22-2009)

54.5. Density regulations.

54.5.1. Minimum lot area shall not be less than two acres.

54.5.2. Minimum lot width shall not be less than 100 feet as measured at the minimum building line.

54.5.3. No portion of any building shall project through imaginary height planes leaning inward from a front yard, as defined in section 54.4.1, at a slope of .6 foot of height for each foot of horizontal distance measured perpendicularly to the property boundary; provided however, that the maximum height shall not exceed 120 feet.

54.5.4. Buildings shall not cover an area greater than 60 percent of the total area of the lot.

(Ord. No. 09-813, § 1, 10-22-2009)

54.6. Street access and frontage.

54.6.1. Each lot shall have a minimum frontage of 75 feet on a public road.

54.6.2. Access to building sites shall be via collector or arterial streets wherever possible. No access roads serving plants shall be permitted which may place heavy traffic on residential streets that are not classified as major collector or arterial streets.

(Ord. No. 09-813, § 1, 10-22-2009)

54.7. Off-street parking and loading requirements.

54.7.1. Driveways and vehicular access ways, except as necessary to cross a required yard, are not permitted in any required side or rear yard, nor within 40 feet of the property line in any required front yard. Driveways and vehicular access ways shall be paved and properly drained.

54.7.2. Parking areas shall not be placed in any required side or rear yard, nor within 40 feet of the property line in any required front yard. All parking areas shall be paved and properly drained. No parking shall be permitted any place other than paved parking areas.

54.7.3. Loading areas shall not be placed within any front yard or any required side or rear yard and shall be located and properly screened so as not to be visible from any existing or proposed street.

54.7.4. Parking and loading areas shall be landscaped in accordance with section 54.9—Loading Requirements.

54.7.5. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6—PVA Lighting Requirements.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.

(Ord. No. 09-813, § 1, 10-22-2009; Ord. No. 10-507, § 2, 8-26-2010)

54.8. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 09-813, § 1, 10-22-2009; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

54.9. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following

manner. All landscaping must be installed in accordance with the provisions of section 73.19—Installation of Landscaping.

54.9.1. All yards required under the ordinance from which this article was derived shall be planted with grass or evergreen ground cover and shall be maintained so as to present an attractive and healthy appearance. Yard tree requirements shall be as follows:

(1) *Front yards.* A minimum of one tree per 30 linear feet of distance for each lot line fronting a public street shall be planted in the required front yard(s).

(2) *Side and rear yards* shall be planted with a minimum of one tree per 40 linear feet for each side and rear lot line unless such yard abuts a residential district or office district, in which case such yard shall be planted with a minimum of three large deciduous shade trees, five large evergreen trees and seven understory trees for each 100 linear feet of yard.

Existing vegetation shall substitute for the required landscaping if the type, size and density of the existing vegetation creates a year round visual screen separating the Research Park Applications 2 District from adjacent districts.

54.9.2. Required yard trees, unless elsewhere specified, shall be a mix of deciduous shade trees and evergreens; loblolly pines shall not account for more than 25 percent of the required number of trees; other conifers shall be those varieties that retain their branches at ground level.

54.9.3. All off-street parking, loading and unloading areas, and outdoor trash and waste storage containers shall be screened, as well as practicable, from view from streets by the use of walls, earth berms and/or vegetation.

(Ord. No. 09-813, § 1, 10-22-2009)

54.10. Development procedure for tracts or parcels.

54.10.1. Any landowner of property lying in a Research Park Applications 2 District desiring to dedicate any street, road or right-of-way to the public must submit to the planning commission a plan of the proposed street, road or right-of-way for approval.

54.10.2. Anyone desiring to secure a building permit for the use of land lying in a Research Park Applications 2 District must submit to the director of the city planning department the following information, as appropriate for approval of plans:

(1) A site plan for traffic engineering analysis, showing location and design of buildings, driveways, driveway intersections with streets, parking areas, loading areas, maneuvering areas and sidewalks;

(2) The percent of coverage of the total site in buildings, parking areas, accessory structures and drives;

(3) A grading plan and a planting plan, including screen walls and fences, for analysis of adequacy of visual screening and landscape architectural design;

(4) A site plan showing utilities and utility easements, including any waste disposal facilities; and

(5) Plans for all signs to be erected, including location, design, color and lighting of each sign.

The director of the city planning department shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations. If the proposed plot plan is not approved, the director of the city planning department shall state in writing on the proposed plot plan the cause for such disapproval.

(Ord. No. 09-813, § 1, 10-22-2009)

ARTICLE 55. RESEARCH PARK 2 DISTRICT REGULATIONS

Purpose. The purpose and intent of the Research Park 2 District Regulations are to

provide a protective district with a balance of mixed-use and live-work developments for the orderly growth and development of research-based industries and uses which are, by virtue of control, mutually harmonious with other industries and uses permitted, as well as with residential, commercial, and other uses permitted in nearby districts.

These Research Park 2 District regulations are intended to promote the physical and mental health, safety, morals, welfare, comfort, and convenience of the inhabitants of this district and its environs.

Within the Research Park 2 District as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

55.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained, except for the uses listed below. The following uses must be contained within a mixed-use development, having no less than two stories with two or more uses.

Agricultural uses, provided no sales are made on the premises, but not including commercial animal or poultry farms or kennels.

Banks and credit unions.

Barber shops, beauty parlors, reducing salons and fitness/exercise centers.

Educational, scientific and research organizations.

Federal, state, county, city or public utility owned or operated buildings and uses.

Limited, temporary sleeping quarters for scientists, laboratory technicians, custodians and caretakers that are demonstrated to be necessary to carry out a permitted use in this district.

Mobile food vending sites.

Mobile food vending units.

Office buildings for general office purposes.

Pickup stations for laundry or dry cleaning; no cleaning permitted on-site.

Research, experimental and testing laboratories.

Research and development and limited manufacturing and processing where at least 30 percent of the building area is devoted to non-manufacturing activities to include offices, laboratories, technical support, etc. The remaining 70 percent may be used for manufacturing, assembly, storage and related uses.

Residential dwelling units—provided such residential units occupy upper-story space within new or rehabilitated existing buildings having non-residential uses on the street level and provided that such residential units are in compliance with all applicable regulations for habitable space.

Retail sales, cafes, delicatessens, coffee shops and restaurants without alcoholic beverages—provided that such uses shall be limited to the ground floor of mixed-use developments only. Prohibited uses include tattoo and body piercing parlors and tobacco and vapor shops.

Structures accessory to uses permitted by section 50.1 hereof including, but not limited to, warehouses, storage buildings, and pump houses provided such accessory uses shall not exceed 20 percent of the total building area of the primary use.

Accessory uses to uses permitted in the Research Park 2 District such as recreational facilities and dining facilities in connection with the operation of an establishment and primarily for employees, students, or faculty.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.
(Ord. No. 18-230, § 1, 5-24-2018)

55.2. Performance standards.

The performance standards listed below shall be required for all uses located in the Research Park 2 District.

55.2.1. *Air pollution.* Every use shall be so operated as to comply with the emission limita-

tions specified in chapter 12, article II, section 12-31, Code of Ordinances, City of Huntsville, Alabama, April 2003, as the same may be amended or revised, except that in the case of visible emission restrictions no visible emissions will be allowable.

55.2.2. *Odor*. No odors shall be emitted that are detectable without instruments at or beyond any property line, excluding food preparation establishments.

55.2.3. *Vibration*. Maximum permitted vibration from any cause shall not exceed the following, when measured at the lot line:

Frequency (Cycles per Second)	*Displacement (Inches)*
10 and below	.0008
10—20	.0005
20—30	.0003
30—40	.0002
40—50	.0001
50 and above	.0001

55.2.4. *Noise*. Every use shall be so operated as to comply with the noise limitations specified in chapter 12, article V, Noise, Code of Ordinances, City of Huntsville, Alabama, April 2003, as the same may be amended or revised.

55.2.5. *Fire and explosion hazard*. All activities and all storage of flammable and explosive materials shall be in accordance with the National Board of Fire Underwriters' publications and other local ordinances.

55.2.6. *Glare*. No direct or reflected glare shall be produced so as to be visible at or beyond any lot line.

55.2.7. *Radiation*. Research operations shall cause no dangerous radiation at any property line as specified by the regulations of the Alabama Department of Public Health, Bureau of Radiological Health.

55.2.8. *Radioactive materials*. The handling of radioactive materials, the discharge of such materials into air or water, and the disposal of radioactive wastes, shall be in conformance with the regulations of the Alabama Department of Public Health, Bureau of Radiological Health.

55.2.9. *Electromagnetic interference*. Industries shall emit only that amount of unshielded spurious electromagnetic radiation as is necessary for the conduct of their operations. Federal Communications Commission requirements shall govern maximum radiation which tends to interfere with meaningful signals.

55.2.10. *Water pollution*. No effluent shall be discharged in any stream. Discharge into the Huntsville sewerage system shall be as approved by the City of Huntsville Engineer of Public Works.

55.2.11. *Waste*. All industrial wastes shall be treated and disposed of in such a manner as to comply with all federal, local, and state standards.
(Ord. No. 18-230, § 1, 5-24-2018)

55.3. Density regulations.

The following yard, density, and height of building requirements shall be observed:

55.3.1. Minimum required depth of front yard: None, but shall conform to the building setback lines established by the approved subdivision plat.

55.3.2. No principal or accessory structure shall be located less than ten feet from any side lot line, except that when the side of the lot abuts a residential district, a minimum of 30 feet is required.

55.3.3. No principal or accessory structure shall be located less than 25 feet from any rear lot line, except that when the rear of the lot abuts a residential district, a minimum of 30 feet is required.

55.3.4. Exterior storage of materials shall not be placed in any required yard and shall be contained by fencing in such a manner as to be neat in appearance when viewed from any street.

55.3.5. Buildings shall not cover an area greater than 85 percent of the total area of the tract upon which the buildings are located.

55.3.6. Maximum height: Unlimited.
(Ord. No. 18-230, § 1, 5-24-2018)

55.4. Street access and frontage.

55.4.1. Each lot shall have a minimum frontage of 150 feet on a public road; provided however, the director of planning may approve a lesser frontage to a minimum of 100 feet for lots located on cul-de-sacs or on street curves, or having other extraordinary characteristics.

55.4.2. Access to building sites shall be via collector or arterial streets. No access roads serving plants shall be permitted which may place heavy traffic on residential streets which are not classified as major collector or arterial streets.
(Ord. No. 18-230, § 1, 5-24-2018)

55.5. Off-street parking and loading requirements.

For multi-tenant, mixed-use, and residential dwelling units, shared parking and loading requirements shall be provided as set forth in the shared parking factor matrix of article 27 hereof.

55.5.1. Parking areas shall be paved and properly drained. No parking shall be permitted any place other than paved parking areas.

55.5.2. Loading areas shall be located and properly screened so as to be not visible from any existing or proposed street.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 18-230, § 1, 5-24-2018)

55.6. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 18-230, § 1, 5-24-2018; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

55.7. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19—Installation of Landscaping.

55.7.1. All side and rear yards shall have not less than a ten-foot wide strip of land adjacent to the property lines planted and maintained, except that where a rear or side yard abuts a residential district, then a 30-foot wide strip of land shall be provided. Within the 30-foot strip there shall be a 15-foot wide planting screen as provided for in section 3.1—Buffer of Screen Planting.
(Ord. No. 18-230, § 1, 5-24-2018)

55.8. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with article 71—Off-Street Parking and Vehicular Use Area Landscaping Requirements.
(Ord. No. 18-230, § 1, 5-24-2018)

55.9. District requirements.

For land to be designated as a Research Park 2 District it must satisfy the following conditions:

55.9.1. The land must be located within or contiguous to the Research Park district only.

55.9.2. The Research Park 2 District must be directly accessible from collector or arterial streets when developed.
(Ord. No. 18-230, § 1, 5-24-2018)

55.10. Development procedure for tracts or parcels.

55.10.1. Any landowner of property lying in a Research Park 2 District desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission a plan of the proposed street, road, or right-of-way for approval.

55.10.2. Anyone desiring to secure a building permit for the use of land lying in a Research Park 2 District must submit to the director of planning a generalized plot plan of the tract to be developed for approval. Such generalized plot plan shall have shown thereon the following information:

(1) Location map showing the boundaries of the tract to be developed.

(2) The general location of main buildings proposed to be constructed.

(3) The general location of parking areas, loading docks, and public and/or private access ways.

(4) Site grading and storm drainage plan.

(5) Proposed utilities services.

(6) Required screening.

(7) Required and adequate easements.

(8) Landscaping provisions.

The director of planning shall review and approve by signature the proposed plot plan upon finding that the same complies with these regulations. If the proposed plot plan is not approved, the director of planning shall state in writing on the proposed plot plan the cause for such disapproval.
(Ord. No. 18-230, § 1, 5-24-2018)

55.11. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3—Permitted Establishments by Districts, subsection 75.3.1, and shall be regulated by article 75—Alcoholic Beverage Establishment Regulations.
(Ord. No. 18-230, § 1, 5-24-2018)

CHAPTER VI. SPECIAL DISTRICT REGULATIONS*

ARTICLE 60. MEDICAL DISTRICT REGULATIONS

Purpose. The purpose of this medical district is to provide a protective district for the harmonious development of medical facilities and related educational institutions. The medical district is intended to be protected from encroachment by land uses adverse to the location, operation, and expansion of medical use development.

These medical district regulations are intended to promote the health, safety, morals, welfare, comfort, and convenience of the inhabitants of this district and its environs.

*__Cross reference—__Businesses, ch. 8.

Within a medical district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

60.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, or enlarged except for one or more of the uses herein cited and subject to the conditions stated herein:

Accessory structures and uses to those permitted herein.

Ambulance services.

Apothecaries, drugstores.

Artificial limb and brace, therapeutic establishments.

Book shops.

Doctors' and nurses' quarters.

Farmers markets.

Farming and other agricultural uses.

Federal, state, county, or city owned or operated buildings and uses.

Florist shops.

General and private hospitals.

General office uses and office buildings.

Gift shops.

Medical educational institutions, including dormitories.

Medical or dental clinics.

Medical research, experimental and testing laboratories.

Medical, surgical and dental supply houses.

Nursing homes, rest homes, and convalescent homes.

Optical firms.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Retail sales and consumer service establishments accessory to any permitted use, provided

that such commercial use shall not occupy more than 15 percent of the total floor area of the building in which such use is located.
(Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 15-406, § 2, 7-23-2015)

60.2. Density controls.

The following yard and density requirements shall be observed:

60.2.1. Minimum lot area: 10,000 sq. ft.

60.2.2. Minimum required depth of front yard:

From major arterials (see section 73.15): Ten feet

From other streets: None

60.2.3. Minimum side yard: None, except that buildings not developed to the side lot line shall have a side yard of not less than ten feet on any side.

60.2.4. Minimum rear yard: None

60.2.5. Street access and frontage: Each lot shall have a minimum frontage of 50 feet on a public road; provided, however, the planning commission may approve a lesser frontage to a minimum of 20 feet for lots located on culs-de-sac or on street curves or having other extraordinary characteristics if the lot width at the building line measures at least 50 feet.
(Ord. No. 18-900, §§ 1, 2, 11-15-2018)

60.3. Required yards and landscaped areas.

60.3.1. The required front yard of all developed parcels shall be landscaped and maintained in a manner as to be neat in appearance when viewed from any street.

60.3.2. Exterior storage of materials shall be contained by fencing in such a manner as to be neat in appearance when viewed from any street. No exterior storage or display of materials, whether for sale or not, is permitted in the required front yard.

60.4. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

60.5. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided as set forth in article 70 hereof.

60.5.1. Parking areas are not permitted in the required front yard.

60.5.2. Driveways and vehicular access ways, except as necessary to cross a required front yard, are not permitted in a required front yard.

60.5.3. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6, PVA lighting requirements.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 99-1020, § 12, 1-13-2000; Ord. No. 09-430, § 25, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

60.6. Sidewalk requirement.

Six-foot wide sidewalks shall be required along the streets of parcels to be developed. Sidewalks shall be so designed as to tie to existing sidewalks within the area.

60.7. Underground wiring requirement.

All power, communication, and other wiring hereafter installed in a medical district shall be placed underground.

60.8. Medical district plan.

60.8.1. Prior to the issuance of any building permit, any property owner desiring to subdivide or develop land within a medical district, as shown on the official Zoning Maps of the City of Huntsville, Alabama, must submit to the manager of planning for approval a development plan for

each parcel or tract of land proposed to be developed. Such development plan shall have shown thereon the following information:

(1) The specific location of the tract to be developed or subdivided within said district and all land and development lying within 500 feet of the tract or parcel of land to be developed.

(2) Names and addresses of all landowners whose property adjoins said parcel or tract, as shown in the tax assessor's records of Madison County, Alabama.

(3) The location of all buildings proposed to be constructed within the tract.

(4) Existing and proposed accessways and roads, public and private.

(5) A generalized drainage plan showing existing and proposed drainage.

(6) Location of all existing and proposed public utilities as the same relates to the development of the property.

(7) Location of all off-street parking spaces and loading facilities.

(8) Location of proposed screen planting, walls, and garbage storage facilities.

(9) Location of all existing and proposed easements.

(10) Location of all sidewalks.

60.8.2. The manager of planning shall approve said development plan for a specified medical district improvement, upon finding that the same complies with these regulations. All subsequent development on said tract or parcel shall be approved without resubmission in all cases where the proposed improvements substantially conform to the approved development plan.

ARTICLE 61. DISPOSAL-STORAGE DISTRICT REGULATIONS*

Purpose. The purpose of this disposal-storage district is to provide a special type of use district for those industries who, by their nature and operation, could have an adverse effect on residential, commercial, or other industrial uses.

The disposal-storage district is established for the protection of these types of uses from the encroachment of residential and other commercial or industrial uses which would be adverse to the operation and expansion of these types of uses and at the same time to reduce to a minimum the influence of these types of uses on surrounding residential or commercial uses.

It is the intent of this district to be composed primarily of lands deep within the industrial areas of the city away from residential and commercial areas. These regulations are the minimum required for the mutual protection of the industrial users, and to that end, the district should not be adjacent to any residential or business districts, if such abutment can possibly be avoided.

Within a disposal-storage district as shown on the official Zoning Maps of the City of Huntsville, the following regulations shall apply:

61.1. Definitions.

Notwithstanding other definitions within this ordinance, the following definitions shall apply to these regulations for the disposal-storage district:

Automobile wrecking yard. Any place where two or more motor vehicles not in running condition, or parts thereof, are stored in the open and are not being restored to operation; or any land, building or structure used for wrecking or storing of such motor vehicles or farm machinery, or parts thereof, stored in the open and not being restored to operating condition.

Junk[yard] or salvage yard. Any land or building or other structure where junk, waste, discarded or salvaged materials are bought, sold, exchanged, stored, baled, packed, disassembled or handled, including automobile wrecking yards, house wrecking, and structural steel materials and equipment, but not including the purchase or storage of used furniture and household equipment, used cars in operable condition, or used or salvaged materials as part of manufacturing operations.

*__Cross reference—__Sewers, sewage disposal and other wastewater disposal, ch. 21.

61.2. Uses permitted.

No building, structure, land, or any combination of such shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained, except for one or more of the following uses:

Automobile wrecking yards

Asphalt manufacture

Central mixing plant for cement, mortar, or paving materials

Gasoline and L.P. gas bulk storage plants

Junk[yard] and/or salvage yards

Limestone drying and stockpiling

Quarrying

Federal, state, county, or city owned or operated uses

Wholesale operations

Warehousing and outdoor storage

Accessory structures and uses to permitted uses

Privately owned and operated landfills

Repair garages

Incinerators

Automobile storage yard

Scrap metal processing yard

Automobile graveyard

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof

(Ord. No. 09-1053, § 1, 12-17-2009)

61.3. Required yards.

61.3.1. No building or structure shall be located less than 50 feet from the front property line.

61.3.2. No building or structure shall be located less than 25 feet from any side or rear property line.

61.3.3. Outdoor storage is permitted in the required front, side, and rear yards.

61.4. Fencing and screening.

61.4.1. A seven-foot-high chainlink fence, or equal, is required completely around the tract on which an automobile storage yard, scrap metal processing yard, or automobile graveyard is located, except gates will be provided at points of ingress and egress.

61.4.2. Each use shall be screen planted completely around the perimeter of the tract on which it is located, except at points of ingress and egress. This screen shall be planted and maintained as provided in section 3.1, buffer of screen planting hereof.

61.5. Outdoor storage and waste disposal.

61.5.1. No materials or wastes shall be deposited upon a tract in such form or manner that they may likely be transferred off the tract by the elements.

61.5.2. All materials or wastes which might cause fumes or dust or which constitute a fire hazard or which may be edible by or otherwise attractive to rodents or insects shall be stored outdoors only in accordance with the fire and sanitation ordinances of the city.

61.6. Off-street parking and loading.

Each use shall provide adequate off-street parking and loading for its employees, visitors, and customers. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6, PVA lighting requirements.

On-street parking or loading shall not be permitted.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 99-1020, § 13, 1-13-2000; Ord. No. 10-507, § 2, 8-26-2010)

61.7. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

ARTICLE 62. FLOOD HAZARD DISTRICT REGULATIONS

Purpose. The flood hazard areas of the City of Huntsville, Alabama, are subject to periodic inundation which results in the loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood relief and protection, and impairment of the tax base, all of which adversely affect the public health, safety, and general welfare. These flood losses are caused by the occupancy in flood hazard areas of uses vulnerable to floods, which are inadequately elevated, floodproofed or otherwise unprotected from flood damages, and by the cumulative effect of obstructions in floodplains causing increases in flood heights and velocities. It is the purpose of this article to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

(1) Restrict or prohibit uses which are dangerous to health, safety and property due to water or erosion hazards or which increase flood heights, velocities or erosion;

(2) Require that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

(3) Control the alteration of natural floodplains, stream channels, and natural protective barriers which are involved in the accommodation of floodwaters;

(4) Control filling, grading, dredging and other development which may increase erosion or flood damage; and

(5) Prevent or regulate the construction of flood barriers which will unnaturally divert floodwaters or which may increase flood hazards to other lands.

(Ord. No. 98-189, § 1, 4-7-1998)

62.1. General provisions.

62.1.1. This article shall apply to all areas of the flood hazard district within the jurisdiction of Huntsville, Alabama. The flood hazard district is composed of the floodway district and the floodway fringe district.

62.1.2. A floodplain development permit shall be required in conformance with the provisions of this article and of the City of Huntsville Stormwater Management Manual prior to the commencement of any land disturbance activities or any development or building activities, including filling, dumping, grading, or excavation within the flood hazard district. (See section 62.8.)

62.1.3. No structure or land within the flood hazard district shall hereafter be located, extended, converted or altered without full compliance with the terms of this ordinance and other applicable regulations.

62.1.4. The boundaries and designations of the floodway district and floodway fringe district provided for herein are hereby established as shown on the maps identified by the titles "National Flood Insurance Program, FIRM Flood Insurance Rate Map, Madison County, Alabama, and Incorporated Areas" (Community-Panel Number 010153, City of Huntsville, Alabama) composed of panels 0144, 0158, 0159, 0163, 0164, 0166, 0167, 0168, 0169, 0175, 0178, 0179, 0183, 0186, 0187, 0188, 0189, 0193, 0194, 0195, 0211, 0215, 0269, 0290, 0291, 0292, 0293, 0294, 0302, 0304, 0306, 0307, 0308, 0309, 0311, 0315, 0320, 0326, 0327, 0328, 0329, 0331, 0333, 0335, 0340, 0341, 0343, 0354, 0355, 0360, 0362, 0365, 0370, 0407, 0425, 0450, 0455, 0456, 0458, 0460, 0467, 0475, and 0478 issued by the Federal Emergency Management Agency, Federal Insurance Administration, bearing an effective date of April 20, 1998, and any revisions thereto.

62.1.5. For those land areas acquired by the city through annexation, the current effective flood insurance study, data, and flood insurance rate map for Madison, Limestone, and Morgan Counties are hereby adopted by reference.

62.1.6. These maps as identified, all explanatory matter thereof, and the flood insurance study, Madison County, Alabama, and incorporated areas, dated April 25, 1995, and any revisions thereto are hereby adopted and made a part of

this ordinance. Such maps and explanatory matter shall be filed in the office of the City Engineer of the City of Huntsville, Alabama.

62.1.7. The Legislature of the State of Alabama has in Title 11, Chapter 19, Sections 1—24 Chapter 45, Sections 1—11, Chapter 52, Sections 1—84, and Title 41, Chapter 9, Section 166 of the Code of Alabama, 1975, authorized local government units to adopt regulations designed to promote the public health, safety, and general welfare of its citizenry.
(Ord. No. 98-189, § 1(62.1), 4-7-1998; Ord. No. 99-206, § 4, 4-8-1999; Ord. No. 18-716, §§ 1, 2, 10-25-2018)

62.2. Definitions.

Addition (to an existing building). Any walled and roofed expansion to the perimeter of a building in which the addition is connected by a common loadbearing wall other than a firewall. Any walled and roofed addition which is connected by a firewall or is separated by independent perimeter loadbearing walls is new construction.

Area of shallow flooding. A designated AO or AH zone on a community's flood insurance rate map (FIRM) with base flood depths from one to three feet, and/or where a clearly defined channel does not exist, where the path of flooding is unpredictable and indeterminate, and where velocity flow may be evident.

Area of special flood hazard. The land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year. It is composed of the floodway, and the floodway fringe.

Base flood. The flood having a one percent chance of being equaled or exceeded in any given year.

Base flood elevation. The computed elevation to which floodwater is anticipated to rise during the base flood. It is also the elevation of surface water resulting from a flood that has a one percent chance of equaling or exceeding that level in any given year. Base flood elevations are shown in the FIS and on the flood insurance rate map (FIRM) for zones AE, AH, A1-A30, AR, AR/A, AR/AE, AR/A1-A30, AR/AH, AR/AO, V1-V30 and VE.

Basement. Any portion of a building having its floor sub grade (below ground level) on all sides.

Breakaway wall. A wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or the supporting foundation system.

Building (also see "structure"). (1) A structure with two or more outside rigid walls and a fully secured roof, that is affixed to a permanent site; or (2) a manufactured home (a "manufactured home," also known as a mobile home, is a structure built on a permanent chassis, transported to its site in one or more sections, and affixed to a permanent foundation); or (3) a travel trailer without wheels, built on a chassis and affixed to a permanent foundation, that is regulated under the community's floodplain management and building ordinances or laws.

Development. Any man-made change to improved or unimproved real estate including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavating, drilling operations, and storage of equipment or materials.

Effective date of this article. September 13, 1979.

Elevated building. A nonbasement building built to have the lowest floor of the lowest enclosed area elevated above the ground level by means of fill, solid foundation perimeter walls, pilings, columns, piers, or shear walls adequately anchored so as not to impair the structural integrity of the building during a base flood.

Existing construction. Any structure for which the "start of construction" commenced before September 13, 1979 or before January 1, 1975, for FIRMs effective before that date. Existing construction may also be referred to as existing structures.

Existing manufactured home park or subdivision. A manufactured home park or subdivision

for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum the installation of utilities, the construction of streets, and final site grading or the pouring of concrete pads) is completed before September 13, 1979.

Expansion to an existing manufactured home park or subdivision. The preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed, including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads.

Flood or flooding. A general and temporary condition of partial or complete inundation of normally dry land areas from:

(1) The overflow of inland waters; or

(2) The unusual and rapid accumulation or runoff of surface waters from any source.

Flood insurance rate map (FIRM). An official map of a community, issued by the Federal Insurance Administration, delineating the areas of special flood hazard and the risk premium zones applicable to the community.

Flood insurance study (FIS). The official report by the Federal Insurance Administration evaluating flood hazards and containing flood profiles and water surface elevations of the base flood.

Floodplain. Any land area susceptible to being inundated by water from any source.

Floodproofing. Any combination of structural and nonstructural additions, changes or adjustments to structures, which reduce or eliminate risk of flood damage to real estate or improved real property, water and sanitation facilities or structures with their contents.

Floodway (regulatory floodway). The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

Floodway fringe. The area lying between the floodway and the boundaries of the 100-year floodplain.

Floor. The top surface of an enclosed area in a building including basement and/or garage, i.e., top of slab in concrete slab construction or top of wood flooring in wood frame construction.

Functionally dependent facility. A facility which cannot be used for its intended purpose unless it is located or carried out in close proximity to water, such as a docking or port facility necessary for the loading and unloading of cargo or passengers, shipbuilding, ship repair, or seafood processing facilities. The term may include long-term storage, sales, or service facilities in connection with a marine facility only with the approval of the board of adjustment.

Highest adjacent grade. The highest natural elevation of the ground surface, prior to construction, next to the proposed walls of a structure.

Historic structure. Any structure that is:

(1) Listed individually on the National Register of Historic Places or preliminarily determined by the secretary of the interior as meeting the requirements for individual listing on the national register;

(2) Certified or preliminarily determined by the secretary of the interior as contributing to the historical significance of a national register historic district or a district preliminarily determined by the secretary to qualify as a national register historic district; or

(3) Determined as eligible for listing on the national register by the state historic preservation officer.

Lowest floor. The lowest floor of the lowest enclosed area of a building (including basement). An unfinished or flood resistant enclosure, used solely for parking of vehicle[s], building access, or storage, in an area other than a basement, is not considered a building's lowest floor, provided that such enclosure is not built so as to render the structure in violation of other provision[s] of this Code.

Manufactured home. A building, transportable in one or more sections, which is built on a permanent chassis and designed to be used with or without a permanent foundation when con-

nected to the required utilities. The term also includes park trailers, travel trailers, and similar transportable structures placed on a site for 180 consecutive days or longer and intended to be improved property.

Manufactured home park or subdivision. A parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

Mean sea level. The average height of the sea for all stages of the tide. It is used as a reference for establishing various elevations within the floodplain. For the purpose of this ordinance, the term is synonymous with National Geodetic Vertical Datum (NGVD) of 1929 or other datum.

National geodetic vertical datum (NGVD). As corrected in 1929, NGVD is a vertical control used as a reference for establishing varying elevations within the floodplain.

New construction. Any structure and any subsequent improvements to the structure for which the start of construction commenced on or after March 8, 1974.

New manufactured home park or subdivision. A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after September 13, 1979.

Recreational vehicle. A vehicle which is built on a single chassis, has 400 square feet or less when measured at the largest horizontal projection, is designed to be self-propelled or permanently towable by a light-duty truck, and is designed as temporary living quarters for recreational, camping, travel or seasonal use.

Remedy a violation. To bring the structure or other development into compliance with state or local floodplain management regulations, or, if this is not possible, to reduce the impacts of its noncompliance. Ways that impacts may be reduced include protecting the structure or other affected development from flood damages, implementing the enforcement provisions of the ordinance or otherwise deterring future similar violations, or reducing federal financial exposure with regard to the structure or other development.

Repetitive loss. Flood related damages sustained by a structure on two separate occasions during a ten-year period for which the cost of repairs at the time of each such flood event, on the average, equals or exceeds 25 percent of the market value of the structure before the damages occurred.

Section 1316. No new flood insurance policy or federal disaster assistance shall be provided for any property which the administrator finds has been declared by a duly constituted state or local zoning authority or other authorized public body, to be in violation of state or local laws, regulations or ordinances which are intended to discourage or otherwise restrict land development or occupancy in floodprone areas. If the structure is made compliant with the applicable community's floodplain management ordinance, then the Section 1316 declaration can be rescinded by the community and flood insurance and disaster assistance eligibility restored.

Special flood hazard area (SFHA). That portion of the floodplain subject to inundation by the base flood and/or flood-related erosion hazards as shown on a FHBM or FIRM as zones A, AE, AH, AO, AR, AR/AE, AR/AO, AR/AH, AR/A, A99, or VE.

Start of construction. The date the building permit was issued, provided the actual start of construction, repair reconstruction or improvement was within 180 days of the permit date. The actual start means the first placement of permanent construction of a structure (including a manufactured home) on a site, such as the pouring of slabs or footings, installation of piles, construction of columns, or any work beyond the stage of excavation, or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings,

such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure. A walled and roofed building, including a liquid or gas storage tank that is principally above ground, as well as a manufactured home.

Substantial damage. Damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred. Substantial damage also means flood related damages sustained by a structure on two separate occasions during a ten-year period for which the cost of repairs at the time of each such flood event, on the average, equals or exceeds 25 percent of the market value of the structure before the damages occurred.

Substantial improvement. Any reconstruction, rehabilitation, addition or other improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of structure before the start of construction of the improvement. This term includes structures which have incurred repetitive loss or substantial damage, regardless of the actual amount of repair work performed. The market value of the building should be either:

(1) The appraised value of the structure prior to the start of the initial repair, or improvement; or

(2) In the case of damage, the value of the structure prior to the damage occurring.

For the purpose of this definition, substantial improvement is considered to occur when the first alteration of any wall, ceiling, floor or other structural part of the building commences, whether or not that alteration affects the external dimensions of the building. The term does not include either:

(1) Any project for improvement of a structure to correct existing violations of state or local health, sanitary or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to ensure safe living conditions; or

(2) Any alteration of a historic structure, provided that the alteration will not preclude the structure's continued designation as a historic structure.

Substantially improved existing manufactured home parks or subdivisions. When the repair, reconstruction, rehabilitation or improvement of the streets, utilities and pads of parks or subdivisions equals or exceeds 50 percent of the value of the streets, utilities and pads before the repair, reconstruction or improvement commenced.

Variance. A grant of relief from the requirements of this ordinance which permits construction in a manner otherwise prohibited by this ordinance.

Violation. The failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in the Code of Federal Regulations (CFR) §44, Sec. 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or (e)(5) and corresponding parts of this ordinance is presumed to be in violation until such time as that documentation is provided.
(Ord. No. 98-189, § 1(62.2), 4-7-1998; Ord. No. 18-716, §§ 3, 4, 10-25-2018)

62.3. Provisions for all areas in the flood hazard districts.

The provisions of this section shall apply to all areas in the flood hazard district.

62.3.1. All new construction and substantial improvements to existing structures shall be anchored to prevent flotation, collapse or lateral movement of the structure.

62.3.2. All new construction and substantial improvements to existing structures shall be constructed with materials and utility equipment resistant to flood damage.

62.3.3. All new construction and substantial improvements to existing structures shall be constructed by methods and practices that minimize flood damage.

62.3.4. All new and replacement water supply systems shall be constructed to minimize or eliminate infiltration of floodwaters into the system.

62.3.5. New and replacement sanitary sewer systems shall be constructed to minimize or eliminate infiltration of floodwaters into the systems and exfiltration from the systems into floodwaters.

62.3.6. On-site waste disposal systems shall be located and constructed to avoid impairment to them or contamination from them during flooding.

62.3.7. Any alteration, repair, reconstruction, or improvement to a structure on which the start of construction was begun after the effective date of this article shall meet the requirements of new construction as contained in this article.

62.3.8. Electrical, heating, ventilation, plumbing, and air conditioning equipment, and other service facilities shall be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

62.3.9. Manufactured homes shall be anchored to prevent flotation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame

ties to ground anchors. This standard shall be in addition to and consistent with applicable state requirements for resisting wind forces.

62.3.10. Any alteration, repair, reconstruction or improvement to a structure that is not compliant with the provisions of this ordinance shall be undertaken only if the nonconformity is not furthered, extended or replaced.

(Ord. No. 98-189, § 1(62.3), 4-7-1998)

62.4. Interpretation of floodway district and floodway fringe district.

The floodway district and floodway fringe district are those land areas as specified on the FIRM maps identified in section 62.1 hereof. Any interpretation necessary shall be made by the City Engineer of the City of Huntsville, Alabama.
(Ord. No. 98-189, § 1(62.4), 4-7-1998)

62.5. Application of the flood hazard district.

To enable the district to operate in harmony with the Zoning Ordinance of the City of Huntsville, Alabama, the flood hazard district is created as a special district to be superimposed on other existing zoning districts contained in the Zoning Ordinance of the City of Huntsville, Alabama. Except where in conflict with the specific requirements of the flood hazard district, permitted uses, accessory uses, signs, minimum lot requirements, minimum yard requirements, maximum height, and requirements for off-street parking and loading shall be determined by the requirements of the basic district regulations contained elsewhere in this ordinance.
(Ord. No. 98-189, § 1(62.5), 4-7-1998)

62.6. Uses specifically prohibited in floodway districts.

62.6.1. Structures of any type that would obstruct or impede the flow of floodwater or cause any increase in the base flood level are hereby specifically prohibited.

62.6.2. Fill of any type in the floodway including dumping or temporary storage or stockpiling of any material.

62.6.3. Substantial improvement to an existing structure within the floodway district.

62.6.4. Manufactured homes (mobile homes) except on existing improved lots in existing manufactured home (mobile home) parks or subdivisions licensed as of the effective date of this article, and then only if such mobile homes are anchored to resist flotation, collapse, or lateral movement by use of over-the-top or frame ties to ground anchors and if the elevation standards as provided for in section 62.7.1 are met. A replacement manufactured home may be placed on a lot in an existing manufactured home park or subdivision provided the elevation standards as set forth in section 62.7.1 are met and provided the replacement is anchored to resist flotation, collapse, or lateral movement by use of over-the-top or frame ties to ground anchors. These standards shall be in addition to and consistent with applicable state requirements for resisting wind forces.
(Ord. No. 98-189, § 1(62.6), 4-7-1998)

62.7. Standards for the floodway fringe district.

In all areas of the floodway fringe district designated as zone AE or AH, the following provisions are required:

62.7.1. *Residential construction.* New construction or substantial improvement of any residential structure shall have the lowest floor, including basement and garage, elevated to at least one foot above the base flood elevation. When solid foundation perimeter walls are used to elevate a structure, openings sufficient to facilitate the unimpeded movement of floodwater shall be provided in accordance with the standards of section 62.7.3 and must be certified as such to the manager of inspection by a registered engineer or architect.

62.7.2. *Nonresidential construction.* New construction or substantial improvement of any commercial, industrial or other nonresidential structure shall either have the lowest floor, including basement and garage, elevated to at least one foot above the base flood elevation or, together with attendant utility and sanitary facilities, be floodproofed to one foot above the base flood elevation so that the structure is

watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered engineer or architect shall certify that the design and methods of construction are in accordance with accepted standards of practice for meeting the provisions above and shall provide such certification to the manager of inspection that the standards of this subsection and section 62.13.6 are satisfied.

62.7.3. *Elevated buildings.* New construction of or substantial improvements to elevated buildings that include any fully enclosed area located below the lowest floor formed by foundation and other exterior walls below the base flood elevation shall be designed to preclude finished living space and to allow for the entry and exit of floodwaters to automatically equalize hydrostatic flood forces on exterior walls.

(1) Designs for complying with this requirement must either be certified by a registered engineer or architect or meet the following minimum criteria:

(a) Provide a minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding;

(b) The bottom of all such openings shall be no higher than one foot above grade; and

(c) Such openings may be equipped with screens, louvers, valves or other coverings or devices provided they permit the automatic flow of floodwaters in both directions;

(2) Access to the enclosed area shall be the minimum necessary to allow for parking of vehicles (garage door) or limited storage of maintenance equipment used in connection with the premises (standard exterior door) or entry to the living area (stairways or elevator); and

(3) The interior portion of such enclosed area shall not be partitioned or finished into separate rooms.

62.7.4. For new manufactured home parks and subdivisions for expansions to existing manufactured home parks and subdivisions; for existing manufactured home parks and subdivisions where the repair, reconstruction or improvement of the streets, utilities and pads equals or exceeds 50 percent of value of the streets, utilities and pads before the repair, reconstruction, or improvement commenced; for a manufactured home placed on a site in an existing manufactured home park or subdivision where a manufactured home has incurred substantial damage as a result of a flood; and for manufactured homes not placed in a manufactured park or subdivision, but which are permitted by the board of zoning adjustment, the following are required:

(1) Stands or lots elevated on compacted fill so that the lowest floor of the manufactured home will be one foot above the base flood elevation.

(2) Manufactured homes placed or substantially improved in an existing manufactured home park or subdivision may be elevated so that either:

(a) The lowest floor of the manufactured home is elevated no lower than one foot above the level of the base flood elevation; or

(b) The manufactured home chassis is elevated and supported by reinforced piers (or other foundation elements of at least an equivalent strength) of no less than 36 inches in height above grade.

(3) Each stand or lot shall have proper surface drainage and shall be accessible to the manufactured home and prime mover or hauler.

(4) All manufactured homes must be securely anchored to an adequately

anchored foundation system to resist flotation, collapse and lateral movement.

62.7.5. All recreational vehicles placed on sites must either:

(1) Be on the site for fewer than 180 consecutive days, be fully licensed and ready for highway use, be on its wheels or jacking system, be attached to the site only by quick disconnect type utilities and security devices, and have no permanently attached structures or additions; or

(2) Meet all the requirements for new construction including the anchoring and elevation requirements of section 62.7.4(1) and (4) above.

62.7.6. A registered land surveyor shall submit data to the manager of inspection certifying that the elevation of the lowest floor of a structure in a floodway fringe district is in compliance with this article. This certification shall be submitted prior to the floor being placed.

(Ord. No. 98-189, § 1(62.7), 4-7-1998)

62.8. Floodplain development permits and other required permits.

62.8.1. It shall be unlawful for any person, firm or corporation to carry out any mining, filling, grading, paving, excavation, or drilling operations in areas designated as floodway district or floodway fringe district without having first obtained a permit for such activity from the city engineer. The city engineer shall maintain the official file copy of the flood insurance rate maps (FIRM) in his office and shall review applications for permits for any mining, filling, grading, paving, excavation, or drilling operations. Any person, firm or corporation failing to comply with the provisions of this section of this ordinance shall be guilty of a misdemeanor and upon conviction shall be fined according to section 91.6, penalties.

Where any violation is discovered, the city engineer shall direct the responsible person, firm, or corporation to restore the land to its prior state before said violation or require the responsible party to immediately obtain an approved floodplain development permit from the city engineer. The city engineer shall take whatever steps necessary to enforce this section of this ordinance.

62.8.2. No building, grading, or floodplain development permit will be issued where any part of the property lies within the flood hazard district until plans for such improvements have been reviewed and approved by the city engineer.

62.8.3. Floodplain development permit. Prior to any development activity, application for a floodplain development permit shall be made to the city engineer on forms furnished by the inspection and engineering divisions of the City of Huntsville.

62.8.4. For all new construction and substantial improvements, the permit holder shall provide to the city engineer an as-built certification of the regulatory floor elevation or floodproofing level using FEMA certificates immediately after the lowest floor or floodproofing is completed.

(Ord. No. 98-189, § 1(62.8), 4-7-1998)

62.9. Standards for areas of shallow flooding (AO zones).

Located within the flood hazard district established in section 62.1 are areas designated as shallow flooding areas. These areas have special flood hazards associated with base flood depths of one to three feet where a clearly defined channel does not exist and where the path of flooding is unpredictable and indeterminate. The following provisions apply in these areas:

62.9.1. All new construction of and substantial improvements to residential structures shall have the lowest floor, including basement and garage, elevated to the flood depth number (in feet) specified on the flood insurance rate map above the highest adjacent grade. If no flood depth number is specified, the lowest floor, including basement and garage, shall be elevated at least three feet above the highest adjacent grade. Openings sufficient to facilitate

the unimpeded movements of floodwaters shall he provided in accordance with the standards of section 62.7.3 (elevated buildings).

62.9.2. All new construction of and substantial improvements to nonresidential structures shall comply with the following:

(1) The lowest floor, including basement and garage, shall be elevated to the depth number (in feet) specified on the flood insurance rate map above the highest adjacent grade. If no depth number is specified, the lowest floor, including basement and garage, shall be elevated at least three feet above the highest adjacent grade. Openings sufficient to facilitate the unimpeded movements of floodwater shall be provided in accordance with the standards identified in section 62.7.3 (elevated buildings); and

(2) The manager of inspection shall obtain a copy of the FEMA elevation certificate completed by a registered land surveyor verifying the actual elevations in relation to mean sea level (or highest adjacent grade) of the regulatory floor elevation including basement and garage; and

(3) New construction of or the substantial improvement to a nonresidential structure may be floodproofed in lieu of elevating. The structure, together with attendant utility and sanitary facilities, shall be completely floodproofed to or above that level determined in subsection (1) above so that any space below that level is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy; and

(4) A registered engineer or architect shall complete and submit to the manager of inspection a copy of the FEMA floodproofing certificate, and a registered land surveyor shall verify the actual elevations in relation to mean sea level (or highest adjacent grade) of the level in which floodproofing has been accomplished. The engineer or architect also shall certify to the manager of inspection that the design and methods of construction are in accordance with accepted standards of practice and with the provisions of this article; and

(5) Drainage paths shall be provided, and shown on the permit drawings, to direct floodwaters around and away from any proposed structures.

(Ord. No. 98-189, § 1(62.9), 4-7-1998)

62.10. Standards for streams without FIA established base flood elevations and/or floodways (A zones).

Within the flood hazard district where streams exist but no base flood data have been provided or where base flood data have been provided but a floodway has not been delineated, the following provisions shall apply:

62.10.1. The following provisions shall apply when streams exist but where base flood data and floodway data are not available:

(1) A registered engineer shall submit sufficient engineering data to the city engineer showing base flood discharges, base flood elevations, and floodway data along the stream channel. The city engineer shall request as much information as deemed necessary to determine and set base flood elevations, floodway widths and regulatory minimum finish floor elevations along the stream channel.

(2) Minimum finished floor requirements. New construction of or substantial improvements to structures shall be elevated or floodproofed to meet the requirements of

section 62.7 based on the established regulatory flood elevations set by the city engineer as determined in section 62.10.1(1) above.

(3) Floodway district. Section 62.6 shall apply to the established floodway set by the city engineer as described in section 62.10.1(1).

62.10.2. When sufficient engineering data is currently available to the city engineer to establish regulatory flood elevations and floodway data along the stream channel, the following provisions shall apply:

(1) The city engineer shall provide the required minimum finished floor elevations and/or the location and width of the floodway district from information and data from his records and files.

(2) Minimum finished floor requirements. New construction of or substantial improvements to existing structures shall be elevated or floodproofed to meet the requirements of section 62.7 based on the established regulatory flood elevations set by the city engineer as determined in section 62.10.2(1).

(3) Floodway district. Section 62.6 shall apply to the established floodway set by the city engineer as described in section 62.10.2(1).

62.10.3. When base flood elevation data or floodway data have not been provided in accordance with section 62.1, 62.10.1, or 62.10.2, then the city engineer shall obtain, review and reasonably utilize any scientific or historic base flood elevation and floodway data available (including eyewitness accounts of flood elevations along a waterway) from federal, state or other sources in order to administer the provisions of this ordinance. Only if data are not available from these sources, then the following provisions shall apply:

(1) No encroachments, including structures or fill material, shall be located within an area equal to the top width of the stream or 25 feet, whichever is greater, measured from top of stream bank, unless certification by a registered engineer is provided demonstrating that such encroachment shall not result in an increase in the flood levels during the occurrence of the base flood discharge.

(2) In special flood hazard areas without base flood elevation data, new construction of and substantial improvements to existing structures shall have the lowest floor of the lowest enclosed area, including basement and garage, elevated to no less than three feet above the highest adjacent grade at the building site. Openings sufficient to facilitate the unimpeded movement of floodwaters shall be provided in accordance with section 62.7.3 (elevated buildings).

(Ord. No. 98-189, § 1(62.10), 4-7-1998)

62.11. Standards for subdivision proposals.

62.11.1. All subdivision proposals shall be consistent with the need to minimize flood damage.

62.11.2. All subdivision proposals shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize flood damage.

62.11.3. All subdivision proposals shall have adequate drainage provided to reduce exposure to flood hazards.

62.11.4. Base flood elevation data shall be provided for subdivision proposals and other proposed developments to include manufactured home parks and subdivisions. The subdivision final plat shall prescribe the minimum building floor elevations for structures located within any floodway fringe district.

62.11.5. The boundaries of floodway and floodway fringe districts shall be shown and identified on all subdivision plans for land lying partially or wholly within the flood hazard district.

(Ord. No. 98-189, § 1(62.11), 4-7-1998)

Cross reference—Subdivision regulations, app. B.

62.12. Variances.

62.12.1. The city engineer shall review petitions for variances and report his findings to the board of zoning adjustment.

62.12.2. Variances shall not be granted within any designated floodway district if any increase in flood levels during the base flood discharge would

result or if hazardous streamflow velocities would result, except under the conditions enumerated in section 62.12.3.

62.12.3. Conditions for variances. Variances shall only be issued:

(1) Upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief. The provisions of this article are minimum standards for flood loss reduction; therefore, any deviation from the standards must be weighed carefully.

(2) Upon a showing of good and sufficient cause.

(3) Upon a determination that failure to grant the variance would result in unnecessary hardship unique and different from that shared or suffered by adjacent and similar property also in the designated floodway.

(4) Upon a determination based on hydrologic and hydraulic analyses performed by a registered engineer that the granting of a variance will not result in increased flood levels, floodway widths or hazardous streamflow velocities during a base flood discharge. Neither will the variance create additional threats to public safety, extraordinary public expense or nuisances, cause fraud or victimization of the public, nor conflict with existing local laws or ordinances with respect to the use to which the property is to be put.

(5) For any building or structure in existence prior to the effective date of this article that is hereafter destroyed or substantially damaged to 50 percent or more of its replacement cost at the time of destruction by any means if the reconstruction does not exceed the volume and external dimensions of the original structure and does not offer any greater obstruction to the flow of floodwater than did the original structure.

(6) For the repair, rehabilitation or restoration of historic structures upon a determination that the proposed repair, rehabilitation, or restoration will not result in the structure losing its historical designation and the variance is the minimum to preserve the historic character and design of the structure.

(7) For new construction on an isolated lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level in residential subdivisions recorded prior to the effective date of this ordinance.

(8) For the conduct of a functionally dependent use, provided the criteria of this article are met, no reasonable alternative exists, and the development is protected by methods that minimize flood damage during the base flood.

62.12.4. Standards for evaluating variance applications by the board of adjustment. In passing upon such applications, the board of adjustment shall consider all technical evaluations, all relevant factors, all standards specified in other sections of this ordinance, and:

(1) The danger that materials may be swept onto other lands to the injury of others;

(2) The danger to life and property due to flooding or erosion damage;

(3) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(4) The importance of the services provided by the proposed facility to the community;

(5) The necessity of the facility to a waterfront location in the case of a functionally dependent facility;

(6) The availability of alternative locations not subject to flooding or erosion damage for the proposed use;

(7) The compatibility of the proposed use with existing and anticipated development;

(8) The relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

(9) The safety of access to the property in times of flood for ordinary and emergency vehicles;

(10) The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site; and

(11) The costs of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, and streets and bridges.

62.12.5. Upon consideration of the factors listed above and the purposes of this ordinance, the board of zoning adjustment may attach such conditions to the granting of variances as it deems necessary to further the purposes of this ordinance.

62.12.6. Any applicant to whom a variance is granted shall be given written notice specifying the difference between the base flood elevation and the elevation to which the structure is to be built and stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

62.12.7. The zoning administrator shall maintain the records of all appeal actions and report any variances to the Federal Emergency Management Agency upon request.
(Ord. No. 98-189, § 1(62.12), 4-7-1998; Ord. No. 07-460, § 3, 6-28-2007)

62.13. Duties and responsibilities of the city engineer.

Duties of the city engineer shall include, but shall not be limited to, the following:

62.13.1. Review all floodplain development plans and permit applications to ensure that the requirements of this article have been satisfied on the plans and permit application form;

62.13.2. Review floodplain development to ensure that construction is being accomplished in conformance with the permit requirements and the requirements of this article;

62.13.3. Review proposed development within the flood hazard district to ensure that all necessary permits have been received from government agencies for which approval is required by federal or state law, including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 USC 1344. Require that copies of such permits be provided and maintained on file with the floodplain development permit;

62.13.4. Obtain a copy of the FEMA flood elevation certificate in order to verify and record the actual elevation in relation to mean sea level (or highest adjacent grade) of the regulatory floor level, including basement and garage, of all new construction or substantially improved structures in accordance with section 62.8.4;

62.13.5. Obtain a copy of the FEMA floodproofing certificate in order to verify and record the actual elevation in relation to mean sea level to which any new or substantially improved structures have been floodproofed in accordance with sections 62.8.4 and 62.9.2;

62.13.6. When floodproofing is utilized for a structure, the city engineer and manager of inspection shall obtain certification of the design criteria from a registered engineer or architect in accordance with sections 62.7.2 and 62.9.2;

62.13.7. Notify adjacent communities and the Alabama Department of Natural Resources prior to any alteration or relocation of a watercourse and submit evidence of such notification to the Federal Emergency Management Agency and the Alabama Emergency Management Agency (AEMA);

62.13.8. For any altered or relocated watercourse, submit engineering data/analysis within six months to FEMA and AEMA to ensure accuracy of community flood maps through the

letter of map revision process. Ensure that the flood-carrying capacity of any altered or relocated watercourse is maintained;

62.13.9. Ensure that maintenance is provided within the altered or relocated portion of said watercourse so that the flood-carrying capacity is not diminished;

62.13.10. Where interpretation is needed as to the exact location of the boundaries of the areas of special flood hazard (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), the city engineer shall make the necessary interpretation. Any person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in this article;

62.13.11. When base flood elevation data or floodway data have not been provided in accordance with section 62.1, then the city engineer shall obtain, review and reasonably utilize any base flood elevation and floodway data available from a federal, state or other source in order to administer the provisions of section 62.10;

62.13.12. All permits and records specified in sections 62.8 and 62.13 shall be maintained in the office of the city engineer and shall be open for public inspection.

(Ord. No. 98-189, § 1(62.13), 4-7-1998)

62.14. Duties and responsibilities of the manager of inspection.

62.14.1. Obtain certification from a registered engineer or architect in accordance with section 62.7.2 or 62.9.2 when floodproofing is utilized for a particular structure.

62.14.2. Maintain building permits pertaining to the provisions of this article in the office of the manager of inspection.

62.14.3. Require a registered land surveyor to verify the actual elevation (in relation to mean sea level) of the lowest floor, including basement and garage, of all new or substantially improved structures and to complete and furnish a copy of the FEMA elevation certificate.

62.14.4. Require a registered land surveyor to verify the actual elevation (in relation to mean sea level) to which new or substantially improved structures have been floodproofed and to complete and furnish a copy of the FEMA floodproofing certificate.

(Ord. No. 98-189, § 1(62.14), 4-7-1998; Ord. No. 07-460, § 3, 6-28-2007)

62.15. Duties and responsibilities of the city planner.

62.15.1. Submit reports to the Federal Insurance Administration regarding the Federal Flood Insurance Program as requested.

62.15.2. The zoning administrator shall review all development plans and permit applications to determine if the development lies within a designated floodway or floodway fringe district and assure that any development within a designated floodway or floodway fringe district meets all requirements of this Appendix. If the zoning administrator cannot make a determination of the floodway and floodway fringe districts, then the city engineer will make the determination.

62.15.3. The zoning administrator shall inform any person wishing to develop within a flood hazard district about the district regulations and permit application forms, and provide a copy of the regulations and other pertinent information that may assist the developer.

(Ord. No. 98-189, § 1(62.15), 4-7-1998; Ord. No. 07-460, § 3, 6-28-2007)

62.16. Warning and disclaimer of liability.

The degree of flood protection required by this ordinance is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur. Flood heights may be increased by manmade or natural causes. This article does not imply that land outside the areas of special flood hazard or uses permitted within such areas will be free from flooding or flood damages. This article shall not create liability on the part of the City of Huntsville, Alabama, or by any officer or employee thereof, for any flood damages that

result from reliance on this ordinance or any administrative decision lawfully made thereunder.
(Ord. No. 98-189, § 1(62.16), 4-7-1998)

ARTICLE 63. AIRPORT OBSTRUCTION AND NOISE EXPOSURE DISTRICT REGULATIONS*

Purpose. The purpose and intent of the airport obstruction and noise exposure district regulations are to regulate the height of manmade structures and natural objects within the airport hazard area as herein defined; and to regulate the use of lands within the airport noise exposure zone herein defined to ensure such use to be compatible with the noise environment at that location. These regulations apply to those portions of the airport hazard area and airport noise exposure zone which lie within the jurisdiction of the City of Huntsville, Alabama.

63.1. Establishment of airport hazard area.

The boundaries and designations of the airport hazard area are hereby established and approved as defined herein and as shown and designated on the "Airport Obstruction and Land Use Map" filed herewith and made a part hereof by reference. Said map is further identified by the signature of the Mayor of the City of Huntsville, Alabama, and attested by the city clerk-treasurer. Certified copy of the said map is of public record in the Office of the City Clerk-Treasurer of the City of Huntsville, Alabama.

63.2. Establishment of airport noise exposure zone.

The boundaries and designations of the airport noise exposure zone are hereby established and approved as described herein and as shown and designated on the "Airport Obstruction and Land Use Map" hereinabove adopted, in conformance with the Airport Noise Exposure Map, dated 1990, prepared and published by the Secretary of Transportation of the United States of America pursuant to section 105, Aviation Safety and Noise Abatement Act of 1979, as amended, which said Airport Noise Exposure Map, dated 1990, is filed herewith and made a part hereof by reference. Said map is further identified by the approval of the Secretary of the Department of Transportation of the United States of America. A copy of the said map, certified as a part of this regulation, is of public record in the Office of the City Clerk-Treasurer of the City of Huntsville, Alabama.

63.3. Application.

The airport hazard area and the airport noise exposure zone are created under this article as special zoning classifications. Where these special zones overlap other zoning districts created under the Zoning Ordinance of the City of Huntsville, Alabama, the requirements of these special zones are to be superimposed on and enforced in addition to all other zoning regulations applicable to those districts. If the requirements of these special zoning classifications require the alteration or elimination of uses, structures, or other objects which would be permitted under the other applicable zoning regulations of the City of Huntsville, Alabama, then the more stringent requirements of this article shall be followed.

63.4. Definitions.

The following definitions shall apply to this article unless the context otherwise requires:

Airport. The Huntsville-Madison County Airport, Huntsville, Alabama.

Airport elevation. Six hundred twenty-eight feet above mean sea level.

Airport hazard. Any structure, tree or use of land which obstructs the airspace required for the safe and efficient operation of the airport, or is otherwise hazardous to the flight of aircraft in landing or taking off at the airport, or is otherwise incompatible with airport operations.

Airport hazard area. An area of land and water lying within a horizontal distance of 20,000 feet from the nearest point of the nearest runway of the airport, and the area within the limits of the airport boundary, the instrument approach departure zones, transition surface zones, horizontal

*__Cross reference—__Aviation, ch. 6.

__State law reference—__Airport Zoning Act, Code of Ala. 1975, § 4-6-1 et seq.

surface zones, conical surface zones and airport noise exposure zones, all as shown by the airport obstruction zone map adopted as a part of this regulation in section 63.2, supra.

Airport noise compatibility program. Program reflected in documents (and revised documents) developed in accordance with the guidelines established by the Department of Transportation Federal Aviation Administration.

Airport reference point. The point established as the geographical center of the airport landing area. The reference point of the Huntsville-Madison County Airport is as follows: latitude 34 degrees, 28 minutes, 35 seconds; longitude 86 degrees, 46 minutes, 20 seconds.

Aviagation easement. An easement and right-of-way appurtenant to Huntsville-Madison County Airport for the unobstructed passage of aircraft in the airspace above the grantors' property above designated altitudes, together with the right to cause in all airspace above the surface of grantors' property such noise, vibrations, fumes, dust, fuel particles and all other effects that may be caused by the operation of the said airport, including the taking off and landing of aircraft at the airport.

Compatible land use. The use of land that is normally compatible with the outdoor noise environment (or an adequately attenuated noise level reduction for any indoor activities involved) at the location because the yearly day-night average sound level is at or below that identified for that or similar use under 14 CFR 150, appendix A, table 2, Federal Aviation Regulations.

Day-night average sound level. The 24-hour average sound level, in decibels, for the period from 12:00 midnight to 12:00 midnight, obtained after the addition of ten decibels to sound levels for the periods between 12:00 midnight and 7:00 a.m. and between 10:00 p.m. and 12:00 midnight, local time. (See yearly day-night average sound level (Ldn).

Height limitation. The maximum elevation for the highest point that a structure may be altered, erected, or a tree allowed to grow.

Instrument runway. A runway equipped or to be equipped with electronic or visual air navigation aids adequate to permit the landing of aircraft under restricted visibility conditions.

Landing strip. The area of the airport used for the landing, the taking-off, or taxiing of aircraft.

Noise level reduction (NLR). The amount of noise level reduction achieved through incorporation of noise attenuation (between outdoor and indoor levels) in the design and construction of a structure.

Person. Any individual, firm, partnership, corporation, company, association, joint stock association or body politic, and includes any trustee, receiver assignee, or other representative thereof.

Political subdivision. City of Huntsville, Alabama.

Primary surfaces. These surfaces are symmetrically located with respect to the centerline of the landing strip. The transverse profile of primary surfaces are horizontal; whereas, longitudinal profiles may vary throughout its length. The elevation of any point on a primary surface is the same as the elevation of the nearest point on the runway centerline. The primary surfaces for this ordinance are hereby established as follows:

(1) *Primary surface runway 18R-36L.* This surface is 1,000 feet wide and 10,400 feet in length and begins 200 feet outward from each end of said runway.

(2) *Primary surface runway 18L-36R.* This surface is 1,000 feet wide and 8,400 feet in length and begins 200 feet outward from each end of said runway.

Runway. The paved surface of airport landing strip.

Sound attenuation. Measures which must be incorporated into the design and construction of a structure to achieve noise level reduction to compatible Ldn.

Sound exposure level. The level, in decibels, of the time integral of squared A-weighted sound pressure during a specified period or event, with

reference to the square of the standard reference sound pressure of 20 micropascals and a duration of one second.

Structure. Any object constructed or installed by man including, but without limitation, buildings, towers, antennae, smokestacks, and overhead transmission wires.

Tree. Any object of natural growth.

Yearly day-night average sound level (Ldn). The 365-day average, in decibels, day-night average sound level.

63.5. Zones.

The airport hazard area is hereby divided into separate zones, the limits of which are established as shown on the Airport Obstruction Map of the Huntsville-Madison County Airport, which is made a part of this ordinance as it may be supplemented and amended. The various zones are hereby established, defined and adopted as follows:

63.5.1. *Instrument approach-departure zones.* These zones are established at each end of the runways for instrument landings and takeoffs. The instrument approach-departure zone shall have a width of 1,000 feet at a distance of 200 feet beyond each end of the runway, widening thereafter uniformly to a width of 16,000 feet at a distance of 50,200 feet beyond each end of each runway and thereafter remaining at a width of 16,000 feet to the terminal end of the zone, its centerline being the continuation of the centerline of the runway.

63.5.2. *Transitional zones.* These zones extend outward from both sides of the primary surface and the approach-departure zones to an intersection with the inner horizontal, conical and outer horizontal zones or other transitional zones.

63.5.3. *Inner horizontal zone.* This zone is established as the area commencing at the periphery of the transitional zones of the airport and extending outwardly and horizontally to a perimeter of which is constructed by swinging arcs of 10,000 feet from the center of each end of the primary surface of each runway of the airport and connecting the adjacent arcs by lines tangent to those arcs. This zone does not include the instrument approach-departure zones and transitional zones.

63.5.4. *Conical zone.* This zone is established commencing at the periphery of the inner horizontal zone of the airport and extending outward and upward for a horizontal distance of 4,000 feet. This zone does not include the instrument approach-departure zones and the transitional zones.

63.5.5. *Outer horizontal zone.* This zone is established as the area commencing at the periphery of the conical zones of the airport and extending outwardly and horizontally to the periphery of the airport hazard area. This zone does not include the instrument approach-departure zones and transitional zones.

63.5.6. *Airport noise exposure zones.* These zones are land use areas lying within 3,000 feet outward and perpendicular to each side of each runway centerline and its extension and 25,000 feet outward from the end of runway 18R; 25,350 feet outward from the end of runway 36L; 25,350 feet outward from runway 18L; and 25,000 feet outward from the end of runway 36R.

63.6. Criteria to govern height limitations.

Except as otherwise permitted in this article, no structure or tree shall hereafter be erected, altered, allowed to grow, or maintained (in any zone created by this article) to a height in excess of the height limit herein established for such zone. Such height limitations are computed from imaginary surfaces referenced to the airport elevation. The imaginary surface established for each of the zones in question is as follows:

63.6.1. *Instrument approach-departure surface runway 18R.* This surface slopes one foot in height for each 100 feet in horizontal distance beginning at an elevation of 628 feet above mean sea level and a distance of 1,000 feet outward and 200 feet from the end of the runway. This surface slopes outward and upward from its beginning, symmetrically about the extended centerline of the runway until the

width reaches 16,000 feet, continuing at this width to 133,200 feet beyond the end of the runway, which is the Alabama-Tennessee line.

63.6.2. *Instrument approach-departure surface runway 36L.* This surface slopes one foot in height for each 100 feet in horizontal distance beginning at an elevation of 614 feet above mean sea level and a distance of 1,000 feet outward and 200 feet from the end of the runway. This surface slopes outward and upward from its beginning, symmetrically about the extended centerline of the runway until the width reaches 16,000 feet, continuing at this width to 115,550 feet beyond the end of the runway, which is the Morgan-Cullman County line.

63.6.3. *Instrument approach-departure surface runway 18L.* This surface slopes one foot in height for each 100 feet in horizontal distance beginning at an elevation of 606 feet above mean sea level and a distance of 1,000 feet outward and 200 feet from the end of the runway. This surface slopes outward and upward from its beginning, symmetrically about the extended centerline of the runway until the width reaches 16,000 feet, continuing at this width to 133,550 feet beyond the end of the runway, which is the Alabama-Tennessee line.

63.6.4. *Instrument approach-departure surface runway 36R.* This surface slopes one foot in height for each 100 feet in horizontal distance beginning at an elevation of 591 feet above mean sea level and a distance of 1,000 feet outward and 200 feet from the end of the runway. This surface slopes outward and upward from its beginning, symmetrically about the extended centerline of the runway until the width reaches 16,000 feet, continuing at this width to 117,200 feet beyond the end of the runway, which is the Morgan-Cullman County line.

63.6.5. *Transitional surface.* These surfaces extend outward and upward at right angles to the runway centerline and the runway centerline extended at a slope of one foot in height for each seven feet in horizontal distance from the sides of the primary surfaces and from the sides of the instrument approach-departure surfaces. The maximum elevation for structures or trees located thereunder shall be the elevation of the adjacent point on the primary surface or the instrument approach-departure surface plus one seventh of the distance which separates the structure or tree from the slope of the primary or instrument approach-departure surface. The distance shall be measured in feet along the perpendicular to the landing strip or its extended centerline. Transitional surfaces for those portions of the instrument approach-departure zone surfaces which project through and beyond the limits of the conical surface, extend a distance of 5,000 feet measured horizontally from the edge of the approach-departure surface and at right angles to the runway centerline.

63.6.6. *Inner horizontal surface.* This surface is at a height of 150 feet above the established airport elevation. The maximum elevation of structures or trees located thereunder shall be 778 feet above mean sea level.

63.6.7. *Conical surface.* This surface extends outward and upward at a slope of one foot in height for each 20 feet in horizontal distance. The maximum elevation of structures or trees located thereunder shall be 778 feet plus 1/20 of the distance which separates the structure or tree from the periphery of the inner horizontal surface. The distance shall be measured in feet along a radial from the nearest point on the periphery of the inner horizontal zone.

63.6.8. *Outer horizontal surface.* This surface is at a height of 500 feet above the established airport elevation. The maximum elevation of structures or trees located thereunder shall be 978 feet above mean sea level.

63.7. Criteria to govern compatible land use in airport noise exposure zone.

The airport noise compatibility program, as reflected by the airport noise exposure map previously made part of this regulation, establishes the "Yearly Day-Night Average Sound Level (Ldn)" in decibels, in contours around the airport. Land uses around the airport must be compatible with the standards and procedures as set forth in 14 CFR 150, appendix A, Federal Aviation Regula-

tions, published January, 1981, as amended. No use shall hereafter be permitted within the boundaries of the airport noise exposure zone unless the said use shall be otherwise permitted in the applicable area under this ordinance and shall be compatible with the Ldn in the applicable area. Compatibility of the use with the Ldn shall be determined by the standards set forth in 14 CFR 150, appendix A, table 2, Federal Aviation Regulations, as amended. Said part 150, Federal Aviation Regulations, as amended, and specifically table 2 of appendix A thereto is incorporated herein and made a part hereof by reference. A copy of part 150 is on public record in the Office of the City Clerk-Treasurer for the City of Huntsville, Alabama.

If varying uses of a site with different sensitivity to noise are applied for, compatibility of the uses with the Ldn shall be determined based on the use most adversely affected by noise, without regard to which of the proposed uses is the major use of the site. When appropriate, noise level reduction through incorporation of sound attenuation into the design and construction of a structure may be permitted to achieve a level of compatibility as provided in part 150, supra, and incorporated herein by reference.

All applications for compatible land uses within the airport noise exposure zone shall be accompanied by an aviagation easement, in substantially the form and letter as set forth in exhibit A to this regulation, which said exhibit A is incorporated herein by reference, duly executed by all the owners of the land for which application is being made.

63.8. Use restrictions.

Notwithstanding any other provision of this ordinance, no use may be made of land within any zone established by this article in such a manner as to create electrical interference with a radio communication between the airport and aircraft, make it difficult for flyers to distinguish between airport lights and others, result in glare in the eyes of flyers using the airport, impair visibility in the vicinity of the airport or otherwise endanger the landing, taking-off, maneuvering of aircraft, or impair approach and departure procedures.

63.9. Nonconforming uses.

The regulations prescribed by this article shall not be construed to require the removal, lowering or other changes or alteration of any structure or tree not conforming to the regulations as of the effective date of this article or otherwise interfere with the continuance of any nonconforming use. Nothing herein contained shall require any change in the structure, alteration, or intended use of any structure, the construction or alteration of which was begun prior to the effective date of this article and is diligently executed.

63.10. Permits.

63.10.1. *Future uses.* No material change shall be made in the use of land and no structure shall be erected, altered or otherwise established in any zone hereby created unless a permit therefor shall have been obtained from the director of the inspection department of the City of Huntsville, Alabama (building inspector). Each application for a permit shall be submitted to the zoning administrator and shall state clearly the purpose for which the permit is requested, with sufficient particularity to permit the determination of whether the resulting use or structure would conform to the following:

(1) All regulations herein prescribed and all other applicable provisions of the Zoning Ordinance of the City of Huntsville, Alabama;

(2) Subpart B: Notice of Construction or Alteration, Part 77, Objects Affecting Navigable Airspace, Federal Aviation Regulations, as or may be amended, copy of which is maintained on file and available to the public for examination at the Office of the City Clerk-Treasurer for the City of Huntsville, Alabama; and

(3) Part 150, Noise Compatibility, Federal Aviation Regulations, as or may be amended, copy of which is maintained on file and available to the public for examination at the office of the city clerk-treasurer for the City of Huntsville, Alabama. Specifically, the application must contain certification from a duly qualified professional registered engineer or archi-

tect that the proposed use is compatible with the "Yearly Day-Night Average Sound Level" (Ldn) as prescribed in Table 2, Appendix A, Part 150, Federal Aviation Regulations.

If the zoning administrator determines the proposed use or structure or object is in conformance with each of the foregoing provisions (except as any provisions thereof may be mutually exclusive), then the application will be forwarded to the building inspector for issuance of the permit.

63.10.2. *Existing uses.* No permit shall be granted that would allow the establishment or creation of an aircraft hazard or permit a nonconforming use, structure, or tree to be made or become higher, or become a greater hazard to air navigation, than it was on the effective date of this article or any amendment thereto or than it is when the application for a permit is made.

63.10.3. *Abandonment or destruction of nonconforming uses, structures or objects.* Whenever the zoning administrator shall determine that a non-conforming use has been abandoned or discontinued for a period of six months or more; or that more than 50 percent of a non-conforming structure or tree has been destroyed, torn down, physically deteriorated or decayed; then the application with the written determination of the zoning administrator is forwarded to the building inspector and no permit shall be granted to allow such use to be continued, and no permit shall be granted to allow the continuation of the nonconforming structure or tree in non-compliance with this regulation or ordinance.

63.10.4. *Variances.* Any person desiring to use property within any zone created hereunder in violation of the regulations herein adopted or otherwise contained in this ordinance, or to erect or maintain a structure or to permit the growth of any tree in violation thereof, may, upon denial of a permit of the manager of inspection, apply to the Board of Zoning Adjustment of the City of Huntsville, Alabama, for a variance from the zoning regulation or regulations in question. Such variances shall be allowed where a literal application or enforcement of the regulations would result in practical difficulty or unnecessary hardship and the relief granted would not be contrary to the public interest but do substantial justice and be in accordance with the spirit of the regulations and this chapter; provided that any variance may be allowed subject to any reasonable conditions that the board of adjustment may deem necessary to effectuate the purposes of this chapter.

The board of adjustment shall have all the powers and duties under this article as conferred upon it by article 92 of this ordinance, to the extent authorized, required or permitted by Code of Ala. 1975, § 4-6-10.

63.10.5. *Hazard marking and lighting.* In granting any permit or variance under this section, the manager of inspection or the board of zoning adjustment, as the case may be, may, if such action is deemed advisable to effectuate the purposes of this article and be reasonable in the circumstances, so condition such permit or variance as to require the owner of the structure or tree in question to permit the political subdivision, at its own expense, to install, operate and maintain thereon such markers and lights as may be necessary to indicate to flyers the presence of an airport hazard, upon payment to the owner for all damage resulting to his property by such maintenance.

(Ord. No. 07-460, § 4, 6-28-2007)

State law reference—Permits, Code of Ala. 1975, § 4-6-8.

63.11. Enforcement.

The regulations adopted under this article shall be administered and enforced by the zoning administrator for the City of Huntsville, Alabama. Applications for permits under this article shall be made to the zoning administrator, who shall forward the application to the building inspector. Applications for variances under this article shall be filed with the zoning administrator who shall set the same down for hearing before the board of zoning adjustment.

Any person aggrieved by any decision of the board of zoning adjustment made in its administration of regulations adopted under this article or any governing body of a political subdivision which is of the opinion that a decision of such board is an improper application of airport zoning

regulations of concern to such governing body or board may appeal to the circuit court of the county where such airport is located for a trial de novo.

All appeals taken under this section must be taken within ten days by filing with the board from which the appeal is taken a notice of appeal specifying the grounds thereof. The board from which the appeal is taken shall forthwith transmit to the court all the papers constituting the record upon which the action appealed was taken.

An appeal shall stay all proceedings in furtherance of the action appealed from, unless the board from which the appeal is taken certifies to the court, after the notice of appeal has been filed with it, that by reason of the facts stated in the certificate a stay would, in its opinion, cause imminent peril to life or property and file bond to indemnify the owner for damages as may be fixed by the court. In such cases, proceedings may be stayed upon the filing by the appellant of a supersedeas bond in an amount to be set by the circuit court of the county in which the subject matter of such decision lies on application by the appellant or the board from which the appeal is taken.

The court may, in conformity with the provisions of this article, reverse, affirm wholly or partly, or modify the order, requirement, decision or determination appealed from and make such order, requirement, decision or determination as ought to be made and to that end shall have all the powers of the board from which the appeal is taken.
(Ord. No. 07-460, § 4, 6-28-2007)

63.12. [Repealed.]
(Ord. No. 99-206, § 5, 4-8-1999)

63.13. Remedies.

In case any building or structure is erected, constructed, reconstructed, altered, repaired, converted or maintained, or any building, structure or land is used in violation of this article or of any ordinance or other regulation made under authority conferred hereby, the proper local authorities of the municipality, in addition to other remedies, may institute any appropriate action or proceedings to prevent such unlawful erection, construction, reconstruction, alteration, repair, conversion, maintenance or use, to restrain, correct or abate such violation, to prevent the occupancy of such building, structure or land or to prevent any illegal act, conduct, business or use in or about such premises. Any person creating an airport hazard may be compelled, at his own expense, to discontinue, lower, remove, reconstruct, or equip such an object as may be necessary to conform to this article, or if the owner shall neglect or refuse to comply with such order for ten days after notice thereof, the City of Huntsville, Alabama, may proceed to have the airport hazard conformed to the requirements of the article, and recover the cost and expense thereof from the owner.

State law reference—Similar provisions, Code of Ala. 1975, § 4-6-12.

63.14. Conflict.

In the event of conflict between this article and any other regulation, whether the conflict be with respect to the height of structures or trees, the use of land, or any other matter, and whether such regulations were adopted before or after this article, or by some other political subdivision, the more stringent limitation or requirement shall govern and prevail.

63.15. Severability.

If any section, clause, provision, or portion of this article shall be held to be invalid or unconstitutional by any court of competent jurisdiction, such holding shall not affect any other section, cause, provision or portion of this article which is not and of itself invalid or unconstitutional.

63.16. Effective Date.

This article shall take effect and be in force from and after the date of this adoption.

ARTICLE 64. AIRPORT COMMERCIAL DISTRICT REGULATIONS*

Purpose. The purpose of the airport commercial district is to provide for the retailing of goods and services, the light manufacture and assembly of

*__Cross reference—__Aviation, ch. 6.

products, and the warehousing and distribution of such products in an area affected by the Huntsville-Madison County Airport. Minimum lot sizes are defined, front, side and rear yards are required, signage is restricted, and landscaping is specified.

These regulations shall apply to those commercial areas so designated which are within the confines of the airport obstruction zoning ordinance for the Huntsville-Madison County Airport. Within an airport commercial district as shown on the Official Zoning Maps for the City of Huntsville, Alabama, the following regulations shall apply:

64.1. Uses permitted.

Land and buildings shall be used only for the following:

Agricultural uses.

Ambulance services.

Animal hospital or veterinary clinic, pet shops.

Apparel stores.

Auction gallery, including auto auction.

Automobile repair garage, mechanical and body, provided all operations are conducted entirely within an enclosed structure.

Automobile sales, new and used, retail and wholesale with attendant facilities, except that any mechanical or body repair must be conducted entirely within an enclosed structure and provided further that all vehicles on a used car sales lot must be in operating condition at all times.

Bakery, where not more than five persons are employed on the premises and where the products made are sold exclusively at retail on the premises.

Banks, savings and loan associations.

Barbershops, beauty parlors, reducing salons.

Building and lumber supply establishments, provided the entire storage area is enclosed within a solid fence at least seven feet in height, or greater, if required to adequately screen such area, and that any machine operations must be conducted entirely within an enclosed structure.

Bus depots.

Cafes, delicatessens, coffee shops and restaurants without alcohol.

Carwash establishments.

Commercial parking garages or lots.

Confectionery stores.

Drugstores and apothecaries.

Dry cleaning establishments utilizing only nonflammable dry cleaning fluids.

Farmers markets.

Florist shops and greenhouses.

Furniture stores.

Gasoline service stations.

Grocery stores.

Gymnasiums, fitness and exercise centers, health clubs and spas.

Hardware stores, gift shops and variety stores.

Hotels and motels are permitted as special exceptions when they are located in areas of 65 Ldn or less as defined on the airport noise exposure map, dated 1990, as adopted by and as the same may be amended by the City of Huntsville.

Jewelry stores, watch repair shops.

Laundry operations, launderette, coin-operated dry cleaning establishments.

Light manufacturing and assembly, provided all such uses are in accordance with the performance standards referenced in section 64.10 hereof.

Mortuaries and crematoriums.

Municipal, county, state or federal uses.

Music or record shops.

Newsstands, hobby shops.

Notions and dry goods stores.

Offices, professional buildings.

Photographic studios, photo retail sales.

Places of amusement, golf driving ranges, miniature golf, baseball batting, and similar non-offensive establishments, but not including theatres or drive-in theatres.

Print shops, newspaper publishing houses.

Radio and television appliance stores and repair shops.

Self-propelled camping and recreational vehicle sales; trailer and mobile home sales; boat sales.

Shoe stores, shoe repair shops.

Tailor shops.

Upholstering shop, where not more than five persons are employed.

Warehousing, wholesaling, interior storage, and distribution in conjunction with manufacturing, assembly and office use.

Accessory structures and uses to those permitted herein.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.
(Ord. No. 97-707, § 1, 11-13-1997; Ord. No. 03-593, § 5, 8-14-2003; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 11-11, § 14, 2-24-2011; Ord. No. 11-899, § 2, 1-26-2012; Ord. No. 15-406, § 2, 7-23-2015)

64.2. Density controls.

64.2.1. All structures shall be set back not less than 40 feet from all existing or proposed public streets.

64.2.2. Minimum lot size shall not be less than one acre for each tract.

64.2.3. Minimum lot width of each tract shall be not less than 100 feet as measured at the minimum building line.

64.3. Required yards.

64.3.1. All required yards shall be kept clear of driveways, vehicular access ways, parking areas, loading areas, accessory uses and buildings, provided however, that a gate or security station or a detached ground identification sign meeting the requirements of section 72.4.5(3) may be located in a required yard.

64.3.2. Yards facing an existing or proposed public street shall be considered front yards. Such yards shall have a minimum depth of 40 feet. On corner lots having two front yards, a 40-foot required front yard shall be maintained on the street that the building front faces; the required front yard on the remaining street may be reduced to a minimum depth of 30 feet.

64.3.3. Minimum required depth of rear yard shall be 15 feet.

64.3.4. Minimum required width of each side yard shall be ten feet.
(Ord. No. 09-430, § 26, 7-9-2009)

64.4. Street access and frontage.

Each lot shall have a minimum frontage of 100 feet on a public road, provided, however, the manager of planning may approve a lesser frontage to a minimum of 50 feet for lots located on culs-de-sac or street curves.

64.5. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

64.5.1. Driveways and vehicular access ways, except as necessary to cross a required yard, are not permitted in any required yard. Driveways and vehicular access ways shall be paved and properly drained.

64.5.2. Parking areas shall not be placed in any required yard. All parking areas shall be paved and properly drained. No parking shall be permitted any place other than in paved parking areas.

64.5.3. Loading areas shall not be placed within any front yard or in any required yard and shall be located and properly screened, as well as practicable, so as to not be visible from any existing or proposed street.

64.5.4. Parking and loading areas shall be landscaped in accordance with section 64.8, landscaping requirements.

64.5.5. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6, PVA lighting requirements.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 99-1020, § 14, 1-13-2000; Ord. No. 09-430, § 27, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

64.6. Signs.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

64.7. Height requirements.

Maximum number of stories: three

Maximum height of building: 45 feet

64.8. Landscaping requirements.

Every building site on which a building shall be placed shall be landscaped in the following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

64.8.1. All yards required under this ordinance shall be landscaped and maintained. A minimum of one tree per 20 linear feet of distance for each boundary line shall be planted in the required yards.

64.8.2. All off-street parking areas, to include drives within the parking areas, greater than either 15 automobile spaces or 5,000 square feet shall have at least five percent of the interior of the parking area landscaped in planting islands or peninsulas. Width of islands or peninsulas shall be a minimum width of at least five feet between backs of curbs, and at least one tree per 20 parking spaces shall be planted within the planting islands or peninsulas in addition to other landscaping materials and plants.

64.8.3. All mechanical and utility equipment, incinerators and trash containers, and accessory structures necessary for the conduct of a permitted use shall be adequately screened, as well as is practicable, by fencing or landscaping so as to not be visible from any existing or proposed street or from the ground floor of adjacent buildings.
(Ord. No. 02-43, § 1, 2-28-2002)

64.9. Underground wiring requirements.

All power, communication, and other wiring hereafter installed in an airport commercial district shall be placed underground.

64.10. Performance standards.

The performance standards listed in article 50, section 50.2 (research park district) hereof shall be required for all uses located in an airport commercial district.

64.11. Development procedure.

64.11.1. Any landowner of property lying within an airport commercial district desiring to dedicate any street, road, or right-of-way to the public must submit to the planning commission for approval a plan of the proposed street, road, or right-of-way.

64.11.2. Anyone desiring to secure a building permit for the use of land lying within an airport commercial district must submit to the manager of planning the following information, as appropriate, for approval of plans:

(1) A site plan for traffic engineering analysis, showing location and design of buildings, driveways, driveway intersections with streets, parking areas, loading areas, maneuvering areas and sidewalks;

(2) A planting plan, including screen walls and fences, for analysis of adequacy of visual screening and landscape architectural design;

(3) Plans for all signs to be erected, including location and lighting of each sign.

The manager of planning shall review and approve by signature the proposed plot plan upon finding

that the same complies with these regulations. If the proposed plot plan is not approved, the manager of planning shall state in writing on the proposed plot plan the cause for such disapproval.

64.12. Alcoholic beverage establishment regulations.

Alcoholic beverage establishments shall be permitted in accordance with section 75.3 - permitted establishments by districts, subsection 75.3.5, and shall be regulated by article 75 - alcoholic beverage establishment regulations.
(Ord. No. 11-11, § 14, 2-24-2011)

ARTICLE 65. SLOPE DEVELOPMENT DISTRICT REGULATIONS*

Purpose. The purpose and intent of this ordinance is to protect the health, safety and general welfare of the public by creating the slope development zoning district and establishing the boundaries of such district; by providing for the kind, character and use of structures and improvements that may be made or erected within the slope development district herein created; by providing for regulation and restriction of the erection, construction, reconstruction, alteration, repair or use of buildings, structures, improvements or land within such district; by providing for safety standards in the construction of improvements, both public and private, within the said district, based on the character of the district and its peculiar suitability for development; by providing standards to minimize the degradation of the district's special ecological character by adapting development to the natural terrain; by providing for the concentration of allowable density within the district in less hazardous construction zones, and to allocate areas not suited for development, due to geotechnical factors, to the use of open space; by providing protection for existing natural and man-made environmentally sensitive areas within the district and by providing protection from existing natural and man-made hazards therein; by requiring buildings and improvements to be designed and constructed in a manner as to be inconspicuous from viewpoints on the valley floor and adjacent slopes, and preventing indiscriminate, unnecessary grading or stripping of vegetation, for aesthetic protection and for stormwater runoff and erosion protection; by providing limits to impervious ground cover; and by generally regulating density, use and construction standards within the district to minimize the risks associated with development on slopes and unstable geological conditions.
(Ord. No. 96-159, 4-25-1996)

65.1. Establishment of the slope development district.

The boundaries and designations of the slope development district are hereby established and approved as defined herein and as shown and designated on the official zoning maps of the City of Huntsville, Alabama.

65.1.1. The slope development district boundary has been established at the elevation contour immediately above or below which a 25-foot vertical span of mountainside has a slope of 15 percent or greater and the district is to include those contiguous parts of mountains or hills that exhibit at least 100 feet of relief as measured from the lowest elevation contour that bounds the 15 percent or greater slope to the highest contour of the district as defined herein. In addition, the upper boundary shall be extended 50 feet (horizontal distance) beyond the elevation contour immediately below which a 25-foot vertical span exhibits a slope of 15 percent or greater.

65.1.2. When a lot is divided by the Slope Development District boundary line, the lot shall be considered as lying wholly within the district unless it satisfies the following conditions:

(1) That portion of the lot lying within the slope development district shall remain undisturbed and shall have

*__Editor's note—__Ord. No. 96-159, adopted April 25, 1996, deleted former ch. VI, art. 65, of the zoning ordinance and added new provisions as ch. VI, art. 65, as herein set out. Former ch. VI, art. 65, pertained to mountainside development district regulations and derived unamended from the original zoning ordinance.

a restriction placed on the final plat requiring that it be retained in its natural state except for hiking trails, and

(2) That portion of the lot lying outside the slope development district shall be of sufficient size and shape to meet all the minimum yard setback, lot area, and lot width requirements of the underlying zoning district.

If the option is taken to remove a divided lot from the authority of the slope development district regulations, then no part of the divided lot shall be included in the impervious cover calculations for the subdivision of which it is a part.

65.1.3. The slope development district boundary is shown and designated on a 1:4800 scale map (one inch equals 400 feet) having contour intervals of five feet. Slope percentage is calculated perpendicular to contours over a 25-foot vertical span. The boundary is delineated perpendicular to slope on the five-foot contour lines and parallel to slope between contour lines. Local variations in slope that continue for horizontal distances of less than 200 feet parallel to contour lines are not shown by adjustments in the district boundary.

65.1.4. In the event of a discrepancy between the mapped district boundary and the surveyed district boundary, the surveyed boundary line shall prevail, provided the following certification is made part of the slope map submitted for development approval:

I, _____, do hereby certify that I am a licensed land surveyor in Huntsville, Alabama, that I have surveyed the lands embraced within (development name), that the contours shown hereon accurately describe the natural, undisturbed topography of the site existing prior to the development, and that the boundaries of the slope development district as shown hereon have been established in conformance with the provisions of section 65.1.1 of the Huntsville Zoning Ordinance.

_____ _____
Date Land Surveyor

(Ord. No. 96-159, 4-25-1996)

65.2. Application.

The slope development district is created as a special zoning classification to be superimposed on other existing zoning districts contained in the zoning ordinance of the City of Huntsville. Except where in conflict with the specific requirements of the slope development district, the permitted and accessory uses and all other requirements shall be as determined by the regulations of the basic underlying district contained elsewhere. All requirements for the slope development district, where superimposed on other existing zoning districts otherwise contained in the zoning ordinance of the City of Huntsville, shall be uniform for each class or kind of building, structure or improvement throughout the slope development district.
(Ord. No. 96-159, 4-25-1996)

65.3. Zones of the slope development district.

The slope development district is hereby divided into two slope zones based on the increasing risk of instability and the decreasing safety factor associated with increasing slope as established by

the Slope Development Study, Huntsville, Alabama, prepared by Ground Engineering and Testing Service, Inc., 1989. The zones are defined as follows:

65.3.1. *Lower slope zone.* This zone shall include all areas of land within the boundaries of the slope development district that are not part of the upper slope zone.

65.3.2. *Upper slope zone.* This zone shall include all areas of land within the boundaries of the slope development district beginning at the elevation contour defining the start of the 20 percent slope and encompassing all contiguous slopes of 20 percent or greater. The upper slope zone boundary shall be computed according to the procedure described in section 65.1.3 herein, where a 25-foot vertical span of mountainside has a slope of 20 percent or greater. The upper slope zone may begin at the lower district boundary, may extend to the upper district boundary if present, or may create one or more enclosed areas delineated by a continuous extension of the upper slope zone boundary.

65.3.3. If a lot is cut by the boundary contour separating the lower and upper slope zones, then the lot shall be considered to be a part of that slope zone in which the majority of its area is located.

65.3.4. *Hazard zone.* This zone shall include all areas of land within the boundaries of the Slope Development District that exhibit any or all of the following geologic or man-made hazards:

(1) Pennington, shaley Upper Bangor, or Pride Mountain geologic formations;

(2) Colluvial deposits having a depth of five feet or greater or being contiguous to an off-site colluvial deposit that exceeds five feet in depth; and

(3) Evidence of mining operations (mine or quarry tailings, or similar geologic conditions).

65.3.5. For colluvial deposits present on a site to be removed from the hazard zone provisions, the following certification must be made a part of the site assessment map:

I, _____, the geotechnical engineer of record, having caused investigations to be performed and based on the findings of said investigations, do hereby certify that the colluvial deposits identified by location and extent on this map are less than five feet in depth and are not contiguous to any off-site colluvial deposit that exceeds five feet in depth.

_____ _____

Date Geotechnical Engineer of Record

65.3.6. No buildings, structures or improvements shall be constructed, erected or placed on any land having a hazard zone designation, except where:

(1) Such site has undergone additional geotechnical analysis and testing both upslope to where a potential landslide would begin and downslope to where a potential landslide would end, and

(2) The engineer of record places the following signed certification on the final subdivision plat or, in the case of a multifamily development, on the site plan:

I, _____ the engineer of record, certify that the proposed development shown hereon is designed in accordance with sound engineering standards and practices, and in accordance with all applicable development regulations. I further certify that I have caused prudent investigation, testing and inspections to be performed on all lands within the proposed development identified as hazard zone, as defined by the zoning ordinance of the City of Huntsville, Alabama, including geotechnical analysis and testing on all hazard zone lands and on lands upslope and downslope of the proposed development, and I have instructed the land surveyor as to those areas within the proposed development that fall within the hazard zone for inclusion in the development plats. Based upon the

investigation, testing and inspections performed, as defined and discussed in the geotechnical analysis and report dated _____ and submitted in connection herewith, and further based upon any remedial measures taken in connection with the hazards defined therein, I certify that, within acceptable geotechnical standards, development of the property as shown on the plat will not diminish the stability of the slope or otherwise increase the likelihood of landslide or other slope failure and that the buildable areas designated hereon can meet a minimum safety factor of 1.5 for stability.

_____ _____
Date Engineer of Record

(3) The owner of the property places the following signed certification on the final subdivision plat or, in the case of a multifamily development, on the site plan:

I, _____, owner/owners of the lands embraced hereon, hereby certify that I have caused investigation in accordance with sound engineering standards and practice to be made of hazard zone lands, as defined by the zoning ordinance of the City of Huntsville, Alabama, within the development as shown hereon. I further understand the potential and inherent danger of said lands and that landslides have originated in conditions that regularly exist on said hazard zone lands. With this knowledge, I hereby certify that I have caused all prudent measures to be taken in the design of the development as shown hereon, including an analysis of all lands upslope and downslope of the hazard zone lands, to assure that the site is safe for the proposed development, and within acceptable geotechnical standards the proposed development will not diminish the stability of the slope or otherwise increase the likelihood of landslide or other slope failure.

_____ _____
Date Owner

65.3.7. Where a subdivision or multifamily site contains unbuildable hazard zone land, then such land may be included in lots if:

(1) The specific hazard zone condition is identified and its extent is designated on the final plat or site plan;

(2) The area of the hazard zone land is restricted to remain undisturbed and be retained in its natural state;

(3) The area of the hazard zone land is so located that the lot or site can be developed without disruption to it; and

(4) A restricted use buffer extends a minimum of 25 feet beyond the edge of the hazard zone land.

(Ord. No. 96-159, 4-25-1996)

65.4. Density controls.

Within the boundaries of the slope development district, the following density requirements shall apply:

65.4.1.

Density Controls	*Lower Slope Zone*	*Upper Slope Zone*
Minimum required lot size	25,000 square feet	40,000 square feet
Maximum impervious cover per lot	15% of lot area	10% of lot area

Density Controls	*Lower Slope Zone*	*Upper Slope Zone*
Maximum impervious cover per subdivision	25% of subdivision area	25% of subdivision area
Maximum total building area	10% of lot area	8% of lot area
Maximum disturbed area per lot*	30% of lot area	20% of lot area
Minimum lot frontage	20 feet	
Minimum lot width	60 feet	
Minimum depth of front and rear yards	50 feet from major arterials 15 feet from other streets or lots	
Minimum width of each side yard	10 feet	

* See section 65.5.3.

65.4.2. *Application of impervious cover.* Impervious cover is the sum of the areas within the boundary of a site that is covered with a surface material or treatment that substantially prohibits or impedes the infiltration of water into the ground. Maximum impervious cover for a lot or subdivision shall not exceed the number of square feet derived by multiplying the land area of such lot or subdivision by the appropriate impervious cover percentage. In addition to other impervious cover, all driveways and prepared parking areas shall be counted as impervious cover as shall all area lying below the roof of any structure. Impervious cover is not transferrable from one lot to another.

65.4.3. *Nonresidential uses.* Where a nonresidential use adjoins a residential use, a buffer at least 30 feet wide must be maintained in a natural state along such residential boundary.

65.4.4. *Height limitations.* The maximum number of stories for single-family residential buildings is 2½ and building height shall not exceed 45 feet at any point as measured vertically from the natural grade prior to development to the highest point of the roof.

Building height for multifamily and nonresidential buildings shall not exceed 35 feet as measured vertically from the natural grade prior to development to the highest point of the roof. If roof-mounted mechanical or other equipment is present, such equipment shall be located or screened so as to not be visible from adjacent streets and properties; any such screening shall meet the applicable height limitation.

Chimneys and antennae shall be excluded from the above height limitations.

65.4.5. *Buildable area.* Where there is any proposed multifamily construction or any subdivision of land within the slope development district, a building site plan or final plat is required. The final plat or building site plan shall include:

(1) A clear delineation of the buildable area for each lot or building site. The buildable area shall satisfy all density requirements of the zoning ordinance as well as those regulations requiring setbacks from cultural and environmental features and from identified hazards.

(2) The buildable area shall be large enough to permit the use of the allotted amount of building area for the lot and be free of slopes in excess of 35 percent and of all hazard zone conditions unless accompanied by certifications as specified in section 65.3.6. If the buildable area contains slopes between 25 percent and 35 percent, the plat must state that foundation restrictions apply.

(3) A clear designation of the maximum amount of impervious cover in square feet allotted to each lot.

(4) A clear designation of the maximum amount of building area in square feet allotted to each buildable area.

(5) A clear designation of the minimum area of each lot, expressed in square feet, that must be retained in its natural state.

65.4.6. *Off-street parking requirements.* Two off-street parking spaces shall be provided for each residential unit.

Nonresidential parking spaces shall be as required by section 70.1, off-street parking.

65.4.7. *Permanent reservation of land.* Development within the slope development district is eligible for modified density controls when the following conditions are satisfied:

(1) At least 15 percent of the total area of the subdivision tract lying within the slope development district is permanently set aside prior to development to be held in its natural, undisturbed state except for hiking trails; and

(2) The land so restricted is the steepest, or the most hazardous, or the most environmentally sensitive portion of the tract, so that the land remaining for development is that most suitable and safest for development.

The unreserved portion of the tract lying within the lower slope zone may be developed according to the following density controls:

Optional Density Controls	*15% to 29.9% of Land Reserved*	*30% and Greater of Land Reserved*
Minimum required lot size	21,000 square feet	17,250 square feet
Maximum impervious cover per lot	18% of lot area	22% of lot area
Maximum impervious cover per subdivision	25% of subdivision area	25% of subdivision area
Maximum total building area	13% of lot area	16% of lot area
Maximum disturbed area per lot	34% of lot area	39% of lot area
Minimum lot frontage	20 feet	
Minimum lot width	50 feet	
Minimum depth of front and rear yards	50 feet from major arterials 15 feet from other streets or lots	
Minimum width of each side yard	9 feet	8 feet

(Ord. No. 96-159, 4-25-1996)

65.5. Development standards.

65.5.1. *Grading.*

(1) Natural slopes in excess of 35 percent shall not be graded except as needed to provide for utility service to developable areas of less than 35 percent slope and/or other officially adopted public facilities except that in no case shall any building or structure be allowed.

(2) Grading on natural slopes of 25 percent or greater shall only be permitted for the construction and installation of roads, utilities, and other limited foundation grading, which can be shown to be sensitive to the existing terrain. Proposed structures

on slopes of 25 percent to 35 percent shall be designed to conform to the terrain and shall utilize pier and beam, step, or other such foundations that require only limited excavation and filling. Areas of cut visible from any public right-of-way shall be screened by landscaping except in those cases where visible cuts in stable rock are impractical to screen.

(3) No cut and no fill shall be allowed on any lot except for:

(a) The construction of a primary use structure when the cut or fill is required for the construction of the building foundation, in which case the total area of such cut or fill, as measured from the exterior faces of the walls of the structure to the outer limits of the cut or fill, must be subtracted from the allotted amount of landscaped yard area as defined in section 65.5.3;

(b) The construction of a driveway or parking area to access the primary use structure, in which case the total area of such cut or fill, as measured from the outer edges of the driveway or parking area to the outer limits of the cut or fill, must be subtracted from the allotted amount of landscaped yard area as defined in section 65.5.3;

(c) The construction of utilities, provided all said areas of cut are restored to natural grade and revegetated to conform to the character of the surrounding natural terrain. In order to reduce grading disturbance during utility installation, all utilities shall be incorporated in common trenches, where practical, utilizing duct banks designed and constructed to current standards of Huntsville Utilities as the same may from time to time be amended; or

(d) The testing of land, as required by the regulations of the City of Huntsville, or other bona fide geotechnical or geological testing provided that a testing plan consistent with the provisions of the subdivision regulations of the City of Huntsville is submitted to and approved by the zoning administrator prior to any cut or fill operation.

(4) Mass grading of hilltops, ridges, and ravines shall be prohibited.

(5) All slopes to be stabilized shall conform to the surrounding natural terrain and shall be revegetated so as to conform to the natural character of the surrounding area.

65.5.2. *Environmental features.*

(1) Road alignment shall follow natural terrain wherever possible and no unnecessary cuts or fills shall be allowed for the sole purpose of creating additional lots or building sites.

(2) A restricted use area shall extend a minimum of 50 feet from the following features:

(a) Landslides. Setback measured from mapped boundary of landslide.

(b) Perennial streams and major drainageways including, but not limited to, all streams and drainageways delineated by the U.S. Geological Survey and Tennessee Valley Authority on the 7.5 minute quadrangle topographic map series. Drainageways that have been modified by man or by natural processes so that they are different from those delineated on the 7.5 minute quadrangle maps shall be set back from as de-

fined herein. In addition, some man-made drainageways as designated by the city engineer shall be set back from as defined herein.

The 50-foot setbacks shall extend landward from the banks or normal high water points of the drainageways.

(c) Bluffs of greater than 20 feet of relief. Setbacks shall extend from a line defining the top and bottom of said bluff.

(3) A restricted use area shall extend a minimum of 25 feet from the following features:

(a) Cave entrances. Setback measured from edge of cave entrance.

(b) Sinkholes. Setback measured from edge of those sinkholes that exhibit three feet or greater depth of closed depression.

(c) Perennial springs. Setback measured from perimeter of spring.

(d) Abandoned quarries. Setbacks shall extend from the top and bottom of quarry face.

(e) Historical and archeological sites. Setbacks shall extend from the boundaries of significant historical or archeological sites as determined by the Alabama Historical Commission.

(f) Wetlands. Setbacks shall extend from the boundary of the wetland.

(4) Areas within the above minimum setbacks shall be retained in their existing state and be restricted from all development except for hiking trails, provided such trails neither create nor increase a public hazard, and except for certain minimal grading within said setback, provided the following conditions are met:

(a) Minimal grading is required to construct public utility service and/or roadways to adjacent properties; and

(b) No technically feasible alternative route or construction method exists.

(5) The site shall be suitable for development in the manner proposed, without hazards to persons or property on or off the tract, from probability of flooding, erosions, subsidence or slipping of the soil, or other geologic dangers. Condition of soil, ground water level, drainage, and topography shall be appropriate to both kind and pattern of such intended development.

(6) The natural terrain shall not be disturbed, cut, filled, graded or rearranged by either the developer or subsequent property owners beyond that necessary for the construction of buildings and infrastructure to the extent herein permitted.

65.5.3. *Landscaping.* It is desirable that yards be maintained in a condition close to their natural state in order to reduce the potential negative impacts of stormwater runoff, erosion and sedimentation, chemical fertilizer pollution, and irrigation that are commonly associated with the establishment of lawns and other plantings not native to the mountain slopes; however, a landscaped yard may be created provided the following conditions are met:

(1) In the lower slope zone, 70 percent of the lot shall be retained in its natural state.

(2) In the upper slope zone, 80 percent of the lot shall be retained in its natural state unless the lot lies on a slope of 25 percent or greater, in which case the entire lot beyond the allotment for impervious cover shall be retained in its natural state.

(3) Land lying within utility and drainage easements that is disrupted by installation or maintenance of public improvements shall not be counted as disturbed lot area for the purpose of section 65.5.3.

(4) Natural state shall mean the original condition of the land prior to any development or other human disturbance. No grading, excavating, or filling and no construction of roads, driveways, parking areas or structures shall be allowed. No tree cutting shall be allowed except for sick or damaged trees or trees that create a health or safety hazard. Unpaved hiking trails may be permitted as may additional plantings of native trees, shrubs and wildflowers that would be compatible with and enhance the natural environment.

(5) The allotted area of landscaped yard must be decreased by the amount of any areas of cut or fill utilized in construction of the primary use structure and/or driveway/parking areas that have not been finished with impervious cover or returned to their natural state through revegetation that conforms to the character of the surrounding natural terrain.

(6) The majority of the landscaped area should be located on that portion of the lot which is upslope from the primary use structure in order to minimize the harmful effects of increased pollution, runoff and erosion on downslope properties.

(7) Fill material that is imported to provide a base for landscape plantings shall be limited to the minimum amount necessary and no colluvial soil shall be used for fill.

(8) Turf grass and other imported ground covers shall not be planted on colluvial soil.

(9) Trees may be removed:

(a) Within rights-of-way to allow road construction;

(b) Along easements if necessary for construction of said utility;

(c) As necessary to conduct geotechnical testing after approval of the testing plan by the zoning administrator.

(d) Within the areas of cut or fill required for construction of primary use structures, driveways and parking areas;

(e) On that portion of a lot not required to be maintained in its natural state; and

(f) To eliminate sick or damaged trees or trees that create a health or safety hazard.

(10) Tree topping and clear cutting are prohibited within the slope development district.

(Ord. No. 96-159, 4-25-1996; Ord. No. 07-460, § 5, 6-28-2007)

65.6. Lots of record and existing structures.

65.6.1. *Lots of record.* Where a lot, as defined in section 3.1, exists wholly within the slope development district or its buildable area is cut by the slope development district boundary and it was recorded in the office of the probate judge in the county where said lot is situated prior to the time of adoption of this article, then such lot is excluded from the regulations of this article, except for:

(1) Building heights for all single-family residential lots of record shall not exceed more than 45 feet at any point as measured vertically from the natural grade prior to development to the highest point of the roof. The number of stories permitted shall not exceed 2½ stories.

Building heights for all multifamily and nonresidential lots of record shall not exceed 35 feet (35') at any point as measured vertically from the natural grade prior to development to the highest point of the roof.

(2) Certification to the manager of inspection prior to the issuance of a building permit that the proposed building site and structure can meet a minimum safety factor of 1.5 for stability;

(3) Certification to the manager of inspection prior to the issuance of a building permit that the proposed site can meet a minimum safety factor of 3.0 for bearing capacity of the underlying soil; and

(4) Certification to the manager of inspection prior to the issuance of a certificate of occupancy that the completed building or structure meets a minimum safety factor of 1.5.

65.6.2. *Existing structures.* Where a lawful structure exists within the slope development district or has been issued a building permit by the manager of inspection prior to the date of adoption of this article, then such structure is excluded from the regulations of this article except when an addition is undertaken that would enlarge the footprint of the existing structure. In such case, the manager of inspection may require certifications as defined in section 65.6.1 above.

(Ord. No. 96-159, 4-25-1996)

65.7. Variances and special exceptions.

Applications for variances and special exceptions from the requirements of this article shall be submitted to the city zoning administrator, who shall forward such application to the city engineer, who shall review the application and report his findings to the zoning administrator for a decision. An appeal of the zoning administrator's decision may be filed with the board of zoning adjustment as provided in article 92 of the zoning ordinance of the City of Huntsville. Variances shall only be issued upon a determination that an unnecessary hardship exists on the subject property, unique or different from that shared or suffered by adjacent or similarly situated property within the slope development district, or as otherwise permitted by section 92.5.4 of this article and by Code of Ala. 1975, § 11-52-80. Special exceptions shall be granted only as provided by section 92.5.2 and section 92.5.3 of this article.

(Ord. No. 96-159, 4-25-1996; Ord. No. 07-460, § 5, 6-28-2007)

65.8. Severability.

If any section, clause, provision, or portion of this article shall be held to be invalid or unconstitutional by any court of competent jurisdiction, such holding shall not affect any other section, cause, provision or portion of this article which remains.

(Ord. No. 96-159, 4-25-1996)

ARTICLE 66. MEDICAL 2 DISTRICT REGULATIONS

Purpose. The purpose of this medical 2 district is to provide a protective district for the harmonious development of medical facilities. The medical 2 district is intended to be protected from encroachment by land uses adverse to the location, operation, and expansion of medical use development and surrounding residential development.

These medical 2 district regulations are intended to promote the health, safety, morals, welfare, comfort, and convenience of the inhabitants of this district and its environs.

Within the medical 2 district as shown on the official zoning maps of the city, the following regulations shall apply:

66.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Accessory structures and uses to those permitted herein.

Artificial limb and brace, therapeutic establishments.

Farmers markets.

Farming and other agricultural uses.

Federal, state, county, or city owned or operated buildings and uses.

General and private hospitals.

General office uses and office buildings.

Medical, dental, optical and audiology clinics.

Medical research, experimental and testing laboratories.

Medical, surgical and dental supply houses.

Nursing homes, rest homes, and convalescent homes, skilled nursing care facilities, assisted living centers and acute long-term care facilities.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

Rehabilitation services.

Retail sales and consumer service establishments accessory to any permitted use—provided that such commercial use shall not occupy more than 15 percent of the total floor area of the building in which such use is located.

Surgery centers.

(Ord. No. 005-860, § 1, 11-22-05; Ord. No. 09-1053, § 1, 12-17-2009; Ord. No. 15-406, § 2, 7-23-2015)

66.2. Density regulations.

The following yard and density requirements shall be observed:

66.2.1. Minimum lot area: 25,000 sq. ft.

66.2.2. Minimum required depth of front yard:

From major arterials (see section 73.15): 50 feet.

From other streets: 30 feet.

66.2.3. Minimum side yard: All buildings shall have a side yard of not less than ten feet on any side. When the side lot line abuts a residential district, a side yard of 100 feet is required. Off-street parking spaces are not permitted in the first 50 feet of the required side yard as measured from a residential district.

66.2.4. Minimum rear yard: None, except that when the rear of the lot abuts a residential district, a rear yard of 100 feet is required. Off-street parking spaces are not permitted in the first 50 feet of the required rear yard as measured from a residential district.

66.2.5. Buildings shall not cover an area greater than 60 percent of the total tract upon which the buildings are located.

66.2.6. Maximum height: Maximum number of stories is five and maximum height is 75 feet.

66.2.7. Street access and frontage: Each lot shall have a minimum frontage of 50 feet on a public road; provided however, the Planning Commission may approve a lesser frontage to a minimum of 20 feet for lots located on cul-de-sacs or on street curves or having other extraordinary characteristics if the lot width at the building line measures at least 50 feet.

(Ord. No. 005-860, § 1, 11-22-05)

66.3. Required yards and landscaped areas.

66.3.1. The required front yards of all developed parcels shall be landscaped with trees, shrubs and vegetative ground covers and shall be maintained in a manner as to be neat in appearance when viewed from any street or adjacent property. A minimum of one tree per thirty-five feet of boundary, or part thereof, shall be planted and be well distributed throughout the required front yard. Required trees shall be of locally adapted species, 50 percent of which shall be of a type expected to reach 35 feet in height under normal growing conditions.

66.3.2. All off-street parking areas shall be screened to a minimum height of 36 inches, where practically feasible, from view from streets and adjacent properties by the use of earth berms and/or landscape materials. Landscape materials used for screening shall be of locally adapted species and shall be a minimum of 24 inches in height and spread at the time of installation.

66.3.3. Where required side or rear yards are adjacent to a residential district, the first 15 feet as measured from the residential district shall be landscaped with a buffer of screen planting as defined herein.

66.3.4. Exterior storage of materials shall be contained by solid or opaque fencing of a height sufficient to conceal items being stored. Fencing shall be of a material similar to and compatible with the exterior materials of the primary buildings. All exterior storage and

fencing shall be maintained in such a manner as to be neat in appearance when viewed from any street. No exterior storage or display of materials is permitted in the required front yard. Exterior storage is not permitted within 50 feet of a residential district. Exterior storage of materials is not permitted within 200 feet of a residential district unless enclosed in a solid or opaque fence of at least eight feet in height.
(Ord. No. 005-860, § 1, 11-22-05)

66.4. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.
(Ord. No. 005-860, § 1, 11-22-05; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

66.5. Off-street parking and loading requirements.

Except as provided for herein all off-street parking and loading requirements shall be provided for as set forth in article 70 hereof.

66.5.1. Driveways and vehicular access ways, except as necessary to cross a required front yard, are not permitted in a required front yard.

66.5.2. Parking areas are not permitted in a required front yard.

66.5.3. Required parking for a complex of buildings under common ownership on a common lot shall be calculated based upon designated parking for each building shown on the plans and permit application.

66.5.4. Lighting of off-street parking and vehicular use areas is required in accordance with section 71.6, PVA lighting requirements.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.
(Ord. No. 005-860, § 1, 11-22-05; Ord. No. 09-430, § 28, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

66.6. Sidewalk requirement.

Six-foot-wide sidewalks shall be required along the streets of parcels to be developed. Sidewalks shall be so designed as to tie to existing sidewalks within the area.
(Ord. No. 005-860, § 1, 11-22-05)

66.7. Underground wiring requirement.

All power, communication, and other wiring hereafter installed in a medical 2 district shall be placed underground.
(Ord. No. 005-860, § 1, 11-22-05)

66.8 Medical 2 district plan.

66.8.1 Prior to issuance of any building permit, any property owner desiring to subdivide or develop land within a medical 2 district, as shown on the official zoning maps of the city, must submit to the city planner for approval a development plan for each parcel or tract of land proposed to be developed. Such development plan shall have shown thereon the following information:

(1) The specific location of the tract to be developed or subdivided within said district and all land and development lying within 500 feet of the tract or parcel of land to be developed.

(2) Names and addresses of all land owners whose property adjoins said parcel or tract, as shown in the tax assessor's records of Madison County and/or Limestone County, Alabama.

(3) The location of all buildings proposed to be constructed within the tract.

(4) Existing and proposed accessways and roads, public and private.

(5) A generalized drainage plan showing existing and proposed drainage.

(6) Location of all existing and proposed public utilities as the same relates to the development of the property.

(7) Location of all off-street parking spaces and loading facilities.

(8) Location of proposed screen planting, walls, and garbage storage facilities.

(9) Location of all existing and proposed easements.

(10) Location of all sidewalks.

66.8.2 The planning director shall approve said development plan for a specified medical 2 district improvement, upon finding that the same complies with these regulations. Notwithstanding other provisions of this article, all subsequent development on said tract or parcel shall be approved without resubmission in all cases where the proposed improvements substantially conform to the approved development plan.

(Ord. No. 005-860, § 1, 11-22-05)

CHAPTER VII. ADDITIONAL REGULATIONS

ARTICLE 70. OFF-STREET PARKING AND LOADING REQUIREMENTS*

Required parking and loading spaces as set forth below shall be located entirely off of street rights-of-way; shall be properly drained and shall be surfaced for all-weather use equivalent to at least four inches of crushed limestone unless the zoning district contains paving requirements specific to that district; and shall have an unobstructed maneuvering space and access lanes of adequate width leading to a street or alley. No parking shall be permitted other than in prepared parking areas. Parking spaces shall contain not less than 180 square feet.

(Ord. No. 09-430, § 1, 7-9-2009)

*__Editor's note—__Ord. No. 09-430, § 1, adopted July 9, 2009, repealed Art. 70, §§ 70.1, 70.2 and enacted provisions designated as a new Art. 70, §§ 70.1, 70.2 to read as herein set out. See also the Code Comparative Table.

__Cross reference—__Stopping, standing and parking, § 25-201 et seq.

70.1. Off-street parking.

70.1.1. The following off-street parking spaces shall be provided and maintained on land owned by the owner or owners of the property for each building or use they are intended to serve. In the case of mixed or joint uses, the parking spaces required shall equal the sum of the requirements of the various uses computed separately.

70.1.2. Where the required number of parking spaces equals 15 or more spaces or contains at least 5,000 square feet, then article 71, off-street parking and vehicular use area landscaping requirements shall apply unless the zoning district contains specific landscaping requirements for parking areas; in that case, only section 71.6, PVA lighting requirements shall apply. Apartment developments having 15 or more spaces or at least 5,000 square feet of PVA shall be subject to the provisions of section 71.6.

70.1.3. *Minimum parking space requirements.*

Single-family residence:	
In Residence 1 and Residence 1-A districts:	Two spaces for each dwelling unit
In other districts:	One space for each dwelling unit
Two-Family Residence:	One space for each dwelling unit
Apartments and Independent Living Facilities:	One and one-half spaces for each dwelling unit
Assisted Living Facilities:	One space for each two dwelling units
Residential Dwelling Units above commercial and office spaces for each dwelling uses:	One and one-half unit
Ambulance services:	At least two spaces for each ambulance vehicle controlled
Animal boarding facility:	At least one space for each 600 square feet of building floor area
Animal grooming salon:	At least one space for each 400 square feet of building floor area
Animal hospital:	At least one space for each 400 square feet of building floor area

Animal shelter:	At least one space for each 600 square feet of building floor area
Animal training facility:	At least one space for each 1,500 square feet
Automobile, boat, motorcycle and machinery sales and rentals:	At least one space for each 400 square feet of enclosed floor area for the first 25,000 square feet and one space for each 600 square feet of enclosed floor area in excess of 25,000 square feet
Automobile service and repair:	At least one space for each employee, plus three spaces for each auto service bay
Banks, credit unions and financial institutions:	At least one space for each 400 square feet of floor area
Barber/Beauty Salons and Spas:	At least three spaces per station
Bowling alley:	At least five spaces for each alley
Business, industrial or trade school:	At least one space for each 50 square feet of classroom area
Churches or other similar places of worship:	At least one space for each four seats based on design capacity
Commercial heliports and/or helipads:	At least three spaces for each helicopter owned, rented, or under control
Convenience store:	At least one space for each 300 square feet of floor area
Dance academy or music studio:	At least one space for each 100 square feet of floor area
Data storage facility:	One space for each 750 square feet of floor area for employee facilities and one space for each 4,000 square feet of floor area for data halls
Daycare, kindergarten or nursery school:	At least one space for each five children plus one space for each 500 square feet of floor area plus a passenger loading space situated so that children will not have to cross a parking area or lanes of traffic
Fraternities, sororities:	At least one space for each five beds
Funeral home:	At least one space for each 50 square feet of public area, plus one space for each funeral vehicle, plus one space for each employee
Golf course:	At least five spaces per golf hole
Golf driving range:	At least one space per golf tee
Health and athletic clubs:	At least one space for each 350 square feet of floor area
Hospital:	At least one space for each bed and at least one space for each unit of doctor's and nurse's quarters
Hotel:	At least one space for each room
Hotel with restaurant, bar or meeting rooms:	Same as hotel without these facilities plus one space for each 125 square feet of customer service area in restaurant, bar, and meeting rooms
Laundromat:	At least one space for each two machines
Libraries, art galleries and museums:	At least one space for each 500 square feet of floor area

Managed care facilities, nursing homes, rest homes, convalescent homes, skilled nursing care facilities and acute and long-term care facilities:	At least one space for each four beds
Manufacturing or other industrial use:	At least one space for each one employee on the largest shift or, where the number of employees is not known, at least one space for each 500 square feet of the first 20,000 square feet of gross floor area; and at least one space for each 1,000 square feet for over 20,000 square feet of gross floor area but less than 120,000 square feet of gross floor area; and at least one space for each 2,000 square feet for over 120,000 square feet of gross floor area.
Medical or dental clinic; doctor or dentist's office:	At least one space for each 200 square feet of floor area
Medical laboratories and medical, surgical and dental supply houses:	At least one space for each 300 square feet of floor area
Miniature golf course:	At least two spaces per hole
Motel, tourist court or home, boarding house, rooming house:	At least one space for each room or unit offered for rent
Motel with restaurant, bar or meeting rooms:	Same as motel without these facilities plus one space for each 125 square feet of customer service area in restaurant, bar, and meeting rooms
Neighborhood clubhouse:	At least one space for each 500 square feet of floor area plus additional parking as required
Nursery or greenhouse:	At least one space for each 1,000 square feet of total sales area
Offices and office buildings:	One space for each 500 square feet of gross floor area
Post office:	At least one space for each 400 square feet of floor area
Private club, bar, tavern, lounge, pub, brewpub or nightclub:	Parking spaces equal in number to at least 60 percent of the maximum occupancy rating
Rehabilitation services and surgery centers:	At least one space for each 300 square feet of floor area
Restaurants, delicatessens, coffee shops and cafés:	Parking spaces equal in number to at least 50 percent of the seating capacity
Retail sales and services (unless otherwise specified):	At least one space for each 300 square feet of floor area
Self-service storage facility:	At least three spaces, plus one space for each 75 storage units
School, elementary through middle school:	At least one space for each 50 students based on design capacity plus one space for each three classrooms
School, high school through college:	At least one space for each three students based on design capacity plus one space for each three classrooms
Skating rink:	At least one space for each 200 square feet of floor area

Swim and tennis clubs:	At least one space for each 75 square feet of swimming pool water surface area and two spaces for each tennis court
Theatre, auditorium, stadium, arena, concert hall, performing arts center, coliseum, cinema or other place designed to draw an assembly of persons at a scheduled time:	At least one space for each four seats or one space for each 50 square feet of gross floor area of performance and seating area when there is no fixed seating
Trailer parks, mobile home parks, camping trailer courts:	At least one parking space for each trailer or mobile home space
Warehousing, storage or handling of bulk goods:	At least one space for each 1,000 square feet of the first 20,000 square feet of gross floor area; and at least one space for each 2,000 square feet of over 20,000 square feet of gross floor area but less than 120,000 square feet of gross floor area; and at least one space for each 4,000 square feet of over 120,000 square feet of gross floor area.

(Ord. No. 09-430, § 1, 7-9-2009; Ord. No. 16-491, § 3, 8-25-2016; Ord. No. 17-953, § 1, 1-25-2018; Ord. No. 18-339, § 1, 6-28-2018)

70.2. Off-sreet loading requirements.

All commercial and industrial buildings and uses are required to have adequate off-street loading facilities, as needed, and to have sufficient off-street parking spaces for all vehicles owned, leased, rented and controlled by such establishment and to have sufficient off-street parking spaces for all employees, visitors and customers of such establishment.
(Ord. No. 09-430, § 1, 7-9-2009)

70.3. Electric vehicle readiness requirements.

Where the required number of parking spaces equals 100 or more spaces then two electric vehicle capable spaces shall be identified, and one additional space shall be identified per 50 thereafter. The following standards are applicable:

70.3.1. These locations shall be installed with electrical panel space and load capacity to support a branch circuit and necessary raceways, both underground and/or surface mounted to support electric vehicle supply equipment (EVSE), which shall meet the electrical and conduit regulations and specifications as established by the governing electrical utility provider ; and

70.3.2. Electric vehicle capable spaces shall be located at a minimum distance of 50 feet from any structure.

The above regulations do not require the installation of an electric charging station; however, it provides for a natural progression and location of appropriate infrastructure as technology advances.
(Ord. No. 24-287, § 1, 5-23-2024)

ARTICLE 71. OFF-STREET PARKING AND VEHICULAR USE AREA (PVA) LANDSCAPING REQUIREMENTS*

71.1. Purpose.

The purpose of this chapter [article] is to:

(1) Require planting and preservation of trees and other landscape elements to improve the appearance of paved and unpaved off-street parking and vehicular use areas (PVAs);

(2) Establish criteria for off-street parking areas in order to protect and preserve the appearance, character, and value of surrounding properties, and thereby promote the general welfare, safety, and aesthetic quality of the City of Huntsville;

*__Cross references—__Stopping, standing and parking, § 25-201 et seq.; vegetation, ch. 27.

(3) Partition large PVAs with planting islands and peninsulas;

(4) Insulate public rights-of-way and adjoining properties from noise, glare, and other distractions originating from off-street PVAs;

(5) Provide safer vehicle and pedestrian circulation within off-street PVAs and along public rights-of-way;

(6) Protect streams and watercourses from excessive runoff and erosion, and to replenish underground water reservoirs by using natural drainage and infiltration systems.

(7) Establish lighting levels designed to promote visual surveillance, reduce the potential for criminal activity, and increase security.

(Ord. No. 99-1020, § 16, 1-13-2000)

71.2. Scope of application.

71.2.1. *General requirements and landscape plans.* Any off-street PVA (or system of PVAs) totaling 15 or more parking spaces or containing 5,000 square feet or more, on a single parcel of land, must be constructed in accordance with landscape and lighting plans complying with this article. Perimeter landscaping and lighting are required for all such PVAs; in addition, interior landscaping is required for PVAs having 40 or more parking spaces, or 12,000 or more square feet in area.

71.2.2. *Existing paved or unpaved PVAs.* When a lawful paved or unpaved off-street PVA already exists at the effective date of this article, such area may continue until it is expanded by more than five percent of its existing parking capacity as calculated pursuant to this article; or until the structure on the property is enlarged, relocated, or demolished for a new structure; or until a new or additional structure is constructed on the property; or until redevelopment begins on property that has been vacant for at least six months; at which time the entire PVA must be brought into conformity with requirements for new construction.

71.2.3. *Parking garages and underground PVAs.* Only perimeter landscaping is required for parking garages; landscaping requirements for adjoining PVAs at or near the grade of surrounding land will be calculated separately. Wholly underground PVAs are exempt from the landscaping requirements of this article but subject to the lighting requirements of section 71.6.

71.2.4. *Minimum compliance.* The requirements of this article are minimum standards.

(Ord. No. 99-1020, § 16, 1-13-2000; Ord. No. 01-746, § 1, 10-25-2001)

71.3. Definitions.

Accessway. One or more driving lanes intended for use by vehicles entering or leaving a PVA.

Approving authority (for landscape plans). The Manager of Inspection of the City of Huntsville.

Berm. A planted or landscaped elevated ground area between two other areas, generally designed to restrict view and to deflect or absorb noise. Berms with ground cover that necessitates mowing shall have a slope not greater than one foot of rise per three feet of run.

Caliper. Trunk diameter of a tree used in landscaping, measured six inches above ground for trees up to four-inch caliper, and 12 inches above ground for larger trees.

Crown. The branches and leaves of a tree or shrub with the associated upper trunk.

Deciduous plants. Those that shed their leaves during their dormant season and produce new leaves the following growing season.

Evergreen plants. Those that retain their leaves during their dormant season.

Footcandle. A measure of light striking a surface one square foot in area on which one unit of light (lumen) is uniformly distributed.

Ground cover. Plants, mulch, gravel, and other landscape elements used to prevent soil erosion, compaction, etc.

Interior landscaping. Treatment of grade, ground cover, vegetation, and ornamentation within a PVA.

Island. An interior landscaping feature surrounded on all sides by driving and/or parking surfaces.

Landscape element. A plant material (living or nonliving) or an ornamental material (river rock, brick, tile, statuary, etc.) differentiated from surrounding PVA surfacing materials.

Luminaire. A complete lighting unit that consists of one or more lamps and ballast, if needed, together with other parts designed to distribute light, position and protect lamps, and connect lamps to the power source.

Mulch. A material (pinestraw, bark chips, wood chips, etc.) placed on the ground to stabilize soil, protect roots, limit weed growth, and otherwise promote tree and shrub growth by simulating the role of natural forest leaf-litter.

Mulch bed. An area, generally bordered by a retaining device, with a covering of mulch over the soil.

Off-street parking and vehicular use area (PVA). An area, other than on public right-of-way, designated for the parking and movement of vehicles.

Parking garage. A structure used for parking of vehicles and having one or more parking levels above the grade of surrounding land.

Parking space. An area marked for the parking of one vehicle.

Peninsula. An interior landscaping feature attached on only one side to perimeter landscaping, buildings, etc., and surrounded on all other sides by PVA.

Perimeter landscaping. Treatment of grade, ground cover, vegetation, and ornamentation between a PVA and adjoining properties and/or rights-of-way, but excluding landscaping between a PVA and buildings on the same property.

PVA. See off-street parking and vehicular use area.

Shrub. A woody plant, generally multi-stemmed, of smaller stature than a tree.

Stem. See trunk.

Tree. A woody plant, generally with no more than one or two principal stems.

Trunk. A principal upright supporting structure of a tree or shrub.

Underground PVA. A parking area completely covered by a structure or by grass or other landscaping elements.

Visibility triangle. An area of critical visibility defined by chapter 25, article IX, visual obstructions, in which landscaping is restricted in the interest of vehicular traffic safety.
(Ord. No. 99-1020, § 16, 1-13-2000)

71.4. General PVA landscaping requirements.

Landscaping of PVAs when required shall be of two types as described below: Perimeter landscaping and interior landscaping, and shall conform to landscape plans submitted and approved in accordance with the requirements of this article.

71.4.1. *Landscape plan requirements.* A detailed landscape plan indicating the number of parking spaces, the overall amount of PVA area, the amount of interior landscaping area, and the extent of perimeter landscaping shall be submitted and approved prior to issuance of a building permit. Landscape plans submitted under this article shall include information as listed below:

(1) General information, including date, north arrow, and scale of one inch to no more than 50 feet; all property lines, locations of all existing and proposed easements and rights-of-way; existing and proposed topography, drawn at a maximum contour interval of five feet and indicating drainage channels; the zoning designations of the site itself and all adjacent properties; the names, addresses, and telephone numbers of developers, architects,

and owners of the property for which the plan is designed; and the name and business affiliation of the person preparing the landscape plans.

(2) Construction information, including the locations of buildings, parking spaces and vehicular use areas; utility fixtures, including lightpoles, power and service poles, aboveground pedestals (low-voltage) and pad-mounted (high-voltage) fixtures, underground electrical, communications, and television cables and conduits; hose bibs, sprinkler systems, meters, control boxes, etc.; and the amount (square feet) of PVA and intended surface treatments; and the total amount (square feet) of interior landscaping in peninsulas and islands.

(3) Landscaping details, including the locations, caliper, species (common name), and intended treatment (move, remove, or save) of existing trees eight inches or larger in caliper; locations, dimensions and treatments of all perimeter and interior landscaping areas (islands and peninsulas).

(4) A schedule of all new and existing plants proposed for landscaping, including size (caliper and height, container size, etc.), condition (bare-

root, balled-and-burlapped, container-grown, or preexisting), common names and botanical names (genus, species, and variety) of trees, shrubs, and ground cover, and the type and amount of turf grasses.

71.4.2. *Perimeter landscaping requirements.* For any PVA of 15 or more parking spaces or totaling 5,000 square feet or more, perimeter landscaping according to these standards must be provided within the property lines between the PVA and adjoining properties and public rights-of-way. Planting areas existing in the public right-of-way or on adjoining property shall not count toward the required perimeter landscaping area.

(1) Perimeter landscaping areas shall be at least five continuous feet in depth, excluding walkways, measured perpendicularly from the adjacent property line or right-of-way to the back of curb or pavement edge.

(2) Accessways through perimeter landscaped areas, between PVAs and public rights-of-way and between adjacent PVAs, shall conform to the following standards:

	Type of Accessway	
	One-way	*Two-way*
Maximum width*	30 feet	40 feet
Maximum number of accessways** per full 100 feet of right-of-way frontage or common PVA boundary	2	1

*The width of accessways may be subtracted from the perimeter dimension used in determining the number of trees required.

**Accessways for sites must have specific approval from the city public works services department, department of parking and public transit, and, if fronted on a state highway, the State of Alabama Highway Department.

(3) Perimeter landscaping shall include at least an average of one tree and six shrubs per full 50 linear feet of perimeter requiring perimeter plantings (less accessways); shrubs are optional in areas where a berm at least three feet in height is used. Trees and shrubs shall be well-distributed, though not necessarily evenly spaced.

(4) Landscaping at driveways and street intersections shall conform to chapter 25, article IX, visual obstructions, and section 73.10, corner visibility, hereof.

71.4.3. *Interior landscaping requirements.* Planting islands and/or peninsulas shall be provided for any PVA of 40 or more parking spaces or 12,000 or more square feet (not including the area of perimeter landscaping and not including the area of any plantings between the parking lot and buildings), with dimensions and arrangements as given below:

(1) The minimum area of required interior landscaping shall be determined by the following formula:

$$\text{Min Interior Landscape Area} = \text{Total PVA Area (sq. ft.)} \times \frac{[1.826 + (0.00435 \times \text{total number of parking spaces planned})]}{100}$$

... up to a maximum requirement of four percent of PVA area for PVAs containing 500 or more parking spaces. No interior landscaping is required for PVAs containing fewer than 40 parking spaces or less than 12,000 square feet.

(2) Each island or peninsula, to count toward the total interior landscape requirement, shall be at least 100 square feet in area; however, the maximum contribution of any individual island or peninsula to the total interior landscaping requirement shall be 1,000 square feet.

(3) Islands and peninsulas must be at least five feet in their least dimension, measured from back of curb to back of curb.

(4) In the case where the loading, storage or vehicular access requirements of a particular use make the interior landscaping impracticable, then the requirements for interior islands and peninsulas may be waived provided that an equivalent area is added to the landscaping elsewhere and is in addition to the landscaping otherwise required on the site.

(5) The interior landscaped area shall contain at least an average of one tree and four shrubs per 200 square feet of landscaped area. Each island or peninsula shall contain at least one tree.

71.4.4. *Credit for existing plant materials.* Each existing tree meeting the following criteria may count, at the option of the owner, for two of the trees in its class (interior or perimeter) required in this section if other landscaping requirements are met, and if it:

(1) Has a minimum caliper of three inches;

(2) Is not one of the following species hereby determined to be unacceptable for parking lot landscaping:

Large Trees

Boxelder
Silver maple
Tree-of-Heaven
Catalpa
Sycamore
Cottonwood
true poplars
Native elms (American, winged, cedar, slipper, and September)
Colorado blue spruce
Red spruce
Live oak
Laurel oak

Medium Trees

Camphor
Cutleaf European birch
Silktree (mimosa)
Chinaberry
Yellowwood
Princesstree (Paulownia)
Slash pine
Eastern white pine
Willows
Sassafras

Large Trees

Mulberry
Siberian elm

Small trees

Sumacs

(3) Is at least two feet from the nearest planned curb or standard protective wheel stop and is within a planned planting of at least 100 square feet;

(4) Has a live crown at least 30 percent of the total tree height and is free from serious root, trunk, and crown injury;

(5) Is indicated on the landscaping plan as a tree "to be saved"; and

(6) Is situated so that it can be incorporated into a planned perimeter landscaping area, island, or peninsula with minimal grade cut or fill; and is protected during all prelandscaping phases of construction by a durable physical barrier excluding all vehicles, equipment, materials, and activities from the area that is to become a part of this landscaped area.

71.4.5. *Inspection checklist.* A checklist generally reflecting the requirements shall be devised by the planning department and shall be kept up to date, used in reviewing landscape plans, and made available to interested parties as a supplement to administration of this article.

(Ord. No. 99-1020, § 16, 1-13-2000; Ord. No. 07-460, § 6, 6-28-2007; Ord. No. 09-430, § 2, 7-9-2009)

71.5. Plant materials and installation requirements.

71.5.1. *Trees and shrubs.* All trees and shrubs planted (in addition to any existing trees allowed under "existing plant materials") in required perimeter and interior landscaped areas shall:

(1) (For trees) Be of species other than those determined by this section as unacceptable for parking lot landscaping.

(2) (For trees and shrubs) Conform to the minimum size standards in Table 1, based

on the American Standard for Nursery Stock, ANSI Z60.1-1980, published by the American Association of Nurserymen and approved by the American National Standards Institute on October 27, 1980, as follows:

TABLE 1. MINIMUM SIZE STANDARDS FOR PLANTING STOCK

Shade and Flowering Trees	*Min. Size Requirements*
Type 1, Shade trees (e.g., Red maple, tulip poplar)	2.5″ caliper, 12 ft. height range, with 16 ft. max. height
Type 2, Shade trees (e.g., Goldenrain tree, Southern Magnolia	1.5″ caliper, 6′8″ to 8′0″ height range, with 9′4″ max. height
Type 3, Small upright trees (e.g., Redbud, Crabapple)	1″ caliper, 6 to 7 ft. height range
Type 4, Small spreading trees (e.g., Flowering Dogwood, Star Magnolia)	5 to 6 ft. height range
Coniferous Evergreens	
Type 4, Pyramidal (e.g., Deodar Cedar, Pine species)	5 to 6 ft. height range
Shrubs	
All classes	Perimeter landscaping: 24″ min. height
Interior landscaping: 15″ min. height or 15″ min. spread	

(3) (For trees and shrubs) Be planted within a bed of mulch or ground cover other than turfgrass, or be protected by some barrier to damage from vehicles and maintenance equipment.

(4) (For trees) Be spaced no closer than ten feet to count toward the required ratio between perimeter and number of trees; such trees need not be evenly spaced along perimeter landscaping areas, and trees in excess of the minimum requirement may be closer than ten feet apart.

71.5.2. *Grass or other permanent ground cover.* [Grass and other permanent ground cover] shall be installed and maintained on all parts of each landscaped area.

Effective measures shall be taken to control erosion and stormwater runoff through the use of mulches, ground cover plants, erosion-control netting, etc.

Ground cover may include shrubs and low-growing plants such as Liriope, English ivy (Hedera helix), periwinkle (Vinca minor), and similar materials. Ground cover may also include nonliving organic materials such as bark or pinestraw, and inorganic materials such as pebbles, crushed rock, brick, tile, and decorative blocks; however, inorganic materials shall not make up more than ten percent of the landscaped area.

71.5.3. *Installation requirements.*

(1) Required landscaped areas adjacent to parking areas shall be protected by fixed curbing or other permanent wheel stops along all sides exposed to parked or moving vehicles.

(2) When possible, trees should be located on extensions of parking stall lines to minimize bumper, exhaust, and engine heat damage to trees.

(3) The maximum recommended distance from any part of a required landscaped area to the nearest hose bib or other irrigation water supply fixture shall be 150 feet, except where built-in irrigation systems are provided.

(4) Synthetic or artificial material in imitation of trees, shrubs, turf, ground covers, vines, or other plants shall not be used in lieu of plant requirements in this ordinance.

(5) Hedges, walls, and berms, though not required, are encouraged to help minimize the visual impact of PVAs. Berms with ground cover that necessitates mowing shall have a slope not greater than one foot of rise per three feet of run.

(6) The use of permanent broad-area mulch beds is encouraged to increase absorption of surface water, retard erosion, runoff, and stream siltation, protect tree roots and stems, and foster tree health.

(7) Planting dates recommended by the City of Huntsville are shown in Table 2.

TABLE 2. RECOMMENDED PLANTING DATES

Type of Plant Materials	*Normal Planting Dates*
Non-container grown, deciduous	October 1 to April 1
Non-container grown, other	October 1 to May 1
Container-grown, all	Yearround, if suitable precautions are taken to protect the planting stock from extremes of moisture and temperature; if there is a doubt, obtain a variance or a performance bond.

(8) Landscaping must be designed to be compatible with existing and planned overhead and underground electrical, communications, and television cables and conduits, public water supply lines, and storm and sanitary sewer lines.

71.5.4. *Maintenance.* The owner, lessee, or his agents shall be responsible for providing, maintaining, and protecting all landscaping in a healthy and growing condition, and for keeping it free from refuse and debris. All unhealthy and dead materials shall be replaced within one year after notification, or during the next appropriate planting period, whichever comes first.

71.6. PVA lighting requirements.

A detailed lighting plan for all PVAs having 15 or more parking spaces or containing at least 5,000 square feet of PVA must be submitted with the construction and landscape plans.

71.6.1. The lighting plan shall be drawn on the border of the submitting professional and shall clearly define the property lines and the zoning classifications for all adjacent properties. The lighting plan shall provide the following information:

(1) The type of lamp to be used in each fixture, including the manufacturer's name and part number, lamp wattage, lumen output, and a copy of the manufacturer's lamp specifications;

(2) Pole heights and locations;

(3) The type of fixtures, including the manufacturer's name and model number, wattage and light loss factor meeting the standards in section 71.6.3(2), a picture of the fixture, and the IES file name;

(4) Point-to-point photometric calculations at intervals of not more than ten feet at ground level demonstrating that the plan will provide a uniform intensity of lighting on vehicular surfaces in conformance with the requirements of section 71.6.3 below;

(5) The area of each photometric calculation, including an extra calculation to identify

the light level produced at the property line, and all data used in each calculation; and

(6) The stamp of the qualified registered Alabama professional.

71.6.2. All exterior lighting fixtures shall be:

(1) Protected by a weather and vandal resistant covering;

(2) Located and fitted with appropriate cutoffs, if necessary, to prevent the light level on any adjoining roadway or residential property line from exceeding one footcandle;

(3) Aimed so that they do not exceed an angle of 45 degrees out from the base of the pole when using floodlights;

(4) Installed on poles 30 feet or less in height, unless the PVA exceeds 25,000 square feet; in such cases, poles exceeding 30 feet, as measured from the finished grade to the bottom of the fixture, may be used if it is demonstrated that all the requirements of this section can be met; and

(5) Shielded so as to prevent glare on adjacent properties and rights-of-way.

71.6.3. PVA lighting shall be designed and installed in compliance with the following standards:

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(1) Illumination requirements for PVAs as measured at ground level:

TYPE OF PVA	*REQUIRED MINIMUM LIGHT LEVEL*	*MAXIMUM/MINIMUM UNIFORMITY RATIO**
Nonresidential and Residential Surface PVAs	1 footcandle	10:1
Parking Garages and Underground Parking	5 footcandles	4:1
Parking Garages and Underground Parking using LED source	3 footcandles	4:1
Garage Stairwells	10 footcandles	NA
Garage Rooftop Surfaces	1 footcandle	10:1
Nonresidential and Residential Surface PVAs using LED source	0.4 footcandles	8:1

* The highest horizontal illuminance area, divided by the lowest horizontal illuminance point or area should not be greater than the ratio shown. The maximum/minimum ratio must be calculated only for the area within the PVA; maximum light level at the right of way and at property lines shall also be shown.

(2) Standards for Light Loss Factors:

	METAL HALIDE	*HIGH PRESSURE SODIUM*	*MERCURY VAPOR*	*LED**
Light Loss Factor	0.6 to 0.8	0.8 to 0.9	0.7 to 0.8	1.00 to 0.96

* Light loss factor of 1.00 can only be substantiated when luminaires are designed with "fail-up" technology when a single lighting element fails the luminaire responds by auto increasing the output of the remaining LEDs or when luminaires have inter-changeable light engines making circuit boards replaceable or interchangeable upon group failure.

71.6.4. All required lighting shall be installed and approved prior to issuance of a certificate of occupancy. The registered professional who stamped the plans shall certify by letter that the installation complies with the approved plans. The letter shall specify fixtures, wattages, pole heights, and any special requirements, such as rotation, angle, shielding or positioning of critical poles at property lines. For PVAs smaller than 6,000 square feet, a certification letter must be submitted only if requested by the city.

71.6.5. PVA lighting meeting the standards of [this] section 71.6. shall be utilized during all hours of operation between dusk and dawn.

(Ord. No. 99-206, § 6, 4-8-1999; Ord. No. 99-1020, § 16, 1-13-2000; Ord. No. 01-746, § 2, 10-25-2001; Ord. No. 11-897, § 1, 1-26-2012; Ord. No. 15-756, § 1, 11-19-2015)

71.7. Notice of installation.

Upon the beginning of installation of plant materials required by this article, the property owner or developer shall notify the zoning administrator. The zoning administrator will require correction of conditions contrary to the requirements of this article and replacement of plant materials that are dead, diseased, damaged, or planted so as to kill or injure the plants.
(Ord. No. 07-460, § 6, 6-28-2007)

71.8. Bonding for landscaping.

No certificate of occupancy shall be issued until the provisions of this article concerning landscaping have been met or a performance bond, letter of credit or certified check has been posted. When circumstances preclude immediate planting, a certificate of occupancy may be granted after (1) the owner or developer has completed all curbing, irrigation systems, and other construction preliminary to planting, and (2) the property owner or developer posts a corporate surety bond, letter of credit, or cashier's check with the city clerk in an amount equal to 100 percent of the cost of the total required planting, including labor. Such bond shall be made payable to the City of Huntsville. Landscaping must be completed and approved within six months (180 calendar days) after a certificate of occupancy is issued in order to redeem the bond.
(Ord. No. 99-1020, § 16, 1-13-2000)

71.9. Inspection.

The zoning administrator shall make inspections as necessary pursuant to this article and shall initiate appropriate action to bring about compliance with it. Upon becoming aware of any violation of the provisions of this article, the zoning administrator shall serve written notice of such violation upon the person(s) responsible for compliance. No penalty shall be assessed until the expiration of the bond, if one has been posted, or otherwise until 60 days after notification of violation(s).
(Ord. No. 07-460, § 6, 6-28-2007)

ARTICLE 72. SIGN CONTROL REGULATIONS*

72.1. Findings and purpose.

72.1.1 Signs are an important visual communication tool that benefits our community and its citizens, and the messages they contain are a protected constitutional right under the First Amendment.

72.1.2 In the interest of furthering the purpose of this zoning ordinance, these sign regulations are herein established to provide for the use, location, and size of signs in a manner that ensures that signs are in harmony with the character of the associated use and surrounding area. More specifically, the purposes of these regulations are to:

(1) Promote and maintain attractive, high value residential, commercial and industrial areas;

*__Editor's note—__Ord. No. 21-46, § 1(Exh. A, § A), February 25,2021, repealed the former article 72, §§ 72.1—72.13, and enacted a new article 72 as set out herein. The former article 72 pertained to similar subject matter. See Code Comparative Table for complete derivation.

(2) Control the size, location, and general design so that signs will be aesthetically harmonious and in context with the area in which they are located;

(3) Eliminate any conflict that would be hazardous between signs and traffic control signs and traffic control devices; and

(4) Ensure that signs are located and designed to maintain a safe and orderly pedestrian and vehicular environment.

72.1.3 In establishing these purposes, the city has determined that signs may be unduly distracting to motorists and pedestrians, and thereby create a traffic hazard and reduce the effectiveness of signs needed to direct the public and therefore regulations are necessary.

72.1.4 The provisions of this article are intended to be an exercise of the city's police powers to promote and protect the public health, safety, morals, convenience, order, prosperity, and general welfare (collectively "public welfare"), within the framework of constitutional freedoms of speech and expression, as protected by the First Amendment to the United States Constitution and Section 4 of the Alabama Constitution (Ala. Const. Art. I, § 4). All regulations in this article are to be construed, whenever possible, in favor of vigorous political debate and accommodation of the rights of persons to speak freely.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.2. Definitions.

72.2.1 For the purpose of this article, certain words and phrases shall have the meanings respectively ascribed to them within this section. Additional terms within this article that are utilized throughout the zoning ordinance may also be defined in article 3 of the zoning ordinance. See also the definitions and rules of construction set forth in section 1-2 of the Code of Ordinances of the City of Huntsville, which generally apply to all ordinances of the city.

72.2.2 Where terms are related to measurements and calculations set out in this article (e.g., sign height, setbacks, sign area, etc.), such terms are defined in section 72.3.

Alter (or its derivations). Any change in a sign, or related structure, that changes its exterior dimensions or otherwise changes the sign's size, height, structure type, or illumination.

Apartment building. For the purposes of this article, a single building housing multiple dwelling units, including leaseholds or condominiums, and that is not a part of an apartment complex.

Apartment complex. A series of buildings housing a complex of multi-family dwelling units, including leaseholds or condominiums, on a single lot.

Attached sign. Any sign that is directly attached to a building or that is attached to a non-structural element, such as an awning or canopy, which non-structural element is affixed to the building.

Awning. A shelter projecting from and supported by the exterior wall of a building constructed of non-rigid materials on a supporting framework.



Examples of traditional awnings

Awning sign. A permanent, attached sign that is painted on, applied to, or otherwise is a part of a fabric or other non-

structural awning which awning is affixed to the building. An awning sign is considered an "attached sign".

Building. Where the term "building" is used in reference to the location of a sign it means a primary building on a lot and does not include accessory buildings or accessory structures. In those districts that do not have side yard setback requirements and buildings share a common wall, then a change from one building to another shall occur when there is a firewall separating the buildings.

Building unit. A stand-alone building or a building divided into separate units or spaces that are individually owned or leased by different enterprises, businesses, firms, or other nonresidential occupants, and which meets the following conditions:

- Where a building is divided into individual spaces, each space with its own exterior entry or access point directly into the space shall be consider a building unit.
- Where a building contains individual spaces that are all accessed from the interior through a joint entry, such building shall be considered one building unit.
- Where a lot contains multiple principal buildings, each building shall be considered a building unit.

"Building unit" shall not be used to define an apartment building or similar residential-only building that is divided into individual dwelling units. For a mixed-use building, as defined in this article, the number of building units on any given lot shall be determined by the number of nonresidential enterprises, businesses, firms, or other nonresidential occupants.

Campus. A complex of buildings and grounds that belong to a given institution, either academic or non-academic.

Canopy. A permanent structure made of cloth, metal, or other material attached or unattached to a building for the purpose of providing shelter to patrons or automobiles, or as a decorative feature on a building wall. A canopy is not a completely enclosed structure but typically is supported by features other than the building façade (e.g., structural legs, building extensions, etc.).



Example of a canopy and related sign

Canopy sign. A permanent sign that is a part of or attached to a canopy and is considered an "attached sign".

Changeable copy sign. A sign designed so that the characters, letters, or illustrations can be changed or rearranged manually or electronically without altering the sign display surface. May also be known as readerboards. See also the definition of "electronic display sign."

Commercial use sign. A sign, regardless of the message it contains, for which the person that owns, leases, or otherwise controls the sign structure or the premises on which the sign is located, receives consideration, whether monetary or another form of value, for the use of the sign structure or the premises for a sign, or otherwise holds out the sign as being available in exchange for consideration.

Complex. One or more lots used as an integrated development or project with a common identity or common ownership.

Detached sign. Any sign affixed to or supported upon the ground by a monument, pedestal, pole, bracing, or other permanent structural element and not attached to any building.

Driveway signs. A small permanent sign located near driveway access points or at the intersection of internal access drives.

Electronic display sign. A sign designed so that the characters, letters, or illustrations can be changed or rearranged automatically on a lamp bank or through mechanical means (e.g., electronic or digital signs).

Façade. The exterior wall on the front, side, or rear elevation of the building regardless of whether the building side faces a street.

Feather sign A temporary sign that is constructed of cloth, canvas, plastic fabric or similar lightweight, non-rigid material and that is supported by a single vertical pole mounted into the ground or on a portable structure. Such sign may take the shape of a feather, tear drop, or any other shape.

Ground sign. A permanent, detached sign other than a pylon or monument sign, which is affixed to the ground by no more than two poles, columns, or uprights permanently imbedded in the ground.

Hanging sign. A permanent, attached sign suspended from, and located entirely under a covered porch, covered walkway, canopy, or an awning, which are attached to a building. A hanging sign shall be considered an "attached sign".

Illuminated sign. A sign with an artificial light source incorporated internal to the sign or projected externally onto the sign for the purpose of illuminating the sign, which includes signs made from neon or other gas tube(s) that are bent to form letters, symbols, or other shapes. An illuminated sign excludes electronic display signs, which are addressed separately.

Legible. A sign shall be considered legible from a stated location if a person who is between five and six feet tall can read and decipher the sign.

Lot. A lot is a parcel of land. For the regulatory purposes of this ordinance a lot may consist of a single lot of record, a portion of a lot of record, combinations of adjacent individual lots or portions of lots, or a parcel described by metes and bounds, provided that in no case of division or combination by private action shall any residual lot be created which does not meet the requirements of this ordinance and other applicable regulations.

Mixed-use building. A single building that blends residential uses with nonresidential uses, where those functions are physically and functionally integrated. See also the definition of "building unit" for use as part of a mixed-use building.

Mobile sign. A sign painted on or affixed to motor vehicles, or to open or enclosed trailers, designed and licensed for transportation of cargo on the public streets.

Monument sign. A permanent detached sign, other than a pylon or ground sign, not attached to a building, which is placed upon or supported by the ground independently of any other structure, typically on a monument or pedestal structure.

Non-conforming sign. Any sign that was erected legally prior to the adoption of this ordinance, or amendment thereto, but which does not comply with subsequently enacted sign restrictions and regulations or a sign which does not conform to the regulations of this article.

Park. An area or district with multiple buildings and/or building units within a controlled environment designed around an attractive, park-like setting, or enhanced landscaping, that is intended

to promote a particular field of endeavor, such as a research park, business park, or an industrial park.

Pedestrian gateway sign. A permanent, detached sign that is intended to be placed in locations only visible by pedestrians including, trails, sidewalks, and similar pathways in large-scale complexes.

Permanent sign. A sign permitted by this ordinance to be located on the premises and designed to be permanently attached to a structure or the ground. Such sign is constructed of rigid, non-flexible materials.

Permitted use building. A building that houses one or more uses that are allowed as a matter of right in the applicable zoning district or allowed by special exception. The term does not include a building that houses only a variant use or non-conforming use. This term may also be qualified as follows:

- A "permitted nonresidential use building" shall mean where the principal building contains a permitted use, that is not a residential use, in the applicable district. Permitted mixed use buildings shall be considered a permitted nonresidential use building for the purposes of this article, regardless of presence of residential dwelling units.
- A "permitted residential use building" shall mean where the principal building contains a permitted principal residential use in the applicable district, including any permitted accessory uses (e.g., customary home occupations).

Portable sign. Any sign not attached to a building or the ground that is designed to be transported, including signs designed to be transported by means of wheels. This definition shall not include "sidewalk sign" or other defined temporary sign types.

Projecting sign. A sign that is affixed perpendicular to a building or wall and extends more than eight inches beyond the face of such building or wall and the lowest point of which sign is not less than 12 feet above the sidewalk or ground level. A projecting sign shall be considered an "attached sign".

Pylon sign. A permanent, detached sign other than a monument or ground sign, that is supported by no more than two, 24-inch structural elements which are architecturally similar to the design of the sign.

Repair. The replacement of any part of a sign with equivalent material for the purpose of maintenance that does not affect its design, size, structural framework, exterior dimensions, or its structural members and uprights.

Required yard. The area (front, side, and rear yard) that lies between a property line and the required setback line for primary structures according to the provisions of this zoning ordinance.

Residential. The use of a building, or portion thereof, as a residence (dwelling unit), or a vacant lot in a residential district. The term does not include a dormitory or other housing associated with a campus.

Residential district. Those districts that are identified in chapter 1 and chapter 8, article 80 of this zoning ordinance.

Residential subdivision. A multi-lot residential subdivision or development consisting of at least six lots, which is developed as an integrated development or project with a common identity

Right-of-way. A strip or area of land dedicated for use as a public roadway, railroad, or dedicated for other public uses. For streets, the right-of-way typically includes the paved roadway, curbs,

lawn strips, sidewalks, lighting, drainage facilities and utilities and may include special features (required by the topography or treatment) such as grade separation, landscaped areas, viaducts, and bridges.

Roof sign. A sign which is affixed to and which extends above the roof of any building. A roof sign shall be considered an "attached sign".

Sidewalk sign. A temporary sign that may be placed on a public sidewalk or on a private sidewalk/walkway, during business hours in accordance with this article and which may include an "A-frame sign" or a "T-frame sign" as defined below:

- A-Frame sign means a detached temporary sign that is ordinarily in the shape of an "A" or some variation thereof, which is readily moveable, and is not permanently attached to the ground or any structure.
- T-Frame sign means a detached temporary sign that is ordinarily in the shape of an upside down "T" or some variation thereof, which is readily moveable, and is not permanently attached to the ground or any structure.

Sign. A structure, device, or surface that contains, supports, or displays sign copy.

Sign area. The total area of a sign face as measured pursuant to section 72.3.3.

Sign copy. Letters, numerals, figures, symbols, logos, pictorial, or graphic elements comprising the content or message of a sign.

Sign face. The surface of the sign upon, against, or through which the message of the sign is exhibited.

Street frontage. The distance for which a lot line adjoins a public street, from the lot line intersecting said street to the furthest distant lot line intersecting the same street. Alternatively, where the number of signs is based on the number of street frontages, a street frontage means a continuous border between the subject property and a public street or road.

Temporary sign. A non-permanent sign that is neither permanently anchored to the ground, nor permanently affixed to a structure, nor mounted on a chassis.

Temporary yard sign. Any temporary detached sign that is not defined as a "sidewalk sign."

V-Mounted sign. An attached, permanent sign with two attached sides in which the faces of said sign are not parallel and the smallest angle of said sign is not greater than 30 degrees. A v-mounted sign shall be considered an "attached sign".

Wall sign. A permanent sign attached directly to an exterior wall of a building and which does not extend more than a certain distance from the façade, as established in this article, nor above the roof line or beyond the limits of the outside wall. The exposed face of the sign in a plane parallel to the building wall. A wall sign shall be considered an "attached sign".

Zoning administrator. The chief enforcement officer of the zoning ordinance as designated by the director of planning, or any of their authorized designees, assistants, or inspectors.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.3. Calculations and measurements.

For the purpose of this article, the following shall be the method for determining and interpreting any form of calculation or measurement.

72.3.1 *Sign setback*. All required setbacks for signs shall be measured as the distance in feet from the applicable lot line, or other stated point of measurement, to the closest point on the sign structure.

72.3.2 *Sign height*.

(1) The height of a sign shall be computed as the distance from the base of the sign at normal grade (average grade at the base of the sign) to the top of the highest

attached component of the sign. Normal grade shall be construed to be the newly established grade after construction, exclusive of any filling, berming, mounding, or excavating undertaken for the purpose of locating or increasing the height of sign.

(2) The filling of a pre-existing hole or depression to create an average grade at the same level as that surrounding the hole or depression is permitted, provided such filling is allowed by other ordinances.

(3) In cases where the normal grade is below grade at street level, sign height shall be computed on the assumption that the elevation of the normal grade at the base of the sign is equal to the elevation of the nearest point of the crown of a public or private street. See figure A.

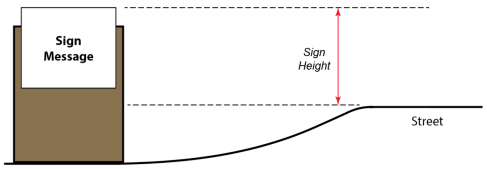


Figure A: Illustration of the measurement of sign height when the grade at the bottom of the sign is below the grade of the adjacent street.

(4) Any material whose major function is providing structural support for a sign shall be considered part of the sign for purposes of determining sign height.

(5) Where a distance is established for the clearance of a sign, such measurements shall be made from the normal grade of the ground, directly under the applicable sign or structure supporting the sign, and the bottom most point of the sign or the structure supporting the sign, whichever is closest.

72.3.3 *Sign area.* The surface of a sign to be included when computing maximum allowable square footage of sign area shall be calculated as follows:

(1) For sign copy mounted or painted on a background panel, cabinet, or surface distinctively painted, textured, lighted, or constructed to serve as the background for the sign copy, the sign area shall be computed by means of the smallest square, circle, rectangle, triangle, or combination thereof that encompasses the extreme limits of the background panel, cabinet, or surface. See figure B and figure C.

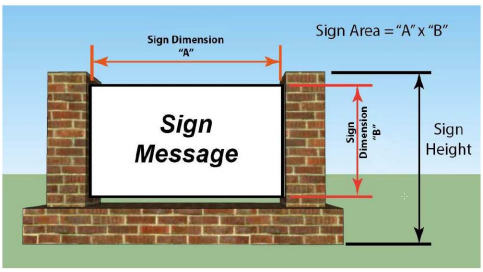


Figure B: Illustration of sign area calculation for a monument sign with copy on a distinct cabinet.



Figure C: Illustration of computing the sign area for wall signs with a background panel or cabinet.

(2) For sign copy where individual letters or elements are mounted on a building façade where there is no background panel, cabinet, or surface distinctively painted, textured, lighted, or constructed to serve as the background for the sign copy, the sign area shall be computed by means of the combination of the smallest square, circle, rectangle, triangle, or combination

thereof that encloses all the letters or elements associated with the sign. See figure D.

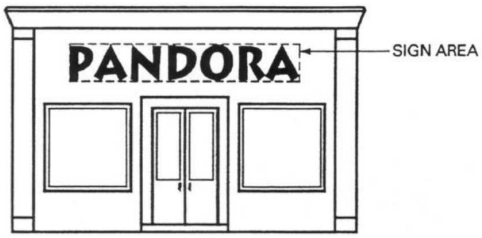


Figure D: Illustration of sign area calculation for two differently shaped wall signs with individual letters.

(3) In cases where there are multiple sign elements on the same surface, the zoning administrator shall have the authority to determine the outermost boundaries of individual sign elements based on the shape of the sign and the distance separating various elements of sign copy. Decorative edging or other window treatments that are not an integral part of the sign copy shall not be considered a part of the sign for the purposes of this article.

(4) The calculation of sign area shall not include any supporting framework, bracing, or decorative fence or wall unless such structural support is determined to constitute an integral part of the sign design by means of any form of sign copy, as determined by the zoning administrator. See figure A.

(5) In the case of a three-dimensional sign where the sign faces are not mounted back-to-back, the sign area shall be calculated by the smallest square, circle, rectangle, triangle, or combination thereof that encompasses the profile of the sign message, multiplied by two. The profile used shall be the largest area of the sign face visible from any one point.

(6) Except for three-dimensional signs, the sign area for a sign with more than one face (multi-faced signs) shall be computed by adding together the area of all sign faces unless two sign faces are mounted back-to-back.

(7) When two flat sign faces are placed back-to-back and when such sign faces are part of the same sign structure and are not more than 12 inches apart, the sign area shall be computed by the measurement of one of the faces. If the two faces are unequal, the sign area shall be calculated based on the larger of the two faces.

72.3.4 *Determining width of building facades.*

(1) For the purposes of this article, the length of the building wall that faces a public street shall be considered the building facade unless otherwise stated.

(2) The calculation of the width or lineal measurement of any façade shall be the measurement of the façade between two side facades. The calculation shall be based on viewing the façade from a 90-degree angle (i.e., straight on), regardless of façade insets, offsets, or angles. See figure E.

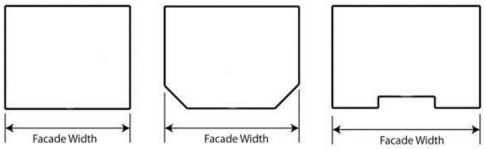


Figure E: Illustration of façade width measurement on varied façade shapes.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.4. Compliance with article; coverage; variant and non-conforming uses; exclusions from article.

72.4.1 *Compliance with article.* No premises within the corporate limits of the City of Huntsville shall be used to construct, erect, or maintain a sign that does not meet the requirements of this article, and it shall be unlawful for any person to use premises in the corporate

limit of the city to construct, erect, or maintain a sign that is not in conformity with the requirements of this article.

72.4.2 This article shall only apply to any sign, in any zoning district, that is outdoors and displaying sign copy that is visible from a public right-of-way or otherwise visible to the general public. This article is not intended to, and does not, regulate signs inside of homes or other buildings.

72.4.3 Any sign legally established prior to the effective date of this article, or amendments thereto, and which sign is rendered non-conforming by the provisions herein, shall be subject to the non-conforming sign regulations of section 72.9.

72.4.4 *Coverage*.

(1) Nothing in this article shall be construed to affect the franchise authority of the city.

(2) Nothing in this article shall be construed to allow or give permission to any person to install a sign on private property without the consent of the owner of the property or the person otherwise in possession or control of the property. Where a sign has been placed on premises without proper consent, the sign shall constitute a trespass.

(3) Nothing in this article shall be construed to exempt from or except the application of the building and other technical codes of the city to the installation of signs.

72.4.5 *Variant and non-conforming uses.*

(1) Notwithstanding anything to the contrary contained in this article, where nonresidential uses are allowed by variance, the permanent signs allowed, if any, shall be as approved in connection with the variance.

(2) Notwithstanding anything to the contrary contained in this article, where nonresidential uses are classified as a non-conforming use under the provisions of article 74, unless a variance has been granted for permanent signage associated with the non-conforming use or the permanent signage itself is grandfathered in accordance with the provisions of this article, then the non- conforming use is not allowed a permanent sign for the premises. Temporary signs shall only be permitted in accordance with the applicable zoning district

72.4.6 *Exclusions from article*

(1) *Excluded by law*. In some cases, federal and state law preempt or otherwise limit or prohibit the city's regulatory authority over signs, which may include, signs required by state or federal law including signs ordered in the case of bankruptcies and government-function signs. It is not the intent of this ordinance to challenge or create conflicts with or act contrary to such law and thus this article shall not apply in such cases.

(2) Exclusion from this article does not relieve a person from complying with other applicable laws, including the building and electrical codes of the city.

(3) *Maintenance*. Unless otherwise preempted by applicable law, exclusion from this article, including exclusions under this section and definitional exceptions to the term "sign", shall not be construed to exclude or exempt the sign from being maintained in good condition, order, and repair in accordance with section 72.13 of this article; and references to the term sign or permitted sign in section 72.13 shall include such exclusions or exceptions.

72.4.7 *Reclassification of signage.* If the type of any sign that legally existed prior to the effective date of this amendment is reclassified by this amendment, such sign shall be classified as the sign type defined in this article and shall be subject to the applicable standards for such sign type from the effective date of this amendment. Such reclassification shall be regardless of any variances that were approved prior to the effective date of this amendment.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.5. Residential subdivision, apartment building, or apartment complex signs.

Permanent signs may be permitted within a residential subdivision, an apartment building, or for an apartment complex in accordance with the following:

72.5.1 The placement and allocation of the permanent sign may be reviewed and decided upon during the subdivision platting process or as part of a site plan review, whichever is applicable or comes first where both are required. However, a sign permit will be required for the installation or any changes to the signs in accordance with this article.

72.5.2 *Residential subdivisions.* Residential subdivisions that have six or more lots are permitted the following signs:

(1) No more than two monument signs shall be permitted at each major entrance, the location of which shall be determined by the zoning administrator.

(2) The signs shall be located within 150 feet of the established major entrance.

(3) The monument signs must be located the greater of either ten feet from the existing or proposed public right-of-way or 15 feet from the back of curb or edge of pavement if there is no curb; and 15 feet from the curb entrance of any drive or accessway.

(4) The maximum sign area for any single monument sign shall be 40 square feet. The maximum height shall be five feet, excluding a base with a maximum one foot of height.

(5) The placement of such signage shall be determined during the layout approval process and shall be based on the entire subdivision and not on individual phases.

72.5.3 *Apartment complexes*. Apartment complexes that have 50 or more dwelling units are permitted the following signs:

(1) Where an apartment complex is located in a residential zoning district, the complex shall be permitted to have the same monument signs as is allowed for residential subdivisions in section 72.5.2 above.

(2) Where an apartment complex is located in a nonresidential zoning district, the complex shall be permitted to have the same type of detached sign as a lot with a single building unit in the applicable zoning district. Such sign shall not include an electronic display sign. Additionally, any building in the apartment complex used for office space shall be permitted to have the same amount of attached signs as permitted in the applicable zoning district.

72.5.4 *Apartment buildings.* Apartment buildings that have 25 or more dwelling units are permitted the following signs:

(1) One projecting sign not to exceed 40 square feet in sign area is allowed per street frontage.

(2) The sign may project over the public sidewalk to the same extent as other similar sign structures in the same district.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.6. Temporary signs.

72.6.1 *Standards applicable to all temporary signs*. Unless provided for otherwise, each of the following conditions shall apply to all temporary signs:

(1) Temporary signs shall not be mounted, attached, affixed, installed, or otherwise secured in a manner that will make the sign a permanent sign.

(2) Temporary signs shall not be illuminated.

(3) No temporary sign shall be installed that requires a foundation, support, wiring, fittings, or elements that would traditionally require a building permit or electrical permit.

(4) Temporary signs shall not contain any changeable copy.

(5) All temporary signs shall be secured in such a manner as to prevent swinging or

other significantly noticeable movement resulting from the wind that could pose a danger to people, vehicles, or structures.

(6) Mobile signs on wheels, runners, casters, parked trailers, parked vehicles, or other temporary or movable signs shall not be permitted unless otherwise specifically stated in this article.

(7) Temporary signs shall be constructed of durable fabric, plastic, paper, or other light pliable material. Because of the nature of materials typically used to construct temporary signs and to avoid the unsightliness of deteriorating signs and all safety concerns which accompany such a condition, temporary signs shall be removed or replaced when such sign is a deteriorated sign.

(8) Temporary signs shall be located outside the public right-of-way, which shall be presumed if the sign is located at least ten feet from the back of curb or the edge of pavement if there is no curb.

(9) No part of any temporary sign shall be erected closer than ten feet to any overhead electric, cable, telephone or other transmission line nor closer than five feet to any property line.

(10) Temporary signs may be located in a required yard provided that they do not create a visibility obstruction or violate the visibility obstruction regulations established in this article.

(11) Temporary signs shall not be placed on utility poles, light poles, or other similar structures.

(12) Commercial use signs are prohibited.

(13) The general sign standards set forth in section 72.8 of this article shall apply to temporary signs, unless this section provides otherwise.

72.6.2 *Temporary sign removal.* A temporary sign shall be removed when the sign has deteriorated, as determined by the Zoning Administrator.

72.6.3 *Temporary signs on residential premises.*

(1) The total combined sign area of all temporary signs on any lot with a permitted residential use building or on any vacant lot in a residential zoning district shall not exceed 40 square feet. No individual temporary sign shall exceed 20 square feet in sign area.

(2) On vacant lots that are five acres or larger, the total combined sign area may be increased to a total of 40 square feet of temporary sign area along each street frontage and no individual temporary sign shall exceed 40 square feet.

(3) The maximum height of any sign shall be four feet.

72.6.4 *Temporary signs on nonresidential premises.* The following temporary signs are permitted on any lot where there is a permitted nonresidential use building or on any vacant lot in a nonresidential zoning district.

(1) *Attached signs.* Except in research park district and research park west districts (See subsection 72.6.4(2)(c).), the following attached signs shall be allowed for any permitted nonresidential use building:

(a) Where the use of the lot is allowed by a variance or as a permitted, non-conforming use, the lot shall be allowed to have one attached, temporary sign, except for premises located in residential districts under chapter 1 and chapter 8 of this zoning ordinance.

(b) For each building unit, the total combined sign area of temporary attached signs shall not exceed 32 square feet. Up to four attached signs are permitted at any one time. Such attached signs shall require a sign permit.

(2) *Detached signs.* The following detached, temporary signs are allowed on any lot

where there is a permitted nonresidential use building or on any vacant lot in a nonresidential zoning district.

(a) *Residential districts, except for residence 2-B district:*

(i) The total combined sign area of all detached temporary signs shall not exceed 20 square feet.

(ii) The maximum height of any sign shall be four feet.

(b) *All nonresidential districts, except for research park and research park west districts:*

(i) The total combined sign area of all detached temporary signs on any lot with a permitted nonresidential use building shall not exceed 20 square feet. No individual temporary sign shall exceed 20 square feet in sign area.

(ii) On vacant lots, the total combined sign area may be increased to a total of 40 square feet of temporary sign area along each street frontage and no individual temporary sign shall exceed 40 square feet.

(iii) The maximum height of any sign shall be six feet.

(c) *Research park district and research park west districts.* Such signs are allowed provided the following conditions are met:

(i) No more than one such sign per street frontage is allowed per lot, and the maximum sign area shall be 20 square feet on an improved lot and 40 square feet of a lot not improved with a building.

(ii) Signs shall be of post and panel construction. The panel portion of the sign shall not exceed four feet in height and four feet in width for a total of 16 square feet of sign area. The overall height of the sign shall not exceed six feet. A one-foot by four-foot rider shall be allowed along the bottom of the sign.

(iii) Sign posts shall be made of PVC or equal material and shall be white in color.

(iv) Signs must be placed outside of and perpendicular to an existing public right-of-way and shall be set back a minimum of 20 feet from the back of curb of said public right-of-way.

(v) When applicable, it is required to use the ground sign in place of an additional sign.

(3) *Sidewalk signs.*

(a) There shall be no time limit for sidewalk signs with the exception that the sign shall only be placed outside during the hours of the establishment's operation.

(b) A sign permit shall be required for the initial use of a sidewalk sign when it will be placed on a public sidewalk. No additional permit shall be required unless a new occupant or tenant wishes to utilize a new sign. A permit shall not be required for the placement on a private sidewalk or walkway but such sign shall still be subject to all other applicable requirements for sidewalk signs.

(c) There shall be a maximum number of sidewalk signs permitted in association with any single lot or building equal to the number of building units on the ground floor.

(d) Only one sidewalk sign is allowed for any one business establishment (building unit) at one time and shall be located within ten feet of such business establishment provided that:

(i) In the case of RPC, it shall be placed adjacent to the sidewalk.

In all other districts, it shall not be placed closer than two feet to any public street as measured from the curb line;

(ii) It shall not reduce any sidewalk width, as measured perpendicular to the curb, to less than five feet to allow for continuous unobstructed pedestrian traffic; and

(iii) It shall not be placed in a location that will obstruct the view of a motorist or a pedestrian leaving or passing the business or shopping center.

(e) Such signs shall not exceed three feet in height or two feet in width.

(f) The sign may be located on a public or private sidewalk or walkway provided it is placed on pavement and not in any landscaped areas or on pavement used for vehicles (e.g., driveways and parking lots).

(g) The sign must be free-standing and shall not be affixed, chained, anchored, or otherwise secured to the ground or to any pole, parking meter, tree, tree grate, fire hydrant, railing, or other structure.

(h) The sign must not obstruct access to parking meters, bicycle racks and other features legally in the right-of-way.

(i) The sign must not interfere with the opening of car doors in legal spaces, or with the operation of wheelchair lifts and ramps, cab stands, loading zones or bus stops.

(j) The sign shall be internally weighted so that it is stable and windproof.

(k) Where a sidewalk sign is to be placed upon a public sidewalk, each of the following shall apply:

(i) The City of Huntsville shall be held harmless from any liability resulting from accident or injury caused by the placement or maintenance of such sign; and

(ii) The right to place a sign upon the public sidewalk may be revoked or suspended by the zoning administrator if the sign is being maintained contrary to the provisions of this section, or if the sign becomes a hazard to the public safety.

(l) If the provisions of this section are amended or repealed, the signs allowed hereunder shall be removed or altered to conform to said action.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021; Ord. No. 22-809, § 1, 11-17-2022)

72.7. Permanent sign on nonresidential premises by district.

Permanent signs shall be allowed on lots with permitted nonresidential use building in the zoning district as hereinafter provided:

72.7.1 *Sign clearance*. Unless provided otherwise, signs allowed under this section 72.7 shall meet each of the following conditions:

(1) No part of any such sign shall be located in or protrude into any existing or proposed public-right-of-way or public utility and drainage easement, except as otherwise expressly stated in this article.

(2) Unless other provided in this article, all monument signs must be located either ten feet from the existing or proposed public right-of-way or 15 feet from the back of curb or edge of pavement if there is no curb; and 15 feet from the curb entrance of any drive or accessway.

(3) Unless otherwise provided in this article, no pylon sign shall be erected within any required yard unless the lowest point of the sign display is mounted at a height of at least eight feet above the ground and no more than two poles or structural elements are used, neither of which shall exceed 24 inches in diameter.

(4) Notwithstanding or anything to the contrary no part of any sign shall be erected closer than ten feet to any overhead electric, cable, telephone or other transmission line nor closer than five feet to any side property line unless otherwise provided herein.

72.7.2 *Permanent signs in the residence 1, residence 1-A, residence 1-B, residence 1-C, residence 2, residence 2-A, and residence 2-C districts*

(1) Either one monument sign or one ground sign is permitted, per street frontage, on any lot used for a permitted nonresidential use building in accordance with the applicable provisions of this article and the following:

(a) Monument signs shall not exceed five feet in height, excluding a base that does not exceed one foot in height.

(b) Ground signs shall not exceed 20 feet in height.

(c) The maximum sign area of any monument or ground sign shall be 40 square feet.

(d) Such signs may incorporate an electronic display sign when the sign is located on a street frontage along a major or minor arterial and complies with section 72.8.21.

(2) Wall signs are permitted on all permitted nonresidential use buildings provided they do not exceed 100 square feet of total sign area per street frontage.

72.7.3 *Permanent signs in the residence office 1 and residence office 2 districts*. For lots occupied by a permitted nonresidential use building, either one wall sign is permitted or alternatively, one monument sign is permitted, in accordance with the provisions of this article and the following:

(1) The wall sign shall not exceed six square feet in sign area and shall be mounted on the first story of the façade. Such sign shall not cover or obscure any windows, doors, or other architectural features.

(2) A monument sign may be used instead of an attached sign provided that such sign shall not exceed 20 square feet in sign area with a maximum height of five feet, excluding a base that does not exceed one foot in height.

(3) On a corner lot, one additional wall sign is permitted on the façade facing the side street. Such sign shall not exceed two square feet in sign area and shall not cover or obscure any windows, doors, or other architectural features.

72.7.4 *Permanent signs in the research park, research park applications, office, residence 2-B, neighborhood business C-1, neighborhood business C-2, planned industrial, and disposal storage districts.*

(1) Attached signs are permitted on lots used for permitted nonresidential use buildings in accordance with the following:

(a) In the office, residence 2-B, neighborhood business C-1, and neighborhood business C-2 districts, attached signs are permitted with a maximum sign area of 100 square feet allowed for each building unit, per street frontage.

(b) In the research park district, research park applications, planned industrial, and disposal storage districts, a maximum of one attached sign is permitted with a maximum sign area of 100 square feet, per street frontage. Each building unit on a campus or park shall be permitted to have one attached sign with a maximum sign area of 100 square feet per street frontage.

(2) Detached signs are permitted on lots used for permitted nonresidential use buildings in accordance with the following:

(a) *In the neighborhood business C-1, neighborhood business C-2, office, and residence 2-B districts:*

(i) Where a lot has two or more building units, one monument

sign or ground is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 100 square feet. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 150 feet.

(ii) A monument sign shall have a maximum height of ten feet, excluding a base that does not exceed one foot in height. A ground sign shall not exceed 35 feet in height.

(b) *In neighborhood business C-1 and neighborhood business C-2 districts only*.

(i) Where a lot has one building unit, one monument sign or ground is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 35 square feet. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 100 feet.

(ii) A monument sign shall have a maximum height of five feet, excluding a base that does not exceed one foot in height. A ground sign shall not exceed 35 feet in height.

(c) *In office and residence 2-B districts only.*

(i) Where a lot has one building unit, one monument sign is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 35 square feet. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 100 feet.

(ii) A monument sign shall have a maximum height of five feet, excluding a base that does not exceed one foot in height.

(d) *In research park district, research park applications, planned industrial, and disposal storage districts only.*

(i) One monument sign is permitted, per building (regardless of the number of building units in the building), per street frontage to be located at the entrance from the street. The maximum sign area shall be 100 square feet with a maximum height of ten feet, excluding a base that does not exceed one foot in height. Such sign shall be set back a minimum of 15 feet from an existing or proposed street right-of-way.

(ii) Where a monument signs is to be located in a PI district, the sign setback shall be increased to 25 feet from an existing or proposed street right-of-way.

(iii) Two monument signs are allowed at major entrances into a campus or park in the research park district, research park applications, and planned industrial districts, the location of which shall be determined by the zoning administrator. Such signs shall have a maximum sign area of 150 square feet per sign. Such signs shall have a maximum height of 35 feet, excluding a base that does not exceed one foot in height.

72.7.5 *Permanent signs in the general business C-3, central business C-B, research park 2, and village business C-6 districts.*

(1) Attached signs are permitted in the general business C-3, central business C-B, research park 2, and village business C-6 districts in accordance with the following:

(a) No V-mounted signs shall project more than four feet from a basic line measured perpendicular to the face of the building;

(b) No wall sign shall project more than eight inches from the face of the building; and

(c) No projecting signs shall project more than four feet from the face of the building, and must have a clearance of at least 12 feet, and shall not extend above the roof line of the building.

(d) No projecting or awning sign, inclusive of any supporting structures or brackets, may be located on or over the public right-of-way unless attached to a structural element of the building.

(e) For lots that contain one building unit, the following shall be allowed:

(i) One attached sign is permitted on each street frontage provided the sign area shall not exceed one square foot per linear foot of building façade width on the applicable street frontage, with a maximum sign area of 100 square feet.

(ii) Buildings with a height of five stories and above are permitted to have an additional 100 square feet per street frontage, located at or above the top story of the building, but not above the roof line, provided the maximum sign area for any one sign shall be no more than 200 square feet.

(iii) Illumination shall only be internal to the sign.

(f) For lots that contain two or more building units with permitted nonresidential use buildings, the following shall be allowed:

(i) One attached sign is permitted with a maximum sign area of 100 square feet per street frontage, located at or above the top story of the building, but not above the roof line; buildings with a height of five stories and above are permitted to have an additional 100 square feet per street frontage provided the maximum sign area for any one sign shall be no more than 200 square feet and;

(ii) One attached sign is permitted for each building unit on each street frontage provided the total cumulative sign area does not exceed two square feet of sign area per each linear foot of building façade width, per street frontage. No one building unit shall have a sign with a sign area that exceeds 40 square feet. Wall signs shall be mounted in such a way so that they do not extend above the top of the second-floor windows. Projecting signs may be mounted on area of the sign subject to any applicable height standards in this article.

(iii) Illumination shall only be internal to the sign.

(g) For lots that contain a mixed-use building that includes both residential dwelling units and nonresidential building units, the following signs are allowed:

(i) One attached sign is permitted with a maximum sign area of 100 square feet per street frontage, located at or above the top

story of the building, but not above the roof line; buildings with a height of five stories and above are permitted to have an additional 100 square feet per street frontage provided the maximum sign area for any one sign shall be no more than 200 square feet and;

(ii) One wall sign is permitted for each ground-floor nonresidential building unit, per street frontage, provided that the total sign area shall not exceed one square foot per linear foot of building façade width of the applicable frontage, and no one building unit shall have a sign with a sign area that exceeds 40 square feet.

(iii) One projecting sign is permitted to be attached to any residential component in accordance with section 72.5.4.

(iv) Illumination shall only be internal to the sign.

(2) In addition to the attached signage allowed above, one monument sign may be located on a lot with a permitted nonresidential use building containing two or more building units provided:

(a) Such sign shall not be placed within the right-of-way;

(b) The maximum sign area shall be 100 square feet; and

(c) The maximum height of the sign shall be eight feet, excluding a base that does not exceed one-foot in height.

72.7.6 *Permanent signs in the light industry, heavy industry, commercial industrial park, and highway business C-4 districts.*

(1) Attached signs are permitted on permitted nonresidential use buildings provided that the sign area for each building unit shall not exceed 150 square feet, per street frontage, plus three additional square feet for each foot of linear façade width in excess of 50 feet. The maximum sign area for any building units shall be 350 square feet.

(2) Where a lot has one building unit, one ground sign is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 150 square feet. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 100 feet. The maximum height of the sign shall be 35 feet.

(3) Where a lot has two or more building units, one ground sign is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 150 square feet. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 200 feet. The maximum height of the sign shall be 35 feet.

72.7.7 *Permanent signs in the industrial park, airport commercial, heavy manufacturing, and research park applications 2 districts.*

(1) Attached signs are permitted on permitted nonresidential use buildings provided that the maximum sign area shall be 100 square feet per building unit, per street frontage.

(2) One monument sign is permitted on each lot that contains a permitted nonresidential use building, on each street frontage, provided the maximum sign area shall be 100 square feet per sign and the maximum height shall be ten feet, excluding a base that does not exceed one foot in height. Such signs shall be placed in the front yard and set back a minimum of ten feet from an existing or proposed street right-of-way.

(3) In all districts except the research park applications 2 district, one monument sign is allowed at major entrances into a

campus or park, the location of which shall be determined by the zoning administrator. The maximum sign area shall be 100 square feet and the maximum height shall be 35 feet.

(4) In the research park applications 2 district, two monument signs are allowed at major entrances into a campus, or park, the location of which shall be determined by the zoning administrator. Each sign shall have a maximum sign area of 144 square feet per sign and a maximum height of 35 feet.

72.7.8 *Permanent signs in the medical and medical 2 districts.*

(1) One, four-sided, multi-panel monument sign is allowed at each major entrance into the district or campus, the location of which shall be determined by the zoning administrator. Such sign shall be in accordance with the following:

(a) The sign may be located in the required front yard setback, upon approval by the city traffic engineer.

(b) The monument sign shall not exceed a total sign area of 240 square feet, with each sign face having a maximum of 60 square feet of sign area. The maximum height shall be 35 feet, excluding a base that does not exceed one foot in height.

(2) Where buildings are located on a campus, each building shall be permitted to have one monument sign, to be located in front of the applicable building in accordance with the following:

(a) Each monument sign shall not exceed five feet in height, excluding a base that does not exceed one foot in height.

(b) Each sign shall not exceed 30 square feet in sign area.

(c) The sign must be set back a minimum of 25 feet from the curb of any public street and 15 feet from the curb of any entrance drive or access way.

(3) *Monument signs for buildings not on a campus.* Monument signs are permitted on lots that are not part of a campus in accordance with the following:

(a) For lots that have one building unit, one monument sign is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 35 square feet. The maximum height shall be five feet, excluding a base that does not exceed one foot in height. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 100 feet.

(b) For lots that have two or more building units, one monument sign is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 100 square feet. The maximum height shall be five feet, excluding a base that does not exceed one foot in height. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 150 feet.

(4) Attached signs are allowed in accordance with the following:

(a) Each building unit is permitted to have wall signs on any façade with a street frontage provided the signs do not project more than eight inches from the building surface.

(b) No sign shall project above the roof line of the building on which it is mounted, notwithstanding any other provision of this zoning ordinance.

(c) The total sign area of all wall signs for any building unit, on any one facade shall not exceed one square foot per linear foot of building façade established for the applicable building unit with a maximum total sign area of 300 square feet.

72.7.9 *Permanent signs in the planned development and planned development—Housing district.* Signage in a PD district shall be approved as part of the PD review process provided however, no signs visible from outside the PDH district shall be erected within the PDH District other than what is allowed in Section 72.5.

72.7.10 *Permanent signs in the commercial recreation C-5 district.*

(1) One detached sign is allowed at each major entrance into the district, the location of which shall be determined by the zoning administrator. Such sign shall not exceed 250 square feet in sign area or 35 feet in height. If the sign is a monument sign, the height shall exclude a base that does not exceed one foot in height.

(2) One attached sign is permitted on each side of a building that faces a street frontage provided that the maximum sign area of the attached sign does not exceed 100 square feet.

72.7.11 *Permanent signs in the research park west district.* The research park west district signage is intended to be uniform in appearance in order to promote and advance the use of the district as a premiere research park. To that end, signs within the district shall follow the standards set forth in this section.

(1) *Detached signs*. One monument sign is permitted on each lot at the entrance onto a lot that contains a permitted nonresidential use building, in accordance with the following:

(a) The sign shall have the following dimensions: a height of eight feet and one inch; a width of eight feet; and a depth of 12 to 18 inches. The sign may be mounted on a base that does not exceed one foot in height.

(b) All sign copy shall be located on only one sign face.

(c) The primary information on the upper half of the sign should be positioned so as to leave a minimum clear margin of eight inches along the top and each side and four inches along the bottom.

(d) The color, typography, logo, copy, or combination used on the upper half of the sign may be selected by the applicant or owner of the building unit, but the background must be one continuous color.

(e) Only the upper half of the sign may be internally illuminated.

(f) The lower half of the sign shall have a dark bronze background and white typography in Helvetica regular. Any secondary information, such as an address and traffic safety information shall be positioned in the upper left corner with margins and spacing as shown in figure F.

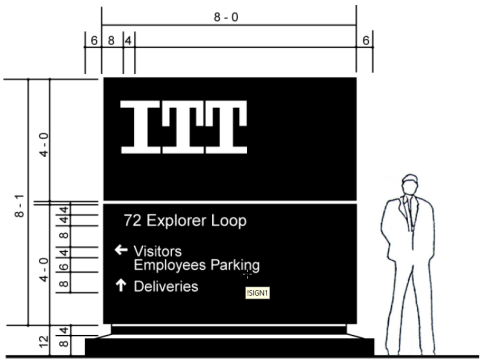


Figure F: Illustrative example of a detached monument sign in the Research Park West District

(g) Only one detached sign per access road to the lot is allowed.

(h) The sign shall be placed parallel to an existing public road, either within or outside the public street right-of-way and must be located a minimum of 20 feet from the curb of said public road and 15 feet from the curb of the site access road.

(2) *Driveway ground signs.* Driveway ground signs are permitted in the research park west district in accordance with the following:

(a) The signs shall be of post and panel construction and shall not exceed six feet in height and four feet in panel width. Dimension details are presented in figure G.

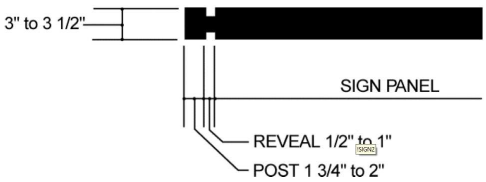


Figure G: Illustration of the dimensions for allowed driveway ground signs

(b) The posts and panel background color shall be dark bronze; the typography shall be white in Helvetica regular and positioned in the upper left corner with margins and spacing as presented in figure H.

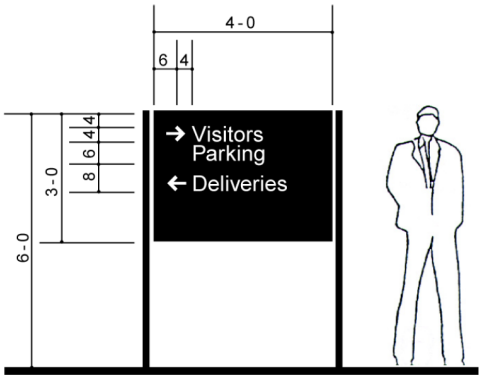


Figure H: Illustrative example of driveway ground signs

(c) Such signs shall not be located closer than 50 feet to an existing or proposed public street right-of-way and shall be a minimum of ten feet from an existing or proposed curb of any entrance drive or access way.

(3) *Attached signs.* Attached signs are permitted in accordance with the following:

(a) Attached signs shall be part of, or mounted directly on, the building wall and shall not project more than 12 inches from the building surface.

(b) Roof mounted signs are prohibited.

(c) Illumination of such attached signs is optional.

(d) For lots that contain one building unit, one attached sign is permitted, per street frontage. Such sign shall not exceed a sign area equal to ten percent of the gross area of the face of the main building façade fronting the street.

(e) For lots that contain two or more building units, one attached sign is allowed per street frontage and the sign area for that sign shall not exceed ten percent of the gross area of the building facade fronting the street. In addition, where the facility has no more than four building units, each building unit may have one attached sign provided that the combined sign area shall not exceed 20 percent of the gross area of the building façade fronting a street. All such individual building unit attached signs shall be visually equal in size and positioned according to a consistent format.

72.7.12 *Permanent signs in the airport industrial park district.*

(1) Attached signs are permitted provided that the sign area for each building unit shall not exceed 150 square feet, per street frontage, plus three additional square feet for each foot of linear façade width in excess of 50 feet. The maximum sign area for any building units shall be 350 square feet.

(2) One monument sign is permitted per lot, on each street frontage, provided the maximum sign area shall be 100 square feet per sign and the maximum height

shall be ten feet, excluding a base that does not exceed one foot in height. Such signs shall be placed in the front yard and set back a minimum of 25 feet from an existing or proposed street right-of-way.

(3) Two monument signs are allowed at major entrances into the AIP district, the location of which shall be determined by the zoning administrator. Each sign shall have a maximum sign area of 150 square feet per sign and a maximum height of 35 feet, excluding a base that does not exceed one foot in height.

72.7.13 *Permanent signs in the research park commercial district.*

(1) *Large-scale complexes.* Large-scale, complexes with a minimum area of 50 acres that contains multiple building units are allowed the following signs:

(a) *Monument signs.*

(i) One monument sign is permitted to be located in a front yard facing an arterial street that is located a minimum of 200 feet from the district boundary. The maximum sign area shall be 150 square feet with a maximum height of 35 feet, excluding a base that does not exceed one foot in height.

(ii) Up to two monument signs are permitted to be located in a required front yard setback at each collector or arterial street entrance into the complex, upon approval by the city traffic engineer. Each sign shall not exceed a maximum sign area of 130 square feet with a maximum height of 35 feet, excluding a base that does not exceed one foot in height.

(b) *Monument signs for building units.* Each stand-alone building unit that has direct access onto a public street may have one monument sign not to exceed 35 square feet in sign area with a maximum height of five feet, excluding a base that does not exceed one foot in height. Such sign shall be located outside the public right-of-way a minimum of 20 feet from the curb of the public street and 15 feet from the curb of the access drive into the site.

(c) *Attached signs.*

(i) For lots that contain one building unit, one attached sign is permitted, per façade, per street frontage. Such sign shall not exceed a sign area equal to ten percent of the gross area of the face of the main building façade fronting the street. The building unit is also permitted one projecting sign of up to six square feet. The total cumulative sign area for any façade shall not exceed 150 square feet of sign area per facade.

(ii) For lots that contain two or more building units, one attached sign is allowed per façade for each building unit, per street frontage. The maximum sign area for each building unit shall not exceed ten percent of the gross area of the building façade for the individual unit, fronting the street with a maximum sign area of 100 square feet for each building unit. The building unit is also permitted one projecting sign of up to six square feet. The total cumulative sign area for any façade of an individual building unit shall not exceed 100 square feet of sign area per facade.

(d) *Pedestrian area gateway signs.* Each RPC district complex shall be allowed up to a total of four monument signs to be located at the pedestrian entrances from the parking lots or other pedestrian areas when such

areas are located at least 250 feet from any public street. Each such sign is limited to a maximum of ten feet in height, excluding a base that does not exceed one foot in height and to a maximum of 100 square feet of sign area.

(2) *Allowed permanent signs outside of large-scale complexes.* The following signs are allowed on lots with permitted nonresidential use buildings that are not within a large-scale complex:

(a) *Monument signs.*

(i) For lots that have one building unit, one monument sign is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 35 square feet. Each sign shall not exceed five feet in height, excluding a base that does not exceed one foot in height. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 100 feet.

(ii) For lots that have two or more building units, one monument sign is permitted for each 250 feet of street frontage, or fraction thereof. Each sign shall have a maximum sign area of 100 square feet. Each sign shall not exceed five feet in height, excluding a base that does not exceed one foot in height. Where more than one sign is permitted due to a street frontage in excess of 250 feet, the signs shall be separated by 150 feet.

(b) *Attached signs.*

(i) Each building unit is permitted to have one wall sign.

(ii) Such sign shall not project more than eight inches from the building surface.

(iii) No sign shall project above the roof line of the building on which it is mounted, notwithstanding any other provision of this zoning ordinance.

(iv) The total sign area of all such attached signs for any building unit shall not exceed one square foot per linear foot of building facade with a maximum total sign area of 300 square feet.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021; Ord. No. 22-809, § 2, 11-17-2022)

72.8. General sign standards.

All signs maintained or hereafter erected in the City of Huntsville shall comply with the standards set forth in this section.

72.8.1 Commercial use signs are commercial uses of land and as such shall not be allowed in residential districts, or on residential lots that are not a part of a mixed-use building that is otherwise allowed to have a commercial use of the premises. Commercial use signs are also prohibited on any attached sign and on any permanent sign permitted to be located at major entrances as established in this article.

72.8.2 Unless otherwise specifically allowed, wall signs shall not extend more than eight inches outside the wall surface. Such signs shall not extend beyond the ends of the wall surface on which they are placed and not more than 18 inches above the top of such wall.

72.8.3 Signs painted or pasted directly on the structures are expressly prohibited.

72.8.4 Feather signs are expressly prohibited.

72.8.5 Signs incorporating any noisy mechanical device are expressly prohibited.

72.8.6 No sign shall be projected onto the side of a building, wall, or ground.

72.8.7 Illuminated signs and outside lighting devices, including beacons and spotlights, shall emit only light of constant intensity, and no sign shall be illuminated by or contain flashing, blinking, intermittent, rotating or moving light or lights, except electronic display signs that comply with the applicable provisions of this article. In no event shall an illuminated sign or lighting device be so placed or directed as to permit focused light to be directed or beamed upon a public street, highway, sidewalk, or adjacent premises so as to cause glare or reflection that constitutes a traffic hazard or nuisance.

72.8.8 No projecting sign, excluding any supporting structures or brackets up to a maximum of 18 inches, shall be erected or maintained to extend more than four feet in width from the front or face building, unless otherwise provided. Additionally, a projecting sign shall not be placed closer than two feet horizontal from the curb line of any street and shall maintain a minimum overhead clearance of 12 feet from the sidewalk.

72.8.9 No roof sign shall be erected or maintained which extends for a height greater than 12 feet above the roof of the building on which it is affixed.

72.8.10 No sign, or portion thereof, shall be placed in any dedicated street or highway right-of-way, or in any utility and drainage easement, except as otherwise specifically stated in this article, and no projecting sign or awning, inclusive of any supporting structure or bracket, may be located on or over the public right-of-way unless attached to a structural element of the building and complies with projection and clearance requirements of this article.

72.8.11 Awnings, inclusive of any supporting structures or brackets, shall project no further than eight feet from the vertical face of the building to which they are attached; however, in no case shall an awning be allowed to extend into an area six feet measured from the back of the curb abutting the building to which the awning is attached. Awnings shall have a minimum height of eight feet above the sidewalk as measured from the bottom edge of the awning.

72.8.12 Unless otherwise specified, ground signs shall not exceed 35 feet in height.

72.8.13 No part of any sign shall be so placed or constructed as to obstruct or interfere with any door, window, fire escape or other means of egress, light or ventilation.

72.8.14 No sign shall be located in such a position that the same obscures the view of pedestrian or vehicular traffic in such a manner as to endanger the safe movement thereof, or otherwise violates the visual obstruction regulations. All signs shall be subject to the provisions of chapter 25, article IX of the city code governing visual obstructions.

72.8.15 Signs shall not be applied to trees, bus shelters, utility poles, benches, trash receptacles, utility cabinets, rocks or natural features, or any other unapproved supporting structure, or otherwise placed in the public right-of-way unless expressly allowed by this article.

72.8.16 Any sign that copies or imitates traffic control signs or devices in a manner likely to confuse motorists or pedestrians, or that obstructs such signs or devices, thereby creating danger to the public, shall be prohibited.

72.8.17 All signs shall be maintained in compliance with applicable sign standards of currently adopted codes including building, electrical, and other technical codes as adopted by the City of Huntsville or as may be legally applied to signs in the City of Huntsville.

72.8.18 Signs attached to and projecting from the exterior wall of a permanent structure shall not extend more than ten feet above said structure.

72.8.19 A vehicle, which includes a motor vehicle, boat, trailer or similar equipment, shall not be used as a support structure for a sign.

72.8.20 Pennants, ribbons, streamers, and spinners are prohibited in all zoning districts, except highway business C-4, light industry, and heavy industry.

72.8.21 *Electronic display signs:*

(1) Electronic display signs shall be permitted as part of any ground, monument, or pylon sign, in all districts except the research park district, research park applications, research park applications 2, research park west, planned industrial, and disposal storage districts.

(2) Electronic display signs shall not be permitted on any sign that is allowed at major entrances into any campus, park, or complex where allowed in this article. Additionally, such signs shall not be permitted on any signs authorized in section 72.5.

(3) Electronic display signs are allowed on canopy signs in the neighborhood business C-1 and village business C-6 districts.

(4) Such signs shall count as part of the ground sign, monument, pylon, or attached canopy, as applicable, and shall not exceed the sign area of such sign, as may be allowed by this ordinance.

(5) Electronic display signs shall be subject to each of the following:

(a) Electronic display signs shall include an automatic dimming light detector/photocell that causes the sign's brightness to dim to levels which the zoning administrator, or their designee, determines meets current ambient light conditions; provided, the zoning administrator, or their designee, may adopt such standards he deems necessary to administer this provision.

(b) No scrolling, flashing, blinking, rotating, pulsating, moving, intermittent, or animated displays are allowed.

(c) The sign shall not display any illumination that moves, appears to move, or changes in intensity during the static display period.

(d) Electronic display signs shall be static and shall not change more than once in any 15-minute period if the sign has frontage on a minor arterial or collector street or no more than once in any one-minute period if the sign has frontage on a major arterial street.

(e) The transition time between the changing of the static image shall be achieved within a one-second period.

(f) Electronic display signs shall contain a default design that will freeze the device in one position if a malfunction occurs.

(g) Electronic display signs shall be turned on no earlier than 7:00 a.m. and turned off no later than 10:00 p.m. in all residentially districts.

(h) An electronic display sign shall not exceed 75 percent of the total allowed sign face area.

(i) Electronic display signs shall be constructed as an integral part of a permanent sign constructed on site. Integral shall be considered to be incorporated into the framework and architectural design of the permanent sign.

(j) Such signs shall be required to have a 20-millimeter pixel pitch or smaller.

(k) Electronic display signs may be permitted as part of any monument sign in a residential zoning district with the additional requirements:

(i) The sign shall only be permitted on street frontage along a major or minor arterial;

(ii) The sign shall not be a commercial use sign; and

(iii) The sign shall be located and oriented in such a manner as

to create the least impact from illumination on adjacent residential uses, as may be determined by the Zoning Administrator.

(l) No variances shall be allowed for any of the foregoing conditions.

72.8.22 Canopy signs shall be allowed on lots used for permitted nonresidential buildings provided:

(1) Canopy signs shall be calculated in the total square footage of the applicable property's attached signage, including the use as an electronic display sign.

(2) In the neighborhood business C-1 and village business C-6 districts only: Canopy signs may include electronic display signs, of not more than 32 square feet in area, provided that there are no other electronic display signs located on the premise.

(3) Canopy signs shall not project above or below the canopy or roofline.

(4) Under-canopy or hanging signs at their lowest point shall be at least eight feet above finished grade.

72.8.23 Unless otherwise stated, all attached signs that project off the face or corner of a building shall have a minimum clearance above finished grade of 12 feet, or the required clearance set forth in the city's building code, whichever is greater.

72.8.24 *Driveway signs.* Driveway signs, as regulated below, are permitted on all lots with permitted nonresidential use buildings, in all zoning districts, except in the research park, research park west, residential office 1, and residential office 2 districts. Such signs shall include small permanent signs located near driveway entrances to a street and at intersections of internal drives under the following provisions:

(1) Driveway signs shall comply with the vision obstruction standards, as required by this article.

(2) In no case, shall a driveway sign be set back more than 50 feet from the driveway entrance or intersection of internal drives. Such signs shall not be located in a right-of-way.

(3) Up to two driveway signs may be permitted per individual driveway or internal intersection.

(4) Driveway signs may not exceed three square feet in area and 30 inches in height.

(5) Driveway signs may be internally or externally illuminated, unless otherwise stated.

(6) Driveway signs shall not contain electronic display signs.

(7) Driveway signs may be mounted on a pole provided the entire structure does not exceed the maximum sign height established above.

72.8.25 Signs that constitute a hazard to safety or health by reason of inadequate or inappropriate design, construction, repair or maintenance, as determined by the zoning administrator, shall be prohibited.

72.8.26 Windblown devices and signs that are not securely affixed to the ground or otherwise affixed in a permanent manner to an approved supporting structure unless specifically permitted as a temporary sign, shall be prohibited.

72.8.27 Signs that employ any parts or elements which revolve, rotate, whirl, spin or otherwise make use of motion to attract attention. This shall not include changeable copy signs as allowed in this article, shall be prohibited.

72.8.28 Portable signs shall be prohibited with the exception of sidewalk signs permitted in subsection 72.6.4(3).

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021; Ord. No. 22-809, § 3, 11-17-2022)

72.9. Non-conforming signs.

72.9.1 Any sign that was lawfully in existence at the time of the effective date of this ordinance, or amendment thereto, that does not conform to the provisions herein, shall be

deemed lawfully non-conforming and may remain on a lot, or shall be removed, in accordance with this section.

72.9.2 Non-conforming signs are declared to be incompatible with allowed uses in the districts affected thereby. The intent of this article is that non-conformities shall not be enlarged upon, expanded or extended, nor be used as grounds for other uses prohibited in the same districts except as provided for below.

72.9.3 No lawful non-conforming sign shall be enlarged, extended, structurally altered, or reconstructed in any manner, except to bring it into full compliance with these regulations, except that these regulations shall not prohibit maintenance, minor repairs, or the replacement of the content of a sign provided there is no structural modification of its size, location or configuration except that any lawful non-conforming sign may be replaced with an electronic display sign provided the following:

(1) Electronic display signs are permitted in the applicable zoning district;

(2) The electronic display sign shall not exceed the size and shape of the original non-conforming sign;

(3) All supporting structures, including posts or pylons, remain in place; and

(4) The electronic display sign shall comply with the standards of section 72.8.21.

72.9.4 A sign shall lose its lawful non-conforming status if any of the following occurs:

(1) If such sign is damaged to an amount exceeding 50 percent of the sign's replacement value, as determined by at least two sign companies requested to provide a quote by the city;

(2) The structure of the sign is altered in any form except as allowed by section 72.9.3;

(3) The sign is relocated; or

(4) The non-conforming sign and its structure (including support and frame and panel) are determined by the zoning administrator, to be unsafe or in violation of this code or building code, and are declared a nuisance.

72.9.5 Any sign that loses its legal non-conforming status must be brought into compliance with the provisions of this article and any other city laws or ordinances by an application for, and issuance of, a sign permit or by complete removal.

72.9.6 Failure to bring a sign into compliance after loss of a legal non-conformity status shall be considered a violation of this zoning ordinance and may be subject to removal as a public nuisance.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.10. Business license.

Nothing in this article shall be construed to affect the requirements for a business license from the city.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.11. Permits required.

72.11.1 Unless otherwise specifically exempted from this article, It shall be unlawful for any person, either directly, indirectly, or by an agent, to erect or re-erect any sign or to alter or repair in the City of Huntsville any sign exceeding 50 percent of value unless an application for a permit shall have been made to the zoning administrator and a permit shall have been issued therefor. Every permit shall be considered cancelled if active work is not commenced within a period of 90 days from the date of its issuance. Each applicant is allowed one 90-day renewal for each sign permit provided that the request for a renewal shall be filed in writing with the zoning administrator before the expiration of the initial permit. The 90-day renewal period shall start to run upon the issuance of the renewal permit regardless as to whether the initial 90- day period has run.

72.11.2 *Permit review.*

(1) An application for a permit shall be submitted to the zoning administrator on

the form supplied by the zoning administrator and shall be accompanied by each of the following:

(a) The written consent of the property owner or lessee desiring any sign to be erected, and, when required by the zoning administrator, a copy of the deed or lease of the premises upon which the sign is to be located;

(b) Plans and specifications setting forth the character of the sign in all its structural parts, and, except in the case of attached signs, by an accurate engineering survey of the property designating the location of all existing signs on the property and the proposed location of the desired sign; and

(c) Such other information as may be reasonably required by the zoning administrator in his administration and enforcement of this article.

(2) An application for a sign permit shall include drawings and text sufficient to:

(a) Show the location on the premises of the proposed sign(s);

(b) Show the dimensions of the proposed sign(s) and related support structures;

(c) For signs for which the dimensions of the lettering or message are specified in this ordinance, show such dimensions;

(d) Show proposed lighting of the proposed sign;

(e) For a sign including electronic elements, sufficient information to demonstrate that the sign will conform with the performance and other requirements established in this article; and

(f) For a sign requiring electricity, information sufficient to apply for an electrical permit; and

(g) The applicable fee.

(h) If the zoning administrator determines that the proposed sign conforms with the requirements of this article, the zoning administrator shall issue the permit(s) required for the erection or installation of such sign.

(i) If the zoning administrator determines that the proposed sign fails to conform with any requirement of this article, the zoning administrator may:

(i) If the ways in which the failures to conform involve dimensions, approve the application subject to the condition that it be amended to conform fully with this article; or

(ii) Deny the application in writing, specifying the ways in which the proposed sign fails to conform with this article.

(j) If the application is not approved or denied, in writing, by the zoning administrator within 30 business days of the date of application, it shall be deemed automatically denied unless an extension of time is agreed upon, in writing, by the applicant and zoning administrator.

72.11.3 *Permit exceptions.* The following signs are allowed by this article but do not require a sign permit or fee. Additionally, any sign area for these signs do not count toward the sign area allowances specified in this article for all other permitted signs. Permit-exempt signs may still be subject to building code or other applicable code requirements.

(a) Signs or notices issued by any court, officer, or other person in performance of a public duty, or required by other laws or ordinances. Any such sign shall be removed no later than seven days after the last day it is required to be displayed;

(b) Any public safety sign that is installed by the City of Huntsville or other governmental agency having jurisdiction that are intended to protect the health

and safety of the public that includes traffic control, street name, directional signs, and other signs that may or may not be located in the right-of-way;

(c) Signs that are located within a stadium, open-air theater, park, arena or other similar outdoor use that can only be viewed by persons within such stadium, open-air theater, park, arena or other similar outdoor use provided that any structure on which the sign is attached is permitted, as may be required by the city;

(d) Signs that are an integral part of the original construction of vending or similar machines, drive-through facilities, automated teller machines, or similar devices that are not of a size or design as to be legible from a street or by any person other than those using the machine or device;

(e) Sign face changes where the sign structure is designed with interchangeable panels and one of the panels is replaced without changing the structure, including any changes to the total sign face area, height or alteration of the sign cabinet;

(f) Changes of copy on signs with changeable copy, including electronic message signs and electronic display signs;

(g) Certain temporary signs as established in section 72.6;

(h) One wall sign, mounted flush to the façade of an individual residential dwelling unit, that is not illuminated and does not exceed two square feet in area;

(i) The posting of an address for a house or building is a public safety issue regulated under chapter 23, article V of the city code, and not this article;

(j) Signs that are an integral part of the historic character of a structure that has been designated an official landmark or historic structure by any agency or body of the governments of the United States, State of Alabama, Madison or Limestone Counties, or the City of Huntsville, or that otherwise forms an original part of the structure and has only historic significance;

(k) Any signs located on umbrellas, seating, or similar patio furniture;

(l) Any warning signs or traffic safety signs required by public utility or infrastructure providers;

(m) Hand-held signs not set on or affixed to the ground;

(n) General maintenance, painting, repainting, cleaning and other normal maintenance and repair of a sign or any sign structure unless a structural change is made.

72.11.4 *Permit fees.*

(a) The zoning administrator shall collect a minimum of $25.00 for each permit issued at the time an initial or renewal application is made. For signs with an estimated total install cost of over $1,000.00, the permit fee shall be $25.00 plus one-half percent of the estimated installed cost exceeding $1,000.00.

(b) A permit fee of $25.00 shall be collected for each pair of driveway signs at the entrance from a public street.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.12. Inspections.

All signs in the City of Huntsville for which permits are required under this ordinance may be subject to an annual inspection by the zoning administrator. Such inspection may take place beginning immediately after the adoption of this ordinance and thereafter may be conducted annually.

(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.13. Maintenance.

(1) All signs shall be maintained in safe condition, free from damage or the results of excessive weathering.

(2) At any time the zoning administrator shall find that any allowed sign is in a bad state of repair, or is in danger of falling, or presents a

hazard from electrical shock or fire, or at any time an allowed sign is found to be in such bad state of repair or maintenance as to adversely affect the property values in the surrounding neighborhood, then said zoning administrator shall make and enter an order directed to the owner or person in charge of said sign commanding its removal or its repair or maintenance as therein stated.

(3) Any orders issued under this section shall be subject to an appeal to the board of zoning adjustment in the same manner as other appeals are taken to said board. The board of adjustment is hereby empowered to hear said appeal and to make and enter an order directing the repair or maintenance of said sign upon a finding by said board that the condition of the sign, due to lack of maintenance, or disrepair, is a nuisance and adversely affects the property values in the surrounding neighborhood.

(4) Appeals from the board of zoning adjustment shall lie to the circuit court in the same manner as all other appeals.
(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

72.14. Severability.

Should any section or provision of this ordinance be held void or invalid, it shall not affect the validity of any other section or provision thereof which is not of itself void or invalid, it being the purpose and intention of the city council to enact each separate section and/or subsection separately.
(Ord. No. 21-46, § 1(Exh. A, § A), 2-25-2021)

ARTICLE 73. SUPPLEMENTARY REGULATIONS AND MODIFICATIONS

The provisions of this zoning ordinance shall be subject to such exceptions, additions, or modifications as herein provided by the following supplementary regulations:

73.1. Uses; accessory and temporary.

73.1.1. *Accessory uses.*

(1) *Definitions; examples.*

(a) An accessory use is defined as a use on the same lot with, and of a nature customarily incidental and subordinate to, the principal use permitted on such lot.

(b) This definition includes, but shall not be limited to, such customary home occupations as the offices of a doctor, lawyer, architect, notary, artist, and dressmaker.

(c) In the case of a dwelling unit occupied by no more than two adult residents, the definition also includes the taking in by a resident, for compensation, of not more than three (3) non-transient boarders (meals included) or three (3) non-transient roomers; provided, however, that the term does not include individuals who occupy the space as an incident of employment therein.

(2) Accessory uses permitted in residential districts must adhere to the following requirements:

(a) Except in the case of the taking in of boarders or roomers, accessory uses shall be engaged in the main building only and shall be conducted only by one person resident in said building.

(b) In the case of the taking in of boarders or roomers, the accessory use shall be engaged in the main building only, shall be conducted only by an individual actually residing in the dwelling unit, and shall only be allowed where the dwelling unit does not have a second kitchen (see section 10.6 of this Zoning Ordinance concerning second kitchens).

(c) The floor area designed or used for such accessory use shall not exceed the following percentages of total floor area of the dwelling unit:

Twenty percent for residence 1 and 1-A districts. In the case of roomers and boarders, only their private rooms shall be counted toward the maximum percentage.

Twenty-five percent for residence 1-B district. In the case of roomers and boarders, only their private rooms shall be counted toward the maximum percentage.

Thirty percent for residence 2 and 2-A districts. In the case of roomers and boarders, only their private rooms shall be counted toward the maximum percentage.

Thirty-five percent for residence 2-B district. In the case of roomers and boarders, only their private rooms shall be counted toward the maximum percentage.

(d) There shall be no external evidence of such accessory use or customary home occupation except one sign, not larger than two square feet in area, may be displayed provided such sign must be directly attached to the residence and must not be illuminated.

(3) Private swimming pools constructed in a residential district shall be located in the rear yard and shall be at least five feet from any other structure and a minimum of five feet from all property lines.

(4) Child care and group child care homes. A child care home shall be permitted in all zoning districts permitting residences, and a group child care home shall be permitted in residence 2-B districts, provided that:

(a) The dwelling and lot conform to all applicable regulations for the zoning district;

(b) The child care activity does not utilize an accessory structure;

(c) An off-street drop-off/pick-up area is provided if the facility is located on a major street;

(d) The facility displays only one sign, not larger than two square feet in area, attached directly to the residence and not illuminated; and

(e) A copy of the license issued by the department of human resources is filed with the zoning administrator.

(5) *Photovoltaic solar energy system, on-site.* A photovoltaic solar energy system ("solar energy system") is permitted in all zoning districts as an accessory use to a principal use except in the case of a non-residential use in a residential zoning district. A solar energy system as an accessory use to a non-residential use in a residential zoning district requires a special exception. A solar energy system is considered an accessory use when the power generated from the solar energy system is equal to or less than the expected power usage of the principal use and any other accessory use on the property based on Huntsville Utilities Electric Department estimates. The installation and construction of a solar energy system shall be subject to the following development and design standards:

(a) A solar energy system shall provide no more electricity than is needed for the principal use and/or accessory use of the lot on which the solar energy system is located and shall not be used for the generation of energy for the sale of energy to users other than the homeowner's primary supplier of electricity.

(b) The owner of a solar energy system connected to the utility grid shall provide written authorization from the local utility company acknowledging and approving such connection.

(c) A solar energy system may be roof mounted, pole mounted or ground mounted.

(d) A roof mounted system may be mounted on a principal building or accessory building. A roof mounted system, whether mounted on the principal building or accessory building, may not exceed the maximum principal building height or acces-

sory building height, as the case may be, that is specified for the building type in the applicable zoning district. In no instance shall any part of the solar energy system extend beyond the edge of the roof. For purposes of the height measurement, solar energy systems other than building integrated systems shall be considered to be mechanical devices and are restricted consistent with other building mounted mechanical devices.

(e) A ground mounted or pole mounted system, measured when oriented at maximum design tilt, shall not exceed the maximum building height for accessory buildings in the applicable zoning district.

(f) Ground mounted and pole mounted solar energy systems shall be located so that any glare is directed away from an adjoining property.

(g) In residential zoning districts, no portion of a solar energy system shall be located within or above any front yard.

(h) In a non-residential zoning district, no portion of a solar energy system shall be located within or above any required front yard.

(i) In all zoning districts, the minimum solar energy system setback distance from the side and rear property lines, measured when the system is oriented at minimum design tilt, shall be equivalent to the accessory building setback requirement of the applicable zoning district.

(j) All electrical lines/utility lines shall be buried underground.

(k) For ground mounted and pole mounted solar energy systems, screening, capable of providing year round screening, shall be provided along the non-reflective sides of the solar energy system or collection of systems.

(l) The installation of a solar energy system shall not cause to apply the requirements of Article 70—Off-Street Parking and Loading Requirements or of Article 71—Off-Street Parking and Vehicular Use Area (PVA) Landscaping Requirements.

(m) Any solar energy system that has not been in use for its original purpose for a period of 180 days shall be deemed to be abandoned. The solar energy system owner and/or the property owner shall have an additional 90 days to remove the abandoned solar energy system and any appurtenant structures or to reactivate the solar energy system.

(Ord. No. 25-267, § 3, 6-12-2025)

73.1.2. *Temporary uses.*

(1) Temporary structures, including portable storage structures, incidental to construction of buildings or structures with an active building permit are allowed provided such structures shall be removed following completion or abandonment of such construction.

(2) A temporary real estate sales office is permitted in a subdivision during the development of such subdivision provided its use relates only to the subdivision in which it is located and provided it shall be removed after the subdivision is developed. (63-93)

(3) One portable storage structure may be placed on a residential lot without an active building permit subject to the following conditions and limitations:

(a) Prior to placement of the portable storage structure on the lot, the property owner shall apply for and obtain a portable storage structure permit from zoning administration; and

(b) Multi-family dwellings are allowed one portable storage structure per dwelling unit and the portable stor-

age structures shall not be placed in required parking spaces or in required landscaped areas; and

(c) The permits for the portable storage structures shall be conditional permits and each residential lot is limited to a maximum of three 30-day permits within any 12-month period; and

(d) The portable storage structure shall not exceed 160 square feet in area and ten feet in height; and

(e) The portable storage structure shall be set back a minimum of ten feet from the front property line and a minimum of five feet from the side and rear property lines and a minimum of five feet from all other structures on the property and if placed in a front yard shall comply with the safe sight distance triangle regulations which are defined by the adopted standards of the American Association of State Highway and Transportation Officials (AASHTO); and

(f) The portable storage structure shall not encroach on public property or public rights-of-way; and

(g) No mechanical, plumbing or electrical installations or connections are to be made to the portable storage structure; and

(h) The portable storage structure shall have clearly posted on the exterior of the unit a copy of the current permit issued for the portable storage structure, and the date the portable storage structure was placed at the site; and

(i) The conditional permit approval for the portable storage structure may be revoked by the zoning administrator at any time should the property owner's utilization of such portable storage structure result in unsafe or unsanitary conditions on the site or upon violation of any of the conditions or limitations stated herein.

(Ord. No. 07-460, § 8, 6-28-2007; Ord. No. 08-529, § 2, 8-14-2008; Ord. No. 12-466, § 2, 8-23-2012)

73.2. Fallout shelters.

73.2.1. Fallout shelters for unlimited occupancy are permitted as a principal or accessory structure in any business or industrial district.

73.2.2. Fallout shelters operated by a local, state or federal governmental agency may be located in any district.

73.2.3. Aboveground shelters intended for occupancy by not more than two families are permitted in any district as an "accessory structure" subject to the requirements of section 73.8 hereof.

73.2.4. Underground shelters intended for occupancy by not more than two families are permitted at any location in any yard notwithstanding other provisions of this ordinance, provided the structure or its overburden does not exceed 30 inches above the natural grade of the yard.

73.2.5. Fallout shelters intended for occupancy by more than two families may be permitted as special exceptions in accordance with section 92.5.2 hereof, in cases where such use would not be damaging or injurious to surrounding land uses.

73.2.6. Nothing in this ordinance shall be construed to prohibit the multiple use of a fallout shelter with other permitted uses of the district in which it is located.

73.3. Trailers.

73.3.1. All trailers except as hereinafter provided shall be located in approved trailer parks regardless of whether or not such trailer is occupied.

73.3.2. Vacant.

73.3.3. Trailers may be temporarily parked and used as a bona fide construction office and the quarters of a lone night watchman at the construc-

tion site provided a construction office trailer permit is secured from the manager of inspection.

73.3.4. Office trailers are permitted in industrial districts only as bona fide sales or rental offices for only the following uses: trailer sales, new and used car sales and trailer park rental.

73.4. Future street lines.

Any lot intercepted by a future street line as indicated on the duly adopted major street plan, or as the same may be hereafter amended, shall protect and preserve such future street line by considering the same to be the lot line for the purposes of establishing minimum required yards, minimum required lot area, minimum required lot width, and maximum building area of such lot. If such major street plan established a greater front yard requirement than contained in this ordinance, then such greater front yard requirement shall be required.

73.5. Rear dwelling prohibited.

No dwelling shall be erected on a lot which does not abut on at least one street for at least 20 feet.

No building in the rear of a main building on the same lot may be used for residential purposes.

73.6. Dual occupancy or uses.

No building or structure may be used for residential purposes when said building or structure's primary purpose is used for office or other non-residential uses, except in a neighborhood business C-1 district when in compliance with section 20.1.1 (residential dwelling units); an office district; a planned development-housing district; a central business C-B district; or in a general business C-3 district.
(Ord. No. 02-196, § 2(73.6), 4-25-2002; Ord. No. 06-1201, § 3, 1-25-2007; Ord. No. 11-899, § 3, 1-26-2012)

73.7. Yards.

73.7.1. Projecting architectural features. The space in any required yard shall be open and unobstructed except for the ordinary projections of window sills, belt courses, cornices, eaves, chimneys and other architectural features provided that such features shall not project more than two feet into any required yard.

73.7.2. Porches. Any porch or carport having a roof shall be considered a part of the building for the determination of the size of yard or lot coverage.

73.7.3. Terraces. A paved terrace shall not be considered in the determination of yard sizes or lot coverage provided that such terrace is unroofed and without walls or parapets or other forms of enclosure. Such terrace, however, may have an open guard railing not over three feet high and shall not project into any yard to a point closer than two feet from any lot line.

73.7.4. Front yards. Where the developed lots within 100 feet on the same side of the street of any undeveloped lot have a greater or lesser front yard than required herein, the front yard of such undeveloped lot shall be within five feet of the average front yard; provided no front yard shall be less than 20 feet except in a residence 1-C district, and further provided this section shall not apply to secondary front yards, or lots fronting on arterials and major collectors as established by the major street plan.

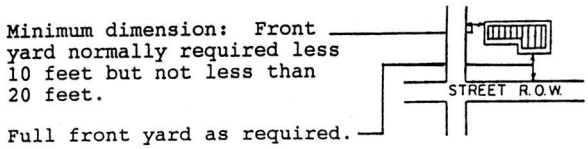
73.7.5. Front yards required in business districts may contain pump islands of service stations provided such pump islands are a minimum of 15 feet from all front property lines, except that covers for such pump islands, whether attached or unattached to the main building, may extend five feet from the center of the said pump island.

73.7.6. Rear yards may contain accessory buildings provided such buildings must comply with section 73.8 hereof.

73.7.7. Corner lots in residential districts have two front yards.

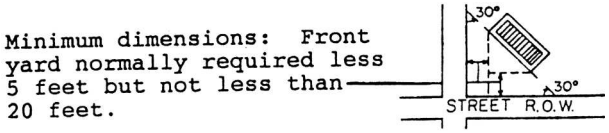
(1) Houses whose fronts are oriented parallel to a street shall maintain required front yard on such street. The front yard on the remaining street may be ten feet

less than the normal front yard required provided it is not less than 20 feet to the nearest point on the street line.



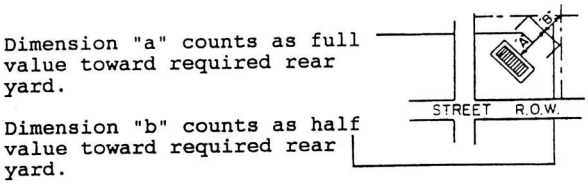
Street R.O.W. 1

(2) Corner lots having houses oriented at an angle of 30 degrees or more to abutting streets may have five feet less than the normally required front yard on each street provided the house shall not be situated closer than 20 feet to the nearest point of any street line.



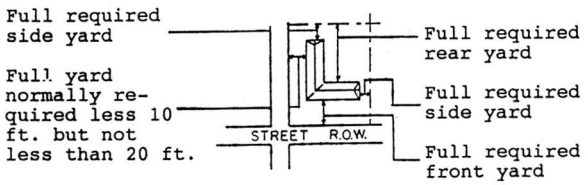
Street R.O.W. 2

(3) Triangular portions of rear yards may count as one-half foot for each foot of its altitude; the base of such triangle being parallel to the house and intercepting a lot line.



Street R.O.W. 3

(4) "L" shaped houses oriented on corner lots as shown in the following diagram shall have the minimum required yards as illustrated.



Street R.O.W. 4

73.7.8. Office buildings of not more than two stories located on corner lots in residence 2-B districts, neighborhood business C-1 and C-2 districts, and light and heavy industry districts shall be required to have the following yards:

(1) One front yard of required depth;

(2) One front yard ten feet less than the required front yard but not less than 15 feet;

(3) One rear yard of required depth; and

(4) One side yard of required depth.

Placement of the required front yard does not necessarily determine the placement of the front door. This regulation shall not be construed as voiding corner restrictions for other districts or corner visibility requirements.
(Ord. No. 01-644, § 2, 9-13-2001; Ord. No. 19-780, § 1, 10-24-2019; Ord. No. 22-898, § 1, 12-15-2022)

73.8. Location of accessory structures on residential lots.

Accessory structures in residential districts and on any lot used primarily for residential purposes shall conform to the following regulations:

73.8.1. No accessory structure shall be erected in any front yard or any required side yard except underground fallout shelters provided for under section 73.2 hereof. Accessory structures shall not exceed two stories in height and shall not cover more than 30

percent of any required rear yard and shall be at least five feet from all lot lines and ten feet from any other structure on the same lot.

73.8.2. On corner lots, detached residence accessory structures (except underground fallout shelters) shall not be located closer to a street than the minimum building line.

(Ord. No. 09-1053, § 6, 12-17-2009; Ord. No. 11-899, § 3, 1-26-2012)

73.9. Height modifications.

73.9.1. Except as provided in sections 73.9.2 and 73.20 hereof, the height limitations of this ordinance shall not apply to church spires, barns, silos, monuments, missiles, flag poles, antennas, penthouses and domes not used for human occupancy, nor to chimneys, water tanks, and necessary mechanical appurtenances usually carried above the roof level. Such features, however, shall be erected only to such height as is necessary to accomplish the purpose they are to serve and shall not exceed in cross sectional area 20 percent of the ground floor area of the building.

73.9.2. Airport obstruction zoning. Where the height provisions of this ordinance are less restrictive than the height provisions of the airport obstruction zoning ordinance, as herein defined, the provisions of the airport obstruction zoning ordinance shall apply.

73.9.3. Obstruction marking and lighting. All obstructions as defined by the Civil Aeronautics Board publication "Obstruction Marking and Lighting" shall be marked and lighted as specified by said publication at the owner's expense.

(Ord. No. 96-1008, § 3, 1-23-1997)

73.10. Corner visibility.

On a corner lot in any district except the general business C-3 district, no fence, wall, hedge, structure, or planting, or other obstruction to vision between the heights of 2½ feet and 15 feet above street level shall be erected, placed, or maintained within the triangular area formed by the intersection of street lines with a straight line joining said street lines at points which are 30 feet distant from the point of intersection measured along said street lines.

73.11. Curb cuts; driveways.

All curb cuts or driveway entrances to major streets shall be constructed only after the city traffic engineer and the city engineer have ascertained that the proposed construction would not create a traffic hazard, would not create a drainage problem, and would not be detrimental to proposed improvements to said major street. Notwithstanding, any curb cut or driveway entrance shall meet all city engineering specifications.

73.12. Access.

No structure shall be erected on a lot that does not abut on and have legal access to at least one street for the minimum frontage distance required by the zoning district; if no street frontage is specified, then the minimum street frontage shall be 20 feet. Notwithstanding other provisions of this ordinance, the planning commission shall have the discretion and authority to require that each use to which land is put in the City of Huntsville have sufficient means of access to serve the particular needs of the land affected prior to the approval by the planning commission or prior to the issuance of a building permit.

(Ord. No. 96-259, § 1, 5-23-1996)

73.13. Multiple-family dwellings (apartment buildings).

Plans for proposed multiple-family dwellings containing two or more buildings which are located on a parcel of land not subdivided into the customary streets and lots, or which contain a building not oriented so the main entrance(s) directly faces a street, shall be presented to the planning commission for review. The commission shall make certain the proposed development meets the following requirements:

73.13.1. The proposed development shall be compatible with requirements and intent of the subdivision regulations relative to access, drainage, utilities, and major streets.

73.13.2. Sidewalks not less than four feet wide are required in the project area leading from all front and rear doors to streets. Sidewalks are also required along all property of the project abutting streets.

73.13.3. Off-street parking spaces shall be provided as follows:

(1) *Residence 2-A district.* One and one-half spaces for each dwelling unit.

(2) *Other districts.* One and one-quarter spaces for each dwelling unit.

73.13.4. The following density controls are required:

(1) Residence 2-A district:

(a) Eight thousand square feet of land area for the first two dwelling units; 3,000 square feet for each additional dwelling unit; provided, however, such required land area must be exclusive of public or private vehicular access ways but may include parking space.

(b) Closest permitted distance between any two buildings shall be 14 feet for one-story buildings; 16 feet for two-story buildings.

(c) Minimum distance from an apartment building to a parking space shall be ten feet.

(d) Minimum distance from the front of an apartment building shall be 50 feet to a major arterial and 30 feet to other public streets.

(e) On corner lots, the minimum distance from the side of an apartment building shall be 50 feet to a major arterial and 25 feet to other public streets.

(f) Minimum distance from side of apartment building to side property line shall be eight feet for one-story buildings; ten feet for two-story buildings.

(g) Minimum distance from rear of apartment building to side property line shall be 32 feet without a buffer; 27 feet if a buffer is provided.

(h) Minimum distance from either rear or side of apartment building to rear lot line shall be 35 feet.

(i) Minimum distance from front of apartment building to front of another apartment building shall be 40 feet.

(j) Windows in all apartment buildings shall have not less than a 30-foot view (measured perpendicularly from the window) unobstructed by other buildings located on the same parcel of land.

(k) Maximum number of structures shall be limited to four structures per acre.

(l) No front of a multi-family dwelling building shall be in the rear of another building.

(2) Other districts permitting multiple-family dwellings:

(a) Six thousand square feet of land area for the first two dwelling units; 2,000 square feet for each additional dwelling unit; provided, however, such required land area must be exclusive of vehicular accessways but may include parking space.

(b) Closest permitted distance between any two apartment buildings shall be ten feet for one-story buildings; 14 feet for two-story buildings.

(c) Minimum distance from an apartment building to a parking space shall be eight feet.

(d) Minimum distance from the front or side of an apartment building shall be 50 feet to a major arterial and 20 feet to other public streets.

(e) Minimum distance from side of apartment building to side

property line shall be seven feet for one-story buildings; eight feet for two-story buildings.

(f) Minimum distance from rear of apartment building to side property line shall be 30 feet without a buffer; 25 feet with a buffer.

(g) Minimum distance from either rear or side of apartment building to rear lot line shall be 25 feet.

(h) Minimum distance from front of one apartment building to front of another apartment building shall be 30 feet.

(i) Windows in all apartment buildings shall have not less than a 20-foot view (measured perpendicularly from the window) unobstructed by other buildings located on the same parcel of land.

(j) Maximum number of structures shall be limited to four structures per acre.

(k) No front of a multi-family dwelling building shall be in the rear of another building.

(Ord. No. 22-685, § 2, 10-27-2022; Ord. No. 22-484, § 2, 8-25-2022)

73.14. Residential parking modifications.

For the purpose of this section, parking means the keeping on a residential lot of a vehicle regularly used or owned by a member of the residential household. A motorized vehicle that does not have a current license registration or tag is deemed to be stored only and shall not be parked in a residential yard. The following provisions of this section shall not apply to passenger automobiles or passenger vans or pickup trucks:

73.14.1. The parking of a truck, bus, or commercial vehicle greater than three-quarter ton or 9,000 pounds gross vehicle weight rating (GVWR) shall not be permitted on any residential lot, except that a truck, bus, or commercial vehicle not greater than 1½ tons or 16,000 pounds GVWR may be parked in a fully enclosed accessory structure on a residential lot. This provision includes bus conversions.

73.14.2. Refrigeration units and generators attached to vehicles shall not be operated while such vehicles are parked on a residential lot.

73.14.3. All motorized vehicles shall be parked off-street, not within nor overhanging any right-of-way, and shall not obstruct vision with respect to traffic entering or exiting any adjoining or nearby driveway or street, nor obstruct any pedestrian walkway.

73.14.4. The occupancy of any motor home, camping trailer, or similar vehicle designed or intended for occupancy is prohibited while such vehicle is parked on a residential lot.

73.14.5. All vehicles that fail to comply with section 73.14.1 shall be removed by the owner or person responsible for same within 90 days after the effective date of this ordinance, and thereafter it shall be unlawful to maintain such vehicles on a residential lot except in conformity with this ordinance.

73.14.6. No variances from section 73.14 shall be permitted.

(Ord. No. 02-1005, § 1, 1-23-2003)

73.15. Front yards along major arterials.

73.15.1. With the exception of the article 60, medical district regulations, minimum setback of 50 feet, of which the first ten feet for all non-residential uses shall be landscaped and maintained, shall be required along all major arterials, as defined in the major street plan, unless the applicable zoning regulations require a greater setback; provided however, that residential uses that do not derive their access from the major arterial shall be excluded from this provision.

73.15.2. Exterior storage of materials shall be in the side and rear yards only and shall be contained and screened by fencing or landscaping in such a manner as to be neat in appear-

ance when viewed from any street. No exterior display of products or merchandise is permitted in the required front yard except for sales of farm equipment, new and used cars, trailers, recreational vehicles, and mobile homes, and these uses shall not be permitted in the first ten feet of the required front yard.

73.15.3. Off-street parking spaces are not permitted in the first ten feet of the required front yard as measured from the arterial right-of-way. Areas used for parking of motor vehicles shall be paved or surfaced with at least four inches of limestone.

73.15.4. All businesses offering merchandise of any description for sale or rent shall have a permanent sales building on the lot except as provided in section 73.15.4.

73.15.5. The temporary, seasonal sale of perishable farm products is permitted so long as all evidence of such operations is removed from the premises each night and such operations are not conducted in any part of the required front yard.

73.15.6. The first ten feet of the required front yard shall be landscaped with at least an average of one tree and five shrubs per each 50 linear feet of frontage or portion thereof and the area shall be planted with a permanent evergreen ground cover. Shrubs are optional in areas where a berm at least three feet in height is used and the berm is planted with a permanent evergreen ground cover. Trees and shrubs shall be well distributed, though not necessarily evenly spaced.

(1) All landscaping shall be installed in accordance with section 73.19, installation of landscaping.

(2) All required landscaping shall be maintained in a neat, healthy and growing condition; all unhealthy or dead plants shall be replaced by the next growing season with plants that conform to these regulations.

73.15.7. Where these regulations conflict with other applicable zoning provisions, the more stringent shall apply.

(Ord. No. 98-104, § 2, 3-26-1998; Ord. No. 18-900, § 3, 11-15-2018)

73.16. The land use intensity (LUI) system; standards, definitions, methods of measurement, general requirements and limitations.

In certain districts, and for specified uses in other districts, special forms of regulation based on the land use intensity (LUI) system and related controls apply. Standards relating to this system, definitions, methods of measurement, and general requirements and limitations are as follows:

73.16.1. *Definitions and methods of measurement relating to standard LUI ratios; requirements and limitations.* The following definitions and methods of measurement shall be used in the districts and for the uses regulated under the LUI system. Except where application to other uses is specifically indicated, floor area, open space, livability space, and recreation space ratios shall be applied only to such land area, floor area, open space, and related elements as are allocated for residential uses and accessory uses incidental to and compatible with residential uses.

(1) *Gross land area for PD districts.* Gross land area of PD districts shall be computed as all land (except that to be devoted to nonresidential purposes) within district boundaries, plus one-half of adjoining permanent open space such as streets, parks, lakes, cemeteries, streams, and the like; provided width of adjoining open space credited shall not exceed in number of feet the numerical LUI rating for the district unless otherwise specified. Computations involving such open space shall be as provided for in section 3.1, lot, area for gross area of lots.

Gross land area of PD districts shall not be construed to include lands not beneficial to residential use due to location or character, or areas used predominantly for commercial or other nonresidential purposes.

As a further guide, where floor area of a building is predominantly in residential use, the building site shall be included in residential land area (as, for example, in the case of a multifamily structure with ten percent of its floor area in accessory commercial and service uses).

(2) *Residential floor area defined; inclusions and exclusions; maximum limitation.* Residential floor area is the sum of areas for residential use on all floors of buildings, measured from the outside faces of the exterior walls, including interior halls, lobbies, stairways, elevator shafts, enclosed porches and private balconies, and belowgrade floor areas used for habitation and residential access.

Not countable as residential floor area are:

Open terraces, patios, atriums, or balconies; carports, garages, breezeways, tool sheds; exterior accessways serving more than one unit; special purpose areas for common use of occupants, such as recreation rooms or social halls; staff space for therapy or examination in care housing;

basement space not used for living accommodations; or any commercial or other nonresidential space.

Maximum residential floor area shall not exceed the number of square feet derived by multiplying gross land area by the floor area ratio (FAR) applying.

(3) *Open space defined; inclusions and exclusions; minimum requirements.* Open space is the total horizontal area of uncovered open space plus half the total horizontal area of covered open space subject to limitations set forth below:

Uncovered open space is total gross land area not covered by buildings, plus open exterior balconies and roof area improved as recreation space.

Covered open space is open space closed to the sky, suitable and designed for use as open space and/or livability or recreation space. Such space shall have not less than 20 percent of its perimeter open or partially open. "Partially open" is to be construed as having at least 50 percent open and unimpeded by visually opaque material. Examples of covered open space are covered balconies, covered portions of roof area, or spaces under buildings supported by posts, columns, or cantilevers. The square feet countable as covered open space shall not exceed the square footage of the open or partially open sides.

Minimum open space required shall be not less than the number of square feet derived by multiplying gross land area by the open space ratio (OSR) applying.

(4) *Livability space defined; inclusions and exclusions; minimum requirements.* Livability space is space including lawns and other landscaped areas, walkways, paved terraces and sitting areas, outdoor recreation areas, and landscaped or sidewalk portions of street rights-of-way, appropriately improved and located for outdoor use by occupants and visitors, for safety and convenience, and for aesthetic appeal. Such space shall not be used by vehicles except for emergency actions.

Minimum livability space required shall not be less than the number of square feet derived by multiplying gross land area by the livability space ratio (LSR) applying to the land use intensity.

(5) *Recreation space defined; inclusions and exclusions; minimum requirements.* Recreation space, part of total and livability open space, is exterior area appropriately improved for common recreational use.

Active recreation space (swimming pools, shuffleboard courts, tennis courts, tot lots, and the like) for common use shall be a minimum of 40 feet from any residential window at the same level, and this distance may be increased as required in particular circumstances. Both active and passive recreation space (with the latter consisting of walkways, sitting areas, and the like) for common use shall be so located, designed, screened, and buffered as to minimize potential adverse effects on privacy or tranquility of nearby residential units. In the case of active recreation space, character, hours of use, and lighting shall be considered in establishing any special conditions and safeguards.

Recreation space may be located at ground level, or on suitably improved roof, terrace or balcony levels.

Minimum recreation space required shall be not less than the number of square feet derived by multiplying gross land area by the recreation space ratio (RSR) applying.

(6) *Car space defined; requirements.* Occupant car space is garage, carport, or other off-street parking space, together with appropriate access and maneuvering ways, available to residents without time limits.

Total car space is occupant car space plus other parking space available for unlimited or seldom limited time periods, primarily for guests. Where curb parking on streets is permissible, and likely to remain so, part or all of such other parking space requirements may be met by such curb parking.

The occupant car ratio (OCR) and total car ratio (TCR) for the applicable land use intensity times the number of dwelling or lodging units equals the number of occupant and total parking spaces required, except in districts where lodging unit requirements are otherwise specified.

73.16.2. *Open space and building spacing.* Yards, courts and other open spaces required herein in relation to structures or portions of structures are intended to perform a variety of functions. Among these (as appropriate to and required by the uses involved and their location) are ensuring adequate privacy; desirable outlook; natural light and ventilation; access to and around buildings; off-street parking and loading spaces and service areas; space for landscaping; spacing between buildings and portions of buildings for reducing potential adverse effects of noise, odor, glare, or hazards from fire; and recreational space near buildings.

These regulations, supplementing others set forth elsewhere in this ordinance, shall apply to yards, courts, other open spaces and building spacing in particular districts, or in relation to particular uses, as specified in regulations relating to such districts or uses.

73.16.3. *Rules concerning location and use of open space:*

(1) Except in the case of fixed yards required adjacent to streets or lot lines, or as otherwise specified in regulations for particular districts, required yards and courts relating to residential uses controlled by these regulations need not be at ground level if, and to the extent that, in other locations their functions, nature, orientation, areas, access, and improvements are appropriate to uses within the buildings and adjoining buildings, and particularly to adjacent uses at the same level of the building and overviewing uses in the same or nearby buildings.

(2) Where lots or building sites adjoin permanent open space in parks, common open space, or other open space, excluding streets or drives, intended to remain so for perpetuity, half of the width of such open space shall be included in meeting building spacing requirements subject to the following limitations and exceptions:

(a) Where walls containing primary or secondary windows at or below the third story level face parking areas for ten or more cars, the full dimension of the required yard shall be provided and no such dimension shall include any portion of the parking area. Where such walls rise from decks of buildings, the third story level shall be construed to be the third story level above such decks.

(b) Where walls containing primary or secondary windows at or below the third story level face other permanent off-site open space which is likely to be of a nature adversely affecting privacy or tranquility of residential occupancy, then the full dimension of the required yard or open space shall be provided and no such dimension shall include any portion of such off-site open space. Where such

walls rise from decks of buildings, the third story level shall be construed to be the third story above such decks.

(3) Where lots or building sites are located adjacent to public or private streets or private drives, then the full dimension of the required yard shall be provided from the back of the curb or pavement edge of a street, except for lots or buildings adjacent to a designated collector or major street in which case a minimum of 30 feet shall be required.

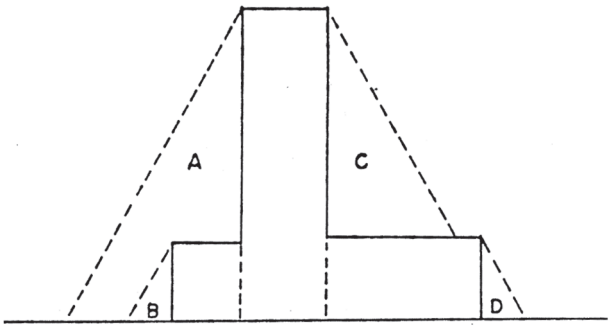
(4) Where two or more buildings containing living quarters are to be located on a single lot or tract, building sites pertaining to each shall be identified for determinations concerning compliance with spacing requirements. Open space shall be provided adjacent to lines of the building site as though they were lot lines.

(5) Spacing requirements for buildings or portions of buildings containing living quarters shall be based on horizontal length, number of stories, type of windows in walls involved, and orientation of main entrances to living quarters. Distance between walls shall be at least the sum of the depths of the open spaces required for each.

(a) Where portions of buildings contain different numbers of stories, required clearance from lot or building site lines shall be as established for the portion nearest to the lot line, except where spacing required for portions farther from the line is of greater depth, in which case the depth so established is the required clearance from the lot or site line (as projected vertically when space is provided other than at ground level). Lower portions of buildings may extend into clearance distances required for upper portions if roof areas are appropriately improved in relation to views from the same or higher levels by visual amenities such as landscaping, but such lower portions shall provide clearance to meet their own requirements.

The drawing which follows illustrates these relationships. At the left of the building, the lot or building site line would be required to be at or beyond the point at which the diagonal at A reaches the ground, since the portion of the building to which it relates requires greater spacing than does B. To the right of the building, D requires greater spacing than does C, and would therefore determine the requirement.

Permitted Overlap of Yards (vertical relationship)



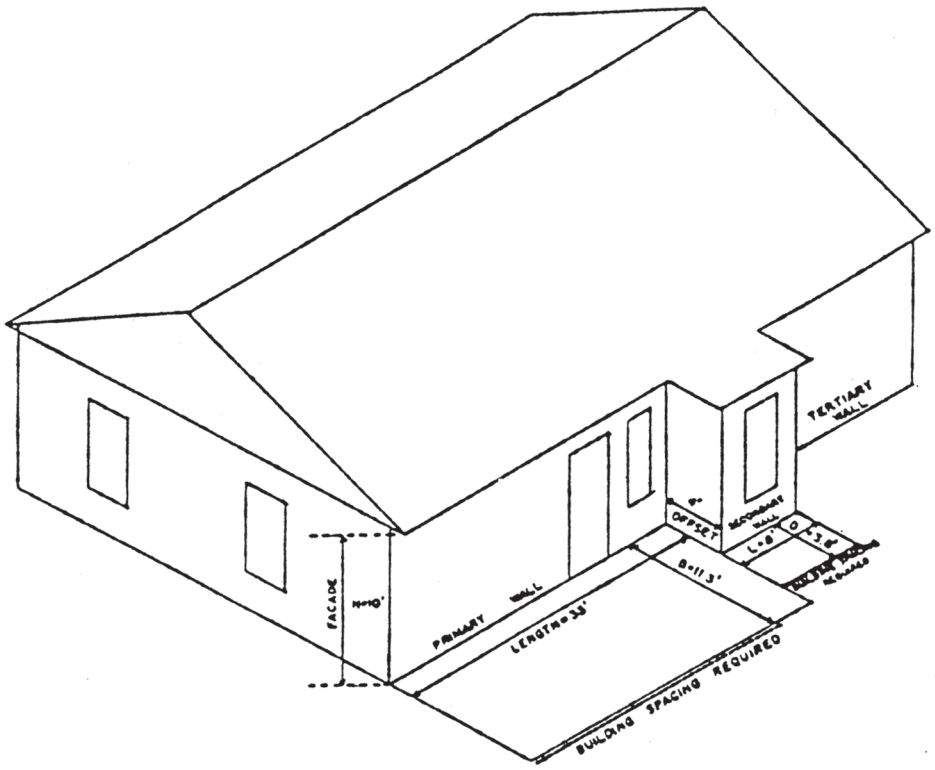
(82-122)

(b) Length of walls shall be measured as the horizontal distance from corner to corner. Where walls in continuous general frontage area offset by setbacks equalling 30 percent or more of the height of the facade, the length of each segment so set off shall be measured separately in establishing

pertinent yard or open space depth, provided that where open, partially open, or enclosed structures devoted to entrances, stair wells, and/or elevator shafts project from the general alignment of a wall, such structures shall not be construed as constituting a breakpoint in lengths involving building spacing determinations.

Where walls in continuous general frontage enclose portions of buildings varying one story or more in height (as in the illustration above) length of each segment so varying shall be measured separately in computing pertinent yard depth. Length of a curved or irregularly shaped wall shall be construed as the shortest distance between the wall's end corners. Length of the wall of a circular building shall be construed as the diameter of the building.

The drawing which follows illustrates the setbacks required when there is an offset in a wall equalling 30 percent or more of the height of the facade.



Building Spacing Required

(c) Height in stories shall be computed as actual number of stories in the wall above ground level, with the following exceptions. Where the wall is along a slope, number of stories shall be construed as the arithmetic mean number, with half a story

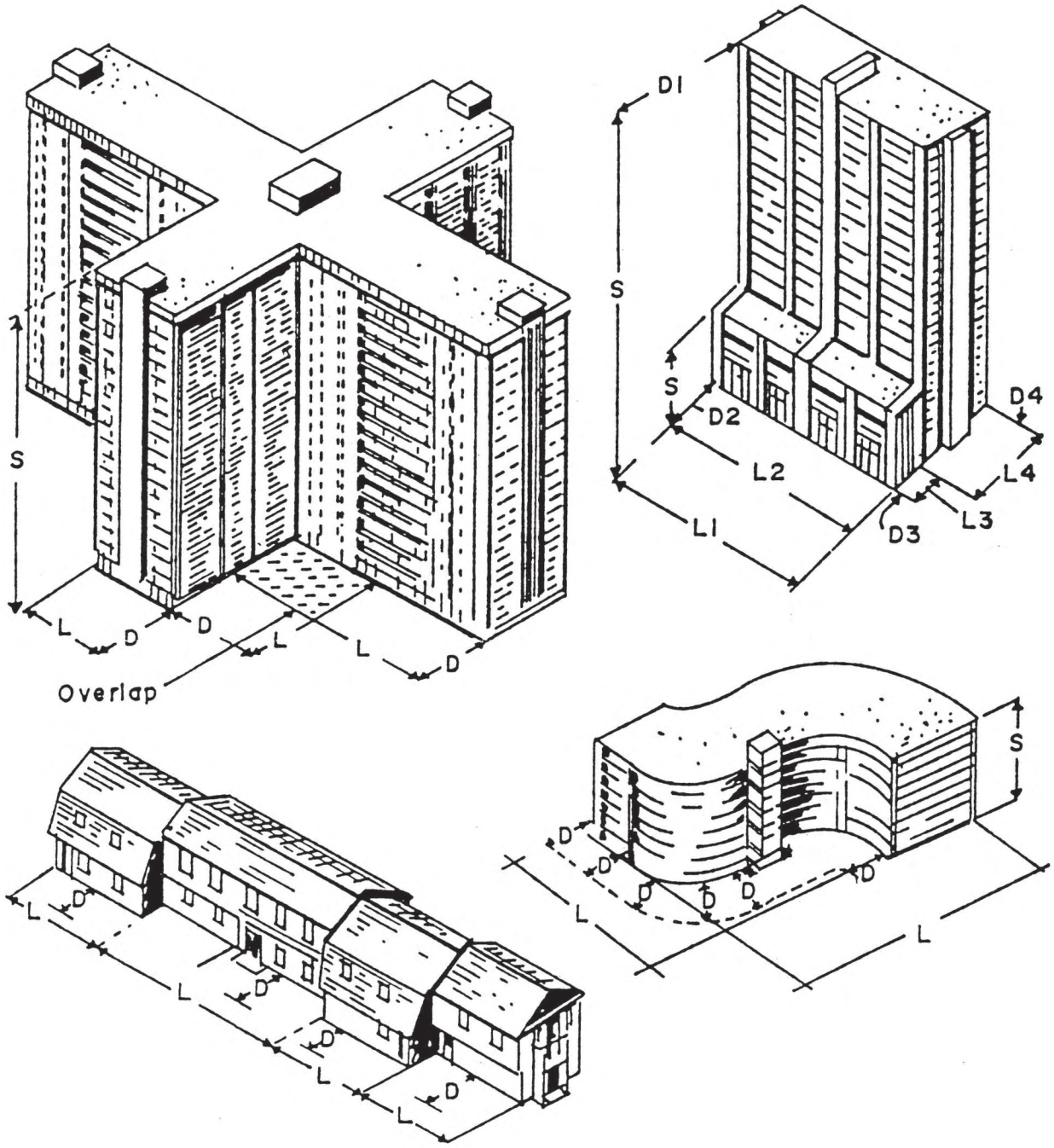
or more considered as a full story, and less than half a story ignored in computations. When height per story exceeds an average of 11 feet, calculations involved in yard or spacing determinations shall be based on an assumed number of stories derived by dividing building height by ten feet.

Penthouses, roof shelters, and housing for mechanical equipment shall be ignored in computations involving number of stories except where they are visible from the ground level within 200 feet of the lot, are ten feet or more in height, and occupy 50 percent or more of the length of the wall at their bases, in which case an additional story shall be included in computations. On sloped sites, visibility shall be determined from the downhill side or from the sides at the same elevation only.

(d) Yard or other open space depth, between exterior building walls and adjacent lot or building site lines (projected vertically where appropriate), shall be measured horizontally in relation to the ground, and perpendicularly to straight walls or radially to curved walls. Distance at all points shall be at least equal to minimum requirements set forth herein, except as provided in section 3.1, court, and 3.1, yard, with regard to architectural and other projections.

Yard space for two walls may overlap where it does not affect the distance between two buildings.

The drawings which follow provide graphic explanation of permissible overlap and methods for measuring length of walls and depth of yards for a variety of building forms.



YARD DEPTH, BUILDING LENGTH ILLUSTRATIONS

(e) For purposes of establishing open space requirements adjacent to walls enclosing living quarters, the following definitions and classifications shall govern:

Habitable rooms are rooms designed and used for living, sleeping, eating, or cooking or combinations thereof. Bathrooms, toilet compartments, closets, halls, storage rooms, laundry and utility spaces, basement recreation rooms, and similar areas are not considered habitable rooms.

Primary windows are principal windows in habitable rooms except bedrooms and kitchens.

Primary walls are walls containing primary windows and/or main exterior entrances to individual living quarters when directly facing the primary wall of other living quarters.

Secondary windows are windows of habitable rooms other than primary windows, as defined above.

Secondary walls are walls containing only secondary or secondary and tertiary windows.

Tertiary windows are windows other than for habitable rooms.

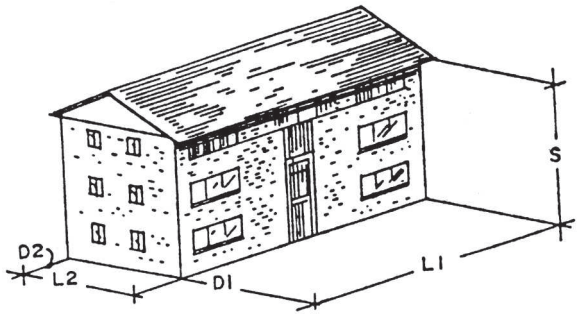
Tertiary walls are windowless walls, or walls containing only tertiary windows.

Minimum distance from walls to lot lines or building site lines for buildings or portions of buildings containing living quarters shall be computed as follows, where D = depth in feet, L = length in feet, and S = height in stories:

(i) Primary walls: $D = 6 + 2S + \frac{L}{10}$

(ii) Secondary walls: $D = 2 + S + \frac{L}{10}$

An example of building spacing requirements is shown in the following illustration:



D1 equals 18 feet for a primary window wall

— Six feet plus two feet for each floor of a three-story building plus

— One foot for each ten feet of length (60 feet)

— 6 + 6 + 6 = 18 ft.

D2 equals 7.6 ft. for a secondary window wall

— Two feet plus one foot for each floor of a three-story building plus

— One foot for each ten feet of length (26 feet)

— 2 + 3 + 2.6 = 7.6 ft.

An illustration of building spacing requirements is shown in the following example, where

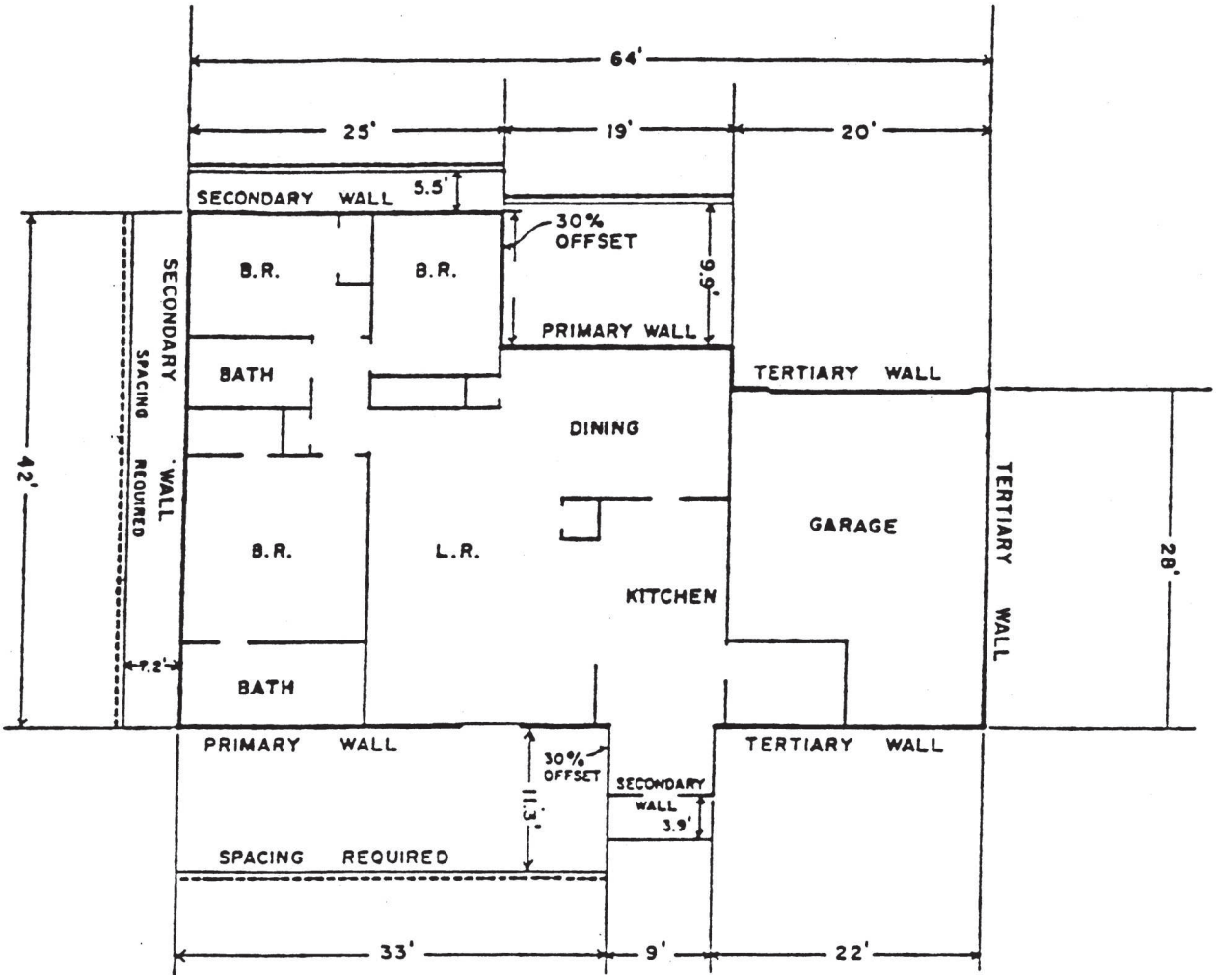
Primary walls: $D = 6 + 2S + \frac{L}{10}$

Secondary walls: $D = 2 + S + \frac{L}{10}$

Tertiary walls: No setback required

S = Number of Stories

L = Length of Wall



(f) Special requirements and modifications concerning courts.

(i) *Inner courts.*

1. Inner courts are open outdoor spaces enclosed on all sides by building walls or potential building walls, [and] shall have a minimum dimension equal to the sum of the required yards but not less than ten feet. Their areas shall not be less than 100 square feet for one story or 150 square feet for two stories or more.

2. Unobstructed passageway. Except in the case of an inner court, atrium, or enclosed patio for a single dwelling unit, a passageway shall be provided at the lowest level of each inner court, as provided by the building code.

Such passageway shall be continuous from the inner court to unobstructed open space adjacent to the building, and shall be so aligned as to facilitate passage of nonvehicular fire fighting and emergency equipment, including ladders.

3. Inner court design shall be such as to permit use of fire fighting equipment.

(ii) *Outer courts.*

1. Outer courts are open outdoor spaces enclosed on at least three sides by building walls or potential walls, with one side open to a street, driveway, alley, yard or other open space.

2. Width of outer courts bounded on three sides by building walls or potential building walls shall be not less than the sum of the required open space distances measured from opposing building walls.

3. Width reduction for shallow courts. Where outer court depth is less than half of width, maximum required width may be reduced by up to 25 percent.

4. Depth of outer courts shall not be greater than one and one-half times width.

5. Where walls are not parallel to property or site lines, the nearest portion of a building to such lines shall be at least the required distance therefrom.

(g) For structures or portions of structures not containing dwelling units and not otherwise controlled by these regulations, yards, courts, open space and building spacing shall be appropriate to the use of such structures or portions, as related to anticipated amounts and timing of vehicular and pedestrian traffic and exposure of nearby living quarters to such use, and with due regard for location of primary or secondary window walls, separation of residential open space from other open space on the site by walls, fences, or vegetative screening where desirable, location of proposed parking areas, drives and service areas, and similar considerations.

73.17. Extraction permits.

No new extraction operation shall begin and no existing extraction operation shall expand until an extraction permit has been issued by the natural resources and environmental management division. The following information shall be submitted to the manager of natural resources and environmental management when making application for an extraction permit. The manager may require other pertinent data if necessary to determine that the proposed extraction operation will satisfy the provisions of all applicable local laws and regulations. After all data has been submitted to the manager as required herein, the manager shall have 60 days within which to approve or deny the application. If the

manager has taken no action on the completed application within the stated time period, the application shall be deemed denied.

73.17.1. Legal description of the extraction site, including the total acreage.

73.17.2. Copies of all instruments (deeds, leases, etc.) conveying to the applicant mineral rights in and to the real property within the boundaries of the site. Provided, however, that the applicant has the option of attaching, in lieu of a copy of any lease, a memorandum of lease satisfying the execution, acknowledgment, and content requirements of Code of Ala. 1975, §§ 35-4-6, 35-4-51.1.

73.17.3. Vicinity map drawn on an official Huntsville Zoning Map at a scale of one inch to 400 feet, on which is identified the following data for both the proposed extraction site and the area one-half mile beyond the site:

(1) Boundaries of the extraction site;

(2) Public routes to be used by vehicles and equipment entering and leaving the site;

(3) Locations of streams and bodies of water, public roads, railroads, utilities, residences, and structures or areas of cultural or historic significance; and

(4) Locations and descriptions of any environmentally sensitive areas including, but not limited to, wetlands and lands harboring endangered plant and animal species.

73.17.4. Site plan drawn on a topographic map at a scale of one inch to 200 feet, on which is identified the following data:

(1) Boundaries of the extraction site;

(2) Locations and descriptions of all proposed buffers, setbacks and visual screens;

(3) Topography of the site and the lands within one-half mile thereof at five-foot intervals; and

(4) Locations and acreages of areas planned for extraction; for storage of overburden, byproducts and excavated materials; for processing facilities; and for those lands to be left undisturbed.

73.17.5. Operational plan, with maps drawn at a scale of one inch to 200 feet or less, to include the following:

(1) A description of the method of operation, including the disposition of topsoil, overburden and byproducts.

(2) A general description of the equipment to be used in the extraction process.

(3) Measures to be taken to control noise, dust, litter, and vibrations from the operation.

(4) Measures to be taken to screen visibility of the operation, including section drawings of the site clearly indicating the effectiveness of all existing and proposed measures to be used to screen the operation from view of surrounding lands.

(5) Measures to be taken to prevent the tracking of material onto public roadways.

(6) Plan view drawing showing how the applicant plans to proceed with the extraction operation including, but not limited to, the extent of the mining area, sediment and/or wash ponds, sediment basins, stockpiles, structures, roads, railroads, utilities and other permanent or temporary structures.

(7) Measures to be taken to control surface water runoff and soil erosion.

(8) General description of the geologic character of the site.

(9) General description of the products to be produced at the site, their end use, and general market area.

(10) Copies of applications to federal, state and local regulatory agencies for environmental permits including, but not limited to, control of air and water quality.

73.17.6. Reclamation plan, with maps drawn at a scale of one inch to 200 feet or less, to include the following:

(1) Approximate expected topography of site when extraction activity has been completed, at intervals no greater than five feet.

(2) Approximate expected topography of site when reclamation activity has been completed, at intervals no greater than five feet, to include methods to be employed for backfilling and grading.

(3) The location and identification of all lakes, ponds, streams, rivers, or other waterways planned to exist when reclamation activity has been completed.

(4) A description of the methods and procedures to be used and a proposed timetable for the various reclamation phases.

(5) An estimate of the cost per acre of reclamation with supporting calculations for the estimate.

(6) A plan for revegetation of the site.

(7) A description of the expected future use following reclamation of the site and the relationship of the expected future use to existing surrounding land uses.

An extraction permit shall be valid for a maximum period of five years unless renewed by the manager of natural resources and environmental management as follows: If the permitted extraction operation and reclamation program are not completed within five years, then a review of the extraction permit shall be conducted by the manager of natural resources and environmental management based on the submittal of an updated extraction application. The updated extraction application shall reflect any additions, changes, or other modifications to the information provided in the original application. At each review, the manager shall establish a new bond or adjusted cash escrow amount, which bond or cash escrow shall be posted before the extraction permit is renewed. The renewal process shall occur at five-year intervals until such time as the reclamation plan has been completed.

73.18. Performance bond for extractive operations.

73.18.1. The applicant shall post a bond in an amount equal to the estimated costs of reclamation as indicated by the approved reclamation plan; however, in no case shall said amount be less than $3,000.00 per acre (rounded to the nearest full acre of land) to secure to the City of Huntsville satisfactory compliance with all regulations contained or referenced herein. Such bond shall be approved as to form by the legal department and shall be secured by an insurance company licensed by the State of Alabama, or be a cash escrow, or be an irrevocable letter of credit from an approved lending institution.

73.18.2. Such performance bond shall comply with all statutory requirements and shall be satisfactory to the City of Huntsville as to form, sufficiency, and manner of execution. A signature bond will not be accepted by the City of Huntsville.

73.18.3. The performance bond shall contain a legal description of the extraction site. The bond shall remain in force and effect until it has been released in writing by the manager of natural resources and environmental management and shall bear a termination date of one-full year beyond the expiration date of the extraction permit.

73.18.4. Before abandoning a permit area or seeking bond release, the operator shall ensure that all temporary structures are removed and that all permanent sedimentation ponds, diversions, impoundments, and treatment facilities meet the requirements of the approved reclamation plan.

73.18.5. Upon request by the permit holder for bond release, the manager of natural resources and environmental management shall promptly inspect the site. When the manager has determined that all applicable requirements have been satisfied, he shall notify the city clerk-treasurer in writing to release the bond or escrow to the applicant.

73.18.6. If a renewal of an extraction permit is approved by the manager of natural resources and environmental management, the applicant shall be required to post a new bond. If the existing bond is a cash escrow, then the applicant shall be required to post the difference between the existing escrow and the new escrow.

73.18.7. If the extraction permit expires and the provisions of the approved reclamation plan have not been completely satisfied, the manager of the department of natural resources and environmental management shall be authorized to invoke the bond (by notifying the city clerk-treasurer in writing of the details of the default) to have the reclamation plan completed.

73.18.8. If an extraction activity ceases or remains dormant for a period of 12 consecutive months, the permit holder must begin reclamation of the site in accordance with the reclamation plan.

If the permit holder does not commence reclamation in accordance with the reclamation plan, then the manager of natural resources and environmental management shall invoke the bond and begin reclamation of the site as provided in section 73.18.7.

73.18.9. At such time as the reclamation plan is completed, the permit holder may post with the City of Huntsville a maintenance bond in order to secure the two-year maintenance period required by the reclamation standards. The manager of natural resources and environmental management shall set the amount of the maintenance bond and shall direct the city clerk-treasurer to release the performance bond when the maintenance bond has been posted.

73.18.10. It shall be the duty of the manager of natural resources and environmental management to enforce the regulations pertaining to the extraction permit and the extraction bond procedure.

The manager of natural resources and environmental management shall notify the permit holder in writing whenever he is made aware of or determines that any existing land condition or exposed surface created or caused by means of extraction or reclamation activity has (1) become a hazard to life and limb; (2) endangered property; (3) adversely affected the safety, use or stability of a public way or drainage channel; (4) caused erosion; or (5) otherwise failed to comply with any applicable requirements. The permit holder shall rectify or eliminate the stated condition within 60 days of notification by the manager of natural resources and environmental management. Failure to do so within the stated time period shall be grounds for revocation of the extraction permit.

73.18.11. The requirements of the extraction permit and bonding procedure are intended to be minimum and shall not abrogate, repeal, or otherwise affect the requirements of other applicable federal, state, or local laws and regulations.

73.19. Installation of landscaping.

No certification of occupancy shall be issued until the required landscaping has been completed and approved by the zoning administrator or a performance bond, letter of credit or certified check has been posted. When circumstances preclude immediate planting, a certificate of occupancy may be granted after (1) the owner has completed all necessary construction preliminary to planting, and (2) the property owner posts a corporate surety bond, letter or credit, or cashier's check with the city clerk in an amount equal to 100 percent of the cost of the total required planting, including labor. Such bond shall be made payable to the City of Huntsville. Landscaping must be completed and approved within six months (180 calendar days) after a certificate of occupancy is issued in order to redeem the bond. (Ord. No. 07-460, § 8, 6-28-2007)

73.20. Wireless telecommunications towers.

The regulations of this section are intended to provide for the growing need for telecommunications towers and antennas while minimizing any adverse environmental, aesthetic and visual impacts through careful design, siting, and landscape screening; to promote and encourage shared use (collocation) of existing and new towers and sites; to avoid potential damage to adjacent properties from tower failure or falling ice; to protect the health, safety and welfare of the general

public; and to preserve the character of residential districts through judicious permitting of towers within such districts.

73.20.1. *Applicability; towers.* Wireless telecommunications towers shall be permitted according to their function and location as provided herein:

(1) *Towers in nonresidential districts.* AM radio broadcast towers, a tower erected primarily for the use of mobile or fixed point radio service antennas, or any other telecommunications tower not otherwise covered by section 73.20.1 that will accommodate multiple users shall be permitted in nonresidential zoning districts subject to these regulations and any other applicable codes and regulations.

(2) *Single user towers.* A special exception shall be required to construct AM radio broadcast towers, a tower erected primarily for the use of mobile or fixed point radio service antennas, or any other telecommunications tower not otherwise covered by section 73.20.1 in any nonresidential district if it will not be designed, constructed, and available to accommodate multiple users.

Tower applicants, except those for AM radio broadcast towers, must demonstrate an inability to locate on existing towers or other structures accompanied by supporting documentation as specified in section 73.20.16, collocation. (See section 92.5.3(20) hereof.)

(3) *Towers in residential districts.* A special exception shall be required to locate or construct a tower erected for the support of personal wireless service antennas in any residential district. (See section 92.5.3(9) hereof.)

(4) *Broadcast towers.* A special exception shall be required to construct a broadcast tower in any district if it will support one or more UHF or VHF television or FM radio transmitting antennas or other broadcast antennas having similar elevation and height requirements. (See section 92.5.3(21) hereof.)

(5) *Existing towers.* All telecommunications towers existing on the effective date of this ordinance [January 23, 1997,] that have been lawfully erected shall be allowed to continue as nonconforming uses, provided they continue to meet or exceed current federal standards and regulations, as amended, and the provisions of section 73.20.8, structural design of towers, hereof. Such towers shall be permitted to accommodate additional antennas and any necessary new construction if such antennas and new construction do not increase the tower height beyond that allowed by the FCC or the FAA or by sections 92.5.3(9)(e) or 73.20.7, tower height, or beyond the existing height if already in excess of the allowable height. Any new construction that would increase tower height or alter the structural strength or configuration of the tower will require the tower to be brought into compliance with the provisions of this ordinance except for section 73.20.3, setbacks.

(6) *Personal use towers.* Personal use towers are exempt from all provisions of this ordinance if all of the following criteria are met:

(a) Tower is located on property which owned by a natural person or non-profit service organization.

(b) Tower is used exclusively for non revenue producing activity.

(c) Tower and all guy wires must be contained on the property, and may not be located within five feet of the property boundaries.

(d) Tower is located to the rear or side of building.

(e) Tower is outside National Register historic district, or if within such district, proposed tower has been approved by the Huntsville Historic Preservation Commission.

(f) Tower does not support any sign.

(g) Tower and antennas shall not exceed 100 feet in height. A building permit must be issued prior to installation of a personal use tower in excess of 75 feet.

(7) *Portable or mobile towers.* Portable or mobile towers may be utilized only for special, short term events attracting large numbers of people or for emergency situations; the provider must be issued a temporary use permit by the zoning administrator prior to siting of the portable facility, and the permit must specify the permitted location and the permitted dates of operation not to exceed ten days. The zoning administrator shall collect a $100.00 application fee each time a portable tower is permitted for a period not to exceed ten days. Personal use towers are specifically exempt from the requirements of this section.

(8) *Accessory towers.* A tower that is accessory to a business or other nonresidential entity on the same lot in a nonresidential district and that is for the exclusive use of the principal entity, its branches and its employees shall:

(a) Not exceed 100 feet in height;

(b) Not be permitted to carry other transmitting antennas;

(c) Have all guy anchors located at least ten feet inside the lot lines; and

(d) Have been issued a building permit prior to installation.

73.20.2. *Applicability; antennas.* Except for replacements of preexisting antennas that neither alter height, configuration or structural integrity of the support structure nor increase radio frequency emissions, all telecommunications antennas installed following adoption of this ordinance [January 23, 1997,] shall comply with one of the following provisions:

(1) Tower-supported antennas that will be attached to existing, lawfully erected towers shall be issued building and other required permits prior to installation subject to compliance with subsections 73.20.8(2) and 73.20.17(9) hereof.

(2) Building or ground mounted antennas shall comply with the provisions of section 73.20.12, antennas, hereof.

73.20.3. *Setbacks.*

(1) The minimum setback for a tower shall be 25 percent of the tower height unless a greater setback is required by the regulations for the district in which the tower is located; however, no tower shall be located closer than 200 feet to any residential district or closer than a distance equal to the height of the tower to any residential structure.

(2) Towers located on the leased portion of a larger lot shall not be constructed in any required yard of the lot; towers shall not be located on the same lot with a residential structure.

(3) Tower setbacks from the property lines of the lot on which the tower is located shall be measured from the perimeter of the tower base.

(4) Guyed towers shall have their guy anchors located on the tower site at least ten feet from any lot line, and guy wires shall not cross any adjoining property, rights-of-way or public easements without prior approval of the owner of the public easement.

(5) Setbacks shall in all cases be sufficient to contain on site all ice-fall unless adequate provisions have been incorporated to prevent the buildup of ice.

(6) Minimum setbacks for accessory structures constructed in conjunction with a tower shall be as established by the zoning district for principal buildings or be at least 25 feet if no setback is required by the district.

73.20.4. *Lighting.*

(1) Towers shall not be artificially illuminated except as required by the Federal Aviation Administration or the Federal Communications Commission. Any required lighting shall be the minimum necessary to comply with federal regulations.

(2) All security lighting must be contained within the fenced area and must not illuminate higher than ten feet.

73.20.5. *Tower color.* Towers shall have a galvanized finish or be painted a silver, pale blue or gray; any regulation of the FAA or FCC that contradicts this requirement shall govern.

73.20.6. *Site security.* The facility shall be fully secured. A chainlink fence or a wall not less than eight feet in height from finished grade shall be provided around each tower and all accessary structures. Access to the tower shall be through a locked gate. Where guy anchors are not contained within the security fence, a separate fence at least eight feet in height shall be provided around each anchor. Towers without accessory structures may utilize anticlimb devices in place of a fence.

73.20.7. *Tower height.*

(1) Towers in C-1 through C-3 districts shall not exceed 120 feet in height; towers in other nonresidential districts shall not exceed 180 feet in height.

(2) Measurement of tower height shall include antennas, base pad, and other appurtenances and shall be measured from the natural grade of the site.

73.20.8. *Structural design of towers.*

(1) Towers shall meet or exceed the structural requirements as set out in EIA/TIA-222-E "Structural Standards for Steel Antenna Towers and Antenna Supporting Structures," as amended, published by the Electronic Industries Association and all applicable City of Huntsville building codes.

(2) Any improvements and/or additions (antennas, dishes, etc.), excluding the repair and replacement of parts or components that do not increase tower height or alter the structural strength or configuration of the tower, to existing towers shall require that a notarized verification of compliance with the EIA/TIA-222-E Standards in effect at the time of the improvement or addition be submitted to the manager of inspection by the owner and a registered professional engineer.

(3) Commercial towers 180 feet in height or less, except for accessory towers as described in section 73.20.1(9), shall be monopoles unless the applicant can demonstrate that the specific conditions require another tower type.

(4) Tower diameter at the base shall not be greater than required for the permitted tower height.

73.20.9. *Signs.* No signs shall be allowed on any tower or antenna.

73.20.10. *Access.*

(1) Where the lot on which a tower is to be erected does not meet the minimum lot area requirement for the zoning district or does not have frontage on the public road from which it derives access, then building permits shall not be issued for any structures other than telecommunica-

tions towers and the unmanned accessory facilities required for equipment storage and tower operation. This use restriction must be made a part of any plat or deed describing this lot until such time as the lot comes into compliance with the zoning regulations.

(2) Whenever a tower site does not have frontage on the public street from which it derives access, a permanent, 20-foot wide access easement shall be required.

73.20.11. *Landscaping.* A landscape buffer shall be required in all districts and shall effectively screen the view of the tower facility from public ways and adjacent properties.

(1) The buffer shall be installed on the outside of the security fence.

(2) The buffer shall consist of a minimum ten-foot wide landscaped strip planted with an attractive combination of trees, shrubs, vines and/or ground covers.

(3) Minimum required plantings include:

(a) A row of evergreen trees a minimum of eight feet tall when planted placed a maximum of ten feet apart;

(b) A continuous hedge of evergreen shrubs at least 30 inches high at planting placed in front of the tree line; and

(c) All plant materials shall be xeriscape tolerant.

(4) Where towers are located on wooded sites:

(a) Tree cutting shall be limited to the area to be fenced and a five-foot buffer along the outside of the fence. If the accessway must be cleared of trees, then tree cutting shall be limited to the minimum width necessary to provide vehicular access to the tower facility but shall not exceed 15 feet in width.

(b) Preservation of the natural vegetation surrounding the fenced area shall be substituted for the landscape buffer if it screens the compound from view from adjacent development and rights-of-way.

(5) All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

(6) The owner of the tower shall be responsible for providing and maintaining all landscaping in a healthy and growing condition and replacing unhealthy or dead plants by the next growing season with plants that conform to the original intent of these regulations for as long as the tower stands.

73.20.12. *Antennas.*

(1) Nonresidential districts. An antenna that is not attached to a tower shall be permitted on nonresidential structures or be ground mounted provided:

(a) The antenna and its supporting structure, when attached to a nonresidential structure, do not exceed 20 feet in height;

(b) The antenna complies with all applicable FCC and FAA regulations;

(c) The antenna does not extend into the air space above any public right-of-way nor extend any closer than ten feet to the boundary of the lot on which the structure is located;

(d) The support structure for the antenna and any facilities or equipment necessary for its operation comply with all applicable building codes and have received appropriate permits;

(e) The antenna will be, and will remain, in compliance with current FCC standards concerning radio frequency emissions;

(f) The antenna site is not within the boundaries of a national register historic district; and

(g) Satellite earth station antennas having a diameter greater than two meters, and DBS and MMDS antennas having a diameter greater than one meter:

(i) If attached to a building are placed to minimize their visibility from adjacent streets; or

(ii) If ground mounted meet required yard setbacks or have a setback of ten feet from lot lines if no setbacks are specified for the district; and

(iii) Are not located in front yards unless visually screened from public rights-of-way.

(2) Residential districts. An antenna that is not attached to a tower shall be permitted under the following conditions:

(a) Personal wireless service antennas shall be permitted on principal, nonresidential structures provided the antenna is in compliance with conditions (a) through (f) of section 73.20.12(1) above.

(b) Satellite dishes, DBS, and MMDS receiving antennas having a diameter greater than one meter shall:

(i) Be regulated as accessory structures;

(ii) Be approved by the Huntsville Historic Preservation Commission if located in a national register historic district at a site visible from a public place; and

(iii) Be issued a building permit prior to installation.

(3) Masts greater than 12 feet in height used to support satellite dishes, television receiving antennas, or other antennas in nonresidential districts shall require a building permit to insure safety of installation and shall not exceed 20 feet in height.

Masts used to support satellite dishes in residential districts shall not exceed 12 feet in height.

Masts in residential districts, used to support other receive-only antennas used for radio/television broadcast reception shall not exceed either 30 feet in height, or ten feet above the roofline, whichever is greater.

(4) Microwave dishes shall be of mesh or open grid construction whenever technically feasible and be colored to minimize their visibility.

(5) Signs shall not be allowed on any antenna.

(6) Receive-only antennas intended solely for the use of the occupants of the building or residence to which they are accessory shall be permitted when in compliance with the applicable provisions of this ordinance.

73.20.13. *Nonconforming towers.* A telecommunications tower legally erected prior to adoption of these regulations that is damaged or destroyed to an extent of 50 percent or more of its replacement cost at the time of destruction may be reconstructed on its original site in conformity with the provisions of this ordinance. A building permit to reconstruct the facility shall comply with the then applicable standards, codes, and regulations, and shall be obtained within 180 days from the date the facility is damaged or destroyed. If no permit is obtained or if the permit expires, the telecommunications facility shall be deemed to be abandoned.

73.20.14. *Abandonment.*

(1) Any tower that has not been in use for its original telecommunications purpose for a period of 180 days shall be deemed to be abandoned. The tower owner shall have an additional 90 days to remove an abandoned tower and any accessory structures or to reactivate the tower or to transfer the tower to another owner/operator who reactivates it. Removal of abandoned towers and accessory structures shall be at the owner's expense.

(2) Each January every tower owner, with the exception of amateur radio operators, shall provide the zoning administrator with a list of all towers owned during the previous 12 months indicating the date of cessation of operation for any inactive towers, the date of dismantling for removed towers, the date of transfer of towers to other owners, and a certification that each standing tower is in compliance with section 73.20.8, Structural Design of Towers, accompanied by a copy of the annual maintenance inspection report.

73.20.15. *Publicly owned property.*

(1) A tower to be located on land owned by any governmental entity or public agency shall comply with these regulations unless the tower and all antennas thereon are for the exclusive use of the public entity occupying or controlling the property.

(2) Towers to be located on property owned by the City of Huntsville, other than rights-of-way, shall be subject to all applicable requirements of the zoning ordinance and other city codes.

(3) Neither towers nor antennas shall be placed in city rights-of-way without the approval of the Huntsville City Council.

73.20.16. *Collocation.* To minimize the adverse visual, aesthetic and environmental impacts associated with the proliferation of towers, collocation of antennas by more than one user on existing or permitted towers shall take precedence over the construction of new towers. Towers shall be designed to maximize shared use to the extent possible for the type of tower proposed without creating structural instability or electromagnetic interference with other antennas on the tower.

(1) Subject to section 73.20.16(2), no new tower shall be permitted unless the applicant demonstrates by sufficient documentary evidence that at least one of the following conditions is applicable:

(a) No existing towers or suitable structures are located within the geographic area required to meet applicant's engineering requirements, and no such towers are under consideration for building permits.

(b) Existing towers or other structures are not of sufficient height and cannot be reasonably altered to meet applicant's engineering requirements.

(c) Existing towers or other structures do not have sufficient structural strength and cannot be reasonably altered to support applicant's proposed antenna and related equipment.

(d) The proposed antenna would cause electromagnetic interference with existing antenna(s) on the tower or structure, or the existing antenna(s) would cause interference with the proposed antenna and the interference cannot be prevented at a reasonable cost.

(e) The applicant demonstrates that there are other limiting factors that render existing towers and structures unsuitable.

(f) Collocation would have a more detrimental environmental, aesthetic, or visual impact on the surrounding area than would construction of a new tower.

(2) Even if an applicant is able to demonstrate the existence of one of the foregoing conditions, a new tower may not be permitted if it is determined that the proposed location of the tower is not essential to the applicant to provide service in a given geographical area, and the tower would:

(a) Interfere with or endanger the use of other telecommunications facilities; or

(b) Endanger persons or property; or

(c) Not be compatible with existing or proposed adjacent development; or

(d) Have an impermissible environmental, visual, or aesthetic impact on the surrounding area.

(3) Written requests by certified mail to collocate on an existing or proposed tower shall be answered by the tower owner within 30 days of receipt of the request. Denial of a request without substantial documentary evidence as required herein demonstrating why collocation would not be possible or failure to respond to a request shall be a violation of the zoning ordinance.

73.20.17. *Building permits for towers.* Each application for a building permit for a tower, other than an amateur or accessory radio service tower, or for a structure accessory to such a tower shall contain the following information as appropriate:

(1) A site plan drawn to scale and identifying the tower lot boundary and the tower site boundary, if different, and all required setbacks; location, type and height of tower(s); guy anchors; location, use and dimensions of existing and proposed structures; vehicular parking and access; existing vegetation to be retained; topography of the site; fences; [and] adjacent land uses and current zoning.

(2) A copy of the subdivision plat, deed, and/or memorandum of lease for the tower site; provided, however, the manager of inspection may require a copy of the lease agreement, if necessary, to verify compliance with this ordinance.

(3) A plan drawn to scale showing proposed landscaping, if required, including species type, size, and spacing.

(4) A report from a registered professional engineer indicating tower height and design, structure, installation, and total number and types of antennas that could be accommodated.

(5) A notarized letter signed by both the owner and a registered professional engineer stating that the tower complies with all EIA/TIA-222-E Standards, as amended.

(6) A signed affidavit from the applicant verifying the inability to locate the proposed antennas on existing towers or other structures accompanied by supporting documentation as specified in section 73.20.16, collocation.

(7) A letter of intent stating whether the applicant intends to lease space on the tower to other potential users at reasonable rates and on reasonable terms. The letter shall commit the tower owner and successors in interest to:

(a) Negotiate in good faith for shared use by third parties.

(b) Allow shared use if an applicant agrees in writing to pay reasonable rental charges or other consideration.

(c) Make no more than a reasonable charge for shared use based on generally accepted industry standards and impose no terms or conditions that would render collocation impractical.

(8) Documentation demonstrating that the proposed site is required to serve the company's planned network or coverage in the city.

(9) A notarized statement signed by the applicant that the tower facility will conform with applicable FCC standards for radio frequency emissions and copies of any federally required studies or measurements of radio frequency emissions.

(10) If federal regulations require an environmental assessment, then a copy of the EA shall be submitted as part of the application.

(11) Documentation demonstrating the amount of liability insurance to be carried by the owner on the proposed tower.

(12) The FCC assigned frequency for the licensed service, and a copy of all permits, approvals, or licenses issued by the FCC or the FAA in connection with the proposed tower.

(13) An application fee of $1,000.00 for each tower.

The zoning administrator shall act upon any application for authorization to place, construct or modify any personal wireless service facility within a reasonable period of time after the application and all required supporting documentation is duly filed, taking into account the nature and scope of such application.

A decision by the zoning administrator to grant or deny an application to place, construct, or modify any personal wireless service facility shall be in writing and supported by substantial evidence contained in the record.

(Ord. No. 96-1008, § 4, 1-23-1997; Ord. No. 98-689, § 2, 10-1-1998; Ord. No. 00-620, § 1, 8-23-2000; Ord. No. 07-460, § 8, 6-28-2007)

73.21. Vehicle repair in residential districts or on residential lots.

(1) Vehicle repair for purposes of this section 73.21 shall mean and include the repair and/or body work of any motorized or non-motorized vehicle.

(2) Vehicle repair performed in a residential district or on a residential lot shall be allowed subject to each of the following conditions:

(a) Vehicle repair shall be incidental to a primary permitted residential use and shall be on the same lot as the primary residential structure;

(b) Vehicle repair, including without limitation vehicles in the process of or awaiting repair, shall be performed on vehicles which are registered in the name of or titled to a member of the household of the primary residential structure, and proof of title may be requested by any official charged with the enforcement of this ordinance;

(c) Vehicle repairs shall not be performed after 10:00 p.m. and before 7:00 a.m.

(3) Nothing herein shall be construed to relieve any person or entity from complying with any other applicable provision of this zoning ordinance, or any other laws of this city including without limitation ordinances regulating inoperable vehicles.

(Ord. No. 05-139, § 1, 4-14-2005)

73.22. Correctional facilities.

73.22.1. *Definitions; subclassifications.* Correctional facilities are publicly or privately owned or operated uses which include monitoring and control of the offender population, including juveniles, persons on pretrial status, on prere-

lease status, probationers, parolees or persons incarcerated to serve a sentence, and is divided into the following two subclassifications:

(1) *Custodial facility* is a community based correctional facility which provides transitional housing or housing in a custodial residential setting, assistance with employment, counseling and other services to offenders who are placed in the custodial facility under terms of probation, parole, or pretrial status, or offenders sentenced to such a facility in lieu of prison or placed in such a facility as part of a prerelease program. Offenders assigned to a custodial facility are generally allowed to leave the facility for off-site employment, job training, or other purposes as permitted by the operators of the facility and may be monitored in their activities by staff. A facility in this subclass may be but is not necessarily designed to be a secure facility.

(2) *Jail or prison* is a correctional facility which provides for the incarceration or detention of offenders serving a sentence as required under the city, county, state or federal criminal justice system. A jail or prison is a secure place or building designed for the incarceration of offenders who are sentenced to a period of time under confinement. These facilities may employ one or more of the following measures to ensure accountability of offenders: fences, walls, outside patrols and/or towers with armed staff, inside recreation yards, and secure control centers.

73.22.2. *Classification based on capacity.*

(1) A class 1 correctional facility has a maximum capacity, excluding staff, of no more than 30 persons at any given time.

(2) A class 2 correctional facility has a maximum capacity, excluding staff, of no more than 100 persons at any given time. A custodial facility shall not exceed the class 2 capacity limit.

(3) A class 3 jail or prison has a maximum capacity, excluding staff, of no more than 1,500 persons at any given time.

A class 2 custodial facility and a class 3 jail or prison may apply for a conditional use permit to exceed the maximums established hereinabove in accordance with subsection 73.22.7.

73.22.3. *Minimum setbacks.* Minimum setbacks, which setbacks are measured to the property line and are required for any structure, including a fenced enclosure, are as follows:

(1) A class 1 custodial facility shall have a minimum side and rear yard setback from the property lines of 25 feet and a minimum front yard setback from the street right-of-way of 50 feet.

(2) A class 2 custodial facility or a class 1 jail or prison shall have a minimum side and rear yard setback from the property lines of 40 feet and a minimum front yard setback from the street right-of-way of 60 feet.

(3) A class 2 jail or prison shall have a minimum side and rear yard setback from the property lines of 50 feet and a minimum front yard setback from the street right-of-way of 75 feet.

(4) A class 3 jail or prison shall have a minimum side and rear yard setback from the property lines of 100 feet and a minimum front yard setback from the street right-of-way of 150 feet.

Where the minimum setback provisions of this section are less restrictive than the minimum setback provisions of the particular zoning district in which the correctional facility is located, then the minimum setback provisions of the particular zoning district shall apply.

73.22.4. *Separation*. Correctional facilities shall have minimum separation requirements as provided for in this section. Measurements shall be made from the exterior property line of the correctional use site to the exterior property line of the hereinafter specified uses.

(1) A class 1 custodial facility shall be separated by a minimum of 500 feet from each of the following uses:
   (a) Other correctional facilities;
   (b) Residential zoning districts;
   (c) A residential dwelling;
   (d) Places of worship;
   (e) Public or private schools, daycares, nurseries or kindergartens; and
   (f) Lounges and off-premises liquor retailers.

(2) A class 2 custodial facility or any class of jail or prison shall be separated by a minimum of 1,000 feet from each of the following uses:
   (a) Other correctional facilities;
   (b) Residential zoning districts;
   (c) A residential dwelling;
   (d) Places of worship;
   (e) Public or private schools, daycares, nurseries or kindergartens; and
   (f) Lounges and off-premises liquor retailers.

(3) Separation requirements shall not apply in each of the following cases:
   (a) Where the above stated uses were established after the correctional facility was issued a building permit or, if no building permit was required, was duly licensed as such correctional facility; provided, however, if the building permit has expired without commencement of significant site work, the correctional facility is abandoned or discontinued for a period of six months, or the correctional facility has not renewed its licensing for a period of six months, the separation requirements shall then apply; and
   (b) Where, except in the case of a residential dwelling or residential zoning district, said correctional facility is separated from the above stated uses by an interstate highway.
   (c) Lots housing lawfully existing correctional facilities at the time of the adoption of this ordinance shall not be subject to the separation requirements or the minimum setback requirements of this section 73.22 except in the case of abandonment or discontinuance of the use of such lots for correctional facilities.

73.22.5. *Building height.* Correctional facilities shall have the same height limitation as the general height limitation in the particular zoning district in which they are located.

73.22.6. *Performance standards.* Correctional facilities shall conform to each of the following standards:

(1) Lighting, access and security devices shall be located and screened to avoid negative effects on, and achieve compatibility with, surrounding and adjacent uses and property;

(2) All outdoor activity shall be located inside the perimeter security fencing;

(3) Neither the perimeter security fencing nor the property boundary fencing shall employ barbed wire, razor wire, electrical fencing, or similar materials where abutting and visible from a public street;

(4) A seven-foot high screen shall be provided along the perimeter at the rear and sides of the property. Such screening shall not extend closer than the minimum setbacks established

in subsection 72.22.3 above. If planting is to be used as a screen, it shall be provided as set forth in section 3.1—Buffer of Screen Planting, hereof. Such plants shall be initially not less than seven feet in height; and

(5) Required plantings shall be in a location which maximizes their effectiveness while not compromising the security of the correctional facility.

73.22.7. *Conditional use permits.* Requests for conditional uses are permitted only after review by the planning commission and approval of the city council. The following review procedure shall be adhered to:

(1) The applicant shall submit a complete conditional use application to the planning division, at least 21 days prior to the planning commission meeting at which the conditional use is to be considered, containing as a minimum, the information required in the application along with a one-hundred-dollar fee to defray the cost of processing the application.

(2) A minimum of 14 days prior to the planning commission meeting at which the conditional use request is to be considered, the planning division shall mail notification to all adjacent property owners. The notice shall state:

(a) The location of the conditional use request.

(b) The nature of the request.

(c) The time, date and location of the planning commission meeting at which the request will be considered.

(3) The planning commission shall schedule a hearing on the application at the first regularly scheduled meeting after compliance with notice provisions as set forth herein. An application shall not be continued more than three times at the request of the applicant.

(4) Upon receipt of a favorable recommendation from the planning commission, the city clerk treasurer shall schedule and advertise the proposed conditional use request for a public hearing before the city council. A proposed conditional use request shall not be continued more than three times at the request of the applicant.

(5) Upon receipt of a negative recommendation from the planning commission, the city council review process will be initiated at the request of the applicant.

(6) Conditional use permits may be subject to such conditions and safeguards as are appropriate under the circumstances.

(7) When the planning commission gives an unfavorable recommendation to a request and the applicant does not initiate the city council review process or when the city council denies a conditional use request, the planning commission shall not reconsider the same request for a period of 18 months. Each time the city considers a conditional use request, the $100.00 administrative fee must be paid.

73.23. Mobile food vending.

73.23.1. *Mobile food vending*. Mobile food vending in General Business C-3, Highway Business C-4, Commercial Recreation C-5, Light Industry, Heavy Industry, Commercial Industrial Park, Research Park, Research Park West, Research Park Applications, Research Park Applications 2, and Research Park 2 districts shall conform to the following regulations:

(1) Mobile food vending units located in applicable districts shall have a minimum buffer of 100 feet as

measured from the primary entrance of existing restaurants, cafes, and other food related establishments.

(2) Mobile food vending units are permitted to operate between the hours of 6:00 a.m.—10:00 p.m. Sunday through Wednesday and 6:00 a.m.—2:00 a.m. Thursday through Sunday in General Business C-3, Highway Business C-4, Commercial Recreation C-5, Light Industry, Heavy Industry, and Commercial Industrial Park districts.

(3) Mobile food vending units are permitted to operate between the hours of 10:00 a.m.—2:00 p.m. Monday through Friday in Research Park, Research Park West, Research Park Applications, Research Park Applications 2 and Research Park 2 districts.

(4) Food preparation will be regulated by the Madison County Health Department. The business license application must be accompanied by a food permit issued by the Madison County Health Department and written consent from the property owner (if applicable).

(5) For any location where the mobile food vending unit is proposed to stay for two or more hours, vendors shall provide toilet facilities for persons operating the unit, including employees, in accordance with the requirements of the Madison County Health Department.

(6) Mobile food vending sites shall have fixed public toilet facilities including one male and one female restroom available for operators, including employees, and patrons, which meet the requirements of the Madison County Health Department for food establishment toilet rooms.

(7) Mobile food vending units shall be removed from the premises each night and such operations are not permitted to operate in the required front yard on major arterials.

(8) Mobile food vending units are not permitted to operate in loading zones, public rights-of-way, or obstruct or impede the flow of traffic for neighboring businesses.

(9) All mobile food vending units must meet the zoning district setbacks.

(10) All signage must be attached to the mobile food vending unit.

(11) Mobile food vending units must provide sufficient artificial lighting during non-daylight hours.

(12) Mobile food vending units shall not be allowed to consume otherwise necessary parking spaces.

(13) No outdoor loudspeaker, public address system, music, or other form of entertainment shall be audible from mobile food vending units.

(14) Any on-site preparation of food shall be performed inside the primary vending unit only. There shall be no grills or other cooking facilities allowed outside the primary vending unit.

(15) Notwithstanding anything to the contrary contained in this section, mobile food vending units regulated under section 18-36 of the City Code shall not be subject to the regulation of this section.

(Ord. No. 09-815, § 1, 12-17-2009; Ord. No. 10-178, §§ 2, 3, 4-22-2010; Ord. No. 13-882, § 3, 12-19-2013; Ord. No. 15-479, § 2, 8-27-2015; Ord. No. 18-230, § 3, 5-24-2018)

ARTICLE 74. NONCONFORMING LOTS; NONCONFORMING USES OF LAND; NONCONFORMING STRUCTURES; AND NONCONFORMING USES OF STRUCTURES AND PREMISES

Intent. Within the districts established by this ordinance or amendments that may later be

adopted, there exist lots, structures and uses of land and structures which were lawful before this ordinance was passed or amended, but which would be prohibited, regulated, or restricted under the terms of this ordinance or future amendment.

It is the intent of this ordinance to permit these nonconformities to continue until they are removed, but not to encourage their survival. Such uses are declared by this ordinance to be incompatible with permitted uses in the districts involved. It is further the intent of this ordinance that nonconformities shall not be enlarged upon, expanded or extended, nor be used as grounds for adding other structures or uses prohibited elsewhere in the same district.

A nonconforming use of a structure, a nonconforming use of land, or a nonconforming use of a structure and land shall not be extended or enlarged after passage of this ordinance by attachment on a building or premises of additional signs or by the addition of other uses of a nature which would be prohibited in the district involved.

74.1. Nonconforming lots of record and unified lots.

74.1.1 *Definitions*. For the purposes of this section, the following words, terms, or phrases shall have the following meanings:

Affiliate means a person who controls, is controlled by, or is under common control with another person. An affiliate of an individual may include, but is not necessarily limited to, that person's spouse or relative, or an individual having the same home as the individual; or an entity of which the individual is a person serving as part of the governing or controlling authority of the entity.

Common ownership means owned by the same person or his affiliate.

Contiguous lot means one or more lots which share a common boundary line.

Lot shall have the same meaning ascribed to it in section 3.1 of this ordinance.

Nonconforming lot of record means a full platted lot that was platted and recorded prior to March 21, 1963, in the real estate records of the office of the probate judge in the county in which the lot is situated, and which lot does not conform to the minimum lot area or lot width requirements for the district in which it is located.

Unified lot means two or more contiguous lots that are so integrated, through common or dependent structures or reliance on the other to meet setback requirements, as to form a unified whole.

74.1.2 *Nonconforming lots of record.* Subject to section 74.1.3, a nonconforming lot of record may be used for a permitted use, except apartments and duplexes, nonetheless provided:

(1) The lot has a minimum width of 40 feet and a minimum area of 4,000 square feet, except as permitted in a Residence 2-C District;

(2) The lot abuts an all-weather street and has not less than 20 feet frontage;

(3) The proposed building conforms to all yard requirements for the district; and

(4) The water supply and sewage disposal meet all health requirements.

Where two or more contiguous lots under common ownership are sufficient to create one lot of dimensions conforming to the requirements for the district in which the lots are located but the lots are not sufficient for the creation of two or more fully conforming lots, then all of the said lots shall be deemed merged into one lot.

74.1.3 *Unified lots.* Unified lots under common ownership are deemed to be merged.

(Ord. No. 14-318, § 1, 10-23-2014)

Editor's note—Ord. No. 14-318, § 1, adopted Oct. 23, 2014, repealed former § 74.1 and enacted a new § 74.1 as set out herein. The former section pertained to similar subject matter.

74.2. Nonconforming uses of land.

Where, at the effective date of adoption or amendment of this ordinance, lawful use of land

exists that is made no longer permissible under the terms of this ordinance as enacted or amended, such use may be continued, so long as it remains otherwise lawful, subject to the following provisions:

74.2.1. No such nonconforming use shall be enlarged, increased or expanded to occupy a greater area of land than was occupied at the effective date of adoption or amendment of this ordinance.

74.2.2. No such nonconforming use shall be moved in whole or in part to any other portion of the lot or parcel occupied by such use at the effective date of adoption or amendment of this ordinance.

74.2.3. If any such nonconforming use of land ceases for any reason for a period of more than six months, any subsequent use of land shall conform to the regulations specified by this ordinance for the district in which such land is located and continuance of said use after said period is specifically prohibited.

74.3. Nonconforming structures.

Where a lawful structure exists at the effective date of adoption or amendment of this ordinance that could not be built under the terms of this ordinance by reason of restriction on area, lot coverage, height, yards, or other characteristics of the structure or its location on the lot, such structure may be continued so long as it remains otherwise lawful, subject to the following provisions:

74.3.1. No such structure may be enlarged or altered in a way which increases its nonconformity.

74.3.2. Should such structure be destroyed by any means to an extent of 50 percent or more of its replacement cost at the time of destruction, it shall not be reconstructed except in conformity with the provisions of this ordinance.

74.3.3. Should such structure be moved for any reason for any distance whatever, it shall thereafter conform to the regulations for the district in which it is located after it is moved.

74.4. Nonconforming uses of structures.

If a lawful use of a structure, or of structure and premises in combination, exists at the effective date of adoption or amendment of this ordinance, that would not be allowed in the district under the terms of this ordinance, the lawful use may be continued so long as it remains otherwise lawful, subject to the following provisions:

74.4.1. No existing structure devoted to a use not permitted by this ordinance in the district in which it is located shall be enlarged, extended, constructed, reconstructed, moved, or structurally altered except in changing the use of the structure to a use permitted in the district in which it is located.

74.4.2. If no structural alterations are made, any nonconforming use of a structure, or structure and premises, may be changed to another nonconforming use provided the board of adjustment, either by general rule or by making findings in the specific case, shall find that the proposed use is equally appropriate or more appropriate to the district than the existing nonconforming use. In permitting such change, the board of adjustment may require appropriate conditions and safeguards in accord with the provisions of this ordinance.

74.4.3. Any structure, or structure and land in combination, in or on which a nonconforming use is superseded by a permitted use, shall thereafter conform to the regulations for the district in which such structure is located, and the nonconforming use may not thereafter be resumed.

74.4.4. When a nonconforming use of a structure, or structure and premises in combination, is discontinued or abandoned for six months, the structure, or structure and premises in combination, shall not thereafter be used except in conformance with the regulations of the district in which it is located.

74.4.5. Where nonconforming use status applies to a structure and premises in combination, removal or destruction of the structure shall eliminate the nonconforming status of the land.

74.5. Repairs and maintenance.

Nothing in this ordinance shall be deemed to prevent the strengthening or restoring to a safe condition of any building or part thereof.

74.6. Uses under exception provisions not nonconforming uses.

Any use for which a special exception is permitted as provided in this ordinance shall not be deemed a nonconforming use in such district.

74.7. Documentation of existing extraction activities.

Extraction activities that are functioning at the time of adoption of this amendment shall submit the following information to the manager of natural resources and environmental management within three months of the date of adoption of said amendment:

An area is deemed to have been in use for extraction if overburden in such area has been removed during the previous 12 months in preparation for extraction or if the land has been cleared and grubbed in preparation for extraction.

74.7.1. Legal description of the extraction site, including the total acreage.

74.7.2. Copies of all instruments as required by section 73.17.2.

74.7.3. Vicinity map as defined by section 73.17.3.

74.8. Telecommunications towers inventory.

The owner of each telecommunications tower erected within the Huntsville, Alabama, corporate limits prior to adoption of this amendment to the zoning ordinance shall submit the following information to the City of Huntsville zoning administrator within six months of the date of adoption of this amendment. Failure to comply with this inventory shall be a violation of the zoning ordinance.

74.8.1. Name, address and telephone number of tower owner.

74.8.2. Location of the tower by street address and legal description.

74.8.3. Date of construction of tower.

74.8.4. Height of tower from natural grade to the highest point whether of the tower or of an antenna, and the elevation of each existing antenna or array of antennas.

74.8.5. Names of all users having collocated antennas on the tower.

74.8.6. Copies of all federal approvals, permits and licenses for the tower.

74.8.7. Approval dates for any variances or special exceptions granted for the tower or its accessory structure.

(Ord. No. 96-1008, § 5, 1-23-1997; Ord. No. 07-460, § 9, 6-28-2007)

ARTICLE 75. ALCOHOLIC BEVERAGE ESTABLISHMENT REGULATIONS

The provisions of this article shall be subject to such exceptions, additions, or modifications as herein provided by the following supplementary regulations.

75.1. Definitions.

For the purpose of this article the following definitions, terms, and their application shall be used and applied.

Alcoholic beverages are as defined by the state alcoholic beverage control laws.

Brewery means any premises licensed by the city to engage in the distillation, production, fermenting, brewing, rectifying or otherwise in the manufacture of only beer, or malt or brewed alcoholic beverages as well as engaging in the receiving, storage, or warehousing only of beer, or malt or brewed beverages within the city for transshipment inside and outside the state.

Brewpub means an establishment licensed as and meeting the qualifications of a brewpub under the state alcoholic beverage control laws, including Code of Ala. 1975, Title 28, Chapter 4A, as such may be amended or superseded from time to time.

Brewpub areas means suitable locations that meet the qualifications of the location of a brewpub under the state alcoholic beverage control laws, including Code of Ala. 1975, Title 28, Chapter 4A, as such may be amended or superseded from time to time, and that fall within the appropriate zoning districts. The physical boundaries of the brewpub areas are as delineated in section 75.6 herein.

Church means a tax-exempt place of worship set apart primarily for religious purposes and in which religious services are routinely and customarily held and with which a clergyman is associated.

Class I club liquor retailer means an establishment licensed as and meeting the qualifications of a club liquor retail class I licensee under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-12 which qualifications include but are not necessarily limited to the requirements that there be at least 150 paid-up members and that the club provide special space and accommodations where, in consideration of payment, food with or without lodging is habitually served.

Class II club liquor retailer means an establishment licensed as and meeting the qualifications of a club liquor retail class II licensee under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-12, which qualifications include but are not necessarily limited to the requirement that there be at least 100 paid-up members.

Class I lounge liquor retailer means an establishment licensed as and meeting the qualifications of a lounge retail liquor class I licensee under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-11, and section 20-X-5-.04 of the regulations of the Alabama Alcoholic Beverage Control Board, as such may be amended or superseded from time to time.

Class II lounge liquor retailer means an establishment licensed as and meeting the qualifications of a lounge retail liquor class II licensee under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-11, and section 20-X-5-.04 of the regulations of the Alabama Alcoholic Beverage Control Board, as such may be amended or superseded from time to time.

Child care center means a facility licensed by the Alabama Department of Human Resources that provides for the care of 13 or more children.

Convenience store means a small scale retail store that offers for sale a limited line of groceries and household items and may also sell gasoline.

Dinner theater means a restaurant with live theatrical performances.

Entertainment means live entertainment or dancing including cabarets, concerts, live bands, ballrooms, dance halls, comedy clubs, karaoke, theaters, disc jockeys, or other similar live performance venues.

Expressway means a multi-lane divided highway for through traffic with full control of access and with grade separations at street intersections.

Food court means a common space adjacent to food vendors within an enclosed shopping mall designed and furnished for the convenience of diners.

Food service shall mean the same as a restaurant.

Hotel means a building or buildings held out to the public for housing accommodations of travelers or transients, and shall include motel and bed and breakfast, but shall not include a rooming house or boarding house.

Importer means an establishment licensed as and meeting the qualifications of an importer of alcoholic beverages under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-7.

Manufacturer means an establishment licensed as and meeting the qualifications of a manufacturer of alcoholic beverages under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-6.

Maximum occupancy means the establishment's occupancy rating set in accordance with the applicable provisions of the city's fire code.

Meal means a diversified selection of food some of which is not susceptible of being consumed in the absence of at least some articles of tableware and which cannot be conveniently consumed while one is standing or walking about.

Nursery school means a school designed to provide daytime care or instruction for two or more children from two to five years of age.

On/off-premises beer retailer means an establishment licensed as and meeting the qualifications of a retail beer licensee for on-premises and off-premises consumption under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-16; provided, however, where the off-premises sales of beer are more than 25 percent of the total combined on and off-premises sales of beer, then the establishment shall be regulated for purposes of this article as an off-premises beer retailer.

On/off-premises beer/table wine retailer means an establishment licensed as and meeting the qualifications of a on/off-premises beer or an on/off-premises table wine retailer, or both; provided, however, where the off-premises sales of beer and/or table wine are more than 25 percent of the total combined on and off-premises sales of beer and/or table wine, then the establishment shall be regulated for purposes of this article as an off-premises beer/table wine retailer.

On/off-premises table wine retailer means an establishment licensed as and meeting the qualifications of a retail table wine licensee for on-premises and off-premises consumption under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-14; provided, however, where the off-premises sales of table wine are more than 25 percent of the total combined on and off-premises sales of table wine, then the establishment shall be regulated for purposes of this article as an off-premises table wine retailer.

Off-premises beer retailer means an establishment licensed as and meeting the qualifications of a retail beer licensee for off-premises consumption under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-17. Entertainment shall not be allowed or included in such retailer.

Off-premises beer/table wine retailer means an establishment licensed as and meeting the qualifications of an off-premises beer retailer or an off-premises table wine retailer, or both. The term does not include establishments licensed to sell liquor, as that term is defined by the state alcoholic beverage control laws, for on or off-premises consumption. Entertainment shall not be allowed or included in such retailer.

Off-premises table wine retailer means an establishment licensed as and meeting the qualifications of a retail table wine licensee for off-premises consumption under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-15. Entertainment shall not be allowed or included in such retailer.

Package sales means the off-premises sale of liquor, as liquor is defined by the alcoholic beverage control laws of the state.

Package sales establishment means an establishment licensed to sell liquor, as liquor is defined by the state alcoholic beverage control laws, at retail for off-premises consumption, whether or not the establishment is also licensed to sell liquor at retail for on-premises consumption, including a class I club liquor retailer, a class II club liquor retailer, a class I lounge liquor retailer, and a class II lounge liquor retailer, and which establishment actually sells, intends to sell, or holds itself out as selling liquor for off-premises consumption. The term shall also mean and include state stores of the Alabama Alcoholic Beverage Control Board.

Protected uses include and are limited to churches, schools, nursery schools, and child care centers, provided such uses were established prior to the establishment of the licensed retailer and such protected uses have not been abandoned or discontinued for a period of six months or more and further provided that the protected use is not separated from the retailer by an expressway or an interstate highway.

Restaurant means an establishment that meets the definition and qualifications of the state alcoholic beverage control laws, including the Code of Ala. 1975, § 28-3-1, and section 20-X-5-.05 of the Regulations of the Alabama Alcoholic Beverage Control Board, as such may be amended or superseded from time to time, including the requirement that the establishment be habitually and principally used for the purpose of preparing and serving meals for the public to consume on the premises. In addition, the licensee shall maintain gross retail sales of meals prepared and served on the licensed premises in excess of 50 percent of its total gross sales.

Restaurant liquor retailer means an establishment, including restaurants, hotels, dinner theaters, and civic center authorities, licensed as and meeting the qualifications of a restaurant retail liquor licensee under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-13, and section 20-X-5-.05 of the Alabama Alcoholic Beverage Control Board, as such may be amended or superseded from time to time.

Retailer means an establishment licensed to sell alcoholic beverages at retail.

Retailer's premises means the licensed premises and any adjoining parking areas used or available for parking whether such areas are owned, leased, or otherwise assigned to the retailer.

School means places used for the imparting of instruction to children in grades K-12, when provided by a public, private, denominational, and parochial school. The term does not include proprietary trade or occupational schools.

Special events retailer means an event licensed as and meeting the qualifications of a special events retail licensee under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-20.

Special retailer means an organization licensed as and meeting the qualifications of a special retail licensee under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-19.

Specialty store means a store, including a grocery store, convenience store, gift shop, drug store, and general merchandise store, specializing primarily in the sale of goods, including groceries, gasoline, sundries, household items, notions and

dry goods. The specialty store may include the off-premises sale of beer and table wine by an off-premises beer/table wine retailer; provided, however, at least 50 percent of the store's gross retail sales must be derived from the sale of goods other than alcoholic beverages in order to qualify as a specialty store.

State alcoholic beverage control laws mean the alcoholic beverage control laws of state and the regulations promulgated thereunder by the Alabama Alcoholic Beverage Control Board, as such laws may be amended or superseded from time to time.

Warehouse means an establishment licensed as and meeting the qualifications of a warehouse under the state alcoholic beverage control laws, including the Code of Ala. 1975, § 28-3A-10.

Wholesaler means an establishment licensed as and meeting the qualifications of a wholesaler of alcoholic beverages under the state alcoholic beverage control laws, including the Code of Ala. 1975, §§ 28-3-1 and 28-3A-8 (liquor wholesalers) and 28-3A-9 (beer and table wine wholesalers).
(Ord. No. 11-11, § 1, 2-24-2011; Ord. No. 13-247, § 1, 5-23-2013)

75.2. Measurements.

Where this article establishes separations between the retailer's premises and protected uses, residential districts, or other retailer's premises, the distance shall be measured from the external boundary of the retailer's premises to the external boundary of the protected use, the residential district, or the other retailer's premises, as the case may be, except in the case of off-premises-only retailers, including package sales establishments, in which case the distance shall be measured from the public entrance(s) of such retailers.
(Ord. No. 11-11, § 1, 2-24-2011; Ord. No. 18-892, § 1, 11-15-2018)

75.3. Permitted establishments by districts.

The following establishments, engaged in the sale and service of alcoholic beverages, and no other, shall be permitted in the districts hereinafter set forth:

75.3.1. Neighborhood Business C-1, Neighborhood Business C-2, Village Business C-6 and Research Park 2 Districts.

Restaurant liquor retailers, excluding hotels and civic center authorities licensed as a restaurant liquor retailer, and on/off-premises beer/table wine retailers with food service (all without entertainment) — provided that such uses shall be subject to each of the following restrictions:

1) No alcoholic beverages shall be served, offered, dispensed, sold, or consumed between the hours of midnight and 2:00 a.m. unless a special exception has been granted in accordance with section 92.5—Powers and Duties, and further provided, the provisions of section 74.4—Non-Conforming Uses of Structures shall not operate to allow existing establishments to function contrary to this provision;

2) There shall be no private sidewalk or patio seating unless a special exception has been granted in accordance with section 92.5—Powers and Duties; and

3) No alcoholic beverages shall be sold by any restaurant or food vendor located in or adjacent to a food court.

Off-premises beer/table wine retailers operating as a specialty store provided that such retailers are not located within 500 feet of any protected use, unless a special exception has been granted in the case of churches in accordance with section 92.5—Powers and Duties.

Permitted uses as special exceptions as defined and regulated by section 92.5—Powers and Duties hereof.
(Ord. No. 15-760, § 2, 11-19-2015; Ord. No. 16-89, § 1, 3-24-2016; Ord. No. 18-230, § 2, 5-24-2018)

75.3.2. General business C-3 district.

Banquet halls.

Restaurant liquor retailers, class I club liquor retailers without package sales, and on/off-premises beer/table wine retailers with food service (all with or without entertainment).

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all without entertainment).

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all with entertainment) - provided that such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district except where the retailer's premises is separated from said residential district by an expressway or an interstate highway; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restrictions shall not apply where the retailer's premises and the protected use front on different streets and do not have common exits or driveways providing access or adjoining property lines; and

(4) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area.

Off-premises beer/table wine retailers - provided such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district, provided, however, the aforesaid distance restriction shall not apply in the case of specialty stores; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use unless a special exception has been granted in the case of churches in accordance with section 92.5 - powers and duties, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area.

Permitted uses as special exceptions as defined and regulated by section 92.5 - powers and duties hereof.

75.3.3. Highway business C-4 district.

Banquet halls.

Restaurant liquor retailers, class I club liquor retailers without package sales, and on/off-premises beer/table wine Retailers with food service (all with or without entertainment) - provided that no alcoholic beverages shall be sold by any restaurant or food vendor located in or adjacent to a food court.

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all without entertainment). Such retailer's premises shall not be located within 1,500 feet of the retailer's premises of a package sales establishment.

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all with entertainment)—provided that such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district except where the retailer's

premises is separated from said residential district by an expressway or an interstate highway; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed shopping center with a minimum of 100,000 square feet of floor area; and

(4) Such retailer's premises shall not be located within 1,000 feet of other such retailer's premises; and

(5) Such retailer's premises shall not be located within 1,500 feet of the retailer's premises of a package sales establishment.

Off-premises beer/table wine retailers - provided that such uses such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district; provided, however, the aforesaid distance restriction shall not apply in the case of specialty stores; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use unless a special exception has been granted in the case of churches in accordance with section 92.5 - powers and duties, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area.

Package sales establishments - provided that such use shall be subject to each of the following restrictions:

(1) Such retailer's premises shall have frontage on a major arterial street; and

(2) Such retailer's premises shall not be located within 500 feet of a residential district; and

(3) Such retailer's premises shall not be located within 500 feet of a protected use, except a package sales establishment may be located within 500 feet of accessory child care centers located in office buildings; and

(4) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area; and

(5) Such retailer's premises shall not be located within 1,000 feet of the retailer's premises of a class I lounge liquor retailer, a class II club liquor retailer, or an on/off-premises beer/table wine retailer (all with or without entertainment); and

(6) Such retailer's premises shall not be located within 1,500 feet of the retailer's premises of another package sales establishment.

Permitted uses as special exceptions as defined and regulated by section 92.5 - powers and duties hereof.

75.3.4. Commercial recreation C-5 and commercial industrial park districts.

Banquet halls.

Restaurant liquor retailers, class I club liquor retailers without package sales, and on/off-premises beer/table wine retailers with food service (all with or without entertainment) - provided that no alcoholic beverages shall be sold by any restaurant or food vendor located in or adjacent to a food court.

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all without entertainment).

Off-premises beer/table wine retailers - provided that such uses such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district; provided, however, the aforesaid distance restriction shall not apply in the case of specialty stores; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use unless a special exception has been granted in the case of churches in accordance with section 92.5 - powers and duties, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area.

Warehouse, in commercial industrial park districts only.

Permitted uses as special exceptions as defined and regulated by section 92.5 - powers and duties hereof.

75.3.5. Light industry, research park commercial and airport commercial districts.

Banquet halls.

Restaurant liquor retailers, class I club liquor retailers without package sales, and on/off-premises beer/table wine retailers with food service (all with or without entertainment) - provided that no alcoholic beverages shall be sold by any restaurant or food vendor located in or adjacent to a food court.

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all without entertainment).

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all with entertainment)—provided that such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district; provided, however, the aforesaid distance restriction shall not apply in the case of specialty stores; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use unless a special exception has been granted in the case of churches in accordance with section 92.5 - powers and duties, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of one hundred thousand (100,000) square feet of floor area.

Warehouse, in light industry and airport commercial districts only.

Permitted uses as special exceptions as defined and regulated by section 92.5 - powers and duties hereof.

75.3.6 Heavy industry district.

Banquet halls.

Restaurant liquor retailers, class I club liquor retailers without package sales, and on/off-premises beer/table wine retailers with food service (all with or without entertainment) - provided that no alcoholic beverages shall be sold by any restaurant or food vendor located in or adjacent to a food court.

Class I lounge liquor retailers without package sales, class II club liquor retailers without package sales, and on/off-premises beer/table wine retailers (all without entertainment).

Class I lounge liquor retailers without package sales, class II club liquor retailers without

package sales, and on/off-premises beer/table wine retailers (all with entertainment)—provided that such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district except where the retailer's premises is separated from said residential district by an expressway or an interstate highway; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area; and

(4) Such retailer's premises shall not be located within 1,000 feet of other such retailer's premises.

Off-premises beer/table wine retailers - provided that such uses such uses shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district; provided, however, the aforesaid distance restriction shall not apply in the case of specialty stores; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use unless a special exception has been granted in the case of churches in accordance with Section 92.5—Powers and Duties, except such retailer's premises may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area.

Package sales establishments—provided that such use shall be subject to each of the following restrictions:

(1) Such retailer's premises shall not be located within 500 feet of a residential district; and

(2) Such retailer's premises shall not be located within 500 feet of a protected use, except a package sales establishment may be located within 500 feet of accessory child care centers located in office buildings; and

(3) The aforesaid distance restriction relative to protected uses shall not apply where said retailer's premises is located in an enclosed mall shopping center with a minimum of 100,000 square feet of floor area.

Warehouse.

Permitted uses as special exceptions as defined and regulated by Section 92.5—Powers and Duties Hereof.

75.3.7 Village Business C-6 District.

Restaurant liquor retailers, excluding hotels and civic center authorities licensed as a restaurant liquor retailer, and on/off-premises beer/table wine retailers with food service(all without entertainment)—provided that such uses shall be subject to each of the following restrictions:

(1) No alcoholic beverages shall be served, offered, dispensed, sold, or consumed between the hours of midnight and 2:00 a.m. unless a special exception has been granted in accordance with Section 92.5—Powers and Duties, and further provided, the provisions of Section 74.4—Non-Conforming Uses of Structures shall not operate to allow existing establishments to function contrary to this provision; and

(2) There shall be no private sidewalk or patio seating unless a special exception has been granted in accordance with Section 92.5—Powers and Duties; and

(3) No alcoholic beverages shall be sold by any restaurant or food vendor located in or adjacent to a food court.

Off-premises beer/table wine retailers operating as a specialty store provided that such retailers are not located within 500 feet of any protected use, unless a special exception has been granted in the case of churches in accordance with Section 92.5—Powers and Duties.

Permitted uses as special exceptions, as defined and regulated by Section 92.5—Powers and Duties hereof.

(Ord. No. 11-11, § 1, 2-24-2011; Ord. No. 11-895, § 1, 1-26-2012; Ord. No. 13-247, § 2, 5-23-2013; Ord. No. 15-315, § 2, 6-25-2015; Ord. No. 16-89, § 1, 3-24-2016; Ord. No. 15-677, § 2, 10-22-2015; Ord. No. 22-237, § 1, 5-26-2022)

75.4. Accessory uses.

75.4.1. Tastings: Wine tastings and beer tastings shall be allowed as accessory uses to those primary permitted retailers that are authorized by state alcoholic beverage control laws to conduct such tastings, provided that said retailers shall at all times comply with state laws regulating wine and beer tastings.

75.4.2. Special retailers:

(1) For the purposes of this section the following words, terms, and phrases shall have the following meanings:

Banquet hall means an organization whose primary use of its premises is not the sale of alcoholic beverages but is to provide facilities, which may include services and staffing, for private-only gatherings or events; provided that no person connected with the banquet hall, which includes its owner, officer, director, member, landlord, manager, servant, agent, or employee, or those that otherwise have a controlling or pecuniary interest in the premises or the establishment, shall sponsor, conduct, organize, or host gatherings or events at the banquet hall.

Cultural venue means an organization whose primary use of its premises is not for the sale of alcoholic beverages but is to hold or sponsor: (1) live performances of serious artistic merit, such as theatrical plays, dramatic readings, operas, concerts, dances, ballets, or dramatic performances; or (2) showings of representational or visual works of serious artistic merit, such as paintings, sculptures, and photographs; or other activities of serious artistic, literary, or cultural merit.

(2) Special retailers shall be allowed only as accessory uses to those primary permitted uses that include state parks, racing commissions, fair authorities, airport authorities, civic center authorities, museums, and other such organizations created by state or local governments; and shall include the franchises or concessionaires thereof.

(3) Special retailers shall be allowed only by special exception as accessory uses to banquet halls or cultural venues.

(Ord. No. 11-11, § 1, 2-24-2011; Ord. No. 11-895, § 1, 1-26-2012)

75.5. Special events retailers.

Special events retailers shall be permitted as a special exception in all residential districts provided that, in addition to any appropriate conditions and safeguards that may be imposed in the granting of the special exception in accordance with Section 92.5—Powers and Duties:

(1) The applicant for licensure is a tax-exempt, non- profit organization; and

(2) The applicant has not applied for or sponsored, either solely or jointly, more than four special events in a given calendar year; and

(3) The applicant certifies under oath that substantially all of the net proceeds will be used for non-profit purposes; and

(4) No other retailer shall sponsor or otherwise receive any form of remuneration from the event.

Special events retailers shall be allowed as a permitted use in all non-residential districts.
(Ord. No. 11-11, § 1, 2-24-2011)

75.6. Brewpub areas.

The following description represents the established boundary of the brewpub areas:

All that part of Sections 13, 23, 24, 25, 26, 28, 33, 34, 35 and 36, Township 03 South, Range 01 West and all that part of Sections 01, 02, 03, 11, 12, 13 and 14, Township 04 South, Range 01 West of the Huntsville Meridian in the City of Huntsville, Madison County, Alabama; more particularly described as beginning at a point located at the Southwest Corner of Section 13, Township 03 South, Range 01 West of the Huntsville Meridian; thence from the Point of Beginning, North along the West Boundary of said Section 13, a distance of 12 feet to the centerline of Mastin Lake Road; thence East along the centerline of Mastin Lake Road, a distance of 1698 feet; thence Due South, a distance of 148 feet; thence South 86 Degrees East, a distance of 111 feet; thence South 35 Degrees East, a distance of 403 feet; thence South 25 Degrees 30 Minutes West, a distance of 824 feet; thence South 23 Degrees West, a distance of 565 feet, thence South 17 Degrees 35 Minutes West, a distance of 595 feet; thence South 87 Degrees East, a distance of 115 feet to the centerline of Normal Branch; thence in a Southerly direction along the centerline of Normal Branch, a distance of 1120 feet to a point located in the centerline of US 72 East Highway; thence West along the centerline of US 72 East Highway, a distance of 410 feet; thence South 01 Degree West, a distance of 389 feet; thence South 87 Degrees East, a distance of 53 feet; thence South 16 Degrees 45 Minutes West, a distance of 1499 feet to the centerline of Normal Branch; thence Southwesterly along the centerline of Normal Branch, a distance of 251 feet; thence South 88 Degrees West, a distance of 420 feet to a point located on the West Boundary of Section 25, Township 03 South, Range 01 West of the Huntsville Meridian; thence North 88 Degrees 35 Minutes West, a distance of 683 feet; thence South 30 Degrees 40 Minutes West, a distance of 1356 feet to the centerline of a tributary; thence Southeasterly along the centerline of said tributary, a distance of 1560 feet to a point on the North right-of-way of Oakwood Avenue; thence South 44 Degrees East, a distance of 36 feet to the centerline of Oakwood Avenue; thence East along the centerline of Oakwood Avenue, a distance of 477 feet to the centerline of Pinhook Creek; thence in a Southerly direction along the centerline of Pinhook Creek, a distance of 138 feet; thence South 88 Degrees 30 Minutes East, a distance of 792 feet; thence Due South, a distance of 115 feet; thence South 89 Degrees East, a distance of 944 feet to the centerline of Kildare Street; thence North along the centerline of Kildare Street, a distance of 246 feet to the centerline of Oakwood Avenue; thence East along the centerline of Oakwood Avenue, a distance of 1486 feet to the centerline of the Norfolk Southern Railroad; thence South along the centerline of the Norfolk Southern Railroad, a distance of 40 feet; thence North 88 Degrees West, a distance of 27 feet; thence South 24 Degrees West, a distance of 1056 feet; thence North 66 Degrees 30 Minutes West, a distance of 828 feet to the centerline of Meridian Street; thence South along the centerline of Meridian Street, a distance of 1932 feet to the centerline of Dallas Branch; thence West along the centerline of Dallas Branch, a distance of 559 feet; thence North 11 Degrees East, a distance of 834 feet; thence North 87 Degrees West, a distance of 293 feet; thence North 07 Degrees East, a distance of 11 feet; thence North 88 Degrees 30 Minutes West, a distance of 959 feet to the centerline of Pinhook Creek; thence North along the centerline of Pinhook Creek, a distance of 416 feet; thence North 89 Degrees West, a distance of 574 feet; thence South 16 Degrees 20 Minutes West, a distance of 1401 feet; thence South 15 Degrees 15 Minutes East, a distance of 446 feet; thence South 88 Degrees East, a distance of 136 feet; thence South 02 Degrees West, a distance of 34 feet; thence South 89 Degrees 20 Minutes

East, a distance of 622 feet to a point located on the East Boundary of Section 35, Township 03 South, Range 01 West; thence South along said Eastern Section Boundary, a distance of 356 feet to the centerline of Pratt Avenue; thence East along the centerline of Pratt Avenue, a distance of 1858 feet to the intersection of Pratt Avenue and Meridian Street; thence Southerly along the centerline of Meridian Street, a distance of 1019 feet; thence North 56 Degrees 50 Minutes East, a distance of 874 feet to the intersection of Howe Avenue and Dallas Street; thence Southeasterly along the centerline of Dallas Street, a distance of 239 feet; thence South 58 Degrees West, a distance of 126 feet; thence North 33 Degrees West, a distance of 54 feet; thence South 58 Degrees West, a distance of 105 feet; thence North 33 Degrees West, a distance of 62 feet; thence South 59 Degrees West, a distance of 104 feet; thence South 36 Degrees East, a distance of 21 feet; thence South 55 Degrees West, a distance of 282 feet; thence South 32 Degrees 15 Minutes East, a distance of 449 feet; thence South 55 Degrees 40 Minutes West, a distance of 159 feet; thence South 33 Degrees East, a distance of 42 feet; thence South 58 Degrees 20 Minutes West, a distance of 150 feet; thence South 33 Degrees 40 Minutes East, a distance of 504 feet; thence North 34 Degrees East, a distance of 20 feet to the centerline of Lincoln Street; thence Southeast along the centerline of Lincoln Street, a distance of 808 feet to the intersection of Lincoln Street and Randolph Avenue; thence Southwesterly along the centerline of Randolph Avenue, a distance of 203 feet; thence South 33 Degrees 20 Minutes East, a distance of 366 feet to the centerline of Eustis Avenue; thence Southwesterly along the centerline of Eustis Avenue, a distance of 389 feet; thence South 33 Degrees East, a distance of 365 feet to the centerline of Gates Avenue; thence Southwesterly along the centerline of Gates Avenue, a distance of 350 feet; thence South 31 Degrees 50 Minutes East, a distance of 594 feet; thence North 59 Degrees East, a distance of 26 feet; thence South 31 Degrees 20 Minutes East, a distance of 1364 feet to the centerline of Fagan Creek; thence Westerly along the centerline of Fagan Creek, a distance of 761 feet to the intersection of Fagan Creek and the centerline of Gallatin Street; thence Southeasterly along the centerline of Gallatin Street, a distance of 738 feet to the intersection of Gallatin Street and Saint Clair Avenue; thence Westerly along the centerline of Saint Clair Avenue, a distance of 1079 feet; thence Due North, a distance of 113 feet; thence Due East, a distance of 24 feet; thence Due North, a distance of 96 feet; thence South 89 Degrees East, a distance of 5 feet; thence Due North, a distance of 246 feet; thence South 88 Degrees West, a distance of 95 feet; thence North 01 Degree 50 Minutes West, a distance of 326 feet to the centerline of Fagan Creek; thence Northwesterly along the centerline of Fagan Creek, a distance of 792 feet; thence North 53 Degrees West, a distance of 340 feet; thence South 06 Degrees West, a distance of 111 feet; thence South 29 Degrees West, a distance of 231 feet; thence South 33 Degrees West, a distance of 248 feet; thence North 44 Degrees West, a distance of 25 feet; thence South 23 Degrees 30 Minutes West, a distance of 302 feet to the centerline of a railroad; thence along the centerline of said railroad, South 14 Degrees 50 Minutes East, a distance of 1120 feet to the centerline of Governors Drive; thence West along the centerline of Governors Drive, a distance of 534 feet; thence South 01 Degree West, a distance of 891 feet; thence South 35 Degrees East, a distance of 645 feet; thence North 87 Degrees East, a distance of 561 feet to the centerline of a railroad; thence along the centerline of said railroad, South 15 Degrees East, a distance of 1721 feet; thence South 68 Degrees West, a distance of 62 feet; thence South 15 Degrees East, a distance of 939 feet; thence North 86 Degrees East, a distance of 55 feet to the centerline of a railroad; thence along the centerline of said railroad, South 15 Degrees East, a distance of 6940 feet to the centerline of Airport Road; thence Westerly along the centerline of Airport Road/Johnson Road, a distance of 5316 feet; thence North 01 Degree West 695 feet; thence Due East, a distance of 63 feet to the centerline of Huntsville Spring Branch; thence Northerly along the centerline of Huntsville

Spring Branch, a distance of 10443 feet to the centerline of Governors Drive; thence East along the centerline of Governors Drive, a distance of 552 feet; thence North 20 Degrees East, a distance of 359 feet to the centerline of Memorial Parkway; thence Northwesterly along the centerline of Memorial Parkway, a distance of 1518 feet; thence South 57 Degrees West, a distance of 928 feet to the intersection of Vernon Avenue and Seminole Drive; thence Northwesterly along the centerline of Seminole Drive, a distance of 582 feet to the intersection of Seminole Drive and Clinton Avenue; thence Southwesterly along the centerline of Clinton Avenue, a distance of 2976 feet to the centerline of Governors Drive; thence West along the centerline of Governors Drive, a distance of 363 feet; thence North 40 Degrees East, a distance of 31 feet; thence North 02 Degrees 45 Minutes West, a distance of 2005 feet to the centerline of the Norfolk Southern Railroad; thence along the centerline of Norfolk Southern Railroad, South 81 Degrees West, a distance of 93 feet to the intersection of the centerline of said railroad and the centerline of Triana Boulevard; thence Northerly along the centerline of Triana Boulevard, a distance of 865 feet; thence North 80 Degrees East, a distance of 789 feet; thence South 40 Degrees East, a distance of 600 feet; thence South 45 Degrees East, a distance of 53 feet; thence South 57 Degrees East, a distance of 42 feet; thence South 70 Degrees East, a distance of 60 feet; thence South 59 Degrees East, a distance of 57 feet; thence South 46 Degrees East, a distance of 59 feet to the centerline of the Norfolk Southern Railroad; thence Northeasterly along the centerline of the Norfolk Southern Railroad, a distance of 486 feet; thence North 02 Degrees 45 Minutes East, a distance of 811 feet; thence North 87 Degrees 30 Minutes East, a distance of 888 feet; thence North 02 Degrees East, a distance of 149 feet; thence South 88 Degrees West, a distance of 23 feet; thence North 01 Degree 30 Minutes East, a distance of 796 feet; thence North 81 Degrees 30 Minutes East, a distance of 796 feet; thence North 66 Degrees East, a distance of 162 feet; thence North 24 Degrees 30 Minutes West, a distance of 632 feet; thence North 25 Degrees East, a distance of 274 feet; thence South 69 Degrees West, a distance of 178 feet; thence North 24 Degrees West, a distance of 173 feet; thence North 73 Degrees East, a distance of 40 feet; thence North 35 Degrees West, a distance of 694 feet; thence North 24 Degrees 50 Minutes West, a distance of 321 feet; thence South 64 Degrees West, a distance of 114 feet; thence North 30 Degrees West, a distance of 376 feet to the centerline of Cox Avenue; thence Southwesterly along the centerline of Cox Avenue, a distance of 170 feet to the intersection of Cox Avenue and Pulaski Pike; thence Northwesterly along the centerline of Pulaski Pike, a distance of 47 feet; thence South 61 Degrees 50 Minutes West, a distance of 2094 feet; thence South 01 Degree West, a distance of 156 feet; thence North 89 Degrees 30 Minutes West, a distance of 1379 feet; thence North 30 Degrees West, a distance of 116 feet to the centerline of University Drive; thence Westerly along the centerline of University Drive, a distance of 1119 feet; thence Due South, a distance of 42 feet; thence North 89 Degrees West, a distance of 3079 feet to a point located at the intersection of University Drive and Jordan Lane; thence Northerly along the centerline of Jordan Lane, a distance of 2404 feet; thence North 34 Degrees 40 Minutes West, a distance of 1229 feet; thence North 29 Degrees 30 Minutes West, a distance of 1648 feet; thence North 59 Degrees East, a distance of 43 feet; thence North 31 Degrees 40 Minutes West, a distance of 311 feet; thence South 89 Degrees 30 Minutes East, a distance of 859 feet; thence South 02 Degrees West, a distance of 348 feet; thence South 88 Degrees East, a distance of 226 feet; thence South 00 Degrees West, a distance of 498 feet; thence South 89 Degrees East, a distance of 230 feet; thence South 03 Degrees 20 Minutes West, a distance of 335 feet; thence South 89 Degrees West, a distance of 220 feet; thence South 00 Degrees West, a distance of 200 feet; thence South 89 Degrees East, a distance of 264 feet; thence South 00 Degrees 30 Minutes West, a distance of 488 feet; thence North 89 Degrees East, a distance of 150 feet; thence South 01 Degree East, a distance of 215 feet; thence South 67 Degrees East, a distance of 272 feet; thence

South 01 Degree West, a distance of 240 feet; thence South 89 Degrees 30 Minutes East, a distance of 658 feet; thence South 02 Degrees West, a distance of 1465 feet; thence South 89 Degrees 35 Minutes East, a distance of 2686 feet; thence North 83 Degrees East, a distance of 178 feet; thence South 34 Degrees East, a distance of 632 feet; thence South 36 Degrees East, a distance of 105 feet; thence South 46 Degrees East, a distance of 237 feet; thence South 48 Degrees East, a distance of 116 feet; thence South 55 Degrees East, a distance of 152 feet; thence South 51 Degrees East, a distance of 147 feet; thence South 35 Degrees East, a distance of 158 feet to the centerline of University Drive; thence Northeasterly along the centerline of University Drive, a distance of 3403 feet to the intersection of University Drive and Pulaski Pike; thence Northwesterly along the centerline of Pulaski Pike, a distance of 1785 feet; thence North 52 Degrees East, a distance of 244 feet; thence South 38 Degrees 10 Minutes East, a distance of 101 feet; thence Due East, a distance of 258 feet; thence North 01 Degree 35 Minutes East, a distance of 568 feet to the centerline of Country Club Avenue; the East along the centerline of County Club Avenue, a distance of 100 feet; thence North 01 Degree East, a distance of 175 feet; thence North 32 Degrees West, a distance of 70 feet; thence North 02 Degrees 20 Minutes East, a distance of 518 feet; thence North 40 Degrees East, a distance of 30 feet; thence North 00 Degrees 30 Minutes East, a distance of 329 feet; thence South 89 Degrees East, a distance of 668 feet; thence North 00 Degrees 30 Minutes East, a distance of 547 feet to the centerline of Oakwood Avenue; thence East along the centerline of Oakwood Avenue, 264 feet; thence North 00 Degrees 50 Minutes East, a distance of 630 feet; thence South 89 Degrees East, a distance of 525 feet to the centerline of Old Blue Spring Road; thence North along the centerline of Old Blue Spring Road, a distance of 284 feet; thence South 89 Degrees East, a distance of 201 feet; thence North 01 Degree 20 Minutes East, a distance of 1529 feet; thence North 88 Degrees West, a distance of 231 feet to the centerline of Blue Spring Road; thence North along the centerline of Blue Spring Road, a distance of 776 feet to the centerline of Max Luther Drive; thence East along the centerline of Max Luther Drive, a distance of 202 feet; thence North 01 Degree East, a distance of 2210 feet; thence South 88 Degrees East, a distance of 810 feet; thence North 02 Degrees 20 Minutes East, a distance of 629 feet; thence South 87 Degrees 50 Minutes East, a distance of 422 feet; thence North 02 Degrees East, a distance of 20 feet; thence South 89 Degrees 10 Minutes East, a distance of 864 feet; thence North 18 Degrees 40 Minutes East, a distance of 1004 feet; thence North 01 Degree 35 Minutes East, a distance of 885 feet back to the Point of Beginning.

LESS AND EXCEPT THE FOLLOWING TWO TRACTS OF LAND FROM THE ABOVE DESCRIPTION:

All that part of Sections 35 and 36, Township 03 South, Range 01 West of the Huntsville Meridian in the City of Huntsville, Madison County, Alabama; more particularly described as beginning at the intersection of the centerlines of Monroe Street and Holmes Avenue; thence from the Point of Beginning, Southwesterly along the centerline of Holmes Avenue, a distance of 681 feet to a point located at the intersection of Holmes Avenue and Dallas Avenue; thence in a Northeasterly direction and along the centerline of Dallas Avenue, a distance of 320 feet; thence South 77 Degrees 50 Minutes West, a distance of 558 feet; thence in a Northwesterly direction, a distance of 116 feet to a point located in the centerline of the Norfolk Southern Railroad; thence in a Northeasterly direction along said centerline of the Norfolk Southern Railroad, a distance of 1829 feet to the intersection of the Norfolk Southern Railroad and Church Street; thence in a Southeasterly direction along the centerline of Church Street, a distance of 567 feet to the intersection of Church Street and Monroe Street; thence in a Southwesterly direction along the centerline of Monroe Street, a distance of 1040 feet back to the Point of Beginning and containing 23.40 acres, more or less.

ALSO,

All that part of Section 12, Township 04 South, Range 01 West of the Huntsville Meridian, Madison County, Alabama; more particularly described as beginning at the intersection of the South right-of-way of Bob Wallace Avenue and the East right-of-way of Memorial Parkway; thence in a Northeasterly direction and along the South right-of-way of Bob Wallace Avenue, a distance of 484 feet; thence South 09 Degrees East, a distance of 495 feet; thence South 80 Degrees 50 Minutes West, a distance of 490 feet to a point located on the East right-of-way of Memorial Parkway; thence in a Northerly direction and along the East right-of-way of Memorial Parkway, a distance of 484 feet back to the Point of Beginning and containing 5.47 acres, more or less.

CONTAINING IN THE AGGREGATE 2672.67 ACRES, MORE OR LESS.
(Ord. No. 13-247, § 4, 5-23-2013; Ord. No. 22-237, § 2, 5-26-2022)

75.7. Severability.

Should any section or provision of this article be held void or invalid, it shall not affect the validity of any other section or provision thereof which is not of itself void or invalid, it being the purpose and intention of the city council to enact each separate section and/or subsection separately.
(Ord. No. 11-11, § 1, 2-24-2011; Ord. No. 13-247, § 3, 5-23-2013)

Editor's note—Ord. No. 13-247, § 3, adopted May 23, 2013, renumbered former § 75.6 as 75.7. Section 4 of the ordinance added a new § 75.6.

ARTICLE 76. BICYCLE PARKING REQUIREMENTS

The requirements for bicycle parking are established for the purpose of ensuring provision of adequate and safe facilities to accommodate bicycle parking and to encourage use of bicycles for travel as an alternative to use of motorized vehicles.

76.1. Minimum parking space requirements.

Bicycle parking facilities shall be provided for every new automobile parking lot or garage where 20 or more automobile parking spaces are required. Bicycle parking facilities shall also be provided for during the expansion of an existing automobile parking lot or garage where 20 or more automobile parking spaces are required when such expansion increases the required automobile parking by five percent or more.

Unless otherwise expressly stated, bicycle parking spaces shall be provided for at a rate of one bicycle space for each 20 automobile parking spaces as automobile parking spaces are required under section 70.1 herein, with a minimum requirement of two bicycle parking spaces. Unless otherwise expressly stated, no automobile parking lot or garage shall be required to provide more than 30 bicycle parking spaces.

No bicycle parking shall be required for residential uses other than multi-family residential developments. For multi-family residential uses, the bicycle parking requirement shall be one bicycle parking space for each five dwelling units and there is no maximum number of bicycle parking spaces.

The total number of required automobile parking spaces shall be reduced at the ratio of one automobile parking space for each six bicycle spaces provided. The total number of required automobile parking spaces shall not be reduced by more than five percent for any automobile parking lot or garage.

When the number of required automobile parking spaces for a new or expanded use is reduced by means of a zoning variance, the number of required bicycle spaces shall be calculated on the basis of the number of required automobile parking spaces, unless a variance is granted to reduce the number of required bicycle parking spaces.
(Ord. No. 10-507, § 1, 8-26-2010)

76.2. Parking facility access and location requirements.

Required bicycle parking spaces must have a minimum dimension of two feet in width by six

feet in length with an access aisle of at least five feet and a vertical clearance of at least seven feet. A hard surfaced parking area is required for the bicycle racks. Bicycle racks must be securely anchored to the ground or the building structure to prevent the racks from being removed from the location.

Bicycle racks must be installed with adequate space beside the parked bicycle so that a bicyclist will be able to reach and operate the locking mechanism. There must be a minimum of 24 inches beside each parked bicycle for access. This access may be shared by adjacent bicycles. However, each bicycle parking space must be accessible without moving another bicycle.

Bicycle racks should be located so that parked bicycles do not block or impede the pedestrian path, handicapped access or vehicular circulation. Bicycle parking facilities located on sidewalks or other pedestrian accessways must leave clear pedestrian access of a minimum width of five feet. Bicycle parking facilities within automobile parking areas shall be separated by a physical barrier, such as a curb, wheel stop, pole, bollard or other similar feature, to protect bicycles from damage by automobiles.

Areas set aside for bicycle parking shall have signs clearly posted and the bicycle parking spaces shall be reserved for bicycle parking only.

Required bicycle parking spaces shall be located at least as close to the entrance of the building, facility or multi-family dwelling unit as the nearest nonhandicapped automobile parking space associated with said building, facility or multifamily dwelling unit. Where there are shopping centers or multi-tenant buildings with multiple entrances, the bicycle parking spaces must be well distributed and located as close to the entrances as the nearest non-handicapped automobile parking spaces.

Where automobile parking is provided in an enclosed area, bicycle parking shall be provided within the enclosure or in such a way as to provide comparable protection from the elements. For any use where bicycle parking is required, if the automobile parking is covered or partly covered, the bicycle parking shall be covered at the same ratio. Bicycle parking facilities shall be located in highly visible and well-lighted areas to increase safety and to minimize theft and vandalism.
(Ord. No. 10-507, § 1, 8-26-2010)

76.3. Bicycle rack and parking facility requirements.

Bicycle racks shall meet the following requirements:

(a) The bicycle rack must support the bicycle frame in two places and enable the frame and one or both wheels of the bicycle to be secured. The bicycle must be able to be securely held with its frame supported in an upright position so that the bicycle cannot be pushed or fall in manner that will damage the wheels or components of the bicycle. Bicycle racks that support the bicycle by the wheel only are not permitted.

(b) The bicycle rack must be able to accommodate high-security U-shaped bicycle locks.

(c) The bicycle rack shall have a durable finish that will protect the rack and the bicycle.

(Ord. No. 10-507, § 1, 8-26-2010)

ARTICLE 77. MEDICAL CANNABIS FACILITIES REGULATIONS

Findings and Purpose.

(1) The Darren Wesley 'Ato' Hall Compassion Act, 2021 Alabama Laws Act 2021-450, (the "Act") was enacted by the Alabama Legislature and codified in Code of Ala. 1975, Title 20, Chapter 2A, "to create within Alabama a wholly intrastate system for the cultivation, processing, and distribution of medical cannabis in the interest of protecting its own residents from the danger that recreational cannabis poses" (Code of Ala. 1975 § 20-2A-2).

(2) The Act legalizes and establishes a comprehensive regulatory framework for

medical cannabis, including the licensing and strict regulation of the cultivation, processing, transporting, testing, and dispensing of medical cannabis.

(3) The Act specifically finds as follows: "Establishing a program providing for the administration of cannabis derivatives for medical use in this state will not only benefit patients by providing relief for pain and other debilitating symptoms, but also provide opportunities for patients with these debilitating conditions to function and have a better quality of life and provide employment and business opportunities for farmers and other residents of this state and revenue to state and local governments." (Code of Ala. 1975 § 20-2A-2).

(4) The Act, and the rules promulgated thereunder, preserve the zoning authority of municipalities in this state. Medical cannabis facilities could be or are incompatible with certain other uses within the corporate limits of the city and due consideration should be given to the appropriate location for medical cannabis facilities within the community in order to preserve and promote the public health, safety and general welfare.

(5) The purpose of this article is to accommodate the medical needs of patients in this community, provide local employment opportunities, and generate revenue, while protecting the public health, safety and general welfare, by establishing appropriate locations for the siting of duly licensed medical cannabis facilities, subject to applicable conditions as set forth in this article.

77.1. Definitions.

For the purpose of this article, the following words, terms and phrases shall have the meanings respectively ascribed to them within this section. Additional terms within this article that are utilized throughout the zoning ordinance may also be defined in article 3 of the zoning ordinance. See also the definitions and rules of construction set forth in section 1-2 of the Code of Ordinances of the City of Huntsville, which generally apply to all ordinances of the city.

Ancillary dispensing site facilities means facilities that are ancillary to the operation of a dispensing site that is owned or leased and operated by a dispensary or an integrated facility, such as a business office and warehouse, where no medical cannabis products are offered for sale at such facilities. The term does not include those aspects of an integrated facility related to its activities as a cultivator, processor, or secure transporter.

Commission means the Alabama Medical Cannabis Commission created pursuant to Code of Ala. 1975 § 20-2A-20.

Cultivator means an entity licensed by the commission (or as applicable, the department of agriculture and industries) under Code of Ala. 1975 § 20-2A-62 authorized to grow cannabis pursuant to Code of Ala. 1975, Title 20, Chapter 2A, Article 4.

Dispensary means an entity licensed by the commission under Code of Ala. 1975 § 20-2A-64 authorized to dispense and sell medical cannabis at dispensing sites to registered qualified patients and registered caregivers pursuant to Code of Ala. 1975, Title 20, Chapter 2A, Article 4.

Dispensing site means a site operated by a dispensary licensee or an integrated facility licensee pursuant to Code of Ala. 1975, Title 20, Chapter 2A, Article 4; provided, however, the term does not include ancillary dispensing site facilities.

Integrated facility means an entity licensed under Code of Ala. 1975 § 20-2A-67 authorized to perform the functions of a cultivator, processor, secure transporter, and dispensary pursuant to Code of Ala. 1975, Title 20, Chapter 2A, Article 4.

Medical cannabis facility or *facility* means any facility, or land associated with a facility, of a cultivator, processor, secure transporter, state testing laboratory, dispensary, or integrated facility licensed by the commission under Code of Ala. 1975, Title 20, Chapter 2A, Article 4.

Premises means a structure, whether standalone or within a multi-use structure, strip mall or other such retail facility, housing a medical cannabis facility, all portions of the real property where a medical cannabis facility operates, including but not limited to the parking lot and any peripheral space outside the structure housing the facility.

Processor means an entity licensed by the commission under Code of Ala. 1975 § 20-2A-63 authorized to purchase cannabis from a cultivator and extract derivatives from the cannabis to produce a medical cannabis product or products for sale and transfer in packaged and labeled form to a dispensing site pursuant to Code of Ala. 1975, Title 20, Chapter 2A, Article 4.

Protected property means the real property on which a public or private school for students in any grade K-12 (not including a residence in which school-age children are being homeschooled) has actively operated within the last six months, or the real property on which a licensed daycare or childcare facility has actively operated within the last six months.

Secure transporter means an entity licensed by the commission under Code of Ala. 1975 § 20-2A-65 authorized to transport cannabis or medical cannabis from one licensed facility or site to another licensed facility or site.

State testing laboratory means an entity licensed under Code of Ala. 1975 § 20-2A-66 authorized to test cannabis and medical cannabis to ensure the product meets safety qualifications required under Code of Ala. 1975, Title 20, Chapter 2A.
(Ord. No. 22-900, § 1, 12-15-2022)

77.2. Measurements.

(a) Where this article provides that a medical cannabis facility shall be at least a certain stated distance from a protected property or a residential zoning district, the distance shall be measured in a straight line from the property line of the medical cannabis facility premises to the property line of the protected property, or to the district line of the residential zoning district; which measurement shall be measured at the nearest possible point between the two.

(b) Where this article provides that the main entry of a dispensary or integrated facility (dispensing site only) shall be at least a certain stated distance from the main entry of another dispensary or integrated facility (dispensing site only), the distance between main entries shall be measured in a straight line at the nearest possible point between the two. If a main entry is unclear, the final determination of what constitutes a main entry shall be as determined by the zoning administrator.

(Ord. No. 22-900, § 1, 12-15-2022)

77.3. Permitted medical cannabis facilities by districts.

Subject to applicable provisions of this zoning ordinance, including applicable district regulations, medical cannabis facilities shall be permitted only in the following zoning districts, as hereinafter conditioned:

77.3.1 *Medical District.*

Subject to section 77.6 below, dispensary and integrated facility operating a dispensing site only — provided that such uses shall be subject to each of the following conditions:

(1) The location of a dispensary or integrated facility (dispensing site only) must be at least 1,000 feet from any protected property.

(2) The location of a dispensary or integrated facility (dispensing site only) shall not abut a residential zoning district.

(3) The main entry of a dispensary or integrated facility (dispensing site only) must be at least 300 feet from the main entry of another dispensary or integrated facility (dispensing site only), and may not occupy space in the same multi-use structure, strip mall or other such retail facility as another dispensary or integrated facility (dispensing site only). Priority (first-in-time) as to a location under this section shall be based on

which facility is first to have recorded in the office of the judge of probate of the county in which the land is located an instrument, meeting the prerequisites of state law for such instruments, evidencing a current leasehold estate, fee estate, option to purchase, or real estate sales contract in the premises.

77.3.2. *Heavy Industry District.*

Cultivator, integrated facility (with no dispensing site), processor, and secure transporter—provided that such uses shall be subject to each of the following conditions:

(1) The location of such facilities must be at least 1,000 feet from any protected property.

(2) The location of such facilities must be at least 1,000 feet from any residential zoning district except where the premises are separated from said residential zoning district by an expressway or an interstate highway.

(3) The emission of noxious or objectionable odors which are detectable without instruments at or beyond the property line are prohibited.

(4) Except in the case of an integrated facility, the minimum lot size for a facility shall be not less than one acre.

(5) For an integrated facility, the minimum lot size for such facility shall not be less than two acres, and the integrated facility shall not include a dispensing site.

(6) Where a facility's premises abuts a residential use there shall be a buffer of screen planting.

State testing laboratory—provided that such use shall be subject to each of the following conditions:

(1) The location of such facility must be at least 1,000 feet from any protected property.

(2) The location of such facility must be at least 500 feet from any residential zoning district except where the premises are separated from said residential zoning district by an expressway or an interstate highway.

77.3.3. *Research Park West and Commercial Industrial Park Districts.*

State testing laboratory—provided that such use shall be subject to each of the following conditions:

(1) The location of such facility must be at least 1,000 feet from any protected property.

(2) The location of such facility must be at least 500 feet from any residential zoning district except where the premises are separated from said residential zoning district by an expressway or an interstate highway.

(Ord. No. 22-900, § 1, 12-15-2022)

77.4. Ancillary dispensing site facilities.

Ancillary dispensing site facilities shall be allowed in the zoning districts where the particular type of use is generally allowed. For example, if the ancillary dispensing site facility is a warehouse, then the warehouse shall be allowed in the zoning district where warehouses are generally allowed, subject to applicable regulations.

(Ord. No. 22-900, § 1, 12-15-2022)

77.5. State law.

Nothing in this article shall be construed to allow what the Act and the rules and regulations promulgated thereunder prohibit.

(Ord. No. 22-900, § 1, 12-15-2022)

77.6. Authorization for dispensing sites.

The Act prohibits the operation of dispensing sites by dispensaries or integrated facilities in municipalities in this state whose governing body has not adopted an ordinance authorizing the operation of dispensing sites within the corporate limits of the municipality. Nothing in this article shall be construed to constitute such an ordinance authorizing dispensing sites in the corporate limits of the city, and unless and until the city council adopts a separate ordinance

authorizing the operation of dispensing sites in the city limits, then dispensaries or integrated facilities operating dispensing sites shall not be allowed under this article. Upon the passage of a separate ordinance of the city council authorizing the operation of dispensing sites in the city limits by dispensaries or integrated facilities, then such uses shall be allowed in accordance with and subject to the provisions of this article. (Ord. No. 22-900, § 1, 12-15-2022)

77.7. Severability.

Should any section or provision of this article be held void or invalid, it shall not affect the validity of any other section or provision thereof which is not of itself void or invalid, it being the purpose and intention of the city council to enact each separate section and/or sub-section separately.
(Ord. No. 22-900, § 1, 12-15-2022)

ARTICLE 78. COMMUNITY HOMES

78.1. Definitions; purpose.

78.1.1. *Definitions.* The following words, terms, and phrases, when used in this Article, shall have the following meanings:

ADA. ADA means Title II of the Americans with Disabilities Act (42 U.S.C. Section 12131, et seq., as amended).

Community Home. A community home is a living arrangement for unrelated individuals with disabilities who are in need of the mutual support furnished by each other as well as the support services, if any, provided by the staff of the community home, and that is subject to each of the following conditions:

(1) The inhabitants may be self-governing or supervised by a sponsoring entity or its staff, which provides habilitative or rehabilitative services, related to the inhabitants' disabilities;

(2) A community home seeks to emulate a biological family and integrate them into the surrounding community, with its primary purpose is to provide shelter in a family-like environment for individuals with disabilities; treatment is incidental as in any home;

(3) Supportive inter-relationships between inhabitants are an essential component;

(4) Like a family, the home must operate as a single housekeeping unit, except that only in the case of a transitional community home can the occupancy be transient; and

(5) A community home is a detached building located on a single lot that is designed as a separate abode, and may include an accessory structure.

There are three types of community homes: An essential community home, a group community home, and a transitional community home. The term does not include congregate housing for unrelated individuals who are not disabled, correctional facilities (see section 73.22 of this Zoning Ordinance), housing for sex offenders, or housing for individuals who pose a direct threat as defined by the FHA or ADA.

Disability. The term disability shall have the meaning ascribed to it in the FHA or ADA. The term shall not encompass current use of illegal drugs, current drug or alcohol addiction, or the current abuse of legal drugs or alcohol.

Essential Community Home. An essential community home is a type of community home that is a non-transient living arrangement for a relatively small number (see Section 78.3(a)(2)) of unrelated individuals with disabilities as inhabitants, with no cap on how long a person may live in the home. The length of the stay shall be at least 180 continuous days.

FHA. FHA means the Fair Housing Act (42 U.S.C. 3601, et seq., as amended).

Group Community Home. A group community home is a type of community home that is a non-transient living arrangement for a moder-

ate number (see section 78.3(b)(2)) of unrelated individuals with disabilities as inhabitants, with no cap on how long an individual may live in the home. The length of the stay shall be at least continuous 180 days.

Transitional community home. A transitional community home is a type of community home that is a transient living arrangement for no more than fourteen (14) unrelated individuals with disabilities with a cap on the length of stay that is less than 180 continuous days.

78.1.2. *Purpose.*

(a) In order to preserve the integrity and character of residential communities the City has found it necessary to limit to four (4) the number of unrelated individuals that constitute a family. In recognition of the therapeutic need of unrelated individuals with disabilities, who cannot reasonably meet the definition of a family, to live together in a family-like setting, this Article is intended, in part, to accommodate that need by establishing three (3) types of community homes.

(b) This Article is designed to allow these community homes to locate in a residential neighborhood without impeding their goal to integrate into the community and without altering the residential character of the neighborhood which is so essential to the goal of community homes.

(c) In preparing this Article consideration has been given to a variety of resources, including Daniel Lauber, Reforming State and Local Zoning for Community Residences for People With Disabilities and for Recovery Communities. (River Forest, IL: Planning/Communications, July 2024.)

(Ord. No. 25-267, § 4, 6-12-2025)

78.2. Spacing.

A community home shall not be within a 1,000-foot radius of another community home, as measured between lot lines.

(Ord. No. 25-267, § 4, 6-12-2025)

78.3. Districts allowed; conditions.

(a) *Essential community home.* An essential community home is allowed as a permitted use in any zoning district which allows single-family dwellings, subject to each of the following conditions:

(1) An essential community home shall be located in a detached home on a single lot, and the same density and other controls that apply to single-family detached dwellings shall apply to an essential community home, provided that where the home has staffing of more than one individual at any one time, at least one additional off-street parking space shall be required;

(2) The number of unrelated individuals with disabilities that live in the home shall not be greater than six (6); and

(3) Notwithstanding anything to the contrary in this Subsection (a), an essential community home shall not be allowed in a Planned Development Housing PD-H District that existed prior to the adoption of this Article, a Research Park District, a Research Park West District, and a Research Park Applications District.

(b) Group community home. A group community home is allowed only in any zoning district which allows multiple-family dwellings, subject to each of the following conditions:

(1) A group community home shall be located in a detached home on a single lot, and the same density and other controls that apply to a single family detached dwelling shall apply, provided that where the home has staffing of more than one individual at any one time at least one additional off-street parking space shall be required;

(2) In the case of a Residence 2-A and a Residence 2-B, the number of unrelated individuals with disabilities that live in the home shall not be greater than ten (10), and in all other zoning districts in which the use is allowed the number of

unrelated individuals with disabilities that live in the home shall not be greater than twelve (12); and

(3) Notwithstanding anything to the contrary in this Subsection (b), a group community home shall not be allowed in a Planned Development Housing PD-H District that existed prior to the adoption of this Article, a Residence 2-C District, or a Research Park Commercial District.

(c) Transitional community home. A transitional community home is allowed in any zoning district which allows boarding houses or rooming houses, subject to each of the following conditions:

(1) A transitional community home shall be located in a detached home on a single lot, and the same density and other controls that apply to a single family detached dwelling shall apply, except that the minimum number of off-street parking spaces shall be at least four (4);

(2) In the case of a Residence 2-B District, the number of unrelated individuals with disabilities that live in the home shall not be greater than ten (10), and in all other zoning districts where the use is allowed the number of unrelated individuals with disabilities that live in the home shall not be greater than fourteen (14); and

(3) Notwithstanding anything to the contrary in this Subsection (c), a transitional community home shall not be allowed in a Planned Development Housing PD-H District that existed prior to the adoption of this Article.

(Ord. No. 25-267, § 4, 6-12-2025)

78.4. Approvals.

A community home must first make application, on forms provided by the City, for approval from the Zoning Administration Office for the use before it is commenced. Approval will be given if the proposed use meets the provisions of this Zoning Ordinance.
(Ord. No. 25-267, § 4, 6-12-2025)

78.5. Existing nonconforming uses.

The provisions of Article 74 of this Zoning Ordinance governing nonconformities shall apply to the nonconformities created by this Article. Persons claiming non-conforming status shall have the burden of proving same.
(Ord. No. 25-267, § 4, 6-12-2025)

78.6. Reasonable accommodation.

78.6.1. Reasonable accommodation procedure.

(a) *Purpose.* The purpose of this Section is to implement a procedure for processing requests for reasonable accommodation for persons with disabilities as provided by the federal FHA and ADA. For purposes of this section, a "disabled" person is an individual that qualifies as disabled or handicapped under the FHA or ADA. Any person who is disabled (or qualifying entities) may request a reasonable accommodation, pursuant to the procedures set out in this section.

(b) *Application.* A request for reasonable accommodation under this section shall be upon a written reasonable accommodation request form maintained by the Zoning Administration Office and submitted to the Zoning Administration Office. The reasonable accommodation request form shall contain such questions and requests for information as are necessary for processing the reasonable accommodation request. The applicant shall sign the form and provide contact information and background regarding the proposed use, including a specific request detailing exactly what deviations are being requested from any applicable zoning rule; in the case of an applicant who is not the legal owner of the premises, the legal owner must also sign and acknowledge the form and join in the application. The reasonable accommodation request form shall be substantially in the form set forth in Subsection (f) below.

(1) *Confidential information.* Should the information provided by the disabled

individual to the City include medical information or records, including records indicating the medical condition, diagnosis or medical history of the disabled individual, such individual may, at the time of submitting such medical information, request in writing that the City, to the extent allowed by law, treat such medical information as confidential information of the disabled individual ("Protected Information"). The City shall thereafter endeavor to provide written notice to the disabled individual, or their representative, of any request received by the City for disclosure of the "Protected Information". The City will cooperate with the disabled individual, to the extent allowed by law, in actions initiated by such individual to oppose the disclosure of such Protected Information, but the City shall have no obligation to initiate, prosecute or pursue any such action, or to incur any legal or other expenses (whether by retention of outside counsel or allocation of internal resources) in connection therewith, and may comply with any judicial order without prior notice to the disabled individual. Nothing herein, shall be construed to prevent the City from disclosing the Protected Information in the administration and enforcement of this Article.

(2) *Fee.* There shall be no fee imposed by the City in connection with a request for reasonable accommodation under this section, and the City shall have no obligation to pay a requesting party's attorney's fees or costs in connection with the request.

(3) *City assistance.* The City shall provide such assistance and accommodation as is required pursuant to FHA and ADA in connection with a disabled person's request for reasonable accommodation, including, without limitation, assistance with reading application questions, responding to questions, completing the form, and appearing at a hearing, etc., to ensure the process is accessible.

(c) *Findings for reasonable accommodation.* In determining whether the reasonable accommodation request shall be granted or denied, the requesting party shall be required to establish that he/she or the occupants of the housing for which this request is made are protected under the FHA or ADA by demonstrating that he/she or the occupants of the proposed housing are people with disabilities. In addition, the requesting party shall demonstrate that the proposed reasonable accommodations sought are reasonable and necessary to afford the subject individual(s) with disabilities an equal opportunity to use and enjoy the housing that is the subject of the request. The following factors shall be considered, among other relevant factors including judicial interpretation of disability law:

(1) The requesting party shall prove why the accommodation is needed and why any available alternatives are insufficient or inapplicable under the circumstances.

(2) If a request for reasonable accommodation is submitted by an operator of a community home that provides housing to disabled individuals, the operator shall be required to establish that the operator is qualified to provide such housing to disabled individuals and the legal owner of the premises shall be required to agree to the use and nature of the use requested.

(3) The requesting party shall demonstrate that the requested accommodation is both reasonable and necessary (as interpreted by the courts) to afford the disabled individuals served by the housing

an equal opportunity to use and enjoy the housing, including that the proposed accommodation is therapeutically necessary and actually alleviates the effects of a handicap or disability, with a site-specific assessment in regard to the particular property in that regard.

(4) The requesting party shall demonstrate that the proposed accommodation does not constitute a fundamental alteration of the City's zoning scheme or other City program or policies, that it does not impose an undue financial or administrative burden on the City, and that it does not pose a direct threat as defined by the ADA and FHA.

(d) *Zoning Administrator's Decision.*

(1) The Zoning Administrator's decision shall be based on the information provided by the applicant and such other information that he deems relevant to the determination, and, as to the specific accommodation provided, shall be as determined by the Zoning Administrator. In making a decision, the Zoning Administrator shall not be bound to evaluate only the specific accommodation requested but shall have the right to identify viable alternative accommodations that may satisfy the applicant's goals and federal law. In making a decision, the Zoning Administrator shall comply with federal law and shall be bound to ensure that the accommodation requested is reasonable, does not pose an undue financial or administrative burden, does not present a direct threat as outlined in the ADA and FHA, and does not work a fundamental alteration of the City's zoning scheme or other City programs and policies.

(2) The Zoning Administrator shall issue a written determination within thirty (30) calendar days of the date of receipt of a completed application and may, in accordance with federal law, (1) grant the accommodation request, (2) grant a portion of the request and deny a portion of the request, or impose conditions upon the grant of the request, or (3) deny the request, in accordance with federal law. Any such denials shall be in writing and shall state the grounds therefor.

(3) The notice of determination shall be sent to the requesting party (i.e. the disabled individual or his/her representative) by certified mail, return receipt requested or hand delivery, receipt signed by the recipient.

(e) *Administrative review not available.* The Zoning Administrator in the reasonable accommodation determination is not enforcing or interpreting the Zoning Ordinance, but is complying with independent federal law that requires reasonable accommodations be made. Accordingly, an administrative review of his decision by the Board of Zoning Adjustment is not available.

(f) *Request form for reasonable accommodation.*

(1) Contents of reasonable accommodation request form:

a. Name and contact information, including mailing address, of the applicant, and name and contact information, including mailing address, of the legal owner of the property at issue;

b. Information regarding property at which reasonable accommodation is requested, including the address and legal description of such location as well as ownership of the subject property;

c. Describe the accommodation and the specific regulation(s) or procedure(s) from which accommodation is sought;

d. Reasons the accommodation may be necessary for the requesting party or the individuals with disabilities seeking the specific accommodation, and if relating to housing, why the requested reasonable accommodation is necessary to use and enjoy the housing;

e. Describe qualifying disability or handicap;

f. Other relevant information pertaining to the disability or property that may be needed by the City in order for it to be able to evaluate the request for reasonable accommodation;

g. Proof of satisfactory, fire, safety, and health inspections as may be required by applicable state and city laws;

h. Signature of requesting party and, if different from the legal owner, the legal owner's signature as well;

i. If there will be an on-site supervisor or manager, provide the name and contact information (phone and email) for each;

j. Date of request;

k. Owner's consent for application;

l. The rules and practices governing how the home is operated; and

m. Such other information as may be reasonably required by the Zoning Administrator.

(2) In the case of an incomplete application, the Zoning Administrator shall identify the items lacking and the applicant shall have 20 days thereafter to provide the information. Failing therein, the application shall be deemed to be withdrawn by the applicant without further action being required by the City.

(g) *Expiration of approvals.* Approvals of requests for reasonable accommodation shall expire within six (6) months if not implemented.

(h) Any accommodation granted under this Section shall be considered personal and shall not run with the land.

(i) *Renewal.* All reasonable accommodation requests that have been approved (including approval with conditions) and implemented by the requesting party, are valid for no more than one (1) year and shall require annual renewal each year on or before April 1st to determine if the basis for the approval (including approval with conditions) continues to be met. The renewal process shall be the same as for an initial application and the City shall have the right to pose additional questions to determine whether an accommodation is needed and the nature and scope of the accommodation needed.

(Ord. No. 25-267, § 4, 6-12-2025)

CHAPTER VIII. OFFICE DISTRICTS

ARTICLE 80. RESIDENTIAL OFFICE DISTRICT REGULATIONS

Purpose. The purpose of the residential office district is to provide for the conversion of existing blocks of dwellings to small offices as a means to stabilize the adjacent residential areas and prevent the intrusion of commercial uses. This district is intended to function as a transitional zone between existing residential and commercial by preserving the residential scale and intensity of use. The district allows the conversion of existing residences to office use and the development of vacant parcels with new office buildings designed to be compatible with

existing adjacent residential dwellings. This district is intended for use in older developed areas.

In order to preserve the residential scale, the district contains two density levels to ensure that residential-to-office conversions and new development closely approximate the scale of adjacent residential neighborhoods. Furthermore, this district is restricted to those locations that will not increase traffic through residential neighborhoods, and it imposes performance standards designed to prevent noise, lighting, parking and signs from intruding on or otherwise disrupting adjacent residential districts.

The intent of this district is to provide space for small clerical offices that attract a limited clientele, usually on an appointment basis; if these operations later need to expand, it is intended that they should relocate rather than enlarge their operations beyond the limits set for this district.

Within a residential office district as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply: (Ord. No. 98-260, § 1,5-14-1998)

80.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Medical, optical, and dental offices and clinics for health professionals, excluding overnight care, ambulance services, and retail sales.

Professional offices for lawyers, accountants, engineers and surveyors, architects, landscape architects, consultants, and similar professionals whose clientele normally visit on an appointment basis.

Offices for consumer services such as real estate and insurance agencies and tax services.

Administrative or general offices provided there are no retail or wholesale sales, no storage of products, no display of merchandise, and no storage of company vehicles or equipment.

Child care homes and group child care homes in compliance with section 73.1.1(4), accessory uses, hereof.

Single-family dwelling, provided that the requirements of section 11.2 (residence 1-A district) are met in a residential office 1 district and the requirements of section 13.2.1 (residence 2 district) are met in a residential office 2 district.

Churches and similar places of worship.

Agricultural uses as permitted in section 10.1 (residence 1 district).

Accessory structures and uses only when necessary to the operation of the permitted use but not including retail sales.

Government buildings and uses appropriate to the character of the district or requiring location within the district.

Wireless telecommunications towers and antennas in compliance with the regulations required for location in residential districts.

Prohibited principal and accessory activities include drive-in facilities, outdoor ATM or other vending machines, financial institutions, beauty[shops] and barbershops, and parking for off-site uses.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 98-260, § 1, 5-14-1998; Ord. No. 09-1053, § 1, 12-17-2009)

80.2. District access and location.

Any area to be rezoned residential office district shall:

80.2.1. Have its frontage on and access from an arterial or collector street; or

80.2.2. Have frontage on and access from a local street only if the local street connects directly to an arterial or collector street and

there is no residential zoning along the local street between the major street and the proposed residential office district; or

80.2.3. Be zoned residence 2-B district at the time of the request to rezone to residential office district.

80.2.4. In addition to meeting at least one of the three preceding conditions, a proposed residential office district must also abut a residential district and at least one district that permits commercial or industrial activities.

(Ord. No. 98-260, § 1, 5-14-1998)

80.3. Density controls for nonresidential uses.

Because the intent of this district is to continue the size, scale and pattern of existing residential development, the density controls are designed to provide standards that will closely approximate the existing residential development. For this reason, two levels of density controls are provided based on the previous zoning district. For both levels, previous zoning district in the following table refers to the district designation prior to rezoning to residential office, or if not zoned residentially, then to the predominant adjoining residential district.

DENSITY CONTROLS FOR NONRESIDENTIAL LOTS

	RESIDENTIAL OFFICE 1	*RESIDENTIAL OFFICE 2*
Previous Zoning District	R1 & R1-A	R1-B, R1-C, R2, R2-A, & R2-B
Minimum Lot Area	12,000 sq. ft.	6,000 sq. ft.
Maximum Lot Area	22,500 sq. ft.*	11,250 sq. ft.*
Maximum Total Building Coverage	25 percent up to a maximum of 5,000 sq. ft.	30 percent up to a maximum of 3,400 sq. ft.
Maximum Height	20 feet	20 feet
Minimum Lot width	65 feet	40 feet
Minimum Required Front Yard	35 feet	20 feet
	50 feet along major arterial streets	
Minimum Required Rear Yard	25 feet	15 feet
Minimum Required Side Yards	10 feet	5 feet

*Lots and buildings in excess of these standards at the time of rezoning will be grandfathered but may not increase their nonconformity.

(Ord. No. 98-260, § 1, 5-14-1998)

80.4. Required yards for nonresidential uses.

80.4.1. All required yards shall be kept clear of parking, trash and garbage containers, and accessory uses and buildings.

80.4.2. Driveways crossing required front yards shall not exceed a total width of 30 feet in residential office 1 districts and 20 feet in residential office 2 districts.

(Ord. No. 98-260, § 1, 5-14-1998)

80.5. Off-street parking for nonresidential uses.

All parking shall be off-street, located to the rear of the structure and shall be provided as set forth in article 70 hereof; provided however, that a sufficient number of parking spaces shall be available to accommodate the number of employees and visitors normally present.

No parking shall be permitted in any required yard.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof.

(Ord. No. 98-260, § 1, 5-14-1998; Ord. No. 10-507, § 2, 8-26-2010; Ord. No. 18-234, § 1, 5-24-2018)

80.6. Landscaping requirements.

Every lot on which there is a permitted nonresidential use shall be landscaped in the

following manner. All landscaping must be installed in accordance with the provisions of section 73.19, installation of landscaping.

80.6.1. A landscaping screen as defined in Buffer of Screen Planting (Section 3.1—Definitions) shall be planted and maintained along all side and rear lot lines that abut residential districts. Privacy fencing shall be installed along the rear lot lines that abut residential districts, in conjunction with the landscaping screen.

80.6.2. All required front yards shall be planted with turf grass or an evergreen ground cover and shall be maintained so as to present an attractive, neat and healthy appearance. At least one shade tree and three shrubs for each 50 feet of street frontage or fraction thereof shall be planted and maintained in the required front yard.

80.6.3. Every effort shall be made to retain and protect existing mature trees that are healthy and not hazardous to persons or property. Each such tree preserved shall count as two trees for the purposes of section 80.6.1 or 80.6.2.

(Ord. No. 98-260, § 1, 5-14-1998; Ord. No. 18-234, § 2, 5-24-2018)

80.7. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

80.8. Performance standards.

80.8.1. Exterior lighting must be shielded and so placed that residential lots are not illuminated.

80.8.2. Noise shall not exceed ambient background levels at ground level at the property lines. Exterior loudspeakers are prohibited.

80.8.3. Outdoor storage of goods or materials is not permitted and no company vehicles, machinery or equipment may be stored on the property or parked so as to create a portable sign.

80.8.4. Trash and garbage containers must be screened from view and not located in any required yard nor in any front yard. Permanent dumpsters are not permitted.

(Ord. No. 98-260, § 1, 5-14-1998)

80.9. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 12, 6-26-2008; Ord. No. 15-758, § 11, 11-19-2015; Ord. No. 25-157, § 12, 4-24-2025)

ARTICLE 81. OFFICE DISTRICT REGULATIONS

Purpose. The Office District is primarily intended to promote and permit traditional office (administrative, professional and business) uses in close relationship with each other outside of other business districts. This district can serve as a transitional district between residential districts and more intensive business districts.

The goal is to encourage and provide for the appropriate and convenient location of a broad range of office uses, personal and professional services, and similar ancillary uses. The district will also provide for multi-story buildings permitting residential uses on the upper floors.

Within an Office District as shown on the official Zoning Maps of the City of Huntsville, Alabama, the following regulations shall apply:

81.1. Uses permitted.

No building, structure, or land shall be used and no building or structure shall hereafter be erected, structurally altered, enlarged, or maintained except for one or more of the uses herein cited and subject to the conditions stated herein:

Office uses where administrative, clerical, one-on-one consultations and sales services are

rendered, provided that, except in the case of medical, optical and dental offices, no commodity or tangible property, either by way of inventory or sample, shall be stored, kept or exhibited in any office or on the premises wherein the office is located. Permitted office uses shall be limited to the following:

Architects, attorneys and other professionals; consumer service offices such as real estate and insurance agencies; and administrative and clerical offices.

Medical, optical and dental offices and clinics for health professionals, excluding overnight care and ambulance services.

Banks and credit unions (provided there are no drive through services or outdoor automated teller machines).

Computer programming, software design and web design services.

Telephone answering services and telemarketing services.

Residential dwelling units located above the ground floor excluding hotels, motels, tourist homes, rooming houses, boarding houses and other such transient uses.

Retail sales and consumer service establishments for the convenience of the office workers and residents of the building or complex - provided that such commercial uses are located on the ground floor and that the aggregate floor area of such uses shall not occupy more than 15 percent of the total ground floor area of the building in which such use is located.

Municipal, county, state or federal uses, excluding off-premises liquor retailers.

Permitted uses as special exceptions as defined and regulated by subsection 92.5.3 hereof.

(Ord. No. 06-732, § 2, 9-28-2006; Ord. No. 09-1053, § 1, 12-17-2009)

81.2. Density regulations.

The following yard, density and height of building requirements shall be observed except as provided in Article 73 hereof:

81.2.1 *Minimum required lot area:* 15,000 square feet.

81.2.2 *Minimum required lot width:* 100 feet.

81.2.3 *Minimum required lot frontage:* 50 feet.

81.2.4 *Minimum required depth of front yard:* From major arterials (see Section 73.15): 50 feet.

From other streets: 20 feet.

81.2.5 *Minimum required depth of rear yard:* None, except when the rear lot line abuts a residential district a rear yard of not less than 20 feet is required.

81.2.6 *Minimum required depth of side yards:*

Abutting a residential district: A distance equal to the height of the building, but not less than 15 feet.

Other side yards: Two feet for each ten feet of building height but not less than five feet.

(Setback = 2` × height/10)

81.2.7 *Maximum impervious cover:* 70 percent of total lot area.

81.2.8 *Maximum height:* 30 feet when lot abuts a residential district 40 feet with all surface parking 55 feet if at least 40 percent of the required parking spaces are in the office building or an attached garage

(Ord. No. 06-732, § 2, 9-28-2006)

81.3. Off-street parking requirements.

Except as provided for herein all off-street parking requirements shall be provided for as set forth in article 70 hereof.

Parking shall not be permitted in any required side yard nor in the first 15 feet of any required rear yard as measured from the property line.

Required bicycle parking spaces and facilities shall be provided as set forth in article 76 hereof. (Ord. No. 06-732, § 2, 9-28-2006; Ord. No. 09-430, § 29, 7-9-2009; Ord. No. 10-507, § 2, 8-26-2010)

81.4. Off-street parking and vehicular use area (PVA) landscaping and lighting.

Landscaping and lighting of off-street parking and vehicular use areas are required in accordance with Article 71, Off-Street Parking and Vehicular

Use Area Landscaping Requirements. Where the requirements of Article 71 are in conflict with Article 81, then the more stringent shall apply.
(Ord. No. 06-732, § 2, 9-28-2006)

81.5. Landscaping requirements.

81.5.1. *Front yards:*

(1) On local streets contained wholly within a district the first five feet of the required front yard shall be landscaped with a minimum of one small Type 3 or Type 4 tree per each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

(2) On local streets that extend into other zoning districts and on collector and arterial streets the following landscaping is required:

(a) Whenever 80 percent of the length of a building's street facade is located at the minimum building line, then the first five feet (ten feet on major arterials) of the required front yard shall be landscaped with a minimum of one small Type 3 or Type 4 tree per each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

(b) If more than 20 percent of a building's street facade is set back farther than the minimum building line, then the first 15 feet of the required front yard shall be landscaped with a minimum of one large Type 1 or Type 2 shade tree per each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass.

81.5.2. *Side and rear yards:* Where side or rear yards are required adjacent to residential districts, the first 15 feet shall be landscaped with a Buffer of Screen Planting as defined herein.

Trash collection facilities, dumpsters and other structures are not permitted in any required rear or side yard.

Trash collection facilities and dumpsters shall be concealed by solid wood and/or masonry walls for their full height. Where wood is used as the screening material, it shall be securely attached to an all metal support structure; if the wood is not pressure treated, it shall be cedar, redwood or cypress; and no wood member shall exceed 12 inches in width. The gates shall be of metal, shall be at least 80 percent opaque, and shall be self closing.

Pedestrian paths are permitted through buffers of screen planting to connect residential areas with the office district so long as they do not intrude on nor cross any private property without the owner's permission.

81.5.3. *Lots in use without buildings:* In the event that a parcel is put to use without a building, then the first ten feet along all lot lines shall be landscaped with a minimum of one large Type 1 or Type 2 shade tree and eight shrubs per each 50 linear feet of yard or portion thereof, and the area shall be planted with a permanent evergreen ground cover or turf grass. If the parcel abuts a residential district, then Section 81.5.2 shall apply along the side and/or rear lot lines.

81.5.4. *Installation and maintenance of landscaping:*

(1) Trees and shrubs shall be well distributed, though not necessarily evenly spaced and shall meet the minimum size standards as set out in Table 1 of Section 71.5.1(2).

(2) All landscaping shall be installed in accordance with Section 71.5.3, Installation Requirements (1), (2), (3), (4), (7) and (8) and with Section 73.19, Installation of Landscaping.

(3) The owner, lessee, or his agents shall be responsible for providing, maintaining, and protecting all landscaping in a healthy and growing condition and for keeping it free from refuse and debris. All unhealthy and dead materials shall be replaced within one year after notification or during the next appropriate planting period, whichever comes first.

(Ord. No. 06-732, § 2, 9-28-2006)

81.6. Signs permitted.

Signs shall be permitted in accordance with the provisions of article 72—Sign control regulations.

(Ord. No. 06-732, § 2, 9-28-2006; Ord. No. 21-46, § 1(Exh. A, § B.2.), 2-25-2021)

81.7. Conditions on uses.

No primary or accessory non-residential building or structure with a footprint in excess of one thousand (1,000) square feet shall be allowed to use aluminum, steel, or other metal siding or cladding as an exterior finish, except as a special exception in accordance with section 92.5.3(37). This requirement shall not include window framework, doors, roofs and walkway covers.

(Ord. No. 08-429, § 13, 6-26-2008; Ord. No. 15-758, § 12, 11-19-2015; Ord. No. 25-157, § 13, 4-24-2025)

CHAPTER IX. AMENDMENTS, PERMITS AND VARIANCES

ARTICLE 90. AMENDMENTS*

90.1. Procedure.

The regulations and the number, area, and boundaries of districts and all or any portion of this ordinance may be amended, supplemented, changed, modified, or repealed by the City Council of the City of Huntsville, after a public hearing has been held on the proposed ordinance amending the zoning ordinance; provided that such amending ordinance shall be published in a newspaper of general circulation within Huntsville at least once a week for two consecutive weeks in advance of its passage and further provided that both publications thereof shall be at least 15 days in advance of its passage, or otherwise advertised in a manner as provided for by state law.

(Ord. No. 98-102, § 1, 3-26-1998)

90.2. Official zoning map changes.

Any amendment to the zoning ordinance requiring a change in the district boundaries shall be shown on the zoning maps one day after the publication of such amendment. The number and effective date of the amending ordinance shall be printed on the map. The amending ordinance bearing the signature of the Mayor of the City of Huntsville shall be on file in the office of the city clerk-treasurer. The official zoning maps shall be on file in the planning office.

ARTICLE 91. ADMINISTRATION AND ENFORCEMENT†

91.1. Enforcement.

The provisions of this ordinance shall be administered and enforced by the administrative official designated by the director of planning ("zoning administrator"). The zoning administrator may be provided with the assistance of such other persons as the director of planning may direct. Employees of other city departments including the engineering and inspection departments as well as license inspectors with the clerk-treasurer's office and members of the police and fire departments may also assist in the enforcement of this ordinance by reporting to the zoning administrator new construction, reconstruction or new land uses and apparent violations of this ordinance. In addition, police

*__State law reference—__Zoning amendments, Code of Ala. 1975, § 11-52-78.

†__Editor's note—__Ord. No. 07-460, § 10, adopted June 28, 2007, repealed the former Art. 91, §§ 91.1—91.5, and enacted a new Art. 91, §§ 91.1—91.6 as set out herein. For a more detailed analysis, see also the Code Comparative Table.

__Cross reference—__Administration, ch. 2.

officers shall have the power to enforce this ordinance in accordance with section 2-2 of the Code of Ordinances.

The zoning administrator and those designated to assist said administrator shall, in accordance with any applicable law, have the right to enter upon any premises at any reasonable time for the purpose of making inspection of buildings or premises necessary to carry out their duties in the enforcement of this ordinance. In those instances where the zoning administrator and those designated to assist said administrator are performing responsibilities relative to the review and approval of permitting, certification and licensure, as hereinafter set forth, tacit permission to enter upon any premises at any reasonable time for said purpose(s) shall accompany the application for such permitting, certification or licensure.

If the zoning administrator shall find that any of the provisions of this ordinance are being violated, he shall take any action authorized by this ordinance to insure compliance with or to prevent violation of its provisions, including issuance by him or any inspector under his supervision of a citation to appear in municipal court in accordance with ordinances of the city authorizing same, or he may make affidavit under oath before a duly authorized magistrate seeking a warrant for the arrest of the violator.

In addition to any other duties ascribed to him by this ordinance, the zoning administrator shall have the duty to maintain files and records relative to the administration of this ordinance, act as clerk to the board of adjustment, make examination as necessary to determine compliance with the provisions of this ordinance, investigate complaints of zoning violations, and initiate enforcement action against persons committing violations. The zoning administrator shall administer this ordinance in accordance with its literal terms, and shall not have the power to permit any construction or use or any change of use which does not conform to this ordinance.

Issuance, or the approval of issuance, of permitting, certification or licensure, as hereinafter set forth, shall in no case be construed as waiving any provision of this ordinance, unless otherwise waived according to Article 92 hereof.
(Ord. No. 07-460, § 10, 6-28-2007)

91.2. Building permit approval required.

A building permit shall not be issued until such time as the zoning administrator has determined that the proposed activity for which a building permit is required conforms to the provisions of this ordinance. To this end, the zoning administrator is authorized to require that every application for a building permit for excavation, construction, use of land, moving, alteration, or such other regulated activity be accompanied by a plan or plat drawn to scale and showing the following in sufficient detail to enable the zoning administrator to ascertain whether or not the proposed excavation, construction, use of land, moving, alteration, or such other regulated activity is in conformance with this ordinance:

(1) The actual shape, proportion, and dimensions of the lot to be built upon.

(2) The shape, size, and locations of all buildings or other structures to be erected, altered, or moved and of any buildings or other structures already on the lot.

(3) The existing and intended use of all such buildings or other structures.

(4) The setback and side lines of buildings on adjoining lots and such other information concerning the lot or adjoining lots as may be essential for determining whether or not the provisions of this ordinance are being observed.

If the proposed excavation, construction, use of land, moving, alteration, or such other regulated activity as set forth in the application is in conformity with the provisions of this ordinance, the zoning administrator shall give his approval for the issuance of a building permit accordingly. If the zoning administrator does not approve the issuance of a building permit, he shall state in writing the cause for such disapproval.

It shall be a violation of this ordinance to conduct any activity for which a building permit is required unless and until the Zoning Administrator has given his approval therefor.
(Ord. No. 07-460, § 10, 6-28-2007)

91.3. Certificate of occupancy approval required.

A certificate of occupancy shall not be issued until such time as the zoning administrator has determined that the proposed activity for which a certificate of occupancy is required conforms to the provisions of this ordinance. To this end, the zoning administrator is authorized to require any information he deems relevant for such determination and to make inspection as necessary.

Within three days after an owner or his agent has notified the zoning administrator that a building or premises or part thereof is ready for occupancy or use, it shall be the duty of the zoning administrator to make a final inspection thereof or to otherwise determine compliance with this ordinance, and to approve the issuance of a certificate of occupancy if the building and premises are found to conform with the provisions of this ordinance; or, if such certificate is refused, to state the refusal in writing with the cause.

It shall be a violation of this ordinance to conduct any activity for which a certificate of occupancy is required unless and until the zoning administrator has given his approval therefor.
(Ord. No. 07-460, § 10, 6-28-2007)

91.4. Privilege licensure approval required.

No privilege license shall be issued or transferred until such time as the zoning administrator shall have confirmed to the city clerk-treasurer that the proposed trade, business, occupation, vocation or profession at the location or place of business is in conformance with this ordinance. The zoning administrator may conduct an investigation into the proposed activity and to that end may require an applicant for a privilege license to provide information the zoning administrator deems relevant to his determination.

If the proposed activity is found to be in conformance with this ordinance, the zoning administrator shall approve the issuance of a privilege license accordingly; or, in the case of disapproval, the zoning administrator shall state the refusal in writing with the cause.

It shall be a violation of this ordinance to conduct any trade, business, occupation, vocation or profession activity for which the issuance or transfer of a privilege license is required unless and until the zoning administrator has given his approval therefor.
(Ord. No. 07-460, § 10, 6-28-2007)

91.5. Other covered activity or conduct.

Any activity or conduct regulated by this ordinance which does not otherwise require the approval of the issuance of a building permit, certificate of occupancy or privilege license, as the case may be, shall nevertheless be subject to the provisions of this ordinance and the enforcement thereof.

Sign permits shall be regulated in accordance with article 72 of this chapter.
(Ord. No. 07-460, § 10, 6-28-2007)

91.6. Penalties.

Any person, firm, or corporation violating any of the provisions of this ordinance shall, upon conviction, be fined not more than $500.00 plus costs of court, for each offense to which may be added, in the discretion of the judge of the court trying the case, confinement in the city jail for a period not exceeding six months. Each day such violation continues shall constitute a separate offense.
(Ord. No. 07-460, § 10, 6-28-2007)

State law reference—Penalties for ordinance violations, Code of Ala. 1975, § 11-45-9.

ARTICLE 92. BOARD OF ADJUSTMENT*

92.1. Creation and membership.

A board of adjustment is hereby established which shall consist of five members, each to be appointed for a term of three years by the mayor and approved by the city council. Vacancies shall be filled for the unexpired term of any member whose term becomes vacant. Members of the board may be removed for cause by the city council upon written charges and after a public hearing, provided, however, that the duly appointed members of said board, as established and appointed pursuant to prior enacted zoning ordinances, shall continue to serve as members of said board under the terms of this ordinance.

92.2. Proceedings.

The board shall adopt rules necessary to conduct its affairs and in keeping with the provisions of this ordinance. Meetings of the board shall be held at the call of the chairman and at such other times as the board may determine. Such chairman, or, in his absence, the acting chairman, may administer oaths and compel the attendance of witnesses. All meetings of the board shall be open to the public.

The board shall keep minutes of its proceedings, showing the vote, indicating such fact, and shall keep records of its examinations and of other official actions; all of which shall be immediately filed in the offices of the planning department and shall be a public record.
(Ord. No. 07-460, § 11, 6-28-2007)

92.3. Hearings; appeals; notice.

Appeals to the board may be taken by any person aggrieved or by any officer, department, or board of the city affected by any decision of the zoning administrator. Such appeal shall be taken within a reasonable time, as provided by the rules of the board, by filing with the zoning administrator and with the board of adjustment a notice of appeal specifying the grounds thereof. The zoning administrator shall transmit forthwith to the board all papers constituting the record upon which the action appealed was taken.

A reasonable application fee, to be established by the adopted by-laws of the board of adjustment, must accompany the application for appeal, except that the application fee shall be $500.00 for a special exception or a variance for a wireless telecommunication tower other than a personal use or accessory tower as defined in section 73.20.1 hereof.

The board of adjustment shall fix a reasonable time for the hearing of the appeal, give public notice thereof, as well as due notice to the parties in interest, and decide the same within a reasonable time. Upon the hearing, any party may appear in person or by agent or by attorney.
(Ord. No. 00-620, § 2, 8-23-2000; Ord. No. 07-460, § 11, 6-28-2007)

92.4. Stay of proceedings.

An appeal stays all proceedings in furtherance of the action appealed from, unless the zoning administrator certifies to the board of adjustment after the notice of appeal shall have been filed with him that by reason of facts stated in the certificate a stay would, in his opinion, cause imminent peril to life or property. Such proceedings shall not be stayed otherwise than by a restraining order which may be granted by the board of adjustment or by a court of competent jurisdiction or notice to the zoning administrator and on due cause shown.
(Ord. No. 07-460, § 11, 6-28-2007)

92.5. Powers and duties.

The board of adjustment shall have the following powers and duties:

92.5.1. *Administrative review.* To hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by the manager of inspection in the enforcement of this ordinance.

92.5.2. *Special exceptions.* To hear and decide only such special exceptions as the board of adjustment is specifically authorized to pass on by the terms of this ordinance; to decide

*__Cross reference—__Boards, commissions, committee and authorities, § 2-1291 et seq.

__State law reference—__Board of adjustment, Code of Ala. 1975, § 11-52-80 et seq.

such questions as are involved in determining whether special exceptions should be granted; and to grant special exceptions with such conditions and safeguards as are appropriate under this ordinance; or to deny special exceptions when not in harmony with the purpose and intent of this ordinance.

A special exception shall not be granted by the board of adjustment unless and until:

(1) A written application for a special exception is submitted indicating the section of this ordinance under which the special exception is sought and stating the grounds on which it is requested;

(2) Notice shall be given at least seven days in advance of public hearing by at least one advertisement in a newspaper of general circulation;

The owner of the property for which special exception is sought or his attorney shall be notified by mail;

(3) The public hearing shall have been held. Any party may appear in person, or by agent, or by attorney;

(4) The board of adjustment shall make a finding that it is empowered under the section of this ordinance described in the application to grant the special exception, and that the granting of the special exception will not adversely affect the public interest.

92.5.3. *Permitted Uses as Special Exceptions.* The Board of Adjustment may permit, as a special exception, the following uses in the specified district:

(1) Semi-public, non-profit, recreational facilities in any residence district (except miniature golf courses).

(2) Off-Premises Beer/Table Wine Retailers in Neighborhood Business C-1, Neighborhood Business C-2, General Business C-3, Highway Business C-4, Commercial Recreation C-5, Village Business C-6, Commercial Industrial Park, Light Industry, Research Park Commercial, Research Park 2, Airport Commercial and Heavy Industry districts within five hundred (500) feet of a church.

In addition to any other required notice, an applicant for a special exception to locate within five hundred (500) feet of a church must notify such church via mail.

(3) Private off-street parking area in Residence 2-B District provided such area is adjacent to a business or industrial district.

(4) Quarries, sand pits and gravel pits in Heavy Industry and Planned Industrial districts provided that the following conditions are met in addition to any other conditions imposed by the Board of Adjustment, to wit:

(a) *Setbacks.* No area of extraction or storage of earth products or overburden material, except for the construction of site barriers as required by paragraph (b) below and shown on the approved site plan, and no parking shall be permitted within two hundred feet (200') of the extraction site boundaries, either above or below grade, or of any public right-of-way. The operation of stationary machinery such as sorters, crushers, or other processing devices shall not be permitted within five hundred feet (500') of the extraction site boundaries or of any public right-of-way unless the extraction site abuts a residential district, in which case the setback shall be one thousand feet (1,000'). Utility facilities (except service lines), administrative buildings, scale houses, and similar non-process facilities shall have a minimum setback of two hundred feet (200') from extraction site boundaries and public rights-of-ways. The setbacks described above, however, do not apply to boundaries shared with contiguous lawful extraction operations.

(b) *Screening.* No grading, removal or disturbance of vegetation, except at points of ingress and egress, shall be permitted within two hundred feet (200') of the extraction site boundaries or any public right-of-way; provided, however, existing conditions may be modified to enhance screening of the extraction operation from view; and all areas of operation shall be effectively screened from view of surrounding uses to the extent practical by trees and shrubs, fences, walls or earth berms or a combination of same.

(c) *Street Access and Frontage.* Any proposed extraction operation shall have at least 200 feet of frontage on an arterial or major collector street as designated on the Major Street Plan for the City of Huntsville, and no access shall be through any residential district except on an arterial or major collector street.

(d) *Performance Standards.* Extraction activities shall be operated and maintained subject to the following minimum requirements.

(i) *Safety Measures.* Appropriate safety measures shall be taken to control access to the subject property including, but not necessarily limited to, notices posted at intervals no greater than one hundred feet (100') along the extraction site boundaries and along any public rights-of-ways that shall warn against trespassing and shall contain a statement of the use of explosives, if applicable. The perimeter of all active extractive operations shall be enclosed by a fence not less than four feet (4') in height.

(ii) *Hydrologic Standards.* Excavation activities shall be planned such that they minimize changes to the prevailing hydrologic conditions in both the extraction site and off-site areas. Changes in water quality and quantity, in the depth to ground water, and in the location of surface water drainage channels shall be minimized so that the future use of the area is not adversely affected.

(e) *Reclamation Standards.* The reclamation of an extraction site shall be required and shall result in conditions appropriate for the expected future use of the site.

(i) Full reclamation of the site as provided herein must commence immediately upon completion or termination of the extraction operation or following a dormant period of twelve (12) consecutive months as required by section 73.18.8.

(ii) In all cases the final grades shall be appropriate for the expected future use.

(iii) All final site drainage shall be designed, sloped, revegetated, or treated by other measures so that erosion and siltation shall be held to a minimum.

(iv) All reclamation materials used in the grading of the site shall be non-perishable, non-hazardous materials, free from refuse or toxic contaminants and shall be compacted in a manner suitable for the expected future use. Final soil depths and types shall be appropriate for the expected future use.

(v) Revegetation of the site to control dust and erosion and to restore organic vitality is required. The applicant must develop, through tree planting and seeding or sodding, complete vegetative cover suf-

ficient to restore the site to the condition shown on the reclamation plan and to retain the soils, except on ponds and other surfaces not appropriate for vegetation.

(vi) The site shall be maintained for a period of two years following completion of reclamation to ensure that vegetation is alive and well, that dead vegetation is replaced, that drainage is working properly, and that soil erosion is held to a minimum.

(f) *Accessory Uses.* Permitted uses in Heavy Industry and Planned Industrial districts shall not be allowed within the boundaries of the special exception extraction site unless such use is specifically cited in the special exception approval.

(g) *Extraction Permit.* The applicant shall demonstrate to the Board of Zoning Adjustment that an extraction permit application, based on compliance with the provisions of section 73.17, has been approved by the Director of the Department of Natural Resources and Environmental Management.

(h) *Performance Bond.* The applicant shall post a bond or deposit a cash escrow with the City of Huntsville in accordance with the provisions of section 73.18 before approval by the Board of Zoning Adjustment shall become effective and before an extraction permit shall be issued.

(i) *Termination of Special Exception.* The special exception and any variances granted within the extraction site subsequent to the approval of the special exception shall terminate at such time as the Director of Natural Resources and Environmental Management notifies the Zoning Administrator that a valid extraction permit for the site is not in effect and that the reclamation plan has been completed.

(5) Private airport in any industrial district.

(6) Cemetery in any district.

(7) Multiple family dwellings, accessory structures, and uses in Research Park Commercial District provided that such dwellings conform to the following requirements and conditions in addition to any other conditions imposed by the Board of Adjustment, to wit:

(a) Sidewalks not less than four (4) feet wide are required in the project area leading from all front and rear doors to streets. Sidewalks are also required along all property of the project abutting streets.

(b) Closest permitted distance between any two apartment buildings shall be ten (10) feet for one-story buildings; fourteen (14) feet for two-story buildings or more.

(c) Minimum distance from an apartment building to a parking space shall be eight (8) feet.

(d) Minimum distance from front or side of an apartment building shall be fifty (50) feet to a major arterial right-of-way and twenty-five (25) feet to other public street rights-of-way.

(e) Minimum distance from either rear or side of apartment building to side and rear lot line shall be twenty-five (25) feet.

(f) Minimum distance from front of one apartment building to front of another apartment building shall be twelve (12) feet, except when the apartment building has a height of twenty-five (25) feet or above then a thirty (30) feet distance is required.

(g) Windows in all apartment buildings shall have not less than a twenty-foot view (measured perpendicularly

from the window) unobstructed by other buildings located on the same parcel of land.

(h) All yards abutting any street right-of-way shall be kept clear of off street parking, including parking structures, loading areas and vehicular access ways, except as necessary to cross a required yard, shall not be permitted within twenty (20) feet of any boundary of the Research Park Commercial District.

(i) Lighting of off-street parking and vehicular use areas shall be in accordance with section 71.6 - PVA Lighting Requirements.

(j) The landscape requirements shall be in accordance with section 53.8.

(k) Maximum number of stories shall be in accordance with section 53.7.2 hereof.

(l) The proposed development shall comply with requirements set forth in section 53.11.

(8) Go-cart tracks and operation, model airplane flying, or other outdoor recreational facility creating loud noise, including fairs, carnivals and circuses, in General Business C-3, Highway Business C-4, Commercial Recreation C-5, Light Industry, Heavy Industry, Planned Industrial, Airport Industrial Park, Commercial Industrial Park, Heavy Manufacturing and Industrial Park districts.

(9) Towers intended to support personal wireless service antennas in any residential district; approval shall be subject to the conditions contained in sections 73.20.4 - Lighting, 73.20.5 - Tower Color, 73.20.6 - Site Security, 73.20.8 - Structural Design of Towers, 73.20.9 - Signs, 73.20.10 - Access, 73.20.11 - Landscaping, 73.20.16 - Co-Location, and 73.20.17 - Building Permits for Towers of this ordinance, and to the following conditions:

(a) Towers must be monopoles and must be designed to implode under stress; antennas used must be of the least visually obtrusive design available at the time of application.

(b) A signed affidavit from the applicant verifying the inability to locate the proposed antennas on existing towers or other structures accompanied by supporting documentation as specified in Section 73.20.16 - Co-Location, and including substantial evidence that the tower cannot, by technical necessity, feasibly be located in a non-residential district.

(c) Any new tower permitted must be designed to accommodate personal wireless service antennas for at least one additional user for a reasonable fee if technically feasible.

(d) Accessory facilities shall be fully automated and shall not include offices, vehicle storage, outdoor storage, or broadcast studios.

(e) Tower heights shall not exceed one hundred (100) feet.

(f) Setbacks for towers shall be at least fifty feet (50') from all lot lines, and setbacks for accessory structures shall be a minimum of twenty (20) feet from all lot lines or as required for primary structures in the district if greater.

(g) Towers shall not be permitted within the boundaries of any historic district listed on the National Register nor shall towers be located on the same lot with a residential structure.

(h) Accessory buildings and security fences or walls shall be constructed so as to be compatible with the surrounding residential neighborhood by virtue of their design, materials, textures, and colors.

(i) New towers permitted on mountain tops or slopes should be clustered with existing towers, if any, to the extent that such location is techni-

cally feasible and safe as well as aesthetically, environmentally and visually compatible.

(j) The Board of Adjustment shall act upon any application for authorization to place, construct or modify any personal wireless service facility, whether for a special exception or a variance, within a reasonable period of time after the application and all required supporting documentation is duly filed, taking into account the nature and scope of such application.

Any decision by the Board of Adjustment to grant or deny an application to place, construct, or modify any personal wireless service facility, whether for a special exception or a variance, shall be in writing and supported by substantial evidence contained in the record.

(10) Fallout shelters for more than two families in any residence district.

(11) Laundry or dry cleaning operation in a neighborhood business district, provided no flammable fluids are used, no open discharge of steam, and not more than five (5) people are employed.

(12) Private schools, nurseries, kindergartens and child care centers in any residential district when operated as an accessory use to any permitted use other than a family dwelling, provided that the Zoning Administrator concurs and that all property owners within 500 (five hundred) feet have been notified of the public hearing.

Group child care homes in all residential districts, except Residence 2-B districts, provided that the restrictions listed in section 73.1.1.(4) have been met, that all property owners within 500 (five hundred) feet have been notified of the public hearing, and that such special exception shall be granted only to the applicant, shall not be transferable to any other person, firm or corporation, and shall terminate at such time as the group child care home ceases operation.

(13) Two-family house in a Light Industry District.

(14) Theatres, not including drive-in theatres, in Neighborhood Business C-1, C-2, General Business C-3, Central Business C-B, Highway Business C-4, Commercial Industrial Park, Research Park Commercial and Light and Heavy Industry districts.

(15) Drive-in theatres only in Light and Heavy Industry Districts.

(16) Commercial heliports and/or helipads in the following districts: General Business C-3, Highway Business C-4, Medical, and Light Industry districts.

(17) Private sidewalk or patio seating for on-premises alcoholic beverage retailers in Neighborhood Business C-1, Neighborhood Business C-2, Village Business C-6 and Research Park 2 districts, when it can be determined that such use will not be a nuisance to nearby residences.

(18) Expanded hours for on-premises retail sale, service, dispensing, or consumption of alcoholic beverages in a Neighborhood Business C-1, Neighborhood Business C-2, or Research Park 2 districts between midnight and 2 a.m. provided all of the following conditions are met in addition to any other conditions that may be imposed by the Board of Adjustment:

(a) Approval shall be for the licensee only and for no more than three (3) years.

(b) Each time a licensee applies for a Board of Adjustment approval, the licensee shall notify all residents within five hundred (500) feet by mail of the request at least ten (10) days prior to the date of the Board of Adjustment meeting.

(c) Licensed establishments shall be at least 250 feet from a single family

residential zoning district and shall not be located on a local street; provided, however, where the portion of the residential district falling within the required separation distance has been put to a non-residential use or the land is unusable for residential purposes, then the separation requirement shall not apply.

(d) Separation distances shall be measured from the edge of the parking lot or the exterior wall of the licensed establishment, whichever is closer to the residential district.

(e) The Board of Adjustment shall have no authority to grant variances to preceding conditions (a) through (d) or to extend hours of service beyond what is provided for herein.

(19) Indoor firing ranges, as a primary use, in Light Industry, Heavy Industry and Disposal Storage districts only, and as an accessory use to a permitted use in Planned Industrial, Research Park, Research Park West, Research Park Applications and Airport Industrial Park districts, provided that in either case of primary use or accessory use, the following conditions are met in addition to any other conditions imposed by the Board of Adjustment, to wit:

(a) Where the indoor firing range is a primary use, as opposed to an accessory use as hereinabove provided, there shall be no fewer than three (3) off-street parking spaces per firing lane or stall for patrons of the range.

(b) All Building Code requirements and all standards promulgated by the Inspection Director of the City of Huntsville, Alabama, with regard to the construction and performance of indoor firing ranges shall be met.

(c) Where the property on which the use is situated is contiguous to a residential zoning district, the structure housing the use shall not be situated nearer than fifty (50) feet to the residentially zoned property.

(d) The sale or consumption or possession of alcoholic beverages on the premises shall be prohibited.

(20) AM radio broadcast towers, towers for mobile or fixed point radio antennas, and any other telecommunications towers not otherwise covered by section 73.20.1 - Applicability that will not be designed, constructed, and available to accommodate multiple users for a proposed location in any non-residential district. Approval shall be subject to:

(a) Submittal of scaled site plans and other supporting drawings and documents sufficient to demonstrate compliance with the provisions of section 73.20 hereof.

(b) Written documentation by the applicant demonstrating why installation of a single user tower would better serve the goals of the Zoning Ordinance than would a tower designed to accommodate multiple users.

(c) The Board of Adjustment shall act upon any application for authorization to place, construct or modify any personal wireless service facility, whether for a special exception or a variance, within a reasonable period of time after the application and all required supporting documentation is duly filed, taking into account the nature and scope of such application.

Any decision by the Board of Adjustment to grant or deny an application to place, construct, or modify any personal wireless service facility, whether for a special exception or a variance, shall be in writing and supported by substantial evidence contained in the record.

(21) Broadcast towers supporting one or more UHF or VHF television or FM radio broadcast or other similar broadcast antenna in any district; approval shall be subject to the provisions of sections 73.20.6 - Security, 73.20.8 - Structural Design, 73.20.9 - Signs, 73.20.10 - Access, 73.20.11 - Landscaping, 73.20.16 - Co-Location, and 73.20.17 - Building Permits of this ordinance and to the following conditions:

(a) Because it is the intent of this ordinance to minimize the number of towers and their visual impact on the city, any new television tower that is permitted shall be capable of supporting at a minimum two UHF antennas and one FM antenna in addition to other radio service antennas and microwave dishes.

(b) If a new tower is approved for a currently operating television licensee, then the existing tower must be removed and any antennas on the existing tower transferred to the newly permitted tower or to other existing towers. There should never be more television towers in the city than there are television licensees, and it is the intent of this ordinance that the number of television towers should decrease over time as licensees co-locate on new towers.

(c) Setbacks for broadcast towers shall be the greater of 25% of tower height (including antennas) or the longest distance between the perimeter of the tower base and a guy anchor plus a fifteen-foot (15') setback from any lot line for each guy anchor.

(d) Broadcast towers must be located so that in the event of tower or structure failure, the tower cannot strike another tower or tower support structure.

(e) Applications to locate broadcast towers in residential districts must contain written documentation demonstrating why it is essential for the tower to be so located accompanied by evidence that the tower cannot be located in a non-residential district.

(f) Tower lighting shall be the minimum required to comply with federal regulations, and tower height shall be the minimum necessary to serve the licensed area.

(22) Indoor facilities for the discharge of BB guns in Highway Business C-4, Commercial Recreation C-5, Light Industry, Heavy Industry, and Disposal Storage districts subject to prior approval of the application by the Chief of Police and compliance with the provisions of Ordinance No. 97-171 as the same may be amended. Special exception approval by the Board of Adjustment shall be granted only on a specific event basis and approval shall specify the time period during which the special exception is valid. In addition, the following conditions shall apply:

(a) All building code requirements and all standards promulgated by the Building Inspector of the City of Huntsville with regard to the construction and performance of indoor firing ranges for BB guns shall be met;

(b) The structure housing such use shall not be situated nearer than fifty feet to residentially zoned property; and

(c) The sale or consumption or possession of alcoholic beverages on the premises shall be prohibited.

(23) Indoor facilities for the discharge of paintball guns in Light Industry, Heavy Industry, Disposal Storage, and Commercial Recreation C-5 districts. In addition to any other conditions imposed by the Board of Adjustment, the following conditions shall apply:

(a) The structure housing such use shall not be situated nearer than fifty (50) feet to residentially zoned property.

(b) Off-street parking spaces shall be provided in accordance with Article 71 - Off-Street Parking and Vehicular Use Area Landscaping Requirements. The number of parking spaces provided shall be at least one parking space for each 300 square feet of floor area.

(c) All noises emanating from the facility shall comply with the City of Huntsville Noise Control Regulations, as the same may be amended, and further, that where an indoor facility for the discharge of paintball guns adjoins residentially zoned property, the sound of firearm discharge and the sound of projectile impact shall not be audible at or beyond the property line.

(d) Guns used for paintball shall be discharged only within the indoor paintball structure.

(e) The sale, consumption or possession of alcoholic beverages on the premises shall be prohibited.

(24) Outdoor paintball playing fields in Heavy Industry and Disposal Storage districts, provided the following conditions are met in addition to any other conditions imposed by the Board of Adjustment:

(a) Applicant must demonstrate evidence of legal control of the proposed paintball site.

(b) The external boundaries of the paintball site must be at least 500 feet from any residential use, residentially zoned district or recorded residential subdivision, place of worship, school or daycare facility, provided, however, the separation distance restriction may be waived where the residential district or residential areas cannot be developed within 500 feet of the paintball site due to the existence of a floodway. The distance established herein shall be measured from the property line of the outdoor paintball range to the property line of the affected use.

(c) A buffer strip 200 feet deep along the perimeter of the site, along all rights-of-ways, and adjacent to structures must be maintained, and no play shall be permitted within this buffer; provided, however, this buffer may be waived or modified by the Board of Adjustment if in the opinion of the Board of Adjustment such waiver or modification will not be disruptive or detrimental to the surrounding area.

(d) A 20 foot high, nylon mesh screen shall be installed around each area of play, each tune-up area, and each other such area where guns may be discharged. This screen shall be anchored at the bottom and secured by a non-stretchable cable at the top and bottom. Two such screens shall be installed a minimum of five feet apart to separate the spectator area from the areas set forth above in this subsection 24(d).

(e) Off-street parking spaces shall be provided in accordance with Article 71 - Off-Street Parking and Vehicular Use Area Landscaping Requirements. The number of parking spaces provided shall be equal to one parking space for each 300 square feet of area of play.

(f) Standards of operation must be submitted as part of the Board of Adjustment application and shall become part of any approval. Standards shall include all pertinent information including a description of the equipment to be used, the hours of operation, the buffer strip, nylon mesh screen, and procedures needed to minimize any noise, litter, lighting, traffic, or other forms of pollution created by the proposed operation that may have an adverse

impact on the proposed paintball range, as well as surrounding properties.

(g) A site plan (1" = 200') showing the buffer strip; the nylon mesh screen; location of any permanent structures on the site; designated areas of play, staging, tune-up and spectators; adjacent rights-of-ways; vehicular and pedestrian circulation, including points of access to the site, loading and unloading areas, and areas for employee and customer parking; restroom facilities; landscaping; and any other proposed facilities, and a copy of the official zoning map on which are shown the exact boundaries of the paintball site shall be submitted with the Board of Adjustment application.

(h) No outdoor lighting shall be allowed other than for building access, parking area and signs. Nighttime use of a paintball range may be permitted if in the opinion of the Board of Adjustment such use will not be disruptive to the surrounding area. In these cases, playing, staging, tune-up and spectator areas will be required to be lighted.

(i) Hours of operation shall be from 7:00 a.m. to 12 midnight, provided, however, in no case shall hours of operation continue after dark unless the field is artificially lighted in accordance with 24(h) above.

(j) Guns used for paintball shall be discharged only on the paintball field within the approved designated areas of play.

(k) The sale, consumption or possession of alcoholic beverages on the premises shall be prohibited.

(l) No outdoor storage shall be allowed.

(25) Hotels, motels, and bed & breakfasts in Neighborhood Business C-1, C-2, and Village Business C-6 districts.

(26) Parking lots as a primary use in Neighborhood Business C- 1, Neighborhood Business C-2 and Village Business C-6 districts.

(27) Radio and television studios but not broadcast towers in Neighborhood Business C-1 and C-2 districts when located on a major arterial.

(28) Hotels and motels in Research Park Application, Research Park Applications 2, and Research Park 2 districts.

(29) Special event retailers in all residential districts.

(30) In Heavy Industry districts only: abattoir, stockyards; manufacture of acetylene gas, acid, ammonia, or chlorine, bleaching chemicals, powder, alcoholic beverages; asphalt manufacturing, limestone drying; auto wrecking, or storage of wrecked autos for purpose of used parts sales; blast furnaces, boiler and tank works; bag cleaning; central mixing plant for cement mortar or paving materials; processing, incineration or storage of dead animal materials, including curing, tanning and storage of hides, distillation of bones, coal, fat rendering, candle making, fertilizer manufacture, glue size, and gelatin manufacture; manufacture of paint, turpentine, varnish, soap and tar products, disinfectants and dyestuff; wool pulling or scouring; cement, lime, gypsum or plaster of Paris manufacture; salvage yards; paper and pulp manufacture; ore reduction; junk, scrap metal, rags, paper, cotton waste, storage or baling; gasoline and L.P. Gas bulk storage plants.

(31) Special Retailers as an accessory use to banquet halls or cultural venues where such uses are permitted in Neighborhood Business C-1, Neighborhood Business C-2, General Business C-3, Highway Business C-4, Commercial Recreation C-5, Light Industry, Heavy Industry, Commercial Industrial Park, Research Park Commercial and Research Park 2 districts provided all of the following conditions

are met in addition to any other conditions that may be imposed by the Board of Adjustment:

(a) The Special Retail license is available only to organizations.

(b) Approval shall be for the licensee only and for no more than three (3) years.

(c) Each time a licensee applies for a Board of Adjustment approval, the licensee shall notify all residents within five hundred (500) feet by mail of the request at least ten (10) days prior to the date of the Board of Adjustment meeting.

(d) The Special Retail license is only for scheduled events and shall not constitute the primary use of the property.

(e) In Neighborhood Business C-1 and Neighborhood Business C-2 Districts only: there shall be no outdoor entertainment.

(f) The Special Retail license, along with a listing of all conditions prescribed by the Board of Adjustment, must be clearly posted in a conspicuous location.

(g) The Board of Adjustment shall have no authority to grant variances to the preceding conditions (a) through (f).

(32) Photovoltaic Solar Energy System, On-Site, as an accessory use to a non-residential use in a residential zoning district, provided the conditions in section 73.1.1(5) for on-site solar energy systems in residential districts are met in addition to any other conditions that may be imposed by the Board of Adjustment.

(33) Photovoltaic Solar Energy Production Facility, as a primary use in all non-residential zoning districts except for Residential Office and Office districts, provided all of the following conditions are met in addition to any other conditions that may be imposed by the Board of Adjustment:

(a) Area of use may not exceed five (5) acres onsite with no aggregation of solar collection panels on adjacent properties which exceeds five (5) acres.

(b) Solar energy production facilities shall adhere to the setback and height requirements of the district in which they are located.

(c) Abutting residential properties shall be visually screened from the project through any one or combination of the following: plantings, existing vegetation or fencing (not to exceed eight [8] feet in height). The screening, capable of providing year round screening, shall be provided along the non-reflective sides of the solar energy production facility or collection of facilities.

(d) The manufacturers' or installers' identification, the facility owners' name and contact information, and the appropriate warning signage shall be posted on or near the panels in a clearly visible manner.

(e) All electrical interconnection and distribution lines within the project boundary, except for power lines that leave the project or are within the substation, shall be underground, unless determined otherwise by the Zoning Board of Adjustment because of severe environmental constraints.

(f) Lighting of the solar energy production facility and accessory structures shall be limited to the minimum necessary.

(g) Drawings that clearly illustrate the design of the solar energy production facility shall be submitted as part of the Special Exception application package. The Board of Adjustment may apply aesthetic

consideration when approving the design of the solar energy production facility.

(h) The installation of a solar energy production facility shall not cause to apply the requirements of Article 70 — Off-Street Parking and Loading Requirements or of Article 71 — Off-Street Parking and Vehicular Use Area (PVA) Landscaping Requirements.

(i) Any solar energy production facility that has not been in use for its original purpose for a period of one hundred and eighty (180) days shall be deemed to be abandoned. The solar energy production facility owner and/or the property owner shall have an additional ninety (90) days to remove the abandoned solar energy system and any appurtenant structures or to reactivate the solar energy system.

(34) Entertainment, as entertainment is defined herein, in restaurants, as restaurants are defined herein, located in Neighborhood Business C-1 and C-2 districts provided all of the following conditions are met in addition to any other conditions that may be imposed by the Board of Adjustment:

(a) Approval shall be for the licensee only and for no more than three (3) years.

(b) Each time a licensee applies for a Board of Adjustment approval, the licensee shall notify all residents within five hundred (500) feet by mail of the request at least ten (10) days prior to the date of the Board of Adjustment meeting.

(c) The entertainment shall not be audible outside the interior of the licensed premises.

(d) No entertainment shall be permitted and no entertainment shall be audible in the areas of any private sidewalk, courtyard or patio seating.

(e) No entertainment shall be permitted after 11:00 p.m.

(f) The Board of Adjustment shall have no authority to grant variances to preceding conditions (a) through (e).

(35) Alcoholic Beverage Manufacturers that conduct tastings or samplings on the licensed premises (with or without entertainment) shall be permitted as a Special Exception in General Business C-3, Highway Business C-4, Village Business C-6, Light Industry, Heavy Industry, Commercial Industrial Park, Airport Commercial, Research Commercial and Research Park 2 districts.

(36) Farmers markets located in Residence 1, Residence 1-A, Residence 1-B, Residence 1-C, Residence 2, Residence 2-A, Residence 2-B, Residence 2-C, Neighborhood Business C-1, Neighborhood Business C-2, Village Business C-6, Research Park and Research Park 2 districts.

(37) Metal siding as an exterior building finish provided the following conditions are met in addition to any other conditions that may be imposed by the Board of Adjustment:

(a) Exterior building finish must be constructed with an architectural composite metal panel or similar architectural composite panel.

(b) Pre-finished metal siding, steel siding, ribbed or corrugated metal siding materials are not permitted exterior building finishes.

(c) Exposed fasteners are not permitted.

(38) Temporary, seasonal outdoor agricultural retail sales, such as Christmas tree and pumpkin patch retail sales, located in Neighborhood Business C-1, Neighborhood Business C-2, General Business C-3, Village Business C-6, Research Park West, Research Park Commercial and

Research Park 2 districts. Uses shall be in accordance with front yard provisions listed under subsections 73.15.3 and 73.15.4, if applicable. Farmers markets do not pertain to this provision and shall be in accordance with subsection 92.5.3(36).

(39) Brewpubs (within brewpub areas), (with or without entertainment) shall be permitted as a Special Exception in General Business C-3, Highway Business C-4, Commercial Recreation C-5, Light Industry, and Heavy Industry districts.

In granting any special exception, the Board of Adjustment may prescribe appropriate conditions and safeguards in conformity with this ordinance in order to mitigate the impact of the use to surrounding uses and to otherwise protect the public health, safety and general welfare. Violation of such conditions and safeguards, when made a part of the terms under which the special exception is granted, shall be deemed a violation of this ordinance and punishable under Section 91.5 - Penalties of this ordinance.
(Ord. No. 25-157, § 1, 4-24-2025)

92.5.4. *Variances*. To authorize upon appeal in specific cases such variance from the terms of this ordinance as will not be contrary to the public interest, where, owing to special conditions, a literal enforcement of the provisions of this ordinance will result in unnecessary hardship, and so that the spirit of this ordinance shall be observed and substantial justice done.

(1) A variance from the terms of this ordinance shall not be granted by the board of adjustment unless and until:

(a) A written application for a variance is submitted that includes the basis for the request.

(b) Notice of public hearing shall have been given as in section 92.5.2(2) above.

(2) Applicable state statutory and common law shall apply to a variance request.

(3) The board may make appropriate findings consistent with applicable law.

(4) The board shall have no authority to grant variances that would amend the duly adopted final plat or the attached conditions, if any, for a planned development district. Amendments or alterations to approved planned development districts shall be as provided for in section 30.5.8 (PD, changes in approved final plans).

(5) A violation of the terms of a variance shall be deemed a violation of this ordinance and punishable under Section 91.6, Penalties, hereof.

92.5.5. *Abatement of Nuisances.* The board of adjustment may require the conduct of any use, conforming or nonconforming, which results in unreasonable noise, smoke, gas, vibration, fumes, dust, fire, or explosion hazard or nuisance to surrounding property to be modified or changed to abate such hazard to health, comfort, and convenience. The board of adjustment may direct the zoning administrator to issue an abatement order, but such order may be directed only after a public hearing by the said board, notice of which shall be sent by registered mail to the owners and/or operators of the property on which the use is conducted in addition to due notice by advertisement in a newspaper of general circulation; such notification shall be mailed at least seven days prior to the date of such public hearing. A hearing to consider issuance of an abatement order shall be held by the board of adjustment either upon petition signed by any person affected by the hazard or nuisance or upon the initiative of the board. An abatement order shall be directed by the board of adjustment only upon reasonable evidence of hazard or nuisance and such order shall specify the date by which the hazard or nuisance shall be abated.

(Ord. No. 96-259, § 2, 5-23-1996; Ord. No. 96-1008, § 6, 1-23-1997; Ord. No. 97-336, § 1, 6-12-1997; Ord. No. 00-620, § 3, 8-23-2000; Ord. No. 01-269, § 1, 5-24-2001; Ord. No. 02-196, §§ 3, 4, 4-25-2002; Ord. No. 03-285, § 3, 5-22-2003; Ord. No. 05-013, § 4, 2-10-2005; Ord. No. 05-141, § 1, 4-14-2005; Ord. No. 06-1201, § 4, 1-25-2007; Ord. No. 07-460, § 11, 6-28-2007; Ord. No.

07-1194, § 2, 2-28-2008; Ord. No. 09-1053, § 7, 12-17-2009; Ord. No. 10-180, § 1, 4-22-2010; Ord. No. 11-11, § 15, 2-24-2011; Ord. No. 11-895, § 2, 1-26-2012; Ord. No. 12-466, § 3, 8-23-2012; Ord. No. 13-482, § 1, 7-11-2013; Ord. No. 15-315, § 3, 6-25-2015; Ord. No. 15-406, § 3, 7-23-2015; Ord. No. 15-677, §§ 3, 4, 10-22-2015; Ord. No. 15-758, § 13, 11-19-2015; Ord. No. 15-760, § 3, 11-19-2015; Ord. No. 15-907, § 1, 1-28-2016; Ord. No. 16-89, §§ 2, 3, 3-24-2016; Ord. No. 16-91, §§ 1—4, 3-24-2016; Ord. No. 16-795, § 1, 11-17-2016; Ord. No. 16-781, § 1, 11-17-2016; Ord. No. 17-585, § 1, 2, 9-28-2017; Ord. No. 18-65, § 1, 3-22-2018; Ord. No. 18-230, § 4, 5-24-2018; Ord. No. 18-446, § 2, 7-26-2018; Ord. No. 18-720, § 1, 10-25-2018; Ord. No. 19-936, § 3, 11-21-2019; Ord. No. 21-46, § 2(b), 2-25-2021; Ord. No. 22-237, § 3, 5-26-2022)

92.6. Decisions of the board of adjustment.

In exercising the above mentioned powers, the board may, in conformity with the provisions of this ordinance, reverse or affirm wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made, and to that end shall have all the powers of the zoning administrator.

The concurring vote of four members of the board shall be necessary to reverse any order, requirement, decision or determination of any manager of inspection, or to decide in favor of the applicant on any matter upon which it is required to pass under this ordinance, or to effect any variation in this ordinance.
(Ord. No. 07-460, § 11, 6-28-2007)

92.7. Appeals from the board of adjustment.

Any person or persons aggrieved by any decision of the board of adjustment may seek review by a court of competent jurisdiction in the manner provided by the laws of the State of Alabama.

ARTICLE 93. SEVERABILITY

Should any section or provision of this ordinance be held void or invalid, it shall not affect the validity of any other section or provision thereof which is not of itself void or invalid, it being the purpose and intention of the city council to enact each separate section and/or subsection separately.

ARTICLE 94. REPEAL OF EXISTING ZONING ORDINANCES

All zoning ordinances heretofore adopted are hereby repealed, with the exception of those ordinances relating to fire districts and airport obstruction zoning.

ARTICLE 95. EFFECTIVE DATE

This ordinance shall take effect and be in force from and after the date of its adoption.

APPENDIX B

SUBDIVISION REGULATIONS*

Article 1. General Provisions

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***Editor's note—**Printed herein is the planning commission's subdivision regulations, as adopted by planning commission Resolution No. 22-90 on December 11, 1990, and effective on July 1, 1991 with amendments to December 1998. Such amendments are accounted for in the tables prepared by the planning commission in the appendix to the subdivision regulations. It is anticipated that future amendments to the planning commission's subdivision regulations will be indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original resolution as amended to December 1998. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Code of Ordinances has been used. Additions made for clarity are indicated by brackets.

Cross references—Any ordinance dedicating, accepting or vacating any plat or subdivision, or prescribing or accepting subdivision regulations saved from repeal, § 1-11(17); buildings and building regulations, ch. 7; subdivisions of district, § 10-63; streets, sidewalks and other public places, ch. 23; utilities, ch. 26; vegetation, ch. 27; flood hazard district regulations standards for subdivision proposals, app. A, § 62.11.

State law reference—Subdivision regulations, Code of Ala. 1975, § 11-52-30 et seq.

4.15. Standards for geotechnical investigations and tests.
4.16. Design standards.

Article 5. Assurance for Completion and Maintenance of Improvements

5.1. Improvements and performance bond.
5.2. Inspection of improvements.
5.3. Deferral of required improvements.

Article 6. Minor Subdivision Application Procedure and Plat Requirements

6.1. Definitions.
6.2. Review and approval procedure.
6.3. Layout plat.
6.4. Final plat.
6.5. Requirements for improvements and design of minor subdivisions.
6.6. Assurance for completion of improvements.

Article 7. Requirements for Land Conveyance Among Immediate Family Members

7.1. Definitions.
7.2. General requirements.

ARTICLE 1. GENERAL PROVISIONS

1.1. Title.

These regulations shall hereafter be known, cited and referred to as the "Subdivision Regulations of the Huntsville, Alabama, Planning Commission."

1.2. Purposes.

These regulations are adopted for the following purposes:

(1) To protect and provide for the public health, safety, and general welfare of the municipality.

(2) To guide the future growth and development of the municipality in accordance with the master plan.

(3) To provide for adequate light, air, and privacy, to secure safety from fire, flood, and other danger, and to prevent overcrowding of the land and undue congestion of population.

(4) To protect and conserve the value of land and the natural environment throughout the municipality and the value of buildings and improvements upon the land, and to minimize the conflicts among the uses of land, buildings, and the natural environment.

(5) To provide the most beneficial relationship between the uses of land and buildings and circulation of traffic throughout the municipality, having particular regard to the avoidance of congestion on the streets and highways and the pedestrian traffic movements appropriate to the various uses of land and buildings, and to provide for the proper location and width of streets.

(6) To establish reasonable standards of design and procedures for subdivision(s), in order to further the orderly layout and use of land; to protect life and property from damage caused by flooding, unstable slopes, slope deterioration and other natural and man-made hazards; to preserve the natural character of the land; and to insure proper legal descriptions and monumenting of subdivided land.

(7) To insure that public facilities are available and will have a sufficient capacity to serve the proposed subdivision.

(8) To insure that roads and utilities are constructed in an efficient manner so as to minimize public service and public maintenance costs.

(9) To prevent the pollution of air, streams, and ponds; to insure the adequacy of drainage facilities; to safeguard the water tables; and to encourage the wise use and management of natural resources throughout the municipality in order to preserve the integrity, stability, and beauty of the community and the value of land.

(10) To preserve the natural beauty and topography of the municipality and to insure appropriate development with regard to these features.

1.3. Authority.

These regulations are adopted pursuant to the authority, granted by Title 11, Chapter 52, Article 2 of the Code of Alabama, 1975 (Code of Ala. 1975, § 11-52-30 et seq.), which provisions are hereby made a part of these regulations.

1.4. Jurisdiction and application.

(1) These subdivision regulations and all design standards, geometric design and construction standards of the City of Huntsville shall uniformly apply to all subdivisions of land, as defined herein, located within the corporate limits of the City of Huntsville.

(2) Any owner of land within the limits of said subdivision jurisdiction wishing to subdivide land, with the exception of land conveyances among immediate family members, shall submit to the planning commission a plat of the subdivision which shall conform at least to the minimum requirements set forth in these regulations. No plat of a subdivision lying within such territory, or part thereof, shall be filed or recorded in the

office of the probate judge, and no subdivider shall proceed with improvements of lots in a subdivision until such plat shall have been approved by the planning commission.

(3) Any land conveyance among immediate family members shall conform to all the requirements of article 7 as set forth in these regulations.

1.5. Amendments.

The planning commission may from time to time amend the provisions imposed by these subdivision regulations. Public hearings on all proposed amendments shall be held by the planning commission in the manner prescribed by law.

1.6. Resubdivision.

For any change in a map of an approved or recorded subdivision plat, if such change affects any street layout shown on such map, or area reserved thereon for public use, or any lot line, such parcel shall be approved by the planning commission by the same procedure, rules, and regulations as for a subdivision.

1.7. Variances.

(1) *General.* Where the planning commission finds that extraordinary hardships or practical difficulties may result from strict compliance with these regulations and/or the purposes of these regulations may be served to a greater extent by an alternative proposal, it may approve variances to these subdivision regulations so that substantial justice may be done and the public interest secured, provided that such variance shall not have the effect of nullifying the intent and purpose of these regulations; and further provided the planning commission shall not approve variances unless it shall make findings based upon the evidence presented to it in each specific case that:

A. The granting of the variance will not be detrimental to the public safety, health, or welfare or injurious to other property near to the subdivision in question;

B. The conditions upon which the request for a variance is based are unique to the property for which the variance is sought and are not applicable generally to other property;

C. Because of the particular physical surroundings, shape or topographical conditions of the specific property involved, a particular hardship to the owner would result, as distinguished from a mere inconvenience, if the strict letter of these regulations is carried out;

D. The variance will not have the effect of nullifying the intent or purpose of the subdivision regulations, zoning ordinance, major street plan, or the elements of the master plan;

E. This section shall not apply to those sections of this ordinance that have their own provisions for waiver or modification of standards.

(2) *Conditions.* In approving variances, the planning commission may require such conditions as will, in its judgment, secure substantially the objectives of the standards or requirements of these regulations.

(3) *Procedures.* A petition for any such variance shall be submitted in writing by the subdivider at the time the preliminary plat is filed for the consideration of the planning commission. The petition shall state fully the grounds for the application and all of the facts relied upon by the petitioner.

1.8. Reserved.

Editor's note—Ord. No. 22-226, § 2, adopted March 24, 2022, repealed § 1-8, which pertained to common area maintenance agreement and derived from Ord. No. 04-875, adopted Nov. 19, 2004; and Ord. No. 05-712, adopted Sep. 8, 2005.

ARTICLE 2. DEFINITIONS

2.1. Usage.

(1) For the purpose of these regulations, certain words, terms, and phrases shall be used, interpreted and defined as set forth in these

regulations. Definitions not expressly prescribed herein are to be construed in accordance with customary usage in municipal planning and engineering practice.

(2) Unless the context clearly indicates to the contrary, words used in the present tense include the future tense; words used in the plural number include the singular; "shall" and "will" are always mandatory and "may" is permissive.

2.2. Words and terms defined.

AASHTO. American Association of State Highway and Transportation Officials.

Alley. A public or private way having a narrow right-of-way and affording a secondary means of access to abutting properties.

Applicant. The owner of land proposed to be subdivided or developed or his representative. Consent shall be required from the legal owner of the premises.

Base flood. The flood having a one percent chance of being equalled or exceeded in any given year.

Block. A tract of land bounded by streets, or by a combination of streets and public parks, cemeteries, railroad rights-of-way, shorelines of water or other physical barriers.

Bluff. An abrupt vertical change in topography of more than ten feet with an average slope steeper than two feet of rise for one foot of horizontal travel.

Buffer planting. A strip of land not less than 15 feet wide containing plant materials planted and maintained as follows:

One tree per 15 linear feet of length of said strip spaced a minimum of 15 feet on center but no more than 35 feet on center, a minimum of 50 percent of which shall be evergreen with the remainder being deciduous shade trees; one large shrub per 7½ linear feet of length of said strip spaced no less than five feet on center and no greater than ten feet on center, located a minimum of three feet from the boundary of the strip; grass, permanent mulch beds, or other permanent vegetative ground cover on all parts of each such buffer planting strip. All required plants shall be arranged in such a manner as to provide a variety of plant materials and spacings so that straight single-species rows are minimized. Additional plants are encouraged and may be planted provided the minimum requirements for said buffer plantings as listed above are met.

Existing vegetation may be credited in lieu of required plantings so long as it can be proven that the existing vegetation provides a degree of buffering equal to or greater than that provided by the required planting.

Building. Any structure built for the support, shelter or enclosure of persons, animals, chattels, or movable property of any kind.

Building line. The line within a property which defines a minimum horizontal distance to be provided between a building and the adjacent property line.

Cave. Any natural subterranean cavity that is at least 50 feet in length and/or depth, or that contains obligatory cavernicolous fauna (animals obliged to live underground). The word "cave" includes, but is not limited to, cavern, pit, pothole, well (natural), sinkhole, and/or grotto.

Certificate of occupancy. The instrument issued by the building inspection division of the city when a building has been inspected and found to meet city codes and ordinances relating to construction. Such certificate authorizes occupancy of said building.

City. The City of Huntsville, Alabama.

City clerk-treasurer. The duly designated Clerk-Treasurer of the City of Huntsville, Alabama.

City council. The City Council of the City of Huntsville, Alabama.

City engineer. The duly designated engineer for the City of Huntsville, Alabama.

City plan. See *Master plan.*

Civil engineer. An engineer whose training or occupation is in the practice of civil engineering and who is a Registered Professional Engineer in the State of Alabama.

Civil engineering. The application of the knowledge of the forces of nature, principles of mechanics and the properties of materials to the evaluation, design and construction of civil works for the beneficial use of mankind.

Colluvium. Any soil, residuum, unconsolidated deposit, rock and debris, or combination thereof, that is affected by the force of gravity such that

through time it moves down slope until it reaches a permanent state of equilibrium between gravitational stress and material strength.

Construction specifications. The specifications of the City of Huntsville as adopted by the governing body or promulgated by the City Engineer of the City of Huntsville, Alabama.

County. The county in which the subdivision is located.

County commission. The county commission of the county in which the subdivision is located.

Cul-de-sac. A local street with only one outlet and having an appropriate terminal for the convenient reversal of traffic movement.

Cut. Any artificial or mechanical act by which earth, sand, rock or any other similar material is dug into, excavated, quarried, uncovered, removed, displaced, relocated or bulldozed and shall include the conditions resulting therefrom.

Developer. The owner of land proposed to be subdivided or his representative. Consent shall be required from the legal owner of the premises.

Dump site. Any waste disposal location that includes either hazardous or non-hazardous wastes and that may include human-made or natural waste and debris.

Easement. Authorization by a property owner for the use by another, and for a specified purpose, of any designated part of his property.

Engineer of record. The civil engineer registered and in good standing with the State Board of Registration for Professional Engineers and Land Surveyors of Alabama and permitted to practice in the city and county, and who is originally responsible for coordinating and certifying as to the completeness and correctness of all information collected (by his/her efforts or those of his/her agents and/or subcontractors) and submitted for approval on behalf of the owner. In the event that the original engineer of record should change, all subsequent engineers of record shall be required to recertify all previously submitted documents and thereby accept responsibility for completeness and correctness of same. Should any subsequent engineer of record refuse to accept said responsibility, all applicable documents shall be deemed null and void and shall be required to be resubmitted with proper certification as outlined in these Subdivision Regulations of the City of Huntsville, Alabama.

Erosion. The wearing away of the ground surface as a result of the movement of wind, water and/or ice.

Excavation. Any artificial or mechanical act by which earth, sand, rock or any other similar material is dug into, cut, quarried, uncovered, removed, displaced, relocated or bulldozed and shall include the conditions resulting therefrom.

Fault. A fracture surface or fracture zone along which one side has been offset relative to the other.

Fill. Any artificial or mechanical act by which earth, sand, gravel, rock or any other material is placed, pushed, dumped, pulled, transported or moved to a new location above the natural surface of the ground or on top of the stripped surface and shall include the conditions resulting therefrom. The difference in elevation between a point on the original ground and a designated point of higher elevation of the final grade. The material used to make a fill.

Final plat. A plat of a tract of land which meets the requirements of these regulations and is in form for recording in the office of the probate judge of the county in which the subdivision is located.

Floodway. The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

Floodway fringe. The area of the floodplain lying outside the floodway but still subject to inundation by waters of the base flood.

Fracture. A surface along which material has lost cohesion. Fractures may become solutionally enlarged and permit infiltration of surface water to underground cavities or channels.

Frontage road. A street parallel and adjacent to an arterial or major collector which provides access to abutting properties.

Geometric design standards. The standards and specifications adopted by the American Association of State Highway and Transportation Officials (AASHTO) and as amended.

Geotechnical engineer. A civil engineer whose primary experience and knowledge is in the practice of geotechnical engineering.

Geotechnical engineering. The application of the knowledge of soil and rock mechanics, the forces of nature and the properties of materials to the evaluation, design and construction of civil works for the beneficial uses of mankind.

Governing body. Depending upon jurisdiction, either the City Council of the City of Huntsville, Alabama, or the county commission of the county in which the subdivision is located.

Ground water recharge point. Any cave, sinkhole, fault, fracture, joint or other specific natural feature which may be demonstrated to transmit or has the potential to transmit surface water into the subsurface strata.

Health department. Depending on jurisdiction, either the Huntsville-Madison County Health Department or the health department for the county in which the subdivision is located.

Historical and archeological features. Any location of local historical or archeological significance including, but not limited to old home sites, old structures, old wagon trails, civil war embankments, Indian mounds, Indian burial grounds, Indian village sites, or any location with an unusual concentration of archeological or historical artifacts.

Huntsville utilities. The Huntsville Water, Gas, and Electric Distribution System.

Intermittent stream. A stream that flows at the land surface discontinuously along its length as a result of subterranean passages that locally allow the surface water to move through the subsurface.

Joints. Fractures or breaks in rocks along which no movement has occurred. Most rocks are jointed and exhibit parallel joint orientations called joint sets.

Landslide. Any of various types of slope movement (mud flow, debris flow, debris avalanche, soil creep, slump, slide, rock fall, etc.) that involves the gravitational movement of unstable slope material (colluvium, soil, rock, etc.) from a higher elevation to a lower elevation. Rates of slope movements or landslides may range from very fast (rock fall) to very slow (soil creep - may be measured in inches or fractions thereof, per year).

Landslide, active. Any landslide that is currently active or that can be demonstrated to have had slope movement within the last year.

Landslide, inactive. Any landslide (including both historic and prehistoric landslides) that can be demonstrated to have no evidence of currently active movement or movement within the last year.

Lineaments. Straight features on the land surface identified from aerial photography, remote sensing, and/or topographic maps which are reflected by topographic or vegetative differences which in turn may be related to fracturing in the bedrock.

Local government. Depending on jurisdiction, either the City of Huntsville, Alabama, or the county government of the county in which the subdivision is located.

Local street. A street not classified in a higher system primarily providing access to abutting land and access to higher systems. Such street offers the lowest level of mobility, and service to through traffic is deliberately discouraged.

Lot. A tract, plot, or portion of a subdivision or other parcel of land intended as a unit for the purpose, whether immediate or future, of transfer of ownership or for building development.

Lot, double frontage. A lot fronting on two streets but not including a corner lot.

Major arterial. A street or highway of great continuity designed to accommodate the highest

traffic volumes and longest trip desires. Service to abutting land uses is subordinate to provision of travel service to major traffic movements. Major arterials carry the major portion of trips entering, leaving, or bypassing the urban area.

Major collector. A street of reasonable continuity that channels traffic between arterials, and from other collector streets to the arterial system. Such a street may sustain retail or other commercial establishments along its route and may carry relatively high traffic volumes.

Major street plan. The major street plan as adopted by the planning commission as an element of the city master plan.

Master plan. Any legally adopted part or element of the Master Plan of the City of Huntsville or its environs. This may include, but is not limited to: zoning ordinance, airport obstruction zoning ordinance, subdivision regulations, community facilities plan, major street plan, capital expenditures plan, and land use plan.

Minor arterials. Streets and highways of considerable continuity interconnecting with and augmenting the principal arterial system and providing service to moderate length trips at a somewhat lower level of mobility. The system places more emphasis on land access and distributes traffic to smaller geographic levels than those identified with the higher system. Minor arterials include all arterials not classified as major.

Minor collector. A street which carries traffic from a number of local streets to the major collector/arterial system, between other collectors, and from activity centers to a street of higher classification. Minor collectors generally have lower traffic volumes, shorter trip lengths and fewer through trips than major collectors. Minor collectors include all collectors not classified as major.

Nonresidential subdivision. A subdivision whose intended use is other than residential, such as commercial or industrial. Such subdivision shall comply with the applicable provisions of these regulations.

Off-street pedestrian walkway. A strip of land dedicated for public use which is reserved across a block for the purpose of providing pedestrian access to adjacent areas.

Owner's land surveyor. The land surveyor licensed and in good standing with the State Board of Registration for Professional Engineers and Land Surveyors of Alabama and permitted to practice in the city and county, who is an agent of the owner of the land that is proposed to be subdivided or that is in the process of being subdivided.

Parkway. A roadway that is officially classified as a major street and that has been designated as a parkway by the planning commission. A parkway is intended to be used primarily by passenger vehicles and to present a parklike character. Parkway designation is especially appropriate for roadways that traverse scenic or environmentally diverse areas.

Perennial streams. Streams that flow year round.

Planning commission. The Planning Commission for the City of Huntsville, Alabama.

Preliminary plat. A tentative plan of a proposed subdivision submitted to the planning commission for its consideration.

Probate judge. The judge of probate for the county in which the subdivision is located.

Rear service road. See alley.

Regolith. Unconsolidated material above bedrock. Composed of rock and mineral fragments, organic matter, water and air, and may include soil, residuum, colluvium and alluvium.

Right-of-way. A strip of land occupied or intended to be occupied by a street, off-street pedestrian walkway, railroad, road, electric transmission line, oil or gas pipeline, water main, sanitary or storm sewer main, or for another special use. The usage of the term "right-of-way" for land platting purposes shall mean that every right-of-way hereafter established and shown on a final plat is to be separate and distinct from the lots or parcels adjoining such right-of-way and not included within the dimensions or areas of such lots or parcels. Rights-of-way intended for streets,

crosswalks, water mains, sanitary sewers, storm drains, or any other use involving maintenance by a public agency shall be dedicated to public use by the maker of the plat on which such right-of-way is established.

Screen planting. A strip of land not less than 15 feet wide containing plant materials planted and maintained as follows:

One tree per 15 linear feet of said strip spaced a minimum of 15 feet on center but no more than 35 feet on center located a minimum of five feet from the exterior boundary of the strip a minimum of 50 percent of said trees shall be evergreen with the remainder being deciduous shade type trees and shall be arranged in such a manner as to provide the greatest degree of screening practical; one screening shrub per 7½ linear feet of said strip alternately spaced no closer than five feet on center and no greater than ten feet on center located a minimum of three feet from the interior boundary of the strip; grass, permanent mulch beds, or other permanent vegetative ground cover on all parts of each screen planting strip. All required plants shall be arranged in such a manner as to provide a variety of plant materials and spacings so that straight single-species rows are minimized. Additional plants are encouraged and may be planted provided the minimum requirements for screen plantings as listed above are met. Existing vegetation may be credited in lieu of required planting provided the existing vegetation provides a degree of screening that meets or exceeds that provided by the required planting.

Screening fences and walls. Any wall or fence used for screening that is a minimum of six feet in height and a minimum of 85 percent opaque and of the same or compatible, in terms of texture and quality, as the materials and color of the principle building. All screening fences and walls shall be provided with additional planting material so that no more than two-thirds of the surface area of the fence or wall is visible from the street within three years of erection of the structure. A maximum of 40 percent of this plant material may be deciduous.

Screening shrubs. Shall be a locally adapted species expected to reach a minimum mature height of five feet and a minimum mature spread of five feet within three years of planting. All said shrubs shall be a minimum 24 inches in height and spread at time of installation.

Seep. A small spring or an area where water slowly percolates out of the ground.

Sensitive environmental feature. Any natural feature, natural condition, habitat, plant species, or animal species that may either (1) be negatively impacted or seriously threatened by man's activities, or (2) be in a position to negatively impact man's safety and welfare. Sensitive environmental features may include, but are not limited to the following: geologic formations, soils, colluvium, rock outcrops, bluffs, sinkholes, caves, solution features, landslides, lineaments, springs, seeps, streams, wetlands, groundwater recharge points, vegetative communities, endangered or threatened plant and animal species.

Shade tree. Any deciduous or evergreen tree whose mature height of its species can be expected to exceed 35 feet and which has an expected crown spread of 30 feet or more and is considered a shade tree in accordance with American Standards of Nursery Stock, set forth by the American Association of Nurserymen. The shade tree, existing or planted, shall be at least eight feet in height and two inches in diameter measured at one-half foot above grade for new planted trees and measured 4½ feet above grade for existing trees.

Sinkhole. Depression formed in soluble rock by the action of subterranean water and is a potential point of significant groundwater recharge.

Site. Any lot or parcel of land or contiguous combination thereof, under the same ownership, including joint ownership, where clearing and/or earthwork is proposed, performed or permitted.

Solution feature. Any cave, sinkhole, or solutionally enlarged fracture, joint, fault, bedding contact, or other specific natural feature that was produced from solution of soluble rocks.

Spoil areas. Areas where refuse rock, earth, etc. has been deposited as a result of excavations in mining, dredging or excavating.

Springs. Locations on the land surface where the water table is exposed as on a valley side. The position of the water table changes seasonally, thus some springs flow only during wet weather or the wet season. Perennial springs flow year round.

Subdivider. The person(s), firm(s), or corporation(s) owning land in the process of creating a subdivision or having completed a subdivision of said land. Includes any agent of the subdivider.

Subdivision. The division of a lot, tract or parcel of land into two or more lots, plats, sites or other divisions of land for the purpose, whether immediate or future, of sale or of building development or if a new street is involved. The term "subdivision" includes resubdivision and, when appropriate to the context, relates to the process of subdividing or to the land or territory subdivided.

Vegetative communities. A systematic classification of vegetation for a given area by floral associations, location and age.

Wet weather streams. Streams that only flow during or after wet weather or wet seasons.

Wetlands. Those areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adopted for life in saturated soil conditions. Wetlands generally include swamps, marshes, bogs and similar areas. (Current definition used by U.S. Army Corps of Engineers for administering Section 404 of the Clean Water Act.)

Zoning ordinance. The Zoning Ordinance of the City of Huntsville, Alabama.

ARTICLE 3. SUBDIVISION APPLICATION PROCEDURE AND PLAT REQUIREMENTS*

3.1. Procedural requirements.

Whenever any subdivision of land is proposed, and before any permit for the erection of a structure in such proposed subdivision shall be granted, the subdividing owner, or his authorized agent, shall apply for and secure approval of such proposed subdivision in accordance with the following procedure.

3.2. Layout.

(1) *Discussion of requirements.* Before preparing the layout for a subdivision, the applicant should discuss with the manager of planning or his designated representative, the procedure and requirements for adoption of a subdivision plat and the requirements as to general layout of streets and for reservations of land, street improvements, drainage, sewerage, fire protection, and similar matters, as well as the availability of existing services. The manager shall also advise the applicant, where appropriate, to discuss the proposed subdivision with those officials who must eventually approve these aspects of the subdivision plat coming within their jurisdiction.

(2) *Application procedure.* Prior to subdividing land, an owner of land or his representative shall file an application for approval of a layout; provided that in the case of resubdivision where an approved layout already exists and has not been significantly altered by the resubdivision, the applicant shall not be required to submit another application for layout approval. Where required the application for approval of a layout shall:

A. Be made on forms available at the office of the manager of planning.

B. Be accompanied by a minimum of three copies of the required layout documents as described in these regulations and complying in all respects with these regulations.

***Cross reference—**Common area maintenance agreement as an express condition precedent to final approval of any subdivision plat, app. B, § 1.8.

C. Be accompanied by a vicinity map. For subdivisions within the city, the vicinity map shall show generally the proposed streets, proposed subdivision boundaries, and surrounding area of the land to be subdivided, and shall be drawn on the City of Huntsville Planning Division zoning maps scaled 400 feet to the inch. For subdivisions outside the city, the vicinity map shall show generally the proposed subdivision boundaries and surrounding

area of the land to be subdivided, and shall be drawn on a map scaled not greater than 2,000 feet to the inch.

D. Be presented to the manager of planning sufficiently in advance of the meeting of the subdivision committee of the planning commission to allow time for his review.

E. Be accompanied by one copy of the sketch plat that has been reviewed and signed by the city engineer, or his authorized representative in words substantially as follows:

The within subdivision plat has been reviewed by the City Engineer for the City of Huntsville, Alabama.

_____	_____
Date	Traffic Engineer City of Huntsville, Alabama

(3) *Layout requirements.* The following documents shall be submitted with the layout application. All maps shall be drawn to a convenient scale of not more than 100 feet to an inch, on maximum sheet size of 24″ × 36″. Each map shall be a separate document unless otherwise specified and shall contain the information as outlined below:

A. *Sketch plat.*

(i) Boundary lines of the subdivision.

(ii) Topography at five-foot contour intervals or less for subdivisions within the city.

(iii) Location of existing and proposed improvements within 200 feet of the boundary of the proposed subdivision.

(iv) Approximate locations and widths of all existing and proposed rights-of-way.

(v) Approximate locations and dimensions of all proposed lots.

(vi) Approximate locations of all parcels of land to be set aside for parks or other use by property owners in the proposed subdivision.

(vii) Name of the proposed subdivision and of any adjoining subdivisions.

(viii) Approximate location of adjoining property lines or subdivision boundaries, and names of adjoining property owners or subdivisions.

(ix) Approximate tie points to an accepted corner based on the U.S. Government Public Lands Survey System which shall show the relationship to the Huntsville Meridian (include reference to deed book and page or applicable plat book and page).

B. *Slope map.* When the slope of the property of the proposed subdivision falls entirely within the 0—10 percent slope category, the slope may be noted on the site assessment map.

(i) To be at the same scale and contain the same information as the sketch plat.

(ii) Delineation of existing slope categories of 0—10 percent, 10—15 percent, 15—25 percent, 25—35 percent, and 35 percent and greater.

(iii) Approximate location of all proposed areas of excavation and fill for proposed roads in excess of ten feet in depth. Road profiles may be required by the traffic engineer or the city engineer when it is determined by the traffic engineer or city engineer that there may be cut and fill in excess of ten feet.

C. *Site assessment map.*

(i) To be at the same size and scale and contain the same information as the sketch plat.

(ii) Approximate location, and indication of size and condition, of all natural hazards and sensitive environmental features found within the boundaries of the study area including but not limited to:

a. Geologic formations

b. Soil classification

c. Colluvium
d. Bluffs
e. Sinkholes
f. Caves
g. Solution features
h. Landslides (inactive and active)
i. Lineaments
j. Springs
k. Seeps
l. Streams (perennial, intermittent and wet weather)
m. Wetlands
n. Ground water recharge points
o. Vegetative communities (including the five most abundant tree or floral species for each community, in order of abundance and the approximate age of each community)
p. Endangered or threatened species habitats as determined by the planning division based on U.S. Fish and Wildlife Service documents.

(iii) Approximate location, and indication of size and condition, of man-made hazards and features found within the boundaries of the study area including but not limited to:

a. Evidence of recent or ancient mining or quarry operations (above ground and under ground)
b. Spoils areas
c. Dump sites
d. Existing fill and excavation
e. Existing drainage retention or detention areas
f. Wells
g. Storage tanks (above ground and underground)
h. Historical and archeological features (as recorded with the Alabama Historical Commission and/or Alabama Museum of Natural History).

D. *Site assessment report.* The site assessment report shall include but not be limited to a written text and illustrations clearly describing:

(i) Names and qualifications of all site assessment investigators.

(ii) Methods used in site assessment.

(iii) Findings for all features noted on the site assessment map or otherwise required for site assessment, including where appropriate, itemized descriptive lists of features identified on map, illustrations and photographs.

(iv) Professional conclusions as to how the findings will impact the proposed improvements.

(v) Recommendations for mitigating all located and described on-site hazards and sensitive environmental features.

(vi) The following certification:

I, _____, the engineer of record do hereby certify that the information shown hereon is complete and correct and in compliance with all applicable regulations of the City of Huntsville, Alabama to the best of my knowledge.

_____l;Date_____
Engineer of Record

E. *Geotechnical investigation and testing plan.* Where construction is proposed on lands or portions of land where colluvium, evidence of mine operations, Pennington, Pride or shaley Upper Bangor formations, dump sites or existing fill and excavation is present as indicated on the site assessment map or when in the professional opinion of the geotechnical engineer of record, geotechnical testing should be per-

formed, a "Geotechnical Investigation and Testing Plan" shall be submitted containing the following:

(i) To be at the same size and scale and contain the same information as the sketch plat.

(ii) Approximate location and description of all applicable subsurface explorations and tests including the location and description of any additional subsurface explorations and tests deemed necessary by the engineer of record (see 4.15 "Standards for Geotechnical Investigations and Tests").

(iii) Approximate location and dimensions of all proposed access routes to be used in performing subsurface explorations (see 4.15 "Standards for Geotechnical Investigations and Tests") including a clear description of all proposed clearing and grading necessary to accommodate said access. In no case shall clearing limits for testing access routes exceed 15 feet in width.

(iv) Location and description of all proposed erosion and sedimentation control measures to be installed prior to and maintained throughout the investigation and testing performance.

(v) Location and description of all proposed measures to be taken to repair all areas disturbed during investigation and testing performance.

(vi) The following certification:

I, _____, the engineer of record, do hereby certify that the information shown hereon is complete and correct and in compliance with all applicable regulations of the City of Huntsville, Alabama to the best of my knowledge.

_____ _____

Date Traffic Engineer
City of Huntsville, Alabama

(4) *Study of layout.* The subdivision committee shall consider the layout and render a report to the next regular meeting of the planning commission concerning the layout.

(5) *Public hearing.* The planning commission may hold a public hearing on the layout. However, without regard to a public hearing at layout, a public hearing as required for plats under Alabama Law shall be held prior to the planning commission granting preliminary approval.

(6) *Review and approval of layout.* The planning commission shall study the layout, public comments, and the report of the subdivision committee, taking into consideration the requirements of the subdivision regulations. After reviewing and discussing the layout, public comments, and report of the subdivision committee and other reports, as submitted by invited agencies and officials, the planning commission will advise the applicant of the specific changes and additions, if any, it will require. The planning commission may require additional changes as a result of further study of the subdivision in preliminary or final form.

(7) *Effective period of geotechnical investigation and testing approval.* Approval of the layout requirements by the planning commission shall authorize the developer to perform the required geotechnical investigations and tests as proposed in an approved geotechnical investigation and testing plan. The authorization to perform said investigations and tests shall be effective for a period of one year. For any required geotechnical investigations and/or tests not completed within the period of time set forth herein, the developer shall be required to resubmit the "Geotechnical Investigation and Testing Plan" for reapproval subject to all new zoning restrictions and subdivision regulations.

(8) *Note:* It shall be the responsibility of the engineer of record on all subdivisions within the slope development district as defined by the City of Huntsville Zoning Ordinance, to contact repre-

sentatives of the serving utility companies for electricity, water, natural gas, cable television, and telephone for design and layout of required common trenching prior to preliminary plat submittal. Also if sanitary sewer is to be located within the common trench, the engineer of record should contact the city engineer for design and layout requirements for common trenching prior to preliminary plat submittal.

3.3. Preliminary plat.

(1) *Application procedure.* Based upon the planning commission's approval of the layout, the owner or his representative shall file an application for approval of a preliminary plat. Where required, the application for approval of a preliminary plat shall:

A. Be made on forms available at the office of the manager of planning.

B. Include payment of an application fee of $100.00 plus $5.00 per proposed lot.

C. Be accompanied by a minimum of three copies of the preliminary plat as described in these regulations and complying in all respects with these regulations.

D. Be accompanied by one set of all certified construction plans to include the preliminary plat as described in these regulations and complying in all respects with these regulations.

E. Be accompanied by a minimum of three copies of the geotechnical investigation and testing report as described in these regulations and complying in all respects with these regulations.

F. Be presented to the manager of planning sufficiently in advance of the meeting of the subdivision committee of the planning commission to allow time for his review.

G. Be accompanied by digital submittal of the preliminary plat and construction plans to Geographic Information and Mapping Services (G.I.M.S.), in compliance with all preliminary plat requirements, along with electronic notification to the following divisions: planning, engineering, Huntsville utilities, and Geographic Information and Mapping Services (G.I.M.S.).

(2) *Public hearing.* The planning commission shall hold a public hearing on the preliminary plat prior to approval of said preliminary plat as required for plats under Alabama Law.

(3) *Preliminary plat requirements.* Unless otherwise specified, all plans and reports submitted as part of the application shall be submitted as separate documents and shall be drawn to a convenient scale of not more than 100 feet to an inch, on sheet size not larger than 24″ × 36″. The preliminary plat shall include the following information:

A. Names and addresses of the owner of the land to be subdivided, the subdivider (if other than the owner), the engineer and surveyor.

B. Geodetic control and references which shall include the following:

(i) Tie points to a minimum of two accepted GPS monuments or one GPS tie point plus an astronomic observation to determine grid north.

(ii) Tie points to an accepted corner based on the U.S. Government Public Lands Survey System which shall show the relationship to the Huntsville Meridian.

(iii) All existing monuments, proposed monuments, corners and points required under article [subsection] 4.4 shall be noted and shown on the plat.

(iv) State plane coordinates on all monuments specified in article [subsection] 4.4(2) based on NAD 1983 [North American Horizontal Datum], and Alabama East Zone as described in the Code of Ala. 1975, § 35-2-1.

(v) North arrows indicating grid north.

C. Exact boundary lines of the tract indicated by a heavy line giving distances to the nearest hundredth of a foot and bearings to the nearest second of arc. Field

data for all monuments shall achieve a ratio of precision (closure) of 1:10,000 or better.

D. Lot lines with distances to the nearest hundredth of a foot, bearings and angles sufficient to reproduce the survey and chords and radii of rounded corners.

E. Street centerlines and geometrics showing angles of deflection or bearing, angles of intersection, curve radii, length of tangents and centerline stationing.

F. Widths of existing and proposed right-of-way, including dimension from centerline of all existing right-of-way to the subdivision boundary and a clear indication of location and width of right-of-way of any street adopted as a part of the major street plan.

G. Location and description of all required sidewalks and off-street pedestrian walkways.

H. The date of the map, scale and title of the subdivision.

I. Name of all the streets.

J. Building setback line, locations and depths.

K. Lot and block numbers. Blocks shall be consecutively numbered or lettered in alphabetical order. Lots within each block shall be consecutively numbered.

L. Easements, buffer strips and public service utility rights-of-way lines giving widths, locations, and purposes.

M. Accurate outlines and descriptions of any areas to be dedicated or reserved for public use or acquisition with the purpose indicated thereon; and of any areas to be reserved by deed covenant for common use of all property owners.

N. Acreage and number of lots within the subdivision.

O. A lot data box as shown below:

LOT DATA		
BLOCK NUMBER	LOT NUMBER	AREA IN SQUARE FEET

P. Floodway and floodway fringe boundaries within the subdivision. If within the 100 year flood plain the lowest allowable finished floor elevation for each lot, based on officially adopted floodway regulations of the City of Huntsville.

Q. Key map where more than one sheet is required to present map.

R. All surveys and plats must be done in accordance with the current "Minimum Technical Standards for Land Surveying in Alabama," as adopted by the Alabama Society of Professional Land Surveyors.

S. Digital Formats-CADD/CAM files shall be submitted in a DGN, DXF, or DWG file format. Electronic notification letters shall consist of a list of files being submitted, a description of the data in each file, a level/layer schematic of each design file, and a statement conveying rights to the City of Huntsville for the data to be used for G.I.M.S. purposes. DGN design files shall have working units as follows: master units in feet, no subunits, and 1,000 positional units. All data submitted shall use NAD 1983 Alabama East Zone coordinates as described in The Code of Ala. 1975, § 35-2-1 and NGVD 1929 [National Geodetic Vertical Datum]. Digital files must display, by text, said state plan coordinates for all points specified in article [subsection] 4.4(2). Digital submission - Digital files shall be submitted to Geographic Information and Mapping Services (G.I.M.S.) by 4¾″ CD ROM, 100 MB zip drive, 3½ inch floppy disk, or to the City of Huntsville F.T.P. site.

(4) *Construction plans.* For all subdivisions proposing improvements requiring construction approval, the following shall be submitted. Each plan and any map required with report shall include the base information listed below:

A. *Base information:*

(i) The date of the map, a reference meridian (designated on the plat either true or magnetic north), scale, title of the subdivision.

(ii) Exact boundary lines of the tract indicated by a heavy line, or other acceptable control traverse, giving distances to the nearest hundredth of a foot and bearings to the nearest second of arc.

(iii) Lot lines without distances to the nearest hundredth of a foot, bearings and angles and chords and radii of rounded corners.

(iv) Lot and block numbers.

(v) Building setback line, locations and depths.

(vi) Street centerlines and rights-of-way including centerline stationing.

(vii) Easements, buffer strips and public service utility rights-of-way lines giving widths, locations, and purposes.

(viii) Accurate outlines and descriptions of any other areas to be dedicated or reserved for public use or acquisition with the purpose indicated thereon; and of any areas to be reserved by deed covenant for common use of all property owners.

B. *Geotechnical investigation and testing report.* Where construction is proposed on lands or portions of land where colluvium, evidence of mine operations, Pennington, Pride or shaley Upper Bangor formations, dump sites or existing fill and excavation is present as indicated on the site assessment map or when in the professional opinion of the geotechnical engineer of record, geotechnical testing should be performed, a "Geotechnical Investigation and Testing Report" shall be submitted containing the following:

(i) Names and qualifications of all investigators involved with the geotechnical investigation.

(ii) Methods used in the performance of all site investigations and tests as described in the geotechnical investigation and testing plan.

(iii) Findings of all performed site investigations and tests keyed to a map to be at the same size and scale as the preliminary plat including clear indication of all hazard zone lands as defined by the Zoning Ordinance of the City of Huntsville, Alabama.

(iv) Conclusions as to how the findings will impact the proposed improvements.

(v) Recommendations for mitigating all located and described on-site hazards and sensitive environmental features.

(vi) The following certifications:

I, _____, the engineer of record, do hereby certify that the information shown hereon is complete and correct and in compliance with all applicable regulations of the City of Huntsville, Alabama, to the best of my knowledge.

_____	_____
Date	Engineer of Record

Due to the documented evidence of potential geologic/man-made hazards existing on or near the lots shown hereon, I, _____, the geotechnical engineer of record, having caused investigations and tests to be performed and based on the findings of said investigations and tests do hereby certify that all lots shown hereon exhibit no apparent geologic or geotechnical constraints

which would render said lots unfit for development.

Date	Geotechnical Engineer of Record

For development where construction is proposed on lands or portions of lands which are designated as hazard zone as defined by the Zoning Ordinance of the City of Huntsville, Alabama, the following certifications:

ENGINEER OF RECORD

I, _____, the engineer of record, certify that the proposed development shown hereon is designed in accordance with sound engineering standards and practices, and in accordance with all applicable development regulations. I further certify that I have caused prudent investigation, testing and inspections to be performed on all lands within the proposed development identified as hazard zone, as defined by the Zoning Ordinance of the City of Huntsville, Alabama, including geotechnical analysis and testing on all hazard zone lands and on lands upslope and downslope of the proposed development, and I have instructed the land surveyor as to those areas within the proposed development that fall within the hazard zone for inclusion in the development plats. Based upon the investigation, testing and inspections performed, as defined and discussed in the geotechnical analysis and report dated _____ and submitted in connection herewith, and further based upon any remedial measures taken in connection with the hazards defined therein, I certify that, within acceptable geotechnical standards, development of the property as shown on the plat will not diminish the stability of the slope or otherwise increase the likelihood of landslide or other slope failure and that the buildable areas designated hereon can meet a minimum safety factor of 1.5 for stability.

Date	Engineer of Record

OWNER

I, _____, owner/owners of the lands embraced hereon, hereby certify that I have caused investigation in accordance with sound engineering standards and practice to be made of hazard zone lands, as defined by the Zoning Ordinance of the City of Huntsville, Alabama, within the development as shown hereon. I further understand the potential and inherent danger of said lands and that landslides have originated in conditions that regularly exist on said hazard zone lands.

With this knowledge, I hereby certify that I have caused all prudent measures to be taken in the design of the development as shown hereon, including an analysis of all lands upslope and downslope of the hazard zone lands, to assure that the site is safe for the proposed development, and within acceptable geotechnical standards the proposed development will not diminish the stability of the slope or otherwise increase the likelihood of landslide or other slope failure.

Date	Owner

C. *Vegetation plan.* When a buffer planting and/or screen planting is required, the following information shall be submitted:

(i) Location and description of all proposed plants.

(ii) Plant schedule indicating botanical name, common name, quantity, size and condition of all proposed plants.

(iii) Typical planting details including typical plan and cross section.

D. *Grading and erosion and sedimentation control plan.* The grading and erosion and sedimentation control plan shall be in compliance with the "City of Huntsville Stormwater Management Manual" and all other applicable regulations of the City of Huntsville and shall include:

(i) All information shown shall be drawn at same sheet size and scale as the preliminary plat.

(ii) All existing and proposed improvements within 200 feet of the proposed subdivision, including but not limited to streets, drainage structures, ditches, manholes, utility lines, etc.

(iii) All existing contours indicated by broken (dashed) lines and all proposed contours indicated by solid lines at a minimum interval of two feet except where slopes exceed 15 percent in which case a minimum interval of five feet shall be shown.

(iv) The elevation of all known high water marks or flood lines as well as the elevation of all proposed structures, including finished floor elevations of all buildings.

(v) Bench mark, including elevation, relative to national geodetic vertical datum.

(vi) The slope of all proposed excavation and fill embankments.

(vii) Approximate location, description and details of all proposed retaining structures for excavation and fill slopes in excess of two feet horizontal to one foot vertical.

(viii) Location, description and details of all temporary and permanent erosion and sedimentation control measures to be utilized including, but not limited to, silt fences, silt dikes, hay bale dikes, construction entrances, siltation ponds, permanent ground cover types and application rates.

(ix) Implementation schedule of all erosion and sedimentation control measures for construction of temporary and permanent control measures and final stabilization.

(x) The following certifications:

I, _____, the engineer of record, do hereby certify that the information shown hereon is complete and correct and in compliance with all applicable regulations of the City of Huntsville, Alabama, and that proposed grading as shown hereon complies with good engineering practice and further do certify that all erosion and sedimentation control measures as indicated hereon are designed to minimize the effects of erosion and sedimentation on site.

_____	_____
Date	Engineer of Record

I, _____, City Engineer for the City of Huntsville, Alabama, approve of the design and the construction plans for grading and erosion and sedimentation control as shown in these plans.

_____	_____
Date	City Engineer City of Huntsville, Alabama

E. *The street plan.* The street plan shall be in compliance with the "City of Huntsville Stormwater Management Manual" and all other applicable regulations of the City of Huntsville. The street plan shall be comprised of plan views and profiles of all proposed streets, cross sections of all proposed streets, and a typical cross section detail.

(i) The plan view and profile map(s) shall be drawn at a horizontal scale

not to exceed 50 feet to the inch and a vertical scale not to exceed ten feet to the inch and shall include:

a. Location of existing or proposed streets adjacent to the subdivision, including all curb cuts, driveways, or intersections along both sides of boundary streets adjacent to the subdivision.

b. Widths of existing and proposed rights-of-way.

c. Street names to be approved by the planning commission.

d. Locations and specifications of all required traffic control devices and street name signs.

e. Topography at two-foot intervals unless a closer contour interval is required by the city engineer. In cases where slopes exceed 15 percent, a minimum contour interval of five feet may be shown.

f. Location and description of all required sidewalks and off-street pedestrian walkways.

g. Horizontal curve data from the centerline of each street: delta, angle, tangent and radius.

h. Vertical curve data including grades, elevations, point of vertical curvature, point of vertical intersection and tangents.

i. A table relative to sight distance affixed to the construction drawings following the format below:

Location	Direction	Sight Distance
Controlling Element	Design Speed	AASHTO Guidelines

j. Certificates executed as shown below:

"STREET SYSTEM"

To be certified by the engineer of record that the sight distance at any new street intersection meets the minimum AASHTO standards.

I, (Engineer of Record), Registered Engineer, certify that the intersection sight distance of any roadway constructed in conjunction with this subdivision meets or exceeds specifications as set forth in the prevailing AASHTO Standards to the best of my knowledge and belief.

_____ _____

Date Engineer of Record Registration Number

I, _____, the engineer of record, certify that the street system shown on this drawing meets the construction standards of the City of Huntsville and conforms to the design standards of the Huntsville Subdivision Regulations and applicable AASHTO geometric design policy. It is certified that the information shown hereon is true and correct to the best of my knowledge.

_____ _____

Date Engineer of Record Registration Number

I, _____, the City Engineer for the City of Huntsville, Alabama, approve of the design and the construction plans of the street system as shown in these plans.

_____ _____

Date City Engineer City of Huntsville, Alabama

I, _____, the Traffic Engineer for the City of Huntsville, Alabama, concur in the geometric design of the street system and the use of the street name(s) as shown in this drawing.

_____	_____
Date	Traffic Engineer City of Huntsville, Alabama

(ii) The cross sections of all streets shall be shown at a minimum interval of 50 feet. The horizontal scale shall not exceed ten feet to the inch and the vertical scale shall not exceed ten feet to the inch.

(iii) Typical cross section details of all proposed streets shall be shown (may be shown on detail sheet).

F. *The stormwater drainage and sanitary sewer plan.* The drainage and sanitary sewer plan shall be in compliance with the "City of Huntsville Stormwater Management Manual" and all other applicable regulations of the City of Huntsville and shall be accompanied by drainage area contour maps of not more than 400 feet to an inch showing the entire tributary area and separate drainage areas for each proposed drainage facility as well as a signed and sealed copy of all engineering calculations and notes used in the design of the storm drainage system. Drainage concentrations shall be indicated on the drainage area contour maps. The detailed storm drainage and sanitary sewer plan shall be prepared from an actual engineering survey and be drawn to a scale of not more than 50 feet to an inch. The detailed storm drainage and sanitary sewer plan shall show:

(i) All existing improvements within and bordering the proposed subdivision, including flood hazard districts, the location and size of all existing and proposed sanitary sewers in the subdivision, clear indication of sanitary sewer tie points of the subdivision and station location of all sewer laterals.

(ii) The proposed street plan and associated drainage system.

(iii) Designation of each drainage area and design flow for each storm drainage pipe or drainage facility.

(iv) Typical cross sections of each drainage way.

(v) Lengths of pipes of drainage facilities, slopes, facility sizes, materials, locations of inlets, manholes, junction boxes, and all information relative to the comprehensive drainage system including as much as is practical of the offsite drainage systems affected by the proposed subdivision.

(vi) Where fill is to be placed within flood fringe areas, a grading plan showing final elevations.

(vii) Profiles of the storm drainage and sanitary sewerage system drawn on cross-section or plan/profile paper at a scale not greater than 1″ = 50′ horizontal and 1″ = 10′ vertical showing slopes, facility sizes, materials, sanitary sewer crossings, and all other information pertinent to the storm drainage system and sanitary sewer system (may be included with street profiles on street plan/profile map).

(viii) Type, size and slope of sanitary sewer and storm drainage pipe, bedding details, direction of flow of each sewer and storm drainage line, and specifications for excavation, backfill, compaction and testing.

(ix) Location of each manhole and other sewerage system appurtenances including lift stations, oxidation ponds, treatment plants, etc.

(x) Engineering details of drainage structures and each sanitary sewer manhole and other sewerage system appurtenances including lift stations,

oxidation ponds, treatment plants, etc. (may be placed on detail sheets).

(xi) Proposed on-site sanitary sewer treatment facilities, whether privately owned or publicly dedicated, must meet all the design and performance standards as established for such facilities by the City Engineer of the City of Huntsville, Alabama.

(xii) Certificates executed as shown below:

"STORM DRAINAGE AND SANITARY SEWER SYSTEM"

I, _____, the engineer of record, certify that the storm drainage and sanitary sewerage systems shown on this drawing is designed in accordance with the specifications of the City Engineer of the City of Huntsville, Alabama, and the Huntsville subdivision regulations. It is certified that the information shown hereon is true and correct to the best of my knowledge. It is further certified that adequate storm drainage easements are provided, where necessary.

_____	_____
Date	(Engineer of Record) Registration Number

I, _____, the City Engineer for the City of Huntsville, Alabama, approve of the design and the construction plans of the storm drainage and sanitary sewerage systems as shown in these plans.

_____	_____
Date	City Engineer City of Huntsville, Alabama

"FLOOD HAZARD CERTIFICATE"

I, _____, the engineer of record, certify that the subdivision shown hereon lies within flood hazard area as shown on the Federal Insurance Administration's Flood Insurance Rate Maps for

_____	_____
(County/City)	(State)

Firm Panel # _____

Dated _____

Based on the current designation of floodway and flood fringe as established and adopted by the City of Huntsville the minimum finished floor elevation shall be _____.

G. *The septic tank plan* (if applicable). Where no sanitary sewer system is available, a septic tank plan shall be prepared showing:

(i) Location and capacity of all septic tanks proposed within the subdivision.

(ii) Soil type according to county soil survey.

(iii) Depth of soil if less than six feet.

(iv) Location of percolation test holes and results of percolation tests.

(v) Location of tile field and minimum length of tile runs.

(vi) Certificates executed as shown below:

"SEPTIC TANKS"

I, _____, the engineer of record or licensed land surveyor, certify that the percolation tests made above meet Health Department procedures and standards. I further certify that the above information is true and correct to the best of my knowledge.

_____ _____
Date (Engineer of Record) Registration Number

From the septic tank information submitted to the _____ County Health Department for lots _____ of _____ Subdivision, the following recommendations are made:

a) Lots _____ meet _____ County Health Department requirements and should operate satisfactorily;

b) Lots _____ require further engineering and/or alternative septic system installation;

c) Lots were not tested.

Each lot or tract shall be investigated further and approved or disapproved on its own merits.

_____ _____
Date Health Officer

_____
County, Alabama

H. *Utilities, except natural gas.* Each proposed subdivision shall receive a construction certification as described below for each of the following utility services requested:

County Water Authority

Huntsville Utilities Water Department

Huntsville Utilities Electric Department

Local Telephone Company

Local Cable TV Company

For each service requested, the engineer of record will provide the utility with a print and a reproducible copy of the proposed subdivision. The print will show: 1) elevations, 2) sanitary sewer, 3) storm drains, 4) sidewalks, 5) lot lines and measurements, 6) rights-of-way (with street names shown), 7) easements, 8) curbs and gutters, 9) lot and block numbers and 10) location of common trenches as required for subdivisions located within the slope development district as defined by the City of Huntsville Zoning Ordinance. The reproducible copy will show: 1) lot lines and measurements, 2) rights-of-way (with street names shown), 3) easements, and 4) lot and block numbers. For subdivisions requiring a geotechnical test, Huntsville Utilities will be provided with a copy of the Geotechnical Investigation and Testing Plan. Each utility from which service is requested shall provide the following certification on a copy of the preliminary plat or a set of related construction plans:

"(Name of Utility) SERVICE"

The _____ has reviewed the required submission material for the proposed subdivision in sufficient detail to determine that service can be made available. When improvements are completed, "as built" construction plans will be submitted to (the Huntsville Engineering Department).

_____ _____
Date Name and Title
Name of Utility

Additionally, for subdivisions in the slope development district as defined by the City of Huntsville Zoning Ordinance, each utility from which service is requested shall provide the following certificate on a copy of the preliminary plat or a set of related construction plans: The (utility service) approves of the location or the common trenches and the design and construction plans of the common trenches as shown in these plans.

_____ _____
Date Name and Title
Name of Utility

I. *Natural gas.* For proposed subdivisions not requesting natural gas service, the engineer of record will provide the natural gas department with prints and documents described in [subsection] 3.3(4)(H).

After review of the prints, the natural gas department shall provide the following statement on a copy of the preliminary plat or a related set of construction plans:

"NATURAL GAS SERVICE"

The Natural Gas Department of Huntsville has reviewed the required submission material for the proposed subdivision in sufficient detail to determine that service (can or cannot) be made available. The applicant, at the present time, does not request natural gas service for this subdivision. The Natural Gas Department reserves the right to consider gas service for this subdivision in the future.

_____ _____
Date Manager

J. *Wells.* For subdivisions not served by city or county water systems but where wells are proposed, a certificate as shown below shall be attached to a copy of the plat or a related set of construction plans showing the well locations.

"WELLS"

The location of wells as shown on this plat meets the requirements of the _____ County Health Department.

_____ _____
Date Health Officer

_____
County, Alabama

(5) *Recertification of changed plans.* Any changes in the construction plans, other than changes in the field approved by the city engineer, will require certification as for original approval.

(6) *Study of preliminary plat.* The subdivision committee shall consider the preliminary plat and construction plans and render a report to the next meeting of the planning commission concerning the preliminary plat.

(7) *Preliminary plat approval.* After the planning commission has reviewed the preliminary plat and construction plans, the report of the subdivision committee, public comments, and recommendations of involved agencies and officials, it shall approve or disapprove the preliminary plat.

(8) *Effective period of preliminary approval.* The approval of a preliminary plat shall be effective for a period of one year at the end of which time final approval on the subdivision must have been obtained from the planning commission, although the plat need not yet be signed and filed with the county judge of probate. Any plat not receiving final approval within the period of time set forth herein shall be null and void, and the developer shall be required to resubmit a new plat for preliminary approval subject to all new zoning restrictions and subdivision regulations.

3.4. Final plat.

(1) *Application procedure.* Following the approval of the preliminary plat, the owner of land or his representative shall file an application for approval of a final plat.

The application shall:

A. Be made on forms available at the office of the manager of planning.

B. Be accompanied by a minimum of three copies of the final plat as described in these regulations and complying in all respects with these regulations.

C. Be accompanied by the actual closure computations for the boundary traverse. Such boundary traverse shall close to a minimum accuracy of one part in 5,000.

D. Be presented to the manager of planning sufficiently in advance of the meeting of the planning commission to allow time for his review.

E. Be accompanied by a performance bond, if required, in a form satisfactory to the city attorney and in an amount established by the city engineer based upon cost estimates of the engineer of record.

F. Be accompanied by a digital submittal as described in [subsection] article 3.3(3)S., in compliance with all final plat requirements to the Geographic Information and Mapping Services (G.I.M.S.) department,

with electronic notification to the planning division, engineering division and Huntsville Utilities.

(2) *Final plat requirements.* The final subdivision plat shall be presented in india ink on tracing cloth or reproducible mylar. The final plat shall contain the same information shown on the preliminary plat, as well as the following:

A. The names and deed book and page of all adjoining property owners of record, or the names of adjoining developments; the names of adjoining streets.

B. Notation of any proposed streets and rights-of-way adjacent to the subdivision.

C. Notation of any restrictions by plats.

(i) Restricted use areas shall be shown giving dimensions and locations, and shall be labeled "Restricted Use Area".

(ii) A geotechnical investigation and testing report has been prepared for (name of development) as shown hereon and is recorded with the Office of the Probate Judge in Deed Book _____ page _____.

Due to the documented evidence of natural or man-made hazards and/or sensitive environmental features existing on or near lots _____, all required construction plans submitted for a building permit on any of the said lots shall be certified to by a geotechnical engineer as being adequate to meet the minimum required standards and practices for stability and bearing capacity as established by the regulations of the City of Huntsville, Alabama.

Prior to issuance of a certificate of occupancy on lots _____, all site construction and building construction shall be certified to by a geotechnical engineer as having been completed in compliance with the required standards and practices for stability and bearing capacity as established by the regulations of the City of Huntsville, Alabama, and as set forth in the aforementioned certified construction plans.

(iii) All hazard zone lands as defined by the Zoning Ordinance of the City of Huntsville, Alabama, shall be shown giving locations and dimension, and shall be labeled hazard zone.

D. Subdivisions shall have the lot size for each lot on the final plat.

E. All existing monuments and all monuments to be installed are to include the material of which the monuments, corners or other points are made and shall be noted at the representation thereof or by legend.

F. Endorsements and certificates as follows:

(i) A certificate of accuracy by a surveyor licensed to practice in the State of Alabama and licensed with the City of Huntsville, Alabama.

STATE OF ALABAMA

_____ COUNTY

I, (owner's land surveyor), do hereby certify that I am a licensed land surveyor and licensed in Huntsville, Alabama, and that I have surveyed the lands embraced in the within plat or map designated as (subdivision name) all lying within _____ County, Alabama. It is further certified that said plat or map is a true plat or map of lands embraced therein, giving the length and bearings of the boundaries of each block and lot and block number; showing the streets, alleys and public grounds; giving the bearings, length, width and name of each street; showing the relation of the lands to the government survey; (or, in the case of a resubdivision, "showing the relation of the land to the survey of _____ as recorded in the Probate Office of _____ County in Plat Book _____, Page

_____"); and that monuments shown hereon shall be installed at all lot corners and curve points prior to final inspection by the city engineer of the City of Huntsville, Alabama.

(ii) A certificate of title showing ownership of land.* I, (land owner) the owner of the lands embraced in said plat, hereby join in this certificate as required by law for the purpose of giving full force and effect to the platting of said lands embraced in said plat as contemplated and required by law. In witness whereof, said (owner's land surveyor), surveyor, and (land owner), owner, have caused these presents to be duly executed and hereunto set our hand and affix our seals this the _____ day of _____, 20_____.

*A written "Title Opinion" certified to by a licensed attorney that all names shown on the plat include all owners as of the date of signing and that the owners of the property are one and the same as those signing the plat.

(iii) A notary's acknowledgment of the certificates referred to in (i) and (ii) above.

STATE OF ALABAMA

_____ COUNTY

I, (name of notary public), a notary public in and for said county of said state, hereby certify that (owner's land surveyor) whose name is signed to the foregoing certificate and who is known to me, acknowledged before me on this day, that being informed of the contents of said certificate he has executed the same voluntarily on the day the same bears date.

(For Non-Corporate Ownership)

And I further certify that (land owner/owners, whose name/names are signed to the foregoing certificate who are known to me, acknowledged before me on this day that being informed of the contents of the foregoing certificate, they, as such land owners executed the same voluntarily.

In witness whereof, I hereunto set my hand and seal, this the _____ day of _____, 20_____.

(For Corporate Ownership)

And I further certify that (land owner), (title), (corporation) and (land owner), (title), (corporation) whose name(s) are signed to the foregoing certificate who are known to me, acknowledged before me on this day that being informed of the contents of the foregoing certificate, they, as such officers and with full authority executed the same voluntarily for and as the act of said corporation. In witness whereof, I hereunto set my hand and seal, this the _____ day of _____, 20_____.

_____
Notary Public

(iv) A certificate by the geotechnical engineer of record, for subdivisions requiring geotechnical investigation and testing:

Due to the documented evidence of potential geologic hazards existing on or near the lots shown hereon, I, _____, the geotechnical engineer of record having caused investigations and tests to be performed and based on the findings of said investigations and tests do hereby certify that all lots shown hereon exhibit no apparent geologic or geotechnical constraints which would render said lots unfit for development.

_____	_____
Date	Geotechnical Engineer of Record

(v) For developments where construction is proposed on lands or portions of lands which are designated as hazard zone as defined by the Zoning Ordinance of the City of Huntsville, Alabama, the following certifications:

ENGINEER OF RECORD

I, _____, the engineer of record, certify that the proposed development shown hereon is designed in accordance with sound engineering standards and practices, and in accordance with all applicable development regulations. I further certify that I have caused prudent investigation testing and inspections to be performed on all lands within the proposed development identified as hazard zone, as defined by the Zoning Ordinance of the City of Huntsville, Alabama, including geotechnical analysis and testing on all hazard zone lands and on lands upslope and downslope of the proposed development, and I have instructed the land surveyor as to those areas within the proposed development that fall within the hazard zone for inclusion in the development plats. Based upon the investigation, testing and inspections performed, as defined and discussed in the geotechnical analysis and report dated _____ and submitted in connection herewith, and further based upon any remedial measures taken in connection with the hazards defined therein, I certify that, within acceptable geotechnical standards, development of the property as shown on the plat will not diminish the stability of the slope or otherwise increase the likelihood of landslide or other slope failure and that the buildable areas designated hereon can meet a minimum safety factor of 1.5 for stability.

_____ _____

Date Engineer of Record

OWNER

I, _____, owner/owners of the lands embraced hereon, hereby certify that I have caused investigation in accordance with sound engineering standards and practice to be made of Hazard Zone lands, as defined by the Zoning Ordinance of the City of Huntsville, Alabama, within the development as shown hereon. I further understand the potential and inherent danger of said lands and that landslides have originated in conditions that regularly exist on said Hazard Zone lands. With this knowledge, I hereby certify that I have caused all prudent measures to be taken in the design of the development as shown hereon, including an analysis of all lands upslope and downslope of the Hazard Zone lands, to assure that the site is safe for the proposed development, and within acceptable geotechnical standards the proposed development will not diminish the stability of the slope or otherwise increase the likelihood of landslide or other slope failure.

_____ _____

Date Owner

(vi) A certificate for approval of City Engineer, City of Huntsville.

The undersigned, as City Engineer of the City of Huntsville, Alabama, hereby approved the within plat for the recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20_____.

_____
City Engineer
City of Huntsville, Alabama

(vii) A certificate for approval of Huntsville Utilities. The undersigned, a duly authorized representative of Huntsville Utilities of the City of Huntsville, Alabama, hereby approves the within plat for the recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20_____.

_____
Name and Title

(viii) A certificate for approval by the county health department for subdivisions not served by a sanitary sewer system.

From the septic tank information submitted to the _____ County Health Department for lots _____ of _____ Subdivision, the following recommendations are made:

a) Lots _____ meet _____ County Health Department requirements and should operate satisfactorily;

b) Lots _____ require further engineering and/or alternative septic system installation;

c) Lots _____ were not tested.

Each lot or tract shall be investigated further and approved or disapproved on its own merits.

The undersigned, a duly authorized representative of the _____ County Health Department, hereby approves the within plat for the recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20____.

_____
Name and Title

(ix) A certificate for approval by the planning commission.

The within plat of (name of subdivision), _____ County, Alabama, is hereby approved by the Planning Commission for the City of Huntsville, Alabama, for recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20_____. The recording must be accomplished by the day of _____, 20_____.

If the plat is not recorded by this date, the approval of the plat by the planning commission shall be deemed to have expired.

Planning Commission for the City of Huntsville, Alabama

By _____

Title _____

(x) A certificate for recording by the probate judge.

STATE OF ALABAMA

COUNTY PROBATE JUDGE

I, _____, Judge of Probate of the county and state aforesaid, certify that the within and foregoing instrument of writing was filed for record in this office on the _____ day of _____, 20 _____ at _____ o'clock and duly recorded in Plat Book _____, Page _____.

_____
Judge of Probate

(xi) A flood hazard certification as shown on the preliminary plat.

(xii) A certificate indicating that either all required improvements have been installed or that sufficient bond exists to cover the cost of improvements.

OPTION 1 - IMPROVEMENTS INSTALLED

I hereby certify that I have inspected the water system improvements for the subdivision shown hereon and that the installation is in accordance with the approved construction plans and plat for this subdivision and meets the construction specifications of the Water Department.

_____
Manager or Authorized Representative City of Huntsville Water Department, County Water System, or Local County Water System

I hereby certify that I have inspected the following improvements for the subdivision shown hereon: streets, sidewalks, storm drainage, sanitary sewer, traffic control devices, street markers, monuments. I find that these improvements have been installed in accordance with the approved construction plans and plat for this subdivision and meet the construction specifications of the City of Huntsville, Alabama.

_____
Engineer of Record

I hereby concur with and approve of the engineer's certification above.

_____
City Engineer
City of Huntsville, Alabama

OPTION 2 - POST BOND FOR IMPROVEMENTS

I recommend bond for assurance of installation of streets, storm drainage, sanitary sewers, sidewalks, traffic control devices and monuments as required in the approved construction plans and plat for the subdivision shown hereon shall be in the amount of $ _____.

_____
City Engineer
City of Huntsville, Alabama

I recommend bond for assurance of installation of water improvements as required in the approved construction plans and plat for the subdivision shown hereon shall be in the amount of $ _____.

_____
Manager or Authorized Representative City of Huntsville Water Department, County Water System, or Local County Water System

I hereby approve bond for assurance of improvements described above as required by the Huntsville Subdivision Regulations for the subdivision shown hereon in the amount of $ _____.

_____
City Attorney

I hereby received and placed on file with the City of Huntsville bond as initialed by the City Attorney in the amount of $ _____ for the subdivision shown hereon.

_____
City Clerk-Treasurer

(xiii) For planned developments and private subdivisions, additional certificates as necessary to insure adequate access for public protection and utilities as well as conformance to applicable plans and ordinance requirements.

(3) *Planning commission review and approval.* After review of final subdivision plat, the planning commission shall approve the plat for recording or shall disapprove the plat and state the reasons for disapproval. At the time of final plat approval, the planning commission may stipulate the time period when the required improvements shall be installed, but in no event shall the period of time for completion of required improvements exceed two years from the date of final approval.

(4) *Copy of final plat to all certifying agencies.* Following the planning commission approval of the final plat, one reproducible copy of the final plat as approved shall be presented by the owner or his representative to the Vice President of Operations of Huntsville Utilities. Any other agencies certifying the final plat shall be presented a print of the final plat as approved.

(5) *Recording of plat.* If the final plat as approved by the planning commission is not recorded within six months of the date of final approval, the approval of the plat shall be deemed to have expired.

ARTICLE 4. REQUIREMENTS FOR IMPROVEMENTS AND DESIGN

4.1. General requirements.

(1) *Conformance to applicable plans, rules and regulations.* In addition to the requirements established herein, all subdivision plats shall comply with the following plans, rules and regulations:

A. All applicable statutory provisions.

B. All elements of the Master Plan for the City of Huntsville, including all streets, drainage systems, and parks shown on the master plan, or individual elements thereof, as adopted.

C. The city zoning ordinance and building and housing codes, if applicable.

D. The requirements of the county and state health departments.

E. The rules of the Alabama Highway Department if the subdivision abuts a state highway.

F. The design and construction standards adopted by the City Engineer for the City of Huntsville, Alabama.

G. The geometric standards adopted by the City of Huntsville, Alabama.

H. All elements of the Huntsville Area Transportation Study adopted by the Metropolitan Planning Organization (MPO), if applicable.

(2) *Subdivision and street names.* The proposed names of subdivisions and streets shall not duplicate, or too closely approximate phonetically, the name of any street or subdivision covered by these regulations. The planning commission shall have final authority to designate street and subdivision names where conflicts exist with other established streets and subdivisions.

4.2. Blocks.

(1) The lengths, widths and shapes of blocks shall be determined with due regard to:

A. Provisions of adequate building sites suitable to the special needs of the type of use contemplated;

B. Zoning ordinance and/or health department requirements as to lot sizes and dimensions;

C. Needs for convenient access, circulation, control and safety of street traffic; and

D. Limitations and opportunities of topography.

(2) Blocks shall have sufficient width to provide for two tiers of lots of appropriate depths. Exceptions to this prescribed block width may be permitted in blocks adjacent to major streets, railroads, waterways, or in order to overcome specific disadvantages of topography and orientation.

(3) Block lengths in residential areas shall not exceed 2,200 feet. Wherever practicable, blocks along all arterial and major collector streets shall not be less than 1,000 feet in length.

(4) Pedestrian walkways not less than five feet wide, all of which shall be constructed with concrete, shall be required across blocks where deemed

essential to provide circulation or access to schools, playgrounds, shopping centers, transportation, and other community facilities. Such walkways, along with sufficient right-of-way for maintenance purposes, shall be dedicated to the city for public use.

4.3. Lots.

(1) The lot size, width, depth, shape and orientation, and minimum building lines shall be appropriate for the location of the subdivision and for the type of development and use contemplated.

(2) Lot dimensions shall conform to the requirements of the zoning ordinance and the requirements of the health department. In such cases where requirements may conflict, the larger requirements shall govern. In cases where no zoning requirements apply, all lots shall have no less than 25 feet of street frontage and no less than 50 feet of lot width at the required minimum building line.

(3) Depth and width of properties reserved or laid out for commercial and industrial purposes shall be adequate to provide for off-street parking and loading facilities required for the use contemplated.

(4) Corner lots for residential use shall have extra width to permit appropriate building setback from and orientation to both streets.

(5) Each lot shall be provided with adequate access to a public street. Lots shall not, in general, derive access exclusively from any street designated as an arterial or major collector street on the major street plan. Additionally, if access must be obtained from an arterial or major collector street, single family residential driveways shall be designed and arranged to avoid requiring vehicles to back into traffic. Multiple family residential driveways and drives serving all nonresidential land uses shall be designed and arranged to avoid requiring vehicles to back into traffic on all streets.

(6) Double frontage and reverse frontage lots shall be avoided except where essential to provide separation of residential development from arterials and major collectors or so as to overcome specific disadvantages of topography and orientation. The subdivider shall provide a minimum 15-foot wide nonaccess reservation with screening berms and screen plantings to include trees, shrubs and ground covers along the line of lots abutting such traffic collectors and arterials or other disadvantageous feature.

(7) In general, side lot lines shall be at right angles to street lines (or radial to curving street lines) unless a variation from this rule will give a better street or lot plan, as determined by the planning commission, and in no case shall a side lot line have more than one directional bearing, except for physical features requiring more than one directional bearing.

4.4. Monuments.

The applicant shall place permanent reference monuments in the subdivision as required herein and as approved by a registered land surveyor.

(1) Monuments shall be located on street right-of-way lines, at street intersections, angle points of curve and block corners. They shall be spaced so as to be within sight of each other, the sight lines being contained wholly within the street limits.

(2) The external boundaries of a subdivision shall be monumented in the field by monuments of concrete, not less than 30 inches in length, not less than four inches square or four inches in diameter, and marked on top with a cross, brass plug, iron rod, or other durable material securely embedded. In the event the surveyor finds an existing corner it will be at the surveyor's option whether it should or should not be replaced with a concrete monument; also, in the event that conditions exist that make concrete monuments impractical to install (such as solid rock), or impractical to witness, a survey marker with a chiseled cross, chiseled X, or chiseled point shall be securely embedded. These monuments shall be placed not more than 1,400 feet apart in any straight line and at all corners, at each end of all curves, at the point where a curve changes its radius, at all angle points in any line, and at all

angle points along the meander line, said points to be not less than 20 feet back from the bank of any river, stream, or major drainageway; except that when such corners or points fall within a street, or proposed future street, the monuments shall be placed in the side line of the street. Location of such monuments shall be shown on the final plat.

(3) A minimum of two concrete monuments as described in the preceding paragraph shall be placed in each separate block of the subdivision to be placed at lot corners within sight of each other for the purpose of horizontal control within the interior of the subdivision. Concrete monuments placed on the boundary of the subdivision falling within the limits of a block will serve to satisfy the above requirement.

(4) All internal boundaries and those corners and points not referred to in the preceding paragraph shall be monumented in the field by iron pipes and rods at least 18 inches long and one-half inch in diameter. These monuments shall be placed at all block corners and at each end of all angle points in any line.

(5) The lines of lots that extend to rivers, streams or major drainageways shall be monumented in the field by iron pipes at least 18 inches long and one-half inch in diameter or by round iron bars at least 18 inches long. These intersections shall be monumented by a witness corner established not less than 20 feet back from the bank of the river, stream, or major drainageway.

4.5. Roads.

(1) *Grading and improvement plan.* Roads shall be graded and improved and conform to the construction standards of the City of Huntsville and shall be approved as to design standards by the city engineer, in accordance with the construction plans required to be submitted prior to final plat approval. In no case shall cut or fill embankments, except in the case of stable rock cuts, exceed a maximum slope of two feet horizontal to one foot vertical unless retained by a structural wall or other approved retaining method.

(2) *Topography and arrangement.*

A. All streets shall be properly integrated with the existing and proposed system of thoroughfares and dedicated rights-of-way as established by the major street plan.

B. All thoroughfares shall be properly related to special traffic generators such as industries, business districts, schools, churches, and shopping centers; to population densities; and to the pattern of existing and proposed land uses.

C. Local streets shall be laid out to conform as much as possible to the topography, to discourage use by through traffic, to permit efficient drainage and utility systems, and to require the minimum number of streets necessary to provide convenient and safe access to property. A grid system of street layout is discouraged.

D. Subdivisions which abut or have included within the proposed area to be subdivided any major collector or arterial street shall provide:

(i) A marginal access street with a minimum 15 feet wide nonaccess reservation adjacent thereto with screening berms and screen plantings which shall include trees, shrubs and ground covers between the marginal access street and major collector or arterial, or

(ii) Reverse frontage with a minimum 15 feet wide nonaccess reservation with screening berms and screen plantings which shall include trees, shrubs and ground covers along the rear property line, or

(iii) Deep lots with rear service drives, and a minimum 15 feet wide screen planting reservation along the front property line which shall include

screening berms and screen plantings consisting of trees, shrubs and ground covers, or

(iv) Other treatment including screening fences or walls as may be necessary for adequate protection of residential properties and to afford separation of through and local traffic.

E. In business and industrial developments, the streets and other accessways shall be planned in connection with the grouping of buildings, location of rail facilities, and the provision of truck loading and maneuvering areas, and walks and parking areas so as to minimize conflict of movement between the various types of traffic, including pedestrian.

(3) *Reserve strips.* Unusable reserve strips controlling access to streets shall be prohibited. Land shall not be subdivided in a manner which omits part of the original tract to avoid drainage improvements.

(4) *Dead end roads.*

A. The arrangement of streets shall provide for the continuation of streets between adjacent properties when such continuation is necessary for convenient movement of traffic, coordinating the layout of the subdivision with the existing layout or most advantageous future development of adjacent tracts, effective access for emergency services including police, fire and ambulances, efficient provision of utilities, or where such continuation is in accordance with the major street plan. If the adjacent property is undeveloped and the street must be a dead end street temporarily, the street and right-of-way shall be extended to the property line.

B. Where a road does not extend to the boundary of the subdivision and its continuation is not required by the planning commission for access to adjoining property, its terminus shall normally not be nearer to such boundary than 50 feet. However, the planning commission may require the reservation of an appropriate easement to accommodate drainage facilities, pedestrian traffic or utilities. A cul-de-sac turnaround shall be provided at the end of a permanent dead-end street. For greater convenience to traffic and more effective police and fire protection, and emergency medical services, permanent dead-end streets shall, in general, be limited in length in accordance with the design standards of these regulations.

(5) *Design standards.*

A. *General design standards.* In order to provide for roads of suitable location, width, and improvement, to accommodate prospective traffic and afford satisfactory access to police, firefighting, sanitation, and road-maintenance equipment, and to coordinate roads so as to compose a convenient system and avoid undue hardships to adjoining properties, the following design standards for roads are hereby required. Road classification shall be as indicated on the major street plan or as determined by the planning commission.

TABLE 1
MINIMUM RIGHT-OF-WAY WIDTHS FOR MAJOR STREETS (in feet)*

IMPROVEMENT	*RESIDENTIAL*	*NONRESIDENTIAL*
Major Arterial	120	120
Minor Arterial	120	120
Major Collector	80	80
Minor Collector	60	60

*Minimum right-of-way may be reduced when:

1. The road adjacent to the development is classified as a major collector or an arterial, and
2. The road has been constructed to its planned number of lanes, with necessary pedestrian and traffic facilities, and
3. No improvements are scheduled for the road in the long range transportation plan (20-year plan).

In no event shall required right-of-way for an arterial or major collector be reduced to less than 60 feet.

TABLE 2
MINIMUM LANE WIDTHS FOR MAJOR STREETS (in feet)*

IMPROVEMENT	*RESIDENTIAL*	*NONRESIDENTIAL*
Major Arterial	12	12
Minor Arterial	11	12
Major Collector	11	12
Minor Collector	11	12

*Minimum lane width may be reduced to ten feet when in the judgement of the planning commission the road project and adjacent lands are best served by such a reduction without a loss to the road's utility or safety. Consideration shall be given to the following issues, but is not limited to these issues:

1. Existing natural features and terrain in and adjacent to the proposed right-of-way;
2. Existing structures located in and adjacent to the proposed right-of-way;
3. Functional classification of the road;
4. Design speed of the road; and
5. Utilization of the road by truck traffic.

No reduction in lane width may be granted without written justification from the city engineer and/or the traffic engineer stating the necessity of any requested reduction.

TABLE 3
MINIMUM RIGHT-OF-WAY AND PAVEMENT WIDTHS FOR OTHER STREETS (in feet)

IMPROVEMENT	*RIGHT-OF-WAY*	*PAVEMENT WIDTH*
Local	50	26*
Local in Slope Development District***	40	22**
Marginal Access Street	40	22
Rear Service Road	30	20

*The planning commission may require an additional three feet of pavement width upon recommendation by the traffic engineer pertaining to those local streets that either connect with collector or arterial streets, or for local streets which will connect with other (as yet to be developed) property(ies).

**No on-street parking shall be permitted on streets having a pavement width less than 26 feet.

***Cul-de-sacs exceeding 800 feet in length shall have a minimum right-of-way of 50 feet and minimum pavement width of 26 feet.

TABLE 4
MAXIMUM GRADES FOR ROADS (percent)

IMPROVEMENT	*RESIDENTIAL*	*NONRESIDENTIAL*
Major Arterial	5	5
Minor Arterial	5	5
Major Collector	6	6
Minor Collector	12	12
Local	12	12
Marginal Access Street	12	12
Rear Service Road	12	12

Minimum stopping sight distance; minimum curve radius; and minimum sight distance. Those geometrics dealing with vehicular safety shall be developed in accordance with the current edition of AASHTO (American Association of State Highway and Transportation Officials) geometric design policy for streets and highways which will include radius of curvature, length of vertical curve, and all applicable sight distances. Exceptions to AASHTO 25 m.p.h. design criteria requirements may be granted for cul-de-sacs and loop roadways serving 50 dwelling units or fewer (in mountainous terrain).

Minimum length of tangents between reverse curves shall be 100 feet. For collector streets and arterial streets, minimum length of tangents will be increased according to AASHTO geometric design policy.

Maximum length of cul-de-sac. (for residential and nonresidential). Eight hundred feet.

TABLE 5
MINIMUM RADIUS OF CUL-DE-SAC TURN-AROUND (in feet)

LOCAL	*RESIDENTIAL*	*NONRESIDEN-TIAL*
At right-of-way	50	50*
At pavement	37.5	37.5*

*Unless other design dimensions are required by the traffic engineer based on AASHTO geometric design policy.

B. *Parkway design standards.*

(i) In order to be designated as a parkway by the planning commission, a roadway must conform with all applicable regulations of these subdivision regulations except the requirement for curbs and gutters and must meet the following additional requirements:

a. Minimum required right-of-way* (in feet)

	Two lanes	*Four lanes*
Minor Collector	100	180
Major Collector	100	180
Minor Arterial	110	200
Major Arterial	110	200

*Right-of-way for four lanes may be required by the planning commission for parkways with initial two-lane construction if four lanes are to be required in the future based on projected traffic volume at full capacity.

b. Minimum required median width for four-lane parkways.

No less than a 20-foot-wide strip, exclusive of clear zones, shall be planted and maintained as described in (iii) landscaping requirements (below), provided however that all such plantings shall comply with adequate sight distance requirements.

c. Minimum shoulder width (in feet).

Minor Collector	8
Major Collector	8
Minor Arterial	10
Major Arterial	10

d. Access shall be limited to intersections with arterial and collector roadways with a minimum separation of one-quarter mile (1,320 feet) from centerline to centerline.

(ii) Minimum storm drainage requirements including:

a. The side slope requirement on man-made earth lined ditches shall be no greater than four feet horizontal to one-foot vertical.

b. Minimum grade along flow line of any constructed roadside drainage ditch shall be not less than one percent. Drainage ditches that cannot meet this criteria shall be piped or concrete flumed.

c. The engineer of record shall prepare an erosion control plan to indicate how erosion of bare ditches and drainage swales will be prevented. The entire drainage section shall be covered with an acceptable stand of grass and/or erosion control material approved by the city engineer to prevent erosion and sedimentation during and after construction.

d. The city engineer will require supporting data and calculations to determine that the drainage design conforms to the City of Huntsville regulations and requirements.

(iii) *Landscaping requirements.* Landscaped strips at least 20 feet deep and located on either side of the roadway at the periphery of the right-of-way shall be planted and maintained as follows:

Each planting strip shall contain the equivalent of one tree per 35 linear

feet of length of said strip spaced no more than 100 feet on center and no less than 15 feet on center, a minimum of 60 percent of which shall be locally adapted large type deciduous shade trees. In addition, each planting strip shall contain grass, permanent mulch beds, or other permanent vegetative ground cover on all parts of each said strip except where physically impracticable. All required plants shall be arranged in such a manner as to provide a variety of plant materials and spacings so that straight single species rows are minimized and vistas, view corridors, and spacial diversity are maximized. Additional plant materials are encouraged and may be planted, provided the minimum requirements for said plantings as listed above are met.

Existing vegetation may be credited in lieu of the required plantings so long as it can be proven that the existing vegetation is sound, in good health and meets or exceeds the landscaping intent of the minimum required plantings listed above.

Note: The term "maintained" shall mean the adequate performance of fertilizing, pruning, watering, and all other applicable actions including replacement, necessary to assure the health, soundness, vitality and good appearance of the required plantings for a minimum period of two years.

(iv) *Pedestrian facility requirements.* Pedestrian facilities separated from vehicular traffic shall be provided. The facilities shall be constructed of an all weather surface material and shall conform to the topography of the roadway and cause minimal disturbance to the natural environment. The placement and type of facility shall be approved by the planning commission upon recommendation of the traffic engineer.

C. *Mini-farm residential subdivision standards.* A mini-farm subdivision must conform with all applicable regulations of these subdivision regulations except the requirement for curbs, gutters and sidewalks and must meet the following additional requirements:

(i) *Density.* Each lot must contain a minimum of five acres.

(ii) *Lot widths.* Each lot must have a minimum width of 200 feet measured at a point 40 feet back from the street right-ofway.

(iii) *Roads:*

a. Minimum required right-of-way (in feet).

Minor Collector	100
Local	80

b. Minimum improved shoulder width (both sides, in feet).

Minor Collector	6
Local	4

c. Minimum lane width is 12 feet.

(iv) *Minimum storm drainage requirements:*

a. The city engineer will require supporting data and calculations to determine that the drainage design conforms to the City of Huntsville regulations and requirements.

b. Ditches shall be designed to carry the ten-year storm without flooding beyond the top of the ditch bank.

c. Existing drainage courses including channels, streams, creeks and other waterways determined by the city engineer to be important for stormwater management in the City of Huntsville must be included

within a utility and drainage easement. The width of the utility and drainage easement shall be specified by the city engineer, but in no case shall the easement be less than the width of the drainage course from top of bank to top of bank plus 20 feet.

d. The maximum difference between the centerline of roadway and ditch flowline shall be three feet. On roadways with a design speed of 30 mph or less, roadside ditches shall have a minimum four feet horizontal to one-foot vertical front slope and back slope. Roadways with a design speed of greater than 30 mph shall have a minimum front slope of six feet horizontal to one-foot vertical and a minimum back slope of four feet horizontal to one-foot vertical.

e. Minimum grade along flowline of any constructed roadside drainage ditch shall be not less than one percent. Drainage ditches that cannot meet this criteria shall be piped or concrete flumed.

f. Driveway pipes shall be sized considering inlet control and outlet control to insure proper sizing. Minimum size of driveway pipes shall be 15 inches. City of Huntsville standard pipe headwalls shall be installed on all pipes according to city specifications. Safety ends or slope paved headwalls will be required.

g. The engineer of record shall prepare an erosion control plan to indicate how erosion of bare ditches and drainage swales will be prevented. The entire drainage sections shall be covered with an acceptable stand of grass and or erosion control material approved by the city engineer to prevent erosion and sedimentation during and after construction.

(v) *Plat restrictions:*

a. If a subdivision receives final approval as a mini-farm residential subdivision, plat restrictions shall be placed on the final plat to prohibit the further subdivision of such land into lots smaller than five acres or having a lot width of less than 200 feet.

b. No resubdivision of an approved mini-farm residential subdivision will be approved by the City of Huntsville Planning Commission which would create any lot less than five acres in size or having a lot width less than 200 feet at the required minimum building line, unless the approved mini-farm residential subdivision streets are redesigned and constructed to the road design standards as stated in article [subsection] 4.5 of these regulations and the sidewalk standards as stated in article [subsection] 4.6 of these regulations.

(6) *Modification of minimum design standards.*

A. Minimum design standards may be modified on a case-by-case basis for hardship or unique situation, provided that any modifications shall be consistent with vehicular speed and traffic expected on the subject street and that special conditions, such as special materials or signs and signals, may be prescribed in conjunction with modification of the standards.

B. In no event shall minimum standards be modified to allow rights-of-way less than 40 feet or pavement widths of less than 21 feet. Pavement width can be reduced to 21

feet only in locations where additional off-street parking is provided for common use equivalent to the number of parking spaces that would have been accommodated at the curb on a street of full roadway width. Such common parking shall be of approved all-weather surfacing.

C. In no event shall minimum standards be modified to allow any cul-de-sac to exceed 1,200 feet in length unless the number of dwelling units gaining access from said cul-de-sac would be 25 or fewer.

D. In no event shall minimum standards be modified to allow street grades greater than those listed below. The length of grade shall be the maximum distance allowed for the given grade and shall be based on AASHTO geometric design policy. Length of grade shall be measured along a constant slope from the end point of the first vertical curve to the beginning point of the next adjacent vertical curve.

Improvement	*Grade (in percent)*
Major arterial	11
Minor arterial	11
Major collector	15
Minor collector	15
Local	16
Marginal access street	16
Rear service roads	16
Cul-de-sac	18

(7) *Road dedication and reservations.*

A. The amount of right-of-way deemed reasonable to be required by dedication shall not exceed 120 feet in width. Along both sides of proposed arterial streets and major collector streets, it is also deemed reasonable to require an increased setback of up to 20 feet more than that required by the zoning ordinance.

B. Street systems in new subdivisions shall be laid out so as to eliminate or avoid new perimeter half streets. Where an existing half street is adjacent to a new subdivision, the other half of the street shall be improved and dedicated by the subdivider. The planning commission may authorize a new perimeter street where the subdivider improves and dedicates the entire required street right-of-way width within his own subdivision boundaries.

(8) *Road surfacing and improvements.*

A. The applicant shall construct roadways in accordance with the standards prescribed in these regulations; provided, however, that the applicant shall not be required to pay the full cost of any arterial or collector street, but shall participate in the cost of these improvements in the amount that a local street would cost if situated where such arterial or collector street is located. Adequate provision shall be made for culverts, drains, and bridges.

B. All road pavement, drainage improvements and structures, curbs, turnarounds, and sidewalks shall conform to all construction, design and geometric standards as adopted by the Planning Commission, Traffic Engineer, the City Engineer of the City of Huntsville, or the City of Huntsville and shall be incorporated into the construction plans required to be submitted by the applicant for plat approval.

C. All roads shall have standard "L" type curbs and gutters with appropriate underground drainage facilities placed on both sides of streets in accordance with the City of Huntsville specifications.

D. When a proposed subdivision abuts an existing noncurb and gutter road that is classified as an arterial or collector street on the major street plan of the City of Huntsville and no access to individual lots is permitted, curb and gutter for said road may not be required providing the following standards are met:

(i) Minimum right-of-way width (in feet):

Major arterial	140′
Minor arterial	140′
Major collector	100′
Minor collector	80′

(ii) Sidewalks shall be constructed as required by these subdivision regulations and shall be located on the lot side of drainage ditches.

(iii) All storm drainage facilities and systems shall be designed and constructed in conformance with the Stormwater Management Manual and the Standard Specifications for Construction of Public Improvements, and the following:

a. The side slope requirement on manmade earth lined ditches shall be no greater than four feet horizontal to one foot vertical.

b. The minimum grade along the flowline of any constructed roadside drainage ditch shall not be less than one percent. Drainage ditches that cannot meet this criteria shall be piped or concrete flumed.

c. The engineer of record shall prepare an erosion control plan to indicate how erosion of bare ditches and drainage swales will be prevented. The entire drainage section shall be covered with an acceptable stand of grass and/or erosion control material approved by the city engineer to prevent erosion and sedimentation during and after construction.

d. The city engineer will require supporting engineering data and calculations to determine that the drainage design conforms to the City of Huntsville regulations and requirements.

(9) *Intersections.*

A. Streets shall be laid out so as to intersect as nearly as possible at right angles. A proposed intersection of two new streets at an angle of less than 75 degrees shall not be acceptable. Not more than two streets shall intersect at any one point unless specifically approved by the planning commission.

B. Minimum radii of intersections of property lines at arterial and major street intersections shall be rounded with a radius of 35 feet. An increased radius may be required by the traffic engineer based on AASHTO geometric design policy, when the angle of intersection is less than 90 degrees or when the intersection involves an arterial or major street.

C. Proposed new intersections along one side of an existing street shall not be closer than 250 feet from centerline to centerline and, wherever practicable, shall coincide with any existing intersections on the opposite side of such street. Street jogs with centerline offsets of less than 125 feet shall not be permitted, except where the intersected street is a divided highway without median breaks at either intersection.

D. Intersections shall be designed to meet current AASHTO geometric design policy.

E. Where any street intersection will involve earth banks or existing vegetation inside any lot corner that would create a traffic hazard by limiting intersection sight distance, the developer shall cut such ground and/or vegetation (including trees) in connection with the grading of the public right-of-way to the extent deemed necessary to provide a sight distance consistent with design speed as specified by AASHTO geometric design policy.

(10) *Traffic control devices and street name signs.*

A. *Traffic control devices general.* All traffic control devices installed on public streets or public rights-of-way shall conform to the Alabama Manual of Uniform Traffic Control Devices. All materials used in the construction of these devices shall meet the State of Alabama Highway Department Standard Specifications for Highway Construction, The State of Alabama

Highway Department Special and Standard Highway Drawings, and current city standards.

B. *Traffic control device costs and associated easements.* For developments within the City of Huntsville, a licensed contractor shall be employed by the developer to install the traffic control devices and street name signs as required in the approved construction plans.

All medians and traffic islands, reserved as common space and not considered right-of-way, must be noted on the final plat as a permanent traffic control easement. Such easements must be reviewed by and approved by the city engineer.

At proposed signalized intersections, the first 50 feet of a private drive or street approach must be dedicated as a permanent easement to the city as measured from the flowline of the cross public street to provide for traffic signal loop detector placement.

Modification or relocation costs of existing traffic control devices, approved by the city engineer, will be the responsibility of the developer.

C. *Striping plans.* In order to facilitate striping of new streets or restriping of existing streets necessitated by development, striping plans, prepared by a registered professional engineer, must be submitted as part of the construction plans for the public improvements for approval by the city. If these plans require the addition, relocation and removal of pavement markings, the cost of these items will be borne by the developer.

D. *Street name signs.* Street names must be no greater than 12 characters in length, including spaces, and not phonetically or grammatically similar to any street name within Madison County or the City of Huntsville. Street names greater than 12 characters may be approved by the planning commission upon recommendation of the traffic engineer.

Developers are required to provide and to have installed street name signs on public and private streets in their development conforming to City of Huntsville specifications.

(11) *Street lights.* Installation of street lights shall be required in accordance with design and specification standards approved by the Huntsville Utilities and City Engineer.

4.6. Sidewalks.

(1) *Required improvements.*

A. Within the city limits sidewalks shall be included within the dedicated right-of-way of all roads as shown in table 2. Exceptions to this requirement may be permitted upon recommendation by the traffic engineer.

B. Sidewalks shall be improved in accordance with the construction standards of the City of Huntsville Engineering Division. A median strip of grassed or landscaped area at least 3½ feet wide shall separate all sidewalks from adjacent curbs; provided however, this distance may be reduced to two feet upon recommendation by the city engineer in order to overcome specific problems with topography or engineering design.

C. Sidewalks abutting all streets shall be constructed with curb ramps at intersections, and at other locations where curb cuts are made that would otherwise restrict access by wheelchair users.

(2) *Pedestrian accesses.* The planning commission may require, in order to facilitate pedestrian access from roads to schools, parks, playgrounds, or other nearby roads, perpetual unobstructed easements at least ten feet in width. Easements shall be indicated on the plat.

TABLE 2
SIDEWALKS REQUIRED

Type of Road	*Type of Development*		
	Residential	*Commercial*	*Wholesale / Industrial*
Arterial	Both sides 5 ft. wide	Both sides 5 ft. wide	*Optional
Major collector	Both sides 5 ft. wide	Both sides 5 ft. wide	*Optional
Minor collector	Both sides 4 ft. wide	Both sides 4 ft. wide	*Optional
Local**	Both sides 4 ft. wide	Both sides 4 ft. wide	*Optional
Marginal access street	One side 4 ft. wide	One side 4 ft. wide	*Optional

*Optional, except where pedestrian traffic is existing or anticipated from present developments or planned future developments, but where provided must conform to requirements of commercial development.

**For local streets located within the slope development district, sidewalks shall only be required on one side of the street and may only change sides of the street at intersections as recommended by the traffic engineer and approved by the planning commission.

Cross reference—Streets, sidewalks and other public places, ch. 23.

4.7. Drainage and storm sewers.

(1) *General requirements.*

A. The planning commission shall not approve any plat of a subdivision which does not make adequate provision for drainage of storm or flood water in accordance with a plan approved by the city engineer.

B. Storm sewers and drainage facilities shall be designed according to the City of Huntsville specifications by a professional engineer registered in the State of Alabama in accordance with an acceptable method of design using good engineering practices as approved by the city engineer. The design of the stormwater drainage systems shall insure the adequate handling of stormwater runoff and the adequate control of erosion and sedimentation through the use of properly sized and positioned drainage structures and facilities.

C. Lakes, ponds and similar facilities may be used to retain stormwater runoff to prevent or help drainage problems provided such facilities are in compliance with the stormwater management regulations promulgated by the city engineer and provided adequate provisions are made to control siltation and pollution. Lakes, ponds and similar areas may be accepted by the local government for maintenance as determined by the city engineer, if sufficient land is dedicated as a necessary part of the drainage control system.

D. Drainage improvements and installations shall be constructed within dedicated rights-of-way and utility and drainage easements shown on the subdivision plat as approved by the city engineer.

E. A licensed contractor shall be employed by the developer to install the drainage systems and facilities as shown in the approved subdivision. The work shall be accomplished according to the latest edition of the construction specifications and as directed by the city engineer.

(2) *Design considerations.*

A. The drainage plan shall consider the ultimate development of the drainage areas as determined by the current zoning on plats within the city or projected development patterns for plats outside the city limits.

B. Large drainage concentrations requiring large facilities or open ditches shall be avoided within the subdivision boundary if at all possible. Where existing natural concentrations containing significant drainage areas cross the proposed subdivision, the developer's engineer shall utilize the natural condition and dedicate sufficient easements through the subdivision to contain natural drainage courses.

C. All drainage structures shall be sized in every case to accommodate the specified design runoff from the entire upstream drainage area, whether the area lies inside or outside the subdivision. The city engineer shall evaluate the drainage facilities before approval to insure all drainage systems and facilities are sized correctly and comply with the construction specifications.

D. Off-site drainage improvements to handle the increased runoff from the proposed subdivision into existing drainage facilities and off-site drainage easements may be required before approval by the city engineer. New drainage facilities shall be planned as much as practical to discharge into existing adequate systems downstream. The city engineer shall study the effect of each subdivision on existing downstream drainage facilities outside the boundaries of the planned subdivision. In the case where the planned subdivision or development will overload existing facilities and/or increase existing drainage problems, the city engineer may withhold approval of the drainage plan until provisions have been made to correct the drainage problems.

(3) *Flood prone areas.* All local government rules and regulations pertaining to flood prone areas shall be observed when designing subdivisions. Particularly:

A. Subdivisions lying in whole or in part within recognized flood hazard areas shall be subject to the provisions of the City of Huntsville Zoning Ordinance Floodway-Floodway Fringe Regulations or the applicable county flood damage prevention ordinance or other applicable regulations adopted by the city engineer.

B. The boundaries of flood districts and hazard areas shall be as defined in the above-referenced ordinances. Any interpretation necessary shall be made by the city engineer.

C. Lands within a floodway shall not be subdivided or developed except that certain minimal grading and construction may be allowed to provide for public utility service and/or roadways to cross said floodway.

D. The city engineer shall prescribe on the plat minimum building floor elevations for structures located within flood districts where development is allowed.

E. In other areas determined to have poor drainage that is subject to periodic or possible flooding, the city engineer may require the developer to fill to heights which will be above the elevation of the maximum design flood as determined by the engineer of record or the city engineer.

Cross reference—Storm sewers, § 21-311 et seq.

4.8. Sanitary sewer facilities.

(1) *General requirements.* Adequate sanitary sewer facilities shall be provided for all subdivisions in a manner prescribed by applicable construction standards and specifications. All plans shall be designed in accordance with the rules, regulations, and standards of the city engineer, health department, and other appropriate agencies.

(2) *Public sanitary sewer facilities.* Where available, sanitary sewer facilities shall connect with public sanitary sewer facilities.

A. Sewers shall be installed to serve each lot and service connection laterals shall be installed to the future right-of-way line or easement line.

B. Sanitary sewer plans shall be made by a professional engineer registered in the State of Alabama in accordance with an acceptable method of design using good engineering practices as approved by the city engineer. All sanitary sewer lines shall be designed to handle the fully developed ultimate tributary population.

C. Installation of sanitary sewer facilities to be maintained by the local government shall be constructed within dedicated rights-of-way and utility and drainage easements shown on the subdivision plat as approved by the city engineer.

D. A licensed contractor shall be employed by the developer to install the sanitary sewer facilities as shown on the approved set of subdivision plans. The work shall be accomplished under the direction of and according to the construction specifications' latest edition and as directed by a qualified representative from the office of the city engineer. All work shall comply with the grades, lines, and data shown on the approved set of subdivision plans. Stubout locations shall be staked.

Cross reference—Sewers and sewage disposal, § 21-31 et seq.

4.9. Water facilities.

(1) Where a public water system is accessible the subdivider shall install adequate water facilities (including fire hydrants) subject to the specifications of the local authorities.

(2) In low-density developments, if a public water system is not available, drilling individual wells must be approved by the health department and Huntsville Utilities Water Department Manager.

(3) Fire hydrants shall be required for all subdivisions on public water systems. Fire hydrants shall be located no more than 500 feet apart and within 250 feet of any structure.

4.10. Utilities.

(1) All utility facilities including gas, electric power, telephone and CATV cables shall be planned and installed in accordance with the specifications of the local government and governing utility boards or authorities.

(2) All power and communication circuits within and installed directly to serve a development shall be placed underground and the developer shall make arrangements with the utility authorities for facilities to be placed underground as a condition to the approval of the subdivision plat or apartment site plan; provided, however, that underground wiring shall not be required if the planning commission finds that:

A. Installation underground would cause a public safety hazard;

B. All relevant factors, when taken together, indicate that the plight of the property is unique in that it cannot be put reasonably to the requirement of underground wiring.

(3) Proposed subdivisions located within the slope development district as defined by the City of Huntsville Zoning Ordinance shall locate all electric power, water utilities and natural gas if provided, and telephone and CATV cables in common trenches in accordance with the City of Huntsville Zoning Ordinance. Sanitary sewer may be located in the common trench upon approval by the city engineer. The location, design and specifications of common trenches shall be shown on the preliminary plat or related construction documents and approved by the local government and governing utility boards and authorities.

Cross reference—Utilities, ch. 26.

4.11. Easements.

(1) Easements shall be dedicated to the local government for the purpose of maintaining utility and drainage facilities and courses and containing the various systems which lie outside of

dedicated rights-of-way, including any easements necessary outside the boundaries of the proposed subdivision.

(2) Easements shall be provided along front, side, and rear lot lines as necessary for the provision and maintenance of drainage and utility systems. Unless otherwise approved by the City Engineer and the General Manager of Huntsville Utilities, minimum easement widths shall be as follows:

Side lot lines	10 feet total or 5 feet per lot
Rear lot lines	10 feet total or 5 feet per lot
Front lot lines	5 feet total

(3) Where a subdivision is traversed by a watercourse, drainageway, channel, or stream, or if such a proposed drainageway is needed for future drainage plans, there shall be provided a drainage easement or right-of-way conforming substantially with the lines of such existing or planned drainageway. The width of such drainage easement or right-of-way shall be sufficient to contain the ultimate channel and maintenance way sized for the entire tributary area upstream.

(4) Lots and easements shall be arranged in such a manner as to eliminate unnecessary easement jogs or off-sets and to facilitate the use of easements for drainage and other utility systems.

(5) For subdivisions abutting any sensitive lands, as designated by the planning commission, a minimum 15-foot wide nonaccess reservation containing natural tree cover and a buffer planting as defined herein shall be provided along said boundary. In areas where sufficient natural vegetative screening exists within said reservation, screen plantings may be reduced.

4.12. Nonresidential subdivisions.

In addition to the principles and standards in these regulations, which are appropriate to the planning of all subdivisions, the applicant for a nonresidential subdivision shall demonstrate to the satisfaction of the planning commission that the street, parcel, and block pattern proposed is specifically adapted to the uses permitted and takes into account other uses in the vicinity. The following principles and standards shall be observed:

(1) Proposed industrial parcels shall be suitable in area and dimensions to the types of industrial development permitted, unless the plat restricts the uses, in which case the parcels shall be suitable to the uses as restricted.

(2) Street rights-of-way and pavement shall be adequate to accommodate the type and volume of traffic anticipated to be generated thereupon.

(3) Special requirements may be imposed by the local government with respect to street, curb, gutter, and sidewalk design and construction.

(4) Special requirements may be imposed by the local government with respect to the installation of public utilities, including water, sewer, and stormwater drainage.

(5) Every effort shall be made to protect adjacent residential areas from potential nuisance from a proposed commercial or industrial subdivision, including the provision of extra depth in parcels backing on existing or potential residential development and the provision of a screen planting as defined herein along said boundaries.

(6) Streets carrying nonresidential traffic, especially truck traffic, shall not normally be extended to the boundaries of adjacent existing or potential residential areas.

4.13. Planned development.

Whenever the city council authorizes a planned development which entails the subdivision of land, a plat must be approved according to the procedures set forth herein. Requirements for improvements and design of such planned development shall conform to the provisions of the zoning ordinance and concept plan under which it was approved.

4.14. Building restrictions.

(1) If the subdivision does not lie within the force and effect of an existing zoning ordinance, the planning commission may require provision for minimum front, side, and rear yards, based upon the standards of the Huntsville Zoning Ordinance and Health Department regulations.

(2) A restricted use area shall extend a minimum of 50 feet from the following features:

A. *Landslides*. Setback measured from mapped boundary of landslide.

B. *Bluffs of greater than 20 feet of vertical relief*. Setbacks shall extend from a line defining the top and bottom of said bluff.

(3) A restricted use area shall extend a minimum of 25 feet from the following features:

A. *Cave entrances*. Setback measured from edge of cave entrance.

B. *Sinkholes*. Setback measured from edge of those sinkholes that exhibit three feet or greater depth of closed depression.

C. *Perennial springs*. Setback measured from perimeter of spring.

D. *Abandoned quarries*. Setbacks shall extend from the top and bottom of quarry face.

E. *Historical and archeological sites*. Setbacks shall extend from the boundaries of significant historical or archeological sites as determined by the Alabama Historical Commission.

Areas within the above minimum setbacks shall be retained in their existing state and be restricted from all development except for hiking trails, provided such trails neither create nor increase a public hazard, and except for certain minimal grading within said setback, provided the following conditions are met:

A. Minimal grading is required to construct public utility service and/or roadways to adjacent and/or additional properties;

B. No technically feasible alternative route or construction method exists.

4.15. Standards for geotechnical investigations and tests.

(1) *Subsurface exploration.*

A. For all proposed structures other than roadways, acceptable subsurface explorations shall be performed at a minimum rate of two per structure or four per study if only one structure is proposed.

B. For each proposed lot acceptable subsurface explorations shall be performed at a minimum rate of two per buildable area of each lot. Said subsurface explorations shall be adequately spaced to provide for a clear indication of the stability of the entire buildable area of each proposed lot.

C. For roadway construction, acceptable subsurface explorations shall be performed along the centerline of the proposed roadway at a maximum space of 500 linear feet throughout the length of the roadway. In cases where the proposed roadway is less than 2,000 linear feet in length, a minimum of four subsurface explorations shall be performed and spaced adequately to cover the length of the roadway.

D. Acceptable subsurface exploration methods include:

(i) Test pit excavations down to unweathered bedrock.

(ii) Soil (regolith) borings to unweathered bedrock.

(iii) Rock corings.

E. If unweathered bedrock is located at the surface of the buildable area of any proposed lot or any proposed area to be covered by a structure, as shown on the proposed plan, and no significant hazards have been documented or identified to exist within said area(s), the planning commission may waive the required subsurface explorations to be performed within those given buildable areas.

F. Rock corings shall include a minimum of five feet of rock coring per boring.

G. Soil (regolith) and rock classification for each subsurface exploration shall be per-

formed according to American Society for Testing and Materials (ASTM) procedures.

H. Each subsurface exploration shall be measured for ground water. Where necessary or required, piezometers shall be placed in the borings and measured periodically for high/low ground water tables.

I. Subsurface explorations shall be sufficient to reasonably determine thickness and type of all soils (regolith).

(2) *Soil properties.* Minimum soil properties tests shall be performed for each different soil or regolith type from each subsurface exploration having more than two feet of soil above bedrock and shall include:

A. Standard classification tests (ASTM).

B. Consolidation tests.

C. Shrink/swell potential.

D. Triaxial shear tests.

E. Atterberg liquid limit (measured for soil fraction smaller than the no. 40 sieve-fine sand and smaller).

F. Approximate mobility index (ratio of saturated water content of in-place or undisturbed soil to its Atterberg liquid limit).

G. A separate sample for each soil sample analyzed shall be held by the geotechnical engineer for a minimum of 90 days or until all roadway construction is complete (whichever is longer) and shall be analyzed for additional tests if required or shall be made available for tests by an independent agency. Each soil sample shall be placed in a separate waterproof container to retain moisture and prevent contamination.

(3) *Slope stability and structural analyses (multiple analyses).* Multiple analyses shall be performed on all fill slopes and all cut slopes of greater than four feet vertical relief in soil and should be performed on the best, worst, and average soil and embankment conditions as determined on site by the geotechnical engineer.

A. Sliding wedge and slip circle analyses shall be performed on the uphill side of excavation embankments.

B. Slip circle analyses shall be performed on all fill embankments.

C. Based on the analyses, the lowest safety factors shall be reported for each method along with all of the design conditions.

D. Structural performance should be analyzed with respect to bearing capacity and settlement.

4.16. Design standards.

A. A minimum safety factor for stability of 1.5 must be documented with adequate data, including triaxial shear tests, multiple analyses (sliding wedge, infinite slope and slip circle analyses) and confident ground water (piezometer) measurements and control.

B. A minimum safety factor of 3.0 shall be required for bearing capacity.

ARTICLE 5. ASSURANCE FOR COMPLETION AND MAINTENANCE OF IMPROVEMENTS

5.1. Improvements and performance bond.

(1) *Completion of improvements.* Before the plat is signed by the chairman of the planning commission, all applicants shall be required to complete, in accordance with the planning commission's decision and to the specifications of the city engineer, all the street, sanitary, and other improvements including lot improvements on the individual lots of the subdivision as required in these regulations, specified in the preliminary and final subdivision plats, and as approved by the planning commission.

(2) *Bonds to insure performance.*

A. The planning commission in its discretion may waive the requirement that the applicant complete all improvements prior

to the signing of the subdivision plat, and provide that, as an alternative, the applicant post a bond secured by an insurance company licensed by the State of Alabama, or a cash bond, or an irrevocable letter of credit from an approved lending institution, as approved by the legal department, at the time of application for final subdivision approval in an amount estimated by a registered professional engineer and approved by the city engineer, traffic engineer, and by the local utilities as sufficient to secure to the local government the satisfactory construction and installation of the uncompleted portion of required improvements. The bond or letter of credit shall also secure all lot improvements on the individual lots of the subdivision as required in these regulations.

B. Such bond or letter of credit shall comply with all statutory requirements and shall be satisfactory to the local government as to form, sufficiency, and manner of execution as set forth in these regulations. A bare signature bond will not be accepted by the local government. The period within which required improvements must be completed shall be specified by the planning commission in the resolution approving the final subdivision plat and shall be incorporated in the bond or letter of credit and shall not, in any event, be less than six months or more than two years from the date of final approval excepting sidewalk improvements which shall not be more than three years from the date of final approval.

If the improvements are not completed within the period specified by the planning commission, the approval may be deemed to have expired, or, with the consent of the city council, the bond or the letter of credit shall be forfeited or invoked, as the case may be, to complete the improvements as provided by the final subdivision plat.

C. Sidewalk improvements may be secured by a bond or letter of credit for a period of one year after the initial three year bond or letter of credit has elapsed. Any such one year extension may only be made upon a finding by the City of Huntsville Inspection Division that no more than 75 percent of the total lots as shown on the recorded subdivision plat have been issued certificates of occupancy and a finding by the City of Huntsville Traffic Engineer that the delay in the completion of sidewalk improvements will not be detrimental to the public safety. Requests to the planning commission for further one year extensions of bonds or letters of credit insuring the completion of sidewalk improvements may be made, however each request must be accompanied by the abovementioned findings from the Inspection Division and City of Huntsville Traffic Engineer.

D. Existing subdivisions that have received final plat approval of the planning commission prior to June 20, 1989 but have not yet had their public improvements accepted for dedication by the local government may offer such improvements for dedication when all required public improvements, with the exception of sidewalks, have been completed and constructed in accordance with the standards and specifications as stated in the subdivision regulations. In such cases, the public improvements may be accepted for public dedication on the condition that the applicant post a bond or letter of credit that complies with all statutory requirements and is satisfactory to the local government as to form, sufficiency and manner of execution as set forth in this regulation and is in an amount sufficient to cover the cost of constructing the unbuilt portions of sidewalks. The maximum duration of said bond or letter of credit shall be two years from the effective date of said bond or letter of credit. An additional one year bond or letter of credit may be posted to secure sidewalk improvements after the initial two year bond or letter of credit has elapsed upon a finding by the city inspection division that no

more than 50 percent of the total lots, as shown on the recorded subdivision plat, have been issued certificates of occupancy and a finding by the City of Huntsville Traffic Engineer that the delay in the completion of the sidewalk improvements will not be detrimental to public safety. Requests for further one year extension of bonds or letters of credit insuring the completing of sidewalk improvements may be requested, however, each request must be accompanied by the above-mentioned findings from the City Inspection Division and City of Huntsville Traffic Engineer.

(3) *Cost of improvements.* Unless otherwise specified, all required improvements shall be made by the applicant, at his expense, without reimbursement by the local government or any improvement district herein.

(4) *Acceptance of dedication offers.* Acceptance of formal offers of dedication of streets, public areas, easements, and parks shall be in accordance with the procedure established by the local government. The approval by the planning commission of a subdivision plat shall not be deemed to constitute or imply the acceptance by the local government of any street, easement, or park shown on said plat. The planning commission may require said plat to be endorsed with appropriate notes to this effect.

5.2. Inspection of improvements.

(1) *General procedure.* The city engineer shall provide for inspection of required improvements during construction and insure their satisfactory completion. If the city engineer finds upon inspection that any of the required improvements have not been constructed in accordance with the standards and specifications as outlined in these regulations, the applicant shall be responsible for completing the improvements. Wherever the cost of improvements is covered by a bond or letter of credit, the applicant and the bonding company or institution shall be severally and jointly liable for completing the improvements according to specifications.

(2) *Certificate of satisfactory completion for subdivisions with public improvements.* The applicant shall state in writing to the city engineer that to the best of his knowledge the public improvements have been completed as required. The applicant's engineer and his surveyor shall certify to the city engineer, through the submission of a letter of acceptance and detailed "as-built" engineering drawings of the subdivision, indicating location, dimensions, materials, and other information required by the planning commission or city engineer, that all public improvements have been constructed in accordance with the approved construction plans and with City of Huntsville specifications and that the improvements have been completed, are located within the dedicated and platted easements and/or rights-of-way, and are ready for dedication to the local government. For subdivisions where construction occurred on lands or portions of lands which are designated as hazard zone as defined by the Zoning Ordinance of the City of Huntsville, Alabama, the following certifications shall be affixed to the letter of acceptance and the "as-built" engineering drawings of the subdivision:

ENGINEER OF RECORD

I, _____, the engineer of record, certify that the proposed development shown hereon is designed in accordance with sound engineering standards and practices, and in accordance with all applicable development regulations. I further certify that I have caused prudent investigation, testing and inspections to be performed on lands within the proposed development identified as hazard zone, as defined by the Zoning Ordinance of the City of Huntsville, Alabama, including geotechnical analysis and testing on hazard zone lands and on lands upslope and downslope of the proposed development. Based upon the investigation, testing and inspections performed, as defined and discussed in the geotechnical analysis and report dated _____ and submitted in connection herewith, and further based upon any remedial measures taken in connection with the hazards defined therein, I certify that within acceptable geotechnical standards, development of the property as shown on the plat does not diminish the stability of

the slope or otherwise increase the likelihood of landslide or other slope failure.

_____ _____
Date Engineer of Record

OWNER

I, _____, owner/owners of the lands embraced hereon, am fully aware of the existence of Hazard Zone lands, as defined by the Zoning Ordinance of the City of Huntsville, Alabama, within the development as shown hereon. I further understand the potential and inherent danger of said lands and that landslides have originated in conditions that regularly exist on said Hazard Zone lands. With this knowledge, I hereby certify that I have caused prudent measures to be taken in the design of the development as shown hereon, including an analysis of lands upslope and downslope of the Hazard Zone lands, to assure that the site is safe for the proposed development, and within acceptable geotechnical standards the proposed development does not diminish the stability of the slope or otherwise increase the likelihood of landslide or other slope failure.

_____ _____
Date Owner

Upon such approval and recommendation of the city engineer, the local government may thereafter accept the improvements for dedication in accordance with the established procedure.

However, the local government may accept for dedication a subdivision in which the required sidewalks are incomplete on the condition that the construction and installation of such sidewalks are secured by a bond or letter of credit as defined in section 5.1(2)A. and further provided that such bond or letter of credit guarantees completion of said sidewalks within three years of the date of final plat approval.

(3) *Certificate of satisfactory completion for private subdivisions.* The applicant shall state in writing to the city engineer that to the best of his knowledge the improvements have been completed as required. The applicant's engineer and his surveyor shall certify to the city engineer, through the submission of a letter of completion and detailed "as-built" engineering drawings of the subdivision, indicating location, dimensions, materials, and other information required by the planning commission or city engineer, that all improvements have been constructed in accordance with the approved construction plans and with City of Huntsville specifications and that the improvements have been completed and are located within the platted easements and/or rights-of-way. For subdivisions where construction occurred on lands or portions of lands which are designated as Hazard Zone as defined by the Zoning Ordinance of the City of Huntsville, Alabama, the engineer of record and owner certifications shall be affixed to the letter of completion and the "as-built" engineering drawings of the subdivision as exemplified in section 5.2(2) of these regulations:

The local government may approve a letter of completion for a subdivision in which the required sidewalks are incomplete on the condition that the construction and installation of such sidewalks are secured by a bond or letter of credit as defined in section 5.1(2)A. and further provided that such bond or letter of credit guarantees completion of said sidewalks within three years of the date of final plat approval.

(4) *Certificate of completion for subdivisions with public and private improvements.* For subdivisions with both public and private infrastructure improvements a certificate of satisfactory completion will be required for the public improvements following the procedure as stated in [section] 5.2(2) and a certificate of satisfactory completion will be required for the private improvements following the procedure stated in [section] 5.2(3).

(5) *Reduction or release of bonds.* The bond or letter of credit covering all public improvements may be reduced upon acceptance of all public improvements by the City of Huntsville. The bond or letter of credit covering all private improvements may be reduced upon approval of the letter of satisfactory completion by the City of Huntsville. The city engineer shall set the amount of the bond or letter of credit to be retained by the city

for a period of at least 12 months following the date of acceptance of public improvements and/or approval of letter of satisfactory completion for private improvements. The bond or letter of credit shall be released only upon receipt by the city engineer of a letter from the applicant's registered professional engineer stating that any improvements required by the City of Huntsville since the date of acceptance of public improvements and/or approval of letter of satisfactory completion for private improvements have been constructed in accordance with the approved plans and City of Huntsville specifications and are located within the dedicated and/or platted easements and/or rights-of-way. At such time, the city engineer shall recommend in writing to the city clerk-treasurer that the bond or letter of credit be reduced or released. The city engineer shall recommend the amount of the bond or letter of credit to be held as deemed necessary to insure that the improvements are completed and/or repaired or replaced and made acceptable to the City of Huntsville.

A bond or letter of credit covering sidewalk improvements, if posted, shall be released upon receipt by the city engineer of a letter from the applicant's registered professional engineer and land surveyor stating that the sidewalk improvements have been completed and have been constructed in accordance with the approved plans and City of Huntsville specifications and are located within the dedicated and/or platted easements and/or rights-of-way. At such time, the city engineer shall recommend in writing to the city clerk-treasurer that the bond or letter of credit be released if, in his opinion, the sidewalks have been satisfactorily completed.

(6) *Forfeiture of bonds.* If, during the period when the subdivision improvements are covered by a bond or letter of credit, the construction of said subdivision creates a situation that is harmful, dangerous or an unreasonable nuisance to an adjacent property owner and the applicant does not correct the situation in a timely fashion, or if the applicant responsible for constructing the subdivision improvements goes into receivership or is otherwise financially unable to complete said improvements, or if said applicant abandons or leaves said subdivision improvements uncompleted, then the city council may, at the recommendation of the planning commission, invoke said bond or letter of credit and direct that such work be completed so as to eliminate any dangerous, harmful, or unreasonable nuisance.

5.3. Deferral of required improvements.

The construction of specific required improvements may be deferred if the planning commission finds that:

(1) The improvement is likely to be destroyed while still in a good state of repair due to the planned upgrading or expansion of public facilities or to expected future private development adjacent to the site;

(2) The improvement would be so situated that it would be likely to deteriorate before it was put into service because it could not presently be used for its intended purpose;

(3) The improvement would require additional off-site easements or rights-of-way in order to be constructed to city standards;

(4) The improvement, if constructed concurrently with the subdivision, could create a situation hazardous to the health and/or safety of the public because of the nature of adjoining public or private features; or

(5) The city engineer or traffic engineer recommends that such improvement be deferred due to a unique characteristic or situation that would have the effect of nullifying the intent and purpose of the improvement if it were constructed.

If the planning commission so finds, then the applicant shall pay to the local government prior to the signing of the final subdivision plat a sum of money equal to the cost of constructing the deferred improvement as estimated by a registered professional engineer and approved by the city engineer.

ARTICLE 6. MINOR SUBDIVISION APPLICATION PROCEDURE AND PLAT REQUIREMENTS*

6.1. Definitions.

For the purpose of this article, the following definitions shall apply.

Existing paved public road or street shall mean one that has been accepted or opened as or otherwise has received the legal status of a public street or corresponds with a street shown on the official master plan or with a street on a subdivision plat approved by the planning commission or with a street on a street plat made by and adopted by the commission or with a street accepted by city council after submission to the planning commission.

Minor subdivision shall be defined as either:

(1) The division of a tract of land into no more than three lots all fronting on an existing paved public road and not requiring the construction or extension of any new roads or streets, municipal facilities or public improvements except sidewalks or water main extensions; or

(2) The division of a tract of land into lots all fronting on an existing paved public road, each of which shall be ten acres or more in size, for the purpose of selling said lots but not for the development of same, provided such subdivision shall not require the construction or extension of any new roads or streets, municipal facilities or public improvements except sidewalks or water main extensions.

(3) The division of a tract of land for the sole purpose of recording by plat certain conditions offered by the owner of the property and accepted by the planning commission in conjunction with a zoning or rezoning of land by the City Council of the City of Huntsville.

Public hearing officer shall be the Director of the Huntsville Planning Department or his duly authorized representative. The public hearing officer is authorized by the Huntsville Planning Commission to hold public hearings and grant final plat approval to minor subdivisions when the proposed plat has met all the provisions of these regulations and when the applicant requests that the approval procedure be conducted by the public hearing officer.

6.2. Review and approval procedure.

Whenever any minor subdivision of land is proposed, and before any permit for the erection of a structure in such proposed subdivision shall be granted or before the transfer of any lot shall be authorized, the subdividing owner, or his authorized agent, shall apply for and secure approval of such proposed minor subdivision in accordance with the following procedure.

6.3. Layout plat.

(1) *Application procedure.* Prior to minor subdividing of land, an owner of land or his representative shall file an application for approval of a layout. The application for approval of a layout shall:

A. Be made on minor subdivision application forms available at the office of the planning department.

B. Include payment of an application fee of $50.00 plus $1.00 per proposed lot.

C. Be accompanied by a minimum of three copies of the layout as described in these regulations and comply in all respects with these regulations.

D. Be accompanied by a vicinity map. For subdivisions within the city, the vicinity map shall show the existing streets, proposed subdivision boundaries, and surrounding area of the land to be subdivided, and shall be drawn on the City of Huntsville Planning Department zoning maps scaled 400 feet to the inch. For subdivisions outside the city, the vicinity map shall show generally the proposed subdivision boundaries and surrounding

*__Cross reference—__Common area maintenance agreement as an express condition precedent to final approval of any subdivision plat, app. B, § 1.8.

area of the land to be subdivided, and shall be drawn on a map scaled not greater than 2,000 feet to the inch.

E. Be presented to the manager of planning sufficiently in advance of the public hearing date to allow time for his review.

F. Be presented to the traffic engineer sufficiently in advance of the public hearing date to allow time for his review.

(2) *Layout requirements.* Layouts shall be drawn to a convenient scale of not more than 200 feet to an inch and shall show the following information:

A. Boundary lines of the subdivision.

B. Topography at five-foot contour intervals or less for subdivisions.

C. Location of existing streets and water courses.

D. Approximate locations and widths of rights-of-way.

E. Approximate locations and dimensions of all proposed lots.

F. Name of the proposed subdivision and of any adjoining subdivisions.

G. Approximate location of adjoining property lines or subdivision boundaries, and names of adjoining property owners or subdivisions.

H. Location of existing or proposed sidewalks. The requirements for sidewalks shall only apply when the subdivision adjoins the portion of a road that is scheduled to have a sidewalk installed according to the sidewalk improvement plan as adopted by the Planning Commission of the City of Huntsville.

(3) *Study of layout.* The subdivision committee shall consider the layout and render a report to the next regular meeting of the planning commission concerning the layout, unless the applicant has requested approval by the public hearing officer, in which case, the director and staff of the planning division shall review the layout for compliance with these regulations and report their findings to the public hearing officer.

(4) *Public hearing.* If the proposed minor subdivision layout meets all the provisions of these regulations, the applicant may request that the required public hearing be held by the public hearing officer; otherwise, the planning commission shall hold a public hearing prior to granting final approval. In either case, the owners of land immediately adjoining the platted land shall be notified by registered mail at least five days in advance of the public hearing as to the time and place of such public hearing.

(5) *Review and approval of layout.* If the layout is presented to the planning commission, that body shall study the layout, public comments, and the report of the subdivision committee, taking into consideration the requirements of the subdivision regulations. After review and discussion of this data, the planning commission will advise the applicant of the specific changes and additions, if any, it will require. If the layout is presented to the public hearing officer, he shall study the layout, public comments, and reports of officials to ascertain that the layout is in conformance in all respects with the regulations.

6.4. Final plat.

(1) *Application procedure.* Following the approval of the layout plat, the owner of land or his representative shall file an application for approval of a final plat. The application shall:

A. Be made on forms available at the office of the planning division.

B. Be accompanied by a minimum of three copies of the final plat as described in these regulations and comply in all respects with these regulations.

C. Be accompanied by the actual closure computations for the boundary traverse. Such boundary traverse shall close to a minimum accuracy of one part in 5,000.

D. Be presented to the manager of planning sufficiently in advance of the meeting of the planning commission or of the public hearing officer to allow time for his review.

(2) *Final plat requirements.* The final minor subdivision plat shall be presented on reproducible mylar. The final plat shall contain the same information shown on the layout plat, as well as the following:

A. The names and deed book and page of all adjoining property owners of record or the names of adjoining subdivisions; the names of adjoining streets.

B. Notation of any proposed streets and rights-of-way adjacent to the subdivision.

C. Notation of any restrictions by plats.

D. The area in square feet for each lot on the final plat.

E. Names of all streets.

F. Tie points to an accepted corner based on the U.S. Government Public Lands Survey System which shall show the relationship to the Huntsville Meridian; all monuments erected, all existing monuments, and all proposed monuments, corners and other points to be erected. The material of which the monuments, corners, or other points are or will be made shall be noted at the representation thereof or by legend, except that lot corners need not be shown.

G. Exact boundary lines of the tract indicated by a heavy line, or other acceptable control traverse, giving distances to the nearest hundredth of a foot and bearings to the nearest second of arc. Proper field techniques and survey equipment shall be used, along with an acceptable method of balancing the field data, to achieve a positional accuracy of 1/5,000 for all monuments established, corresponding to third order accuracy.

H. Street centerlines showing angles of deflection or bearing, angles of intersection, radii, length of tangents and rights-of-ways from each street centerline.

I. Lot lines with distances to the nearest hundredth of a foot, bearings and angles sufficient to reproduce the survey, and chords and radii of rounded corners.

J. Building setback lines, locations and depths.

K. Lot and block numbers. Blocks shall be consecutively numbered or lettered in alphabetical order. Lots within each block shall be consecutively numbered.

L. Easements, buffer strips and public service utility rights-of-way lines giving widths, locations, and purposes.

M. Accurate outlines and descriptions of any areas to be dedicated or reserved for public use or acquisition with the purpose indicated thereon; and of any areas to be reserved by deed, covenant for common use of all property owners.

N. Acreage and number of lots within the subdivision.

O. Names and addresses of the owner(s) of the land to be subdivided, the subdivider (if other than the owner), the engineer and surveyor.

P. The date of the map, a reference meridian (designated on the plat either true or magnetic north), scale, title of the subdivision.

Q. If within the 100-year flood elevation, the lowest allowable finished floor elevation for each lot.

R. Endorsements and certificates as follows:

(i) A certificate of accuracy by a surveyor licensed to practice in the State of Alabama and licensed with the City of Huntsville, Alabama.

(ii) A certificate of title showing ownership of land.

(iii) A notary's acknowledgment of the certificates referred to in (i) and (ii) above.

(iv) A certificate for approval of City Engineer, City of Huntsville.

(v) A certificate for approval of Huntsville Utilities.

(vi) A certificate for approval of the City of Huntsville Traffic Engineer.

(vii) A certificate for approval by the planning commission.

(viii) A certificate for recording by the probate judge.

(ix) A certificate for approval by the county health officer for subdivisions not served by a sanitary sewer system.

(x) Flood certification stating the flood hazard areas located within the boundaries of the proposed subdivision.

(xi) The endorsements, dedications, and certificates required in (i) through (xi) hereof shall be substantially as exemplified in section 3.4(2)(F.) of the subdivision regulations, except for (vi) and (ix) which shall be substantially as follows:

"The undersigned, as Traffic Engineer of the City of Huntsville or his duly authorized representative, hereby approves the within plat for the recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20_____."

_____ _____
Traffic Engineer Date

"From the septic tank information submitted to the _____ County Health Department for lots _____ of _____ subdivision, the following recommendations are made:

a) Lots _____ meet _____ County Health Department requirements and should operate satisfactorily;

b) Lots _____ require further engineering and/or alternative septic system installation;

c) Lots _____ were not tested.

Each lot or tract shall be investigated further and approved or disapproved on its own merits.

The undersigned, a duly authorized representative of the _____ County Health Department, hereby approves the within plat for the recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20____.

_____
Name and Title

(3) *Planning commission review and approval.* After review of final plat, the planning commission or the public hearing officer shall approve the plat for recording or shall disapprove the plat and state the reasons for disapproval. The public hearing officer shall be required to act on the proposed plats at the regularly scheduled meeting or at an announced continuation of said meeting. At the time of final plat approval, the planning commission may stipulate the time period when any required improvements shall be installed, but in no event shall the period of time for completion of required improvements exceed two years from the date of final approval.

(4) *Appeal procedure.* Any decision rendered by the public hearing officer may be appealed to the full planning commission at its next regularly scheduled meeting by the applicant or by any owner of land immediately adjoining the platted land. Such appeal must be filed in written form with the city planning director within one working day of the public hearing officer's decision. A final plat approved by the public hearing officer shall not be recorded until the appeal period has lapsed.

(5) *Copy of final plat to all certifying agencies.* Following the planning commission or public hearing officer approval of the final plat, one reproducible copy of the final plat as approved shall be presented by the owner or his representative to the General Manager of Huntsville Utilities. Any other agencies certifying the final plat shall be presented a print of the final plat as approved.

(6) *Recording of plat.* If the final plat as approved by the planning commission or the public hearing officer and signed by the Chairman of the Huntsville Planning Commission is not recorded

within six months of the date of final approval, the approval of the plat shall be deemed to have expired.

6.5. Requirements for improvements and design of minor subdivisions.

Proposed plats for minor subdivisions must meet all applicable regulations of article 4 of the subdivision regulations.

6.6. Assurance for completion of improvements.

The provisions of article 5 of the subdivision regulations shall be applicable.

ARTICLE 7. REQUIREMENTS FOR LAND CONVEYANCE AMONG IMMEDIATE FAMILY MEMBERS

7.1. Definitions.

For the purposes of this article, the following definitions shall apply.

Immediate family member shall mean spouse, son, daughter, mother, father, grandparent, grandchildren, sister, brother, mother-in-law, father-in-law, sister-in-law, brother-in-law, son-in-law and daughter-in-law.

Public hearing officer shall be the Director of the Huntsville Planning Division or his duly authorized representative. The public hearing officer is authorized by the Huntsville Planning Commission to approve conveyances of land among immediate family members when all the provisions of these regulations are met and when the applicant requests that the approval procedure be conducted by the public hearing officer.

7.2. General requirements.

(1) The public hearing officer may grant applicable conveyances of land among immediate family members, but is not mandated to do so.

(2) Each lot must have frontage on a public paved street or road and conform to all applicable zoning standards for the district in which they are located.

(3) The following documents must be presented to the public hearing officer in order to qualify for consideration as land conveyance among immediate family members.

A. A notarized statement certifying to the family relationship of the parties involved in the land conveyance.

B. A survey of the subject property indicating the boundary of the entire parcel and the lots to be transferred to other family members certified by a land surveyor licensed to practice in the State of Alabama and licensed with the City of Huntsville.

C. A copy of a recorded deed for all necessary rights-of-way and easements as required by the city engineer.

(4) A public hearing on family land conveyance shall be held prior to approval of said land conveyance. If the proposed family land conveyance meets all of the provisions of these regulations, the applicant may request that the required public hearing be held by the public hearing officer; otherwise the planning commission shall hold a public hearing prior to granting approval. In either case, the owners of land immediately adjoining the surveyed land shall be notified by registered mail at least five days in advance of the public hearing as to the time and place of such public hearing.

Apartment Site Plan Submission Requirements

Plans for multiple family housing projects that contain two or more buildings per tract or lot, or that contain only one building with main entrances not oriented to directly face a street, shall be approved by the planning commission as required by the City of Huntsville Zoning Ordinance. The procedure for site plan review and approval by the planning commission shall be as follows:

(1) *Application procedure.* Before obtaining a building permit to construct multiple family housing projects described above, an owner of land or his representative shall file an application for approval of a site plan. The site plan application shall:

A. Be made on forms available at the office of the manager of planning.

B. Include payment of an application fee of $100.00 plus $5.00 per proposed dwelling unit.

C. Be accompanied by a minimum of three copies of the general plan as described in these procedures.

D. Be accompanied by one copy of the certified construction plans as described in these procedures.

E. Be accompanied by a vicinity map as described in these procedures.

F. Be accompanied by three copies of a boundary plat as described in these regulations.

G. Be accompanied by the actual closure calculations for the boundary traverse. Such boundary traverse shall close to a minimum accuracy of one part in 5,000.

H. Be presented to the manager of planning sufficiently in advance of the meeting of the subdivision committee of the planning commission to allow time for his review.

(2) *Vicinity map.* The vicinity map shall:

A. Be drawn on planning department zoning maps scaled 400 feet to the inch.

B. Show approximate boundary lines of the proposed project.

C. Show location of existing streets and watercourses.

D. Show the name of the proposed project.

E. Show the names and locations of adjacent owners or developments.

(3) *General plan.* The general plan shall be drawn to a convenient scale of not more than 50 feet to the inch and shall include the following:

A. The date of the map, a reference meridian (designated on the map as either true or magnetic north), scale, title of the project.

B. Names of the owners of the land to be developed, the developer (if other than the owner), the engineer, architect or landscape architect (if any), and surveyor.

C. Tie point to an accepted corner based on the U.S. Government Public Lands Survey System which shall show the relationship to the Huntsville Meridian, all monuments erected, corners and other points established in the field in their proper places.

D. Exact boundary lines of the tract indicated by a heavy line, or other acceptable control traverse, giving distances to the nearest hundredth of a foot and bearings to the nearest minute or second.

E. Topography at five-foot contour intervals.

F. Names of all public streets (if any) and private drives.

G. Easements, buffer strips and public utility right-of-way lines giving widths, locations, and dimensions.

H. Locations of buildings, giving distances between adjacent buildings, between buildings and adjacent property lines, and between buildings and adjacent drives and parking areas.

I. Location and dimensions of internal circulation pattern and parking areas in order to determine adequacy of parking and accessibility to public services.

J. Detailed geometrics of any intersections with public streets, including details of any required median cuts and locations of any existing intersections adjacent to or across from the site.

K. Location of any internal public facilities, such as central solid waste collection containers or central mail facilities, not including facilities required in construction plans.

L. Location of public recreation and activity areas.

M. Location and dimensions of all proposed sidewalks in order to determine the adequacy of pedestrian circulation and accessibility to all proposed facilities.

N. Location and description of all proposed landscaping.

O. Location of any on-site flood hazard districts (including a flood hazard certification).

P. A density table providing the following information: total square feet in the site, total square feet devoted to internal drives, total number of dwelling units allowed by the current zoning ordinance, total number of dwelling units proposed, total number of parking places required by the current zoning ordinance and total number of parking places proposed.

(4) *Construction plans.* The following shall be submitted:

A. A street plan if any public street is proposed as part of the development. The plan shall conform to the requirements of street plans required for subdivision approval and shall be accompanied by a deed dedicating the proposed right-of-way to the public.

B. A grading and erosion and sedimentation control plan. The plan shall conform to the requirements of the grading and erosion and sedimentation control plan required for subdivision approval and shall show existing and finished elevations, including finished floor elevations for all buildings.

C. Plans and certifications for drainage, sanitary sewer, water, electricity, gas and telephone systems conforming to requirements for preliminary plat approval for subdivisions.

D. Other plans including slope map, site assessment map and report, geotechnical investigation and testing plan and report and vegetation plan as required by applicable regulations of articles 3 and 4 of the subdivision regulations.

(5) *Boundary plat.* The boundary plat shall be drawn to a convenient scale of not more than 100 feet to the inch and shall include the following:

A. The names and deed book and page of all adjoining property owners of record or the names of adjoining subdivisions; the names of adjoining streets.

B. Notation of any restrictions by plats, including the density table as described in [sub]section (3)P of this chapter.

C. Names of all internal and adjacent streets.

D. Tie points to an accepted corner based on the U.S. Government Public Lands Survey System which shall show the relationship to the Huntsville Meridian; all monuments erected, all existing monuments, and all proposed monuments, corners and other points to be erected. The material of which the monuments, corners, or other points are or will be made shall be noted at the representation thereof or by legend.

E. Exact boundary lines of the tract indicated by a heavy line, or other acceptable control traverse, giving distances to the nearest hundredth of a foot and bearings to the nearest second of arc. Proper field techniques and survey equipment shall be used, along with an acceptable method of balancing the field data, to achieve a positional accuracy of 1/5,000 for all monuments established, corresponding to third order accuracy.

F. Street centerlines for all internal and adjacent public streets, showing angles of deflection or bearing, angles of intersection, radii, length of tangents and rights-of-ways from each street centerline.

G. Easements, buffer strips and public service utility rights-of-way lines (if any) giving widths, locations, and purposes.

H. Names and addresses of the owner(s) of the land included within the apartment site plan, the developer (if other than the owner), the engineer and surveyor.

I. The date of the map, a reference meridian (designated on the plat either true or magnetic north), scale, title of the development.

J. Endorsements and certificates as follows:

(i) A certificate of accuracy by a surveyor licensed to practice in the State of Alabama and licensed with the City of Huntsville, Alabama.

(ii) A certificate of title showing ownership of land and a written "Title Opinion" certified to by a licensed attorney that all names shown on the survey include all owners as of the date of signing and that the owners of the property are one and the same as those signing the plat.

(iii) A notary's acknowledgment of the certificates referred to in (i) and (ii) above.

(iv) A certificate for approval of City Engineer, City of Huntsville.

(v) A certificate for approval of Huntsville Utilities.

(vi) A certificate for approval of the City of Huntsville Traffic Engineer.

(vii) A certificate for approval by the planning commission.

(viii) A certificate for recording by the probate judge.

(ix) A certificate for approval by the county health officer for developments not served by a sanitary sewer system.

(x) Flood certification as exemplified in article [subsection] 3.4(4)F(xi), "Flood Hazard Certification".

(xi) The endorsements, dedications, and certificates required in (i) through (xi) hereof shall be substantially as exemplified in section 3.4(2)(F.) of the subdivision regulations, except for (vi) and (ix) which shall be substantially as follows:

"The undersigned, as Traffic Engineer of the City of Huntsville or his duly authorized representative, hereby approves the within plat for the recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20_____.

_____
Name and Title

"From the septic tank information submitted to the _____ County Health Department for lots _____ of _____ subdivision, the following recommendations are made:

a) Lots _____ meet _____ County Health Department requirements and should operate satisfactorily;

b) Lots _____ require further engineering and/or alternative septic system installation;

c) Lots _____ were not tested.

Each lot or tract shall be investigated further and approved or disapproved on its own merits.

The undersigned, a duly authorized representative of the _____ County Health Department, hereby approves the within plat for the recording of same in the Probate Office of _____ County, Alabama, this the _____ day of _____, 20____."

_____
Name and Title

(6) *Review and approval of site plan.* The subdivision committee shall consider the site plan and render a report to the next meeting of the planning commission. After the planning commission has reviewed the site plan, the report of the subdivision committee, and recommendations of involved agencies and officials, it shall approve or disapprove the site plan. Reasons for disapproval of any site plan shall be noted on the plan and returned to the applicant.

(7) *Copy of site plan to certifying agencies.* After the planning commission has approved the site plan, one copy of the approved site plan shall be presented by the applicant or his representative to each of the agencies certifying the construction plans.

(8) *Deeds for rights-of-way and easements.* Prior to approval of the site plan by the planning commission, the owner shall submit the necessary properly executed deeds for all rights-of-way and utility and drainage easements requiring dedication.

(9) *Effective period of apartment site plan approval.* The approval of an apartment site plan shall be effective for a period of three years.

(10) *Recording of boundary plat.* If the boundary plat as approved by the planning commission and signed by the Chairman of the Huntsville Planning Commission is not recorded within six months of the date of approval, the approval shall be deemed to have expired. No building permit shall be issued until the recording of the boundary plat with the judge of probate.

APPENDIX

Adopted amendments to subdivision regulations since July 1991:

Resolution No.	*Date*	*Subject*
10-91	September 24,1991	Amendment to Article 5.1(2)B., Bonds to Insure Performance Duration of bonds
11-91	October 29, 1991	Amendment to Article 5.1(2)C. and D., Bonds to Insure Performance Extension of bonds insuring completion of sidewalks
17-91	January 8, 1992	Amendment to Article 6.1, Definitions - Minor Subdivision Definition of a minor subdivision
3-92	January 28, 1992	Amendment to Article 6.1, Definitions - Minor Subdivision by adding (3) Definition of a minor subdivision
13-92	June 23, 1992	Amendment to Article 4.10 - Utilities Underground wiring
14-92	July 28, 1992	Amendment to Article 3 and Apartment Site Plan Reorganization and compilation of required construction plans
19-92	July 28, 1992	Amendment to Article 3.2 - Layout, 3.3(4)H. Construction Plans, Utilities, Except Natural Gas. 4.10 - Utilities Common trenching within the Slope Development District
15-92	September 22, 1992	Delete references to the planning jurisdiction and county engineer
17-92	December 22, 1992	Amendment to Article 7 - Requirements for Land Conveyance Among Immediate Family Members Requirement that a public hearing be held prior to a Family Land Conveyance
2-93	February 23, 1993	Amendment to Article 4.5 - Roads (5) General Design Standards Reduction in minimum right-of-way requirements
19-93	November 23, 1993	Amendment to Article 4.5 - (5) General Design Standards

Resolution No.	*Date*	*Subject*
		Reorganization of Table 1 and substitution of "lane widths" for "pavement widths" for major streets
20-93	November 23, 1993	Amendment to Article 4.5(10) Traffic Control Devices and Street Name Signs Adding standards for said devices and signs
22-93	December 21, 1993	Amendment to Article 4.5(8) Road Surfacing and Improvements Requirement for curbs and gutters on existing non-curb and gutter streets
23-93	December 21, 1993	Amendment to Article 2.2 Words and Terms Defined and Article 4.5(5) Design Standards Definition and Standards for a Parkway
24-93	December 21, 1993	Amendment to Article 3.3(3) Preliminary Plats Requirements Requirements for geodetic control and references
4-94	August 23, 1994	Amendment to Article 5.1(2)B., Bonds to Insure Performance Allowing the initial posting of bonds for sidewalk improvements to be for a three-year period
5-94	August 23, 1994	Amendment to Article 6.3(2)H. Layout Requirements Deletion of sidewalk improvements in minor subdivisions unless the subdivision adjoins the portion of a road that is scheduled to have a sidewalk installed according to the Sidewalk Improvement Plan
8-94	December 20, 1994	Amendment to Article 3.3(4)B.(vi), 3.3(4)D.(x), 3.3(4)E.(i)j., 3.4(2)F.(v), 5.2(2) Certifications for Engineer of Record and Owner Delete references to Huntsville Department of Transportation and Director of Department of Transportation and change to Traffic Engineer

Resolution No.	*Date*	*Subject*
8-96	April 23, 1996	Amendment to Article 4.5(5) Table 3 Requiring cul-de-sac exceeding 800′ in length in Slope Development District to have 50′ right-of-way and 26′ pavement width
8-96	April 23, 1996	Amendments to Article 4.5(6)B, C and D. Modification of Minimum Design Standards Allowing cul-de-sac length in excess of 1200′ if 25 dwelling units or less gain access from said cul-de-sac
9-96	April 23, 1996	Amendment to Article 4.14(2) and (3) Building Restrictions Reducing minimum restricted use area setbacks to 25′ on certain features
9-96	April 23, 1996	Amendment to Articles 3, 4 and 5 Delete references to Mountainside Development District and "Level K" and change to Slope Development District and Hazard Zone
13-96	November 26, 1996	Amendment to Articles 3.3(4)G, 3.4(2)F and 6.4(2)R Certifications for County Health Departments
3-97	January 28, 1997	Amendment to Article 5.1(2)C Extension of sidewalk bonds allowable until over 75 percent of lots receive certificates
9-97	October 28, 1997	Amendment to Article 3.3(4)G, 3.4(2)F and 6.4(2)R Certifications for County Health Dept.
9-97	October 28, 1997	Amendment to Article 3.4(2)F(iii) Notary acknowledgment of non-corporate ownership certificate
9-97	October 28, 1997	Amendment to Article 5.2(2) Certificate of satisfactory completion concerning three-year sidewalk bonds
2-98	April 28, 1998	Amendment to Article 4.5(5) Add standards and requirements for mini-farm residential subdivisions
4-98	May 26, 1998	Amendment to Article 3.3(1), 3.3(3), 3.4(1)

Resolution No.	*Date*	*Subject*
		Requiring digital submittals of subdivision plans
8-98	July 28, 1998	Amendment to Apartment Site Plan Submittal
		Requiring boundary plat submittal
10-98	November 24, 1998	Amendment to Article 5
		Add certificate of satisfactory completion requirements for private subdivisions

CODE COMPARATIVE TABLE

1982 CODE

This table gives the location within this Code of those sections of the 1982 Code, which was current through February 12, 1981, that are included herein. Sections of the 1982 Code, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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This table gives the location within this Code of those ordinances adopted since the 1982 Code, which was current through February 12, 1981, that which are included herein. Ordinances adopted prior to such date were incorporated into the 1982 Code. This table contains some ordinances which precede February 12, 1881, but which were never included in the 1982 Code, as supplemented, for various reasons. Ordinances adopted since February 12, 1981, and not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

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08-318	6-26-2008	1		3.1
08-429	6-26-2008	1	Added	10.7
		2	Added	11.6
		3	Added	12.6
		4	Added	13.6
		5	Added	14.6
		6	Added	15.7
		7	Added	16.5
		8	Added	17.3
		9	Added	20.1.3(6)
		10	Added	21.7
		11	Added	22.5
		12	Added	80.9
		13	Added	81.7
08-529	8-14-2008	1		App. A, § 3.1
		2		App. A, 73.1.2

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08-531	8-14-2008	1		App. A, § 72.4.11(4)(b)
08-651	7-31-2009	1		22-87
08-776	8-28-2008			2-221
08-778	8-28-2008	1, 2	Added	7-7
08-779	8-28-2008		Added	2-2101
08-1017	11- 6-2008	1		5-6
08-1206	1- 8-2009			7-702(a)
09-242	3-26-2009	1		12-231
		2		Ch. 12, Art. V, Div. 3(tit.)
		3		12-297
09-243	3-26-2009	1		3-5
09-245	3-26-2009			2-1651
09-389	5-14-2009	1	Added	5-170—5-176
		2		5-5
09-430	7- 9-2009	1	Rpld	App. A, §§ 70.1, 70.2
			Added	App. A, §§ 70.1, 70.2
		2		App. A, § 71.4.3(4)
		3		App. A, § 20.3
		4		App. A, § 21.4
		5		App. A, § 24.3.1
		6		App. A, § 24.5
		7	Rpld	App. A, § 24.6
		8	Rnbd	App. A, § 24.7
			as	App. A, § 24.6
		9		App. A, § 25.4
		10	Added	App. A, § 25.5
		11	Rnbd	App. A, §§ 25.5—25.7
			as	App. A, §§ 25.6—25.8
		12		App. A, § 42.3.3
		13		App. A, § 42.6
		14		App. A, § 43.6
		15		App. A, § 44.3.1
		16		App. A, § 44.5
		17		App. A, § 45.6
		18		App. A, § 46.4.4
		19		App. A, § 46.7
		20		App. A, § 50.6
		21		App. A, § 51.3.3
		22		App. A, § 51.6
		23		App. A, § 52.3.3
		24		App. A, § 52.6
		25		App. A, § 60.5.1
		26		App. A, § 64.3.1
		27		App. A, § 64.5
		28		App. A, § 66.5
		29		App. A, § 81.3
09-501	5-28-2009	1		5-171(c)
09-510	7-23-2009	1		App. A, § 23.2(2)—(4)
		2	Added	App. A, § 23.6
09-622	7-23-2009			2-2101
09-735	8-27-2009	1—4	Added	2-2111—2-2114
09-813	10-22-2009	1	Added	App. A, Art. 54

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		2		App. A, § 72.4.5
09-815	12-17-2009	1	Added	App. A, § 73.22
		2		App. A, § 40.1
		3		App. A, § 41.1
		4		App. A, § 42.1
		5		App. A, § 44.1
		6		App. A, § 46.1
09-876	10- 8-2009	1		2-1732(a)
		2		2-1733
09-1051	12-17-2009	1		App. A, § 16.2(7)
09-1053	12-17-2009	1		App. A, §§ 10.1, 13.1, 14.1, 15.1, 16.1, 17.1, 20.1, 21.1, 23.1, 24.1.1, 25.1, 40.1, 41.1, 42.1, 43.1, 44.1, 45.1, 46.1, 50.1, 51.1, 52.1, 60.1, 61.2, 64.1, 66.1, 80.1, 81.1
		2	Rpld	App. A, § 15.4
			Rnbd	App. A, §§ 15.5—15.7
			as	App. A, §§ 15.4—15.6
		3	Rpld	App. A, § 20.1.2
			Rnbd	App. A, § 20.1.3
			as	App. A, § 20.1.2
		4	Added	App. A, § 22.1.3
		5		App. A, § 44.8.1
			Added	App. A, § 44.8.2
			Rnbd	App. A, §§ 44.8.2—44.8.4
			as	App. A, §§ 44.8.3—44.8.5
		6		App. A, §§ 73.7.1, 73.8.1
		7		App. A, §§ 92.5.3(8), 92.5.3(17), 92.5.3(27), 92.5.3(29)
09-1179	12-17-2009	1	Added	8-4
09-1208	12-17-2009			2-1422
10-65	2-11-2010			2-1402(b)
10-66	2-11-2010	1		22-87(c)(3)
10-178	4-22-2010	1		App. A, § 46.1
		2		App. A, § 73.22.2(1)—(3)
		3		App. A, § 73.22.3
10-180	4-22-2010	1	Added	App. A, § 92.5.3(30)
10-182	4-22-2010	1		App. A, § 40.1
10-186	3-25-2010	1		24-218(d)
		2	Added	24-218(e)
10-359	5-27-2010	1		9-51
		2		9-52
10-361	6-10-2010	1—12	Added	2-2131—2-2142
10-430	6-10-2010	1		18-31, 18-36
10-464	7-22-2010	1	Added	25-180—25-184
10-507	8-26-2010		Added	App. A, § 41.6

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		1	Added	App. A, §§ 76.1—76.3
		2		App. A, §§ 14.3, 15.3, 20.3, 21.4, 22.3, 24.5, 25.4, 40.3, 41.4, 42.6, 43.6, 44.5, 45.6, 46.7, 50.6, 51.6, 52.6
			Added	App. A, § 53.5.5
				App. A, §§ 54.7, 60.5, 61.6, 64.5, 66.5, 80.5, 81.3
10-607	8-26-2010	1		25-204
		2	Rnbd as	25-204—25-222 25-205—25-223
10-646	9- 9-2010		Added	2-159
10-675	9-23-2010	1		22-75
		2		22-182(a)
10-677	9-23-2010	1		5-41(a)(2)
10-678	9- 9-2010	1—3		24-218(b), (c), (e)
		4, 5	Added	24-218(f), (g)
10-739	10-14-2010		Added	25-245(f)
10-955	12-16-2010			25-163
11-11	2-24-2011	1	Added	App. A, §§ 75.1—75.6
		3		App. A, § 3.1
		4		App. A, § 20.1
			Added	App. A, § 20.7
		5		App. A, § 21.1
			Added	App. A, § 21.8
		6	Added	App. A, § 22.1.4
		7		App. A, § 23.1
			Added	App. A, § 23.7
		8		App. A, § 24.1
			Added	App. A, § 24.7
		9		App. A, § 25.1
			Added	App. A, § 25.9
		10		App. A, § 40.1
			Added	App. A, § 40.5
		11		App. A, § 41.1
			Added	App. A, § 41.7
		12		App. A, § 44.1
			Added	App. A, § 44.12
		13		App. A, § 53.1
			Added	App. A, § 53.12
		14		App. A, § 64.1
			Added	App. A, § 64.12
		15		App. A, § 92.5.3(2)
			Added	App. A, § 92.5.3(31), (32)
				App. A, § 92.5.3
11-116	12-15-2011	1		25-71
		2		25-75
		3		25-82
		4—8		25-85—25-89
		9—12	Added	25-90—25-93
11-258	5-12-2011	1	Added	19-43(1)a.5.
		2		19-43(1)b.1.

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11-259	5-12-2011	1		2-1402
		2		2-1403
11-375A	7-14-2011	1, 5	Added	26-1
11-376A	7-14-2011	1, 5	Added	26-2
11-514	8-11-2011	1		22-87(e)
		2	Added	22-87(h)
11-654	9-22-2011	1	Rpld	3-1—3-10, 3-51—3-59, 3-91, 3-92, 3-131—3-142, 3-171—3-177, 3-200—3-205
			Added	3-1—3-5, 3-21—3-26, 3-51—3-55, 3-81—3-91, 3-131—3-136, 3-171—3-174
11-713	9-27-2011		Added	2-321—2-324
11-714	9-27-2011		Added	2-291
11-715	9-27-2011		Added	2-292
11-895	1-26-2012	1		App. A, §§ 75.3.2—75.3.6 App. A, § 75.4.2
		2	Added	App. A, § 92.5.3(33)
11-897	1-26-2012	1		App. A, § 71.6.3
11-899	1-26-2012	1		App. A, § 3.1
		2		App. A, §§ 24.1.1, 40.1, 44.1, 64.1
		3		App. A, §§ 73.6, 73.8.1
12-60	3-22-2012	1	Added	18-1—18-12
12-293	4-26-2012		Rpld	8-151, 8-181—8-194, 8-211—8-218, 8-241—8-247, 8-271—8-277, 8-301—8-320, 8-341—8-343
			Added	8-151, 8-181—8-194, 8-211—8-219, 8-241—8-247, 8-271—8-277, 8-301—8-320, 8-341—8-344
12-333	5- 3-2012			25-163
12-356	6-28-2012	1		App. A, § 23.1
12-365	5-24-2012	1	Added	15-1—15-4
		2	Rpld	15-31—15-39, 15-41—15-62
			Added	15-31, 15-32, 15-36—15-46, 15-56—15-62, 15-73—15-76, 15-82—15-86
		3	Rpld	15-91—15-107

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			Added	15-91—15-95, 15-108, 15-109, 15-116, 15-117, 15-124—15-126, 15-131—15-133
		4		15-141
		5	Rpld	15-153
		6		15-155
		7		15-191
		8	Rpld	15-205
		9		15-207
		10	Rpld	15-241—15-255
		11, 12		15-300, 15-301
		13		15-304
		14	Rpld	15-314
		15		15-316
		16	Added	15-401
		17	Rpld	24-1, 24-31—24-43, 24-61—24-65, 24-91—24-95, 24-121—24-125, 24-161, 24-201—24-220, 24-251—24-264
12-466	8-23-2012	1		App. A, § 3.1
		2	Added	App. A, § 73.1.1(5)
		3	Added	App. A, § 92.5.3(38), (39)
12-581	8-23-2012	1		App. A, § 51.1
		2		App. A, § 52.1
12-583	8-23-2012	1		App. A, § 10.2.7
		2		App. A, § 11.2.7
		3		App. A, § 12.2.7
12-681	8-23-2012	1		2-2135
		2		2-2141
12-1019	12-20-2012			26-631
13-187	3-28-2013		Added	26-469
13-189	5- 9-2013	1		23-201—23-240
13-247	5-23-2013	1		App. A, § 75.1
		2		App. A, §§ 75.3.3—75.3.6
		3	Rnbd as	App. A, 75.6 App. A, 75.7
		4	Added	75.6
13-249	4-25-2013		Rpld	26-632
			Added	26-632
13-354	5-23-2013	1	Added	3-27
13-355	5-23-2013	1		15-131
		2		15-133
		3		15-142
13-433	6-27-2013	1		15-131
		2		15-133
13-434	6-27-2013	1		18-36
13-482	7-11-2013	1	Added	App. A, § 92.5.3(34)
13-529	7-25-2013		Rpld	2-2111—2-2114
13-654	9-26-2013			25-245(f)

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13-655	9-26-2013	1		2-1622
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		3		2-1626
		4		2-1627
13-731	10-10-2013	1	Added	3-28
13-844	11- 7-2013		Added	2-158
13-845	11- 7-2013		Added	16-15
13-846	3-29-2014	1		3-27
13-882	12-19-2013	1		App. A, § 3.1
		2		App. A, §§ 23.1, 24.1, 25.1, 40.1, 44.1
		3		App. A, § 73.23.1
13-959A	12-19-2013	1		15-109
13-968A	12-19-2013	1		15-108(1)
		2		15-108(2)
		3		15-108(6)
13-969A	12-19-2013	1		15-116(a)
14-89	2-27-2014	1		5-1
		2		5-41
		3		5-73
		4		5-74
14-316	6-26-2014	1		App. A, § 15.1
			Added	App. A, § 15.2.7
14-329	5- 8-2014	1		3-27(c)
14-576	9-25-2014	1		App. A, § 3.1
		2		App. A, § 15.1
		3		App. A, § 20.1
		4		App. A, § 23.1
		5		App. A, § 24.1
		6		App. A, § 40.1
		7		App. A, § 41.1
14-726	10- 9-2014	1		9-36
		2		9-44
		3		9-50
14-318	10-23-2014	1	Rpld	App. A, § 74.1
			Added	App. A, § 74.1
14-823	10-23-2014			8-277(a)(1)
14-970	1- 8-2015	1		3-27(c)
14-971	1- 8-2015	1		2-1402
		2		2-1405
15-7	1-22-2015			26-539
15-29	1-22-2015		Added	7-67
15-156	3-26-2015	1		8-151—8-318
15-315	6-25-2015	1		App. A, § 23.1
		2		App. A, § 75.3.2
		3	Added	App. A, § 92.5.3(35)
15-324	5-28-2015	1—3		2-252
15-406	7-23-2015	1		App. A, § 3.1
		2		App. A, §§ 23.1, 24.1.1, 25.1, 40.1, 44.1, 60.1, 64.1, 66.1
		3	Added	App. A, § 92.5.3(36)
15-414	6-25-2015	1		8-151—8-316
15-415	6-25-2015	1		15-85(80)
15-416	6-25-2015	1		22-1
		2		22-39

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15-479	8-27-2015	1		App. A, §§ 50.1, 51.1, 52.1, 54.1
		2		App. A, § 73.23.1
15-481	8-27-2015	1		App. A, § 53.5.1(7)
15-527	8-13-2015			2-152
15-528	8-13-2015			2-222
15-585	9-24-2015	1	Rpld	App. A, Art. 21
15-677	10-22-2015	1	Added	App. A, art. 27
		2	Added	App. A, § 75.3.7
		3		App. A, § 92.5.3(28)
		4	Added	App. A, § 92.5.3(35)
15-756	11-19-2015	1		App. A, § 71.6.3(1)
15-758	11-19-2015	1		App. A, § 10.7
		2		App. A, § 11.6
		3		App. A, § 12.6
		4		App. A, § 13.6
		5		App. A, § 14.6
		6		App. A, § 15.6
		7		App. A, § 16.5
		8		App. A, § 17.3
		9		App. A, § 20.1.3(6)
		10		App. A, § 22.5
		11		App. A, § 80.9
		12		App. A, § 81.7
		13	Added	App. A, § 92.5.3(37)
15-760	11-19-2015	1		App. A, § 72.4.2
		2		App. A, § 75.3.1
		3		App. A, § 92.5.3(2)
15-907	1-28-2016	1		App. A, § 92.5.3(36)
15-908	12-17-2015			26-84, 26-87, 26-89, 26-96, 26-102, 26-103, 26-143, 26-146, 26-193, 26-195
15-909	12-17-2015			26-423, 26-426, 26-430, 26-433, 26-452—26-454, 26-456, 26-457, 26-462—26-464, 26-467—26-469
			Rpld	26-455, 26-458—26-460, 26-465, 26-466
15-910	12-17-2015			21-276
15-911	12-17-2015			22-187(a)
15-912	12-17-2015			26-581, 26-607, 26-608, 26-641, 26-644, 26-677
15-922	12-17-2015	1		27-91
15-951	1-14-2016	1		12-331—12-337
15-952	12-17-2015		Added	2-188
16-009	3-10-2016	1		12-31, 12-32
16-89	3-24-2016	1		App. A, § 75.3.1
			Rpld	App. A, § 75.3.7
		2		App. A, § 92.5.3(2)
		3		App. A, § 92.5.3(28)
16-91	3-24-2016	1		App. A, § 92.5.3(2)

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		2		App. A, § 92.5.3(18)(b)
		3		App. A, § 92.5.3(33)(c)
		4		App. A, § 92.5.3(34)(b)
16-103	2-11-2016	1		8-141—8-379
16-104	2-11-2016	1		15-85(80)
16-259	5-26-2016	1		App. A, § 44.1
16-318	6-23-2016	1		App. A, § 72.4.2
		2		App. A, § 72.4.8(7)
16-327	6- 9-2016	1		App. A, § 3-27(c)
16-412	6-23-2016	1		9-1—9-54
16-491	8-25-2016	1	Rpld	App. A, § art. 32
		2	Rpld	App. A, art. 33
		3		App. A, § 70.1.3
16-493	8-25-2016	1		App. A, § 27.5
16-580	8-25-2016			15-2
16-621	9- 8-2016	1		5-74
16-648	10-27-2016	1		App. A, § 27.2(2)
16-737	10-13-2016	1		9-51
		2		9-53
16-739	10-13-2016	1		18-36(f)(4)
16-781	11-17-2016	1	Added	App. A, § 92.5.3(40)
16-795	11-17-2016	1		App. A, § 92.5.3(22)
16-890	11-17-2016	1	Added	8-400—8-422
16-891	12- 1-2016	1		2-67(a)(1)
16-964	1-12-2017	1		25-75
		2, 3		25-85, 25-86
		4—7		25-89—25-92
16-965	1-12-2017	1		Ch. 8, Art. III(tit.)
		2	Added	Ch. 8, Art. III, Divs. 1—3(tit.)
		3		8-111, 8-112
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			Added	8-118—8-127
16-966	1-12-2017	1		4-35
		2		4-122
17-045	2- 9-2017			25-245(f)
17-088	2-23-2017	1		3-27(d)
		2		3-28(d)
		3		3-133
17-089	2-23-2017	1	Added	3-29
17-164	4-27-2017	1		App. A, § 24.2.4(1),(2)
		2		App. A, § 24.3.1
		3		App. A, § 24.5
17-337	5-25-2017	1	Added	17-104, 17-105
17-456	6-13-2017	1		15-131
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17-585	9-28-2017	1		App. A, § 92.5.3(18)
		2		App. A, § 92.5.3(34)
17-601	8-24-2017	1		22-79(tit.)
		2		22-80
17-846	11- 2-2017	1		3-27(d)(1)
17-847	11- 2-2017	1		3-28(c)
17-883	12-21-2017	1		App. A, § 50.1

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		2		App. A, §§ 50.3.1—50.3.3
			Rpld	App. A, § 50.3.4
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		4		App. A, § 50.5.1
		5		App. A, § 50.6.1
		6		App. A, § 50.8
		7		App. A, § 50.9.1
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17-885	12-21-2017	1		App. A, § 51.3.1
		2		App. A, § 51.4.3
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17-953	1-25-2018	1		App. A, § 70.1.3
18-03	2-22-2018	1		App. A, § 24.1
		2		App. A, § 24.3.1
18-65	3-22-2018	1		App. A, § 92.5.3(33)
18-230	5-24-2018	1	Added	App. A, § 55.1—55.10
		2		App. A, § 75.3.1
		3		App. A, § 73.23.1
		4		App. A, § 92.5.3(2)
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				App. A, § 92.5.3(18)
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				App. A, § 92.5.3(33)
				App. A, § 92.5.3(37)
				App. A, § 92.5.3(38)
				App. A, § 92.5.3(40)
18-232	5-24-2018	1		App. A, § 42.4.1
		2		App. A, § 51.4.1
		3		App. A, § 51.4.2
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